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ABSTRACT

This thesis investigates the interactive entertainment industry, organized through platform ecosystems and continuously provided electronic games, as a techno-legal infrastructure with significant impact on everyday life. It identifies the emergence of a private ordering grounded in architecture, curation, sanction, and unilateral mutation, here termed Lex Plataformae, whose operation challenges the traditional framework of the Brazilian Consumer Law, still oriented by a material ontology centered on discrete products and services, one-time deliveries, and static standards of conformity. It argues that such a framework fails to adequately capture the risks of platform-governed continuous enjoyment, since, in these markets, the consumed good does not appear as a stable thing, but rather as a functional and semiotic arrangement continuously modulated by the supplier. The thesis proposes the category of the Immaterial Object of Consumption (IOC) as an infrastructural concept capable of giving concrete form, within platform environments, to the notion of immaterial product set forth in Article 3, paragraph 1, of the Brazilian Consumer Protection Code as a governed enjoyment bundle. From this formulation onward, legal protection no longer focuses solely on the formal regularity of performance, but comes to encompass the functional integrity of the acquired object and the personal and symbolic integrity of the consumer. Within this framework, factual vulnerability is also reinterpreted in its semiotic dimension, insofar as the asymmetry involves a structural deficit in the consumer's capacity to understand, anticipate, and control the regimes of signs, interfaces, functional promises, and symbolic rewards that compose the value of the IOC. On this basis, the thesis formulates the doctrine of the unlawful act of abusive teleology, under may arise not only from episodic failures, but from the very n the architecture exploit the consumer's semiotic vulne

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auditability and functional value equivalence as criteria for legitimacy, controllability, and redress regarding unilateral mutations imposed over time. It further argues that the problem exceeds a strictly contractual and consumer-law grammar and reaches the constitutional level, insofar as it involves infrastructural private powers capable of affecting legally relevant consumer positions within environments of social participation governed by corporate actors. Methodologically, the research combines theoretical-constitutional reconstruction, consumer-law dogmatics, and a functional reinterpretation of intellectual property, in dialogue with critical theory of technology, platform sociology, political economy, anthropology of consumption, and semiotics. The Riot Games: League of Legends ecosystem is used as a locus of referenced exemplification through documentary analysis and situated observation of the functioning of the service and its ecosystem, without any claim to exhaustive empirical demonstration. In conclusion, the thesis argues that interactive entertainment IOCs must be recognized as legally protectable objects in contexts of continuous enjoyment and as loci of social participation under private infrastructure, thus becoming subject to a protective regime oriented by the object's functional integrity, the consumer's symbolic integrity, constitutional consumer protection, and the social function of intellectual property.

immaterial object of consumption

governed enjoyment bundle

semiotic vulnerability

Lex Plataformae

Brazilian constitutional and economic order

consumer law

social function of intellectual property

HOW TO READ THIS TEXT

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THE PLAN OF THE THESIS

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> The discussion is organized in eight sections, including this introduction and the conclusions, so as to progressively articulate the methodological design, the theoretical reconstruction of the phenomenon and the dogmatic conversion of the proposed categories.

Introduction

On the methodological design and the observation protocol

> After the presentation of the problem, the hypothesis, the delimitation, the objectives and the methodology in this introduction, the second section establishes the research design and makes explicit the status of the reference material used throughout the work, delimiting the role of the researcher's situated experience and of public sources as support for intelligibility and illustrative anchoring.

ON THE SITE Concepts · Dogmatics · Platforms · Method · Foundations · Epigraphs

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Technology,
platforms and the techno-media economic order of digital consumption

> The third section reconstructs the techno-economic order of platforms, describing how technical rationality and models of continuous extraction reorganize the conditions of possibility of contemporary digital consumption.

Foundations · Dogmatics · Concepts

Semiotics and governance of enjoyment
in continuous immaterial consumption

> The fourth section examines the semiotic and subjective dimension of immaterial consumption, making explicit the means through which signs, belonging, rhythm and performance modulate expectations and conducts, thus intensifying asymmetries relevant to consumer protection. Throughout these sections, occasional references to the interactive entertainment ecosystem are employed for illustrative purposes to make visible typical mechanisms of governance by architecture.

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Foundations · Concepts

On the legal regime of the Immaterial Object of Consumption (IOC) under the Lex Plataformae

> The fifth section consolidates the regime of the Immaterial Object of Consumption as an infrastructure-concept and establishes the operational control concepts capable of guiding the identification and qualification of abusive practices in continuous digital environments, with emphasis on semiotic vulnerability, abusive teleology as a category of controllable attribution, and parameters such as open auditability and functional value equivalence.

Dogmatics · Concepts · To operate · Platforms

On the protection of the consumer's semiotic vulnerability in light of Brazil's constitutional and economic order

> The sixth section carries out the dogmatic reconstruction, proposing an integrated reading of the 1988 Federal Constitution of the Federative Republic of Brazil, the Consumer Protection Code, and the Brazilian legislation on intellectual property rights based on the IOC regime, so as to make explicit criteria of legal qualification, correlative duties and possible institutional responses to conflicts on digital consumption platforms.

Dogmatics · Concepts · Platforms

On the typology of the models of incidence of the Immaterial Object of Consumption in different functional categories of platform

> The seventh section concentrates illustrative applications and tests of fit of the proposed keys in typical contemporary situations of continuous digital consumption, using examples and public documentary material to make visible recurring patterns of friction, evidentiary requirements and blind spots in the translation of the conflict, without shifting the work toward an extended case study.

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Platforms · To operate · Concepts · D

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Conclusion

> At the end, the eighth section closes the path with the final considerations, in which the main arguments are revisited, their limits indicated and possible developments pointed out at the scientific, dogmatic and institutional levels.

Concepts

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CONCEPTS IN THIS SECTION

The law of the platform

There is a kind of consumption in which the subject believes they are walking on their own ground, but only moves within ground that is granted, revocable and fully reconfigurable. Access, permanence and even the meaning of what was acquired depend on a continuous administration that presents itself not as management, but as technical normality. The object is not valued only for what it is. It is valued for what it allows one to do, for what it signals, for the place it occupies in the ecosystem and for the way this ecosystem recognizes or erases its bearer. When everything changes and the consumer no longer feels like themselves, this is not subjective drama or mere annoyance. It is the foreseeable consequence of a regime in which use value, symbolic value and the continuity of enjoyment are subject to the governance of third parties.

The perception that digital consumption operates under revocable and mutable conditions does not arise as a loose intuition. It stems from a research path that crossed the institutional dimension of industrial property and came into focus in interactive entertainment, where enjoyment depends on private decision-making centers and opaque infrastructures. The decisive point is not to note that the environment reconfigures the object, but to recognize that classical dogmatics tends to treat this fact as a post-contractual detail, when the real problem lies in the conditions of experience that define what counts as delivery and what counts as loss.

Skip to content rise from a prior institutional agenda, nor from mere private curiosity turned into an academic pret

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repeated itself for years, in the same form, albeit in different settings. Everyday life came to be permeated by technical layers that ceased to operate as simple tools and began to function as an environment. What was once a means became a condition of possibility for living, for consuming and, often, for belonging itself. Research was the way found to treat this discomfort seriously, keeping a distance from both romanticization and cynicism.

Throughout academic, teaching and professional practice, it became difficult to ignore that certain contemporary experiences, although trivial in the eyes of those who choose not to live them, are structurally decisive for those who devote a relevant part of their lives to them. In a country in which the digital environment is already routine infrastructure, how can one keep treating the consumption embedded in it as if it were a lesser, puerile or legally irrelevant version of traditional consumption? At what moment did it become natural that time, attention, reputation, collection, bond and patrimony can be captured and undone by design, without this being named with the weight it deserves and, above all, without generating the consequences it should generate?

This difficulty in looking away was not merely theoretical. It also came from teaching and from the need to sustain Consumer Law as a language of protection, and not as mere ritual. The experience of teaching and following discussions on collective redress in consumer matters shifted the perspective beyond the contract as paper and into consumption as routine, expectation and frustration. There, a pattern repeated itself: contemporary injury rarely announces itself as an explicit scam. It usually comes as administered normality, as a promise of experience, as an incentive to stay, as a cost one learns to call inevitable.

Another part of this perception came from professional experience with digital advertising and community building. By contrast, it stripped away the naivety that sometimes contaminates legal discourse on communication and the market. Visibility, narrative, belonging and engagement are not ornaments. In practice, they are structures, techniques and design choices. Community is not born from nothing, by chance. It is cultivated through language, symbolic reward, a sense of place and small frictions that

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interest. Observing the machine at work confirmed that the contemporary consumer does not face only an asymmetry of data: they face an asymmetry of grammar. The supplier, under such a reading, would be controlling the very vocabulary of value, the signs of belonging and the triggers that make the consumed experience seem natural.

There is, however, a predictable social reflex whenever one mentions the aim of treating interactive entertainment as a technical, marketing, existential and patrimonial category. The reaction, at times, is laughter, puzzlement or disdain. This reflex is part of the very problem the thesis confronts, because social disdain is one of the mechanisms that makes injury easier, more acceptable and more invisible. When the activity of an entire economic sector is treated as harmless play, it becomes easier for abuses to be examined from the perspective of "it's just a game", even when they involve money, time, attention, legitimate expectations and relevant losses.

There is, nevertheless, a relevant side effect. Because it is treated as play, interactive entertainment ends up exposing, with less modesty and less varnish, structures that in other sectors appear disguised as convenience, innovation or the mere organization of a service. In games, reward cycles, retention metrics, visibility management, friction engineering and behavior administration are acknowledged more openly. On platforms commonly taken seriously, the same set of techniques shows up under the guise of neutrality, personalization or efficiency. Studying games, in this sense, is not choosing a lesser object. It is choosing the place where the mechanisms appear most clearly.

When this parallelism is recognized, the legal question changes scale without losing rigor. If the experience of interactive entertainment allows one to see, almost with the naked eye, the production of dependence, the fabrication of symbolic value, the conversion of routine into bond and the naturalization of asymmetries, then it offers a privileged laboratory for understanding what repeats itself in ecosystems of communication, work, learning, reputation and consumption in general. The difference is that, outside the game, the same effects tend to be presented as inevitable, and not as choices of architecture. It is precisely for this reason that a

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Law is the language of earthly gods. It is the way in which the collectivity that organizes itself as a State transforms forces into forms, conflicts into criteria, desires into limits and powers into responsibilities. When it works, it prevents the will of the strongest from becoming normality by sheer capacity of imposition. It names and organizes what, without a name, becomes “bad luck”, “rule of the game” or “technical necessity”. In this setting, Consumer Law presents itself as a deliberately expandable technical idiom, built to recognize mutable asymmetries and capture abuses that do not announce themselves as deviations, preserving the promise of protection even when the market changes its skin.

The expandability of Consumer Law is not poetic license. It is consistent with the Brazilian constitutional order, in which free enterprise neither authorizes insurmountable asymmetries nor naturalizes losses as a cost of participation. In platform markets, this matrix takes on a decisive particularity. The relevant vulnerability is not reducible to missing information or a poorly drafted clause. It can be fabricated by architecture, by semiotic governance and by the private concentration of evidence and decision. For this reason, the dogmatic reconstruction proposed in this work is not meant merely to update concepts to keep pace with technology, but to make operational, under controllable criteria, a constitutional core for containing private power when it presents itself as technical normality.

This passage from the technological problem to the constitutional problem is not a methodological deviation, but a direct consequence of the very process of constitutionalization of law. If fundamental rights are no longer understood only as barriers opposed to the State and instead radiate effects over the various branches of the legal order, then the private relationship can no longer be treated as a space immune to the incidence of constitutional values, above all when powers capable of conditioning, restricting or degrading relevant existential positions of the subjects involved are concentrated in it CLEMENTE. In other words, when the platform unilaterally organizes access, permanence, visibility, evidence and sanction, what is at stake is no longer simple freedom of negotiation in a neutral environment, but the [illegible] ower with concrete aptitude to affect the consumer's

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It is precisely for this reason that platform governance is not taken here as a mere contractual or technological backdrop. The key lies in recognizing that, in contemporary society, relevant violations of fundamental rights do not come only from the State, but also from private subjects endowed with economic, informational and organizational power, whose action requires a dogmatic reconstruction capable of reconciling effective protection and private autonomy without romanticizing the latter CLEMENTE.

In the environment of continuous digital consumption, this finding gains its own density: the asymmetry does not stem only from abstract patrimonial superiority, but from the infrastructural capacity to fabricate the experience, define what counts as regular conduct, administer the intelligibility of loss and impose, under the appearance of technical normality, reconfigurations that affect the user's enjoyment, identity and patrimony. The incidence of fundamental rights in private relationships, here, does not appear as a theoretical ornament, but as a presupposition of the intelligibility of the problem itself.

If Law operates through this transformation of force into form, then the decisive conflict in platform consumption is not only "what happened", but "how what happened can be said" without being downgraded to noise. In ecosystems governed by architecture, the dispute is filtered by recording formats, evidentiary criteria and limitations on access to information, which pushes the debate onto the terrain of legal intelligibility: what is nameable, demonstrable and attributable. Consumer protection can only act when what today appears as "the functioning of the system" comes to be seen again as a controllable decision and, therefore, as responsibility.

It must be recognized, however, that this expandability of Brazilian Consumer Law has been held back by a strictly material ontology, which insists on reducing the product to the delivery of a physical medium or of a discrete, completable performance. Article 3, §1[1], of the Consumer Protection Code already contains the normative opening needed to recognize goods that circulate without a stable corporeal medium and whose enjoyment depends on continuous technical and

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itions. The Immaterial Object of Consumption (IOC) presents itself, in this sense, as the definitive sub

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had already demarcated, although contemporary doctrine has left it a vacant lot. By conferring legal density on what was only a residual label, the IOC prevents immateriality from serving as an alibi for the technical irresponsibility of platforms.

Keeping this lot vacant is not merely a theoretical problem. It produces foreseeable institutional effects, because every stable dogmatic gap tends to be converted into a business model. When categories capable of making certain losses legally visible, of naming, demonstrating and attributing them, are lacking, the space of irresponsibility does not remain neutral and begins to function as a margin for optimization. What is not captured as legal risk tends to be treated as an ordinary component of design. When oversight is rare and sanction unlikely, risk ceases to act as a brake and gets priced in, as if it were merely an operating cost. Dogmatics, by omission, may end up becoming part of the very arrangement that naturalizes the transfer of losses to the consumer.

This reconstruction also requires an explicit reconciliation with intellectual property rights, since a relevant part of platform governance is anchored, directly or indirectly, in exclusive rights and licensing regimes. The legal protection of immaterial creations, however, does not operate as a safe-conduct for the arbitrary administration of consumption experiences. The Brazilian Constitution does not treat exclusivity as immunity and conditions the tolerability of exclusive prerogatives on socially justifiable purposes, of development and of public interest[2], which prevents converting opacity, unilateral mutability and sanctions destructive of enjoyment into so-called “inevitable” effects of the right to exclude third parties.

In this sense, the regime of the Immaterial Object of Consumption is not opposed to intellectual property as if it were a project for annulling exclusivities. It fixes the point of institutional tension. Under continuous consumption, the economic exploitation of the sign and of access does not eliminate minimum duties of stability, verifiable transparency and restoration when there is relevant degradation of enjoyment. Exclusivity may organize the market, but it cannot justify an environment in which the consumer bears systematic losses without an intelligible

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tion, without traceability and without conditions for contestation.

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This investigative chain produced an additional turning point, decisive for the economic reading of the problem. The analysis of the dispute between the United States and China at the WTO, at the end of the 2000s[3], revealed a structural trait that would become key to understanding contemporary models of extraction. When the institutional design of the unlawful act operates through thresholds and metrics, the boundary between lawful and unlawful ceases to function as an effective prohibition and comes to operate as an optimization parameter of the business model itself, in which profit is realized not through a high margin on few units, but through scale and repetition below the punishable threshold.

The engine of many digital ecosystems is not only overt charging, but drainage through micro-events, micro-decisions and micro-losses, distributed at scale and diluted to the point of becoming almost invisible, although cumulatively relevant. The hypothesis taking shape is that a significant part of the "perfect business model" of contemporary *Big Techs* does not in reality minimize risks, but rather pulverizes and outsources them, converting costs, frictions and setbacks into noise that is acceptable per unit and, for that reason, hard to contest through individual perception. It is at this micro level that the architecture of the business becomes dogmatically relevant, because what presents itself as "technical normality" comes to operate as an economic method, actively transferring risks and losses to the consumer — a diagnosis that will be reconstructed under criteria of controllable attribution in the following sections.

What platforms do, in this context, is sell, as factual inevitability, a private language that in practice forms part of the very object they set out to sell. It is, rather, an institutional regime that reorganizes consumption through architecture, curation, sanction, opacity and unilateral change. By governing access, permanence and the intelligibility of what was acquired, the platform comes to exercise, in practice, regulatory functions internal to the ecosystem, defining conditions of participation, administering visibility and reputation, deciding what counts as acceptable conduct and executing sanctions that can destroy the use value and the identity value of the

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normativity is not limited to the contractual clauses that relationship, since

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patterns, selective frictions and *enforcement*[4] mechanisms capable of organizing what is possible, visible and desirable.

Lex Plataformae is an operative Latinization built by analogy with classical formulas for naming private orderings, especially the *Lex Mercatoria*, an expression used to designate an a-national body of rules and principles associated with the practice of international trade and its private mechanisms for settling disputes. The approximation is deliberate, because both expressions function as conceptual labels for normative phenomena that do not depend on state legislative production to operate socially and produce legally relevant effects, even though their nature, their sources and their limits are the subject of controversy. The distinction is equally relevant, because, while the *Lex Mercatoria* is usually described as an ordering emerging from diffuse practices and multiple actors, the *Lex Plataformae*[5] designates a type of private ordering centered on a platform as the institutional core that defines rules, visibilities, sanctions and evidentiary regimes through continuous architecture and updating.

The expression *Lex Plataformae* therefore intends to name not a set of pre-drafted clauses, but a private ordering that is technically executable, economically oriented and semiotically naturalized. Its specificity lies in the fact that the platform not only enunciates rules, but materially conditions the field of the possible. It not only promises sanctions, but implements them. It not only interprets behaviors, but classifies, records, prioritizes, makes invisible, recommends, blocks, expels, restricts, monetizes and reconfigures the very environment in which the user tries to exercise the enjoyment of the acquired object. For this reason, the analogy with the *Lex Mercatoria* is useful as a point of departure, but insufficient as a point of arrival. The *Lex Mercatoria* refers, in its best-known formulation, to a transnational order associated with mercantile practices and private mechanisms for stabilizing expectations. The *Lex Plataformae*, in turn, designates a private order whose center is not only mercantile circulation among actors, but control of the infrastructure of access, of the intelligibility of the experience and of the concrete conditions for position.

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From this follows a methodologically sensitive difference. On the platform, the repetition of practices and solutions should not be read naively as a sufficient sign of normative legitimacy. Often, what presents itself as market habit or custom of the ecosystem is already the product of unilateral design, of structural informational asymmetry and of the naturalization of choices previously filtered by the architecture itself. In other words, reiteration, here, may express less a spontaneously formed normative consensus and more the sedimentation of a private power that fabricates the environment in which behaviors repeat themselves. The critique is relevant because it prevents romanticizing, under the language of custom, what may in truth correspond to the technical stabilization of private impositions.

The proposed expression, therefore, fulfills a specific analytical function. It allows one to designate the practical juridicity that emerges when the platform ceases to be a mere vehicle of circulation and comes to act as an internal instance of government of the ecosystem. In this condition, it produces express and implicit rules, defines regimes of adhesion, shapes expectations of conduct, establishes its own circuits of contestation, models the use value of the good or service accessed and interferes directly in the preservation, erosion or destruction of the identity and economic value associated with the immaterial object of consumption. The *Lex Plataformae*, thus understood, neither replaces state Law nor eliminates the incidence of the public legal order. It designates, rather, the private normative layer that interposes itself between the subject and enjoyment, organizing the concrete experience of consumption by means that Law cannot treat as a simple technological backdrop.

In this context, this is the technical sense that allows one to speak of governance by architecture, along the lines of what Julie E. Cohen[6] describes as informational power exercised by structural means, and not only by explicit command. In doing so, the platform occupies the place of the collectivity without authorization and occupies the place of the State without accepting, in the same measure, the duties that limit a power capable of organizing lives. It transforms political decision into operational detail and sells this usurpation as the simple functioning of the world.

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bears the losses when the environment "decides" to change. From here on, it proves decisive to separate two movements that should not be confused.

The first is descriptive. Identifying this regime of private governance means recognizing a form of power that precedes and conditions, in practice, economic and cultural life. In terms of legal theory, it is a matter of exposing a presupposed law that functions as the effective ground of conduct, even before posited law manages to name and discipline it. It is this mismatch between what operates as a norm in everyday life and what is recognized as a norm by state language that makes the phenomenon legally relevant.

The second movement is dogmatic and is not automatic. Abusive teleology does not name the mere fact that this regime governs. The category only makes sense if it can function as controllable attribution, capable of reconstructing a pattern and not merely reacting to an episode. What one seeks to qualify is the situation in which the exploitative purpose is inscribed in the very architecture of the service and reproduces itself as regularity, through choices of *design*[7], curation and sanction that make enjoyment dependent on asymmetries the consumer can neither decode nor audit. This requirement of form and control is consistent with Miguel Reale's[8] idea that Law only reaches reality when it converts facts and values into criteria, and with the warning of Tércio Sampaio Ferraz Jr.[9] that, without categories capable of capturing structure and recurrence, legal decision-making fragments into micro-events and loses the rationality of the whole.

A methodological requirement follows from this. Legal control of these ecosystems depends on a vocabulary capable of making nameable, demonstrable and attributable the decisions that today hide behind technical functioning. For this reason, the work is organized in linked movements, through which it describes the governance regime that administers access to, permanence of and meaning of the digital good, stabilizes categories of qualification, evidence and attribution under the Consumer Protection Code in reconciliation with the legislation on which intellectual property rights rest and, finally, tests these keys in illustrative pical examples of continuous digital consumption, in which

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unilateral reconfigurations and platform sanctions shift what counts as delivery, alter enjoyment and redistribute losses.

The contemporary organization of economic, social and cultural life increasingly runs through a techno-media order that reconfigures the conditions of possibility of consumption. This is not merely a quantitative increase in technologies applied to the production and circulation of goods, but the consolidation of permanent digital environments capable of shaping the perception, attention and behavior of individuals on a large scale. In this setting, legal protection no longer deals only with isolated failures of quality or safety and must come to see recurring structures of governance and inducement, in which the environment itself organizes expectations, enjoyment and losses as part of the business model.

The critical literature on technique and media, by highlighting the passage from technique-as-tool to technique-as-environment, allows one to see that contemporary economic rationality is not limited to producing isolated material objects, but architects contexts of experience in which the consumer is immersed. Instead of clearly delimited corporeal goods, immaterial arrangements of functionalities, signs and symbolic rewards emerge, continuously updated through proprietary code and confidential business decisions. Consumption comes to be mediated by algorithmic flows and graphical interfaces that organize the visible, the desirable and the possible, making the technical architecture, itself, a *locus* of legal dispute.

The interactive entertainment industry, especially that of electronic games in a platform environment, is a paradigmatic terrain of this transformation. *Online* games with millions of users, integrated into ecosystems of microtransactions, progression systems and elements of digital sociability, cease to be mere "leisure products" and assume the role of cultural and economic infrastructures. In them, the consumer's experience depends on constant interaction with a set of dynamic rules, visual and sound signs, avatars, *skins*[10], virtual items and narratives that make up a true playable world. The traditional figure of the "buyer of a game" is replaced by the subject who enters and remains in a private normative environment, governed by adhesion

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From the legal point of view, this reconfiguration throws into crisis a material ontology still dominant in Brazilian Consumer Law, which tends to think of products and services as discrete, one-off performances exhausted in an act of acquisition and enjoyment. The consequence is a growing mismatch between the way consumption is actually organized, in digital environments of high complexity and continuous reconfiguration, and the traditional categories mobilized for its protection, which end up treating as "after-sale" what, in practice, is the very core of the object.

The Brazilian Consumer Protection Code was tailored for a world in which risk shows its face and damage leaves direct traces on the body, the mind and patrimony. It was born to protect life as a condition of dignified existence when industry errs, when commerce fails, when the normality of the market produces degrading quality defects and when it gives rise to violent accidents. In the classical vocabulary, first come the structural weaknesses, the defects that seep into manufacturing and performance as routine and that Law tries to tame through information, quality and liability. Then come the shock, the accident and the explosion as events that break integrity and demand a response. It is a grammar made to capture error, negligence, what is dangerous, what materializes as a fall, a loss and mourning.

Yet, in continuous consumption governed by platforms, the central problem no longer behaves as error or accident. The "product" is not a stable thing, it is an administered position. Enjoyment depends on mutable rules, invisible curation, sanctions, updates and an authority that does not present itself as such. Everything seems to work and, even so, the feeling persists that something important is moving in the shadows. The CDC keeps looking through the lens of manufacturing and marketing while the object of the conflict lies in the conception, in the design of the environment, and not in an isolated event. Causality itself changes, because the injury is no longer the failure that escaped control, but the one that was converted into a "legitimate" business model.

This is how abusive teleology emerges as a decisive category of unlawful act. It is the worst of the design defects, because it intentionally precedes the damage and [illegible] deliberate, it ceases to be a failure and becomes a method. It is a [illegible] sin driven into the

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"went wrong", it is that something "was made to be this way". Technique comes to operate as a manifest language, that is, fully operative. A language of architecture and engineering that defines what can be seen, proven, contested, repaired and even remembered. It fabricates the facts of consumption the way one would fabricate weather in a predictable sequence, with superficial justification and the appearance of strict normality. Damage ceases to be an occurrence, because it is part of the very routine of government. And the consumer is pushed to negotiate not with the object, but with the world the object inhabits. A world that is not their own. A world that, behind the masks, is nothing but a set built so that everything happens not in their favor, but in favor of whoever defines the rules of the game and, in this case, even beyond the game.

The opening metaphor of Law as the "language of earthly gods" introduces an ethical perspective for reading the conflict. In the work of Dante Alighieri, the depth diagram of the *Inferno*[11] is not a scale of the intensity of suffering, but a cartography of the degradation of the human bond. Seriousness increases when evil ceases to be impulse or force and comes to operate as guile, that is, when intelligence is used to produce an appearance of legitimacy and, above all, to violate trust.

The Consumer Protection Code operates comfortably when injury presents itself as a manifest failure, a disorganization of conduct or recognizable violence, situations in which the deviation can still be seen as a repairable event. Under the technofeudal dynamic, however, injury tends to reorganize itself as a program. Capture is designed through architecture and continuous governance, converting informational asymmetry into method and making the bond promised to the consumer an exploitable trust. In this horizon, the problem ceases to be only the one-off damage and comes to be the systematic production of conditions for trust to be broken without appearing broken, as if the revocability of what is offered were technical normality.

At the apex, betrayal appears. Not as literary drama, but as the logical consequence of a consumption that sells belonging only to reveal itself later as a revocable license.

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loss of a resource legitimately earned and acquired, the erasure of a history that concentrates expenditur

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pressure for forced reinvestment so that it becomes possible to "exist again" in the ecosystem are examples of how the ninth circle is updated in this regime.

It is in this context that the central problem is situated: how to reconstruct the consumer protection regime in light of the reality of digital goods and interactive entertainment platforms, without breaking with the normative framework of the Consumer Protection Code and the Constitution? And, at the same time, how to make it responsive to the new techno-media order? More specifically: in what way can Brazilian Consumer Law recognize and confront the risks derived from the continued exposure of individuals to digital objects that intensely mobilize their attention, their affectivity, their identity, and even their patrimony under the logic of business models oriented toward the maximum extraction of value?

The hypothesis that guides the work is that this updating depends on the formulation of a legal-analytical category capable of capturing the specificity of digital goods in a platform environment. To this end, the thesis proposes the Immaterial Object of Consumption (IOC) as an infrastructure-concept that gives concrete form, at the dogmatic level, to the notion of "immaterial product" already enacted in the Brazilian legal order under Article 3, §1, of the CDC[12], shifting the focus from the mere conformity of a corporeal object to the governance of functional and symbolic architectures that structure the consumer's experience. The IOC is not a new microsystem, but a new interpretive key, a way of reading the CDC itself and the Constitution, leading them to the centrality of flows of code, images, sounds and narratives in the configuration of digital consumer relationships.

From this perspective, it is argued that the consumer's factual vulnerability, expressly recognized in Article 4, I, of the CDC[13], takes on in digital environments a form of its own, linked to mediation by signs, interfaces and private criteria of visibility and enjoyment. This vulnerability is intensified by practices of hypercuratorial anticipation, through which the platform projects images of performance, reward and future experience without offering, in the same measure, real conditions of verification and control by the consumer.

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qualify, under strict criteria, situations in which the architecture of the environment

is designed to systematically exploit the consumer's semiotic vulnerability, instrumentalizing their attention and their symbolic identity in favor of revenue maximization. Consumer protection, then, needs to be reconstructed so as to protect not only physical or economic integrity, but equally the functional integrity of the goods acquired and the personal and symbolic identity of the user, both continuously projected onto Immaterial Objects of Consumption, which are responsible for structuring life in the digital ecosystem.

In this reading, *La Divina Commedia* offers no mere rhetorical ornament. In Alighieri's poem, the circles do not represent mere degrees of punishment, but rather a gradation of ethical deviation established in the development of the relationship between impulse, force and human intelligence. What Dante narrates, on this understanding, is not a graduated definition of sin, but an understanding of what degrades human relationships. The greater the damage to the bond, the graver the sin. The first circles bear the mark of man's weakness: desire, lack of control, incontinence. This is where evil appears as a fall, as incapacity and, to a certain extent, as manifest and recognized chaos. Next, violence implies an active rupture of another's integrity, and sin takes on its most objective and also most destructive form.

In the last circles, however, the decisive point is fraud, because it mobilizes reason, language and calculation. Fraud touches what should elevate the human being, but which is instrumentalized for the shady capture of the other, exploiting their trust, their expectation and making any threshold of predictability impossible. For this reason, the Dantean apex is betrayal: fraud practiced against the most privileged bonds. It is not merely a perspective of material damage, but the full dissolution of the foundations of trust without which no common life is able to sustain itself. This logic, when transposed as an ethical-structural metaphor, makes it possible to organize the passage from contingent defect to deliberate defect, from isolated failure to method, from event to project, without losing the guiding logical thread that makes intelligible why certain forms of deviation seem deeper than others.

The last circle adds yet another detail decisive for this reading: it is not an d by fire, but by ice. If the previous circles refer to deviations that as ostensive events

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that imposes itself on the senses and creates uproar, the apex comes by the opposite route. Betrayal, ultimately, is cold, discreet, motionless, and precisely for this reason substantially more difficult to understand from common intuition.

Ice symbolizes an evil that does not need to display itself as a dispute, because it operates by withdrawal, erasure and de-escalation, not by shock. Beyond the circles, it is also the symbol of the apex of administered normality, where the structure does not need to shout in order to dominate, since it simply "freezes" the consumer's alternatives. It is not a damage that shouts, but a structure that silences, that sickens the bond by stiffening, that makes loss naturalized, and that induces the subject themselves to passively occupy the position in which they are harmed. In this regime, the metaphorical *Inferno* does not translate into combustion of the visible fact, but into an administered paralysis that makes the complaint inaudible and, at the same time, transforms the act of injustice into functional normality.

Therefore, the traditional product-caused accidents and quality defects described under the Brazilian consumer codification are not being abandoned. What is proposed is support for the view that, when technique is carried to its ultimate consequences, the protection of dignity requires a category capable of seeing evil before the scream, the unlawful act before the event, which manifests itself under a design capable of making any cry for help inaudible. The platform disqualifies the consumer as a subject who deserves to be heard[14], converting the search for justice into mere noise that the platform itself can manage.

This research falls within the field of consumer rights and intellectual property from the perspective of the Brazilian constitutional order, taking as its analytical axis the category of the Immaterial Object of Consumption (IOC). The thematic scope concentrates on consumer relationships mediated by interactive entertainment platforms, especially those structured around *online* electronic games and their ecosystems of digital goods. It is, therefore, a matter of investigating not the technological phenomenon in general, but the specific way in which playful digital environments, organized under a platform regime, condition the consumption projection of the symbolic identity of their users.

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As to the normative delimitation, the starting point is the Consumer Protection Code, in dialogue with the 1988 Constitution of the Federative Republic of Brazil and with the comprehensive national legislation pertaining to intellectual property rights (copyright, industrial property rights, rights over personally or economically relevant immaterial creations in the *lato* sense), in order to reconstruct the concept of "immaterial product" in light of contemporary practices of economic exploitation of digital goods. Instead of proposing an autonomous regulatory microsystem for "electronic games" or "digital platforms", what is being proposed is a demonstration that the Immaterial Object of Consumption is a form of interpretive updating that, in dogmatic terms, is already internal to the CDC itself and derived from the constitutional principles that inform it, with special attention to the guarantee of recognition of the consumer's vulnerability and to the social function of intellectual property.

At the level of illustrative application, the work takes as its privileged *locus* the ecosystem of products and services of the multinational *Riot Games*, with a focus on the game *League of Legends* and its extensions on associated platforms. This scope does not seek to exhaust the diversity of the global interactive entertainment industry, but to offer a field of exemplification in which typical structures of semiotic governance, practices of hypercuratorial anticipation, monetization models based on digital goods and recurring patterns of friction between consumers and supplier become particularly clear. Although the IOC is built to engage with continuous digital consumption as a whole, the research limits its use of references to this universe to supporting intelligibility and anchoring the theoretical-dogmatic path.

In this effort of delimitation, a necessary terminological cleansing is required, which demands abandoning the descriptive generalization "digital vulnerability". Although it presents itself as a seductive nomenclature, this expression suffers from a destructive polysemy that, by merely naming the setting, ends up obscuring the mechanism of power that operates in it. This research replaces the environmental label with the precision of semiotic vulnerability. The consumer is not vulnerable [illegible] are on the internet, but because the platform governs the [illegible] ngs and the interfaces that define the very existence and value of enjoyment. It is a matter of shifting th[illegible]

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asymmetry of world, converting what was previously academic noise into an objective criterion of evidence and decision.

By methodological choice, topics such as criminal liability, sectoral regulation of broadcasting, taxation of *software* or personal data protection regimes as autonomous normative axes fall outside the direct scope of the analysis. The focus falls on the articulation between consumption, intellectual property and platform architectures, with the guiding thread being the way the IOC organizes the consumer's experience and how semiotic vulnerability is exploited in business models oriented toward the continuous extraction of value.

The relevance of the research stems, first, from the growing centrality of digital consumption in everyday life, especially in the fields of entertainment, sociability and the construction of identities. *Online* gaming platforms have ceased to be peripheral spaces of youth leisure and have become environments in which significant economic values circulate around microtransactions, virtual goods, targeted advertising and the organization of competitive events of global reach. In this setting, Brazil presents itself simultaneously as a large consumer market and as a legal order that still operates, to a large extent, with categories conceived for an analog world, based on corporeal goods and one-off performances, even if repeated.

Second, a conspicuous theoretical-dogmatic gap persists. Although doctrine and case law have advanced on topics such as electronic commerce, distance contracting and personal data protection, the way complex digital goods, especially those that structure persistent playful worlds and experiences, fit into the Consumer Protection Code's category of “immaterial product”, and what consequences follow for the liability of suppliers, remain little explored. The absence of a systematic treatment of the consumption of digital goods in a platform environment opens space for case-by-case solutions, often incapable of capturing the specific risks of consumers' prolonged exposure to techno-media architectures that exploit their semiotic vulnerability.

[illegible]s justified by its potential critical contribution to the debate on [illegible]f intellectual prop[illegible] platforms. By understanding intellectu[illegible]

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governance of signs, and not only as a mechanism of reward for creativity, it becomes possible to show how exclusive rights are mobilized to structure consumption ecosystems in which access, permanence and the user's very experience are conditioned by unilateral decisions of the supplier. The category of the Immaterial Object of Consumption makes it possible to articulate, in a single framework, the economic, legal and symbolic dimensions of this process.

Finally, the choice of the *Riot Games* ecosystem, with a focus on *League of Legends*, adds applied and exemplary relevance on a global scale. It is an environment with a strong presence in the Brazilian market, a business model sophisticated in its monetization of digital goods and a wide availability of public documentary material and of public statements by consumer users. Together these provide sufficient grounding for rigorous illustrative applications designed to make typical mechanisms of governance by architecture, curation and sanction visible.

This context offers an especially clear *locus* for making visible recurring points of friction that the IOC regime intends to make adjudicable, including when such frictions stem from architecture and *enforcement* decisions specific to the service. From a social standpoint, the research responds to the need to improve the quality of the public and legal debate on the legitimate limits of the economic exploitation of users in playful digital environments and on the conditions for holding accountable private powers that reorganize expectations and losses at scale.

Starting from the general objective of reconstructing the Brazilian consumer protection regime through the category of the Immaterial Object of Consumption (IOC), the aim is to offer an interpretive key capable of making the law in force responsive to the demands of digital consumption, without breaking with its normative framework. As specific objectives, the work seeks to identify, in light of the critical theory of technique and the sociology of platforms, the central characteristics of the techno-media order that structures contemporary digital consumption, with emphasis on interactive entertainment. It is also necessary to formulate the concept of the Immaterial Object of Consumption as an [illegible]ept, delimiting its constitutive elements and its articulation with the Consumer Protection Code's tradit[illegible]

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Next, the notion of semiotic vulnerability is developed as a contemporary form of factual vulnerability in environments mediated by digital signs, so as to allow the construction of the category of the unlawful act of abusive teleology, capable of qualifying technical-contractual arrangements whose economic purpose depends on the systematic exploitation of this vulnerability. Finally, these categories are employed in illustrative applications anchored in the *Riot Games* ecosystem, with a focus on *League of Legends*, to make explicit dogmatic consequences concerning commercial practices, contractual governance and liability regimes, without any claim to exhaustive empirical demonstration through an extended case study.

In operational terms, the aim is to select and analyze, for illustrative purposes and for their dogmatic pertinence, public statements by consumers related to the *League of Legends* ecosystem, as well as to examine terms of use, policies and interface mechanisms relevant to the governance of the service.

Drawing on this public documentary material and on typical examples, the aim is to make explicit how practices of hypercuratorial anticipation, curation and sanction interact with the legal regime of the IOC, so as to make recurring patterns of friction adjudicable without shifting the argument toward a claim to a systematic survey. Finally, criteria of open auditability and functional value equivalence are proposed, capable of guiding the action of consumer protection bodies, the Judiciary and public policy makers in protecting digital goods in a platform environment.

The research adopts a qualitative approach with a theoretical-dogmatic orientation, combining theoretical reconstruction and normative reconstruction with referenced illustrative applications. In dialogue with the proposal of reflexive science, it is assumed that the researcher's position does not by itself become evidence, but functions as a condition of intelligibility for the selection of typical examples and for the translation of micro-processes of governance of digital consumption into legally controllable categories. At the theoretical level, critical contributions on technique and media, from the sociology of technology and from the political economy of platform capitalism are reread, with the objective of understanding the techno-media [illegible]s contemporary digital consumption. This path is linked to the [illegible]n, doctrine and leg

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intellectual property, as well as to the constitutional reconstruction needed to stabilize criteria for controlling private powers in continuous digital environments.

Public documentary materials and institutional sources are employed to anchor and exemplify the dogmatic path, without constituting an exhaustive empirical *corpus*. This choice stems from the object itself, since the axis of the work is the dogmatic reconstruction of categories of qualification, evidence and attribution applicable to continuous digital consumption, and not the production of generalizations by sampling. Relevant contractual and informational documents are selected for their pertinence to the legal problem and to the proposed categories, included above all as evidence of recurring points of friction in the protection of digital goods in a platform environment. Public statements by consumers in accessible spaces, when used, are treated as a symptomatic record of conflict patterns and as support for the intelligibility of the mechanism described, and not as a basis for statistical inference.

The field references are articulated with the theoretical-dogmatic framework in a hermeneutic logic oriented by controllability, in which the validity of the argument stems from the normative reconstruction and the consistency of the proposed criteria, and not from demonstrative empirical testing. The illustrative applications aim to make visible typical mechanisms of governance by architecture and their consequences for the consumer's enjoyment, so that it can be set out rigorously when and why categories such as Immaterial Object of Consumption, semiotic vulnerability and abusive teleology are justified, and which control operators can guide decisions and remedies in the Brazilian legal order.

Like the cultural references mentioned earlier, the epigraphs that open the thesis and each of its primary sections are curated as a second plane of reading, a symptomatic record of the main text, with a precise methodological purpose of intelligibility and denaturalization. The epigraphs are intended to record, in culturally situated language, the structure of feeling that runs through the phenomenon investigated, whose object is transnational and widely operative and disseminated from an anglophone environment and culture, even though the dogmatic framing of this Brazilian.

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For this reason, the predominant cultural and temporal scope of the epigraphs is deliberate. The curation frequently concentrates on popular works produced in the anglophone environment between the mid-2000s and the early 2010s because of the historical fit of the material to the phenomenon investigated. It was precisely in this period that the participatory *web*, the attention economy and the first successful formats of continuous monetization in digital environments were consolidated with unprecedented intensity, with promises of freedom and belonging that walked side by side with new forms of capture, performative pressure, anxiety and symbolic dependence. It must be remembered, on this point, that the very game ecosystem taken as an illustrative *locus* , *League of Legends*, was originally launched on the market in 2009.

Thus, through the record of this repertoire, the thesis fixes a layer of cultural archaeology of the moment in which certain affective grammars of digital consumption were originally forged and normalized. The temporal mark, therefore, makes the genesis of the argument clear. Although the references are situated in specific cultural contexts, the tensions they dramatize have been incorporated as a structural trait of contemporary experience. Diffuse fear, disorientation, performative pressure and the feeling of living under invisible instructions do not belong to a decade, since they describe a way of life that was formed from transnational structures and consolidated itself as a global phenomenon.

In platform economies, the consumer relationship is not reduced to an exchange of performance for price. It is mediated by environment, sign, rhythm, belonging and performance, and it is in this symbolic regime that expectations are formed, conduct is modulated and vulnerability is produced. For this reason, the thesis operates in two complementary layers. One is dogmatic, in which categories, criteria and legal consequences are built. The other is cultural and expressive, in which the way the object itself presents itself and naturalizes its mechanisms becomes visible, without requiring recognition of the references, only recognition of the logic they condense. To ground this layer, an anthropology of consumption is mobilized in a structural [illegible] regimes of value and forms of belonging as organizing components [illegible] herefore, as part of the very field in which economic extraction is stabilized.

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The discussion is organized in eight sections, including this introduction and the conclusions, so as to progressively articulate the methodological design, the theoretical reconstruction of the phenomenon and the dogmatic conversion of the proposed categories. After the presentation of the problem, the hypothesis, the delimitation, the objectives and the methodology in this introduction, the second section establishes the research design and makes explicit the status of the reference material used throughout the work, delimiting the role of the researcher's situated experience and of public sources as support for intelligibility and illustrative anchoring.

The third section reconstructs the techno-economic order of platforms, describing how technical rationality and models of continuous extraction reorganize the conditions of possibility of contemporary digital consumption. The fourth section examines the semiotic and subjective dimension of immaterial consumption, making explicit the means through which signs, belonging, rhythm and performance modulate expectations and conducts, thus intensifying asymmetries relevant to consumer protection. Throughout these sections, occasional references to the interactive entertainment ecosystem are employed for illustrative purposes, in order to make visible typical mechanisms of governance by architecture.

The fifth section consolidates the regime of the Immaterial Object of Consumption as an infrastructure-concept and establishes the operational control concepts capable of guiding the identification and qualification of abusive practices in continuous digital environments, with emphasis on semiotic vulnerability, abusive teleology as a category of controllable attribution, and parameters such as open auditability and functional value equivalence. The sixth section carries out the dogmatic reconstruction, proposing an integrated reading of the 1988 Federal Constitution of the Federative Republic of Brazil, the Consumer Protection Code, and the Brazilian legislation on intellectual property rights based on the IOC regime, so as to make explicit criteria of legal qualification, correlative duties and possible institutional responses to conflicts on digital consumption platforms.

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concentrates illustrative applications and tests of fit of the proposed keys in typical contemporary

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using examples and public documentary material to make visible recurring patterns of friction, evidentiary requirements and blind spots in the translation of the conflict, without shifting the work toward an extended case study. At the end, the eighth section closes the path with the final considerations, in which the main arguments are revisited, their limits indicated and possible developments pointed out at the scientific, dogmatic and institutional levels.

Furthermore, it should be clarified that the text of this research carries no intent to establish avenues of accusation regarding any subjects cited or analyzed. The proposal has strictly scientific objectives of a theoretical-dogmatic order, directed at building categories and criteria for interpreting posited law for the pacification of conflicts in consumer relationships marked by structural asymmetry, aiming solely at promoting techniques apt to restore material balance and the controllability of performances in continuous digital environments.

NOTES

1. "Art. 3. [...] § 1 Product is any good, movable or immovable, material or immaterial." BRASIL. ↩

2. "On Fundamental Rights and Guarantees [...] ON INDIVIDUAL AND COLLECTIVE RIGHTS AND DUTIES Art. 5 All are equal before the law, without distinction of any nature, guaranteeing to Brazilians and to foreigners residing in the Country the inviolability of the right to life, to liberty, to equality, to security and to property, under the following terms: [...] XXIX - the law shall ensure to the authors of industrial inventions a temporary privilege for their use, as well as protection for industrial creations, for the ownership of trademarks, for company names and for other distinctive signs, having in view the social interest and the technological and economic development of the Country [...]." (Brasil, [2025a]) ↩

3. The mention of the dispute between the US and China at the WTO CANAVEZ, here, proves apt to illuminate an economic-institutional mechanism of direct interest to the continuous digital consumption at issue. The case in question demonstrates how a normative design based on punishment thresholds and measurement criteria can produce a foreseeable effect in which the boundary between lawful and unlawful [illegible]ate as an effective prohibition and comes to function as an optimization [illegible] he business model itself. When normative incidence depends on [illegible]ch as turnover or ille[illegible] of measurement does not capture [illegible]

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affected good, space is created for agents to adapt price, size and distribution to remain below the threshold established by the unlawful act, obtaining an economic model that comes to profit not per unit, but through volume and repetition. The result is an economy of micro-events, in which each isolated occurrence is too small to trigger repression or proportional reaction, but the aggregate sustains a robust market. This is the reason why the case serves as a methodological analogy. In digital ecosystems governed by platforms, extraction and the transfer of losses can also operate through pulverized micro-decisions, unilateral reconfigurations, frictions and informational asymmetries, which are perceived as noise by the individual user, but become economically significant at scale. The reference therefore functions as an origin by analogy and also as a justification for the epistemological focus on legal categories capable of seeing patterns, making technical decisions visible and allowing qualification, evidence and attribution in regimes of private governance. ↩

4. "*Enforcement*" designates, in the context of this research, the power to give effect to the platform's private norms. It concerns not only normative provision, but the capacity for implementation, coercion and sanction by technical and contractual means. The term is kept in English because it is standard in the specialized literature and because it reduces the ambiguities of equivalent expressions in Portuguese. ↩

5. From the philological point of view, "plataforma" derives from the French *plate-forme*, preserving the intuition of a base that gives form to and conditions what takes place upon it, which reinforces the semantic adequacy of the term for naming governance by architecture and semiotics. The variation "*plataformae*" corresponds to the genitive singular of the first declension, signaling "of the platform", and does not aim at the purism of classical Latin, but at the minimum morphological consistency for a technical-conceptual denomination suited to the culture of the Brazilian legal environment. ↩

6. The expression "governance by architecture" is employed here in a technical sense to describe forms of direction that operate less by explicit command and more by structural modulation, produced by continuous flows of information that configure conducts and expectations within the environment. Cohen describes this passage when characterizing the control society as a shift from discipline based on external normalizing frameworks to modulation carried out by informational currents "to, from, and about individuals". "He [Gilles Deleuze] characterizes the control society as signaling a shift from Foucauldian discipline via externally imposed normalizing frameworks to less crude but potentially more powerful 'modulation' by continual streams of information to, from, and about individuals." COHEN. At the institutional level, this modulation materializes when platforms define the very space in which ivities can occur and be recognized as valid, through technical protocols d control; modularity functions as a technique for governing the environment, because it enables ce structurally restricts alternatives that do not fit the platform's design . From

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there, a practical sovereignty is formed: even without physical borders, the platform produces functional territories through protocols, data flows and algorithms, delimits belonging and exclusion and exercises *enforcement* authority over a population of users, occupying the place of the State at the level of the everyday organization of experience, although without the typical circuit of political authorization COHEN. The legal deficit appears when this organizing power finds no correlated duties, because information businesses remain largely without *accountability* for behavioral manipulation, microtargeting and content optimization, while individuals are left essentially unprotected against concrete harms. “Information platforms and other information businesses are largely unaccountable for behavioral manipulation, for practices of behavioral microtargeting and content optimization that amplify collective unreason, and for the security vulnerabilities that distributed architectures for data harvesting, storage, and processing engender. Ordinary individuals, meanwhile, are left essentially unprotected against a wide range of very real harms[.]” COHEN. ↩

7. In this research, the term “*design*” is employed in the contemporary technical sense of the intentional planning and configuration of artifacts, systems and user experiences – including interface, information architecture, flow of choices (*choice architecture*), interaction patterns and presentation decisions. Translation as “desenho”, “projeto” or “formatação” is avoided because these options tend to narrow the concept (sometimes to the graphic aspect, sometimes to generic planning), whereas here “*design*” names the integrated operation that structures how the service works, how it is perceived and how it guides conduct. The term is kept, therefore, to preserve conceptual precision and adherence to the vocabulary established in the field of platforms and digital products. ↩

8. The mention of Miguel Reale refers to the thesis according to which legal form is neither an empty logical wrapper nor an artifice separated from social experience, because the norm is precisely the point at which facts and values are integrated and stabilized into a criterion of conduct. Reale formulates this core when he states that “the legal norm, notwithstanding its logical structure, marks the ‘moment of integration of a class of facts according to an order of values’, and cannot be understood without reference to these two factors, which it dialectically integrates in itself and surpasses”, so that there is in the norm a logical element that can only be understood “in its dialectical correlation with the factual and evaluative elements” REALE. This integration is projected as a measure and delimitation of action, since the legal rule functions as “a module or measure of conduct”, indicating “how far we can go” and operating as a “delimitation of action”, that is, as a formal criterion for [illegible] existence REALE. The link with the real appears when Reale describes [illegible] as “practical modelings of experience” and as “forms of the concrete [illegible]”, understood as “norm[illegible] established by a simultaneous act of [illegible]. For this reason,

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legal reality does not coincide with the raw fact, but with the fact qualified by the norm: “The legal fact, in short, repeats, at the level of effective behaviors, what is generically enunciated in the normative model”, and the fact becomes legally relevant when it is “valued” by a structure that provides for hypotheses and consequences REALE. ↩

9. The inclusion of Tércio Sampaio Ferraz Jr. serves to denote the rationality of Law not as a spontaneous given of social experience, but as an effect built by categories and operations of integration. Without this work, Law tends to appear “as a set of incoherent symbols”, producing insecurity, and could not even sustain the claim of “a government of law, unified and rational”, whose viability depends on mechanisms of unification, among which hermeneutics occupies a central place JR.. The idea of system, in this framework, does not present itself as a speculative luxury, because “Systems are not built by dogmatic science out of pure speculative taste [...] but with a view to the decidability of conflicts in general, that is, of concrete conflicts but in a manner compatible with conflicts that may extensively arise in social intercourse. For this reason, the systems elaborated by dogmatic science, although they show a coherence, are not rigorously logical, in the sense of formal logic, as a mathematical system is.” JR.. This coherence is neither axiomatic nor deductive, since what binds the system together is not an evident principle, but a persistent problem, for which a positive dogma provides a decisional starting point JR.. This conceptual engineering responds to the context of mutability and loss of stable patterns, since the application of Law to facts in “constant change” requires “criteria for the legal qualification” of prescriptions of conduct as norms, because the insecurity and uncertainty produced by mutability cannot be circumvented without the rationalizing function performed by dogmatics since the nineteenth century JR.. For this reason, deciding whether a prescription is or is not a legal norm, or whether it is valid, requires integrating it “into the whole”, but this whole needs to have “reasonably precise contours”, and the idea of system fulfills precisely this function by drawing limits, making it possible to identify “what is inside, what enters, what leaves and what remains outside” JR. ↩

10. “*Skin*” is kept because it is a term of art consolidated in the market and in the community to designate a cosmetic or visual item applied to characters or objects, with specific symbolic and identity functions in the game's ecosystem. Translations such as “pele”, “aparência” or “revestimento” sound artificial and may reduce the concept to a merely aesthetic aspect, erasing its marketing and semiotic dimension (rarity, prestige, belonging, signaling). The term is used, therefore, as a native category of the empirical object. ↩

11. “*Inferno*” is employed here as a direct reference to the *Inferno*, the first canticle of :i's *La Divina Commedia*, in a literary-analogical sense, as a scheme of on of conducts, with is neither sacred language nor theo

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distinguishing, at the legal level, differences of structure between unlawful acts that manifest themselves as force in an event and unlawful acts that stabilize themselves as fraud of design and governance. In the Dantean cartography, violence is concentrated in the seventh circle, while fraud begins in the eighth, culminating in betrayal in the ninth, the circle of ice (*Cocytus*). ↩

12. "Art. 3 Supplier is every natural or legal person, public or private, national or foreign, as well as depersonalized entities, that carry out an activity of production, assembly, creation, construction, transformation, import, export, distribution or commercialization of products or provision of services. § 1 Product is any good, movable or immovable, material or immaterial. § 2 Service is any activity supplied in the consumer market, for remuneration, including those of a banking, financial, credit and insurance nature, except those arising from relationships of a labor character." BRASIL. ↩

13. "Art. 4 The National Policy of Consumer Relations has as its objective meeting the needs of consumers, respect for their dignity, health and safety, the protection of their economic interests, the improvement of their quality of life, as well as the transparency and harmony of consumer relations, observing the following principles: [....] I - recognition of the vulnerability of the consumer in the consumer market." BRASIL. ↩

14. Here, the mention of a brief historical landmark proves relevant. On March 15, World Consumer Rights Day is celebrated. It is the day on which, in 1962, the then United States president John F. Kennedy made the political gesture that became the symbolic landmark of modern consumerism by enunciating as basic rights safety, information, choice and, above all, the right to be heard. The point does not refer to the exhaustive list of rights, but to the image and the ideal of the world it proposes. The consumer is not noise of the market, but a subject of rights who needs to have their perspective seriously considered in the formulation of policies and in the treatment by administrative bodies. The international consumer protection movement fixed this date as an annual reference precisely because it crystallizes a simple but brutal idea that runs across languages and legal systems throughout the world. Where there is no listening, there is no protection, only unilateral administration of the conflict. For this reason, when one reaches the paradigm in which technique mutes the cry for help and converts the search for justice into disposable subjectivity, the contrast is not rhetorical. It touches the nerve of what gives Consumer Law itself its reason for existence. Of what has always been a response to the structural asymmetry of voice and a commitment not to let economic rationality become an authorization to ignore whoever is on the other side of the relationship. ↩

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In platform economies, power tends to disguise itself as technical administration while it concentrates knowledge, organizes attention and redefines the conditions of participation. The central methodological risk, with an object of this kind, is to let the apparent neutrality of how things work stand in for an analysis of how private decisions produce practical norms and distribute asymmetries. For this reason, the work starts from a political warning that serves as the horizon of the problem: when knowledge is concentrated and everyone else is pushed into irrelevance, the answer is not contemplation, it is critical capacity and human quality.

> *El mundo se va a ir dividiendo [...] en los irrelevantes y los dueños de conocimiento [...]. Si nos quedamos de brazos cruzados no vamos a servir ni para que nos exploten [...]. Entonces se necesita una sociedad muy inteligente, muy capacitada [...]. Como seres humanos, no hemos evolucionado tanto como evolucionó la tecnología. Por eso hay que pelear por [...] mejorar la calidad humana. Eso se llama cultura, conocimiento y ejemplo. No me quiten la utopia.* (MUJICA..., 2023[15])

It is on this foundation that the methodology adopted here presents itself as a legitimate taking of position, refusing to naturalize "how the platform works" as if it were a neutral method, marked by the absence of choice, and treating governance by architecture as a full phenomenon, and therefore one that can be legally described and reconstructed in dogmatic terms. The methodology represents a position toward the kind of power observed in platform economies and, therefore, toward the kind of temptation such an object creates for the researcher. In environments in which private administration and the management of conduct present themselves as technical neutrality, the central analytical risk is to naturalize decisions as if they were mere "functioning", to reduce institutional choices to "operational details" and

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ser, as autonomy, responses that have already been induced by design, communication and mechanisr

methodological design therefore takes as a premise that the regime under which the service actually operates emerges from the coupling of clauses, interface and institutional practices, which precludes readings that artificially separate norm, technique and culture.

The research strategy organizes collection and analysis procedures capable of reconstructing, in a controllable way, how promises are formed, how expectations become stable and how relevant losses arise in continuous relationships. The aim is to preserve the legal intelligibility of the phenomenon without reducing its social density, since the exercise of authority in the ecosystem is distributed among contractual instruments, interface architectures and enforcement routines. The methodological consequence is a triangulation that makes it possible to trace inferences back to traceable evidence and to keep the object legally decidable, avoiding both abstraction cut off from practice and description that abdicates normative qualification.

This stance explains the choice to combine theoretical-dogmatic reconstruction with an instrumental empirical laboratory and with controlled exemplification, complementing this anchoring with illustrative applications and tests of fit of the proposed keys in typical situations of continuous digital consumption. In relationships of this nature, in which conduct and expectations are administered through proprietary signs and institutional routines, the user's concrete experience is no longer external noise and becomes part of the very regulatory mechanism to be understood. This proximity does not authorize psychologizing, nor does it turn familiarity with the field into a criterion of proof. It serves to guide the gaze toward observable mechanisms of promise, friction and sanction, which must then be anchored in traceable and publicly verifiable evidence.

To keep the inferential path controllable, the literature drawn on throughout the work is handled through a methodological distinction between object and instruments[16] ECO. The object is the regime of platform-governed enjoyment and its mechanisms of promise, expectation, modulation and sanction. The instruments are used to qualify this regime in language suited to the application of norms, which makes it possible to c

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communication and technical execution into operational categories compatible with legal duties, limits and consequences. In practical terms, frameworks from political economy, sociology, philosophy, the anthropology of consumption and communication theory come in to guide the identification of relevant mechanisms and to discipline inferences, without requiring an exegetical reconstruction of the works drawn on, so that the argument can still be traced back to traceable evidence and to recognizable normative parameters ECO. This distinction aims to prevent both exegetical drift and the merely ornamental use of concepts.

In this key, the choice of a non-exegetical approach does not work as a shortcut, but as a conscious delimitation of focus. When a concept is used as a tool to read an object other than the one in which it was formed, the interest lies in what it makes visible in the observed field and in how it improves the legal intelligibility of the problem, without requiring a philological reconstruction of its origin, of internal debates and of the concept's historical variants in its home domain, except where indispensable to avoid significant distortion.

The disciplined scope finds explicit support in Umberto Eco , who distinguishes the study of a body of thought at its origin from the study of its later uses and appropriations, and points out that, in certain cuts, what matters is what was made of the concept[17]. In methodological terms, this guidance allows the full genealogy of a concept to be treated as a topic only when it is needed to prevent distortion, and not as a mandatory stage of every instrumental use.

This chapter gathers the elements needed to make the investigation auditable, including the research strategy, the empirical scope and the techniques for collecting and reading the material used. This sets a standard of transparency and control capable of tracking the chain linking evidence, categories and inferences throughout the work. It thus preserves the argumentative continuity of the following sections, in which the analysis concentrates on the theoretical and dogmatic dimensions of the problem.

15. Excerpt from an interview given by former Uruguayan President José Alberto “Pepe” Mujica Cordano to DW Brasil SOURCE. ↩

16. Eco treats the distinction between the object of research and the instruments used to make it intelligible as an organizing premise of intellectual work and as a check against turning auxiliary texts into a subject of exegesis. “A thesis studies an object using certain instruments. Often the object is a book and the instruments are other books. This is the case, for example, of a thesis on The economic thought of Adam Smith, whose object consists of the books of Adam Smith, while the instruments are other books about Adam Smith. [...] In other cases, on the contrary, the object is a real phenomenon; this is what happens with theses on internal migratory movements in present-day Italy, on the behavior of a group of disabled children or on public opinion about a television program currently on the air.” ECO. Methodologically, Eco's remark supports the view that interdisciplinary literature can operate as an instrument for qualifying the observed phenomenon without requiring an exegetical reconstruction of the works used when they are not the object of the investigation. ↩

17. Eco offers an express formulation to justify cuts that seek not a full philological reconstruction of a body of thought at its origin, but the examination of its uses and appropriations in another context, provided the objective is clearly delimited. He gives an example: “It could, however, be a case in which the original thought interested me very little. Let us suppose I began a thesis on Zen thought in the Japanese tradition. [...] Suppose, however, that, in examining the critical literature, I became interested in the use a certain American literary and artistic avant-garde made of Zen in the 1950s. Evidently, at this point I am no longer interested in knowing with absolute theological and philological exactness what the meaning of Zen thought would be, but rather in knowing how ideas originating in the East became elements of a Western artistic ideology. [...] Assuming, of course, that I do not intend to show that the Californians misunderstood the original Zen, which would make comparison with the Japanese texts mandatory. But if I limit myself to presupposing that they drew freely on translations from the Japanese, what interests me is what they made of Zen and not what Zen was at its origin.” ECO. The example makes explicit that the requirement to return to origins depends on the problem formulated and on the kind of claim one intends to support. ↩

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The research adopts a qualitative approach and a theoretical-empirical nature, treating the problem as a legal phenomenon that cannot be reduced, in isolation, to "contract" or to "technology". In continuous digital services, effective normativity emerges from the coupling of clauses, interface architecture and practices of executing sanctions, which requires a methodological design capable of keeping visible the articulation between socially relevant facts, values in dispute and applicable norms, yielding neither to abstraction that floats above the object nor to description that is satisfied with the operational level. The object of analysis is not "a game", but a regime of platform-governed enjoyment, in which the value delivered, the permanence of the bond and the internal conditions of use are modulated by private governance over time.

The method is organized as theoretical-dogmatic research combined with institutional analysis of platform governance, triangulated with material from the selected ecosystem employed as situated and referenced exemplification. The dogmatic reconstruction operates on the law in force and seeks to produce a justifiable interpretation in light of recognizable normative parameters, without normative invention and without proposing an autonomous microsystem.

At the legal-normative level, the proposed reconstruction does not operate through a compartmentalized reading of the sources, as if the Constitution, the Consumer Protection Code and the intellectual property regimes applied in watertight and mutually exclusive blocks. The path adopts, as a methodological criterion of normative articulation, a coordinated reading of sources simultaneously applicable to the same governed consumer relationship, especially when the conflict involves, at

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itutional protection of the person and the consumer, the consumer-law discipline of supply and

technical control proper to intellectual property rights. In this key, the theory of the dialogue of sources appears less as an autonomous topic than as a methodological discipline of interpretation, allowing a systematically controlled reconstruction of the problem without artificial isolation of the pertinent legal regimes. Article 7 of the CDC[18] provides, here, a relevant normative point of support, by making explicit that the rights provided for in the Code do not exclude others arising from domestic legislation, treaties, regulations and general principles, reinforcing the openness of the consumer-law microsystem to coordination with other applicable normative sources.

The dogmatic ambition consists in interpreting and rearticulating categories of the Consumer Protection Code and of intellectual property rights under the regime of the Immaterial Object of Consumption, preserving the protective matrix and refusing to let exclusivity, licensing or technical powers operate as a title of immunity against the control of adequacy, transparency and abusiveness. Because of the researcher's insertion in the field, experience functions as a position of observation and interpretation to guide the selection and reading of the material, but not as a criterion of evidence.

The empirical dimension of the work is mobilized for illustrative purposes and disciplined by mechanisms, so as to make intelligible institutional arrangements and legally relevant points of friction. It is not intended to describe the ecosystem exhaustively, nor to demonstrate statistical prevalence, nor to offer a complete overview of its history or its variations. The empirical references are selected for their pertinence to the argument and for their capacity to make verifiable the passage between promise, execution and loss in continuous bonds, serving as support for the theoretical-dogmatic reconstruction and not as a demonstration of volume.

The theoretical reconstruction that precedes the dogmatic stage is organized by functional axes and by problems, and not by an exegetical inventory of authors. The object analyzed is contemporary, dynamic and institutionally hybrid, so that intelligibility depends less on "explaining authors" than on describing mechanisms

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ervice and then leading them back to legal parameters of protection. In this design, the framewo

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support[19] for stabilizing questions and delimiting observable mechanisms, without this implying cult, uncritical reproduction or full reconstitution of the author's path ECO. The support serves to take the analysis out of vagueness and also to prevent the description from becoming too intuitive in a domain in which the exercise of power tends to present itself as mere “technical functioning”.

So that this path does not become disorganized, a clear separation between sources and critical literature is also preserved[20] ECO. Sources are the materials that directly make up the observed institutional world or the law in force that applies to it, such as terms of use, internal policies, supplier announcements, interface records, legal documents and accessible judicial decisions. Critical literature is the set of texts that comment on, interpret, systematize or dispute these materials, such as doctrine, academic articles and third-party analyses. The distinction is not formalism, since it prevents commentary from being treated as evidence of what the platform declared or did, and also prevents indirect reading from replacing contact with primary material when the argument depends on dogmatic attribution.

A disciplined hierarchy is thus preserved. The conceptual instruments guide the gaze and help to frame more precise questions. The sources support what can be asserted about the promises, powers, procedures and effects of the regime under observation. The critical literature qualifies debates, puts readings under tension and makes interpretive choices explicit, without replacing the documentary grounding that supports the reconstruction. This architecture avoids the erudite drift that loses sight of the phenomenon, and it also avoids the rhetoric that uses authors as a seal of prestige, keeping the argument traceable to verifiable evidence and justifiable criteria ECO.

This set of precautions does not alter the dogmatic direction of the inquiry, but it fixes the conditions under which the reconstruction remains controllable when dealing with an object administered through technical and communicational decisions. The task from there on is to identify normative points capable of anchoring the institutional reading of how the service functions and of limiting the

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itability and automated execution as mere operational neutralities. At this stage, legal provisio

supply and the consumer's dependence on the technical life cycle of the good become especially relevant, since they offer external criteria for distinguishing changes compatible with the relationship from legally relevant reconfigurations of the promised content.

This anchoring becomes especially verifiable in the field of computer programs. Law No. 9,609/1998 BRASIL does not merely describe exclusivity and licensing as an enclosure of utilities. It also structures positive duties of the supplier tied to the technical life cycle of the software. Article 7[21] requires the license contract, the tax document and the media and packaging to state, in an easily legible way, the period of technical validity of the version marketed, and Article 8[22] turns this period into an obligation to ensure complementary technical services for the proper functioning of the program during its technical validity, even when it is withdrawn from commercial circulation, subject to compensation for losses. These legal provisions therefore operate as control points for separating "mere operational variation" from a relevant reconfiguration of the content of supply in continuous relationships.

The institutional analysis seeks to identify how internal rules, *design* and enforcement mechanisms structure conduct, risks and expectations, producing a practical normativity that must be legally graspable. Triangulating material from the selected ecosystem serves to anchor the categories and to test them in a directed way, so that inferences remain traceable to verifiable evidence and legal reasoning turns neither into moralizing nor into mere description. Here the empirical material does not serve as exhaustive demonstration or statistical generalization. It serves as controlled exemplification, meant to make typical mechanisms intelligible and to guide the application of the dogmatic keys.

In services structured around continuous updating, the reference to technical validity does not operate as a requirement to anticipate specific changes or a schedule of modulations, which is readily seen to be impossible in factual and operational terms. It serves as a control point for qualifying duties of information, support and restoration when the exercise of unilateral power significantly reconfigures the

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mutability, without turning the evolving dynamic of the service into unlawfulness in itself.

The Consumer Protection Code remains the central matrix of protection, while the intellectual property regime enters with a functional status, describing contemporary forms of enclosure and circulation of utilities through licenses, technical conditions and powers of modulation. This coordination makes it possible to reconstruct verifiable criteria for qualifying the object, legitimate expectation fabricated as a promise, enjoyment, loss and restoration in platform-governed ecosystems, without turning exclusivity into a title of immunity from the CDC. It also prevents the legal relevance of losses from depending on material subtraction, recognizing that persistent changes in access, in position and in the internal conditions of use may reconfigure the link between promise, legitimate expectation and delivery in a legally relevant way, provided they can be identified by controllable criteria.

The research strategy combines complementary processes aimed at analyzing legislation, legal scholarship, contract models and institutional documentation, without treating these levels as disconnected layers. The illustrative empirical *locus* is organized by explicit criteria of selection, recording and treatment, so that contracts, policies, institutional announcements, interface artifacts, public statements, available technical records and selected court decisions can be read as evidence of the normativity actually in operation. The empirical material supports the qualification of the object and the testing of interpretive hypotheses, under a discipline of traceability and coherence.

Michael Burawoy's methodological perspective of the extended case study[23] is drawn on here for a limited purpose, as a discipline for using the selected ecosystem as an instrumental empirical laboratory. The paradigmatic case is used to make observable, at the situated level, structural forces that show up in the ordinary functioning of the ecosystem, with explicit support from pre-existing theory, without turning the work into a case study pursued as an end in itself. Within this frame, the move from micro to macro does not depend on statistical representativeness or broad

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tion, since it aims at the controlled reconstruction of the

theoretical apparatus being used, through frictions and anomalies identifiable in the case BURAWOY.

The methodological function of the laboratory, therefore, is to ensure institutional intelligibility and to allow directed testing of the operational categories developed in the thesis, through triangulation and referenced selection of verifiable evidence, while keeping the object legally describable. This directed testing works together with illustrative applications and tests of fit of the proposed keys in typical contemporary situations of continuous digital consumption, without turning the inquiry into an exhaustive empirical demonstration. The thesis nonetheless acknowledges the risk inherent in the reconstructive gesture itself, which Burawoy describes as a coercive process of "*double fitting*", in which complex situations can be fitted to the theory and the theory then refitted to the case to "digest" the anomaly BURAWOY. To contain this risk, inferences are disciplined by explicit criteria for selecting material and by a hierarchy of sources, giving priority to primary documentation attributable to the supplier and using public narratives only subsidiarily, as verifiable leads, so that familiarity with the field never serves as a criterion of proof.

The theoretical scope works as a grid of observation and control, meant to guide the reading of the empirical material and to discipline inferences. Rather than an inventory of authors, it is organized along functional axes, each tied to research questions and reading criteria. The first axis treats technique and infrastructure as a form of rationality that structures possibilities of action and interpretation. The second treats the cultural and communicational dimension as a condition for the formation of expectations, promises and intelligibility in interface-mediated environments, and it also draws, in a structural key, on the anthropology of consumption to describe how goods, belonging and routines stabilize meanings and coordinate conduct. The third reconstructs political economy and extraction in order to locate the dependencies, tolls and forms of capture associated with the ecosystem's operation. The fourth describes the semiotic dimension as a material component of [illegible]tion for the legal cognizability of the conflict, including the [illegible] value and of the socially administered mutability of the object over time. The fifth reconstructs platfo[illegible]

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power through internal rules and sanction mechanisms. The authors drawn on in each axis are introduced and discussed in the corresponding theoretical sections.

In this design, the operational categories of the Immaterial Object of Consumption and of semiotic vulnerability guide the identification of promises and legitimate expectations, the description of the mediations that modulate enjoyment, and the qualification of losses that are socially perceived and legally disputable in continuous relationships. The consumer-law tradition and the dogmatic frameworks used here operate as parameters for the legal qualification of the conflict and as interpretive limits, keeping the focus on protection, adequacy, transparency and restoration. The empirical material, in turn, illustrates, constrains and offers tests, requiring formulations to remain traceable to observable features of the ecosystem's institutional functioning, without confusing a description of the field with normative justification. The formalization of responses in terms of protection, control of abusiveness and restoration is reserved for the dogmatic stage of the work, in which the dialogue between theory, exemplification and normative parameters is converted into applicable operational criteria.

NOTES

18. "Art. 7 The rights provided for in this code do not exclude others arising from international treaties or conventions to which Brazil is a signatory, from ordinary domestic legislation, from regulations issued by the competent administrative authorities, as well as those deriving from the general principles of law, analogy, customs and equity." BRASIL ↩

19. Discussing theses of a theoretical nature, Eco argues that starting from earlier authors can work as a technique for stabilizing reasoning, since it gives support for formulating the problem, without implying worship or uncritical reproduction. "It is difficult to move in the vague and to establish an exposition *ab initio*. We need to find a point of support, especially for problems as vague as the notion of being or of freedom. Even when one is a genius, and especially when one is a genius, it is no humiliation to start from another author. Indeed, starting from an earlier author does not mean worshipping him, adoring him or reproducing his statements without [illegible] can also start from an author in order to show his errors and his limits. [illegible] point of support. Medieval men, who had an exaggerated respect for the authority of the ancient authors, sa[illegible] by leaning on them became 'dwarfs on the shoulders of giants' and, in this way, saw

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further than their predecessors." ECO. The warning helps justify the instrumental use of frameworks as methodological support, without shifting the axis of the work to the exegesis of authors. ↩

20. To preserve a hierarchy of evidence and keep commentary from replacing contact with primary material, Eco warns of the risk of confusing discourse about sources with the sources themselves. "The distinction between the sources and the critical literature must be kept well in mind, since the critical literature often quotes passages from your sources, but [...] these are second-hand sources. Moreover, a hasty and disorderly study can easily lead to confusing discourse about the sources with discourse about the critical literature." ECO. This separation organizes the use of material throughout the work, insofar as it ensures that inferences about the promises, powers and procedures of the observed ecosystem rest on traceable records and documents, while the critical literature plays a complementary role, qualifying debates and making interpretive choices explicit. ↩

21. "ON THE GUARANTEES TO USERS OF COMPUTER PROGRAMS Art. 7 The license contract for the use of a computer program, the corresponding tax document, the physical media of the program or the respective packaging shall record, in a manner easily legible by the user, the period of technical validity of the version marketed." BRASIL ↩

22. "Art. 8 Whoever markets a computer program, whether as holder of the rights to the program or as holder of the marketing rights, is obliged, in the national territory, during the period of technical validity of the respective version, to ensure that its users are provided with complementary technical services relating to the proper functioning of the program, in light of its specifications. Sole paragraph. The obligation shall persist if the computer program is withdrawn from commercial circulation during the period of validity, except for fair compensation for any losses caused to third parties." BRASIL ↩

23. Michael Burawoy is cited only as the basis for the inferential logic of the extended case study, not as a full adoption of a classical ethnographic program. The *extended case method* describes the use of a case as a laboratory to connect situated mechanisms to structural forces, moving from the "micro" to the "macro" with explicit support from pre-existing theory and with a view to theoretical reconstruction rather than mere confirmation BURAWOY. The relevant generalization, within this framework, is analytical, since it is measured by the case's contribution to extending and refining the categories used, including by exploring anomalies and tensions that force a revision of the theoretical apparatus BURAWOY. This generalization should not be confused, [illegible] the later use of the keys developed here in illustrative applications and [illegible]ypical contemporary situations of continuous digital consumption, [illegible] a complementary st[illegible] claim to representativeness and wi[illegible]

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pursued as an end in itself. Methodologically, this reference supports the use of a paradigmatic case as intensive and triangulated observation, under a discipline of inference by explicit criteria and by a hierarchy of sources, with no claim to representativeness. At the same time, it requires acknowledging risks internal to the procedure, such as normalization and "double fitting", which call for methodological restraint so that the case is not domesticated by the theory and the theory is not adjusted for narrative convenience BURAWOY. ↩

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The theoretical-normative scope is defined so as to make legally cognizable the conflicts typical of continuous digital services, in which enjoyment is governed by a platform and the value of what is acquired depends on private rules that operate through clauses, interface architecture and sanction practices.

The normative basis is the constitutional order of consumer protection and of the economic order, which sets limits on the exploitation of asymmetries, on structural opacity and on forms of private power capable of reorganizing access, information and risk. Along this axis, the Consumer Protection Code is kept as the central matrix of protection, while intellectual property legislation is drawn on with a functional status, as the legal grammar of access control and licensing which, in digital markets, structures the very form in which utilities circulate and are enjoyed. Licenses and technical restrictions are treated not merely as contractual content but as legal-technological infrastructure that determines what can be used, for how long, on what terms and under which unilateral powers of modulation, without this operating as a blanket authorization to degrade promises of adequacy, comparability and restoration in consumption.

In the specific regime for software, this temporality is not just a technological fact. It is an express legal category and serves as a relevant normative boundary for the analysis of continuous relationships. Articles 7 and 8 of Law No. 9,609/1998 link a duty to inform about technical validity with a duty to provide complementary technical support for proper functioning during that period, even upon withdrawal from circulation, which rules out treating "update", "end of support" and "maintenance" as neutral matters beyond the reach of the protection of adequacy

Skip to content Within this scope, these provisions operate as points of dogmatic

control for separating operational variations compatible with supply from relevant reconfigurations of the content of the performance.

In a dogmatic key, the scope recognizes that platform governance acts as the continuous execution of the relationship, insofar as internal sanctions, blocks, account restrictions, degradations and recalibrations of access function as forms of performance, non-performance and functional coercion built into the very experience of use. The conflict no longer revolves around a one-off delivery. It is reconstructed as a dispute over continuity, functional stability and the actual content of the performance in objects administered over time, under private powers exercised at the contractual, technical and organizational levels.

At the sectoral level, interactive entertainment is taken as a privileged field of observation because it concentrates mechanisms of permanence, artificial scarcity, reputation, continuous administration of identity and positional modulation, making visible the frictions that continuous digital services create for traditional categories of adequacy and restoration. In this context, the Legal Framework for Electronic Games is treated as an institutional reference that provides a minimum framing for the sector, useful for situating the categories, concerns and regulatory language associated with the economic and cultural recognition of the activity, without turning the inquiry into a legislative inventory and without shifting the decisional core to the current state of legislative efforts to regulate it.

The scope, therefore, is not meant to propose a new microsystem or to exhaust the sectoral rules. Its aim is to mark out the normative boundaries within which the dogmatic reconstruction will operate, keeping the constitutional and consumer-law axis as the matrix of protection and drawing on intellectual property and the regulation relevant to the segment analyzed as structural keys for understanding enclosure, circulation and the modulation of access in digital markets.

A game-as-a-service ecosystem with an economy of virtual goods is adopted because it is a methodologically fertile environment for observing the formation of value, conflicts over enjoyment and disputes over meaning, without this

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gradually throughout the inquiry, thro

vignettes, used only when needed to make the mechanisms under discussion intelligible and to anchor the application of the legal categories, with no claim to exhaustive demonstration.

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Choosing a specific ecosystem as the axis of observation is neither merely illustrative nor meant to serve as the foundation for an autonomous empirical section. It is a strategy of intelligibility, in which a paradigmatic case is used to make visible, more sharply than in other contexts, the mechanisms that structure the legal life of continuous digital consumption. When technical architecture, formal terms and enforcement routines are tightly coupled, the case stops being an "example" and begins to operate as a field of visibility, because it makes it possible to follow the passage between declared norm, norm in operation and disputed norm, without relying on abstract inferences or hasty generalizations.

In this key, the intended generalization is not representative, as if the case had to mirror a universe statistically. It is analytical and mechanism-oriented, insofar as the focus is on patterns of private governance, control devices and ways of distributing risk that recur, with variations, across different platforms and business models. The relevance of the case, therefore, does not come from any supposed exceptionality but from the fact that it brings together, in a single arrangement, elements that help explain how service promises become stabilized, how expectations of value are modulated and how unilateral changes capable of affecting the consumer's experience are carried out.

This ecosystem was selected not out of thematic preference but on criteria of analytical functionality. First, it is a continuous digital service whose experience is mediated by rules and updates, so that the "product" appears not as a one-off delivery but as a prolonged, calibrated and revisable relationship. Second, the economic dynamic that sustains it is organized around digital objects and intangible

Skip to content , even when perceived as consumer goods, depend entirely on a private technical and normative appar

value. Third, governance is highly dense, since the platform not only offers and monetizes but also disciplines conduct, defines internal metrics, redistributes incentives, applies sanctions and periodically reorganizes the very environment in which the promise of experience is fulfilled, thereby consolidating the consumer's legitimate expectation.

Moreover, the ecosystem makes the structural mutability of digital consumption particularly visible, since substantial changes can occur without a change of ownership, without a new explicit contract and often without the average user properly understanding the practical scope of the change. This mutability is not incidental but constitutive, which is why the case is useful for observing how legitimate expectations are reconfigured, which mechanisms sustain perceived continuity despite material change and how risk shifts to the consumer when functional value equivalence comes to depend on unilateral decisions that are not very transparent. Finally, it is an environment with enough public traces and documentable material to allow referenced anchoring, with minimal triangulation between normative texts, institutional communication and enforcement practices, reducing the risk that the analysis depends on subjective impression or personal experience.

Drawing on the ecosystem, however, does not mean treating it as an exhaustively described empirical object or as a universe to be inventoried in all its social, cultural or economic complexity. Recourse to the case is limited and instrumental, because it serves to anchor inferences and to make concrete certain mechanisms whose abstract formulation could sound overly generic. For this reason, references to the ecosystem will be used as vignettes and points of support, invoked only when needed to stabilize the meaning of a category, illustrate a typical governance arrangement or show how a formal rule turns into enforcement practice. The aim is not to reconstruct the history of the sector, compare competing models or offer a representative overview of the industry, but to use a field of visibility capable of giving density to the theoretical and dogmatic inquiry.

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so keeps the analysis from being mistaken for ethnography in the classical sense, nor experiential narrativ

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environment. The presence of the case does not replace the conceptual chain, nor does it license conclusions on mere plausibility. On the contrary, it works as a technique of argumentative control, steering the text toward observable facts, documented rules and identifiable practices whenever the thesis must show the passage between a normative statement and its concrete operation. The case, therefore, neither drives the thesis nor defines its reach, since it acts as methodological support so that the proposed architecture can be understood, put under tension and, when necessary, verified in a setting where the mechanisms appear clearly enough to justify analytical generalization.

For this use to be intellectually controllable, one must distinguish the layers of normativity that coexist in platform ecosystems and that, in practice, produce different effects on the consumer. First, there is a declared normativity, presented in the form of terms, policies, rules and institutional announcements, through which the platform describes the service, sets conditions of access, establishes rights and duties and announces, when it chooses to, the limits of the promised experience. Second, there is a normativity in operation, which cannot be reduced to the formal text and shows itself in the technical architecture, in interface flows, in enforcement routines, in the mechanisms that modulate the experience and in the concrete forms of oversight and sanction. This layer is decisive, because it is here that the contractual promise takes shape, and it is also here that a significant part of the informational asymmetry typical of continuous digital consumption is produced.

There is also a disputed normativity, which emerges when the two previous layers come into friction, whether because enforcement reveals consequences the text did not make clear, because the text serves as an alibi for practices perceived as abusive, or because unilateral changes shift the balance of the service without the consumer being able to recognize precisely what was changed and with what effects. This is the arena of conflicts, complaints, public debates and administrative interventions, which not only describe the problem but also expose the platform's strategies of legitimation, the consumer's repertoires of contestation and the limits of legally [illegible] ces mediated by *design* and private governance. Delimiting these

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ficatory whim. It is a way of keeping the analysis from confusing statement with enforcement, promise [illegible]

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and of ensuring that each step of the argument rests on the appropriate layer of the phenomenon under examination.

In the work as a whole, the selected ecosystem plays a supporting role, not a leading one. It serves as a point of anchoring so that the categories and distinctions developed in the following sections can be understood without relying on artificial examples or on abstractions remote from the experience of consumption. Thus, when the thesis moves on to describe the economic and technological structures that sustain platformization, and to analyze the semiotic and institutional mechanisms that modulate the perception of value and the expectation of continuity, the case comes in as a controlled reference, only to the extent that it helps stabilize the meaning of the argument and make verifiable the passage between dogmatic formulation and concrete functioning.

This use also gives the inquiry unity, because it allows the same field of visibility to be revisited at strategic moments without turning the thesis into a closed case study. The ecosystem thus works as a thread stitched through the text, lending consistency to the inferences and allowing the reader to recognize the same architecture of mechanisms from different angles as the questions and theoretical instruments change. The thesis, therefore, is not derived from the case but uses it to support an argument meant to reach other platforms and other arrangements of digital consumption, precisely because the goal is not the singularity of one environment but the intelligibility of structures that recur, with variations, across different markets and sectors.

To keep familiarity with the ecosystem from being mistaken for a criterion of truth, the analysis adopts a standard of control that separates guiding the gaze from validating the argument. Prior experience can help to identify points of friction, to notice changes that tend to go unnoticed and to formulate hypotheses about how certain mechanisms affect the consumer. However, these hypotheses do not serve as premises, nor is subjective impression treated as evidence. Whenever the case is invoked, the argument rests on traceable elements, such as normative texts, institutional communications, identifiable enforcement routines, observable sanction records that allow minimal triangulation, so that the reader can follow the chain of inference without h

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text draws on descriptions of how things work that are widespread in the sector, these serve as context and not as proof of a specific occurrence, and legal attribution remains conditional on traceable elements whenever the argument depends on it.

This discipline also seeks to reduce selection and confirmation biases, since platform ecosystems generate readings skewed by salient episodes, isolated controversies or highly polarized interpretive communities. To keep the analysis from being captured by these dynamics, references to the case will be built sparingly, with attention to the distinction between declared rule, enforced rule and public controversy, and with an explicit commitment not to draw conclusions beyond what the material warrants. Familiarity thus works not as a rhetorical shortcut but as a tool that helps choose better what to observe, while the argument's support remains subject to criteria of verifiability and of internal coherence with the theoretical-dogmatic apparatus that structures the thesis.

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The *Riot Games* ecosystem, centered on *League of Legends*, was selected for the density and diversity of the public traces it produces. The continuous operation of the service, the repeated administration of identity and reputation and the institutional presence of the game as a platform of participation generate abundant and heterogeneous empirical material, with user statements, records of conflicts and technical-normative documentation circulating in multiple layers. This availability is not treated as a mere convenience, but as a methodological condition for articulating evidence on promises, relevant losses and mechanisms of private governance, in proportion to the argumentative weight of each statement, preventing the case from being reconstructed only on the basis of official terms or only on the basis of narratives of experience.

To preserve proportionality between documentation effort and argumentative weight, a distinction is drawn between three layers of information mobilized throughout the work. The first comprises elements of general knowledge widely disseminated in the sector, used only to situate the reader and make the logic of continuous digital services intelligible, without any claim to prove a specific occurrence. The second comprises auxiliary technical-operational descriptions, used to name internal structures and to understand the vocabulary of the field, with subsidiary support from collaborative repositories when indispensable. In this layer, public narratives may be mobilized as illustrative scenarios to formulate hypotheses and test the applicability of the proposed categories, without any claim to specific institutional attribution. The third comprises normatively relevant statements, such as institutional promises, powers of modulation, sanction criteria, challenge

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given to the supplier's primary docume

Empirical collection is organized by a controlled inductive-deductive movement. It starts from categories previously stabilized in the theoretical path to guide the reading of the material and, at the same time, admits that empirical frictions may require refinement of those categories, without converting empirical work into an inventory or into statistical sampling. The material actually mobilized in the text is organized into three families of sources, with distinct and complementary functions: (i) official documents and communications of *Riot Games*; (ii) public video statements by users and content producers, above all on *YouTube*; (iii) community discussions referred to by such statements, with priority for threads retrieved on *Reddit* when there is a direct reference, and analyses by the specialized media and press when they serve as a historical and conceptual record relevant to the analysis. The general rule is to work by triangulation and sufficiency of the core of evidence pertinent to the argument, rather than pursuing exhaustiveness or representativeness.

The company's official and public documentation is part of the research survey as a structural source for reconstructing the private governance regime of the ecosystem, including terms, policies, public communications and institutional materials relevant to understanding promises, internal rules of permanence and forms of sanction. The dogmatic and bibliographic analysis, in turn, is not treated as an “empirical source”, but as a lens of interpretation that organizes what counts as evidence, what counts as a promise and what counts as a relevant loss in the regime of the Immaterial Object of Consumption. To preserve the fluidity of the central text, only the level of description necessary to make the path auditable will be kept in the body of the section. The methodology used and the justification for the choice of theoretical framework will be duly set out and discussed, when pertinent, in their respective development sections.

The empirical references mobilized in the work are kept traceable by precise indication of origin and access date, with priority for stable public records. In the case of public content subject to change, traceability is ensured by a minimum record of the item's identifier, the source address and the consultation date, without any claim to constitute an exhaustive repository of full captures.

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The objective is to reduce the volatility effects typical of digital environments, such as later changes, removals, blocks and reorganizations, preserving the content as it was available at the moment of collection. Preservation focuses on the textual and documentary material actually mobilized in support of the argument, while interface records and references to visual elements are included only if strictly indispensable to understanding the mechanism described and to the minimum verifiability of the point being made.

The three families of sources are detailed in the following subsections, organized by methodological strand. The strand of situated institutional observation (2.4.1) describes the norm in operation at the level of enjoyment. The strand of documentary analysis (2.4.2) captures the declared norm and the institutional design of the relationship. The strand of public statements (2.4.3) records the plane of social perception of frictions, losses and frustrated expectations, with a subsidiary function disciplined by the hierarchy described in the preceding paragraphs.

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Empirical collection incorporates a strand of situated institutional observation in a digital environment, intended to make observable the private governance that operates in the enjoyment of continuous digital services. It is neither a community ethnography nor an account of personal experience offered as evidence. The procedure is used to observe the platform as an institution in operation, that is, the mechanisms through which the offer is organized, the experience is steered and the relationship is performed through technical artifacts, interface flows and sanction instruments. This choice responds to the core of the problem investigated, since the effective normativity of the ecosystem is neither exhausted by the contract nor manifested only as an explicit administrative decision, as it is distributed across *design* choices, usage routines and operational procedures that structure access, the value enjoyed and the internal conditions of permanence.

The unit of observation is the ecosystem of platform-governed enjoyment, taken as an institutional arrangement in operation, observable at its points of contact and in its mechanisms of modulation. Interface, flows and institutional communications are treated as institutional texts that organize meanings and distribute understanding unequally, guiding promises, expectations and modes of delivery. The scope covers institutionally relevant elements observable in enjoyment, such as access and configuration flows, system messages, warnings and notifications, as well as mechanisms of restriction, sanction and contestation presented to the user, mobilized selectively when necessary to stabilize the description of the mechanism discussed.

Also part of the scope are instruments that express curation, programmed scarcity, mutability of conditions, production of position and normalization of loss, when ne content of supply in continuous and positionally structured objects.

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In this sense, the interface, flows and institutional communications are treated as institutional texts that organize meanings and distribute understanding unequally, guiding promises, expectations and modes of delivery, including when this organization bears on regimes of value, recognition and belonging that sustain the permanence of the relationship.

The elements observed are treated as primary evidence when they can be described in a traceable way, preserving, when pertinent, the minimal context of their occurrence and the elements needed to allow verification of what was described. Narratives of experience and the user's interpretations do not operate as an autonomous evidentiary basis. When admitted, they are used in a subsidiary way, only to locate verifiable controversies, clarify operational vocabulary or guide the search for primary documentation, and always under triangulation with interface records, institutional documents and other pertinent sources. This keeps the analysis from degrading into anecdote or impressionistic description and preserves the focus on observable mechanisms of governance.

Situated institutional observation in a digital environment describes the norm in operation at the level of enjoyment, the documentary analysis of terms and policies captures the declared norm and the formal powers of modulation and sanction, and the survey of public statements provides, on a secondary basis, the level of social perception of expectations, frictions and losses. This coordination prevents the analysis from resting on a single type of evidence and allows the distinction between institutional promise and experiences of governed enjoyment to be controlled with greater precision.

The technique is conducted under the guidance of categories previously stabilized in the theoretical path, with attention to the formation and communication of promises, to the conditions of enjoyment and permanence, to mechanisms of unilateral modulation, to sanctioning practices and to persistent losses that reconfigure the link between promise and delivery. Bias control derives from the archived record of the material used, from limiting the weight of narratives and from

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rimary documentation and legal material, so as to reduce

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scope of the procedure is to describe verifiable institutional patterns and mechanisms, without any claim to measure the statistical prevalence of individual experiences or to infer the supplier's psychological intentions.

As a result, situated institutional observation produces traceable descriptions of platform governance at the level of enjoyment, capable of making intelligible typical mechanisms of promise, expectation and delivery, mutability of conditions, curation, programmed scarcity, sanction and normalization of loss. These descriptions and references anchor, in a controllable manner, the use of illustrative vignettes throughout the theoretical-dogmatic path, preparing the later return to parameters of verifiability, control of abusiveness and restoration, without depending on isolated episodes and without any claim to empirical saturation.

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Empirical collection includes a targeted documentary analysis of the supplier's terms of use, licenses and internal policies, understood as institutional instruments that structure enjoyment and govern the permanence of the relationship in continuous digital services. The set of documents actually mobilized in the text is selected for its pertinence to the problem investigated and serves to capture the declared norm of the ecosystem, that is, the repertoire of promises, duties, unilateral powers and enforcement procedures presented as a condition of access and use. In platform-governed objects, such instruments do not operate as mere informational accessories, for they take part in configuring the content of the supply over time and delimit, explicitly or implicitly, the range of permitted modulations, the sanctioning regimes and the mechanisms of challenge and restoration.

The documentary *corpus* analyzed consists, as a rule, of the versions in force and publicly accessible during the period in which the writing was closed, taking the month of March 2026 as the temporal reference. The investigation is not oriented toward an exhaustive historical reconstruction of earlier versions, nor toward the systematic indexing of contractual changes over time. Past versions and relevant changes will be considered only exceptionally, when there is a verifiable public record attributable to the supplier, such as official announcements, patch notes, institutional history pages or equivalent materials, and when such an element is necessary to qualify a legally relevant modulation of the promise, of the sanctioning regime or of restoration.

For methodological purposes, the primary institutional documents included are those officially attributable to the supplier and intended to guide the use of the

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ernance and the performance of the relationship. Depending on their pertinence to the problem invest

general conditions, licensing instruments and authorizations of use, conduct and integrity policies, rules on penalties and moderation, refund and chargeback policies, policies on updates and changes to features, security and anti-fraud rules, as well as policies and notices that affect the form of access and permanence. Official support and communication materials may also be incorporated, with complementary status, such as help pages, institutional FAQs, announcements and public statements by the supplier, when they function as relevant statements of promise, of procedure or of the institutional justification offered to the user.

The reading of the documents is guided by categories stabilized in the theoretical path and by analytical axes oriented toward decidability. Instead of a full exegesis of each instrument, normatively relevant elements are extracted in a targeted way to reconstruct, over the course of the relationship, (i) the ways in which the object and the performance are qualified, (ii) the powers of unilateral modification and their triggers, (iii) the forms of institutional justification and of risk allocation, and (iv) the promises of compensation, refund and restoration. In this sense, the aim is to identify how the service is described and promised, how access is structured and conditioned, which limits of use are set, which rules of conduct organize belonging, which mechanisms of sanction and restriction are provided for, which channels of challenge and review are offered, which refund and restoration regimes are declared and which informational duties are provided for in situations of change, punishment or restriction. This extraction makes it possible to reconstruct the formal design of the relationship and to locate the points at which the platform converts governance into continuous enforcement, especially when the performance is reconfigured by rule changes, updates and unilateral interventions on access and on the internal conditions of enjoyment.

In the case of computer programs, documentary extraction will also be conducted in a targeted way, seeking (i) references to the period of technical validity of the version marketed, update cycles, discontinuation milestones and conditions for withdrawal from circulation; and (ii) the design and effectiveness of the channels for support, [illegible] ovision of complementary technical services. These elements

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[illegible] cific legal duties of the sector, notably the requirement of a clear indication of the period of technical va[illegible]

documents (Law No. 9,609/1998, Art. 7) and the obligation to ensure, during that period, complementary technical services relating to the proper functioning of the program, considering its specifications, even in the event of withdrawal from commercial circulation, subject to compensation for losses possibly caused to third parties (Law No. 9,609/1998, Art. 8).

The documentary survey is treated under an internal hierarchy, so as to avoid undue equivalences between types of institutional instrument. Terms of use, licenses and penalty and conduct policies are taken as the primary normative core of the governance regime, because they structure powers, duties and consequences. Support materials, help pages and official announcements are mobilized with complementary status, capable of evidencing public promises, declared procedures and justifications offered to the user, without replacing the normative core when the analysis depends on definitions of formal powers, of sanctioning regimes or of risk allocation. This distinction is relevant to keep under control the passage from the document to dogmatic attribution, preventing auxiliary communications from being treated as equivalent, in authority and stability, to the central normative instruments of the ecosystem itself.

Since terms and policies in continuous digital services may be modified over time, documentary temporality is handled in a controlled manner compatible with the scope of the corpus. The documents actually mobilized are collected and preserved in the state in which they appeared at the moment of capture, with a record of context and of minimum traceability metadata, so as to allow reconstruction of what was declared in the version used. When earlier changes are pertinent to the argument, they enter only occasionally and with verifiable public support, avoiding any suggestion of a broad historical reconstruction and preserving coherence between the material cited and the empirical moment to which the analysis refers.

Documentary analysis operates in coordination with the situated institutional observation described above. While observation makes it possible to reconstruct the norm in operation at the level of enjoyment, the reading of terms and policies d norm and makes explicit the formal repertoire of powers, duties and procedures that sustains pri

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planes makes it possible to identify convergences and frictions between formal promise and practical enforcement, especially in sensitive matters such as unilateral modification, sanctions, account restrictions and restoration, providing a verifiable basis for the institutional reading of contractual governance throughout the path and for the later dogmatic conversion into parameters of control of abusiveness, verifiability and protection.

The scope of the procedure is to delimit, with traceability, the declared institutional design of the ecosystem, without claiming that documents, by themselves, prove the concrete way in which the rules are applied day to day. The central utility of the documentary corpus is to provide a normative-practical map of the powers and promises that structure continuous enjoyment, allowing the empirical analysis and the dogmatic reconstruction to operate on verifiable and intersubjectively controllable bases, consistent with the methodological purpose of making consumer conflicts in regimes of platform governance decidable.

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The survey of public statements by users is part of empirical collection with a delimited and subsidiary purpose, as a symptomatic record of recurring frictions in the ecosystem. Its objective is to observe how controversies associated with platform-governed enjoyment emerge and circulate publicly, which losses are perceived and narrated, which expectations are stated as frustrated promises and which mechanisms of sanction, restriction or modulation appear as recurring triggers of conflict. This material is not mobilized as autonomous proof of the supplier's institutional conduct, nor as a substitute for official documents, interface records, lawsuits or decisions. It is used to map recurring frictions, to identify relevant vocabularies and discursive patterns and to guide triangulation with the declared norm and with the norm in operation, under minimum selection and recording criteria that allow external verification of the material actually cited.

In this design, the verifiability of what is stated about promises, sanctions, procedures and restoration is sought primarily through documentation attributable to the supplier, public records and traceable statements, without presupposing the building of a broad image archive of the interface. Thus, accounts, complaints and videos may operate, as the case may be, as a record of publicly perceived frictions and as useful vignettes for formulating hypotheses and testing, in an illustrative key, the robustness of the proposed categories. When, however, the argument depends on a specific institutional attribution, such as the content of an internal rule, a sanction criterion, a binding promise or a restoration procedure, the support rests on traceable and attributable sources, with public narratives used only as a starting point for locating verifiable elements.

Skip to content tform sources, such as forums, social networks, collaborative repositories and creators' content, are t

methodological function. They are not mobilized to establish, by themselves, the content of the supplier's internal policies, its decision criteria, its moderation procedures or the existence of obligations assumed, nor to assert the occurrence of disputed institutional practices. Their usefulness is restricted to contextualizing publicly perceived controversies, to identifying recurring vocabularies and practices in the ecosystem and to locating verifiable leads that guide the search for primary documentation. Whenever the analysis depends on normatively relevant elements, priority is given to terms, policies, announcements, support materials and documentary records directly attributable to the supplier.

When mobilized, these sources are treated as a record of public perception and as a means of locating events and documents, and not as an autonomous basis for institutional attribution, so that their argumentative weight always remains subordinate to primary sources or to publicly verifiable elements.

The selection of public statements focuses on two main arenas, chosen because they function as recurring channels for publicizing conflicts in the ecosystem: YouTube, as a space for accounts and controversies in audiovisual format, and structured complaint platforms that record consumer conflicts in the user's language under thematic classification. On YouTube, priority is given to materials that address legally relevant problems for the object and that contain a verifiable reference to an event, change, sanction, account restriction, loss of items/benefits, charge, support or institutional procedure, with a record of the minimum metadata and, when necessary, a timestamp of the pertinent excerpt. For complaints, screening favors those with a sufficient description of the conflict, an indication of the request for restoration and elements that make it possible to relate the narrated friction to a promise, condition of use, support procedure, challenge or governance mechanism of the service.

The study of public statements on YouTube is justified because it is a central space for publicizing controversies in the ecosystem, with narratives that frequently reconstruct events, point to documents and make explicit the perceived impacts on

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rest is not to evaluate "opinions" as such, but to observe how

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justification and which promises, losses and restorations appear in the language of the field.

The primary unit of treatment, on the axis of public statements, is the video, understood as a closed piece with traceable metadata. Internal segments are treated as an autonomous unit only when they reproduce inaccessible external material, crystallized as a quoted excerpt, in which case segmentation preserves the verifiability of the apud. Comments do not constitute an independent corpus and enter only when indispensable to understand, correct or complete the content of the video itself.

The analysis of public statements was conducted through a coding matrix oriented toward categories capable of translating the discursive material into elements relevant to the reconstructed legal problem. In both arenas, at a minimum, the following are observed: the type of problem narrated, the affective reaction and the tone of the account, the perception of loss and the elements of the supply that the user considers affected, as well as the promises and expectations mobilized, whether by explicit reference to advertising, to features, to internal conditions of enjoyment, to support and challenge procedures, or by a statement of what would be owed in terms of adequacy and restoration.

To maintain control, selection favors videos that address legally relevant problems for the object and that allow anchoring by traceable reference, with a record of the minimum metadata and, when necessary, of the point in time at which the relevant excerpt occurs. Comments are collected only when indispensable to understand the video itself, such as corrections, factual additions, retractions, updates or direct indication of public documents.

To prevent the research from expanding indefinitely as an effect of the hyperconnectivity typical of the field, the survey is limited by a non-expansion rule. External sources enter only when they are (a) official, (b) necessary to make explicit the minimum technical functioning of the object, or (c) expressly referred to by an [illegible]d. The unit of treatment for audiovisual statements is always the [illegible]ecord sheet, and a [illegible]

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apud record, that is, when an excerpt of an inaccessible external document or external video is crystallized within an included video.

Reddit is part of the research design as a complementary source because of the relevance of that space for community discussions and, in some cases, for the circulation of public statements and records that help reconstruct the chain of events. Its use is conditioned by the volatility of the environment, in which content may be moderated, removed or reorganized without notice.

For this reason, Reddit is mobilized in a referenced manner, preferably on the basis of mentions and links contained in videos or in documents already included, avoiding an infinite drift of the field. Its use does not serve to infer the representativeness of opinions or the prevalence of events, but to locate chains of events, terms of reference and verifiable leads when the public environment of the ecosystem makes them relevant. The incorporation of Reddit content into the text is exceptional and subject to two limitations: it is used only when indispensable to the argument and, when used, the excerpt is presented with sufficient context to preserve the meaning of its post, avoiding undue identification of non-public users.

To enrich the technical-operational intelligibility of terms, internal structures and vocabulary of the field, and only as a complement to official sources, collaborative repositories such as Fandom are used subsidiarily. This material is used for the strict purpose of naming categories of the ecosystem, describing mechanics operationally and, as an aid, reconstructing basic relations between elements of the service when this is indispensable to translate their functioning into legally intelligible language. Because it is a collaborative environment subject to variation, its content is not used to prove institutional promises, internal decision criteria, official milestones of change or duties assumed by the supplier. When information found there is relevant to the argument, it operates as a lead for locating primary documentation or verifiable public records.

This survey is articulated with the other empirical fronts provided for in the [illegible] and remains subject to cross-checking of sources. Public [illegible] as qualified indi[illegible] of friction and to guide the search for [illegible]

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into direct proof of the supplier's internal policies or procedures. Whenever the analysis requires institutional attribution, such as statements about rules, sanction criteria, formal moderation practices, binding promises or restoration procedures, priority goes to official documents and interface records, compared additionally, when pertinent, with the findings of the minimum institutional analysis of the disputed norm. This preserves coherence between the subsidiary function of this survey and the dogmatic purpose of the path, which is to make consumer conflicts in continuous services under platform governance decidable.

Every item actually mobilized in the text is recorded with minimum traceability metadata (platform, author, channel or profile when public, title, URL, publication date when available and access date). The traceability of the complaints and textual statements cited is ensured according to the defined recording standard, prioritizing the indication of metadata that allow them to be located on the original platforms. Audiovisual materials are not archived in full. When mobilized, their verifiability is ensured by a complete reference and, when pertinent, a timestamp of the cited excerpt and a transcription of the relevant excerpt in the body of the text or in an explanatory note, without prejudice to the preservation of full copies of the documentary items cited for purposes of auditing the path. The protocol aims to reduce the volatility effects typical of platforms and to maintain the auditability of the path without converting the survey into an exhaustive inventory or imposing the creation and maintenance of a media archive.

As to argumentative weight, the material operates as support for intelligibility and as a source of vignettes, without replacing, when specific institutional attribution is necessary, the support in primary sources and publicly verifiable records.

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The institutional reading of the contract, in this work, starts from the recognition that terms of use and internal policies do not operate as static instruments for declaring intent, but as parts of a governance apparatus that integrates rule, implementation and continuous enforcement. In platform-governed ecosystems, the relevant promise is not exhausted in the contractual text, because it is reiterated and recalibrated by interface, reward routines, scarcity regimes and private sanctions. Even so, the contract remains legally central, since it is there that licenses, delimitations of access, unilateral powers and modulation clauses that sustain the enclosure and administration of the relationship are articulated. The procedure adopted consists of articulating the formal instruments with evidence of institutional functioning in order to bring the case back to the categories of the regime of the Immaterial Object of Consumption and make it legally decidable.

With the aim of making explicit how the materials consulted are organized and read to anchor the dogmatic reconstruction developed throughout the thesis, it is stated at the outset that the purpose is neither to describe the ecosystem as a factual narrative, nor to constitute an autonomous demonstrative *corpus* . The aim is to stabilize a controllable inferential path that makes it possible to qualify promise, delivery, loss and restoration in continuous digital services whose enjoyment depends on platform governance. Within this frame, the reference to the case operates as a *locus* of exemplification, used sparingly and with minimum traceability when necessary, to make relevant mechanisms visible without the field material becoming a substitute for the dogmatic foundation.

The contractual analysis takes as its reference, as a rule, the versions in force and e period in which the writing was closed (March 2026), with specific consideration of past changes

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and when this is necessary to qualify a legally relevant modulation of the relationship.

The analysis articulates three planes as dimensions of the same phenomenon, without any claim to describe the case for its own sake or to validate it by *corpus*. First, an internal documentary-normative plane, composed of terms of use, policies and official support documents, in which one observes how the platform qualifies the object, defines licenses and enclosures, reserves unilateral powers and presents justifications and promises of compensation. Second, a technical-semiological plane, in which one observes how interface, metrics, visibility regimes and reward systems convert signs into value and into everyday discipline, producing operational dependencies and expectations. Third, a public experiential plane, derived from open statements, in which one observes recurring patterns of friction, perception of loss and invocation of institutional promises and procedures. These planes function as a bridge of intelligibility to anchor, in a verifiable manner, the dogmatic reconstruction.

The articulation between these planes is conducted by categories previously stabilized in the theoretical-normative scope, to prevent the material from being read as a collection of isolated cases or as loose rhetorical illustration. Public statements, observation of interfaces and *marketing* materials are read in light of semiotic vulnerability and of mechanisms of anticipation and steering by signs, so as to make intelligible how belonging, reputation, time and recognition form part of the promise and value of what is acquired. Contractual documents and judicial decisions are read in light of the qualification of the IOC as an immaterial product in a consumer relationship, of abusive teleology as a criterion for controlling architecture and governance, and of the parameters of open auditability and functional value equivalence as keys for dealing with opacity and mutability without neutralizing protection. The function of this procedure is to discipline the use of references, ensuring that they serve the intelligibility and contestability of the argument, without claiming for themselves the status of exhaustive empirical demonstration.

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erpretation according to contractual complexity is mobilized here as a methodological instrument fo

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related documents as an institutional technology for governing consumption, and not as a neutral expression of private autonomy. In continuous digital services, complexity is not merely textual length. It is an indication of the distribution of normativity across layers, with reservations of power, sanction patterns and restoration mechanisms that come to form part of the very infrastructure of what is acquired. Within this frame, interpreting the contract means reconstructing the regime it organizes, including when practical performance takes place through interface, support routines and unilateral decisions applied over time.

For this reason, an interpretive technique is adopted that is compatible with highly complex contracts and with asymmetric supply contexts, in which the form of the contract and the institutional environment in which it operates are relevant elements for reconstructing essential content, legitimate expectations and typical zones of abusiveness. Complexity, here, is treated neither as a moral defect of the contract nor as a virtue in itself. It is treated as a legal sign of a supply regime that concentrates decision-making power, disperses information, makes comparability difficult and shifts the conflict to the continuous performance of the relationship.

Within this frame, the reference to Posner, Eggleston and Zeckhauser is strictly instrumental. Their perspective authorizes treating the form of the contract as an indication of the institutional environment in which it operates interpretive questions about essential content, legitimate expectations and typical zones of abusiveness in standardized and unilaterally structured contracts ZECKHAUSER. This interpretive key serves to prevent terms of use from being interpreted as self-sufficient text and to justify reconstructing the regime on the basis of evidence of how the service functions, without replacing the dogmatic parameters of the CDC.

With the adoption of this perspective, contractual complexity functions as a roadmap for qualifying the relationship, guiding the identification of zones of informational asymmetry, of possible structural advantages and of external factors relevant to the practical functioning of the contract, above all when the logic of use of these instruments is unilaterally established by hegemonic actors ZECKHAUSER. This key

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dogmatic parameters of the Consumer Protection Code, but acts as a methodological bridge that author

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sufficient rigor to support the theoretical reconstruction and the dogmatic conversion of the regime.

This caveat does not alter the control parameter, which remains dogmatic and protective, but describes a practical condition of reading in contracts that function as a governance interface and not as a complete photograph of the relationship.

Converging with this caution, Macaulay indicates that contracts, in various situations, operate less as an ordinary mechanism for resolving conflicts and more as a tool for self-planning, whose activation tends to occur as an *ultima ratio* MACAULAY. For interpretive purposes, this recommends favoring the factual situation and the conflict actually manifested, rather than presupposing that the text fully describes the relationship and its concrete expectations MACAULAY.

In the context of continuous digital services, this caveat reinforces the treatment of terms of use as part of a broader institutional regime, in which the practical performance of the relationship takes place through interface, support and sanction routines, requiring a reading connected to evidence of how the service functions. The orientation preserves affinity with the values of objective good faith and with the protective teleology of the Consumer Protection Code, without shifting the axis of legal control to an abstract trust in the contractual text MACAULAY.

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The reading of the legal phenomenon of platforms refuses the artificial separation between norm, technique and culture. In the platform economy, governance is not exhausted in the written rule. It is also exercised through choice architecture, interface design, brand language, curation of affects and continuous symbolic production. Updates, events, campaigns, characters, *slogans* and performances do not surround the object investigated as mere ambience. They form part of its mode of operation. It is in this context that the curation of epigraphs enters the method, as a way of apprehending, in an artistic and culturally situated register, tensions constitutive of contemporary digital consumption, among them anxiety, desire for belonging, disorientation, euphoria, frustration, capture and performative compulsion.

The epigraphs appear neither as ornament, nor as an authority substituting for the scientific method, nor as empirical proof of the argument. Their function lies elsewhere. They condense, in public and traceable artifacts, the affective and semiotic structure surrounding the consumer relationship in digital environments. When drawn from the very business ecosystem taken as an illustrative reference, they do not count as an institutional confession or endorsement by the supplier, but as a public inscription of the symbolic universe in which enjoyment, trust and permanence come to be administered through language, aesthetics and performance.

The epigraph opens the section, sets its atmosphere and circumscribes the environment of experience in which the legal problem will be addressed. The analytical work of the section comes afterwards. The argument is not founded on the excerpt, nor does it draw its chain of validation from it. What is preserved, with its

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that deals with platforms as structures for steering conduct, retaining relationships and administering meanings, ignoring the aesthetic thickness of the object in the name of a supposed rigor would only impoverish it.

Nor does the epigraphic curation import into the text the full content of the songs, nor does it presume total coincidence between the artistic work and the problem investigated. The procedure is selective. It cuts specific excerpts, repositions passages, makes deliberate omissions and, when necessary, adjusts punctuation to preserve the meaning of the excerpt in the new context, at times incorporating emphases present in the vocal performance and not in the usual transcription. It is not a matter of summarizing the work, but of assembling, with methodological discipline, an expressive core relevant to the reading of the section.

Art, in different traditions, has served as a public device for guiding reading, preparing the gaze and conducting memory. In archaic Greek literature, the invocation of the Muses, as in Hesiod[24], organizes the account, delimits its tone and situates the voice that speaks. The presence of nine epigraphs emulates the nine Muses and reinforces the framing character of the resource. Each section is opened by a culturally situated lens that precedes the argumentative development. In a dramatic key, the function also approaches that of the chorus, not because the text wishes to theatricalize its object, but because it recognizes that certain conflicts require, beyond conceptual formulation, a voice that keeps their moral and affective atmosphere in circulation.

The resource also approaches, within a disciplined scope, the lineages gathered in the field of *Law and Humanities*. In "Law and Literature", "Law and Film" and "Law and Art", the cultural work does not replace legal analysis, but expands its capacity for reading[25] by placing Law again before experiences that formalism tends to reduce[26]. This approach matters here for a precise reason: digital consumption regulated by platforms is not merely an obligational relationship mediated by technology, since it is also a regime of perception, belonging, promise, reward, threat, visibility and opacity. Legal language, when it insists on describing it only as contract, performance

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s the risk of getting its very object wrong.

There is also a function of denaturalization that is decisive for this thesis. By bringing legal discourse closer to the symbolic universe actually inhabited by the consumer, mechanisms of power that formalism tends to leave out of the frame become more visible. A relevant part of the regulation exercised by platforms is not carried out through explicit normative statements, but through signals, stimuli, settings, metrics, rewards, frictions and interaction scripts. This is private power exercised also on the semiotic plane, in which narrative, aesthetics and design take part in shaping vulnerability and, in certain cases, the very materiality of the unlawful act. Cultural curation helps expose the concrete texture of what Law must learn to name in order to be able to control it.

As regards the historical-cultural delimitation of the repertoire mobilized, it is worth noting that the meaning attributed by the songwriter herself to *The Fear*[27], the general epigraph of the work, originated as a diagnosis of an inaugural moment of digital life, the one in which a "performed self" begins to be demanded and in which the liberating promise of the networks begins to reveal, almost immediately, its face of continuous exposure, falsity and capture. The most expressive fact lies precisely in the gap between the moment of composition and the later maturation of the technical ecosystem she intuited. What had emerged in a satirical key became literal. The song already recorded, in a still embryonic state, the public fabrication of versions of oneself, the anxiety for validation and the diffuse feeling of submission to a regime of appearances that would later merely consolidate.

It is along this itinerary that *The Love Club*, the second general epigraph and the opening of the introductory section, introduces the problem of the attraction exercised by digital communities and of the loneliness produced by closed belongings, in which entry into an ecosystem exacts, little by little, a withdrawal from external reality. The following section is received by *Birds of Prey*, which states the predatory face of the contemporary economic system by portraying an environment in which surveillance and extraction convert enjoyment into hunting ground. In the fourth section, Oh No! condenses the semiotic and psychopolitical capture of the [illegible], imprisoned between the obsession with metrified success, the [illegible]nduct and the par[illegible] and possessions. The fifth section close[illegible]

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Scarlet Envy's performance and the lyrics of *Villain*. The joint composition no longer merely insinuates, but personifies governance by architecture in its most assertive form, by portraying a regime in which unilateral control and manipulation of affects appear as the constitutive logic of its functioning.

In the case of *Villain*, an additional element of special methodological relevance stands out. Produced by *Riot Games* itself as part of the artistic universe of the ecosystem taken here as an illustrative reference, the composition describes, in the first person and in the language of entertainment, a power structure founded on unilateral command, affective instrumentalization, disposal of the other and deliberate absence of empathy. The ecosystem, in narrating itself culturally, projects an intelligible image of its own regime of power, and it is this self-descriptive gesture, not a legal confession, that matters to the argument. A *Lex Plataformae* does not govern only by contract, code and interface. It also governs by plot, style, character and performance. When the business universe converts into a consumable cultural product a narrative compatible with the type of rationality the thesis seeks to qualify critically, this convergence forms part of the intelligibility of the phenomenon.

The alternation between English-language and Brazilian compositions is not contingent either. The English-language block records the global grammar of digital consumption in its promises of belonging, in its incentives to self-exploitation, in its normalization of capture and in its diffuse regime of opacity. The Brazilian block, in turn, signals the return to the institutional ground of national Law and the passage from the experience of the problem to the formulation of the response. The transition between languages is not a lateral aesthetic detail. It stages the central passage of the thesis itself. The problem emerges on a global scale, within private platform architectures. Legal containment, however, is built with national instruments, under the constitutional order and the Consumer Protection Code.

For this reason, opening the methodological section, *Coisas Que Eu Sei* marks the passage from the affective and cultural universe of the problem to the legal horizon of intelligibility and control. From there on, the Brazilian epigraphs accompany the

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tion of the dogmatic response. In the sixth section, *Diz Nos Meus*

Olhos (Inclemência) expresses the violence of the expropriation of time, existential investment and subjective continuity accumulated under administered relationships.

Next, for the seventh section, *Infinito Particular* stages the confrontation with the technical black box and, by rejecting illegibility as destiny, mirrors the demand for open auditability. *Temporal*, in turn, closes the path by translating, for the eighth and last development section, the disorientation of the subject facing the loss of self-recognition under conditions of semiotic vulnerability and identity captivity. In the plea for a "fermata that can now make time obey me", the concluding image of the epigraphic method emerges: the demand for a legal regime capable of interrupting technical arbitrariness and of subjecting the temporality of supply to criteria of stability, integrity and controllability compatible with the constitutional economic order and with the CDC.

Seen together, the epigraphs thus build a narrative arc parallel to the argumentative arc of the thesis. Each chapter opening condenses, in artistic language, the specific movement that the dogmatic development will carry out in legal language. There is direction, structure and progression. The sequence of the nine epigraphs travels, in a symbolic key, the same passage that the thesis travels in a dogmatic key: from the finding of the problem to its legal containment, from capture to institutional response, from fear to the fermata.

There is, further, an effect that deserves precise naming. In a thesis whose central category is semiotic vulnerability, the recourse to epigraphs not only accompanies the argument but proposes to confirm it performatively, since it demonstrates, through the very medium of signs, that the symbolic plane is not peripheral, but constitutive of the phenomenon investigated. Contemporary popular culture captured the experience of digital capture before dogmatics had a vocabulary fine enough to name it. Lily Allen recorded the fear of being programmed to consume. MARINA staged self-exploitation as identity. Pitty formulated, under the image of the fermata, the desire to interrupt a temporality that has ceased to obey the subject.

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themselves products of the culture industry, and not the

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but confirms it: it is precisely when the

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which the subject feels, desires and suffers that semiotic capture becomes observable. Such records reveal that the social experience of capture already circulates as a recognizable form of suffering, estrangement and loss before its legal formulation. A study of governance by signs that refused, even in its framing, the signs actually inhabited by the consumer would not be more rigorous. It would merely be myopic.

For this reason, what the epigraphs accomplish, in the end, is not limited to accompanying the text with cultural repertoire. They sustain, in a second voice, a demonstration decisive for this thesis: that the consumer's experience under platforms is semiotically constituted, and that the relevant injury in these environments cannot be satisfactorily apprehended when Law insists on speaking a language foreign to the one in which consumption actually takes place. The symbolic register precedes the argument, frames it and intensifies it, announcing, with the means proper to art, the passage from symptom to response, in which national Law is called upon to give back, in the form of protection, what the global private regime tends to normalize as loss and to leave without appropriate legal nomenclature.

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24. Hesiod, a Greek poet associated with the archaic period, composes in the *Theogonía* a poem of genealogical organization of the divine, in which the origins of the cosmos and the succession of powers and lineages culminating in the Olympian order are narrated. The work functions as a narrative map of the world, gathering traditions and stabilizing a public memory about where the gods come from, how authority is structured and why certain hierarchies prevail. It is in this frame that the nine Muses appear, daughters of Zeus and *Mnemosyne* (Memory), as a figuration of inspiration and, above all, of the capacity to give form to the true account as the transmission of what must be remembered. The invocation of the Muses, in this context, is not devotional ornament, but a protocol of enunciation, marking that the account is mediated by a symbolic source of intelligibility, organizing the discourse and legitimizing the enunciative gesture. As a formal detail, the numerical coincidence between the nine Muses and the nine epigraphs of the work helps make explicit, without any claim to equivalence of status, the function of the epigraphs as narrative frame and key of interpretive orientation. ↩

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ion of cultural repertoires as interpretive support is not ornament and

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who proposes a structural distinction between *Law and Humanities*, "Law and Literature" and "Law and Music", in which the first functions as "genus" and the others as "species", alongside other cuts such as "Law and Film" and "Law and Art". In this frame, the dialogue with the humanities does not shift the axis of validation of the argument to the aesthetic plane, since the methodological proposal is precisely to promote a controlled exchange between specialized competences, oriented toward building analytical instruments adequate to the object. Mittica summarizes the question by stating that, in *Law and Humanities*, "a research methodology is assumed that is intended to promote dialogue between different specialized competences" MITTICA. Thus, the epigraphic use can be understood as a hermeneutic frame and a symptomatic record of the symbolic field, without needing to enter the evidentiary chain or replace dogmatic description, qualification and critique. ↩

26. In this sense, André Karam Trindade, Associate Professor in the Graduate Program in Law of the Centro Universitário de Cascavel (UNIVEL), refers to José Calvo González to reinforce that the use of cultural artifacts can operate as an auxiliary instrument for reading the legal phenomenon without becoming empirical proof or citation of authority. Trindade observes that, in the field of the arts, Calvo González wrote on relations between *Law and Cinema, Music, Iconography, Photography* and other expressions so as to demonstrate that the dialogue between Law and artistic expressions can be methodologically fertile without reducing the legal to the aesthetic (Trindade, 2021, p. 86). Moreover, in characterizing the idea of a *Literary Culture of the Law* as a two-way street, his text makes explicit that the gain lies not in "proving with art", but in expanding intelligibility, vocabulary and perception of layers of experience that technical-normative language tends to impoverish. This two-way street is formulated on the basis of two dimensions, the literary reading of law and the legal reading of literature (Trindade, 2021, p. 106). The methodological consequence is compatible with the proposed epigraphic device, since the epigraph functions as a frame and reading support for the symbolic field, while the argument is sustained by dogmatic and institutional analysis, without the cultural repertoire forming part of the grounding as an inferential premise. ↩

27. In an interview with the British newspaper *The Telegraph* in 2018, Lily Allen revisited the original meaning of the song and the proportion such phenomena assumed over the following years: "It's funny, because when I wrote it, it was meant to be quite tongue-in-cheek and sarcastic, but it's become quite literal now, sadly. I was spending a lot of time on MySpace and I guess just starting to know Twitter and it felt like people were putting across a version of themselves that wasn't necessarily 'true'. In its infancy, social media felt liberating. And then it felt, quite immediately, quite false. I think 'The Fear' was my reaction to those falsehoods." (Allen *apud* Vicent, 2018) ↩

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The methodological design centers on a paradigmatic case, the *Riot Games* ecosystem with *League of Legends*, in its *desktop* and *mobile* ("*Wild Rift*") versions, within a defined time frame and relying on public and documentary sources, so as to build a verifiable *corpus*. This choice limits the mapping of variations by type of platform, by national market and by technological generation, and is not aimed at producing statistical inferences from a representative sample. The extended case study works with a different logic, since it favors the case's contribution to theoretical reconstruction and to the identification of mechanisms, rather than its quantitative representativeness. Consequently, the kind of generalization sought is analytical, not sample-based.

These limits are addressed through a disciplined scope and through triangulation. Reliance on public materials is accepted as a condition for the external verifiability of the path, with explicit criteria for inclusion in and exclusion from the research *corpus*, with the recording and preservation of the material actually used and with cross-references to organizational appendices. The researcher's position in the field does not operate as a criterion of proof, but as a sensitivity that detects reading hypotheses, which remain subject to testing against institutional documentation and traceable records, so as to prevent frictions and controversies from being treated as anecdote.

The work's potential for generalization derives, first, from what the instrumental empirical laboratory makes observable, not from anything "typical" or "individual" about the case, and it yields analytical generalization through mechanisms and relevant frictions. For this reason, this work does not offer a reflection on *League of*

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d cultural object, but on the regime of the immaterial object of consumption it contains and on the tec

continuous digital services that sustain it, reconstructed with the support of an ecosystem that lays bare dependence, modulation of access, internal sanctions, an economy of virtual items and the semiotic management of enjoyment.

Second, the transposability of the proposed regime is treated as a complementary methodological stage, through illustrative applications and tests of fit of the keys developed, in typical contemporary situations of continuous digital consumption, designed to make recurring functional equivalences and evidentiary requirements visible without turning the path into an extended case study or an exhaustive empirical demonstration.

In this key, the conclusions are transposable when other environments share equivalent structural mechanisms, such as games under the *games-as-a-service* model, *marketplace* and *gig economy* platforms marked by layers of reputation and conditional access, and account-based content-mediation and artificial intelligence services with unilateral rules and continuous adjustments to the offer. Transposition does not proceed by superficial analogy, but by identifying functional equivalences between governance architectures, forms of enforcement and patterns of friction, which makes it possible to carry the IOC regime over to other cases without turning the research into a sectoral thesis on a single product.

In keeping with this discipline of methodological transparency, it should also be noted that, throughout the writing and revision, artificial intelligence systems were used as support tools for organizing the text, comparing formulations and detecting inconsistencies in the argument. The use of these tools does not replace research, does not alter the criterion of proof and does not produce interpretive authority. Their function is to assist in revising the text and controlling its quality. Substantive decisions, including scope, selection of sources, legal qualification, structure of the argument and final wording, remain entirely the author's responsibility.

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Contemporary digital consumption can no longer be adequately understood as the simple acquisition of a thing or the contracting of a one-off service. In many ecosystems, the experience takes the form of permanence in a governed environment, in which the interface organizes access, induces choices, limits alternatives and distributes rewards or sanctions. The decisive shift occurs when mediation ceases to be perceived as a neutral channel and comes to operate as a form of organization of experience. In this regime, technique and media constitute practical ambiences: they frame the possible, define the relevant and stabilize certain conducts as normal through repetition, convenience and design.

This ambience is also inseparable from an economic architecture of its own. Digital platforms are not limited to connecting users and offers. They organize markets, administer access, structure dependencies and convert circulation into continuous extraction of value. Infrastructure, data, interface and operating rules come to compose a single arrangement, in which performance is prolonged, the bond is renewed by frictions and incentives, and the capture of attention and diffuse productivity is part of the ordinary functioning of the service. Economic rationality materializes in design, in curation and in execution protocols, so that competition comes to be fought also over the control of ecosystems, exit costs and the administration of visibility.

To describe this background without turning it into mere sociological impression, three conceptual sets are mobilized, each with its own function. The first reconstructs the passage of technique and media from tools to environments of life, in which efficiency, automatism and integration act as criteria of social organization, without

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tutional dispute over design and governance. On this axis, Jacques Ellul[28], Neil Postman[29] and W

of the techno-media ambience, while Andrew Feenberg[31] introduces the critical key needed to set aside determinism and preserve the controllability of technical choices.

The second set reconstructs the political economy of platforms as an arrangement of extraction, toll and dependence, in which digital infrastructures function as private territories of market administration, coordination of supply and capture of distributed value. Yanis Varoufakis[32] and Ladislau Dowbor[33] offer the main lenses of this reconstruction, in dialogue with the critique of political economy and with categories of Karl Marx[34] mobilized to clarify the technical and economic form of extraction in digital environments.

The third set operates as a bridge between political economy and the semiotics of consumption, describing how value, belonging and recognition become organizing components of experience and practical conditions for stabilizing extraction. At this point, the anthropology of consumption, drawn from Mary Douglas[35], Baron Isherwood[36], Arjun Appadurai[37], Igor Kopytoff[38] and Grant McCraken[39], makes it possible to understand that consumed objects circulate not only on account of utility or price, but through regimes of meaning that sustain attachment, distinction and permanence.

This path yields a structural framework capable of making the legal problem visible without depending on impressionistic descriptions of particular cases. When technique operates as environment and the platform operates as market architecture, the consumer relationship comes to be traversed by regimes of access, data, interface and technical and legal exclusivities that condition delivery, enjoyment and the effective space of choice. It is this background that supports the formulation of categories capable of rendering attributable and controllable the losses and asymmetries that, under a strictly material ontology of consumption, would tend to appear as “system change”, “normal update” or “inevitable service event”.

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philosopher, sociologist and histor

technology. He is credited with influencing contemporary philosophers, sociologists and thinkers such as Neil Postman and Willem H. Vanderburg, and remains an important reference in debates on ethics, sustainability and technology. Among his works, the book *La Technique ou l'Enjeu du siècle* ("A Técnica e o Desafio do Século" in the Brazilian edition), originally published in 1954, stands out for the purposes of study in this research. ↩

29. Doctor of Education from *Columbia University*, Neil Postman was an American educator, communication theorist and cultural critic. He is widely recognized for his incisive analyses of the impact of communication technologies and media on contemporary society. His works explore the connections between culture, education, media and human values, often adopting a critical perspective toward unbridled technological progress. ↩

30. Emeritus of the Departments of Civil Engineering and Sociology and of the School of Environmental Studies at the *University of Toronto*, Willem H. Vanderburg was, between 1973 and 1978, a postdoctoral fellow of the North Atlantic Treaty Organization (NATO) at the *Université de Bordeaux*. During his postdoctoral period, Vanderburg ELLUL was supervised by Professor Jacques Ellul. ↩

31. Doctor of Philosophy from the *University of California*, San Diego, Andrew Feenberg is an American philosopher recognized for having formulated and developed a "critical theory of technology", in dialogue with the Frankfurt School tradition and with the social critique of modern technocratism. Professor emeritus of the School of Communication at *Simon Fraser University*, where he was also *Canada Research Chair* in *Philosophy of Technology*, Feenberg combines philosophy, social theory and science and technology studies to argue that technologies are not neutral and that their designs incorporate values and disputes, which opens space for democratic interventions in technical development. ↩

32. Doctor of Economics from the *University of Essex*, Yanis Varoufakis is a Greek researcher, economist and former Minister of Finance. He is recognized for his contributions to political economy and game theory and for his critical analysis of global capitalism. ↩

33. Doctor of Economics from the *Szkoła Główna Handlowa w Warszawie* (Central School of Planning and Statistics of Warsaw), Ladislau Dowbor is a Brazilian researcher and economist of Polish origin. He is recognized for his contributions in the fields of political economy, sustainable development, social inequality and public policy. ↩

34. Doctor of Philosophy from the University of Jena, Karl Marx was a German philosopher, political economist, social theorist and journalist. He is widely recognized ounders of the structural critique of modern capitalism, having uenced contemporar

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35. Doctor of Social Anthropology from the *University of Oxford*, Mary Douglas was a British anthropologist associated with the Durkheimian tradition of social anthropology. She is known for her studies on classification, symbolism, purity, pollution and risk, and particularly recognized for her treatment of goods as social language and as support for the organization of value, boundaries and belonging. ↩

36. An economist specializing in consumer behavior, Baron Isherwood is recognized for his work with the United Kingdom's *Department of Health and Social Security* and for his collaboration with Mary Douglas on the work *The World of Goods*, originally published in 1979. ↩

37. Doctor of Anthropology from the *University of Chicago*, Arjun Appadurai is an Indian-American anthropologist and researcher known for his studies on globalization and cultural circulation. He is recognized for his contributions to the anthropology of material culture and of regimes of value, having worked at institutions such as the *University of Pennsylvania* and *New York University*, where he became professor emeritus. ↩

38. Doctor of Anthropology from *Northwestern University*, Igor Kopytoff was an anthropologist and professor associated with the *University of Pennsylvania*, whose work was marked by research in economic anthropology and material culture. He is recognized for his perspective on the cultural biography of objects to explain how status, meaning and value are transformed over time through social processes of circulation, singularization and (de)commoditization. ↩

39. Doctor of Anthropology from the *University of Chicago*, Grant McCracken is a Canadian anthropologist and researcher known for his studies on consumer culture and the circulation of meaning in goods and brands, notable for describing how cultural meaning circulates among the social world, goods and consumers through instruments such as advertising, the fashion system and consumption rituals. ↩

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Consumption in digital environments does not take place over a neutral medium, nor is it exhausted in contracting for an isolated good or service. The technical-media order designates, here, the regime of technical and communicational mediations that comes to operate as the everyday infrastructure of experience. Interfaces, recommendation systems, metrics, protocols and display formats organize what appears as accessible, desirable, relevant or normal. In this context, the consumption experience tends to stop being a one-off event and comes to take place in ecosystems of continuous mediation, in which enjoyment itself depends on architecture, curation and regimes of signification.

The first layer of this reconstruction starts from Jacques Ellul, whose reading makes it possible to understand the tendency toward autonomization of technical rationality guided by efficiency, predictability and control. Neil Postman shifts the problem to media as a form of life, showing that means of communication alter criteria of relevance, intelligibility and socially practicable truth. Willem H. Vanderburg adds the critique of desymbolization, making explicit how signs, needs and cultural bonds can be reorganized by advertising and by the technical rationality of consumption. Together, these diagnoses describe an environment in which technique and media cease to operate as external tools and come to constitute structural conditions of everyday life.

Andrew Feenberg's critique prevents this diagnosis from being received as fatalism. If technology is a social construction, concrete mediations matter legally: interfaces, frictions, permissions, incentives and punishments materialize social and economic purposes in artifacts and platforms. The practical normativity of the environment

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from texts, contracts or explicit commands, but from the design and governance choices that organize t

this reason, technical architecture is not a mere support for the consumer relationship; it is part of the very form by which conduct is guided, expectations are stabilized and losses can be produced.

In this scenario, it becomes possible to understand why, in digital ecosystems, the value of the consumed object is not separated from the mediations that make it enjoyable, accessible and stable over time. Jacques Ellul describes technique as a system that ceases to operate as a simple instrument and comes to present itself as a reality of its own, no longer limited to being a means, but capable of imposing its logic as an object in itself ELLUL. This dynamic is guided by efficiency and tends to select automatically the most effective method, so that, once the criterion of efficiency has been measured and established, technique consolidates and expands by its own force ELLUL.

The movement is cumulative and feeds on its own self-growth. Technique reaches a point at which it comes to transform itself and progress with little decisive intervention by man ELLUL. For this reason, its effects go beyond the productive plane and assume a civilizational dimension, insofar as technique expands into all domains, tends to reduce man to the condition of an object and imposes itself as the substance of the social world, and can be described as an entire civilization ELLUL. In this scenario, values and purposes lose centrality because technical rationality operates as a machine of instrumentalization, converting everything into a means and shifting the criterion of decision to the performance of the method and to what works best ELLUL.

Ellul insists that the technical phenomenon[40] cannot be treated as a particular sector of modernity, because it tends to cut across the very elements of civilization. The decisive point is that, in whatever domain it is applied, technique presents itself as a rational process, which shifts the social problem into a problem of method ELLUL. Alternatives come to be filtered by what can be rationalized, measured and operationalized, and the debate on ends tends to be compressed by the grammar of efficiency.

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bureaucratic structures and substantive margins of self-determination weakened. The effect is a reorganization of modern life in which work, administration and culture come to be shaped by demands of performance, standardization and control, relegating to the background other rationalities (ethical, political and symbolic) that do not translate into efficiency. From this perspective, the technical-media order is neither neutral nor merely instrumental, because it constitutes the practical horizon from which digital experience becomes possible and intelligible and, at the same time, produces the social and cultural conditions that naturalize certain routines, perceptions and consumption behaviors.

Ellul links the obsession with efficiency and productivity to the production of an inhuman atmosphere, in which work is dehumanized and man distances himself from nature ELLUL. On the political-economic plane, he maintains that technique favors the formation of an aristocracy of technicians, capable of concentrating knowledge and decisions in opaque circuits that are scarcely accessible to the lay public ELLUL. When this picture is articulated with the State, democracy is weakened because public debate tends to be replaced by management and by mechanisms of persuasion, with corrosive effects on the citizen's faculty of discernment ELLUL.

The reference to Ellul matters here as a structural diagnosis of a rationality guided by efficiency, predictability and control, capable of expanding and stabilizing itself as an environment. The analytical gain lies in making visible that, when technique presents itself as “necessity” and as an automatic criterion of decision, purposes and values tend to be compressed by the grammar of what works “best”. This compression is relevant to digital consumption because in it choices of design and governance are naturalized as if they were mere technical requirements, shifting conflicts outside the field of deliberation and accountability.

It should, however, be made explicit from the outset that drawing on Ellul does not amount here to adherence to technological determinism, but serves as a key to understanding a structural tendency whereby technical rationality, guided by efficiency, predictability and control, tends to spill over specific domains and to [illegible]actices, including consumption. To say that technique acquires [illegible] does not mean postulating

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but recognizing that, in certain sociotechnical arrangements, institutional and economic incentives turn innovation and the implementation of systems into a partially self-fueling dynamic, often detached from public deliberation proportional to their effects. It is precisely in this space, between systemic tendency and the possibility of democratic governance, that the legal problem at issue lies. If technical architecture becomes a vector for organizing everyday life, it also becomes a *locus* of attribution and of assessment of legitimacy, above all when it comes to structure choices, expectations and access regimes that cannot be audited by their addressees or even by legitimate authorities.

Precisely for this reason, the reading of Ellul needs to be articulated with that of Feenberg. The systemic force of technique does not eliminate the fact that artifacts, infrastructures and platforms assume concrete forms through socially situated choices, traversed by interests, disputes and purposes. This passage is decisive for the thesis: if technical architecture organizes the consumption experience, it cannot be treated as nature. It must be read as design, and design is susceptible to critique, control and reorientation.

With Feenberg, the problem shifts from the technical phenomenon in general to specific mediations. Interfaces, frictions, permissions, prohibitions, incentives and punishments are not a simple operational layer; they express a socially situated rationality. In the context of this research, this means that the appearance of inevitability of platforms must also be read as the result of consolidated choices, which come to operate as a naturalized environment. It is this mechanism of naturalization that makes the architecture of platforms legally relevant: it conceals purposes, hinders contestation and shifts conflicts outside the ordinary sphere of accountability.

In continuous digital services, especially in interactive entertainment, the modulation of what can be enjoyed is usually treated by the supplier as an ordinary operation of the system, while the consumer stabilizes expectations of enjoyment and belonging on the basis of what was promised, acquired and experienced. This gap between [illegible] produces qualificatory opacity: it makes it difficult to name the injury, identify the affected object and

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categories of suitability, quality, defect and information. For this reason, architecture and governance must be treated as a material dimension of supply.

The contribution of Neil Postman , influenced by Ellul[41], shifts the technical diagnosis to the plane of media as the dominant cultural form. In *Amusing Ourselves to Death*, the author analyzes how television, by replacing the printed word as the main means of public communication, reorganizes the form of discourse and, with it, reconfigures cultural content itself. Politics, religion and education come to operate under the grammar of entertainment, in a society that approaches the condition of "amusing ourselves to death" POSTMAN.

In the political field, visual logic shifts the weight of argument to appearance, performance and impression management, reducing the centrality of programs, ideologies and substantive confrontations of ideas POSTMAN. In the religious domain, television tends to convert the experience of transcendence into spectacle, emptying ritual density and symbolic depth POSTMAN. In education, a pedagogical philosophy guided by immediate accessibility and contentment is consolidated, to the detriment of cognitive effort and more demanding intellectual formation POSTMAN. The common point is the reconfiguration of the social criteria of attention, relevance and truth.

In the contemporary digital environment, this contribution gains additional specificity. The epistemological reconfiguration no longer stems only from the predominance of image or entertainment, but from the passage to interactive, personalized and metrified ecosystems, in which the circulation of statements is modulated by recommendation, ranking and differential distribution of visibility. If on television entertainment colonizes public discourse through a relatively uniform schedule, on platforms it is coupled to the capture of attention based on continuous *feedback*, permanent testing and interface micro-optimizations. This shift is decisive for the thesis because the problem is no longer only the superficialization of content, but the production of a regime of reality in which signs, promises and performances of belonging guide consumer conduct and form part of the semiotic materiality of

Drawing on Feenberg, this epistemological reconfiguration can also be read as politics built into technical design. Personalization, ranking and metrification are not mere functionalities, since they materialize criteria of value and visibility that guide behavior at scale. The passage from television to platforms, therefore, is not a simple change of medium, but a change of architecture: entertainment and attention become operationalizable by technical structures that organize the field of the possible and the probable. For the IOC, this means that the offer cannot be reduced to the final content, since it includes the designed mediations that make this content consumable and carry identifiable teleologies, even if they are not openly presented.

The work of Willem H. Vanderburg deepens this critique by examining advertising as an interested catalyst of cultural desymbolization[42], the process by which artificial needs are produced and excessive consumption is normalized. For the author, companies mobilize cultural symbols to attribute to material products the illusory capacity to satisfy emotional and social needs, which is particularly serious when this dynamic targets children, who are less able to distinguish programming from advertising. Advertising, in this framework, manipulates vulnerabilities, weakens cultural symbols and demands constant strategic reinvention to remain effective.

Vanderburg also problematizes the absence of substantive information in advertisements, whose aim is no longer to inform but to steer consumer conduct. From a transnational perspective, he points to obstacles to the democratic regulation of excessive advertising, especially when corporate rights prevail over the rights of communities. Advertising does not merely shape individual behavior; it perpetuates a cycle of consumption harmful to social well-being and establishes itself as a significant tool of the technical order.

In digital ecosystems, Vanderburg's critique of advertising gains new reach: desymbolization does not act only in advertising discourse, but is coupled to technical architectures that administer visibility, repetition and reward. With Feenberg , the advertisement ceases to be a separate event and becomes a component of a designed environment, in which the circulation of signs is programmed to

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ence and permanence. Semiotic manipulation, therefore, does not occur only through the content of

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distribution and through the interface logic that defines when, how and for whom certain signs appear. This intensifies the problem of auditability and shifts the debate from persuasion to the governance of the field of experience.

The mention of transnational arenas, such as international trade, does not function here as a conclusive statement about a specific body, but as an indication of a structural problem: the delocalization and multilevel complexification of the conditions for regulating advertising and consumption in digital ecosystems. The desymbolization described by Vanderburg matters because it reveals a pattern of governance of consumption through signs that often exceeds the addressee's horizon of control and, not infrequently, also the immediate reach of traditional regulatory responses.

On platforms, this semiotic governance is reinforced by contracts, private moderation policies and proprietary infrastructures for the circulation of content. In this layer, intellectual property rights appear not only as protection of creations, but as a legal technology for the control of signs, the delimitation of uses and the stabilization of expectations of enjoyment. The point is not to shift the axis to a macroinstitutional debate, but to make visible that contemporary semiotic manipulation operates in ecosystems in which normative and technical layers overlap, aggravating the asymmetry between those who design and those who consume.

The characterization of digital consumption as mediated and continued enjoyment finds support in Brazilian positive law, which already recognizes, in specific disciplines linked to software and related services, duties of functional continuity and technical support tied to the economic exploitation of the object. For the purposes of this section, the reference does not anticipate the later dogmatic construction; it only shows that dependence on maintenance, updating and governance over time is not an accident external to the consumer relationship, but an attributable feature of supply in digital environments.

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quality, defect and information comes to depend on the possibility of auditing and controlling mediations that organize the field of the possible and the probable. For this reason, before formulating the legal regime of the IOC, it is necessary to understand how technique becomes autonomous, how media reorganize the intelligibility of consumption and how design transforms economic choices into an everyday environment.

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40. For Jacques Ellul , “technique” is not equivalent to machines, nor to the mechanical apparatus taken in isolation: “Whoever says technique immediately thinks of machine”, but this identification is a recurring error ELLUL. This is because technique “has now assumed almost complete autonomy in relation to the machine”, surpassing the status of a simple instrument and coming to operate as a phenomenon of its own ELLUL. In this key, technique presents itself as rationalization guided by efficiency, insofar as the “satisfactory” and “efficient” method tends to impose itself by itself – the “the one best way” mentioned earlier – and, with this, the technical decision comes to have the form of an objective necessity: “there is no choice between two technical methods: one imposes itself fatally because its results are counted, measured, patent and indisputable” ELLUL. By penetrating “into all domains and into man himself” and tending to encompass the maximum of domains in order to be effective, technique ceases to be merely an object for man and “becomes his very substance”, acquiring totalizing reach ELLUL. In this generalization, its performance criteria are converted into a practical measure of social decision, and the autonomy of the technical system restricts the possibility of human deliberation on ends: “the autonomy of technique therefore prevents man, at present, from choosing his destiny” ELLUL. ↩

41. Influenced by the work of Jacques Ellul, Postman treats technology not as a neutral tool, but as a rationality that tends to impose itself on institutions and culture through criteria of efficiency, standardization and control. On this basis, he shifts the diagnosis to media and education and maintains that media and their technical forms reorganize what counts as truth, relevance and attention, with effects of impoverishment of public debate and reduction of symbolic experience. In this framing, the critique is not an aversion to technology itself, but the defense of limits and of human criteria of judgment, such as purpose, meaning and responsibility, when technical rationality ate as the dominant parameter. ↩

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Willem H. Vanderbur

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fragmented and impoverished understanding of life as a whole. The process occurs when social, cultural and physical constraints limit people's participation, freedom and commitment, forcing them to navigate a fragmented world dominated by narrow, one-off objectives and by technological connectivity. Although desymbolization is not a new phenomenon, Vanderburg argues that, in modern societies, it takes on graver dimensions owing to the growing separation between knowledge and experience, fostering a dichotomy between "reality" and a "symbolically reduced universe." Desymbolization profoundly affects the way people experience the world, which he represents through an analogy with "mental maps". In traditional societies, these maps are densely connected, offering a rich network of meanings. In modern societies, however, as desymbolization intensifies, these maps become simplified, reducing symbolic connections and the capacity to understand life in its complexity. For Vanderburg, this process, exacerbated by reliance on disciplinary approaches disconnected from culture, results in a disjointed and divided world. ↩

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Ellul's notion of the autonomization of technique helps explain how efficiency comes to operate as the dominant criterion of social organization. Technique no longer figures as a mere instrument subordinate to external ends and becomes a system of rationalization capable of conditioning practices, expectations and institutions. In this shift, even Law comes under pressure from criteria of performance, operability and functional adaptation.

This key appears, on a smaller scale, in the way platform-operated games normalize continuous updates, recalibrations and reconfigurations of value. The unilateral alteration of a cosmetic item or the redesign of a character does not arise as an extraordinary event, but as an ordinary manifestation of a system that adjusts itself according to internal criteria of efficiency, balance and retention. Ellul is drawn on[43] to explain why this logic tends to shift the debate from the realm of ends, that is, what must be preserved and the expectations that were created, to the realm of method, that is, what "works best" for the system. Technical design thus reveals itself as a locus of power and as a relevant dimension for the subsequent legal qualification.

In Ellul, the conversion of technique into environment stems from the modern shift of technique from a set of instruments to a totalizing rationality, present in methods of organization, procedures, decision-making patterns and ways of administering reality. Unified by measurable efficiency, technique comes to operate less as a means subordinate to substantive ends and more as a regime capable of reorganizing values, expectations and institutions, reconfiguring the very grammar of what counts as "adequate", "better" and "possible" in everyday life. For this reason, the technical phenomenon cannot be reduced to machines or material apparatuses, since it

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nal factors and utilitarian modes of thought that structure the social

In developing the characterology of technique[44], Ellul describes an evolution marked by the pursuit of efficiency, the expansion of automatism and the formation of self-augmenting structures, traits that distinguish modern technique from earlier forms. In this picture, technique presents itself as indifferent to moral judgment and breaks with the belief that technical progress would, in itself, amount to human progress ELLUL. The distinction between ancient and modern technique makes this shift explicit: while the former remains tied to empiricism and to slow development, the latter is characterized by universality, objective rationality, artificiality, automatism, self-augmentation, indivisibility and autonomy, with effects that can reach every aspect of human life, including the reduction of man to the condition of an object ELLUL.

The rationality of modern technique operates by applying logic to the pursuit of maximum efficiency, which tends to demote values that cannot be translated into measurable performance. In this context Ellul describes the automatism of technical choice as a blind search for the "best way" to perform a task, with the loss of a holistic criterion of adequacy and a growing indifference to the social, moral or aesthetic consequences produced by the method ELLUL. Once this automatism sets in, the question of what must be preserved gives way to the question of what best keeps the system running.

In the *League of Legends* ecosystem, the match management algorithm makes this autonomy especially visible, because matchmaking presents itself as an optimization problem, and not as a deliberation on the best possible experience for each individual. The company describes the need to simultaneously balance "fair matches", "position preference" and "fast queues", admitting that, under real constraints, the system shifts weight among these criteria and relaxes parameters so that the match can take place RIOT GAMES. In this grammar, "fairness" no longer operates as moral language and instead functions as a statistical target, tied to an approximate 50% probability of victory for each team, produced by averaging MMR[45] RIOT GAMES. Ludic enjoyment does not disappear, but it is compressed by a method that must

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ty of supply, schedules, an unequal distribution of roles and

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architecture.

This point is reinforced when the company itself explains that MMR is a hidden number, designed to operate in *back-end*[46] systems and to guide how each person is placed in balanced matches, while the visible rank works as a pedagogical and progressive translation of that measure[47] RIOT GAMES. Here, technical autonomy lies in the shift of the relevant decision-making procedure to a non-transparent layer, which defines what counts as balance and continuously adjusts matchmaking criteria to preserve the stability of the ecosystem. When queue time becomes the decisive constraint, matchmaking rules tend to loosen, and the system begins to seek the "next best" instead of the "ideal", because the method requires that the match take place within an acceptable time horizon[48] LEAGUE OF LEGENDS WIKI[49]. The result matches the effect Ellul describes: a technical choice presented as inevitable because it "works best" for the system, shifting the debate from ends to the continuous adjustment of method.

This normalization of technical mutability also appears in the contractual frame by which the service authorizes itself to evolve continuously. In the Terms of Service, the user agrees that Riot may change, modify, update, suspend, "nerf" or restrict access to features and parts of the service, including through automatic background updates, with or without prior notice[50] RIOT GAMES. The vocabulary that legitimizes this plasticity is that of constant improvement, evolution and security, and the user's experience comes to be treated as an adjustable dimension of systemic functioning. In an Ellulian key, technique ceases to appear as a means subordinate to the end of entertainment and asserts itself as a self-justified environment, capable of absorbing enjoyment as a management variable to preserve the stability of the ecosystem.

As regards artificiality, Ellul asserts that modern technique stands opposed to nature and constitutes a system made up of artificial means, in which technical intervention reduces the real to a "logical scheme" and reorganizes facts and phenomena according to internal demands of rationalization ELLUL. This environment breaks with traditional grounding, since technique rejects tradition and comes to rely on the combination and accelerated evolution of earlier technical processes, at a pace too

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on into the accumulated cultural fabric ELLUL.

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The economy, in this picture, becomes progressively dependent on technique and its methods, to the point at which technique ceases to function as a subordinate economic instrument and comes to dictate the conditions of the economic game itself ELLUL. Along these lines, the economy becomes intimately dependent on technique, seeking to adapt to its demands and using its methods to achieve objectives.

The relationship between technique and the State reinforces this institutional diagnosis. Ellul characterizes technique as a fundamental instrument of state power, especially in the modern State, increasingly dependent on technical procedures to administer, regulate, control and wage war ELLUL. This dependence shapes the state structure, favors centralization and bureaucratization and alters the very nature of the State, which comes to operate as a technical organism, limited by the forms of perception and decision that its administrative rationality makes available ELLUL.

In examining techniques directly aimed at man, oriented toward modifying behavior, needs and subjective dispositions, Ellul identifies psychological, sociological and biometric techniques as expressive manifestations of attempts to control and manipulate the human person ELLUL. The author also observes that the technical modification of space itself can condition behavior, which extends the problem beyond isolated instruments and reaches the environmental organization of human action ELLUL. This reflection directly concerns digital ecosystems, in which environments of interface, reward, punishment and visibility are designed to guide conduct, modulate expectations and reduce practical margins of freedom.

The Ellulian reference to “inevitability” must be taken as a critical description of a system effect[51], that is, of the tendency toward naturalization and self-justification of the technical, and not as a normative thesis according to which history would be closed to contestation. What matters, above all, is the mechanism by which technique presents itself as destiny and removes from public visibility the choices and costs embedded in its procedures. This hermeneutic caution preserves Ellul's diagnostic force without converting critique into fatalism, making it possible to place back into

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ructures the disputes, alternatives and ends that the language of efficiency tends to obscure.

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At the end of his work, Ellul questions the belief that technical progress is an objective synonym of human progress and appeals to individual and collective responsibility in the face of technique ELLUL. In his view, society must seek effective forms of control over technical development in order to orient it toward the human good, even as he recognizes that man cannot fully adapt to the technical phenomenon.

This set makes it possible to identify the point of passage to the legal problem: by reducing the real to a "logical scheme" and refusing external judgments when the problem is presented as technical, technique compresses the space for deliberation on ends and shifts the decision to the language of efficiency ELLUL. What cannot be rationalized tends to be treated as irrelevant, impracticable or external to the functioning of the system. Hence the importance of placing technical choices back in the field of attribution, since the appearance of neutrality may conceal ends, costs and distributions of risk that directly affect the consumption experience.

With this, technique comes to organize the very perception of the social world. When the economy, public administration and entertainment operate under this rationality, the individual is recoded into indicators of performance, available time, engagement and risk. Technique ceases to be an accessory of social life and comes to define what can be seen, measured, governed and contested.

This reorganization also becomes institutionally entrenched. At the level of operative rationality, the shift appears when, to escape "arbitrariness and subjectivity" and "ethical judgment", technique demands that reality be reduced to number ELLUL. Law is affected by this pressure not only because it comes to deal with technically complex objects, but because its own practice can be absorbed by criteria of efficiency. For the "technician of law", the decisive reference tends to shift from the normative end to the efficiency of application, since "all law depends on its efficiency" and "a law that is not applied is not a law" ELLUL. Under this pressure for performance and operability, normative conflicts tend to be recast as problems of management and compliance, which makes it harder to deliberate on ends when technical autonomy narrows the r collective means and directions ELLUL.

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Transposed to digital consumption, this diagnosis makes it possible to interpret electronic games, streaming platforms and social networks not as isolated applications, but as specific manifestations of this technique-environment. Interfaces, algorithms, reward systems and mechanisms of artificial scarcity are organized under criteria of efficiency, retention and continuous governance. What is prepared here under the category of Immaterial Object of Consumption emerges precisely from this operation: it is an object of functional and continued existence, inseparable from the technical infrastructure that gives it access, utility, stability and practical meaning.

For this reason, a strictly material reading of consumption does not adequately capture the phenomenon. When the object is inseparable from the technical architecture[52] that sustains it, the central problem ceases to be only the existence of a quality defect in an isolated product and comes to include the way technique organizes possibilities of use, permanence, loss or degradation over time.

Ellul is not called upon to sustain a generic critique of technological modernity, but to make intelligible the technical order in which the IOC is formed. In digital ecosystems, the consumer relationship is not reduced to the exchange of a performance for a price; it is installed in an environment organized by metrics, automatisms, access regimes and procedures of continuous updating. The enjoyment of the object becomes inseparable from the functioning of the technical ambience, which is why architecture and governance cannot be treated as externalities of supply, but as material dimensions of the consumer relationship itself. Next, this ambience will be combined with the media reconfiguration of experience, with Postman, and with cultural and advertising desymbolization, with Vanderburg, preparing the passage to the Lex Plataformae and to semiotic vulnerability.

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43. Titled *A Técnica e o Desafio do Século*, the paradigmatic work at the center of the thought of the French historian, sociologist and jurist Jacques Ellul, originally published in 1954, offers an important conceptual overview of technique, its [illegible]nd its influence on contemporary society. The discussion is divided into exploring different f[illegible] here is to highlight a few elements

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structuring environment of social life and, consequently, of the forms of digital consumption. ↩

44. Accordingly, Ellul (1968, p. 1) argues that technique has become the most important factor in modern society, surpassing any other social phenomenon in influence, and proposes to analyze technique through its intrinsic traits, by way of what he calls the "characterology of technique", an exploration of its nature and of the characteristics proper to it, which manifest themselves independently of the society in which it develops or appears. ↩

45. On its official support page, Riot states that the system "focuses on balancing three factors: Fair matches; Position preference; Fast queues". The explanation itself assumes that these factors come into tension and that, as queue time grows, the system moves away from MMR or switches someone's position to make the game possible RIOT GAMES. ↩

46. It refers to the layer of infrastructure, data processing and rules that operates exclusively on the platform's servers, out of the user's sight and direct control. It is where decision systems are processed, such as the calculation of hidden metrics, which structure the internal logic of the service. ↩

47. In setting out to explain MMR, Riot expressly states: "Your MMR is... a secret!" and explains that "it was specially created to work with back-end systems" aimed at placing "each person in a balanced match", which is why it cannot be detached from these systems without losing context. The wording makes clear that the player is legible as a number that serves matchmaking RIOT GAMES. ↩

48. As to the status of the subsidiary use of collaborative repositories (such as *Fandom*) for naming categories and minimally describing mechanics operationally, the criterion already set in Chapter 2 is adopted, according to which this material is not used to prove institutional promises, internal decision criteria or official milestones of change, operating only as technical-operational support and as a lead for locating primary documentation when this becomes necessary. In the entry *Queuing and Matchmaking*, the mechanism is described as guided by a "time constraint", since the game needs to happen. The text explains that, when the matchmaker does not find players within the strictest limitations, it "loosen[s] the restrictions a little" and restarts the search, which tends to increase skill deviations in persistent situations of scarcity. This materializes the idea of automatism and of the "next best" as a rule of functioning LEAGUE OF LEGENDS WIKI. ↩

49. The notation "[202-?]" follows the approximate-date format accepted by ABNT for bibliographic references, indicating the probable decade of publication, in this case hout confirmation of the specific year. The form "[202-]" would indicate le but an unidentifie

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50. In the Terms of Service, Riot treats the evolution of the service as normal and anchors it in the user's consent. It states that, “in an effort to constantly improve the Riot Services”, the supplier may “change, modify, update, suspend, ‘nerf’ or restrict” access to features and parts of the service. It then provides that it may “use background patches to automatically update our games and *software* with or without prior notice” RIOT GAMES. ↩

51. Ellul describes technique as a process that tends to impose itself in practice with the force of necessity, not because it is “good” or “bad”, but because, once available, it comes to be used. The author formulates this directly in stating that “everything that is technical, without distinction of good and evil, is necessarily used when it is at our disposal”, which shifts public debate from the field of moral choice to the field of inevitable adoption ELLUL. This dynamic also reaches the universe of leisure and mass culture, where technical means produce effects that are not limited to explicit content. In dealing with cinema, for example, Ellul observes that censorship may limit themes, but does not touch “the essential”, which is the “psychic modification of man” provoked by the “violent impression of the film”; the inevitable emotion “modifies the psychological tone” and tends to make man “the component of a crowd” ELLUL. In this movement, technique not only expands the means of amusement, but reorganizes subjective dispositions and collective patterns of perception, contributing to broader processes of social massification. ↩

52. Ellul describes modern technique as methodical and systematic, characteristics that also shape the dynamics of the entertainment industry as it exploits technologies to maximize its reach and engagement. In this sense, experimentation and research become essential elements in the development of technique, which ends up limiting its development to knowledge obtainable only through disciplined experimentation. ↩

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Postman[53] (2006) makes it possible to understand media as a form of organization of social knowledge, and not merely as a channel for the circulation of messages. The passage from electronic to digital media deepens this shift: public space is progressively recoded by the grammar of spectacle, while the ways of producing, legitimizing and recognizing knowledge come to depend on formats, rhythms and criteria of attention specific to the dominant media ecology. This diagnosis has a direct impact on the way consumers perceive products, services and platforms.

In media ecologies, the decisive problem lies not only in the content that circulates, but in the form of circulation that comes to organize perception and credibility. Formats, rhythms, expectations of attention and criteria of relevance become embodied social habits. At this point, Postman's reading serves to describe the passage from a culture strongly organized by argumentative linearity to one traversed by the performativity of show business, in which visibility, impact and retention come to condition the way something becomes socially intelligible.

Postman's contribution matters not as nostalgia for print culture, but as a key for understanding that each medium establishes its own ecology of perception and knowledge. By recoding politics, religion and education in terms of entertainment, television alters criteria of informational relevance, credibility and acceptability of public debate. In the digital environment, this shift does not disappear: it is radicalized by platforms capable of personalizing flows, modulating visibility and transforming attention into an operational variable.

For consumption, this shift is decisive. When relevance, credibility and acceptability ed by entertainment formats, the perception of value is also nsumption decisio

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adequacy and performance and is instead mediated by regimes of attention, reputation and belonging. Within them, the form of presentation and the dramaturgy of the offer, expressed in storefronts, *trailers*, events and narratives of permanent updating, becomes a constitutive component of the experience consumed.

In the platform-operated game, this reconfiguration appears in concentrated form. The value of the object is not apprehended only through its functional characteristics, but through the public staging that precedes and accompanies it. Official media transform items, characters, seasons and events into shareable narrative repertoires, converting purchase and enjoyment into symbolic continuity within the ecosystem.

Riot Games' audiovisual production functions, in this sense, as a device of knowledge applied to consumption. Media do not limit themselves to publicizing what already exists, since they are capable of defining what counts as relevant information about the object, which traits should be perceived as essential and which affects can operate as criteria of evaluation. The consumer does not need to know the item as a technical structure to recognize it as a desirable good. They know it as image, narrative and repertoire of socially shareable signals, produced and distributed by official channels in the format of spectacle. A music video such as *POP/STARS* FONTE, an example of the productivity of the *Riot Music* division, is especially relevant because it transforms a set of cosmetics into a public cultural reference prior to use, operating as a matrix of intelligibility for the purchase and for the social recognition of the item's value.

The same logic intensifies in the seasonal *cinematics*, through which the company presents a visual synthesis of the universe and of the expectations it wishes to stabilize as a common horizon. *Still Here* RIOT GAMES, in presenting itself as a season-opening cinematic and condensing the editorial statement "*Fight for tomorrow*"[54], makes explicit this function of guiding the gaze and expectation. Here, the epistemology of consumption does not correspond to expanded access to data about

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orm of mediated knowledge in which the image becomes a criterion of pragmatic truth. The item

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Consequently, utility ceases to be the sole axis of decision and gives way to aesthetic intelligibility, to narrative promise and to the repertoire of signs that enables belonging and distinction within the community.

This media reconfiguration finds a correspondence in the declared norm of the ecosystem itself, insofar as the contract describes skins and related items as licensed Virtual Content, linked to the account, and not as the consumer's property[55]. When the offer is structured as spectacle, but the object is legally presented as revocable or modifiable access, a tension central to the thesis is formed: the consumer knows the good through its aesthetic and community staging, while its stability remains subject to the platform's technical-contractual regime. For this reason, changes to visuals, animation, effects, symbolic balancing or access conditions cannot be treated merely as functional corrections, bugs or graphic improvements[56]. In this picture, the epistemology of consumption becomes inseparable from the media architecture that frames what the object “is” and from the contractual regime that controls how much of this “being” remains stable.

The consumption promise is, therefore, publicly performed, while enjoyment is mediated by signals of visibility, prestige and belonging. The unilateral alteration of the item or the character may affect not only a technical utility, but the symbolic position that was produced by the platform itself. Postman contributes precisely at this point, since his critique, formerly directed at *show business*, once updated by metrified digital ecosystems , makes it possible to understand how criteria of credibility and value are reorganized until the design of the offer and the dramaturgy of permanence become part of the content consumed.

According to Postman, the rise of television to hegemony among the media redefined the parameters by which information is processed, truths are conceived and intellectual capacities are evaluated. The passage from typographic culture to television altered not only the medium of communication; it transformed criteria of truth, intelligence and seriousness in public discourse POSTMAN. Under this regime, television favors fragmentation, reduces the possibility of more complex discourse

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conversations marked by triviality, broken sequence and the progressive abandonment of logic, reason and the rules of contradiction POSTMAN.

Politics is one of the central manifestations[57] of this shift. For Postman, television reconfigures it as a branch of show business, transforming public debate into a product compatible with entertainment POSTMAN. Campaigns come to operate through the formation of images, the management of performances and the replacement of ideologies by appearance, as if political value could be absorbed by the efficacy of ready-made scenes. In this context, "knowing" politics comes to mean visual familiarity, and not necessarily understanding structured by language and discourse POSTMAN.

In education, the pursuit of entertainment also alters the criteria of learning. The critical and in-depth process loses ground to recreational forms of access to content, while difficulty, intellectual discipline and the duration of cognitive effort come to be seen as obstacles to efficient communication POSTMAN. Hence the assertion that television and image culture do not constitute merely a style of communication, but a threat to the foundations of liberal democracy, insofar as they strike at its material basis: freedom of information POSTMAN.

The conversion of the public space into show business matters less for its sectoral object than for its mechanism. The point lies in the formation of a regime in which signs and performances progressively replace arguments as criteria of recognition, trust and value. This structure is decisive for the thesis because, on digital platforms, the object of consumption is not merely presented to the consumer; it is staged in formats that produce trust, urgency and adherence, making the consumption experience inseparable from the ecology of attention in which it is promoted and enjoyed.

The central mechanism is fragmentation. The image dismembers reality by tearing moments from their contexts and juxtaposing events without logical or historical connection, recreating the world as a series of idiosyncratic happenings POSTMAN. In ıtelligence comes to mean knowing many things, and not

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understanding POSTMAN. Disinformati

also manifests itself as displaced, irrelevant, fragmented or superficial information, capable of producing an illusion of knowledge and distancing the subject from actual knowing POSTMAN.

This form of informational circulation produces a present without historicity, in which television operates as a medium centered on the now and hinders the integration of experience into a broader temporal narrative POSTMAN. Public discourse thus loses the form that made it suited to rationality: under print culture, it tended toward coherence, seriousness and continuity; under televisual governance, it comes to be organized by visuality, brevity and the demand for immediate interest POSTMAN. Information is presented in simplified, insubstantial and decontextualized form, not necessarily through explicit censorship, but because television operates as a meta-medium, directing both what is known of the world and the social ways of knowing POSTMAN.

Following this change of foundation, politics, religion, news, education and commerce come to be rearranged as congenial adjuncts of *show business*, and culture tends to become a generalized arena of entertainment POSTMAN.

The effect is not only aesthetic, but institutional, because liberal democracy depends on an informational ecology capable of sustaining discernment and deliberation. In this key, the contemporary threat to democracy need not take the form of censorship, since it is realized when political discourse takes the form of entertainment and neutralizes the very seriousness of public debate POSTMAN. By shifting the center of discourse to performance, the medium lowers the public centrality of substantive themes and weakens the social conditions of critical thought, above all when information is presented in a simplistic and non-contextual way, that is, as information packaged as entertainment POSTMAN.

If Ellul shows technique as a structural environment, Postman makes explicit how a specific medium, television, reorganizes ways of knowing, debating and deciding. The central point is not television as an isolated historical object, but the finding that [illegible] ium alters the form of socially practicable rationality. When [illegible] nes to be measured [illegible]

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and not by argumentative density or the search for truth, each sphere must fit into short, emotionally marked and visually striking frames.

In this key, television inaugurates an epistemology centered on the image and on fragmented rhythm. Information arrives in brief and disconnected units, which require little effort of concentration and do not favor historical sequencing or causal reconstruction. The problem, for this thesis, lies in the formation of a cultural grammar trained to consume stimuli, and not to organize experiences into minimally stable maps of meaning.

In the digital environment, this logic does not disappear: it is intensified, personalized and made interactive. *Feeds*, *timelines*, notifications and gamified interfaces transplant to platforms the same regime of fragmentation, now combined with the permanent collection of data and the algorithmic modulation of attention. The consumer no longer merely watches the flow, since they interact with it, produce data, receive feedback and are continuously repositioned by the architecture of the service. Entertainment ceases to be[58] separate content and comes to function as a technical environment of permanence. It is in this governed flow of experiences, adjusted to maximize engagement, time spent and monetization, that the IOC comes to take shape as an object of continued enjoyment.

In transposing Postman's diagnosis to the digital environment, the decisive point is not to assert that television became the internet, but to identify structural shifts in the ecology of attention: from uniform diffusion to personalized distribution; from predominantly passive reception to continuous interaction; from crude audience metrics to the fine metrification of conduct. These shifts reorganize knowledge and attention and, therefore, have direct implications for consumption. The offer comes to depend on technical curation, while the consumer's experience becomes continuously modulable.

In this light, the vulnerability of the digital consumer cannot be reduced to a lack of information that more notices, terms of use or highlighted clauses could correct. The

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ains relevant, but it comes to operate within an ecology in which

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interpreted, the technical and media p

what appears as visible, urgent, desirable or natural. The will is exercised within a repertoire of references and stimuli previously choreographed by the platform. This asymmetry in the production of meaning sets the stage for the category of semiotic vulnerability, understood as a structural disadvantage in the grammar of meanings that guides the subject's relationship with the immaterial object of consumption. Architecture thus becomes practical normativity because it organizes the field of the perceived, the credible and the natural before the informational duty can produce its effects.

NOTES

53. Influenced by the theory of Jacques Ellul, in the work *Amusing Ourselves to Death: Public Discourse in the Age of Show Business* ("Divertindo-nos até a morte: o discurso público na era do show business", our translation), originally published in 1985, the American educator Neil Postman investigates the influence of television on American culture, exploring the ways in which television, once it became the dominant medium of communication, transformed public discourse into entertainment and had a profound impact on the social, cultural and political epistemologies of the United States. ↩

54. The cinematic acts as an editorial form of knowledge: it frames what should be seen as relevant and offers a way of reading, instead of offering technical data about items. In the official material "Still Here | Season 2024 Cinematic", the page itself organizes the content under the title and the statement "Fight for tomorrow." RIOT GAMES. This shows the epistemological function of audiovisual content in the Postmanian sense: the content is presented as a key to interpreting the "now" and the "next", shaping expectations and criteria of relevance, without the consumer needing to access any technical description of the object of consumption associated with the ecosystem. ↩

55. The contract qualifies the object of consumption as something that is known not by inspecting the good, but through the access granted under a service regime. Riot states that it may offer the opportunity to "acquire a limited license to access [...] ('Virtual Content')" RIOT GAMES. It then states that the user "has no ownership or right over any Virtual Content" and that unlocking occurs through a "limited non-transferable license" RIOT GAMES. In epistemological terms, this is decisive because it shifts "knowledge of the object" outside the thing itself, since what exists legally is a access. The public perception of what the item "is" comes to depend the mediations that make this access intelligible and desirable. ↩

56. The declared norm admits that the identity of the object may change, and this alters the type of “truth” the consumer is able to form about the item at the moment of purchase. The contract defines what is offered as “a license and a personal right [...] revocable” RIOT GAMES. It then makes explicit the unilateral power to “delete, alter, [...] repackage, reprice” content, and records that “Virtual Products may [...] evolve over time”, including through “game balance, bug fixes, or graphic improvements” RIOT GAMES. The point is not rhetorical. If the contract assumes that the item may “evolve”, audiovisual and narrative mediation comes to function as a practical source of knowledge of the good, not as ornament, because it stabilizes, on the public plane, what should be understood as the identity and value of the object, even though its configuration remains manageable and alterable. ↩

57. In the religious field, Postman maintains that television converts religion, without ceremony, into entertainment, removing what made it a historical, profound and sacred practice, with the loss of ritual, dogma, tradition, theology and, above all, spiritual transcendence POSTMAN. In this formatting, preachers cease to be mere mediators and come to function as media protagonists, so that “their featured players become celebrities” POSTMAN. The author describes this shift with explicit irony in saying that, in these programs, “the preacher is tops” and “God comes out as second banana” POSTMAN. God “exists only in our minds”, while the preacher is “there, to be seen, admired, adored”, becoming the star of the show under an essentially structural logic POSTMAN. ↩

58. Postman's final contribution lies in a warning about the dangers of the "distracted society" that the communication mechanism had created, a concept that resonates forcefully in the contemporary context, in which the reality observed by Postman was raised to exponential levels through the insertion of new digital communication technologies that only reinforced and amplified the dynamics the author had observed. In this context, reflection is needed on the impacts of the media (in the broad sense) on the human capacity to think critically, to understand reality and thus to develop the skills necessary for engaged action as citizens of an increasingly complex society. ↩

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In digital environments of continued enjoyment, the relevant loss is not reduced to the alteration of a digital object, but reaches the field of meaning that sustained its enjoyment. A rare cosmetic item or a reconfigured character are valuable because they operate as a legible social sign, a marker of identity and a point of belonging within a proprietary grammar. When an update alters appearance, effects, perceived rarity or economic insertion, the compatibility between experience, narrative and recognition may come undone. The promise of distinction remains nominally in the account, but no longer finds, in the world of the game, the fit that gave value to the investment of time, money and attention.

It is at this point that Vanderburg's contribution[59] becomes useful. Technique does not appear merely as a system external to lived experience, but as an everyday reorganization of experience, capable of corroding the symbolic density that makes consumption meaningful. In the illustrative scenario adopted, the player's frustration does not stem merely from the modification of an attribute, but from the disarticulation of the grammar of recognition that gave meaning to the initial investment. The unilateral alteration[60] of appearance, perceived rarity, social utility of the cosmetic or functional identity of the character thus functions as a corrosion of the symbolic value incorporated into enjoyment.

What is consumed, in this type of environment, is not only technical function, but belonging, prestige and recognition mediated by signs. When the platform rewrites these signs, the nominal permanence of the object in the account may coexist with the emptying of what it signified and delivered. Vanderburg's usefulness lies precisely in allowing this frustration to be read not as an error of technical performance, but as alienation of the acquired good.

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For Vanderburg, the fragmentation of modern experience begins in the very way knowledge and practice are organized. The scheme of disciplinary delegation distributes physical, biological, social and economic phenomena to distinct specialists; it works when one category of phenomena predominates, but becomes inadequate when several categories contribute simultaneously to the problem analyzed VANDERBURG. This structure helps explain why modern civilization can succeed in scientific and technical undertakings and yet fail when faced with communities and ecosystems, whose understanding requires the integration of heterogeneous dimensions VANDERBURG.

His reading does not arise in a vacuum. Here there is a clear continuity between Ellul, Postman and Vanderburg, and it is this continuity that gives unity to the diagnosis. Ellul offers the understanding of technique as a practical rationality that becomes autonomous and reorganizes social life, while Postman makes explicit how communicational mediations reorder meaning and degrade the cultural density of experience. Vanderburg, in turn, shows how this movement is incorporated into routines and translates into fragmentation and desymbolization of lived experience. For this reason, although there is direct continuity with the Ellulian matrix, the axis of the study in Vanderburg is the formulation of the mechanism by which technique comes to operate from within everyday experience.

This framing matters to the legal problem because it allows the injury to be described as the degradation of an enjoyment bundle whose core is semiotic and relational, and not as mere subjective frustration. When the platform governs the repertoire of signs, the criteria of visibility and the routes of internal comparison, it also governs the conditions of verifiability of what was promised and of what was delivered. The consequence is that the conflict over a system change ceases to be a dispute about taste or preference and becomes a dispute about controllability. It is a matter of defining which parameters make it possible to identify, with minimal intersubjectivity, when a technical alteration relevantly downgrades an acquired immaterial good.

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and communication technologies strengthen the technical order to the detriment of the cultural and natural orders, with direct effects on the way experience is organized and interpreted. Even when the computer operates with symbols, it treats them indifferently to the dialectical context that gives them meaning, which contributes to emptying their symbolic capacity. Moreover, computer-mediated activities tend to require reconfiguration by a technical division of labor, since practice ends up reorganized to fit the demands of the informational apparatus itself VANDERBURG.

In contexts of massive mediation by media and social networks, the displacement of meaning toward instrumental uses appears clearly when Vanderburg observes that, under these conditions, the meaning of words[61] comes to be profoundly affected by the fact that they operate as "tools", and not as bearers of meaning. The point is not merely that language becomes simplified. It changes function, since it ceases to integrate experiences into a shared symbolic web and comes to circulate as a device of immediate action, oriented by response, adjustment and performative adequacy.

When the sign loses density of context and comes to be valued by its use, the interpretive horizon shrinks, and the subject becomes more dependent on external mediations to attribute relevance to what they live and consume. This transformation directly concerns digital consumption because it reduces the margin for critical reading of environments mediated by signs, precisely those in which offers, interfaces and promises are presented as if they were natural to the world VANDERBURG.

Vanderburg's contribution matters here for making explicit a dimension frequently undertheorized in debates on digital consumption. It concerns how technique, by being incorporated into routines and into the ordinary mediations of life, displaces experience from an integrated horizon of meaning to a sequence of fragmented operations, increasingly dependent on technical-organizational systems. Desymbolization, in this framework, is not an abstract cultural effect, but a way of life in which the interpretation of the world, including the digital world, comes to occur under impoverished conditions of contextualization, which reduces the capacity for critique, for intuitive auditing and for semiotic resistance in the face of offers,

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This displacement makes it possible to name a specific, useful operational effect, symbolic captivity. It is the condition in which the repertoire of signs supplied and administered by the platform comes to function as the predominant grammar for interpreting value, belonging and the user's very social world, reducing the routes of external comparison and the capacity to re-anchor meaning outside the ecosystem. What is described here is not a psychological state of the consumer, but an architecture of mediation that selects, ranks and repeats signs, giving them practical centrality through mechanisms of visibility, reward and obsolescence. When experience is organized under this regime, promise and delivery no longer depend only on what is said and come to depend on what is made present, relevant and verifiable, which prepares the reading of continuous consumption as semiotic governance.

In the empirical laboratory referred to, symbolic captivity appears when the value of the item and of the character is recalculated exclusively by the signals that the platform itself controls, including after the unilateral alteration. The consumer has no way to “take the good outside” nor to re-anchor its meaning in an external market or grammar. All that remains is to accept the new official interpretation of the object, because it is this interpretation that organizes reputation, belonging and social legibility in the ecosystem. This helps explain why the player's frustration is not collateral noise, but a structural symptom of a regime of consumption in which the platform administers, at the same time, the promise, the experience and the criteria for validating value.

Vanderburg's contribution is especially useful for articulating three movements. First, that of describing and recognizing cultural desymbolization as the loss of the capacity to integrate experiences into a meaningful world[62]. Second, to indicate the role of technique and of the entertainment industry in this process. And third, to show how advertising exploits emotional and identity vulnerabilities. Such elements directly concern digital consumption, in which immaterial objects are offered as a symbolic response to lacks that the techno-media order itself helps produce.

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lesymbolization, Vanderburg describes a process set in motion when living conditions restrict corpore

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freedom, weakening the practical background that sustains symbolization VANDERBURG. It is not a matter of an abstract absence of symbols, but of the deterioration of the concrete conditions that make it possible to attribute meaning to lived experience, including through the bodily dimension of experience VANDERBURG. When this fabric is torn, there may be a loss of integrity of the self in its web of relations, accompanied by overload, powerlessness and helplessness VANDERBURG. The reorganization of life by demands of efficiency, control and fragmentation of tasks narrows precisely the space of participation and commitment that gives grounding to symbolization.

The corrosion of the symbolic context intensifies when informational technologies come to organize activities and experiences. In order to operate, they convert lived experiences and signs into manipulable, separable and comparable units, treated as processing inputs. In this conversion, what was ambiguous, situated and relational loses thickness and tends to be reduced to an object of calculation. Meaning shifts from the living bond with experience to the efficiency of the procedure. The effect is not merely the adoption of new instruments, but the alteration of the conditions of interpretation, since experience reaches the subject already filtered by a logic that privileges performance, result and control. It is on this ground that desymbolization becomes a structural diagnosis: technically organized life hinders the sustaining of interpretive coherence because it restricts, reorganizes and fragments the contexts of participation.

Vanderburg argues that desymbolization is not born with the internet nor with mass culture. It runs through human history, with distinct intensities, whenever collective life loses the capacity to preserve and transmit a common horizon of meaning. In traditional societies, this horizon operated as an embodied map, internalized in the brain-mind organization, with greater symbolic elaboration in the domains in which the person effectively participated in the way of life and lesser elaboration where that participation was reduced. For this reason, traditions could function as a kind of "mental map", with dense symbolic connections in the socially lived spheres

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[illegible]nical mediation ceases to operate as a set of instruments and

comes to configure the very milieu of life, weakening the link between experience, narrative and shared world.

Desymbolization also corrodes the everyday capacity to verify and order lived experience. When experiences cease to be articulated with one another and with a cultural background capable of giving them resolution, the subject loses the conditions to attribute weight, hierarchy and relevance to what happens. The drift is not merely cognitive: the lack of meaning turns into practical powerlessness, weakening of bonds and diffuse anxiety. It is on this ground that technical supplements of orientation and belonging settle in with ease, coming to operate as prostheses of interpretation.

As an illustrative device, desymbolization may be compared to the progressive reduction of the chromatic repertoire available for forming an image, that is, to the loss of the capacity to see colors. Taking colors not as signs, but as structural elements of composition, one can observe that an image produced only in black and white has a smaller field of combinations than an image composed of gradations of gray; the latter, in turn, has a smaller field of possibilities than an image open to a broader spectrum of colors.

In other words, the potential structural complexity of the image is directly proportional to the number of colors available for its formation. Increasing the available repertoire broadens compositional complexity, not because every colored image is symbolically superior, but because there are more possible differences from which to form relations. Likewise, a symbolically dense culture offers a larger repertoire of connections between experience, narrative, practice and belonging. Desymbolization impoverishes this field of possibilities: the world can still be perceived, but it has fewer mediations through which to be articulated as a world endowed with coherence.

Vanderburg defines desymbolization as the corrosion of the cultural capacity to organize human experience dialectically, that is, to maintain relations of meaning [illegible] ts of the world and give them compatibility VANDERBURG. The

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creations compatible with one another

things lose fit and coherence VANDERBURG. The process intensifies when the disciplinary technical approach replaces the symbolic cultural approach, which separates the technical order from the cultural order built by experience and causes *expertise* to drift away from human life through layers of abstraction VANDERBURG. As a subjective and social effect, this separation reconfigures roles and fractures the unity of lived life, producing divided subjects and alienated cultures under increasingly diffuse interpretive horizons VANDERBURG.

The link between desymbolization and digital consumption runs through the way technique is incorporated into routines. In Vanderburg, this movement displaces internalized symbolic orientation and produces growing dependence on external mediations. On the plane of practical rationality, the author describes the passage to goal-oriented behavior, in which the context considered is restricted, since everything not directly relevant to the objective tends to be excluded, separating the relevant from the marginal and eliminating what comes to be held as irrelevant VANDERBURG. With the loss of tradition as background, brain-mind organizations cease to function as sufficient mental maps to orient life, and culture comes to operate as a radar, tracking what happens in the world and how people respond in order to adjust conduct, fit in and belong VANDERBURG.

If culture comes to operate as a radar, the question ceases to be merely the erosion of inherited symbols and comes to involve the engineering of the signals that replace this background. In the reference ecosystem, this displacement appears when the platform manufactures ready-made frames of meaning and distributes them as consumable novelty. The alternative "universes" import external cultural grammars, repackage them in their own vocabulary and offer the consumer not only variations of appearance, but complete cultural framings, with aesthetics, narrative and a promise of belonging. Desire comes to be oriented by short, recombinable and replaceable cycles of meaning.

Riot itself describes this functioning when it treats skins as interpretations of alternative universes, capable of moving the champion to "a new world" and

Skip to content erience under the question "what if?"[63] RIOT GAMES. The gesture is decisive for the reading of Vanderbu

external signals to orient conduct and belonging, the alternative universe functions as a provisional map of meaning. It reactivates interest in characters without requiring dense tradition or cultural continuity. The consequence is an economy of meaning on demand, in which cultural trend becomes raw material and alternative world becomes packaging.

Symbolic recycling, in this ecosystem, is not limited to aesthetics, because it becomes cosmology. The *Pulsefire*[64] universe is revealing because its narrative core organizes transit between timelines and parallel realities, operating as a particularly revealing piece of this arrangement. When a universe is built around the crossing between times and worlds, the multiplication of versions ceases to seem like noise and comes to produce internal coherence. The multiverse, here, is not merely *lore*, but a cultural technology for legitimizing the catalog. It naturalizes the platform's restaging of the same characters under diverse signs, often imported from outside, without the repetition seeming mere repetition. Riot itself thickens this universe through narrative events distributed across the service's calendar RIOT GAMES.

The same mechanism appears in universes that import external cultural grammars in an organized way. *Star Guardian* converts the repertoire of Japanese *magical girls*[65] animations into an internal universe, with its own mythology, language of destiny, light and mission, presenting an aesthetic recognizable by the public without needing to originate from RIOT GAMES. *Odyssey* translates the fictional genre of *space opera*[66] into a playable and consumable universe, mobilizing empire, frontier and space adventure as a frame that reorients the reading of the characters. The same cast becomes compatible with a new cultural grammar without the technical engine of the service needing to change in the same proportion RIOT GAMES. In both cases[67], the platform does not merely follow culture; it operationalizes it as a series, ready for return, expansion and recombination.

This engineering of meaning is coupled to events as a practical form of circulation of the symbolic. Riot describes events as packages that bring together things to do, ıch as lore[68], things to earn and things to buy, and also gives ole of an occasion event to deepen the universe. The met

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since it reveals that the symbol functions as a functional component of the device. *Lore* does not come in as "decoration", but as a signal that orients attention, creates the relevance of the period and gives the consumer a language to recognize what is happening now, why it matters and why it is worth staying.

On the legal-institutional plane, the cycle gains density because symbolic content circulates under a regime of license and of formally assumed plasticity. The contractual frame provides the institutional fit for this plasticity. Access to content is described as a personal and limited right, while the supplier reserves the possibility of excluding, altering, removing, repackaging and repricing[69] content at any time RIOT GAMES. In this architecture, the recycling of external symbols ceases to be merely a marketing strategy and comes to operate as a component of a supply regime in which meaning is managed as a variable of the service. In Vanderburg's lexicon, the cultural radar is internalized by the platform, which selects and redistributes signals to renew interest, organize routines and sustain economic circulation.

It is in this sense that Vanderburg describes technique as the predominant milieu of life, that is, as the ambience through which we relate to other people, to communities and to the biosphere itself. When this mediation structures routine, it does not merely facilitate actions; it filters experience, privileging what can be expressed in operational terms and pushing the rest to the periphery of what is perceived as real. The desymbolizing pressure becomes more corrosive when it ceases to seem like pressure and comes to be lived as the nature of the world, as if life were only legible when translated into procedure, metric and protocol. In this key, technique does not merely organize doing; it reorganizes the criteria of relevance by which the subject recognizes value, belonging and loss. VANDERBURG.

In this framework, technical progress not only raised productivity and pushed the economic transition toward the service sector, but also repositioned entertainment as a central gear of social life. It is here that Vanderburg's reading gains traction, because, when technique infiltrates routines, enjoyment ceases to be an interval and comes to function as an extension of the same system that organizes work,

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existence. Entertainment becomes an infrastructure of permanence, desire and practical orien

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“magic power”, but by its constancy, availability and capacity to accompany the subject at the pace at which they live. As a result, digital environments such as games cease to be merely cultural products and become places where one learns, feels and decides, which helps explain why they manage to capture attention and stabilize patterns of relevance without needing to appear as coercion.

The analysis is especially relevant in the field of digital games, in which virtual experiences may replace direct interactions with the physical world and offer mediated sociabilities, producing disconnections of a symbolic order that relate not only to violence but extend to the diverse values and meanings that structure social life.

In Vanderburg's analysis, it is important to distinguish two registers that operate together in this impoverishment of experience. On one side, there is the lived register, in which the subject still perceives nuances, contexts, ambivalences and meanings that do not fit into simple measures; on the other, there is the technical-operational register, which tends to reorganize reality by goals, indicators, scores and measurable outputs. The point is not to deny the usefulness of metrics, but to note the structural effect when they cease to be localized instruments and become the dominant way of perceiving and deciding.

When what comes to count is only what is calculable, the world is not merely summarized. It is reformatted and, with that, experience loses layers of meaning, of memory and of critique. This displacement, from meaning to performance, from context to objective, sets the scene for the dissociation pointed out by Vanderburg and, in continuity with the Ellulian lineage mobilized, makes it possible to understand technique not merely as a means, but as a practical rationality that is incorporated into routines and comes to organize the very perception of the real.

In Vanderburg, in continuity with the Ellulian tradition, the concept of technique is what makes it possible to read interactive entertainment without falling into reductions such as “it is just fun” or “it is just culture”. Technique, here, does not [illegible] ols, but a mode of organizing the real that imposes itself as

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counts and of what orients action. For

recurring environment of experience, it does not merely represent conflicts or produce narratives, since it trains perceptions and habits, reprogramming what the subject recognizes as relevant.

In this regime, the simulation need not be true to operate as sufficient reality, since it comes to organize conducts, affects and choices insofar as it provides a functional world in which the subject learns to act and to orient themselves VANDERBURG. Dissociation then proves legally interesting, since action and the evaluation of experience tend to be reduced to measurable and comparable results, shifting attention from meaning and context to performance and the indicator VANDERBURG. The consequence is a compressed and instrumental perception, tuned to the immediate and to the fragment, with short attention cycles and processing by minimal units of information, which impoverishes the symbolic integration of experience VANDERBURG.

A particularly effective way of denoting technique incorporated into routines, in the context of the empirical laboratory mobilized, is to observe how “missions” and “passes” come to organize the player's time as a sequence of tasks with their own inputs, outputs and accounting. The game remains, in appearance, a world of fantasy and competition, but everyday experience comes to be traversed by a second regime of orientation, quieter and more constant, in which what counts is not merely playing, but meeting progress criteria, stabilizing recurrence, not missing reward windows and maximizing conversions between time and currency. Technique, on this plane, need not suppress the playful dimension to corrode it, since it suffices to install a parallel grammar of goals and indicators that reinterprets enjoyment itself as efficiency.

The regime becomes even clearer when obtaining rewards is formally tied to objectives that function as technical equivalents of the time invested. Instead of depending only on victories or narrative milestones, progress comes to be calculated by points accumulated based on the duration and result of matches, which shifts the center of gravity of the experience to a rationality of productivity. Institutional

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ift visible when it openly describes missions that “earn points just

by playing"[70] and, above all, when the developers themselves make explicit a matrix of points per minute played, varying according to victory or defeat[71] RIOT GAMES.

In direct dialogue with Vanderburg's key, the symbolic consequence is that routine ceases to be organized only by expectations internal to the game and comes to be governed by an external "radar" of relevance, which selects what must be done today, this week, before the event ends, before the pass closes, before the conversion becomes less efficient. When the reward is structured as a "track" and the platform itself reinforces that certain resources expire, the horizon of experience is cut into short cycles and manageable units, pushing the rest to the periphery of what, in practice, is perceived as important. In this type of organization, technique is not only a means, since it becomes agenda, calendar and criterion of everyday rationality, including in the form of prospective loss, when institutional communication warns that certain items "will be lost forever"[72] if not spent within the deadline RIOT GAMES.

The very naming "mission" reveals this conversion, because it does not designate merely an occasional playful objective, but a repeatable operational chain that structures conduct as the fulfillment of conditions. This structure shows itself clearly when systematized descriptions list alternative objectives that encourage play in a form in which narrative performance is replaced by technical and quantifiable requirements, with parameterized and predictable rewards LEAGUE OF LEGENDS WIKI.

This reading does not depend on suggesting that the consumer is incapable of distinguishing between play and work, nor on reducing the experience to "addiction" or "weakness". The point is structural and lies in the form. By turning progression into calculation, and reward into a regime of goals, the ecosystem produces an enjoyment that presents itself as fun, but operates as a technically administered routine, in which access to content and currencies is organized as a temporal toll[73]. In this framework, desymbolization does not appear as a lack of culture or an abstract loss of meaning, but as a concrete reprogramming of what orients action, filtering lived experience down to what can be converted into procedure, metric and protocol.

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rrying aspects raised by Vanderburg is the impact of technique on individuals' very capacity for symbo

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meaning to experiences and connect them to a horizon of shared reality. The point is more radical than a "change of habits" or a generic cultural impoverishment, because it bears on the metaconscious work that differentiates, integrates and organizes lived experiences into communicable forms of meaning. When this bond between experience and meaning loses resolution, a deficit of orientation sets in, and the subject comes to depend more intensely on external mediations to attribute relevance to what they live and consume. In this context, recurring digital environments matter as an empirical field because they condense routines of attention, stimulus and response that accelerate the conversion of lived experience into procedure and performance, further narrowing the space for symbolic elaboration.

In this scenario, digital objects and services tend to be offered not merely as utilities, but as supports for symbolic recomposition, since they promise belonging, identity continuity, recognition and direction precisely where culture no longer sustains, by itself, these functions. Vanderburg describes this supplementary role of the media in highly desymbolized societies as a condition of continuous immersion in a "bath of images", in which the practical orientation of life comes to be, in part, outsourced to technically produced flows of meaning VANDERBURG. The promise, here, does not function as external decoration, since it is incorporated into the mode of experience insofar as the subject comes to seek validation and orientation within the mediated environments themselves. When sociality is filtered by platforms, the relationship with the other tends to be traversed by dynamics of visibility, comparison and self-presentation, bringing coexistence closer to performance and turning oneself into something to be administered and recognized externally VANDERBURG. It is this displacement that makes intelligible the decisive passage, in which advertising and persuasive vectors cease to act only through message and come to act through ambience, that is, through technical routines that organize attention, belonging and permanence.

In this context, Vanderburg offers a forceful critique of the evolution of advertising strategies, drawing attention to the deliberately manipulative character of many of its [illegible] ploitation of psychosocial vulnerabilities as a method. The point, [illegible] reduced to the "influence" or "seduction" of consumption, but to the technical calibration of stimuli aim

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taking advantage of the prior weakening of symbolization. Advertising directed at children appears, in the argument, as an exemplary limit case of this mechanism, precisely because it operates early on the criteria of valuation and meaning, shifting the formation of judgment into a circuit of stimulus and response VANDERBURG. What matters to the central argument is its structural pattern. Persuasion ceases to be only message and comes to function as a gear of practical orientation in an already desymbolized world.

One of the central aspects of his critique is the argument that cultural desymbolization opens room for products to be coupled to already stabilized and recognizable symbols, so that the commodity would integrate into itself values that, in themselves, it does not possess. Advertising tends to operate less by information about the object and more by the manufacture of a symbolic shortcut that connects the advertised good to a lifestyle and transfers to the purchase the promise of belonging, recognition and fulfillment. In this register, advertisements become poorer in informative content and more sophisticated in associative engineering, consolidating in the consumer's mind an equivalence between commodity and desirable symbol VANDERBURG. The effect is to reorder criteria of value and identity through ready-made links, instead of strengthening the capacity for situated interpretation.

The author addresses the impact of advertising on the very notion of truth in contemporary societies, indicating that, in desymbolized mass cultures, it comes to function as a technical supplement of orientation. This occurs not because it offers knowledge, but because it offers direction when tradition, bond and narrative no longer stably sustain common experience. If, on one hand, language increasingly becomes an instrument of immediate use, instead of a bearer of integrated meaning VANDERBURG, on the other, mass communication comes to operate through the production of affective effects by association and by displacement of contexts, which demotes the role of meaning within language itself.

Vanderburg synthesizes this mechanism by stating that it is no longer the meaning ses possess within language that structures media the feelings and e

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with contexts very different from those that make up the linguistic experience of the members of communities VANDERBURG. When this regime stabilizes, the consequence is not only cognitive distortion but practical alienation, because life comes to be guided by idealized constructions that replace situated experience, dilute criteria of truth and reorganize desire according to a performed reality.

As people move away from situated experiences and from values that provide grounding for everyday life, they become more susceptible to advertising influence not for lack of information, but through a deficit of orientation. When the habit of comparing, distrusting and ranking what matters is lost, desires can be manufactured as ready-made answers to diffuse anxieties, and commodities come to function as affective prostheses of belonging, self-esteem and direction. The product comes in as a pretext, but what is delivered is an emotional script for a technically accelerated existence lacking continuity. It is this weakening of internal orientation that prepares the passage to the next problem. When symbolization is corroded, steering becomes easier and less visible, because it no longer depends on explicit persuasion.

This interpretive deficit is precisely what Vanderburg deepens when he shifts the focus from the mere presence of technology to the slow and cumulative process of erosion of symbolization. It is not "there is a screen, therefore it changed". It is routine turning into procedure, experience turning into task, and life being lived in environments so fragmented and operationalized that meaning can no longer stitch itself together. Lived experience loses the thread that tied it to a shared horizon. What happens no longer integrates into a broader narrative, it becomes a collection of loose episodes, each closed in on itself, with no organic connection to the others. For this reason desymbolization is not only an impoverishment of cultural content. It is the corrosion of the very symbolic function that allows the subject to orient themselves, recognize themselves and situate themselves in a common world, where things do not merely happen, but mean.

In this scenario, the entertainment industry (and, in particular, interactive entertainment) becomes a privileged laboratory for observing the incorporation of

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nes, because it turns enjoyment into a recurring, stable and

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ambience. Virtual wo

offer intense and constant experiences, but governed by previously designed grammars, in which rules, rewards, punishments and possible trajectories are configured by technical-organizational choices. The point, here, is not to moralize the game, but to recognize that this type of environment educates attention and relevance through repetition, and tends to bring experience closer to performance, reinforcing the symbolic impoverishment described by Vanderburg.

The link with advertising makes the picture even more forceful because it inserts, within this routinized ambience, a layer of steering by symbolic association. Technical advertising is not limited to informing characteristics. It parasitizes preexisting cultural symbols and offers goods and services as shortcuts to belonging, recognition, affection or relief from guilt. In this regime, subjective needs cease to be a presupposition of consumption and come to be produced and modulated by associative engineering, precisely because desymbolization has already weakened the internal criteria of orientation. What stands out, in this context, is the convergence between the erosion of symbolization and the offer of ready-made direction mediated by signs. It is the preparation of the ground for the passage from message to design.

Taken together, the diagnosis shifts the focus from content to form. The decisive point is not only what advertising says, but how a technical-organizational system positions the subject within routines of stimulus, reward, visibility and comparison, making certain paths more probable and others almost impracticable. When desymbolization weakens internal orientation and advertising functions as a prosthesis of belonging, steering ceases to depend on explicit persuasion and comes to operate by design, by interface choices, by functioning arrangements, by interaction patterns and by forms of governance that structure experience even before any message. In Vanderburg, this process appears as cultural corrosion and persuasive exploitation. However, the mechanism itself points to something beyond the message: a rationality inscribed in artifacts, systems and forms of circulation. The passage from message to arrangement, from content to design, opens the bridge to [illegible]ntribution will make it possible to treat technology as a social [illegible] sign as a political site of dispute.

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59. In the works *Our War on Ourselves* (2011) and *Our Battle for the Human Spirit* (2016), Willem H. Vanderburg articulates two movements that should be distinguished analytically. On the one hand, dissociation, understood as the severing of the bond between action and its human context, when repeated stimuli, metrics and simulations push the subject toward an orientation centered on performance, success and result. On the other, desymbolization, deeper and more structural, because it involves the erosion of the capacity to integrate lived experiences into shared horizons of meaning, causing experience to cease to connect to the world, the world to narrative, and narrative to reality. In digital consumption, these dimensions tend to converge, since sensorially saturated and repetitive experiences shorten the time for working through experience and reduce the space for reflection, making the subject more available to regimes of stimulus and reward. In this work, however, priority is given to desymbolization, because it is desymbolization that bears directly on the ability to interpret critically environments mediated by signs. ↩

60. "*Rework*" describes a broad intervention of functional and structural redesign in an element of the game (character, system or mechanic), which exceeds incremental adjustments (*balance*) and one-off updates. Translating it as "retrabalho" or "reforma" tends to lose the specific technical usage of the sector and to blur the difference between minor corrections and substantive reconfigurations. The English expression "*rework*" is kept in order to preserve the operational distinction recognized in the environment itself. ↩

61. In Portuguese (our translation), respectively: "Nossa guerra contra nós mesmos: repensando ciência, tecnologia e crescimento econômico" (2011) and "Nossa luta pelo espírito humano" (2016). ↩

62. It is relevant here to point out the identifiable parallel with the paradigmatic thought of the French sociologist Émille Durkheim, specifically that developed in the works Da Divisão do Trabalho Social (1999), O Suicídio (2000) and Formas Elementares da Vida Religiosa: O sistema totêmico na Austrália (1996), originally published in 1893, 1897 and 1912, respectively. For the author, religion – and, with it, one of the fundamental matrices of moral cohesion – is not explained by simple reference to "gods", but by the constitutive split of the social universe between sacred and profane, in which the sacred is defined by the regime of interdictions that protects and isolates it, functioning as a pole of collective ordering DURKHEIM. In this architecture, the totem operates as a sensible support and emblem of a collective force that, being diffuse, needs to be objectified in a material figure in order to become perceived and socially ...is reason, when the group invests the symbol, it is not a perceptual ...way of making visible and effective a real, transfigured social energy, to the point that Durkheim states tha...

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of religion DURKHEIM. Social unity, however, is not maintained by inertia: it requires rites and assemblies capable of periodically reinvigorating collective feelings and ideas that, in everyday life, tend to weaken, which shows the centrality of ritual maintenance as a mechanism of social continuity DURKHEIM. Postman's reading, taken up in the previous item to describe how the media form reorganizes criteria of relevance and credibility, helps make this parallel empirically intelligible in the contemporary register. By recoding religious experience into the language of spectacle, television does not merely "transmit" messages. It alters the ways in which authority and adherence are publicly produced, increasing dependence on regimes of visibility, charisma and performance. In this context, religious mediators may be socially perceived as celebrities, and experience tends to be more strongly modulated by the form of presentation than by narrative or doctrinal density. Within this scenario, the bridge to cultural desymbolization in the sense worked out by Vanderburg becomes especially productive. Technical-operational modernity compresses dense symbolic mediations without eliminating the structural need for symbolization; it displaces, however, its supports and criteria of validity to artifacts, devices and functional grammars, opening space for metrics, performances and access infrastructures to assume, in practice, functions of belonging, validation and sanction comparable, by analogy, to those Durkheim describes in the symbolic regime, converting technical governance into lived moral routine. A foreseeable side effect of this displacement is regulatory instability. Since nothing in the individual by itself fixes the limit of aspirations, containment depends on an external force DURKHEIM and, when there are "disturbances of the collective order", even in cycles of prosperity, the balance that disciplines expectations and conducts is broken DURKHEIM, producing social suffering typical of deregulation DURKHEIM. Along the same lines, when the relations between social functions cease to be adequately regulated, the division of labor itself may enter a state of anomie, failing to produce solidarity DURKHEIM, although morality, as a source of bonds that force the individual to reckon with others, remains a decisive criterion of integration DURKHEIM. This articulation also prevents two inadequate readings, above all the one that symbols would be a disposable "error", since Durkheim rejects the reduction of religion to cognitive falsehood and treats such forms as institutional responses to real human needs DURKHEIM, and also the one that technical rationalization would replace, without remainder, the practical function of the symbolic bond, since scientific explanation may not take the place of faith as an impulse to action DURKHEIM. ↩

63. In *Ask Riot: The Harrowing?*, Riot answers a question that touches the heart of the problem, since it discusses whether skins would be "cosplays" or "parallel universes". rmulates the product model in explicit terms: "Skins exist for us as erse interpretations [...] We try and bring the core of who the champion is to a new world and ask 'what if?

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a reading through Vanderburg, since, when tradition ceases to provide a background, the individual comes to depend on external signals to orient conduct and belonging. The alternative universe functions as a provisional map of meaning, supplied "from outside" and administered "from above". It turns an external cultural trend into a recognizable internal framing, and does so without needing the symbol to be lived as historical continuity. The result is a mechanism in which meaning ceases to be inheritance and becomes supply. ↩

64. The fictional universe is useful not for being "one more theme", but for constituting a cosmology whose central idea is transit between realities. The interface dictionary summarizes the universe as a series of skins in a "parallel universe" and describes it as a "branching of infinite realities", with agents and fugitives crossing time and space LEAGUE OF LEGENDS WIKI.The vocabulary matters because it points to the structural role of the multiverse. It makes it plausible for the same character to be continually reframed without the recycling seeming a loss of character. Under Vanderburg, this is a way of restoring direction in a desymbolized environment through a cosmology administered and objectively legitimized under the cultural artifact. It is not born from the cultural everyday life of consumers, but is implanted as a symbolic infrastructure that makes it possible to serialize differences, sell novelty and restart cycles of interest. ↩

65. Known globally through franchises such as *Sailor Moon*, *Puella Magi Madoka Magica* and *Cardcaptor Sakura.* ↩

66. Popularized worldwide by franchises such as *Star Trek* and *Guardians of the Galaxy*. ↩

67. Riot maintains an official repository of "universes" that functions as a library of internal cultural frames. Star Guardian is presented as a universe of its own, with a language of destiny and protection of starlight, that is, an institutionalized translation of the grammar of magical girls into the ecosystem (Riot Games, [202- ?]a). Odyssey is presented as a space universe with empire and galactic frontier, functioning as an institutionalized translation of space opera into the catalog of characters RIOT GAMES.Its relevance, in Vanderburg's terms, lies in the fact that these frames supply ready-made, recognizable and interchangeable meaning, allowing the ecosystem to renew interest without depending on living tradition. The symbol ceases to be background and becomes a serialized product. External culture is converted into an internal format and, once converted, becomes administrable as a series. ↩

68. In the article *Ask Riot: Lore-Based Events?*, the developer describes, at a programmatic level, the event package offered. By stating that events should contain "things to do, things to learn or discover like lore, things to earn, and things to purchase", it gives the in the *Pulsefire* event, five stories would be released over its duration to iverse and its charac RIOT GAMES argument, is that it prevents any r

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market". The text reveals that the symbol is an operational gear of the event, as much as mission and shop. This resonates with Vanderburg's lexicon because it shows that the supplier is capable of producing signals of relevance to orient attention, give language to belonging and sustain permanence in short cycles. Meaning, here, is manufactured, timed and coupled to the circuit of earning and buying. ↩

69. The legal frame provides the institutional fit of the argument. If the multiverse normalizes symbolic variation, the contract normalizes the material plasticity of the content itself. The result is a regime in which meaning can be reintroduced under new frames, combined with new seasons and economically repositioned, without any duty of stability equivalent to what would be expected of a traditionally "fixed" cultural good. ↩

70. In the official support, the framing appears in simple and operational language, stating that "some League of Legends objectives require you to earn points just by playing" RIOT GAMES. This type of formulation is methodologically useful because it exposes how experience is filtered down to what can be counted and accumulated, pushing the space of meaning outside of what generates points, levels and rewards. ↩

71. In the developer's official communication, this metric is formulated in quantified terms. Riot is precise in defining that its missions credit the player specifically with 4 points per minute played, or 6 points per minute if they win the match RIOT GAMES. This is not a psychological intention of the platform, but a practical rationality, in which the routine of leisure is reconfigured as a calculation of efficiency between time and reward, instrumentalized as a structural incentive to permanence. ↩

72. In event articles, institutional communication itself gives form to loss by expiration, warning that certain resources must be spent by a date, "or they will be lost forever!" RIOT GAMES. This type of temporal cut helps explain why, in routine, experience tends to be reorganized by short cycles and by artificial urgencies that function as a discipline of attention, converting enjoyment into a sequence of tasks that "need to be done" before the system closes the window. ↩

73. In the Terms of Service, Riot expressly describes that the "limited license" to access virtual currency and content may be obtained not only by purchase, but also by earning, including the completion of "missions or game tasks" RIOT GAMES. The same contractual block also cuts off, at the root, any proprietary reading of "unlocking", by formulating that the consumer does not become the owner of the content, since "what you 'unlock' is not the virtual product itself, but a limited non-transferable license to access it" RIOT GAMES. Skins and passes cease to be mere "extra content" and come to integrate, as form, the very regime of licensed access, in which the time invested is) a route of acquisition provided for in the institutional design of the

74. For Vanderburg : “There is no question, therefore, that human life and society continue to depend on a culture, even when it is highly desymbolized. In such a culture, babies’ and children’s lives are inundated by the desymbolizing effects of living with television, the computer, and the Internet. These and other techniques impair the ability of their metaconscious processes of differentiation and integration to symbolically relate everything to everything else, which negatively affects the ‘resolution’ of the meaning and value of everything. As a result the resolution of metaconscious knowledge is also affected, especially when it becomes torn between being imbedded in experience and culture and being separated from them. These symbolic ‘deficits’ allow for a deeper and more effective penetration of advertisements in particular and integration propaganda in general. As noted, integration propaganda is the bath of visual images collectively portraying the lifestyle of a mass society as diffused by the media and the Internet. Gradually, a complementary relationship becomes established (through the organizations of their brain-minds) between a highly desymbolized cultural ordering of their lives and the integration propaganda that seeks to make up the deficit. All this reinforces the technique-based connectedness of human life and society. It is built up by the technical approach taking hold of all aspects of human life, society, and the biosphere to transform them into resources for efficient processes; these in turn help sustain the technique-based connectedness without any reference to sense, and thus with detrimental effects on human life, society, and the biosphere.” ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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In digital environments, especially in *games-as-a-service*, the relevant changes are not natural accidents of the object, but architectural decisions that redefine what it is, how much it is worth and how it can be enjoyed. *Patches*, *reworks*, alterations of visual effects and adjustments of the internal economy do not function merely as technical maintenance; they rewrite conditions of permanence, equivalence and recognition within the ecosystem. Bringing in Feenberg[75] at this point makes it possible to treat this modulation as a social rationality incorporated into infrastructure, and thus to ask about choices, purposes and responsibilities where the supplier tends to present only the "natural evolution" of the platform or of the game.

The diagnosis of technical autonomy, media reorganization and desymbolization needs to be brought back to the plane on which technique appears as a disputed social form. Ellul, Postman and Vanderburg make it possible to understand the techno-media order as an ambience that reorganizes everyday life, and Feenberg prevents this ambience from being read as destiny. Technique comes to be examined as the institutional result of choices incorporated into artifacts, systems and governance routines.

The usefulness of the perspective is immediate when the reference ecosystem is brought back. The alteration of a rare cosmetic, the reconfiguration of a character by rework and the gradation of sanctions up to banning are not natural effects of an evolving technology, but architectural decisions that stabilize economic, disciplinary and operational purposes in the very infrastructure of enjoyment. What is presented to the consumer as a *patch*[76], balancing or conduct policy operates, in practice, as

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Feenberg matters here precisely because he makes it possible to treat this set as a political rationality materialized in a system, making knowable the teleology inscribed in interface, rules and sanction architecture, instead of reducing the conflict to mere inevitable technical variation.

A controlled example of this political rationality materialized in a system is the discipline of balancing, in which the *meta*[77] is continually produced and corrected by technical interventions. In *League of Legends*, *buffs*[78] and *nerfs*[79] are not an accessory added after the game, but the very means by which the ecosystem defines, in regular cycles, which characters and strategies remain competitively viable and which are, for a period, downgraded to the condition of suboptimal choices. Seen in this way, the *patch* operates as a norm in operation. It does not merely readjust variables, but reconfigures, in practice, the competitive utility of the assets enjoyed, redistributes frequency of use, repositions preferences and alters the real "cost" of permanence in the environment, since what is functionally strong tends to concentrate attention, learning and investment of time.

The supplier's own institutional documentation treats balancing as a formalized procedure endowed with criteria, which reinforces that the *design* code is a stabilized intersection between social choice and technical specification. In publicly explaining its Champion Balance Framework, *Riot Games* describes the objective of making buff and nerf decisions "consistent" and "easier to understand", including by means of measurable parameters, audience segmentation and the combined use of win rate and ban rate[80], as well as thresholds that function as intervention triggers RIOT GAMES. The result is a technical rationality that presents itself as transparency and predictability, but that also performs a social function, insofar as it converts statistical performance into practical orders of what should be played, what should be avoided and what loses competitive centrality. The social life of the game is organized around this grammar, because what is strong is not merely "better", but what the system allows to be better, for a time, under certain metrics and for certain audiences.

The structural character of this governance by *design* becomes even more visible [Skip to content] the very institutional cadence of updates. Riot maintains a public index of Patch Notes[81], in chronologic

reconstruct the regularity of the *patch* as the normal mode of operation of the service[82] RIOT GAMES. This periodicity is relevant because it makes balancing a form of continuous administration of functional value in the ecosystem. If the *meta* is, to a large extent, the set of incentivized choices, then the update is not merely maintenance. It is the mechanism that makes functional obsolescence an ordinary component of enjoyment, since what was learned, mastered and chosen as the axis of performance can be downgraded, in weeks, by unilateral technical decision.

It should also be emphasized that this institutional frame finds an explicit contractual basis. The Terms of Service state that the supplier may alter, update, suspend and even "nerf" features and parts of the services, including virtual products, as well as providing for the application of *patches* in the background and automatic updates, with or without prior notice[83] RIOT GAMES. Balancing presents itself, in this framework, as a regular exercise of governance by *design*: a modality of administration of the ecosystem in which technical choices cyclically reorganize the field of the possible, modulate competitive utility and reorder incentives of permanence and acquisition[84].

Feenberg's contribution qualifies the techno-media order as an institutionalized social rationality. It is not a cultural background that merely influences practices, but a mode of coordination in which technically rational operations come to organize, rank and legitimize everyday conduct. By shifting rationality from the domain of an abstract ideal to that of an operating social function, Feenberg provides the passage necessary for the legal-consumerist critique not to be confused with a moralizing refusal of technique. What is reconstructed is a regime of power whose efficacy is produced by systems, patterns and decision routines incorporated into infrastructures[85] FEENBERG.

Feenberg defines as the inaugural gesture the defamiliarization of what has become banal in modern societies. The point is to show that rationality, far from being limited to a technical criterion of efficiency, performs a social function by organizing

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is decisive, since it authorizes interpreting the architecture of platforms not as a neutral support for exchanges, but as a concretized social rationality, capable of producing asymmetries and of demanding critical-legal scrutiny.

This shift is central to the argument because it places the problem of rationality back on the plane of the concrete conditions that organize the possible. What counts as efficient, normal, safe, convenient or inevitable comes to be the result of institutional framings that operate before and, often, outside public deliberation.[86] In digital consumption, this rationality operates as a silent infrastructure. It defines patterns of choice, frictions, facilities and invisibilizations and, with that, converts the consumer's decision into an act situated within a field previously architected by technical criteria that present themselves as functional naturalness FEENBERG.

The very opening of the work makes explicit that the investigation is not reduced to a descriptive sociology of technology. By interrogating the nature and role of rationality in contemporary society, Feenberg situates his project at the intersection between philosophy and sociology of technology[87] FEENBERG. In this light, the normative problem ceases to be only that of identifying informational or contractual asymmetries and becomes that of understanding how technical rationality, by acquiring a social function, produces its own conditions of legitimacy. When this rationality organizes expectations and behaviors, it tends to replace persuasion with the structuring of the environment. Platforms become legally relevant not only for what they "say" in terms of use, but for what they "do" in their architectures.

It is within this horizon that Feenberg proposes the concept of technosystem[88]. Instead of treating "technology", "market" and "administration" as autonomous spheres that occasionally influence one another, the technosystem describes an integrated field of technically rational disciplines and operations associated with these three domains FEENBERG. In digital consumption, this prevents the platform from being read as a mere technical provision, because it operates simultaneously as market (models of extraction and monetization), as administration (private

rcement[89]) and as technology (architecture of mediation). It is a

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The triad of market, administration and technology, conceived as a technosystem, provides a precise map for locating the platform as a contemporary form of organizational power. The market appears as a rationality of monetization and extraction, administration acts as a rationality of private governance, through moderation, sanctions, internal policies and *enforcement* mechanisms, and technology operates as a rationality of *design* that materializes these purposes in interfaces, decision flows and regimes of visibility. The dogmatic relevance of this framing is clear. Supply ceases to be understood as a simple provision and comes to be seen as an integrated sociotechnical arrangement, in which what the consumer receives is inseparable from the way access, permanence, modulation and loss are administered by technically rational operations FEENBERG.

The definition of the technosystem comes with a structural consequence, since the dependence of systems on technical disciplines and their mutual mediation constitute essential features of modern societies FEENBERG. For the argument at hand, this prevents digital consumption from being explained as the contracting of an isolated object, because the form of consumption depends on the technical-organizational mediations that structure access, permanence, visibility and monetization. With this, the focus shifts from content to the architecture of enjoyment and modulation, since the technical rationality that organizes the experience is not external to consumption, but integrates the very materiality of what is enjoyed.

It is from this argument that the technosystem offers a basis for the category of the Immaterial Object of Consumption as a legal infrastructure-concept. If the consumed experience depends on continuous mediations and if these mediations are entangled in markets and administrations, then the "product" (as defined under Article 3, paragraph 1 of the CDC) cannot be isolated from the regime of visibility, accessibility and modulation that constitutes it FEENBERG. Immaterial consumption appears, here, as governed enjoyment. The consumer simultaneously experiences a content and the technical and organizational conditions of access to that content, [illegible]ate by criteria of functioning and are not exhausted by the [illegible]nformation.

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From there, Feenberg formulates a high-yield premise for the legal critique of platforms: no technology is an island[90] because every technology is mediated by markets and administrations. The platform should not be naturalized as a simple means, as if it were a neutral engineering unit to which the social would be added later. If technology is always mediated by economic and administrative rationalities, then *design* choices must be read as socially situated decisions, open to criticism as to the purposes they realize and the asymmetries they produce, that is, as a *locus* of attribution and of assessment of legitimacy.

To prevent this critique from falling into a pessimistic substantivism, Feenberg anchors himself in a critical constructivism[91], according to which technology is neither value-neutral nor universal and, precisely for this reason, admits an explicit theory of democratic interventions in the technosystem FEENBERG. The consequence is methodological. The critique of platforms must bear on concrete arrangements of rationality and power, that is, on architectural decisions that incorporate values, select ends and stabilize criteria of functioning. This framing prepares the treatment of the teleology inscribed in design as a knowable and criticizable structure of purpose, and not as a mere side effect of technical operation FEENBERG.

If technique is constructed and disputed[92], requirements such as open auditability[93] and functional value equivalence can be read, from the outset, as parameters for the democratization of design. They do not function as rhetorical accessories of transparency, but as minimum material conditions so that the addressee is not reduced to the position of a mere executor of an architectural script oriented by extraction and organizational predictability FEENBERG.

The idea of democratic interventions in the technosystem[94] is of objective interest because it makes it possible to understand legal criteria as forms of reorienting technical rationality without presupposing a “pure” externality of law. The requirements then come to operate as minimum material conditions so that the addressee is not reduced to the position of a mere executor of an architectural

extraction and organizational predictability.

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In this sense, restrictions materialized in systems may determine the actions of individuals with greater efficacy than formal authority, since they bear on skills, reflexes and attitudes, which, in interface ecosystems, connects politics under *design* to the perspective of consumer vulnerability.

Non-neutrality does not present itself only as an abstract thesis. Feenberg observes that arrangements that appear technically neutral may incorporate unconscious preferences[95]. In digital consumption, this has an immediate consequence, since the practical normativity of platforms[96] (what becomes visible, recommendable, frictioned, permitted or rewarded) may operate as interface "naturalness", masking value choices under the idiom of functionality. In the grammar of the thesis at hand, this mechanism is decisive for vulnerability, since the asymmetry and the resulting risk are not reduced to informational content, but bear on the very field of experience that precedes reading and conditions expectations.

Unconscious preference acquires particular density in interface ecosystems. *Default* patterns, hierarchies of choice, urgency devices and reward regimes orient conduct without needing to declare the value orientation that informs them. Even without textual lie or omission, practical normativity can induce perceptions, desires and permanences through a grammar of interaction presented as simple usability. In a Feenbergian key, vulnerability stems from the politics incorporated into design: a material asymmetry that organizes perception and expectation before any formal consent.

Feenberg formulates the normative dimension of design by describing restrictions materialized in systems[97] capable of determining individual actions more effectively than political authority, bearing on reflexes, skills and attitudes FEENBERG. When conduct is administered by systems and interfaces, governance ceases to operate only by explicit command and comes to operate by architecture. Platforms, in this sense, function as everyday governance, and legal responses cannot be restricted to clauses and notices when practical normativity[98] is inscribed in the design[99] FEENBERG.

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plicit command to architecture as governance makes it possible to distinguish a regime in which the co

another in which they decide within an environment that organizes microstructures of choice. This shift makes the purpose incorporated into design legally relevant. When restrictions and incentives are integrated into the system to produce permanence, extraction and dependence under the appearance of enjoyment, teleology ceases to appear as a side effect and comes to compose the material form of supply FEENBERG.

The idea of code offers the conceptual mediation to describe how social choices stabilize into technical specifications. Feenberg states that the result of struggles and collaborations is a *design code*[100], that is, the stabilized intersection between social choice and technical specification[101] FEENBERG. For the IOC regime, this is decisive because the object consumed is not reduced to the final content; it includes the set of mediations that makes this content enjoyable, monetizable and governable. Architecture thus appears as the core of functioning and of promise. At the same time, the code can be evaluated critically as to the purpose it realizes, opening the way for the subsequent qualification of the teleology inscribed in architecture and governance.

By being defined as the stabilized intersection between social choice and technical specification, the *design code* also illuminates the dynamics of normative closure typical of platforms. Once stabilized, the code tends to reproduce itself through institutional inertia, through path dependencies and through legal and economic mechanisms that make alternatives and reappropriations more costly. In this scenario, intellectual property appears as an infrastructure of semiotic and technical governance. It not only protects creations, but contributes to delimiting uses, restricting reconfigurations and consolidating the supplier's authority over the conditions of enjoyment, reinforcing the private character of the code that organizes the experience FEENBERG.

The political rationality of *design* becomes visible when the technical update ceases to be a mere maintenance procedure and comes to function as an ordinary instrument of government of the ecosystem. In *League of Legends*, balancing is carried out strengthen or weaken characters, reorganizing, in regular cycles, which choices remain competitively vi

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lesser efficacy. It is not merely an adjustment of parameters, but a continuous respecification of the field of the possible, with direct effects on the forms of enjoyment, on the distribution of attention and on the practical cost of permanence, since alterations in relative performance tend to reorient training, investment of time and preferences.

The supplier's institutional documentation presents this process as the application of criteria and metrics, which reinforces that the *design* code is not a neutral given of the system, but a stabilized mediation between social choices and technical implementation. By publicly exposing a plan to guide buff and nerf decisions, Riot describes parameters that link statistical performance and patterns of audience rejection to intervention triggers RIOT GAMES. This formalization, although presented as technical rationality, also performs a social function, insofar as it converts metrics into practical orders about what tends to be favored or discouraged in the competitive experience, influencing what is learned, what is repeated and what becomes, for a time, central in the ecosystem.

The institutional cadence of updates confirms that this is a structural routine of governance, and not an exception. The company is well known for maintaining a public index of patch notes in chronological sequence, which makes it possible to reconstruct the regularity of the patch as the ordinary mode of operation of the service RIOT GAMES. Periodicity matters because it turns the update into a mechanism of continuous administration of competitive utility. In an environment in which practical value depends on a set of relations kept operative by the system, what was acquired as a position of enjoyment can be reordered at short notice by a technical decision, with effects that cannot be reduced to inevitable variation, since they directly affect the stability of performance, the predictability of the experience and the hierarchy of incentivized choices.

This picture gains further density when one observes the articulation between the technical plane and the symbolic layer of the ecosystem, including the transmedia production associated with the game's universe. The series *Arcane*[102], distributed by

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d with Riot's participation, broadens the cultural centrality of characters and narratives, reaching aud

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visibility of certain symbolic assets[1] NETFLIX. From this perspective, the technical decision to introduce or reposition a character does not act on an abstract object, but on a figure whose meaning is continually produced by cultural and marketing strategies.

The episode involving the champion *Mel* shows more clearly how the technical rationality of balancing can operate coupled to the symbolic economy of the ecosystem, without any need to attribute subjective intention to the decision-maker. The official introduction of the character was presented as a narrative and temporal milestone associated with the universe of *Arcane*, with an institutionally fixed release date[103] RIOT GAMES. From then on, throughout 2025, the champion's presence remained at the center of governance by *design* for two complementary reasons.

First, her strength and the type of defensive interaction her kit allowed became a recurring object of public evaluation and technical intervention, with effects on bans, frequency of appearance and perception of competitive legitimacy, which reveals that the *meta* does not "happen" merely through collective preference, but is continually administered by criteria and corrections. Second, already in the year-end cycle, this centrality was connected to a prestige window linked to rare cosmetic content, with a publicly recorded opening date[104] RIOT GAMES. Then, in early 2026, *patch* 26.3 carried out a significant respecification of the champion's mode of enjoyment by altering the central protection mechanism that sustained her interaction pattern, replacing the previous logic with a shield[105] and expressly removing the damage immunity[106] RIOT GAMES.

The sequence is sufficient to support the claim that *design* does not act merely as technical optimization, but as a social mediation that regulates centrality, acceptability and functional value, including when this regulation is synchronized with cycles of prestige and scarcity administered by the platform itself.

In Feenberg's lexicon, the decisive advance lies in the understanding that technical alteration is not merely efficiency, but social mediation. By defining which forms of ermitted, which will be reconfigured and which interactions will be taken as excessively frustrating, *desi*

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which governs the experience without presenting itself as an explicit legal norm. For this reason, balancing, although wrapped in the language of "game health", operates as continuous administration of the environment, with the capacity to redistribute functional value and reorganize patterns of conduct and investment.

Finally, it is worth recalling that this power of respecification has an express contractual basis. The Terms of Service authorize the supplier to alter, update, suspend and even "nerf" features and parts of the service, including virtual products, and to apply patches automatically, with or without prior notice RIOT GAMES. Thus, governance by *design* does not appear as an occasional event, but as an ordinary component of the continuous provision model, in which the object enjoyed depends structurally on an administered ecosystem.

The problem of organizational power appears, in this context, as an internal dimension of the technosystem, and not as an external factor. In revisiting the theme of industrial labor, Feenberg exposes how the union between capital and science can be oriented toward reducing workers' tasks to the exercise of vigilance and dexterity[107], reorganizing dependencies and reinforcing management's decision-making autonomy.

Although the example is not digital, its function here is structural. It shows that technical decisions can be guided by purposes of control and predictability and that this control materializes in technical form. The analogy with platforms becomes intelligible when one observes that the supplier's organizational autonomy tends to be converted into an architecture of capture and private governance, while the consumer operates under asymmetric conditions of auditability and contestation FEENBERG.

This diagnosis[108] makes it possible[109] to read the platform as a social form of organizing relations and redistributing capacities, not merely as efficiency. When this logic is transposed to consumption, the typical asymmetry of the technosystem appears as the supplier's operational autonomy[110]. A successful architecture is one endence of the operator on the subjects who use it, converts ata and value and d

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purposes. In this scenario, consent tends to operate under material conditions of low contestability, since the consumer adheres to a regime of functioning whose rationality has already been decided and incorporated into the system, which deepens the distance between formal choice and practical governance FEENBERG.

It is precisely for this reason that, in dealing with the internet, Feenberg refuses to describe it as a neutral medium, since he insists that it is, above all, a technical system[111] whose social meaning is inextricably intertwined with its technical character FEENBERG. This formulation has strategic value because it shifts the debate from the level of content to the level of architecture, since what matters is not only what circulates, but the technical conditions that make certain circulations possible, probable and profitable. In the IOC regime, this means that the object consumed is inseparable from the technical system that constitutes it, since enjoyment, permanence, sociality and monetization derive from the technical form and not only from contractual promises about content FEENBERG.

The dispute over the internet, in this reading, is organized by competing models that Feenberg calls the "consumption model" and the "community model"[112]. This polarization is useful for the focus on digital consumption because it shows the contingency of the platform, since the platform does not result from an internal necessity of technique, but from conflicts between purposes and rationalities. This tension makes it possible to treat platform governance as a dispute over the social meaning of technique and, at the same time, as a dispute over what is offered to the consumer, since participation, community and belonging can be mobilized both as forms of life and as an infrastructure of monetization FEENBERG.

The distinction between the consumption model and the community model[113] is especially productive for interactive entertainment because it shows how community resources (many-to-many communication, sociability and belonging) can be integrated into market rationality as an infrastructure of extraction. In other words, community does not appear merely as a "social effect" of the product, but as part of its economic value and of its monetization architecture. This is central to

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oncept of the IOC, because it confirms that the materiality of the

object is relational and semiotic. Belonging, reputation and identity continuity are technically organized components, and not spontaneous externalities FEENBERG.

This point requalifies the usual language of the sector, which tends to hide the normative core under engineering vocabulary ("adjustment", "update", "balancing"). When a platform unilaterally alters a rare cosmetic item or redesigns a character, it is determining, by code, the material conditions of enjoyment and the way the good will be recognized and compared in the social world of the game. If the alteration downgrades the functional and symbolic value that motivated the acquisition, the problem is not "user nostalgia", but an architectural redefinition of the content delivered, with direct impact on auditability and on the attribution of abusiveness.

Thus, in stating that the future of the Internet depends on which actors determine its technical code[114], Feenberg provides a particularly useful formula of attribution for the problem of platforms. The proposition makes it possible to treat *design* as a material dimension of supply. If the technical code is determined by actors, it is politically situated and economically orientable and, for this reason, its teleologies can be reconstructed and criticized. It is here that the bridge between sociotechnical diagnosis and legal- consumerist reconstruction is stabilized. When the technical code defines conditions of enjoyment, permanence and loss, the asymmetry between supplier and consumer is not a mere informational defect, but an architectural structure and, for this reason, a field of legal relevance FEENBERG.

This dispute is not merely ideological, since it materializes in technical solutions that condense functions. In describing many-to-many communication as a typical concretization[115], Feenberg offers a useful instrument for thinking of platforms as ambivalent infrastructures, since one and the same technical structure can sustain, simultaneously, community participation, cultural circulation and economic extraction, according to the technical code that stabilizes it. For the study of the immaterial object of consumption, this reinforces that the consumable experience is formed as architecture, because functionalities are not appendages, but convergent arrangements that organize ways of life, expectations and willingness to pay.

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ambivalence of certain functionalities. One and the same technical structure can

concentrate multiple purposes and serve public life and commercial life simultaneously, depending on how it is stabilized by the technical code FEENBERG. For the argument under discussion, this rules out simplifications, since the point is not to assert that platforms are only capture, but to demonstrate that capture can be produced by specific reorientations of functions that also sustain sociability, expression and collective organization. It is in this ambivalence that it becomes legally decisive to ask which teleologies were incorporated into the architecture and which conditions of auditability can make this incorporation open to critique.

Finally, the example of social networks makes explicit, with precision, the ambivalence that matters to the illustrative empirical case. Feenberg observes that social networking sites serve commerce by serving community and that targeted advertising, based on data mining, constitutes a central source of revenue FEENBERG. The implication for platform-mediated consumption is direct, since belonging, recognition and sociability, which are affective and identity dimensions that mobilize symbolic investment, can function as an infrastructure of monetization under architectures of low auditability for the user. For the IOC regime, Feenberg reinforces two consequences. The first is that the materiality of the object is architectural and relational, because it depends on the technical form that stabilizes community and capture. The second is that consumer vulnerability must be read as factual vulnerability of a structural dimension under opaque ecosystems, in which the correspondence between expectation and delivery, between promise and enjoyment, is not immediately verifiable.

The first consequence is that *design* must be treated as a material dimension of supply, because it is there that the practical rules of access, permanence and loss that define the enjoyment of the immaterial object are stabilized. The second is that, if architecture concentrates teleologies and condenses ambivalent functions, legal control cannot depend only on general clauses or advertising promises, and must reach the mechanisms by which the platform produces equivalences, downgrades values and applies modulations without sufficient transparency. It is in this sense that the dispositive of "technical code" becomes, for continuous digital consumption, a [illegible]um criteria of controllability

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With this, Feenberg makes it possible to balance Ellul's contribution without yielding to fatalism: where Ellul diagnoses the systemic expansion of technical rationality, Feenberg provides instruments to reconstruct it as a situated social form (mediated by markets, administrations and technologies), therefore open to criticism in its codes, in its concretizations and in its teleologies. The decisive point, therefore, is that designed architectures materialize practical normativity. Consumer Law cannot be limited to the verification of clauses or isolated informational duties when experience, enjoyment and loss are conditioned by technical decisions incorporated into the environment. The rationality of design must be confronted as a material dimension of supply, preparing the following synthesis: the techno-media environment is not an external setting of the IOC, but its condition of possibility.

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75. It is in this sense that *Technosystem: The Social Life of Reason*, a work by Andrew Feenberg , proves particularly fertile because it shifts the focus from "technology" as artifact to the social status of technical rationality and to the institutions that reproduce it. With this, it provides a vocabulary transposable to the contemporary problem of platforms, in which technology operates as a structural mediation of power and design as the place where purposes are stabilized in rules of functioning FEENBERG. ↩

76. The term "*patch*" is used in the technical sense of an update published by the platform that alters the operative state of the service (fixes, balancing adjustments, changes of rules, content and parameters). Translating it as "remendo" or "correção" is avoided because these options capture only part of the phenomenon. A *patch* may fix failures, but it also reconfigures systems and expectations of enjoyment, functioning as an ordinary act of unilateral modulation in continuous services. ↩

77. The term "*meta*" is employed in the technical sense of the competitive gaming ecosystem, as an abbreviation of *metagame*. It is the set of dominant strategies, optimal choices and performance patterns stabilized in a given time frame, resulting from the interaction between rules, updates and aggregate behavior of the community. Rendering it as "meta" in ordinary Portuguese, in the sense of "goal" or "purpose", would generate ambiguity, because it shifts the term toward teleology or intention, when what is described here is an emergent state of the game system and of its social

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78. The English word "*buff*" designates [illegible] of a game element (character, item, ability, system), with measurable impact on

performance and on the metagame. Translating it as “fortalecimento” or “aumento” is possible, but loses the character of a term of art that marks a specific technical intervention recognized by the community and by the ecosystem's own documentation. “*Buff*” is kept to preserve precision and adherence to the native vocabulary. ↩

79. The antonym of “*buff*”, “*nerf*” designates a deliberate reduction in the power and effectiveness of a game element, usually to restore systemic balance and alter dominant patterns of choice. Translations such as “enfraquecimento” or “redução” are approximate, but do not capture the consolidated technical category that distinguishes the intervention from mere accidental variations. “Nerf” is kept as a term of art of the regime of updates and balancing. ↩

80. In the official article */dev: Plano de Balanceamento de Campeões*, Riot presents balancing as a procedure that seeks to make intelligible the decision-making logic behind buffs and nerfs. The text states that the plan aims to “make all players understand the ways and reasons the ‘balance’ team acts when we buff/nerf Champions in routine Patches” and that the objective is to formalize the way of working so that “the why of each decision” is understood RIOT GAMES. The same document states that “win rate tells us most of what we need to know about a Champion's power and, together with ban rate, gives us a good picture of what is too strong” and goes so far as to establish intervention ranges and thresholds, which makes explicit the transformation of performance metrics into triggers for reorganizing the *meta* RIOT GAMES. ↩

81. Among the many practices consolidated by the company, the regular maintenance of the public index of patch notes is one of the most praiseworthy and was a mechanism of the company's adaptation to the dialectical business model it had established with its community. The practice is, for most platforms, one of the most practical and functional routes for methodological adaptation to the requirements of open auditability and maintenance of functional equivalence formulated in sections 5, 6 and 7 of this thesis. ↩

82. Governance by *design* becomes evident in the maintenance of the institutional index that aggregates, in series, the Patch Notes. On the listing page, the entries appear under the heading “Atualizações do jogo”, with date and title, for example: “Atualizações do jogo 2026-02-18T19:00:00.000Z Notas da Atualização 26.4 do LoL” and “Atualizações do jogo 2026-02-03T19:00:00.000Z Notas da Atualização 26.3” RIOT GAMES. The patch does not appear as a corrective exception, but as the ordinary form of respecification of the ecosystem: it reorganizes attributes, redistributes relevances, alters incentives and periodically redefines what it means to enjoy a given [illegible] or competitive position. ↩

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83. The wording of the terms of use su[illegible] management of the *meta* as *design* decisions implemented as continuous updating,

capable of reorganizing, in practice, the competitive utility of the assets enjoyed. ↩

84. Besides the power to alter functionalities, the contract also assumes the possibility of reorganizing internal economic equivalences associated with virtual content. In Section 5, dealing with the availability of virtual content, the text provides that "sometimes, we may change the purchasing power of Game Currency (for example, we may increase the number of Game Currency needed to purchase Virtual Products, such as skins)" RIOT GAMES. Thus, the idea is reinforced that the ecosystem is not merely a set of items, but an administered economy, in which value and access can be recalibrated by unilateral decision of the supplier. The same logic is projected onto *buffs*, *nerfs*, management of the *meta* and the internal economy. Continuous updating does not reorganize only competitive performance; it can also recalibrate value, access and purchasing power within the ecosystem. When the contract admits alterations in the purchasing power of the game currency, including an increase in the quantity needed to acquire virtual products, it becomes explicit that the platform administers not only items, but internal economic equivalences. The ecosystem functions, therefore, as an economy governed by *design*. ↩

85. Feenberg argues that the political dimension of *design* precedes the explicit assignment of goals to a technology. In Transforming Technology (2002, p. 67), the author states that "values of a specific social system and the interests of its ruling classes are installed in the very design of rational procedures and machines even before these are assigned specific goals." The reading makes it possible to shift the analysis from the plane of declared purposes to the plane of conditions of functioning, where hierarchies of choice, frictions and patterns of visibility can operate as technical normality and, for this reason, as a criticizable dimension of the sociotechnical arrangement. ↩

86. "What is the nature and role of rationality in society today? This book draws on philosophy and sociology of technology to propose a response." FEENBERG. ↩

87. In the work *Questioning Technology*, Feenberg organizes his contribution as a programmatic inflection. He shifts the philosophy of technology away from the terrain in which technique appears as a sphere separate from democratic life and argues that this cut is itself antidemocratic, since it removes from public debate precisely a dimension that structures everyday life and redistributes capacities. Throughout the book, his target is twofold. On one side, to reposition technology as an object of legitimate dispute, showing how social movements and everyday conflicts make the "technical" a political question. On the other, to give conceptual form to this process through the idea of "democratic rationalization", a concept he presents as a reformulation and maturation of his earlier notion of "subversive" rationalizations.

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force of this shift for the problem of platforms is clear. It makes it possible to treat the contestation of *design* and governance as a rational and politically pertinent practice, and not as a whim external to technical development; and it offers a vocabulary for thinking about the reorientation of architectures when users and the public sphere put pressure on codes of functioning that were stabilized under asymmetric rationalities. ↩

88. "For the sake of brevity, I will employ the term 'technosystem' to refer to the field of technically rational disciplines and operations associated with markets, administrations, and technologies." FEENBERG. ↩

89. Usual corporate term for procedures by which the platform applies and executes rules, including by automated mechanisms. ↩

90. "Similarly, no technology is an island; all technology is mediated by markets and administrations." FEENBERG. ↩

91. "Critical constructivism agrees with STS that technology is neither value-neutral nor universal while proposing an explicit theory of democratic interventions into the technosystem." FEENBERG. ↩

92. Feenberg describes a mechanism by which ethical demands can be stabilized as technical requirements when they become legally enforceable. "The successful imposition of this claim by law or regulation transforms it from an ethical demand into a technical code and results in the ethical issue sinking beneath the surface in a kind of technological unconscious." FEENBERG. The observation shows how legal parameters can bear on the design of systems without depending only on abstract statements. Once materialized, the requirement ceases to circulate as moral debate and comes to integrate the technical regime of compliance and functioning. ↩

93. "Democratic rationalization", in Feenberg, is not a metaphor for "participation" in a generic sense. It is presented as a principle by which interventions of users and subordinate actors manage to impose on technical development needs that were ignored or to counter hierarchies already stabilized in technical form. The idea is useful because it makes it possible to frame requirements of auditability, contestability and functional equivalence as forms of rational reorientation of design, and not merely as peripheral transparency obligations. In this framing, *design* is not a given, but a field of dispute in which antidemocratic structures can be put under tension, moving technology into the expanding "democratic circle". "Democratic rationalization: new technology can also be used to undermine the existing social hierarchy or to force it to meet needs it has ignored." FEENBERG ↩

[illegible] of the contestation around AIDS, as worked out by Feenberg in [illegible]echnology (1999, p. 127; p. 141; p. 192), is especially illuminating because it shifts democratic rationa[illegible] networks to the interior of a highly institutionalized technical system, medicine. In the

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1980s, AIDS overburdened medical institutions that, to a large extent, tended to treat patients as "compliant" objects of clinical management, that is, as passive recipients of decisions taken by specialists. The case, however, did not develop in a social vacuum. Many patients already belonged to social networks mobilized around civil rights, particularly those of homosexuals, networks that functioned in parallel to the networks of contagion and that were accustomed to public controversy, to the production of visibility and to institutional pressure. This prior infrastructure of collective organization altered the pattern of "technical" relationship between the medical system and patients. The dispute concentrates on access to experimental treatments and, therefore, on clinical research as a technical-regulatory practice. In a technocratic model of medicine, research can be presented as residual "care" for incurable cases, but access remains strongly limited by paternalistic criteria and precautions, defined from the top down under the justification of patient welfare and of preserving the integrity of the scientific method. What collective intervention produces is a reappropriation of the technical practice itself. Instead of participating individually as objects of a procedure, the activists act as an organized interested party and reorient the system toward new purposes, pressing for experimentation to become a standard form of care for incurable patients and for the design of protocols to reflect, more responsively, the needs and urgencies of those who live with the condition. This reorientation does not operate only on the discursive plane. It involves alterations in technical rules for conducting experiments, such as the critique of the use of placebos and of the limitations of eligibility and participation in statistical studies, as well as the contestation of the way risks and benefits are distributed. The crucial point, in Feenberg, is that the conflict is institutionalized as dialogue and produces changes in governance. Regulatory bodies such as the FDA begin to open channels of "innovative dialogue" with activists, including participation in committees and decision-making bodies. The result is a significantly modified practice of experimental medicine, situated at the intersection between the interests of participants and the scientific concerns of researchers. The case thus functions as a countercurrent to the technocratic organization of medicine by reinserting, within the technical-regulatory structure itself, dimensions of care and meaning that tend to be compressed by the rationality of control. For the debate on platforms and architecture, the analytical gain is direct. First, the example shows that "democratic intervention" need not mean only external regulation; it can mean a dispute internal to the technical form and to the governance that administers it. Second, it shows that collective networks (including digital networks) can empower groups to constitute a "technical locale" from which they influence global systems, not only demanding transparency, but altering criteria, protocols and practical rules. The thesis of preference incorporated into design is especially relevant for platforms, because what becomes

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at this point, is not reduced to info

experience that precedes reading, orients perception and conditions expectations. “Instead of participating in medicine individually as objects of a technical practice, they challenged it collectively and turned it to new purposes.” FEENBERG ↩

95. “Technical designs that appear neutral may actually embody an unconscious preference.” FEENBERG. ↩

96. In *Transforming Technology: A Critical Theory Revisited*, a work published in 2002 (and which functions as a revision of *Critical Theory of Technology*, published in the previous decade) also considered by this research on a complementary basis, Feenberg seeks to reopen a question that technocratic culture tends to close prematurely. Instead of accepting the dilemma between, on one side, technology as a neutral instrument and, on the other, technology as an autonomous and fatalistic destiny, the author shifts the problem to the field of alternatives. What is at stake is not “the” technology, but the plurality of possible technologies and of trajectories of progress among which one chooses. In this key, the work argues that critique must bear on the values that govern technological development and that degrade work, education and the environment. The normative horizon is a democratic transformation of technical development itself, capable of reconciling expanded freedoms with more substantive forms of material well-being, without reducing the debate to an anti-technical moralism. It is in this register that the theory of instrumentalization appears as the central conceptual framework for describing the ambivalence of the technical phenomenon at two complementary levels. “Primary instrumentalization” designates the technical orientation that isolates the real and makes it manipulable under criteria of calculation and control: “The primary instrumentalization is the technical orientation toward reality that Heidegger identified as the technological ‘mode of revealing.’” FEENBERG. “Secondary instrumentalization” is not cultural ornament, but the moment in which technique is realized in devices and social systems, reintroducing context, uses and values; for this reason, “The complementarity of primary and secondary instrumentalization is a normal aspect of the technical sphere.” FEENBERG. The conceptual pair makes it possible to understand how, in interface ecosystems, “usability” can operate as a social stabilization of purposes and, therefore, as a regular form of governing experience. ↩

97. “These constraints are embodied in systems that determine individuals’ actions more effectively than politi-cal authority by determining their reflexes, skills, and attitudes.” FEENBERG. ↩

98. Feenberg formulates democratic rationalization as a category that describes user interventions against antidemocratic forms of power that are sustained not only by law, contract or explicit command, but by the technical infrastructure itself. The s methodological. Instead of treating critique as a reaction “external” to e author legitimizes field, capable of exposing and disp

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reinforces the reading that governance is exercised by architecture and, therefore, can be confronted through disputes over design itself. “I have proposed the term ‘democratic rationalization’ to signify user interventions that challenge undemocratic power structures rooted in modern technology.” FEENBERG ↩

99. In *Transforming Technology*, Feenberg describes how values and interests can become practically invisible when incorporated into rules, procedures, devices and artifacts, coming to operate as institutional “naturalness”. He synthesizes the mechanism by stating that “Critical theory shows how these codes invisibly sediment values and interests in rules and procedures, devices and artifacts that routinize the pursuit of power and advantage by a dominant hegemony.” FEENBERG. His synthesis helps us understand why regimes of governance by architecture tend to escape the user's ordinary perception. The ethical and political controversy “sinks” into the technical form and returns as functional inevitability. ↩

100. “The outcome of their struggles and collaborations is a ‘design code.’ The code identifies the larger social meaning of technical designs, the stabilized intersection of social choice with technical specification.” FEENBERG. ↩

101. Also in *Transforming Technology* (2002), Feenberg upholds the classic formulation of the “technical code” as a concept that structures *design* as practical normativity. “A technical code is the realization of an interest in a technically coherent solution to a general type of problem.” FEENBERG. His perspective avoids reducing the debate to “ideology” superimposed on the artifact, since it locates the conflict in the very process of stabilizing technical coherence. Social interests can be translated into regularities of design and, once incorporated, come to condition the repertoire of the permitted, the difficult and the improbable. ↩

102. In the Riot Games ecosystem, “Arcane” stands out merely for being a manifestation of the “game-based series” expansion model. Since it is an audiovisual work that in fact repositioned the League of Legends universe as a mass cultural product, with aesthetic autonomy and the capacity to attract audiences unfamiliar with the game. Netflix presents the series as centered on the conflict between two cities and on “two sisters” on opposite sides, that is, a narrative understandable without prior knowledge of the game NETFLIX. From an institutional and historical point of view, the genesis of the project is relevant to avoid imprecise descriptions. The showrunners and co-creators Christian Linke and Alex Yee are long-time Riot employees, and reported that the initial proposal faced internal resistance for years before obtaining approval and scale, which reinforces that “Arcane” was not born as an automatic by-product of a mature marketing machine, but as an undertaking built through organizational escalation and persuasion MAIS ESPORTS. On the industrial plane, “Arcane” is also a milestone. Specialized reports describe aggregate costs in the range of hundreds of millions of dollars, with episodes, which places it among the most expensive animated productions ever

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recorded and shows that it is a high-risk strategic bet [WALLENSTEIN]. On the technical and aesthetic plane, the authorship of the French studio Fortiche is central. Riot recognizes Fortiche as the animation studio behind Arcane and reported a significant equity investment in the studio in 2022, signaling the structural relevance of this partnership for the company's capacity to produce its own recurring audiovisual language [RIOT GAMES]. On the plane of institutional recognition, “Arcane” stands out for having been awarded the Emmy for Outstanding Animated Program (Creative Arts Emmys) in 2022, with coverage highlighting that it was the first win of a streaming series in this category, besides appearing in the official record of the Television Academy [WHITE]. In Andrew Feenberg's key, the interest of these elements is not merely descriptive. “Arcane” functions as a symbolic infrastructure of the ecosystem, capable of raising characters to positions of cultural centrality, intensifying visibility, stabilizing expectations and producing desire around assets that are later governed by technical choices in the game. From this perspective, the administration of the *meta* and the reorganization of functionalities do not bear on neutral objects, but on elements whose social meaning is continually produced by a technical-cultural complex that the platform itself controls. ↩

103. In the official notes of the patch introducing the character, Riot opens the section stating: “Perhaps the time has come for the age of the Arcane.” and fixes the arrival: “Mel, the Soul's Reflection, will arrive on the Rift on 01/23/2025 at 17:00 BRT.” [RIOT GAMES]. The framing functions as evidence that the technical decision to introduce a character comes with narrative and temporal marking, organizing expectation and collective attention in the ecosystem, as well as directly capitalizing, within the game, on the investment previously made in Arcane, since this is a character first introduced by the series and only later introduced into the game. ↩

104. Under patch 25.24, Riot records the release of prestige cosmetic content with a precise date: “Prestige Winterblessed Mel will be available December 3, 2025.” [RIOT GAMES]. The record proves the existence of an institutional offer window tied to rarity and recognition, relevant to characterizing the ecosystem's symbolic economy and its articulation with attention cycles. ↩

105. In patch 26.3, Riot describes the defensive change as a “big change”, recording: “A big change we have is changing your immunity to reflected damage into a shield [...]” [RIOT GAMES]. The passage is useful because it shows that this is not a merely incremental adjustment, but a decision aimed at reconfiguring the patterns of interaction and counterplay deemed acceptable by the system. ↩

106. In the same patch, the modification appears objectively formalized in the ability

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No longer grants damage immunity.” [RIOT GAMES]. The information

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potential to alter the very practical expectation of enjoyment and in the functional stability of the acquired asset. ↩

107. “The grand object therefore of the modern manufacturer is, through the union of capital and science, to reduce the task of his work-people to the exercise of vigilance and dexterity.” FEENBERG. ↩

108. Feenberg makes explicit that the “technical code” may stabilize divergent solutions according to the balance of forces among social interests. “The technical code would in the one case impose skilled work and in the other deskilling, reflecting the different interests of workers and managers.” FEENBERG. The author maintains that the act of “optimizing” cannot be understood as a neutral operation, since it implies choosing which interest will be translated into technical coherence. In digital ecosystems, the analogy shifts to the interface. Design may expand the user's capacities (control, audit, reversibility) or may restrict them in the name of organizational predictability, always in the idiom of the functional “best solution”. ↩

109. “The deskilling of manual labor and its total submission to management foreshadows the spread of similarly authoritarian relations between administrators and their employees/clients in technologically advanced societies during the twentieth century.” FEENBERG. ↩

110. In formulating the notion of “operational autonomy”, Feenberg seeks to show that capitalist control of the productive process is not exercised only through legal-formal command or administrative coordination, but is consolidated when the organization of work itself is technically incorporated. It is at this point that the author turns to Karl Marx (citing an edition of *Capital* published in 1906) to maintain that the specifically capitalist form of organizing the labor process acquires a palpable technical reality insofar as machinery and productive arrangements transform the worker into a subordinate component of a pre-constituted material system. Feenberg's reading thus emphasizes that technology is not a mere neutral instrument applied to previously given ends, but the very crystallization of a social relation in technical form, in which knowledge, initiative and margin of decision are displaced from labor to management and to infrastructure. The conceptual consequence, for the author, is that operational autonomy designates this discretionary capacity to decide and reorganize the process without depending on the point of view and interests of the subordinate actors, precisely because those interests have been downgraded and neutralized at the level of technical organization. ↩

111. “The Internet is a technical system first and foremost. Its social meaning is inextricably intertwined with its technical character.” FEENBERG. ↩

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als for the Internet the ‘consumption model’ and the ‘community model,’
FEENBERG. ↩

113. In Questioning Technology FEENBERG, the case of Minitel (Teletel) is presented as a classic example of technical reorientation driven by user agency, that is, of democratic rationalization in operation. The system was conceived and distributed by the French telephone company (France Telecom), which put millions of terminals into circulation free of charge, designed to look like an accessory of the household telephone. This gesture of *design* and public policy had a relatively clear technocratic direction, that of consolidating an access infrastructure and organizing Minitel as an instrument for the centralized distribution of information and data services. The users' intervention occurs precisely when this design is taken as the starting point for an unforeseen appropriation. The fact that the terminal "disguised itself" as a telephone device suggested to some users that the network could serve for interpersonal communication. From there, users "hacked" the network in which they were inserted and altered its functioning, introducing practices of online human communication, such as anonymous chat, aimed at amusement, companionship and encounters, where the mere distribution of data had been planned. The result is a transformation of the system's social meaning. What had been stabilized as a rationalist medium of information comes to be redefined as a medium of encounter and communication, converting the "cold computer" into a "new hot medium". The theoretical point is that this trajectory reveals the interpretive flexibility of technology. A set of devices configured to transmit information is perceived by users as a solution for human communication, and this new interpretation ends up pressing for changes and accommodations in the system itself, becoming incorporated into its functioning. The case bears directly on the debate on platforms because it shows, in concrete terms, that purposes are neither the destiny nor the essence of the artifact. They can be disputed in practice, rewritten by uses, and later consolidated by *design* modifications. This type of reorientation helps explain why "community" and "participation" are not mere social externalities, but dimensions that can shift the very teleology of a network and, later, be reabsorbed into arrangements of governance and monetization. "Users 'hacked' the network in which they were inserted and altered its functioning, introducing human communication where only the centralized distribution of information had been planned." FEENBERG ↩

114. "The future of the Internet depends on which actors determine its technical code." FEENBERG. ↩

115. "Many-to-many communication is a typical concretization." FEENBERG. ↩

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The combined reading of Ellul, Postman, Vanderburg and Feenberg makes it possible to recognize one and the same dynamic from distinct angles. Technical rationality tends to expand as the organizing criterion of everyday life; media ecologies reformat what presents itself as reliable information, acceptable debate and relevant knowledge; and technique incorporated into routines fragments experience, reducing the density of meaning-making and opening space for forms of symbolic steering that do not depend on explicit persuasion. Feenberg completes this picture by preventing the diagnosis from degrading into fatalism: technical rationality is institutionalized in concrete choices, stabilized in design, and therefore remains criticizable, contestable and controllable.

In this scenario, "techno-media order" describes not so much a cultural backdrop as a mode of practical coordination. Systems, interfaces and patterns of circulation come to organize routines and expectations, defining what appears as possible, probable and desirable. Technique operates as environment, media structure forms of life, and advertising communication, in a broad sense, acts as an engineering of signs that reorders needs, belongings and promises. When these layers combine, ordinary experience no longer depends chiefly on contextual interpretation and comes to be traversed by mediations that anticipate choices, delimit alternatives and rank visibilities.

Digital consumption thus emerges as insertion into continuous operational architectures. The consumer does not merely receive a finished piece of content. They come to inhabit an arrangement of access points, curations, permissions, frictions and update cycles that exists while the system works and while the user

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is constituted by mediations that organize enjoyment, permanence, loss, modification and degradation over time.

For this reason, the consumption decision is rarely formed solely by rational comparison of performance, price and suitability. It is also organized by regimes of attention, reputation and belonging, in which value is staged, reiterated and stabilized by presentation formats. Postman explains how rhythm, impact and fragmentation affect credibility and relevance; Vanderburg makes it possible to understand why, in desymbolized routines, goods and services tend to take the place of the recomposition of meaning; and Feenberg offers the material link, by locating practical normativity in design. *Defaults*, choice hierarchies, recommendation systems, metrics and urgency devices produce an everyday grammar in which certain behaviors are facilitated, others become improbable and many alternatives do not even appear as alternatives.

The vulnerability formed in this environment is not exhausted by lack of information or by classic economic asymmetry. It bears on the capacity to interpret, verify and contest the very field in which choice takes place. The decisive gap now opens between promise and the actual conditions of enjoyment, between sign and delivery, between the performance of belonging and the infrastructure of monetization. Even when there is no textual omission, steering may operate through curation and architecture, before reading and often outside it.

Platforms function as everyday governance. Feenberg describes constraints materialized in systems capable of guiding actions with greater efficacy than political authority, because they bear on reflexes, skills and attitudes, and not only on formal declarations. Normativity ceases to depend solely on explicit commands and comes to operate through architecture. What is permitted, encouraged or punished may be inscribed in interface, flow and metric, not only in a clause. Terms and notices remain relevant, but cease to be the main place in which power is exercised.

Seen in this key, contracts, private policies, technical standards and property regimes ses appear as overlapping layers of one and the same governance.

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to be only the content of the promise and comes to include the way in which it becomes operative, as well as the mediations that shape enjoyment without allowing themselves to be fully verified by the addressee. This is the conceptual terrain in which the teleology inscribed in design can be reconstructed as a structure of purpose and in which requirements such as auditability and functional value equivalence will come to operate as minimum parameters of legitimacy for exchanges mediated by systems.

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With the reconstruction of the techno-media ambience concluded, the focus shifts to the political economy of digital platforms. The point now is to make explicit the mode of production in which these mediations operate. Drawing on Varoufakis , Dowbor and Marx , an arrangement is described in which platforms combine infrastructural dependence, informational rentierism, deliberate production of artificial scarcity and continuous extraction of value. These dynamics do not hover above the service: they materialize in business architecture, private governance and the functional design of digital goods and services.

Business activity organizes factors of production and subjects them to a rationality of viability, expansion and preservation of the business. In contemporary capitalism, this rationality operates under permanent tension: on the one hand, it demands responsiveness to market expectations; on the other, it intensifies profit maximization through revenue expansion, selective cost management, containment of uncertainties and active minimization of risks.

This dynamic projects, within the firm, a permanent imperative to govern contingencies, foreseeing, calibrating and redistributing whatever may affect the stability of the business. The decisive point is that this risk governance rarely remains confined to the organization. It tends to operate through mechanisms of displacement, transferring relevant portions of risk and social cost to third parties and to the State, which is often called upon only afterwards to restore the broken balance.

The distinction between internal and external risks makes this rationality explicit.

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ose that bear directly on the performance of the enterprise:

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As a rule, they remain manageable by the firm, since they depend on governance,

compliance, investment in quality and operational control. External risks, although they may be triggered by economic activity, manifest themselves more diffusely and outside the supplier's immediate sphere of control. They reach the health, integrity, assets, privacy, lifetime and informational environment of consumers, as well as competitors, communities and institutional ecosystems. They also include costs of redress, oversight and containment shifted to the public sphere.

It is in the domain of external risks that the paradoxical dimension of the "perfect business" becomes evident: an operation capable of maximizing gains while keeping under control, at least from the business point of view, the risks that threaten its own stability. This threshold can never be reduced to zero, as the consumerist theory of quality recognizes by admitting the inevitability of failures and the need for preventive and remedial discipline of supply. The problem begins when the internal minimization of risk is obtained through the diffuse transfer of its effects to consumers, society and the State.

The managerial reading that reduces the firm to the abstract pursuit of profit obscures the concrete way in which that profit is produced. The firm does not maximize results merely by producing more or selling better; it maximizes results by designing structures that organize responsibilities, filter obligations and distribute burdens. Profit therefore depends on strategies of risk allocation. For this reason, Consumer Law, when it intervenes in the market, is not confined to punishing harm already done.

By establishing minimum standards of adequacy and safety, Consumer Law functions as a legal check on the tendency toward externalization. The supplier is liable because it occupies the structural position of the party that reaps the gains of the activity and must therefore internalize the cost of the risks it creates, preventively and, when necessary, through effective redress.

The industrialist who operates in the food market must ensure, as a condition of the viability of the business, that the product lives up at least minimally to what it

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is not reduced to immediate performance, such as taste, earance; it includes

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product does not harm the consumer's

At this point, the State not only may intervene: it must set minimum parameters and hold the supplier liable when they are breached. Regulation and liability function as an institutional response to external risk. What, from the business point of view, could be treated as an avoidable cost appears, from the legal point of view, as socially inadmissible harm and as a burden that must be internalized by whoever structures and benefits from the economic activity.

The problem is reconfigured when emerging techniques redesign the market and introduce, on a mass scale, new goods, services and forms of risk. With each innovation that reorganizes the consumption experience, a pattern of supply is instituted that is not immediately intelligible through traditional categories: the way of offering changes, the way of enjoying changes, the mechanisms of value capture change and, above all, the ways in which risk is distributed change.

A specific challenge then arises for Consumer Law. It is not enough to recognize the new object in circulation; it is necessary to understand the techno-media grammar that makes it consumable, desirable and, at the same time, opaque. In the classical industrial paradigm, social and legal inspection of risk can bear on the materiality of the product, such as composition, performance and safety. In the techno-media order, risk tends to shift to conditions of access, regimes of governance, decision architectures and to the semiotic layer that sustains the promise of consumption.

For this reason, the political economy reconstructed here must advance to the point at which perceived value, belonging and recognition are understood as dimensions administered within the ecosystem. It is in this grammar that continuous extraction becomes practicable: the platform captures value because it governs not only transactions, but the conditions of intelligibility, desire and permanence that make the transaction recurrent.

Contemporary business rationality finds there a particularly acute zone of friction. Internal risks remain relatively controllable by management and quality; external risks, in techno-mediated markets, depend on collective recognition and institutional

difficulty lies in identifying when a practice transfers an excessive

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physical or patrimonial injury. In envi

interface languages, externalization tends to operate through indirect and diffuse routes, in the form of informational asymmetry, opacity of criteria, absence of auditability and loss of control over one's own consumption experience. Hence the need for categories capable of seeing, beyond the product in the narrow sense, the regimes of promise, access and governance that configure contemporary consumption.

The discussion of risk and externalization, therefore, does not function as a generic prologue, but as an entry into the political economy of platforms. When value is produced in mediating ecosystems, the rationality of minimizing uncertainties and shifting costs tends to be incorporated into the very architecture of the business. The platform becomes simultaneously the place of the offer and the place of administration of the conditions of enjoyment. With this, the possibility of shifting burdens onto the consumer and onto the public sphere intensifies.

From a macroeconomic perspective, Yanis Varoufakis stands out for analyzing what he considers a paradigm shift in the global economic landscape. He argues that the capitalist system is on its way to being replaced by what he calls “technofeudalism”, in which capital no longer presents itself primarily as material property and comes to be concentrated “in the cloud”, that is, in digital assets, online platforms and algorithms. The critique deserves recognition for stressing that this cloud capital, held by those he categorizes as “cloudalists” (our translation of “*nubelistas*”, from the Spanish edition), is characterized by its capacity to reproduce itself without generating proportional extra costs for its owners. Extraction thus expands over those the author describes as “cloud serfs”, subjects who figure simultaneously as consumers and as continuous suppliers of two raw materials essential to the system: data and attention.

From a Brazilian standpoint, Ladislau Dowbor stands out for his critique of what he calls “rentier capitalism”, a transformative system that, in his account, has redesigned global dynamics and marked a significant break with earlier modes of production. According to the author, this evolution can be described in three broad historical

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ocieties, domination fell to landowners, who controlled the

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introduced machines and factories, shifting power to industrial capitalists. In this period, the exploitation of labor tied directly to the production of goods becomes visible, creating a tangible connection between labor, output and public services. The modern digital era, in turn, rests on an economy based on knowledge and information, in which platforms such as *Google* and *Amazon* dominate through informational instrumentalization, which has become the most valuable resource.

Dowbor identifies rentier capitalism as a system in which power resides in the possession and control of assets, rather than in the production of goods. Read in this key, platforms such as *Facebook*, according to the author, exemplify the phenomenon through "demand monopolies", forcing users to depend on certain services because of their broad social adoption. The system, in his account, depends on financialization, a process that decouples money from real economic activity and enables the continuous extraction of wealth. The author draws on examples such as developing nations trapped in debt cycles by exorbitant interest and individuals burdened by expensive credit. Absentee owners, such as *hedge* funds and investment firms, are said to concentrate the financial returns and neglect the social impacts. In this context, Dowbor criticizes the legislative framework of intellectual property, arguing that it has become a barrier to innovation and ceased to operate as an instrument of progress.

Against this background, it becomes possible to shift the focus from the "medium" to the "mode of production" crystallized in platforms. It is not enough to describe technologies and symbolic mediations. What matters is to understand which form of economic organization is condensed in the architecture of these infrastructures and what place it reserves for the consumer and for digital goods. The aim here is to offer vocabulary for treating digitally based businesses not as simple contractual models ("subscription", "*freemium*", "advertising", "microtransactions" etc.), but as manifestations of a common structural arrangement, marked by platform technofeudalism, digital rentierism and a specific form of exploitation of the consumer who, contextually, is also characterized as an incorporated external labor [illegible]-worker").

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Looking at these business categories from this angle, one does not obtain a neutral classification of forms of monetization. One obtains a map of how the functional architecture of digital goods is designed to enable the continuous extraction of value. Each apparently technical option[116] is part of an underlying economic project. The unity of this project becomes more visible when three levels are brought back together. At the macro level, Varoufakis describes platforms operating as cloud technofiefs. At the meso level, Dowbor emphasizes digital rentierism and the toll economy. At the micro level, Marx provides the key to perceiving how digital consumption can function as the invisible labor of a contemporary kind of "informational lumpenproletariat".

The triad is decisive because it allows us to understand why the Immaterial Object of Consumption must be treated as an infrastructure concept, and not merely as a label for digital goods. It makes explicit that the ontological failure of the CDC is not merely conceptual carelessness, but blindness before a mode of production that reorganizes the very form of exploitation.

Articulated, the three dimensions[117] make it possible to reclassify digitally based businesses as architectures of continuous extraction of value, operating on functionally defined immaterial goods. This is a reclassification that provides theoretical grounding for questioning the potential unlawfulness of the intentions and purposes embedded in the *design* of platforms. If the platform mode of production depends structurally on producing artificial scarcity over informational goods and on establishing economic and symbolic captivity over the consumer-worker, that unlawfulness is revealed in the operative purpose with which the business architecture is designed.

The large platforms that operate attention ecosystems (here called cloudalists and subcloudalists) are not limited to offering products or services. They build, around their users, environments of continuous audiovisual distraction. Their business models start from meticulously studied consumption profiles and position the individual within a gravitational field of signs. Games, series, songs, competitive

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ng campaigns and licensed products make up a constellation that accompanies the subject throughout ev

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of the brand and its digital goods, such that it becomes difficult to experience digital life outside the contours of this ecosystem.

Symbols endowed with value in the collective imagination can be captured, recombined and protected under intellectual property regimes that favor the economic exploiter, even though the composition of this symbolic capital depends on diffuse contributions. The asymmetry becomes more evident when one observes that the legal order itself recognizes, in certain segments, remedies of subsequent economic participation. The resale right, granted to sculptors and visual artists, exemplifies a mechanism by which creators retain a limited share in the subsequent economic fruits of their work. The reference is not meant to transplant the institution automatically, but to indicate that the full concentration of gains derived from collectively fed symbolic chains is not a legal inevitability. In attention ecosystems, the social function of intellectual property requires at least that the question be raised again about the limits of the full appropriation of value by a single entity when the economic chain depends structurally on authors, artists, communities and consumers.

The maintenance of models in which a single entity concentrates, by business decision and legal *design*, the totality of gains derived from the economic exploitation of narrative universes built by collective efforts strains the principles of objective good faith and contractual balance. The social function of intellectual property, in a scenario of cloudalists and attention monopoly, requires reconsidering to what extent it is admissible for the exclusive holder to accumulate in full the profits of value chains that depend, structurally, on the diffuse contribution of authors, artists, communities and consumers.

The decisive point is that the illustrative scenario does not describe a sectoral anomaly of entertainment, but a general form of economic organization through infrastructure. The capacity to maintain "nominal ownership" and, at the same time, downgrade the enjoyment bundle through unilateral updating, as well as the power to impose sanctions that degrade reputation, visibility and access, reveals that the [illegible]fers a good, but administers a territory of circulation of signs, [illegible] At this point, the d[illegible]

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effective enjoyment bundle is decisive. On platforms, the formal permanence of the item in the account does not guarantee the preservation of its functional, symbolic or economic value. The object may continue to "exist" for accounting and contractual purposes, while the architecture that gave it utility, distinction or recognition is reconfigured by the supplier.

If in the first part of the discussion the focus fell on technique, media and design as forms of everyday governance, the next step is to make explicit the economic rationality that makes this governance profitable and structural. The anthropology of consumption will enter, along this path, as analytical support for understanding how the visible and the desirable also become economically governed dimensions. Before that, however, it is necessary to show how the architecture of the ecosystem converts dependence and permanence into continuous extraction of value.

NOTES

116. Such as billing frequency, "pass" or "season" format, the nature of in-game currencies, the degree of randomness of rewards, rules on the accumulation and loss of progress etc. ↩

117. Platform technofeudalism (Varoufakis), digital rentierism (Dowbor) and exploitation of the lumpenproletariat (Marx). ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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Within the scope of platform-operated interactive entertainment, the passage to technofeudalism becomes visible when the consumption experience ceases to look like a one-off acquisition and reveals its dependence on an administered territory. The rare cosmetic item, the battle pass and the game's internal economy function as goods while the ecosystem preserves the grammar that attributes value, visibility and prestige to them. When unilateral updates redesign rarity, appearance, effects, balancing or display criteria, the platform shows that the economic core of the relationship lies not in the circulation of a stable commodity, but in continued control over the conditions of enjoyment. What changes, therefore, is not only the content of the product, but the structure of power that makes it possible to impose conditions of participation and to reprice, through technical governance, what the consumer took as acquired.

Drawing on Varoufakis[118], the passage from industrial capitalism to technofeudalism[119] is mobilized as a lens for understanding this shift. “Cloud capital” does not designate only computational infrastructure, but a form of economic power capable of controlling channels of access, circulation, data, visibility and transaction. The platform ceases to act as a simple intermediary between market agents and comes to function as a private territory in which users, consumers, suppliers and creators depend on internal rules to exist economically. Hence the force of the feudal image: consumers and users become “cloud serfs” not because they stop consuming, but because their participation comes to reproduce the very capital that governs them.

player who acquires cosmetics and whose enjoyment is affected possible to see, in macro scale. The platform operates as

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environment, the rules, the updates and the visibility of what acquires value there. “Cloud capital” appears as dominion over access, reputation and permanence, so that the consumer, while retaining formal ownership of items linked to the account, remains subject to the unilateral power to modulate utility, prestige and conditions of enjoyment. The cost is expressed not only in new payments, but also in attention, adaptation, loss of equivalence and continuous dependence on the administered territory.

Rent is extracted not only in the act of purchase, but in the continuous management of the digital territory, where artificial scarcity, update cycles and the reconfiguration of signs reorganize desires and push the subject into new rounds of spending and status recovery. This framing is central to ensuring that technofeudalism is read not as a loose sociological metaphor, but as a description of the same mechanism of private governance that, at the micro level, degrades enjoyment and, at the macro level, sustains rentier extraction through infrastructure.

For Varoufakis, the new system is characterized not only by a “new technology”, but by an inversion of the systemic engine of accumulation, in which profit (*“beneficio”*) ceases to operate as the gravitational center and is displaced by the extraction of rent (*“renta”*), in particular cloud rent *(“renta de la nube”)*, charged as a condition of access to platform environments and to the digital infrastructure that sustains them. The theoretical consequence of this inversion is that the transition cannot be described as an intensification of capitalism, but as a structural substitution of pillars in which markets give way to platforms understood as fiefdoms and profit loses centrality to the rentier logic of extraction[120].

Varoufakis explicitly maintains[121] that technofeudalism should not be understood as an "advanced phase" of capitalism, but as a structural rupture, in which capitalist dynamics would cease to govern contemporary economies and would be replaced by a distinct system. The key to this rupture is not merely technological, but economic-institutional: markets cease to operate as the predominant organizing medium and are displaced by platforms that function as fiefdoms, while profit loses its place as

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cedes centrality to rent, especially cloud rent[122] (Varoufakis 2024, p. 9). In terms of the architectur

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density by asserting that the "pillars" of capitalism are effectively replaced by pillars proper to technofeudalism, articulating "cloud fiefdoms" and "cloud rent" as the explanatory core of a mode of accumulation and domination that reconfigures forms of dependence and access VAROUFAKIS.

Within this frame, Varoufakis expressly rejects nomenclatures of continuity (such as “hypercapitalism” or “rentier capitalism”) because, in his view, they obscure the defining feature of the present, marked by the recentralization of rent and by the transformation of the market into a territory administered by proprietary infrastructures[123]. At the same time, the rupture is not narrated as an appearance *ex nihilo*. Technofeudalism would have been born from capitalist activity itself and would impose itself by historical metamorphosis, preserving the vitality of capital even when the capitalist form ceases to function as the predominant organizing principle[124].

This terminological refusal helps to make explicit that the analytical gain of the formula “technofeudalism” lies in pointing to a change in the predominant type of power. Instead of accumulation depending mainly on the sale of commodities produced in industrial cycles, it comes to depend on proprietary positions over digital infrastructure, over means of access and over the capacity to impose conditions of participation.

In platform games, “conditions of participation” are not a metaphor. They materialize in access rules, visibility regimes, performance metrics, *matchmaking* architecture, progression economy and sanction protocols, all controlled unilaterally. The economic effect is that the environment ceases to operate as a market in the classic sense and comes to operate as an administered market, in which the supplier not only offers goods, but governs the parameters that make these goods exist as value. Enjoyment becomes dependent on permanence under shifting criteria, and extraction shifts from sale to recurring rent, whether through direct charging or through frictions designed to convert time, attention and status into payment.

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ı requires, in the author's own vocabulary, a conceptual

profit and rent[125]

difference, but is a qualitative one tied to the way each is obtained and to the degree of exposure to competition. Profit tends to be eroded by competition, while rent is sustained by a position of control and therefore resists competitive dynamics in a different way VAROUFAKIS.

The point becomes clearer once one observes that a *skin* and its associated content do not operate as a fully alienated commodity, but as a conditional permission to enjoy within a private domain. The platform may preserve the nominal existence of the item in the account and, even so, downgrade its enjoyment bundle by altering its appearance, its effects, its place in the internal economy or the criteria for its social display. In this dynamic, revenue that looks like "profit from sale" behaves as rent from control, since the platform captures value by administering access and by governing the scarcity, visibility and practical equivalence of what is enjoyed. The same pattern reappears in bans and graduated sanctions, which function as forms of functional expropriation and as mechanisms of economic recapture, because they force the consumer to rebuild, through a new investment of time, attention and assets, their reputation, their access and their signs of belonging within the same administered territory.

Hence the central nuance of the diagnosis. Although profit remains a widely diffused social ambition, contemporary accumulation may become decoupled from profits, so that profit[126] becomes almost contingent for the new elite. The axis of economic power comes to rest, more directly, on rentier extraction as the effective foundation of dominion and reproduction of advantage[127].

Varoufakis maintains that the defining axis of technofeudalism is cloud capital, understood as a recent mutation of capital whose ownership reorganizes economic hierarchies and "kills" capitalism not through lack of capital, but through transformation of the dominant capital-form VAROUFAKIS. The author reintroduces a feudal grammar to describe the present, in which the owners of cloud capital figure as new feudal lords, while the rest return to the condition of serfs.

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of traditional productive means and the extraction of profit through the production

and circulation of commodities. In technofeudalism, cloud capital comes to control the channels through which commodities, services, information, reputation and social interaction circulate. For this reason, the author reintroduces the feudal grammar: the owners of this capital assume the position of new lords, while users and economic agents dependent on the infrastructure come to occupy subordinate positions within private territories of access and circulation.

The choice of feudal grammar does not function as a decorative metaphor, but as a description of material dependence mediated by infrastructure and access VAROUFAKIS. Seen this way, the owners of traditional capital do not disappear, but lose strategic centrality when they depend on digital infrastructures to reach consumers, process payments, organize reputation or maintain visibility. Terrestrial capital continues to produce goods and services; cloud capital comes to command the channels through which these goods and services become economically accessible. In interactive entertainment, the same logic manifests itself when content, community, payment, ranking, updating and reputation are gathered in a proprietary ecosystem. The supplier controls the territory in which value is born, circulates and can be degraded VAROUFAKIS.

Varoufakis names the new technofeudal elite as a specific ruling class, and not as a mere set of digital capitalists. By calling the owners of cloud capital cloudalists[128], the author signals a change at the top of the social hierarchy: this is a fraction that, by controlling the infrastructure of access and circulation, comes to hold the capacity to command the system itself[129]. This rise does not appear as mere business innovation, but as a reconfiguration of power[130], by which whoever controls cloud capital also imposes conditions on those who control terrestrial capital, pushing traditional manufacturers, sellers and providers into relations of dependence typical of a revived feudal order.

Within this framework, political economy enters not as an external diagnosis, but as a condition of attribution. If economic power derives from control of infrastructure and from the capacity to impose tolls, injury in consumption need not appear only as explicit non-performance. It may consist in the significant and unilateral degradation of the enjoyme

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permanence, in the reduction of visibility, in the modulation of access or in the reconfiguration of internal equivalences. The legal problem arises precisely because the platform does not merely sell or license content: it governs the territory in which this content has value, circulates and remains enjoyable.

The IOC, in this sense, is the legal-descriptive form of apprehending, at the level of consumption, what technofeudalism describes at the macro level. The decisive distinction, in the argument, is that the enrichment of the cloudalist elite is organized less by profit-oriented competition and more by the recurring extraction of rent associated with the regime of access and infrastructural control.

Varoufakis connects the figure of the cloudalists to the replacement of profit by rent as the engine of the system, and presents this substitution as the criterion that requires abandoning the vocabulary of "capitalism" in favor of a new description VAROUFAKIS. In this frame, the cloudalists reduce conventional capitalists to a status of functional subordination, so that companies and producers are compelled to accept platform dictates and to pay for the privilege of circulating in the digital territory. In parallel, the general population is converted into cloud serfs and cloud proletariat, according to the degree of dependence and capture of activity[131].

The argument gains empirical density when one descends from the macro plane to the letter of the platform contract, where the feudal grammar ceases to be a theoretical figure and comes to operate as the working language of the bond. The figure of the cloudalist, when it crosses from rhetoric into the letter of the contract, reveals a point of legal humiliation that is structural to technofeudalism. The fiefdom is not a metaphor for the digital environment. It is an account. And the account, far from being the consumer's asset, is described as a private space whose "right" of use amounts to a personal and revocable permission, which is not to be confused with property. What one buys is not an object, nor even a service with minimal stability. In practice, one buys a tolerance of access that can be withdrawn, and the withdrawal need not justify itself by any external theory of legitimacy, because the internal language of the lordship suffices.[132]

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contract does not distinguish someone who spent years accumulating signs of

belonging from someone who has just joined, because what is at stake is not the merit of the effort or the expenditure of resources on cosmetic items, but the platform's structure of ownership. The account does not become “more yours” because it received ten thousand hours of dedication over fifteen years, nor because it received an investment comparable to the cost of an entry-level car. If the company decides to discard the user, exclusion does not expel them only from the game. It cuts off access to the territory and to the acquired collection. Aware of such implications, the contract objectively anticipates that the loss may occur without refund when the company considers, by its own internal criteria, that there was sufficiently just cause to terminate the bond RIOT GAMES.

Cloud rent appears here in the form of civilized blackmail. Riot states that virtual content is a “personal right” and that there is no user ownership over the account, and further records that “all rights” to this account “will always be” Riot's RIOT GAMES. This means that the consumer's investment is stacked within a territory whose title never belongs to the vassal. Time, attention, reputation, collection of signs, items and currencies exist while the fiefdom is “open”, and the fiefdom is open as long as governance wants it to be. The contract, then, does not merely describe precariousness. It naturalizes it, by denying monetary value to virtual content and by prohibiting conversion into “real world” money, as if the accumulated experience itself could be legally reduced to something without value, even when it was acquired for a price.[133]

When the technofeudal thesis calls for a moment of cruelty, it does not come from moral discourse about behavior. It comes from the written mechanism of expropriation. Riot provides for termination and suspension based on what it calls a “reasonable” determination, and lists hypotheses that include violation, but also what it itself describes as the “best interest” of the community or of its services RIOT GAMES. The formula is significant, because “reasonable” and “best interest” are not neutral concepts here. They function as words of rhetorical containment that disguise the hard center of the regime. It is not the community that defines the threshold, nor a [illegible] justice, nor a robust adversarial process. It is the lordship that [illegible] imanence ceases to be [illegible]

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The contract also speaks of "just cause", but technofeudalism appears precisely in the way this expression operates. "Just cause" there is not the conceptual institute of an external dogmatics. It is "just cause" in the operative sense of the fiefdom, that is, whatever the lordship considers sufficient, at that moment, under its own reading of its rules. Once this "just cause" is triggered, the text is explicit as to the result. Once the account is terminated, the user will no longer have access to the account, nor to the associated data, nor to the Virtual Content, including in-game currency, and the consequence is definitive loss without refund when the lordship considers that there was a reason RIOT GAMES. If Varoufakis describes cloud rent as a toll for existing under someone else's infrastructure, the contract describes the disciplinary counterpart. The fiefdom does not expel only the vassal's body. It confiscates the collection the vassal deposited in the territory, and still calls this contractual normality.

The threat need not be carried out in order to govern. It needs to be credible. And Riot itself helps make it credible by publishing rules of permanence that make clear that exclusion can be total, even on a first occurrence, and that permanent suspension exists as a real possibility. In the Community Pact, it states that it may restrict access to features or suspend participation, and admits permanent suspension even on a first occurrence RIOT GAMES. In an official *League of Legends* support document, the language is even more direct in admitting that negative behavior "may result in a permanent ban at any time" and "without prior warnings or suspensions" RIOT GAMES. Cloud rent, from this angle, is also rent from obedience, since the experience takes place under a regime in which permanence is always provisional and in which the provision can be withdrawn suddenly.

The final effect is an institutional design in which the account is a revocable fiefdom and the consumer is converted into a conditional occupant. The platform reserves for itself the power to terminate, automatically cancel licenses, suppress access to content and declare that the loss generates no refund, all under categories that sound legal, but function as the internal vocabulary of private governance RIOT GAMES. The negativity of the model lies not only in the fact that the door can be closed. It lies in [illegible] tle" calls the key a "license", the confiscation a "termination", [illegible] enience as "best int[illegible]" 134

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The contract observed is not a pathological exception. It is the legal form in which the technofeudal structure states itself in writing, and for this reason it makes it possible to recognize, at the macro level, the same institutional design that organizes the ecosystem. Therefore, in the games ecosystem, this structure can be observed particularly clearly precisely because enjoyment does not occur through the simple acquisition of the "product" in the classic sense.

When "acquiring" a game, the player enters as assignee into a *software* use contract, while at the same time submitting to intermediate contractual instruments entered into with digital sales and maintenance platforms, through which the good is distributed and continuously administered. The consumer relationship, thus, is born already coupled to a private infrastructure that controls the access channel, continuity and practical conditions of enjoyment, converting the game into a governed environment and not a one-off delivery.

This coupling is reinforced by the predominant contractual form in the industry itself, exemplified by the case under study and marked by mass contracting, adhesion and consumption on a global scale, with general and generic contracts aimed at binding suppliers to a multiplicity of consumers in different jurisdictions. In this architecture, the instruments that structure the consumer-supplier relationship operate as dynamic realities oriented toward an *animus* of continuity of the company in the market and of the consumer-company relationship, shifting the center of the experience from "buying and owning" to "adhering and remaining". It is this feature that gives the figure of the cloud vassal an empirical body, since access and enjoyment prove inseparable from the infrastructural and contractual mediation that organizes the very space in which consumption takes place.

The very object delivered by the interactive entertainment industry already tends to require this continuous governance, since the *game* takes shape as a complex audiovisual experience and as an organized compound of multiple intellectual goods and related services, exploited through an equally complex contractual network. This reinforces the point that recurring monetization is not a mere commercial nstitutional structure typical of a form of consumption whose good is inseparable from the ecosyste

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At the same time, Varoufakis[135] introduces an important nuance. He recognizes that the cloudalists may appear, at first sight, to be intensified capitalists, because they needed to invest massively in technology and build, from scratch, the material conditions of the new power. Even so, he insists that the purpose of the investment is no longer to compete within capitalist markets, but to make the market dispensable in practice, by replacing it with private domains of access and with rent extraction.

For Varoufakis, the concept of cloud capital[136] constitutes the core of technofeudalism. The force of this category does not lie in suggesting something ethereal, since the cloud is a metaphor resting on a massive material base. Cloud capital requires, on the one hand, a planetary physical infrastructure, composed of data warehouses, servers, sensors and cables, which makes possible the continuous capture and processing of interactions.

On the other hand, it is also defined[137] as an accumulation of networked machinery, communications *hardware* and, inseparably, AI-based *software* and algorithms, that is, a technical-economic architecture capable of automating decisions and modulating conduct at scale. The centrality of cloud capital, therefore, is not only quantitative, but qualitative, since it is a produced means of command and behavior modification, whose economic power derives from its infrastructural position.

In this arrangement, the reproduction mechanism of cloud capital differs from industrial capital because it can dispense with wage labor in the classic sense. It reproduces itself, to a large extent, by imposing the free contribution of users who, by interacting, posting, rating, circulating and remaining, feed the very stock of cloud capital[138].

Varoufakis makes this point even sharper by maintaining that one of the singularities of the system (which he describes as a "true revolution"[139]) is to convert billions of people into cloud serfs willing to "work for free" to reproduce cloud capital as profit for its owners. And, when he descends to the empirical level, the author radicalizes the thesis of value. The most valuable portion of the stock of cloud capital would lie

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interactions of every kind, which become the raw material of platform power. The capture, therefore, is not only of "data" as an abstract object, but of patterns of behavior and interaction that sustain the capacity to command and modulate the environment.

At the same time, the author recognizes that this transformation may be poorly described by inherited labels, such as hypercapitalism, platform capitalism or rentier capitalism, because, for him, these terms do not capture the great transformation under way. The nuance is that not all elements of the social system change at the same time, since capital, labor and money persist, but come to operate under a distinct arrangement of coordination and command. Even so, Varoufakis insists on the decisive criterion that this is a system driven by rent, and not by profit, which would justify the need for a new concept to describe it.

For the author, digital platforms are not "digital markets" in the proper sense, even though they may present themselves as such. They must be read as contemporary fiefdoms because they replace the characteristic medium of capitalism (the decentralized market) with a private domain of access, in which economic coordination ceases to result from open interaction between agents and comes to be administered by a proprietary infrastructure. The feudal image gains density precisely because it describes a regime of participation. One enters, circulates and remains under conditions imposed by the platform's lordship, which converts access into a systematic source of extraction.

The decisive difference, for Varoufakis, is that the platform-fiefdom manages to recentralize what the market would disperse. The mechanism is technical and political at the same time, since, by isolating buyers from one another and sellers from one another, algorithmic logic concentrates, in a single center of command, the power to connect, order and rank exchanges. The opposite of the decentralization that defines the market as a form. Thus, what looks like "competition" within the environment operates under a regime of visibility, ranking and permissions, in which the platform not only intermediates, but governs the territory.

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consumption. The center of power lies

the point of passage. The fiefdom is, above all, a regime of access. Whoever controls the infrastructure controls the conditions of entry, permanence and circulation, and this includes both technical decisions (architecture and protocols) and administrative decisions (internal rules, sanctions, moderation, *enforcement* etc.). The rent extracted depends not only on selling something, but on administering the territory in which economic and symbolic life takes place.

This key becomes visible when Varoufakis treats[140] certain ecosystems (*Amazon*, *Google* and *Meta*) not as peripheral examples, but as limit cases that make the logic of technofeudalism visible. He thus describes the practical replacement of the market by private domains of access, the reproduction of cloud capital through the capture of activity and information, and the extraction of value through rent and tolls rather than through competitive profit. *Amazon* appears as the prototype because, once inside its environment, the user no longer operates in a "market" in the capitalist sense, but in an administered territory, in which buying and selling take place under proprietary governance. The same grammar recurs in the relationship with sellers. This is not neutral intermediation, but the grant of operational space in exchange for recurring fees, watched over by an algorithmic apparatus that disciplines and collects. And, when Varoufakis invokes devices such as *Alexa*[141], he reinforces that the asymmetry is not only economic, but also existential. The user is reduced to a minimal node within a cloud-based network of command, operating under forces beyond their control.

Google[142], in turn, shows that technofeudal power is also consolidated through infrastructures of operating system, store and distribution, capable of turning developers and producers into dependents of the channel. In the description of the construction of mobile ecosystems, the app store emerges as a pole of attraction for external production that makes it possible to extract a fixed commission as a form of access rent VAROUFAKIS. Moreover, *Google* illustrates the surveillance and prediction arm of cloud capital. Knowing what one sees, what one reads, what one buys and whom one meets is not a detail, but a condition of command over behavior and

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ıe *Huawei-Android*[144] case thus functions as a geopolitical marker

astructure. Contro

dispute between States and turns technological restrictions into an instrument of a digital cold war.

Meta (owner of the platforms *Facebook*, *Instagram* and *WhatsApp*), for its part, appears as a laboratory of the reproduction of cloud capital through user-generated content and traces: posts, photos, videos and interactions are treated as a decisive part of the stock that sustains platform power. Here the examples do not operate as mere illustration. They are the very mechanics of the argument, because it is the user's continuous production of material and of patterns of behavior that allows the reproduction of the system. It is also for this reason that competition between platforms does not behave like market competition. It approaches a migration between fiefdoms that offer distinct experiences within the same logic of servitude[145]. Finally, Varoufakis reinforces the anthropological dimension of this capture by describing the decomposition of the liberal individual into fragments of data and manipulable identities, converting subjectivity into matter for algorithmic governance.

In this picture, exploitation also changes shape. Varoufakis likens the relationship between platform and sellers to the old relationship between suzerain and vassal, because the platform grants operational spaces within its own territory and charges, in return, a recurring fee, while an algorithmic apparatus watches, disciplines and collects as the administration of the fiefdom. The image does not function only as a descriptive device. It is formalized, in the conceptual apparatus of technofeudalism, by the figure of the capitalist vassals, producers who remain capitalists in production, but whose ability to sell comes to depend on access to proprietary digital territories.

In the ecosystem observed, the figure of the cloud vassal expands the horizon beyond the traditional figure of the consumer who pays to play for their own final benefit. It encompasses all agents whose income, visibility or economic viability depend on access to an environment governed by someone else. The *streamer* who produces content and monetizes an audience, the *pro player* whose career is conditioned by rules, calendar and permissions, the *coach* who sells pedagogical services about a competitive circuit, all operate under t ven advertisers and sponsors who buy exposure in the

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because their activity exists only while the platform keeps the channel open and recognizes the conditions of participation.

It is, moreover, a layered vassalage. The same agent may depend simultaneously on the owner of the ecosystem and on intermediaries that control distribution, visibility, monetization, the circulation of credit and the processing of payments. The result is a network of concurrent private subordinations, in which multiple gateways accumulate and raise the cost of exit. The more agents depend on this infrastructure to exist economically, the more the toll ceases to be merely a price of access and comes to function as a condition for remaining in a private market.

The defining feature is dependence on the channel. Companies that previously competed for consumers on price, quality and physical distribution now compete for positions of visibility and conditions of access within the fiefdom. Terrestrial capital remains, but no longer commands the gateways of consumption. A significant part of the economic cost then shifts from production to mediation: one pays to appear, reach, convert and maintain presence. The platform, by arbitrating passage, transforms intermediation into recurring rent.

This reordering appears as hierarchical conversion. The dependence of the so-called capitalist vassals can be described as dependence on the channel, since companies that previously competed for consumers on price, quality and physical distribution come to compete for positions of visibility and conditions of access within the fiefdom. In this scenario, a relevant part of the cost ceases to be a cost of production and comes to be a cost of mediation, paid to appear, to reach and to maintain presence, while the platform, by arbitrating passage, transforms intermediation into a source of recurring rent.

Varoufakis VAROUFAKIS maintains that the category of capitalist vassal is not limited to the small producer. The decisive criterion is structural dependence on the channel, which can reach large and small agents alike whenever sale, visibility and monetization depend on ecosystems controlled by third parties. The interest for lies in the form of appropriation: part of the net income is captured by whoever controls

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in which the transa[illegible] 146 The [illegible] (2024,

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p. 112) sharpens the diagnosis by desc[illegible]

technique of government, since the mere removal of a link, or a drop in visibility in central mechanisms, can make a producer disappear from the digital world, amounting to an aseptic technical terror that sustains the discipline of the fiefdom[147]. Even so, Varoufakis preserves a relevant nuance. Profit does not disappear as an ambition of economic agents and as a cultural horizon of advancement, but its systemic status changes, since accumulation may become dissociated from profit as its central fuel and shift the focus to the recurring extraction associated with the regime of access.

In this way, the extraction of value would occur through two main fronts. On the one hand, the "cloud serf" users[148] assume a structural position in which the majority of humanity once again contributes to the wealth and power of the new ruling class through unpaid labor, now inscribed in the ordinary routines of use and participation in proprietary digital environments.

Servitude, here, is not defined by direct physical coercion, but by material subjection mediated by infrastructure and access, since the user remains within the fiefdom and permanence itself is converted into the production of value for third parties, in a regime in which rent is extracted through the administration of the territory and the continuous capture of activity. This shift, however, does not eliminate wage labor. It reconfigures the power of command over the workforce by shifting it to cloud-based algorithmic governance, intensifying rhythms, fragmenting tasks and increasing the vulnerability of the working class under its control, which he calls the "cloud proletariat"[149].

Precarization appears clearly when task work and the so-called *gig economy* - the economy derived from the well-known phenomenon of "uberization" - are coupled to the fiefdom. Platforms connect their digital territories to providers and charge a fixed commission on earnings, converting the circulation of precarized labor into cloud rent[150]. Varoufakis radicalizes this diagnosis by describing the so-called "algorithm-bosses" as command systems capable of reducing paid hours, accelerating [illegible] exhaustion and dismissing workers for "inefficiency", reinforcing [illegible] ine through the pe[illegible][151]. On the other hand, traditional companies ("capitalis[illegible]

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interact with consumers, thereby perpetuating a deep and inexhaustible system of dependence.

Technofeudalism, however, does not precarize only by reducing guarantees or intensifying rhythms. It reorganizes the material conditions of collective action by fragmenting the working class and diluting traditional points of cohesion. This fragmentation appears, first, in the coexistence of distinct regimes of exploitation. Increasingly precarious wage workers make up a cloud proletariat, while almost everyone acts as a cloud serf, by contributing freely to the accumulation of cloud capital and to the consolidation of the cloud fiefdoms that replace markets VAROUFAKIS. The consequence is a class spread across different categories, intensities and bonds, shifting the axis of resistance from the classic workplace to a diffuse ecosystem of mediation and access.

Next, Varoufakis points to a directly anti-union vector. The automation of command and management by cloud-based systems creates "algorithm-bosses" capable of redesigning chains and routes to avoid points where unions could organize workers, to the point where unions are not even in a position to form[152]. At the same time, discipline comes to operate through opaque and unappealable decisions, producing a "Kafkaesque spiral[153]" VAROUFAKIS of dismissal without any human counterpart. Labor conflict is thus shifted to an environment in which control is calculated, anticipatory and embedded in the very logistical design of the system.

Varoufakis identifies an additional material barrier, since the physical isolation between cloud serfs and cloud proletarians, mediated by personal screens and by devices that supervise work, reduces opportunities for encounter and hinders the construction of solidarity and collective action[154]. However, he introduces a relevant nuance. The same cloud capital that isolates also provides potential rebels with the capacity to create coalitions and act through the cloud itself, opening the possibility of resistance[155]. Hence the proposal of a broad coalition, bringing together the traditional and cloud proletariat, cloud serfs and even part of the capitalist vassals, as ːening technofeudalism[156].

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Varoufakis shifts the decisive stock of cloud capital to what users themselves produce, feed and replicate daily: content, records, interactions, ratings, traces, movements and patterns of behavior. The point is not only that data exist, but that the system depends on the daily reproduction of this material to maintain and expand its capacity for command, prediction and monetization[157]. Unpaid labor ceases to be an accident and becomes a constitutive component: users produce, outside the market as a form, the most valuable elements of cloud capital.

Varoufakis adds an uncomfortable nuance: this servitude is often voluntary and even pleasurable, which does not make it any less structural. On the contrary, it tends to stabilize the regime, because daily adherence reproduces the very capital that sustains the platform. Servitude is also dependence on access. Users remain bound to devices and environments that come to direct their conduct and choices, exercising power of command over ordinary life VAROUFAKIS. Ultimately, the capture of identity, social memory, contacts, histories, files and bonds makes exit costly, if not unfeasible, without significant loss[158].

In dialogue with Marx[159], the decisive difference lies in the mode in which subordination appears. It no longer needs to present itself only as the discipline of labor in the factory, with time, space and command concentrated. On platforms, capture spreads through ordinary life, converting attention, interaction, sociability and traces into inputs for the reproduction of cloud capital. The user is not a wage worker in this circuit, but participates in the production of the value that governs them. Exploitation becomes harder to perceive because it appears as use, leisure, personal expression or convenience.

Varoufakis maintains that technofeudalism not only shifts accumulation to rent, but dismantles the political conditions that made the social-democratic repertoire viable. If, in industrial capitalism, social-democratic governments could arbitrate conflicts because they counted on strong unions and on industrialists sensitive to the regulatory threat, in the new scenario the cloud elite ceases to fear this kind of [illegible]. The cloud proletariat tends to be too weak to organize robust unions, [illegible] ot even perceive th[illegible][160]. The consequence is

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that the typical distributive bargain (regulation, compromise and taxation) loses its material base.

In the same movement, Varoufakis argues that classic tools of economic regulation begin to fail because they do not fit their object. Price regulation, for example, becomes irrelevant when the key services to the end user are "free" or the cheapest on the market, because the central extraction depends not on price margins, but on tolls and rents charged for access and intermediation[161]. In parallel, the classic model of breaking up monopolies (in the manner of the *Standard Oils*[162]) would lose technical and political applicability. The question of "how to divide" cloud conglomerates is not decorative rhetoric, but indicates that the architecture of cloud capital cannot be broken up the way "terrestrial" physical capital was.

For this reason, Varoufakis states directly that, under this arrangement, social democracy becomes impossible[163]. The impossibility is not moral, but structural. The new regime of power captures the space of decision and shifts the axis of conflict, including through political dynamics that can neutralize the redistributive agenda while keeping intact the extractive power associated with cloud capital[164]. In this reading, the party system may become stuck on a board in which the central forces and their alternatives end up subordinated to the new elite, reorganizing the political dispute under technofeudal dependence.

Even so, Varoufakis identifies a point of regulatory pressure that the cloud lords would genuinely fear. It is interoperability, understood as the possibility for the user to migrate between fiefdoms without losing data, histories and collections, that is, without paying the exit cost that sustains dependence[165]. Here, the target is no longer "price" or "size" but the design of access and portability, that is, the mechanism that transforms infrastructure into recurring rent.

The two fronts of extraction are complementary and mutually reinforcing. The more the user remains and interacts, the more valuable access to them becomes; the more companies pay to reach this user, the more resources the platform has to intensify ıtion, personalization and segmentation. The result is a closed

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circuit in which attention, data and payment for visibility feed back into one another, converting everyday circulation itself into the foundation of the fiefdom's rent.

This picture echoes Marx's classic intuition about the asymmetry between those who control the conditions of production and those who depend on them to participate in economic life.[166] In technofeudalism, control is exercised not only over the factory, but over the infrastructure of access and over the rules of circulation. The legal-economic point of interest here is that dependence ceases to be only wage dependence; it also becomes dependence on permanence, visibility and reputation within private systems.

In regulatory terms, the point is not that traditional tools "disappear", but that they miss the target. Measures designed for markets in corporeal goods and industrial chains have difficulty reaching transnational structures organized around control of infrastructure, closed ecosystems and technical standardization. The problem is no longer only to repress isolated conduct; it comes to involve intervening in the design of access and dependence, where rent is generated.

When Varoufakis speaks of the obsolescence of traditional instruments, the point can be read as a displacement of the regulatory target. Measures designed for markets in corporeal goods and industrial chains face difficulties in reaching transnational structures that operate through control of infrastructures, closed ecosystems and technical standardization. The question is no longer only to punish isolated conduct, but to intervene in the institutional design of access and dependence, where rent is generated.

In Varoufakis, the rise of technofeudalism is presented as a double political-social effect. On the one hand, there is concentration of power in the owners of platforms and of cloud capital. On the other, there is the consequent explosion of inequality, accompanied by democratic erosion and corrosion of institutional trust. The argument starts from a reconfiguration of classes in which the elite owning cloud capital becomes the dominant pole, while the rest of society regresses to positions of

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ding through universalized forms of exploitation based on rent .[167]. In this framin

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product and comes to appear as a struc

itself functions as the engine of deepening inequality. Varoufakis further adds a relevant historical inflection, by suggesting that the recent increase in inequality does not derive only from the rich growing "faster", but also from a picture in which incomes at the bottom fall while financialization and large corporations accumulate gains, reinforcing the asymmetry[168].

On the democratic plane, erosion does not appear only as "capture of the State" in the classic sense, but as a reorganization of the subject and of public space. Varoufakis describes the collapse of the autonomy of the liberal individual when cloud capital comes to decompose identity into fragments of data and to manipulate choices, producing subjects less "owners of themselves" and more possessed by infrastructures of behavioral modulation[169]. In this environment, negative emotions become functionally profitable. Intolerance and hatred come to be described as intrinsic to the algorithmic economy, because extraction mechanisms tend to optimize rents precisely where attention is fixed by frustration and conflict[170].

Institutional corrosion, in turn, manifests itself in two layers. The first is macro. While precariousness deepens, democracies kneel before the wishes of capital, in a scenario of asymmetry that empties the promise of effective popular government. The second is micro-infrastructural, since platforms hold users' digital lives hostage, including contacts, histories and collections. This practical capture makes regulation politically more difficult, because leaving the fiefdom entails substantial losses for citizens themselves and thereby limits the reach of traditional institutional responses. Ultimately, Varoufakis rounds off the diagnosis[171] with a provocative formulation, suggesting that one of the few actors capable of imposing limits on the cloud lords may emerge from a non-liberal context, which functions as a denunciation of the inability of Western democracies to contain technofeudal power.

Especially relevant to the central discussion of this work is the concept of demand monopoly addressed by Varoufakis , because it names a form of power that does not come down to monopoly "of supply", nor to the formal exclusivity typical of classical [illegible] consists, rather, in the capacity to capture and govern the path

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Although Varoufakis does not stabilize this diagnosis solely through a traditional "competition" vocabulary, he provides instruments[172] to understand it also as power on the demand side, mobilizing categories such as oligopsony and monopsony[173] to distinguish structures of concentration that operate less through price and more through control of the conditions of the encounter between supply and demand.

In the appendix[174] to his work, when articulating the notion of monopsony rent in the labor market, the author reinforces this structural intuition, since the asymmetry on the demand side, marked by few employers, makes it possible to capture surplus by compressing wages below the exchange value of labor and thereby converts purchasing power into extraction.

In this sense, the demand monopoly operates as a monopoly of organized access. Endowed with the monopoly of attention and armed with the data produced within their ecosystems, the cloudalists come to erect entry barriers that operate not only through legal impediment, but through the practical closing of the routes of discovery, recommendation, payment and sociability, converting access to the public into a prerogative administered within the digital fiefdoms. The decisive point is that, by replacing markets with cloud fiefdoms, power is not limited to charging more, as a classic monopolist would, since it comes to administer the very possibility of choice, that is, the form and conditions in which buyers and sellers meet.

For this reason, Varoufakis insists that even the worst markets still preserve some degree of horizontal interaction (buyers can exchange information, form associations and even organize boycotts) whereas, in the world of the platform, algorithmic mediation blocks this common space and suppresses minimal counterweights, isolating demand and steering it along internal tracks[175].

The platform tends to concentrate, in one and the same environment, the mechanisms of visibility (search, *ranking*, algorithmic curation), of transaction (payment, logistics, marketplace) and of bond (network, reputation, communication), so that "competing" comes to mean disputing exposure under unilateral rules and defined by the lord of the fiefdom himself. Here, isolation is not a side effect, but algorithmically constr

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participate in a public space of exchange and comes to circulate alone in a private territory whose architecture prevents the lateral communication typical of the market and recentralizes coordination in the owner. In consequence, demand is not only met, but organized and steered.

This dominion over demand is further projected as behavior modification. In describing connected devices and systems, Varoufakis maintains that cloud architecture acquires the capacity to direct perceived reality and to guide choices, that is, to exercise command over the user, shifting recommendation into a government of desire[176]. The circuit closes when the platform learns and, at the same time, conditions. It selects stimuli, exposes the user to images, texts and videos to shape preferences and, in this recursiveness, turns experience itself into a method of capture[177].

Freedom of choice, therefore, does not disappear as an abstract possibility, but becomes more expensive in practice. The demand monopoly is stabilized by switching costs and by material barriers to exit, since there is no need to prohibit competitors; it is enough to make migration burdensome by holding collections and bonds hostage, so that formal freedom to leave exists, but material freedom becomes severely more costly.

A direct development of this demand monopoly, still little explored in traditional legal language, is the capacity for internal inflationary control of the ecosystem. When the platform concentrates access, retains collections and bonds and controls the means of transaction, it not only influences prices, but comes to administer the very regime of price formation. By defining the catalog, modulating scarcity, managing windows of opportunity and operating internal currencies, bundles and conversions, the supplier comes to calibrate the general level of values charged, gradually raising price references and shifting anchors of acceptability without facing the discipline typical of markets with open supply and demand. Inflation, here, does not derive from material scarcity, but from economic governance by design. The ceiling ceases to be an impersonal market limit and comes to be the consumer's

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, measured and tested by the supplier itself, in an environment in

which exit is burdensome, external comparison is hindered and the auditability of the equivalence between expenditure and delivery is structurally reduced.

Internal inflationary control, in this type of ecosystem, is not only an effect of economic *design*. It is also an effect of writing. Riot does not describe in-game currency as a simple neutral medium of exchange. It treats it as part of a closed circuit, whose equivalence can be recalibrated unilaterally. The terms admit that, "sometimes", the company may alter the purchasing power of the Game Currency, including by increasing the number of coins needed to acquire virtual products such as *skins*, and place this movement under the generic promise of notice and progressiveness RIOT GAMES[178]. Under technofeudalism, this is the anatomy of the toll. The platform not only sells, it administers the internal regime of value, and does so from the point of view of the lordship, that is, with the power to redefine what the currency buys.

There is a second step that makes the picture darker than mere repricing. The contract expressly denies any value attributed to data residing on servers operated or controlled by Riot, including Game Content and Virtual Content associated with the account[179]. The denial is not symbolic. It is functional. If the collection is legally described as having no value, internal inflation and the loss of purchasing power come to be treated as a natural variation of the fiefdom, not as the deterioration of an economic position relevant to the consumer RIOT GAMES. The result is that the consumer finds themselves trapped in an economy in which the unit of account and the recognition of value are defined by the supplier itself, and the supplier further reserves the power to say that, in the last analysis, it is worth nothing[180].

Technofeudalism also appears in the way the contract transforms experience into a risk assumed by the user, and this movement is coherent with the toll economy. In a disclaimer clause, Riot states that the Services are provided "as is" and "as available", without warranties, and that the user assumes full responsibility for use RIOT GAMES[181]. The fiefdom presents itself as indispensable infrastructure and, at the

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shield itself as if it provided only a contingent availability, which

y, reliability or qua

Finally, the castle tries to limit the reach of the response for harm to a metric that, in the world of administered objects, is almost a cruel joke. The limitation clause provides that total liability may be limited to the amounts paid by the user in the 12 months preceding the arising of the cause, and further excludes unforeseeable losses and indirect damages, except to the extent that it would be illegal to do so RIOT GAMES. The closure is technofeudal par excellence. The platform reserves the power to govern value, currency and access within the territory, but tries to downgrade the civil response for losses to a calculation that ignores precisely what makes the fiefdom efficient, which is prolonged accumulation, dependence and the cost of exit.

In this context, it is appropriate to distinguish precisely between the lawful formation of prices under a competitive regime and a usurpation of pricing power through governance. It must be recognized that certain agents may, often legitimately, act as price-setters when their position derives from a verifiable combination of recognized innovation protected within the limits of the system, consolidated reputation and competitive contestability, that is, the real possibility of substitution by competitors and of consumer migration without prohibitive costs.

In material markets, price formation tends to remain subject to external brakes because demand finds alternatives[182]. In these markets, comparison is viable and competitive discipline operates as a limit, even when there is differentiation through trademarks, patents, industrial designs or other intellectual property rights legitimately consolidated under the international trade regime. What is observed, however, in immaterial consumption governed by a platform, is an inversion of logic. The supplier does not limit itself to competing within a market. It designs the very world of reference in which consumption occurs, controls catalog, visibility, rules of circulation, practical unit of account and conditions of permanence, and then comes to exercise, simultaneously, functions analogous to those of the market and of normative authority, defining on its own the level of prices and the pace of internal inflation.

Skip to content tion of the position of price-setter without the counterweights that legitimize it, since exit is burdens

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hindered (potentially made impossible) and the value of the object depends on parameters controlled unilaterally by the supplier itself. The result is an escalation in which the cost of exit grows and captivity is consolidated. In extreme cases, the threat of losing belonging, reputation and perceived utility may lead the consumer to accept growing expenses or economically disadvantageous conditions to preserve their position in the ecosystem. The rationality of staying, in this picture, no longer derives only from the objective value of the item, but from the symbolic, social and functional cost of disconnection.

The consequences do not appear as a list external to the concept, but as its unfolding. There is erosion of the effective power of choice, because navigation takes place along previously configured routes. There is expansion of extraction grounded in unpaid labor, insofar as data and attention become a recurring condition of participation. There is, further, reinforcement of political asymmetries, because control of the informational flow and of visibility can hinder social organization, resistance and contestation. The platform does not compete only on price: it defines the conditions of the encounter, the switching cost and the forms of exposure.

The geopolitical dimension, in this context, constitutes an enlargement of scale of the same problem. If the economic territory comes to be the cloud, disputes between States tend to be reorganized around infrastructures, standards and monetary-technological regimes capable of sustaining or blocking transnational digital ecosystems. The legal interest of the reference does not lie in reconstructing a diplomatic history, but in recording that economic sovereignty also comes to be exercised through technical architectures and proprietary regimes that cross borders, reconfigure dependencies and strain classic instruments of regulation.

Varoufakis places this new cold war[183] at the heart of technofeudalism by maintaining that the consolidation of cloud capital reorders interstate competition in terms of infrastructural hegemony. The axis of conflict[184] shifts to the command of digital ecosystems, payment regimes and currencies compatible with technofeudal extraction. The tendency, for the author, is the bifurcation of the world system into superfiefdoms, with events such as the freezing of Russian reserves serving as turning points rega

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monetary channels controlled by another power[185] VAROUFAKIS. At the same time, the intensification of alternatives, such as digital currencies, appears as a strategy for bypassing international transfer channels controlled by the hegemonic power[186]. Finally, the author suggests global distributive effects, with Europe and the Global South pressed to choose between territories, standards and currencies, at the cost of lost autonomy and increased vulnerability[187].

In conclusion, Varoufakis frames the "escape" from technofeudalism not as an incremental package of regulatory corrections, but as a change of regime. A passage to "another reality" (which he also names technodemocracy), founded on the socialization of the decisive instruments of production, distribution, collaboration and communication. The axis, therefore, is not to "contain the excesses" of platforms, but to reconfigure property rights and centers of decision so as to dismantle the logic of rent and command proper to cloud capital[188].

On this horizon, resistance takes the form of radical democratization of the firm and of labor. Varoufakis proposes democratized companies in which the bond of participation is not a negotiable shareholding, but a political belonging. Each worker would receive a single inalienable share, with one vote, so that internal governance would become a mechanism of collective decision and would reduce the structural separation between labor and corporate command[189].

The same reasoning extends to the infrastructural foundations of technofeudalism. Varoufakis treats land and cloud as commons. The idea is to remove the capacity for rentier extraction that derives from exclusive control over physical territory and over digital territory, that is, infrastructure and data. In the alternative design, he imagines local governance arrangements such as municipal associations capable of administering land use and redistributing rents to finance housing and social provisions, connecting planning, property and distributive justice[190].

On the strictly digital plane, Varoufakis proposes an architecture of digital rights and remuneration to replace the "deception" of free services. The core is a Digital Bill of :he individual the choice of which data to sell and to whom combined with a micropayments platf

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monetization from surveillance to a regime in which data and consent come to have explicit political and economic form[191].

Finally, interoperability appears as a nerve point feared by the cloud lords because it reduces the cost of exit and weakens the fiefdom's power of lock-in. By allowing migration between platforms without substantive loss of data, collections and histories, interoperability attacks the mechanism that transforms dependence into recurring rent; for this reason, it functions, in the argument, as a technical condition of possibility for any effective democratization of the ecosystem.

For all these reasons, Varoufakis concludes his study with the view that technofeudalism does not represent a transition of capitalism, but rather a complete and effective paradigmatic transformation that, in turn, will require new forms of social and political organization. Confronting the emerging system will require a deep understanding of its structural dynamics and the proposal of solutions that can rebalance relations of economic and social power and thus promote a more equitable and democratic future.

With the macroeconomic perspective of the technofeudal system established, the next step is to show how the same reality is expressed, through another theoretical lens, as an economy of rentierism and of demand monopoly. In Dowbor, the core is not the cloud as fiefdom, but the control of informational and financial circuits capable of imposing recurring extractions, not as market price, but as systematic rent. It is this passage that makes it possible to translate, in dogmatic terms, the vulnerability intrinsic to immaterial objects of consumption as an interpreted dimension of the factual vulnerability of Article 4, item I, of the CDC, justifying reinforced duties of transparency, loyalty and information. It also prepares the recognition of platform *design* as a potential unlawful act when the very architecture of the service is designed to exploit, repeatedly, the consumer's inability to audit the promised functional value.

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118. In the work *Tecnofeudalismo: o sigil*
Varoufakis analyzes the concept of technofeudalism as a phenomenon of total

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structural reconfiguration of global socioeconomic dynamics on the contemporary plane. Originally titled in the Spanish edition *Tecnofeudalismo: el sigiloso sucessor del capitalismo*, the version of the work actually consulted for this research, the work is alternatively titled “Technofeudalism: what killed capitalism” (our translation) in its English edition *Technofeudalism: what killed capitalism*. ↩

119. For the author, technofeudalism, a concept popularized by the French economist Cédric Durand in his work *Techno-féodalisme: Critique de l'économie numérique* ("Technofeudalism: Critique of the digital economy", in our translation), emerges as a paradigm capable of redefining our understanding of the bases of the global socioeconomic system, representing not only a transition of capitalism, but a structural rupture with its fundamental principles. Varoufakis mentions Cédric Durand's book as one of the works that contributed substantially to the debate on the impact of big technology companies. In this sense, the author recognizes that Durand and the American Shoshana Zuboff, PhD in Social Psychology from *Harvard University*, professor emerita at *Harvard Business School* and author of the book “The age of surveillance capitalism: the fight for a human future at the new frontier of power” (“A era do capitalismo da vigilância”, in the Brazilian edition), helped intensify discussions on the power of the so-called Big Techs. Thus, Varoufakis agrees with Durand's and Zuboff's critique of surveillance capitalism's use of mechanisms of massive data collection to strengthen the monopoly of the technology giants. However, Varoufakis argues that Durand's and Zuboff's analysis does not go deep enough, believing that the problem in question lies beyond the mere increase in the market power of such companies. Thus, Varoufakis's divergence lies in the emphasis on the total transformation of the economic system itself. ↩

120. At this point Varoufakis ties the diagnosis together “architecturally” by presenting technofeudalism as a system that exchanges the pillars of capitalism for pillars of its own, combining feudos en la nube and renta de la nube as foundations that replace markets and beneficio, reinforcing that the change is structural, not merely terminological. In the author's words: “En el feudalismo, el poder de la clase dominante procedía de la propiedad de unas tierras que la mayoría no podía poseer, pero a las que estaba vinculada. En el capitalismo, el poder derivaba de la propiedad de un capital que la mayoría no poseía, pero con el que tenía que trabajar para ganarse la vida. En el tecnofeudalismo, una nueva clase dominante obtiene su poder de la propiedad de un capital en la nube cuyos tentáculos enredan a todo el mundo. En este apéndice, tras resumir cómo el capitalismo ha generado valor, excedentes y poder, esbozaré cómo se generan y distribuyen el excedente y el poder en nuestras sociedades tecnofeudales.” VAROUFAKIS. ↩

121. V[illegible]ens the diagnosis with a deliberately emphatic formulation, to mark that [illegible]nternal “evolution” of capitalism, but a replacement of the operating [illegible]oufakis's words: “Du[illegible] convicción, que a su vez derivó en [illegible]

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libro, sin mayor motivo que dar, tanto a los amigos como a los enemigos indignados por mi teoría, la oportunidad de menospreciarla debidamente tras haberla leído entera y con detenimiento. ¿Cuál es mi hipótesis? Que el capitalismo está muerto, en el sentido de que sus dinámicas ya no rigen nuestras economías. Ese papel lo desempeña ahora algo fundamentalmente diferente, que yo llamo 'tecnofeudalismo'. En el centro de mi tesis hay una ironía que al principio puede parecer confusa, aunque espero demostrar que tiene pleno sentido: lo que ha matado al capitalismo es [...] el propio capital. No el capital tal como lo entendemos desde el inicio de la era industrial, sino una nueva forma de capital, una mutación surgida en las dos últimas décadas, mucho más poderosa que su predecesora y que, como un virus estúpido e hiperactivo, ha acabado con su huésped." VAROUFAKIS. ↩

122. Here appears the core of the argument of discontinuity, based on the displacement of markets and profit to the periphery of the system, with their replacement by other institutional gears. Varoufakis writes: "Si prestamos atención, no nos costará ver que la mutación del capital en lo que yo llamo 'capital en la nube' ha demolido los dos pilares del capitalismo: los mercados y los beneficios. Por supuesto, ambos siguen estando omnipresentes —de hecho, también lo estaban en el feudalismo—, pero ya no ejercen el control de antaño. Lo que ha ocurrido en las dos últimas décadas es que el beneficio y los mercados han sido expulsados del epicentro de nuestro sistema económico y social, se han desplazado a sus márgenes y han sido reemplazados. ¿Con qué? Los mercados, el medio del capitalismo, han sido sustituidos por plataformas de comercio digitales que parecen mercados pero no lo son, y que se entienden mejor si los consideramos feudos. Y el beneficio, el motor del capitalismo, ha sido sustituido por su predecesor feudal, la renta. En concreto, una forma de renta que debe pagarse para tener acceso a esas plataformas y, en general, a la nube. La llamo 'renta de la nube'." VAROUFAKIS. The author systematizes the rupture as an exchange of "pillars", that is, as a reconfiguration of the structuring principle of the economic-social system, and not as a mere change of technology or sector. ↩

123. The terminological rejection is important because it functions as conceptual critique. To call it "hypercapitalism" would be, for Varoufakis, to refuse what is decisive in the return of rent as the axis. "La gran transformación, el paso del feudalismo al capitalismo, se basó en la sustitución de la renta por el beneficio como fuerza motriz de nuestro sistema socioeconómico. Por eso la palabra capitalismo resultó mucho más útil y esclarecedora que un término como feudalismo de mercado. Este hecho fundamental —que hemos entrado en un sistema socioeconómico impulsado por la renta y no por el beneficio— es lo que exige que utilicemos un término nuevo para describirlo. Pensar en él como hipercapitalismo o capitalismo rentista implicaría ignorar este principio esencial y definitorio. Y para reflejar el regreso de la renta a una al, no se me ocurre mejor nombre que tecnofeudalismo. Más importante definido e identifica

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preparados para entender el significado y la importancia de esta transformación sistémica, así como lo que todos nos jugamos con ella." VAROUFAKIS. ↩

124. The nuance of the argument is that "capital" does not disappear; what changes is the mode of coordination and the organizing principle called "capitalism". "Y sí, el capital sigue existiendo y prosperando, aunque el capitalismo no lo haga. Nada de esto debería sorprenderte, al fin y al cabo es lo que me enseñaste. Al igual que varias mutaciones consecutivas multiplican las variantes de un organismo hasta que, en un momento dado, aparece una especie nueva, el cambio tecnológico avanza dentro de un sistema social hasta que, de repente, éste se ha transformado en algo bastante distinto, aunque eso no signifique que todos los elementos que componen el sistema —el capital, la mano de obra, el dinero— hayan cambiado necesariamente." VAROUFAKIS. At the same time, he insists that the new form is not external to capitalism: "En conjunto, resulta evidente que la economía mundial se engrasa cada vez menos con el beneficio y cada vez más con la renta de la nube. Y así, se hace patente la preciosa antinomia de nuestra época: la actividad capitalista está creciendo dentro del mismo proceso de intensa acumulación de capital que degrada el beneficio capitalista y sustituye poco a poco los mercados capitalistas por feudos en la nube. En resumen, el capitalismo se está debilitando como resultado de una pujante actividad capitalista. El tecnofeudalismo nació a través la actividad capitalista, y ahora está haciéndose con el poder de manera arrolladora." VAROUFAKIS. And he describes the metamorphosis as a mechanism of historical survival, avoiding confusing the appearance of continuity with identity of structure: "La metamorfosis es al capitalismo lo que el camuflaje al camaleón: la combinación de un rasgo esencial con un mecanismo de defensa. Y sin embargo, no estamos hablando de meros disfraces. Varias de las transformaciones del capitalismo han supuesto un cambio de época. Una de ellas tuvo lugar más o menos en el momento en que me enseñabas la magia del hierro frente a nuestra chimenea." VAROUFAKIS. ↩

125. Varoufakis insists that the difference between rent and profit is not a "calculation" (what is left after costs), but a qualitative difference tied to the mode of acquisition, since profit is structurally vulnerable to market competition, whereas rent is anchored in a position of control and tends not to be eroded by competition in the same way. In the author's words: "En el feudalismo, la renta era bastante fácil de entender. Gracias a un accidente de nacimiento, o a un decreto real, el señor feudal obtenía las escrituras de una parcela que le daban poder para extraer parte de la cosecha producida por los campesinos que habían nacido y crecido en esa tierra. En el capitalismo, entender el significado de la renta y distinguirla del beneficio es mucho más complejo; se trata de una dificultad de la que fui testigo directo cuando era profesor universitario y me esforzaba por ayudar a mis alumnos a distinguir ambas cosas. No existe una diferencia [illegible]to la renta como el beneficio son el dinero que queda una vez que se han [illegible]tes. La diferencia es [illegible] vulnerable a la competencia de me[illegible]

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diferentes orígenes. La renta deriva del acceso privilegiado a bienes cuya oferta es rígida, como el suelo fértil o las tierras que contienen combustibles fósiles; no se pueden producir más recursos de este tipo, por mucho dinero que se invierta. El beneficio, por el contrario, acaba en los bolsillos de los empresarios que han invertido en cosas que de otro modo no existirían —por ejemplo, la bombilla de Edison o el iPhone de Jobs—. El hecho de que estas mercancías hayan sido inventadas y creadas por alguien, y de que, por lo tanto, otra persona pueda inventar y crear una versión mejor, es lo que hace que el beneficio sea vulnerable a la competencia." VAROUFAKIS. ↩

126. Varoufakis makes explicit the sociological nuance of the argument by separating the cultural status of profit (beneficio) from its systemic status as the effective engine of accumulation, although profit remains as aspirational language ("ambición", "objetivo", "aspiración"), but the central gear can operate decoupled from profits, allowing the elite to treat profit as a contingency and shift the center of gravity toward other sources of power and extraction. The author connects the "optionality" of profit to the shift in the system's fuel: "Luego, por primera vez desde que el capitalismo se había despertado dos siglos y medio antes, el beneficio dejó de ser el combustible que encendía el motor de la economía mundial, impulsando la inversión y la innovación. Ese papel, el de alimentar la economía, lo asumió el dinero de los bancos centrales." VAROUFAKIS. At this point, the author directly formulates the decoupling: "El beneficio siguió siendo la ambición de todo capitalista, el objetivo de cualquier vendedor, la aspiración de las personas que luchaban por una vida más cómoda. Pero la acumulación de capital, el proceso que crea riqueza aumentando el tamaño del pastel, se desvinculó de los beneficios, al igual que el final del sistema de Bretton Woods y el posterior auge del Minotauro habían disociado el trabajo duro de la mejora de las condiciones de vida. La intención de los banqueros centrales no era sustituir los beneficios. Simplemente cayeron en una trampa que ellos mismos habían creado. El pánico de 2008 había acabado con la demanda de dinero para inversiones, causando una sobreoferta que deprimió los tipos de interés. Cuanto más caían éstos, mayor era la convicción de los inversores de que las cosas estaban tan mal que sería una locura invertir. Sin embargo, se siguieron inyectando billones de dólares procedentes de los bancos centrales en las finanzas, de modo que el círculo vicioso continuó, con los tipos de interés bajando cada vez más: hasta cero o incluso cifras negativas. Cuando los conglomerados y los gobiernos empezaron a depender de los préstamos sin intereses, y las empresas de los países en desarrollo pedían prestado más que sus gobiernos —más de 2 billones de dólares a finales de la década de 2010—, los banqueros centrales se enfrentaron a un feo dilema: o bien cerrar el grifo del dinero, lo que significaría hacer saltar por los aires el capitalismo financiarizado tras haber impreso mucho dinero para salvarlo, o bien seguir inyectando dinero en el sistema, esperando que sucediera un [illegible]en realidad, facilitando la sustitución del beneficio como motivación y capitalismo. Como era de esperar, optaron por lo segundo. La angustia de los bancos centrales fue la alegr[illegible] intrépidos y talentosos como Jeff Bezos y Elon Musk pudieron construir su capital en

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la nube, supercaro y ultrapoderoso, sin necesidad de hacer ninguna de las tres cosas que los capitalistas habían hecho tradicionalmente para expandirse: pedir dinero prestado a algún banco, vender grandes partes de su negocio a otros o generar grandes beneficios para pagar nuevo capital social." VAROUFAKIS. Varoufakis uses the metaphor of the "global Minotaur" to name the macroeconomic arrangement that succeeds Bretton Woods, in which the US trade deficit and the return of financial surpluses to Wall Street function as a mechanism for the "recycling" of capital and for the stabilization of the system, shifting the axis of economic dynamics to the financial-monetary sphere VAROUFAKIS. In an illustrative register of the same phenomenon, Varoufakis points out that agents were able to pursue dominance without immediate profitability, summarizing the idea of the irrelevance of profit in the face of the capture of position: "Ambos sabían que el beneficio era irrelevante. Lo importante era aprovechar la oportunidad de establecer un dominio total del mercado. En 2021, Goldman Sachs, uno de los bancos menos amables de Wall Street, asombró al mundo financiero al publicar un 'índice de tecnologías no rentables', que demuestra perfectamente cómo el capitalismo se ha emancipado de los beneficios [...]." VAROUFAKIS. ↩

127. In a historical key, Varoufakis anchors this inversion in a long construction. Capitalism would have emerged when profit replaced rent as the driving force, and technofeudalism would mark the return of rent to the center, now reconfigured by the cloud. This makes it possible to explain why the lexicon of "profit" does not always describe the phenomenon well, since the central mechanism comes close to toll rent, extracted through the administration of economic and social traffic within private environments. ↩

128. In this thesis, the expression "nuvistas" (cloudalists) is employed as an operational translation of the category formulated by Varoufakis to designate the holders of cloud capital, that is, the agents who control digital infrastructures of access, circulation and extraction. The terminological choice seeks to preserve the conceptual image of the cloud without multiplying competing translations throughout the text. ↩

129. Varoufakis uses the term nubelistas to name the new technofeudal elite and to mark that this is not merely a matter of "digital entrepreneurs", but of a fraction that reaches a level of power capable of displacing the top of the social hierarchy. The author formulates this directly when he states that "Como resultado, sus propietarios –los nubelistas– han adquirido la habilidad de hacer algo que los Edison, los Westinghouse y los Ford nunca lograron: convertirse en una clase revolucionaria que desplaza activamente a los capitalistas de lo más alto del orden jerárquico de la sociedad." VAROUFAKIS. This displacement is not presented as mere business superiority, but as a n of the objective and of the mechanism of economic power: even ıvest heavily in R&D cartelization and union dismantlin

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mercancías con el máximo beneficio posible, sino para extraer las máximas rentas de los capitalistas que sí lo hacen." VAROUFAKIS. ↩

130. Varoufakis describes the hierarchical reordering produced by the cloud as a relationship of dependence: the holders of "traditional" capital cease to command the center of the system and come to operate under the power of the new elite, by becoming vassals (vasallos) of the owners of cloud capital (capital en la nube). This vassalage is not merely nominal: it translates into governance and dependence on the channel, insofar as "los fabricantes capitalistas convencionales se ven obligados [...] a vender sus bienes según el dictamen de los 'nubelistas', a pagarles una tasa por el privilegio", in a relationship that "no difiere" from the one "los vasallos con sus señores feudales" had VAROUFAKIS. In terms of systematization, the author further frames the arrangement as a "sistema de clases tecnofeudal", in which the nubelistas become a new ruling class and reduce "al resto de los capitalistas [...] a un estatus de vasallaje" VAROUFAKIS. ↩

131. Varoufakis describes the social effect of the power of the nubelistas as a reorganization of classes typical of technofeudalism, in which conventional capitalists come to sell under the dictate of the cloud and to pay for the "privilege" of access, in a relationship analogous to that of the vasallos with their señores feudales, while the rest are pushed into forms of functional servitude tied to the platform. In an exemplifying key, Varoufakis explicitly brings the structure of Amazon close to this same regime of concession, charging and automated discipline: "La relación de Jeff con los vendedores de amazon.com no es muy distinta. Les concede feudos digitales basados en la nube, a cambio de una cuota, y luego deja que su 'algo-sheriff' vigile y cobre." VAROUFAKIS. The author frames this shift as part of the "verdadera disrupción histórica" linked to the automation of the power of command and to the mass conversion of subjects into cloud serfs: "No, la verdadera disrupción histórica fue automatizar el poder para mandar del capital y cedérselo a gente que estaba 'fuera' de la fábrica, la tienda o la oficina: convertirnos a todos, a los proletarios de la nube y a los demás, en siervos de la nube al servicio directo (no remunerado) del capital en la nube, sin la mediación de ningún mercado." VAROUFAKIS. ↩

132. Riot defines virtual content as a "personal right" and records that the license is revocable, that is, the consumer does not acquire a good by transfer but receives a conditional grant. It then closes the door on ownership by stating that the user "will have no property right or other kind of right over their account" and that "all rights to your account are and will always be the property of Riot Games and will revert to its benefit". The choice of language matters because it shifts the relationship into a regime in which permanence and collection are not legally stabilized positions, but

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conversion into “real world” money, which legally drains the idea of an estate accumulated within the fief RIOT GAMES. The discursive engineering here is simple and brutal. If what is inside the account is declared “without value”, then the loss of the collection tends to be presented as a natural effect of the termination of the relationship, and not as the suppression of an economically relevant position. ↩

134. The Terms of Service establish the company's prerogative to terminate or suspend the account if it is “reasonably determined” that a violation has occurred, and include among the grounds what it describes as the “best interest of our community or of the Services”, terms that function as internal governance criteria and not as public standards of adversarial hearing or proportionality RIOT GAMES. The consequence is that the fief does not need to justify “just cause” in an external sense. It is enough to fit the conduct into a repertoire that the fief itself writes and applies, and that it can modify on its own at any time without prior notice to the user. ↩

135. Varoufakis recognizes the appearance of continuity. The nubelistas may seem like “capitalists on steroids” because they invested heavily and built their technological power, but the author fixes the final distinction in purpose, according to which the investment does not aim to compete in capitalist markets, but rather to make the market dispensable, replacing it with private domains of access and rentier extraction. He makes the appearance of continuity explicit when he states: “Es cierto, papá, que los nubelistas son —o al menos eran— capitalistas con esteroides [...] los nubelistas tuvieron que crearlo desde cero [...] invirtieron gigantescas cantidades de dinero en tecnología.” VAROUFAKIS. He then shifts the focus of the investment to the object and to the purpose: “una mercancía es un bien o un servicio que se produce para ser vendido y obtener un beneficio. Los resultados de una búsqueda no se generan para ser vendidos. Alexa y Siri no responden a nuestras preguntas a cambio de dinero [...] su objetivo es muy distinto: captar y modificar nuestra atención.” VAROUFAKIS. Even when there is payment, the function remains the same: “Estos aparatos se alquilan o venden a un precio barato, no por el beneficio insignificante (a menudo negativo) que se obtiene de ellos, sino para acceder a nuestros hogares y, a través de ellos, a una parte cada vez mayor de nuestra atención.” VAROUFAKIS. It is this infrastructural power over attention that makes extraction from third parties possible: “Es este poder sobre nuestra atención el que les permite cobrar la renta de la nube a los capitalistas vasallos que se dedican al anticuado negocio de vender sus mercancías.” VAROUFAKIS. The conclusion closes the criterion of distinction with the formulation you have already selected: “En última instancia, la inversión de los nubelistas no se destina a competir dentro de mercados capitalistas, sino a conseguir que los abandonemos por completo.” VAROUFAKIS. ↩

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ists that the “cloud” is not immateriality, but a planetary physical , composed of data w connections that makes continuou

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words: “Sin duda, no es menos físico que esos otros tipos de capital, porque la metáfora de la nube es sólo eso: una metáfora. En realidad, la nube está formada por grandes almacenes de datos que contienen filas interminables de servidores conectados por una red de sensores y cables que se extiende por todo el planeta.” VAROUFAKIS. ↩

137. Here Varoufakis offers a technical-material definition of *capital en la nube*, insisting that it combines a physical base and an architecture of control, integrating networked machinery, communications hardware and the algorithmic layer that makes it possible to automate coordination and modulate behavior. In the author's words: “El capital en la nube se define, físicamente, como la acumulación de maquinaria conectada en red, software, algoritmos basados en IA y hardware de comunicaciones que recorren todo el planeta y realizan una amplia variedad de tareas, nuevas y antiguas, por ejemplo: incitar a miles de millones de personas no asalariadas (siervos de la nube) a trabajar gratis (y a menudo de manera inconsciente) para reponer el stock de capital en la nube (por ejemplo, subir fotos y vídeos a Instagram o TikTok, o colgar críticas de películas, restaurantes y libros).” VAROUFAKIS. ↩

138. Varoufakis marks the singularity of “cloud capital” by stating that it dispenses with reproduction via classic wage labor, insofar as it replenishes itself through the imposition of free contributions on a civilizational scale. “He aquí un atisbo de la razón por la cual el capital en la nube es tan fundamentalmente nuevo, diferente y aterrador: hasta ahora, el capital se ha reproducido dentro de un mercado laboral, como la fábrica, la oficina o el almacén. Eran los trabajadores asalariados quienes, con la ayuda de máquinas, producían los bienes que se vendían para generar beneficios, que a su vez financiaban sus salarios y la producción de más máquinas: así es cómo se acumulaba y reproducía el capital. El capital en la nube, en cambio, puede reproducirse sin mano de obra asalariada. ¿Cómo? Imponiendo a casi toda la humanidad que contribuya a su reproducción, ¡gratis!” VAROUFAKIS. ↩

139. The author then broadens the argument by suggesting that it is not only “content” that is extracted, but the very capacity to govern conduct, since the free contribution of users feeds behavior patterns that, when captured and processed, reinforce the power of command of cloud capital over choices, attention and trajectories. In the author's words: “Cada vez que nos conectamos para disfrutar de los servicios de estos algoritmos, no nos queda más opción que hacer un pacto fáustico con sus propietarios. Para utilizar los servicios personalizados que ofrecen sus algoritmos, debemos someternos a un modelo de negocio basado en la recopilación de nuestros datos, el seguimiento de nuestra actividad y la selección invisible de nuestros contenidos. Una vez que lo hacemos, el algoritmo se dedica a vendernos cosas mientras vende nuestra [illegible]ceros. En ese punto, sucede algo más profundo que da a sus propietarios [illegible]enso: predecir nuestro comportamiento, guiar nuestras preferencias, [illegible]tras decisiones, hace[illegible] sirvientes no remunerados, cuyo tr[illegible]

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atención, nuestra identidad y, sobre todo, los patrones de comportamiento que entrenan a sus algoritmos." VAROUFAKIS. ↩

140. Varoufakis treats Amazon as an empirical demonstration that the platform is not "a digital market", but a private domain whose logic already operates outside market capitalism, even though purchases and sales take place there. In the author's words: "'Entra en amazon.com y habrás salido del capitalismo. A pesar de todo lo que se compra y se vende ahí, has entrado en un mundo que no puede considerarse un mercado, ni siquiera uno digital.' Cuando digo esto a la gente, y lo hago a menudo en conferencias y debates, me miran como si estivesse loco." VAROUFAKIS. ↩

141. Varoufakis uses Alexa to make the existential dimension of the technofief tangible: the device is only a minimal piece of a cloud-based network of power, in which the user becomes a subordinate node, with little or no understanding of or control over the forces that govern them. In the author's words: "un minúsculo engranaje en una vasta red de poder basada en la nube, en la que tú eres un mero nodo, una mota de polvo digital, en el mejor de los casos, un juguete para unas fuerzas que escapan a tu comprensión o control." VAROUFAKIS. ↩

142. Varoufakis uses the Google ecosystem to show how the technofief consolidates itself through the infrastructure of operating system and store, transforming external production into dependence on the channel and allowing recurring extraction through access/distribution. In the author's words: "Android no era ni mejor ni peor que el sistema operativo que Sony, Blackberry, Nokia y otros habían —o podrían haber — desarrollado por su cuenta. Pero tenía un superpoder: el abundante capital en la nube de Google, que actuó como un imán para los desarrolladores externos que Sony, Blackberry y Nokia nunca podrían haber atraído por sí solos. ¿Cómo iban éstos a resistirse? Aunque de mala gana, se vieron obligados a aceptar el papel de fabricante de teléfonos capitalista y vasallo, que subsistía con las sobras de los beneficios por la venta de su hardware, mientras Google se embolsaba la renta de la nube producida por otra multitud de emprendedores y capitalistas vasallos: los desarrolladores externos que ahora producían aplicaciones a la venta en Google Play. Así es como Google creó Google Play, la única alternativa seria a Apple Store." VAROUFAKIS. ↩

143. Varoufakis formulates the surveillance arm of cloud capital as an asymmetry of knowledge, through which Apple and Google come to know more than the user about their consumption, reading, movements and encounters — and this is power, because it sustains prediction, targeting and monetization of conduct. "Aun así, resulta increíble que nuestra identidad digital no sea nuestra ni del Estado. Dispersada por innumerables mundos digitales de propiedad privada, tiene muchos dueños, ninguno de los cuales somos nosotros: un banco privado posee tus códigos de identificación y al de compras. Facebook está íntimamente familiarizado con quién —y X recuerda cada peq
con la que estuviste de acuerdo y a

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distraídamente antes de seguir leyendo la cronología. Apple y Google saben mejor que tú lo que ves, lees, compras, con quién te reúnes, cuándo y dónde." VAROUFAKIS. ↩

144. Varoufakis uses the Huawei/Android case to show that technofeudal infrastructure is also a geopolitical instrument: controlling operating systems and usage permissions becomes a state weapon in the dispute for technological hegemony, redrawing the "cold war" in a digital key. In the author's words: "El 15 de mayo de 2019, el presidente Donald Trump promulgó un decreto que, a efectos prácticos, prohibía a Google que permitiera el uso de su sistema operativo Android en smartphones fabricados por Huawei, la empresa china de telecomunicaciones. En la práctica, Trump estaba expulsando a Huawei del feudo en la nube de Google, cuya escala es global. Washington también le dijo a los gobiernos europeos que suspendieran el plan que implicaba a Huawei en el despliegue de redes móviles 5G en Europa. Aquello era mucho más que una locura trumpista." VAROUFAKIS. ↩

145. Varoufakis uses the example of TikTok to show that the "rivalry" between platforms does not function as market competition, based on price and quality, but as a dispute between fiefs for attention and user migration, which ends up creating another territory for the same serfs, offering a different experience within the same logic. "El hecho de que TikTok haya robado con éxito la atención de los usuarios de otras redes sociales no se debe a que ofrezca precios más baratos o a que la calidad de las 'amistades' o las relaciones que facilita sea mejor. TikTok creó un nuevo feudo en la nube para siervos de la nube que buscaban una experiencia online diferente a la que migrar." VAROUFAKIS. ↩

146. Varoufakis stresses that the category "capitalist vassal" is not synonymous with small producer, since it includes everyone from artisans to large manufacturers. The unifying criterion is structural dependence on the channel. Selling comes to mean selling through a platform and, for this reason, a relevant part of the net income of these agents is appropriated by the nubelistas as extraction of cloud rent. "De hecho, no todos los capitalistas vasallos son pequeños artesanos, algunos son grandes fabricantes capitalistas. Pero grandes o pequeños, poderosos o no, todos los capitalistas vasallos, por definición, dependen en mayor o menor medida de la venta de sus mercancías a través de un sitio de comercio electrónico, ya sea Amazon, eBay o Alibaba, y una parte considerable de sus ingresos netos se la llevan los nubelistas de los que dependen" VAROUFAKIS. This formulation ties together, at the same time, the heterogeneity of the group and the decisive point of the technofief: the size of the producer does not matter, proprietary mediation concentrates the gateway to consumption and converts "selling" into paying a toll to exist in the digital territory. ↩

147. Varoufakis describes the discipline of the technofief as a power of exclusion that
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from the online world. It is this constant, impersonal and automatable threat that functions as a technique of government and sustains what he calls “tecnoterror aséptico” (aseptic technoterror). In the author's words: “Todo capitalista vasallo sabe que si se elimina un enlace de su sitio en la nube podría perder el acceso a la mayor parte de sus clientes. Y con la eliminación de uno o dos enlaces del motor de búsqueda de Google o de un par de páginas de comercio electrónico y redes sociales, podrían desaparecer por completo del mundo online. El tecnofeudalismo se fundamenta en un tecnoterror aséptico” VAROUFAKIS. As a comparative frame, Varoufakis opens the paragraph by contrasting “classic” feudal collection (physical coercion) with the fact that the nubelistas “no necesitan alguaciles para confiscar o desalojar”: discipline is now exercised through architecture of access, ranking and intermediation, and not through direct force VAROUFAKIS. ↩

148. Varoufakis deliberately resorts to the language of servitude to mark that the user's everyday participation is neither neutral nor merely “consumption”, but a form of structural contribution to the wealth and power of the new ruling class, via unpaid labor. In the preface, the author closes the diagnosis of class reordering with a direct passage in which, after asserting the vassalage of “traditional” capital, he concludes: “En cuanto al resto, hemos vuelto a nuestra antigua condición de siervos y contribuimos a la riqueza y el poder de la nueva clase dominante con nuestro trabajo no remunerado, además de, cuando tenemos la oportunidad, con el trabajo asalariado que realizamos.” VAROUFAKIS. In a register of systematization, the appendix consolidates this conversion into a rule of class structure by describing that “casi todo el mundo actúa como un siervo de la nube [...], contribuyendo a que el capital en la nube acumule y construya los feudos en la nube [...] que están sustituyendo a los mercados.” VAROUFAKIS. Besides speaking of a “return” to servitude as an interpretive key to technofeudalism, Varoufakis explicitly names the contemporary condition as siervos de la nube and links it directly to the reproduction of capital en la nube through free labor, shifting the axis of exploitation outside classic wage employment. At the close of the section devoted to this social figure, he formulates the thesis in unequivocal terms: “La verdadera revolución que ha impuesto a la humanidad es la conversión de miles de millones de personas en siervos de la nube dispuestos a trabajar gratis para reproducir el capital en la nube en beneficio de sus propietarios.” VAROUFAKIS. This naming gains weight when the author makes explicit that the decisive trait is not the voluntariness of the engagement, but the fact that it is converted into unpaid manufacturing that feeds accumulation: “Lo mismo sucede con los miles de millones de nosotros que producimos involuntariamente capital en la nube. El hecho de que lo hagamos de manera voluntaria, incluso con gusto, no quita que seamos fabricantes no remunerados; siervos de la nube cuyo duro trabajo o de su iniciativa, enriquece a un pequeño grupo de narios” VAROUFAKIS.

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149. Varoufakis coins “cloud proletarians” (“proletarios de la nube”) to name wage workers whose exploitation intensifies because command over the labor process comes to be exercised by cloud-based algorithms, capable of imposing rhythms and targets that push the body “physically to the limit”. He emphasizes, at the same time, the historical continuity of suffering: despite technological change (from gears and belts to connected algorithmic systems), the experience of wear would be immediately recognizable to proletarians of earlier generations. In the author's words: “La forma en que los proletarios de la nube —el término con el que me refiero a los trabajadores asalariados a los que algoritmos basados en la nube llevan físicamente al límite— sufren en el trabajo sería reconocida al instante por generaciones enteras de proletarios anteriores” VAROUFAKIS. As a frame, he anticipates the objection “does this matter?” and answers that the exchange of the control mechanism (gears vs. algorithms connected to the “red neuronal de la empresa”) does not alter the essential: what changes is the instrument of command, not the fact of imposed exhaustion VAROUFAKIS. ↩

150. Varoufakis shows that the gig economy is not merely a “new service sector” within the market, but a direct coupling to the technofief, where platforms erect digital territories (cloud fiefs) and connect to them task workers (drivers, couriers, various providers) not to pay wages and extract competitive profit, but to tax access and appropriate a stable portion of these workers' income. The typical form of this capture is the standardized commission on individual earnings, which he explicitly names as cloud rent, that is, a recurring toll charged for intermediation and for control of the channel. In the author's words: “conectaron sus feudos en la nube a una gran variedad de [...] trabajadores a destajo [...] a los que cobraban una comisión fija de sus ingresos. Una renta de la nube” VAROUFAKIS. Conceptually, the technofief does not need to “employ” in the classic sense: it administers entry and visibility (access to *clients*) and, for this reason, manages to convert precarious labor into a permanent source of rent, shifting the center of gravity of accumulation from profit to the platform toll. ↩

151. Varoufakis describes the algorithm-bosses (algo-jefes) as a qualitative mutation of precarization because command over labor no longer depends on human mediation and operates instead as automatic discipline, without the brakes of empathy, negotiation or explanation. The worker is governed by a “non-corporeal” entity that assigns tasks, measures times and adjusts the pace in real time; precisely because it carries no moral limits (not even the “hypocrisy” of humans), the algorithm can cut paid hours, accelerate cadences to exhaustion and dismiss for “inefficiency” as a routine procedure. “Liberados de los escrúpulos que tienen hasta los seres humanos inhumanos, los ‘algo-jefes’ son libres de reducir las horas pagadas a los trabajadores, aumentar su ritmo hasta niveles de locura o echarlos a la calle por ‘ineficientes’” The disciplinary effect culminates in the experience of helplessness: the [illegible] sed by the system fal

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anyone who might explain or allow contestation, which reinforces technofeudal power through the permanent fear of exclusion VAROUFAKIS. ↩

152. Varoufakis anticipates a directly anti-union impact of algorithmic command by suggesting that the same computational capacity used to solve complex problems can be redirected to the logistical engineering of exploitation, making collective organization a technical target. He builds the hypothesis by analogy, observing that algorithms already "mapean" and "diseñan" solutions without human intervention in domains such as the discovery of antibiotics and then asks what would prevent a similar algorithm from "diseñar una cadena de suministro global que evite los almacenes o las fábricas en las que los sindicatos tienen posibilidades de organizar a los trabajadores". The consequence is formulated in a direct and extreme manner, as a plausible horizon of the technofief, when he concludes that "Los sindicatos podrían desaparecer, e incluso no llegar a formarse." VAROUFAKIS. ↩

153. This is a reference to the imaginary of the German-language author Franz Kafka, especially the novels *O Processo* (1925) and *O Castelo* (1926). The expression is interpreted as a cultural shortcut for describing an environment of impersonal authority, with decisions lacking intelligible justification, labyrinthine rules and the frustration of subjects who try to appeal to bodies that cannot be reached, or that simply do not exist as a responsible interlocutor. ↩

154. Varoufakis also identifies an architectural obstacle to collective mobilization. Cloud domination is experienced in an atomized way, through individualized mediations, so that political coordination faces not only repression or economic asymmetry, but the practical erosion of the encounter between people subjected to similar conditions. For this thesis, the point is less the political strategy for overcoming technofeudalism and more the perception that the infrastructure that organizes access and enjoyment also organizes isolation, comparison, dispersion and difficulty of collective contestation. In this register, Varoufakis states that "El tecnofeudalismo levanta una nueva gran barrera que impide la movilización contra él" and then names the core of this barrier as the material separation between the two poles of exploitation in the cloud: "La nueva gran barrera es el aislamiento físico entre los siervos de la nube y los proletarios de la nube." VAROUFAKIS. The form of this isolation is described as permanent mediation by devices and screens, since "Interactuamos con el capital en la nube, y estamos sometidos a él, a través de nuestras pantallas personales, nuestros teléfonos móviles, los dispositivos digitales que supervisan y controlan a los trabajadores de los almacenes de Amazon", which produces a direct consequence for collective action, because "La acción colectiva es más difícil cuando las personas tienen menos oportunidades de reunirse." VAROUFAKIS. ↩

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los siervos de la nube y los proletarios de la nube", he stresses that this continuous mediation by screens and devices not only hinders traditional gathering and coordination, but also offers a technical means of collective recomposition. That is why, right after stating that "La acción colectiva es más difícil cuando las personas tienen menos oportunidades de reunirse", Varoufakis concludes that precisely there lies an unexpected power, since cloud capital "confiere a los potenciales rebeldes [...] la capacidad de crear coaliciones, organizarse y actuar a través de la nube." VAROUFAKIS. ↩

156. Varoufakis concludes that, in the face of the fragmentation and isolation produced by technofeudalism, effective resistance requires a broader social composition than the classic form of mobilization. The argument is formulated as a strategic requirement to bring together subjects who, in the current arrangement, appear separated by different positions and functions in the cloud, since "para tener alguna posibilidad de derrocar al tecnofeudalismo y de que el demos vuelva a la democracia, es necesario reunir no sólo al proletariado tradicional y al de la nube, sino a los siervos de la nube y, además, al menos a algunos capitalistas vasallos", because "únicamente una gran coalición que los incluya a todos puede debilitar lo bastante el tecnofeudalismo." VAROUFAKIS. ↩

157. Varoufakis shifts the value of cloud capital to the everyday production of users, maintaining that the physical infrastructure would lack value without the content and digital traces supplied for free on a civilizational scale. This condition of cloud serfdom does not operate merely as diffuse economic extraction, but as an attentional and behavioral captivity: permanent engagement with smartphones and tablets is the means by which ordinary life is converted into unpaid manufacturing of the capital stock that sustains the "new lords". In the author's words: "La parte más valiosa del stock del capital en la nube no son sus componentes físicos, sino las historias publicadas en Facebook, los vídeos subidos a TikTok y YouTube, las fotos de Instagram, los chistes y los insultos en X, las reseñas de Amazon o incluso nuestros desplazamientos [...] El capital en la nube puede reproducirse sin mano de obra asalariada. ¿Cómo? Imponiendo a casi toda la humanidad que contribuya a su reproducción, ¡gratis!" VAROUFAKIS. The consequence is that technical-scientific advances culminate in a regime of practical governance of attention and conduct, since cloud capital: "ha descompuesto al individuo en fragmentos de datos, una identidad compuesta de elecciones expresadas por clics que sus algoritmos son capaces de manipular [...] para que todos nosotros nos convirtamos en siervos de la nube, pegados a nuestros smartphones y nuestras tabletas, produciendo ansiosamente el capital en la nube que mantiene a nuestros 'nuevos señores' en las nubes." VAROUFAKIS. For the author, the "true revolution" of the system is precisely this conversion of billions of people into voluntary and unpaid manufacturers of power VAROUFAKIS. ↩

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158. Varoufakis describes technofeudal dependence as a captivity of data and social life, in which the platform creates exit costs by capturing what gives practical continuity to the user's digital identity, so that to "migrate" is not to change a service, but to lose an organized part of one's own online life. That is why, when addressing the asymmetry of power between platform and user, he observes that corporations "pueden tratar a sus usuarios como quieran" and asks when was the last time anyone refused the terms of an update, precisely because "tienen varios rehenes: nuestros contactos, amigos, historiales de chat, fotos, música, vídeos, todo lo cual perderemos si nos pasamos a un feudo en la nube de la competencia" VAROUFAKIS. The structural consequence is that domination does not depend only on the price or quality of the service, but on private ownership of the networks and archives that stabilize sociability and digital memory, converting the very possibility of exit into a threat of existential discontinuity and reinforcing the "fief" nature of these infrastructures. ↩

159. For Marx , the passage from manufacture to large-scale industry reorganizes the subordination of labor as a systemic effect of machinery and of the factory regime. Discipline no longer depends only on immediate personal command, but on the objective form of the productive process and its internal administration. That is why, in describing the factory, Marx observes that technical subordination to the "uniform motion" of the instrument of labor "creates a barrack-like discipline, which develops into a complete factory regime", with its own supervision and hierarchization. In this same key, the internal normativity of the establishment appears as a kind of private juridicity of capital: "in place of the whip", there arises the "factory supervisor's book of penalties", that is, a regular device of command and sanction that stabilizes employer power as government of time and of the body within the productive unit. The point that matters to the argument is that, in Marx, subordination becomes legible as a form of the process: it materializes in machinery, in rhythm and in the discipline immanent to the factory system, which converts technical coordination into social command. It is precisely this intuition (command as material organization of the conditions of activity) that Varoufakis moves outside the factory when he describes "cloud capital" as an infrastructure of extraction based on mediation and modification of behavior. When he states that cloud capital "automatizó [...] el poder para mandar" and "transferió a los 'algos'", the author is naming a mutation in which the classic functions of command (over labor and consumption) cease to depend on the delimited productive space and come to operate, continuously, through digital architectures that govern flows of visibility, relevance and engagement. Hence the decisive formula for its fit with the notion of diffuse capture: "convertirnos [...] en 'siervos de la nube'", providing "no remunerado" service to cloud capital, "sin la mediación de ningún mercado". The "historical disruption", therefore, is not merely the automation of tasks, [illegible]ation of command and its redistribution through algorithmic devices [illegible] ordinary everyday life. Not by chance, Varoufakis makes explicit that, by providing content and interacti[illegible] reproducimos [...] el stock del capital en la nube , even if voluntarily and pleasurably,

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and defines the "third nature" of this capital as "un medio producido de modificación del comportamiento", capable of ordering consumers and converting social participation into reproduction of the cloud capital stock itself VAROUFAKIS. It is the passage from disciplinary command concentrated in the factory regime to infrastructural command distributed through algorithmic mediations that sustains, in the body of the work, the idea that subordination can operate as diffuse capture of social activity, converting attention, time and behavior into continuous economic input: the platform does not "compel" through classic coercion, but governs the material and semiotic conditions under which action becomes capable of conversion into value. ↩

160. Varoufakis maintains that the classic political base of social democracy comes undone when the union counterweight ceases to operate as a credible threat against the new elite, since the architecture of labor under the cloud fragments and weakens the capacity for collective organization. He formulates the change in historical contrast, recalling that "Antaño, los socialdemócratas tenían cierto poder sobre los industriales porque contaban con el respaldo de los sindicatos y podían amenazar con una regulación adversa", but concludes that, in the present, "los nubelistas no temen a los sindicatos poderosos porque los proletarios de la nube son demasiado débiles para crear uno y los siervos de la nube ni siquiera se consideran productores" VAROUFAKIS. The structural consequence is that the mechanism through which strong unions converted social power into regulatory capacity is interrupted, rendering the typical tools of social democracy innocuous and shifting the conflict to a terrain in which the prior disarticulation of the class, between the precarization of wage labor and the invisibilization of free labor, prevents collective pressure from stabilizing as a durable political force. ↩

161. Varoufakis argues that the classic regulatory grammar of social democracy misses the target in technofeudalism because it takes price as the pressure point in a scenario in which domination is organized precisely outside it, given that the offer to the consumer is frequently presented as "free" or as the cheapest available, while the decisive extraction occurs in the form of rent and access tolls, charged to those who depend on the fief to reach users, circulate goods or simply exist in the digital infrastructure. In this sense he states directly that "La regulación de precios es irrelevante cuando los servicios que el consumidor necesita que se protejan ya son gratuitos o los más baratos del mercado" VAROUFAKIS, shifting the critique to the architecture of dependence and channel capture, where power is not measured by the margin at the counter, but by the capacity to condition access, visibility and participation through a recurring rent. ↩

gests that the antitrust repertoire inherited from the era of "terrestrial" action in technofeud
separable objects, whose division w

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straightforward. In the classic example offered by the author, “Standard Oil“ (a trust famously dissolved by the US Supreme Court in 1911) could be sliced into regional units because its structure presented itself as a set of distributed assets and operations, susceptible to segmentation without altering the nature of what was sold. With cloud capital, however, the core of power is the integration between infrastructure, data and algorithms, so that “dividing” ceases to be merely a legal decision and becomes a technical-political problem about how to separate networks, identities, interoperability standards and command systems without recreating, by another route, the same fief. It is this passage from a “simple” divisibility to a functional indivisibility that he condenses in the question: “Pero ¿cómo se dividirían ahora Amazon, Facebook, PayPal o Tesla?” VAROUFAKIS, immediately articulated with the idea that domination is also maintained through blocking and retention mechanisms that make exit costly, which helps explain why the traditional threat of “breaking up monopolies” no longer operates as an automatic counterweight. ↩

163. Varoufakis formulates the thesis head-on by maintaining that, once technofeudalism is consolidated, the political engineering typical of social democracy loses its point of support, because the social configuration that allowed the State to arbitrate between “capital” and “labor” through strong unions, price regulation and antitrust discipline no longer exists. He condenses this in the diagnosis that “En este nuevo escenario político, la socialdemocracia es imposible”, explaining that “Ya no tenemos al capital en un bando y a los trabajadores en otro, lo que permitiría a un gobierno socialdemócrata hacer de árbitro y obligar a ambas partes a llegar a un acuerdo.” VAROUFAKIS. In place of this polarity, the author describes a board reorganized by the rise of the nubelistas, in which “tenemos un centro y una derecha alternativa, ambos esclavizados por una nueva clase dominante, los nubelistas”, while “la izquierda está absorta en una guerra civil” around internal disputes that do not confront the new regime of command and extraction VAROUFAKIS. ↩

164. Varoufakis argues that, in the new political scenario, an important part of “progressive” energy can operate as an escape valve compatible with the preservation of the essential, insofar as authorities manage to perform social liberalism without confronting the material core of technofeudalism. He formulates this by observing that the impulse to protect minorities and to adopt a grammar of restorative justice “le viene muy bien a las personas en el poder que quieren parecer socialmente liberales”, provided that this commitment is above all rhetorical and does not entail “hacer muy poco por proteger a las minorías de las causas sistémicas de su opresión.” VAROUFAKIS. It is at this point that the argument connects directly to his thesis on cloud capital, because discursive adherence to identity politics functions as a substitute for an economic agenda of confrontation, since “esta adhesión discursiva a la política de la [illegible] nite a quienes tienen autoridad no hacer nada contra el poder extractivo [illegible] político que se entrela[illegible] VAROUFAKIS. The structural effect is a redistributive paralysis directed against the new

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elite, while the dynamic still feeds the opposing camp, since, as he immediately adds, “a la derecha alternativa, nada podría gustarle más.” VAROUFAKIS. ↩

165. Varoufakis identifies interoperability as the truly sensitive point of the technofief because it attacks the mechanism that makes dependence rational and extraction stable, which is the exit cost produced by the retention of the user's collections and digital life. Comparing it with the telecommunications regulation that imposed interoperability and portability, he states categorically that “Lo único que temen los nubelistas es la interoperabilidad en la nube” VAROUFAKIS, understood as the possibility of “permitir a sus usuarios pasarse a otro feudo en la nube sin perder sus datos, libros electrónicos, historiales de chat, fotos, música, etcétera” VAROUFAKIS. The target of the argument is clear: if migration can occur without loss of history and archive, the platform can no longer treat these goods as what keeps the user trapped and, with that, the toll that sustains cloud rent and the power of command associated with the digital enclave diminishes, even though the author himself observes that the technical complexity of this transfer helps explain why the nubelistas “no están preocupados” about the practical imposition of this measure VAROUFAKIS. ↩

166. In Marx, the asymmetry is founded on the separation and control of the objective conditions of labor, which make domination economically “mute” and structural; in Varoufakis, this logic is re-enacted in an environment in which the decisive conditions are not only physical means of production, but privatized infrastructures of mediation that govern access and circulation and convert dependence into a permanent regime of permanence and visibility. The Marxian reference delimits its structural starting point in the asymmetry between those who control the objective conditions of participation in economic life and those who depend on this control to exist economically. In “O Capital” (Book I), Marx formulates the question directly by indicating that the capitalist relation “presupposes the separation between the workers and the ownership of the conditions for the realization of labor” and that, once established, it “not only preserves this separation, but reproduces it on an ever-increasing scale” ([2013], p. 961). Therefore, “the process that creates the capital relation” is precisely the process of separation that “transforms the social means of subsistence and production into capital” and, on the other side, “converts the direct producers into wage workers” ([2013], p. 961). The normative center of this description is that domination need not present itself as permanent direct violence. It stabilizes itself as structural dependence, given that the subject is “free” on the legal-formal plane, but materially compelled to adhere to the conditions imposed by those who control the means. This passage helps sustain the idea that subordination can operate through mediations that dispense with the “whip”. Marx condenses this in the formula of “mute compulsion”: “the mute compulsion exercised by economic relations nation of the capitalist over the worker” ([2013], p. 983); and, although c violence “continue exceptionally”, since “for the usual

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the “natural laws of production”, that is, to the “dependence in which he himself finds himself in relation to capital” ([2013], p. 984). What matters to the argument is that, from this perspective, domination derives from differential control of the conditions of access to the social process of production and circulation, and not only from personified coercion or explicit command. It is on the plane of control of conditions and of structural dependence that Varoufakis's reading can be inserted as an update by infrastructural displacement. In technofeudalism, asymmetry is not concentrated only in the factory and in the wage contract, but in private ownership of digital infrastructures that define the economic “right of passage”: platforms function as means of access, circulation and visibility. Hence, for Varoufakis , the nubelistas do not fear unions because “los proletarios de la nube son demasiado débiles para crear uno y los siervos de la nube ni siquiera se consideran productores”, indicating that dependence ceases to be organized primarily as collective wage dependence and comes to be experienced as individualized adherence to systems of mediation. More decisive still, he describes dependence as vulnerability of permanence and of traffic: “Todo capitalista vasallo sabe que si se elimina un enlace de su sitio en la nube podría perder el acceso a la mayor parte de sus clientes [...] podrían desaparecer por completo del mundo online”, and concludes that “el tecnofeudalismo se fundamenta en un tecnoterror aséptico”. In this framework, the Marxian “mute compulsion” reappears in the form of an infrastructural coercion: not necessarily physical violence or explicit command, but a continuous threat of de-indexing, de-ranking, banning and loss of network — that is, loss of visibility, reputation and access to the circuits of circulation. ↩

167. Varoufakis links the escalation of inequality to a reordering of classes produced by the concentration of cloud capital, presented synthetically at the very opening of the book, when he states that “los nuevos señores feudales son los propietarios de lo que llama ‘capital de la nube’” and that “los demás hemos vuelto a ser siervos, como en el medievo”, concluding that “Es este nuevo sistema de explotación lo que está detrás del aumento de la desigualdad” VAROUFAKIS. This seigneurial image does not operate merely as a metaphor, because the preface itself translates the hierarchy into structural dependencies: “real power” ceases to lie with the owners of traditional capital, who “se han convertido en vasallos de una nueva clase de señor feudal, los propietarios del capital en la nube”, while “el resto” returns to the condition of serfs who “contribuimos a la riqueza y el poder de la nueva clase dominante con nuestro trabajo no remunerado” VAROUFAKIS. The chain closes the bridge between inequality and technofeudalism: when access to digital infrastructures and to channels of circulation becomes the point of command, accumulation shifts to those who control this capital and lowers the others to positions of vassalage and serfdom, which helps explain why wealth at the top appears as a systemic effect, and not as a conjunctural OUFAKIS. ↩

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168. Varoufakis qualifies the diagnosis of post-2008 inequality by insisting that it was not a simple differential acceleration of gains at the top, but a real impoverishment at the bottom combined with accumulation at the top, which gives inequality a specific regressive meaning in the recent period. He formulates the distinction clearly when he recalls that, "En todas las eras doradas del capitalismo ha aumentado la desigualdad, porque los ricos obtienen beneficios con mayor rapidez que los pobres", but that "Los años posteriores a 2008 fueron diferentes", because "La desigualdad no aumentó porque los ingresos de los pobres aumentaran con mayor lentitud que los de los ricos, sino porque sus ingresos disminuyeron en realidad, mientras los financieros y las grandes empresas acumulaban ganancias" VAROUFAKIS. This nuance connects to the argument about the dissociation between accumulation and profit in the same historical cycle, in which, although profit continues as a subjective horizon, "El beneficio siguió siendo la ambición de todo capitalista, el objetivo de cualquier vendedor", the effective dynamic changes when "la acumulación de capital [...] se desvinculó de los beneficios", shifting the axis of social prosperity to mechanisms of valorization and capture that do not depend on generalized material improvement VAROUFAKIS. ↩

169. Varoufakis links democratic erosion to the erosion of the subject itself by maintaining that cloud capital not only reorganizes markets and rents, but reconfigures the form of individuation, because it shifts identity into an aggregate of behavioral records susceptible to algorithmic modulation. In the author's formulation, technofeudalism radicalizes the psychic effects of "possessive individualism" by knocking down the "enclosure" that still offered the liberal individual some refuge from the market, so that "El capital en la nube ha descompuesto al individuo en fragmentos de datos, una identidad compuesta de elecciones expresadas por clics que sus algoritmos son capaces de manipular", producing subjects who "más que ser posesivos, están poseídos, personas incapaces de ser dueñas de sí mismas" VAROUFAKIS. The consequence is that autonomy and self-government cease to be practical presuppositions, since the sphere in which the individual recognized themselves as author of themselves comes to be mediated by devices and platforms that transform choices into raw material for prediction and targeting, shifting freedom of decision into a regime of behavioral governance sustained by the continuous capture of data. ↩

170. Varoufakis refuses to treat online hatred as a mere "excess" correctable by marginal adjustments of moderation, because, in technofeudalism, it acquires an economic function internal to the mode of extraction. In describing intolerance as "compensación emocional" in the face of the frustrations and anxieties produced by the dispute over identity and attention, the author insists that comment moderation and the regulation of hate speech "no pueden parar esto" precisely because it is trínseco al capital en la nube", insofar as "sus algoritmos optimizan las ıbe, que surgen más a VAROUFAKIS. The consequence, fo

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immaterial object of consumption, is that the platform not only tolerates negativity as a flaw to be eliminated, but incorporates it as an input of algorithmic performance, exploiting the attention that becomes fixed through friction, resentment and conflict and converting this fixation into more rent, which shifts the response from the moral plane (good practices of civility) to the structural plane (the design of the circuit of capture and monetization of attention). ↩

171. In closing the geopolitical analysis, Varoufakis formulates a deliberately uncomfortable paradox: after weighing the possibility that "Xi" (referring to Xi Jinping, president of the People's Republic of China) is, at least "en teoría, y de forma muy indirecta", imposing political limits on the nubelistas and even on Chinese capitalists, but admitting that it is "imposible saberlo" and that not even an eventual wage increase would allow one to conclude that the demos has been revitalized, he concludes that "es muy fascinante que el único rayo de esperanza para cualquier demos del mundo surja en medio de una sociedad sometida al totalitarismo" VAROUFAKIS. The provocation functions as an indirect critique of the West's regulatory impotence, because it shifts the focus from liberal "good will" to the harder question of the effective capacity to impose brakes on cloud capital, in a scenario in which the political engineering typical of social democracy no longer finds a basis to arbitrate conflicts and "la socialdemocracia es imposible" VAROUFAKIS. ↩

172. In the appendix in which Varoufakis fixes the vocabulary of political economy that will sustain the comparison between capitalism and technofeudalism, he records that markets "pueden ser más o menos competitivos" and may also assume asymmetries on the demand side, being "oligopsonísticos (muchos vendedores, pocos compradores)" and, at the limit, tending "al monopsonio", in contrast with asymmetries on the supply side (oligopoly/monopoly) VAROUFAKIS. By explicitly inserting the category of oligopsony/monopsony into the very definition of market, he establishes that not every market failure is a "seller's monopoly", and prepares the next step of the argument, which is to separate these internal distortions of the market from what he calls technofeudalism, in which trade ceases to be a decentralized encounter and comes to be centralized in cloud fiefs run by algorithms that connect the parties under proprietary control VAROUFAKIS. ↩

173. In this context, "monopsony" designates the market structure in which there is a single relevant buyer of a good, service or labor, so that demand is concentrated and this buyer manages to influence price, hiring conditions and access rules. "Oligopsony", in turn, is the variation in which there are few relevant buyers, in a concentration that still allows significant purchasing power, with influence over prices and conditions, including through effects of implicit coordination, standardization of practices or the alternatives for those who sell. ↩

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lens to the labor market and shows

appropriation of surplus. He observes that, the greater the competition among employers, the more the wage tends to reflect the exchange value of the worker's commodified labor, but that, “en los mercados laborales dominados por uno o pocos empleadores”, the wage falls below this value and the difference “se traduce en un tipo de renta de monopsonio [...] que se queda el empresario” VAROUFAKIS. The analytical consequence is that, even within the classic categories of capitalism, rent does not appear only as an “external” or residual phenomenon, but as a structural effect of market power, and this prepares the ground for the book's turn toward rent as the dominant logic when access to cloud fiefs becomes the point of capture. ↩

175. Varoufakis uses the comparison to mark that the problem of fief-platforms is not merely “more power” within a market, but the suppression of the very minimal space of economic sociability that still exists even when the market is bad. In “Jeff's world”, Amazon “no es un pueblo con mercado” and “ni siquiera es una especie de mercado digital hipercapitalista”, because “incluso los peores mercados son lugares de encuentro” in which people can still “interactuar e intercambiar información”, and, even under monopoly, “al menos, los compradores pueden hablar entre sí, formar asociaciones, tal vez organizar un boicot de consumo para obligar al monopolista a reducir el precio o mejorar la calidad”; in the fief, by contrast, “todo y todos están intermediados” by an algorithm that does not operate as a “mano invisible”, but as a proprietary mediation that blocks autonomous communication and makes horizontal coordination simply not happen VAROUFAKIS. This loss of the “commons” is the decisive institutional consequence, because the same technical design that isolates and individualizes the user's experience is what concentrates at the center of the platform the power to bring the parties together or keep them apart, converting a potentially contestable arena into a private domain governed by algorithmic rules. ↩

176. Varoufakis describes the passage from recommendation to governance as a shift in the scale and function of the system, in which personalization ceases to be mere convenience and becomes a capacity for command. In the passage in which he follows the daily life of a user with Alexa, he insists that the device “escucha, observa y aprende” preferences and habits and, precisely for this reason, as it “nos va conociendo”, the network operating behind the device “ha adquirido un poder considerable para dirigir nuestra realidad y guiar nuestras elecciones, es decir, para mandar sobre nosotros” VAROUFAKIS. The consequence, for the central argument, is that cloud-mediated immaterial consumption is not limited to offering or suggesting goods and content, but reorganizes the very experience of the world from an infrastructure that filters, orders and anticipates options, converting the “assistance” interface into a continuous mechanism of behavioral guidance, whose informational asymmetry makes individual resistance a structural problem and not merely a matter

177. Varoufakis describes this circuit as a form of recursive capture in which personalization ceases to be merely a reading of preferences and becomes active intervention in the formation of desire. After “getting to know our tastes”, the system comes to “select them” and operates precisely through directed exposure, “exponiéndonos a imágenes, textos y vídeos que elige para condicionar con sutileza nuestros deseos” VAROUFAKIS. The decisive point is that this architecture does not depend only on surveillance, but on a feedback dynamic in which the user supplies data when interacting and, in doing so, improves the very steering device that repositions them as a target of new stimuli, establishing the “bucle infinito” in which “está entrenándonos para que la entrenemos para que nos entrene para entrenarla para que nos entrene [...] ad infinitum” VAROUFAKIS. The structural consequence, for the argument, is that the immaterial object consumed on the platform already comes coupled to a regime of algorithmic curation that simultaneously records and manufactures dispositions, converting the experience of choice into a sequence of micro-adjustments that reinforces dependence on the channel and expands the commanding capacity of cloud capital. ↩

178. Internal currency as an instrument of administered inflation. Riot admits that it may “sometimes” “alter the purchasing power of the Game Currency” and makes the mechanism explicit: “we may increase the number of Game Currency required to purchase Virtual Products, such as skins” RIOT GAMES. At the same time, it states that “we may adjust the prices of any part of the Riot Services at any time (with future effect, that is, with the exception of what you have already acquired)” and that it may “modify, alter or supplement our values and billing methods with future effects”, effective “immediately upon publication” RIOT GAMES. RIOT GAMES ↩

179. Denial of the collection's value as an immunization technique. In the same block in which it describes repricing and internal currency, Riot declares: “We do not provide or guarantee, and we expressly deny, any value, in money or otherwise, attributed to any data residing on the servers we operate or control, including any Game Content or Virtual Content attributed to your account” RIOT GAMES. The clause is relevant because it attempts to collapse, by definition, what in practice operates as an accumulated immaterial estate. If the contract denies value to the collection, the impoverishment of purchasing power and the deterioration of equivalence tend to be described as a simple dynamic of the service, and not as a legally relevant loss RIOT GAMES. ↩

180. In the same set of provisions on Virtual Content, Riot reserves for itself a broad power of unilateral intervention over what exists within the fief, including over what the user perceives as a “collection”. The clause is technofeudal not because it suggests mere agement of the service, but because it assumes asymmetry as the rule: administered by the

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the continuity of the value attributed to what has been accumulated depends, ultimately, on the administrative will of whoever controls the infrastructure. ↩

181. In a disclaimer of warranty, Riot states: "The Riot Services are provided to you 'as is' and 'as available', without warranties or representations of any kind" and adds: "You assume full responsibility for your use of the Riot Services" RIOT GAMES. Next, in a limitation of liability, it records that "our total liability to you [...] is limited to the total amounts paid by you to Riot during the 12 (twelve) months immediately preceding the time your cause of action arose" and that it is not liable for "business losses" or for "any loss that was not foreseeable [...] (including all indirect damages)", with the proviso that it does not exclude or limit liability when "it would be unlawful to do so" RIOT GAMES. ↩

182. To clarify the concepts of the argument, the thesis draws on the work of the economist Hal R. Varian. Doctor of Economics from the *University of California* (Berkeley), Hal R. Varian is a professor, researcher and economist recognized for his contribution to microeconomics and the economics of information. His work helps to fix in a technical-economic sense the notion of price makers employed here. In particular, the work *Intermediate Microeconomics: A Modern Approach* serves as the basis from which this note draws the distinctions between price-taking firm and price-making firm, as well as correlated categories of market power and mechanisms of price formation. In microeconomics, the basic distinction between competition and market power can be expressed by the difference between the agent who takes price as given and the agent who forms it. In the first case, the producer operates as a price taker, accepting price as an exogenous parameter and concentrating its decision on how much to produce VARIAN. In the second case, there is a capacity to influence prices through control of the quantities supplied or demanded, which includes market power on the demand side, as occurs when the monopsonist behaves as a price maker VARIAN. The analytical basis of this condition, in the limiting case of a single firm in the market, is that the demand faced by the firm coincides with market demand itself VARIAN. Furthermore, a monopolistic structure, in the economic sense relevant to the analysis of market power, assumes that each firm faces a downward-sloping demand curve for its product VARIAN. Taken together, these premises indicate that the firm with market power does not operate under a given price, but chooses a point on a demand curve, with direct implications for price and quantity. This structure makes it possible to formalize that the price charged can depart from marginal cost in the form of a markup, whose size depends on demand conditions, in particular on elasticity VARIAN. In conceptual terms, the elasticity of demand functions as an economic brake on price formation, because the more sensitive the consumer is to price variations, the lower the capacity eases without relevant loss of quantity. For this reason, conditions that e substitution and i elastic and, with that, expand the f

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merely descriptive plane to a mechanism of surplus extraction through pricing. Within this frame, certain structural conditions and market instruments tend to reinforce the capacity for price formation. Barriers to entry, such as licenses and legal restrictions, limit the entry of new competitors, reduce contestability and mitigate competitive pressure even in the face of profit opportunities VARIAN. Switching costs can become substantial when components function as systems and the replacement of one element requires replacing others, raising the cost of switching VARIAN. When these costs are very high, lock-in (*lock-in*) can occur, a situation in which switching becomes virtually inconceivable, which is unfavorable to the consumer and, at the same time, attractive to the seller; in this condition, the demand of the locked-in user tends to be very inelastic, allowing the seller to raise prices to extract consumer surplus VARIAN. Price discrimination strategies consist of selling units of the same product at different prices VARIAN, and may assume different degrees according to market segmentation and the form of price differentiation between persons or between quantities purchased VARIAN. Bundling (*bundling*) is part of this repertoire, consisting of the joint offer of related goods in a single package VARIAN and reducing the dispersion in willingness to pay, which may allow a higher price to be set for the set VARIAN. Segmentation by quality can be operationalized through the deliberate reduction of the quality offered to the lower segment of the market, as a way of inducing self-selection and avoiding cannibalization of sales in the upper segment VARIAN. Finally, search costs and costs of acquiring information can generate informational asymmetry and contribute to inefficient outcomes of adverse selection, as when low-quality items drive out high-quality ones because of the high cost of acquiring information VARIAN. Taken together, these elements compose a framework in which price formation is not a mere abstract freedom to choose values, but a function of market structure, of the elasticity of demand, of substitution frictions and of the instruments of segmentation and surplus capture. ↩

183. The centrality of the geopolitical dimension is signaled in the very architecture of the book, when Varoufakis devotes an entire chapter to framing Sino-American rivalry as an expression of the technofeudal regime, titling it directly “El impacto global del tecnofeudalismo: la nueva guerra fría” VAROUFAKIS. In choosing this heading, he does not treat the “new cold war” as a backdrop external to the economic diagnosis, but as one of its modes of manifestation, that is, as a conflict organized around the control of cloud infrastructures and ecosystems and of the forms of dependence they produce. The author establishes a true bridge between the internal mutation of capitalism and international politics, making it possible to read state measures and technological disputes as part of the same arrangement of command and extraction that, in the ters, had already displaced markets and profits in favor of fiefs and rent.

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184. Varoufakis shifts the explanation of the intensification of the Sino-American confrontation from the "geographic" or merely state register to a register of political economy, suggesting that the rhetoric of "seguridad nacional" functions as a veneer for a dispute between technofeudal elites for command over infrastructures and for the preservation of systemic advantages. He makes this point explicit by stating that, "comparada con la Guerra Fría original, la nueva guerra fría tiene poco que ver con la política; está motivada por crudos intereses de clase tecnofeudales" VAROUFAKIS. The passage ties this motivation to the threat that the advance of Chinese "finanzas en la nube" would represent for the American poles of power, that is, for Wall Street and Silicon Valley, insofar as it would shift the "ventajas comparativas" of the previous arrangement toward the Chinese ruling class VAROUFAKIS. Thus, the conflict appears less as a repetition of an ideological antagonism and more as an attempt to prevent a reconfiguration of infrastructural hegemony, in which the capacity to extract and command via the cloud becomes the decisive object of the rivalry. ↩

185. Varoufakis describes the geopolitical bifurcation as a reorganization of the world's digital space into two blocs of command, in which rivalry does not operate only through tariffs, military alliances or classic "territorial" disputes, but through the consolidation of cloud infrastructures that function as domains of access and extraction. The author states that, under the combined impact of the war in Ukraine and the "gran inflación", in an environment that "están empeorando la pobreza, agravando el cambio climático y generando una atmósfera de miedo", "el mundo se está dividiendo en dos superfeudos en la nube antagónicos: uno estadounidense, el otro chino", and that "no saldrá nada bueno y valioso de esta bifurcación" VAROUFAKIS. Read in continuity with the diagnosis that the new cold war is driven by "crudos intereses de clase tecnofeudales" VAROUFAKIS, this division into superfiefs appears as the geopolitical translation of platform power on a planetary scale, converting the dispute between States into a dispute over hegemonic digital ecosystems that condition dependencies, alignments and margins of autonomy outside the traditional terrain of market competition. ↩

186. Varoufakis treats the freezing of Russian reserves as a turning point in the international monetary architecture because it makes visible, inescapably, that dollar hegemony is not merely a "market fact", but a power of political blockade exercisable over sovereign wealth. The invasion of Ukraine functions as the trigger for a response that "cambió toda la ecuación", when "la Reserva Federal congeló cientos de miles de millones de dólares que pertenecían al banco central ruso", keeping them "dentro del circuito de pagos en dólares que Estados Unidos controla por completo" VAROUFAKIS. The consequence, for the author, is a systemic signal sent to the rest of the major

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lar assets, since "fue la primera vez en la historia capitalista que el dinero

entral importante era [illegible]" VAROUFAKIS

making the search for alternative r[illegible]

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in this way, contributing to the acceleration of the cleavage he describes as the division of the world into “dos superfeudos en la nube antagónicos” VAROUFAKIS. In presenting the digital yuan, Varoufakis frames it as an infrastructural response to dependence on the dollarized payments circuit and, therefore, as a piece of monetary-technological sovereignty on the technofeudal board. In the didactic example, the author contrasts the friction of “conventional” international transfers with the hypothesis of People's Bank of China wallets, in which the remittance is completed “al instante y sin coste alguno”, precisely because settlement in digital yuan eliminates cascading intermediaries and, above all, bypasses “el canal internacional de transferencia de dinero que está totalmente controlado por las autoridades estadounidenses” VAROUFAKIS. The political consequence of the design is explicit, since, by reducing the need to pass through banks, central banks and the dollarized corridor, the digital yuan appears as “la peor pesadilla de Washington y los banqueros privados” VAROUFAKIS, that is, as a direct threat to the capacity for control exercised by the US over flows and sanctions within the payments system. ↩

187. In projecting the “new cold war” as a dispute between cloud infrastructures, Varoufakis suggests that it reduces third parties to a geopolitics of dependence, in which autonomy becomes a function of access to cloud capital and to the circuits that sustain it. In the European case, vulnerability does not stem only from diplomatic decisions, but from a material lack of its own capacity in the new regime, so that “La falta de capital en la nube de Europa significa que la nueva guerra fría, sumada a la crisis energética provocada por la guerra en Ucrania que afectó a sus fabricantes, ya han hecho que Europa sea geoestratégicamente irrelevante” VAROUFAKIS. For the Global South, the bifurcation appears as a forced choice between competing digital domains, because “Con el mundo dividido en dos superfeudos en la nube, uno basado en el dólar y el otro en el yuan, se ven obligados a elegir un señor feudal al que someterse” VAROUFAKIS, and this pressure intensifies when the old arrangement of financial circulation closes, since “La nueva crisis de deuda está obligando a las clases dirigentes del sur global a elegir un bando” VAROUFAKIS. The structural consequence of the argument is that US-China rivalry tends to translate, for Europeans and peripheral countries, into compulsory alignment with standards, payment channels and data ecosystems they do not control, with increased vulnerability to blockades, access conditions and tolls imposed by the respective “superfiefs”. ↩

188. Varoufakis makes explicit that to “exit” technofeudalism is not equivalent to adjusting incentives or correcting regulatory excesses, because the core of the problem lies in the property relations that structure social life itself as mediated by the cloud. In linking his critique to the “death of the liberal individual”, he maintains that ɛdom as individual sovereignty requires a change of architecture, since lea liberal fundacion[illegible] por lo tanto, una reconfiguración c[illegible]

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instrumentos de producción, distribución, colaboración y comunicación, que cada vez se basan más en la nube" VAROUFAKIS. The consequence is avowedly disruptive, since, to reconstitute the liberal subject under technofeudal conditions, "tenemos que hacer algo que los liberales detestan: planear una nueva revolución" VAROUFAKIS. ↩

189. Varoufakis describes "democratized companies" as an arrangement in which shareholding ceases to be a tradable asset and becomes inalienable political membership, because the corporate bond merges with the employment bond. The legal form is purposely simple and egalitarian: "cada empleado tiene una única acción que recibe al ser contratado", a share that "no se puede vender ni alquilar" and that "otorga a cada empleado un único voto" VAROUFAKIS. With this, decision-making power ceases to be a prerogative of share capital and is redistributed as everyday governance, since "todas las decisiones [...] se adoptan de manera colectiva" and the vote is exercised through the intranet, conceived as "una asamblea permanente de accionistas" VAROUFAKIS. The intended institutional effect is to cut the typical mediation of finance and speculation, because the rule of "sólo una" non-tradable share per employee both dissolves the figure of the external shareholder and reconfigures the company as a space of deliberation and not as an object of purchase and sale VAROUFAKIS. ↩

190. Varoufakis inserts the governance of land into his "technodemocracy" as a way of inverting the political meaning of ground rent, converting it from a mechanism of private capture into a tool of collective provision. The institutional design is local and deliberately oriented toward redistribution, since "cada región está gestionada por una Asociación Municipal" charged with "supervisa[r] la división del suelo entre zonas comerciales y sociales", so that "las rentas recaudadas en las primeras financian la provisión de viviendas sociales en las segundas" VAROUFAKIS. The question is not merely to regulate the real estate market, but to redesign the circuit through which territory produces dependence, making ground rent a stable funding base for social housing and, with that, removing from housing the role of everyday axis of economic subjection. ↩

191. Varoufakis frames the proposal as an exchange of infrastructure to dismantle the technofeudal model grounded in the "deception" of gratuity, replacing it with an arrangement in which data cease to be extracted by default and come to circulate under express and paid authorization. The alternative appears as a "plataforma de micropagos", which he calls "Un céntimo por tus pensamientos", combined with a "Carta de Derechos Digitales" that "garantiza a todo el mundo el derecho a elegir qué datos vender y a quién", so that "los desarrolladores de aplicaciones que necesitan nuestros datos tienen que pagar para obtener los de los usuarios que den su consentimiento" VAROUFAKIS. The institutional consequence is to reposition the user capture to holder of decision, shifting the axis of the system from involuntary tracking

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attacking the typical form of cloud rent that feeds on informational asymmetry and on the lock-in produced by the appearance of a “free” service. ↩

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Under the structure of the hypothesis on which the logical path of this discussion is built, informational rentierism is treated as a way of organizing consumption in platform environments, and not merely as a macroeconomic diagnosis. In Dowbor[192], the focus shifts from the image of the fief to the toll economy and to the demand monopoly, that is, to the control of circuits of access, visibility and transaction that converts connectivity into recurring rent. This lens makes it possible to reconstruct, in consumerist language, why the protection of the CDC cannot be limited to the initial delivery, or even to a single moment of supply, since the utility of the IOC depends on continued governance and on conditions whose auditability is structurally asymmetric.

The analysis of platform capitalism, from the perspective of Ladislau Dowbor, requires recognizing a structural inflection in the regime of accumulation that is not to be confused with a mere technological update of the industrial paradigm. Dowbor describes the consolidation of a "new mode of production" and informational accumulation[193], in which the axis of social command shifts from physical manufacture to the strategic governance of intangible assets, of financialization and of technology. In his historical typology, the modern digital economy not only instrumentalizes information, but converts it into the most valuable resource of the regime of accumulation, instituting a pattern of appropriation that operates above the level of the effective producer and repositions the bases of a private economic sovereignty, understood as the capacity to define rules of access, extraction and monetization through infrastructures controlled by private agents.

[illegible]ve key matters here because it reconstructs, at the micro level, [illegible] lized as an update [illegible] platform ecosystems, the utility of the

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visibility and permanence governed by the supplier itself, so that unilateral changes are not lateral noise, but an instrument of capture. The relevant asymmetry is not only informational. It is infrastructural, because it makes it possible to impose frictions, urgencies and calibrated losses that convert permanence into an economic condition of consumption, as observed in the empirical laboratory *Riot Games*.

In this shift, platform capitalism is characterized by the action of digital structures that operate as demand monopolies[194], capable of extracting rent through concentrated and asymmetric control of informational flows, beyond the classic logic of the one-off sale of commodities. "The result is the so-called 'demand monopolies': we have to use what others use, because without it we do not communicate, besides the fact that they buy any competitor that tries to open up space" DOWBOR. The generation of value comes to depend, primarily, on the control of interfaces, data and sign systems, that is, of the semiotically mediated material conditions that organize access, guide decision and modulate the very experience of the consumer's enjoyment.

In the scope adopted here, "informational rentierism" in Dowbor can be defined as the contemporary form of appropriation of surplus that stabilizes itself not through the proportional production of goods and services, but through the strategic administration of rights of passage over vital flows of economic and social life. It is a regime in which value is extracted through the capacity to organize and govern access to information-dense circuits, such as communication, payment, circulation of content, intermediations and decisions, converting connectivity itself into a recurring source of rent. The core of command thus shifts from the domain of manufacture to the capture of the process, since whoever controls the platform controls the points of entry and permanence and can transform each crossing into a toll DOWBOR.

This shift, matured over recent decades, reorganized the core of the system, since accumulation ceased to rest primarily on the production and circulation of goods and came to be structured in mechanisms of rent extraction grounded in the control of

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ɔecially data, platforms and intellectual property regimes. It is within this horizon that Dowbor uses t

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of essential flows and of mandatory points of passage, in which value is appropriated through control of access, intermediations and circuits of circulation on an increasing scale, in clear mismatch with any corresponding increase in social production. “Many services are useful, or even necessary, but generate disproportionate profits relative to their contribution, as in the case of communication oligopolies. Rentiers earn not so much from the services they provide, as from the obligation for everyone to pass through their turnstiles.” DOWBOR.

In the informational environment, the toll economy is realized with particular effectiveness through legal-technical enclosures, since intellectual property rights, license agreements, account architecture and access control mechanisms become governance infrastructure and transform access to and permanence in the ecosystem into a recurring source of extraction DOWBOR. The very transit through signs, such as interfaces, reputation, digital inventories, profile identities, currencies and content, comes to be captured as an economically exploitable flow.

The IOC, as the concretization of the immaterial product in the sense of Article 3, paragraph 1, of the CDC, appears here not as neutral content, but as a commodity form whose enjoyment is subordinated to contractual and technological turnstiles, so that one does not buy merely an item, but the revocable permission to remain within an ecosystem of signs. It is the same legal-technical enclosure that allows the platform to administer internal inflation by controlling the practical unit of account, the conversion mechanisms and the price anchors, shifting the formation of values to a regime of opaque calibration by *design*, with low comparability and high dependence on permanence.

Rentier capture through governance intensifies the user's vulnerability in the practice of digital consumption, described here as a dimension of factual vulnerability. Inserted into ecosystems of signs whose permanence is conditioned by contractual and technological turnstiles, the consumer is induced by anticipation and by promises of availability, continuity and functionality that they cannot reconstruct in their decisive elements, since delivery is not accompanied by transparency criteria and, in practice, is fully and unilaterally modulable by the

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In this scenario, the very justification of intellectual property tends to operate in an instrumental key, tied to the stimulus of future creations DOWBOR, so that the hypertrophy of duration and scope may produce a mismatch between incentive and blockage. In *copyright*, the realization of profits tends to be concentrated in the first cycles of exploitation, around five or, at most, ten years after publication, while exclusivity may last for decades, becoming a fence that restricts access DOWBOR. For the economic analysis developed here, the decisive point is that intellectual property, when coupled to the platform, ceases to appear merely as an external legal title and comes to operate as a material component of the closure of access, that is, as a functional gear of the toll economy in the informational environment.

The toll economy described by Dowbor is not limited to extraction from end consumers, since it reorganizes the entire chain by subordinating traditional companies to private infrastructures of intermediation and converting the intangible into a general condition of circulation. The social surplus comes to be appropriated less through production and more through the capacity to impose rights of passage over activities and flows already socially produced, on a planetary scale, without proportional counterpart in goods, services or jobs. For this reason, Dowbor maintains that rentierism appropriates the surplus without corresponding productive contribution. It is precisely this decoupling between contribution and capture that makes enclosure legally sensitive, because, when platforms and titles of exclusivity operate as permanent turnstiles, the rationale of incentive loses descriptive centrality and the problem of access control emerges as an instrument of extraction, with informational asymmetry and operational opacity relevant to consumer protection.

In this toll economy, the dominant mechanism of surplus extraction shifts. It moves away from a productive regime in which accumulation is organized above all through the exploitation of labor and the discipline of production and approaches an arrangement in which capture is structured by financial and communication platforms and by platforms for the appropriation of private data, with the prevalence of rent over productive accumulation[196]. The disproportion between effective

tion and observed enrichment ceases to indicate a peripheral

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rentier logic becomes the organizing principle DOWBOR. In this direction, profit on production has evolved into rentierism on intermediation DOWBOR.

The logic of the toll presents itself in a harsher key when power ceases to operate only through network effects and comes to rest on the control of critical infrastructure of the digital economy. By consolidating services and circuits of computing, logistics and intermediation on which third parties come to depend in order to operate, an infrastructure rentierism is formed, sustained by recurring tolls and by structurally irreplicable barriers to entry, anchored in scale, integration and systemic dependence DOWBOR.

Thus, the shift from productive capitalism to a rentier regime can be described as a break in proportionality between productive contribution and appropriation of surplus. The extraction of value stabilizes itself through position and through control of points of passage, such as networks, infrastructures and intermediations, and not through a correlated increase in social utility, reorganizing accumulation as a systematic drain on social wealth DOWBOR.

In the scope adopted here, Dowbor's critique matters above all for the way in which the platform converts access into rent through the control of informational flows and of decisions on visibility, access and permanence. In this movement, intellectual property regimes cease to operate as simple titles of authorship and come to integrate the infrastructure of control, delimiting possibilities of use, circulation and recombination of digital assets. A regime of authorization and blockage is thus sustained, which structures the consumer's experience as a process that is entirely capturable from an economic point of view.

In the informational paradigm, knowledge assumes the position of central factor of production, but its economic logic is not to be confused with that of physical goods, since, unlike material goods, shared knowledge is not lost to the one who shares it, as it is not a rival good and access to it can be generalized DOWBOR. This non-rivalry shifts the axis of conflict to the forms of access control, which makes intelligible why r goods and digital experiences, as IOCs, can be technically

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authorization and blockage that organ

By emphasizing the centrality of knowledge as a factor of production and the platform as the hegemonic form of economic organization, Dowbor suggests that the twenty-first century is structured by an economy in which globalized and digitalized technical infrastructure reconfigures time and space, while the surplus is appropriated by actors capable of managing signals, algorithms and intermediations on a planetary scale. From this follows his diagnosis of a system qualitatively more extractive and unproductive than industrial capitalism, insofar as capture stabilizes itself through control of access and mediations. The decisive point for the present analysis is not to deny the persistence of the productive base, but to show its structural subordination to informational-financial command, which comes to define who accesses the market, through which mediations and under which conditions of subjection DOWBOR.

Within this closure typical of demand monopolies, the network is converted into economic coercion and produces structural dependence. The consumer's individual choice is neutralized by the inevitability of the technological standard, so that the platform comes to operate as a coercive infrastructure of everyday life. In this arrangement, the algorithm articulates economic calculation and social modeling, organizing micro-dynamics of capture under decision-making opacity, while human attention is elevated to the category of raw material and absorbed by an interface *design* that governs signs, hierarchizes visibilities and maximizes permanence and emotional excitability as economically measurable variables.

From Dowbor's perspective, algorithmic capillarity not only expands scale, but reconfigures the user as a unit treatable by calculation[197], that is, as an individual isolable and governable by inference, converted simultaneously into a source of information, risk and return. Along these lines, the author states that billions of people cease to represent an incalculable mass and become isolable individuals, sources of information and customers, whether they like it or not DOWBOR. Within this horizon, the offer ceases to operate as a uniform pattern knowable in advance and comes to function as a contingent set of conditions modulated by continuous

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ptimization DOWBOR. The consumer's experience thus becomes a

ments of frictions,

effect is the directed instability of the promised functional value, with enough opacity to frustrate auditing and to shift control of enjoyment to the platform.

These silent adjustments of frictions, permissions and benefits rest on the normative and technical reintroduction of scarcity, which does not operate as simple “pricing”, but as a programmed restriction of circulation. Economic freedom is thus preserved for the agent who controls the infrastructure, while costs of freedom and autonomy are transferred to the user, reconfiguring the space of consumption as a zone of dependence and management. The asymmetry is particularly sensitive in IOCs, in which experience, access and rights of use take place under opaque and unilateral mediations, creating conditions for an extractive rationality of value capture through access control.

This reading, however, is not reduced to a denunciation of the technical potential of digitalization, precisely because the scarcity described here is socially imposed and not a given of the nature of the informational. Dowbor insists on the ambivalence of knowledge as an immaterial good, since, not being rival in nature, it can be shared at no additional marginal cost, which opens the objective possibility of collaborative reorganization and of generalization of access to cultural and educational goods. The legal-political problem emerges when rentier capture converts this technical abundance into scarcity, reintroducing artificial barriers and mechanisms of appropriation to preserve the logic of rent in an environment that would allow the expansion of the commons. It is this tension between emancipatory potential and rentier appropriation that makes the ontological transition described by Dowbor at once a critique of the present and a dispute over the institutional destiny of the digital DOWBOR.

The decisive point in Dowbor lies in understanding that digital monetization does not depend only on the sale of commodities, but on the capture of continuous flows of data and payments on a planetary scale and at low granularity, through mechanisms that operate below the user's radar and frequently outside public intelligibility. This diagnosis is condensed in the description of everyday life

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ms and payment systems, which leads the author to conclude that

rainage of the reso

people has been generated[198] DOWBOR. “Micro-drainage” designates a fractional and repeated extraction, made possible by algorithmic capillarity and by inference technologies that make each individual addressable as an economic target, and operationalized by tracking devices such as cookies and related identifiers.

Monetization, therefore, is not episodic, but permanent, cumulative and automated, converting private information into an asset and connectivity itself into a condition of economic subjection. Beyond the economic aspect, micro-drainage is legally sensitive because it produces an asymmetry of auditability. The platform centralizes and exclusively controls logs, metrics and modulation criteria, such as profiling, ranking and recommendation, while the consumer sees only the interface and its effects. As a result, the problem ceases to be merely one of “cost” and comes to involve evidence and material transparency, since the user has no means to reconstruct the link between capture, processing and consequences in the offer and in the experience.

Dowbor presents digital rentierism as the central economic vector of the twenty-first century and identifies, at the top of this machinery, platform conglomerates that occupy a dominant position in the organization of markets, in informational circulation and in demand itself. Taking companies such as Google, Amazon and Facebook as examples, he emphasizes that these structures operate as global monopolies capable of capturing surpluses through intermediation, data and access control, and not through a proportional relationship with the traditional production of goods and services. It is from this position of command that one understands why micro-drainage and the asymmetry of auditability are not accidents of digital consumption, but foreseeable effects of a market architecture founded on opaque intermediations and unilateral modulations. In addressing the subject, Dowbor shifts the focus from individual luxury to the dynamic of reinvestment and expansion of capacities, stating that the point is not to have yachts and airplanes, but to have a company generating profits that will be reinvested in more productive capacities DOWBOR. On the distributive plane, the shift is expressed in the rupture between

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plus and productive contribution and in the drain on social productive rentier

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between how much one contributes an

movement is further articulated with high finance and with investment structures that reinforce the stability and expansive capacity of platform power.

Advertising, in Dowbor's view, is not a moral problem of "bad content", but the economic engine that governs the curation of the informational environment[199]. "A very important dimension is the basic logic of information systems financed by advertising: the return depends on maximizing engagement, attention, which leads the media in general, and social media in particular, to privilege the news that attracts most" DOWBOR. When remuneration depends on screen time and advertising conversion, the recommendation architecture tends to reward what captures emotions and retains attention, articulating profiling, ranking and continuous modulation of the offer under criteria opaque to the user. The same rationality that organizes the individual consumption experience also reconfigures the public sphere under a structurally interested bias; for this reason, the "maximization of profit and dividends goes poorly with the dissemination of science and culture" DOWBOR.

Under this paradigm, Dowbor elevates attention to the category of central economic resource because, in the digital regime, it acts simultaneously as raw material and commodity. It is captured, held and resold as measurable engagement, converted into advertising income and into power of influence. The diagnosis appears when the author describes the battle for people's attention time in the context of the predominance of the communication and information industry DOWBOR and, even more incisively, when he states that, caught in the web of the system, we pay at every step, both in costs and in the time of our attention DOWBOR. The digital turns lifetime into an input for valorization, which makes the appropriation of that time inseparable from mechanisms of curation and choice design that maximize permanence and recurrence.

Thus, attention ceases to be mere passive "exposure" and becomes involuntary labor[200] that feeds metrics, profiling and, consequently, pricing. A capture that weighs, in the author's words, "in our pockets" and "in our heads", and which he describes as a subjective imprisonment inherent to this regime DOWBOR. In other

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tion that platforms capture is free", while "private information is appropriated free of charge" DOWBOR.

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governance, through interested curation, segmentation and persuasive interface architecture, consumer protection cannot be reduced to subsequent patrimonial restoration. The relevant harm may occur earlier, in the intelligibility of the offer and in the very shaping of the decision[201].

The result is thus the so-called demand monopolies, in which it becomes necessary to use what others use, on pain of functional isolation[202] DOWBOR. The resulting compulsoriness combines with strategies of neutralizing competitors through acquisition and incorporation, reinforcing the concentration and planetary expansion of the dominant agent DOWBOR.

It is for this reason that Dowbor refuses to describe these dynamics under the heading of markets in their classical sense. For the author, it is not a matter of competition to provide better services at better prices, since these structures charge what they want, from people and companies all over the planet DOWBOR. The demand monopoly alters the competition regime. The dispute ceases to be organized primarily by the promise of better service at a better price[203] and comes to revolve around the control of technical standards, the imposition of compatibilities and the strategic blocking of exits. The replacement of WordPerfect by Word, when a specific standard became dominant, illustrates the conversion of voluntary adherence into operational necessity and, with it, the viability of arbitrary charging on a global scale, with macroeconomic effects that the author connects to inflation from monopoly profits (*profit-inflation*)[204] DOWBOR.

This condition of inevitability thickens when the platform ceases to be merely a final service and comes to act as infrastructure for third parties, as critical support without which other economic activities cannot be carried out. Dowbor identifies in Amazon a telling example of this transition, since, by converting internal tools into services rentable to other agents, the company transforms its dominance into the capacity to become a mandatory intermediary[205], operating as an infrastructure rentier. In this design, economic strength does not reside only in the sale of goods, but in the control

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yers of the digital ecosystem, sustained by structures of very high , difficult for new e

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stabilize value capture through recurri

be a figure of speech and becomes the material form of economic command in the digital environment, determining where circulation must effectively take place.

From this, infrastructure, already converted into unavoidable intermediation, assumes the function of a toll. The consumption of IOCs comes to be lived as governed access, and the legal-technical enclosure that sustains this governance reopens, from within, the discussion on the legitimacy of blocking and on which parameters may justify it at the level of consumer protection.

At the macroeconomic level, digital rentierism can be described as a regime in which the capture of surplus is stabilized less by the proportional production of goods and services and more by the administration of rights of passage over strategic circuits, financial, informational, logistical and legal, which become conditions of possibility of everyday life. The distributive consequence is the structural intensification of inequalities, insofar as income is realized as a repeated toll, through commissions, fees, interest, licenses and access blocks, while at the same time the asymmetry widens between agents who control infrastructures and users who merely circulate within them. In the scope adopted here[206], this picture suffices to situate platform power as an informational and semiotic toll economy, in which access is governed and the circulation of signs is converted into a recurring unit of extraction.

The figure of the technofief reaches, with Dowbor, a sharper economic determination by situating the passage from industrial capitalism to a platform capitalism marked by digital rentierism. The axis of accumulation ceases to gravitate around profit derived from material production and shifts to the capture of flows[207] (of payment, of data, of decisions and of visibility) converted into value by the continuous measurement and modulation of circulation and behavior in a governed environment DOWBOR. At this stage, the platform no longer presents itself as a "producing company", but as infrastructure of mandatory passage, apt to stabilize income through a toll on each movement and interaction carried out within the ecosystem.

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ıl business, this rentierism materializes as structured recurrence, m converts ordinar

capture and stabilizes income through the governance of access. The empirical forms

vary, but the common trait is the transformation of enjoyment into an architecture deliberately designed to enable the continuous extraction of value, shifting the IOC from the register of "content" to that of a functional arrangement of permissions and restrictions.

Dowbor treats the algorithm as the instrument of command par excellence, precisely because it operationalizes this grammar of tolls by articulating economic calculation and social modeling. The algorithm selects, orders and directs the experience with the explicit purpose of financial return, which authorizes reading rules of visibility (what appears to whom), of access (what requires authorization) and of conduction (incentives to purchase and loyalty) as the expression of a codified governance[208].

This is a practical normativity inscribed in the technical architecture, in interfaces, permissions and compatibilities, which precedes and conditions the contract itself. By stating that to the rentierism that drains resources one must add the algorithmic control of people, the author makes explicit that algorithmic curation is not neutral. It operates as a device through which the extraction of value is converted into social control and subordinates even traditional companies to the logic of value for the shareholder, that is, to *shareholder value* DOWBOR.

The reason why this regime shows such resilience, in Dowbor's view, is also cognitive-institutional in nature. The mechanisms of extraction become progressively more complex and, for that reason, less understood DOWBOR, causing financial-digital exploitation to remain "a nebulous reality"[209] for almost the entire population DOWBOR. This opacity is not merely technical, but political, insofar as the asymmetry of understanding disarms social resistance and postpones state regulation.

Dowbor makes explicit the gap between a digital economic base and still analog institutions by stating that the economic base has shifted and the institutions remain in the last century DOWBOR. He also observes that immaterial money allows sophisticated forms of exploitation that are difficult to understand DOWBOR. In this perspective, opacity operates as a technology of power that reduces contestation,

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ity and produces a field of regulatory impunity in which

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proportional democratic counterweigh

In this architecture, the control of interfaces and signs ceases to be a marketing expedient and becomes infrastructure for value generation, regulating the visibility of what counts as opportunity and the very intelligibility of what counts as choice. It is precisely in this mediation by signs that the consumer's factual vulnerability (Article 4, item I, of the CDC) takes on its semiotic feature: one decides under a regime of representations and promises whose correspondence with actual delivery is structurally opaque and difficult to audit.

The analytical key lies in perceiving that such strategies do not operate as marketing "accessories" coupled to a core of enjoyment presupposed as stable, but as devices that constitute the Immaterial Object of Consumption (IOC) itself as an architecture of enjoyment. If, in the immaterial domain, the good is inseparable from what it does and how it does it, that is, from the actual experience that emerges from its technical organization and its mediation by signs, then the deliberate decomposition of that experience into toll points, such as access, progression, time and rarity, is not an external form of charging. It is the very form of production of enjoyment as an instrument of continuous extraction.

This rentier constitution of the IOC operates through the institutional conversion of technical abundance into administered scarcity. Contents and signs that could circulate widely come to be subjected to calibrated restrictions, windows and conditionings, so that the platform administers the very conditions of possibility of enjoyment in real time. What is delivered to the consumer becomes inseparable from the way in which delivery is conditioned, since income is realized as repeated charging for permanence, progression and circulation in the ecosystem.

The conversion of digital abundance into administered scarcity does not need "production" in the classical sense. The curation of access is enough. In a market of non-rival goods, rarity does not emerge as a natural limit, but as a decision of government, that is, as design and calendar that transform circulation into conditioned passage. Within the *Riot Games* ecosystem, rarefaction is not an accident. It appears as an operationally assumed and repeatable policy, which removes items

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ow of acquisition and returns them under selective windows, calibrating urgency, expectation and av

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This rarefaction by government appears in at least two modalities operationally assumed by *Riot Games*. A telling example lies in the so-called *Legacy skins*. They are presented as relatively rare not because of technical characteristics of the good, but because they "are not always available" in the store, reappearing intermittently in bundles, promotions and events RIOT GAMES.[211] The operation is typical of what Dowbor describes as a toll economy. The platform does not charge for the object as an isolated commodity, but for the turnstile of access to the catalog, that is, for control of the point of passage that decides when the good can be acquired and under what conditions. Digital abundance, which would allow permanent availability, is reconfigured into "scarcity by schedule", converting time into price and access into income.

This same mechanism gains sophistication when scarcity is not only temporal, but also personalized. The "Your Shop" feature is not limited to offering discounts, since it acts as a segmentation device that transforms the history of use into a criterion of curation of what appears as opportunity. The official description itself states that the offers are produced by comparing the player's history with similar patterns, seeking to create offers that "you will like" RIOT GAMES.[212] What is organized, in practice, is a form of individualized toll. Access to the catalog does not present itself to the user as a stable and knowable set of alternatives, but as a variable showcase, built from inferences that the consumer neither audits nor reconstructs. In Dowborian terms, the algorithm ceases to be a mere instrument of convenience and comes to operate as an economic technology of command, because it decides which goods enter the zone of visibility and under which frictions and urgencies consumption becomes probable.

Administered scarcity, from this perspective, reveals that the "good" is less the isolated virtual item and more the access regime that surrounds it. By removing and reintroducing content through windows, by modulating what appears as an offer, and by conditioning the experience to proprietary cycles of availability, the ecosystem manufactures the bottleneck that sustains income. The content could circulate widely, but it is enclosed so that circulation is experienced as passing through ated charging of attention, permanence and payment. This eral to enjoyment.

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the experience as an economically governed path, in which the platform administers access to access itself.[213]

This regime of turnstiles is not merely a marketing policy. It is anticipated as the operating structure of the service, as if the instability of the catalog and of the conditions of enjoyment were part of the "product" itself, always redesignable in the name of updating, security and improvement. The contract makes explicit that the service may be updated and modified continuously, and that the company may, to the extent permitted by law, "modify, suspend or discontinue" any part of the services, as well as "restrict your access to any feature or part of the Services" and "remove or modify Game Content, including Virtual Products" RIOT GAMES.[214] This type of clause is not a technical detail. It functions as a legal license to make abundance an administrable and, therefore, profitable field, because it allows the platform to convert what would be predictable into contingent, and what would be permanent into episodic, always under the argument of internal management of the ecosystem.

In this architecture, the so-called "Virtual Content" ceases to be a good "acquired" in the intuitive sense of the language of consumption and becomes a permission of access under private governance, subject to revision and, ultimately, to the very existence of the account. The same contractual section states that the account does not confer a "property right" on the user and describes Virtual Content as something that may be destroyed, deleted or modified within the services, including when the account is terminated or when the company makes reasonable and necessary changes[215] RIOT GAMES. It is here that the Dowborian tone finds its sharpest translation. When the supplier controls the catalog, controls time and controls the way access appears to the consumer, the economic center is not in the production of the item, but in the monopoly over the keys of the gate. Income arises from command over the conditions of passage, and passage is continuously recalibrated. Thus, the platform converts abundance into income, since, instead of selling a good, it sells passage, and transforms each reappearance, each showcase and each window into repeated charging for the right to cross its own turnstile.

Skip to content the typical operation of rentierism in the digital economy as the political and institutional conversion o

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scarcity. The synthesis appears when he states that it is always a matter of transforming threatening abundance into a new form of scarcity DOWBOR. In this framework, abundance refers to the intrinsic reproducibility of the immaterial, while scarcity designates the socially constructed result of locks and fences that reinstate price and income. The change is profound because it marks the passage from an era of producers and buyers to an era of suppliers and users DOWBOR, in which the central economic mechanism ceases to be the good and becomes the process. In this sense, today one owns a process and charges for its use[216] DOWBOR. The analytical consequence is that access becomes structurally revisable and conditional, administered as continuous permission and not as definitive transfer, opening space for unilateral reconfigurations of the rules of enjoyment.

From this standpoint, what is delivered to the consumer is inseparable from the way in which delivery is conditioned. Access to content, features and symbols that, from a technical point of view, could circulate in abundance is deliberately limited, and they are constrained to produce monetizable scarcity. The platform, therefore, does not merely alienate a good, since it administers the scarcity that it itself manufactured, continuously and revisably, converting access into conditional permission and reorganizing enjoyment as a permanently modulable process. It is this structural revisability, supported by legal-technical enclosures and by opaque criteria of modulation, that makes the extraction of income sustainable and, at the same time, legally sensitive. It intensifies the consumer's vulnerability and places the problem of the legitimacy of the enclosure back under tension as to practical verifiability.

Through the grammar of tolls, monetization strategies cease to be mere marketing accessories and come to compose the very functional substance of the Immaterial Object of Consumption (IOC). The platform institutes a field of choices and expectations mediated by signs, in which micro-drainage and algorithmic opacity deepen the consumer's factual vulnerability in its semiotic feature. As Dowbor suggests, the everyday governance of continuous services recalculates, in real time, parameters of cost, eligibility and access, causing the “product” to be lived as a regime [illegible]ons, and not as a thing delivered once and for all. It is in this sense [illegible] f a dogmatics forge[illegible] when it is confronted with objects whc[illegible]

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modulations inscribed in the very technical and semiotic architecture of consumption.

When the consumption of IOCs is analyzed with categories designed for the purchase of corporeal goods, the operative core of supply is lost, because utility does not stabilize in a thing under the acquirer's dominion, but depends on external layers under the control[217] of the supplier, such as code updates, server maintenance, authentication, compatibilities and integrations. As a result, enjoyment is sustained by continuous technical-operational support and, consequently, unilateral changes in parameters of availability, compatibility or maintenance may degrade, reconfigure or extinguish the functional value delivered to the consumer, without this being reduced to mere contractual variation, since they bear directly on the practical conditions of delivery that make the experience possible over time DOWBOR.

In Dowbor's diagnosis, this governance rests on the supplier's infrastructural dominion, which concentrates “control of access codes” and “content management”[218] DOWBOR. In this regime, the platform does not merely intermediate a consumer relationship; it institutes, through interfaces, rules and signs, the field of choices and expectations within which the decision is produced, which makes central the reading of the consumer's factual vulnerability in its semiotic feature.

The theoretically central form of “continuous change” consists in the fact that, in consumption based on repeated access, the conditions of use cease to be fixed and come to be renewed, modulated and charged recurrently DOWBOR. Thus, when the economic object shifts from “good” to “process”, access becomes structurally conditional and revisable, administered as continuous permission[219], which makes possible the unilateral reconfiguration of the rules of enjoyment DOWBOR.

This same logic reappears, from a distributive angle, in the figure of “toll capitalism”, when Dowbor describes the shift of the economic center: if, in the twentieth century, the dispute gravitated around the ownership of the means of production, the decisive contemporary field reorganizes itself around the cost of access to information-dense ts, mediated by rights, licenses, patents and other barriers that enable charging . In this regime, the

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institutional engineering that converts technically cheap circulation into conditioned access, manufacturing scarcity and ensuring that knowledge is only realized as price when its diffusion is contained DOWBOR.

In immaterial objects of consumption, utility is not exhausted in the act of acquisition, since it depends on continuous decisions of support, updating and continuity under the supplier's control DOWBOR. For this reason, the legal problem is not the mere existence of variations over time, but the possibility that changes in the architecture of enjoyment reorder, opaquely, the level of utility actually delivered.

When the redesign of the immaterial object occurs without sufficient transparency for the consumer to understand, at least in material outline, the correspondence between what is presented in the offer and what is actually delivered, the change ceases to be perceived as a simple adjustment and comes to operate as an opacifying government of enjoyment. The platform can create structural dependence by making the experience progressively conditioned. At the same time, it can neutralize the capacity for contestation by keeping decision criteria, such as ranking, access, balancing or availability, under a black-box regime[221]. These are calculation procedures oriented to maximizing return and sustained by an algorithmic capillarity that the user cannot reconstruct by ordinary means DOWBOR. At this intersection of administered scarcity, functional opacity and induced dependence, the terrain of the legal problem to be qualified below takes shape.

Dowbor formulates the idea of an inverted political sign to mark that the technical base of platforms does not carry a single purpose. The same infrastructure capable of expanding cooperation, circulation of knowledge and participation can be organized, through capture of incentives and through governance, for enclosure, extraction and government of the visible. The decisive point, therefore, is not “technology”, but the legal-institutional vector that structures access and defines whether technical abundance is converted into inclusion or into toll. For this reason, regulation is not reduced to an ex post patch; in network powers and infrastructural positions, it operates as structural design of continuity, quality, auditability and material

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(CDC), above all with regard to the material shaping of the offer and of enjoyment in governed ecosystems[222].

At the same time, Dowbor refuses to treat this systemic closure as an unavoidable technological fatality. The author records the historical possibility of breaking fences and proprietary standards, mentioning examples such as that of IBM and the migration to compatible clones, as well as the logic of open source (*open source*), which shifts the sale value without necessarily reducing the use value. Infrastructure thus reveals itself as a politically contestable field. The same technologies that today sustain oligopolies can have their political sign inverted and operate as tools of democratic connectivity, including through the guarantee of public and free access to the information highways, conceived more as streets than as toll instruments. The caveat is decisive to avoid a naturalizing reading of the demand monopoly, showing that the coercion of the technological standard does not stem from technical neutrality, but from a technique organized by specific regimes of property, governance and institutional design DOWBOR.

At the microeconomic level, Dowbor describes continuous reconfiguration as the capacity for dynamic and individualized adjustment of access conditions by information systems, that is, regimes in which essential parameters, such as cost, eligibility and terms, can be recalculated at every instant under proprietary criteria. In this register, he observes that the cost of credit is adjusted according to the bank's interests DOWBOR. What is at stake is the replacement of relatively stable rules by an operational governance that transforms each user into a unit treatable by calculation, allowing access conditions to be continuously modulated by profiling, monitoring and automated decision, deepening the asymmetry between those who administer the system and those who submit to its material updates.

Informational asymmetry, from Dowbor's perspective, is not only a classic theme of political economy on the relationship between buyer and seller, but a systemic architecture in which platforms and intermediaries accumulate hypertrophied capacities to see and calculate, while users and the State itself remain in a state of

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DOWBOR. The example of the Serasa system makes explicit the expropriation of this power: “the Seras

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have detailed information about your financial situation, and your cost of credit will be adjusted according to the bank's interests. And it was legalized" DOWBOR. This asymmetry becomes power of command because it enables discriminatory pricing[223], understood as individualized modulation of price and conditions of the same service — and, in digital ecosystems, also of the conditions of access to and enjoyment of IOCs — based on inferences about profile, urgency and propensity to pay, operated by proprietary criteria and without comparable transparency DOWBOR. By referring to Stiglitz as a reference for understanding these impacts, Dowbor inscribes the diagnosis in a consolidated tradition on informational asymmetry and inequality DOWBOR: in the digital environment, the ordinary capture of data from connected life radically amplifies this asymmetry and makes it structural, guiding economic decisions directed against the individuals themselves.

It is precisely at the convergence of administered scarcity, functional opacity and induced dependence that the terrain of the legal problem takes shape. The architecture can be governed to expand extraction, reordering the user's experience and straining expectations of continuity and predictability. The architecture of supply is not neutral: it incorporates its own ends of extraction, revealed in the way the service is continuously governed to expand income[224], even at the cost of unbalancing the legitimately expected functional minimum. The social and regulatory effects highlighted by Dowbor, including as to the need for public containment of rentier dynamics and protection against the deepening of inequalities, make up the background for understanding that contemporary extraction depends on the governance of interfaces, data and signs as new material conditions of consumption. It is from this matrix that it becomes possible to describe, with precision, the architectural rationality of extraction that structures value capture in digital ecosystems.

This operational gear, stated here as a mechanism for converting abundance into conditioned access, reappears, under different lexicons, in four systemically linked cores. First, in the explanation that, in the economy of the immaterial, under rentier

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artificial scarcity articulated with the idea of a "toll" DOWBOR. Third, in the generalization of "toll capitalism", in which access to processes and environments is enclosed to sustain permanent income DOWBOR. Finally, at the infrastructural level, when the capacity of private operators to dictate who accesses the information highways through "communication corrals"[225] is discussed DOWBOR, that is, forms of closure that convert circulation into passage conditioned and administrable by a proprietary ecosystem. In terms of an inventory of analytical equivalents, artificial scarcity can be defined as the deliberate locking of access added to the construction of legal and contractual bottlenecks that ensure the capacity to charge for entry into the ecosystem. Once this inventory is fixed, it becomes possible to stabilize an operative vocabulary to describe contemporary rentierism as government of flows and accesses, and not as a mere form of "market".

This closure worsens when the platform ceases to be merely a "final service" and assumes an infrastructural position for third parties, becoming critical support without which other economic activities do not operate. At this second level, power is no longer only that of the network, but that of the choke point. Whoever controls computing, distribution, means of payment, authentication or circulation of content comes to dictate access conditions and to carry out extraction through recurring tolls, sustained by costs and complexities difficult to replicate. Thus, the demand monopoly describes coercion by standard; infrastructure rentierism describes capture by unavoidable intermediation.

The materiality of command in platform capitalism is not located in a "good" delivered once and for all, but in the capacity to govern, in real time, the practical conditions of visibility, access and circulation that structure consumption itself. It is at this level that interfaces, data and signs cease to be mere marketing ornament and come to operate as decision-making infrastructure. What is defined is what appears to whom, in what order, with which frictions, under which permissions, on what terms and at what rhythms. Rentier extraction is realized precisely because this architecture is modulable and asymmetric, allowing the supplier to retain metrics, riteria, while the user sees only the effects on the screen and by ordinary means result. Algorithmic governance, therefo

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practical form by which the toll installs itself in everyday life, transforming the circulation of signs and permanence in the ecosystem into repeated units of monetization.

The informational toll economy translates, at the business level, into recurring forms of income that do not depend on "selling things", but on organizing access and charging for the crossing. A first modality is capture by direct intermediation, with percentages, commissions and fees levied on transactions carried out within the ecosystem, converting the platform into a mandatory intermediary of the very economic encounters it hosts. The second is advertising and attentional income, sustained by continuous data collection and by hypersegmentation, in which attention time is captured, measured and converted into revenue through curation and choice design oriented to engagement.

The third modality includes income from access layers, when subscriptions, passes, expansions, time windows and recurrence mechanisms progressively shift relevant features and content to zones of additional payment, often combined with internal units of value[226] and proprietary circuits of credit and consumption, whose utility depends entirely on permanence in the environment. Finally, the fourth modality is legal-technical enclosure, in which Intellectual Property, license agreements and architectural restrictions operate as devices of authorization and blocking, multiplying points of permission and stabilizing the scarcity necessary for the immaterial to be realized as price and income.

This economic picture makes it intelligible why, in platform-mediated consumption, traditional categories of consumer law need to be reread in light of the operational materiality of the immaterial. If extraction depends on governing access, visibility and permanence, the "product" cannot be reduced to isolated content; it presents itself as an architecture of enjoyment and permissions that structures utility over time.

For this reason, the relevant legal core shifts from mere price variation to the material offer and to control over the practical conditions of delivery,

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consumer perceives only the surface of

reconstruct the link between data capture, curation and impacts on utility. At this point, factual vulnerability (Article 4, item I, of the CDC) takes on its semiotic form. The consumer decides on the basis of signs and promises whose correspondence with functional delivery remains structurally opaque and unilaterally reconfigurable, which makes the governance of access the decisive site where the practical predictability of enjoyment is organized — or disorganized.

NOTES

192. In “Os desafios da revolução digital: libertar conhecimento para o bem comum”, Dowbor explores in greater depth this transition from industrial capitalism to a configuration dominated by digital rentierism, in which accumulation shifts from production to the extraction of rent through control over intangible assets and intermediation infrastructures. The formulation engages directly with Varoufakis's reading of the consolidation of monopolistic structures in the digital environment and helps to give the technofeudalism thesis an economic anchor, by emphasizing the capacity to capture vital flows and impose digital tolls on a planetary scale. ↩

193. Dowbor uses “new mode of production” to designate an inflection in which command over accumulation shifts from manufacturing to control over informational infrastructures, intermediations and intangible assets, with finance, data and platforms at the center. The novelty is not that industry is “digitized”, but that economic power is reorganized through the governance of access and the capture of flows at scale. ↩

194. Dowbor grounds “demand monopolies” in the specificity of the immaterial, which circulates on a planetary scale and with low territoriality, favoring accelerated concentration: “the worlds of money, knowledge and communication [...] are, precisely, immaterial [...] they circulate [...] in planetary space, without the old ‘territoriality’” DOWBOR. On this basis, the network effect turns a standard into coercion: the utility of the system depends on others joining it, which makes the choice functionally compulsory; moreover, expansion is reinforced by neutralizing competitors through acquisition or incorporation DOWBOR. ↩

195. Dowbor locates the transition to rentierism in the rupture between the appropriation of surplus and productive contribution, and sets proportionality as the criterion: when “a minimum of proportionality between how much people contribute productively, and how much they get rich” is broken, the system ceases to operate as accumulation [illegible] function as “unproductive rentierism”, that is, a “drain on social wealth” [illegible] this logic — recurring [illegible] passage — that warrants the characterization as a “toll economy”. Engaging with

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contemporary typologies, Dowbor draws on Brett Christophers to group the main varieties of *rentierism* into seven sources: Financial, Natural resource reserves, Intellectual property, Digital platforms, Service contracts, Infrastructure and Land DOWBOR. ↩

196. Dowbor's distinction between profit and rent serves to locate the shift in the axis of accumulation: profit tends to be tied to reinvestment and the expansion of productive capacity, while rent settles into capture by position and intermediation — that is, gain derived from controlling a "point of passage" DOWBOR. This precision also has a linguistic dimension, since everyday usage blurs productive income and toll income, naturalizing the idea of "investment" for unproductive placements DOWBOR. Without eliminating the ambivalence, Dowbor observes that certain services may be useful and still operate with the disproportionate extraction typical of intermediation oligopolies, when the gain stems less from productive input than from the fact that passing through them cannot be avoided DOWBOR. ↩

197. In Dowbor, the expression "unit treatable by calculation" condenses the reconfiguration of the user as an individual who can be isolated and governed by inference, turned at once into a source of information, risk and return, by virtue of algorithmic capillarity and the orientation toward financial maximization DOWBOR. In this regime, the offer ceases to operate as a uniform standard and comes to admit continuous modulation (through frictions, permissions, advantages and limits), producing functionally differentiated deliveries under the appearance of an "equal" service, without the consumer being able to reconstruct, by ordinary means, the criteria behind the variation DOWBOR. This is the basis that makes intelligible the "directed instability" of the functional value promised in the consumption of IOCs. ↩

198. The specific contribution of "micro-drainage" is not to restate that there is fractional extraction, but to make its evidentiary effect explicit: the intermediation chain is intelligible only to those who hold operational traces (logs, metrics, recommendation or ranking parameters, pricing and modulation criteria), so that the intermediary can reconstruct the link between data capture, profiling and automated decisions, while the user remains confined to the surface of the interface and to the effects they perceive DOWBOR. The legal problem thus shifts from "cost" to the asymmetry in reconstructing the link and in practical verifiability. ↩

199. In Dowbor, behavioral influence stems from the economic design of advertising-funded systems: if revenue depends on maximizing engagement and attention time, curation and recommendation mechanisms tend to favor whatever retains the user, making informational architecture a direct function of profitability DOWBOR. The fore, is aimed not at "isolated content" but at the incentive regime that ɔility and priorities i[illegible] doctrinal level, the sensitive point

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"relevance", "trends" and "personalization" may conceal rankings driven by engagement metrics and advertising return, putting strain on duties of transparency and loyalty in the governance of the user's informational experience DOWBOR. ↩

200. The notion of "involuntary labor" gains precision in Dowbor once it is recognized that the platform does not merely offer an environment but organizes an architecture of capture in which interaction itself becomes an economic input. The material premise is individualization at scale: "8 billion people [...] become isolable individuals, sources of information" DOWBOR. Seen this way, screen time, clicks, searches and browsing paths cease to be neutral residues and come to make up a diffuse production of behavioral signals that feeds profiling, segmentation and the modulation of conduct, turning experience into raw material for generating value DOWBOR. At the doctrinal level, the point is not to equate the user with an employee, but to show that enjoyment of the IOC takes place in an environment of opaque governance over the collection, processing and economic use of data, which prevents the consumer from auditing the correspondence between signs of "service", "personalization" and "free of charge" and the real conditions of exploitation, updating factual vulnerability in its semiotic form and putting strain on duties of transparency and informational loyalty DOWBOR. ↩

201. In Dowbor, capture driven by retention and return metrics depends on an architecture that organizes the visible, the desirable and the probable, turning attention and behavior into an economic input at an individualizable scale DOWBOR. The author insists, however, on the ambivalence of the technological base, whose political materialization can either sustain forms of democratic connectivity or expand the capacity for corporate manipulation on a larger scale DOWBOR. The decisive hermeneutic point is that the relevant harm is not limited to dispersed monetary costs: it may occur ex ante, in the intelligibility of the offer and in the shaping of the decision under self-interested curation, which requires duties of information, transparency and loyalty to be read in light of the consumer's perceptual integrity and of internal parameters for controlling abusive teleologies. ↩

202. "Functional isolation" designates the practical effect of the demand monopoly: the utility of the dominant service is inseparable from the fact that it concentrates the network and its ties, so that exclusion (by blocking, banning, obsolescence or loss of an account) amounts, in everyday life, to exclusion from circuits of work, social life and information, because the platform comes to operate as an infrastructure of social participation. In this grammar, formally existing alternatives may be insufficient when they do not preserve functional equivalence (interoperability, migration of contacts, history, libraries and communication standards) and when leaving means breaking communicability itself; it is in this sense that "freedom of choice" loses material

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ce choosing outside the standard may mean, in practice, being unable to and unable to belong

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stems from technical features that

planetary in short order DOWBOR, turning standards into coercion. At the doctrinal level, the category is useful for showing that signs such as “option”, “consent” and “available alternatives” may conceal structural dependence and unilateral governance of access, bearing on the CDC's duties of loyalty and information and on its prohibition of frustrating the purpose of consumption; and, when control rights and private rules function as a power of social and symbolic exclusion over IOCs, the social function of property, and of IP itself, comes back into play as an internal limit on the legitimacy of this governance. ↩

203. Along closely related critical lines, it is worth noting the term enshittification, popularized by the Canadian writer Cory Doctorow to describe the progressive degradation of digital platforms that, after attracting and locking in users, reconfigure the experience to capture value from the different groups that depend on the ecosystem, with the utility originally offered deteriorating. The term's striking popularity in the English-speaking digital environment AMERICAN DIALECT SOCIETY serves as a symptomatic record of an internationally recognized phenomenon, namely the architectural degradation of enjoyment in digital environments once functional dependence on the platform has been consolidated. ↩

204. Dowbor uses the term inflation from monopoly profits (profit-inflation) for the macroeconomic effect of the pricing power exercised by private intermediation infrastructures when dominant standards and points of passage become unavoidable, so that increases in fees and commissions feed through into inflation without any classical demand pressure or cost shock: “When these prices rise and impact inflation, they generate inflation from monopoly profits (profit-inflation).” DOWBOR. Seen this way, rising prices are compatible with a rentier rationality of maximizing dividends through markups set by the intermediary's structural position, draining income through subscriptions, fees and access “rights”, which explains the author's rejection of the conventional monetary diagnosis and his direct critique of the Central Bank's justifications: “It is not demand inflation, and the justifications of the Central Bank [...] are simply false”. DOWBOR. ↩

205. In Dowbor, the expression “mandatory intermediary” describes the passage from competition over products to competition over infrastructural position: rentier gain becomes stable when critical layers of circulation, computing and intermediation become unavoidable points of passage, shifting the dispute to control over access. DOWBOR. The Amazon case illustrates this conversion of in-house capacity into a generalized toll: “AWS as well as FBA are [...] infrastructure rentiers.” DOWBOR. By building such layers for its own services and then renting them out to third parties, the platform reorganizes the competitive field under structural dependence, since ncluding those in adjacent markets — come to operate under conditions r holds the layer. Thi barriers to replication: “Amazon c

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would be difficult for new interested parties (entrants) to replicate or try to challenge through competition." DOWBOR. The relevant legal point is that intermediation ceases to be a mere "neutral" service and comes to operate as unilateral governance of the point of passage, with effects on continuity, on the conditions for remaining, and on the power to impose recurring costs in dependent digital ecosystems. DOWBOR. ↩

206. Dowbor offers a systemic framework for contemporary rentierism by emphasizing the mismatch between the digital economic base and institutions still organized around categories from the previous period, which contributes to the persistence of extraction mechanisms that are barely intelligible in the public sphere DOWBOR. Within the scope of this research, this observation is used only to delimit the framework, situating platform power as an informational and semiotic toll economy — extraction founded on mandatory intermediation, governance of access and capture of the circulation of signs. ↩

207. In Dowbor, the "capture of flows" designates the transformation of digital circulation into a continuous economic asset: payments, data, attention and decisions cease to be side effects of use and become part of a measurable and monetizable flow, whose extraction depends on keeping enjoyment within controlled layers (accounts, permissions, proprietary standards, terms of use and curation), reducing the possibility of meaningful use outside the governed perimeter DOWBOR. The category reinforces that the consumption of IOCs takes place as administered and continuously modulable access, and that the opacity of how this retention works projects duties of transparency and loyalty onto the material shaping of the offer (CDC), especially when legal-technical fences (including IP fences) are attached to the perimeter to stabilize capture DOWBOR. ↩

208. The notion of codified governance, in Dowbor's diagnosis, indicates that the central normativity of platforms does not lie in the contract alone, since it is materialized in advance in the very technical architecture that defines the field of the possible, turning *design*, permissions and access rules into a practical regime of authorization and blocking. This command becomes capillary because "algorithms and artificial intelligence allow a capillarity that reaches every individual in the world" DOWBOR, reducing "consent" chiefly to ratifying an arrangement already in place, as the ordinary experience of compulsion suggests: "I cannot move unless I am all the time authorizing some network to install cookies" DOWBOR. Seen this way, the contract tends to operate as an after-the-fact discursive stabilization of a control already inscribed in the code, including in the administration of "access codes" and in "content management" as structuring dimensions of the platform DOWBOR. At the doctrinal level, this primacy of technical architecture requalifies factual vulnerability as semiotic [illegible] signs of choice ("accept", "configure", "personalize") may conceal the [illegible] ssibility of bargainin[illegible] criteria, limitations and effects, rei[illegible]

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loyalty in the shaping of the offer and of enjoyment (CDC). When this practical normativity is combined with technical fences and exclusivity regimes, the closure of access must be read in light of internal limits of legitimacy, above all when the effective teleology of the design shifts toward a regime of precarious and revocable tolls on the enjoyment of IOCs DOWBOR. ↩

209. According to Dowbor, the “nebulous reality” is not a spontaneous information deficit but an institutional effect of the growing complexity of contemporary mediations through which surplus is appropriated, which makes them less intelligible and therefore harder to politicize and to attribute in common understanding DOWBOR. The consequence is a practical blockage of collective response, associated with the picture of “institutional impotence”: “The institutional impotence we face leads us to a disastrous systemic disarticulation” DOWBOR. At the same time, the author refuses to naturalize this opacity as a technical fatality and makes its contestable character explicit when he states: “This book is about making visible and understandable how the mechanisms work today” DOWBOR. In platform consumption, this nebulousness reinforces the insufficiency of merely formal transparency: making terms, policies and documents available does not remove the practical unintelligibility of the mechanism that organizes the capture and the toll embedded in the experience, which puts strain on how the duties of information, clarity and objective good faith in the CDC are read DOWBOR. ↩

210. The contractual normalization of contingent availability and of the unilateral power of curation appears explicitly in Clause 4.5 of the Riot Games Terms of Service. The contract describes Virtual Content not as the user's permanent stock, but as an object of continuous intervention by the supplier. In the same clause, it states expressly that virtual products “may (and probably will) evolve over time” and even admits changes to the “purchasing power of Game Currency”, citing as an example an increase in the number of coins needed to acquire “Virtual Products, such as skins” RIOT GAMES. ↩

211. In the official support material, the rarity of Legacy skins is described as the direct result of planned unavailability, not as a natural trait of the good. The page states plainly that “Legacy skins are relatively rare because they are not always available for purchase in the Store” and adds that, “from time to time”, they may be found “in bundles or in promotions during events” RIOT GAMES. Couched in institutional language, this formulation materializes the transformation of digital abundance into administered scarcity, since the circulation policy is not a technical consequence but a decision of catalog curation. ↩

212. The logic of segmentation and personalization, which turns usage history into an [illegible]erion, appears clearly in the “Your Shop” FAQ. Answering why offers [illegible]ions the player rarely uses, the material states that the system “uses your player history from the last six mo[illegible] patterns and create offers you will like” RIOT GAMES. The sentence is methodologically

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valuable because it does not depend on outside inference: it admits that the storefront is produced by analyzing history and by comparison, which supports reading personalized tolls as a form of governing access, operated under proprietary criteria with low auditability. ↩

213. As an interface dictionary and a bridge to references, the *Legacy Vault* entry sums up, in technical language, the idea of availability in windows. It describes the vault as a set of cosmetic content "only available [...] during special events", including retired skins ("retired") and seasonal content LEAGUE OF LEGENDS WIKI. The *Your Shop* entry, in turn, describes the feature as a periodic sale "personalized based on the player's match history", with six offers generated from the history of the last six months LEAGUE OF LEGENDS WIKI. These descriptions do not replace the official source, but they help name the mechanism and settle an operational vocabulary for the analysis. ↩

214. The normalization of the service's continuous mutability appears directly in Clause 10.2 of the Terms of Service, which reinforces the reading that administered scarcity is not an "event" but a structural prerogative, one that turns the predictability of access into a variable of management and monetization. ↩

215. Clause 4.4 reinforces that there is no appropriation in the classical property sense, which supports reading enjoyment as a governed position rather than as the consumer's ownership. The contract states that the account "does not grant you any property right over Virtual Content" and limits liability for "damages arising from the destruction, deletion or modification of any Virtual Content", including "for any deletion of Virtual Content after the termination of the account" or for "reasonable and necessary" changes RIOT GAMES. Economically, this legal framing helps explain why the platform is able to run the catalog as a toll, since access ceases to be something the consumer secures and becomes something the supplier recalibrates. ↩

216. Dowbor uses the formula "owner of a process" to indicate that, in digital rentierism, capture no longer depends on transferring a good and instead becomes stable through continued control over the conditions of use, turning enjoyment into authorized permanence within a governed circuit DOWBOR. Seen this way, the relevant economic object is not "content" as such, but the operation of access itself — its permissions, compatibilities and continuity criteria —, so that use becomes structurally conditional and subject to unilateral revision DOWBOR. As a consequence, the guarantees intuitively associated with acquisition lose practical substance: availability, continuity and the power of enjoyment come to depend on the infrastructure holder and on the private rules that administer the process DOWBOR. ↩

217. The architecture of access and enjoyment designates the set of technical and ers that sustain the utility of IOCs over time — code updates, , server availability, reason, move consumption from th

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participation in a governed process DOWBOR. Dowbor describes this mutation as the institutional passage from a regime of producers and buyers to one of suppliers and users, and as the replacement of concrete property by recurring control over a process, in which economic capture is achieved by charging for use DOWBOR. Since enjoyment depends on these layers under the supplier's command, unilateral changes to maintenance, compatibility or access parameters may reconfigure the functional value delivered to the consumer — through degradation, locking or discontinuation — without the classical categories of acquisition and permanence of the good adequately capturing the phenomenon DOWBOR. ↩

218. The reference to conditions of possibility is meant only to clarify that enjoyment of the immaterial depends on the supplier's infrastructural control over the practical regimes of access and circulation, so that the consumer's experience is structured by permissions and mediations controlled by the offeror — that is, by the administration of "access codes" and by "content management" as material dimensions of supply DOWBOR. ↩

219. For Dowbor, rentier enjoyment of the digital tends to be organized as authorized permanence in a process: access can be continuously conditioned and revised by the infrastructure holder, instead of being settled by the classical logic of delivering a good DOWBOR. This precariousness does not denote an occasional failure but a functional feature of the arrangement, since the supplier retains the capacity to restrict, reconfigure or end the experience by administratively modulating permissions, normalizing social life as a circuit of passage and recurring charges: "Living ceases to be a stroll [...] to become a permanent race from toll to toll." DOWBOR. Taken to its limit, the very idea of access is recast as governance by instituted scarcity, as the metaphor suggests: "Free access to the sea does not fill anyone's pockets. Let us close, then, the beaches. [...] we become increasingly trapped in the race to increase our monthly income, without which we will be deprived of a series of essential services." DOWBOR. Within the scope of the CDC, this reinforces that signs of "service", "plan" and "purchase" may mask structurally revocable enjoyment, increasing opacity and making it difficult, in practice, to anticipate and contest relevant changes in the conditions of use DOWBOR. ↩

220. According to Dowbor, the "barriers that allow charging" are not limited to technical locks or to licenses taken in isolation. Rentier capture of the immaterial becomes stable when the legal order reinforces the enclosure, including through repressive means, making circumvention of the locks unlawful. It is in this sense that the author describes the corporate hardening of control as a "strategy implemented through a series of new laws intended to extend the copyright term of the work, reinforce ties for infringing copyright, and to punish the use of technologies that the digital obstacles institutional effect is to turn the or

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conditioned circulation: exclusion – through reinforced technical-legal fences – becomes a condition of possibility of the toll, that is, of income extracted through control over access rather than through the social utility of dissemination DOWBOR. ↩

221. The “black-box regime”, in the reading proposed here on the basis of Dowbor, designates an institutional form of opacity in which relevant decisions are moved to proprietary layers of calculation and organization – ranking, eligibility, visibility, balancing and availability – beyond the user's ordinary understanding, in an environment marked by algorithmic capillarity and by processing geared toward maximizing economic return DOWBOR. The practical consequence is evidentiary and cognitive: the consumer has neither understandable traces nor a common language with which to reconstruct the actual criteria by which the service is modulated, even though they experience its effects directly in enjoyment DOWBOR. In such a context, even when formal terms and documents are available, transparency may remain insufficient for oversight and attribution, since the relevant decision-making mechanism remains unintelligible – a point that ties in with the diagnosis of increasing complexity and opacity and with the insufficiency of merely formal transparency DOWBOR. ↩

222. Dowbor frames the “inverted political sign” as a thesis of institutional reversibility: the same technical base that today sustains drainage and enclosure can be organized for purposes of well-being and democratization, because the decisive vector is not “technology” as such, but the arrangement of incentives and governance that structures access DOWBOR. The contrast emerges when the author observes that, while technology makes cultural goods more accessible, “the laws [...] evolve symmetrically to make access ever more difficult”, shifting the conflict to the legal and institutional regulation of enclosure DOWBOR. Hence the conclusion that the “right of access to knowledge” becomes an axis of economic democratization DOWBOR. This diagnosis finds a parallel in the treatment of network infrastructures and of situations without effective competition, in which “private property and ‘economic freedom’, when there is no competition, lead to abuses”, that is, “it is private property, but not market”, with a loss of public purpose DOWBOR. The framework supports reading consumer law as bearing on the material shaping of the offer and of enjoyment in governed ecosystems, under requirements of transparency and loyalty that take into account the practical difficulty of reconciling profit and social objectives in hybrid structures DOWBOR. ↩

223. Discriminatory pricing, in Dowbor's diagnosis, stems from the capacity for individualization at scale. Instead of appearing as public and comparable attributes of the offer, price and conditions become variables calculated per user, modulated by [illegible] socioeconomic inferences geared toward maximizing return DOWBOR. The Serasa example serves as an in[illegible] recording that “your cost of credit will be adjusted according to the bank's interests”,

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which shows that calibration may exploit information asymmetries and estimated needs, and not merely reflect “risk” in a neutral sense DOWBOR. The decisive legal point is not the existence of transparent segmentation, but silent differentiation that prevents price from being socially comparable and makes it harder to reconstruct discrimination in evidence, since the criteria and data behind the modulation remain under the supplier's control. Seen this way, signs such as “personalization” may operate as an opaque technique of extraction, putting strain on duties of material transparency and loyalty in the shaping of the offer and, when anchored in the exploitation of urgency or fragility, coming close to the logic of manifestly excessive advantage (Article 39, item V, of the CDC). As internal parameters of control, open auditability and functional value equivalence apply here to make the logic by which price and conditions are formed verifiable, and to allow judicial review of the gap between what is charged and what is delivered in IOCs. ↩

224. In Dowbor's diagnosis, unproductive rentierism takes on a distributive expression when the proportional link between productive contribution and enrichment is broken, consolidating itself as a drain on social wealth in favor of rentier positions; for the author, this shift marks the move of the axis from capital accumulation to the logic of unproductive rentierism DOWBOR. It is in this sense that the architecture of the service can be governed to expand extraction, shifting the axis from “gain” to the recurring toll embedded in the mediations. ↩

225. The expression “communication corrals”, used by Dowbor, designates the infrastructural closure through which private operators come to control the conditions of access and circulation on the information highways themselves, consolidating the power to select, condition and administer enjoyment in proprietary environments DOWBOR. This closure is not merely a neutral technical option, because it involves the coordinated appropriation of layers ranging from “physical infrastructure” to “codes” and “content”, moving the governance of informational space into private regimes of passage DOWBOR. In economic terms, the “corrals” are a condition of possibility for recurring charges for access and permanence, since they turn circulation into an administered crossing and thus make it compatible with the toll rationality that runs through the diagnosis of contemporary rentierism DOWBOR. ↩

226. Internal units of value in closed digital ecosystems (points, proprietary “coins”, bundles and bonuses) operate as a technology for the economic governance of consumption by moving the user away from state currency and direct price comparison toward unilaterally defined denominations, with conversion tables and bundle sizes that may fragment the perception of spending and induce successive top-ups (recurring leftovers, partial recharges, conditional bonuses). The design can be tible with the logic of tolls and repeated micro-extraction described by ar as it brings payme that the individual barely notices

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lock-in: once converted into an internal unit, the balance tends to lose general fungibility and become an asset held captive by the ecosystem, raising exit costs and making staying a practical condition for not losing value already internalized. At the doctrinal level, this requalifies price as a semiotic component of the offer: signs of "promotion", "advantage" and "convenience" may conceal conversion frictions, limits on circulation and restrictions on redemption, putting strain on duties of information, transparency and loyalty and, depending on the case, on the prohibition of manifestly excessive advantage (Article 39, item V, of the CDC). When this closed circuit is combined with technical and contractual restrictions on circulation, the governance of access through turnstiles and crossing costs is reinforced, which is the core of the diagnosis of tolls and disproportionate extraction DOWBOR. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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The discussion of technofeudalism and digital rentierism then moves to the operational level, prompted by a central question: how can platforms extract value from ontologically non-scarce goods and, at the same time, stabilize positions of power that are analogous to feudal lordship?

Under the IOC regime, the business model tends to depend on deliberately engineered scarcity and risk, turning enjoyment into a toll circuit and permanence into a practical obligation. The platform does not profit merely by "selling", but by governing access, modulating the experience and making exit costly.

When technical reproduction is cheap and availability could be expanded, income is sustained not by natural rarity but by produced rarefaction, which shifts the center of gravity of economic power. Instead of competing chiefly on productive efficiency or on the intrinsic quality of a good, what comes to matter is control over gateways, protocols, interfaces, catalogs and authorization regimes, that is, control over the very symbolic and technical infrastructure that organizes consumption.

In the immaterial domain, technical reproducibility lowers marginal cost and shifts the conflict to control of access. For this reason, when persistent unavailability, exclusivity and "last chance" are observed, the decisive fact is not natural rarity but rarefaction by design, sustained by authorization, catalog and visibility regimes that turn abundance into a toll.

In the domain of immaterial goods, subjection intensifies because technical reproduction dissolves the limit that traditionally contained economic power, namely physical rarity. With digital objects, the marginal cost of reproduction tends to fall [Skip to content] eory, availability could expand without requiring productive capacity comparable to that of the fact

this reason, when a persistent regime of unavailability, exclusivity and last chance is observed in these markets, what one faces is not a natural condition of the object but a deliberate institutional choice, so that scarcity appears not as a fact but as a project.

As a consequence, the platform no longer monetizes only the delivery of a good and comes to monetize control over access and time. It does not sell a “thing”; it sells passage, permanence and predictability in an environment that it governs itself. And for this government to generate income, friction must be reintroduced where technology would produce abundance. At this point, artificial scarcity and rentierism cease to be mere *marketing* and productivity tactics and become structural operators of the business model itself.

The platform creates windows, rotations, *tiers*, seasonal events, passes, countdowns, limited bundles and conditional acquisition mechanisms. It then turns this arrangement into a narrative, speaking of “rarity”, “exclusive”, “last chance”, “collectible” and “special edition”. This narrative is in turn operationalized by interfaces and rules that make the user's experience dependent on continuous attention. The non-scarce is made scarce by design and, in the process, the foundation of a rent economy is consolidated.

This regime of rarefaction by design finds its most direct economic translation in the diagnosis of informational rentierism. What is monetized is the authorization to enter, to remain, to accelerate, to stand out and not to lose. The platform, therefore, does not operate merely as a supplier of goods, since it operates as the turnstile of an environment in which consumers retain value only if they accept cycles of repeated charges and shifting terms. It is at this point that artificial scarcity ceases to be ornament and becomes an engine, since it continuously manufactures the practical conditions for the toll to seem natural.

At the microarchitectural level, this shows up clearly in continuous digital services, especially in the games-as-a-service ecosystem. Acquisition no longer means the stabilization of a good beyond the supplier's reach and comes to mean enjoyment [illegible]rnance. The consumer does not buy a “thing” and take it home;

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regime in which th[illegible]

infrastructure they do not control, cut

closing of events, catalog rotation, reconfigurations of in-game currency and policy changes. The platform monetizes access in layers: it charges for entry, for acceleration, for convenience, for symbolic differentiation, for return and, above all, for mitigating the risk that it manufactures itself.

Thus, the informational rentierism described by Dowbor finds its microarchitectural counterpart in the everyday life of platforms. The toll does not present itself only as an entry price. It reappears as a repeated charge for permanence, organized around time, attention and the predictability of cycles. In the industrial economy, the consumer pays to acquire a good whose existence, once purchased, tends to stabilize beyond the supplier's reach, at least within reasonable expectations of durability and of the rules on defects.

The critical point is that this model needs its own grammar of risk. In classical markets, the relevant risk is the risk of defect, malfunction, lack of safety or objective breach of the offer. Here, the efficient risk is a different one: the risk of missing the *timing*, of missing the window, of losing status, of "falling behind", of watching symbolic value evaporate and, of course, the risk of losing functional value within the ecosystem. It is an engineering of opportunity and belonging, and its consumer is compelled not by the lack of the good itself, but by the threat that their position within the environment will be discontinued.

This alters the legally relevant object of the relationship. Coercion appears neither as violence, nor as direct prohibition, nor as an explicit imposition to buy; it appears as functional and semiotic dependence, built by design. The platform governs scarcity over time, and by governing time it governs the economic meaning of the object. The value of what was "acquired" comes to depend on cycles, calendars, rotations and unilateral rules. Consumption, in this register, becomes the management of anxiety. Its experience is organized so that continuous presence seems a rational requirement rather than a capture.

Once rentierism is understood as a logic of recurring extraction, its operational
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"upfront" prices but on managing risk

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producing an economy in which the consumer decides under time pressure, under threat of symbolic loss and under structural opacity as to the future of the catalog and the rules. The economic diagnosis then becomes a legal axis, since the platform does not merely offer, it governs, and governs by design.

The manufacture of risk is central to understanding why artificial scarcity is not a marketing detail but a technique of power. In environments of continuous enjoyment, the most effective risk is not the risk that the product "does not work", which would belong to a classical grammar of quality defect through inadequacy. The decisive risk is the risk of missing an opportunity, of falling behind, of not belonging, of losing status, of seeing the desired object go out of circulation and of having the symbolic identity built in the ecosystem depreciate.

This risk is not natural. The platform calibrates it through a temporal architecture, with seasons, *splits*, *metas* and missions. It is also calibrated through an offer architecture, with rotation, scheduled exclusions and variable catalogs. To these are added a reward architecture, with progression systems and *grind*, and a sanctioning architecture, with bans, restrictions, automated penalties and opaque policies. Users find themselves compelled to follow, to return and to keep up with the ecosystem, on pain of symbolic and material-digital loss.

The temporal architecture that manufactures urgency does not operate only through seasons and rotation, since it turns into discipline when the bond itself is formatted as a circuit of tasks. Missions are the operational name of this conversion. They push consumption up against labor by making permanence a requirement to "earn" what will later be presented as a reward or as a right to unlock. The command appears not as an authoritarian order, but as an infantilized phrase of social contract: do something, get something. In terms of political economy, it is the typical gesture of turning time into currency without ever calling it labor, and of turning engagement into value without ever calling it production RIOT GAMES[227].

The contract does not leave this mechanism at the level of the rhetoric of "events" : into the very grammar of acquiring virtual goods by stating that :ency and Virtual C
or earning, and that such "earning" ma

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The platform therefore formally recognizes a path of acquisition that runs not through direct payment but through the fulfillment of internal objectives, objectives defined by the supplier itself, with criteria and rewards defined by the supplier itself, and whose effectiveness depends on remaining in the ecosystem. This is no minor detail. It is the moment at which the incorporated exterior, which seemed to be merely a "user", is reconfigured as an operator who works to make enjoyment itself possible, stable and monetizable RIOT GAMES[228].

When the mission becomes the unit by which time is organized, what is bought and what is "earned" begin to merge in a single circuit. Currency and items no longer appear as simple deliveries, but as prizes conditional on following an agenda. This agenda in turn produces the central effect that Marx describes in diffuse labor, since the consumer is induced to internalize as a need what is ultimately a requirement for the reproduction of command. The game becomes a metagame, and the metagame becomes a mechanism of extraction. Rather than freeing the user, the reward ties them to the cycle, since it presents itself as "progress" and "accumulation" that make sense only while the platform keeps its regimes of equivalence, visibility and distinction alive RIOT GAMES[229].

To keep this description from becoming an abstraction, it is enough to note that the ecosystem's own interface dictionary records missions as objectives with criteria, progress tracking and rewards, varying with events and seasons. The consumer, then, does not merely play. They carry out a schedule for producing numbers, presence and compliance, whose social form is that of an obligation disguised as choice. Diffuse productivity becomes routine. And routine becomes, without scandal, a method of monetization LEAGUE OF LEGENDS WIKI.

When this control over the existence and duration of the object is exercised systematically to intensify urgency, dependence and extraction, the problem ceases to be merely "contractual freedom" or a "legitimate business model" and becomes one of purpose. The rationality of the system reveals itself in the pattern, not in the episode. The dividing line does not lie in the fact that artificial scarcity exists, nor in the fact

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ts rarity as a sales technique, but in the way scarcity and temporality are mobilized to produce,

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adequacy or precarization of the functional and positional value that grounded the consumer's consent. If scarcity is produced as an instrument of recurring capture and if access is designed as precarious authorization, the architecture comes to operate against the legitimately expected functional minimum, straining good faith, material transparency and balance. In this framing, the discussion about clauses and policies is not peripheral. It is the visible surface of a teleology embedded in the design of the service. This prepares the dogmatic qualification of the deviation of purpose when the arrangement itself is calibrated to exploit the consumer's inability to audit the equivalence between promise and delivery.

This distinction can be illustrated by contrasting positional scarcity with corrosive scarcity. Selling a commemorative edition or a rare cosmetic item during a short window may manufacture urgency and capture value through opportunity, provided that it leaves the delivery owed intact and gives the consumer clear parameters on duration, form of access, limits of the offer and any future repetition. This is additive rarity, whose effect falls on the consumer's choice without lowering the integrity of what has already been acquired or degrading the experience of those who choose not to buy. Quite different is a design in which the object or the set of advantages already obtained deliberately loses status, power, practical relevance or use value if the consumer does not pay for new layers, does not complete retention routines or does not submit to imposed update cycles, manufacturing default by architecture. In this second scenario, scarcity ceases to be a simple commercial strategy and comes to operate as a mechanism for frustrating adequacy, because maintaining the functional value of the object is turned into a permanent toll, paid in money or in compulsory presence, which reconfigures the contract as a dynamic of unstable permission and reinforces, through the very structure of the design, the supplier's governance asymmetry.

There is, however, an even more commonplace and equally abusive mode, which depends neither on loss of access nor on extreme degradation of functionality, and which manifests itself as positional deception by omission. When the platform sells [illegible] price on the promise of exclusivity, or presents exclusivity as a justify price and spending, it incorporates this quality into the content of the offer and into the perce

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consumer pays not only for aesthetics or immediate availability, but for the promised rarity, for the status and for the social distinction that the ecosystem's own symbolic architecture enforces. If, after a period, the same item reappears in an alternative store, for a special currency, in an aggressive promotion or at a significantly lower price, and if the time limit on the exclusivity was not disclosed adequately and understandably at the time of acquisition, the value delivered is retroactively reconfigured, frustrating legitimate expectations and violating transparency. Scarcity here may operate as a device for capturing consent under inadequate information, potentially qualifying as misleading advertising by omission and breach of the offer, in addition to breaking the equivalence between spending and utility delivered as legitimately expected. The legal consequence is not exhausted in subjective discomfort, since the subsequent change to the attribute that justified the price may call for material restoration through the typical remedies of consumer law, by refund, price reduction or equivalent functional compensation, and may also open the way to damages when additional harm arising from the positional deception is shown.

Artificial scarcity thus functions both as an economic operator and as a legal operator. Economically, it turns replicable goods into assets capable of sustaining recurring monetization. Legally, it is frequently anchored in exclusivity rights and in contractual arrangements that authorize unilateral control over the catalog, the rules and the very ontological status of the object, such as revocable licenses, non-transferability and reserved rights of modification, as well as access and interface architectures that make enjoyment an unstable permission. The result is a form of market in which asymmetry is not limited to the supplier's "superior knowledge". It materializes in the supplier's very capacity to define what exists, for how long, under what conditions and under which narratives, including with respect to positional attributes offered as components of the price. For this reason, artificial scarcity must be understood as part of an architectural teleology. It belongs to a set of design choices aimed at extraction rather than at the simple efficient organization of a naturally limited resource, and it is at this threshold that it ceases to be mere commercial strategy and becomes a legally relevant category for qualifying deviation

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Architectural teleology manifests itself not only in clauses and policies, but in the way the interface organizes visibility, calculation and risk. It is at this level that the toll becomes material, even when it does not take the form of an explicit charge. Three features tend to recur. The first is the coercive time window, which narrows the space for decision and turns not acting into predictable loss. The second is the sanction for absence, in which the mere interruption of use triggers a downgrade of status, access or opportunity, turning permanence into a practical obligation. The third is the opacity of price and equivalence, achieved through intermediate currencies, bundles and conversions that prevent the consumer from comparing costs, measuring spending and auditing, in functional terms, the promise and the delivery. When these features combine, the toll ceases to be a simple marketing strategy and becomes coercion built into the mode of enjoyment.

A recurring example is the battle pass, in which the consumer pays for the chance to unlock items, but actual enjoyment depends on a race against the clock and an imposed volume of engagement that, if not met, turns the initial payment into precarious access and projected loss. The urgency is not incidental. It is manufactured to push the consumer to spend disproportionate screen time, or to make a new purchase to make up for lost pace, so that non-use becomes a designed form of default. Another example is the scheduled downgrading of ranking and visibility for inactivity, which turns absence into punishment and makes anxiety a cost of holding one's position, even when there is no new functional delivery to justify the degradation. A third example is the system of layered virtual currencies, in which purchases are made not in legal tender but in intermediate credits and successive conversions that fragment perception, mask the real price and hinder comparison, reinforcing the inability to audit the equivalence between what is promised and what is delivered. These mechanisms are not mere *design* embellishments. They are the normal way the toll is collected in continuous immaterial consumption.

The management of this relationship, however, tends to take an even more characteristic form, which helps explain why these mechanisms are so effective. The platform treats the consumer relationship itself as a game in its own right, a parallel to the main product. The user is there for the matches, for the interaction with others and for the

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interface induces them to take part in a continuous contest to keep access, opportunity and status, now not against other players but against the very structure that governs the environment. It is a game rigged by design, because the supplier is at once referee, rule-maker, scorekeeper and beneficiary of the informational asymmetry. By turning permanence tasks, time windows and progression systems into the language of merit, the platform shifts to the consumer the burden of avoiding predictable losses and normalizes the idea that enjoyment depends on "making an effort" not to lose what has already been acquired or to preserve symbolic value within the ecosystem. The house always wins, not out of rhetorical fatalism, but because the governance regime controls the conditions of victory, reconfigures goals, alters equivalences and manages scarcity, time and visibility as instruments of recurring extraction.

These mechanisms are legally relevant because they reconfigure the consumer's decision-making autonomy and the very adequacy of the object, shifting the center of value to conditions of enjoyment that are unstable, unilaterally managed and far from transparent. Scarcity, in this context, is not only the rarity of the item, but the governed rarefaction of time, opportunity and recognition. When the platform designs the experience to produce predictable loss, impossible calculation and dependence on permanence, it turns supply into a dynamic of unstable permission and reinforces the deviation of purpose already noted, because the architecture comes to operate against the legitimately expected utility and against the trust on which the contract rested.

It is from this point on that the IOC category becomes absolutely necessary to ensure intelligibility for the consumer user. In continuous digital services, the immaterial object of consumption is not an isolated good. It is a bundle of functions and signs whose integrity depends on coherence among promise, delivery and the preservation of value over time. When the platform organizes artificial scarcity and risk as pillars of its business model, it shifts consumption into a regime of enjoyment in which the consumer's autonomy is systematically strained by urgency, opacity and identity dependence. The consumer decides under produced conditions. This is not merely vulnerability. It is factual, semiotic and temporal vulnerability, since the

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field of choice is pre-formatted and the economic meaning of the object depends on the very environment the supplier governs.

Within this framework, the IOC functions as an operator for reconstructing supply and for scrutinizing the supplier's justificatory discourse. It requires treating as legally relevant variables that, on platforms, tend to be precisely the variables of extraction. These include the durability of functional value, the minimum stability of the conditions of enjoyment, catalog governance, the reasonable predictability of changes and the possibility of auditing what was promised as utility.

If the ecosystem is structured to produce risk, scarcity and dependence as engines of consumption, legal analysis cannot be confined to an episodic reading of a single term or to a snapshot of a *patch*. What is being qualified is a regime of governed enjoyment. It is the persistence of the mechanism that makes it possible to move from economic description to the identification of an operative purpose and, where applicable, to the characterization of the unlawful act of abusive teleology.

Once the decisive risk becomes the risk of losing opportunity and position, the platform gains an instrument of command that does not depend on the isolated quality of a product. The axis shifts from “delivering something” to “retaining someone”. The discipline is not “buy this”; it is “stay available”, “be present”, “follow the cycle”, “don't miss the window”, on pain of devaluing what has been accumulated so far. The coercion is soft but structuring, since it appears as a rationality of permanence.

It is here that the metaphor of technofeudalism leaves the aesthetic plane and becomes a functional description. Power is stabilized not only by price, but by the cost of exit. Leaving means abandoning history, reputation, library, items, progression, emotional investments, social networks and, in some cases, the very ability to take part in communities organized within that ecosystem. The more the object of consumption is governed enjoyment rather than a delivered thing, the more the dependence is on infrastructure, and the more “competition” becomes a contest

n rather than over the excellence of the good.

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Continuous extraction is not sustained by recurring charges alone, since it depends on a return of value that comes not as price but as activity. Every session, click, match, search, comment, purchase, abandonment, return and comparison keeps the ecosystem alive and feeds metrics, network effects, reputations, hierarchies and engagement cycles. This is more than measurement, because this activity is converted into data and metrics, processed by telemetry and by machine learning models that refine monetization strategies, calibrate reward probabilities and modulate matchmaking and recommendation algorithms, adjusting the very functional architecture of the Immaterial Object of Consumption.

The platform is not merely selling an experience, since it turns presence into an asset, valuable both economically, in revenue, *valuation* and market power, and politically, in the capacity to influence conduct and structure meanings. The user continuously tests, legitimizes and improves the system, supplying behavioral *feedback* on a massive scale, without any legal recognition of this diffuse labor.

The institutionalization of the Public Beta Environment (*Public Beta Environment*, *PBE*) makes this diffuse labor visible in its most literal form. The ecosystem creates a "downstairs" for experimentation, where the community is called on to test future versions, to put up with instability, to report bugs and to expose, at scale, behaviors that serve as a dress rehearsal for what will be launched in the main environment. What is presented as an opportunity to "help" and "try new features" is, in practice, the material incorporation of the consumer into the production process, not as end recipient but as a calibration component. Here the user is not only measured; they are mobilized as a distributed workforce that lowers the cost of quality control, widens the surface for bug detection and feeds the supplier's organizational intelligence, generating a productivity that appears not as labor but as participation RIOT GAMES 230.

This incorporation can be read more precisely by observing how the contract treats the informational core of this same circuit. In the Unsolicited Idea Submission Policy, the supplier states that it "values" *feedback*, but at the same time structures a regime of

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ving for itself the free use of ideas, suggestions and creative materials submitted by the user, witho

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or duty of acknowledgment. The effect, on the Marxian plane of the incorporated exterior, is plain. The user's contribution is useful, is absorbed and becomes part of the ecosystem's metabolism, but it is legally "dehydrated" so that it never becomes a credit, remuneration or bond. The *PBE* laboratory, then, is not merely a testing space, since it serves as an institutional symbol of what the contract does in silence. The platform acknowledges and manages diffuse productivity, but preserves the asymmetry of command, turning collaboration into an appropriable input

RIOT GAMES[231].

To keep this description from becoming an innocuous metaphor, it should be noted that the PBE is not described as a "parallel" server for ordinary enjoyment. It is presented as a testing environment geared to future features and, therefore, as a quality-adjustment stage prior to going "live". The very existence of a stable, continuous public testing infrastructure indicates that the ecosystem needs this incorporated exterior to sustain the update cycle without paying the corresponding cost in internal labor. What appears to the consumer as the privilege of early access appears, in the social form of the arrangement, as a machine for extracting time, attention and technical reporting in exchange for a promise of belonging

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This productivity is diffuse but organizable, because the platform captures data on use and attention and also captures social proof, diffusion and symbolic validation. This includes user-generated content, such as posts, comments, streams, memes, guides and reviews, which becomes an engine of visibility and recommendation and functions, in practice, as invisible labor in the production and marketing of the IOC. What circulates in this environment is not only money but also status, belonging, visibility, comparison and distinction, so that the value of the IOC lies not only in the object but in the social and semiotic environment that surrounds it.

Among the most conspicuous forms of this invisible labor is the work of content creators, *streamers* and influencers who orbit the ecosystem as if they were independent "microentrepreneurs", when in practice they function as an intensely

Skip to content corporated exterior. The platform benefits from a mass of communicative labor that not only talk

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makes the catalog intelligible and sustains the collective desire that keeps symbolic rarefaction working. This is the production of meaning as infrastructure. In the platform rent economy, producing meaning is producing value, because the consumer pays for distinction only when distinction is recognized and when that recognition is socially produced.

This ambiguity is reinforced by the contractual design itself. On the one hand, the contract insists that use is "personal" and "non-commercial", pushing creative work into a zone of conditioned tolerance, dependent on authorization, exceptions or a specific program. On the other hand, the company maintains institutional support channels for creators, with partnership programs and benefits, formalizing a functional integration without converting this integration into an employment bond nor into duties equivalent to those of an employer RIOT GAMES[232]. In this combination, the platform captures the creator's diffuse productivity as advertising and as a living informational manual of the ecosystem, but maintains the asymmetry of command, because the creator's permanence, access to benefits and the very possibility of monetizing content depend on private, revocable and selective rules.

The capture becomes even clearer when one observes the problem of intelligibility of the cosmetic "product". As of the date of conclusion of this research, the *client*[233] does not offer, in the purchase flow itself, a robust and generalized preview mechanism that allows the user to audit the experience of a *skin* before acquiring it, so that the decision depends, to a relevant extent, on external mediations that display, compare and describe the content. Riot's own representatives publicly acknowledge this discomfort when announcing experiments with mechanisms for offering previews of *skins*, making explicit that the user often does not know precisely what they are acquiring at the time of purchase RIOTMIKOUZ[234]. In this void, channels such as *SkinSpotlights* come to function, in practice, as prostheses of the ecosystem's duty to inform, because they display what the consumer cannot audit within the normal purchase circuit SKINSPOTLIGHTS[235]. The result is that a formally external agent is incorporated as a necessary piece of the circulation apparatus, delivering

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ng the risk of regret and sustaining the consumer's practical trust

in the purchase, without receiving any legal status corresponding to the economic function it performs within the regime[236].

In this picture, the user contributes to manufacturing the very rarity that governs them, since, in the immaterial, rarity is not substance, but grammar. Whoever defines this grammar, that is, what counts as legendary, exclusive, *meta* or essential, controls the circuit of value. Artificial scarcity produces urgency of purchase and also urgency of presence, because, for the narrative to be sustained, the crowd needs to see, dispute, comment and desire. Without an active community, rarity loses effectiveness. Thus, the consumer of the IOC is not only a consumer, since they are, structurally, also an input.

With this, the notion of the incorporated exterior[237] gains a decisive layer of intelligibility. The user not only pays and produces, but also legitimizes and polices, sustaining the value of the environment through presence and its governability through collective performance and defense of the fief. Recurring extraction therefore depends on a design that simultaneously organizes cheap symbolic rewards, material costs borne by the consumer and visibility mechanisms capable of improvising an audience and suppressing friction. Artificial scarcity, in this picture, is not only a rarefaction of supply. It is a rarefaction of recognition, opportunity and belonging, managed so as to turn community into a cog, engagement into value and loyalty into a barrier to exit. This architecture confirms the thesis that capture is not a marketing accident but architectural teleology, because the mechanism reproduces itself precisely by turning mediated life into a requirement for the rent regime to function.

At this point, with a strictly functional scope and with no claim to exegetical reconstruction, it is justified to draw, by strict structural homology, on the figure of the lumpenproletariat as presented by Karl Marx[238]. The aim is not to transpose categories of the employment relationship to digital consumption, nor to shift the framing of the consumer microsystem to a general theory of class struggle. The term is used as a key to understanding an analogous power structure, in which subjects lar formal production are functionally incorporated into a regime of valorization and can be mobilized a

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a command, including under the guise of spontaneity, leisure and “community participation”.

In the platform environment, this homology describes a specific mechanism of functional incorporation of the consumer. The user's presence, permanence, performance, sociability and collective recognition operate as infrastructure of network value and symbolic value. Positional goods and regimes of administered scarcity depend on this social base to convert rarity into prestige and prestige into price. It is not a matter of asserting an employment bond, but of identifying an unpaid social co-production of value, captured and converted into revenue through unilateral governance of the rules, of visibility, of the catalog and of the conditions of enjoyment. In dogmatic terms, this datum does not change the nature of the relationship as consumption. It qualifies the governance asymmetry and reinforces the centrality of duties of material transparency, loyalty and protection of trust in continuous adhesion contracts, precisely because the supplier administers, without real auditability by the consumer, the parameters that define what is worth, what appears and what is considered “rare”.

It is also in this light that one can understand a decisive and recurring practical element of digital consumption, which the language of the lumpenproletariat helps to illuminate without reducing the phenomenon to a sociological identity. The platform does not merely capture the user's participation as an economic condition of the ecosystem. It can mobilize it as a technology for stabilizing command. Consumers become activist defenders of the very regime that captures them, policing discourse, enforcing community norms, harassing critics and naturalizing tolls and reconfigurations of equivalence as if they were merit, “deservingness” or simple individual choice. This mobilization effect is not incidental, because it functions as a layer of legitimation and social *enforcement* of the *design*, increasing the system's practical opacity and hindering collective reaction, which deepens and exacerbates the position of vulnerability and makes it all the more important to delimit dogmatically when the architecture frustrates adequacy, transparency and trust, [illegible]n into an instrument of extraction.

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Historically, this is a layer situated at the margins of regular productive labor, unstable and heterogeneous[239], whose relevance, in the Marxian analysis, does not lie in being a "producing class" in the industrial sense, but in occupying a social position of exteriority to the classical circuit of labor that, even so, can be functional to certain arrangements of power. The parallel that matters here is neither identitarian nor historical, but structural.

The consumer-user of platforms stands formally outside the wage relationship and outside the classical categories of labor that underpinned industrial legal dogmatics, yet is materially incorporated into the regime of valorization as a constant source of diffuse productivity and as the base that sustains the toll.

From this point of view, the consumer approaches a digital lumpenproletariat: they participate intensely in the production of value, but do so on an opaque plane, outside the traditional categories of labor, employment contract or provision of services. Their exploitation occurs not only through the extraction of direct income, but through the structural capture of their subjectivity (of their symbolic identity and of their personal integrity) as raw material for the mode of production. When progress, status, reputation and the very continuity of access to the Immaterial Object of Consumption become dependent on unilateral decisions of the platform, the consumer finds themselves in a position analogous to that of the worker subjected to living conditions defined by others, but without the law recognizing them as such.

This is an external agent who, far from being irrelevant, is turned into an economic cog precisely because what it provides presents itself not as labor but as mediated life, attention, circulation and conduct. This homology helps clarify a decisive feature of digital rentierism. Platform extraction does not depend only on selling goods or services. It depends on governing a set of social behaviors turned into economic material. The platform captures the user's time, but it also captures their place in the collective, with visibility, comparison, distinction, belonging and reputation. This capture is at once economic and semiotic.

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ecosystem because it is from this retur

very valuation of the environment are manufactured. The “cloud serf” produces without a contract, without a wage and without recognition as labor. And it is precisely there that the effectiveness of the regime lies. Extraction is naturalized as entertainment, as habit, as sociability and as a consumer micro-decision.

The technofeudal specificity of the arrangement appears even more forcefully when one observes the inversion of infrastructure costs. In industrial capitalism, the holder of capital provides machines, facilities and means of production, subordinating labor through material control of the productive apparatus. In the regime of IOCs, the consumer comes to finance, with their own resources, the minimum infrastructure of their own economic and semiotic incorporation, paying for *hardware*, electricity and connectivity in order to remain in an environment that converts their presence into someone else's asset. This is a functional mutation of command, since the formally external subject not only feeds the system with data and attention, but also internalizes the material cost of maintaining the access that enables the capture. The result is a model in which extraction rests on a prior investment by the exploited themselves, naturalized as a technical condition of participation and masked as a consumer choice.

This financing of the infrastructure combines with a logic of reward that, by contrast, has a marginal cost tending toward zero. If, in classical arrangements of political and social mobilization, loyalty can be bought with biological sustenance, here loyalty is captured through symbolic sustenance. Insignia, *skins*, emblems, passes, prestige levels and signs of distinction function as payment, but a payment that does not remunerate, it only regulates. The supplier exchanges lines of code and calibrated scarcity for hours of life, attention and behavioral predictability of the consumer, producing the cheapest form of bribery[240] yet observable in markets, since what is granted to the user has no intrinsic value independent of the ecosystem. On the contrary, its value depends on the very informational fief that issues it, which reinforces the circuit of permanence, since the reward received only “exists” as a recognizable difference within the controller's infrastructure.

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ereading engages directly with the notion of semiotic vulnerability developed earlier. Exploi

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but at the semiotic level. The platform controls the meanings attached to certain goods (a “legendary” *skin*, an “exclusive” title), defines which symbols confer status and belonging and determines what counts as legitimate progress within its ecosystem, which in turn encourages the user to invest so much lived experience in it that it can influence even how those meanings are understood outside its sphere of action and control. At the same time, it controls the mechanisms by which the consumer can lose these symbols, including *resets*, *meta* shifts, discontinued items and changes in the relative rarity of rewards. The fear of losing what has been accumulated, of seeing one's digital identity devalued or erased, becomes an instrument of discipline, consolidating a form of existential captivity that adds to the economic captivity already described.

This effect can be named, with operational precision, as identity captivity, understood as a modality of dependence in which the exit cost is not reduced to the patrimonial plane, but involves loss of recognition, of reputation and of narrative continuity objectified in public performance records, collections, histories and signs of distinction produced within the ecosystem. Dependence, in this register, is not psychological in the individualizing sense, but institutional and semiotic, because it stems from a regime of visibility and sanction that defines what counts as value, belonging and legitimate progress and, correlatively, defines how this can be downgraded, erased or disauthorized. In consumer-law terms, the relevance of the concept is not to create a new good, but to make controllable a specific form of loss in the fact of consumption, in which integrity of agency and symbolic identity are corroded by instability, opacity and manufactured risk, affecting the adequacy of the enjoyment regime and the legitimate trust that sustains continuous bonds governed by a platform.

In this key, the categories of digitally based businesses need to be treated as arrangements that organize the exploitation of this consumption “lumpenproletariat” and, at the same time, as structures that capture social coproduction and convert it into recurrent extraction through unilateral governance. A [illegible]del based on microtransactions for obtaining rare cosmetic items, [illegible]nerely a commercial choice, but a device of value extraction that relies on the user's internalization of th[illegible]

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the platform and on the administration of the conditions of visibility and recognition that give economic meaning to rarity. The consumer pays to preserve or raise a position that exists only within the fief, in an economy whose currency is, at the same time, money and recognition, and in which the functional value equivalence of the Immaterial Object of Consumption is continually reconfigured to keep extraction ongoing.

Moreover, the incorporation of what is "outside" operates not only as economic fuel for the ecosystem, but also as an instrument for imposing order in practice. In regimes of platform governance, everyday discipline is not exercised only through written rules and formal sanctions, since it is sustained by the functional mobilization of collectives that simulate consensus, amplify official narratives, isolate dissent and, in certain circumstances, engage in reputational hostility and symbolic expulsion as a social extension of moderation decisions. The circuit closes when the infrastructure itself encourages and directs this mobilization (through visibility, ranking, recommendation, reporting and engagement mechanisms), turning the mass of users into an operational force capable of containing resistance, imposing exit costs and consolidating the regime of permanence[241]. It is in this sense that the "incorporated exterior" can operate as a political and policing tool in a structural sense, even without police, since coercion appears mediated by collective performance and the asymmetric protection of the apparatus[242].

Besides capturing time and conduct as economic input, the platform mobilizes the incorporated exterior to perform a specific function in the reproduction of command, the capacity to improvise an audience. In structural terms, this is not merely spontaneous participation around a product, but a diffuse labor of staging adherence that manufactures visibility, normality and collective desire, turning a launch into an event and an event into social proof. *Hashtags*, engagement drives, event attendance, clips, reactions and micro-performances of enthusiasm operate as a symbolic infrastructure of valorization, since they turn an act of consumption into a public display of belonging and draw new users into the circuit of dependence.

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The political function of the incorporated exterior is not limited to the manufacture of a public and the production of social proof. It extends to community policing as an informal extension of governance. When criticisms of the model, of moderation decisions or of monetization practices emerge, the consumer themselves, whose identity is in captivity[243] in the ecosystem, may act as a force of reputational intimidation and containment of dissent, not by explicit order, but by functional alignment between belonging and defense of the environment. Thus a device of diffuse private security is formed, in which fan "armies" operate to delegitimize critics, impose costs on speech, produce coordinated harassment and reinforce the official narrative, preserving the regime that exploits them in order to protect the symbolic coherence of their own position. Coercion, once again, appears without police, but with asymmetric protection of the apparatus, since the infrastructure of visibility, ranking and engagement amplifies informal policing and converts conflict into a mechanism of discipline.

The same logic deepens when one observes that the platform not only captures the user's behavior, but reabsorbs it as an internal function of the governance apparatus itself, that is, as a part of an organizational machinery that becomes autonomous and starts to operate as a practical condition of command[244]. The user comes to make up the machinery of valorization by producing social proof, by functioning as diffuse advertising, by maintaining routines of presence that stabilize metrics, by performing microtasks of curation and recommendation, by mass-testing changes of architecture (through behavioral "telemetry") and, in certain segments, by supplying creative and communicational labor that is converted into an asset of the ecosystem. Thus, the boundary between public and operator becomes blurred, since the collective that should remain outside the center of command is, in practice, installed as a part of the governance circuit, and its participation comes to be exploited as a requirement for the functioning of the extraction regime. The cloud serf is not merely a captive consumer, because they are also an integrated component of the symbolic and economic administration of the fief, insofar as the apparatus feeds on their presence to regulate itself and to expand its own capacity for command.

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inadequate simplifications. The first is

second is to treat the political usefulness of this layer as a merely episodic detail. Marx describes an unstable social mass that can be organized and activated as a practical device of power, operating in functions that cannot be reduced to regular productive labor, but that are decisive for the stabilization of a command and for the manufacture of public effects of legitimacy and order. It is this element (an instrumental functionalization of the "outside") that directly interests the argument of the "incorporated exterior"[245], because it allows exteriority to be treated not as an absence of link with valorization, but as a reconfigured link. The framing remains one of consumer law, since the homology operates as a tool for describing governance and mobilization in consumption, and not as a displacement of the object toward categories of labor.

It is precisely at this point that the structural parallelism with the platform economy gains density. The platform not only administers prices and catalog but also administers conduct, rhythms and presence. To do so, it needs to produce, continuously, public signs of adherence, normality and enthusiasm[246], while neutralizing frictions and dissent that threaten retention and monetization. In functional terms, the user is integrated as part of this device, since, by engaging, reacting, ranking, recommending, reporting, moderating informally and reproducing patterns, they participate in the maintenance of the environment and its governability. The material incorporation of everyday life as input is not limited to data as information, since it includes behavior as an organizing force of the platform's social space, that is, as an operative component of government.

In this register, the analogy operates as a key to intelligibility. Marx describes the organization of the lumpenproletariat as a force capable of improvising a public, simulating enthusiasm, intimidating opponents and acting with institutional tolerance/protection, functioning as a gear for the performance of power and the manufacture of consensus in act[247]. The usefulness of the passage lies not in importing nineteenth-century categories as if they were the sociological identity of the contemporary user, but in recognizing the recurrent structure: layers socially productive labor can be mobilized as instruments of government for stabilizing com under the guise of spontaneity, leisure, sociability or community participation.

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Transposed to the environment of IOCs, this structure helps to explain why rentier extraction requires more than charging: it requires an architecture of permanence. The platform calibrates what counts as visibility, what counts as reputation, what belonging is and what represents normality in the ecosystem, and it does so by converting the very circulation of users into a mechanism of ordering. Thus, the cloud serf is kept simultaneously as a recurrent payer and as a diffuse producer of stability for the fief, since they sustain the valuation of the environment through engagement and sustains the governance of the environment through the everyday production of signs, *rankings* and informal discipline. The legal-structural consequence is direct, because, when the platform comes to depend on the continuous mobilization of the user to govern and to valorize the ecosystem, it gains systemic incentives to design scarcity, risk and sanction so as to produce presence, and not merely purchase.

The Marxian tradition describes capitalism as a social form capable of incorporating collective and organizational conditions into the logic of valorization[248], converting direction, coordination and reproduction into internal functions of the process[249]. Applied to the environment of IOCs, this means that extraction is not limited to price. It depends on keeping enjoyment under governance and on transforming the presence of users into a condition of stability of the ecosystem[250]. The consequence is that the economic purpose of the model materializes as institutional design, that is, as architectural teleology oriented toward retention and continuous capture.

NOTES

227. Missions are communally described as “Do something, get something” systems, with the explanation that the player completes specific objectives and receives rewards, with progress being tracked. The definition is useful because it shows the didactic way in which the platform naturalizes the transformation of conduct into a criterion of access to internal value RIOT GAMES. ↩

228. The contract provides that the license to access Game Currency or Virtual Content [illegible]ed by purchase, by earning or by receipt, and makes “earning” explicit as [illegible]n of “missions or game tasks”. The note is probative because it records [illegible] of tasks does not pr[illegible] formal category of access to internal value [illegible]. ↩

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229. On missions as a deliberate technology of conduction and adjustment. In the text */dev: Missions Update*, a mission system as something that was launched and has been adjusted based on mission types, difficulties and objectives, discussing "takeaways" and "struggles" of the design, qualifying missions as a technology of conduction that evolves into the function of an engagement tool, and not a mere aesthetic or narrative adornment RIOT GAMES. ↩

230. On the *PBE* as a stage of public testing and capture of diffuse labor. In official support, the *PBE* is described as a server on which one can "test upcoming features" and that allows the company to "eliminate any bugs" found "before it is implemented in the game environment" RIOT GAMES. ↩

231. On the contractual appropriation of informational contributions without consideration. In Clause 6.1, the contract states that "We value your feedback", but prohibits its submission and, if submitted, provides that the company may "freely use" the ideas and do so "without any payment to you" RIOT GAMES. ↩

232. In announcing the closed beta phase of new partnership programs, Riot presents the initiative as a way to "offer more support to creators" and to grant "exclusive benefits", structuring a selective regime of access and advantage oriented toward the community production of content, without this becoming a wage relationship, a duty of continuity or stability for those who, in practice, sustain part of the intelligibility of the ecosystem RIOT GAMES. ↩

233. "*Client*" designates the *software* component through which the user accesses the service, its interfaces and operational routines (authentication, updating, purchase, inventory, social etc.). The term *client* is chosen to avoid confusion with "cliente" in Portuguese, which refers primarily to the economic subject of the consumer relationship. Here, the focus is not the subject, but the technical-mediating artifact — the application that operationalizes the experience and materializes choices, notifications and restrictions. ↩

234. On a social network, a publicly identified developer frames the tests of *skin previews* with the question "Tired of not knowing what you're buying?", acknowledging that the lack of preview instruments is a real problem of the offer architecture. The relevant point here is not the announcement itself, but the admission that, for long periods, purchasing operated with low auditability within the very flow of the *client*, pushing verification outside the developer's circuit RIOTMIKOUZ. ↩

235. The SkinSpotlights channel has established itself as a recurring "showcase" window for skins on the YouTube platform, displaying visual effects, animations, recalls and variations, functioning as a practical source of visualization for consumers who seek to e experience of the item before buying. When this mediation becomes a ion of decision, it ce

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operate as informational infrastructure necessary for consumption SKINSPOTLIGHTS. ↩

236. The contract defines that the license granted to the user is for "personal, non-commercial" use and conditioned on compliance with the instrument itself, which frames content production as a practice dependent on authorization, exceptions and institutional programs, instead of recognition as an ordinary economic activity of the ecosystem RIOT GAMES. ↩

237. The expression "incorporated exterior" is used here to designate a form of functional integration of agents socially external to the regular circuit of productive labor and institutional legitimacy: it is someone "from outside" who is not merely tolerated, but converted into an internal gear of the regime, including through the occupation and capture of positions within the public machine. Marx describes this mechanism by showing how Bonapartism is not limited to mobilizing the bohème as an episodic support troop, but injects it into the institutions, transforming it into a political and administrative body of power, with material effects on the practices of the State and on the very economy of command. "Bonaparte would like to be seen as the patriarchal benefactor of all classes. But he cannot give to one without taking from another. [...] He would like to steal all of France in order to give it as a present to France or, rather, in order to be able to buy France back with French money, because, as chief of the Society of December 10, he must be able to pay for what he intends to possess. And the institution of purchase comes to be integrated by all the institutions of the State: the Senate, the Council of State, the Legislature, the Legion of Honor, the military medals, the public baths, the public buildings, the railways, the état-major [General Staff] of the National Guard without a commune, the confiscated estates of the house of Orléans. [...] The court, the ministries, the head posts of the administration and of the army are besieged and seized by a band of individuals, of the best of whom it can be said that no one knows where he comes from; it is a noisy, disreputable and predatory bohème that crawls in gala garments with the same elegant posture as the high dignitaries of Soulouque.'" MARX ↩

238. In the works O 18 de Brumário de Luís Bonaparte (2011) and O Capital (2013). ↩

239. Marx describes the lumpenproletariat, in the context of the Bonapartist organization, as a heterogeneous and unstable social ensemble, formed by displaced and marginal strata, whose unity does not derive from regular insertion in productive labor, but from its availability for instrumental organization under command. The long list of social types does not have a merely descriptive function, since it evidences the absence of stable structure and the condition of a mobilizable mass, whose political functionality becomes possible precisely because of its disaggregation and its lateral ation to the ordinary forms of production and representation. It is this arked by indefiniten matters here as a structural homol

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incorporating subjects formally external to regular productive labor into regimes of extraction and power. In the author's words: “This society dates from the year 1849. Under the pretext of founding a benevolent society, the Parisian lumpenproletariat was organized into secret sections, each of them led by a Bonapartist agent and with a Bonapartist general at the top. Decayed roués [ruffians] with doubtful means of subsistence and of doubtful origin, ruined and adventurous offshoots of the bourgeoisie were flanked by vagabonds, discharged soldiers, ex-convicts, slaves escaped from the galleys, swindlers, tricksters, lazzaroni [lazzaroni], pickpockets, conjurers, gamblers, maquereaux [pimps], brothel keepers, porters, literati, organ grinders, ragpickers, knife grinders, tinkers, beggars, in short, that whole indefinite, destructured mass thrown hither and thither, which the French call la bohème [the bohème]; with these elements, akin to him, Bonaparte formed the basis of the Society of December 10. It was a ‘benevolent society’ insofar as all its members, like Bonaparte, felt the need to benefit themselves at the expense of the laboring nation.” MARX. ↩

240. Here, the word “bribery” is used metaphorically to describe how consumer loyalty is captured through a "symbolic sustenance", in which the supplier exchanges mere lines of code and calibrated scarcity for hours of the user's life and attention. The practice is qualified as the cheapest form of coercion ever observed in markets, since the rewards offered, such as insignia and cosmetic items, have no intrinsic value outside the ecosystem and depend entirely on the controller's infrastructure to exist, reinforcing a circuit of permanence that converts the individual's participation into an input of valorization for the platform. ↩

241. It is recorded, as a hypothesis of extension to be tested in later works, that the notion of “incorporated exterior” does not depend on the specific domain analyzed here, but describes a recurrent structural position in intermediation platforms and in private governance by architecture. In arrangements of this nature, the operation of the service presupposes the participation of subjects formally external to the organization, whose activity makes up the available offer, the experience delivered and, often, the very mechanisms of trust and legitimacy of the environment (for example, through reputation, ratings, performance metrics and signs of credibility). Although they remain external on the legal-organizational plane, such agents are incorporated on the economic and operational plane as indispensable infrastructure, under conditions of informational and power asymmetry. From this perspective, incorporation is not limited to the use of data or the capture of attention: it is expressed in the platform's capacity to modulate access, visibility, priority, remuneration, reach and permanence by means of mutable rules, ranking criteria, compliance automatisms and technically executed sanctions. The result is a regime in which relevant costs, risks and tend to be shifted to the incorporated exterior (including risks of ion, reputational exp and functional interruptions), whil

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coordination, the informational advantage and the prerogative of defining the conditions of participation and value extraction. ↩

242. The idea of "incorporation" that underpins the notion of "incorporated exterior" is not reduced to diffuse adherence or symbolic support. In Marx, it appears as material incorporation by organizational means: socially unstable layers external to regular productive labor are mobilized as an auxiliary force (military and police) to produce decisive effects on the correlation of forces, including the physical repression of the proletariat. It is in this sense — of the practical functionalization of the "outside" as an instrument for stabilizing order — that the lumpenproletariat can be described as a gear incorporated into certain arrangements of power. "The bourgeois republic triumphed. It had the support of the financial aristocracy, the industrial bourgeoisie, the middle class, the petty bourgeois, the army, the lumpenproletariat organized as the mobile guard, the intellectual capacities, the priestlings and the rural population. On the side of the Parisian proletariat there was no one but itself. [...] More than 3 thousand insurgents were butchered after the victory, 15 thousand were deported without trial." MARX ↩

243. The discussion of identity captivity is deepened in section 4.2.3 Psychopolitics, self-exploitation and identity captivity. ↩

244. The notion of "apparatus" is mobilized here in a structural sense. Not as a vague metaphor, but as a form of bureaucratic-administrative organization that becomes autonomous from society and can be appropriated as political spoils. "This Executive Power with its monstrous bureaucratic and military organization, with its multifaceted and artful state machine, this army of officials of half a million people added to a regular army of another half million, this terrible corporation of parasites, which envelops the organism of French society like a membrane and clogs all its pores, arose in the time of absolute monarchy, in the epoch of the decline of the feudal system, whose acceleration it helped bring about. The seigneurial privileges of the landowners and the towns are transformed into as many attributes of state power, the feudal dignitaries become paid officials and the motley catalog of conflicting medieval potentates is converted into the regulated plan of a state power whose work is divided and centralized as in a factory. The first French revolution, in fulfilling the task of breaking all autonomous powers at the local, territorial, urban and provincial levels, aiming to create bourgeois national unity, necessarily developed what absolute monarchy had begun: centralization and, along with it, the radius of action, the attributes and the servants of governmental power. Napoleon perfected this machine of the State. This legitimate monarchy and the July Monarchy added nothing but a greater division of labor, which grew in the same proportion as the division of labor within bourgeois society created new interest groups, that is, new material for state

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ı. Every common interest was immediately detached from society and s a higher, general in members and transformed into an

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the schoolhouse and the communal property of a village to the railways, the national property and the national university of France. The parliamentary republic, finally, in its struggle against the revolution, found itself obliged to reinforce the means and the centralization of governmental power in order to implement repressive measures. All revolutions only perfected the machine instead of breaking it. The parties that fought alternately for power regarded the seizure of this monstrous state edifice as the lion's share of the victor's spoils." MARX. In The Eighteenth Brumaire, Marx describes the modern Executive Power as a historically accumulated bureaucratic-military state machine, endowed with its own dynamics, and whose control appears, repeatedly, as the "lion's share" of the victor's spoils — a point that supports, by functional homology, the reading that governance regimes can reabsorb external agents as internal functions of the apparatus of command. ↩

245. In deepening the relationship between Bonaparte and the lumpenproletariat, Marx not only describes the social composition of this layer, but makes explicit its singular political usefulness. It is the only support that can be mobilized "unconditionally" by a power that is not anchored in a stable way in the institutional legitimacy of the propertied classes or in the regular forms of representation. The argument is relevant because it allows two things to be separated: the condition of socioeconomic marginality and social heterogeneity; and its functionalization as a privileged political support for a form of command that feeds precisely on instability, opportunism and the availability to adhere to a logic of immediate benefit. Thus, the "affinity" between leader and base is neither psychological nor moral; it is structural, in the sense that the regime finds in this layer a support less conditioned by class commitments, by regular forms of labor and by expectations of institutional order, operating as a vector of direct sustenance of command. According to Marx : "This Bonaparte constitutes himself as chief of the lumpenproletariat, because it is in it that he identifies en masse the interests he pursues personally, recognizing, in this scum, this waste, this refuse of all classes, the only class on which he can rely unconditionally; this is the real Bonaparte, the Bonaparte sans phrase [without retouching]. As an old and crafty roué, he conceives the historical existence of peoples and their great official actions as comedy in the most ordinary sense possible, as a masquerade in which the fine costumes, the words and the grandiloquent gestures serve only to conceal the most petty knavery. This is what happened in the expedition to Strasbourg, in which a trained Swiss vulture played the part of the Napoleonic eagle. In his attack on Boulogne, he dressed some London lackeys in French uniform, who played the part of the Armed Forces. In his Society of December 10, he gathered 10 thousand lumpens who were to represent the people in the same way that Klaus Zettel represented the lion. At the moment when the bourgeoisie itself came to stage the most complete [illegible] with unsurpassable seriousness, without violating any of the pedantic French dramatic etiquette, itself half deceived and half convinced of the solemn character of its great offici[illegible] as pure comedy was bound to triumph. Only after having eliminated his solemn

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adversary, only after he himself began to take his imperial role seriously and, putting on the Napoleonic mask, imagined he was representing the real Napoleon, did he become the victim of his own worldview, the serious clown, who ceases to take universal history as comedy and comes to see his comedy as universal history." ↩

246. The question does not involve describing a contingent psychological manipulation, but making explicit a mechanism of social form. Relations between people (collective adherence, reputation, comparison, recognition, belonging) are reconfigured and returned to the participants themselves under the appearance of objective properties of the ecosystem (metrics, rankings, prestige, "trends", "relevance"), as if they were natural attributes of the environment and not results of a mediated social organization. This inversion is compatible with the Marxian description of fetishism, in which a determinate social relation assumes, for the subjects, the form of a relation between things, obscuring its constructed character and naturalizing the regime as if it were an objective given of the world. "The mysterious character of the commodity-form consists, therefore, simply in the fact that it reflects to men the social characters of their own labor as objective characters of the products of labor themselves, as social properties that are natural to these things and, therefore, it also reflects the social relation of the producers to total labor as a social relation between objects, existing apart from the producers. It is through this quid pro quo that the products of labor become commodities, sensible-suprasensible or social things. The luminous impression of a thing on the optic nerve does not present itself, then, as a subjective stimulus of the optic nerve itself, but as the objective form of a thing that is outside the eye. In the act of seeing, however, the light of a thing, of an external object, is effectively cast upon another thing, the eye. It is a physical relation between physical things. The commodity-form and the value relation of the products of labor in which it is represented have, on the contrary, absolutely nothing to do with their physical nature and with the material [dinglichen] relations that result from it. It is only a determinate social relation between men themselves that here assumes, for them, the phantasmagoric form of a relation between things. Thus, to find an analogy, we must take refuge in the nebulous region of the religious world. Here, the products of the human brain appear endowed with a life of their own, as autonomous figures that maintain relations with one another and with men. So it is, in the world of commodities, with the products of the human hand. This I call fetishism, which attaches itself to the products of labor as soon as they are produced as commodities and which is, therefore, inseparable from the production of commodities." MARX. ↩

247. "What the National Workshops represented for the socialist workers, what the Gardes mobiles represented for the republican bourgeois, the Society of December 10 was for Bonaparte, his typical partisan armed force. On his journeys, detachments of this ned railway carriages, had to improvise a public for him, display public ellow vive l'Empereu republicans, obviously counting on

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journeys to Paris, it was to form the vanguard, forestall counter-demonstrations or disperse them. The Society of December 10 belonged to him, it was his work, his exclusive idea. Everything else he appropriates is handed to him by the force of circumstances, everything else he does is done for him by the correlation of facts or he contents himself with copying the deeds of others; but his official speeches on order, religion, family and property, delivered publicly before the citizens, backed by the secret society of the Schufterles and Spiegelbergs, the society of disorder, prostitution and thievery: this is Bonaparte himself as original author, and the history of the Society of December 10 is his own history." MARX. Marx describes, in the Bonapartist case, a mechanism of political incorporation of a heterogeneous social mass that acts as a practical instrument of power: not only as a symbolic base of support, but as an operational force intended to produce public effects (applause, "enthusiasm", intimidation) and to neutralize opponents, with institutional protection and tolerance. The passage is evidence that the functionalization of the lumpenproletariat is not limited to "making up the scenery", since it integrates the regime as a technology of government. It is a category that functions as an arm of intervention, proving capable of organizing presence, disciplining social space and manufacturing signs of legitimacy. This supports a structural reading of the phenomenon, given that the marginal layer is instrumentalized as a device of action external to the regular forms and that is, even so, decisive for conferring stability on the command held by the platform. ↩

248. The description of capitalism as a social form in which the dynamics of value organizes the process is not reduced to the trivial idea of "pursuit of profit". The core is that, in specifically capitalist circulation, commodity and money function as modes of existence of value itself and the movement comes to operate as self-valorization, that is, as a process that imposes itself as the "subject" of the circuit. This formulation is useful here because it allows coordination, governance and the administration of conditions of enjoyment to be treated as functions subordinated to the dynamics of valorization, and not as simple contingent management choices. "The independent forms, the money-forms that the value of commodities assumes in simple circulation serve only as mediation for the exchange of commodities and disappear in the result of the movement. In the circulation M-C-M, on the contrary, commodity and money function only as different modes of existence of value itself: money as its universal mode of existence, the commodity as its particular, so to speak, disguised mode of existence. Value passes constantly from one form to another, without being lost in this movement, and thereby becomes the automatic subject of the process. Now, if we take the particular forms of manifestation that self-valorizing value successively assumes in the course of its life, we arrive at these two propositions: capital is money and capital [illegible] In truth, however, value here becomes the subject of a process in which, [illegible]nstant variation of form, appearing now as money, now as commodity, it alters its own magnitude and, as su[illegible] and valorizes itself. For the movement in which it adds surplus value is its own

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movement; its valorization is, therefore, self-valorization. Because it is value, it has received the occult quality of adding value. It gives birth to offspring, or at least lays golden eggs." MARX. ↩

249. The incorporation of collective conditions into the process of valorization does not occur only through the "aggregate" economic result of joint labor, but through the transformation of the very need for direction and supervision into an internal function of capital. When labor assumes cooperative form on a large scale, coordination ceases to be a simple neutral technical requirement and comes to express, under capitalism, a specific function: ordering social labor according to the purpose of self-valorization and according to the antagonism between exploiter and exploited material. It is in this sense that "direction" and "command" do not appear as an element external to the process, but as a constitutive dimension of the capitalist mode of production. "All immediately social or collective labor on a large scale requires, to a greater or lesser extent, a direction that establishes harmony among individual activities and performs the general functions that result from the movement of the total productive body as distinct from the movement of its autonomous organs. A single violinist directs himself, but an orchestra requires a conductor. This function of direction, supervision and mediation becomes a function of capital as soon as the labor subordinated to it becomes cooperative. As a specific function of capital, direction assumes specific characteristics. First, the motive that drives and the purpose that determines the capitalist production process is the greatest possible self-valorization of capital, that is, the greatest possible production of surplus value and, therefore, the maximum possible exploitation of labor power by the capitalist. As the mass of simultaneously employed workers increases, so does their resistance and, with it, the pressure of capital to overcome it. The command of the capitalist is not only a specific function, arising from the nature of the social labor process and, therefore, peculiar to that process, but, at the same time, a function of exploitation of a social labor process, and is, for that reason, determined by the inevitable antagonism between the exploiter and the raw material of his exploitation." MARX. ↩

250. The idea of "incorporated exterior" gains precision when one considers that, in the Marxian tradition, activities that seem situated outside the immediate core of production, such as individual consumption and the very everyday reproduction of labor power, can be treated as internal moments of the reproduction of capital. This is not a metaphor, since the consumption that keeps the worker fit to work is described as a functional element of the process, even though it takes place outside the factory. With this, Marx provides a formal scheme especially useful for this research, since capitalism does not depend only on what happens "within" the productive act, but on organizing external social conditions as requirements for the continuity ı. On the plane of IO
user "is an industrial worker", but r

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presence, routine and consumption into conditions for the reproduction of its own economic circuit. “The worker's consumption has a double nature. In production itself, he consumes, by means of his labor, means of production, transforming them into products of greater value than that of the capital advanced. This is his productive consumption. At the same time, it is consumption of his labor power by the capitalist who bought it. On the other hand, the worker spends on means of subsistence the money paid for the purchase of labor power: this is his individual consumption. [...] The worker is often forced to convert his individual consumption into a mere incident of the production process. In that case, he supplies himself with means of subsistence to keep his labor power running, in the same way as the steam engine is supplied with coal and water and the wheel with oil. [...] When the capitalist converts part of his capital into labor power, he thereby valorizes his total capital and kills two birds with one stone. He profits not only from what he receives from the worker, but also from what he gives him. The capital alienated in exchange for labor power is converted into means of subsistence, whose consumption serves to reproduce the muscles, nerves, bones and brain of existing workers and to produce new workers. [...] Such consumption is production and reproduction of the means of production most indispensable to the capitalist: the worker himself. The individual consumption of the worker thus remains a moment of the production and reproduction of capital, whether it is carried out inside or outside the workshop, the factory etc.” MARX. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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PARAMETERS WITH AN ENTRY IN THIS SECTION

Social function of intellectual property

The engineering of scarcity and risk described does not operate in a vacuum, since it reorganizes the very grammar of competition. When the economic object ceases to be a material good, delivered and circulable as a thing, and becomes a continuous immaterial good, mediated by platform, account, catalog, interface and access rules, what is contested among economic agents changes in nature. Instead of competing only on productive efficiency, on price or on the intrinsic quality of a product, what comes to matter is controlling access, that is, defining who enters, where they enter, under what conditions they remain and at what cost they manage to leave.

The competitive mutation described manifests itself clearly in interactive entertainment operated by platform because competitive value is not concentrated in the "quality" of an isolated good, but in the capacity to keep the consumer bound to a proprietary grammar of belonging, progress and distinction. In the ecosystem of an *online* game, cosmetic items and *reworks* do not function as peripheral "accessories", but as pieces of an economy of identity that depends on social visibility, comparison and recognition within the environment itself. Economic rivalry, in this framework, shifts to the administration of the gateways to these layers of meaning, to the distribution circuits (rotating shops, events, passes, availability windows) and to the raising of migration costs, since the investment is not transferable outside the technical fief. What is contested, therefore, is the infrastructure that makes the [illegible], and not merely the promise in the abstract.

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For this reason, competition in platform economies tends to assume an asymmetric design, shifting from the contest over products to the contest over a position of *gatekeeping* over technical and symbolic ecosystems. When economic power is concentrated in the capacity to intermediate flows of attention, data, reputation, digital libraries and routines of use, competition ceases to function as a simple alternation of consumer preferences and comes to function as competition for entrapment by *design*. "Market power" exceeds the field of share in sales, becoming command over the very infrastructure in which the consumer's "choice" becomes possible.

Competition in markets for material goods tends to preserve structural frictions that limit the consolidation of a fully stable dominance, even if they do not prevent it entirely. Installed capacity, logistics, marginal costs, access to inputs and productive dispersion function, as a rule, as brakes that make leadership relevant, but more contestable over time. Even where there are concentration and durable advantages, the contest remains anchored in physical and organizational constraints that impose real costs of expansion and of maintaining command.

In platform-mediated immaterial goods and services, the dynamics reorganize because part of these frictions is replaced by concentration mechanisms peculiar to digital infrastructure. Non-rivalry and reproducibility at reduced marginal cost do not eliminate competition, but shift the terrain of the contest toward network effects, *lock-in*, standardization of interfaces and protocols, economies of informational scale and accumulation of data. The dominant position thus tends to stabilize less through efficiency in an isolated product and more through control of the channel, of access and of the conditions of enjoyment, which reconfigures the very competitive grammar.

Technology giants, such as *Amazon* in certain *online* retail markets and cloud services, or *Mercado Livre* in the intermediation of electronic commerce in specific regions, not only lead, but in many cases define and control the very infrastructure on which competition (or its appearance) takes place. This dominance does not rest only on the

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y of a specific good, but on the strategic control of networks, data, algorithms and, above all, of atte

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that characterize the informational domination and digital rentierism previously discussed. The capacity of a single entity to control the entirety of an immaterial good or its main access route reconfigures the economic order with profound sociopolitical implications.

If immaterial competition tends to produce structural winners, it becomes necessary to explain why this victory proves not merely contingent, but stabilizable. In material goods, domination faces physical and social frictions (installed capacity, logistics, sources of input, productive dispersion). In digital ecosystems, however, the very access route to the good coincides with the private infrastructure that organizes it. In this scenario, economic power is consolidated not only through efficiency, but through governance, since controlling the gate amounts to controlling the market, insofar as the gate becomes the market itself.

The scenario ceases to be merely an example and reveals itself as a typical case of competition by enclosure. The “rare” cosmetic item is not rare by technical nature, since its reproduction is trivial, but because the platform administers scarcity, prestige and circulation as internal variables of the market itself, converting technical abundance into economic scarcity. The unilateral alteration of the item's appearance, effects or place in the internal economy, as in the scenario described, operates as an exercise of competitive power because it redefines *ex post* the meaning and utility of the good within the proprietary language, without the consumer having an equivalent route of restoration outside the ecosystem. Competition thus comes to function as a contest for sovereignty over signs and for the capacity to rewrite, over time, what “is worth” and what “delivers”, shifting consumer protection to a terrain in which control of the market is inseparable from control of the semantics of consumption itself.

In practical terms, this persistence arises from the combination of network effects, *lock-in*, standardization of interfaces and protocols, economies of informational scale and accumulation of data, which convert preference into dependence and make spontaneous competitive contestation structurally improbable.

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decisive economic point is simple and direct, since, in the market for immaterial goods, reproducibility would tend to dissolve price, so that rent depends on reintroducing scarcity by institutional decision. When this decision is coupled with license contracts, accounts, *DRM*[251], catalogs and authentication mechanisms, the incentive to create gives way to a technology of blocking, so that circulation comes to be treated as infringement and enjoyment is converted into authorization. In this context, competition ceases to be only a contest over products and becomes a contest over enclosures.

If competition, in the immaterial, tends to produce structural winners through capture of the channel, what remains to be explained is the legal mechanism that stabilizes this victory over time. It is here that intellectual property, coupled with infrastructure and contracts, ceases to be only a title and comes to function as a competitive technology of enclosure.

The stabilization of competitive victory in immaterial markets requires converting technical abundance into socially constructed scarcity, because the reproducibility of the immaterial would tend to dissolve price and, with it, the possibility of rent, if there is no institutional decision to reinstall barriers. Intellectual property ceases to operate only as an incentive and becomes part of an arrangement of enclosure, functioning as a true "legal latifundium"[252] that immobilizes accumulated technologies and knowledge under titles of prolonged exclusivity DOWBOR. When this latifundium is coupled with license contracts, accounts, DRM, catalogs and authentication mechanisms, the incentive to create gives way to a technology of blocking and the objective of copyright comes to operate as a mechanism for closing access[253], transforming access into a conditional license and enjoyment into a precarious authorization, continually reconfigurable, insofar as circulation comes to be treated as infringement DOWBOR.

The consequence, for consumption, is that what gives concreteness to the consumer's right is not the possession of *bits*, but the legal materiality of the object[254],

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private dominion DOWBOR. It is an institutional concreteness, since the infrastructure and the mechanisms that sustain access, circulation and continuity remain under the control of platforms and their governance systems DOWBOR. The decisive economic point is that, in the immaterial, reproducibility would tend to dissolve price, and this inversion is particularly sensitive in the networked environment, because copying is not a deviation, but an ordinary technical condition of enjoyment itself, insofar as copying is part of transmission, storage, caching and, in a certain sense, reading itself DOWBOR. By legally requalifying this constitutive gesture, intellectual property ceases to operate only as an incentive and comes to function as a technology of blocking, since it transforms circulation into infringement and enjoyment into authorization, allowing the supplier to govern the experience of the IOC as precarious and modulable access DOWBOR.

This logic of enclosure and informational toll finds critical and paradigmatic application in the examination of contractual clauses that grant developers the automatic appropriation of derivative works and user-generated content. The phenomenon is not an isolated topic of intellectual property, since it constitutes a concrete manifestation of artificial scarcity applied to cultural platforms, as the supplier uses its infrastructure to capture the symbolic surplus[255], that is, the value generated in the very use and circulation of signs in the ecosystem, such as reputation, belonging, styles, narratives and visibility. The economic centrality of this surplus is described by Dowbor, following Gorz, in the analysis of the brand, of advertising and of symbolic values as the basis of a new formation of value DOWBOR. Produced by users under the rule of standard clauses, this cultural and collaborative flow is recast as a private infrastructure of rent, which reinforces the supplier's command over circulation and enjoyment in the ecosystem.

When the platform already occupies a *gatekeeper* position, intellectual property and license contracts cease to be a legal detail and come to operate as a device of economic government of the ecosystem. The competitive effect is direct, because it is not enough to offer a better product when the dominant operator defines what use, which practices are tolerated, who may circulate signs and on tellectual property since it functions as a rule of entry and

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enjoyment itself depends on continuous authorization. What is consolidated is an economy of cumulative permissions, in which each portion of access functions as a key, and the accumulation of keys is converted into market power.

Enclosure becomes particularly visible when one observes the point at which consumption is converted into production within the ecosystem. On cultural platforms and, paradigmatically, in game ecosystems, value lies not only in what is sold to the consumer, but also in what the consumer circulates, such as derivative works, content, styles, tutorials, mods, narratives, reputation and prestige. When standard clauses transform this flow into automatic appropriation by the platform, competition ceases to be only a contest over supply and becomes a contest over the capture of the cultural surplus produced within the market itself.

This logic of enclosure and informational toll finds paradigmatic application in the examination of contractual clauses that grant developers the automatic appropriation of derivative works and user-generated content (UGC). Although UGC models may require licenses functionally necessary for the circulation of content in the ecosystem, the legal problem emerges when the standard authorization expands beyond what is necessary and is converted into automatic appropriation of the content generated by the user, transferring to the platform the ownership of creative interactions and derivative works produced in the course of use.

At this point, the supplier not only charges for access, but captures symbolic surplus and creative labor from the consumer, reinforcing the toll economy over the cultural base of the ecosystem, without proportional reciprocity and under the unilateral governance of the rightholder[256]. It is not, therefore, a simple reservation of rights, but an architecture that recasts collaborative effort and social participation as a private infrastructure for generating rent.

From the competitive point of view, what is at stake here is not only "who has the best content", but who controls the conditions under which content can exist, circulate and be reused. When the platform captures UGC and derivative works by / appropriating cultural value produced within the ecosystem: it *keeping* power over
of signs in that market. Intellectual Pr

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exclusivity, but as an infrastructure for stabilizing victory in the competitive "tournament". It fixes the advantage over time by transforming access and reuse into a regime of continuous authorization. The duration and elasticity of these rights cease to be a technical detail and become part of the economic core of enclosure. Extending terms and expanding scopes means prolonging the toll and reducing the space for contestation through spontaneous competitive mechanisms.

Dowbor associates the problem of Intellectual Property not only with the existence of the right itself, but with its historical extension under organized pressure, observing that "we will only have digital access to a work 70 years after the author's death" DOWBOR and questioning whether very long copyrights and "indefinitely extended" rights are disseminating culture or, on the contrary, hindering the social process DOWBOR. The argument is one of political economy, since, if the realization of profit is concentrated mostly in the first years of commercial exploitation DOWBOR, maintaining exclusivity for decades operates as rent without a proportional incentivizing function[257] and imposes a massive social cost on research and creative reuse to sustain concentrated private flows. In this context, time becomes a deliberate mechanism of rentierism, because extending protection terms means, in practice, prolonging the toll on the common heritage of humanity.

A critical point of Dowbor's argumentative axis lies in the distinction between the figure of the creator and that of the rentier. The author, as subject of intellectual creation, has little to do with this dynamic, since the rights almost always belong to intermediaries DOWBOR. The finding shifts the focus of the discussion. It is not, strictly speaking, a matter of ensuring the artist's remuneration, but of identifying a chain of intermediation that converts copyright into a financializable asset and administers access to the good in a structurally captive market. From this perspective, intellectual property reveals itself as a legal platform of extraction, because whoever holds the title holds, at the same time, the turnstile of access. In this arrangement, the moral discourse of theft comes to function as a tool of legitimation. Through guilt and criminalization, it sustains charging for the circulation of goods whose use by [illegible] not reduce availability to another.

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Dowbor makes explicit that the proliferation and overlapping of IP rights can produce prohibitive transaction costs and block subsequent innovations by "placing multiple obstacles" DOWBOR, configuring a tragedy of the anticommons[258]. The fragmentation of exclusivities distributes veto powers and makes recombination legally improbable or economically unviable, even if the resource remains technically available. This is not only an ethical critique, but a technical-institutional diagnosis. When an innovation depends on the articulation of multiple protected components, the creative process comes to require fragmented legal negotiation, with licenses, rights regularization (*clearance*) and constant risks of litigation. Structural friction favors large actors endowed with robust legal capacity and excludes smaller innovators, resulting in an ecosystem in which creativity remains subordinated to proprietary governance and to control over what has already been created.

The thesis is anchored in examples that make explicit the social materiality of this blocking, citing the "disaster of access to vaccines during Covid-19" as evidence of the patent latifundium[259] DOWBOR. Mention is also made of the attempt to patent the "one-click" mechanism as a deliberate gesture to prevent the diffusion of a basic organizational improvement DOWBOR. Such cases function as concrete demonstrations of a single operative principle: when IP is mobilized to prevent the generalization of a technique, it ceases to reward creation and comes to administer deliberate scarcity in contexts in which diffusion would be socially desirable. The argumentative axis maintains, therefore, that the distinctive mark of rentier IP is not the recognition of the invention, but the strategic blocking of the learning and collective fertilization that the invention could generate.

The effect of rentier IP is not exhausted in the binary turnstile of "having" or "not having" access. When exclusivity multiplies and overlaps in layers, it ceases to function only as a gate and comes to operate as an engineering of friction. It distributes veto powers, makes recombinations more expensive and transforms incremental innovation into permanent negotiation. The consequence is competitive, by creating barriers to entry and favoring incumbents, and also distributive, by

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The notion of authorization points becomes particularly visible in IOCs because enjoyment is not sustained as a unit exhaustible upon delivery, but as insertion in a governed process. In this process, availability, compatibility and continuity depend on external controls under the supplier's dominion DOWBOR. Within the scope adopted here, this process manifests itself through the overlapping of layers of control bearing on the same experience. One may cite, for example, *software* and code, content protected by copyright, distinctive signs, *design* and contractual license regimes, so that each layer can operate as a basis for restricting, modulating or charging for uses and circulations.

The architecture of cumulative permissions comes close to the diagnosis that tangles of legal restrictions and transaction costs can produce underuse and blockages through an excess of vetoes, to the detriment of recombination and subsequent innovation DOWBOR, and helps to explain why economic activity comes to depend on persistent legal mediations even in trivial operations of production and circulation DOWBOR. For consumption, the relevant effect is that the sign of "product" can conceal an enjoyment governed by partial authorizations, reinforcing the need to make verifiable, in terms of auditability, the restrictions actually bearing on the promised utility when governance by titles, licenses and access controls degrades the functional value of the experience.

The theoretical consequence is an inversion. What appears as a product in commercial discourse, in practice, comes to function as a bundle of fragmented, revocable and conditional authorizations. When the experience depends on successive keys (accounts, licenses, DRMs, authentications, terms, sanctions etc.), the market ceases to revolve around property and circulation and comes to revolve around governance and control. Thus, competition is no longer only a contest over supply, it becomes a contest over who can impose the most effective package of dependencies without losing social legitimacy.

It is precisely at this point that the discussion ceases to be whether we are "against or in favor of intellectual property" and becomes "how can we calibrate intellectual lly". Because, if the real economic function of enclosure is to ere technique wou

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becomes measuring up to what point exclusivity is still an incentive, and from what moment it becomes a structural toll. The question is not moral; it is one of institutional design, especially when the platform already dominates access and manages to convert any legal friction into competitive advantage.

Dowbor's propositional axis emerges when he gathers explicit alternatives for confronting this regime. Socializing innovation and preserving access does not depend on denying the remuneration of creative labor, but on disarticulating the normative equivalence between payment and blocking. For this reason, he reaffirms public access to knowledge as a structuring vector, by maintaining that knowledge generated with public resources must be socially accessible and serve the common good, and that access to knowledge and connectivity today constitutes a fundamental human right DOWBOR. In the same vein, he asserts that copyright must be limited, since the objective of copyright is to ensure reasonable remuneration for the author, and not to guarantee permanent rent for the intermediary, which is why he proposes a temporal limitation, even on the order of five years DOWBOR.

Exclusivity, in this framework, is not justified as prolonged retention, but as a functional and temporary measure. Intermediaries and chains of exploitation remain remunerable, but capture must occur through mechanisms compatible with circulation and access, and not through permanent tolls DOWBOR. The legal meaning of the inflection is to break the naturalization of enclosure as an ordinary technique of monetization. It is a matter of remunerating without hindering[260] and financing without blocking, rebuilding the balance between incentive and circulation in a regime marked by the non-rivalry of knowledge.

Dowbor does not offer a simplistic critique of intellectual property. On the contrary, he recognizes the historical legitimacy of the incentive, understood as privileged remuneration of the inventor or author, so as to stimulate scientific and cultural advances[261] DOWBOR. The turning point, however, occurs when the instrument loses social validity by turning into rentier charging for access. In this key, patents and *copyrights* cease to operate predominantly as a temporary technique of stimulus and a mechanism of blocking and toll on knowledge, including when effective ownership shifts to intermedi

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The critique, therefore, does not deny IP, but brings its legitimacy back to its purposive foundation. Intellectual property rights are not based on a natural right of property, but on their potential to stimulate future creativity DOWBOR. It follows that the hypertrophy of duration and scope produces teleological maladjustment and requires proportionality control when exclusivity becomes autonomous from the incentive and comes to operate as a fence DOWBOR. Within the present scope, this brings back the need to define criteria of loyalty, material transparency and preservation of the functional minimum legitimately expected in consumption environments mediated by platforms.

At this point, it becomes evident that the competitive mutation of immaterial markets does not stem from a "natural evolution" of the market, but from the convergence between technical infrastructure and legal infrastructure. The platform concentrates the mediation of access, the contract disciplines everyday use, and intellectual property provides the grammar of blocking that transforms circulation into exception and authorization into rule. The result is a regime in which market power is measured less by the capacity to produce goods and more by the capacity to administer gates, conditionalities and revocations, that is, to govern consumption as a permanently controllable process.

Having established the competitive mutation and the role of intellectual property as a component of enclosure coupled with infrastructure, it becomes possible to understand the reasons why, in continuous immaterial objects, the stability of value and the contestability of changes cease to be market noise and become part of the core of the legal problem under discussion.

NOTES

251. Acronym for *Digital Right Management*, "Gestão de Direitos Digitais". ↩

252. The metaphor of the "legal latifundium", in Dowbor, describes a teleological dysfunction internal to the Intellectual Property regime: situations in which exclusivity, through hypertrophy of scope, duration and chains of licenses, ceases to
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minantly as a temporary technique for stimulating future creativity and
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knowledge DOWBOR. For this reason, the critique does not deny IP as a legal technique, but brings its legitimacy back to the purposive foundation that the author makes explicit: “The intellectual property right is not based on the natural right of property, but on its potential to stimulate future creativity.” DOWBOR. The dysfunction worsens when appropriation shifts systematically from the creator to intermediaries, composing the figure of the “absentee owner”: “Copyrights are largely assumed by those who hold the copyright or the patents, and in this case they are almost always intermediaries.” DOWBOR. In this scenario, the title of exclusivity tends to operate as an economic and institutional bottleneck in the final product, conditioning subsequent trajectories of innovation and access to the private control of permissions and licenses, with potential for disproportionate enrichment by position in the circuit DOWBOR. ↩

253. The metaphor of the “fence” can be read in a historical-institutional key as a reference to the lexicon of *enclosure*. Processes of legal privatization of common uses through titling and exclusion, not to transplant agrarian history to the digital, but to illuminate a recurrent structure of producing rent through the restriction of access. In Dowbor, “fence” designates the teleological inflection in which copyright ceases to operate predominantly as an incentive and comes to function as a perimeter barring access DOWBOR, articulating with the general mechanism of converting the reproducibility of the immaterial into monetizable artificial scarcity, that is, transforming technical abundance into rarefaction by institutional decision DOWBOR. ↩

254. The notion of the “legal materiality” of the IOC, in Dowbor, can be understood as the institutional concreteness of enjoyment. The utility of the immaterial object depends on the governed continuity of access and on the stability of the technical-organizational rules that structure availability, compatibility and modification, and not on the digital medium itself DOWBOR. The structural point is that this stability is anchored in infrastructures under private control, so that the “productive infrastructure [...] is controlled by platforms, computers, algorithms and artificial intelligence”. DOWBOR. For this reason, the instability of these rules reconfigures, in practice, the functional value delivered to the consumer and makes enjoyment dependent on continuous governance in process DOWBOR. ↩

255. “Symbolic surplus”, within this scope, designates the value produced in the very use and circulation of signs within the ecosystem (reputation, belonging, styles, narratives and visibility), which is coupled to the IOC as its semiotic core and densifies enjoyment, raising its economic utility through retention, engagement and monetization. Dowbor situates the corresponding shift in following Gorz, by recording that “Gorz naturally moves on to analyze the function of the brand, of symbolic values as the basis of the new formation of value” DOWBOR and that, in the contemporary mut[illegible] science, shifts” DOWBOR, toward a regime in which exchange value is anchored

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"mainly, by its content of knowledge, information, general intelligence" DOWBOR. In this key, the institutional problem is not the existence of symbolic circulation in itself, but the possibility of its capture by contractual and IP fences and by asymmetric governance of visibility and access, reconverting diffuse contribution into an exclusive asset and recurrent rent; the logic of the "bottleneck" and the "toll" that falls on socially cumulative accumulations provides the structural model of this appropriation DOWBOR. In IOC ecosystems, the practical consequence is that the symbolic surplus formed in enjoyment can assume patrimonial and identity density for the consumer, while remaining vulnerable to private decisions of moderation, discontinuation or blocking, reinforcing the need for control of abusiveness and of material transparency when participation is organized as an engine of valorization of the ecosystem, but unilaterally appropriated by institutional design. ↩

256. In contractual terms, the presence of clauses on user-generated content (UGC) is not, in itself, unlawful, since it may fulfill operational functions of hosting, making available and circulating content in digital ecosystems. The relevant legal problem arises when the design of the license exceeds this purpose and converts cultural participation into an asset appropriable in an asymmetric way, through broad and scarcely reciprocal authorizations, under unilateral governance of continuity, visibility and economic exploitation. In that case, the user's contribution ceases to operate as a community element densifying enjoyment and comes to be requalified as a proprietary input, articulating with Dowbor's diagnosis of the reorganization of value formation around brand, advertising and symbolic values DOWBOR and of the dependence, in the immaterial, on institutional mechanisms blocking diffusion in order to stabilize monetization DOWBOR. ↩

257. Dowbor's critique of intellectual property rights bears on teleological dysfunctions internal to the very legal regime of its institutes. If exclusivity is legitimized by its instrumental function of stimulating future creativity, the extension of control beyond the typical period of recovery of investment tends to reduce the marginal gain of incentive and to operate as continued rent by position DOWBOR. In the case of copyright, the author observes that the realization of profits is concentrated in the first cycles of exploitation, while legal exclusivity may last for decades, converting the remaining protection into a barrier to access, with relevant social costs for cultural diffusion, recombination and licensing, without proportional benefit in new creations DOWBOR. This asymmetry reinforces the need to read the social function of IP, in platform environments, as a criterion for containing enclosures that come to operate as a toll on technically facilitated circulation, shifting the discussion from the isolated "title" to the institutional architecture that produces blocking, opacity and capture of tangible DOWBOR. ↩

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exclusivity rights distributes among multiple holders veto powers over parts, layers or components of the same resource, so that efficient use depends less on technical feasibility and more on costly legal coordination; the typical consequence is underuse through an excess of vetoes, because the sum of authorizations, licenses and negotiations becomes improbable or economically prohibitive. Dowbor mobilizes Boyle's synthesis to record this effect as a “tragedy of the anticommons”, associating it with the transaction costs generated by a “myriad” of property rights and with the result of restricting innovation by placing multiple obstacles in the path of subsequent developments DOWBOR, a diagnosis reinforced by the idea that the “tangle of legal restrictions” can reach a point at which it “hinders more than it stimulates research” DOWBOR. In contrast with the “tragedy of the commons” (exhaustion through excessive use when governance is lacking), the anticommons points to paralysis through hypertrophied governance, in the form of exclusivities and licenses that come to operate predominantly as a systemic locking of research, access and recombination. ↩

259. The “patent latifundium” makes it possible to show, by way of example, the loss of proportionality between exclusivity and the corresponding social benefit when barriers persist even under collective urgency: in Dowbor's diagnosis, the “disaster of access to vaccines during Covid-19” exposes how patents can “immobilize” essential technology and organize a “war to hinder access” as a mechanism of rent, including under pressure from shareholders for dividends to the detriment of access pacts DOWBOR. The usefulness of the example lies in showing that exclusivity can become autonomous from its justification and operate as a social and economic toll on diffusion, access and public response capacity, reinstating the social function of IP as a criterion of limitation and institutional calibration DOWBOR. ↩

260. It should be noted that the legal system itself already contains calibration valves between incentive and circulation, allowing creation and innovation to be remunerated without depending on the blocking of access. Dowbor, on the one hand, observes that “openness in itself has become a powerful (and impressively beneficial) incentive” DOWBOR and, on the other, maintains that remuneration can be organized at another point in the economic chain, preventing long and hypertrophied exclusivities from becoming a permanent toll DOWBOR. Within this horizon, various legally accommodable institutional arrangements appear, including funding policies and public procurement, in which remuneration occurs through distributive and public policy mechanisms, consistently with the role of collectively funded basic science and with the circulation of the result as a common good without prejudice to the payment of creative labor DOWBOR; remunerated compulsory licenses and sectoral an exceptional technique to overcome bottlenecks and enable nsfer in the face of g and access-oriented flexibilities DO

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forms of management, which reduce transaction costs and avoid systemic blockages by shifting remuneration to services, curation, maintenance and complementary activities DOWBOR. Together, the instruments show that IP, read through its social function, admits degrees of exclusivity and instruments of teleological correction when hypertrophied exclusivity comes to operate as a structural barrier to cultural circulation, recombination and public access DOWBOR. ↩

261. Dowbor recognizes the historical justification of intellectual protection as a technique of incentive – privileged remuneration of the inventor and the author to stimulate scientific and cultural advances –, but maintains that, in the contemporary configuration, patents and copyrights tend to operate as a rentier mechanism of charging for access and blocking the diffusion of knowledge DOWBOR. The author exemplifies the dysfunction by the temporal inadequacy of the patent in the face of the technological pace, pointing to the experience of the Covid-19 pandemic as a case of socially disastrous restriction of access, and by the expansion of copyright with economic concentration in publishers, not in authors, illustrating with the horizon of open access to the works of Paulo Freire only in 2067 DOWBOR. In this diagnosis, the "war to hinder access" becomes a central axis of the knowledge economy, while mechanisms of openness (Open Access, Creative Commons and the like) figure as an institutional alternative capable of radically expanding worldwide access to knowledge without depending on retention as the ordinary form of remuneration DOWBOR. ↩

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CONCEPTS IN THIS SECTION

Abusive teleology

The image of the contemporary fief becomes more than a metaphor when one observes the real structure of the bond in platform-operated games. The territory is not an “open market”, but a space enclosed by account, access structure, terms of use, curation of access and its own mechanisms of sanction, so that the consumer's permanence depends on continuous authorization and on conformity to a practical normativity. Tribute presents itself as fulfillment of a requirement in attention and dedication, microtransaction, pass, subscription or purchase of signs of distinction, while the decree manifests itself as *patch*, *rework* and unilateral reconfiguration of internal economies that alter the substance of enjoyment without formally extinguishing the nominal ownership of the good. The feudal logic, in this sense, does not describe a medievalizing aesthetic, but a form of economic organization in which the platform holds the monopoly of infrastructure and the power to rewrite, over time, the material conditions of valorization and of the existence of consumption.

Digital platforms can be understood as teleological architectures of continuous extraction, institutional and technical-functional designs aimed at stabilizing rent and power in markets for immaterial goods, shifting economic command from the product to the conditions of access, permanence and circulation. The dialectical reading of Varoufakis and Dowbor , combined with the structural homology of the [illegible] Marx , makes it possible to reconstruct, in layers, the economic [illegible] is form of power.

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For Varoufakis, the key is the shift of command to infrastructure. The platform ceases to be merely a company that sells a product and comes to operate as an informational landlord that controls the conditions of entry, permanence and circulation in a governed environment. The figure of the "cloud serf" does not function here as a moral metaphor, but as a social form derived from a market in which enjoyment depends on continuous private intermediation and in which exit becomes costly through loss of history, repertoire, reputation, ties and accumulated investments, including in the form of identity and symbolic capital objectified in progress, collections, public performance records and signs of status in the ecosystem.

Dowbor offers the meso-structural register of this transformation by describing informational rentierism as a mode of extraction based on "turnstiles" and "tolls", in which rent shifts from the act of producing to the act of controlling passage. The platform stabilizes value not through natural rarity of the object, but through institutionally produced rarefaction, coupled with authorization regimes and legal-technical mechanisms that reintroduce friction where technique would tend toward abundance. In this framework, monetization ceases to be a simple price and assumes the form of recurrent charging for permanence, for continuity and for predictability of access, that is, for governed enjoyment itself.

This institutionally produced rarefaction is not sustained only by commercial decisions or by "market" scarcity, but by a legal-technical enclosure of the informational. Intellectual property mechanisms, articulated with contractual licensing regimes, technological restriction measures and interoperability controls, operate as an institutional technology of governance of circulation, since they transform reproduction into authorization, use into revocable permission and access into a continually renegotiable condition. By reintroducing friction where technique would tend toward abundance, this enclosure stabilizes the capacity to impose tolls, modulate the experience and prevent alternative forms of enjoyment and competition, making control of access an asset as valuable as, or more valuable than, the immaterial object itself.

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production. The platform does not extract value only when it receives payment, but when it captures activity, including the time, attention, conduct, symbolic validation and social participation of users, then converted into data, metrics, network effects and competitive advantages. The user appears formally as external to the wage relationship, but is materially incorporated into the regime of valorization as an unrecognized productive exterior, providing the continuous input that feeds the machine of monetization and governance.

From this convergence, the business model of platforms can be described as an architecture of continuous extraction applied to ontologically non-scarce goods. Its stability depends on three structural operators that act in an integrated way: production of artificial scarcity, manufacture of risk as a discipline of presence and capture of the user's diffuse productivity as economic and semiotic input. The platform does not limit itself to offering goods and services. It governs the conditions of enjoyment, converting access into permanence and circulation into authorization.

The articulation between artificial scarcity, manufactured risk and diffuse productivity makes it possible to understand why, in IOC markets, competition tends to take on the character of a tournament and concentration becomes structural. When the platform holds the infrastructure of circulation and the grammar of symbolic value (by defining what counts as rarity, what counts as *status*, what counts as *meta* and what counts as belonging), it transforms competition into a contest over ecosystems and over governance capacity, and not over isolated products. Whoever wins the contest over the ecosystem comes to hold not only market share, but the power to impose conditions of access, permanence and visibility, reorganizing behaviors at scale and converting private rules into competitive advantage.

This feeds back into a captivity of demand: switching costs, functional and symbolic dependencies, network externalities and accumulated investments make exit costly and permanence structurally probable. In this scenario, artificial scarcity is not a *marketing* expedient. It is the instrument for stabilizing power.

This stability is not explained only by "consumer preferences" or by superior

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ted product. It is explained by the fact that, in the immaterial

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realm, control of the environment can

route of access to the object is, at the same time, the private infrastructure that organizes its enjoyment and administers the conditions of circulation. Competition then shifts to the contest over command of gates, protocols, interfaces, catalogs, recommendation regimes and rules of permanence, that is, over control of devices that function as essential market infrastructure. Economic power comes to reside in the capacity to define the possible experience, modulate the time of enjoyment, impose exit costs and produce functional and symbolic dependencies that, in practice, convert formal freedom of choice into governed permanence.

Artificial scarcity is the first operator of this architecture because it reinserts rarity where technology would tend toward abundance. In immaterial goods, reproducibility puts pressure on price and dissolves natural rarity, so that it becomes functional to produce rarefaction by institutional decision, by means of windows and rotations of availability, temporary exclusivities, seasons and limited events, access tiers, countdowns, editions and forms of conditional acquisition. Scarcity, here, does not describe the object, since it describes the access regime and is a mode of governing circulation.

Manufactured risk is the second operator, since it converts the access regime into a practical discipline of return and presence. The relevant risk is not only the classic risk of the product's malfunctioning, but the risk of missing an opportunity, of falling behind and of suffering symbolic and functional depreciation within the ecosystem, with the evaporation of value accumulated in the form of status, repertoire, progress and belonging. This grammar of risk is produced by recurrent mechanisms, such as imposed schedules, with seasons, availability windows, rotations and limited events, sanctions and downgrades, with loss of position, visibility, rewards or access to certain layers of the service, and planned uncertainty, with opaque criteria, unilateral modulation of rules and calculated instability of what counts as *meta* or as value. By organizing the experience as continuous administration of the possibility of loss, the platform creates an environment in which permanence ceases to be an episodic option and comes to operate as rational conduct protecting [illegible]sition, so that consumption ceases to be an event and comes to [illegible].

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Diffuse productivity is the third operator, since it closes the economic circuit without depending exclusively on payment. The user's activity sustains the ecosystem and is converted into an asset, into data and metrics, social proof and diffusion, symbolic validation, network effects, patterns of comparison and hierarchies of visibility. In this arrangement, the user is not merely a recipient of an offer, because they participate materially in the valorization of the environment that governs them. This participation need not appear as labor to operate as input, since it manifests itself as capturable and recombinable presence, circulation and conduct, feeding monetization strategies and the very competitive stabilization of the platform.

The question is thus objectively detached from the moral dimension and becomes a legal-structural one. The diagnosis does not depend on attributing the phenomenon to “compulsive consumption” or to “bad choices”, because the relevant coercion does not present itself as an explicit imposition of purchase, but as dependence produced by design, by governance and by narratives that organize value and belonging within a closed circuit.

The economic architecture of the platform contains a teleology of continuous extraction that materializes in recurrent mechanisms. Among them is the unilateral modulation of the conditions of enjoyment, with alteration of rules, prices, access tiers, ranking criteria and recommendation regimes. Also present are functional opacities that prevent verification and contestation, such as non-auditable criteria, informational asymmetries and uncertainty about what determines results. Added to this, finally, is the continuous calibration of behavior, by means of A/B tests, gamification and selective frictions that make certain paths natural and others costly. When the consumer is kept as a serf of the infrastructure by means of artificial scarcity and manufactured risk, the legal question ceases to be merely contractual and becomes one of the legitimacy of the architecture, that is, of the economic purpose incorporated into the normal mode of functioning of the service.

This structure explains why, in the illustrative scenario of the thesis, the player's frustration is not mere subjective “displeasure”, but a symptom of an economy of consumer does not merely buy an item, but enters and invests in a governed regime of belonging that h

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emotions through cycles of satisfaction and frustration. The *rework* that redesigns a character, effects and position in the metagame is functionally equivalent to a reordering of the territory that devalues past investments without offering an internal mechanism of value equivalence, and without allowing the consumer to take what they acquired outside the platform's jurisdiction. The contemporary fief is sustained precisely by this asymmetry, since exit is formally possible, but economically irrational when reputation, history, ties, signs of distinction and acquired goods remain trapped in the same technical enclosure.

The closer the platform comes to practical sovereignty over access, visibility and the meaning of what was acquired, the more the axis of protection needs to bear on integrity, restoration and controllability, and not on a narrow notion of one-off delivery.

The question that arises, therefore, is to what extent Law can impose limits on business models that, in order to monetize the immaterial, need to transform access into dependence, promise into a permanent cycle and enjoyment into a toll circuit. The problem shifts from the atomized examination of events and clauses to the evaluation of the economic purpose incorporated into the arrangement, that is, to the examination of an institutional design that produces continuous extraction as a normal result of its functioning. This purpose is not sustained only by direct economic coercions, but by the administration of the social conditions of recognition of value within the ecosystem. The closing mechanism of this economic architecture is the governance of the visible, the desirable and the recognizable, by which technical abundance is converted into socially perceived scarcity and belonging is transformed into a discipline of permanence.

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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So far, the analysis has established that the platform does not act as a simple "contractual model" aimed at a one-off purchase, since it is a mode of production that organizes enjoyment as administered permanence. Thus, extraction is not concentrated in the act of sale, since it tends to stabilize as recurrent rent through access and tolls, supported by artificial scarcity, manufactured risk, competition by enclosure and architectural teleology, with intellectual property operating as a technology for blocking and closing off the field. In this arrangement, economic power does not derive only from clauses or prices, but from the continuous governance of the conditions of existence of the object and of the consumer bond itself, keeping the consumer bound to a territory in which utility, rarity and value can be reprogrammed by unilateral decision presented as technical routine.

If extraction under platforms depends on permanence and on governance of access, it needs to govern the field in which this permanence is decided in practice, that of attention and signification. The platform economy is sustained by regulating what gains salience and what becomes socially desirable, because it is on this plane that it is decided what appears as valuable, what seems inevitable, what deserves time and what yields belonging. The key is neither price nor initial delivery, but the capacity to organize the horizon of what counts as object, as choice and as value.

In the classical market, economic discipline operates above all through price variation and competitive pressure, the axis on which access, substitution and preference are resolved. On platforms, discipline is reconfigured, since everyday experience is mediated by discovery devices and visibility metrics that not only organize the offer, but construct the field of what seems to exist and to matter. Power is not limited to

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ing, since it is exercised by defining what is seen, what is comparable, what is desirable and wha

alternatives toward “naturalness” and others toward practical invisibility. Economy and semiotics cease to be parallel layers, because regulating perception, comparison and visibility is regulating the decision field itself.

The utility of a good is not reduced to physical use, because of its function as an infrastructure of classification and communication[262]. Goods stabilize hierarchies, boundaries of belonging and the intelligibility of the social world by providing marking services capable of organizing calendars, estimating relations and sustaining reciprocities ISHERWOOD. From this perspective, the relevance lies in offering a vocabulary for describing the immaterial object of consumption as something whose social utility depends on social legibility and belonging within an administered ecosystem, which allows the exit cost to be read not only as patrimonial loss, but as a risk of isolation and weakened bonds.

The central consequence of this approach is that meaning does not reside in an isolated item, but in the relational grammar of the whole. Goods operate as the *hardware* and *software* of an informational system in which meaning emerges from the relations[263] between things, and not from an essence stuck to each object ISHERWOOD. In platform environments, this gives the problem operational precision. Regulating curation and windows of circulation is equivalent to regulating the grammar by which value and belonging are expressed, because it alters the relations that make the collection “say” something. When the good is inseparable from its visibility, comparability and recognition, the ecosystem that administers the conditions of appearance comes to administer the sign together with enjoyment. What is delivered is not just an item. The conditions of language that make this item exist as a socially legible difference within this ecosystem are maintained, or reordered.

Along the same line, “attention economy” ceases to be a metaphor. The decisive scarce resource is not the technical availability of the good, but the user's exposure time. Retention provides volume for observation, profiling, continuous testing of stimuli and calibration of triggers. It is this predictability that stabilizes extraction

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n, pass, “unmissable event”, rotation of offer and successive tolls. Without captured and governed attent

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access ceases to operate as a maintenance fee for one's place and tends to return to the appearance of an episodic purchase.

This transition calls for a language[264] capable of treating value as a result of situated recognition, and not as an intrinsic attribute. In this key, circulation creates value and the link between exchange and value is political in a broad sense. The consequence is that the relevant question ceases to be "how much does it cost" and becomes "which frames make something appear as desirable, comparable and rare", because value is not inherent in the object, but a judgment[265] produced by subjects and endorsed by a real or imagined exchange APPADURAI. For this reason, the author prefers to speak of regimes of value, whose coherence[266] may vary according to the situation and according to the commodity, without requiring full cultural consensus to operate APPADURAI.

The notion of "politics of value"[267] makes explicit the field of power that sustains these regimes. Ordinary exchange depends on agreements about what is desirable and also about who can exercise effective demand and under what circumstances APPADURAI. On platforms, this link thickens, because *gatekeeping* does not bear only on price or contract. It bears on the conditions of visibility that make a sign desirable and a good demandable, converting control of circulation into control of value. If value is an effect of situated recognition, administering catalog, rarity and rules of visibility (curation, windows, criteria) is administering the practical conditions of value itself.

This point becomes even more incisive when consumption is treated as a mechanism of belonging. Douglas and Isherwood describe goods as devices of alignment and boundary. Social life is organized by signs of adherence and exclusion, and goods function as public marks that raise fences against the unwanted, consolidating solidarities and demarcating "*keep out" signs*. In this framework, the correct measure of poverty is not possession, but social involvement, because participation in the informational circuit of consumption determines access to support, predictability

'SHERWOOD. Being out of reach of this system is not a subjective

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options, with direct impact on the very

From this follows a functional thesis for the immaterial object of consumption. When the good depends on appearing, being recognized and circulating in order to "be worth" something, the governance of belonging is converted into a technique of permanence. Rentierism in the immaterial is only sustained when technical abundance is translated into social scarcity. The platform installs a regime of comparison of rarity, status and opportunity, which makes access seem a condition of the existence of value, and not a whim of the *gatekeeper*. Without this regime, charging for access appears as irritation and permanence loses meaning. With it, the toll becomes a maintenance fee for one's place, because what is lost on leaving is not only functional utility, but the very social intelligibility of the collection and of the signs it emits.

In terms of the structure of the object, this reconnects the category of the Immaterial Object of Consumption to its semiotic condition of existence. The IOC does not behave as a "good" only through an isolated functional utility, but as a functional and semiotic bundle, in which enjoyment depends on operations of public legibility and collective recognition. Thus, governing signs, regimes of appearance and collective recognition is not a gesture external to supply, but a way of governing the object itself and its utility over time, because it is in this field that what "counts" as relevant difference, socially perceived rarity and belonging is formed.

The discussion gains an additional tool for describing mutations of value over time without resorting to morality or psychology. In this sense, the perspective of the culturally informed economic biography[269] treats[270] the object as a culturally constructed entity, endowed with specific meanings and classified and reclassified into socially constituted categories KOPYTOFF. The fact that an object is bought or exchanged says nothing about its later status, since it can be withdrawn from the sphere of exchange and still retain commodity potential and latent exchange value[271] KOPYTOFF.

For the immaterial object of consumption, this describes precisely why *reworks*, relaunches, trivializations and repositionings alter value and status without the item

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platform operates as a practical institution of singularization, asserting power through the competen

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singularize[272] a class of objects and to control public institutions[273] of singularization (Kopytoff, 1986, p. 73; p. 81). On platforms, this singularization takes the form of catalog retirement, changes in rarity, restrictions on obtaining items, event-based repositioning, recoding by *meta* and rearrangement of display criteria. The user's nominal ownership is maintained, but the cultural biography of the item is materially reordered, and it is this biography that sustains social utility, prestige and equivalence between promise and delivery.

When the efficient risk is losing *timing*, *status* and belonging, the discipline of presence installs itself as a technique of governing time. Absence ceases to be a mere interruption and comes to produce measurable decline, progressive erasure and practical discontinuity, making permanence the rational way of avoiding loss. The risk is semiotic and temporal by structure. It is semiotic because it depends on the social meaning of what is lost, and temporal because it functions through windows, calendars, cycles and rhythms that convert delay into objective disadvantage even when the immaterial object remains technically accessible.

At this point, consumption reveals itself as ritual[274] in a technical sense, a mechanism that fixes public meanings and stabilizes classifications. Douglas and Isherwood formulate this by treating goods as ritual adjuncts and consumption as a ritual process whose function is to produce meaning in the unstable flow of events, containing the drift of meanings through visible public conventions. Consumption makes judgments firm and visible in the continuous classification of persons and events, which allows demand to be understood as a social, relational and active phenomenon, and not as a private and atomic act (Douglas; Isherwood, 1996, p. 45; p. viii-ix). This definition also connects rite and bond operationally by treating goods as providers of marking services in consumption rituals, capable of drawing a cartography of social integration through the standardized flow of goods ISHERWOOD.

In platform ecosystems, routines such as daily login, missions, limited-time events, seasons and passes can be read as operationalized ritualization. Attendance is organized as a condition of participation in a public system of marking in which d belonging are continually confirmed. The typical punishment need not present itself as a direct sanct

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produces the effect of loss of position and loss of voice. Absence is equivalent to being outside the informational system that allows one to hear and be heard, with harm to the very capacity of choice ISHERWOOD.

Symbolic charging emerges when consumption operates as a social obligation coupled to the bond. It is a system of reciprocal rituals that implies expenditures to mark occasions, guests and hosts, or the community in general. When consumption is the "normal" mark of friendship, falling out of step with the rhythm of the circuit produces weakened access to information and support, surprise in the face of crises and less readiness to deal with the situation ISHERWOOD.

On platforms, the question paves the way for the discussion of the identity cost of exit. Permanence is not sustained only by money already spent, but because withdrawal implies discontinuity of biography and loss of social legibility. Repertoire, history, network, collection and public signs accumulated as proof of trajectory and belonging are lost. The platform transforms invested time into a backing of socially objectified identity by organizing these elements as verifiable symbolic capital.

This circuit, however, requires a constant renewal of meaning[275]. Cultural meaning flows incessantly from the culturally constituted world to goods and from goods to the consumer, through instruments of transfer and consumption rituals MCCRACKEN. Advertising works as a conduit through which meaning is continually poured into goods, informing the public of the current stock of available meanings and operating as a lexicon[276] of prevailing cultural senses MCCRACKEN. Moreover, culture operates as lens and as *blueprint*[277] of action, determining the coordinates of social action and specifying the behaviors and objects that enter it as legitimate references MCCRACKEN.

Renewal is not optional because part of meaning is perishable[278]. If certain symbolic attributes "spoil" over time, the consumer is led to draw meaning from their possessions repeatedly, resorting to rituals that extract these special and perishable properties from possessions, making them come alive, even if for a brief interval, in

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erience MCCRACKEN. On platforms, this describes the pressure not to fall behind as a ritualized renewal of

becomes a discipline of presence, and the discipline of presence sustains the toll by converting the renewal of signals into a practical obligation of attendance under administered visibility.

From this perspective, control of access is not exhausted in price or contract when demand itself is organized before it presents itself as preference. In ecosystems governed by curation, *ranking* and windows of appearance, the relevant competition migrates to the dispute over control of discovery. Whoever controls the paths of visibility controls the practical formation of desire, since they decide what enters the horizon of comparison and what remains invisible. Power ceases to be merely selling, and becomes defining what appears as worthy of investment, which trajectories are rewarded, which signals become necessary for belonging and which paths of enjoyment impose themselves as the default route.

Here, Appadurai's contribution closes the mechanism by treating demand as the economic expression of the political logic of consumption and by insisting that consumption is social, relational and active. Demand[279] is a socially regulated and generated impulse, and not an artifact of individual whims APPADURAI.

This point puts choice back in its place. The abstraction of the isolated rational individual is unworkable when millions share consumption and reciprocally transform the field of meanings. The intelligibility of the social world depends on visible markings and on public categories fixed by conventions, and consumption is precisely the mechanism that makes judgments firm and visible by classifying people and events, requiring "complaisant" peers for public categories to be maintained or changed ISHERWOOD. On platforms, curation, metrics and windows take on this function of public fixation, converting visibility into performed consensus and consensus into support for the toll.

If the platform governs regimes of value and scripts of choice through rules of visibility and continuous updating of the desirable repertoire, it also governs the way in which the immaterial object is promised, perceived and enjoyed. The promise of

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pectations of social utility that depend on public visibility and in the ecosystem.

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display, circulation, rarity and gramma

since they bear upon the semiotic core that makes up the social utility of the IOC and structures the consumer's decision. In this framework, governance of signification ceases to be a backdrop and becomes part of the governance of the good itself, since it alters the conditions under which the item exists as a relevant difference, as socially perceived rarity and as a public marker of position.

In this framing, what is usually perceived as individual preference comes to be described as a discipline of perception and permanence, operated by curation and regimes of appearance that define the horizon of the desirable and the grammar of belonging. In markets of immaterials, economic stability depends not only on price and clause, but on continued control of the field in which permanence is decided in practice, through attention and visibility.

The conversion of technical abundance into socially perceived scarcity is anchored in three coupled mechanisms. First, by validation through consensus, in which metrics, display and circulation produce performed recognition and make value “seem” natural. Second, by discipline of presence, in which the perishability of meaning and the timing of enjoyment turn the updating of repertoire into a practical obligation of attendance. And third, by an exit cost enlarged by reputational and belonging losses, such that the act of leaving the ecosystem implies not only losing utility, but losing social legibility and recognizable position. The result is an identity captivity, in which the toll stabilizes as a fee for maintaining one's place, not as the one-off price of an item.

The shift to the semiotic key is thus ripe. The mechanism described explains how visibility, updating and belonging stabilize recurring revenue and enlarge the exit cost. What remains is to advance, with greater granularity, to the concrete operations of interface, curation and circulation through which the platform produces meaning and discipline of presence, and to the legal qualification of these arrangements when they cease to be ordinary management of the service and come to constitute abusive teleology, by reordering promise, enjoyment and the minimum preservation of legitimately expected value over time.

NOTES

262. This analytical perspective finds a structural, non-psychologizing formulation in *The World of Goods: Towards an Anthropology of Consumption*, by Mary Douglas and Baron Isherwood (1996), originally published in 1979. Instead of treating consumption as a moral caricature or as a sum of individual impulses, the work reinserts goods into the social process and describes consumption as language and as everyday ritual. The methodological inversion proposed by Douglas and Isherwood appears as an explicit command. The target is the impoverished reading of consumption as irrationality, excess or mere satisfaction of material needs. The central move consists in suspending, for long enough, the vocabulary of biological utility, in order to observe what goods do as operators of thought, classification and communication. The reference to Lévi-Strauss works as a theoretical framing, since, just as certain animals are "good to think" in the logic of totemism, commodities can also be "good to think" when treated as a medium of symbolic work. "Forget the idea of consumer irrationality. Forget that commodities are good for eating, clothing, and shelter; forget their usefulness and try instead the idea that commodities are good for thinking; treat them as a nonverbal medium for the human creative faculty" ISHERWOOD. The conceptual consequence is significant, since goods cease to be read as things that merely "serve" and come to be understood as a nonverbal medium of cultural elaboration. This opens room for understanding consumption as everyday cognitive infrastructure, in which choosing, using and displaying goods is not moral noise in rationality, but one of the ways in which social categories become practicable. The "creative faculty", in this register, is not reduced to artistic creativity, but designates the ordinary capacity to make the world intelligible through materialized signs. ↩

263. Douglas and Isherwood go further by formulating the perspective of goods as an information system. The point is not merely that "objects communicate", but that this communication is structural and relational, and depends on the whole. The isolated item is semantically incomplete, since meaning emerges from the reciprocal position among goods, as happens in a grammar or in a musical harmony. At this point, the authors consolidate the argument with two images that organize the reasoning, namely, the idea of a system that "monitors its own performance" and the analogy with music, in which the minimal unit is not the note, but the relation between notes. "The goods are both the hardware and the software, so to speak, of an information system whose principal concern is to monitor its own performance. [...] The counterargument proposed here is that all goods carry meaning, but none by itself. [...] The meaning is in the relations between all the goods, just as music is in the relations marked out by the sounds and not in any one note" ISHERWOOD. This redefines what "value" is on the anthropological plane. Value comes to function as an effect of insertion in a series, and not as a physical attribute of the object. A good is "worth" because it occupies an intelligible place in an arrangement of differences, oities and hierarchies. Consequently, any alteration in the arrangement whether in what appears together,

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seen as a “peer”, modifies what the good “says”. The unit of analysis ceases to be the item and becomes the grammar of the collection. ↩

264. In *The Social Life of Things* (1986), Arjun Appadurai proposes understanding the commodity as a situated and transitory condition, defined by the social arenas of exchange, and not as a fixed category restricted to capitalism. Titled *Introduction: Commodities and the Politics of Value*, the essay opens the volume edited by Appadurai, which gathers essays in anthropology and history aimed at shifting the gaze from exchange as abstraction to the things themselves in circulation, treating commodities as objects endowed with a “social life” and with trajectories that vary according to cultural and historical contexts. Instead of presupposing value as an inherent attribute of the object or as a simple mechanical effect of the market, the volume emphasizes that value is produced and stabilized in social regimes of recognition, circulation and classification. ↩

265. Appadurai begins with an operation of conceptual cleansing. Before dealing with circulation, commodity and regimes, he redefines what is understood by value, precisely to prevent the analysis from falling back into an ontology of the object. The starting point is Simmel. Value is not an inherent property of the thing, but a situated judgment, formulated by subjects and made effective by conditions of demand and exchange. The economic object, therefore, does not possess absolute value as a mechanical effect of desire. It is demand, as the basis of a real or imagined exchange, that invests the thing with value. Next comes the decisive inversion. It is not utility or scarcity that explain exchange, but exchange that defines the practical parameters of utility and scarcity. “Value, for Simmel, is never an inherent property of objects, but is a judgment made about them by subjects. [...] Thus, the economic object does not have an absolute value as a result of the demand for it, but the demand, as the basis of a real or imagined exchange, endows the object with value. It is exchange that sets the parameters of utility and scarcity, rather than the other way round, and exchange that is the source of value...” APPADURAI. With this shift, “commodity” ceases to be a moral or natural category and comes to designate a relational and historical condition. Value becomes intelligible as an effect of practices, expectations and arenas of exchange. The analysis of the economic, consequently, shifts to the frameworks that make exchange possible, that is, to mechanisms that stabilize judgments of value, instead of explaining value “from inside” the object. ↩

266. Having set aside the idea of value as essence, Appadurai formulates a concept to face a recurring problem in economic anthropology. Exchanges occur even when there is no dense and shared cultural consensus about “what is worth how much”. Cross-cultural trade, exchanges under necessity and circulation between heterogeneous and groups require an analytical language that depends neither on cultural nor on fully shared assumptions. In this context, Appadurai prefers to speak of regimes of value, not to p[illegible] variable degrees of evaluative coherence, sufficient to enable equivalences and

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hierarchies in diverse situations. The formulation is explicit: “I prefer to use the term regimes of value, which does not imply that every act of commodity exchange presupposes a complete cultural sharing of assumptions, but rather that the degree of value coherence may be highly variable from situation to situation, and from commodity to commodity. A regime of value, in this sense, is consistent with both very high and very low sharing of standards by the parties to a particular commodity exchange” APPADURAI. The concept offers a tool for seeing value as an operational grammar, composed of standards and criteria that need not be fully consensual in order to work, provided they produce enough practical coherence to guide equivalences, distinctions and disputes. Regime of value, thus, does not describe cultural harmony, but the capacity of an arena of exchange to make value “operate” under friction, asymmetry and disagreement. ↩

267. In the conclusion, Appadurai names the structural link between value and exchange, which in everyday life tends to remain invisible, since custom takes on an appearance of neutrality. This link is politics, understood in a broad sense, as relations, assumptions and contests tied to power. Routine exchange only seems “natural” because it depends on agreements about the desirable, about what counts as a reasonable sacrifice in a transaction and, above all, about who is authorized to exercise effective demand in given circumstances. For this reason, value and exchange are not connected automatically by price or preference, since they are connected by an architecture of permissions, conventions and privileges that sustains what can circulate and with what efficacy. The passage is long and central: “Politics (in the broad sense of relations, assumptions, and contests pertaining to power) is what links value and exchange in the social life of commodities. In the mundane, day-to-day, small-scale exchanges of things in ordinary life, this fact is not visible, for exchange has the routine and conventionalized look of all customary behavior. But these many ordinary dealings would not be possible were it not for a broad set of agreements concerning what is desirable, what a reasonable ‘exchange of sacrifices’ comprises, and who is permitted to exercise what kind of effective demand in what circumstances. What is political about this process is not just the fact that it signifies and constitutes relations of privilege and social control. What is political about it is the constant tension between the existing frameworks (of price, bargaining, and so forth) and the tendency of commodities to breach these frameworks” APPADURAI. In this register, “politics of value” is not a normative addendum, but a description of the engine that makes economic life possible and unstable at the same time. The ordinary economy appears as a field of continuous tension between frames that attempt to stabilize exchange, such as price, bargaining and rules, and the tendency of the flows and disputes themselves to break such frames. Value thus becomes an effect dependent on socially

ments and on structures that authorize, block and modulate demand. ↩

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because the argument depends on

as a practical condition of insertion in networks of support, predictability and opportunity. Exclusion does not appear as a simple lack of goods, but as being out of reach of an informational flow in which one hears and is heard. This loss reconfigures the subject's possible future. The passage formulates this incisively, by directly connecting information, earning potential and “future choosing”. In the original: “To be in control of this sort of information may be vital for getting and keeping a high earning potential. To be outside its range altogether, for the individual who can neither hear it nor make his voice heard, is to risk being treated like a stone, trodden underfoot and kicked aside—a limit to future choosing and the exercise of rational choice. [...] One way to keep off the slide from temporary unemployment to unemployability, which leads to chronic isolation, deviance for his children, even criminality, is to be more closely involved with people. And this takes money” ISHERWOOD. What is at stake is a theory of the social cost of “being outside”, insofar as non-participation in certain circuits reduces agency by restricting access to signals, alliances and support. The image of the individual “treated like a stone” synthesizes the effect of social illegibility, while the passage ties this effect to a cumulative dynamic, in which exclusion tends to turn into chronic isolation and progressive degradation of opportunities. In this framing, consumption ceases to be read as whim and comes to be read as infrastructure of social survival, since the capacity to maintain bonds and circulate information depends on participating in shared practices that require money. ↩

269. Kopytoff proposes a direct methodological turn. Instead of treating objects as stable units, endowed with a fixed economic “nature”, he suggests tracing trajectories. It is not a matter of writing biography out of literary exoticism, but of showing that the social identity of a thing is constructed and continually reassigned. What makes the biography “cultural” is not the theme, but the perspective, since the object is seen as a culturally constructed entity, invested with specific meanings and subject to successive reclassifications into socially produced categories. The passage formulates this unequivocally: “What would make a biography cultural is not what it deals with, but how and from what perspective. A culturally informed economic biography of an object would look at it as a culturally constructed entity, endowed with culturally specific meanings, and classified and reclassified into culturally constituted categories” KOPYTOFF. The reach of the argument lies in shifting the question. Instead of “what is this object?”, the analysis comes to ask through which categories it has passed, who inserted it into them and what kinds of value and prohibition were coupled to each phase. The object ceases to be a neutral support of value and becomes a node of historical classifications, in which “commodity” is only one possibility among others, often a temporary phase. ↩

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*The Cultural Biography of Things: Commoditization as Proces*s, part of the *cial Life of Things: C*

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Appadurai , Igor Kopytoff shifts co

enter and leave the status of commodity, alternating moments of homogenization and of singularization. ↩

271. One of the most productive points on which Kopytoff's text insists is that the initial exchange does not fix the destiny of the object. Buying, selling or exchanging does not exhaust the subsequent social status of the thing, nor does it guarantee that it remains a commodity in the full sense. Kopytoff describes commoditization as a reversible process full of zones of latency. Things can be withdrawn from the sphere of exchange, "deactivated" as commodities and, even so, retain exchange potential and latent exchange value. The passage is explicit: "In the same way, the fact that an object is bought or exchanged says nothing about its subsequent status and whether it will remain a commodity or not. But unless formally decommoditized, commoditized things remain potential commodities — they continue to have an exchange value, even if they have been effectively withdrawn from their exchange sphere and deactivated, so to speak, as commodities. This deactivation leaves them open not only to the various kinds of singularization I have mentioned so far, but also to individual, as opposed to collective, redefinitions" KOPYTOFF. The conceptual force lies in breaking the automatic link between "having been a commodity" and "being a commodity". The thing may remain nominally "possessed" and, at the same time, lose its practical place in the circuit of comparison, equivalence and recognition. The focus ceases to be the moment of purchase and shifts to the maintenance, suspension or reconfiguration of the exchange status and of the kind of value the thing carries at each stage of its trajectory. ↩

272. In discussing singularization, Kopytoff links value and power explicitly. In every society, there are things that are publicly precluded from becoming commodities. Part of these prohibitions is cultural and collectively upheld. In state societies, many are the "handwork of the state", in a typical combination of what "serves society", what serves the state and what serves the groups in control. In this scenario, singularization appears as a gesture of authority, since power asserts itself symbolically by insisting on the right to singularize objects, that is, to withdraw them from the common and protect them from the undifferentiated flow of exchange. In the passage: "In every society, there are things that are publicly precluded from being commoditized. Some of the prohibitions are cultural and upheld collectively. In state societies, many of these prohibitions are the handwork of the state, with the usual intertwining between what serves the society at large, what serves the state, and what serves the specific groups in control. [...] Power often asserts itself symbolically precisely by insisting on its right to singularize an object, or a set or class of objects" KOPYTOFF. The concept of singularization, therefore, is not limited to "making special". It designates governing the borders between the comparable and the incomparable, between the exchangeable and the [illegible] arded, between the common and the exceptional. Singularity is a social tributive effects, sinc[illegible] hierarchize and stabilize prestige. ↩

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273. Kopytoff closes the arc by showing that singularity is not an intimate whim. When singularization is carried out by groups, it carries collective approval, channels the individual drive and gains the weight of "cultural sacredness". For this reason, disputes over taste, aesthetics and value may conceal conflicts of class, identity and power. At this point, Kopytoff names the institutional core of the process, which is the struggle for control of the "public institutions of singularization", that is, public arenas capable of certifying and imposing which objects will be treated as singular and which will remain in the common. The passage formulates it precisely: "Singularization of objects by groups within the society poses a special problem. Because it is done by groups, it bears the stamp of collective approval, channels the individual drive for singularization, and takes on the weight of cultural sacredness. [...] Behind the extraordinarily vehement assertions of aesthetic values may stand conflicts of culture, class, and ethnic identity, and the struggle over the power of what one might label the 'public institutions of singularization'" KOPYTOFF. The notion of "public institutions of singularization" makes it possible to read value as something that requires certification. Singularity is not "born" of the object. It is produced, validated and disputed in arenas capable of imposing public recognition. For this reason, the cultural biography of a thing changes when these arenas change, since what changes is who holds the power to say what is rare, exceptional, collectible, worthy of reverence or, on the contrary, ordinary and replaceable. ↩

274. "Ritual", here, is not equivalent to solemnity. It is a social technology for stabilizing meanings. The initial diagnosis is that social life faces a basic problem, since meanings drift, categories dissolve and interpretations slide. Without public conventions, there is no minimum consensual basis for acting. The authors describe rituals as devices that contain this drift and establish visible public definitions. Goods enter as material adjuncts of this process, since they function as a practical support capable of anchoring conventions. The chain appears clearly: "The main problem of social life is to pin down meanings so that they stay still for a little time. Without some conventional ways of selecting and fixing agreed meanings, the minimum consensual basis of society is missing. [...] As for tribal society, so too for us: rituals serve to contain the drift of meanings. Rituals are conventions that set up visible public definitions. [...] Goods, in this perspective, are ritual adjuncts; consumption is a ritual process whose primary function is to make sense of the inchoate flux of events" ISHERWOOD. Next, consumption is defined in lapidary form as a ritual activity, precisely because it turns fluid judgments into stable and publicized markings: "Consumption uses goods to make firm and visible a particular set of judgments in the fluid processes of classifying persons and events. We have now defined it as a ritual activity" ISHERWOOD. The interpretive key, therefore, is that consuming is not limited ut implies participating in a system of marking that fixes classifications. world" by stabilizing

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reason, repetition is neither noise nor mere habit, since it is part of the mechanism that keeps categories standing over time. ↩

275. It is exactly this point that Grant McCracken systematizes in *Culture and Consumption: A Theoretical Account of the Structure and Movement of the Cultural Meaning of Consumer Goods* (1986). McCracken begins by pointing to the limitation he considers structural in the dominant approaches of that period. These approaches treated the cultural meaning of goods as something fixed, "adhered" to the object, as if it were stored in it and the consumer only had to buy it to appropriate it. The proposal is to put meaning back in motion. Cultural meaning, in a consumer society, is not a motionless stock, but continuous transit between relatively stable instances and "stations". For this reason, McCracken speaks of a usual trajectory and of instruments responsible for this displacement. "Cultural meaning in a consumer society moves ceaselessly from one location to another. In the usual trajectory, cultural meaning moves first from the culturally constituted world to consumer goods and then from these goods to the individual consumer. Several instruments are responsible for this movement: advertising, the fashion system, and four consumption rituals" MCCRACKEN. Thus, in the first place, "good" and "consumer" cease to be origins of meaning and become points of passage, with specific functions in symbolic circulation. In the second place, the circuit is not merely metaphorical, since there are identifiable instruments that transfer meaning, such as advertising, the fashion system and rituals. With this, culture does not appear as a diffuse backdrop, but as a mechanism that must be operated for meaning to move and remain functional. ↩

276. In dealing with the instruments that transfer meaning from the "culturally constituted world" to goods, McCracken assigns to advertising a stronger role than that of "persuading". Advertising is described as a conduit, that is, a channel through which meaning continually "pours". It couples meanings to goods, removes old meanings and attaches new ones. The viewer or reader enters as an active participant in the process, because they must decode and complete the transfer. It follows that advertising continually informs the public of the "present state" of the cultural meaning available in goods, as if it updated the symbolic inventory of the material world. The passage is entirely designed for this effect: "Advertising is a conduit through which meaning constantly pours from the culturally constituted world to consumer goods. Through advertising, old and new goods continually give up old meanings and take on new ones. As active participants in this process, the viewer/reader is kept informed of the present state and stock of cultural meaning that exists in consumer goods. To this extent, advertising serves as a lexicon of current cultural meanings" MCCRACKEN. The vocabulary employed is revealing, since it points to updating, and not to a mere message. Advertising, in this key, functions as a mechanism of symbolic

277. Before examining the instruments, McCracken defines the place where meaning originally resides. He locates it in the “culturally constituted world” and does so through a double definition of culture, crucial for refusing the idea of culture as a mere subjective filter. Culture appears as lens and as blueprint. It functions as lens because it guides how the phenomenon is seen. It functions as blueprint because it prescribes coordinates of action and production, by specifying behaviors and objects that become legitimate references. The passage makes this double function explicit: “Culture constitutes the phenomenal world in two ways. First, culture is the ‘lens’ through which the individual views phenomena [...]. Second, culture is the ‘blueprint’ of human activity, determining the co-ordinates of social action and productive activity, and specifying the behaviors and objects that issue from both. [...] In short, culture constitutes the world by supplying it with meaning. This meaning can be characterized in terms of two concepts: cultural categories and cultural principles” MCCRACKEN. cultural configure the map of the intelligible, by ordering divisions of time, space, person, status, gender, class and appropriateness. It is not a matter of individual opinion, but of a matrix that guides perception and, at the same time, defines a repertoire of actions and objects that can count as socially relevant. ↩

278. The theory of the transit of meaning contains a decisive point. Part of meaning is perishable. McCracken uses this notion to explain why symbolic appropriation is not exhausted at purchase and why consumption rituals must be repeated. If meaning “expires”, it must be periodically extracted from possessions, since symbolic life requires reactivation. For this reason, he links perishability to the need for a continuous process of transfer from the good to the consumer and, consequently, to the tendency to resort to specific rituals, such as grooming rituals. These rituals involve care and “work” to make symbolic properties “live”, even if only for a short time. The passage is long and very clear: “It is clear that some of the cultural meaning drawn from goods has a perishable nature. As a result, the consumer must draw cultural meaning out of his/her possessions on a repeated basis. When a continual process of meaning transfer from goods to consumer is necessary, the consumer will likely resort to a grooming ritual. The purpose of this ritual is to take the special pains necessary to insure that the special, perishable properties [...] are, as it were, ‘coaxed’ out of their resident goods and made to live, however briefly and precariously, in the life of the individual consumer” MCCRACKEN. The image of “coaxed” is central, since it indicates that meaning does not emerge on its own. It must be activated and cultivated. The very precariousness expressed in “however briefly and precariously” reinforces the logic of continuous maintenance. Ritualized consumption thus appears as regular symbolic work, and not as whim. Repetition, in this framing, is the ordinary way of preventing fragile cultural attributes from collapsing through obsolescence, .cement by new arrangements of meaning. ↩

ng of “demand” as a

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different societies. The target is the idea that desiring and demanding would be spontaneous movements of the individual, like a psychological energy that the economy would merely account for. Appadurai describes demand as a socially regulated and socially generated impulse, produced by taste-making mechanisms and by rules that organize the appropriate, the available and the prestigious. Even when the mechanisms vary, whether by fashion, media, informal norms or sumptuary laws, the structure remains. Demand is born within devices of social regulation and production, and not as an artifact of individual whims or needs. In the passage: “The demand for commodities is critically regulated by this variety of taste-making mechanisms, whose social origin is more clearly understood (both by consumers and by analysts) in our own society than in those distant from us. [...] In both cases, however, demand is a socially regulated and generated impulse, not an artifact of individual whims or needs” APPADURAI. In this way, demand ceases to be a natural given and becomes an institutional and cultural variable. What counts as desirable, comparable and legitimate is not merely perceived, but produced and stabilized by mechanisms that organize visibility, appropriateness, distinction and belonging. The economy of consumption becomes legible as a process of manufacturing criteria, and not as a sum of autonomous wills. ↩

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The techno-media economic order of digital consumption does not operate only as a market structure, infrastructure and continuous extraction of value. It projects itself, with equal force, onto the plane of signs and attention, where value and delivery are no longer perceived as stable attributes of a "good" and come instead to be constituted by administered visibility, reputation, metrics and belonging. In platform ecosystems, enjoyment is not reduced to using a feature. It involves participating in a governed symbolic grammar, in which prestige, rarity, recognition and experience are part of the content delivered as perceived, and in which the promise is fulfilled through codes of reading and through equivalences built within the environment.

To make this regime knowable, semiotics is treated here as a material dimension of the legal problem, not as interpretive ornament. The consumption promise is stabilized by signs, interfaces and regimes of representation that define what "counts" as delivery and which equivalences are socially recognized as value. In this vein, the contribution of Umberto Eco[280] makes it possible to understand how codes and conventions make the performance legible and organize the consumer's expectations, whereas Guy Debord[281] brings out the centrality of the spectacle and of the circulation of images in shaping desire and adherence. Jean Baudrillard[282] completes the axis by showing how, in attention economies, simulacrum and hyperreality shift the center of the commodity to its symbolic efficacy, so that consumption presents itself as access to experiences and positions, and not merely as the acquisition of discrete utilities.

This semiotic plane, however, does not operate in a vacuum. It is governed. The

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an instance of private administration that organizes enjoyment

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visibility. This includes both explicit d

decisions embedded in *design*, in curation and in the metrics that select what will be seen, rewarded and reproduced. Governance, in this sense, is not an "accessory" to consumption, but an operational condition of the performance itself. The contribution of Julie E. Cohen[283] is drawn on to describe the platform as a form of organizing power that produces dependencies, structures conduct and naturalizes patterns of participation through technical and institutional means not exhausted by the contract.

The asymmetry that matters on this plane is not exhausted by a deficit of available information. It takes shape as an inequality of codes and language regimes that condition what the consumer can perceive, compare and contest within the environment. Luis Alberto Warat[284] and Maurizio Gnerre[285] are drawn on for this precise function, developing and fixing the perspective according to which vulnerability may arise from the gap between operational languages and languages of enjoyment, between vocabularies of promise and vocabularies of control, and between system metrics and expectations of experience. Semiotic vulnerability thus remains a structural category, tied to intelligibility and agency, and not an individual pathology or a mere absence of "enlightenment".

The legal problem deepens when this governance comes to have total effects on the consumer's presence and reputation within the ecosystem. The prudential reference of Samuel D. Warren II[286] and Louis D. Brandeis[287] serves as a methodological model for recalibrating categories in the face of technical mutations that reconfigure the scope of rights and expectations, preventing the legal response from remaining trapped in material analogies that no longer reach the real experience of enjoyment. Next, Byung-Chul Han[288] is drawn on to name psychopolitical dimensions of adherence and induced self-government, in which the bond is sustained by the pressure of performance, comparison and continuous validation. Eros Roberto Grau[289] helps to recognize that normativity can operate as an effective order imposed by an organization endowed with power, making it possible to characterize as practical governance what presents itself as a "condition of use" or "internal rule" ıral effects on ways of life and social positions in the digital environment.

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In this context, the asymmetry between supplier and consumer is not merely informational. It is structural, semiotic and institutional. It is structural because it stems from concentrated control over infrastructure, rules and channels of visibility. It is semiotic because it bears on the production of the very codes of value, reputation and delivery equivalence. It is institutional because it is stabilized by private procedures of adjudication, sanction and unilateral modulation, often opaque and difficult to contest. The relevant vulnerability is not exhausted by a "lack of information". It involves an asymmetry of intelligibility and agency in an environment in which the consumer depends, in order to enjoy and to exist socially, on grammars, metrics and access regimes administered by the supplier.

The aim here is to make explicit how the capture of meaning and governed participation become constitutive components of continuous immaterial consumption, making legally visible losses and frictions that do not appear as classic nonperformance, but as degradation of enjoyment, a lowering of perceived value and the erosion of belonging through technical and governance decisions. Semiotic vulnerability is thereby stabilized as a structural asymmetry of intelligibility and agency in platform ecosystems, and the mechanisms by which enjoyment comes to depend on regimes of visibility, metrics and private sanction are outlined, to a degree sufficient to allow later legal qualification without relying on a demonstrative empirical narrative.

NOTES

280. A graduate in Philosophy of the *Università di Torino*, Umberto Eco was an Italian semiotician, philosopher, medievalist and cultural critic, known both for his academic contribution to semiotics and the theory of interpretation and for his public profile as a writer. In 1975, he took up the chair of Semiotics at the *Università di Bologna*, where he also held academic leadership positions in communication and performing arts studies. ↩

281. A graduate of the undergraduate program in Philosophy at the *Université de Paris* (Sorbonne), Guy Debord was a Marxist theorist, filmmaker and one of the leading Situationist International, an artistic and political movement active from the 1970s. Although his career was not academic in the strict sense, he is recognized for his role in the critiq of the use of the image as an instrument of social domination. His work offers a

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radical analysis of the logic of the spectacle as a form of organization of life under late capitalism, and of particular relevance to this research is the book *La Société du Spectacle* ("A Sociedade do Espetáculo", in the Brazilian edition), originally published in 1967. ↩

282. Holder of a doctorate in Sociology from the *Université Paris X* (Nanterre), Jean Baudrillard was a French philosopher, sociologist and cultural theorist with broad influence in communication studies, postmodern critique and the philosophy of language. He is known for his critique of the culture of simulation and of the dissolution of reality into regimes of signs, especially in advanced consumer societies. ↩

283. A graduate of *Harvard-Radcliffe* with a J.D. from *Harvard Law School*, Julie E. Cohen is an American legal scholar and a leading reference in law and technology, with prominent work on privacy, surveillance, intellectual property and platform governance. She is a professor at *Georgetown University Law Center*, where she researches how informational infrastructures and legal arrangements reconfigure institutions and power relations in the contemporary economy. ↩

284. Holder of a doctorate in Law from the *Universidad de Buenos Air*es, Luis Alberto Warat was an Argentine jurist and legal philosopher based in Brazil, with a decisive influence on Brazilian graduate legal education through a critical and avowedly interdisciplinary approach. His work challenges traditional dogmatics and draws on epistemology, language, semiology and legal pedagogy, while also engaging with psychoanalysis, art and political ecology. In the work "O direito e sua linguagem", consulted for this research, Warat worked with Leonel Severo Rocha, who holds a doctorate from the *École des Hautes Études en Sciences Sociales* (EHESS), Paris, and a postdoctorate in Sociology of Law from the *Università degli Studi di Lecce*, a Brazilian jurist and researcher in legal sociology and general legal theory, with emphasis on systemic approaches and on the observation of law in contexts of high social complexity. ↩

285. Holder of a doctorate in Letters and Philosophy from the *Università di Roma (La Sapienza)*, with further training in anthropology at the *University of California* (Berkeley), Maurizio Gnerre is an Italian linguistic anthropologist known for research in ethnolinguistics and language contact in contexts of colonial and missionary expansion, as well as studies on language ideologies and the semantics of unwritten indigenous languages. ↩

286. A law graduate of *Harvard Law School*, Samuel D. Warren II was an American lawyer and businessman connected to the Boston elite and to the paper industry in Maine. With Louis D. Brandeis he founded the firm Warren & Brandeis , predecessor of today's Nutter, McClennen & Fish. Also with Louis D. Brandeis, he published in 1890 *Right to Privacy*, which systematizes civil protection against undue private life, a protec

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history of the right to privacy. ↩

287. A law graduate of *Harvard Law School*, Louis D. Brandeis was an American lawyer and, later, *Associate Justice* of the Supreme Court of the United States (1916-1939), known for his influence on progressive legal thought in the early twentieth century. ↩

288. Holder of a doctorate in Philosophy from the *Albert-Ludwigs-Universität Freiburg*, Byung-Chul Han is a South Korean philosopher based in Germany and a professor at the *Universität der Künste Berlin*. His work critically examines the culture of productivity, positivity and self-exploitation in neoliberal society. Reflecting on contemporary psychological exhaustion and the dissolution of the boundaries between life and work, Han offers a critique of capitalist temporality and of invisible forms of domination. ↩

289. Holder of a doctorate in Law and the livre-docência from the Faculty of Law of USP, Eros Roberto Grau is a Brazilian jurist and professor regarded as one of the central names in Economic Law and in the constitutional reading of the economic order. He was a full professor in the Department of Economic and Financial Law at USP and served as a Justice of the Federal Supreme Court from 2004 to 2010. ↩

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The platform is an economic architecture, an arrangement that depends not only on price, but on permanence, repetition and continuous governance to extract value. Thus, the next step is to explain how this extraction becomes normalized and desirable in the consumer's experience, in a stable and recurring way. In immaterial consumption, capture is not sustained only by a clause or by a technical barrier. It is sustained by a regime of presentation, visibility and production of meaning that transforms choice into conduct and transforms enjoyment into permanence. For this reason, the description of the phenomenon must incorporate the semiotic dimension, since a decisive part of value is produced and stabilized in the way the offer presents itself, circulates and becomes recognizable as “delivery”.

In the field of IOCs, the object does not appear to the consumer as an isolated “thing”, nor as a simple accessed file. It appears as a position of enjoyment within a governed ecosystem, and this ecosystem already delivers the object wrapped in language, status and expectation. The offer, here, is always double, because it is composed of a narrative promise and an infrastructure of support. It is narrative because it presents meaning, rarity, belonging and prestige as if they were natural properties of the item. It is infrastructure because it exists only while the techno-media environment maintains the intelligibility of that meaning and the possibility of living it before others.

For this reason, the sign does not function as a communicational ornament of the product, but as a material component of the immaterial good itself. It is not a matter of an “image” superimposed on a neutral substance. It is a form of existence of the object, in which what is acquired is defined also by how it shows itself, by how it

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This mechanism acts in a practical and continuous way. The promise is not limited to the moment of purchase, nor is it exhausted in the formal description of the item. It operates as a script of conduct, because the signs that surround the IOC organize desire, urgency, comparison and belonging in real time. Enjoyment becomes, simultaneously, use and performance. The value of the good is not only what it "does", but what it authorizes one to say about whoever holds it, where it places the subject within visible hierarchies and which symbolic doors it opens or closes within the community. Thus, identity, reputation and social integration cease to be side effects of consumption and come to make up the very circuit of the object. In this type of market, the platform governs not only the technical delivery of the good, but the symbolic conditions that make that delivery desirable, recognizable and continually renewed.

Under these conditions, the vulnerability that matters cannot be reduced to lack of information or to the old model of the consumer who "did not read" or "did not understand" the contract. The point is more structural. The consumer decides and remains within a field of meaning that he cannot audit, because the correspondence between the sign and the delivery depends on curations, metrics and continuous adjustments that are beyond his reach and, often, beyond even the formal text of the offer. The asymmetry lies not only in knowledge of clauses, but in the capacity to verify what really sustains the promise and under what conditions it can be altered, degraded or replaced without this appearing as an explicit breach. Hence the expression semiotic vulnerability. It is not a rhetorical adjective, but the name of a type of exposure in which the regime of signs governs experience and value, while the consumer's access to the bases of this governance is opaque, partial and reconfigurable.

If the regime of signs participates materially in the offer and in the very mode of existence of the IOC, legal control cannot be limited to examining formal declarations or to measuring harm as a simple failure of technical performance. The consequence is that the problem comes to require criteria of verifiability capable of [illegible] some degree of demonstrability, which conditions sustained the [illegible] ey operated in enjoyment. In this direction, auditability designates the requirement of traceabi[illegible]

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operative, allowing the link between expectation, architecture and experience to be reconstructed without depending only on the platform's self-description. Likewise, functional value equivalence designates the need to separate merely nominal restoration from effective preservation of the acquired position of enjoyment, since, in positionally defined goods, maintaining label and appearance may not preserve relevant functions, restrictions and effects. These names do not function as moralism against the symbolic, but as an anticipation of the type of control that will become necessary when the sign can operate as a shortcut of continuity and, with this, obscure proof of what was effectively delivered.

The semiotic block is organized as a tripod, but not as three contributions of the same weight and function. In Eco, the grammar of the problem is fixed, for the sign is treated as a structural and administrable component of intelligibility, an objective condition for the promise to exist socially and for the link between expectation and enjoyment to be reconstructed and demonstrated. In Debord, the mechanism is described by which this grammar is put into operation as a regime of visibility and comparison, making reputation, social proof and legible hierarchies part of the economic circuit of permanence. In Baudrillard, it is made explicit how equivalence can be stabilized by signals of delivery and by internal commensurability, allowing nominal restorations that preserve the public appearance of fulfillment without preserving the position of enjoyment in its relevant elements. The objective is not to multiply vulnerabilities by author, but to decompose, in layers, the conditions under which the governance of meaning is converted into governance of evidence and, with this, into a problem of verifiability amenable to protection by Law.

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The extraction typical of IOCs depends on a regime of signification that makes the good intelligible, desirable and comparable in a governed ecosystem. The object only acquires economic form when it can be read as a position of enjoyment endowed with meaning, rarity, belonging and prestige. For this reason, the offer is not reduced to technical delivery nor exhausted in formal declarations, since it operates through signs that organize expectation and guide conduct. The semiotics of Umberto Eco[290] enters as a descriptive instrument to establish the sign as a legally material component of the immaterial good, a practical condition of its social existence and of its techno-economic valorization.

The sign relevant to IOCs is not a label coupled to neutral content, because the meaning of the good depends on conventional correlations governed by code. In Eco, the sign ceases to be treated as a static entity and comes to be understood as function, that is, as an operation of signification that occurs when elements of a plane of expression are correlated, by convention, with elements of a plane of content within a system, which is why the analysis must focus less on signs as things and more on the semiotic functions that constitute them ECO. This formulation shifts the focus to the rules that allow something to count as something, which makes visible that the intelligibility of the object is produced by structural relations and, therefore, can be administered, stabilized and reconfigured by regimes of signification.

An operational analogy helps make the question under debate more evident. As a sign of sustenance, the "sausage"[291], in material economies, refers to a referent that nourishes and is used up. The "digital sausage", by contrast, in the form of a *skin*, a [illegible]tle, operates as an almost pure sign: it is not consumed, does not [illegible], and yet it organiz[illegible] ecosystem. What is bought is not an ob[illegible]

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but a semiotic function carefully positioned in the network of differences that makes the item legible as “rare”, “event”, “prestigious” or “of belonging”. In this regime, the sign does not accompany the offer. It is a constitutive part of what is recognized as delivery.

This structure reveals a decisive economic shift, since the marginal cost of producing the sign may tend to zero, but its capacity to capture value is maximized when the platform controls the grammar that defines what counts as distinction and what must be recognized as superior. Exchange, then, ceases to occur between things and comes to occur between time of life and symbolic positions. In practical terms, real hours of attention, permanence and performance are converted into markers whose existence depends only on the maintenance of the code and the circulation of recognition. The supplier's gain does not lie in delivering a “good” proportional to the consumer's effort, but in administering a regime of signification in which effort is socially converted into sign, and the sign, in turn, is reconverted into permanence and recurring monetization.

If the sign is function and not “thing”, the decisive point is how the platform organizes the correlations that make the good legible and desirable. In IOCs, the offer is a position of enjoyment, not mere technical access: its reading informs what the item “is”, what it is “worth” and why it matters. The correlation between expression and content, in this environment, does not occur as a neutral given, but as directed production of meaning. The platform decides which marks, categories, narratives and signals will be correlated with the item to make it exist socially as rarity, belonging or prestige. For this reason, the semiotic regime is not an external layer of consumption, but a practical condition of existence of the economic object, because it transforms the immaterial good into a socially recognizable expectation.

The next step is to set aside any naturalistic reading of meaning and to establish that the content operated by the sign is a product of rules and shared repertoires. In Eco, signification is not anchored in a thing that would carry meaning by itself, since the very meaning of the term is treated as a cultural construction, in the sense that the

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s a cultural unit [ECO]. This allows the value of IOCs to be

described as something that stabilizes

internal to the system, and not through intrinsic properties of the item. The encyclopedia, in this framework, functions as a public repertoire that makes such correlations socially accessible, because semiotic processes circumscribe meanings without ever touching them directly, but make them operable through other cultural units ECO. Thus, the meaning that sustains the promise of the IOC appears as a structured effect of rules and of a shared interpretive network, the condition by which the platform can produce, reinforce and also reconfigure the intelligibility of the good.

A direct way of observing what Eco describes as a cultural unit, operating under a regime of code, is to look at signs that "add" nothing to the technical performance of the game and, even so, reorder the social reading of the subject within the ecosystem. In *League of Legends*, a loading screen border associated with the user's ranked tier, or a progression icon, does not increase damage, does not alter range, does not improve the win rate. Even so, it functions as a public reading instruction, since it anticipates, in a few pixels, a set of inferences about seniority, effort, reliability, threat, prestige, belonging and hierarchical place, all of this even before any gameplay action. This economy of meaning is "clean" enough to show the almost pure sign, because it shifts delivery to the plane of legibility, comparison and recognition.

The shift does not occur by spontaneous generation. The platform administers the correlation between effort and sign, by producing and maintaining a stable set of marks that turns time of life into recognizable distinctions. The public support documentation itself describes "ranked regalia" as a visual representation of the player's rank, distributed among emblems and borders, and states that loading screen borders display the current rank of the mode being played RIOT GAMES 292. The rewards policy reinforces this same mechanism by repeatedly linking visual rewards to tiers reached and to the highest tier obtained in time windows, converting a performance trajectory into signs that come to circulate as condensed reputation RIOT GAMES 293. If, in Eco's vocabulary, the encyclopedia is the public repertoire that makes certain correlations operable, here it is also an apparatus of *design* and support relations "up to date", stabilizing what can be read as prestige and e.

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The result is a system of differences whose value is positional. A “Diamond” border is valuable precisely because it exists in contrast to “Iron”, “Bronze”, “Silver”, “Gold”, “Platinum” and “Emerald”. It is precisely because the ecosystem repeats the same visual idiom in every match, every *lobby* and every season, naturalizing the hierarchy as grammar, that the ranking system takes on such symbolic weight over players. In this sense, the public table of *tiers* and divisions makes explicit that distinction is not an intrinsic property of the item, but an effect of relational architecture and of criteria of promotion and demotion LEAGUE OF LEGENDS WIKI[294]. The sign, thus, is not an ornament glued to neutral content. It is a constitutive component of what circulates as delivery, since the position of enjoyment is realized as a socially legible, comparable and recognized position.

This reading gains even more force when one observes that the supplier's own contract refuses to treat virtual content as an appropriable object in the classical sense and blocks its conversion outside the ecosystem. By stating that the user holds no title over the “Virtual Content”, that it cannot be redeemed for “real world” money and that the company denies monetary value to data and content residing on its servers, the contract makes clear that the economic substance of this kind of item is realized, primarily, within the circuit of signs that the platform itself institutes and maintains RIOT GAMES[295]. In this key, the “digital sausage” is less a metaphor and more an operational description of the bond. Delivery consists of a recognizable place within the game's encyclopedia, in which borders and icons function as cultural units of prestige and as markers of social legibility, organizing desire and disciplining conduct through visibility.

The same logic appears even more transparently in the Challenges system, because there the platform assumes, without embarrassment, that part of the “delivery” is realized as a language of identity. Titles and tokens are not performance accessories. They are public labels that become companions of the player's name and come to circulate in the environment as a small vocabulary of reputation, in which the person chooses how he wants to be read. Riot describes this in institutional walkthrough

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hat titles are earned through challenge progression, and that ped “to display”, w

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RIOT GAMES.[296] In this design, the sign need not even disguise itself as a “cosmetic

tied to an avatar. It attaches to the subject himself as a short phrase, and, in doing so, reinforces the semiotic function as a cultural unit in an almost pure state, since what circulates there is a standardized and recognizable reading instruction, integrated into the protocol of the social encounter in the game.

The effect is that the regime of signs ceases to operate only at specific moments, such as the loading screen, and comes to form a continuous layer of presentation of the consumer within the ecosystem. The official support documentation does not treat titles and tokens as curiosities, but as elements of "identity customization", with a defined place of equipping and with the assumption that this choice has display value RIOT GAMES.[297] If the encyclopedia, in Eco, organizes a shareable field of inferences, this kind of feature makes the encyclopedia "walk" on the user's body, since it converts feats and routines into marks ready for reading, standardizing the way the community recognizes "what someone is" in that world.

This standardization is, again, relational and governed. The institutional material on Challenges itself states that titles are "earned" by progression through tiers and that the player may freely choose among the unlocked titles, which reveals a double layer of administration: first the platform defines the tracks and criteria by which the sign is released, and then it offers the consumer a repertoire of self-presentation, which functions as a selection within a previously produced encyclopedia RIOT GAMES. In semiotic terms, the gesture is elegant and dangerous at the same time. It reduces subjectivity to a set of short and comparable markers, and intensifies the internal commensurability of the ecosystem, because it multiplies the ways in which the player can be "read" in real time, even when nothing is happening in the gameplay.

Finally, this second micro-example speaks directly to the contractual framing of Virtual Content. The platform may admit, as a baseline rule, that the user has no title, no exclusive right and no monetary conversion outside the ecosystem, and, even so, offer an abundance of identity signs as part of the consumption experience, precisely because the central value of these items is not outside, but inside the circuit of recognition. The contract, by denying cash value and blocking transfer and even more visible that this kind of delivery rests on the social

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encyclopedia and on the reading protocols instituted by the company itself RIOT GAMES.[298]

If meaning is a cultural unit and if the encyclopedia delimits what can be recognized as meaning, the analysis of the IOC must treat rarity, belonging, prestige and "edition" as effects of a social grammar operated by the platform. These attributes do not emerge from the item as if they were natural properties, because they depend on codes that define relevant distinctions and on repertoires that make such distinctions interpretable in community. The immaterial good comes to exist economically insofar as it can be situated within this network of differences, scripts and shared expectations, which explains why the platform governs not only access, but also the symbolic conditions of intelligibility that sustain the promise. When this administration reorganizes categories, reorders signals, reconfigures narratives or alters the mode of circulation of the item, the very form of social existence of the object is also altered, with direct impact on what the consumer understands he is acquiring and on how this acquisition can be recognized as valuable.

The reading of the offer, in these markets, does not operate by individual intuition, but upon a prior social grammar that organizes inferences and stabilizes expectations. Eco describes this basis as an encyclopedia in operation, in which lexical meanings enter as instructions for contextual insertion and are articulated with scripts, allowing the addressee to elaborate chains of inferences capable of making contextual meaning grow ECO. Interpretation, therefore, takes the form of cooperation regulated by competences and by *scripts* that guide what may be expected of a situation and of a sign.

At the same time, this framework does not authorize interpretive relativism, because the encyclopedia acts as a limit. Eco describes it as a regulative hypothesis from which the addressee builds a local portion of repertoire and, with this, recognizes a series of semantic competences attributable to the text or to the sender ECO. On platforms, this dynamic means that signals of rarity, belonging, exclusivity or prestige function as coded instructions that project conducts and expectations of enjoyment, remains dependent on the encyclopedia administered and activated by the techno-media environ

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If interpretation depends on scripts, instructions and regulative hypotheses, the promise of the IOC operates as a continuous organization of conduct, not as information prior to purchase. The platform provides signals and contexts that guide the reading of what the item "is" and of what it publicly "puts at stake". Thus, desire, urgency, comparison and belonging cease to be lateral psychological effects and become predictable results of an engineering of signification that stabilizes expectations in real time. With this, enjoyment tends to coincide with performance, and the value of the good comes to depend on public recognition of its position within the ecosystem, which makes permanence part of the product itself and prepares the ground for understanding why visibility and social proof will be treated, further on, as the economic infrastructure of consumption.

The dynamic by which these signals produce and sustain meaning is not organized as a linear sequence, but as a network in continuous circulation, in which connections recombine and start again even after ruptures. Eco describes this functioning through the model of the rhizome[299], in which "each point of the rhizome can be joined and must be joined with any other point" and in which there are no fixed positions, but "lines of connection", capable of breaking and "starting again following its own line" ECO.

In this framework, meaning does not depend on an isolated act of reading, since it is guaranteed by the chaining of the system itself, which provides successive interpretants and maintains the validity of the sign beyond the occasional presence of an interpreter. Eco formulates this idea by maintaining that the interpretant is what guarantees the validity of the sign even in the absence of the interpreter and that signification is established through successive referrals in a process of unlimited semiosis ECO. On platforms, this makes it possible to describe the promise of the IOC as the effect of a network of signs that reinforces itself through circulation and recombination, making value something reiterated and stabilized in the environment itself, while preserving openness to reconfigurations that need not be announced as an explicit change of content.

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reinforced, displaced or emptied through curation of connections and through alterations of visibility, relevance and reading scripts. Thus, permanence is sustained not only by an exit barrier, but by continuous semiotic reiteration, in which the consumer is kept in a circuit of recognition, comparison and updating of meaning. This mode of functioning makes it plausible that relevant reconfigurations occur as diffuse adjustments of the ecosystem, that is, as changes in the network that sustains interpretants, and not necessarily as a formal breakage of an item, which helps explain why the verifiability of the link between promise and enjoyment becomes a structural problem.

The networked openness of semiosis does not imply chaotic drift, since social life itself imposes cuts of stability so that communication and the coordination of expectations are possible. Eco makes explicit that, in each context, certain properties are held as peacefully accepted, not by ontological necessity, but because it is pragmatically necessary to take something for granted [ECO]. At the same time, this stabilization does not freeze meaning into a fixed essence, since the network of referrals continues to operate and semiosis circumscribes cultural units by making them, in fact, accessible [ECO]. In this framework, the platform can administer the promise of the IOC through local cuts of consensus and through reconfigurations in the chaining of signs, maintaining the public intelligibility of the good while gradually shifting the conditions that sustain its reading and its value.

If the stability of meaning depends on pragmatic cuts of consensus, then the promise of the IOC functions as an interpretive pact continually renewed within the ecosystem. The platform preserves “accepted” traits to maintain public recognition of the item and, at the same time, shifts connections, narratives and relevances without explicitly breaking delivery. This helps explain why semiotic governance is especially effective: it manages to maintain the appearance of public continuity of the object while altering, from within, the conditions of interpretation that sustain its value. The asymmetry is not limited to access to contractual information, but reaches the capacity to perceive when the cut of consensus was altered, by which criteria and with what effects on enjoyment and on the symbolic position acquired.

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The semiotic shift needed here consists in separating the intelligibility of the good from any reading that treats the sign as a label glued to a thing. In Eco, content does not coincide with a raw entity, since a given civilization organizes content into fields, axes and subsystems and cuts the *continuum* in such a way that these segments correspond not only to physically recognizable entities, but also to culturally instituted relations and directions [ECO]. This distinction gains an even more direct formulation when one considers the functioning of the code, because, in mentioning states of the world, the expression does not primarily transmit an object, insofar as, in principle, an expression does not designate an object, but transmits a cultural content [ECO]. For IOCs, this makes it possible to describe the offer as an organization of intelligibility and expectation, in which the platform does not add an image to a neutral good, but institutes the cultural forms through which the object exists socially, is recognized as valuable and can be enjoyed as a position within the ecosystem.

If the offer transmits cultural content and if civilization cuts the world into fields of intelligibility, the immaterial good cannot be reduced to "file" or "access", because what is acquired includes the social form through which the item is perceived, compared and recognized. On platforms, this form is produced by classifications, narratives, categories, signals and scripts that define what counts as rarity, what counts as belonging and what counts as prestige.

From this point on, the description of the IOC can definitively abandon the image of the "product" as a closed unit and treat its economic form as an effect of semiotic organization. The acquisition does not deliver merely an isolated element, but a package of intelligibility that includes criteria of pertinence, comparability and public recognition, that is, a socially stabilized mode of reading the item. For this reason, the sign does not enter as adornment, but as part of the material regime of the offer, because it is the sign that fixes what the good is taken to be, in what terms it is desirable and under what parameters it becomes measurable within the ecosystem. This key also delimits the type of legal control that becomes necessary. If value [illegible] tered semiotic conditions, the problem is not solved merely by

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r by verifying technical execution. It requires criteria capable of making the link between promise and

which the very intelligibility of the good can be reconfigured by continuous governance.

The possibility of treating the production and circulation of signs as a governable dimension depends on recognizing that communication does not operate by spontaneity, but through prior systemic conditions. Eco makes explicit that any process of communication between human beings presupposes a system of signification as a necessary condition[300] ECO. In the same sense, the production of signs, especially in the production of contexts, only becomes possible thanks to the foreseen rules provided by the code, which is not reduced to correlations, but includes combinatory rules and can be understood as competence[301] ECO. This competence is not a private attribute, since the code, understood as "language", constitutes a sum of notions that form the speaker's total competence and, at the same time, arises as a collective convention composed of the sum of individual competences[302] ECO. On these bases, controlling rules, contextual instructions and criteria of competence that precede the concrete occurrence of the sign means controlling the conditions of intelligibility and acceptability through which the promise of the IOC becomes operative, recognizable and economically valuable in the ecosystem.

The sign system can be treated as an operative mechanism because it organizes meaning through internal rules of pertinence and through positional values, and not through some essence of the object. Eco formulates this by maintaining that, in the functioning of the system, neither psychic ideas nor objects or referents enter, but values that emanate from the system itself, definable in terms of differences and by the position they occupy in the network of oppositions ECO. This framing prevents reducing the system to a rigid list of equivalences, since the code, understood in its complexity, functions as a machine that provides instructions for maneuvering systems of equivalences in various contexts and circumstances, approaching the model of the encyclopedia as socially stabilized competence ECO.

On platforms, this double key explains why the intelligibility of the IOC is [illegible] is sustained by recognizable differences and reading

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instructions, which can be recalibrated by the governance of context without formal rupture of the item.

What the platform governs when it governs the IOC now comes into sharper focus. It is not merely a matter of controlling access, catalog or purchase frictions, but of controlling the pertinent differences that make an item count as rare, prestigious, "event" or "of belonging", as well as controlling the contextual instructions that tell the consumer how this difference should be read and performed. Since value emanates from the system and is defined by position, changes in visibility, categorization, interpretation scripts or connections with other signs reconfigure the very economic form of the good, even if the file, the model or the minimum functionality remain technically "intact". For this reason, the promise of the IOC cannot be audited merely by inspecting the isolated item, since it depends on the systemic conditions that stabilize its meaning and on the contextual maneuvers the platform can carry out over time, reordering the network without announcing an explicit substitution.

At this point, it becomes easier to perceive why position is not a psychological metaphor, but a structure of value. Eco indicates that, when a good enters a system of exchange, its value ceases to be expressed only as use and comes to take on a relational character, that is, it becomes exchange value within a system of equivalences, in which the commodity functions as the form of expression of this value [ECO]. This logic helps describe the IOC as a unit whose relevance depends on the position it occupies in the ecosystem of signs administered by the platform.

Moreover, Eco makes explicit that cultural systems can restructure themselves, such that a semantic field begins to dissolve to give way to another organized differently, a process that produces confusions and disputes and that often accompanies cultural divisions that are also class divisions [ECO]. In platform markets, this means that reordering categories, criteria and axes of comparison can reconfigure the social value of the good without any need to alter the object itself, because what changes is the field in which it has value and the grammar that makes it commensurable.

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platform decides which axes of opposition matter, which distinctions will be visible and which criteria will make an item jump from “common” to “rare”, from “old” to “vintage”, from “event” to “collectible”, or from “relevant” to “forgotten”. Thus, what seems mere aesthetic curation or interface adjustment functions as a restructuring of the field, with direct effects on the measurement, recognition and circulation of value.

In this environment, the consumer does not negotiate price alone, because what the consumer buys is insertion into a system of equivalences that can be recalibrated over time, shifting value without needing to touch the minimum materiality of the item. Semiotic vulnerability then becomes even sharper, given that the asymmetry lies not only in ignorance of contractual terms, but in the practical inability to audit when the system has reconfigured the axes and, with this, reconfigured the value of the position of enjoyment acquired.

From this fit between exchange value and the restructuring of fields, the sign ceases to be only a condition of intelligibility and comes to appear as infrastructure of social competition. If the position of the good in the system is what makes it commensurable and desirable, then visibility, comparison and social proof are not “side effects” of consumption, but means by which value is produced and kept in circulation. The platform environment functions as a device that exposes these positions, accelerates oppositions and makes hierarchy legible in real time, which turns enjoyment into display and turns acquisition into a gesture that needs to be recognized in order to fulfill its economic function. It is from this point that the analysis can advance to the dynamics of spectacle, not as cultural ornament, but as a form of governance that stabilizes desire and permanence through continuous mediation of visibility and reputation.

In social environments, utility does not circulate in pure form, since practices and objects come to operate as signs of the position they occupy and of the value they carry before others. Eco formulates this by stating that, from the moment society exists, every function is automatically transformed into a sign of that function [ECO].

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already carries a public and comparable dimension, which opens space for recognition and social differe

a semantic unit of distinction when it indicates a certain social position and acquires symbolic value, being able to signify wealth or other attributes even when it presents itself as an object [ECO]. For IOCs, this structure describes why value is not stabilized only by the technical attributes of the item, but by its capacity to function as a recognizable sign of belonging and prestige within the ecosystem, which is why it becomes central to understand how such differences are produced, maintained and made legible in circulation.

When function becomes sign and when objects indicate social position, the platform gains a specific kind of power, since it controls the mechanisms through which reputation, belonging and distinction become legible and comparable. The promise of the IOC comes to depend not only on having the item, but on being able to make it count publicly as what it signifies within that ecosystem. This makes visibility a condition of enjoyment. In this logic, permanence is not only technical permanence, but social permanence, that is, remaining inserted in the circuit in which difference is perceived, hierarchy is updated and status is validated in real time. This allows the next move to introduce spectacle as a mechanism of continuous mediation of comparison, by explaining how the platform converts visibility into discipline of conduct and into recurrent renewal of desire.

Signs of narrative promise operate as a privileged way of converting code into desire, because they offer the consumer a script of meaning ready to be inhabited. *Trailers*, *splash arts*, event texts, *cinematics*, "seasons" and collection milestones do not merely describe an item, but organize anticipation, belonging and prestige as if they were natural and spontaneous attributes of the good. Narrative promise functions as a frame that decides what should be seen as rare, memorable, "occasional", "community" or "identity", and makes this decision look like evidence of the object itself, when in reality it is a construction of the ecosystem. Thus, the IOC becomes desirable not only for what it allows one to do, but for the role it enacts in the shared imagination and for the position it promises within a continually reactivated collective story. For the central argument at hand, this requires treating narrative as [illegible] nent of the offer, since it projects expectations, guides reading [illegible] ummar through which enjoyment comes to be recognized as "delivery" and as value.

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Narrative promise does not operate as rhetorical embellishment, because it functions as a mechanism of instruction that selects reading paths and, with this, produces expectation as part of the offer. In Eco, these contextual selections[303] do not merely accompany meaning, but distinguish and direct reading paths, determining denotations and connotations and performing the function of a switch, in the sense of a railway switch, which routes interpretation along tracks foreseen by the system itself ECO. The consequence is that discourse provides reading rules even before any isolated content, since language itself, far from being a mere association between signifiers and signifieds, provides discursive rules that are part of the pragmatic functioning of signification ECO. For IOCs, this makes it possible to describe *trailers*, events and collection narratives as devices that channel inferences, filter what counts as relevant and stabilize anticipations of what the item "promises", making expectation a coded product of the ecosystem and preparing the ground for understanding how this codification also organizes comparability and internal measurement of value.

This interpretive steering is not limited to producing desire, because it also provides a grammar of economic comparability that makes the promise measurable within the ecosystem itself. Bundles, collections, availability windows, progression tracks and value labels are not merely sales formats, since they function as signals that translate qualitative differences into differences with the appearance of measure, creating internal proportions, scales and operational equivalences. Thus, the consumer comes to compare not only items, but positions of enjoyment, assessing cost, rarity and opportunity according to parameters that the platform itself institutes and recalibrates over time. The consequence is that the value of the IOC is stabilized less by an intrinsic property of the item and more by the possibility of situating it within a symbolically guided system of exchanges and substitutions, in which "expensive", "advantageous", "exclusive" or "unmissable" are effects of codification. This requires, in the next step, grounding how sign systems produce rules of measure and comparison even when the material basis of the good remains volatile and reconfigurable.

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context and which readings should be treated as implausible. Eco makes explicit that theory should not list all possible occurrences, but only those culturally and conventionally recognized as statistically most probable ECO, which indicates that the system organizes a hierarchy of acceptable interpretations by stabilized criteria of cultural probability, and not by the essence of a referent. In platform terms, this helps describe why labels, bundles and value windows not only inform price, but also instruct the consumer to compare and substitute according to scales internalized by the ecosystem, filtering what counts as equivalent, advantageous or adequate even when the material basis of the item remains volatile.

Signs of social validation operate as a mechanism for publicizing value, because they make the position of enjoyment immediately legible to third parties. Badges (*badges*), borders, emblems, titles, frames, public visual effects and other marks aimed at putting the consumer in evidence do not merely accompany the item, but convert acquisition into recognition and enjoyment into demonstration. In this arrangement, the good is also worth something for what it allows one to display and for the social confirmation it produces, such that the utility of the IOC becomes inseparable from its visibility and from its capacity to function as proof of belonging and distinction in real time. With this, the platform comes to govern not only access to the good, but the conditions under which value circulates and stabilizes as reputation, preparing the ground for treating public comparison and the continuous mediation of visibility as economic infrastructure of permanence.

The stability of the sign depends on circulation and community institutionalization, since the relation between a vehicle and a content only becomes operative when it comes to function as a verifiable convention outside any private mental state. Eco illustrates this point by distinguishing individual inference from the socialized rule, indicating that the relation between spots and measles only becomes semiotic when it has been conventionalized and recorded in medical treatises, since there is a sign whenever a human group decides to use one thing as the vehicle of any other ECO.

Since what counts as prestige, belonging or distinction must be legible to third
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limited to communicating an offer, because it involves governing the storefront, ordering, categories, display contexts, mechanisms of social proof and criteria of relevance that make an IOC count as rare, prestigious or belonging to a specific circuit. Thus, the platform governs the object itself by governing the correlations that stabilize its public intelligibility, being able to reinforce, displace or empty promises without ostensibly altering the isolated item.

The relevant asymmetry arises, then, when interpretation depends on publicly recorded prior conditions, but the addressee has no effective access to these conditions to verify the link between promise and delivery. Eco sets aside psychologism and situates interpretation on an objective and social plane, by stating that interpretants do not necessarily depend on unreachable mental representations of subjects and are collectively verifiable, because a relation of interpretation is recorded in the treasure-house of intertextuality, a notion identified with that of the encyclopedia ECO.

Under the paradigm of IOCs, this means that the promise is not auditable by individual reading alone, because the meaning that sustains value and enjoyment is stabilized by rules and records of the ecosystem, while the platform controls which correlations will be activated and which reading paths will be made available. Semiotic vulnerability describes, on this plane, a structural loss of the capacity for verification, and not a defect of the consumer's attention.

Hence the centrality of requirements such as auditability and functional value equivalence, taken up further on not as conceptual adornment, but as a response to the problem of proof that emerges when delivery comes to depend on governed and reconfigurable semiotic conditions. With this delimited, the next step is to address how the platform converts this semiotic governance into continuous mediation of visibility and reputation, that is, how spectacle functions as economic infrastructure of permanence by stabilizing desire and discipline through public comparison.

290. Originally published in 1984, *Semi*
the work in which the author reorganizes and deepens a set of semiotic entries he

wrote for the Enciclopedia Einaudi. The discussion revolves around core concepts such as sign, meaning, metaphor, symbol and code, with the purpose of critically revising simplified notions of the sign understood as fixed correlation. Here, what matters above all is Eco's emphasis on the sign as an interpretive and inferential phenomenon, the starting point of a continuous process of production of meaning, useful for describing why, in IOCs, what is "promised" does not function as an accessory message, but as a condition of the social existence of the object itself. This emphasis, however, is not exhausted on the philosophical plane, since it also requires a structural description of how systems of signification work and of how signs are produced and stabilized in coded environments. It is precisely this second movement that appears with greater emphasis in his *Tratado de Semiótica Geral* (2000), originally published in 1976. In this work, Eco systematizes his theory with the aim of offering a unified framework for phenomena of signification and communication, articulating two interdependent axes: a theory of codes and a theory of sign production. The treatise performs a gesture of conceptual refinement by criticizing naive readings of the sign and shifting the focus to functional relations established within coded systems, making it possible to treat the production of meaning as operation, and not as adornment. This architecture provides support for describing platforms as administrators of regimes of signification and, with this, for explaining why the offer of IOCs depends on intelligibility, recognition and stability produced in the ecosystem itself. ↩

291. The analogy refers to the goods offered by Louis Bonaparte to the lumpenproletariat he mobilized, as mentioned by Karl Marx in *O 18 de Brumário de Luís Bonaparte*. "[...] he first treated the officers and non-commissioned officers to cigars and champagne, to cold poultry and garlic sausage." (2011, [p. 58]). ↩

292. The support documentation explicitly describes the visual dimension as a representation of rank. By stating: "Ranked Regalia—the visual representation of the ranks you earn throughout a year—comes in two flavors: Crests and loading screen borders." RIOT GAMES. Next, it details the most important point for the discussion, since it connects sign and public reading: "Loading screen borders display your current rank [...]." RIOT GAMES. The detail is especially relevant because it evidences the sign as infrastructure of social intelligibility, designed to be seen and recognized before the match begins. ↩

293. In the end-of-season rewards material, *Riot* describes visual items as a reflection of the tier reached, which reinforces the correlation between trajectory and insignia. The text states that "Ranked emote and icon [...] reflect the highest tier you reached [...]." and that there is a "Border [...] that reflects the highest tier obtained [...]." RIOT GAMES. The especially useful because it acknowledges, plainly, that the value of semiotic and position in the ecosystem. ↩

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294. In this sense, the game's encyclopedic entry records that the system is capable of offering a change of portrait borders to display rank, making the sign part of the player's entry into the social space of the match: “The portrait borders will change to reflect the player’s rank [...]." LEAGUE OF LEGENDS WIKI, making explicit the place of the sign in the user's routine. From this one infers that, at the moment the community “reads” who is entering the game, this provokes an adjustment of expectations, comparisons and dispositions of conduct. ↩

295. The contract makes explicit that Virtual Content is not structured as the user's property nor as an asset convertible outside the ecosystem. First, it prohibits redemption for real-world money: “You may not transfer (unless we allow it in the functionality of the Riot Services) or redeem Virtual Content for any kind of ‘real world’ money.” RIOT GAMES. Next, it refuses title and property right: “You also acknowledge and agree that you have no title, property right or other kind of exclusive right over any Virtual Content [...]." RIOT GAMES. Finally, it denies monetary value to the data and content under the supplier's control: “...we expressly disclaim any value, in money or otherwise, attributed to any data residing on the servers [...]." RIOT GAMES. In combination, the system of clauses does not merely describe a legal limitation of circulation, but signals the form of the good supplied, whose practical value depends on the internal correlations of recognition and visibility that the ecosystem itself preserves. ↩

296. “Show off” as institutional vocabulary and the reduction of the sign to an explicit cultural unit (Riot, news/walkthrough). In the *walkthrough* published on the official website, *Riot* states that “Titles [...] are earned” through Challenges progression and that, “Beneath titles are the Challenge Tokens [...] You can equip up to three to show off.” RIOT GAMES. The expression “show off” is especially revealing because it names, as an immediate purpose, display, which reinforces the reading of the sign as delivery without technical utility, but with social efficacy within the regime of differences. The same official material states that “Wherever a Token appears, you’ll be able to hover over it to see its associated challenge and Tier.” RIOT GAMES. This is almost perfect evidence of what it means for the platform to administer the encyclopedia, because the system not only displays a symbol, but incorporates a mechanism of immediate interpretation, which reveals, in standardized language, which track and which tier that sign represents. ↩

297. The official FAQ on *Challenges* instructs the user to equip Titles and Tokens “where you change your summoner icon” and states that there will be specific tabs for them within the “Customize Identity” section RIOT GAMES. Thus, without resorting to any [illegible] the platform assumes that the game offers a formal device for [illegible] subject, that is, a mechanism of meaning production aimed at the public reading of identity. ↩

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298. The contrast between the abundance of identity signs and the denial of ownership and monetary conversion rests on the clauses that prohibit transfer and redemption for real-world money, refuse title and deny monetary value to the data and content on the servers RIOT GAMES. This arrangement shows that, from the institutional standpoint, the practical relevance of virtual content is internal to the ecosystem and is realized as legibility, distinction and recognition, not as technical utility nor as an external asset. ↩

299. In this context, the rhizome refers to a network growth structure, without a single central trunk, which expands through multiple points of connection. ↩

300. “En cambio (excepto en el caso de los procesos simples de estimulación), cualquier proceso de comunicación entre seres humanos —o entre cualquier otro tipo de aparato “inteligente”, ya sea mecánico o biológico— presupone un sistema de significación como condición propia necesaria.” ECO. ↩

301. “Pero la producción de signos es posible (especialmente en el caso de producción de contextos) sólo gracias a las reglas previstas proporcionadas por el código y con frecuencia el código se entiende no sólo como regla de correlación, sino también como conjunto de reglas combinatorias (en otros términos, se ve el código como competencia [...].” ECO. ↩

302. "Por tanto, un código como ‘lengua’ debe entenderse como una suma de nociones (algunas relativas a reglas combinatorias de los elementos sintácticos y otras referentes a las reglas combinatorias de los elementos semánticos) que constituyen la competencia total del hablante. Pero esa competencia generalizada es la suma de las competencias individuales que dan origen al código como convención colectiva.” ECO. ↩

303. “El Modelo Semántico Reformulado pretende insertar en la representación semántica todas las connotaciones codificadas que dependen de las denotaciones correspondientes, junto con las SELECCIONES CONTEXTUALES y CIRCUNSTANCIALES. Dichas selecciones distinguen los recorridos de lectura del semema como enciclopedia, y determinan la asignación de muchas denotaciones y connotaciones. No son materia de conocimiento empírico y ad hoc de los referentes, sino elementos de información codificada, es decir, unidades semánticas del mismo tipo que las marcas, sólo que desempeñan una función de CAMBIO DE VIA (en el sentido ferroviario de esta expresión).” ECO. ↩

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So far, the IOC has been described through the feature that it only becomes economically operational within an administrable regime of signification, in which the offer depends on public intelligibility and on criteria of comparison and recognition. The next step consists in shifting the focus from the sign to the environment, because, on platforms, the promise does not circulate only as meaning, but as scene. Enjoyment involves a publicized and verifiable position, in which reputation, social proof and legible hierarchies cease to be a side effect and become part of the offer itself.

It is worth describing this mechanism as part of the teleology of extraction already outlined, because the continuity of consumption comes to depend on recurring mediations that convert enjoyment into conduct and return into a practical condition for maintaining value. In this key, it becomes necessary to resort to Guy Debord's[304] diagnosis of the spectacle in order to isolate the conceptual instruments that allow visibility and comparison to be treated as structural forms of governing desire and permanence in immaterial consumption.

Here, spectacle does not designate media excess nor a mere addition of images to the real, but a social form of mediation in which relations operate through representations and reorganize experience under a logic of visibility. Debord formulates this perspective when he states that the spectacle is not a set of images, but a social relation among people mediated by images DEBORD. Such a definition prevents the reduction of the concept to mass media, since the author refuses to treat it as a mere product of the techniques of image diffusion and describes it as a

become effective and has been materially objectified[305] DEBORD.

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dynamic of visibility and comparison that stabilizes desire and permanence as part of value itself.

Debord denounces the ideological maneuver that seeks to neutralize social critique by replacing the concept of "spectacle" with the technocratic and reductionist term "media"[306]. Twenty years later, the author maintains that this reduction conceals domination by making the infrastructure of power look like a mere technical information service. Debord demystifies the supposed professional neutrality of the press and television by describing modern mass communication not as a space of dialogue, but as a vector of unilateral purity, in which discourse functions as administrative command. This framing reinforces the use of the expression "techno-media order", capable of describing the opaque form of operation that digital platforms tend to adopt.

This is a form of mediation in which experience ceases to present itself as direct lived experience and comes to be organized as representation. Debord begins this diagnosis by stating that, under modern conditions of production, social life announces itself as an immense accumulation of spectacles and that everything that was directly lived has moved away into a representation DEBORD. The point, however, is not a communicational "noise" that the system would seek to correct. The separation is structural, because the spectacle functions as the common language of the split itself, bringing individuals together without overcoming isolation, to the point of reuniting the separated and, even so, reuniting it as separated DEBORD. In other words, the spectacle produces an appearance of common life by placing everyone before the same signs and references, but keeps the structure of isolation intact, since the relation between people remains mediated and does not turn into a direct bond.

Mediation, therefore, stabilizes a false unity that preserves the form of estrangement, converting life into scene and the social bond into the circulation of images. In this structure, exteriority is not limited to the content seen, since it reaches agency itself, insofar as one's own gestures are no longer one's own and come to be presented by an

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the spectacle ubiquitous and causes the subject not to feel at home anywhere DEBORD. This framing

visibility is organized as a legible hierarchy and as a material condition of permanence.

If the spectacle reunites the separated by making social experience dependent on mediations, the point to be drawn for platforms is that mediation does not operate only as the circulation of images, but as the organization of the field of what can be seen, compared and recognized as valuable. The platform institutes a regime of legibility in which positions are made public through selection, ordering and highlighting, so that differences come to have economic value because they become measurable in displayed hierarchies. Thus, the offer of the IOC does not present itself as the isolated property of an item, but as access to a position whose relevance depends on the way the environment produces visibility and provides parameters of comparison.

The governance of value, in this context, is not exhausted by price or technical availability. It includes controlling which traits count as distinction, which signals will be read as rarity or prestige and which scripts of recognition will be reactivated. The consumer's experience comes to take place within this architecture of exposure, so that enjoyment and validation become intertwined, and permanence in the ecosystem becomes a practical condition for maintaining the social value of the acquired position. From here on, it is important to make explicit how the spectacle operates as an infrastructure of value, converting visibility and comparison into a mechanism of extraction.

The mediation produced by the spectacle is not only a form of isolation, but also a form of social equivalence. Debord condenses this point when he states that the spectacle is the other face of money, as the abstract general equivalent of all commodities, and that in it the totality of use has already been exchanged for the totality of abstract representation DEBORD. Thus, what has value comes to have value through a public grammar of recognition and comparison, in which the visible functions as a unit of social measure.

The [illegible] of this formulation is to separate appearance from ornament. It

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confirmation of what has value. When recognition is organized as a criterion of social measure, it becomes possible for delivery to be sustained by maintaining the conditions of comparison and validation, even if the concrete experience associated with the good is altered from within. Mediation ceases to be a backdrop and comes to function as economic infrastructure.

If the spectacle operates as an abstract social equivalent, the consequence for IOCs is that value depends on conditions of recognition that the platform itself organizes and distributes. The acquired position of enjoyment fully performs its economic function only when it can be perceived, compared and validated in a public circuit, so that social proof becomes part of delivery itself. In this key, reputation, belonging and prestige do not appear as individual psychological effects, but as structural results of an environment that makes hierarchies legible and continuously updated.

The platform governs, therefore, not only access to the item, but the regime of visibility that allows differences to be perceived as relevant differences, signals to circulate as signals of value and comparison to turn into a continuous incentive to permanence. Extraction stabilizes when this regime turns validation into routine, since the consumer comes to depend on the ecosystem to keep the acquired position operative, which shifts permanence from the technical plane to the social and economic plane.

When comparison is organized as an administered hierarchy, visibility takes the form of a socially naturalized system of measurement. Everyday life comes to be governed by continuous progressions and repositionings, in which remaining is not only continuing to use, but staying measurable and recognizable on a scale updated in real time. Gamification, here, operates as a discipline of the present.

Social proof, in this framework, is not a mere adornment of consumption, since the validation of what counts as valuable comes to depend on what becomes visible and incontestable in the environment. Debord condenses this mechanism when he states that the spectacle presents itself as an enormous indisputable and inaccessible

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s implicit rule is that what appears is good and what is good

as a basic attitude

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monopoly of appearance[307] DEBORD. I

need not operate through substantive criteria of enjoyment, since it can be organized as competition for administered distinctions, a "false choice" that develops into a "struggle of phantasmagorical qualities" intended to "impassion adherence" and to transfigure into superiority the occupation of "hierarchical places in consumption"[308] DEBORD.

The ranking system in *League of Legends* makes the economy of the visible clearly explicit. It is not only a matter of "competing", but of existing socially under a regime of legibility in which the player's position is transformed into public evidence of value. The hierarchy from Iron to the top, with its divisions, restrictions and rites of rising and falling, converts enjoyment into verifiable performance and, for that reason, into social proof. In this scene, prestige is not an internal quality of the good, but an effect of the way the platform exposes, orders and makes differences comparable, so that "what appears" presents itself as good without needing to demonstrate it, because it appears.

The institutional language itself describes the path as a continuous climb, with steps and mandatory stops, and makes permanence a discipline. In explaining how ranked play works, the official support formalizes the existence of tiers and divisions as a general structure of progression, indicating that passing from one level to another presupposes completing internal stages and admits the risk of regression[309] RIOT GAMES. This is not a detail. When value is organized as a position on a displayed scale, the everyday experience of the consumer comes to be governed by successive repositionings. The game does not merely "show" performance, it institutes the social measure of performance and makes it the horizon of recognition.

In the highest *tiers*, this mechanism takes an even more transparent form, because the platform does not merely record the position, it places it under permanent risk and conditions it on routine. The official support describes a daily decay for inactivity and even acknowledges that this leads most players at the top to play practically every day to keep their position RIOT GAMES[310]. The stability of prestige, here, is not rest, but vigilance. Enjoyment, which could be thought of as leisure, appears as a

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use the visibility of the place occupied only remains positive while it is updated against the threat o

This spectacle, however, is neither spontaneous nor natural. It is governed. The company itself recalibrates the signals of prestige and reconfigures the filters of frustration and reward to keep the circuit "fun and rewarding", which includes modifying demotions and removing protections that softened the fall between divisions, making the transition more "fluid" RIOT GAMES[311]. The promise of visible merit does not depend only on playing, but on accepting the frame of measurement that is offered and, when necessary, redesigned. Thus, what Debord calls "indisputable positivity" appears as a produced attribute, because the form of recognition is administered as part of the offer.

The dogmatic anchor of this device is that the displayed position, with its emblems, divisions and places in *rankings*[312], does not constitute stable property of the consumer. It exists while the legal bond of access remains operative. In the Terms of Service, the use of the services and of virtual content is granted by a limited and revocable license, conditioned on compliance with the contract, and the termination of the account automatically cancels the license RIOT GAMES[313]. Moreover, the contract itself makes explicit that, upon termination, access to the account and to the associated data and virtual content is lost RIOT GAMES[314]. The result is that rank, honor and reputation behave as attributes of an administered position. They depend on the service, on the registration and on the rules in operation. Visibility, therefore, is not only a language of comparison, it is an economic and legal infrastructure of permanence, because it sustains the very possibility of existing socially in the ecosystem.

In this key, the word "community" tends to operate as a spectacular mask of a harsher phenomenon. It is the formation of an improvised public, mobilized by signs of belonging and by routines of adherence, whose cohesion does not depend on deliberation, but on ritualized repetition. The "community" does not operate as an instance of control over the platform's power; it functions as a showcase of legitimation. Participation in events, campaigns, collective goals and cycles of *hype*[315] produces the sensation of common life, while, in practice, it consolidates an

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dation that reinforces the private sovereignty of the ecosystem over what has value, over who appears

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This mechanism intensifies when the user base itself comes to perform functions of symbolic *enforcement*. Criticism is isolated not only by formal moderation, but by diffuse disciplining, in which users act as agents of validation, policing and exclusion, defending the integrity of the spectacle as if they were defending a public good. The platform does not need to impose everything through direct sanction, because it obtains, through mediation, a kind of voluntary policing. Thus, the defense of the "atmosphere", of the "community" and of the "game" functions as a defense of the regime of visibility that converts adherence into proof. The result is a circle in which adoration seems spontaneous, but operates as the economic and political infrastructure of the ecosystem, shielding it against substantive contestation and lowering dissent to antisocial noise.

This passage is important because it establishes that the hierarchy does not arise from intrinsic criteria of the good, but from a comparative field produced as evidence. What is disputed is not only the possession of an item, but the occupation of a recognizable place in an order of distinctions that the environment itself makes legible. Comparison, therefore, is not a simple cognitive operation of the consumer, but a mechanism of government, since it distributes relevance, determines which differences count and converts adherence to the circuit into a practical necessity of permanence.

Visibility thus functions as a device of hierarchization and disciplining, converting displayed difference into relevant difference and stabilizing belonging and prestige as requirements of permanence. When this dynamic is updated as a regime without reply[316], the very terrain of public verification contracts, since the simple fact of being, from then on, without counterpoint confers a new quality on the false, reduces the true to a hypothesis that can never be demonstrated and makes public opinion disappear as an autonomous force of validation DEBORD.

When visibility and comparison are organized as an administered hierarchy, permanence tends to turn into a practical condition for maintaining value; the next movement shows how platforms turn this regime into routine through cycles of

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nd update milestones that convert recognition into a recurring task.

Consistent with the reading of Ellulian technique, the conversion of the environment into a legible hierarchy tends to produce a logic of continuous metrification of experience. Practical life ceases to be merely lived and comes to be accompanied by indices of position, signals of performance and parameters of progress that make comparison permanent and cumulative. In this regime, permanence takes the form of a task, because remaining comes to mean staying under ranking, subject to updating and legible within a scale that the ecosystem itself administers. The gamification of everyday life, in this key, is not a playful artifice added to consumption, but the translation of value into scoreboards of relevance, in which what matters is being situated and updated in real time.

The temporality of the spectacle appears, in Debord, as a structural mechanism of government that depends on constant renewal to prevent a solid stabilization of meaning and value. The spectacle presents itself as indisputable and as if it were perpetual, but this claim is only sustained because it is founded on change and must change with its base, so that, for the author, nothing remains inert and this permanent movement constitutes its natural state[317] DEBORD. In the later formulation of the integrated spectacle, this logic takes the form of a continuous present produced by the circular and incessant passage of information, which revolves around a few banalities reiterated as discoveries, creating speed without historicity and demanding constant repositioning within what is recognized as relevant DEBORD. In this regime, what gains the status of importance is the instantaneous, because the important tends to be so in the following instant and replaces another instantaneous importance, which produces a paradoxical eternity of successive unimportances, noisy and empty of fixation DEBORD.

From the perspective of IOCs, this temporal design describes why permanence ceases to be an accident of use and becomes part of the economic infrastructure of value, since what has value needs to be continuously updated within the flow. On this basis, it becomes possible to explain how the platform turns the governance of time and visibility into practical urgency, by organizing windows and opportunities as a

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The economic density of this regime becomes explicit when Debord states that “the spectacle is capital to such a degree of accumulation that it becomes image” DEBORD. Visibility and circulation do not appear as superstructure, but as the final form of accumulated value, so that administering the field of what appears, of what is recognized and of what becomes comparable functions as the administration of value in the strict sense, with direct effects on permanence, distinction and the renewal of consumption.

Urgency, in this regime, is neither a spontaneous emotion nor a simple subjective reaction to a “promotion”. It is an effect of the governance of time and visibility, that is, of an environment that organizes opportunities as windows and treats relevance as something that expires. The platform produces decision pressure when it makes the preservation of a socially valuable position depend on the now, so that comparison ceases to be a calm evaluation and comes to function as a risk of losing one's place. It is not only a matter of accelerating purchases, but of converting the continuous flow into a discipline of return, because the value of the IOC, being positional and publicly recognized, demands presence to be reiterated as valid and not to be downgraded by the very dynamic of updating of the ecosystem. In this key, urgency directly reinforces the teleology of extraction outlined in the previous item, since repetition and permanence become practical requirements for maintaining value, not merely side effects of consumption. The next movement, still in Debord's vocabulary, shows that this social direction of time does not act merely as an external calendar, but as an active organization of desire and conduct, naturalizing adherence to the circuit as if it were an autonomous choice.

The spectacle, in Debord's vocabulary, does not operate as an external layer of persuasion, but as a social form that offers the very model of the dominant life and, with this, guides conduct by ratifying choices already made at the level of production. It is in this sense that, in all its particular forms, the spectacle constitutes the present model of socially dominant life, functioning as an omnipresent affirmation of the productive arrangement and having consumption as its corollary[318] DEBORD. This

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the circuit, naturalizing the identification between value and commodity and shifting satisfaction to the register of a continuously administered survival.

Debord condenses this active organization of wanting when he states that the spectacle wages a “permanent opium war” to make the identification of goods with commodities and of satisfaction with survival accepted, a survival that must always increase precisely because it “never ceases to contain privation”[319] DEBORD. This formulation makes it possible to describe the platform as an environment that not only presents offers, but governs rhythms of expectation and patterns of adherence, so that permanence stabilizes as recurring conduct and the continuity of consumption presents itself as a practical condition for keeping the acquired position operative. From there, the argument can describe how this direction of desire turns into displaced trust, since the consumer's belief comes to rest less on a one-off delivery and more on the apparent stability of the ecosystem that validates, in real time, their position and their value.

The trust formed in this regime does not rest primarily on the verification of an isolated delivery, but on the practical belief that the ecosystem will continue to sustain the intelligibility and recognition of the acquired position. Since the enjoyment of the IOC depends on visibility, comparison and validation in a public circuit, the consumer's security tends to shift from the item to the environment that makes it operative, that is, to the stability of the signals, hierarchies and scripts through which that good “has value” socially. The platform thus comes to function as a source of informal institutional trust, because it appears as the guarantor of the continuity of the game of recognition in which reputation, belonging and prestige remain legible and updated. This trust is exploitable by continuous governance, since the same environment that offers confirmation also controls the criteria of relevance and the parameters of repositioning, and can recalibrate value without explicitly breaking the minimum delivery of the item. In this logic, permanence ceases to be merely habit and becomes a defensive strategy, since remaining active and attached to the flow appears as a requirement for preserving the symbolic conditions that f enjoyment socially operative.

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The normalizing effect produced by the spectacle does not depend on one-off persuasion, because it operates as a form of evidence that transforms a historical arrangement into an apparently objective environment. Debord describes this mechanism as an "uninterrupted discourse" of the present order about itself, a monologue that, through the "fetishistic appearance of pure objectivity", hides its character as a relation between men and between classes and makes it seem that "a second nature" dominates the social environment "with its fatal laws"[320] DEBORD. Naturalization, thus, is not simple belief, but a reorganization of the field of what can be recognized as reality and of what can be treated as contestable, since the order comes to be lived as an environmental given. Moreover, the spectacle operates through circular self-justification, converting its own means into an end[321] DEBORD.

With this, it imposes itself as a totalizing environment that covers social experience and tends to perpetuate itself. For IOCs, this matters because visibility and comparison come to organize enjoyment as if they were natural givens, while the criteria of value, prestige and belonging remain defined internally by the ecosystem and perceived as self-evident, not as governance.

If the value of the IOC depends on visibility, comparison and validation, and if this regime presents itself as natural evidence of the environment, the relevant asymmetry cannot be reduced to a deficit of contractual information. The structural point is that the platform controls the parameters by which something appears as relevant, rare, prestigious or "important", and this control governs value itself, since it determines what can be recognized as delivery and what can be lived as loss without presenting itself as rupture.

Under these conditions, the consumer faces not only opacity about clauses, but a practical limitation of verification, since the correspondence between promise and experience depends on curations, orderings, cuts of visibility and scripts of recognition that can be recalibrated without clear announcement and without ostensible alteration of the item. It is in this sense that it becomes intelligible to speak, further on, of semiotic vulnerability, as a form of exposure to a regime of signs n administered by an opaque, partial and reconfigurable

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environment, in which apparent continuity can coexist with relevant changes in the conditions that sustain value and belonging.

The power of the spectacle, in Debord, consists in organizing the social totality as a field of evidence, in which the parameters of what can be recognized as real, relevant and legitimate are defined DEBORD. For this reason, its efficacy is that of an indirect command, exercised through mediation, because the operation falls on the conditions of visibility, comparison and validation that make experience intelligible and socially operative. In this regime, the lived gives way to a selection of images that imposes itself as sensible evidence and presents itself as the sensible par excellence[322] DEBORD. At the same time, this mediation stabilizes models of conduct and identification, through which the subject on stage aligns with a general law of obedience to the course of things[323] DEBORD. In the integrated stage, the dynamic intensifies as unilateral management of the flow of images, producing a concrete experience of permanent submission and sustaining generalized adherence to what is given DEBORD. For IOCs, the analytical gain is direct: governing the visible is not peripheral, because controlling what appears, how it appears and which models of identification circulate implies controlling practical conditions of permanence in the ecosystem.

If the spectacle manages to produce value through mediation, comparison and validation, the consequence is that the economic continuity of the IOC can be preserved even when the relevant enjoyment is reconfigured. The platform keeps the acquired position operative when it preserves the circuit of public recognition, that is, when it sustains signals, categories and forms of display capable of ensuring that the good continues to be read as equivalent within the hierarchies of the ecosystem. In this logic, stability does not depend only on what the item allows one to do, but on the way it continues to appear as valuable, commensurable and prestigious before third parties, since it is this regime of visibility that ensures the social function of the good and stabilizes acceptance. Restoration becomes especially effective when it preserves the appearance of equivalence and keeps the conditions of comparison

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evidence without this corresponding, in a transparent way, to the preservation of the position of enjoyment that was at stake.

The closing of the argument makes it possible to make explicit why, in immaterial consumption, appearing can fulfill the economic function of delivering without this presenting itself as rupture. Debord formulates this transition by indicating that, after the degradation of being into having, the present phase leads to a generalized sliding of having into appearing, so that all effective having must draw from appearing its immediate prestige and its ultimate function[324] DEBORD. In this key, appearance ceases to be a communicational accessory and comes to operate as a practical condition of value, because it is in appearance that the position becomes recognizable and commensurable before third parties. This does not describe a layer of "decoration" superimposed on neutral commodities, since, "as the indispensable adornment of the objects produced today, as the general exposition of the rationality of the system, and as the advanced economic sector that directly shapes a growing multitude of image-objects, the spectacle is the main production of present-day society"[325] DEBORD.

For IOCs, this primacy of appearing explains how imagistic restorations and symbolic equivalences can preserve the circuit of validation and comparison even when the relevant enjoyment changes, since maintaining the regime of recognition may suffice to keep positional value operative. It is precisely this point that requires addressing the simulacrum in order to describe how substitution by images of equivalence becomes autonomous and how the platform can sustain value through signs that no longer depend, in a transparent way, on the preservation of the acquired experience.

The contribution of the spectacle to the legal question, at this point, is not to offer a moral critique of the media, but to delimit a specific form of asymmetry of verifiability. When the platform controls the showcase, the ordering, the apparent metrics, the criteria for highlighting and the scripts of recognition, it controls which evidence will be socially valid as proof of value and of delivery. The controversy

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y around the isolated item and comes to involve the regime of visibility that makes the acquired posit

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changes in this regime can downgrade, raise or neutralize a promise without producing an unequivocal technical event of rupture. For this reason, the spectacle matters as a material layer of the evidentiary problem, since it describes how the evidence of what has value can be administered and naturalized as if it were an objective given of the environment.

NOTES

304. Originally published in 1967, *A Sociedade do Espetáculo*, by Guy Debord , is the paradigmatic work in which the author describes the spectacle as a social form of mediation, in which practical life is reorganized by the primacy of the visible and by the conversion of relations into representations. Primarily structured in short theses, it is not devoted to a moral inventory of "media excesses", but to a diagnosis of functioning, useful for understanding how experience can be governed by exposure, comparison and recognition. In 1988, Debord takes up and updates this framework in Comments on the Society of the Spectacle, treating it in a more integrated and diffuse version, which makes it possible to describe the intensification of mediation and the expansion of its mechanisms of normalization. His writings provide a vocabulary suited to treating platforms as environments in which visibility and social proof operate as a material condition of permanence, stabilizing desire and conduct in immaterial consumption. To give rigor to the argument, it is necessary to fix an operational definition of spectacle, in Debord's own vocabulary, distinguishing it from entertainment. ↩

305. "The spectacle cannot be understood as the abuse of a world of vision, the product of the techniques of mass diffusion of images. It is rather a Weltanschauung that has become effective, materially translated. It is a vision of the world that has been objectified." DEBORD. Thus, Debord clarifies that the spectacle is not reduced to the circulation of images, but designates the social objectification of a worldview. It is, therefore, a form of material organization of experience, in which perception, value and belonging come to be mediated by a rationality already incorporated into the environment itself. ↩

306. "The empty discussion about the spectacle, that is, about what the owners of the world do, is thus organized by the spectacle itself one insists on the great means of the spectacle, so as to say nothing about their broad use. Often one prefers to call it, instead of spectacle, the media. And thus one wishes to designate a simple instrument, [illegible]ic service that would manage with an impartial 'professionalism' the new communication of all through the mass media, communication finally arrived at its unilateral purity, whe

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admired. What is communicated are orders; and, very harmoniously, those who gave them are likewise those who will say what they think of them." DEBORD. ↩

307. "The spectacle presents itself as an enormous indisputable and inaccessible positivity. It says nothing more than 'what appears is good, what is good appears'. The attitude that it demands in principle is this passive acceptance which, in truth, it has already obtained by its manner of appearing without reply, by its monopoly of appearance." DEBORD. ↩

308. "The false choice in spectacular abundance, a choice that lies in the juxtaposition of competing and solidary spectacles, as in the juxtaposition of the roles to be played (mainly signified and carried by objects), which are at the same time exclusive and intertwined, develops into a struggle of phantasmagorical qualities intended to impassion adherence to quantitative triviality. Thus false archaic oppositions are reborn, regionalisms or racisms charged with transfiguring into fantastic ontological superiority the vulgarity of hierarchical places in consumption. In this way, the interminable series of derisory confrontations is recomposed, mobilizing a sub-ludic interest, from competitive sport to elections. Wherever abundant consumption has settled in, a main spectacular opposition between youth and adults comes to the forefront of the fallacious roles: because nowhere does the adult, master of his life, exist, and youth, the change of what exists, is in no way the property of these men, who are now young, but that of the economic system, the dynamism of capitalism. It is things that reign and that are young; that throw themselves away and replace themselves." DEBORD. ↩

309. The support article "Tiers, divisões e filas das ranqueadas" describes the hierarchy as a public grammar of ordering, by fixing, with institutional vocabulary, the steps that make social comparison possible and repeatable. It is not a community account, it is a supplier document defining what counts as position and how this position is visually organized, from Iron to the upper *tiers*. In an objective passage, the text establishes that "From Iron to Diamond, tiers have four divisions." RIOT GAMES. The evidentiary force lies in the gesture of instituting the scale and, for that reason, instituting a form of legibility in which value appears as a place occupied. Once the ruler is fixed, the platform comes to administer what will be seen as "rise", "fall" and "stagnation", and, with this, comes to govern the circuit of recognition that sustains permanence. ↩

310. In the guide "Mestre, Grão-Mestre e Desafiante: os tiers mais altos", the platform bluntly acknowledges the disciplinary dimension of permanence at the top by linking prestige and routine through a mechanism of sanction. The document not only acknowledges decay for inactivity, but also makes its intensity explicit, stating that there is a "daily penalty of 75 LP against inactivity" RIOT GAMES. Next, the text itself mechanism into an inevitable social practice, by recording that "most highest tiers play ran positions." RIOT GAMES. This doub

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a sociological intuition into supplier evidence, since the visibility of the place occupied demands constant updating, and the threat of falling organizes the consumer's time as an obligation to maintain position. ↩

311. In the dev blog "/dev: atualização nas ranqueadas da Etapa 2", the governance of the spectacle appears in the place where it actually operates, that is, in the recalibration of the signals and frictions that make the ladder "playable" and, therefore, desirable. The text does not describe only cosmetic changes; it tampers with the experience of progression and with the way the fall is felt, which means intervening in the affective and social economy of prestige. Among the changes, the post reports that "Demotion protection between Divisions [...] will be removed. The transition between Divisions will be fluid" RIOT GAMES. The evidence here is valuable because it shows that displayed merit is not "naturally" generated by the game, but administered as a design of rules and visibility, and that the platform can tighten or loosen the risk to keep recognition circulating. ↩

312. The entry *Sistema de Ligas* helps to name, in technical language, the logic of *ranking* as structured scarcity, in which prestige is sustained by displacement. In explaining the top as a limited space, the text records that "every time someone gets enough LP [(League Points)] to move up [...] a summoner will be pushed [...] down." LEAGUE OF LEGENDS WIKI. It thus becomes evident, in terms of functioning, why visibility tends to turn into anxiety and routine, since keeping one's place depends not only on one's own individual performance, but on the continuous competitive pressure that the system formalizes, inside and outside the game. At this point, the mechanics by which position becomes an unstable spectacle are described with precision. ↩

313. In the Terms of Service, clause 3.1 objectively ties down the dogmatic point of greatest importance for the discussion. Since enjoyment is not possession, it is conditioned use, the contract qualifies access as a "limited license" and subordinates this use to compliance with the Terms, which makes permanence in the ecosystem a legal condition of "having" within it. The passage is crystal clear in stating that the license is "expressly conditioned" on contractual compliance and that, if the account is terminated, the consequence is not symbolic, it is automatic, since "If we terminate your account [...], your license [...] will be automatically canceled." RIOT GAMES. This converts the displayed attributes, including those that function as social proof, into effects of a revocable bond, hence dependent on an administered continuity. ↩

314. Clause 2.3 makes explicit the material dimension of this revocability by describing what happens when the bond is broken. It does not speak of "losing an item" or "losing a good" but of losing access to the environment itself and to its traces, which helps to

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"you will no longer have access to y

Virtual Content (including the Game Currency)" RIOT GAMES. The wording is important because it includes "associated data" in the same package as virtual content, which shows the infrastructural nature taken on by the object. Thus, what gives meaning to value, that is, the signs, the records and the displayed markers, ceases to exist for the user when the account ceases to exist. ↩

315. In this research, "*hype*" designates the collective frenzy and the sudden rise of expectation around an object or event, generally driven by social media and detached from its real value. It is a technique of attention governance used by the platform to produce urgency and to guide the economic conduct of the consumer through practices of hypercuratorial anticipation. ↩

316. "Generalized secrecy stands behind the spectacle, as the decisive complement of what it shows and, if we go deeper into things, as its most important operation. The simple fact of being from now on without reply has given the false a completely new quality. At the same time it is the true that has ceased to exist almost everywhere or, at best, has been reduced to the state of a hypothesis that can never be demonstrated. The false without reply has ended up making public opinion disappear, which at first found itself unable to make itself heard; then, quickly afterward, even to form. This evidently entails important consequences in politics, in the applied sciences, in justice, in artistic knowledge." DEBORD. ↩

317. "What the spectacle presents as perpetual is founded on change, and must change with its base. The spectacle is absolutely dogmatic and, at the same time, cannot lead to any solid dogma. For it nothing stops; this is the state that is natural to it and, nevertheless, the most contrary to its inclination." DEBORD. ↩

318. "The spectacle, understood in its totality, is at the same time the result and the project of the existing mode of production. It is not a supplement to the real world, its added decoration. It is the heart of the unreality of real society. In all its particular forms, information or propaganda, advertising or direct consumption of entertainment, the spectacle constitutes the present model of socially dominant life. It is the omnipresent affirmation of the choice already made in production, and its corollary consumption. Form and content of the spectacle are, identically, the total justification of the conditions and ends of the existing system. The spectacle is also the permanent presence of this justification, as the occupation of the main part of the time lived outside modern production." DEBORD. ↩

319. "The spectacle is a permanent opium war to make accepted the identification of goods with commodities; and of satisfaction with survival, increasing according to its own laws. But if consumable survival is something that must always increase, it is because it › contain privation. If there is no beyond for increased survival, no point cease its growth, it is because it itself is not beyond privation, but is rather privation made richer." DEB

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320. “The spectacle is the uninterrupted discourse that the present order makes about itself, its laudatory monologue. It is the self-portrait of power in the epoch of its totalitarian management of the conditions of existence. The fetishistic appearance of pure objectivity in spectacular relations hides their character as a relation between men and between classes: a second nature seems to dominate our environment with its fatal laws. But the spectacle is not that necessary product of technical development regarded as a natural development. The society of the spectacle is, on the contrary, the form that chooses its own technical content. If the spectacle, considered under the restricted aspect of the “mass media”, which are its most overwhelming superficial manifestation, may seem to invade society as a mere instrumentation, this is in fact nothing neutral, but the very instrumentation that suits its total self-movement. If the social needs of the epoch in which such techniques develop can find satisfaction only through their mediation, if the administration of this society and all contact between men can no longer be exercised except through the intermediary of this power of instantaneous communication, it is because this “communication” is essentially unilateral; so that its concentration translates into accumulating in the hands of the administration of the existing system the means that allow it to pursue this determined administration. The generalized split of the spectacle is inseparable from the modern State, that is, from the general form of the split in society, product of the division of social labor and organ of class domination.” DEBORD. ↩

321. “The fundamentally tautological character of the spectacle stems from the simple fact that its means are at the same time its end. It is the sun that never sets on the empire of modern passivity. It covers the entire surface of the world and bathes indefinitely in its own glory.” DEBORD. ↩

322. “It is the principle of commodity fetishism, the domination of society by ‘suprasensible yet sensible things’ that is absolutely realized in the spectacle, where the sensible world is replaced by a selection of images that exist above it, and which at the same time has made itself recognized as the sensible par excellence.“ DEBORD. ↩

323. “The agent of the spectacle put on stage as a star is the opposite of the individual, the enemy of the individual, in himself as much as, evidently, in others. Passing into the spectacle as a model of identification, he has renounced every autonomous quality, in order to identify himself with the general law of obedience to the course of things. The consumption star, while being outwardly the representation of different types of personality, shows each of these types as having equal access to the totality of consumption and finding there, in the same way, its happiness. The decision star must possess the complete stock of what has been admitted as human qualities. Thus, among these, the official divergences are annulled by the official resemblance, which is [illegible]ition of their excellence in everything. Khrushchev had become a [illegible]de the battle of Kursk, not on the ground, but on its twentieth [illegible]hen he found himse[illegible] orator, to the point of pronouncing [illegible]

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Sorensen continued, at that moment, to write for the successor the speeches in that style which had so contributed to making the personality of the deceased recognized. The admirable people in whom the system is personified are well known for not being what they are; they became great men by descending below the reality of the smallest individual life, and everyone knows it." DEBORD. ↩

324. "The first phase of the domination of the economy over social life led, in the definition of all human realization, to an evident degradation of being into having. The present phase of the total occupation of social life by the accumulated results of the economy leads to a generalized sliding of having into appearing, from which all effective "having" must draw its immediate prestige and its ultimate function. At the same time, all individual reality has become social, directly dependent on social power, shaped by it. Only in what it is not is it allowed to appear." DEBORD. ↩

325. "As the indispensable adornment of the objects produced today, as the general exposition of the rationality of the system, and as the advanced economic sector that directly shapes a growing multitude of image-objects, the spectacle is the main production of present-day society." DEBORD. ↩

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So far, it has been argued that, on platforms, the promise of the IOC circulates as a continuous social scene and that visibility, comparison and public validation cease to be side effects and become part of the very economic infrastructure of permanence. It remains to explain how this circuit keeps value operating when the relevant enjoyment changes over time, without this appearing as an evident rupture of the offer. The hypothesis is that, in certain regimes of immaterial consumption, symbolic equivalence performs the economic function of delivery, preserving prestige, belonging and commensurability in the ecosystem even when enjoyment is displaced by continuous governance. To describe this mode of operation without moralism, an operational definition of simulation and simulacrum must be fixed in the vocabulary of Jean Baudrillard[326].

Simulation shifts the debate and describes a regime in which sign equivalence sustains value and recognition without requiring a stable reference in enjoyment BAUDRILLARD. The difference is structural, because pretense preserves the reality principle, while simulation throws into crisis the boundaries between true and false, real and imaginary[327] (Baudrillard, 1991, [p. 9-10]). In this framework, the map ceases to represent the territory and comes to precede it, and the signs of the real[328] can replace experience itself with an operative double sufficient to short-circuit verification[329] BAUDRILLARD.

His perspective becomes especially useful when he observes that, in consumer society, the socially valued promise tends to demand measurement and proof through objects and signs, which excludes from the ideal of consumption a happiness

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these markers BAUDRILLARD. This makes it possible to argue,

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maintained by signs of delivery and by visible criteria of equivalence, which warrants

treating the simulacrum as a mechanism capable of preserving the economic circuit of the IOC even when the relevant enjoyment changes.

Here, simulacrum describes a functioning in which sign equivalence suffices to keep value circulating and the promise appearing fulfilled. Simulation thus functions as a mechanism of restoration by appearance, in which "delivering" comes to mean keeping the item within a regime of signs that continues to produce belonging, rarity and commensurability, even though the practical conditions that sustained this position are displaced by continuous governance. The analytical gain is to separate the public continuity of value from the effective continuity of the purchased experience, making it possible to describe capture not as a "lie", but as the administration of criteria of equivalence that operate on the symbolic plane and that can conceal relevant losses without ostensible rupture of the object. With this, sign-value can be treated as an economic dimension proper to consumption, and not as a mere by-product.

Baudrillard provides the key to treating the value of the IOC as something that circulates through distinction and belonging, and not as the simple enjoyment of an "object" taken in isolation. The starting point is the refusal of consumption as appropriation of use value, since "one never consumes the object in itself" and objects "are always manipulated as signs that distinguish the individual", whether by affiliation to the reference group or by demarcation before a higher status BAUDRILLARD. With this, consumption comes to be described as a social operation of classification, in which the promise of the good is inseparable from what it allows one to signify publicly. This framework is completed when consumption is defined as a "system of exchange of signs" that integrates the group, functioning at the same time as a morality and as a "system of communication", so that pleasure ceases to be the rational end and appears as the individual rationalization of a process whose ends lie elsewhere[330] BAUDRILLARD. The framing makes it possible to establish that distinction, prestige and belonging are not side effects of immaterial consumption, but part of the economic circuit that stabilizes value and comparability within the

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relevant enjoyment shifts.

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The sign-value described by Baudrillard makes it possible to treat IOCs as goods whose delivery is stabilized by signs of position, and not only by some isolated technical utility. This requires naming the "signs of delivery" that make the promise economically operative on platforms, because it is these signals that transform acquisition into recognition and make the good function as a socially legible difference within the ecosystem. Novelty, rarity, exclusivity, prestige, belonging, distinction and "edition" are not communicational adornments. They are classificatory categories that define what must be read as superior, desirable and "of the moment", organizing hierarchy and comparison in real time.

When the markers remain stable and circulable, the economic circuit of the IOC can continue operating even under internal reconfigurations of the object, since what sustains value is the permanence of the public legibility of difference. For this reason, it is necessary to show why symbolic equivalence proves capable of replacing, to a certain extent, the reference to effective enjoyment, describing how simulation can "deliver" through signs that short-circuit the verification of the purchased experience.

The symbolic equivalence relevant here is the displacement of delivery, from direct utility to confirmation by signs. Baudrillard makes this displacement explicit by maintaining that, as a concept specific to contemporary society, consumption is not structured by needs and natural utility, but by the reorganization of this primary level into a system of signs BAUDRILLARD. On this reading, delivery is no longer reduced to the enjoyment of a content and comes to depend on the maintenance of a circuit of legibility that produces value through distinction and visible proof. The consequence appears when the author describes opulence as an accumulation of signs of happiness and points out that the satisfactions conferred by objects can operate as the anticipation of a virtual satisfaction, lived as a miracle in everyday practice BAUDRILLARD.

At the same time, this equivalence is not sustained by correspondence with a stable reference, because simulation sets in through the "liquidation of all referentials" and rection in systems of signs", material that offers itself "to all ystems of equivalence" and to a "comb

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elements make it possible to maintain that, in IOCs, restoration can operate as the preservation of signs and of commensurability, keeping the promise economically active through visible markers even when the relevant enjoyment is displaced, which prepares the next step, in which the structural instability of the object will be established as a condition of the ecosystem and not as an exception.

A contemporary example of how signs of delivery can be artificially reordered to sustain value, commensurability and prestige is the creation of the *Exalted* tier and of the acquisition space called *Sanctum*, presented as a shelf "above" the traditional top of the catalog. After the controversy involving *Soul Fighter Samira* and the public discussion about the elasticity of the meaning of *Ultimate*, the platform does not "correct" the semantics of the top. It reorganizes the hierarchy from above, creating a new marker of prestige and coupling it to a form of acquisition that transforms scarcity, urgency and randomness into mechanisms constitutive of value. The *Sanctum* is described as an exclusive shop in which the user buys *Ancient Sparks*[331] for 400 RP and uses them to draw rare content, with a specific "banner" for Exalted *skins*, in addition to temporal rotation and no guarantee of return RIOT GAMES[332]. The institutional justification frames *Exalted* as a set of "hyper-exclusive skins", that is, goods explicitly described as luxury within the catalog, not as a simple "natural evolution" of the *Ultimate tier* RIOT GAMES.

What matters for the argument of the simulacrum is not the moralization of *gacha*[333], but the way sign equivalence reorganizes what counts as the top and shifts the proof of delivery from the content to the very consistency of the circuit of signs. The official description of the *Sanctum* records that Exalted *skins* are the only *S Tier* content of the corresponding banner, with an extremely low chance and a guarantee only on the eightieth draw, in addition to availability for a limited time RIOT GAMES. The consequence is that exclusivity ceases to be a social inference and becomes architecture. Prestige is produced by rule, not by necessary material backing. In this logic, "being top" ceases to mean only "delivering more" and comes to mean "existing within a regime of rarity and controlled access" capable of manufacturing, by itself, of distinction.

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The effect becomes even clearer when one observes that the material grammar presented as Exalted recapitulates, to a large extent, the grammar historically associated with the top of the catalog as *Ultimate*, based on transformation, multiple forms, sensory layers and in-game reactivity. The first Exalted *skin*, *Arcane Fractured Jinx*[334], is described as a package with multiple forms, with "two models" distributed across "three forms", with VFX[335] oriented to narrative and specific *voiceover*[336] per form, switchable in a match through a dedicated mechanism RIOT GAMES. In general terms, what distinguishes the forms presented by the *skin* is not the functionalities, but the fact that it is the official *skin* of the character that portrays her in her "alternative versions" as portrayed in the series *Arcane*. In terms of symbolic functioning, the *tier* "above" need not be substantially superior to the previous top to operate as a new top. It suffices that the platform reorganize the regime of signs and attribute to it a category as a marker of luxury linked to mostly aesthetic-cultural elements, while coupling it to a regime of acquisition that produces the promise of exclusivity as proof.

The reorganization also appears in the public chaining of releases. The system is designed to sustain a rotating showcase in which the top is not only expensive, but temporally contingent, with scheduled replacements. The same space that offers Exalted skins confirms the logic of window and rotation by presenting subsequent entries and replacements of offer, such as *Sahn-Uzal Mordekaiser*[337] and *Spirit Blossom Morgana*[338] in specific periods RIOT GAMES.

In the case of *Morgana*, the staging of the launch itself reinforces the luxury framing through artistic prestige external to the game, with the announcement of a musical collaboration associated with the item, which functions as a social marker of distinction that does not stem from the "technical" content itself, but from the symbolic capital mobilized to value it TAN[339]. In 2026, the same pattern repeats with *Revenant Reign Viego*[340], presented as an Exalted *skin* accompanied by its own animation and insertion into the institutional circuit of updates SOURCE · RIOT GAMES.

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luxury, even when the content remains within a *premium* grammar already known to the ecosystem itself.

On the economic plane, the reorganization makes it clear that the increase in cost is produced mainly by the engineering of acquisition and not by a necessary and proportional increase in the material backing of the content. Riot itself records that an *Ultimate skin* is priced at the level of 3250 RP RIOT GAMES. The Exalted, by contrast, operates through attempts at 400 RP per *Ancient Sparks*, with a guarantee by the eightieth attempt, which sets a ceiling of [80 × 400 RP = 32.000 RP] RIOT GAMES[341]. In RP, the maximum value of the Exalted is almost ten times the value of an *Ultimate*, since [32.000 / 3.250 ≈ 9,85] RIOT GAMES.

Based on the official RP prices for Brazil, the difference becomes even more significant. While an *Ultimate skin* of 3250 RP tends to cost[342] something close to R$ 102,80 in the most cost-effective purchase arrangement to reach that level[343], the ceiling of 32.000 RP requires large packages and can reach something close to R$ 911,60[344] in a typical minimum arrangement RIOT GAMES[345]. The economic leap thus functions as illustrative empirical evidence that luxury, in this arrangement, is produced mainly by signs and by administered access, and not by a necessarily superior material leap. In traditional markets, the qualification of luxury presupposes a recognizable backing of material, technical and symbolic superiority capable of sustaining, before the consumer, the implicit expectation of quality and of distinction proportional to the price. In the *Sanctum*, however, the leap in cost is produced above all by scarcity, rotation and limited time, while the increment of content remains, in essence, within the grammar that historically already organized the top of the catalog RIOT GAMES.

In this sense, the *Exalted tier* makes legible a simulacrum in an advanced state. The ecosystem repackages the already known *premium* grammar as a promise of the top and reinscribes it as luxury through a regime of random acquisition and an implicit spending ceiling, so that "delivery" comes to be inferred from the consistency of the ı engineered rarity and from the social proof of exclusivity. What d itself as a verifiab

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legitimation of equivalence. Value, here, does not depend on a stable reference in enjoyment. It depends on the maintenance of a regime of signs capable of producing belonging, rarity and commensurability as delivery.

In IOCs, the maintenance of the regime of signs can preserve value and commensurability even when what matters in concrete enjoyment changes. It is for this reason that immaterial consumption lends itself to capture by simulacrum. Instead of depending on a stable reference, as would occur with goods whose use imposes itself through their own materiality, the IOC exists as a position of enjoyment within an ecosystem that can reorder categories, signals and criteria of relevance over time. Thus, instability does not appear as a one-off defect of the product, but as a structural condition of the ecosystem, since the same environment that delivers also decides what will be perceived as delivery, through which marks and under which parameters of comparison.

When the regime of signs remains operative, relevant reconfigurations can occur without ostensible rupture. The effect is that relevant losses can be absorbed as an adjustment of the ecosystem, instead of appearing as nonperformance, because the proof of delivery tends to be read through the preserved signs of status and belonging, and not through the objective verification of the specific enjoyment that was at stake. It is here that the simulacrum touches the legal problem: the distinction between nominal restoration and effective preservation of the position of enjoyment, and the requirement of parameters of verifiability capable of preventing symbolic equivalence from functioning as a zone of impunity.

Baudrillard makes it possible to treat instability as a structural condition of consumption, and not as an episodic defect, because renewal and substitution appear as a requirement of the very system of differentiation. The law that runs through the universe of consumption is described as the "law of renewal of distinctive material 'from the top down'", which conditions the innovation of objects as social material of distinction, and not as an ascending response to needs BAUDRILLARD. In the same register, obsolescence ceases to be a technical contingency and becomes part of the one does not produce in view of duration, but "in view of its

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death", through a "calculated obsolescence" that condemns the object to the ephemeral BAUDRILLARD.

The argument establishes that the relevant stability is not the stability of the item, but the stability of the movement that reorders differences, since the system needs the distinctive material to expire in order to preserve distance and to keep the hierarchy operative. This logic connects directly to the way differences are produced, since signification does not operate as personal expression, but as a "differential, marginal and combinatorial" variation, dependent on the "industrial production of differences" BAUDRILLARD, and is lived by the consumer as freedom and aspiration when, in truth, it corresponds to "conditioning of differentiation" and "obedience to a code", in which differentiating oneself amounts to instituting a "total order of differences" that surpasses the individual[346] BAUDRILLARD. With this, the simulacrum ceases to be merely a mechanism of one-off restoration and appears as a way of keeping value operative in an environment in which exchange through signs demands constant renewal, which makes it possible to advance to the legal closing of the block: if the ecosystem can reconfigure value by code and by signs, it becomes necessary to make explicit why auditability and functional value equivalence function as parameters of verifiability against merely nominal restorations.

The practical consequence of this framework is that the delivery of the IOC comes to be evaluated, within the ecosystem, by continuity of legibility and by maintenance of distinctive markers, and not by transparent preservation of the specific enjoyment that was at stake. Since the renewal of distinctive material and obsolescence operate as engines of the system, the environment can shift categories, reorder relevance and recalibrate signals without this appearing as rupture, because what is maintained as "proof" is the persistence of the circuit of recognition. In this condition, restoration can take the form of nominal equivalence, preserving the name, the class, the label, the displayable position and the internal commensurability of the item, while restrictions, effects, access, relevant uses or performance conditions that constituted the acquired position of enjoyment are altered.

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mulacrum becomes legally relevant, because signs can function as a zone of impunity, sustaining an appe

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reconfigured by continuous governance. Hence the requirement of parameters of verifiability, with auditability and functional value equivalence.

When simulation becomes a regime, equivalence ceases to depend on a stable reference and comes to operate as an internal circulation of signs. Baudrillard describes this displacement by maintaining that the system becomes a gigantic simulacrum, no longer capable of being exchanged for the real, but exchanging itself in itself in an uninterrupted circuit whose reference and circumference are located nowhere BAUDRILLARD. The key is that value can remain operative because the proof of delivery shifts to the consistency of the circuit itself, that is, to the public stability of markers and equivalences that the ecosystem keeps in operation.

In this framing, preserving the legibility of the item and the commensurability of its place in the hierarchy may suffice for the offer to seem fulfilled, even though the effective enjoyment has been reconfigured from within. On platforms, this appears when restoration maintains label, displayed category, place in the showcase, rarity marker, prestige frame and parameters of comparison, so that the object remains legible as "the same" for the ecosystem, even if what sustained, in practice, the position of enjoyment changes.

Equivalence proves true for the system because it preserves the parameters of recognition, not because it preserves the specific functions, restrictions, practical effects, modes of display and symbolic effects that made that IOC count as a position. Nominal restoration becomes a structural mechanism of capture, since it allows the circuit of value to keep functioning through continuity of signs while the relevant experience is displaced from within, without ostensible rupture and without a clear marker of loss. This prepares the next step, in which it will be necessary to anchor, in Baudrillard, the idea of exchange through signs and of substitution by equivalents as a mode of functioning of value, in order to sustain theoretically that imagistic restorations can keep the economic circuit operating even when they do not preserve the purchased enjoyment.

The mechanism of nominal restoration appears clearly in the way the platform is

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by update, what the accustom calls a "champion". The sign

remains identifiable, remains counted

presence in the account and the public frame of belonging are not removed. Only here a "champion" is not a character automatically available like the roster of a classic game. It circulates as a store asset, displayed and acquirable within the *client* itself, and its presence in the account functions as a public sign of collection and belonging[347]. This acquisition can occur through internal currencies, but can also result from direct monetary spending, insofar as Riot sells premium currency for this purpose, which brings the champion structurally closer to the status of other equally "purchasable" virtual items, such as *skins*[348]. Consequently, when the name remains while the functional content is replaced, what is preserved is not a mere "menu option". What is preserved is the institutional form of delivery that the system recognizes as possession, even though enjoyment has been displaced from within.

Riot describes this regime as legitimate and ordinary updating, that is, as continuous governance of the service. The effect, on the plane of consumption, is that the promise is no longer a relation between the consumer and a relatively stable set of properties of enjoyment and becomes a relation between the consumer and a system that preserves the sign of sameness while reserving the power to shift, from within, the conditions that made that position count. The simulacrum, here, does not deceive in the banal sense. It stabilizes. It replaces the preservation of enjoyment with an operative equivalent, which circulates as public proof that "the item is still there", and, for this reason, dispenses with the stable reference.

The case of the champion *Aatrox* shows nominal restoration in its "classic" form. Riot itself, in a public text, states that the changes would be "the biggest" ever made on the gameplay plane and that *Aatrox* "need[ed] to be rethought from scratch" RIOT GAMES[349]. This is not fine-tuning. It is a complete overhaul, but packaged as continuity, since the public sign remains and social equivalence is reorganized around it.

The case of the champion *Mordekaiser*, in the *rework* that pushed him into the *duo lane* dynamic, is even more radical because nominal restoration is not limited to swapping the functional content of the "same" champion. It shifts the axis of

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rent regime of coordination, in which enjoyment is no longer mostly calibrated for a game of individ

a pair logic, with another kind of trading, another kind of power window and another kind of risk. It is still the same game, just as volleyball is still volleyball. But the change alters the role the player performs within the system.

It is the difference between having an outside hitter, whose excellence is measured by jump, ball timing, variety of attack and the ability to decide the point against the block, and, by unilateral decision of the team's internal rules, seeing this athlete converted into a libero, whose excellence is measured by defensive reading, short movement, forearm pass control, coverage and stability of reception[350]. The athlete remains on the roster, remains "the same name" on the scoresheet, remains in uniform and present on court, but the practice that justified the investment and that defined the technical pleasure of enjoyment has been replaced by another form of participation.

This is the appropriate image for the simulacrum: the continuity of the sign is preserved, while the content of the experience is rewritten from within, and this can happen in such a deliberate way that, in a recorded public discussion, a developer describes Mordekaiser as "forced"[351], in the context of the discussion about the competitive strategies related to *melee bot lanes*[352] MOOBEAT.

The institutional structure of the ecosystem itself confirms that this is not an exception, but a grammar of operation. Riot maintains a support page that defines "champion update" as a graphic or *kit* change and acknowledges, head-on, the discomfort of seeing one's favorite champion "changing out of nowhere" RIOT GAMES[353]. The update does not appear as a defect of the service. It is presented as part of the normal mode of existence of the object. And when even third-party programs come in to "unlock champions" on condition of a bond and maintenance of the benefit, what is exposed is precisely the administered character of access, and not a roster offered willingly RIOT GAMES[354]. The IOC, in this cut, exists as an administered and rewritten sign, and public commensurability functions as the backing of continuity. It is exactly here that the distinction between nominal

ctive preservation of enjoyment ceases to be a detail and becomes

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The inversion operated by the simulacrum can be described particularly clearly when the acquisition of the sign comes to be worth more than the experience that should justify it. There are situations in which the consumer invests dozens of hours of their finite life to obtain a digital item whose relevance lies, above all, in the symbolic inscription it produces in the ecosystem. In this configuration, the symbol no longer represents the fun, the challenge or the lived enjoyment, since it replaces this experience as the measure of what "was worth it". The map precedes the territory not only on the cognitive plane, but on the existential plane, since the validation of effort shifts to the possession and display of the sign, and the lived is reinterpreted retroactively as a necessary means to an end that is, in itself, sign.

The value of the IOC becomes hyperreal when the platform offers signals sufficient to short-circuit the verification of enjoyment and to convert the investment of time into evidence of delivery. Thus, the logic works by self-confirmation: the greater the cost in time, the greater the subjective and social need for the sign to "be worth it", and the more the ecosystem publicly recognizes this sign, the more it becomes real as value, even though its reference in concrete experience is unstable or degradable. Effort does not guarantee the referent, but reinforces the efficacy of the simulacrum, because it increases the consumer's dependence on the circuit that transforms time into prestige and prestige into proof of meaning.

This explains why nominal restorations can be economically effective, since consumption operates by distinction and by visible criteria of equivalence, and inner enjoyment does not suffice as a social measure of value BAUDRILLARD.

If the value of the IOC circulates through position and through visible criteria of equivalence, then the standard of delivery that matters cannot be reduced to minimal technical execution or to isolated formal statements. The offer, in these markets, materially includes the form of recognition of the good in the ecosystem, since it is this public legibility that stabilizes commensurability and makes the promise operate as "delivery" for the consumer and for the community. For this reason, a legal reading of adequacy that treats the good as a closed unit and evaluates performance only by

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ically accessible tends to mistake the object, because it ignores the symbolic dimension that integrates the

Therefore, controlling adequacy in immaterial consumption requires considering whether restoration preserves the position of enjoyment in its relevant elements, and not only whether it preserves a nominal label or a residual access that continues "working". The fit does not anticipate the dogmatic development, but establishes the starting point for it, because it shows that the decisive discrepancy can occur without ostensible rupture of the item, precisely when the circuit of signs keeps operating as proof of delivery while the relevant experience is reconfigured from within.

The distinctive dimension does not enter consumption as an optional side effect, because it functions as a structural rule of integration and hierarchization. Consumption operates as a system of ordering of signs that integrates the group and organizes social exchange, imposing itself through largely unconscious constraints, so that the structural organization surpasses individuals BAUDRILLARD. For this reason, difference is not an adornment freely chosen after the utility of the object has been met, but the very form through which conducts and objects become legible within a scale of positions.

It is in this sense that Baudrillard states that the consumer lives their distinctive conducts as freedom, aspiration and choice, and not as conditioning of differentiation and obedience to a code BAUDRILLARD. The subjective perception is of autonomy, but the logic that organizes this autonomy is social and codified. "Differentiating oneself", in this regime, does not mean affirming a real singularity; it means entering the combinatorial game of differences, instituting the total order of differences that constitutes the fact of total society and surpasses the individual BAUDRILLARD. The promise of personalization appears as the maximum of individuality, but the mechanism described is the opposite: differentiating oneself tends to amount to adopting models and renouncing real difference, because "personalizing" differences are hierarchized and converge toward models from which they are produced and reproduced BAUDRILLARD. In structural terms, the fundamental logic is that of differentiation and personalization under the sign of the code, which produces individuals as "personalized" in conformity with general models BAUDRILLARD

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Taken together, Baudrillard's premises establish that the legally relevant function of the good is not exhausted by the isolated utility of the object, because what is at stake is its capacity to inscribe the subject in a grammar of recognizable positions, comparable and validatable in a social circuit. Utility remains, but does not govern alone. The core is insertion into a regime of legibility and hierarchy, in which enjoyment and value depend on participation in an order of differences whose intelligibility is provided by the system itself.

In an IOC, this translates into position in the ecosystem. The delivery that matters is not only the act of "making something available" to the user, but the maintenance of the criteria by which difference is produced, read, displayed and recognized. For this reason, restorations that preserve only the name or the appearance can keep the code functioning and, even so, destroy the position of enjoyment that conferred meaning and value on the good. In these cases, the consumer remains before a "compatible" sign, but loses, in practice, what integrated their legitimate qualitative expectation about what was acquired, to the point that the decision to contract might not have occurred if this alteration had been present from the start. The result is a formal continuity with material rupture, because the system remains legible, but the experience that was sold as equivalent ceases to exist.

When consumption operates as obedience to a code of differences and when the validation of value depends on recognizable signs, the consumer's trust tends to shift from the isolated item to the ecosystem that sustains the legibility of this position. Practical security ceases to rest on the verification of a one-off enjoyment and comes to rest on the expectation of continuity of the circuit of recognition, that is, on the belief that the environment will keep guaranteeing comparability, prestige and belonging on the same terms on which the acquisition was made. In IOC markets, this displaced trust is functional, because the position only "has value" while the ecosystem keeps active the criteria of reading and the public markers that make difference circulate as difference. The problem appears when the simulacrum allows this continuity to be staged by sign equivalences, preserving the signal of delivery and the social commensurability of the good even under relevant shifts in enjoyment, without the practical effects that constituted the acquired position. In this condition, trust becomes exploitab

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platform can recalibrate from within the bases of experience and, even so, maintain the appearance of fulfillment through the visible stability of the code, which makes it difficult to turn relevant loss into demonstrable rupture. This makes the core of the evidentiary problem clearer: the promise-enjoyment nexus tends to be replaced, in practice, by a promise-signal nexus, and it is this shift that makes auditability and functional value equivalence necessary responses of verifiability, and not moralism against the symbolic.

Displaced trust stabilizes with more force when the ecosystem itself comes to produce, from within, the evidence of what counts as real and as delivery, dispensing with external verification of enjoyment. In Baudrillard, this logic appears as the tautology of the model, in which validation does not depend on confrontation with a referent, since reality is nothing but the model expressing itself, and the circulation of signs leads only to a whirling evidence, which allows one to ask whether this is not pure tautology and proof by existence[355] BAUDRILLARD. For IOCs, this key makes it possible to describe why the consumer tends to trust the environment that validates, compares and makes visible the acquired position, since the practical proof that it "delivered" comes to be the regular functioning of the circuit of recognition itself. When confirmation comes from the regime and not from the demonstrable preservation of the relevant enjoyment, internal losses can be absorbed without ostensible rupture, provided the ecosystem keeps producing the public equivalence of the good. It is this self-reference that makes restoration by signs plausible, preparing the next step, in which the distinction between nominal equivalence and effective preservation of the position of enjoyment can be made explicit as a problem.

If the validation of value can be produced by the circuit of signs itself, the restoration of the IOC cannot be treated as a simple nominal substitution arbitrated by the administrator of the ecosystem. What was at stake in the acquisition was not only the persistence of a label, a class or a prestige tag, but a position of enjoyment with specific functions, restrictions and symbolic effects, dependent on the way the

this position operative and recognizable.

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In this scenario, “restoring” cannot mean preserving only the signal of delivery and the public commensurability of the item, allowing what constituted the relevant experience that sustained the value of the position to degrade or change without demonstrable criterion. The consequence is objectively identifiable, since legally adequate restoration must be read as substantive restoration of the position of enjoyment and not as merely nominal or imagistic equivalence, since equivalence by appearance is precisely the space in which the simulacrum allows the economic circuit to keep functioning without preserving what was effectively acquired. It is in this direction that the parameter of functional value equivalence becomes necessary, since it constitutes the minimum requirement capable of preventing the platform from turning the sign into a zone of impunity by arbitrating “equivalents” that keep it apparent without preserving the relevant delivery legitimately acquired.

In the cut of the simulacrum, the closing of the mechanism lies in the fact that equivalence no longer depends on transparent preservation of enjoyment, since it comes to operate through signs that, in the very social body of consumption, produce practical effects equivalent to what, in referential regimes, would be supposed to exist as a verifiable foundation. Baudrillard's formulation helps to stabilize this passage by distinguishing dissimulation from simulation and by setting aside the reading that simulating would merely be lying. In the example mobilized by the author, simulation is not limited to staging a nonexistent state, insofar as it produces symptoms, since the simulator determines in himself some of the respective symptoms BAUDRILLARD.

With this, the external point of reference ceases to be an operational requirement, because proof no longer depends on verifying a hidden real, but is short-circuited by the efficacy of the sign, which manufactures by itself the indications and effects it should merely represent. This makes it possible to treat the primacy of appearance as a form of value, since the system does not require a stable ground of experience to recognize delivery, but verifiable and circulable symptoms. For the IOC, maintaining label, nominal rarity, visibility, comparative position and public markers can function as delivering even when relevant functions, restrictions and effects have been dis[illegible]ious governance. This is the point at which restoration by [illegible]e becomes a structural risk, which prepares the next step on

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exchanges through signs and substitutions that preserve the economic circuit while downgrading, from within, the acquired position of enjoyment.

The simulacrum, when it operates as equivalence by symptoms and as validation by visible criteria, creates a zone of "delivery by appearance" that tends to escape both everyday perception and traditional forms of proof. The reason is structural. The position of enjoyment of the IOC does not depend only on an isolated item, but on a set of conditions of intelligibility and recognition that the platform governs in layers that rarely present themselves as a clause or as an explicit alteration of the "product". Internal classifications, showcase curations, highlighting criteria, relevance metrics, matchmaking rules, algorithmic orderings, circulation scripts and even the public signs of prestige themselves can be recalibrated without this translating into an identifiable event of "breakage", and, even so, these adjustments alter what the item is worth, for whom it is worth and how it is recognized as valuable. In this environment, relevant losses can be absorbed as a "normal adjustment of the ecosystem", because social proof keeps working and the symptoms of equivalence remain available, even if the enjoyment effectively acquired has been degraded or displaced. Semiotic vulnerability then appears as a loss of verifiability. The consumer not only does not know the terms; they cannot demonstrate, with ordinary means, the nexus between promise and enjoyment when the reference itself has been replaced by operative signs and when the decisive variables are opaque, dynamic and administered unilaterally.

This neutralization of proof is not metaphorical. In Baudrillard, the decisive point is that simulation does not merely dissimulate or pretend, because pretending leaves the reality principle intact, with the difference merely disguised. Simulation, on the contrary, calls into question the difference between true and false, real and imaginary, producing a scenario in which, if the simulator produces true symptoms, he cannot be objectively treated either as ill or as not ill BAUDRILLARD. When the system operates through signs capable of producing effects equivalent to those of the real, the external criterion of verification loses ground, since the very distinction that [illegible] ture to be demonstrated is neutralized by the functioning of the

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gime of the IOC, the consequence is that restoration by appearance tends to be hard to capture

signs of continuity, prestige and commensurability as operative symptoms of delivery, while it alters relevant functions, restrictions and conditions of enjoyment, without this presenting itself as a demonstrable difference on the plane of the real of the object. The result is an asymmetry of verifiability, which makes it plausible to operate equivalence by appearance as a practical shield against the demonstration of nonperformance.

The legal contribution of the simulacrum, therefore, is not to treat consumption as illusion, but to make nameable the practical shift of the criterion of performance. When equivalence is stabilized by signs of delivery, such as label, class, rarity frame, displayable position and internal commensurability, public continuity can function as a substitute for the preservation of the relevant enjoyment, so that restoring comes to mean conserving recognizable symptoms of persistence, even if restrictions, effects, modes of access and performance conditions that constituted the acquired position are altered from within. The legal problem is not the symbolic, but the practical neutralization of the proof of the nexus between promise and enjoyment, which requires criteria of traceability and substantive control of equivalence.

NOTES

326. In the works *A Sociedade de Consumo* (1995), originally published in 1970, and *Simulacros e Simulação* (1991), from 1981, Baudrillard develops a decisive diagnosis for understanding symbolic capture in contemporary consumption. In A Sociedade de Consumo, consumption does not appear as a simple enjoyment of objects, but as a social logic of classification and differentiation, in which goods operate as signs and come to produce hierarchies, belonging and prestige. In Simulacros e Simulação, in turn, the focus shifts to simulation as the substitution of the real by the signs of the real, describing a regime in which models and scenarios become operative and in which experience can be governed by symbolic equivalences that dispense with a stable reference. What matters for the discussion at hand is to extract instruments to describe how, in IOCs, value can be maintained by signs of delivery, recognition and apparent equivalences, including when the position of enjoyment is displaced. This requires distinguishing nominal restoration from effective preservation of the acquired position of enjoyment. ↩

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e is to pretend not to have what one has. To simulate is to pretend to have what one does not have. The f
But it is more complicated, since to simulate is not to pretend. "Whoever reigns an

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illness can simply go to bed and make others believe he is ill. Whoever simulates an illness produces in himself some of its symptoms." (Littré.) Thus pretending, or dissimulating, leave the reality principle intact: the difference remains clear, it is only disguised, whereas simulation calls into question the difference between the "true" and the "false", the 'real' and the ' imaginary'. Is the simulator ill or not, if he produces 'true' symptoms? Objectively one cannot treat him either as ill or as not ill. Psychology and medicine stop there before a truth of the illness that can no longer be found. For if any symptom can be 'produced' and can no longer be accepted as a fact of nature, then every illness can be considered simulable and simulated and medicine loses its meaning, since it only knows how to treat 'true' illnesses by their objective causes." BAUDRILLARD. ↩

328. "In this passage to a space whose curvature is no longer that of the real, nor that of truth, the era of simulation thus begins with a liquidation of all referentials - worse: with their artificial resurrection in systems of signs, a material more ductile than meaning, insofar as it offers itself to all systems of equivalence, to all binary oppositions, to all combinatorial algebra. It is no longer a matter of imitation, nor of duplication, nor even of parody. It is a matter of a substitution in the real of the signs of the real, that is, of an operation of deterrence of every real process by its operative double, a metastable signaletic machine. programmatic, impeccable, which offers all the signs of the real and short-circuits all its vicissitudes. The real will never again have the opportunity to produce itself-such is the vital function of the model in a system of death, or rather of anticipated resurrection that no longer leaves any chance to the very event of death. Hyperreal, henceforth sheltered from the imaginary, leaving room only for the orbital recurrence of models and the simulated generation of differences." BAUDRILLARD. ↩

329. "Today abstraction is no longer that of the map, the double, the mirror or the concept. Simulation is no longer the simulation of a territory, of a referential being, of a substance. It is the generation by models of a real without origin or reality: hyperreal. The territory no longer precedes the map, nor survives it. It is now the map that precedes the territory - precession of simulacra - it is the map that engenders the territory whose fragments slowly rot across the extent of the map. It is the real, and not the map, whose vestiges subsist here and there, in the deserts that are no longer those of the Empire, but our own. The desert of the real itself." BAUDRILLARD. ↩

330. "The truth of consumption lies in the fact that it is not a function of pleasure, but a function of production -and, therefore, as happens with material production, a function that is not individual, but immediately and totally collective. Without the transposition of the traditional data, no theoretical analysis is possible: whatever the ›aches it, one always falls back into the phenomenology of pleasure.

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emerges as a system that ensures the ordering of signs and the integration of the group; it constit

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ideological values) and a system of communication or structure of exchange. It is in

this respect and because the social function and the structural organization far surpass individuals and impose themselves on them through unconscious social constraints that one can create a theoretical hypothesis, which is not limited to being a recital of figures or pure descriptive metaphysics. According to such a hypothesis and however paradoxical this may seem, consumption is defined as exclusive of pleasure. As a social logic, the system of consumption is established on the basis of the refusal of enjoyment. Pleasure ceases to appear as a purpose and rational end, revealing itself as the individual rationalization of a process whose ends lie elsewhere. Pleasure would define consumption for itself, as autonomous and final. Now, this does not happen. Pleasure is felt for its own sake, but when one consumes, one never consumes in isolation (this is the illusion of the consumer, carefully fed by all the ideological discourse about consumption), one enters a generalized system of exchange and production of coded values in which, in spite of themselves, all consumers find themselves reciprocally implicated. In this sense, consumption constitutes an order of significations, like language, or like the kinship system in primitive societies.“. BAUDRILLARD. ↩

331. “Centelhas Divinas” in the Portuguese version. ↩

332. The official support page describes the *Sanctum* as an exclusive shop in which the user buys *Ancient Sparks* for 400 RP to draw rare content, records the existence of a specific “banner” for Exalted skins, indicates an extremely low chance and guarantees it only on the eightieth draw, besides recording availability for a limited time, with rotation and no guarantee of return. These elements are central to the argument because they transform exclusivity into an architecture of access, and not into the consequence of a necessarily superior material backing RIOT GAMES. ↩

333. A monetization model based on random draws of virtual items, inspired by capsule vending machines (*gashapon*). From the perspective of IOCs, it represents an architecture of extraction that conditions the enjoyment of desired goods on probabilistic mechanisms and successive draws, often concealing the real cost of acquisition through intermediate currencies and statistical opacity ↩

334. The official PBE *feedback thread* describes *Arcane Fractured Jinx* as a package that includes themed UI, reactive HUD and layers of content involving customized models, textures, animations, VFX, SFX and *voiceover* LOLDEV-COSMETICS, reinforcing that the announced material content approaches the premium grammar of transformation and sensory staging historically associated with *Ultimates*. UI is the acronym for *User Interface* (Interface de Usuário). It refers to the set of visual elements, such as menus, icons, windows and buttons, that allow interaction between the consumer and the *software*. It is the technical layer where the "choice architecture" materializes and where e of the platform is exercised directly. ↩

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335. Acronym for Visual Effects (Efeitos entertainment, it designates the animations, particles, lighting and dynamic graphic

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details that accompany actions and abilities within the game. They are essential components of the functional and aesthetic integrity of the Immaterial Object of Consumption (IOC). ↩

336. It refers to the set of audio files that make up the lines, narrations and vocal performances of a character or of the system itself. It forms part of the bundle of functionalities of the IOC, contributing to the construction of its symbolic identity and to the differentiation of value between categories of virtual items. ↩

337. The *official* PBE *feedback thread* describes the *Exalted skin Sahn-Uzal Mordekaiser* as a delivery with model evolution associated with kit events, a specific event at the start of the match, unique and switchable music linked to triggers, as well as updated animations and extensive sensory layers, approaching the historical grammar of *Ultimates* as a promise of verifiable innovation, even though reinscribed under acquisition by attempts and a time window LOLDEV-COSMETICS. Specifically in the case of the character, the appeal of the *skin* is concentrated in the fact that it is the first appearance of his "human version", never shown in the game until then. ↩

338. The official PBE *feedback thread* describes the *Exalted skin Spirit Blossom Morgana* as a package with customized models, textures, animations, VFX, SFX and music, treating the sound layer and transformations of model, effects and environment as components of the *premium* content offered LOLDEV-COSMETICS. ↩

339. Specialized coverage records the presentation of *Spirit Blossom Morgana* with a musical collaboration associated with Mai Fujisawa, daughter of the founder of *Studio Ghibli*, the notable Japanese animation studio of worldwide renown, which functions as a strategy of symbolic valorization through artistic prestige external to the game, reinforcing the framing of the item as a luxury good within the catalog and not merely as "one more skin" TAN. ↩

340. The official PBE *feedback thread* describes the *Exalted skin Revenant Reign Viego* as a delivery with customized models, textures, animations, VFX, SFX, music and *voiceover*, as well as an event, reinforcing the use of triggers and reactive presentations as the core of the tier's differentiation, again without this depending on a stable reference outside the circuit of signs maintained by the ecosystem LOLDEV-COSMETICS. ↩

341. The implicit ceiling of the *Sanctum* stems from the structure of attempts at 400 RP per *Ancient Spark* and from the guarantee by the eightieth attempt, which sets 32.000 RP as the limit cost of access to the Exalted in case of "bad luck protection". The approximate ratio of 9,85 times relative to the price of an Ultimate derives from the comparison 32.000 / 3.250 ≈ 9,85, which is relevant to show that the price leap is produced by engineering of acquisition and rarity, not by a need for proportional

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ng RIOT GAMES +1. ↩

342. Under the current table, 575 RP cost R$ 18,90; 1380 RP cost R$ 41,90; 2800 RP cost R$ 83,90; 4500 RP cost R$ 132,90; 13.500 RP cost R$ 379,90 RIOT GAMES. ↩

343. [3375 RP = 575 + 2800]. ↩

344. [32.075 RP = 13.500 + 13.500 + 4500 + 575]. ↩

345. The official RP price table for LATAM/BR makes it possible to estimate the practical cost of an *Ultimate* of 3250 RP and the cost of reaching the ceiling of 32.000 RP in typical purchase arrangements, materializing, in national currency, the economic leap of the *Exalted* regime. The use here is demonstrative of the economic asymmetry produced by the engineering of access, and not the fixing of a single invariable price across all possible combinations RIOT GAMES. ↩

346. "As a process of classification and social differentiation, in which objects/signs are ordered not only as significant differences within a code, but as status values within a hierarchy. In this sense, consumption may be the object of a strategic analysis that determines its specific weight in the distribution of status values (with the implication of other social signifiers: knowledge, power, culture, etc.) [...] The principle of the analysis is the following: one never consumes the object in itself (in its use value) - objects (in the broad sense) are always manipulated as signs that distinguish the individual, either by affiliating him with his own group taken as an ideal reference or by setting him apart from that group by reference to a group of higher status. However, the process of status differentiation, which appears as the fundamental social process through which each person takes his place in society, presents a lived aspect and a structural aspect; one conscious and the other unconscious; one ethical (it is the morality of 'standing', of status competition and of the scale of prestige), the other structural - inscription in a code whose rules and constraints of signification [...] essentially escape individuals. The consumer experiences his distinctive conduct as freedom [...] and not as a constraint of differentiation and of obedience to a code. To differentiate oneself always amounts to establishing the total order of differences, which constitutes, without more, the fact of total society and inescapably goes beyond the individual. By distinguishing himself in the order of differences, the individual restores it, condemning himself, therefore, to inscribe himself in it only in a relative way. Each individual experiences his own differential social gains as absolute gains, and not the structural constraint that lies at the origin of the exchange of positions and of the permanence of the order of differences. Yet it is this constraint of relativity that is decisive, insofar as it is by reference to it that differential inscription will never come to an end. It alone explains the fundamental character of consumption, its UNLIMITED character - a dimension that cannot be explained by a theory of needs and satisfaction since, if it were calculated in caloric or energy balance or in use value, threshold would quickly be reached. Now, the truth is that we witness pposite - the acceler of demand that opens the gap betv

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frenzied consumptibility [...] This fact has no explanation unless one radically abandons the individual logic of satisfaction in order to restore to the logic [...] of differentiation its decisive importance. Or else, by distinguishing the logic of difference from the simple [...] conscious determinations of prestige, which are still satisfactions, consumption of positive differences, whereas the distinctive sign proves to be at once positive and negative difference - a fact that leads it to refer indefinitely to other signs and to induce definitive dissatisfaction in the consumer." BAUDRILLARD. ↩

347. It is important to set aside the reading according to which the game, because it is free-to-play, that is, free to play, offers all characters natively to the user. Riot is clear in specifying that the currency "Blue Essence" (Essência Azul), earned through the expenditure of time and progress in missions internal to the game, can be used to obtain champions from shards (consumable items obtained through missions) or, through a greater expenditure of resources, to buy them directly in the store. This means that the playable champion is also treated as acquirable content and not as an automatically available element RIOT GAMES. ↩

348. In the same official material, Riot defines RP as a premium currency "only obtainable through direct purchase in the store [...]", that is, obtained by direct purchase RIOT GAMES. In addition, Riot maintains an institutional view of champion pricing, explaining that prices are set by criteria such as release date and difficulty level, which reinforces the existence of a pricing policy for this asset RIOT GAMES. ↩

349. The permanence of the "champion" in the account may coexist, by contractual design, with a broad elasticity of the properties that make up its enjoyment. In the *Champion Roadmap: January 2018*, Riot confirms that the champion Aatrox was about to receive the "largest pure gameplay update we've ever done" and that he needed to be "rethought from the ground RIOT GAMES. This is the core of nominal restoration, given that the very administrator of the sign admits the structural replacement of the functional content without this being presented as a replacement of the object, because the name and the discourse about belonging remain intact. ↩

350. The analogy with volleyball is not meant to suggest that this is "another game", but precisely the opposite: it preserves the crucial point that the sport remains the same, while the function and the regime of participation are replaced. In volleyball, even though everyone shares the same court and the same objective, the functions are not interchangeable without loss, because each involves a distinct set of technical skills, competences and expectations. The outside hitter is trained and valued to turn the ball into a point against the block, alternating power and direction, reading the opposing block and deciding in fractions of a second under conditions of high variability. The libero, by contrast, is specialized in defense and reception, focused on the stability of [illegible] reading trajectory, [illegible] even take part in the attack as the [illegible]

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"changing places". It is a reprogramming of what counts as performance, of which technical gestures make sense and of which form of participation gives the way in which the merely formal continuity of the "same player on the roster" may coexist with the practical replacement of what was bought as a way of playing and of recognizing oneself in the enjoyment of the object. ↩

351. In a compilation of developer discussions about the *rework* of the *juggernauts*, the direct formulation appears: "Candidly, Mordekaiser is pretty 'forced'", in the context of the debate about *melee bot lanes* and about the level of *pushing* that should come from the *design* itself MOOBEAT, establishing on an empirical record the thesis that nominal restoration has the potential to include institutional migration of function and of mode of enjoyment, something that does not arise as an accident but as a policy acknowledged in the very language of the backstage. ↩

352. This is the controversy concerning the presence of short-range characters in the position of the lower lane (hence *bottom* or *bot lane*) of the geographic setting where matches take place. In this context, *melee* is the term that qualifies characters or items whose logical and mechanical functioning is based on short-range, or "hand-to-hand", combat. It is an essential attribute that defines the mode of use of the IOC and a central parameter for verifying the preservation of functional integrity after technical balancing updates. In the reference ecosystem, the *bot lane* constitutes a zone with specific coordination dynamics and competitive strategies. Systemic changes that force a change in a character's role in this lane directly impact the utility of the investment made by the consumer in assets of the respective position of enjoyment. ↩

353. In its official support in Portuguese, Riot records: "We know how frustrating it is to see your favorite Champion changing out of nowhere." RIOT GAMES.The evidentiary value is not the humor of the text. It is the admission that the substantive variation of the good is part of the normal regime of maintenance of the service, normalized despite any consequences for the experience of the consumer user. ↩

354. In the official *Xbox Game Pass* FAQ, Riot states that it is necessary to link the account and keep an active Game Pass to unlock champions RIOT GAMES.On the partnership benefits page, Riot makes explicit that "all champions may be unlocked with Game Pass", but that this works as conditioned availability ("as long as you have Game Pass"), which reinforces the administered nature of access and of the collection (Riot Games, [202- ?]e). ↩

355. "The mode of the 'selffulfilling prophecy' is the tautological mode. Reality is nothing but the model expressing itself. The same happens with the magic word, with simulation models and with advertising which, among other modes of discourse, kes use of tautological discourse. Everything in it is 'metaphor'> of one hing: the brand. The [illegible] 'Lucky Strike', 'toasted cigarette' (b

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When Hertz (‘the world’s no. 1 in car rental’) says at the end of a long advertisement: ‘Let us be logical. If you did not find something more with us, we would never have reached the position we hold... And perhaps others would be presenting this advertisement> - is this not pure tautology and proof by existence? It is repetition that everywhere gives rise to effective causality. Just as in certain laboratories the artificial synthesis of molecules is carried out, here too the ‘artificial synthesis’ of the true is performed out of the efficient word. ‘Persil-washes-whiter> is not a sentence, but the Persil discourse. This and other advertising syntagms do not explain, do not provide any meaning, are neither true nor false - but they eliminate precisely meaning and proof. They replace it with an indicative without sentences, which is a repetitive imperative. This tautology of discourse seeks, as in the magic word, to induce tautological repetition through the event. The consumer, by means of the purchase, will merely consecrate the event of the myth.“ BAUDRILLARD. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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CONCEPTS IN THIS SECTION

Hypercuratorial anticipation

On platforms, the IOC exists as an offer whose economic form depends on shared reading, public ranking and recognition within a circuit, capable of keeping value in circulation even when enjoyment shifts. From here on, the decisive axis becomes time as a governed dimension, because, in *games-as-a-service* regimes and continuous digital services, the promise of the IOC no longer behaves as a one-off delivery event and presents itself as administered continuity, in which value is sustained only by rhythms and milestones that the platform itself organizes.

Hypercuratorial anticipation designates an economic-semiological technique by which the platform produces a consumable future through continuous curation, defining what will come, what will disappear, what will return and what will be raised to the status of an "event". This production governs value itself by deciding rhythms, relevances and expectations within the ecosystem, converting calendar and presentation into instruments of legible distinction and relative measurement. It is the governance "of what is to come" as an operative part of the offer, with the administered future serving as an economic resource and as a device for steering conduct in the present.

The economic functioning of this regime can be described as the deliberate maintenance of continuous readiness. The consumer is kept in continuous readiness for "the next cycle", "the next update", "the next opportunity", that is, for the next

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in which the promise is renewed through announcements, *teasers*[356], *roadmaps*[357] and "seasons" that function as advance delivery in the sphere of recognition. Thus, the platform does not sell only the "now", since it also sells permanence oriented toward the "to come", converting expectation into an asset and turning waiting into a material component of enjoyment.

This technique can be seen clearly when the company itself publicly structures the "to come" as a communicable object, in layers and in the language of promise, forming an administered horizon of announcements, corrections and returns. Rather than appearing as the consumer's mere expectation, the future is produced as an institutional calendar and as a repertoire of signals, with release windows, schedule forecasts, teasers and updates that become, in practice, part of what sustains permanence and decision. In this register, development updates function as explicit management of the "to come", by presenting what is being prepared for the year and by condensing announcements into a sequence, with time frames, forecasts and references to longer pieces of context RIOT GAMES[358]. The promise is thus not limited to "having something new", because it is organized as direction, agenda and milestones of attention, so that the consumer's presence comes to be oriented by a series of imminences.

This serialization becomes even more tangible when the competitive design is reconfigured as a program of stages. By announcing and justifying three splits in each ranked season, the company converts the year into smaller units of participation, with rewards and tracks tied to the completion of these units RIOT GAMES[359]. As a result, enjoyment no longer refers only to access to the game and comes to depend on showing up for windows, on completing cycles and on remaining in cadences that the ecosystem makes operative so that positional value does not degrade. The institutional insistence on continuity throughout the season and on consistency in each split frames time as organizable raw material, not as a neutral background.

The government of time gains precision when temporalization is converted into [illegible] times, as in the patch notes that announce the end of one split [illegible] another with time stamps and a reference to the local time zone, turning "missing a window" into

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RIOT GAMES[360]. What theoretical discourse describes as continuous readiness here appears as practical infrastructure. The cycle expires on a set day and time and restarts at another, so that the consumer's permanence in the circuit is calibrated by an official regime of deadlines that disciplines return, intensifies urgency and reorganizes the meaning of "being up to date".

This design, in turn, does not lack institutional backing, for the contract frames instability as governable normality and recognizes as legitimate the reprogramming of content, access and rhythm by unilateral decision, including through updates and modifications that may occur with or without notice RIOT GAMES. The "consumable future" becomes economically relevant because the promise need not be fulfilled in full as stable delivery, it is enough that it remain credible and mobilizing, while the operability of the ecosystem is preserved by signals and calendars that the platform itself administers. Anticipation, in this sense, ceases to be mere persuasion and comes to function as a technique of value capture, since it turns waiting into economically oriented conduct and makes permanence a practical response to the risk of expiration.

The immediate economic effect is the replacement of a logic "of delivery" by a logic "of directed trajectory". The promise is always reframed as a succession of stages, events and returns, so that enjoyment becomes structurally incomplete without the next cycle. The future need not be realized in full; it is enough that it remain credible and mobilizing. Delivery can thus be continually postponed without appearing as failure, because the system keeps the user in motion, rewarding adherence with sufficient signals of continuity and with calibrated temporal scarcity. Hypercuratorial anticipation, in this sense, is not a *marketing* ornament, but a technique for governing time that monetizes expectation as a regular means of maintaining value.

This anticipation is economically relevant for IOCs because it sustains the conversion of expectation into present value, altering the very logic of the consumer's decision and permanence. When acquiring an immaterial good in this regime, one adheres not merely to an isolated item, but to a place within a governed flow, in which what "has

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)acity to continue to count in the ecosystem as the calendar unfolds. As a result, price, urgency and

as a component of evaluation, since the consumer's situation comes to be measured by access to cycles, by presence at temporal milestones and by permanence on a public scale that is continually updated.

When time is governed in this way, it ceases to be a background and becomes an instrument of command, because the platform comes to produce not only content, but administered instability. Predictability, which in traditional consumption functions as a minimum condition for planning and comparison, is replaced by a regime in which rhythms, returns, disappearances and reclassifications are continually reprogrammable, and this reprogramming operates as a technique for steering conduct in the present. The practical effect is not only the intensification of desire or urgency, but the compression of the space of agency of the consumer, who loses the capacity to orient conduct, anticipate consequences and stabilize legitimate expectations about the permanence of what was promised. In this key, the “to come” becomes a functional component of the immaterial good and a sensitive point of verifiability, because shifts in the calendar and in presentation may produce relevant losses without a single, easily identifiable event of non-performance.

An operational analogy helps make the concept more concrete. In an urban transit subscription plan, the value lies not only in the card acquired, but in the stability of the system that makes it usable, lines, schedules, transfers and access rules. If the operator, without formally breaching the contract, begins to change schedules frequently, eliminate transfers, reclassify routes and introduce variable validation obstacles, the consumer may continue “having access to the service”, but loses the capacity to plan trips and to foresee practical consequences, which affects the adequacy of the service as a continuous regime. In platform consumption, hypercuratorial anticipation works in a similar way, only with calendars, progression milestones, promises of return and public forms of visibility that are reprogrammed as part of governance. The point is that the strategic mutability of the to come reconfigures, in the present, the space of agency and the minimum stability of legitimate expectations that make up the value of the IOC.

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be a simple subjective expectation and becomes part of what is put into circulation, because the platform sells the promise of access to sequences, milestones and returns as if they were properties of the good itself, capable of generating socially effective recognition already in the present. In this regime, the IOC is not only what one obtains now, but also what one is authorized to expect and to claim as probable continuity within the ecosystem, which shifts the offer to a model in which the calendar and the presentation of the to come function as operative components of value.

These devices are recurring and recognizable. Seasons and *roadmaps* structure expectation as a horizon in chapters, converting continuity into meaning and relevance. Passes and progression tracks condition presence and return by tying value to goals and temporal milestones. Events and collections fabricate belonging and public memory by transforming acquisition into situated participation. Availability windows produce temporal scarcity by making access a problem of *timing*, and not only of price. Returns and relaunches recalibrate prestige by reorganizing what counts as rare, current or "back". Editions and variations establish an internal scale by grading differences and transforming nuances into legible hierarchy.

With these devices, the promise is no longer structured as closed delivery and comes to operate as a serialized promise, in which the sequence becomes the relevant economic unit. What is bought is not only a result, but the maintenance of a circuit that unfolds through stages, updates and planned returns, so that "delivering" comes to mean sustaining the operability of value over time. The offer is thus reorganized as administered continuity, because the immaterial good remains economically active insofar as it is reinscribed in cadences and milestones that reactivate expectation, renew comparison and preserve the consumer's position within the flow.

When the promise is serialized and the sequence constitutes the economic unit, adequacy comes to depend on the good remaining operative in the circuit that gives it value, that is, continuing to be recognizable, measurable and socially confirmable in the ecosystem throughout the governed cadences. In this regime, the relevant

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ured only by residual access, but by the practical preservation of

the position of enjoyment within a flow in which value and recognition are updated over time.

At this point, expectation ceases to be a psychological by-product of consumption and comes to function as produced infrastructure, because the platform fabricates, administers and distributes the state of "almost delivery" as the regular mode of existence of the promise. Anticipation does not appear as an empty interval between purchases, but as an operative track that sustains interest, an internal scale of value and social insertion while the object has not yet been realized, or even when it is never realized in a fully stable way. The ecosystem organizes waiting as a governed experience, in which signals of the future, milestones and announcements function as material elements of the circuit, keeping value active through the continually reactivated promise.

Structured as a track, it is converted into routine through cycles of participation, goals and milestones that demand recurring presence for the position to remain operative. Tasks, progressions, *checkpoints* and temporal rewards transform enjoyment into conduct, because value comes to depend on completing stages and keeping up with the rhythm imposed by the ecosystem, and not only on "having" an item. Conduct, in turn, is converted into permanence, since returning ceases to be a neutral choice and becomes a practical condition for not losing sequence, not losing access to milestones and not losing the continuity of the public recognition that sustains the acquired position.

The urgency produced by this regime is not diffuse emotion, because it operates as the administration of the risk of losing one's place in a legible hierarchy. Missing a window, failing a milestone or ignoring a cycle is not equivalent to "missing a chance", but to dropping in position in the public regime of comparison that the ecosystem updates in real time. Time is instrumentalized to convert absence into visible disadvantage, so that "being left out" means positional demotion and a socially observable loss of relevance. Decision and permanence are thus driven by structured risk, not by spontaneous affect.

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opportunity, for it transforms dated participation into a displayable mark of being current, belonging and prestige, making being up to date a comparable differential. Time, scene and position operate as one and the same mechanism, insofar as the curation of the to come defines what matters, public exposure turns this into a criterion of hierarchy and the consumer's position remains operative only while it receives continuous social validation. Anticipation, here, is not an internal rhythm of the service, but a mechanism of exposed stratification.

In this key, governed time takes the form of a continuous present produced by flow, in which novelties and repositionings replace one another without allowing interpretive rest. What matters is always the now that expires, and the continuity of the experience rests less on the stability of the object than on the obligation to keep up with what has been made relevant. Attention is maintained by recurrence, and permanence is normalized as a practical response to an environment that ceaselessly redefines what must be seen, compared and pursued.

Likewise, signals of the future function as symbolic equivalences sufficient to sustain adherence and conduct, even if enjoyment is unstable, degradable or reconfigurable. Promises of return, of appreciation, of an imminent event or of a next phase operate as anticipated delivery on the plane of social validity, for they keep the circuit active through expectation and commensurability even when the concrete referent has not yet been realized or has already been altered. The ecosystem comes to operate through promises that are worth something in themselves in everyday practice, insofar as the announced to come becomes part of what is bought, of what is justified and of what is accepted as continuity of value.

When the offer takes the form of a temporal program, the link between promise and delivery can no longer be verified by simple inspection, because it comes to depend on continuous decisions that do not present themselves as fixed “content” of the item. Curation of rhythm, selection of what appears and what disappears, relevance criteria, regimes of visibility, comparison parameters and repositioning rules operate as structural layers of delivery and can be recalibrated without an identifiable event

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therefore, is neither communication noise nor a lack of attention on the consumer's part: it is the effect

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is at stake is the maintenance of the conditions that keep the promise holding over time.

In this scenario, trust migrates from the item to the ecosystem that makes it operative, because what matters is not only access, but the continuity of the public validity of the acquired position. The expectation of stability comes to fall on the platform as the private guarantor of the circuit: the instance that will preserve cadences, relevances and the parameters of measurement and endorsement by which the acquisition made sense. Delivery, in practice, is experienced as the institutional stability of the environment, and not as the objective permanence of an isolated object, which makes the consumer dependent on the continuous governance of the very system that defines what has value, what appears and what continues to count as "the same".

The teleology of extraction is reinforced because hypercuratorial anticipation monetizes recurrence: it converts time and attention into the raw material of value and turns permanence into an economic input. By serializing the promise and treating the to come as an operative component of the offer, the platform shifts the center of monetization to repetition, return and the maintenance of presence in cadences that it administers itself. Consumption ceases to be an event and becomes a regime, in which the continuous governance of the ecosystem is the condition for extraction to be effective.

The sensitive point is that this same ecosystem may preserve labels, signals and public commensurability while shifting, from within, the real conditions of the position of enjoyment. Anticipation facilitates this exchange because the future promise functions as a buffer: the announced to come takes the place of the present loss and sustains the sense of continuity even when restrictions, practical effects, modes of access or performance conditions change in a relevant way. Thus, restoration may operate as a socially legible nominal equivalence, preserving prestige, belonging and comparability, while the experience that justified that position is degraded or reconfigured without a clear marker of rupture.

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problem ceases to be only the content of the item and comes to be the demonstrability of the link between promise and enjoyment in a reconfigurable environment. The consequence is that the relevant exposure is not only informational, for it falls on the possibility of proving what sustained the promise at the moment of acquisition and what was altered in the experience over time. This is what requires naming and delimiting semiotic vulnerability as a structural loss of verifiability when experience and value are produced by regimes of signs, of scene and of calendar unilaterally controlled by the platform.

NOTES

356. They designate short pieces of anticipatory communication, generally fragmentary or enigmatic, aimed at arousing curiosity and building expectation around future releases or updates. In the IOC regime, they function as instruments of "pre-consumption anticipation": organizing the consumer's horizon of desire and preparing their economic conduct before the promised utility is actually made available. ↩

357. "*Roadmap*" is an expression used in the sense of public (or semi-public) planning of the evolution of the service. It is the narrative of priorities, deliveries and future milestones, used both for internal coordination and for managing external expectations. Translations such as "roteiro" or "plano" are more generic and do not capture the communicational character typical of the term in the context of platforms (promise, signaling of direction, justification of delays and reorganizations). Therefore, "*roadmap*" is used because it is the standard label of the sector's own informational regime. ↩

358. In a development communication about the 2024 Season, Riot presents the very idea of the future as an object of editorial management, by declaring that it will bring together people "from all of Riot" to talk about what is being prepared for 2024 and by promising a "brief summary" with announcements, in addition to referring the reader to longer texts. The form matters because it organizes the "to come" as an official sequence of items, offering direction and continuity as part of the value of remaining attentive to the ecosystem RIOT GAMES. ↩

359. In the development text about ranked rewards, the temporal cut appears as the avowed architecture of the year, by stating that there are three splits in each ranked season and by linking the incentive to keep playing to a consistency distributed across these splits. The practical consequence is that positional progress is coupled to smaller cycles and that absence is converted into lost opportunity within a previously delimited window RIOT GAMES. ↩

360. The notes for Patch 14.18 make explicit the executable character of the window by fixing the end and beginning of the splits with date and time, converting the split into an objective temporal boundary. In this logic, time ceases to be mere context and comes to operate as an institutionally marked condition of enjoyment, for the cadence imposes itself as an official calendar of expiration and restart RIOT GAMES. ↩

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CONCEPTS IN THIS SECTION

Semiotic vulnerability

Under the regime described, the good is not sustained as an isolated “thing”, but as a position of enjoyment dependent on intelligibility, comparison and recognition in a governed ecosystem. The structural consequence of the regime described is to observe consumption through the prism of delivery and proof, for the relevant exposure takes the form of a loss of verifiability of the link between promise and enjoyment in a governed ecosystem. In this environment, adjustments of visibility, relevance criteria, calendar rhythms and signals of prestige may alter, without an evident marker, what sustains the position of enjoyment as valuable. The center of the problem is the practical difficulty of demonstrating what was promised as position and what remained as delivery when the conditions of value are administered as a flow.

Semiotic vulnerability designates the consumer's structural exposure to the platform's unilateral control of the conditions that make the promise hold as delivery when the good is a position of enjoyment and not an autonomous thing. It appears when intelligibility, visibility, equivalence and temporal cadence cease to be background and come to make up the very mode of existence of the object, so that value depends on codes of reading, on public hierarchies, on markers of recognition and on rhythms that the environment continually administers. For this reason, the core lies not in ignorance of a clause or in an information deficit, but in the loss of the

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notice and without a visible rupture of

Nor is this vulnerability to be confused with a moral judgment of the consumer who "did not read" or "did not understand", because the problem is not inattention to a text, but asymmetry over the bases that make the promise operative and over the possibility of reconstructing them with proof. Nor is it reducible to a psychologization of behavior, as if everything were explained by impulse, desire or "addiction", since permanence is produced by an architecture of comparison and by the governance of time, and not by mere spontaneous affect. Nor is it an ornamental culturalism that treats signs as makeup over a neutral substance, because, in immaterial consumption, the symbolic is a material part of the offer when it defines recognition, commensurability and socially legible position. The point, in all cases, is structural, for it concerns the governance of the regime of signs, of scene and of time as a condition of value and as the source of a specific loss of verifiability.

When the good is positional, the everyday confirmation of delivery tends to shift from the promise-enjoyment link to a promise-signal link, because what the ecosystem makes visible and circulable as recognition comes to function as a practical criterion of fulfillment. Markers of rarity, belonging, prestige, being current, participation in an event and other labels stabilize the position as a legible and comparable difference. These signals may remain intact even when the relevant enjoyment has been degraded or reconfigured, maintaining the public appearance of continuity and making the loss harder to convert into rupture. This shift is the heart of the problem, because it transforms the conflict into a dispute about criteria and equivalences, and not only about "the item" itself.

Semiotic vulnerability does not result from an isolated asymmetry, for it derives from a matrix of layers that combine in the same ecosystem and reinforce the shift from promise-enjoyment to promise-signal. There is an asymmetry of meaning, linked to control over codes of reading, categories and classifications that define what counts as relevant difference. There is an asymmetry of visibility, linked to control over the field of what appears, what is highlighted and what becomes comparable as prestige. There is a temporal asymmetry, linked to control over cadences, windows and cycles [illegible] end on continuous presence. And there is an evidentiary

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[illegible] control over records, metrics, versions and internal criteria that determine what can be demonstrated [illegible]

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These layers couple together as a mechanism and produce a structural loss of verifiability: the central problem is not only knowing, but being able to prove.

The layer of meaning operates when the platform governs the intelligibility of the good without needing to alter the item technically in any overt way, because reclassifying, recategorizing, renaming attributes and reordering repertoires alters what the object "is" for the ecosystem. An IOC may remain accessible and, even so, lose the status that made it economically operative. The rare becomes common, the distinctive becomes ordinary, the "event" item becomes noise, the signal of belonging becomes indifferent, the difference in *status* that justifies the acquisition is lost over an undisclosed period and without any notice. This kind of shift is not peripheral, because, in immaterial consumption, the identity of the good is partly constituted by this shared grammar that allows recognition, comparison and validation. When the platform controls this grammar and recalibrates it unilaterally, it also controls the semantic stability of the acquired position. For this reason, it is able to produce relevant losses without producing a clear event of "breakage" of the item.

An empirical case that makes this semantic instability explicit is the controversy surrounding the *Soul Fighter Samira skin*, released in the *Ultimate tier* in 2023[361]. The legally relevant point is not to discuss "taste" or to turn community criticism into a measure of truth, but to observe how the ecosystem itself comes to depend on a unilateral redefinition of what the sign of the *tier* promises. When the platform treats the *Ultimate* category as a label whose definition can be rewritten over time by more open criteria, it alters, through language and classification, what counts as delivery, without needing to admit any non-fulfillment of what was offered[362].

The consumer, up to that point, was still faced with the label and the catalog's top price, but felt the loss of a stable standard of auditability of the promised content, because comparison ceases to rest on a historically verifiable technical repertoire and comes to depend on the institutional framing of what would be "special" for that champion. The practical effect is to shift verification outside the point of purchase and outside the supplier's self-description, producing a regime in which proof of the

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costly, precisely because what was sold as a category comes to operate as an elastic sign administered by the supplier itself[363].

The layer of visibility reinforces the mechanism because positional value depends on what can be exposed, compared and confirmed as relevant difference in a public circuit. The platform does not merely present an offer; it organizes the field of comparison by defining showcases, highlights, apparent metrics, orderings and display patterns that turn reputation and social proof into value infrastructure. Enjoyment, then, includes occupying a recognizable place before others, and the good also derives its value from the way it lets itself be seen, measured and validated. For this reason, permanence ceases to be a behavioral detail and comes to function as a practical condition for maintaining value: without return and presence in the flow, the position falls out of date, loses legibility and loses social effectiveness. Even without any technical alteration to the item, the mere reconfiguration of what appears, of how it appears and of what counts as relevant can demote or elevate the IOC, shifting the value of the position without necessarily generating a clear marker of non-performance.

The layer of equivalence manifests itself when the ecosystem is able to preserve the appearance of fulfillment through signals that keep the good commensurable and recognizable, even though the relevant enjoyment has been reconfigured from within. The platform preserves the label, class, frame of rarity, form of display and comparative place of the item, ensuring that it continues to "read" as equivalent in the internal hierarchies, while functions, restrictions, modes of access, performance conditions and practical effects may be altered, degraded or emptied. Value remains operative because the circuit of recognition keeps working. The good remains validatable as difference, even if the experience that justified that difference has changed. This does not depend on individual psychological deception, since it is a mode of operation in which equivalence is produced by internal criteria and by stable signals, capable of sustaining public continuity without necessarily preserving the position of enjoyment in its relevant elements.

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typical of *games-as-a-service*. Seasons, passes, tracks, events, roadmaps, availability windows, returns and relaunches are not "extra content", they are devices that organize relevance and access, convert expectation into present value and turn "being up to date" into a practical criterion of belonging and being current. Permanence becomes a requirement because the position remains operative only if the consumer keeps up with the cadences and milestones that the ecosystem imposes, and because the experience itself is anchored in continuous decisions about what appears, what disappears and what returns. This intensifies semiotic vulnerability by multiplying barely legible points of recalibration and by shifting delivery to a field of administered temporal choices, in which "maintaining value" depends on the rhythm and the framing that the platform governs.

When these layers operate together, permanence and recurrence cease to be a "side effect" attributable to individual habit and become the very economic form of immaterial consumption, because the position is worth something only while it remains validated in the ecosystem. Return becomes an input because the environment transforms recognition into a recurring task, transforms being current into a condition of belonging and transforms absence into a risk of visible demotion, so that repeating and remaining are not psychological excesses, but practical requirements for preserving socially operative value. The teleology of extraction stabilizes precisely when consumption ceases to be an episode and becomes a regime in which meaning, visibility, equivalence and time are governed to produce continuity as necessity, and not as preference.

The state of risk becomes palpable when the platform unilaterally alters the attributes that sustain a sign of value already incorporated as identity and as social position. The *nerf* is a prime example in this scenario, since it is not merely a neutral technical adjustment, but a reconfiguration of what counts as power, relevance and prestige within the ecosystem, carried out by whoever controls the "physics of the world" in the form of code. When an item, an ability, a character, a category or a status marker is rescaled, demoted or redefined, it is not only a performance that is [illegible] What is altered is the public meaning of the investment and, in many cases, [illegible]y of the acquired position

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Symbolic debasement is relevant because it produces loss through mutation of the internal rule of value, and not through an overt functional failure. The consumer may continue to have "access" to the same nominal item, the same inventory and the same ownership marker, while losing, from within, the practical effects and the symbolic effects that made that position hold as delivery. Contestation becomes difficult because the platform does not break the object. It goes further, redefining the very world in which the object holds value. In evidentiary terms, rupture ceases to be an event and becomes a recalibration, and it is precisely this form of loss that demands parameters of traceability and of substantive equivalence, to prevent the mutation of the sign from functioning as a normalized path of demotion without demonstrable consequence.

Under these premises, the notion of adequacy cannot be decided by the binary "works/does not work", because it is perfectly possible to maintain technical access and, even so, lose what made the position economically operative. If the relevant unit is position, circuit and sequence, adequate delivery depends on the good remaining recognizable, comparable and validatable on the terms that sustained its value in the ecosystem, and not only on continuing to be "present" as a nominal item in the inventory. Reading the good as a closed unit fails because it ignores that, in immaterial consumption, a decisive part of value is produced by governed conditions of intelligibility, visibility and cadence, which can be recalibrated without an identifiable event of rupture. For this reason, minimum functioning does not serve as a sufficient yardstick: it confuses technical continuity with preservation of the position of enjoyment that made the acquisition hold as delivery.

A typical risk of this regime is merely nominal restoration, in which label, category and public markers of continuity are preserved, while the conditions that constituted the position of enjoyment are altered from within. The platform keeps the good legible for the showcase and for social comparison, with declared rarity, frame of prestige, belonging and internal commensurability, and, at the same time, recalibrates access, restrictions, effects, performance conditions, modes of display and relevance [illegible] the acquired experience. Rupture is neutralized because the [illegible] continues to produce social proofs of delivery, even when the relevant content of enjoyment has bee

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absorbed as a normal adjustment of the ecosystem, for the continuity of the signal takes the place of the continuity of the position, which makes it difficult to transform internal reconfiguration into demonstrable non-performance.

For this reason, the relevant object of proof also changes. It is not enough to demonstrate that "the item exists" or that "access remains". What must be capable of reconstruction are the conditions that sustained the promise at the moment of acquisition and that constituted the position of enjoyment as operative in the ecosystem, that is, which functions, restrictions, modes of access and parameters of recognition made that position valuable, comparable and validatable. The evidence required ceases to be mere inspection of the current state of the good and becomes reconstruction of the link: which classifications, metrics, visibility criteria, cadences, rules and equivalences were in force when the promise was assumed and how they were altered afterward. Without this change of focus, the dispute remains trapped on the surface of "appearing-as-delivery", precisely where nominal continuity and public signals are most efficient at concealing relevant losses in enjoyment.

Auditability, in this context, is the minimum requirement of verifiability in a market in which delivery depends on opaque and adjustable layers. It means the possibility of reconstructing, in a traceable way, the conditions that made the promise hold as delivery at the moment of acquisition and the relevant alterations that affected those conditions over time, without depending on the self-validation produced by the platform itself. What must leave a trace is not a generic "trade secret", but what is material to the acquired position of enjoyment, such as criteria for classifying and reading the item, parameters that organize visibility and comparison, rules and metrics that sustain recognition and belonging, and temporal decisions that shape access, cadence and relevance.

Without this minimum, the dispute tends to be resolved by surface and impression, because the continuity of signals functions as self-justifying proof while the consumer cannot demonstrate what changed, by which criteria and with what effect on the acquired position. Auditability, therefore, enters not as a regulatory luxury or

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tracing is not enough in itself: a criterion is also needed to judge whether what was preserved after the alteration corresponds, in fact, to the relevant value of the position, and it is precisely there that the requirement of functional value equivalence imposes itself.

Functional value equivalence is the criterion that prevents restoration from being reduced to continuity of name, label, declared rarity or public symptoms of "sameness" when what was acquired was a position of enjoyment. To be equivalent, here, does not mean to appear equivalent for the showcase, but to preserve, in a substantive way, the relevant elements that made that position hold as delivery, including practical functions, applicable restrictions, modes of access, performance conditions and effects that structured the acquired experience. Since, in the IOC, part of the value is materially produced by recognition and commensurability in the ecosystem, the "functional" also covers this component only insofar as it was an operative condition of the position bought, that is, that without which the good ceases to function as recognizable difference on the relevant terms of the acquisition. This does not authorize turning any symbolic value into an indeterminate legal obligation; on the contrary, it requires isolating what was relevant to that specific position and assessing whether the restoration preserved that core or merely maintained signals of continuity while shifting, from within, what mattered. The effect of the parameter is to separate legitimate adjustment from opportunistic substitution: if the system preserves appearance and label, but substantially demotes functions, restrictions, access, performance or the social operability that defined the position, there was nominal restoration and not preservation of delivery. Recomposition thus ceases to be arbitrated by the platform as "equivalent by declaration" and becomes controllable by a substantive yardstick, compatible with a reconfigurable market, but hostile to the zone of impunity of the sign.

These parameters do not target the symbolic, because the symbolic has already been recognized as a material part of the mode of existence of the IOC as a position of enjoyment in the ecosystem. The problem appears when the continuity of signals [illegible] a substitute for substantive preservation and as an evidentiary [illegible]ppearing-as-delivery" to absorb internal demotions as if they were simple adjustments. Auditability [illegible]

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traceability of the conditions that sustain the promise and of the alterations that reconfigure it, reducing dependence on evidence produced by the circuit itself. Functional value equivalence confronts the same risk in content, by requiring that restoration preserve, in a verifiable way, the relevant elements of the acquired position, instead of maintaining only label and public commensurability. The result is not to deny signs, but to reduce the space in which the continuity of the signal replaces proof of delivery when the platform preserves appearance and shifts, from within, what made delivery hold.

Taken together, the mechanism closes as a single gear: administered semiosis makes the good intelligible and desirable as a position; hierarchized visibility turns comparison and social proof into value infrastructure; equivalence by signals allows the promise to remain operative even when the relevant enjoyment shifts; and governed time serializes the promise, making the to come an economic resource that converts permanence into a requirement. In this scenario, delivery is not reduced to technical access, and the conflict tends to concentrate on the verifiability of the link between promise and enjoyment, precisely because the environment can preserve signals of continuity while recalibrating the criteria and conditions that sustained the value of the acquired position.

A privileged way of visualizing this loss of verifiability is the *nerf*, understood as the technically deliberate weakening of attributes, abilities or items, by means of a patch, to make something less powerful in the practical functioning of the game LEAGUE OF LEGENDS WIKI[364]. The operation appears as an "adjustment", but its relevant consequence, from the perspective of the IOC, is the practical reclassification of what counts as power, efficiency and prestige. The platform preserves access and the continuity of the good's label, while demoting, from within, what made the position count as delivery, which shifts the core of enjoyment without necessarily producing a clear external marker that would allow the consumer to reconstruct the promise-enjoyment link.

This effect is neither collateral nor exceptional, for the contractual regime of the

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qualified as a limited and revocable license, setting aside the language of ownership and reinforcing that permanence of access does not mean substantive preservation of the value enjoyed RIOT GAMES[366]. The fit is methodologically revealing, since the *nerf* is not merely a numerical alteration, but a technique for administering the meaning of value that preserves the appearance of continuity while altering the functional content of the position, making it harder to demonstrate, in verifiable terms, what was actually lost.

The public language of balancing, in turn, tends to operate as a legitimizing narrative for this governance by continuous modulation. In the patch notes, the "nerfs" are presented as necessary corrections to keep the environment "healthy" and to stabilize experiences, while at the same time describing concrete reductions of power that reconfigure what counts as advantage, viability and performance RIOT GAMES[367]. The discourse produces intelligibility for the alteration and offers technical justification for the loss, but does not resolve the central problem. The question that matters is not whether the game can be adjusted, but under what conditions the platform can treat as "compatible with the promise" a substantive demotion of delivery[368], when the very criterion of what counts as delivery remains under unilateral administration and with traces whose form and sufficiency are also defined by the same authority.

In this key, semiotic vulnerability ceases to look like a problem of "consumer sensitivity" and appears as a structural risk of a market in which equivalence can be proclaimed by signals. The *nerf* is the limit case because it shows, with precision, how the continuity of name and access can function as self-justifying proof[369], while the relevant delivery shifts in what the environment counts as power and utility.

Semiotic vulnerability thus names this type of structural loss of demonstrability that occurs when meaning, scene, equivalence and time materially integrate what is put into circulation and remain under the unilateral administration of the ecosystem. The question ceases to be whether changes are possible and becomes under what conditions they can be treated as compatible with the promise and with the relevant value. In reconfigurable markets, altering the catalog, , redesigning cycle mode of governance, but this normalit

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continuity of appearance while the core of the position of enjoyment is shifted from within.

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361. In /dev: State of Skins 2023, when announcing Samira's *Ultimate*, Riot began to state that the definition of *Ultimate* "has changed over the years" and that the goal becomes something like *best-in-class* and "truly special" for the champion, also admitting that the project had started as a *Legendary* and only later was elevated to *Ultimate*. The interest of the passage lies in the shift of the criterion of the *tier* to a standard that is less traceable and less auditable at the act of purchase, since the platform itself claims authority to rewrite the meaning of the label that organizes the consumer's legitimate expectation RIOT GAMES. ↩

362. The public reaction to the case was structured precisely as a dispute over equivalence of delivery and over stability of meaning of the *tier*. A relevant part of the community criticism described the item as closer to a "Legendary+" than to an *Ultimate* by the historical standard, and specialized coverage recorded the central question as being whether the content would justify the framing and the price of an *Ultimate*. This matters less as "forum opinion" and more as a symptom that, when the definition of the tier becomes elastic, practical proof comes to depend on comparisons, *showcases* and external auditing of what was delivered in game HO · MCINTYRE. ↩

363. The institutional feedback cycle on the PBE itself shows how the platform tends to administer controversy through incremental adjustments and calibration of presentation, without acknowledging a structural deficit of equivalence of the tier. Thus, when conflict sets in on the plane of the sign, the supplier is still able to sustain the appearance of performance by maintaining the label and through public signals of "response", while the discussion about what "delivery" would be becomes, itself, governed matter BAGEL_SOCKS. ↩

364. On the technical meaning of the term, the terminology entry records: "Nerf (Patch) [is] an official modification to the game which makes something less powerful; opposite of a buff." LEAGUE OF LEGENDS WIKI. The formulation is useful because it shifts the *nerf* from a subjective impression to an operative category of the ecosystem itself, linked to an official modification that makes something "less powerful", that is, that demotes power in comparable and measurable terms in the environment. As evidence of institutional use of the vocabulary, the patch notes mobilize expressions of weakening and descriptions of reduction of power as regular justifications of [illegible] a recent example, one reads: "this nerf should ensure that her power [illegible] IOT GAMES. The not[illegible] but because of the structure of the [illegible]

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legitimate instrument, attributes to it a corrective purpose and, with this, produces a layer of meaning that naturalizes the internal reconfiguration of value, regardless of its practical effects, opening room for the platform to use the same narrative for multiple purposes without allowing any questioning of its own assessment of the sustainability of the conditions of enjoyment in the environment. ↩

365. The contract makes explicit the power of unilateral modulation of the service, including with the verb "nerf". From this perspective, the *nerf* is not seen as a mere contingent event, but becomes part of the core of governance foreseen as the normality of the service, including over assets that, from the consumer's point of view, may have been acquired under symbolic promises of power and performance. ↩

366. The qualification of virtual content as a limited license reinforces the structural asymmetry of the relationship and helps explain why restoration tends to be defended as "preservation of access" even when power has been demoted. The text is explicit: "what we are really offering you is a license and a personal right [...] revocable, limited" RIOT GAMES. Mentioning the term does not serve to legitimize closing the analysis in favor of the platform, but to make visible the type of language that, in case of conflict, tries to absorb substantive losses as if they were internal variations without legal relevance, which aggravates the loss of verifiability of the promise-enjoyment link. ↩

367. The public frame of balancing also leaves traces of how the platform understands the problem and which "levers" it is willing to pull. In an institutional response on the subject, it is stated that, as release approaches, "they'll discuss the different levers they're willing to pull if a champion releases too strong or too weak." RIOT GAMES. The statement is valuable because it reveals balancing as a continuous practice of intervention through levers and not as a final state of equivalence, which resonates with the idea of governance by serial modulation and with the point that "stability" is, at most, a localized and negotiated objective, not a commitment verifiable by the consumer. ↩

368. There are, moreover, public indications that certain champion designs generate cycles of intervention that make the very ideal of balance in the strong sense unstable, reinforcing the reading of balancing as management of variability, and not as preservation of equivalence. In coverage of a public statement attributed to the *designer* responsible for the champion *Zeri*, it is recorded: "Zeri is one of his greatest failures as a designer" and that she had been "nerfed into the ground" to avoid dominance in competitive play FISHER. The statement does not present itself, in any instance, as conclusive proof. However, it shows that representatives of the ecosystem acknowledge, at least in certain cases, the structural tension between "working" at various levels of play and "remaining balanced" without interventions that remote power for the user. ↩

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369. The hypothesis that balancing interventions may keep the door open to rent-seeking manipulation associated with the sale of cosmetics need not be treated as an accusation, but as a structural risk consistent with a model in which the environment is reconfigurable by design and the justifications for adjustment are produced by the very authority that alters the internal rule of value. Evidence that the suspicion is recurrent and even mobilizes attempts at empirical testing appears in a community analysis that declares: “To decide whether a champion got buffed when he gets a new skin, I will take the difference between the winrate 20 days before and 20 days after the patch got released.” GIANTZORG. The reference, shows that the very mode of governance by patches, added to the information asymmetry and to the absence of a clear duty of substantial equivalence, creates a zone in which suspicions of commercial optimization can thrive, precisely because the consumer does not have, as a rule, direct means to reconstruct and contest, with sufficient verifiability, the relationship between the promise of enjoyment and periodic reconfigurations of functional value. ↩

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So far, enjoyment has appeared as a position sustained by signs, visibility and equivalences that exist only while the environment keeps them operative. Under this condition, acquisition depends on an ecosystem that supplies intelligibility, commensurability and the possibility of sanction, while at the same time defining, in practice, access, permanence and hierarchies. For this reason, the description of the IOC, when it seeks to support legal control, cannot remain confined to the vocabulary of price or to the psychological repertoire of preference. The core is institutional, because the platform administers the conditions of enjoyment and, in so doing, stabilizes value as a recognizable position, even when the relevant experience is reconfigured over time.

The aim is neither to build a general constitutional theory of platforms nor to transpose categories of public power automatically onto private relations, but to delimit a minimal analytical framework in which the platform is read as an instance of practical governance, with enough economic and informational power to organize access, permanence and participation at scale.

When the offer materializes as ecosystem-dependent enjoyment and value is anchored in hierarchies, criteria and sanctions produced by the environment itself, private power ceases to be merely a competitive fact and comes to act as a structural component of vulnerability, so that consumer protection must engage with limits and duties proportional to the intensity of the control exercised, without dissolving the problem into abstractions and without reducing the platform to the classic figure of the supplier indifferent to how the very market it administers operates.

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previously distributed across society, replacing public criteria of circulation and

recognition with private rules of access, visibility and permanence. The formula according to which the platform "occupies the place of the collectivity without authorization" is treated as a descriptive problem to be stabilized in verifiable institutional terms, lest it remain an intuition without legal consequence.

This hypothesis must be stabilized in controllable institutional language. What matters is to identify which operations make up this occupation, what effects it produces on the enjoyment position and what asymmetries it creates between the consumer and the administrator of the ecosystem, so as to allow conduct, duties and restoration to be assessed without relying on impressionistic readings of the conflict. To this end, it must be recognized that, in the IOC regime, the platform does not merely intermediate a bilateral relationship between supplier and acquirer. It organizes, simultaneously, the normative content of the environment and the mechanisms for enforcing it.

First, it defines and updates internal rules that structure access and permanence, establishing permissions, incentives and punishments through moderation, functional restrictions or exclusions. Second, it administers visibility and reputation as economically relevant dimensions, through metrics, rankings, signals of prestige and instruments of public comparison that produce hierarchies and modulate the experience. Third, it exercises continuous curation of what appears, what disappears and what returns, controlling the horizon of expectation and reorganizing the temporality of consumption. Finally, it applies sanctions and restrictions whose effects go beyond the loss of a one-off utility, degrading symbolic position, interrupting continuity of enjoyment and reconfiguring the economic meaning of the IOC, in a register close to functional and identity dispossession.

Describing these powers requires no assumption of subjective intent, because what is at stake is a mode of operation in which control is exercised through architecture and through information. In digital environments, the relevant normativity does not manifest itself only as an explicit command, but as a configuration of choices, rhythms, frictions and incentives that makes certain conduct more likely and other , while defining the criteria by which the environment itself will sanction the user.

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decisions, moderation parameters, recommendation patterns and access rules that operate as silent infrastructure, so that coercion need not present itself as outright prohibition in order to produce obedience, predictability and conformity.

As a result, the consumer faces not merely a contract, but an integrated set of devices that guide the experience and stabilize hierarchies while keeping the actual operating criteria opaque, creating a structural asymmetry between those who live in the ecosystem and those who control the variables that define its conditions of legibility, permanence and value.

It is in this strict sense that the expression “without authorization” should be understood, not as a generic political judgment, but as the finding that the platform performs functions of social ordering without holding a public mandate and without submitting, to an equivalent degree, to demands of institutional reciprocity. The relevant absence is not that of formal delegation, but that of minimum guarantees that function as counterweights of legitimacy, such as intelligible disclosure of criteria, the possibility of verification, decisional coherence, accessible reasoning and effective avenues of challenge.

When the environment is governed by mutable rules, selective curation and technical *enforcement*, the user is subjected to decisions that can alter their enjoyment position and degrade the value of the IOC without the grounds of the act being transparent, without its proportionality being open to examination and without review being practicable on terms commensurate with the economic and identity relevance of what is at stake. Consequently, private power consolidates itself as a power to administer symbolic and economic destinies at scale, while preserving a functional opacity that prevents the consumer from turning the conflict into an object of rational control, shifting the experience of enjoyment into a regime of institutional dependence not recognized as such.

Once this structure is recognized, the consequence for consumer law cannot be framed as a mere rhetorical expansion of protection, but as an adjustment of lens

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the way the offer actually materializes. If the IOC exists as a

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protection cannot settle for reading th

content, because the object is actually shaped by rules, architecture and continuous operations that go beyond the documentary form and can unilaterally alter the continuity of supply.

The question, therefore, is not merely to identify isolated abusive clauses, but to understand that the environment itself functions as a mechanism that produces vulnerability, which makes duties proportional to the power exercised relevant. The task, then, is to prepare a conceptual basis that allows transparency, stability and restoration to be demanded on terms compatible with the regime of permanence and with the institutional density of the platform, without yet anticipating the dogmatic reconstruction developed later, but establishing that protection must reach the architectural plane on which enjoyment becomes possible and on which risk is actually administered.

To accomplish this task without generalizations, the discussion that follows will draw on references with delimited functions, as instruments of description and conceptual anchoring. With Julie E. Cohen , the text delimits the specific form of power that stabilizes when information and architecture become means of practical governance, which makes it possible to treat choices, patterns and infrastructures as normative mechanisms that organize conduct and distribute possibilities. Warren and Brandeis serve as a methodological model of legal reconstruction in the face of technical changes that reconfigure exposure and vulnerability, indicating that changes in the material conditions of social life require categories to be reinterpreted without moralizing the phenomenon. Byung-Chul Han is used as a lens to describe adherence and self-adjustment through performance, comparison and expectation, characterizing subjection as a structural effect of incentives and of the management of symbolic risk rather than attributing it to individual frailties. Eros Grau provides the conceptual anchor that avoids both the liberal neutralization of private normativity and its hasty transposition into the category of the State, making it possible to describe it as presupposed law endowed with collective effects and, therefore, requiring control criteria commensurate with its density.

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is to establish a conceptual key according to which the platform, in the US Regime, operates as a privat

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administers not only conditions of exchange but conditions of enjoyment and recognition in a governed environment. This key moves the debate away from the simplifying opposition between freedom of contract and state intervention toward a plane on which internal rules, design, curation and *enforcement* constitute the economic object itself and distribute risks of loss, exclusion and degradation of value.

This prepares the transition to operational criteria that will make it possible to discuss proportional duties, transparency standards and restoration mechanisms without relying on merely formal categories, because the relevant materiality of the IOC will be understood as functional and ecosystemic materiality, and not as mere abstract ownership or one-off performance.

Governance by architecture is taken as the starting point to show how the platform constitutes a normative environment in which choices are configured and in which informational domination is carried out by administering the variables that make enjoyment legible, comparable and sanctionable. This form of power is not confined to the economic dimension, since the technical reorganization of the conditions of exposure, participation and permanence calls for a pattern of legal reconstruction capable of dealing with new forms of vulnerability at scale, without this implying that the platform becomes a State.

In the same vein, the consumer's subjection is treated as a structural effect of mechanisms of performance, comparison and self-adjustment, when the ecosystem turns recognition into a condition of value and converts the management of symbolic risk into an instrument for shaping conduct, so that identity captivity emerges as an institutional outcome and not as an individual pathology.

The analysis then turns to the framing of private rules and *enforcement* as practical normativity, showing how the *Lex Plataformae* operates as the effective law of the environment and administers access, reputation, curation and sanctions with effects of exclusion and functional dispossession. This path closes with the figure of the consumer-citizen[370] subjected to this private normativity, making it visible that ı, when dealing with the IOC, must engage with the institutional governance and pr

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turn the description of power into an object controllable by criteria of transparency, stability and restoration.

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370. The expression “consumer-citizen” is used in a strictly analytical and functional sense. It designates the holder of an IOC, an immaterial product whose utility is realized as permanence in an ecosystem rather than as an isolated delivery. The “citizen” component does not refer to classic political-constitutional status or to nationality, but describes the practical conditions of participation, belonging and continuity within an environment governed by private rules and technical sanctions (Lex Plataformae). The point is to recognize that, in continuous digital consumption, the subject is subject to a private normative order that administers their visibility, reputation and capacity to act, making the enjoyment of the product inseparable from their position as a governed member of the ecosystem. ↩

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In light of the foregoing, the problem ceases to be only how signs, visibility and social validation sustain value in continuous immaterial consumption and becomes how the ecosystem is administered. It requires describing governance by architecture and by information, that is, the way in which the platform organizes the consumer's field of action without resorting to explicit commands, operating through *design* patterns, access flows, classification criteria and modulation instruments that make certain conducts more likely and others more costly.

Instead of reducing these dynamics to individual preferences or to failures of contractual transparency, what matters is to describe how choices are configured and how the regime of intelligibility of the environment is controlled, because the public legibility of the ecosystem and the support of the position of enjoyment that economically constitutes the IOC depend on this control. “Information”, here, is not to be confused with the duty to inform of the Consumer Protection Code, understood as the obligation to disclose data on price, characteristics, risks, conditions and limitations of the supply.

What is at stake is informational power exercised through classification, ranking, curation and production of legibility of the environment, by which the platform defines what will be visible, comparable, recognizable and sanctionable and, with this, structures the practical conditions of enjoyment and permanence. Even if there are formal openings of information, the asymmetry may remain, because the relevant core is control over the operational criteria that organize opportunities and consequences. For this reason, informational domination designates government through data and through categories, and not mere insufficiency of documentary

Julie E. Cohen[371] (2019) examines how patterns of entitlement, disentitlement[372] and institutional change are reconfigured around data, platforms and intellectual property regimes, as well as how courts, regulation and transnational governance come to operate under a rationality that tends to protect the interests of informational capital and to hinder countermovements of social protection. The work offers a political economy framework of informational power that makes it possible to describe the platform as an instance that combines information, architecture and law to organize conduct, distribute opportunities and consolidate structural asymmetries, providing a conceptual basis for treating informational domination as a material component of vulnerability in IOC regimes.

The operational description of governance by architecture requires treating protocols, standards and informational devices as practical means of ordering, because the platform defines the space in which activities become possible and legible. Along these lines, modularity is not a simple engineering choice, for it administers the tension between diversity of uses and ease of operation, expanding certain flexibilities and blocking others COHEN. When informational protocols and networked devices reshape spaces and practices, they encode dependencies and habits of behavior and stabilize paths as if they were natural COHEN. With this, architecture and information operate as infrastructure of everyday governance, creating tracks of conduct and limiting alternatives silently, without this being confused with formal law or with state authority, but still with normative effects dense enough to reorganize the possibilities of acting within the ecosystem.

Governance by architecture, for this scope, designates the way in which design and infrastructure decisions operate as the practical grammar of the environment, configuring the consumer's field of action before any explicit command. *Defaults*, standard paths and interface layers define ordinary enjoyment, while selective frictions make deviations costly and, at times, impracticable. Access flows, rhythms of use and visibility criteria organize what will be found, compared and recognized as value. In this regime, the platform does not merely present options. It also distributes

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This description can be thickened by a vocabulary drawn from studies of interactivity, especially when one seeks to understand why the subjective experience of choice does not eliminate, but may even conceal, the objective density of architectural control. In examining interactive narratives and games, Lesnovski observes that this type of experience is organized by permanent tensions between choice and control, illusion and simulation, action and identity, culminating in the production of an "experience of controlled freedom", in which the user's action always occurs in relation to a structure that precedes and conditions it LESNOVSKI. The usefulness of this formulation, for the present scope, lies in allowing the platform to be described not as a neutral space in which the consumer simply exercises pre-constituted preferences, but as a technical environment that distributes margins of action within a previously designed grammar. Freedom of choice, in this framework, does not disappear, but appears already shaped by paths, responses, hierarchies of visibility and regimes of consequence that silently delimit what can be done, found, recognized and maintained.

The point becomes even more precise when the author notes that the one who interacts is foreseen in the structure itself and that the interactive experience is formed in the coupling between stimuli of the system and responses of the participant, without the latter ceasing to act, but also without acting in exteriority to the environment that organizes him LESNOVSKI. In a similar direction, in addressing systems of reward and punishment, Lesnovski shows that they do not operate only as episodic reactions to isolated conducts, but as forms of control by the system over free and potentially deviant actions, keeping the experience in flow, avoiding aporias and leading the one who interacts back to the structurally foreseen path LESNOVSKI. Transposed to platform governance[373], this means that choice architecture is not limited to the presentation of options, because it also involves the administration of the consequences that make certain trajectories more fluid, rewarded and legible, while others become more costly, frustrating or marginal. Informational domination, thus, falls not only on what the consumer knows, but on the very practical economy of his possibilities of acting.

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consumer's entry is mediated by a single point of passage. In the *Riot Games* ecosystem, this point of passage is the *client*[374], which centralizes authentication, social features, access to the match and, above all, the economic showcase. What appears as "interface" ceases to be a neutral layer of presentation and comes to operate as infrastructure of everyday governance, because it is there that the platform decides what will be placed in the foreground, which tracks will be offered as the standard path and which possibilities will be kept secondary, fragmented or simply improbable in ordinary use.

The structure of the store and of navigation does not function merely as convenience. It organizes a regime of visibility in which the platform distributes attention and creates practical opportunities through curation and highlighting, even when the user imagines he is "just choosing"[375]. This effect is particularly pronounced in personalized offer mechanisms, in which the platform converts activity records into individualized discounts, transforming the consumer's history into an economic operator of his own field of action RIOT GAMES. The point is not the discount as a one-off benefit, but the institutional asymmetry between what is measurable for the user and what is intelligible to him. The consumer sees metrics and superficial signals, such as win rates, match history and performance records, while the criteria for recommending and routing offers remain encapsulated in the internal regime of the service, which chooses what will be presented as an "opportunity" under parameters that do not lend themselves, as a rule, to external verification[376].

In this key, informational domination is realized less by an isolated act of "lack of transparency" and more by the administration of the variables that make the environment governable and responsive at scale. The *client* is, at the same time, the layer that stabilizes the experience and the means by which it is continually reconfigured. This reconfiguration does not appear as an exception, but as the normal mode of governing the service, for the relationship itself is structured to admit recurring changes through updates, adjustments and reorganizations. The possibility

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idea of governance by architecture, since the "space" in which the consumer acts is

not simply given, but is produced and revised as a continuous provision RIOT GAMES[377].

The modulation produced by architecture does not operate as a psychological suggestion directed at individual choices, because it is structured as an objective condition of possibility of acting in the ecosystem. Normalization advances when choice becomes constrained and dependent on previously defined trajectories, and the very criterion of what appears as normal is constructed and stabilized by technical and discursive arrangements, since code participates in this process at the same time as it is shaped by it COHEN. Standards and protocols do not serve only interoperability, for they organize practical hierarchies and define forms of conformity. For this reason, standardization can shift normative authority to the standard itself and, simultaneously, open opportunities for the exercise of economic and political power COHEN. In this scenario, *defaults*, frictions and tracks of use cease to be interface details. They come to operate as mechanisms of exclusion and steering, because they delimit alternatives, naturalize paths and make conduct predictable through the structural arrangement of the environment, even when there is no explicit prohibition.

The connection with the IOC regime becomes more precise when the object is described as a position of enjoyment and not as an isolated unit whose delivery is exhausted in the acquisition. This position exists economically only when it remains commensurable and recognizable within the governed environment, in which architecture distributes visibility, stabilizes patterns of reading and structures access paths. For this reason, the relevant materiality of the IOC is not limited to the promised content, for the object is configured by the infrastructure that defines practical conditions of enjoyment and preserves, or degrades, its public commensurability. Value, thus, is continually constructed by the way the ecosystem makes the acquired position verifiable, rankable and sustainable over time.

Classification, ranking and recommendation do not function as informative accessories. They define who appears, who is found and which trajectories of practicable, so that visibility is converted into a condition of success and reputation becomes a gove

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observing that competitive or reputational success in a platform environment depends on informational strategies aimed at visibility before other users. The algorithmic mediation of flows, in turn, is not limited to ordering content already given, for it anticipates preferences and distributes attention by selecting what will be exposed as relevant to each user COHEN. The result is that legibility, reputation and access cease to be neutral attributes of the market and come to operate as instruments of effective ordering that organize hierarchies and condition the positional value of enjoyment within the platform regime.

Informational domination, for this scope, designates the power derived from concentrated control over the variables that make experience measurable, classifiable and sanctionable in the ecosystem, such as data, metrics, ranking criteria, recommendation parameters and activity records. The core is not concealment of clauses or price, but administration of the categories and signals by which enjoyment will be recognized and converted into value. The consequence is an institutional asymmetry, since the consumer perceives the interface and its effects, while the platform controls the criteria of recognition and, with this, decides what will be visible, rewarded, demoted and practically contestable.

Informational domination consolidates when opacity ceases to be a contingency and comes to function as a structural condition of governance itself, because transparency tends to operate in only one direction. In societies marked by surveillance and classification, there is little public transparency about the algorithms and parameters used to categorize and order people, which concentrates decision-making power in whoever controls the criteria COHEN. In this configuration, the regulated subject may receive superficial signals of performance and conformity, but remains removed from the judgments and metrics that produce such results. This becomes more acute when systems display simplicity on the surface and complexity in their internal functioning, which makes it difficult to translate underlying judgments into forms suitable for public understanding COHEN. The practical consequence is the compression of contestability, since discussing the proportionality, coherence and [illegible] becomes difficult when parameters of categorization, ordering [illegible] environment remain inaccessible or incomprehensible to whoever bears the effects.

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Defaults organize the user's entry and stabilize tracks of enjoyment, because they determine where the experience "begins" and which choices emerge as natural, while selective frictions make deviations more expensive, multiply steps, impose waits or require specific competences to reach results off the script. Added to this is the administration of time as a structural operator of the field of action, since access windows, events, expirations, returns and update rhythms convert the availability of content into a practical condition of permanence, producing urgency and functional scarcity through calendar and recurrence. Finally, visibility functions as the economic language of the ecosystem, for *rankings*, metrics and signals of prestige make public comparison continuous and make the user's position continually legible and rankable. In this set, normativity need not present itself as a frontal prohibition to organize conduct, because it is inscribed in paths, costs, temporalities and signals that define what is easy, what is rare and what will be recognized as value.

Governance by architecture does not stabilize as a one-off act of command, because it operates by continuous modulation of the environment through informational flows, recurring adjustments and reorganizations that recalibrate, at every moment, conditions of visibility, relevance and access. Along these lines, Cohen mobilizes the notion of modulation as a form of control exercised by continuous flows of information that circulate to, from and about individuals, producing permanent calibration of the conditions of enjoyment COHEN. The consequence is a regime in which control is exercised through structural updating and constant reorganization of the environment, without eliminating individual agency or reducing the dynamic to determinism, but making the ecosystem continually responsive to the priorities of intermediation and predictability at scale.

In parallel, informational extraction comes to produce representations optimized for aggregate governance, in which flows of personal data are worked to form operational profiles aimed at modulating behavior systematically COHEN. These informational doubles do not function as neutral portraits of the user, for they serve as instruments of routing and indirect intervention, by making possible decisions of classification and ex- posure that bear on opportunities, rewards and trajectories of interface, because it is articulated with ult is that modulation is not restricted to the micro level of the

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behavior and distributes risks through patterns of intermediation and continuous data processing.

Moderation reinforces this normativity by transforming internal policies into technical effects, grading sanctions, demotions and functional restrictions that redefine the user's position in the environment and condition the continuity of his enjoyment. When these criteria remain opaque or only partially comprehensible, contestation loses traction, because the conflict ceases to bear on an explicit act and comes to fall on invisible parameters of classification and routing. The result is predictability and conformity by infrastructure, since conduct adjusts to what the ecosystem recognizes, rewards and keeps accessible, while alternatives remain formally possible, but practically disadvantageous.

In competitive ecosystems such as *League of Legends*, the simple moral reading of the player's performance and behavior runs, from the outset, into a prior structural fact: the environment is neither transparent nor fully intelligible to those who inhabit it. The very technical description of the game shows that it is an experience marked by partial observability, camera limitation, fog of war, high decisional density and strong dependence on context, so that the player's perception bears only on a contingent fraction of the real state of the match (Jalovaara[378], 2024, p. 12). The problem is not only empirical, but methodological, because the very analytical modeling of the game state requires simplifications and choices of representation capable of making tractable a high-dimensional and multimodal state space, without this eliminating the underlying complexity of the competitive environment JALOVAARA. In this scenario, ranked play can no longer be treated as a neutral field in which merit, fault and deviation would present themselves in a way immediately verifiable by the ordinary user.

This picture worsens when one observes that, even in matches governed by a matchmaking system aimed at giving roughly equivalent chances to both teams, pre-game prediction studies reach relevant levels of accuracy from variables such as *draft*[379], performance history and the player's proficiency with the chosen champion, e match does not begin on a competitive blank slate, but on a prior distribution of probabilities JALC

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aggregate statistics, such as raw win rate, do not constitute a reliable basis for comparing strategic decisions, precisely because the environment is traversed by selection bias: certain actions are chosen when the player is already ahead and others as a last resort in desperate situations, which artificially inflates or depresses their apparent results JALOVAARA. In this way, if even the serious analytical attempt to estimate strategic value in *League of Legends* depends on rigorous contextualization so as not to produce unreliable inferences, then the simple moral attribution of the behavioral cost to the isolated player weakens when formulated from an environment whose internal logic remains only partially accessible to him.

This point gives the question of the private ban legal density. If the supplier structures the competitive environment, controls its communication channels, concentrates the means of collecting and reading the relevant variables and, at the same time, applies graduated sanctions that lower eligibility, lock progression and restrict communication privileges, then punishment cannot be read merely as a neutral response to a self-evident individual deviation. In official documentation, *Riot* presents Honor as a system that rewards sportsmanlike conduct with additional benefits and penalizes inappropriate behavior with reduced rewards and limited communication privileges, in addition to linking Honor levels to different availabilities of chat, social recognition and access to rewards. In parallel, the company states that penalties such as temporary suspension and chat restrictions drop the Honor level, lock progress in the system and make the account ineligible for rewards linked to the *Hextech Crafting* regime until there is consistent demonstration of behavioral "reform" RIOT GAMES.

The point, therefore, is not to sustain, without internal proof, a maximalist thesis of deliberate sabotage, but to recognize that the company governs a competitive environment that is structurally opaque, probabilistic and administered by internal criteria whose in-depth intelligibility is not shared with the consumer to the same extent that their effects are imposed on him. In this key, the central question ceases to be only whether the user broke a rule and comes to include the legitimacy of the very [illegible] deviation is produced, read and punished.

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When the platform governs the board, measures the match, organizes the probabilities of the environment, controls the means of visibility and concentrates the parameters of sanction, the textual externalization of reactivity cannot be taken as an autonomous datum, isolated from the architectural and informational context that conditions it. The relevant asymmetry, here, is not merely contractual. It is epistemic, operational and sanctioning. The player bears the emotional, reputational and functional effects of the experience, but does not have the same access to the criteria, metrics and framings by which that same experience is classified, interpreted and converted into grounds for demotion, restriction or exclusion. It is on this plane that informational domination ceases to be mere lack of transparency and comes to appear as a problem of the legitimacy of private *enforcement* in continuous digital services.

On this plane, the problem lies not only in the existence of sanctions, but in the strategic selection of what will be most easily visible, measurable and punishable within the governed environment. The platform can keep relatively sheltered the deeper architecture that produces frustration, dependence, asymmetry of reading and competitive tension, while concentrating *enforcement* on manifestations that are more legible, cheap to detect and publicly presentable as unequivocal individual deviation. A selective economy of private discipline is thus formed: the structural arrangements that condition the experience are preserved as a neutral background, while what emerges as the most superficial, traceable and sanctionable symptom of the ecosystem is exposed as a personal problem. When the same agent designs the environment, measures its effects and chooses where to exercise punitive power most intensely, the legitimacy of *enforcement* ceases to be a presupposition and comes to require heightened justification.

There is, moreover, an especially relevant question regarding proportionality, which prevents naturalizing as reasonable the banning of the account when applied as an ordinary response to minor infractions committed through a functionality under the platform's full control, such as verbal aggression in *chat*. When the sanctioned conduct is carried out through a specific communicational functionality, detachable, controllable by the platform itself, the response primarily compatible with the structure of the p

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of that functionality, and not the complete suppression of the position of enjoyment built by the user in the ecosystem.

Riot itself describes Honor as a tiered regime of recognition and discipline, in which communication privileges, progression and access to benefits may be reduced, locked or conditioned by reason of the player's behavior RIOT GAMES. If the supplier therefore has automatic means to silence, limit, time out, block or condition the restoration of *chat* according to the seriousness and repetition of the infraction, the elimination of the entire account comes to exceed the neutralization of the concrete harm and takes on the character of an expansive private penalty, for it reaches not only the faculty abusively exercised, but the entirety of the investments, histories, signs and positional advantages accumulated by the consumer.

More than that, total expulsion for infractions of this nature reveals a potentially dysfunctional sanctioning rationality, because the very design of the ecosystem allows the user to return almost immediately through a new account, provided he bears the cost of rebuilding his trajectory and, possibly, reinvesting economically in the environment. In this hypothesis, the sanction does not properly eliminate the agent from the game, but destroys the previous account and transfers to the consumer the burden of rebuilding, from scratch, the patrimonial, functional and symbolic elements of his position of enjoyment. The measure, then, is no longer justified merely as necessary containment of the harmful conduct, for it also operates as an extreme mechanism of discipline and private dispossession, in a context in which the platform could have neutralized in a much less burdensome way the exact vector through which the infraction manifested itself.

Technical *enforcement* shows how the normativity of the ecosystem is realized through architecture, by combining restrictive technologies, contractual regimes and legal prohibitions on interference to produce configurations that delimit, with granularity, the ranges of permitted conduct COHEN. With this, the effectiveness of the rule shifts to the level of implementation, because the possibility of acting comes to be filtered before the interpretive dispute and before the subsequent sanction.

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es to depend only on *ex post* interpretation and application and

comes to operate as a prior condition of possibility, converting governance into a design of permissions and blocks incorporated into the environment itself.

Along the same lines, compliance functions come to be measured and applied by the code itself, and automation adds opacity to the *enforcement* circuit, for the technical layer through which compliance is measured and imposed tends to conceal decisive criteria and operations COHEN. The result is that internal policies cease to depend on public controversy and come to operate as restrictions and filters incorporated into the environment, capable of producing automatic compliance. At the same time, the translation of nuanced requirements into technical binaries may introduce tensions between formal compliance and substantive adherence.

Thus, in the IOC regime, the consumer is not bound only by a contract, because he comes to operate in a governed frame in which architecture, information and technical *enforcement* define the practical conditions of access, permanence, visibility and recognition. This structure gives institutional density to vulnerability, for the asymmetry is not limited to ignorance of clauses or to difficulties in comparing prices, but derives from concentrated control over the criteria that make enjoyment legible, rankable and continuable, as well as from the capacity to recalibrate such criteria over time.

It is not, therefore, a neutral informational advantage or a merely contingent technical superiority. What is observed is the functional exploitation of a structurally privileged position, by which the supplier designs the environment, controls the criteria of legibility of its own operations and reserves for itself the faculty of recalibrating, without equivalent transparency, the parameters that condition access, recognition, permanence and sanction. The asymmetry, here, does not act as a side datum of the digital market, but as an ordinary resource for governing the ecosystem, apt to produce administered vulnerability for the benefit of the intermediation model itself. When the platform reserves for itself the power to structure the field of action, interpret its effects and redefine the practical consequences of enjoyment, one is no longer faced with simple efficient organization of the service, but with the

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f private power over existential conditions of continuous

For this reason, legal control cannot be content with the documentary reading of the supply as if it were exhaustive, because the effective shaping of the object is produced by continuous operations of the ecosystem that may degrade the acquired position, reorder reputations and impose functional losses without proportional transparency and without compatible contestability. The discussion must bear on the operational criteria that govern enjoyment and distribute risks of exclusion, demotion and loss of commensurability, for it is on this plane that private power becomes controllable without the platform being treated as the State.

The problem is institutional. Networked governance based on standards shifts authority to protocols, standards and algorithmic intermediations and produces practical sovereignty in everyday life. For this reason, the mismatch between this arrangement and the ideals of the Rule of Law points to a problem of institutional design that must confront arbitrary power and build accountability before networked publics, while at the same time recognizing the growth of the practical sovereignty of platforms COHEN.

This requirement can be formulated in operational terms, because institutional changes suited to the current scenario need to deal directly with dematerialization, datafication and platformization, as well as to develop modalities of oversight and liability compatible with algorithmic *accountability*, platform power and governance by networks and standards, which demands new constructs of legitimation and new institutional forms COHEN.

Without proportional mechanisms of accountability, qualified transparency and effective contestability, infrastructural power tends to operate as a barely tempered functional authority. It is private power that, through technical and informational design, reorganizes exposure, access and conditions of recognition, producing effects that do not fit a purely contractual reading. This requires bringing the debate back to the legal tradition of responding to technical reconfigurations of power, in search of criteria of limitation and accountability compatible with the practical regulatory function exercised in the ecosystem.

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371. In the work *Configuring the Networked Self: Law, Code, and the Play of Everyday Practice*, Julie E. Cohen proposes a reorientation of the theory and policy of information law based on the figure of the "networked self", situated and embodied, in contrast with the abstract subject of classical liberalism. The book examines how subjectivity, creativity and social practice are shaped by the articulation between law and technical architecture, shifting the debate from a simplifying opposition between freedom and control to a plane in which infrastructure, standards and regimes of circulation organize the concrete possibilities of acting, creating and participating. Its vocabulary makes it possible to describe how "code" and legal-technical arrangements configure normative environments in everyday life, so that *design*, *defaults* and informational structures can be treated as means of practical ordering relevant to understanding enjoyment and vulnerability in digital consumption. Next, in the work published in 2019, *Between Truth and Power: The Legal Constructions of Informational Capitalism*, the researcher investigates the reciprocal transformation between political economy and legal institutions in the passage from industrial capitalism to informational capitalism, arguing that law not only accompanies such mutations, but actively participates in their construction and stabilization. ↩

372. In Cohen's work , disentitlement (desintitularidade, from the English *disentitlement*) is the structural condition imposed on subjects in the informational economy, where the capacity to control flows of information, labor and resources is legally and technically removed to allow the accumulation of capital by platforms and data intermediaries. ↩

373. The contribution of Ana Flávia Merino Lesnovski, expressed in her doctoral thesis entitled *Uma experiência paradigmática: jogos e tensões no encontro entre a narrativa e a interatividade em forma audiovisual e eletrônica*, defended before the Graduate Program in Social Communication of PUC-RS in 2014, is useful here not because its object is the regulation of platforms in a legal key, but because her thesis offers a particularly fertile conceptual grammar for understanding interactive experiences structured by technical control. The author argues that interactive narrative should be read neither as full freedom of the interactor, nor as pure deceit, but as a field of tensions in which text, system and participant are articulated in variable relations of choice, control, illusion, simulation, action and identity LESNOVSKI. Her argument is especially relevant in stating that the interactive experience creates a "controlled freedom", in which the user's action occurs within a structure that foresees him and offers him margins of intervention without ever abandoning command over the conditions of possibility of the experience itself LESNOVSKI. In this key, the interactor is not a mere passive spectator, but neither is he sovereign over the environment: he acts within a system that anticipates possible positions, responses and paths. The author also examines the function of systems of reward and punishment as forms of control by onal system over free and potentially uncontrolled actions of the erving that such me occasionally, but to keep the exper

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the interaction back to tracks intelligible to the system itself [LESNOVSKI]. When there is imbalance, however, the experience itself may degenerate into frustration or punishment, which reveals the delicacy of the arrangement between felt freedom and structural limitation [LESNOVSKI]. For this thesis, this formulation matters because it makes it possible to describe platform architecture as a regime of practical organization of action, in which choices, rewards, frictions, visibilities and sanctions are not peripheral elements, but parts of one and the same technical-informational frame that distributes probabilities, conditions trajectories and produces legibility of the environment for purposes of governance. ↩

374. The "territorial" character of the *client* is also assumed in official technical records that describe it as a set of modular units capable of reorganizing screens, flows and functions as the normal form of evolution of the service. In a public explanation about the *client* interface, Riot *software* architects explain that "Any given build of the League client is expressed as a list of units called plugins" and that each plugin can be "a single screen" or even "a complex data flow (like patching the game)", adding that "each plugin is self-contained, can be independently developed, built, tested, and deployed" [RIOT GAMES]. This type of description sustains, in the internal language of engineering, the thesis that the interface is not merely surface, for it is built as an architecture of components that allows rapid variations, experimentation and continuous reconfiguration of the "field of the possible" in which the consumer navigates. ↩

375. The public maintenance campaign for the *client* itself acknowledges the recurring effort of internal reorganization and "cleanup" of the code as part of the experience provided, reinforcing that the modulation of the environment is not an extraordinary event. In presenting the series of updates, Riot states that "we committed to talking, every two months, about the work [...] to improve the performance of the client" and that the goal is to "clean up the code that makes up the client", recording that the "Cleanup Campaign continues" [RIOT GAMES]. This speaks directly to the idea of constant reorganization of the environment, insofar as the stability of the technical "territory" depends on continuous decisions of architecture, maintenance and updating, which fall on the practical conditions of access, visibility and permanence. ↩

376. In the personalized offers regime, Riot describes the feature as dependent on gameplay traces processed through comparison and profiling, without the complete selection criteria becoming publicly auditable. When explaining why skins appear for champions the player does not use often, official support states that "DescontoBot uses your player history from the last six months to compare you to other players with similar patterns and create offers you will like" and adds that "its analysis is not made Champions you use most" [RIOT GAMES]. This kind of formulation is ally valuable because mobilized by the service and the p

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recommendation criteria, reinforcing that governance by architecture can operate as the administration of probabilities and of attention, and not as a simple display of options in a shop window. ↩

377. The contractual authorization for continuous modification of the enjoyment environment itself appears explicitly in the clause on updates and modifications. The relevance of the passage lies not in an abstract power to “change the game”, but in revealing that the technical architecture that distributes visibility, organizes flows and enables consumption is not a scenery external to the bond. It is part of the service itself and can be reconfigured as an ordinary technique for governing the experience. ↩

378. Perttu Jalovaara is a researcher at *Aalto University School of Science*, where he developed, in the context of the *Master’s Programme in Mathematics and Operations Researc*h, a dissertation on estimating win probability in *esports*, with a specific focus on *League of Legends* JALOVAARA. His work belongs to the field of *esports analytics* and is useful, at this point, for offering a quantitative and methodologically rigorous treatment of problems of reading performance, context and strategic decision in a digital competitive environment, especially by demonstrating the insufficiency of simple aggregate statistics and the need for analytical contextualization of the game's variables JALOVAARA. ↩

379. Refers to the stage of strategic selection and exclusion of characters that precedes the start of the match. It is the process of configuring the ludic experience in which the consumer exercises his enjoyment options; the distribution of probabilities and the balance of the environment in this phase are governed by internal criteria of the platform. ↩

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The reorganization of immaterial consumption around governed ecosystems makes it insufficient to treat the conflict as a simple contractual divergence or as a fluctuation of individual preferences. The enjoyment that sustains the value of the IOC depends on an administered environment in which visibility, reputation, access, permanence and sanction are distributed according to internal criteria, by predominantly architectural and informational means. When the practical shaping of the object is produced by design, protocols, curation and technical *enforcement*, vulnerability ceases to be exhausted in occasional information deficits and takes on institutional density, since the asymmetry resides in the concentrated control of the variables that make the experience legible, commensurable and continuable over time, without proportional guarantees of intelligible publicity, verification and contestation. The question, then, is to situate this kind of private power within a tradition of legal reconstruction oriented by material changes in the conditions of social life, without depending on equating the platform with the figure of the State.

In their article, Warren and Brandeis[380] ([201-?]) argue that recent inventions and expanding business practices intensified forms of intrusion that the legal order, if it remains tied to earlier schemes, cannot adequately capture. From there, the authors defend the recognition of a right to privacy as a legitimate right to be let alone, distinguishing it from adjacent legal institutions that protect different interests, such as defamation, aimed at reputation before third parties, and literary/authorial property, aimed at the economic exploitation of publication. The text also sets out cautions and limitations, especially in situations of public interest and of exposure inherent to certain functions, and indicates legal remedies compatible with the

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including damages and injunctive relief. The central gain lies in

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reorganizes vulnerability at scale, legal reconstruction is not moralism, but a

necessary response to keep the effects of new forms of power and intrusion controllable in institutional terms.

The recourse to Warren and Brandeis does not operate by thematic identity, but by homology of situation. Technical change structurally alters the conditions of exposure, harm and vulnerability, and demands an adjustment of categories so that protection remains adherent to the real mode of production of the conflict. This does not imply equating platform with State nor constitutionalizing every private dispute, but recognizing that certain private powers, when exercised through architecture, information and enforcement at scale, generate asymmetries and risks that are not exhausted in contractual literalness. If reconstruction was necessary when techniques and business models reconfigured patterns of exposure and protection at the end of the nineteenth century, the same rationality justifies describing vulnerabilities produced by contemporary digital infrastructures in terms that allow legal control without resorting to simplifying fictions about market neutrality or about the sufficiency of formal will.

The structural orientation of this method becomes even clearer when the article shifts the problem from the sphere of individual vice to the social and economic machinery that makes intrusion reproducible at scale. The relevant critique is not organized as the reproach of an isolated agent, but as the diagnosis of an activity that becomes institutionalized as commerce and starts operating by its own logic. Warren and Brandeis describe the invasion of private life as an industry, pursued with method and effrontery, in which the mercantile dynamic reproduces itself by feedback, since supply itself manufactures demand[381] BRANDEIS.

By stating harm as the effect of a productive mechanism and of a circuit of manufactured demand, the text reinforces the idea that the adequate legal response is not moralization, but the reinterpretation of categories to make controllable a form of power whose operation is stabilized by technique, scale and business method. The consequence that matters here is that the focus falls on operating conditions and on the institutional organization of harm, opening room to recognize, in other

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vate governance, vulnerability produced by structure, and not by personal failure of the regulated subjec

Transposing this model to the IOC regime requires keeping the focus on the kind of power described. The core of the problem lies not in occasional breaches, but in a private infrastructure of practical governance capable of organizing, at scale, conditions of participation and enjoyment. In this environment, visibility and reputation function as economically relevant dimensions, internal rules are mutable, expectations are calibrated by curation and temporalization of the offer, and sanctions or functional restrictions may degrade the acquired position and reconfigure the economic meaning of enjoyment.

The relevant asymmetry stems from the concentrated control of the criteria that govern recognition, permanence and sanction, so that the consumer bears the effects without proportional access to the parameters that produce them. Once this kind of power is identified, it becomes justifiable to demand a legal language capable of following material changes in the conditions of enjoyment and vulnerability, without reducing the conflict to the literalness of the contract or resorting to fictions about the neutrality of intermediation.

The prudence of the design proposed by Warren and Brandeis appears clearly in the section on limitations, in which the right to privacy is framed as calibrated protection, incapable of functioning as a general instrument of informational blocking. Public interest functions as a limit, since protection does not extend to publications whose content is of public or general interest, so as to preserve the circulation of information relevant to the community and to prevent privacy from becoming censorship BRANDEIS.

Their work also sets limits by institutional context, recognizing that certain informational flows are part of the very functioning of institutions and, therefore, cannot be paralyzed by the new protection, as occurs with publications made in judicial proceedings and in legislative bodies, as well as in equivalent communications BRANDEIS. The delimitation is completed by a criterion of proportionality associated with the means of propagation, admitting that, as a rule, there would be no redress for merely oral publication without special damage and that part of these occurrences preserve freedom of expression, preventing the category from

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expanding to cover trivialities and preserving room for ordinary social practices without diffuse judicialization BRANDEIS.

The methodological consequence of this calibration is that the limitation of power does not depend on its public nature, but on the way it stabilizes and on the effects it produces on conditions of life and participation. When practical normativity is exercised through mutable internal rules, access architecture and opaque informational intermediation, the relevant deficit is not the absence of a public-law label, but the absence of institutional reciprocity proportional to the dominion exercised over recognition, permanence and sanction.

It is in this strict sense that the expression “without authorization” operates as a descriptive category, since it names a power of social ordering that does not submit, to an equivalent extent, to minimum requirements of intelligible publicity of criteria, accessible reasoning, decisional coherence and effective avenues of contestation compatible with the economic and identity relevance of what is at stake. From this point on, the task ceases to be discussing whether the relationship is private or public and becomes identifying which instruments of control make the rationality of the exercise of this power examinable, which places the tradition of legal reconstruction in the face of material changes once again as a parameter for building proportional limits and duties without resorting to statist fictions.

The institutional framework proposed by Warren and Brandeis also rests on a diagnosis of civilization and modern life, in which the need for protection emerges as a response to collective pressures and not as a casuistic reaction to isolated episodes. The text associates the expansion of legally protected interests with the fact that civilizational advance intensified intellectual and emotional life and heightened sensibility, making it more evident that a decisive part of human experience is not concentrated in physical goods BRANDEIS.

Continuing, privacy is described as a functional condition for bearing modernity, since the intensity and complexity of life make some form of retreat from the world

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structural pressures, which reinforces the legitimacy of conceptual reconstructions when technical infrastructures and intermediation models reorganize, at scale, the conditions of exposure, enjoyment and vulnerability.

Once it is established that governance by architecture and by information constitutes a form of practical normativity capable of organizing access, visibility, permanence and sanction in environments of ecosystem-dependent enjoyment, the problem can no longer be stated as mere contractual friction and comes to demand a controllable language to describe limits and criteria of accountability compatible with the density of the dominion exercised. The contribution obtained situates the proposed shift within a tradition of legal reconstruction that responds to material changes in the conditions of social life, showing that, when techniques and business methods reorganize exposure and vulnerability at scale, the adequacy of categories is not voluntarism, but a condition of the institutional intelligibility of the conflict.

With this, it becomes possible to treat the asymmetry not as subjective discomfort, but as a structural deficit of proportional reciprocity, to be addressed by instruments that make the criteria, rationalities and impacts of the exercise of power inside the ecosystem examinable. This framework allows describing how governance produces adherence, self-adjustment and subjection through performance, comparison and the management of symbolic risk without individual moral attribution. With this, the position of enjoyment reveals itself also as a position of conformity and dependence, preparing the formulation of proportional duties and of parameters of transparency, stability and restoration adequate to the IOC regime.

NOTES

380. Entitled *The Right to Privacy*, the seminal article by Samuel D. Warren and Louis D. Brandeis , originally published by the *Harvard Law Review* in 1890, formulates a matrix of legal reconstruction in the face of technical and social mutations that alter conditions of exposure, vulnerability and harm. The text starts from the premise that the common law does not operate as a static system, but as a tradition capable of [illegible] w protective contours when material changes reconfigure interests [illegible]ection. Here, the interest of the argument is methodological and does [illegible] institutional transp[illegible] point lies not in specific precedent [illegible]

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categories when material transformation makes the available framework anachronistic. From this perspective, new technologies and new business models shift the boundary between the socially protected space and the sphere of subjection, and demand an adjustment of categories so that protection remains adherent to the real mode of production of the conflict. ↩

381. Warren and Brandeis build *The Right to Privacy* as an institutional response to a material change in social life. The starting point is not a moral judgment about inconvenient individuals, but the perception that "Recent inventions and business methods call attention to the next step which must be taken for the protection of the person" BRANDEIS. Technical modernity structurally alters the conditions of exposure and capture of everyday life, and the text describes this passage with images of concrete intrusion, stating that "Instantaneous photographs and newspaper enterprise have invaded the sacred precincts of private and domestic life" BRANDEIS. The consequence is methodological, since inherited categories cease to capture the real mode of production of harm when technique and enterprise make intrusion reproducible at scale. In this key, the central critique shifts the focus from the "isolated agent" to the economic machinery that institutionalizes intrusion. The authors expressly state that "Gossip is no longer the resource of the idle and of the vicious, but has become a trade, which is pursued with industry as well as effrontery" and conclude, bluntly, that "In this, as in other branches of commerce, the supply creates the demand" BRANDEIS. Intrusion then comes to operate as a market practice, guided by circulation incentives and by a cumulative logic, in which repetition creates social tolerance and lowers standards, since "Each crop of unseemly gossip, thus harvested, becomes the seed of more" BRANDEIS. Harm, therefore, is not only the published episode, but the commercial circuit that manufactures appetite, normalizes exposure and expands vulnerability as a collective condition. It is from this diagnosis that the protective formulation emerges. The text proposes a protection that allows resisting intrusion without turning privacy into generalized censorship, articulating the right as "the right to be let alone" and, at the same time, setting limits and cautions, above all for public interest and for institutional contexts in which the circulation of information is functional BRANDEIS. The strength of the article lies in its design. Protection is presented as a necessary legal reconstruction when technique and business methods shift boundaries of protection and make the previous framework anachronistic, without depending on moralization and without assuming that only state powers can produce structural asymmetries. ↩

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When governance by architecture and by information stabilizes as private administration of access, visibility, permanence and sanction, it produces a power that bears not only on occasional choices, but on the conditions of economic viability and social recognition inside the ecosystem. The enjoyment that sustains the value of the IOC depends on a legible and comparable position, and this position is preserved through adherence to criteria of recognition, update rhythms and performance standards instituted by the environment itself. Vulnerability is not exhausted in informational asymmetry or individual preferences, because permanence and belonging become governed resources, capable of producing self-adjustment, discipline and adherence as structural effects of the administered market.

The passage from the disciplinary model to a regime of performance allows contemporary subjection to be described without resorting to individual psychological analysis, since the axis of conformity ceases to depend on external prohibitions and starts operating through productive positivity and the internalization of demands. Byung-Chul Han[382] argues that the positivity of power can be more efficient than the negativity of duty, so that the achievement-subject tends to be faster and more productive than the obedience-subject, although this mutation does not erase discipline, since the achievement-subject remains disciplined and carries the disciplinary stage within it HAN. This shift helps to understand why environments governed by metrics, comparison and continuous incentive can produce stable self-adjustment without ostensive coercion, since freedom itself comes to function as a vehicle of demand. In this sense, Han describes the paradox by which freedom, when converted into a duty of unlimited performance, comes to produce

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effect, because preserving public commensurability and effective access to

recognition requires continuous recalibration under criteria defined by the environment, converting performance and permanence into a practical condition of enjoyment.

In the IOC regime, recognition, visibility and permanence do not function as side effects of consumption, since they are part of the material conditions through which enjoyment becomes valuable and sustainable over time. The platform, by administering metrics, rankings, signals of prestige and forms of public comparison, establishes a grammar of performance that organizes what counts as success, adherence and regularity within the ecosystem. The result is functional convergence with the model described by Han.

Conformity does not depend on explicit command or frontal threat, because the environment itself makes discontinuity costly and misalignment risky, insofar as the loss of legibility, the drop in visibility and reputational downgrading directly affect the position of enjoyment that constitutes the relevant economic object. In this context, the consumer's adaptation does not express a personality trait, but a strategy of permanence in an administered market. Self-adjustment becomes rational under conditions in which value depends on preserving position in the ecosystem's internal hierarchies and on remaining eligible for validation and visibility, and the continuity of enjoyment comes to require keeping up with rhythms, expectations and standards defined by the infrastructure that controls access to the very criteria of recognition.

Adherence to the governed ecosystem need not be produced by frontal prohibition to acquire stability, because the regime of performance tends to convert freedom itself into an operator of conformity. Byung-Chul Han describes the contemporary subject as “lord and sovereign of itself”, freed from the external instance that would oblige it to work, and precisely for that reason placed in a situation in which the fall of the dominator does not lead to freedom, but makes “freedom and constraint coincide”, so that the subject “gives itself over to compulsive freedom” and to the “free constraint of maximizing performance” [HAN]. Here, the decisive mechanism is the one by which discipline comes to operate in the form of achievement, initiative and

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elf-adjustment compatible with the feeling of choice, even when

it is structured as an obligation to remain efficient and rewardable inside the environment.

The machinery becomes clearer when the governance of the ecosystem is described as the production of adherence through incentive, exposure and reward, and not as imposition by ostensive prohibition. Han argues that a smart power does not discipline the psyche through coercion or prohibition, but approaches it and summons it to participate and to share, exploiting freedom rather than denying it, precisely because it manages to operate without presenting itself as power [HAN]. The consequence is that subjection is not imposed as silence, but as continuous communication and exposure, and this active participation functions as a governance resource.

In *League of Legends*, this power that summons freedom to work in favor of conformity shows itself clearly in the ranked regime, because there performance is translated into position, and position becomes a public language of value. The competitive ladder organizes the experience as a comparable trajectory, in which the individual not only plays, but measures himself, ranks himself and makes himself available to the judgment of the ecosystem itself. This structure needs no direct coercion to produce discipline, since it converts initiative into a socially intelligible obligation. What is at stake is not a "game mode", but the continuous production of a positional portrait that comes to operate as a summarized form of identity in that world.

This capture becomes even clearer when Riot itself describes the difference between MMR and rank as an institutional translation of the subject into numbers, so that the public ranking appears as a "relatable" representation of a calculated value that remains hidden. When explaining the system, official support states that MMR is secret and that rank exists as a mechanism to translate this MMR into a form that is accessible and progressive for the player [RIOT GAMES]. The effect of this on the psychopolitics of performance is direct. The player's freedom is organized as a voluntary search for adequacy to the criterion that measures him, even when the [illegible] because what becomes visible and socially legible is the positional [illegible] workings of the calc

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For this reason, the ranked climb tends to transform leisure into a regime of rational self-exploitation. The platform administers symbolic risk through categories of progress, distribution and reclassification, including periodic structural changes that reposition the subject's value on the ladder and redefine the horizon of "climbing", "holding" and "deserving" RIOT GAMES[383]. Discipline, here, does not present itself as prohibition, but as a permanent summons to invest time, attention and performance so as not to lose public commensurability in the environment. The result is that conformity does not depend on an external order. It emerges as an internal need to preserve legibility, avoid falling and sustain a recognizable place in a hierarchy that the infrastructure itself produces and recalibrates over time.

This dependence, as with the other mechanisms of the ecosystem, is also not neutral from the standpoint of the contractual bond. The conditions of access and permanence are provided under a revocable and conditional license, and account termination implies loss of access to the environment and to associated data RIOT GAMES[384]. Thus, the ranked ladder does not operate as detachable property. It operates as a grammar of recognition that only exists while the account and the service remain active, which makes leaving, slowing down or misalignment more costly than they would seem under an ontology of a static "product".

Along these lines, contrasting the disciplinary panopticon with the digital panopticon, Han observes that the occupants of the new apparatus collaborate with its functioning through voluntary self-illumination and self-exposure HAN. The conclusion is that conformity can be produced as a structural effect of an ecosystem that mobilizes freedom, performance and exposure as a grammar of permanence, reducing the need for frontal coercion while intensifying the subject's dependence on the criteria that define recognition and value.

In *League of Legends*, psychopolitics manifests itself not only as an incentive to "do more", but also as an inducement to "be the right way" if the goal is to remain eligible for the full experience of the ecosystem. The Honor system condenses this logic by turning conduct into a variable of administered reputation, whose practical

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behavior “in and out of game”, stating that it “rewards” sportsmanlike conduct with benefits and “penalizes” inappropriate behavior with reduced rewards and restriction of communication privileges [RIOT GAMES385]. Discipline, here, need not appear as an explicit threat, because it settles in as the subject's own everyday prudence. The player comes to manage himself to remain rewardable and socially legible, avoiding losses that are not only symbolic, but functional, insofar as they reach what can be accumulated, displayed and enjoyed in the continuity of enjoyment.

This shift of control to the inside of the subject becomes even clearer when the integrity policy itself connects punishments to material effects on progression and rewards. In a specific document on Honor restrictions, Riot states that sanctions such as suspension and chat restriction lower the Honor level, lock progress and make the account ineligible for rewards tied to this regime [RIOT GAMES386]. In this design, conformity is produced as self-preservation: it is not a matter of obeying out of abstract fear, but of avoiding a downgrade that alters the subject's position in the reward routines and in access to certain benefits, consolidating the idea that remaining “fit” is part of the consumption experience itself. Freedom thus works as an operator of conformity because the subject anticipates the gaze of the ecosystem and adjusts his conduct so as not to lose eligibility.

This logic overflows the inside of the game and takes on the contours of identity governance, since the Terms of Service establish that the User Rules govern behavior during the game and also certain conduct outside the game, providing for disciplinary measures that may reach temporary suspension, account termination and even hardware banning [RIOT GAMES387]. In addition, the contract makes explicit that the User Rules may apply to streams, recorded videos and social media posts, and admits the possibility of penalties applicable to multiple Riot services, including escalated across games [RIOT GAMES388]. In this combination, what is observed is a regime in which the subject internalizes control as an obligation to remain eligible and acceptable before criteria that the ecosystem itself administers, extending the field of incidence of normativity beyond the strict moment of the match. The

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of the rewardable, the communicable and the participable, as an ordinary condition of permanence.

Applied to the IOC regime, this machinery reveals that the ecosystem does not administer only access to content, but governs symbolic and positional risk as a condition of permanence. Value is not sustained as a static attribute of an acquired object, since it depends on continuity of enjoyment and on the preservation of public legibility within the ecosystem, so that losing visibility, temporal pertinence and belonging, or suffering positional downgrading produces economic effects that are not reducible to subjective inconvenience.

The platform, by controlling update rhythms, events, access windows, reputation scales and forms of comparison, converts permanence into a task and transforms keeping one's place into continuous work of monitoring and adjustment. In this context, the offer is not limited to delivering a one-off utility, because it organizes a circuit in which the very possibility of continuing to be “worth something” depends on adhering to parameters of performance and presence that the ecosystem naturalizes as a condition of participation.

The management of this risk functions as an instrument of discipline without needing to present itself as an explicit threat. Frequent return, constant attention and willingness to recalibrate conduct emerge as rational choices under conditions in which the cost of misalignment is the loss of commensurability and the erosion of accumulated symbolic capital, with a direct impact on the position of enjoyment that constitutes the economic core of the IOC.

The conversion of conduct into metrics is not limited to an external management technique, because it tends to reconfigure the way the subject perceives himself and stabilizes over time, shifting identity from a narrative structure to an additive structure of data. Byung-Chul Han formulates this contrast by arguing that the promise of self-knowledge through numbers fails at the most basic level, since the accumulation of records does not produce narrative, and a sense of self depends on [illegible] a trajectory, and not on adding up dispersed indicators, which is *Quantified Self* ten[illegible] meaning itself is emptied [1]. The po[illegible]

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[1] HAN

born of subjective introspection, but of the replacement of narrative continuity by measurable tracking, making the maintenance of the self depend on indicators, goals and feedback that can be continuously recalibrated by external criteria.

The picture thickens when the record ceases to be individual memory and starts circulating as a criterion of validation, since tracking turns into self-surveillance and connects self-exploitation, self-observation and reputation maintenance. Han states that the digitized and networked subject carries an inner panopticon, in which guard and prisoner merge, so that control ceases to depend only on an exterior gaze and comes to operate as self-surveillance [HAN]. The consequence is that continuous evaluation ceases to be only the gaze of the environment and becomes an internalized gaze, turning self-adjustment into an ordinary requirement of permanence under metrics of performance and exposure that the subject himself helps to produce and to feed.

When experience comes to be organized by continuous measurement and comparison, conformity ceases to depend on explicit command and settles in as an ordinary effect of an environment that rewards predictability. Transparency operated by metrics and correlations does not function only as an expansion of available information, since it turns statistical patterns into a practical reference of normality, narrowing the space for deviation and shifting the cost of misalignment onto the very possibility of remaining visible and validated. In the IOC regime, this narrowing has a direct economic consequence, because the position of enjoyment depends on remaining commensurable and recognizable within the ecosystem, and the infrastructure controls the indicators and filters that define what will appear as adequate performance. The result is a regime of self-adjustment in which the maintenance of belonging and of positional value becomes dependent on adhering to measurable parameters that the environment measures and rewards, converting measurability into an instrument of governance.

The institutionally relevant effect of this picture can be described as identity captivity. The expression does not designate physical imprisonment nor assume an ıames a practical dependence, by which the continuity of
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tability of symboli

administered ecosystem. When the position of enjoyment is anchored in signals of prestige, accumulated repertoires, performance records, visibility and belonging, the platform governs the conditions for preserving a socially recognizable place by distributing public legibility through metrics, ranking and internal eligibility criteria. In this context, leaving, slowing down or misaligning does not appear as a simple neutral choice, since it tends to imply loss of legibility and the collapse of the signals that sustain public commensurability, with downgrading of the position that gave economic meaning to enjoyment. Permanence comes to depend on continuous alignment with mutable operational standards, and leaving ceases to be a simple substitution of service, because it involves discontinuity of prestige, comparability and belonging.

This dependence on administered recognition is legally relevant because it makes integrity and identity governed variables of enjoyment and demands, at the dogmatic level, reinforced duties of qualified transparency, contestability, auditability and restoration proportional to the kind of power exercised by the *Lex Plataformae*.

Dependence is consolidated because the platform concentrates the administration of metrics, recognition criteria and exposure trajectories, while freely recalibrating what counts as adequate performance and which conduct will be rewardable or punishable. The result is an exit cost that is not exhausted in a one-off patrimonial loss, since it involves the discontinuity of a narrative of self that was built, measured and validated inside the environment, besides loss of access to the very parameters that made this narrative intelligible. Identity captivity, thus, is the form in which the power of governance translates into stable subjection without ostensive coercion, because preserving enjoyment requires permanence under variable criteria and preserving symbolic identity requires continuity of recognition under signals that do not belong to the consumer, but to the infrastructure that defines and distributes them.

The exit barrier can be described as a form of social death inside the ecosystem. The expression does not operate as moral dramatization, but as a functional description ed when the platform concentrates the records that sustain belonging and ... ance, that is, histor

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prestige, community ties and traces of participation. Leaving the environment, under these conditions, is not like migrating from one service to another, because it implies interrupting one's very socially recognizable existence in that world, with loss of symbolic continuity and the practical erasure of trajectory marks that have become a condition of public commensurability. Leaving, therefore, does not present itself as a neutral consumption decision, since the cost is not limited to the price paid or to access to a utility, reaching the positional survival of the consumer in a grammar of recognition that the ecosystem itself monopolizes.

This effect stabilizes identity captivity through an additional mechanism, which depends not on formal coercion or direct threat, but on reputational self-preservation. If the experiential value of the IOC is anchored in signals of status, consistency of performance, belonging and social memory, any criticism that endangers the legitimacy of the ecosystem or the stability of its hierarchies tends to be perceived as a threat to the consumer's own identity investment. A circuit of defense of the environment is thus formed in which users become agents of conformity, not out of servility, but out of the need to protect the accumulated symbolic capital and the sense of social existence that derives from it. The platform, by organizing recognition as a scarce resource and conditioning its distribution on metrics and internal rules, produces a structural incentive for the community itself to operate as an instance of surveillance and containment of dissent, raising the social cost of misalignment and reducing the space for effective contestation.

What makes this regime particularly stable is that its machinery does not depend on continuous external coercion, since it operates through the exploitation of freedom as an economic resource. Byung-Chul Han states that neoliberalism constitutes a highly efficient system for exploiting freedom and capturing practices and expressive forms associated with autonomy, such as emotion, play and communication, arguing that exploiting people against their will is inefficient and that returns are maximized when freedom itself is exploited[389] HAN. The governed environment need not impose itself as prohibition to obtain adherence, since it encourages, rewards and

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This efficiency deepens when exploitation ceases to present itself as a visible relationship between dominator and dominated and comes to be internalized as an ordinary dynamic of the subject with himself. Han describes how, in the present, each individual tends to become a self-exploiting worker in his own enterprise, accumulating in the same figure the positions of command and submission, and that even class struggle can be lived as an inner struggle against oneself, under conditions defined by the solitude of the isolated, self-combative entrepreneur, who practices self-exploitation voluntarily HAN. The structural effect is the neutralization of frictions that, in other regimes, would make social conflict more visible and contestable, because the pressure is lived as an intimate obligation of performance and not as an external imposition attributable to an identifiable agent.

The operational language of this process appears in the transformation of life into a regime of measurable optimization, in which weaknesses and errors must be eliminated to maximize efficiency and performance, and in which everything is made to be comparable and measurable under the logic of quantifying success in the market, not in pursuit of the good life, but because of systemic constraints HAN. The triad composes the machinery of conformity in platform ecosystems: freedom is summoned as participation, participation is captured as productivity, and productivity is stabilized as comparability, so that the subject adjusts himself to remain rewardable and recognizable. The user becomes a practical agent of his own subjection within an environment in which a third party - not bound to any effective standards of transparency - administers metrics, visibility and permanence as "legitimate" conditions of value.

The result matters legally because it shifts the conflict from the vocabulary of choice to the plane of the governance conditions that produce, calibrate and make economically relevant what presents itself as choice. In IOC regimes, the permanence of value depends on recognition and continuity of enjoyment, and these elements do not stem from the isolated will of the consumer, since they are administered by criteria of visibility, comparison and sanction that the platform defines, applies and recalibrates. The subjection described, therefore, is not a moral trait nor an individual

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continuity of enjoyment requires self-adjustment and when the cost of misalignment manifests itself as loss of position, legibility and belonging, the environment comes to operate as a mechanism that produces vulnerability, because it transforms symbolic and positional risk into an instrument of conformity.

This shift prevents the problem from being treated as a simple informational asymmetry correctable by formal notice, or as a neutral competitive dynamic resolved by a market alternative. The platform concentrates the administration of the variables that define what will be recognized, rewarded, downgraded and excluded, and this concentration makes exploitable the consumer's dependence on parameters he does not control and that, as a rule, he cannot verify. Thus, protection cannot be limited to inventorying clauses or to presuming that the user's choice exhausts the meaning of the supply, because the effective shaping of the object is produced by continued operations of the ecosystem that determine conditions of access, permanence, reputation and sanction. The point reached is that vulnerability, in this scenario, has institutional density and demands duties proportional to the power exercised, especially regarding the intelligibility of criteria, the minimum stability of the conditions of enjoyment and the possibility of restoration when changes, modulations or sanctions degrade the position of enjoyment that gives economic meaning to the IOC.

The cost of this permanence through continuous recalibration appears more clearly when the temporality of the environment is described as game temporality, that is, organized by immediate rewards, short cycles of validation and quick experiences of success. Han observes that games exhibit a temporality marked by immediate success and reward, but that what matures over time cannot be gamified, because what is long and lasting tends to prove incompatible with the temporality of the game, so that hunting fits the regime of rewards, while farming, dependent on slow processes and quiet growth, does not let itself be converted into scores and levels, since life cannot be reduced to permanent hunting[390 HAN]. Thus, it becomes possible to argue that an ecosystem structured by comparison, performance and quick *feedback* tends

itions of subjective continuity and experiential stability,

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rewardable within the circuit that susta

In this register, optimization ceases to function as a promise of improvement and comes to operate as a systemic requirement of permanence, since the environment values what can be intensified, measured and compared, pushing the subject toward a compulsion of productivity that admits no interruption. Han's formulations, although purposely loaded, help to fix the point in a technically useful way, since they describe a dynamic in which the positivity of performance converts inner life into fuel for the demand to produce more, and in which the very idea of adjustment shifts from care to exhaustion.

In ecosystems that administer recognition and permanence as conditions of value, the demand to remain in the game through continuous recalibration ceases to be individual discomfort and becomes a regular mechanism of governance, because enjoyment is maintained only while the subject manages to sustain, repeatedly, signals of adherence to the criteria of the environment.

The subjection described is not a side element of the IOC regime, because it indicates objectively the practical traction that allows private rules and technical sanctions to operate efficiently in the everyday life of ecosystems. When permanence depends on recognition, when continuity of enjoyment depends on adherence to metrics and when the cost of misalignment manifests itself as loss of position and social legibility, the subject is already invested in the environment even before the explicit act of *enforcement*.

In this scenario, the internal norm is not limited to declaring permissions and prohibitions, since it bears on a user who needs to remain rewardable and traceable, so that discipline is realized through the expectation of visibility, the risk of downgrading and the fear of functional exclusion, without depending on frontal coercion to stabilize conformity. The consequence is that governance by architecture and by information, by producing identity captivity, prepares the ground on which the private rule becomes effectively normative, because it finds a subject willing to adjust continuously to preserve what gives economic and existential meaning to his own IOC.

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environment. Internal rules and techni

contractual text, but as decisions implemented in filters, parameters, blocks, gradations and procedures that reconfigure enjoyment in real time. Once it is shown that adherence and self-adjustment are structural effects of the ecosystem, it becomes necessary to examine how internal policies are converted into effective restrictions and authorizations, with enough unilaterality and opacity to produce exclusion and functional dispossession. The next step, therefore, consists in describing the *Lex Plataformae* and its *enforcement* as the practical normativity of the environment, since it is at this level that private power becomes legally controllable in proportional terms.

NOTES

382. In the work *Psychopolitics: Neoliberalism and New Technologies of Power*, originally entitled *Psychopolitik*., the South Korean philosopher based in Germany, Byung-Chul Han , proposes a reading of contemporary forms of power based on the shift from external coercion to mechanisms of internalized exploitation. The book argues that, under neoliberal rationality and technological mediation, freedom, initiative and performance cease to operate as emancipatory promises and come to function as instruments of self-binding, in which the subject governs himself through optimization, transparency and productivity. The usefulness is descriptive. The categories proposed by Han allow naming how information technologies, metrics and regimes of visibility convert adherence, self-adjustment and continuous comparison into stable conformity, above all in environments in which recognition and permanence become conditions of value. In *Sociedade do Cansaço* (2015), originally entitled *Müdigkeitsgesellschaft*, Han presents a convergent diagnosis from another entry point: the passage from a model of discipline centered on negativity, prohibition and the external enemy to a regime of positivity in which the imperative of performance imposes itself as self-demand. The text describes the replacement of the obedience-subject by the achievement-subject, whose exploitation does not depend on frontal coercion because it is realized as self-exploitation and the inability to interrupt the logic of continuous optimization. The work offers useful language to describe how environments structured by comparison, goals, rewards and continuous visibility can produce subjection through excess and self-adjustment, without individualizing psychologization, allowing conformity to be treated as a structural effect of an ecosystem that administers symbolic risk and distributes recognition as a scarce

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regular adjustments, with a revision of promos and the introduction of a new tier ("the introduction of a new Ranked tier") RIOT GAMES. The text is valuable for the vignette because it shows, in institutional language, that the ladder is administered as an infrastructure of trajectory and belonging, and not as a simple neutral scoreboard. When the platform alters how one climbs, how one is distributed and how the subject's position is qualified, it redefines what counts as sufficient performance and repositions the relative value of the consumer within the ecosystem, reinforcing the logic of continuous self-adjustment that characterizes the psychopolitics of performance. ↩

384. The contract records that, if the account is terminated, the user "will no longer have access to your account, including associated data or Virtual Content" RIOT GAMES.It also provides that access to the services operates as a "limited, non-exclusive, non-transferable and revocable license", "expressly conditioned" on the terms of the contract, and that termination automatically cancels this license RIOT GAMES.It is inferred, therefore, that the ranked position and its public legibility do not constitute an autonomous "good", but an institutional effect maintained under conditions of administered access, which reinforces the reading of the exit cost as loss of intelligibility and commensurability inside the environment. ↩

385. In the official Honor guide, Riot states that the system "is a general reflection of any player's behavior in and out of game" and that it "rewards sportsmanlike conduct" while it "penalizes inappropriate behavior" RIOT GAMES.The same page describes the coupling between conduct and practical effects by indicating that Honor offers "additional benefits" and, conversely, involves "limited communication privileges" and reduced rewards RIOT GAMES.The value lies in making explicit in institutional language what the theoretical text already describes: a discipline that operates as an incentive to adequate participation and as a functional cost of misalignment, producing self-management of conduct to preserve eligibility and permanence. ↩

386. In this sense, Honor is described by the community as a system with levels and *checkpoints* in which levels 1 and 0 are "restricted Honor levels obtainable only through penalties" and "carry far fewer rewards than the normal levels" LEAGUE OF LEGENDS WIKI. The same entry indicates that punished individuals "will get demoted in Honor level" and that, in cases of chat restriction, there is demotion to "level 1, or 0 if already at level 1", establishing a logic of fall associated with sanction and a progression fragmented by *checkpoints*. The description successfully compiles the grammar of levels, *checkpoints* and rewards, allowing governance by eligibility to be characterized precisely. ↩

Riot makes explicit that the user agrees to follow the "User Rules", which ior during the game" and also "certain conduct outside the game" and adds that Clause 7 "explains the pe

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"suspension or termination of the account and its deletion" and "hardware banning" RIOT GAMES.What matters here is the way discipline is integrated into the contractual bond as an ordinary possibility of modulating access, with enough intensity to convert eligibility into a permanent concern of the user. ↩

388. The contract states that the User Rules "apply not only within our Services, but also while you stream on a streaming platform", and adds that they "also apply to your recorded videos and social media posts" RIOT GAMES.In addition, it records that "misconduct in one of our games may result in penalties applicable in another game" and admits "temporary or permanent bans and account suspensions applicable to all of our games" RIOT GAMES. Therefore, the normativity of the environment is not reduced to an internal prohibition of the "match", since it operates as extended governance, affecting the company's ecosystem as a whole, including its other games, in terms of conduct and identity, with practical effects on access and permanence that feed and intensify the internalization of control. ↩

389. "As the entrepreneur of its own self, the neoliberal subject has no capacity for relationships with others that might be free of purpose. Nor do entrepreneurs know what purpose-free friendship would even look like. Originally, being free meant being among friends. 'Freedom' and 'friendship' have the same root in Indo-European languages. Fundamentally, freedom signifies a relationship. A real feeling of freedom occurs only in a fruitful relationship - when being with others brings happiness. But today's neoliberal regime leads to utter isolation; as such, it does not really free us at all. Accordingly, the question now is whether we need to redefine freedom - to reinvent it - in order to escape from the fatal dialectic that is changing freedom into coercion. Neoliberalism represents a highly efficient, indeed an intelligent, system for exploiting freedom. Everything that belongs to practices and expressive forms of liberty - emotion, play and communication - comes to be exploited. It is inefficient to exploit people against their will. Allo-exploitation yields scant returns. Only when freedom is exploited are returns maximized. It is interesting to note that Marx also defines freedom in terms of a successful relationship to others: 'Only in community [with others does each] individual [have] the means of cultivating his gifts in all directions; only in the community, therefore, is personal freedom possible.'1 From this perspective, being free means nothing other than self-realization with others. Freedom is synonymous with a working community (i.e., a successful one). For Marx, individual freedom represents a ruse - a trick of capital. 'Free competition', which is based on the idea of individual freedom, simply amounts to the 'relation of capital to itself as another capital, i.e., the real conduct of capital as capital'. Capital reproduces by entering into relations with itself as another form of Capital: through free competition. It copulates with the Other of itself by way of individual freedom. Skip to content inasmuch as people engage in free competition. Hereby, individual freedom turns to servitude inas

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own propagation. That is, Capital e

not the individuals who are set free by free competition; it is, rather, capital which is set free.' The freedom of Capital achieves self-realization by way of individual freedom. In the process, individuals degrade into the genital organs of Capital. Individual freedom lends it an 'automatic' subjectivity of its own, which spurs it to reproduce actively. In this way, Capital continuously 'brings forth living offspring'. Today, individual freedom is taking on excessive forms; ultimately, this amounts to nothing other than the excess of Capital itself." HAN ↩

390. "In order to heighten productivity, emotional capitalism also enlists playing and games - which should, in fact, be the Other of Work, its opposite. Emotional capitalism is gamifying the life- and working world. Playing games lends an emotional, indeed a dramatic, charge to working - which in turn generates more motivation. Because games rapidly deliver a sense of success and reward, the result is higher performance and a greater yield. A person playing a game, being emotionally invested, is much more engaged than a worker who acts rationally or is simply functioning. Games exhibit a specific temporality marked by immediate experiences of success and reward. But what matures over time cannot be gamified. Whatever is long, anything that lasts a long time, proves incompatible with the game's temporality. Hunting, for instance, matches the mode of the game, whereas farming, which depends on slow processes of ripening and quiet growth, cannot be gamified at all. Life cannot be turned into hunting alone. The gamification of work exploits homo ludens. The player subjugates him- or herself to the order of domination in the very act of playing. Today, the gamification logic of 'Likes', 'Friends' and 'Followers' means that social communication is also being plugged into and subordinated to a game mode. The corollary of the gamification of communication is its commercialization. That said, this process is destroying human communication." HAN. ↩

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CONCEPTS IN THIS SECTION

The law of the platform

Enjoyment in digital ecosystems depends on continuous adherence to rhythms, metrics and standards of recognition administered by the environment itself. Conformity tends to stabilize without overt coercion, as an effect of the management of symbolic risk and of the cost of misalignment. In this context, the relevant normativity is not exhausted by the contractual text, since choices, access and trajectories of permanence result from the combination of internal rules, architecture and enforcement mechanisms. *Lex Plataformae* designates this regime in operation, in which rule, implementation and *enforcement* organize participation, visibility and sanction, with direct effects on the position of enjoyment that economically constitutes the IOC. For this reason, proportional parameters of qualified transparency, minimum stability, verifiable reasoning, contestability and restoration are required.

The central point is to describe a system for directing conduct endowed with functional coercion inside the ecosystem, exercised through internal rules, architecture and application at scale. Eros Grau's formulation[391] offers direct conceptual support for this framing by arguing that "law" can mean a "system of principles (norms) coercively imposed on a given social group by any social organization endowed with power to do so" GRAU. This vocabulary allows internal rules, implementation architecture and *enforcement* mechanisms to be treated as the environment in an operational sense, since they organize access, actions with concre

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collective effects, without neutralizing the phenomenon as a merely formal exercise of contractual autonomy.

For present purposes, *Lex Plataformae* does not designate a rhetorical label for "terms of use", but an integrated normative regime that operates inside the ecosystem and defines, with practical effectiveness, the conditions of enjoyment, permanence and recognition. Its structure can be described in three layers that presuppose one another. The first is the internal normative text, formed by terms of service, conduct policies, moderation rules and declared criteria of participation, which state permissions, prohibitions and expectations of use. The second is the layer of architecture and implementation, in which such statements cease to be mere declarations and are converted into a configuration of possibilities through interface, flows, access patterns, visibility parameters and technical restrictions that delimit the range of the possible before any interpretive dispute. The third is the layer of *enforcement* and sanctions, composed of application mechanisms that grade consequences, apply restrictions, lower visibility, suspend features and, in extreme cases, exclude the user, reconfiguring their position in the environment.

The decisive distinction is between the statement and the effective norm. The internal rule only gains normative density when it is converted into conditions of possibility by architecture and into consequences by *enforcement*. Reading *Lex Plataformae* as practical normativity gains precision when the platform ceases to be treated as a mere intermediary and comes to be described as an instance of governance by infrastructure, that is, as an arrangement that defines the space of action and the terms of participation by technical and organizational means.

This framing engages with the perception, already consolidated in Brazilian Digital Law doctrine, that the digital environment strains the practical monopoly of state sources and favors solutions founded on repetition, adaptation, analogy and speed of decision. Patricia Peck Pinheiro[392] argues that Digital Law "brings the opportunity to apply, within a uniform legal logic, a series of principles and solutions that were already being used diffusely – principles and solutions that lie at the root of so-called

Pinheiro characterizes this arrangement as a hybrid system between codified law and customary law, in which elements such as generality, uniformity, continuity, durability and notoriety are reorganized in an environment in which the time factor profoundly alters the way legal answers are produced, circulated and become obsolete PINHEIRO. The practical consequence is that, according to the author, "we are living in an Internet governed by contracts", in which the principle of pacta sunt servanda takes on amplified prominence, with Terms of Use of expanded practical effect and technology companies acting as managers of international, multicultural, cross-border communities endowed with their own rules PINHEIRO.

This reading offers relevant descriptive support to the category of the Lex Plataformae, but requires two adjustments. The first concerns scale. In the platform ecosystem, private normativity ceases to operate as a diffuse practice recognized among multiple agents and takes on a denser, more concentrated and infrastructural form. The second concerns composition. Contracts do not operate alone. They are articulated with code, interface, choice design, selective frictions, algorithmic curation systems, opaque prioritization regimes and unilateral update mechanisms, composing a normative arrangement thicker than the contractual text taken in isolation. The platform does not merely participate in a fluid regulatory environment, since it itself designs it, organizes its points of entry, defines criteria of permanence, structures systems of reporting, moderation and reputation, administers flows of evidence and executes immediate sanctions through articulated technical and contractual means. It is this twist that justifies shifting the description from an "Internet governed by contracts" to an ecosystem governed by architecture, in which the contract is only one of the operating layers.

Cohen makes explicit that platforms use technical protocols and centralized control to define networked spaces and structure that space in favor of ease of use, operating modularity as an instrument to manage the tension between heterogeneity and usability, insofar as platform protocols impose a modular structure that allows certain kinds of flexibility and, at the same time, blocks others COHEN.

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networked organization under conditions of legal or practical standardization signals a de facto shift of legal authority to the standard, whose authority can be quite demanding as to forms of compliance and, at the same time, may open new opportunities for the exercise of economic and political power COHEN.

When authority shifts to infrastructure and standards, a mismatch arises with traditional models of accountability and contestation, because practical normativity tends to resist visibility and the conventional rites of control. Cohen formulates this problem by noting that the disconnects between network- and standard-based governance and the ideals of the rule of law point to a project of institutional design aimed at confronting arbitrary power and seeking *accountability* to networked global publics, while having to deal with the growing practical sovereignty of platforms COHEN. Here the point is not to convert the platform into a State, but to recognize that practical sovereignty, when exercised through architecture and protocols, produces normative effects with enough density to demand control strategies compatible with the kind of power exercised. This lens allows the *Lex Plataformae* to be understood as government by infrastructure and, simultaneously, prepares the ground to discuss proportional duties of qualified transparency, contestability and restoration, without moralism and without simplifying fictions about market neutrality.

The recourse to Brandeis[393] (2011) at this point serves to structurally reinforce the diagnosis already established of the *Lex Plataformae* as practical normativity, avoiding both the moralization of private power and the statist leap. The usefulness of the exercise lies in making explicit an institutional parallel between two forms of concentration that operate through position and through the integration of functions. In the arrangement described by Brandeis, domination does not impose itself as formal public command, but as gradual control of essential circuits and as the capacity to coordinate decisions from the administration of other people's money BRANDEIS.

In the platform ecosystem, the direction of conduct stabilizes through the integration lementation architecture and scalable *enforcement*, combined with mechanisms of ranking, visibility

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dependent on opaque and mutable criteria. The comparison with Brandeis has a methodological function by shifting the focus from one's own wealth to power exercised by position. In this register, decisive influence is not born of wealth itself, but of the capacity to command third parties' resources and, with that, direct conduct and economic trajectories BRANDEIS. The usefulness of the parallel lies in showing that the legal problem is not reduced to a lack of information in the classic consumer law sense, but involves the capacity to order the possible through internal standards, with low institutional reciprocity for those who bear the effects, which authorizes demanding proportional counterweights in operational terms, especially qualified transparency, effective contestability and verifiable auditability.

The consolidation of this power occurs through the gradual unification of functions essential to economic life. Brandeis describes how distinct functions indispensable to business end up gathered in the figure of the investment banker, and attributes to this gathering the formation of the *Money Trust* BRANDEIS. From there, the historical form of the phenomenon becomes comparable to that of political despotism, since it is established by progressive usurpation, with incremental advance and not by violent acts of rupture BRANDEIS. The point here is functional capture through gradual occupation of essential roles until effective direction of the system is concentrated by position. This kind of capture is institutionally dangerous because it does not depend on visible rupture, since it reorganizes the field of the possible from within, altering who decides, who validates, who selects and who becomes dependent, while the external appearance may remain that of a free market with individual choices.

The mechanism of functional concentration produces a specific decisional pathology: the coincidence between who provides the service and who governs the object of the service, eliminating the distance needed to preserve the rationality and integrity of the decision. Brandeis is explicit as to the requirement of separation between banking activity and the financed business, because the accumulation of functions produces a structural conflict of interest BRANDEIS.

When the same agent acts as director of a railroad and, simultaneously, as the banker [illegible]ing the issue of securities, he controls, on one side, the business [illegible], on the other, the

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securities will be placed on the market, and may even direct them to himself as financial intermediary. In this configuration, deliberation ceases to be oriented by the best interest of the enterprise and comes to follow the rationality of the financial transaction and of value extraction.

The absence of this separation is not an episodic moral failure. It is a structural defect of the regime, because it converts the very architecture of the decision into a mechanism of asymmetry and opacity, hinders rational contestation of the grounds and naturalizes internal choices that respond to misaligned incentives.

The next step of the diagnosis completes the parallel with governance by information, because oligarchic regimes tend to govern not only by direct control, but by administration of perception and value, which shifts decisions to a logic of signals, reputation and visibility. The author describes this kind of rationality by showing how the decision-maker may orient his action by the probable effect on market value, keeping permanent attention to how facts will be read by investors and by the street BRANDEIS.

The institutional result is that decisions necessary for the good of the assets may be postponed to avoid unfavorable readings, preserving an appearance of value in the short term. Here a decisive model of opacity appears, because, when the rationality of the regime is oriented by signals and reactions of external observers operating with imperfect information, power comes to be exercised through control of the evaluation circuit, and not through public justification of the grounds of the decision. Contestability is compressed because the conflict ceases to bear on verifiable criteria and comes to orbit results and expectations modulated by internal mechanisms.

The usefulness of the parallel with *Lex Plataformae* lies not in equating banks and platforms as identical phenomena, nor in shifting the thesis to economic history. It lies in fixing an analytical grammar of private power capable of ordering conduct and distributing opportunities with low visibility of the grounds. Just as the *Money Trust* is formed by functional *encroachment*[394] and by control of the circuits of financing

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orm ecosystems stabilize when functions that could previously be be integrated in a

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This center defines internal parameters, incorporates these parameters into the architecture of the system and applies consequences at scale, with the capacity to administer access, visibility, reputation and permanence. Just as the "*banker-director*" comes to govern decisions from the standpoint of the market and of apparent value, governance by ranking, reputation, metrics and algorithmic screening comes to govern the possible and the probable from the standpoint of signal and legibility. In both cases, the problem is not reduced to "lack of transparency" understood as simple *disclosure*, because the core is a power to classify, select and direct that derives from the position occupied, produces collective effects and meets low institutional reciprocity for those affected.

The historical reinforcement helps establish a point of coherence. Informational domination here should not be confused with the "duty to inform" typical of the CDC. The problem is not reduced to an absence of communication to the consumer. The problem is the capacity to govern the ecosystem by internal criteria, by functional unification and by operational opacity, making access to the grounds of decisions structurally difficult and contestation, in ordinary terms, impracticable. The dogmatic consequence follows the same logic as the diagnosis.

If power is concentrated through the unification of functions and exercised through control of circuits and signals, the adequate response is neither nationalization nor a formal "public mandate", but the imposition of proportional and procedural counterweights that make the regime controllable. It is a matter of separating and managing relevant conflicts, defining standards of accessible reasoning, and of effective contestability and auditable mechanisms that allow the coherence, proportionality and grounds of decisions to be examined. It is in this sense that Brandeis functions here as reinforcement for the transition from diagnosis to the dogmatic demand for verifiable parameters, compatible with a regime in which enjoyment and position depend on private governance in continuous operation.

The normativity of *Lex Plataformae* is not limited to applying rules already given, because it includes the function of continuously producing and updating the very [illegible]cture participation in the ecosystem. The platform defines [illegible] of conduct, delimit[illegible]

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hypotheses of infringement, establishes metrics of performance and reputation and sets practical conditions of access and permanence that operate not only as statements, but as structuring criteria of the ordinary life of the environment. This power of normative production does not manifest itself as an exceptional event, since it stabilizes as an administrative routine in which policies, parameters and operating standards are recalibrated under the logic of maintaining the ecosystem, reorganizing what will be recognized as regular behavior, what will be treated as deviation and what will come to be penalized by downgrading, restriction or exclusion.

The passage from "rule production" to "rule existence" occurs when the normative statement ceases to depend on explicit command and comes to operate as a configuration of the environment itself. In this register, what counts is not only what the internal terms say, but what the infrastructure permits, encourages, blocks and makes costly, because it is in this layer that the norm is converted into an objective condition of possibility and into a practical range of conduct. The point drawn is that the rule is not exhausted by the text, since it is realized as an architecture that defines, with granularity, the permitted, the improbable and the practically impossible.

This lens is decisive for *Lex Plataformae* because it explains why the ecosystem governs without needing to present government as an isolated act of will. The implemented norm comes to operate before the conflict, shaping ordinary experience and delimiting, by design, the field of the possible. With this, the analysis can advance from the plane of internal declarations to the plane of implementation as the rule's mode of existence, showing how flows, permissions, frictions and mediations of visibility translate internal policies into practical conditions of enjoyment and, in this movement, reconfigure the very position of enjoyment that economically constitutes the IOC.

Implementation is the point at which *Lex Plataformae* ceases to be a textual promise and comes to exist as a practicable world. The internal rule, by itself, describes expectations and hypotheses of infringement, but it is architecture that converts these expectations into ordinary paths of behavior, delimiting entrances, exits and nmetric costs. Defaults, interface flows, confirmation sequences, permissions layers and selective friction

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orienting the user toward predictable paths and stabilizing the experience as a governed routine. The result is that the permitted is not only what is said to be permitted, but what is easy, what is sustained by defaults and what remains available without continuous friction.

This implemented normativity is also realized through the administration of time and visibility. Access windows, event calendars, return cycles and update rhythms distribute urgency and functional scarcity, turning the future into an operational resource of the ecosystem. In parallel, mediation by ranking, recommendation, feed and prestige metrics translates the rule into hierarchies of attention, converting recognition into a condition of permanence and reputation into a governed variable. Thus, implementation does not function as a simple neutral means of execution, because it defines what will be found, what will be comparable, what will be rewardable and what will be pushed to the periphery.

In the IOC regime, this point is decisive because the position of enjoyment is continuously shaped by these conditions of possibility, and not only by the declared content of the contract. The relevant economic object is not a one-off performance delivered at the moment of acquisition, but a trajectory of enjoyment sustainable over time, dependent on continued access, public legibility and the preservation of commensurability within the environment. When architecture reorganizes flows, alters patterns of visibility, recalibrates frictions and redesigns paths, it redefines enjoyment in practice without needing to "alter the contract", since it modifies the conditions under which the acquired position remains viable, recognizable and valuable. It is for this reason that *Lex Plataformae* must be treated as practical normativity in operation, since the implemented rule becomes the real mode of existence of the object and, consequently, the point at which the conflict ceases to be a dispute over clauses and becomes a dispute over the governance that defines the possible in the ecosystem.

The integration between rule and architecture is completed when compliance ceases to be a question of interpretation and comes to be measured and applied by the [illegible]. At this point, technical *enforcement* does not function as a later [illegible] execution, because

which deviations will be detected and which corrections will be demanded, replacing normative gradations with operational criteria that need to "fit" into code. Cohen draws attention to the institutional cost of this shift by observing that automated processes, although efficient, may not align well with legal requirements formulated in "shades of gray" and that removing human judgment from the *enforcement* loop raises difficult questions about how to define and audit compliance itself COHEN. The payoff for *Lex Plataformae* is direct. By converting standards into technical checks and shifting judgment into the system that measures and applies, the ecosystem comes to govern by criteria whose rationality tends to become opaque to those who suffer the effects, while making the sanction predictable and scalable.

This framing prepares the consequence that matters for the IOC. If the position of enjoyment depends on remaining eligible according to internal parameters, automated *enforcement* becomes a constitutive element of the object in practice, because it calibrates access, permanence and visibility through mechanisms that operate before any public dispute over meaning, proportionality and grounds. From there, the analysis can advance to the decomposition of the concrete forms of *enforcement* in the ecosystem, showing how blocks, restrictions, downgrades and exclusions operate as gradual sanctions that degrade enjoyment without needing to announce themselves as punishment.

Enforcement, under the regime of *Lex Plataformae*, does not present itself as a single and clear act, equivalent to the classic sanction applied after an uncontroversial violation. It is distributed in distinct layers and times, combining preventive barriers, subsequent responses and downgrading mechanisms that operate by adjusting access and visibility. With this, the norm ceases to depend on the moment when someone "declares" the infringement and comes to exist as a regime of administered enjoyment, in which the environment continuously anticipates deviation, filters conduct and reorganizes the experience to make certain behaviors improbable and others inevitable.

A first form is *ex ante enforcement*, in which the sanction operates before the conflict ›ssibility. Locks, interaction limits, feature blocks, barriers to ...aces and requireme...

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as preventive filters that, under the appearance of technical management, delimit ranges of permitted conduct. In these cases, the user does not properly encounter an explained prohibition, but a design that makes certain actions impracticable, risky or excessively costly. The consequence is discipline by architecture, because obedience is obtained by making things impossible and not by persuasion.

The second form is *ex post enforcement*, in which the ecosystem applies declared or partially declared sanctions after a moderation event or automatic detection. Temporary suspensions, bans, loss of access to content and gradual restrictions of use reorganize the trajectory of enjoyment and may break the continuity that sustained the value of the IOC. Here, the sanction is not only the interruption of a service, since it bears on the position acquired in the ecosystem. A suspension may disrupt cycles, events and reputation milestones; a ban may cut the trajectory of belonging; a functional restriction may downgrade the user to a residual experience that preserves the formal bond, but degrades effective enjoyment.

The third form is *enforcement* by visibility and reputation, which tends to be the most efficient and the most difficult to contest because it does not necessarily present itself as punishment. Reductions of reach, loss of prominence, degradation of ranking, fewer recommendations and algorithmic silencing may operate as sanctions that keep the user "inside" the environment, but in an inferior condition, with less access to recognition, fewer opportunities for public comparison and less capacity to sustain the socially legible position that gave value to enjoyment. This modality is central to the IOC regime, since it directly affects the positional component of the object. The relevant punishment is often not to expel, but to downgrade, because remaining inside, yet less visible, less eligible and less recognizable, is equivalent to degrading the position of enjoyment and corroding the value that depended on commensurability and validation in circuit.

This third form of *enforcement* can be clearly illustrated by the Honor System in *League of Legends*, which operates as a mechanism of gradual sanction by eligibility, reward and communication, modulating reputation and permanence without terminate the bond. In institutional terms, Riot itself describes [illegible] that "rewards sports

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"penalizes inappropriate behavior" through "reduced rewards" and "limited communication privileges" RIOT GAMES. The relevant sanction, in this design, is not only to prevent access to the game, but to shift the player to an inferior regime of enjoyment, in which the account remains active and productive, but loses access to goods, rites and signals that sustain the positional value of the experience.

When the platform lowers Honor and "locks" progression, this is not a symbolic gesture. It is a functional cut in the reward routines and in the promises of continuity that tie investment of time and consumption across seasons and content cycles. In direct language, Riot explains that, after a penalty, the user may enter a "reform period", during which he "will not be eligible to receive Chests and Keys" and will have his "Honor progress" locked, with a duration dependent on behavior RIOT GAMES. Governance by sanction, here, acts as discipline by friction. The player is kept in the environment, but the restitution of eligibility is conditioned on an opaque and gradual form of rehabilitation, which demands long conformity to recover reputational legibility[395].

This kind of downgrading operates as a "temporary civil incapacity" from the standpoint of the IOC. The subject remains inside the ecosystem, but in a lower band of recognition, with less access to rewards and with reduced interaction channels, which lowers both his capacity to sustain prestige and his capacity to participate fully in the everyday rituals of the game. The official description itself makes explicit that certain Honor levels remove communication features and benefits associated with seasonal rewards, which directly ties behavioral conformity to access to goods and to participation in the validation circuit RIOT GAMES. When this mechanism is observed alongside the structure of rewards by levels and checkpoints, it becomes even clearer that the loss of Honor is not a "moral demotivation" of the environment, but a material reconfiguration of eligibility and trajectory LEAGUE OF LEGENDS WIKI.

The same ecosystem reveals a second decisive dimension of *enforcement*, which is the passage from human judgment to a regime of scalable application, in which the control of conduct becomes fast, systematic and, therefore, structural. In the Instant

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iot states that users may be punished "within 15 minutes after the end of the match", and describes a

restrictions to permanent suspensions RIOT GAMES. In this logic, *enforcement* ceases to be an exceptional moment and becomes an ordinary feature of enjoyment. The legal consequence is that the sanction comes to compose the object itself, since it defines the practical stability of the acquired position and conditions the continuity of access on criteria whose detailed functioning is not fully revealed to the user, under justifications of efficiency, prevention of circumvention and management of scale[396].

This dynamic prepares the contrast with the extreme gesture of definitive expropriation. While Honor downgrades the account, restricts rewards and degrades enjoyment without formal expulsion, suspension and termination break the digital biography built under the regime of the ecosystem. The contract assumes this possibility as a permanent risk and, above all, defines effects that go beyond the simple interruption of the service. If the account is terminated, access is lost not only to the "game", but to the set of data and virtual content that structured the experience, besides asserting the absence of refund in cases of just cause RIOT GAMES[397]. The ban, in this framework, is not only punishment for conduct. It is the final form of reorganization of positional value, in which years of biographical, reputational and economic investment can be condensed into a total disconnection from the environment, with low institutional reciprocity for those who bear the effect.

Enforcement in platform ecosystems does not only apply a previously intelligible rule, because it operates on an environment in which the very criteria of decision and of distribution of opportunities tend to remain inaccessible to those who bear its effects. The consequence is that the asymmetry ceases to be reducible to an information deficit correctable by notice or generic disclosure, since it involves operational secrecy about intermediation and ranking mechanisms that define visibility, access and permanence. It is in this register that Cohen describes the user as an agent acting in an environment marked by operational secrecy, in which he cannot easily monitor the quality of the algorithmic matching service he has acquired nor verify whether the platform engages in undisclosed forms of preferential positioning COHEN. When

s structured this way, the user's experience is reduced to the

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weights and priorities, remains out of reach, compressing the possibility of discussing the coherence, proportionality and rationality of the act.

The compression of contestability becomes even more evident when one considers that these systems not only choose, but also classify, rank and stabilize practical patterns of normality, converting categorization into a mechanism of social ordering. In the formulation mobilized by Cohen, these disciplines characterize, classify and specialize, distribute subjects along a scale around a norm, rank individuals and, when necessary, disqualify and invalidate COHEN.

The relevant point lies not in importing a general theory of surveillance, but in establishing that, when the position of enjoyment depends on signals of recognition, reputation and eligibility produced by such mechanisms, the conflict comes to bear on a regime of classification whose functioning is barely verifiable and whose review becomes impracticable in ordinary terms. It is a matter of understanding that the controversy falls not only on a specific result, but on the very grammar that defines what counts as acceptable conduct, who is perceived as a legitimate user and which trajectories are made probable or improbable inside the ecosystem. Depending on how ranking criteria, trust thresholds, performance metrics and automated screening operate, the platform not only distributes visibility, but also produces effects of normalization, reinforcing dominant patterns and penalizing deviations through downgrading, blocking or loss of access.

For this reason, in the domain of *Lex Plataformae*, the opacity of criteria is not an external detail, but a constitutive element of an institutional asymmetry, since it prevents identification of the grounds that orient the decision, restricts the possibility of an informed response and hinders the construction of rational challenges that could circulate beyond the individual case. In dogmatic terms, this opacity bears directly on the capacity to contest the exercise of private power, because it makes the very existence of a reviewable parameter uncertain and renders unfeasible, in practice, minimum forms of adversarial hearing, justification and control. Without these counterweights, the operative norm remains an effective

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t converted into a stable object of scrutiny, and the review of its

effects tends to be limited to episodic and casuistic interventions, insufficient to rebalance the position of those affected.

From the moment internal rules, implementation architecture and *enforcement* mechanisms are integrated into a normative regime with practical effectiveness, but with operational criteria protected by opacity and functional secrecy, the central problem ceases to be the simple lack of information and becomes a deficit of institutional reciprocity. Operative normativity produces collective effects, distributes opportunities, defines eligibility and applies sanctions that reconfigure the position of enjoyment, but the affected subject tends to access only the results, not the grounds that produce them, which compresses contestability and prevents the conflict from being organized in verifiable rational terms, demanding proportional counterparts of verifiable reasoning and intelligible avenues of contestation.

The methodological usefulness of the article by Warren and Brandeis is to record that technical and organizational changes alter the mode of production of harm and may make insufficient categories previously apt to capture the conflict BRANDEIS. When new capacities of recording and circulation invade the private sphere, protection needs to reposition itself to preserve its effectiveness BRANDEIS. In this context, it is not enough to base protection on contract or trust, and it is necessary to resort to tort liability as a basis of protection BRANDEIS. This reconstruction demands calibration regarding relevant violations and mechanisms of harm BRANDEIS.

Lex Plataformae can thus be synthesized as a regime of practical normativity because it articulates, in an integrated way, rule production, architectural implementation and scalable *enforcement*, operating with high effectiveness in directing conduct and, simultaneously, with low contestability for those who bear its effects. By producing mutable internal parameters, converting these parameters into conditions of possibility through flows, permissions and mediations of visibility, and applying consequences through restrictions, downgrades and exclusions, the platform governs the range of the possible in the ecosystem and turns conformity into a requirement recognition. In this scenario, the conflict ceases to be a peripheral dispute over abstract clauses and come

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sanctions trajectories of enjoyment, continuously reconfiguring what counts as a sustainable position in the environment. For the IOC regime, the economically relevant object is not reduced to a one-off delivery, but consists of a position of enjoyment dependent on public legibility, technical eligibility and temporal continuity, all administered by this normative complex. For this reason, the decisive question is not only the existence of internal rules, but the way operative normativity organizes participation and distributes positional value, with collective effects that demand an institutional reading of the subject submitted to such government, a theme that imposes itself in the next step.

Recognizing that the *Lex Plataformae* operate as practical normativity does not depend on turning the platform into a State, but on admitting that the direction of conduct can be exercised by social organizations endowed with power, producing functional coercion and collective effects inside an ecosystem. In Grau, this shift is made explicit when he states that "the State is not the only social organization capable of positing law, that is, of producing posited law", breaking "definitively with the conception according to which law is necessarily a creature of the State" GRAU. The usefulness of this lens is methodological and critical at the same time, because it allows the platform to be described as an instance that institutes rules, administers sanctions and imposes conformity without naturalizing this order as destiny or market neutrality.

In this sense, the warning that "the legal order of the market prevails", understood not as something the market ontologically is, but as "the order it institutes" GRAU, blocks readings that would treat private normativity as a mere spontaneous outcome of exchanges. The consequence is to keep open the possibility of control and of demanding proportional counterweights, since what is described is an order effectively produced and sustained by decisions of design, implementation and *enforcement*.

At the same time, when law is understood as "a level of the social whole [...], in which social relations are expressed" GRAU, it becomes possible to treat internal rules, *enforcement* not as an external representation of the conflict, but as the very institutional materiality in wh

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and acquire meaning. This justifies directing legal analysis to the effective plane of operation of the ecosystem, without confusing the description of normative power with the automatic legitimation of its exercise.

If the direction of conduct can be exercised by organizations endowed with power, describing *Lex Plataformae* requires attention to the way internal rules, architecture and *enforcement* are realized in the ordinary routines of the ecosystem. This is the point at which access restrictions, visibility downgrades and eligibility changes come to bear directly on the position of enjoyment and on the positional value that depends on it.

If *Lex Plataformae* operates as practical normativity, integrating rule production, architectural implementation and scalable *enforcement* to organize participation, visibility and sanction, the subject submitted to this regime appears not only as a contracting party, but as a governed participant under conditions of belonging, eligibility and recognition that define his own position in the ecosystem. It is in this sense that the transition to the figure of the consumer-citizen imposes itself, since the consumption experience comes to include, inseparably, submission to private rules, to classifications and to correction mechanisms that structure social life in the environment. At the same time, once the normative functioning of the ecosystem and the deficit of contestability that accompanies it have been described, it becomes inevitable to advance toward instruments capable of converting this description into operational criteria of control, bearing on qualified transparency, minimum stability, avenues of contestation and restoration of enjoyment in terms compatible with the density of the power exercised.

NOTES

391. In O Direito Posto e o Direito Pressuposto (2008), Eros Roberto Grau offers a useful vocabulary for describing normativities that are not reduced to law in the strict sense. Understanding the legal phenomenon requires capturing normativity as it operates in social reality, with mechanisms of imposition, effects and institutional mediations. [illegible]th highlighting the conceptual core that Eros Grau's work offers for [illegible]mativities that cannot be reduced to statute in the strict sense. The distinction between posited law an[illegible]

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plane of reality and as a system of principles whose validity may emerge from organizations endowed with power to impose standards of conduct, producing collective effects and structuring practices. This vocabulary is mobilized with a precise methodological function, since it allows the *Lex Plataformae* to be understood as effective practical normativity, composed of internal rules, architectural implementation and enforcement mechanisms, without reducing the phenomenon to state law or to contractual autonomy. ↩

392. The author is widely known as Patricia Peck; however, the cataloging record of her work expressly indicates the last surname Pinheiro, which is why, in this thesis, in keeping with the ABNT standard and the required formal conventions, the author will be referred to by that surname and not by the more popular one. ↩

393. Entitled *Other People's Money and How the Bankers Use It,* the work of Louis D. Brandeis , originally published between 1913 and 1914 as a series of articles in the periodical *Harper's Week*ly, constitutes a structural critique of the formation of a financial oligarchy in the early twentieth century. Of interest here is only the characterization of the legal-institutional mechanism described by Brandeis. The focus falls not on wealth itself, but on the way investment bankers consolidate power through the administration of other people's money, converting intermediation into economic direction and turning financial dependence into practical subjection. This power is formed by the gradual unification of previously distinct functions, by the proliferation of "*interlocking directorates"* and by the erosion of the distance between banking and industrial management, which produces conflicts of interest and replaces criteria of efficiency and integrity with rationalities oriented to price, perception and market value. *Interlocking directorates* designates, for Brandeis, the practice of intertwining boards and interests in which the same person, or the same group, occupies directing positions in different companies, including rivals or companies that contract with each other, which expands conflicts of interest and facilitates anticompetitive coordination. The point is not only "one director on two boards", but the network of ties that allows decisions and contracts to be conducted through crossed circuits, reducing decisional independence and confusing fiduciary loyalties BRANDEIS. The critique is completed by associating concentration with inefficiency, highlighting the "*curse of bigness*" and remote management as incapable of governing operational complexity without degrading the quality of decision. In this sense, the "*curse of bigness*" is Brandeis's critique of the idea that size, by itself, generates efficiency. For him, when bigness is obtained through combinations and mergers and comes to be administered remotely, the result tends to be concentration of power with loss of decisional quality and practical inability to govern operational complexity without degradation, which turns "bigness" into a source of inefficiency and systemic

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394. Functional *encroachment* designate consolidated not by a single act of conquest, but by gradual, discreet and often barely

visible usurpation, which keeps shifting to the same group functions that, when exercised separately, tend to produce reciprocal controls and competitive balance BRANDEIS. It is not about moralizing the agent, but about describing an institutional mechanism of accumulation. The investment banker ceases to be a mere intermediary and comes to concentrate, at the same time, the structuring of financing, the issuing and organization of securities, the placement of these securities on the market and influence over the main buyers and depositaries of funds, such as insurers, banks and trust companies. The formation of the Money Trust stems, above all, from this union of distinct functions in a single position, because accumulation reduces friction between interests, captures the routes of validation and turns corporate decisions into decisions governed by the logic of the financial circuit. For this reason, encroachment is described as a subtle and long-lasting process, comparable, in its form, to the concentration of powers in political despotism, since the loss of economic freedom can occur without open rupture, merely through the recombination of competences in a single center (Brandeis, 2011, [p. 25-28]. In practical terms, it is a shift from "roles" to "position", in which whoever controls the position comes to direct railroads and industrial companies, influences insurance companies and also comes to command banks and fiduciary institutions, creating structural dependence and reducing the need to compete under symmetrical conditions. The relevance of the concept, in the proposed parallel, lies in showing that domination need not operate through absolute secrecy or absence of disclosure, because it can operate through the concentration of the coordination keys that define what is financeable, what is legitimate and what is seen as rational within the system. (Brandeis, 2011, [p. 25-28]. ↩

395. Riot explains, in an official guide, that a penalty may produce a bar on rewards even after the punishment ends. The text states that "you will enter a reform period" and that "during this period, you will not be eligible to receive Chests and Keys, and your Honor progress will be locked", further explaining that the end of the period "depends entirely on your behavior" RIOT GAMES. The same document details the "lock" by severity, indicating that chat restrictions "drop your Honor to level 1 or 0" and make the account "ineligible to receive rewards from the Hextech System" RIOT GAMES. The design reveals a discipline by friction: the user is kept in the environment, but the restitution of eligibility is conditioned on a prolonged path of rehabilitation. ↩

396. In the Frequently Asked Questions of the Instant Feedback System, Riot states that people who "are proven to cause a negative experience will be punished within 15 minutes after the end of the match", and explains that milder conduct may generate "restrictions" and more severe conduct may result in "permanent suspension" RIOT GAMES. The practical effect is to shift the sanction into routine, reinforcing a [illegible]ch conformity is continuously measured and applied at scale, and not exceptional situations. ↩

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397. Following the industry model, Riot contractually reserves to itself the right to terminate or suspend any accounts, provided it considers such a measure reasonable RIOT GAMES. The contract makes clear that the ban is not a mere interruption of access, but the loss of data and virtual content associated with the digital biography, in addition to making explicit the internal decision criterion ("reasonably determined"), which operates as a contractually admitted zone of discretion. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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CONCEPTS IN THIS SECTION

The law of the platform

When operative, a *Lex Plataformae* does not merely reorganize a one-off contractual exchange. It institutes a regime of participation. When access, permanence, visibility, reputation and symbolic circulation depend on internal criteria and on sanctions executed by design, the enjoyment of the immaterial object is no longer realized as an isolated delivery and comes to exist as a position sustained within the ecosystem, subject to unilateral reconfigurations presented as technical normality.

The subject of this relationship is not the abstract constitutional citizen, nor the neutral acquirer of an isolated exchange. It is a participant whose enjoyment depends on internal conditions of belonging and continuity, exposed to decisions that operate from within the ecosystem, by rule and by *enforcement*. Normativity qualifies positions and makes relationships operable.

Described as practical normativity in operation, the *Lex Plataformae* does not allow the norm to be treated as a simple "portrait" incapable of ordering relationships. In Grau, law appears as part of the very functioning of the social: "Law [...] is not a simple representation of social reality, external to it, but rather a functional level of the social whole. Thus, as a level of reality itself, it is a constitutive element of the mode of social production" GRAU. Through this interpretive lens, private normativity can be treated as a constitutive component of the arrangement of the ecosystem, capable of assigning practical conditions of presence, visibility and continuity to

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The consumer-citizen is the subject who acquires IOCs whose utility is realized as functional permanence in an ecosystem, and not as the isolated delivery of a transferred good. They are a consumer because there is acquisition and a legitimate expectation of enjoyment. They are a "citizen" only in the analytical sense that their presence in the environment depends on conditions of belonging and continuity set by private governance, with collective effects on recognition and symbolic circulation. Citizenship here has nothing to do with nationality, sovereignty or classic constitutional status. It designates practical conditions of participation and permanence in an environment governed by internal rules, architecture and *enforcement*, in which the unilateral alteration of these conditions reconfigures, in practice, the very object enjoyed. The relevant vulnerability is therefore not exhausted by contractual informational asymmetry. It appears as dependence on a private order that administers, by design and by sanction, the conditions of access, expression, commerce and permanence, producing effects that simple individual choice cannot neutralize. This characterization blocks the generic constitutionalization of the dispute and avoids the statist leap.

To delimit what is at stake without inflating the argument, the concept of digital citizenship is mobilized as a parameter, and not as a primer[398]. Ribble and Bailey maintain that digital citizenship should not be treated as a rigid set of rules, but as a conceptual lens for understanding the challenges faced by users of technology. Instead of fixing ideas as if they were definitive, the authors defend a guiding approach, aimed at offering criteria and modes of action that help the subject navigate a digital environment that is in constant change. Their formulation makes it possible to treat digital citizenship as an operational grid of what can be governed in the connected environment, without turning the discussion into user blame.

The nine dimensions proposed by Ribble and Bailey function as a minimal map of what makes up participation in the digital realm when enjoyment depends on stable insertion in the ecosystem. They are: digital access (*digital access*), digital commerce (*digital commerce*), digital communication (*digital communication*), digital literacy [illegible]tal etiquette (*digital etiquette*), digital law (*digital law*), digital rights [illegible] (*digital rights and r[illegible]*), [illegible] (*digital health and wellness*) and digital s[illegible]

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governed by *Lex Plataformae*, the dimensions cease to appear as competences of the subject and come to be affected by internal rules, architecture, curation and *enforcement*, becoming governed variables of enjoyment.

Access and literacy, in this framing, are neither a generic inclusion agenda nor a user education program. They are procedural preconditions of contestability within the ecosystem. When enjoyment depends on permanence and recognition, the relevant access is effective access to the functions that make it possible to understand the environment's regime of government, including internal rules, instruments of contestation, decision trails and practical consequences of sanctions or reclassifications. Along the same axis, literacy delimits how far the environment makes it possible to recognize what is happening, why it is happening and how to react, above all when criteria of visibility and of *enforcement* operate in an opaque or variable way. Without this floor, the informational asymmetry typical of consumption becomes an asymmetry of position. The rule change, the downgrading of reach or the suspension do not even become a verifiable and disputable object within the system itself.

When classifications, visibility criteria and eligibility standards operate without sufficient functional transparency, enjoyment turns into an administered result more than a contestable result. Cohen describes this condition in stating that the operational secrecy typical of the platform environment prevents buyers of these services from easily monitoring the quality of what they have acquired and makes it harder, more broadly, for users to identify whether the company engages in undisclosed forms of preferential placement. The legal-institutional effect is not to impute fault to the supposedly uninformed user, but to recognize that contestability is compressed by design. Vulnerability ceases to be an individual deficit and comes to take the form of administered dependence.

Participating requires executable conditions of speech and conduct. Communication and etiquette function as governable dimensions, because they are mediated by infrastructure and by private rule that distributes reach, organizes attention and :ough moderation, filters, ranking and metrics. On platforms, ot mere exchange b

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by infrastructure and by private rule that distributes reach, organizes attention and ranks relevance through interface design, moderation, filters, ranking and engagement metrics. What appears as "speech" is speech under technical and normative conditions that operate at the same time as a legitimate form of participation and as an instrument of sanction. Etiquette, in the same sense, is not a manual of good manners. It is the set of standards that the environment can convert into operational requirements of permanence and visibility, implemented by routines of detection, containment and penalization.

Ribble and Bailey capture the sociotechnical core of this dimension in noting that contemporary forms of mediated communication have created a new social structure that governs who interacts, in what way and at what moment BAILEY. The normative correlate appears when they define digital etiquette as the standards of conduct expected by other users of digital technologies[399] BAILEY. Read within this framework, communication and etiquette cease to be merely diffuse cultural traits and come to operate as governable dimensions of participation, because they structure expectations, define limits of tolerance and delimit the legitimate form of presence in the environment. In these ecosystems, the platform converts patterns of interaction and conduct into technically executable parameters of ordering and sanction, both through explicit rules and through mechanisms of moderation, ranking and restriction of reach. The impact falls directly on the enjoyment position of the consumer-citizen, which comes to depend on signals of conformity, reputation and acceptability produced and applied within the infrastructure itself, with effects on access, visibility, permanence and opportunities for participation.

Under the *Lex Plataformae*, the "law" does not operate as an external backdrop. It manifests itself as an internal rule that typifies conduct, defines infractions and executes consequences in the ecosystem's infrastructure. There is a structural mismatch. The platform demands conformity as a condition of participation and permanence, but concentrates the power to formulate the normative content, interpret its application and impose sanctions with little reasoning and little

ation. On this reading, the consumer-law lens needs to reach a

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responsibility will function as a techni

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Ribble and Bailey's own framing helps keep the focus away from a catalog of crimes and close to the social grammar of acceptability. The authors indicate that respecting laws related to digital technology is only one aspect of digital citizenship, without exhausting it BAILEY. The relevant core, for the reading mobilized here, lies in understanding the social reasons for adhering to these rules, critically assessing what is acceptable and considering how actions affect others in society BAILEY.

In platform ecosystems, this framework fits because internal standards of conduct, moderation and sanction cease to be a contingent detail of use and come to operate as a condition of permanence under *enforcement*. Participation becomes a position conditioned by normative expectations that are translated into operational criteria, applied at scale and with effects that reach access, visibility and continuity of enjoyment. Thus, the debate shifts from the isolated unlawful act to the regime of acceptability that the infrastructure itself institutes, in which the platform defines the threshold of the tolerable, administers deviation and turns adherence to patterns of interaction into a requirement of eligibility.

In the same model, rights and responsibilities describe institutional belonging, and not abstract values. Ribble and Bailey treat digital citizenship as a condition of full membership, in which each user must have rights equitably ensured, while at the same time assuming responsibilities and agreeing to live according to parameters that are mutually agreed upon by the participants BAILEY. These limits may take the form of legal rules, regulations or acceptable use policies, and the legitimacy of the arrangement depends, ideally, on the cooperative construction of a framework of appropriate use, at the risk of rules being imposed from the outside in BAILEY.

When these parameters are produced, interpreted and executed by private governance, the legally sensitive point is not to demand “good conduct” from the user. It is to delimit what can count as a legitimate parameter and which minimum guarantees make this demand compatible with the institutional asymmetry of the environment.

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in which the value of the IOC depends

reputation and continuity. Buying, subscribing to, activating or linking a service of this kind is not equivalent to acquiring an isolated good, but to adhering to a private order that defines conditions of use, eligibility and permanence and can reconfigure these conditions by rule, *design* and *enforcement*. For this reason, the typical risk captured by the lens of the CDC is not exhausted in price, quantity, quality or defect in the classic sense. The structural point is the unilateral reconfiguration of the mode of enjoyment and of the criteria that sustain the acquired position, including relevant changes of rules, access standards, visibility parameters, forms of ranking and sanction routines. In IOCs, the transaction buys governed participation, and the degradation of this participation may amount, in practice, to the loss of the enjoyed object itself.

Ribble and Bailey's formulation makes it possible to frame this dimension as mediated economic belonging, without any moralism and without reducing the discussion to individual virtues. In stating that anyone who works, plays or buys items online is part not only of a digital community, but also of an economic community BAILEY, the authors shift the gaze to the fact that presence in these environments involves, simultaneously, social interaction and insertion in circuits of value. For this framing, the point is to consolidate that the economic dimension is part of the very conditions of participation in the ecosystem, because enjoyment does not occur in a normative vacuum, but in a space of conditioned access, in which the platform defines the practical terms of permanence and circulation.

In IOCs, this dimension tends to materialize as maintenance of an enjoyment position in an administered environment, since internal rules, architecture and *enforcement* reconfigure not only the experience, but also the scope of what it is possible to do, see and continue doing. Economic belonging, in this sense, is not merely the making of a purchase, but dependence on an internal regime that administers eligibility, distributes visibility and decides the continuity of the bond. The consequence is that the legal discussion is not limited to the price or the content delivered, since it involves the daily governance of access and permanence, in which conduct and conformity with internal standards can directly

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ility of continuing to enjoy what was acquired.

The dimensions of health and wellness and of security complete the picture because, in platform ecosystems, they do not describe merely "risks of use", but structural conditions of permanence in an environment governed by metrics of performance, comparability and exposure. Enjoyment depends on continuous and recognizable presence, and this presence is stabilized by technical incentives of repetition, by regimes of visibility and by mechanisms of sanction that modulate attention, conduct and self-restraint. On this reading, wellness is an institutional effect of an architecture that produces intensity of engagement, pressure to update and functional risk of loss of access or reputational degradation. Likewise, security should not be read as mere individual prudence, but as self-protection in an environment in which informational asymmetry is the rule and in which the platform itself defines the standard of what counts as safe conduct, acceptable risk and incident response. In legal terms, this shifts the center of the problem to the configuration of risk by the supplier, through the design of flows, internal policies, authentication standards and routines of verification and contestation. The consequence is that integrity and identity cease to operate as strictly personal attributes and come to be administered as practical requirements of credibility and permanence.

The definitions proposed by Ribble and Bailey make it possible to sustain this framing with low noise, because they delimit "health and wellness" as the set of elements of physical and psychological well-being linked to the use of digital technologies BAILEY. In the same movement, the authors treat "security" as a practice of self-protection that is not exhausted in the individual. Thus, protecting equipment and data is also a duty with community effects, and digital security includes preventing harm to oneself and to others in the face of potentially harmful external influences, going beyond mere care for the hardware BAILEY. Read under the *Lex Plataformae*, these dimensions cease to be advice to the user and come to operate as points at which the ecosystem administers risk, permanence and credibility.

Once the *Lex Plataformae* has been described as practical normativity in operation, the subject of immaterial consumption cannot be reduced to an acquirer. Enjoyment depends on conditions of access, permanence, visibility, communication and

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ered by internal rules and by *enforcement*. The appropriate figure is that of the consumer-citizen, consu

and “citizen” in the analytical sense that they participate under private normative conditions that organize belonging and continuity, with collective effects on recognition and symbolic circulation.

In this framework, Ribble and Bailey provide a minimal grid for naming what is at stake in this participation without moralizing individual competences. When these dimensions are governed by private architecture, curation and sanction, they become institutional variables of the product itself and, therefore, a matter of structural vulnerability. Hence the need for reinforced duties of the supplier compatible with the power exercised, aimed at making controllable rule changes, reconfigurations of access and *enforcement* measures that degrade the acquired enjoyment position.

The passage from consumption to governed participation shifts the problem to a plane in which vulnerability ceases to be a mere informational deficit and comes to take on institutional density, because enjoyment depends on conditions whose meaning and application take place within the ecosystem. It is this kind of mutation, when technical changes and market arrangements alter the mechanics of harm and render usual categories of protection insufficient, that authorizes legal reconstruction[400].

When technical mediation converts interaction into screening and permanence into performance, coercion tends to operate as administered freedom. Han describes this mechanism in maintaining that the digital society of control makes intensive use of freedom, precisely because it depends on voluntary self-exposure and self-transparency to function[401] HAN. In this framework, exclusion and degradation of reach cease to be accidents and come to figure as a functional risk of a regime of governed participation, in which permanence depends on continuous alignment with operational and reputational standards.

In view of this, the next step requires neither rhetorically broadening the critique nor nationalizing the platform. The necessary movement is to convert the diagnosis into operational normative criteria that bear precisely on the points at which private access, permanence, communication and sanction. For this d controllable para reinforced duties compatible with the asymmetry, such as qualified transparency,

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minimum stability of enjoyment conditions, restoration in the face of degrading changes or sanctions, open auditability and functional equivalence, articulated with the axes of integrity and identity.

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398. *Digital Citizenship in Schools*, by Mike Ribble and Gerald Bailey (2007), organizes the debate into a finite set of dimensions and has become established as a recurrent reference in the human and social sciences. Its usefulness, here, lies not in prescribing individual virtues, but in offering a stable taxonomy for naming practical conditions of participation in the connected environment that, in platform ecosystems, can be administered by internal rules and by infrastructure of classification and sanction. Incorporating this grid gives contour to what is understood as participation in the digital realm and prevents the problem from being reduced to contractual etiquette or shifted to individual responsibility. The full procedure of the integrative review carried out to select the theoretical framework regarding the concept of digital citizenship presented is available in the article entitled "Buscando um conceito operacional de cidadania digital: uma revisão integrativa da literatura estrangeira no pós-COVID-19", published by the author, co-authored with professors Vanessa Corsetti Gonçalves Teixeira and Luciana Lopes Canavez, in INTER, Revista de Direito Internacional e Direitos Humanos of the Federal University of Rio de Janeiro ANDRADE. ↩

399. "Responsible digital behavior makes every user a role model for students. Students watch how others use a technology and assume if others can use it in that manner, so can they. [...] Behavior that may be considered poor digital etiquette by older users may be viewed very differently by students. When students see adults using technologies inappropriately, they assume that this is how they should act." BAILEY. ↩

400. Warren and Brandeis formulate this method in stating that "now that modern devices afford abundant opportunities for the perpetration of such wrongs without any participation by the injured party, the protection granted by the law must be placed upon a broader foundation." BRANDEIS. The same rationality applies when technical mediation converts enjoyment into an administered position and reconfigures, within the ecosystem, the conditions of belonging and continuity. ↩

401. For Han, the turn of digital control lies less in surveillance "from outside" and more in the active adherence of the participants themselves, who communicate, expose [illegible] d feed the system as a condition of belonging: "Initially, the internet was [illegible] medium of boundless liberty. [...] Today, unbounded freedom and [illegible]n are switching over [illegible] social media resemble digital pano[illegible]

exploiting it mercilessly. [...] Jeremy Bentham's panopticon isolated inmates from each other for disciplinary purposes and prevented them from interacting. In contrast, the occupants of today's digital panopticon actively communicate with each other and willingly expose themselves. That is, they collaborate in the digital panopticon's operations. [...] Accordingly, data is not surrendered under duress so much as offered out of an inner need. That is why the digital panopticon proves so efficient." HAN ↩

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CONCEPTS IN THIS SECTION

Semiotic vulnerability

If the platform simultaneously governs meaning, access, reputation and sanction, the starting point is not "information" understood as content communicated to the consumer, but the regime of intelligibility of the ecosystem itself. What is in dispute, in the consumption of IOCs, is the possibility of enjoyment existing as a stable and recognizable position over time. This position depends on a grammar of signs that makes the experience legible and comparable, on access paths that make certain practices possible and others impracticable, on circuits of visibility that convert recognition into a condition of value and on devices of *enforcement* that reconfigure the continuity of enjoyment through restrictions, downgrades and exclusions. When these four dimensions are administered by the same decision center, vulnerability ceases to be merely an asymmetry regarding contractual data and becomes structural dependence on the way the environment produces value, distributes belonging and decides permanence.

Semiotic vulnerability arises because, in this kind of supply, the object is not "worth" something only for the content delivered, but for the socially operable meaning that the ecosystem manages to stabilize around the user's position. The environment decides which signals will be sufficient to produce prestige, which metrics will define performance, which categories will organize comparability and which marks of trajectory will be preserved as recognized memory. Thus, the consumer faces not only information about price, risk or limitations, but the practical tering the vocabul meaning to what was acquired. The de

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production of legibility and commensurability of the object itself; it is institutional because this production is concentrated, mutable and scarcely verifiable for those who bear its effects.

This vulnerability becomes more acute when the governance of meaning is coupled with the governance of access. The platform not only describes what the user "can" do, but implements the range of the possible through architecture: permissions, frictions, interface patterns, verification requirements, calendars, availability windows and interaction sequences. The consequence is that the consumer's formal autonomy turns into administered autonomy. Deviant conduct need not be prohibited; it suffices that it be made expensive, slow, invisible or technically impracticable. Access, here, is a normative-operational category: it defines what exists as a real possibility of enjoyment and, therefore, is part of the very content of the supply.

Next, the platform governs reputation and visibility as variables of value. The user's position in the ecosystem is not merely "being inside", but being found, being considered eligible, being comparable and remaining recognizable under signals that circulate publicly. *Rankings*, performance metrics, signals of prestige, recommendations and forms of highlighting operate as the economic language of the environment: they convert attention into opportunity and convert recognition into permanence. In this layer, vulnerability is not an individual weakness, but rather the fact that the positional value of the IOC depends on internal criteria of classification and exposure that can be unilaterally recalibrated, without sufficient publicity of the grounds and without proportional means of contestation. Reputation, therefore, is not a side effect of consumption, but rather a governed component of the enjoyed object.

The integration of these dimensions is completed by *enforcement*. Sanctions, downgrades and restrictions do not function as an exceptional response to a fully intelligible infraction, since they operate as gradual instruments of everyday governance. A decisive part of *enforcement* occurs through visibility and eligibility: ...ut less findable, less rankable, less recommended and less ...ognized may amount to a relevant l...

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value. The sanction, in this arrangement, need not present itself as clear punishment to produce functional dispossession. It suffices to reorganize the conditions of access, reputation and continuity of enjoyment so as to degrade the acquired position, maintaining the formal bond while altering the practical core of what was enjoyable.

In view of this design, legal control cannot be reduced to a checklist of abusive clauses, because the injury may occur without textual alteration and without evident contractual breach. The effective shaping of the IOC is produced by continuous operations of the ecosystem, and the central risk is the unilateral reconfiguration of enjoyment by opaque operational criteria. Clauses are relevant, but do not exhaust the phenomenon, since the decisive power lies in the capacity to define and execute, through infrastructure, the parameters of legibility, comparability, eligibility and sanction. The focus of control needs to fall on the practical rationality of the regime: which criteria exist, how they are applied, how they can be verified and which avenues of contestation are effectively usable.

Hence the demand for operational and institutional criteria. Qualified transparency does not mean "more information" in the abstract, but intelligibility of the criteria that structure enjoyment: classification standards, recommendation parameters, minimum reasons for downgrades and restrictions, explanation of the type of conduct or signal that triggered the measure, and communication capable of enabling an informed response. Effective contestability requires that the challenge not be a mere ritual, but an avenue with deadlines, stages, access to minimum elements of the grounds and a real possibility of review. Verifiable reasoning is not justificatory rhetoric; it is the minimum form of transforming decisions into examinable objects, making it possible to control coherence, proportionality and non-discrimination.

Open auditability comes in as a requirement of external verifiability and of control over "how" the decision was produced. It is not a matter of demanding full exposure of trade secrets, but of making decisive categories auditable, including *logs* and records of measures applied, decision trails, general eligibility criteria, error statistics, [illegible]sms, and guarantees that the system does not operate by [illegible]uriness. Auditabilit

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with scrutiny beyond the unilateral account of the platform itself, lest contestation remain blind and the conflict remain trapped in the result.

Functional value equivalence operates as a yardstick to capture the point at which the platform preserves the formal appearance of the supply, but degrades its real utility. If the IOC is an enjoyment position in a governed environment, reducing functionalities, limiting relevant access, imposing asymmetric frictions, downgrading eligibility or reorganizing visibility may substantially alter what the consumer is able to do, even without "removing" the nominal object. Functional equivalence makes it possible to frame these mutations as a possible loss of the object in its economic core, requiring restoration when the enjoyment delivered ceases to correspond, in operational terms, to the legitimately expected level.

Integrity and identity complete the path because, in the IOC regime, they are not mere subjective adornments, but rather structural dimensions of value when the ecosystem governs belonging and continuity through reputation, social memory and recognized trajectory. Integrity, here, concerns the minimally consistent preservation of the conditions of enjoyment and participation that allow the consumer to remain legible and operative, without arbitrary reconfigurations that destroy the practical unity of the experience. Identity, in turn, designates the recognizable continuity of a position built through records, repertoire, signals of prestige and bonds, whose destruction through downgrades or exclusions may produce functional dispossession and collapse of commensurability. When these elements are administered by the infrastructure, they become legally relevant as part of the protected object: the platform administers not only access to utilities, but the possibility of continuity of a socially recognized position that was economically built within the ecosystem itself.

Thus, the transition from semiotic vulnerability to operational criteria is not rhetoric of protective expansion. It is a reconstruction of the point of incidence of control: from the textual promise to the effective regime of value production, in which meaning, access, reputation and sanction are integrated as a mechanism of private governance. If the power that reconfigures enjoyment is exercised through

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ough information, the legally adequate response requires

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contestability, auditability, functional equivalence and mechanisms of restoration proportional to the density of the dominion exercised.

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The legal problem of continuous digital consumption calls for parameters of qualification, proof and attribution that neither depend on material analogies nor stop at the contractual text. The dogmatic task is to make consumer protection operational in an environment in which enjoyment is modulated by private architecture, rules and *enforcement*, and in which unilateral changes can degrade value and delivery without formally suppressing access.

In this register, the reconstruction of the immaterial object of consumption is consolidated as a concretization of the "immaterial product" provided for in Article 3, paragraph 1, of the Consumer Protection Code. The decisive point is that, in platform ecosystems, the object does not present itself as a stabilized thing, but as a bundle of functional and symbolic enjoyment that depends on regimes of access, visibility, updating and governance. For this reason, adequate protection requires recognizing two complementary dimensions. Functional integrity, linked to performance, to the conditions of use and to the utility actually delivered. And symbolic integrity, linked to belonging, reputation, distinction and promises of identity mediated by signs and by the environment's internal equivalences, when these elements form part of the performance as offered and perceived.

The consumer-law reconstruction of the IOC also requires a check on the nominalism that separates "product" from "service" by label, without reaching the substance of governed enjoyment. To this end, Rizzatto Nunes[402] is drawn on to support a sufficiently broad reading of the concept of product in the CDC, capable of encompassing borderline zones in continuous and mediated arrangements, without dissolving criteria. This broadening has no rhetorical function. It serves to

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tion of the consumer regime when delivery takes place as an enjoyment bundle dependent on archi

Conceptual discipline and the intersubjective controllability of attributions are treated as a condition of validity of the proposed regime. Thus, Karl Larenz[403], Tércio Sampaio Ferraz Jr.[404] and Humberto Ávila[405] are drawn on as methodological checks against elastic categories that explain everything and prove nothing, above all in matters of evidentiary difficulty and of objectively confronting the technical opacity of platforms.

Along the same axis, Claudia Lima Marques[406] establishes vulnerability as a structural feature of the consumer relationship and as a guide for protection in long-term relationships; Ricardo Morishita Wada[407] dispels the illusion that volume of information restores autonomy, requiring qualified intelligibility, comparability and practical usefulness; Miguel Reale[408] offers the key to integrating facts, values and norms, making it possible to bring regularities of the technical environment back to legal categories without voluntarism; and Roberto Mangabeira Unger[409] comes in at specific points to provide grounds for resisting the institutional fatalism that mistakes contingent arrangements for technical imperatives and to reinforce bringing governance by architecture back into the field of what can be protected by Law.

The *Lex Plataformae* is treated here as the contemporary form of practical normativity exercised by protocols, flows, interfaces, sanctions and private adjudication procedures that organize consumption within an environment. The consumer bond comes to be governed not only by clauses but by design and continuous execution, with structural asymmetries of contestation and proof. This shifts the problem of abusiveness beyond the textual content of the contract and calls for criteria capable of attributing liability for architectural decisions that downgrade enjoyment, alter equivalences and reorganize the consumer's experience even when there is no traditionally identifiable “defect” in a product or service.

In this sense, abusive teleology is stabilized as a controllable unlawful act of architecture. This is not an effort to prohibit changes, technical evolution or the necessary internal rebalancing of digital systems. The issue is recognizing the need to te change, compatible with good faith, transparency and social ge that diverts the governance into a mechanism for the extraction and unilateral recomposition of

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value, with a relevant downgrading of the enjoyment bundle. Abusive teleology appears when a technical, contractual or *enforcement* mutation reorganizes delivery so as to preserve the nominal existence of the object while degrading its functional or symbolic substance, exploiting the asymmetry of controllability and the consumer's dependence on the environment.

To allow institutional control and minimally intersubjective proof, two operational parameters are then set. First, open auditability, characterized by the requirement that changes relevant to enjoyment be traceable and intelligible, including access rules, modulations of delivery and sanction mechanisms, so that what opaque systems produce becomes contestable. And, immediately after, functional value equivalence, as a criterion for assessing whether the change preserves the content delivered in terms of the promised utility and experience, preventing formal substitutions from being used to cover up substantial losses. These parameters work as comparison grids to distinguish legitimate evolution from abusive practice, without requiring technical freezing or ignoring the dynamic nature of the object.

The dialogue with the legislative framework of intellectual property rights and with the Brazilian constitutional-economic order enters as a structural element of the regime, since exclusivities, interfaces and access regimes act as an infrastructure of power and must therefore be read within the limits of good faith, transparency, social function and controllability. When enjoyment depends on proprietary grammars and on unilaterally administered access conditions, exclusivity is not merely a legal title. It becomes a condition of governance, with a direct impact on the content delivered and on the consumer's position in the ecosystem. Legal control, therefore, must reach the way this infrastructure is used to modulate value, impose frictions, degrade equivalences and administer permanence.

The ultimate objective is to deliver an applicable regime: criteria for qualifying the IOC, identifying the relevant injury in unilateral mutations and private sanctions, structuring proof of the degradation of the enjoyment bundle and attributing abusiveness in a controllable way, with merely illustrative and referenced use of mpirical laboratory where indispensable to establishing ut any claim to aut

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conclusions and the guidelines for institutional protection, shifting the debate from "inevitable change" to verifiable standards of legitimacy in the governance of continuous consumption.

NOTES

402. Doctor of Philosophy of Law and livre-docente in Consumer Law from the Pontifical Catholic University of São Paulo (PUC-SP), Luiz Antonio Rizzatto Nunes is a Brazilian jurist and professor with a distinguished career in Consumer Law and in the São Paulo judiciary. ↩

403. Doctor of Law with habilitation from the *Georg-August-Universität zu Göttingen*, Karl Larenz was a German jurist of great influence on Civil Law dogmatics and on twentieth-century legal methodology. He had a long teaching career, with notable periods at Kiel and, from 1960, at München, becoming a reference for systematically organizing problems of interpretation, dogmatic construction and the structuring of obligations in private law. ↩

404. Doctor of Philosophy from the *Johannes Gutenberg-Universität Mainz* and Doctor of Law from the Faculty of Law of the University of São Paulo, under the supervision of Miguel Reale, Tércio Sampaio Ferraz Jr. is a Brazilian jurist and legal philosopher recognized for his contribution to legal theory and the philosophy of law, in close dialogue with language, pragmatics and legal decision-making. He was a full professor in the Department of Philosophy of Law at FDUSP and remains active academically and institutionally in legal theory, dogmatics and legal methodology. ↩

405. Doctor of Law from the Ludwig-Maximilians-Universität München, Master of Public Law from UFRGS and livre-docente in Tax Law from the University of São Paulo, Humberto Bergmann Ávila is a Brazilian jurist recognized for his contribution to legal theory and public law, with an emphasis on the theory of norms, argumentation and tax law. ↩

406. Doctor of Law (*summa cum laude*) from the *Ruprecht-Karls-Universität Heidelberg*, with a master's in Law from the *Eberhard-Karls-Universität Tübingen* and specialization at the *Universität des Saarlandes*, Claudia Lima Marques is a Brazilian jurist and professor recognized as one of the leading authorities on Consumer Law in the country, in close dialogue with European and German Law. She is a full professor at the UFRGS Faculty of Law and works on consumer protection agendas at the national and transnational levels, including as chair of the Committee on International Consumers of the *International Law Association* (ILA). ↩

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Wada is a Brazilian jurist with a dis

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academic path with significant service in public administration. He was director of the Department of Consumer Protection and Defense (DPDC) of the Ministry of Justice from 2003 to 2010 and later worked as a professor and research coordinator in Consumer Law at the Center for Justice and Society of FGV Direito Rio (2010-2014). ↩

408. Doctor of Law from the Faculty of Law of the University of São Paulo, Miguel Reale was a Brazilian jurist, legal philosopher and public intellectual whose work had a direct impact on the general theory of law and on the shaping of legal dogmatics in the country. He held the chair of Philosophy of Law at USP and twice served as Rector of the University of São Paulo (1949-1950 and 1969-1973). ↩

409. Roberto Mangabeira Unger is a Brazilian social philosopher, jurist and public intellectual, with a law degree from the Federal University of Rio de Janeiro and graduate degrees in Law from Harvard (LL.M. and S.J.D.), where he became a professor and went on to hold the chair of *Roscoe Pound Professor of Law* at *Harvard Law School*. Associated with the *Critical Legal Studies* movement in the United States, his work combines legal theory, social theory and political economy, focusing on the critique of "false necessity" and on the idea that institutions and social arrangements are historically contingent artifacts, open to revision and reconstruction. In Brazilian institutional life, he served in government as Minister-Chief of the Secretariat of Strategic Affairs of the Presidency (2007- 2009 and 2015). ↩

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Having set the general frame of the IOC regime, the next step is to present its structuring categories in a dogmatic key, so as to make manageable what has so far been stated as apparatus. The central question, at this point, is not to repeat the map of the regime, but to show how the categories connect to one another and why this connection is what sustains the legal controllability of continuous platform-governed consumption. Without this internal articulation, each category could be read in isolation, as a conceptual label for a specific problem, and would lose the capacity to operate as a unified language for abuses by design, relevant degradations and proportional responses.

The starting point is not the object, but the position of the consumer that this object meets. Semiotic vulnerability names, in a legal key, the structural inequality of intelligibility and agency that defines this position in environments in which value, belonging and recognition are mediated by signs, visibility regimes and internal metrics administered by the supplier itself. Presenting it first is not an arbitrary expository choice, but a recognition that it functions as a key for reading what follows. Without understanding that the consumer inhabits an environment whose intelligibility is partially reserved to the supplier, the definition of the Immaterial Object of Consumption as an enjoyment bundle sustained over time would appear as a mere technical description of the digital good, and not as a category that organizes attribution, proof and restoration under the Consumer Protection Code.

Once the position of the consumer and the object that this position sees have been identified, there follows the description of the unlawful act that may operate between the two. Abusive teleology occupies this place as an unlawful act of architecture, that

Skip to content bution that reaches exploitative purposes inscribed in the technical-organizational design of the

commands. Its formulation depends on the two previous categories. There is no legally capturable abusive teleology without the structural asymmetry that it exploits, nor without the enjoyment bundle that it degrades, which is why the test of five cumulative requirements, developed in its own subsection, only becomes applicable when semiotic vulnerability and the IOC have already been dogmatically fixed.

Next, personal integrity comes in to name the legal interests whose erosion constitutes the relevant injury. It is a category with two faces that operate together, and not as separate categories. The functional face protects the performance, use and utility actually delivered. The identity and symbolic face protects belonging, reputation, distinction and the promise of recognition mediated by signs of the environment. The two faces must be considered together because the enjoyment of the IOC is not realized by separating one from the other, and because relevant degradation in continuous consumption usually falls on both at once, as happens when a unilateral reconfiguration preserves technical access but downgrades the consumer's reputational or symbolic position in the ecosystem.

Finally, open auditability and functional value equivalence close the regime as operational criteria without which the whole apparatus would remain merely declaratory. Open auditability requires minimum verifiability about what was promised, about what was changed and about the criteria of visibility, restriction and sanction, without confusing this requirement with total transparency or with indiscriminate disclosure of industrial secrets. Functional value equivalence provides the substantive yardstick to distinguish ordinary variation of digital dynamics from significant degradation of the enjoyment bundle, preventing every update from being treated as an unlawful act and every restoration from being reduced to economic restitution that ignores what was really contracted and lived.

The gearwork formed by these five categories is not a catalog of independent problems nor an inventory of topics related by affinity. It is a dogmatic articulation in which semiotic vulnerability describes the condition, the IOC describes the object, abusive teleology describes the unlawful act, personal integrity describes the

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CONCEPTS IN THIS SECTION

Semiotic vulnerability

The development of the structuring categories of the regime of the Immaterial Object of Consumption thus begins with semiotic vulnerability, established as a specific form of vulnerability in platform-governed markets of enjoyment and serving as the legal translation of the already consolidated diagnosis of continuous consumption, practical normativity and governance by infrastructure. Enjoyment is not merely promised in the abstract, but continuously shaped by an environment that implements rules, orders priorities, modulates visibility and executes sanctions, so that access, permanence, circulation and reputation become part of the very mode of existence of the object. The purpose of the category is to offer a key for description and control capable of representing the decisive inequality in these environments, in which value, belonging and recognition are mediated by signs, by regimes of visibility and by internal mechanisms of commensuration.

The relevant vulnerability does not arise, therefore, from one-off informational asymmetries, but from a structural asymmetry of intelligibility and agency in relation to the arrangement that governs enjoyment. When the environment controls the parameters of appearance, recognition and commensuration that structure value and belonging, and keeps opaque the criteria for distributing consequences, the possibility of planning conduct, anticipating effects and contesting decisions is structurally weakened. The problem then shifts from "knowing more" to "being able [illegible] react". That is, enjoyment may remain formally accessible and, [illegible] ough chronic insta[illegible] contestability.

Semiotic vulnerability may be defined, in summary, as the objective condition of the consumer's exposure to a structural inequality of intelligibility and agency in platform-governed ecosystems of enjoyment, in which the production of meaning and the attribution of value depend on codes, metrics and regimes of visibility administered by the environment itself. It is vulnerability because the consumer finds themselves subjected to internal criteria that qualify conduct, rank appearances and shape objective conditions of enjoyment derived from the nexus between the promise of the object, as presented in the offer, and its effective delivery, as executed by the architecture of the service, without having equivalent means to fully understand the operating logic, contest its parameters or influence the distribution of consequences.

By way of illustration, the *mobile* version of the empirical laboratory studied is taken as a reference. If, on the computer, the intermediate currency already shifts the price into the fiefdom and forces the consumer to make conversions to understand how much what was bought costs, in *League of Legends: Wild Rift* this same logic is reorganized for an environment of compartmentalized attention, notorious for facilitating impulse decisions. In the *mobile* environment, it is not enough to translate reais into an internal currency. Value itself comes to be distributed across a constellation of economic signs that coexist at the same time, with different functions and different access, which prevents the consumer from stabilizing a simple cost reference. The game's paid currency fulfills this role of gateway, but it does not close the account, because consumption branches into parallel currencies linked to rewards, performance and events, and each one creates a small circuit of its own within the same service RIOT GAMES +1[410].

The consequence, here, is not “complexity” in the neutral sense, as if it were merely a variety of systems. What sets in is a structural inequality of intelligibility. The consumer no longer deals with a price that can be compared and audited in a straight line, and instead deals with multiple internal grammars that require situational reading, because each currency “speaks” a different language. In the classic *desktop*

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sible to reconstruct, calmly, the equivalence between the item acquired, ab

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dominant monetary core. In the *mobile*

holds. The experience is designed to operate in fragments of time, and value itself is fragmented along with it, as if the platform were telling the consumer that understanding "how much it costs" is a private effort, which needs to be produced within the game, "however possible" and "with whatever attention is left". This difficulty is not a neutral side effect of the variety of systems, but operates as a deliberate puzzle, transferring to the consumer the burden of deciphering an economy that the environment designed to be costly to read.

This becomes even more evident when one analyzes how consumption is remodeled into strictly temporary microeconomic dynamics. Events set up their own stores, with their own currencies that exist and remain valid under their own individual deadlines. Enjoyment, then, depends not only on the purchase, but also on the ability to keep up with short windows, spend at the right time and accept that certain balances expire. For the consumer playing with partial attention, in intervals, the intelligibility of value comes to depend on a schedule and on a set of internal conversions that are updated as content flows. The urgency need not be shouted, because it is already embedded in the mode of operation, insofar as *tokens* are tied to dates and cease to exist after a certain period RIOT GAMES[411].

Likewise, the instability of the real cost is not limited to the internal design of the store. It also appears when the platform adjusts economic parameters by region and runs bonuses that reconfigure, window by window, the perceived advantage of buying paid currency. As a result, the consumer faces not merely an intermediated price, but an intermediated price whose "purchasing power" is affected by future decisions and by promotional regimes, so that external equivalence becomes even less able to serve as an anchor of control. What, on PC, was already opacity induced by conversion and by bundles becomes, on *mobile*, an even more asymmetric condition of use, because consumption occurs under intermittent attention and under an economic regime that multiplies, expires and recalibrates RIOT GAMES[412].

The qualification as semiotic is not anchored in individual deficits of attention, reading or rationality, nor is it to be confused with a psychological description of use.

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ure of the sign system that organizes the experience and that conditions what appears as delivery, as

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ecosystem. Under the theoretical lexicon of Umberto Eco , the environment not only communicates information about the object, but structures the field of interpretation in which enjoyment becomes intelligible, so that control of the decisive codes and mediations reconfigures the very possibility of decoding and reaction by the consumer.

At this point, before going further in describing how semiotic vulnerability operates today in platform-governed ecosystems, a basic methodological point should be fixed. The inequality of intelligibility that structures enjoyment and its relevant losses is not born with the digital. It is an earlier mechanism, linked to the unequal distribution of decoding competence and to the monopoly of codes that condition access to understanding, to participation and to power. It is in this sense that Warat[413] and Gnerre[414] are drawn on to establish, in controllable language, that decoding asymmetry is a mode of power asymmetry and that specialized languages can operate as barriers of exclusion.

Warat makes this core explicit when treating the semiology of power as an analysis of how signification can function as an instrument of social control, a normalizing and disciplinary strategy and a consensus-producing formula, capable of fabricating effects of verisimilitude over the material conditions of social life WARAT. In this key, the asymmetry of intelligibility is not a psychological defect of the consumer, but a discursive technology of government. Objectively, the author maintains that the legitimacy of power depends on discursive work and can be obtained through suitable manipulation of words, which shifts the appearance of publicity and formal validity to the plane of its strategic production WARAT.

This operation is reinforced when one recognizes that the stability of meaning is sustained by prior ideological coincidence, so that the belief in normative univocity and in the unalterability of signifiers does not stem from naivety, but functions as a condition of social efficacy of the ideal of the rational legal norm WARAT. For this reason, obedience can be produced without explicit command, since the social idiom tends to constitute an ordered subjectivity, making it possible to dispense with

Skip to content d converting it into signifying violence or imaginary violence,

through which social cohesion is maintained by means of the creation of phantasmatic significations[415] WARAT

Gnerre describes language as a mechanism for blocking access to power, stating that "language constitutes the most powerful barbed wire for blocking access to power" GNERRE, and defines the social function of closed codes in noting that "special languages" "exclude from communication the people of the linguistic community external to the group that uses the special language"[416] GNERRE. In platform-governed ecosystems of enjoyment, this mechanism tends to be radicalized when the grammar of signs, metrics and visibility, which is part of the performance itself, comes to be administered and executed as infrastructure, converting inequality of decoding into practical inequality of agency and contestation in the IOC regime.

In the empirical laboratory under study, this mechanism can be observed without any theoretical sophistication, merely by paying attention to the use of a single word. Upon entering the *League of Legends* store, the command offered to the consumer user displays the word "buy". This is not a neutral verb. Both common sense and even the Brazilian Civil Code itself[417] use the verb "buy" in the sense of acquiring something that becomes "yours", meaning that one expects minimum stability, permanence and some form of control over what was acquired. Even when one knows that it is a digital item, the idiom of purchase and sale automatically triggers this typical expectation and functions as an interpretive shortcut.

The grammar of acquisition does not end with the verb "buy". It extends into the organization of the inventory as a "collection", an expression that also carries its own patrimonial and semiotic density. Collecting does not mean merely gathering items. It means ordering a collection, recognizing rarity, comparing value, preserving history, completing series, displaying belonging and building a relationship of continuity between subject and object. The collector, in the ordinary social use of the word, is someone who holds qualified dominion over what they collect, even though this dominion may take different legal forms depending on the type of good involved. When the platform presents digital content as part of a collection, it

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al expectation of permanence and turns isolated items into a patrimonial biography, even though, o

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described as an access license tied to the account. For this reason, any account block, removal of an item, substantial alteration of functionality or architectural devaluation of the collection does not affect merely a detachable digital unit. It affects the intelligibility of the collection itself as a bundle of continued enjoyment, whose value depends on internal recognition, minimum stability and preservation of the relationship between the consumer, their items and the ecosystem that gives them meaning.

Alongside this surface grammar, however, there is the technical grammar of the contract. The Terms of Service describe the same items as "Virtual Content" offered under an access license tied to the account RIOT GAMES. As a consequence, what the interface presents as a "purchase" is requalified by the contractual instrument as conditioned and institutionally administered access. The point is not to claim that the consumer "did not read" or "did not understand", but to recognize that the ecosystem itself organizes the decision through a sign that frames the relationship as a typical contract, while reserving, on the legal plane, a regime that does not coincide with the ordinary meaning of the verb "buy".

It is in this friction, simple and verifiable, that semiotic vulnerability becomes intelligible. The relevant asymmetry is not merely lack of information, since information may exist and, even so, not operate as practical guidance when the language of the interface governs the experience and stabilizes expectations in real time. The platform controls the signifiers that shape the perception of what is being acquired and, at the same time, controls the institutional criteria that define what the consumer actually comes to have.

The result is an objective inequality of decoding and agency, because the consumer decides under the grammar of "buying", but enjoyment takes place under the grammar of the "revocable license" attached to the account. This does not justify claiming that the use of the word "buy" is, in itself and in isolation, unlawful. The issue is that, without a core that respects the minimum stability of the good, even the superficial parallel becomes false and therefore leads to the breach of the legitimate [illegible]ment, and only then is unlawfulness established. The aim is not to prevent the use of typical expressio

minimally met, by assigning responsibility for the auditability of alterations and requiring the preservation of equivalent functionality whenever a legitimate alteration occurs.

With these premises established, it becomes possible to advance to the properly contemporary description of semiotic vulnerability. The contribution of Warat and Gnerre consists in demonstrating that language, code and decoding competence have been, since before the digital, factors of unequal distribution of power and of exclusion from participation. In platform-governed regimes of enjoyment, however, this mechanism ceases to operate merely as a discursive barrier or filter of access to formal arenas and comes to bear on the very delivery of the object, since enjoyment takes place through technical mediations that administer visibility, recognition and attribution of value. Under this framework, semiotic vulnerability is justified as a category for qualifying the IOC regime, preparing the analysis, in the keys of Eco, Debord, Baudrillard and Vanderburg, of the way in which signs, commensuration and regimes of appearance structure enjoyment and its relevant losses.

In environments of continuous consumption, visibility does not operate as a mere aesthetic attribute of the experience, but as a structuring mechanism for ordering and allocating value. The circulation of the object, the perception of its relevance and the way the consumer is positioned in the ecosystem come to depend on criteria of appearance, prominence and accessibility that are defined by the environment and executed through technical mediations. What becomes available for enjoyment, what becomes recognizable as achievement and what becomes identifiable as failure cease to be self-evident and become outcomes administered by internal rules and by hierarchies of exposure.

In this key, Guy Debord's contribution makes it possible to describe how the regime of appearance reorganizes experience and guides conduct through the management of what is seen, what is valued and what becomes socially relevant. When visibility is converted into an infrastructure of recognition and commensuration, the environment not only distributes attention, but shapes the objective conditions of [illegible] nalizes losses and restrictions as part of the ordinary operation of [illegible] vulnerability ther

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dependence on a regime of appearance that can expand, reduce or reorder value and belonging without resorting to explicit commands, merely through continuous modulation of the conditions of circulation and prominence.

The centrality of visibility becomes even more decisive when the value of the object ceases to be exhausted in its functional utility and comes to incorporate, as a relevant economic component, the sign-value associated with distinction, prestige and position. In certain ecosystems, what is acquired is not reduced to access to content or to an isolated functionality, since it includes the possibility of being seen, recognized and validated under the internal rules of circulation. Under these conditions, enjoyment involves a relational and public dimension that is part of the core of the object, so that value depends on the permanence and intelligibility of symbolic marks administered by the environment.

Jean Baudrillard's key makes it possible to understand why relevant losses can occur without total suppression of access or formal interruption of the performance. When sign-value is part of the good, alterations that persistently downgrade the consumer's position, erase their visibility, degrade their reputation or restrict their circulation can produce a loss equivalent to the loss of the object itself, even if the “content” remains technically available. Semiotic vulnerability, at this point, reveals that the decisive asymmetry does not consist merely in knowing more or less about the product, but in controlling the criteria of valuation and recognition that determine whether enjoyment preserves, in substantial terms, the economic and social meaning that justified the acquisition.

Semiotic vulnerability is organized in two complementary faces, whose distinction is relevant to avoid diluting the concept into a generic formula. The structural face stems from the very technical-organizational arrangement that governs enjoyment, since the environment produces dependence on meaning and recognition by establishing the codes, metrics and regimes of visibility through which the experience becomes intelligible and socially valued. The consumer's position is asymmetric because the parameters that define what appears, what circulates, what d what presents itself as failure are defined by internal instances uously, conditioni

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The strategic face emerges when the administration of this symbolic grammar becomes an instrument of exploitation. In this case, the same set of mediations that organizes enjoyment can be used to induce conduct, distribute costs and normalize losses by means of selective opacities, asymmetric frictions, reorderings of visibility and gradual adjustments that corrode the enjoyment bundle without producing, immediately, a perceptible total rupture. The distinction between these faces makes it possible to recognize that semiotic vulnerability is not limited to an inevitable scenario of technical mediation, but also provides language to identify when the structure of the ecosystem is mobilized in a way oriented toward exploitative purposes, without this identification depending on express contractual commands or ostensibly abusive textual promises.

Before going further in describing semiotic vulnerability in its properly contemporary form, two essential limits should be raised. The first concerns the intensification of vulnerability through choice architecture and through the action of controlling intermediaries, capable of shaping conduct and reactions through technical mediations. The second concerns performative transparency, whereby information exists but does not turn into practical intelligibility when excess and incomparability function as operational noise within the environment.

In this context, the intensification of vulnerability through architecture is not limited to a diffuse environmental effect, since it can be described in a dogmatic key as a mode of managing behavior and the very form of performance. In continuous and platformized digital contracts, control over choice paths, frictions, rhythms of contracting and conditions of permanence shifts the asymmetry to the plane of execution, in which the consumer's decision is shaped by technical mediations and by intermediaries that do not act as simple neutral channels.

Along these lines, Claudia Lima Marques[418] notes that “now vulnerability and the new harms also come from the design and the action of the intermediating third party”, adding that this digital intermediary is the “access guardian (gatekeeper)”, increasingly dominant in the contractual “time” and “mode” MARQUES. The

Skip to content category of semiotic vulnerability, is that the asymmetry of intelligibility and agency can be produ

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architecture itself, making the design of options and of avenues of reaction legally relevant as part of the fact that intensifies vulnerability in the IOC regime.

This point becomes sharper when interface patterns are described as a sanctionable commercial practice, since abusiveness ceases to depend on an isolated textual statement and comes to include the way choices are presented and induced. In this sense, the authors note that "several of these provisions are related to dark patterns, which allows us to conclude that under the Brazilian legal framework it is possible to sanction several cases of deceptive design" BERGSTEIN. The relevance, for the IOC regime, lies in recognizing that vulnerability can be intensified by choice architecture and by presentation techniques that reorganize the perception of risk and hinder reaction, even if the supplier's formal discourse remains neutral or ostensibly "transparent".

The problem worsens when transparency is simulated through excess, dispersion or heterogeneity of information and conditions, so that the multiplication of options and descriptions comes to function as an obstacle to comparability and, therefore, to the practical intelligibility of what is being supplied. In a different context, but with a directly transposable mechanism, Wada[419] observes that "it was very difficult for the consumer to compare the benefit packages offered by banks, since there were countless products included and, in most cases, they did not correspond to the competing bank's offer", a circumstance that led to the issuance of a resolution to pre-establish services and "facilitate consumers' comparison" WADA. The relevant point is that information may exist and, even so, remain innocuous as an instrument of control when the environment organizes the offer so as to prevent substantive comparison and assessment, converting formal compliance into operational noise. Under this logic, semiotic vulnerability includes the consumer's exposure to communicational structures that appear open, but produce opacity by making the formation of comparative judgment and the identification of relevant degradations unfeasible.

Semiotic vulnerability intensifies because technical mediation does not operate

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channel of access, but as a form of routinization of expectations and dependencies. In Vanderburg's the

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described as the everyday sedimentation of forms of mediation that naturalize patterns of conduct and evaluation, converting certain frictions, downgrades and restrictions into expected components of the experience. The consequence is that relevant degradations can be internalized as a "normal cost" of the service, which weakens the capacity to identify the harm and shifts contestation to a terrain in which the decisive criteria remain opaque or unavailable. Semiotic vulnerability, at this point, is not merely the difficulty of obtaining information, but exposure to a regime in which the very measure of what counts as loss is produced by the environment that distributes losses.

The description of this vulnerability requires attention to the technical ecology in which enjoyment occurs, so that the concept is not reduced to an abstract reading of the sign disconnected from the forms of mediation that produce and stabilize it. Under Postman and Ellul , technique imposes rationalities, rhythms and criteria of pertinence that reorder social experience and make certain consequences predictable without their being presented as explicit normative decisions.

Such mediations reveal that design and organization are not elements external to the object, but choices that structure possibilities of action and distribute costs in the regime of enjoyment, defining frictions, incentives, forms of circulation and parameters of recognition that make certain losses more likely than others. In Feenberg's key, these choices can be treated as socially situated and, therefore, susceptible to legal description when they produce persistent asymmetries of intelligibility and contestation.

Recognizing this dimension does not imply converting every design decision into unlawfulness, but authorizes the analysis of design as a form of infrastructural power capable of guiding conduct and normalizing harm by means of technical and organizational patterns. With this, it becomes possible to prepare a language of attribution that reaches purposes inscribed in the architecture of the service, especially when the mediation structure is mobilized to produce dependence, selective opacity and relevant degradations without the need for express contractual

Even when there are formal clarifications about rules of use or about abstract possibilities of alteration, the decisive asymmetry remains when the environment retains for itself the administration of the codes of valuation, the regimes of visibility and the internal criteria that qualify conduct and distribute consequences. Informing, in this picture, describes the risk in generic terms, but does not give back to the consumer equivalent means of understanding, verifying and contesting the decisions that reconfigure their position.

For this reason, legal protection needs to reach the practical normativity produced by infrastructure, under which relevant degradation can result from persistent modulations of visibility, reputational downgrades, selective functional restrictions and internal sanction mechanisms that do not present themselves as textual nonperformance, but operate as erosion of the enjoyment bundle. Semiotic vulnerability, by shifting the focus to the governance of the sign and of mediation, prepares the demand for criteria that make such effects verifiable and attributable, without reducing control to an episodic assessment of formal consent.

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410. Official support describes the paid currency of Wild Rift and states that Wild Cores is "an in-game currency, bought with real money", in addition to noting that it is "the equivalent of RP in Wild Rift" RIOT GAMES. The document indicates that acquisition can take place "directly in the app", linking the purchase to the payment settings of the device's store RIOT GAMES and facilitating the purchase procedure for the user. The support page then highlights: "Poro Coins are a new monetary unit exclusive to Wild Rift!" RIOT GAMES. The mobile ecosystem stands out for adding currencies that are not directly confused with the paid currency, reinforcing the multiplication of internal economic signs. In this sense, the Ranked Store page notes that "Ranked Coins stay with you from one season to the next, allowing you to save up to buy the best items in the Ranked Store" RIOT GAMES, which shows that the game operates simultaneously with purchase currencies and multiple functional currencies tied to regimes of participation and performance, expanding in scale and depth the process of internal monetary fragmentation. ↩

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vent communication for *Wild Rift*, support notes: "As per the
bove, the Emblem St
the event." RIOT GAMES. The passa

operates, in very short windows, as a condition of consumption, and not merely as a kind of informative calendar. In another event, support notes: “Even after you stop earning Emblems on the 11th, you will still have a whole week to spend them. Afterwards, they will disappear forever [...]." RIOT GAMES. Here, it is shown that urgency does not depend on an external emotional appeal, because expiration is designed as a rule of the token system itself. Thus, by adopting as a procedure the creation of multiple currencies that are not confused with one another and have multiple durations within the ecosystem, including expiring entirely when their scheduled period ends, the platform stands out for further aggravating the user's difficulty in understanding the real value of what they are able to acquire, giving rise to and mobilizing, above all, the fear of missing out in its users. ↩

412. In this sense, by way of illustration, an official *Wild Rift* news item records price adjustments by region and mentions, for Brazil, “+15% average price increase” RIOT GAMES. In the same piece, *Riot* describes a period of “double bonus currency” associated with purchases of virtual currency, that is, a temporary reconfiguration of the perceived advantage of acquiring paid currency, meant to offset the temporary negative impact that an adjustment of this magnitude tends to have on the consumer base RIOT GAMES. It is important not to forget, in this context, that *Riot*'s contractual terms allow alteration of the “purchasing power of the Game Currency”, including by increasing the number of coins needed to acquire virtual products, and expressly deny any value “in money or otherwise” to virtual content associated with the account RIOT GAMES.The contract also acknowledges future adjustment of prices and billing methods, with an impact on the purchasing power of the currency RIOT GAMES. It should also be stressed that the same Terms of Service apply both to the *desktop* version of *League of Legends* and to all the company's other games, including *League of Legends: Wild Rift*. ↩

413. Entitled *O Direito e sua Linguagem*, the work of Luis Alberto Warat directly introduces the problem of language in Law, setting aside the idea that legal discourse would operate as a neutral instrument of naming. Based on semiotic references and a critical perspective on the functioning of signs, Warat maintains that legal language performs directive, persuasive and ideological functions, organizing meanings and producing effects of authority. It is the mechanism according to which asymmetries of decoding and mastery of the code are capable of operating as spheres of power asymmetry, which provides a methodological basis for understanding why the inequality of intelligibility is not a “digital” phenomenon and can be radicalized by distinct technical mediations. ↩

414. In the work *Linguagem, escrita e poder*, Maurizio Gnerre investigates the relations
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l language, the technology of writing and social hierarchies, rejecting
language as a simple
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marker of position and instrument

normative grammar and the historical legitimation of standardized varieties, the author shows how “special languages” and regimes of correctness function as mechanisms of exclusion and discrimination, associated with political and ideological processes. Gnerre's contribution to this discussion lies in offering a conceptual framework for describing how technical codes and institutionalized languages can operate as competence barriers, creating structural asymmetries of access to meaning that predate the digital and that, in platform-governed ecosystems, tend to turn into practical infrastructures of mediation, visibility and validation. ↩

415. For Warat, the most efficient obedience does not depend on direct command or on continuous physical coercion. It stabilizes when power organizes social meaning through “devices of signification”, disciplines bodies by linking desire and power and converts force into a violence that operates on the plane of the imaginary: “[The] power produced consolidates its reproductive conditions through ‘devices of signification’, which organize society and its institutions, and ensure the presence of power when force is lacking. It is through its ‘devices of signification’ that power disciplines bodies, causing the members of a society to link their desires to power. [...] The ‘social idiom’ ends up constituting an ‘ordered subjectivity’ [...] that makes it possible to gradually dispense with physical violence, transformed into ‘signifying violence’, into ‘imaginary violence’. [...] Society keeps itself cohesive by resorting to the creation of phantasmatic significations [...]” WARAT. ↩

416. Gnerre shows that the “blocking” is not a moral metaphor. It is a very concrete social technique, which operates both in the production and in the comprehension of messages and is reproduced through “special” phraseologies and lexicons that filter belonging and capacity to act. “As we have already noted, the problem is, on the one hand, one of comprehension of messages and contents and, on the other hand, one of production of messages. Starting from the most elementary level of relations with power, language constitutes the most powerful barbed wire for blocking access to power. [...] The central function of all special languages is social: they have a real communicative value but exclude from communication the people of the linguistic community external to the group that uses the special language and, on the other hand, they have the function of reaffirming the identity of the members of the small group that has access to the special language.” GNERRE. ↩

417. In the 2002 Civil Code, purchase and sale appears as a typical and nominate contract, governed in Book I (Law of Obligations), Title VI, specifically in Articles 481 et seq. Its classic structure is the exchange of a thing for a price, with reciprocal obligations in which the seller undertakes to transfer ownership of the thing and the buyer to pay the price in money, preserving the idea of acquisition and of minimum stability of the [illegible] quirer's patrimony, except in specific cases provided by law. “Art. 481. [illegible] t of purchase and sale, one of the contracting parties undertakes to [illegible] ship of a certain thi[illegible]

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BRASIL. On the conceptual plane, this framing is relevant because the verb “buy”, in

ordinary social use, refers directly to this contractual type and to its core of transfer of classic, physical and material property in things, which tends to trigger typical expectations of acquisition that are distinct from regimes of revocable access license. ↩

418. For discussion of the theme, the article *Vulnerabilidade na era digital: um estudo sobre os fatores de vulnerabilidade da pessoa natural nas plataformas*, by Claudia Lima Marques and Guilherme Mucelin (2022), stands out for its investigation, based on the dogmatics of Consumer Law, of how traditional factors of vulnerability are projected into the digital environment, identifying vulnerabilities specifically linked to the platformization of consumption. The text is mobilized as a dogmatic basis to maintain that vulnerability intensifies when the architecture of the environment and the design of interactions are capable of managing choices and conduct, shifting the focus from mere informational deficit to the way infrastructure organizes agency, intelligibility and risk in continuous digital services. Further, in *A evolução do contrato de prestação de serviço digital e a necessidade de proteção do consumidor: para lá do comércio eletrônico*, Claudia Lima Marques maintains that the digital consumer market has gone beyond the paradigm of electronic commerce and has come to operate through continuous and platformized arrangements, in which the consumer's relationship with the object takes place through technical mediations and controlling intermediaries. The article serves as a framing key for the continuous digital contract and its typical asymmetries, contributing to ground the need for categories capable of representing how performance takes place through governance in operation, with effects on expectation, participation, visibility and restoration when enjoyment is degraded. In the article *Dark patterns e padrões comerciais escusos*, Claudia Lima Marques, Laura Schertel Mendes and Laís Bergstein (2023) describe deceptive practices incorporated into interface *design* and discuss how such techniques can manipulate consent and choice in the digital consumer market, articulating the legal response through the dialogue of sources. The article contributes by objectively recognizing the possibility of treating design as a legally relevant dimension of commercial practice. Thus, the authors maintain that design would prove capable of structuring asymmetries of agency and normalizing losses through frictions, *defaults*, acceptance paths and regimes of visibility, reinforcing the reading according to which vulnerability in the IOC is not exhausted in information provided, but involves governance of behavior through architecture, a reading perfectly coherent with the theoretical construction of Julie E. Cohen, studied in the previous chapter. ↩

419. Another relevant contribution to the discussion derives from *A proteção do consumidor contra as práticas comerciais abusivas no código de defesa do consumidor: novo ensaio para sistematização e aplicação do direito do consumidor*, the doctoral thesis of Ricardo Morishita Wada , in which the author proposes a systematization of abusive practices in the CDC, with special attention to the structural effects of [illegible] and market architectu[illegible]. Especially relevant is the instrument Wada of[illegible]

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problems of structure, not as one-off communication failures, making it possible to describe situations in which the appearance of informational compliance coexists with mechanisms that degrade practical intelligibility and hinder control and attribution. ↩

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CONCEPTS IN THIS SECTION

Governed enjoyment bundle Immaterial Object of Consumption (IOC)

The description of platform-governed continuous consumption has already established that acquisition is not exhausted by a single act of delivery, since it inaugurates a position of sustained enjoyment in an environment that implements rules, orders priorities and executes sanctions on a permanent basis. It has also been shown, with semiotic vulnerability, that the decisive asymmetry in these regimes cannot be reduced to episodic informational deficits, but arises from a structural inequality of intelligibility and agency in the face of signs, metrics and regimes of visibility administered by the ecosystem itself. These premises call for the construction of a conceptual house capable of converting such a regime into operable legal language, able to represent the object's form of existence, delimit relevant losses and prepare criteria of attribution and restoration compatible with sustained enjoyment.

Properly qualifying the immaterial object of consumption in legal terms requires more than a sociotechnical description of the environment of enjoyment. What is sought is a category capable of organizing, on the basis of the regime actually experienced, the reading of what was offered, of what becomes legally relevant as loss and of what should guide restoration when enjoyment is degraded by unilateral reconfiguration, curation, *enforcement* or design. By treating the object as a position of sustained enjoyment within a technical-organizational arrangement that

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from depending exclusively on explicit contractual commands or on episodic assessments of the information provided.

The player's account in the Riot ecosystem offers a methodologically privileged example of an immaterial object of consumption in its most “infrastructural” form. It is more than a login credential. It is the organizational point that holds the enjoyment bundle together, because it concentrates, in a single institutional record, the inventory of licensed virtual content, the progression markers, the social identifiers and the reputation signals by which the user's presence is read, displayed and recognized in the environment. In practical terms, most of what is understood as “acquisition” in this type of consumption does not subsist as a detachable object outside this operative account and the maintained service.

This is not described only by the user's experience. The contractual discipline of the service itself gives form to this arrangement by establishing that access to the Services, including so-called Virtual Content, occurs by limited and revocable license, conditioned on compliance with the Terms, and that termination of the account entails automatic cancellation of the license and loss of access to the associated content RIOT GAMES[420]. The account, in this way, functions as the minimal legal infrastructure of the enjoyment bundle, since it organizes the practical entitlement to access, but does not consolidate a regime of possession by the consumer over the content, which remains dependent on the execution environment and on the supplier's rules of private governance.

The contractual definition of Virtual Content reinforces this reading. Champions, *skins*, emotes and in-game currency make up the catalog of goods that only become enjoyable as an access license associated with the account, and not as things transportable outside it RIOT GAMES[421]. The enjoyment bundle appears, then, as a collection of positions accessible through an institutional identifier and an infrastructure that stabilizes what is visible, usable and recognizable in the ecosystem. The account is the unit that aggregates these elements. Therefore, it can be described as the central IOC and, at the same time, as an “infrastructure-concept” in miniature. separable from the regime that makes enjoyment operative.

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Moving from the declared norm to the norm in operation makes the infrastructural nature of this position even more intelligible. Riot maintains an official service status page, with current messages and a history of incidents, allowing public verification of the integrity of the systems on which enjoyment depends RIOT GAMES[422]. The use value of the bundle, in this condition, is not stock, it is flow. It requires continuity of servers, institutional connectivity and maintenance of the environment. When the service becomes unavailable, it is not only access that fails, but the virtual content itself loses immediate utility, because the environment that makes it enjoyable ceases to operate.

The account is also treated as an object of security and institutional recovery. In official guidance, Riot acknowledges the possibility of a compromised account and states that, in this case, the user must open a ticket to recover it, which reveals that the player's "existence" in the ecosystem is a record susceptible to incidents and dependent on institutional restoration procedures, in addition to good protection practices RIOT GAMES[423]. It is not, therefore, a good under the consumer's exclusive custody, but a position managed by rules of integrity, validation and intervention, which the supplier admits as a regular part of how the service functions.

The community repository describes the "summoner" as the persistent element, reporting that "summoner accounts" are used to store activities in data and scoreboards, and indicating that, at the end of matches, this profile gains experience, which makes up its progression in the ecosystem (League of Legends Wiki, [202-?]c; League of Legends Wiki, [202-?]b)[424]. This technical vocabulary helps name and make observable what, in the consumer's experience, appears as an accumulation of history, reputation and value. The account aggregates and stabilizes cumulative variables of enjoyment and visibility, which depend on a continuous technical-organizational regime to remain intelligible and operative.

This set makes it possible to understand why the player's account is, here, the paramount example of the IOC. It is the support that makes the bundle enjoyable, [illegible] sanctionable, because it organizes the unit through which the access, records progression, consolidates inventory and recognizes belonging. When there is bl

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of the regime, it is in this unit that the relevant loss tends to manifest itself. The account is not a peripheral detail of performance. It is the very infrastructure of consumption.

The formulation of this category presupposes conceptual sobriety. The focus falls on verifiable structures of governance of the environment and on relevant effects on the consumer's position of enjoyment, so that the category operates as an instrument of qualification, attribution and restoration in continuous consumption. To fulfill this function, the concept must distinguish ordinary variations of the digital regime from significant degradations of the enjoyment bundle that give economic and social meaning to the object.

The construction of this qualifying key remains situated within the discipline of consumption, without purporting to create an autonomous microsystem for the digital. The anchoring point is the concept of product, as provided for in Article 3, paragraph 1, of the Consumer Protection Code, because it is within this framework that it becomes possible to recognize an object of enjoyment that is not reduced to a material medium, but also does not dissolve into an undifferentiated language of "service" capable of erasing what was actually acquired. By starting from the immaterial product as a reference, the intelligibility of supply is preserved and room is opened to describe the object according to its function and to the relationship it establishes, keeping controllable the identification of the promised enjoyment bundle, the characterization of relevant degradations and the orientation of proportional responses when enjoyment is altered by reconfigurations, curations or sanctions executed by design.

The legal usefulness of this category goes beyond naming a contemporary phenomenon of consumption. It must perform a dual function: to qualify the object in a way compatible with its form of existence and, at the same time, to provide an interpretive key capable of reorganizing the reading of the offer, of relevant losses and of the possibilities of restoration. From this perspective, the Immaterial Object of Consumption does not function as a descriptive label external to the regime, but concept that makes it possible to recognize how promise,

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execution and governance combine to produce or degrade the enjoyment bundle, even if formal access to the "content" remains available.

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420. In its Terms of Use, Riot qualifies the use of the services as a "limited [...] revocable license" and links its continuity to the state of the account, by providing that, if the account is terminated, the license is automatically canceled RIOT GAMES. In simple language, this means that access to the ecosystem is structured as a conditioned permission of use, and not as ownership of an autonomous good. The account functions as the institutional mechanism that concentrates this permission and, consequently, the enjoyment bundle. ↩

421. The Terms define "Virtual Content" as typical digital goods of the game, including "champions, skins, emotes" and "in-game currency", and state that this is offered as an access license "associated with your account" RIOT GAMES. In League of Legends, "Champions" are the playable characters; "skins" are cosmetic variations of these characters; "emotes" are customizable symbols used for visual communication within the game; and "in-game currency" is the balance used to acquire content within the ecosystem. The relevant legal point is that all these items, even when perceived as acquisitions, are described as accesses that remain tied to the account record. This reinforces the account as the infrastructure of the enjoyment bundle, because it functions as the "institutional container" in which the inventory exists and is recognized. This contractual framing produces a relevant semiotic friction. Although the normative text qualifies these items as a revocable license linked to the account, the ordinary experience of acquisition in the client and in the store is organized by the language and rituals of purchase and sale, with commands such as "buy", "acquire" and "unlock", which trigger in the consumer expectations typical of stable patrimonial acquisition. With this, the platform mobilizes, at the moment of decision, the social grammar of purchase to induce a perception of possession and permanence, but preserves, in the legal structure of the bond, the possibility of unilateral recomposition and of loss through termination of the account. In this tension, the sign "buy" is not a mere communicational detail. It functions as a category marker that tends to frame virtual content as an acquired good, when, in the regime described by the contract, it is conditioned and institutionally controlled access, which increases the risk of frustrated legitimate expectation and of informational asymmetry in the formation of consent. ↩

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:vice status page contains sections such as "Current messages" and cent issues or incide RIOT GAMES matters because it makes public a s

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that the utility of the enjoyment bundle depends on the technical availability of the environment. When the service is unavailable, it is not only that “the user cannot log in”, but that the virtual content itself ceases to be enjoyable, since it only operates within the service. The page functions as an institutional indicator that the continuity of the object depends on an infrastructure continuously maintained by the supplier. ↩

423. In official guidance, Riot states that, if the account has been compromised, the user must “submit a ticket [...] to recover it” RIOT GAMES, which means that the account is treated as a record of identity and access that can be breached, corrected and restored by the supplier's internal procedures. The relevant difference between the Riot account and a common digital registration is that, in this context, the registration concentrates the enjoyment bundle, and the company itself assumes institutional routines to protect and reestablish this position, which reinforces that the account is not “just a password”, but the infrastructure of the consumer's existence in the ecosystem. ↩

424. The account is responsible for concentrating the bond of progression and unlocks in the environment, understood on the basis of the completion of tasks and the accumulation of “experience”, a progression marker accumulated at the end of matches, which serves to organize the development of the profile LEAGUE OF LEGENDS WIKI. These are concrete variables through which the environment stabilizes accumulated value and identity. This helps make intelligible why the account is the central IOC of the ecosystem, since it is the record that aggregates inventory, history and progression, which is why it is also the point at which enjoyment exists as a position. ↩

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The qualification of the immaterial object of consumption within the Consumer Protection Code requires bringing platform-governed enjoyment back into a dogmatic framework that preserves the object as an object, without reducing its existence to a one-off delivery event and without dissolving it into an undifferentiated notion of service that erases what was actually acquired. Anchoring the IOC in the concept of product in Article 3, paragraph 1, of the CDC operates as a starting point because it maintains the intelligibility of supply even when enjoyment depends on technical mediations and on governance in continuous operation. The purpose is to fix operable contours for the category, so that it organizes the reading of the offer, makes it possible to identify relevant losses and prepares criteria of attribution and restoration in continuous consumption, without inaugurating an autonomous microsystem and without depending exclusively on explicit contractual commands or episodic informational duties.

The legal definition of product in Article 3, paragraph 1, of the CDC operates as a scope clause that prevents escape from protective coverage when the object does not present itself in the form of a physical medium. Nunes[425] makes explicit that the CDC's choice of "product", rather than narrower civil law categories, has the function of encompassing material and immaterial goods, noting that the designation applies to economically offered objects that are not tangible, when stating that "the designation 'product' is used, for example, in banking activities (loan, fixed-income investment, pledge of securities etc.). Such 'products' fit, then, into the definition of immaterial goods" NUNES. This framework shifts the discussion from the medium to the function of the acquired object and to the form of its enjoyment, preserving the

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he same reasoning

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"banks sell products", distinguishing "the immaterial ones commented on before and

the material ones such as money" NUNES, dispelling the idea that the immaterial would correspond to a legally ungraspable "non-object".

Continuity, in turn, is not an element foreign to the CDC, nor does it prevent the dogmatic qualification of supply. Nunes maintains that services can be durable when they present continuity over time by contractual stipulation, observing that durable services are those that have continuity by reason of what was agreed and giving as examples school services, health plans and, in general, every service that the contract establishes as continuous NUNES.

In continuing bonds, the risk of unilateral reconfigurations and interruptions is part of the very structure of enjoyment as a lasting relationship, which prevents treating utility as something already delivered and definitively beyond discussion whenever formal access persists. This trait appears directly when the author identifies as proper to contracts for continuous services those whose mark is continuity "ad infinitum as long as the consumer fulfills their obligation to pay the price" NUNES. Continuity, thus, functions as a property of the supply bond and not as a pretext for dissolving the object into generic activity.

The distinction between product and service, when treated in an operable way, is an instrument of qualification and not a rigid dichotomy. Nunes stresses that there are cases in which the performance is correctly qualified as a service even when there is delivery of something physically identifiable, since the core lies in the supply and in the infrastructure that ensures availability. When dealing with public services, he points out that "it is important to stress this aspect of the service that is accompanied by the product, to avoid doubts regarding the public service, because even if it delivers some product (e.g., water), it continues to be characterized as a service" NUNES, adding that "in reality it is the 'supply' that is the service rendered. "The assembly of the entire transmission network, piping, sanitation etc. is done so that the service may be rendered" NUNES.

This key makes it possible to describe situations in which enjoyment depends on
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The reconstruction of the IOC as a category internal to the CDC requires, in addition to dogmatic support for qualification, a methodological foundation capable of disciplining the translation of the factual regime into operable legal language[426]. It is this foundation that prevents the concept from appearing arbitrary, also serving as an obstacle to the alibi of "technical necessity" as a strategy for immunizing institutional design[427].

Mangabeira Unger's critique[428] turns against the institutional fatalism that converts the platform's design into fatality and presents it as "technical necessity"[429], that is, as something external to the field of the controllable. On the explanatory plane, Mangabeira Unger confronts both "deep structure" theories, which treat social formations as indivisible totalities governed by laws of development, and certain versions of positivist social science, which describe social life as negotiation of interests within a setting taken as given.

Against these traditions, the author radicalizes the thesis that society is a human and contingent artifact. He maintains that prevailing institutions and beliefs are provisional settlements produced by past conflicts, and not the realization of necessary imperatives. In doing so, he places institutional design back in the field of the revisable[430] and prevents the present from being confused with the only possible horizon of humanity UNGER.

This methodological brake gains special relevance when the platform justifies itself through a language of impersonal coordination[431], presenting hierarchies, frictions and authorization regimes as neutral requirements of operation. Unger makes it possible to render this movement visible by indicating that, in the modern legal imaginary, different social spheres are usually organized by distinct "modes" of containing power, and that the organization of work is frequently associated with the combination of voluntary agreement and the invocation of an "impersonal technical necessity" UNGER.

From a critical perspective, this grammar can operate as an unjustified restriction of

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lities, insofar as it shifts controversies about design and domination to the register of the inevi

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restrictions is not denied, but their functioning as a seal of immunity is refused. If the utility consumed depends on an environment that modulates access, visibility, updating and *enforcement*, governance by architecture must remain tractable by criteria of verifiability and attribution.

The effect of inevitability is consolidated when the very structure of the regime is withdrawn from the field of deliberation and comes to appear as the "natural" backdrop of relations, ceasing to be perceived as a revisable arrangement. Unger describes this mechanism when pointing to the effort to depoliticize the basic structure of rights and economic policy and when noting that, once the original conflicts and uncertainties are forgotten, the institutional settlement takes on a misleading appearance of naturalness and necessity[432], although it derives from contingent interests, illusions and tactical results UNGER. This warning prevents the practical normativity exercised by architecture from being treated as an inevitable exteriority and keeps open the field of the controllable, so that architectural decisions that shape enjoyment can be qualified, proven and attributed by minimally verifiable dogmatic criteria.

Next, the central methodological requirement that follows from Reale is that the legal category operate as integration and remain referred to the concrete conditions it organizes. In defining the norm as the "moment of integration of a class of facts according to an order of values", the author makes explicit that the normative structure only becomes intelligible when referred to the factual and axiological factors that it dialectically integrates REALE.

This key makes it possible to present the IOC as an instrument of qualification that integrates a stabilized social and technical fact, namely sustained enjoyment governed by infrastructure, with normative values recognized in the protective consumer regime, and with a legal language capable of guiding the identification of the object, the recognition of relevant losses and criteria for restoration.

This operation of integration imposes limits against arbitrariness and also against the

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rt the concept into technological moralization. Reale maintains

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cannot disregard natural data that imp

scientific conscience REALE. The same limit appears when he rejects the notion that objective law is made up of empty shells, since normative structures are not mere logical forms without content. For Reale, they are forms that derive from a concrete experience, whose dominant lines are abstracted from social reality to operate as instruments of social discipline, that is, as legal models REALE.

This conception of the norm as a model prevents the framing from being voluntarist and requires anchoring in observable elements of the regulated phenomenon itself. The result is a double lock, because the category must capture dominant lines of the concrete experience of sustained enjoyment and infrastructural governance, and must do so through verifiable elements, preventing any ordinary friction from being converted into an unlawful act through intuitive repulsion. At the same time, it must preserve the core of value of the acquired object and make it possible to distinguish ordinary variations of the digital regime from significant degradations of the enjoyment bundle, lest it lose its disciplinary function.

The three-dimensional theory provides direct justification for treating the formulation of the IOC as a response to regularities of social experience and as a regulatory choice conditioned by facts and values, and not as a free exercise of will. Reale maintains that "the elaboration of a given and particular legal norm is not a mere expression of the arbitrariness of power, nor does it result objectively and automatically from the factual-axiological tension operating in a given historical-social conjuncture", since it is a culminating moment of legal experience, "but power always being conditioned by a complex of facts and values, in light of which the option is made for one of the possible regulatory solutions [...]." REALE.

In complement, the idea of "legal models" is linked to the technical translation of social regularities into operable forms. Reale maintains that the very possibility of legal science presupposes the existence of relations endowed with stability and predictability and, in short, of certain "constants of action", at least within a certain historical conjuncture, without which it would make no sense to contemplate rules intended to govern the order of human acts REALE. In this framework, the model

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a descriptive ornament, because the concept of model, in any

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kind of science, is linked to the idea of

anticipated representation of results to be achieved by means of an ordered sequence of measures or prescriptions REALE. What matters, for this framing, is that this representation does not arise from nothing nor is it legitimized by conceptual elegance, since it depends on identifying dominant lines of social experience and converting them into parameters that guide decisions and allow control.

In this sense, the legal model is a way of making the conflict tractable with criteria, while preserving the link with the facts and values that give meaning to the normative intervention. In environments of governed enjoyment, in which architecture, internal rules and *enforcement* combine to define conditions of access and permanence, the controversy tends to escape traditional categories if they do not capture what repeats and what is decisive in practice. The IOC, here, operates as a technique for representing the conflict because it organizes, in a single analytical frame, the core of value that the consumer acquires and the infrastructural conditions that sustain the continuity of this enjoyment. It thus makes it possible to describe precisely what is in dispute when unilateral reconfigurations, screenings, eligibility criteria and visibility standards alter the bundle of promised utilities, without reducing the problem to intuitive impressions or to moralizations about technology. By transforming these regularities into controllable elements, the IOC makes the conflict decidable, that is, susceptible to dogmatic qualification and legal response, without breaking the link with the concrete experience that justifies its existence.

The qualification of the IOC as an infrastructure-concept also requires an instrument to explain why dogmatics needs to stabilize expectations and produce criteria of decidability in an environment marked by structural asymmetry of intelligibility and by continuous mutation of the conditions of enjoyment.

Ferraz Jr.[433] makes explicit that dogmatics does not eliminate uncertainty, but works on it in a controlled way to make the conflict decidable without breaking the binding to norms, when stating that, with the "controlled term", one intends to signify that dogmatics "increases uncertainties", but does so in a way compatible with "two central requirements of the legal discipline", which are "the binding to norms, which

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nd the pressure to decide conflicts, since a way out must be found for them". The IOC, at this p

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but to bring sustained enjoyment, reconfiguration and *enforcement* back to a vocabulary that allows attribution and restoration without arbitrariness.

The same movement is articulated with the stabilizing function of norms as durable expectations, which resist empirical frustration counterfactually. Ferraz Jr. explains that normative attitudes are expectations whose durability is guaranteed by "non-adaptive generalization", and concludes that norms manifest expectations "stabilized counterfactually", since generalization "is independent of the fulfillment or non-fulfillment of the empirically expected action" JR.. This formulation preserves the core of promise of the object even when technical execution, curation and sanctions executed by design make enjoyment unstable and subject to unilateral reconfiguration.

In environments of structural opacity, the expectation of an ideal situation of complete information leads to a methodological error that feeds case-by-case decisions. Ferraz Jr. delimits this point by stating that decision is not "the establishment of an equitable apportionment among the alternatives", since that would presuppose the ideal situation of a subject who deliberates "only after having all the relevant data", being able to enumerate and evaluate the alternatives in advance. The ideal situation is denied by the very existence of the conflict, since the decision corresponds to a "complex procedure" in the face of a situation "characterized by insecurity" JR.. In the regime of the IOC, this prevents conditioning protection on an ideal of total transparency or on a model of proof that presupposes full intelligibility of the platform's internal functioning.

The difference between information and practical intelligibility, at the level of legal discourse, reinforces why the formal expansion of clarifications does not resolve the decisive asymmetry of platform consumption. Ferraz Jr. observes that the "absorption of insecurity" does not necessarily mean obtaining consensus and does not have the function of reducing or eliminating incompatibilities. Therefore, in terms of information theory, the absorption of insecurity "should not, then, be confused with the process of eliminating information" JR.. The category needs to

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llable criteria that allow deciding under insecurity, without

turning the absence of complete access to the functioning of the ecosystem into an impediment to attribution.

The legitimacy of concept formation also depends on a method that preserves the internal coherence of the system and, at the same time, adherence to the object, avoiding both physicalist reductions and dissolving abstractions[434].

Larenz justifies conceptual construction as a task proper to dogmatics when it needs to operate ordering structures intended to function homogeneously across multiple relations of life. This makes it possible to frame or classify individual legal relations, with attention to the general significance of these institutes for the regulation of human relations, and not to what is historically unique about them LARENZ. This ordering function is neither neutral nor merely descriptive, since it contributes decisively to jurisprudential stability when problems of valuation are converted into problems of thought and, for that reason, can be treated with greater control through better dogmatic construction of concepts and through the explicitation and understanding of the specificity of the regulation LARENZ. This key reinforces that the category is not a descriptive ornament, but an instrument for making representable and adjudicable what is at stake in sustained enjoyment, protecting consumer law against formalist blindness and against the abstraction that erases the object under a generic notion of "service".

The method also makes it possible to reconstruct the legal system as a teleological and open order, still endowed with intrinsic rationality and with directive points of view. In addressing the problem of the system, Larenz maintains that the unity of law is not preserved by a system of general legal concepts, but by an axiological or teleological order structured by general legal principles. From this perspective, the principle, and not the concept, functions as an open standard that requires concretization and only becomes fully graspable in the concretizations it produces LARENZ. This key makes it possible to integrate new situations without breaking the unity of law, because it shifts the consistency of the legal order to the internal rationality of the directive values and to the continuous work of concretization,

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In addition, the warning against solutions that promise maximum precision at the cost of emptying is especially pertinent to platform consumption. Citing Kaufmann, Larenz points out that the pursuit of maximum precision of language tends to exact as its price the maximum emptying of content and meaning, as an effect of abstraction taken to the extreme LARENZ. In enjoyment ecosystems governed by infrastructure, this risk appears when enjoyment is reduced to residual labels that cannot guide proof, attribution and restoration, precisely in the context in which a criterion capable of capturing the operational density and the relevant variations of the enjoyment bundle is required.

The requirement of controllable criteria for the category is not exhausted in justifying the formation of the concept, since it also sets conditions of institutional verifiability[435]. In continuous consumption governed by infrastructure, the risk of elasticity increases precisely where complexity and opacity increase, so that the category is only sustainable if it imposes a verifiable qualification roadmap.

The warning is completed by the critique of theoretical distinctions that, by manipulating elements assessable only at the concrete level, obstruct the application of law and eliminate the applier's burden of argumentation[436] ÁVILA. The core of the IOC, therefore, must impose on the interpreter the duty to indicate the elements of the regime used, the connections between those elements and the result, and the reasons why ordinary variations were distinguished from significant degradations

The requirement of controllability is further projected in terms of legal certainty as a methodology for reducing vagueness and institutionally stabilizing decision-making standards. Ávila[437] maintains that the focus should shift from "certainty of meaning" to "certainty of criteria", so as to provide "prior and abstract parameters" that guide the resolution of later and concrete interpretive problems ÁVILA. In the same direction, legal certainty is defined as a requirement of "legal-rational controllability of reconstructive argumentative structures" and as an instrument of protection against "deception, frustration, surprise and arbitrariness" ÁVILA. The result is a rule of calibration: the category must allow distinguishing, by controllable standards, the relevant and to stabilize expectations without requiring total transparency as a condition of protecti

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This requirement also functions as a warning against solutions that promise justice through elasticity, but deliver arbitrariness through lack of a standard. In addressing balancing, Ávila requires prior indication of the object and the criteria, stating that, without this, balancing becomes an instrument of arbitrariness, and must be guided by criteria that are "universalizable and legally justifiable" ÁVILA.

In platform consumption, opacity and technical language facilitate both the rhetoric of "it is not possible to know" and the rhetoric of "this is obviously abusive", and that is why the category needs to block this short circuit by imposing verifiable criteria. These criteria also need to carry an unequivocal negative edge, since the category is not activated by interface preferences, ordinary discomforts of use or a mere functional update, and does not turn the regular exercise of curation or moderation, by itself, into an unlawful act. Calculability, in this context, corresponds to the citizen's capacity to "foresee [...] the limits of the intervention of the Public Power" and to know "in advance the scope of discretion" of the State ÁVILA, which requires a standard capable of distinguishing ordinary variations from significant degradations of the enjoyment bundle, preventing both dogmatic abdication and punitive voluntarism.

Under such dogmatic and methodological premises, the core of the IOC can be formulated in a lean and controllable way as an immaterial product whose mode of legal existence is not exhausted in an act of delivery, because it is realized as a position of sustained enjoyment in a technical-organizational environment that maintains, modulates and conditions the acquired utility over time. The object is not confused with isolated "content" nor with an abstract promise of access, but with a bundle of functionalities and significations that makes up the economically offered utility and that remains enjoyable through the continuity of infrastructural conditions of availability, mediation and presentation. Immateriality, in this sense, does not reduce the object to the absence of a medium, but rather identifies that the good offered is graspable by the function and by the regime of enjoyment it establishes, remaining legally qualifiable as a product.

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e remains compatible with the dogmatic indications already
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product, the durability of continuous services by contractual stipulation and the centrality of supply even when performance depends on complex infrastructure. This set prevents two distinct maneuvers. The first is to expel the immaterial from the field of "product". The second is to use continuity as a pretext to empty protection and confuse the promised core with a mere technical operation of delivery.

The consolidation of the core of the IOC as an immaterial product, under verifiability locks, does not correspond to the creation of a parallel regime nor to a category external to the CDC. The legal qualification of the fact is not carried out by mechanical subsumption, but by a process of concretion in which norm and factual support refer to each other until the case becomes legally graspable. Reale describes this procedure by stating that the determination of the norm “among the various possible norms” already requires “preliminary reference to the factual element”, and that the applier “not rarely goes from the norm to the fact and vice versa” REALE. This logic prevents treating the IOC as a label and allows it to be situated as an instrument of decidability within consumer law.

The same requirement of internal integration appears, in Larenz, as a methodological commitment to the coherence of the legal order, instead of classificatory formulas that serve external systematics but fail when the dispute requires delimiting the content and limits of the institute. Criticizing the reduction of legal thought to a general-abstract concept, Larenz observes that an “abbreviated formula” may render services to systematics, but is not “appropriate as a basis for argumentation about the content and the limits” of the institute, since it would obliterate distinctions oriented to social reality and to normative function LARENZ. In addition, certain definitions have binding meaning and only acquire practical significance “in connection with the legal propositions” in which the term is used, functioning as a normative indication for reading the institute LARENZ. With this, the qualification of the IOC as an immaterial product presents itself as coherent integration into the CDC, preserving the object as object and avoiding both formalist refusal and dissolution into generic “service”.

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of the IOC in the concept of product of the CDC has been

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it becomes possible to operate with a category that delimits a legally recognizable object and, therefore, one susceptible to proof, attribution and restoration. The decisive consequence is to remove the conflict from the alternative between a formalism that identifies "delivery" as the one-off provision of access and an undifferentiated language of service that erases what was acquired when utility depends on continuous technical mediations. Continuity ceases to operate as an alibi for lack of protection, because the bond projected in time reinforces the need for criteria that differentiate ordinary variations from relevant degradations of the enjoyment bundle, even if nominal access remains available. Next, the category will be reconstructed in a dual function, as qualification of the object and as an infrastructure-concept, to reorganize the reading of the offer, of relevant losses and of restoration in continuous consumption under controllable criteria.

NOTES

425. The dogmatic anchoring of the IOC finds its basis in the work of Luiz Antonio Rizzatto Nunes , who, in his Curso de Direito do Consumidor, offers a systematic instrumentarium to qualify the elements of the consumer relationship and to deal with border zones between product and service, including in durable and continued supplies. The central utility, in this framing, lies in three points: the definition of product with a deliberately broad scope, including immaterial goods; the operable distinction between product and service as an instrument of qualification; and the compatibility, within the CDC, between protective coverage and relationships that extend over time by contractual stipulation and by supply structure. ↩

426. Two works by Miguel Reale offer the key to conversion in dogmatic terms and impose limits against voluntarism and technological moralization. In Lições Preliminares de Direito (2001), what matters is the understanding of law as an experience that is not exhausted in logical form and the description of normative functioning as integration between factual support and evaluative requirement. In Teoria Tridimensional do Direito (1994), what matters is the systematization of specific and concrete three-dimensionalism, which rejects the watertight separation between fact, value and norm and describes the normative element as a dialectical integration of the factual-axiological correlation. ↩

427. In this sense, Roberto Mangabeira Unger is drawn upon, in a targeted [illegible] Necessity (2004), as a critique of the naturalization of [illegible] arrangements under th[illegible]

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428. In “False Necessity: Anti-Necessitarian Social Theory in the Service of Radical Democracy”, in our translation, the author (2004) formulates a project of “constructive social theory” structured on two complementary fronts. On one side, he develops an explanatory theory aimed at freeing the understanding of society and history from fatalistic conceptions. On the other, he presents a program of institutional reconstruction oriented toward increasing the revisability of formative contexts. ↩

429. Unger calls “false necessity” the intellectual and political mechanism by which a contingent historical arrangement is taken as if it were the only rational and possible way of organizing social life. The formulation is terse and serves precisely to block the naturalization of the present. The author thus describes the genesis of the illusion: “The connection between the themes of false necessity and deepened democracy also runs in the opposite direction. The developed conception of an alternative, promising a way to realize more fully our interests and ideals, puts the will on the side of the imagination. The illusions of false necessity arise because we surrender to the social world, and then begin to mistake present society for possible humanity, giving in to the ideas and attitudes that make the established order seem natural, necessary, or authoritative. By wanting and imagining something else, in a way that lets us see how the something else could arise out of the here and now, we dispel this hallucination. We bring our ideas about society into closer relation with what we repeatedly discover in natural science: that to understand a state of affairs is to grasp its transformative possibilities, seeing the actual in the light of the possible. The central difficulty in our understanding of ourselves and of society is that we cannot mark out the limits of the possible. The possible in society and history is not a well-defined, closed set of transmutations within which actual historical experience has developed as a subset. The possible is just what we can do next, getting there from here. However, so long as we make a living connection between our ideas about how we got here and our ideas about how we can get to the next place, we do not need to stare at what exists and to represent that stare as insight. We can imagine what exists as the resting place and the starting point that it always really is.” UNGER. The point of the argument is not to deny that material limits exist, but to prevent the language of limits from functioning as a seal of authority. This point is decisive when institutional design presents itself as neutral, as if the concrete way of organizing access, authorization, incentives and sanctions were a technical deduction and not a contested choice. “Necessity” here becomes a rhetoric for disclaiming responsibility. By describing the present as only one possible humanity among others, Unger shifts the center of the debate. What seemed inevitable becomes debatable again, and what seemed technical becomes attributable again in terms of decision and consequences. ↩

430. Unger's refusal of fatalism is not moral, it is a methodological position within social

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core of his work, the author describes his project as “relentlessly anti- and states that it “ca

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society is politics, mere politics” UI

social order is made, it can be unmade and remade, and this preserves both the possibility of strong explanation and the possibility of institutional reconstruction. In his introduction, Mangabeira Unger insists on the same key by saying that one can "carry to the hilt the idea that the organization of society is made" and, even so, "rebel against the worlds we have built", even recognizing that these rebellions may be interrupted and resumed UNGER. The historical point of the work comes by the genealogical route. Unger maintains that consolidated institutions are not "the natural and necessary realization of practical imperatives and ideological commitments"; they are better understood as "strange and surprising" products of a history of conflict, "a second nature, a provisional fate" UNGER. Thus, genealogy fulfills the precise function of attacking the reflex of treating the prevailing arrangement as destiny. When contingency is restored at the origin, the field of the revisable in the present is reopened. ↩

431. One of the typical operations for immunizing institutional design consists in shifting power relations to the register of a supposedly neutral necessity of coordination. Unger gives the reader a very explicit map of how modern legal thought usually tries to "tame the dangers of power" sector by sector, as if each domain had its own antidote. In this grammar, the organization of work appears associated with "voluntary agreement and impersonal technical necessity" UNGER. Read charitably, this formula assumes a civilizing promise of combining autonomy and efficiency. Read critically, it shows how the appeal to technique can function as a shortcut to close the discussion about design, hierarchy and control. The critique becomes even more concrete when Unger describes the combination of "widespread supervisory discretion" and "the facade of a regime of contract", which would be justified as "a requirement of impersonal technical necessity". The error, for him, lies in crediting this claim with the status of ultimate truth, as if it "transcended the actual sequence of conflicts and truces that had produced these results" UNGER. Thus, the less grounded the invocation of necessity and the more the underlying reality involves subjugation, the more glaring the contrast between the ideal picture of the system of contracts and property and the everyday reality of work. The usefulness of such a construction, here, lies not in denying coordination, but in exposing the ideological function of the label "impersonal" when it serves to conceal institutional choice and block accountability. ↩

432. Mangabeira Unger describes the naturalization of the arrangement not as a mere theoretical error, but as a cumulative political effect. He points to the effort to "depoliticize the basic structure of rights and economic policy" and observes that, once the original conflicts and uncertainties are forgotten, the institutional settlement assumes a "specious semblance of naturalness and necessity", although it is no more [illegible] "the interests and the illusions, the tactical achievements and the [illegible]s" that consolidated it UNGER. The statement is strong because it puts the institution back in the place of functional requirement. In the introduction, the author names the error,

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distinguishing “institutional fetishism” and “structure fetishism”. The first is failing to understand that conceptions such as “representative democracy” or “market economy” have no single, natural or necessary expression in a determinate set of rules and practices. The second is failing to recognize that one can change not only the content, but the quality of the institutional and ideological order, including its relation to the power by which it is contested, and for that reason it comes to be lived as an entrenched natural fact UNGER. The psychological mechanism of closure appears when the author maintains: “There is entrapment in a divisive and specialized order of society and culture. That is the form of entrapment that the radicalization of democratic experimentalism most directly undermines. The concepts of institutional and structure fetishism describe two of its more important manifestations in our ideas. They show how we become accomplices to our own enslavement. We are also entrapped, more generally, by the naturalization of the social world through repetition. Repetition in society and culture is a kind of incantation, leading us, through our inability to produce or endure permanent novelty and to be ever new, to accept a habitual form of life as a second nature. We spring the trap by changing the relation between repetition and disruption. We must so reform our arrangements and practices – including our practices of discourse in technical disciplines like legal analysis or political economy – that the very activities by which we reproduce our second nature create opportunities and provide tools for its fragmentary, but motivated and cumulative remaking.” UNGER. Thus, what seems mere routine becomes an effective “institutional spell”. ↩

433. In this framing, two works by Tércio Sampaio Ferraz Jr. are drawn upon. The first is *Introdução ao Estudo do Direito: Técnica, Decisão, Dominação* (2003), for its approach to law as a decision-making phenomenon and to dogmatics as a technology aimed at the decidability of conflicts. The second is *Direito, Retórica e Comunicação: subsídios para uma pragmática do discurso jurídico* (1997), for its pragmatic approach to legal discourse and for the way in which decision absorbs insecurity without confusing this operation with a mere accumulation of information. The approach to dogmatics as technology provides operational justification for constructing the IOC as a category capable of guiding proof and decision. ↩

434. It is in this framing that Karl Larenz is drawn upon, in *Metodologia da Ciência do Direito* (1997), as technical vocabulary to maintain that, in the face of new forms of supply and of continued enjoyment, the adequate response is not to abandon the system nor to invent an “other law”, but to qualify the phenomenon by criteria internal to the legal order, preserving teleological coherence and decision-making capacity. ↩

435. At this point, Humberto Ávila is drawn upon, in *Teoria dos Princípios* (2018), as a recision intended to prevent categories and standards from becoming a anguage of decision. Conceptual clarity has an institutional function by

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expanding means of control and preventing argumentation from descending into "capricious decisionism" ÁVILA. ↩

436. Ávila formulates this critique in the context of the attempt to distinguish rules and principles at the abstract level. The problem, for him, is the confusion between a preliminary moment of signification (prima facie) and the conclusive moment of application (all things considered), which leads doctrine to transport into general theory elements that can only be assessed in the concrete case and, with that, to turn categories into alibis. The distinction between normative species should "relieve, by structuring it, the burden of argumentation of the applier of the law", "reduce - eliminate, never - the need for [the duty] to be justified" ÁVILA. When, however, the classification comes to "manipulate, for the abstract interpretation of norms, elements that can only be assessed at the concrete level of application", it "ends up obstructing it" and, "instead of relieving the burden of argumentation of the applier of the law, eliminates it" ÁVILA. ↩

437. This framing draws on *Segurança Jurídica: Entre Permanência, Mudança e Realização no Direito Tributário* ÁVILA, whose conceptual architecture reconstructs legal certainty as a norm-principle structured by cognoscibility, reliability and calculability. The decisive point is to shift the discussion from the promise of a fixed meaning to the requirement of prior and controllable criteria. ↩

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The anchoring of the immaterial object of consumption in the concept of product of Article 3, paragraph 1, of the CDC ensures the dogmatic insertion of the phenomenon and preserves the intelligibility of what is acquired in platform-governed enjoyment, without reducing the relationship to a one-off event of delivery or dissolving it into an undifferentiated notion of service. Even so, qualification as an immaterial product does not settle the central problem of the IOC regime. In continuous consumption, utility is not realized as isolated "content", but as a position of enjoyment sustained in a technical-organizational environment that maintains, modulates and conditions the enjoyment bundle over time through internal rules, curation, reconfiguration and *enforcement* executed by design. The next step is to reconstruct the IOC as an infrastructure-concept, capable of operating simultaneously as a form of qualification of the object and as an interpretive key to the supply regime, reorganizing the reading of the offer, the identification of relevant losses and the orientation of restoration when degradation manifests itself as erosion of the enjoyment bundle, even without total interruption of formal access.

The methodological justification for this operation finds in Karl Larenz an especially adequate vocabulary. Conceptual construction is not presented as a classificatory ornament, but as an instrument for making recurring conflicts decidable in a stable and verifiable way, without requiring the solution to depend on moral impressions, on episodic readings of clauses, or on mechanical subsumptions insensitive to the contemporary form of supply. The question is explicit when it is stated that dogmatics "makes 'a decisive contribution to jurisprudential stability, when its problems of valuation are resolved into problems of thought and, as such, can be

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specificity of the regulation'" LARENZ.

In the regime of the IOC, this “specificity of the regulation” corresponds to the fact that the acquired utility is administered over time by infrastructural conditions of availability, visibility, circulation, permanence and sanction, so that the controversy is clarified neither by a snapshot of delivery nor by a generic label of performance.

This reconstruction demands, however, an additional caution. The conceptual effort must remain internal to the CDC and to its protective teleology, without inaugurating an autonomous merely “digital” vocabulary and without opening space for an elasticity that replaces criterion with rhetoric. The dogmatic risk of dissolving abstraction, already warned of by Larenz, appears when a category serves external systematics but fails precisely where density is required to discuss content and limits. In platform consumption, this erasure produces a direct effect. The object disappears from the analysis, the offer loses its delimiting function and restoration becomes erratic when degradation occurs as persistent erosion of the enjoyment bundle, without absolute blocking of formal access.

The symmetrical critique is equally relevant. The pursuit of precision can buy apparent certainty at the price of emptying the concept, producing a category that is formally clean and materially blind — a risk already pointed out by Larenz regarding abstraction taken to the extreme. For the IOC, this means that insistence on rigid oppositions or on undifferentiated labels delivers a language incapable of seeing relevant losses in the concrete case and incapable of sustaining proof, attribution and restoration in continuous consumption. The reconstruction of the IOC as an infrastructure-concept aims to block these two falls without abandoning the unity of the system, preserving the intelligibility of the object and, at the same time, incorporating infrastructure as a constitutive dimension of the mode of existence of enjoyment.

The systematic coherence of this operation presupposes understanding the legal system as a teleological order able to integrate new situations by internal criteria, oriented by function and by meaning — a characteristic already formulated by Larenz as a structural trait of the internal system. The consequence is that the relevant

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conditions that make it enjoyable, because it is on this plane that the content of what was acquired and the scope of its protection under the CDC are decided.

The requirement of conceptual reconstruction also depends on an institutional justification aimed at decidability under uncertainty. In platform-governed consumption, protection cannot be held hostage to an ideal of full intelligibility of the ecosystem, nor can it require total transparency as a condition for recognizing relevant non-performance. From the already established perspective that legal decision operates as a complex procedure in the face of insecurity, and not as a rational choice in a scenario of complete information, the reconstruction of the IOC as an infrastructure-concept assumes the function of a dogmatic technology of decidability, by providing a grammar to recognize relevant losses and guide attribution and restoration even when the execution of supply remains partially opaque.

This same requirement appears at the level of legal communication. In environments marked by structural asymmetry of intelligibility, shifting the axis to the promise of control through accumulation of information tends to produce the opposite effect, turning protection into a hostage of an idealized situation of deliberation. Ferraz Jr. criticizes this approach by maintaining that linking decision and consensus immediately turns the "rational" decision into an idealized model. In this model, all the relevant data would be available from the outset and all the alternatives could be enumerated and evaluated in advance, which is incompatible both with non-controllable variables and with the very structure of the conflict [JR.]. In the regime of the IOC, dogmatics must operate with previously structured criteria for qualifying the object and reading the enjoyment bundle, on pain of turning opacity into an alibi of indeterminability or of reducing the debate to generic labels such as "service".

The counterfactual stabilization of normative expectations, already established earlier in a methodological key, operates, in platform consumption, as a block on two recurring maneuvers. The first reduces delivery to the formal provision of access and treats the nominal persistence of content as eliminating the possibility of relevant [illegible] The second dissolves the object into a vague and reconfigurable [illegible] converting restoration in

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and case-by-case assessments. When the promise is recognized as a normative reference, the category can maintain the core of value of what was acquired as an anchor for identifying relevant losses, even when enjoyment is modulated over time by curation, visibility, ranking, internal rules and sanctions executed by design.

At this point, the regime of the IOC requires recognizing that enjoyment does not occur "despite" the ecosystem, but through a layer of governance that operates as practical normativity. Here, the contribution of Eros Roberto Grau makes it possible to describe this layer with legal precision and without dissolving the argument into a general sociology of private power, because it shifts the criterion of the legal from the state monopoly to the presence of functional coercion exercised by a social organization over a delimited group.

On platforms, this coercion is not exhausted in the clause. It is realized in the combination of internal rules, interface architecture and *enforcement* mechanisms that condition access, permanence, visibility and utility of what was acquired, converting the functioning of the environment into a regime of conduct. What matters, for the analysis of the IOC, is that this normativity is part of the very mode of execution of the promise, because it defines what counts as possible, stable and recognized enjoyment within the ecosystem.

Recognizing practical normativity, however, is not equivalent to declaring every technical decision unlawful, nor to turning ordinary interface frictions into abuse. The objective is to prevent technique from functioning as automatic shielding against attribution when the design and execution of the ecosystem significantly reconfigure the promised enjoyment bundle, shifting risk to the consumer under the appearance of a simple "update" or "operational adjustment".

On such bases, the functional qualification of the IOC can be formulated in an operable way. Infrastructure does not appear as a mere technical context accompanying a previously delivered object. It is part of the form in which the promise of enjoyment is fulfilled, because it is through it that the conditions of

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according to its legal-economic mode of existence in continuous consumption, preserving the intelligibility of what was acquired without reducing supply to a snapshot of delivery or dissolving it into an undifferentiated generic performance.

From this operator, the object can be described as a bundle of functionalities and significations administered throughout the relationship, coupled with permissions and limits of use, regimes of visibility and ordering, metrics and signals of recognition, and mechanisms of curation and *enforcement* executed by design. Enjoyment ceases to be a simple initial enabling and becomes a sustained position in the ecosystem, whose utility depends on the continuity of infrastructural conditions that organize expectations and distribute consequences. The category does not indefinitely expand the unlawful act nor moralize technical choices. It stabilizes a grammar to identify the core of the promised enjoyment bundle and to distinguish, by controllable criteria, between ordinary modulations of the regime and legally relevant significant degradations, including when nominal access persists.

Closing the item also requires stating clearly the negative edge of the reconstruction. The reconfigurability of the environment does not turn every update, interface adjustment, change in ranking or ordinary curation choice into unlawfulness. What becomes legally relevant is significant, persistent degradation recognizable by criteria, that which alters the core of the economically offered utility or structurally lowers the conditions of enjoyment that gave meaning to the acquisition. The discussion thus ceases to oscillate between formalism and abstraction and comes to require parameters of recognition, evidence and limits of application, so that the legal response remains proportional, verifiable and stable. Once this functional qualification is established, it is possible to move on to the criteria of incidence, proof and restoration of the regime of the IOC, now with a conceptual operator capable of keeping the object as object and, at the same time, incorporating infrastructural governance as a legally relevant dimension of supply.

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CONCEPTS IN THIS SECTION

Governed enjoyment bundle

Controllability presupposes an elementary discipline of method, which requires identifying which examination is being applied and separating planes that cannot be treated as synonyms. Ávila warns that confusing distinct concrete examinations makes the correct application of law unfeasible, because each one mobilizes its own relations and parameters and may lead to different results ÁVILA. In the regime of the IOC, this warning prevents heterogeneous discussions from being compressed into generic labels such as "service failure", "policy change" or "moderation", without clarification of what is being tested and what needs to be demonstrated. The category only remains operable when it forces the separation of the qualification of the object, the identification of the promised enjoyment bundle, the recognition of relevant degradation, the attribution of responsibility and the criteria of restoration, preventing these planes from being confused and generating unstable conclusions.

The institutional usefulness of this separation lies in exposing the structure of reasoning and allowing rational control of the way in which other norms are applied. Ávila observes that, in the application of law, a reasoning aimed at the incidence of other norms of the legal order is always carried out, and that these examinations investigate the way in which such norms should be applied[438] ÁVILA. With this, the role of methodological categories as instruments of verifiability is established. In terms of the IOC, each criterion must correspond to an identifiable test, with

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eters and controllable results, so as to allow assessing whether the justifiable path or r

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technical vocabulary.

The IOC only fulfills a dogmatic function when it operates as a filter and as a roadmap. As a filter, it defines what enters and what remains outside the field of incidence, preventing any digital relationship with an appearance of continuity from being absorbed by the category and also preventing the supplier from expelling the conflict from the CDC through strategic labeling. As a roadmap, it forces qualification to follow a controllable sequence, making explicit what needs to be demonstrated for the language of the IOC to make sense and for the discussion not to dissolve into vague impressions about “experience”, “community” or “moderation”.

The first field covered by the criteria is the promised object, understood as an enjoyment bundle. The relevant question is not whether some “content” was available at some point, but what utility was economically offered in terms of functionalities and significations that, in the regime of the IOC, constitute what was acquired. This requires identifying the core of the bundle from the relevant promise and from the elements that, in the concrete arrangement, make that utility exist as an enjoyable thing. The criterion is not satisfied by ornamental lists of functionalities or by generic advertising slogans. It requires identifying which central functions organize the legitimate expectation of enjoyment and, consequently, delimiting which alterations may reach the core of the object even when the formal continuity of access is preserved.

The second field is the position of sustained enjoyment. In continuous consumption, the acquisition inaugurates a position in the ecosystem and not a delivery exhausted in an instant. This position is the mode of existence of the object over time, since the effective possibility of use, circulation and permanence in the promised form depends on it. Recognizing it means treating as legally relevant the elements that define the consumer's permanence in the regime of enjoyment, without converting mere ordinary discomforts into legal losses. The incidence of the legal regime of the IOC presupposes that utility is enjoyed as a continued bond and that the execution of supply is inseparable from the maintenance of that position.

The third field is infrastructural governance as the mode of execution of supply. The [illegible] describe an environment around the object. Infrastructure is [illegible] constitutive dimensi

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internal rules, curation, modulations of visibility, parameters of participation and sanction mechanisms are implemented. Qualification requires demonstrating that enjoyment depends on a technical-organizational arrangement that continuously administers conditions relevant to the promised utility. The filter here is decisive, since the presence of technical mediation in a trivial sense is not enough. What matters is the existence of internal criteria and executive mechanisms that structurally shape the experience of enjoyment and distribute consequences to the consumer.

The fourth field is the typical possibility of relevant degradation without total rupture. The IOC is only justified if it can see losses that manifest themselves as persistent erosion of the enjoyment bundle, even if nominal access is preserved. The qualification roadmap must require the demonstration of a pattern of degradation that is not confused with ordinary variations, one-off instabilities or neutral interface adjustments. It is a matter of delimiting the zone in which enjoyment continues to exist formally, but is lowered, emptied or reconfigured so as to frustrate the core of offered utility or to reorder the consumer's position in the ecosystem in terms incompatible with the promise that justified the acquisition.

With these fields, the IOC ceases to be an explanatory label and comes to function as an instrument for screening and disciplining the debate. Incidence is decided not by technological intuition or by automatic deference to the contract, but by the cumulative presence of verifiable elements of the regime, which makes it possible to stabilize a path of qualification.

The construction of incidence criteria is neither a classificatory luxury nor an attempt to invent new law for the digital. It responds to the need to make recurring conflicts decidable in a stable way, without depending on variable intuitions about technology and without resorting to generic labels that erase the object. The filter of the IOC cannot ignore the structural traits of platform-governed consumption nor, at the opposite extreme, aim to capture each and every discomfort of digital use. Incidence criteria cannot depend on full access to the algorithm, *logs* and internal

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of possibility, since that would turn the IOC into an impracticable category, reserved for ex

Practicability, however, requires dogmatic rigor, and not relaxation. Under two simultaneous pressures, the binding to norms and the need to decide, legal discourse demands specialized technique and the production of doubts oriented to action JR.. Under this horizon, already established earlier as a functional cut aimed at the decidability of conflicts, the institutional gain is to stabilize expectations counterfactually, since norms express expectations whose duration is maintained regardless of the fulfillment or non-fulfillment of the empirically expected action JR.. For the IOC, the criteria must operate with possible proof and controllable inferences, capable of stabilizing expectations about the core of the enjoyment bundle even when the ecosystem tries to naturalize opacity and reconfigurability as if they were indisputable facts.

This requirement of possible proof separates the inaccessible as a technical detail from the demonstrable as a structured effect of supply. What matters for incidence is not proving "how" the algorithm decides at a microscopic level, but demonstrating that there is infrastructural governance relevant to the acquired utility and that it operates with stability sufficient to produce patterns of enjoyment and of relevant degradation without total rupture of access. Opacity thus ceases to function as a condition of unenforceability.

Recognizing infrastructural governance as a constitutive element of the IOC requires admitting that, in certain ecosystems, an effective system of rules and sanctions operates that bears on a delimited group and organizes the very possibility of enjoyment. Along the lines of Grau , this institutional datum can be described as practical normativity, that is, a way of guiding conduct and imposing conformity that produces concrete effects without depending on state status. This reading does not attribute to the platform the condition of a State nor presume unlawfulness. It serves, rather, to qualify effective normativity as a component of supply and, therefore, as a relevant element for assessing the mode of execution of the promise to the consumer, especially when rules, architecture and *enforcement* mechanisms come to define, in practice, the continuity, integrity and meaning of what was acquired.

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pressed when it is stated that the State is not the only social organization capable of positing law, th

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necessary to break with the conception according to which law is necessarily a creature of the State GRAU. In platform-governed consumption, utility is not realized despite internal rules, curation, modulations of circulation and sanction, but through these mechanisms. This allows treating governance as a component of the legally relevant fact, without converting every form of governance into abuse.

Nor should this normativity be naturalized as "spontaneous order". Grau makes explicit that the expression "legal order of the market" indicates that the market posits its legal order, not the order that it is, but the order that it establishes GRAU. With this, governance ceases to be presented as a technical fatality and comes to be treated as an instituted arrangement. Moreover, the reading avoids an unproductive sociologization by recognizing that law is not a simple external representation of social reality, but a functional level of the social whole and a constitutive element of the mode of social production GRAU. In the regime of the IOC, this authorizes reading material and organizational layers as constitutive of the acquired utility, without shifting the argument to a broad sociological diagnosis and without presuming unlawfulness.

The mere existence of moderation, *rankings*, community rules or interface adjustments is not enough to trigger the operator of the IOC. Ordinary updates, regular curation, anti-abuse interventions and changes that do not reach the functional core of the enjoyment bundle remain in the normal field of execution and do not constitute relevant degradation by definition. What matters is the structural dependence of utility on a continuous executive governance, in intensity and centrality sufficient for nominal access not to exhaust delivery and for the experience to be degradable without total rupture.

The cut is also not sustainable if "signification" enters as interpretive cosmetics. On platforms, part of the value offered may be anchored in regimes of meaning that organize conduct, expectation and recognition. Umberto Eco[439] (1997) provides the technical key for treating sign and code as operative dimensions of experience. By indicating that connotation, because it is shared, is "translated into a system of

Skip to content vill be foreseen by a connotative lexicon"[440] ECO, it is established that the sign coordinates practical pred

utility depends on visibility, reputation, *status*, *ranking*, belonging and forms of recognition administered by the ecosystem. In these cases, signification is part of the enjoyment bundle as a condition of use.

This point gains density when the code is understood as a structure of acceptability and intelligibility. Eco maintains that the acceptability of an expression depends on the code and that it would be an exaggerated reduction to state that the code fixes only content ECO. In platform-governed enjoyment, this key describes how grammars of interaction and regimes of classification modulate valid participation, legitimate visibility and admissible circulation. Thus, the code structure operates as a condition of intelligibility of use and, in certain regimes, as a controllable dimension of the object.

The third piece is the reading of signs as forces with social effects. Eco observes that a theory of codes is mainly interested in signs as social forces ECO, which makes it possible to recognize relevant losses that manifest themselves as a persistent lowering of recognition, reach or belonging when these elements were offered as part of the value. At the limit, Eco maintains that subjects are shaped by the possibilities that the form of the world produced by signs allows them to occupy ECO. The argument reinforces that the environment administers subject positions and conditions of participation, which can be sold as utility and, when they are, can be part of the enjoyment bundle.

The consequence is to circumscribe when the semiotic dimension enters and when it should stay out. It is part of the bundle when it makes up the core of utility economically offered and enjoyed as a position in the ecosystem, that is, when the platform sells, explicitly or functionally, effects of recognition, visibility, circulation, reputation, belonging or status as part of the value of what was acquired. The dimension is not part of it when it is a matter of aesthetics, *marketing*, generic advertising narrative or diffuse satisfaction without an identifiable functional core and without a structural link to the position of sustained enjoyment. The intention is to avoid two abuses: seeing semiotics in everything and dissolving the filter; or always [illegible]eral and blinding the concept to regimes in which the object is a [illegible]osition sustained by

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Such a filter needs, then, a connection with the dogmatic basis of consumption, without requiring, for that purpose, the inauguration of a new microsystem. Cláudia Lima Marques describes the contemporary shift toward massified, adhesion-based and long-term contractual forms, marked by symbiosis between products and services and by technological intermediation on consumer platforms MARQUES. Her doctrine makes it possible to recognize that the form of performance depends on continuous technical mediations, which reinforces the need for incidence criteria capable of separating ordinary variations from relevant degradations of the bundle. The author also highlights that vulnerabilities and harms may arise from the *design* and the conduct of the intermediary, who operates as a *gatekeeper* and influences the time, manner and outcome of the bond, including through data manipulation MARQUES. This fit reinforces the thesis of structural vulnerability and the need for criteria that do not depend on total transparency of the black box.

The consumerist anchoring also resolves the risk of absolutizing *design*. When it is recognized that it is possible to sanction cases of deceptive design and the provisions of Article 39 of the CDC[441] are linked to dark patterns, *design* is put back in its correct place, as an economically oriented and legally qualifiable commercial practice, and not as aesthetic neutrality BERGSTEIN. In the same sense, the statement that, in the digital society, vulnerability may assume an architectural character, and that such vulnerabilities are a product of the digital consumer markets themselves, reinforces that the architecture of the environment is part of the economic mechanism of supply MUCELIN. This does not presume abuse, but justifies the need for an operator that identifies when architecture appears as a constitutive condition of the acquired utility.

Here, Rizzatto Nunes offers dogmatic support for essential locks of the filter. Technical vulnerability appears as structural asymmetry, since the consumer is the weak link of the relationship, especially because they do not have access to the information that makes up the productive process, so that their choice is already born reduced NUNES. Presentation and visual impact also enter as legally relevant conduct,

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nay resort to visual impact and catchphrases to conceal relevant

NUNES. Moreover, i

recognizes that the offer may arise fro

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shop window NUNES, which supports reading the digital shop window as a binding offer. The IOC thus remains within the CDC, without demonizing the interface and without allowing the interface to be treated as irrelevant.

Thus, the incidence criteria of the IOC can be formulated as a qualification roadmap in a controllable sequence. The first element is economic-functional. An identifiable core of utility is required, promised and enjoyed as acquired, reconstructible from the relevant offer and from the effective mode of enjoyment. The second element is structural. Utility is realized as a position of enjoyment sustained over time, and not as an exhausted event. The third element is infrastructural. Utility depends on governed conditions, such as access, permanence, visibility, circulation and sanction, administered by continuous execution. The fourth element is one of legal relevance. There is a typical possibility of relevant degradation of the bundle without total rupture of access, in a persistent and substantive way, and not as a one-off discomfort.

With the incidence criteria outlined, the limits of exclusion fulfill an equally institutional function. They prevent the IOC from becoming a language "of atmosphere" for digital disputes and ensure that the concept operates as an instrument of demarcation with precision and legitimacy.

The first limit is one-off access without a position of sustained enjoyment. When performance is episodic and exhausted in the act, there is no reason to mobilize an operator built to describe continuity and administration of permanence, since the classic dogmatics of service is sufficient to resolve the dispute.

The second limit is the hypothesis in which the platform functions as a channel or shop window, but does not govern, in structural terms, the acquired utility, lacking the infrastructural centrality characteristic of the IOC. This is the case that excludes, in principle, the *marketplace* that provides positioning and customer acquisition services by advertising means, but does not exercise relevant material interference over the effective governance of subsequent commercial operations. This limit, read as a clause removing *marketplace* platforms from the regime e applicability of A entities in a factual position of vulnera

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pertinent when the immaterial object in question is the enjoyment bundle in a sustained position exploited as a product in the B2B[444] market by the holder and offered, through the *marketplace* platform, to the *seller* (vendedor).

The third limit falls on situations in which the symbolic or semiotic value is functionally accessory and is not part of the core of the promised enjoyment bundle. In these hypotheses, signification is not reconstructible from traits of supply and of infrastructural execution, degrading into an indeterminate expectation about social reaction. The function of this limit is to block the unmotivated use of the regime of the IOC to contest alterations incapable of depredating the core of the value offered. Therefore, as a rule, predominantly aesthetic alterations fall outside the reach of the concept, except when, in the concrete case, they make up a convergent set of signals able to sustain objective recognition of an unlawful act of architecture through structural indications of abusive teleology.

The fourth limit covers ordinary variations of the ecosystem that do not constitute relevant and persistent degradation of the bundle, such as updates, interface adjustments, anti-abuse measures, regular moderation and one-off instabilities. It is a protocol limit that, in general terms, introduces a reasonableness clause. At the same time, the *design* of the concept must allow recognizing when the ordinary exacerbates its own function and comes to collaborate with macrostructures responsible for practices of structural exploitation of the semiotic vulnerability of consumer users.

The fifth limit is the case in which the core of the conflict is something else, such as a classic one-off quality defect, undue charging, localized misleading advertising or specific non-performance of an offer. In these hypotheses, common consumer dogmatics tends to resolve the dispute without real gain in mobilizing the IOC.

The negative edge is not an aesthetic caution, but a condition of operability of the concept. Larenz recalls that open standards are not purely and simply devoid of content and are not to be confused with empty pseudo-normative formulas compatible with any concrete form of behavior.

Skip to content a limit is also dogmatic. Ferraz Jr. observes that dogmatics grasps the legal order systematically to meet t

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and that this set needs to present reasonably precise contours. From this perspective, system implies a notion of limit, that is, an abstract line that makes it possible to identify what is inside, what enters, what leaves and what remains outside JR.. The negative edge preserves the system from collapse by overreach and prevents the IOC from invading conflicts whose core is already resolvable by traditional keys of the CDC.

In these terms, the IOC ceases to be an elegant description of platforms and comes to operate as a technology of qualification. The category imposes a controllable sequence of questions about promise, position of enjoyment, infrastructural mode of execution and relevant degradation, with demonstrable and contestable parameters, keeping the conflict within the CDC without inaugurating a microsystem and without accepting strategic escape through labeling of supply. At the same time, the limits of exclusion prevent ordinary variations and regular curation from being treated as degradation by definition. The IOC comes to function as a language of proof and of screening, and not as a vocabulary of atmosphere.

With this design structured, it becomes possible to move on to relevant losses and criteria of attribution without contaminating the discussion with doubts about what was acquired and what the legal mode of existence of that utility is over time. Criteria and exclusions thus fulfill the institutional function of turning the IOC into an applicable operator, with a roadmap and limits, capable of guiding the reconstruction of supply and preparing the analysis of what counts as legally relevant degradation and what remains as an ordinary variation of the regime.

NOTES

438. Ávila makes clear that reasonableness, proportionality and the prohibition of excess do not enter the game as an additional "meaning" of norms. They operate at a second level, rationally organizing how other norms should be applied, hence the choice of the term "postulate". "This shows that these examinations investigate the way in which other norms should be applied, whether by establishing the criteria, or by establishing [illegible] In any case, the requirements arising from reasonableness, y and the prohibition of excess bear upon other norms not, however, to [illegible]ning to them, but to [illegible] always another norm behind the a[illegible]

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excessiveness. For this reason, it is appropriate to treat them as metanorms. And, since they structure the application of other norms, without being confused with them, it is appropriate to refer to them with another nomenclature. Hence the use of the term 'postulate', to indicate a norm that structures the application of others." ÁVILA. ↩

439. In A Estrutura Ausente (1997), a work notable for its proposal to systematize semiotics as a general discipline for the analysis of cultural phenomena as facts of communication. ↩

440. "The link between signifier and signified is arbitrary, but insofar as it is imposed by the language (which is, as we shall see, a code), the signified becomes necessary for the speaker. Rather, it is precisely this imposition, exercised by the code on the speaker, that allows us not to necessarily interpret the signified as a concept, a mental image (a dangerous "mentalist" concession that earned Saussurean semiology all kinds of criticism); and, as we go on, later, to define the nature of codes, we will also be able to escape the identification of the signified with the current use made of a signifier (a more empirical definition than the preceding one, allowing escape from the hypostatization of a signified as a Platonic entity, but still subject to other objections). The signified must, on the contrary, appear to us as that which the code places in semasiological relation with the signifier. In other words: the code establishes that a given signifier denotes a certain signified." ECO. "Insofar as this experience, translated into a system of expectations, is shared by others, the connotation will be foreseen by a connotative lexicon (that is to say that, conventionally, proverbially, ABC asks to connote alarm or houses destroyed by the flood). The signifier then presents itself, more and more, as a generating form of meaning, which fills up with heaps of denotations and connotations thanks to a series of codes and lexicons that establish the correspondences between it and groups of signifieds." ECO ↩

441. This is the article responsible for qualifying in detail and scope the list of abusive practices expressly recognized under the regime of the CDC. "Art. 39. The supplier of products or services is prohibited, among other abusive practices [...]". BRASIL. ↩

442. "Art. 30. All sufficiently precise information or advertising, conveyed by any form or means of communication with respect to products and services offered or presented, binds the supplier who conveys it or makes use of it and becomes part of the contract that may be concluded." BRASIL. ↩

443. "CHAPTER V On Commercial Practices [...] Art. 29. For the purposes of this Chapter and the following one, all persons, determinable or not, exposed to the practices provided for therein are deemed equivalent to consumers." BRASIL. ↩

444. From the English "*business-to-business*", the acronym B2B designates the stratum of lations internal to the supply chain but not originally characterizable as tions because they ar[illegible] exhaust the economic dimension o[illegible]

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CONCEPTS IN THIS SECTION

Governed enjoyment bundle

The passage from one-off consumption to platform-sustained enjoyment exposes a structural tension in the vocabulary of the CDC. Supply is no longer described as a simple event of delivery, nor as an episodic performance exhausted in initial execution. When the acquired utility depends on a technical-organizational environment in continuous operation, the object remains identifiable as an enjoyment bundle, but its legal existence is realized over time through acts of maintenance, modulation, curation and execution of rules.

In this context, the product-service dichotomy tends to become a true semantic trap, given that at times it paralyzes the analysis as if the classification settled the regime, and at other times it dissolves the object into a generic “service” and renders invisible relevant losses that do not manifest themselves as total interruption. The task, therefore, is to put the dichotomy back in its functional place, preserving the intelligibility of what was acquired as an immaterial product and recognizing, at the same time, that continued enjoyment requires a reading of supply capable of capturing duties and conduct that are projected over time.

As a result, the axis of the problem ceases to be the abstract framing of the object and becomes the interpretive operationalization of supply in a durable regime of enjoyment. What matters is a mode of reading that makes it possible to capture duties, conduct and relevant losses when utility is not realized as an inaugural instant, but as a continuous execution administered by a platform. The product-service dichotomy, here, is only useful if it fun

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reducing what was acquired to instantaneous delivery and without dissolving it into undifferentiated performance.

At this point, consumer doctrine offers well-known instruments for dealing with long-term relationships, successive execution and duties projected over time. Claudia Lima Marques[445], in multiple reference works, reconstructs the incidence of the CDC on contract theory, emphasizing objective good faith, protection of trust, socialization of the contract and the centrality of adhesion bonds, so as to maintain that protection is not exhausted in formation and is projected onto execution.

Platform-governed continued enjoyment brings supply closer to consumer relations that are not explained by instantaneous purchase and sale, since they are structured as complex long-term bonds and tend to place the consumer in a position of practical dependence vis-à-vis the supplier and its chain. Claudia Lima Marques describes this structure when dealing with "new contracts or contractual relations" that, under mass contracting methods, form "complex long-term legal relations" marked by the "position of 'captivity' or 'dependence' of clients, consumers" MARQUES.

Updating this diagnosis for the digital environment reinforces that dependence is not limited to the economic cost of switching. It may arise from the very technical and informational design of the service, which makes migration costly and, at times, unrealistic. In this sense, when examining vulnerability by captivity in the digital sphere, Marques and Mucelin observe that, in contracts of successive performance, the search for security and for a future performance reduces the consumer to the position of "captive", and that this dependence is understood in the context of current relations[446] MUCELIN. When the bond is prolonged and utility is realized over time, the product-service distinction only remains useful if it can see enjoyment as continuous supply and, within it, locate duties and conduct that do not fit in a description centered on the initial instant.

This long-term structure also prevents treating the interval between contracting and result as a legally irrelevant void. Marques proposes visualizing the contract as a

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p that is born, lives and dies, constituting a true process that in which legal effe

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and after it MARQUES. This processual r

controllable way, that the supplier's relevant conduct is not reduced to the initial "yes", but is projected onto execution and onto the continuous administration of the conditions of enjoyment.

The legal usefulness of the product-service dichotomy is lost when it is treated as a dispute over labels capable of exhausting, by itself, the description of supply. In the regime of the IOC, this reduction is particularly costly because it shifts the focus away from what matters: preserving the acquired object as an enjoyment bundle and identifying the conduct that, in continued execution, maintains, degrades or reconfigures platform-governed utility. When enjoyment is read only as service in a generic sense, what was acquired tends to disappear from the language, and with it disappear relevant losses that do not manifest themselves as total interruption, but as significant degradation of the core of utility. At the opposite extreme, when supply is compressed into the paradigm of one-off delivery, the characteristic dimension of governed consumption, that is, the permanent administration of the conditions of access and use, ceases to be captured as part of performance itself. What is required is to prevent the dichotomy from producing methodological blindness and replacing the reconstruction of supply with a classification that blocks analysis, weakens the attribution of losses and compromises restoration compatible with continued enjoyment.

The first step in putting the dichotomy back in a functional key is to recognize that the CDC does not tie "product" to materiality, precisely to prevent economically relevant offers from escaping protection through formalism.

Once the breadth of "product" is recognized, the distinction from "service" remains relevant as a technical tool of attribution, provided it is not converted into a rigid ontology. Nunes observes that, in certain situations, even if it is possible to detach the service from the product, the distinction must be preserved because differences in the liability regime derive from it. At the same time, the author admits hybrid zones, in which the product is part of the service and may even be confused with it NUNES. In a convergent key, Marques indicates that central expressions of the CDC require [illegible] depending on whether it is a contract for the provision of services [illegible] products and that

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different meanings depending on the nature of the performance. The author also stresses that, although the discipline of formation and of control of contractual balance is the same in both modalities, the code does not ignore that the execution of these contracts is differentiated and characteristic MIRAGEM. The result, here, is methodological. The dichotomy does not govern the regime of the IOC as a totalizing label; it calibrates specific effects, preserves the intelligibility of the acquired immaterial product and makes it possible to identify, in continued execution, relevant duties and conduct, without dissolving the object nor reducing supply to the initial instant.

Continued enjoyment, however, shifts the center of gravity of supply. In forms of consumption in which utility is realized over time and depends on permanent administration of the environment, protection is not played out only in the initial act nor exhausted at the instant in which utility becomes accessible for the first time. The product-service dichotomy can produce relevant effects, but these effects are concentrated where time matters: in the structure of duties and expectations that are stabilized during execution and in the way the system responds to partial degradations, gradual reconfigurations and localized interruptions of enjoyment. The usefulness of the distinction, in this context, lies not in declaring which label "wins", but in preventing the reading of the offer and of the duties of adequacy from being flattened as if supply were an event.

The coexistence between the acquired object and continued execution appears clearly when the "product" sold is presented as a *premium* item, but its utility depends on routines of updating, compatibility and performance that only exist while the service remains technically operational. This is what happens with *skins*, especially those structured as evolving models that change form during the match itself. The consumer does not buy merely an "image" coupled to the character. They acquire a position of enjoyment that is only realized if the game environment remains capable of rendering models, effects, animations and interfaces that are reconfigured with each cycle of patches and system adjustments RIOT GAMES 447.

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levant point is not to turn this item into a "service" by classificatory will, nor to pretend that t

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static package. What matters is to perceive that, in objects of this type, utility is a bundle that depends on continuous execution of software. The form, the visual reading, the logic of transformation and the aesthetic experience happen as repeated performance in each match. Therefore, gradual alterations of the graphics engine, of the game's memory budget, of loading routines and of technical balance itself may, out of necessity of performance and compatibility, modify the way the item presents itself, limit behaviors, adjust features and, in extreme cases, require replacements and recompositions to preserve the integrity of the service RIOT GAMES[448].

This type of example puts the product-service dichotomy back in the role the argument had already been demanding. The *skin* remains identifiable as an acquired object, not least because it is priced and communicated as a premium and distinctive item. At the same time, it does not exist as an enjoyable utility without the service of updating and maintaining the environment, which administers compatibility, fixes and adjustments. Riot's contractual framework itself assumes this structure by treating "virtual products" as elements that may evolve with fixes, graphical improvements and game rebalancing, and by declaring that updates and modifications may alter the service and restrict content and functionalities over time RIOT GAMES[449].

In terms of attribution, this means that relevant losses may occur without total interruption. Frustration may manifest itself as localized degradation of the aesthetic experience, loss of consistency of the evolving model, alteration of features that were part of the practical promise of enjoyment, or reconfiguration that preserves the name of the item, but does not preserve the core of the utility that justified the purchase decision. In these cases, the product-service dichotomy helps precisely because it prevents two symmetrical blindnesses. The first blindness is to reduce everything to "delivered product" and treat subsequent technical modulations as an irrelevant exteriority. The second blindness is to dissolve the acquired object into "generic service" and, with that, make unsayable what, concretely, was lost, even if the bond continues formally in execution. The insertion of this empirical laboratory a case understandable even to those who do not live in the

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acquired and the e

see this coexistence so that the protection of trust and the reading of adequacy are not flattened.

When the relationship is ongoing, the calibration of effects requires attention to elements that do not appear with the same clarity in one-off exchanges. Time projects duties of continuity and loyalty in execution, reorganizes the perception of adequacy, shifts the focus from "delivery" to "maintenance of utility", and connects the protection of trust less to an isolated initial declaration and more to the consistency of performance throughout the bond. The product-service distinction can guide the reading of liability and warranty regimes without reducing the problem to materiality, and can help locate the core of non-performance when enjoyment is frustrated not by total absence of performance, but by relevant loss of quality, accessibility, functionalities or conditions of use. Calling everything a product as if it were instantaneous delivery may blind the analysis to the processual character of supply; calling everything a service in a generic sense may dissolve the acquired object and hinder the identification of what was lost.

The dichotomy, therefore, only retains usefulness if it is treated as a tool subordinate to the reconstruction of supply over time. It contributes to mapping effects and consequences, but does not by itself define the structure of the regime when utility materializes as sustained and governed enjoyment. This shift requires methodological justification: the refusal of the totalizing label is not conceptual relaxation, but a requirement when the regulated reality demands functional distinctions that general-abstract vocabulary tends to erase.

Once this shift is legitimized, the product-service tension comes to be read as a symptom of change in the mode of realization of supply. In platform-governed consumption, utility is not exhausted in making content accessible for the first time; it depends on the permanence of a technical-organizational environment that sustains, organizes and conditions enjoyment over time. The object remains intelligible as an immaterial product, an acquired enjoyment bundle, while performance manifests itself processually through continuous acts of maintenance, reconfiguration and execution of rules that modulate the experience of use.

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Supply ceases to be described only by the inaugural instant and comes to be recognized as a durable practice of administering conditions of enjoyment, in which "quality" and "adequacy" become temporal attributes, subject to gradual degradations, cumulative restrictions and persistent alterations that do not take the form of total interruption. The dichotomy only retains usefulness if it follows this movement and allows identifying, without reductionism, the coexistence between an acquirable object and a continued execution that keeps it alive as a legally relevant utility.

This recognition finds explicit dogmatic support in the discipline of long-term contracts. Claudia Lima Marques states that "the obligational relationship is a continuous whole", in which, "from its birth (and even before)", the parties are bound "by a series of ancillary duties of conduct (*Nebenpflichten*), imposed by the general principle of good faith in the performance of obligations" MARQUES. Protection cannot treat time as an empty interval, because it is precisely in execution that duties of cooperation, loyalty and protection of trust are stabilized, able to capture conduct that, in regimes of continued enjoyment, manifests itself as permanent administration of the conditions of access and use.

The reconfiguration deepens because long-term contracts carry structurally distinct expectations. Marques records that the contract is long-term, of successive and protracted execution, and therefore brings expectations different from those present in contracts of immediate execution, based more on trust, on repeated interaction and on the maintenance of the economic potential and the quality of services MARQUES. In this framework, the contract is organized as a process, and platform-governed enjoyment can be described as a supply regime whose relevant conduct manifests itself in continued execution. The result is not to dilute the object, but to make explicit that the acquired utility presupposes permanent acts that are part of performance itself and that the product-service dichotomy only produces useful effects when it follows this processual character, without reducing protection to the inaugural instant.

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acquired in the IOC, preserving the object as an economically valued and legally consumable enjoyment bundle, even if immaterial and dependent on technical mediations. Service, in turn, ceases to mean "there is no object" and comes to designate the mode of continued execution of supply, composed of practices of maintenance, organization and modulation of the conditions of enjoyment that are projected over time. The functional reading requires recognizing the coexistence of these dimensions without reciprocal reduction. This formula prevents two symmetrical distortions: it does not allow the supplier to escape protection by dissolving what was acquired into a generic performance and does not allow protection to be compressed into the paradigm of instantaneous delivery, incapable of capturing gradual degradations, persistent reconfigurations and relevant losses in the quality of enjoyment.

The understanding of supply as continued execution finds direct support when dogmatics shifts the focus from the isolated good to the activity of organizing, facilitating and sustaining access to an economically valued utility. In the Comentários ao Código de Defesa do Consumidor, Claudia Lima Marques makes explicit that the field of the CDC encompasses all legally consumable, useful and economically valued services and doings, even if they consist in simple use, simple organization, simple intermediation, simple information or ancillary conduct linked to a purpose valued in the market MIRAGEM. In the same sense, in defining the verb to supply, she records that to supply means to provide, stock, furnish, give, administer, facilitate and afford, qualifying it as an activity independent of whoever holds ownership of the goods that may be used to provide the service and of its ancillary duties MIRAGEM. When the core of the relationship lies in the administration of a structure that makes enjoyment possible, the legally relevant conduct is located in the very organization of access, and not in the material ownership of the means employed.

This reading is completed when it is shown that, in complex and lasting relationships, the supplier may be precisely the organizer of the chains that make [illegible], even if the final performance is executed by third parties.

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his structure by stating that these are services generally carried out with the use of third parties to ach

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to the organization of invisible chains of direct and indirect suppliers MARQUES. In a convergent key, discussing network activities, Nunes maintains that, in reality, the service provided is the supply and that the assembly of the entire network exists to make the realization of that supply viable NUNES. It thus becomes consistent to read platform-based continued enjoyment as supply that is realized through infrastructure and the governance of access. The product-service dichotomy remains in the system as a tool for specific effects, without erasure of the object, and the immaterial product remains identifiable, merely complemented by the service dimension, understood as a continuous activity of organizing and administering the conditions of enjoyment.

Repositioning the dichotomy as an instrument of reading requires, finally, justifying why dogmatics needs to operate with controllable cuts in contexts of complexity and continued enjoyment. From the methodological perspective already established, the dogmatic operation is a technique aimed at decidability, which increases uncertainties in a way compatible with the binding to norms and with institutional pressure for decision. In platform-governed consumption, insisting on generic labels or rigid classifications tends to paralyze protection, because the vocabulary needs to cut the phenomenon so as to preserve what is relevant for attribution and restoration. The conceptual engineering of the IOC, in this framework, is not a luxury, but a condition of possibility of non-arbitrary protection in environments of opacity and mutability.

In regimes of continued enjoyment, the counterfactual stabilization of normative expectations, already established as a methodological lock of the regime of the IOC, makes it possible to treat as legally relevant duties of continuity, adequacy and loyalty even when the technical environment admits constant reconfigurations. The conflict ceases to be only the event and comes to be the resistance of normative expectations to the frustration produced by the very mode of functioning of supply.

Finally, in scenarios of opacity and insecurity, legal decision cannot be presented as the elimination of conflict, but as its conversion into operable alternatives, since decisions absorb insecurity not because they eliminate the conflict, but because they [illegible] erefore, the product-service dichotomy, when treated as a [illegible] ls to produce blind

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as a calibrating instrument, on the contrary, it helps make it possible to decide what, under rigid classifications or undifferentiated terms, would remain undecidable.

In this way, the dichotomy is preserved in the system without coming to govern the system. It remains useful for calibrating effects and locating specific regimes, but ceases to function as a totalizing answer for a supply whose utility is realized over time and under infrastructural governance. The immaterial product preserves the intelligibility of what was acquired as an economically valued enjoyment bundle. Service describes the continuous activity of organizing, facilitating and administering the conditions of access and use, where ancillary duties, expectations of continuity and conduct relevant to adequacy and quality are installed. The consequence is a rule of reading that makes the phenomenon decidable without flattening it. Initial delivery does not exhaust performance, and continued execution does not erase the object.

With the dichotomy repositioned in this instrumental role, the next step ceases to be classificatory and becomes one of attribution. It is necessary to identify when the very architecture of supply, in its permanent administration, manifests exploitative purposes and patterns of modulation that exceed the normal risk of the bond and are converted into a controllable legal criterion. It is this transition that requires advancing to the category of abusive teleology, capable of bringing platform governance back to the plane of legally relevant conduct and of preparing, next, the delimitation of relevant losses and the *standards* of control and restoration compatible with continued enjoyment.

NOTES

445. The article-by-article dogmatic reading developed by Claudia Lima Marques, Antonio Herman V. Benjamin and Bruno Miragem, in *Comentários ao Código de Defesa do Consumidor* (2013), combines doctrine and case law under the key of the dialogue of sources, providing technical support to deal with complex supply scenarios without allowing the product-service dichotomy to become a classificatory obstacle. In parallel, [illegible] of Claudia Lima Marques and Bruno Miragem, in *O novo direito privado [illegible]s vulneráveis* (2012), reinforces that structural vulnerabilities may be [illegible] arrangement of th

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dogmatic orientation for the effective containment of asymmetries, especially when the bond is durable and mediated by technical architectures. ↩

446. The notion of "captivity" employed by Marques and Mucelin does not designate mere contractual discomfort, but a situation of dependence structured around the maintenance of or access to services (including those offered by platforms) that, in the contemporary context, are perceived as conditions of full enjoyment and self-realization. In this picture, in contracts of successive performance, the search for security and for future performances tends to convert the consumer into a "captive client", and this dependence is only adequately understood on the basis of the concrete arrangement of socially produced expectations: "[I]n these contracts of successive performance the relationship is driven by the search for security, by the search for a future performance, status or a certain quality in services, which reduces the consumer to a position of 'captive' - client of the supplier and of its group of collaborators or economic agents. The position of dependence of 'captivity' can only be understood in the examination of the context of current relations, in which certain services provided in the market ensure (or promise) to the consumer and their family 'status', 'security', 'renewed credit', 'a certain and qualified school or university education', 'assured housing', 'leisure' or even 'health' or 'information' in the future." (Marques; Mucelin, p. 97-98). ↩

447. In the official support material, Riot describes the *Ultimate Skin* as something that adds an unprecedented layer of content to the game, which reinforces that it is not a mere static texture, but a set of behaviors and presentations that need to be executed by the environment in each match. The specific FAQ for the popular *Elementalist Lux* states that *Ultimate skins* "add something completely brand new to the game" RIOT GAMES. The description is relevant because, in detailing how the *skin* works, the official support makes clear that enjoyment depends on internal game processes, such as energy accumulation and selection of transformations during the match, that is, it depends on interface and *scripts* that run within the game, in a continuous service perspective. The mechanic is not a "contemplative file", but a performance guided by rules and by active rendering, so that the maintenance of utility is inseparable from the maintenance of the technical environment. ↩

448. In an official text about the update of an *Ultimate Skin*, developers explain that skins of this level can be treated almost as a new champion in terms of work and technical load, and that there is a material performance ceiling that conditions choices. In the post, it is stated that *Ultimate skins* are basically new champions, maintaining that, beneath the interface, there is a memory limit per champion ("memory budget") RIOT GAMES. This is evidence that the preservation of the premium "product" depends ɡ and compatibility decisions, which may impose reconfigurations to rall performance of the service. This reinforces the integrated reading or supply, since it makes visible tha

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dependent on continued maintenance and, therefore, vulnerable to modulations justified by systemic requirements. ↩

449. It should be recalled that, beyond the general reservation of updating and modulating the service, the Terms assume, in the Virtual Content regime, specific powers to reorganize the game's content, by stating that the company “we have the right to delete, alter, move, remove, re-package, re-price or transfer any and all Game Content, including Virtual Content”, and by declaring, directly, that “your Virtual Products may (and probably will) evolve over time”, including for “game balance, bug fixes [and] graphical improvements” as typical reasons RIOT GAMES. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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CONCEPTS IN THIS SECTION

Unlawful act of architecture Abusive teleology

Platform governance has already been described as a form of private regulation that combines terms, technical architecture and continuous execution of rules, producing an environment in which the acquired utility is realized under permanent modulation. In continuity with the recognition that, in IOCs, architecture and governance are not "exteriorities" of the object, but a material dimension of supply itself, the next step consists in bringing this description back to the plane of legally relevant conduct, distinguishing institutional diagnosis from applicable dogmatic criterion.

The *Lex Plataformae* operates as a descriptive category to identify the mode of exercise of power and of production of normativity in the ecosystem, that is, the scenario in which the legal phenomenon manifests itself. Abusive teleology, in turn, must operate as a controllable category of attribution. Its role is to qualify exploitative purposes materialized in the very architecture of supply, without being confused with moral judgment about technology and without becoming an expansive label indifferent to limits. As a result, legal control can fall on the purpose and structural arrangement of supply, without being limited to isolated conduct and without anticipating, at this point, the exhaustive fit into quality defects, safety defects, abusive practices and abusive clauses.

Governance by architecture can be described as the capacity of centralized protocols [Skip to content] ely define the space of possibilities in which enjoyment takes place, including through structural cho

others COHEN. In this arrangement, the supplier's power is not exhausted in initial access, since it is realized in the continuous modulation of the environment and of its conditions of use over time. This modulation operates as permanent adjustment through information flows and, for that reason, can be understood as a shift from disciplinary frames to less crude and potentially more effective forms of control by continuous modulation COHEN. When oriented toward exploitative ends, the arrangement bears directly on agency and autonomy, because the information flows themselves can be designed to induce patterns of motivation and response at pre-deliberative levels, under a regime of instrumentarian power and data-driven agency, with ubiquitous anticipation COHEN. Within this frame, the architecture of supply becomes legally treatable as relevant conduct, since the direction of the ecosystem manifests itself as a pattern of organization of possibilities, frictions and dependencies in the very performance of the bond.

The objectivity of this modulation is not metaphorical. On certain platforms, the consumer's experience is so dependent on the ecosystem that unilateral alteration imposes itself with the same materiality and naturalness with which, at *Hogwarts*, the staircases rearrange their paths, or with which the “Room of Requirement” reconfigures itself to serve the purpose of whoever seeks it[450]. The decisive difference lies in the source of the reconfiguration. In the fictional universe, it presents itself as an autonomous property of the environment. On the platform, it results from choices of architecture, curation criteria, sanction mechanisms and layers of opacity that convert the shifting of the "ground" into an act of government, even though they are presented to the user as the simple functioning of the world. For this reason, abusive teleology is not located primarily in an isolated event.

It is not exhausted in the one-off irregularity of a clause or of a specific decision. In regimes of continued enjoyment governed by a platform, the decisive conduct manifests itself as an architectural program, composed of design choices that define possibilities of use, introduce frictions, stabilize dependencies, operate sanctions and continuously reconfigure the practical conditions of enjoyment. It is at this level that to speak of purpose, because purpose appears materialized in the

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induces and reinforces. Abusive teleol

oriented by an identifiable exploitative purpose, in which the architecture of supply ceases to be mere technical mediation and comes to operate as an instrument of extraction and control, reproduced as a pattern in the performance of the bond.

For this qualification not to derive from moral reproach or from rhetoric of convenience, it is necessary to make explicit why technical choices carry normative direction and can be read as conduct. This requires setting aside the idea of the neutrality of design and recognizing that technical decisions incorporate preferences and sediment interests as a standard of functioning. Feenberg maintains that technical designs that appear neutral may, in practice, incorporate unconscious preferences FEENBERG. Further, directionality ceases to be a side effect and comes to be understood as a socially situated orientation of technical progress itself, insofar as technological development is overdetermined by technical and social criteria of progress and, for that reason, may follow different directions depending on the prevailing hegemony FEENBERG. If architecture can branch according to hegemonies, then it is not merely a means of execution. It is the place in which values and interests become operative as an organization of possibilities, costs, frictions and rewards. Within this framework, abusive teleology does not describe a metaphysical wrong of technology, but a form of legal qualification of a pattern of *design* and of governance of supply.

The passage from institutional diagnosis to a controllable dogmatic category requires methodological legitimation that authorizes reading structural patterns of supply as legally relevant facts, without converting this reading into loose moralism. In Reale, the legal norm is not reduced to a logical proposition. It operates as an integration between facts and values and, for that reason, requires simultaneous reference to these two factors. This formulation supports the view that, in platform-governed consumption, legal qualification can and must capture the integration between a factual regime of architectural execution and the values that structure the protection of consumption, instead of limiting itself to carving out an isolated episode. The very formation of Law presupposes the observation of social regularities and constants, [illegible] nes possible to discriminate and classify behaviors as lawful and

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[illegible] ogical dimension does not authorize voluntarism and imposes equivalent methodological restraints o

abusive teleology is justified as the legal qualification of a verifiable pattern inscribed in the architecture of supply, oriented by controllable values and duties of the system, without depending on free moral judgments.

This requirement of controllability is reinforced by the technological status of dogmatics, oriented toward decidability and not toward the exhaustive description of the world. Ferraz Jr. observes that, unlike zetetic theories, dogmatic ones, being concerned with the decidability of conflicts, do not have absolute logical rigor as a priority. What is essential is to make a cut in reality, isolate the problems relevant to decision-making and divert attention from the others JR.. This cut does not eliminate uncertainties, but makes them operable under normative binding and decisional pressure. In the same sense, in addressing control, the author clarifies that the term controlled indicates that dogmatics increases uncertainties, but does so in a manner compatible with central requirements of the legal discipline. Increasing uncertainties, therefore, is not merely creating doubts, but producing them in a manner oriented toward the action of man in society JR.. For this reason, the expectation that qualification depends on knowing all relevant data from the outset becomes inadequate, as already established. The decision absorbs the insecurity proper to opacity and contingency by converting blockages into institutionally acceptable outcomes, since the act of deciding transforms undecidable incompatibilities into decidable alternatives, and decisions absorb insecurity not because they eliminate the conflict, but because they transform it JR.. Abusive teleology, therefore, needs to be constructed as an instrument for making that cut, one that transforms diffuse suspicions into verifiable hypotheses, without requiring full transparency of the ecosystem or imposing impossible proof on the consumer.

In this same movement, the qualification cannot lose sight of the fact that a relevant part of the value offered on platforms is semiotic, and that the architecture exploits signs, metrics, visibility and belonging as components of supply itself. The possibility of treating symbolic dimensions as legally relevant depends on setting aside, from the outset, the confusion between sign and private "feeling". In Eco, as already established theory, operates materially in social life as a force that structures , and meaning need not be reduced to "a mental image", since it is "this imposition, exercised by the code

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understood as a relation instituted by the system, and not as a psychic event, avoiding the "dangerous 'mentalist' concession" ECO.

Umberto Eco's logic makes it possible to affirm that symbolic promises and semiotic effects integrated into the enjoyment bundle can be reconstructed in a controllable way as objective components of utility and legitimate expectation, which is decisive when architectural modulation reconfigures, without total interruption, the practical meaning of use, the consumer's position in the ecosystem and the value of permanence.

With the premises and their respective limits established, abusive teleology can be defined, at this point, as the structural deviation of platform-governed supply in which the architecture and governance of the environment come to operate in a manner oriented by an identifiable exploitative purpose, producing and reinforcing patterns of modulation that degrade, reconfigure or condition enjoyment beyond the ordinary risk of a continued performance.

The category does not depend on imputing subjective psychological intention or on locating a single act as a sufficient cause, because its object is the architectural program as a set of reiterated choices that organizes possibilities, introduces frictions, manages visibilities, distributes sanctions and stabilizes dependencies in the performance of the bond. For this qualification to remain controllable and not turn into an elastic label, it must take the form of a composite test made up of cumulative elements, capable of bringing the discussion back to verifiable requirements and of delimiting the edges of application.

The first requirement is inscribed teleology. It must be possible to reconstruct that the exploitative purpose is not merely in an occasional side effect, but appears incorporated in design choices, terms of use, authorization mechanisms and *enforcement* strategies that structure the environment of enjoyment. Inscription is identified when the architecture systematically organizes possibilities and exclusions, introduces selective frictions, asymmetrically distributes visibilities and sanctions, or [illegible]alities so as to steer behaviors and reduce alternatives relevant to

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The second requirement is reproduction as a pattern. The deviation cannot be an isolated episode, a contingent error or an operational exception. It must reappear as a regularity of execution, replicable at scale, whether because it applies to classes of users or because it is repeated in cycles of updating, adjustment or curation, revealing a consistent directionality of the ecosystem.

The third requirement is the exploitation of structural vulnerabilities. The exploitative purpose must bear on asymmetries of intelligibility and agency that are part of the very arrangement of governed consumption, such as semiotic vulnerability, dependence through captivity, switching costs and the loss of investments accumulated in reputation, networks or history. Exploitation is characterized when the architectural pattern mobilizes such asymmetries to extract permanence, attention, data or economic advantage, not as an inevitable effect of performance, but as the dominant logic of supply.

One of the most characteristic forms of inscription of the exploitative purpose, in this third requirement, stems from a trait peculiar to the laboratory studied here and to the ecosystems resembling it: the supplier is, above all, an entertainment company, and this allows it to extend the ludic frame beyond the product supplied.

The game ceases to be merely what is acquired and comes to contaminate the consumer relationship itself, so that acquiring, converting currency, deciphering price, following event windows and trying to obtain a good become, themselves, game mechanics. The difficulty of understanding how much one spends, previously described as an asymmetry of intelligibility, is here re-presented by the platform as part of the fun, as if understanding the internal economy were a legitimate puzzle of the contracted entertainment. The problem is that this transposition is not symmetrical.

Unlike a level of the game, whose rules exist so that the player can, in theory, beat them, the game embedded in the consumer relationship is designed and refereed by the supplier itself, which defines the probabilities, sets the unit of account, rnal exchange rate and establishes the deadlines, systematically he position of the

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structure, not by chance.

It is precisely this shift that constitutes the abusive inscription, because the ludic form is mobilized not to entertain, but to naturalize as play what, outside this frame, would be immediately recognized as tying, price opacity or value capture. That is why the claim that "it is a game" does not operate, here, as a justification, but as a symptom: when the ludic mechanic is applied to the contracting and to the enjoyment themselves, and not to the content delivered, it comes to indicate the purposive deviation instead of dispelling it.

This mechanism becomes especially clear, because it makes the exploitative impulse visible as access design, in the introduction of the Sanctum as a way of obtaining Exalted *skins*. In this arrangement, access to the good ceases to operate through direct acquisition and comes to be conditioned on a drawing system mediated by a currency of its own, with rarity and a guarantee by attempts, which redesigns consumption as a path of probabilistic extraction RIOT GAMES.

Abusive teleology appears forcefully when one observes that the system not only bars the direct purchase of the main good, but converts the acquisition into a functional tying sale with a set of items and internal currencies that, in most consumption trajectories, do not correspond to the player's interest. This economic binding does not take place through a declared obligation of joint purchase, but through the design of the path, in which most outcomes do not deliver the desired good and come back as intermediate rewards, especially currencies and collateral cosmetics, which come to function as symbolic cushions for the spending and as an incentive to keep trying RIOT GAMES[451].

The specific problem of the Sanctum, at this point, is that it forces the consumer to finance a diffuse package of other lower-value IOCs along the way, including *chromas* and cosmetics intended for champions who may not be part of their gameplay, in addition to accumulating Mythic Essence in variable amounts, which is a currency aimed at another internal storefront RIOT GAMES. This currency, in turn, is described by support itself as a way of acquiring rare items in the Mythic Shop and, from 2025 on, as a reward primarily associated with the Sanctum itself, which reinforces the circuit and of a deviation of economic purpose RIOT GAMES.

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This design makes explicit a relevant loss of consumer autonomy, since the consumer no longer chooses the route of access to the good and instead comes to "pay to try", with accumulated progression and a foreseen spending cap, in a logic that is only completed through continued consumption within the system itself RIOT GAMES. In this key, the innovation does not operate as a parallel alternative, but as a substitution of the mode of acquisition, conditioning the enjoyment of the main good on the acceptance of an exploitative architecture of calculated risk[452] RIOT GAMES. It would not be a problem if the option of buying the *skin* directly at a proportional and reasonable price were maintained. However, by making the path mandatory, the company comes closer to an abusive practice of tying than to the creation of an entertainment experience that genuinely cares about the expectations and desires of its consumer users.

At the same time, the contractual frame makes it possible to understand why this architecture can be implemented as an ordinary operation of the service, without the need to formally remove content from the ecosystem. This happens precisely because the structure of supply presents and justifies itself as a license to access virtual content and, at the same time, as a prerogative of alteration, modification, restriction and evolution, including through *patches*[453] RIOT GAMES. Thus, although abusive teleology is not reduced to the contract, the contract contributes to stabilizing the scenario in which the platform reorganizes by design the form of access and enjoyment, shifting the consumer onto tracks of consumption and permanence that serve primarily the supplier's rationality RIOT GAMES.

The existence of this type of architecture does not warrant the conclusion that every deep reprogramming of the service constitutes abusive teleology. There are structural reforms that rewrite the environment of enjoyment and yet are not organized as exploitation, precisely because they neither impose relevant loss nor convert the continuity of use into a new mandatory spending route. A classic example is the reform of the Runes system, which replaced the previous regime with a new model of pre-game choices, significantly altering the way the player prepares and specializes

In this case, the institutional communication emphasized that the new set of runes would be made available without direct charge, which, in itself, shifts the qualification of the episode outside the exploitative core that characterizes the purposive deviation RIOT GAMES. At the same time, the company described the reform as a *design* project aimed at restructuring choices and strategies, showing that the teleology of the change was openly assumed as experience engineering, and not as economic coercion of access RIOT GAMES[455].

The contrast is useful because it makes the distinguishing criterion visible. If the reform had extinguished the prior investment without an equivalent route of restoration, and if the new system required compulsory purchase or prevented the user from preserving the position of enjoyment that motivated their past spending, the modulation would cease to be compatible with the purpose of consumption and would come to constitute purposive deviation. This hypothesis makes it possible to separate governance of a service, however intense, from abusive teleology properly so called, which presupposes relevant loss and exploitative redirection.

The same logic can be illustrated, hypothetically, by an even more transparent example. If a package is sold as a structurally complete acquisition, with an objective promise to include future content, and the platform later alters the system and retroactively removes this functionality, requiring a new purchase to maintain the same level of enjoyment, the design ceases to be evolution and comes to operate as economic coercion by architecture. In this configuration, the platform not only changes the environment, but reconstructs the relationship to extract again what had already been incorporated into the consumer's expectation.

However, the relevant loss that characterizes abusive teleology is not limited to functional utility. In immaterial goods, especially when their enjoyment is publicly visible, utility is inseparable from status, rarity and social recognition, which function as part of the enjoyment bundle acquired. Hence, the governance of the ecosystem controls not only technical access to the good, but also its circulation and, with it, the distinctive value that sustains the consumer's experience as a position. It is on this

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.e of *Prestige skins* becomes a particularly revealing laboratory, since, at least at the time of its introdu

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the cosmetic itself, but on its institutionally managed scarcity and on the perceived cost of the path to obtain it.

In the initial cycle, the specialized press described the means of obtaining it as conditioned on a long list of missions and on the circuit of events, which consolidated rarity as an internal marker of distinction relevant to the ecosystem, and not as a simple ordinary aesthetic variation MARSHALL. The point in question is important because the "investment", in this sense, does not translate only into pecuniary value, but also includes time, adherence to events and conformity with a specific path. *Status*, in this design, is produced by the architecture, because the platform decides who can obtain, when they can obtain and under what conditions the good circulates.

The conflict appears when the platform retroactively reprograms the regime of circulation of the good and allows items previously treated as rare to return to the market under a new acquisition system. In this scenario, the injury perceived by the original holders does not stem from subjective preference, but from the alteration of the foundation that sustained part of the qualitative expectation of consumption, namely the public signal of exclusivity as a position. The institutional announcement of the mythic content reform itself recognizes the difference in exclusivity and difficulty of obtaining older Prestige *skins*[456] and provides for their reintroduction within a new regime RIOT GAMES. From then on, what is at stake is not the "right to change the game", but the use of the power of architecture to rewrite the semiotic value of the good, downgrading the originally managed rarity and, with that, emptying a relevant portion of the utility of the initial investment.

The institutional response is, methodologically, the most important part of the conflict, because, in the case at hand, it can confirm, from the company's own statements, that status is a material component of enjoyment and that, when the architecture changes, restoration may be needed. In a public notice, the developer states that, when old Prestige *skins* returned to the store, the original owners would receive exclusive modified versions "in recognition of the investment", and that these

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ill not be available for purchase with the new currency then introduced into the ecosystem, *Mythic*

restoration aimed directly at the point of loss, preserving a public mark of distinction for the original holders. In practice, this solution reveals the dogmatic threshold that matters to abusive teleology: when a change threatens to produce a relevant loss of position and recognition, the platform acknowledges that it is not enough to "evolve the system", and tries to rebuild, by design, a minimum equivalence of enjoyment so as to avoid the perception of injury.

In sum, the episode stands out because it demonstrates that, in IOCs with high semiotic density, the content is not merely "access to a cosmetic", but access to a socially legible position. When the platform reorganizes the circulation of these goods, it reprograms the very distinctive value that formed part of the consumption decision. Abusive teleology becomes identifiable when this reorganization operates as a relevant loss without an equivalent route of preservation, or when the restoration offered is insufficient to maintain the core of enjoyment that justified the acquisition. The Prestige case is useful precisely because it shows, with institutional documentation, that governance itself acknowledges this dimension and acts to manage it when the redesign threatens to break the equivalence of the investment.

In parallel, the Eternals regime lends itself to serving as a test case for delimiting the threshold between legitimate modulation and abusive teleology, not because it is already abusive, but because the institutional offer itself describes the pass as an acquisition with a projection of future completeness, that is, as a good whose utility is not exhausted by present content. In presenting the *Series Pass*, the company makes explicit that the purchase would cover existing champions as well as champions released later, building continuity into the acquired enjoyment bundle RIOT GAMES[458].

Within this frame, abusive teleology would arise only in a specific scenario, namely if the system's architecture were redesigned to retroactively remove this structural attribute, reprogramming the product to require a new purchase in order to preserve the same completeness previously promised. The point would not be the creation of new series or ordinary adjustments to the ecosystem, but a redesign that turned

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ly communicated as a component of the package, into compulsory recurrence, shifting the pr

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Should this removal occur, the relevant loss would not be merely economic. It would also be a loss of equivalence, because the consumer would have acquired a good whose utility included future projection, but would come to be compelled to finance again, by design, the same level of enjoyment that had already been incorporated into the expectation legitimately formed by the supplier's communication RIOT GAMES.

The contractual frame helps to understand how a rupture of this type could be implemented without formal withdrawal of the service, since the contract normalizes the mutability of the environment, frames virtual content as a revocable license and admits alterations, restrictions and updates that may affect even virtual products RIOT GAMES[459]. This reinforces the criterion: the identification of the purposive deviation cannot be left to the fact that the environment is mutable, but would depend on the finding of relevant loss without equivalent restoration precisely when the utility projected into the future was presented as the core of the good acquired.

The fourth requirement is opacity combined with low contestability. It is not enough for the system to be complex or to operate with metrics. It is necessary that the mode of operation structurally hinder the understanding and challenge of relevant decisions, reducing the possibility of effective contestation, verifiable review, controllable justification or proportional reversal of effects. Opacity functions as a condition of effectiveness of the program when it prevents an informed reaction and limits the ordinary demonstration of the causal link between modulation and degradation of enjoyment.

The fifth requirement is a legally relevant effect on the enjoyment bundle. Abusive teleology must produce a substantial and persistent impact on the practical conditions of use and value of the acquired object, even if there is no total interruption. This effect may take the form of significant degradation of quality, accessibility, functionalities, conditions of participation and visibility, or of unilateral reconfigurations that alter the content and quality of performance to the consumer's detriment, including through cumulative restrictions that erode utility over time. The

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service and requires delimiting the core of the affected utility, distinguishing ordinary variations from those that structurally reconfigure enjoyment.

This definition and its test fulfill their function only if they are brought back to the dogmatic language of the CDC for long-term relationships, in which utility is realized over time and the supplier's relevant conduct manifests itself in performance. Claudia Lima Marques frames these arrangements as mass contractual relationships that produce complex and prolonged legal relationships, marked by the consumer's position of captivity or dependence MARQUES. In this type of structure, the contract cannot be treated as a static act, since it unfolds over time and radiates legal effects during performance, before and after it MARQUES. For this reason, the expectations proper to these relationships rest more on trust and on maintaining the economic potential and quality of the service, requiring capacity for adaptation, cooperation and continuity of the relationship MARQUES. Taken together, this makes it possible to qualify architectural modulations not as terrain indifferent to the contract, but as a plane of duties and expectations stabilized in performance.

On platforms, alteration frequently manifests itself as architectural reconfiguration, reordering of visibilities, cumulative restrictions and selective frictions that preserve formal access while degrading the enjoyment bundle. Abusive teleology fits exactly here, since it makes it possible to qualify as legally relevant conduct the architectural pattern that exploits continuity and dependence and converts the capacity for adaptation into a systematic instrument of extraction and control.

The cumulative structure of the test must, finally, be accompanied by a standard of controllability that prevents the flexibility of complex environments from turning into argumentative arbitrariness. Abusive teleology cannot function as a moral wild card. It must depend on the rational demonstration that the architecture is oriented, in a dominant way, toward the exploitation of vulnerability and the disproportionate capture of value, with persistent opacity and asymmetry, and not toward legitimate purposes of the service, such as security, stability and balance of the ecosystem.

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NOTES

450. The reference to the “Grand Staircase” (*Grand Staircase*) and the “Room of Requirement” (*Room of Requirement*), from the British Harry Potter series, is used as an illustrative metaphor for a structural trait of continuous digital services. The environment of enjoyment is not static, since it is constantly being reconfigured. In that fictional universe, the staircases change their routes spontaneously and the room rearranges itself according to the purpose of whoever seeks it, producing the experience of an autonomous space that “changes by itself”. On digital platforms, however, reconfiguration is not “magic”. Changes derive from human and corporate choices materialized in *software* architecture, interface design, algorithmic parameters, contractual rules, moderation and sanction mechanisms, updates and internal policies. The metaphor, therefore, is not meant to romanticize the phenomenon, but to make intuitive the consumer's experience of standing on a “ground” (the ecosystem) that can be altered unilaterally, sometimes profoundly and with direct impact on access, on functional value and on the symbolic value of the object consumed, without this alteration presenting itself as a governing decision, but rather as “technical normality”. ↩

451. The institutional development text describes the Exalted tier and the system of obtaining by attempts, with “bad-luck protection”, base probability and a guarantee by number of attempts, in addition to presenting the typical composition of the reward pool, in which the main good is rare and the usual return comes as currencies and collateral items RIOT GAMES. ↩

452. Proof of the exploitative character does not depend on a subjective reading, because the institutional material itself describes the structure in terms of probability, progression and guarantees by attempts, in addition to presenting an investment cap. The relevant evidentiary element is the admission of the design of access as a trajectory of probabilistic extraction, and not as a direct purchase of the good RIOT GAMES. ↩

453. In the specific regime of Virtual Content, the Terms describe such items as provided under a (revocable) license and expressly recognize that Virtual Products may change over time, including for typical reasons such as balancing, correction and improvements. This set of provisions is relevant because it shows that mutability does not appear as an exceptional event, but as a structural element of supply, without this, by itself, neutralizing the discussion about relevant loss and equivalent restoration RIOT GAMES. ↩

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structural rewriting of the environment without economic imposition of an exploitative route for access to the new system RIOT GAMES. ↩

455. In the later dev update, the company discusses the reform as a *design* project and evaluates its results, treating the change as a restructuring of choices and strategies. The statement is useful for demonstrating the explicit teleology of experience engineering, without this necessarily implying abusive teleology, when there is no relevant loss combined with absence of equivalent restoration RIOT GAMES. ↩

456. Governance did not treat the reintroduction of old Prestiges as a mere "store rotation", but rather as a problem of coherence of the exclusivity regime itself. In announcing the reform of mythic content, Riot recognized that Prestiges from 2018 and 2019 demanded a greater degree of exclusivity and difficulty, and for that reason states that they would return in higher tiers precisely "to respect their higher exclusivity and difficulty to obtain compared to more recent Prestige skins". The institutional formulation is valuable because it explicitly connects the utility of the good to its managed rarity, which reinforces the thesis that status and recognition form part of enjoyment as a position RIOT GAMES. ↩

457. The reference in question proves to be one of the most revealing pieces of evidence of the supply regime under discussion, since the company itself acknowledges that altering the regime of circulation could produce a relevant loss for the original holders and, for that reason, proposes a restoration that is not economic, but symbolic and public. The text states that "original owners will receive exclusive modified versions of the skins in recognition of their investment" and adds that these versions "won't be available for Mythic Essence". Here, the relevance lies not in the "cosmetic curiosity", but in the institutional reasoning, since the restoration proposed by the developer itself sought to preserve - or, at least narratively, partially justify - a mark of distinction exactly where the change threatened to cause injury, confirming its recognition of status as a material component of the marketed enjoyment bundle and as a variable that must necessarily be managed when the architecture of access and circulation is the object of a redesign capable of negatively affecting the experience in question RIOT GAMES. ↩

458. The future projection is not a subjective expectation of the consumer, but an express component of the product. The institutional FAQ states that, by buying the *Series 1 Pass*, the player obtains the series' Eternals for all existing champions and also for champions released in the future. "That means that if you buy the Series 1 Pass, you'll get all Series 1 Eternals for every champ that currently exists and all new champs we release in the future." This wording is what allows the scenario of retroactive removal of the attribute of completeness to be treated as a relevant loss, because it builds ›the enjoyment bundle sold, not into a unilateral hope of the consumer

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instantly unlocks every Series 2 Eternal for all current champions, and automatically unlocks Series 2 Eternals for all future champion releases for free." That is, in the developer's own words, the future projection is part of the institutionally communicated value of the package. If the architecture were reprogrammed to require a new purchase to maintain this completeness, the core of the abuse would lie in the breach of equivalence, and not in the mere existence of modulation of the service RIOT GAMES. ↩

459. The contract is relevant because it explains why retroactive changes may be operationally possible in continuous digital services. Contractual elasticity, in isolation, therefore, does not solve the problem, since, if the offer incorporated the future projection as the core of the good, a retroactive removal of this core could constitute relevant loss without equivalent restoration, characterizing purposive deviation RIOT GAMES. ↩

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PROTECTED LEGAL INTERESTS IN THIS SECTION

Personal integrity

Beyond functional utility, the IOC projects a layer of personal integrity and symbolic identity, because the user's position in the ecosystem is produced by regimes of visibility, recognition and belonging. The task now is to define relevant losses that can be neither downgraded to “displeasure” nor treated as a side effect. In digital ecosystems, the value offered and enjoyed is not exhausted by instrumental utilities, because it depends on regimes of visibility, recognition, belonging and reputation that form part of the very experience of enjoyment and condition the subject's practical position in the environment.

For this reason, the dogmatic reconstruction of the immaterial object of consumption must incorporate, as a dimension of relevant loss, the consumer's personal integrity and symbolic identity, understood as functional components of enjoyment in private spaces that operate, to a large extent, as environments of social participation and status projection. The problem is to make them legally tractable through objective delimitations and criteria of controllability, including in order to capture losses that affect the enjoyment bundle even when there is no total interruption, but rather a persistent downgrading of the conditions of use and recognition.

In Reale's thought, this type of construction is neither an arbitrary gesture nor a later moralization by the interpreter. The legal norm operates as an integration of facts being reduced to an empty logical form and without being confused with a mechanical reflection

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authorizes treating platform-governed enjoyment as a legally modelable experience, because “the normative structures, which constitute Objective Law, are not mere empty logical forms, but forms of a concrete experience, whose dominant or essential lines were abstracted from social reality to operate as an instrument of social discipline, that is, as ‘legal models’” REALE.

In scenarios of technical mutation, legal meaning may shift without the response depending on moral rhetoric, since “an unforeseen circumstance of a technical order can completely alter the signification and content of a legal text” REALE. This adjustment remains controllable because valuation and decision remain bound to facts and values, imposing methodological limits against voluntarism. With this grounding, personal integrity and symbolic identity can be formulated as functional dimensions of supply in digital ecosystems, provided they are defined by criteria of relevance and verifiability that preserve decidability.

Personal integrity, in the regime of the Immaterial Object of Consumption, designates neither an emotional state nor subjective discomfort arising from ordinary market frustrations. It designates the preservation of minimum conditions of agency, continuity and practical orientation of the consumer within a technical-organizational environment that permanently manages the possibilities of enjoyment. When the acquired utility is realized as a position of enjoyment sustained by a platform, the subject is not merely the recipient of content, but a participant in an ecosystem that organizes access, priorities, visibilities and sanctions.

Integrity is affected when these conditions are downgraded persistently or structurally, to the point of converting the experience of use into chronic instability, functional disorientation or loss of control over one's own way of existing in the environment, even if formal access remains available. Legal relevance, therefore, lies not in measuring internal disturbances, but in identifying when the continuous management of the environment significantly alters the level of predictability, consistency and governability of enjoyment, eroding the core of utility stabilized in the bond.

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expectations, already established as a methodological lock of the IOC regime, is decisive at this point because it makes it possible to affirm normative expectations about continuity, loyalty in performance and preservation of minimum conditions of enjoyment even under opacity and mutability. With this, the persistent downgrading of these conditions can be reconstructed as relevant loss without requiring proof of sociological "normality" or depending on moral reproach of the technical arrangement.

Dogmatics, however, can only deal with this type of loss if it is able to delimit the phenomenon and make it decidable, avoiding descriptive paralysis in the face of the environment's complexity. Under the technological function already established, dogmatic delimitation operates through a cut in reality that isolates the problems relevant to decision-making JR. and organizes uncertainties into a specialized technique compatible with normative binding and with institutional pressure for decision JR..

Personal integrity thus ceases to be a subjective appeal and becomes matter that can be delimited by criteria, making it possible to locate typical losses in the gap between formally preserved enjoyment and materially degraded enjoyment. Protection no longer depends on the crude figure of total interruption and comes to reach situations in which access remains nominal, but the experience of use is downgraded by persistent alterations in the conditions of participation, predictability and governability of the environment.

Relevant degradation may take the form of cumulative restrictions, gradual reconfigurations of functionalities, persistent changes in access rules, selective frictions and reiterated instability that makes enjoyment unpredictable or structurally disadvantageous. Even when there is no immediate collapse of access, the aggregate effect may erode the capacity to orient one's own action, plan permanence and exercise use according to stabilizable normative expectations, delimiting the point at which modulation ceases to be an ordinary variation of supply and comes to constitute a significant downgrading of the enjoyment bundle.

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ecosystems is not merely instrumental,

end, it is necessary to set aside the reading that symbolic value is a mere private emotional projection, immune to control and, for that reason, legally irrelevant. Under the semiotic apparatus already established, the sign is not a subjective ornament that accompanies experience, since it operates as a public structure that organizes conduct and produces verifiable social effects, regardless of its physical truth or of individual mental states. In this light, interpretation can be understood as an objective datum, since interpretants, that is, the relations of interpretation, do not necessarily depend on individual mental representations and are collectively verifiable ECO.

Under the semiotic lock already established, symbolic identity ceases to be an introspective appeal and comes to designate a socially instituted position in systems of signs that structure expectations, recognition and belonging in the ecosystem. Meaning is not reduced to a mental image, but operates as a relation instituted by the code, and even connotation becomes predictable through a shared lexicon, which makes it possible to describe symbolic losses by public criteria.

Symbolic identity, in the IOC regime, designates the consumer's public position in an ecosystem of signs managed by a platform, in which visibility, reputation, belonging and distinction function as practical conditions of enjoyment and as components of the economically experienced value. This identity is formed and stabilized by socially operative criteria of recognition, frequently coded in metrics, badges, rarities, *rankings*, participation history, relationship networks and regimes of access to spaces and functionalities. When the utility of the object depends on these mediations, the enjoyment bundle structurally includes the continuity of this position and the possibility of exercising it over time. The platform may formally preserve access to the content and, even so, reconfigure the criteria that define status, reach, belonging and recognition, degrading the socially instituted core of utility that sustained enjoyment as a practice.

An especially didactic example of this symbolic identity as a public position appears in the end-of-season ranked rewards and, in particular, in the “Victorious” *skins* and

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iated with the tier[460]. These signs do not operate as mere cosmetics, because they become social

stabilizing a form of reputation that is simultaneously historical and displayable, since the player comes to carry, on the very symbolic body of the account, a mark of performance and temporal dedication recognized by third parties RIOT GAMES. The consequence is that enjoyment ceases to be merely access to the game and comes to include the permanence of this visible biography as a component of the economically experienced value, because it organizes expectation, distinction and belonging in internal circuits of recognition.

The intelligibility of this public position can also be reinforced by the sociology of sport, insofar as institutionalized competitive practices produce not only performance, but stable forms of community, integration and reciprocal recognition. Helal[461] observes that sport is one of the most solid social institutions of the modern world and that its presence deeply penetrates everyday life, influencing habits, customs and modes of social insertion HELAL. Along the same lines, treating sport as a social fact, the author stresses that it imposes itself on individuals from an early age, so much so that those who do not take to the sport of their social group often experience the condition of the non-integrated, while sporting taste itself is formed in the collectivity, and not as a purely private or spontaneous preference HELAL.

This perspective is particularly useful for understanding continuous competitive ecosystems such as that of *League of Legends*[462]. When competition is stabilized by seasons, *rankings*, rewards, public circuits, shared memory and recognizable signs of prestige, enjoyment no longer consists of a mere succession of matches and comes to operate as insertion into a socially structured space, in which belonging, reputation and biographical continuity are produced collectively. Within this frame, the value of the IOC is not exhausted by the instrumental utility of access, because it includes permanence in a competitive community organized by shared codes, mutual recognition and public criteria of distinction. That is why exclusions, persistent restrictions or relevant downgrades of the conditions of participation affect not only the user's functional conveniences, but may bear directly on their symbolic identity and on the continuity of their socially recognized position in the ecosystem.

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not only on competitive performance, but also on maintaining a state of eligibility managed by disciplinary technologies of conduct, in which low Honor levels bar the player from seasonal rewards RIOT GAMES[463]. In this dynamic, the subject comes to manage their own behavior with a view to preserving recognition and narrative continuity, because the relevant threat is not only the loss of a match or of a functional convenience, but the frustration of a rare reward that consolidates status and that, once missed, cannot simply be repurchased as an equivalent substitute. Conformity ceases to be mere "following the rules" and becomes a mechanism of self-preservation of a socially operative position in the ecosystem, in which the cost of leaving is not limited to time or money, but includes the loss of displayable historicity.

The legal point that this example illuminates is that accumulated symbolic capital is maintained under a regime of disciplined permanence, since the platform not only describes standards of conduct, but reserves to itself a power of intervention capable of downgrading enjoyment through functional limitations, restrictions on interaction, redefinitions of progress and, in extreme cases, the very termination of participation, with measures that may be triggered even when the specific conduct is not previously listed as inappropriate RIOT GAMES[464]. In this way, the risk of sanction bears not only on formal access, but on the integrity of agency and on the maintenance of symbolic identity as a public position, since the system of rewards and eligibility turns prestige into something both desirable and vulnerable to private governance. In practical terms, what the environment recognizes as merit becomes, at the same time, an instrument of capture through disciplinary asymmetry, since preserving the possibility of receiving and sustaining signs of prestige comes to require continuous self-adjustment to administratively controlled criteria and determinations RIOT GAMES[465].

Within this frame, relevant downgrading may consist of loss of position, persistent disqualification, erasure of signs of distinction, systematic instability of recognition or restrictions that make participation in internal circuits of value unfeasible.

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continuity as utility.

Personal integrity and symbolic identity become fully intelligible as dimensions of the IOC when it is recognized that, in platform-governed environments, agency and identity are not located outside supply as mere psychological phenomena, but can be configured by architectural design and by continuous modulation. Cohen synthesizes this point by stating that technologies and artifacts mediate the embodied perception of reality and that, over time, they come to constitute and define the lived world, so that networked information technologies not only empower the networked self, but configure it COHEN.

This configuration is carried out through layers of protocols and structural choices that simultaneously enable certain flexibilities and block others, while producing legibility and intermediation compatible with the platform's own priorities COHEN. In the same movement, flows of personal data are refined to produce operational representations of the user, structured to make behaviors calculable, predictable and profitable at scale COHEN. The legal consequence is that agency comes to be treated as a governable variable of supply and that motivational patterns can be reinforced in pre-deliberative layers through techniques of choice architecture and algorithmic anticipation COHEN. Thus, the enjoyment bundle may include architecturally produced conditions of visibility, recognition and participation, and the degradation of these conditions may constitute relevant loss without depending on the consumer's introspection.

The identification of relevant losses in the IOC can, then, be structured as a matrix that captures the harm without depending on total interruption or subjective assessment. The common axis is the impairment of the position of enjoyment over time, as a combination of practical conditions of use and agency in the environment with conditions of recognition, visibility and belonging that form part of the socially instituted utility.

Relevant losses, in this regime, include exclusion or significant limitation of participation when the platform prevents the normal exercise of the enjoyment bundle through persistent blocks, restrictions or downgrades. They include ion of the conditions of use when gradual reconfigurations, iterated instabiliti

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governability of the experience. They include the devaluation or erasure of signs of distinction and reputation when metrics, badges, rarities, histories or visibility criteria are altered so as to disfigure the stabilized symbolic utility. They include, finally, the structural reconfiguration of access and recognition when the consumer remains within the ecosystem, but durably loses the capacity to occupy the position of enjoyment that made the object economically and socially valuable.

Organized in these terms, the problem ceases to be described as diffuse discomfort and comes to separate ordinary variations of service from significant downgrades of the enjoyment bundle, distinguishing alterations compatible with continued performance from those that transform, to the consumer's detriment, the minimum conditions of agency, participation and recognition that sustained the acquired utility.

The incorporation of symbolic identity as a component of the enjoyment bundle is also sustained because legal rationality assimilates social structures of recognition, roles and history as conditions of coordination and of limitation of meaning. In the sense indicated by Tércio Sampaio Ferraz Jr., elements such as reputation and stereotypes function as material topoi that can be mobilized in legal discussion, allowing the parties to present themselves as upright people, in good faith, aware of duties and rights and bearers of recognized public merit, in opposition to a minority or to interests described as deviant JR.. The same mechanism appears in the idea of role. For the author, assuming a role means becoming entangled in actions that the agent comes to have to represent as part of themselves, and this assumption functions as a presupposition of continuous interaction, producing a paradoxical cooperation, since the parties recognize each other as such even in a condition of conflict JR.. The communicative situation also delimits meaning through its own history, since generating one's own history means differentiating one's own behavior in reference to the more complex history of the surrounding world. In this dynamic, every behavior that enters the communicative situation contributes to limiting it, because it excludes and enables alternatives and ensures other discursive behaviors JR.. On

positions of user, participant, creator, moderated or sanctioned

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practice, so that persistent downgrades of status and participation may affect the core of utility even without total interruption of access.

The reference to digital citizenship operates neither as a constitutionalizing shift nor as an inflated metaphor, but as a functional description of the way certain private ecosystems have come to concentrate relevant conditions of social participation, recognition and circulation of reputation. Consumer relationships structure access to spaces of interaction, mechanisms of visibility and internal circuits of value that, in practice, function as everyday infrastructure of belonging, public exposure and the exercise of social roles. The argument is put in strict terms. The platform operates as a private environment of public relevance insofar as it structures practical opportunities for expression, participation and recognition, and continuous consumption places the consumer in a position of functional dependence on these conditions. Within this frame, private sanctions, reconfigurations of visibility and persistent downgrades cease to be indifferent operational variations when they substantially alter the consumer's capacity to occupy socially relevant positions within the environment, with effects that extend beyond the instrumental use of the service.

For this impairment to be legally assimilable, the content of what is understood here as personal integrity in the IOC regime must be made explicit. The term is employed as an umbrella concept compatible with the theory of quality in the CDC[466], which already operates through categories broad enough to encompass harms arising from the fact of consumption without requiring the crude figure of total interruption or of immediate material injury. Personal integrity includes, therefore, classic dimensions of physical, psychological, patrimonial and even aesthetic integrity, but now also comes to incorporate an operational facet proper to continuous consumption in an environment. It is integrity as to the capacity for agency and predictability, understood as the minimum set of conditions that allows the consumer to orient their own action, understand practical consequences, plan permanence and exercise use according to stabilizable normative expectations in an ecosystem governed by private sanctions.

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This integrity of agency does not correspond to a private emotional state or to a psychological parameter of protection. It designates a functional condition of existence in the system, observable in patterns of governability of the environment, stability of rules and legibility of consequences. In ecosystems of governed enjoyment, the consumer may remain formally "inside" and, even so, lose control over how they exist in the system, when a regime of chronic instability sets in, produced by repeated alterations of rules, selective frictions, gradual reconfigurations of functionalities, opacification of visibility criteria and unpredictability of sanctions. What deteriorates is the capacity to maintain enjoyment as a practice orientable over time. Relevant loss appears when modulation ceases to be an ordinary variation of supply and comes to persistently erode the possibility of acting with minimum predictability and of sustaining a position of use endowed with practical meaning.

In this same register, symbolic identity and personal integrity are connected by two effects of dependence that can be named symbolic captivity and identity captivity. The first designates the platform's capacity to replace public repertoires of signification with proprietary signs and internal grammars that come to organize value, belonging and recognition, reducing external comparability and reordering the user's interpretable world under managed metrics, rarities, badges, *rankings* and regimes of visibility. The second designates the form of dependence in which the cost of exit is not exhausted in financial or convenience dimensions, because it implies loss of narrative continuity and of positions of recognition whose existence takes place, decisively, within the ecosystem, through networks, histories, roles and internal circuits of value. In both cases, it is not a matter of hypnosis of the consumer or of psychologization of the bond, but of a functional description of how architecture, curation and sanction can produce dependence through exit costs and through asymmetry of governance, directly affecting agency and the position of enjoyment.

Fixing a protective core that includes personal integrity, in its facet of agency and predictability, and symbolic identity, as a socially instituted public position, does not [illegible] axiological voluntarism, but as a controllable cut anchored in [illegible] nts of valuation and in structural limits of legal experience itself

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In Reale's thought, the evaluative dimension does not operate as a moral supplement external to Law. Decision-making authority does not detach itself from the axiological horizon that makes normativity intelligible, since the binding force of Law is linked to axiological requirements and to a set of options processed in the social milieu, from which decision-making authority is not separated. Along this line, every norm enunciates something that ought to be because a value was recognized as the determining reason for a behavior declared obligatory REALE. When legal experience identifies fundamental values as conditions of possibility of the system itself, valuation takes the form of a limit and not of rhetoric. Reale maintains that, in the dialogical process of history, man becomes aware of certain fundamental values, such as the inviolability of the human person, which, once brought to the light of historical consciousness, come to be considered intangible. For the author, these values act as transcendental axiological constants of Law, since it was they that made legal experience possible REALE.

Accordingly, the protection of integrity and identity, when operated as functional dimensions of enjoyment in private environments of public relevance, can be formulated as a protective core without abstract moralism, provided it remains bound to criteria of relevance and to standards of verifiability capable of converting this core into decidable losses in the IOC regime.

This incorporation requires, however, explicit delimitation to prevent personal integrity, symbolic identity, symbolic captivity, identity captivity and digital citizenship from turning into expansive labels capable of absorbing any discomfort arising from ordinary market frictions. It is not a matter of elevating the consumer's experience to a psychological parameter or of transforming trivial frustrations, aesthetic preferences or normal fluctuations of service into matters of reinforced protection. Nor is it a matter of attributing unlawfulness to technology as such or of replacing dogmatic criteria with moral reproach of the business model. The cut is functional. In platform-governed enjoyment, part of the economically acquired value depends on architecturally produced conditions of participation, visibility, [illegible] ernability of the environment, and the relevant degradation of y objectively affect the enjoyment bundle without taking the form of total interruption. For this rea

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downgrading is significant and persistent, when it substantially alters the level of agency and the position of the consumer in the ecosystem, and when it can be described by verifiable criteria of loss in the IOC regime, under the filters of relevance and controllability.

The passage to standards of proof and restoration finally requires making explicit why losses so delimited must be converted into decidable alternatives even when platform governance operates under opacity and mutability. Under the methodological locks already consolidated, legal technique does not suspend its action in the face of opacity, since it organizes criteria to make it bearable under normative binding and institutional pressure for decision, increasing uncertainties in a manner oriented toward action JR..

Seen this way, the absorption of insecurity justifies transforming initially diffuse losses into controllable cuts, since the act of deciding converts undecidable incompatibilities into decidable alternatives, even if, at a subsequent moment, it generates new incompatibilities, sometimes more complex than the previous ones, without this transformation being confused with a promise of harmony JR.. The matrix of losses relating to personal integrity and symbolic identity, thus outlined, does not purport to exhaust the phenomenon, but to make it decidable by criteria, opening the way for the formulation of standards of verifiability and restoration compatible with continued enjoyment.

Thus, the protective core outlined for personal integrity and symbolic identity ceases to be a rhetorical ornament and comes to function as an instrument of attribution and restoration compatible with the IOC's mode of existence. Platform-governed enjoyment cannot be read only through the lens of formal access or through the crude category of total interruption, because what is acquired and lost is frequently a position of enjoyment that is realized over time and under architectural governance. When this position is degraded by persistent reconfigurations of conditions of use, participation, visibility and recognition, relevant loss may occur without collapse of access and, even so, affect the core of utility economically experienced and socially [illegible] system. The result is a reading rule that ties together the three [illegible] already opened: the object rema

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relevant conduct can be reconstructed in architectural patterns oriented by exploitative purpose, and relevant losses can be described by criteria that capture substantial degradations of the enjoyment bundle, including in its symbolic dimension. This conceptual architecture provides controllable cuts that make decidable what, under abstract labels or narrow categories of defect and interruption, would tend to remain invisible, and prepares the shift of the diagnosis to the *standards* of proof, control and redress capable of dealing with gradual losses, persistent downgrades and architectural reconfigurations without requiring total transparency or reducing protection to the binary logic of "works or does not work" or of an object "intact or defective".

NOTES

460. The policy of ranked match rewards per season makes the reward explicit as a conditioned sign and, therefore, as an institutional technology of prestige. The support article on end-of-season rewards is the space where the developer states as an objective requirement that the player "Finish the season with Honor Level 3 or higher" and also "Win 15 ranked matches" RIOT GAMES. That is, the reward does not present itself as a neutral item, but as an institutional certification of ranking merit. Something publicly legible through which the platform defines not only what "winning" is, but also what "being recognized" is so that merit is converted into prestige capable of being enjoyed through display. ↩

461. A Doctor of Sociology from *New York University*, Ronaldo Helal is a Brazilian sociologist and professor at the Faculty of Social Communication and in the Graduate Program in Communication of the State University of Rio de Janeiro (UERJ). His academic trajectory places him among the pioneering names in the consolidation of studies on sport, media and culture in Brazil, which gives special density to the use of his work *O que é sociologia do esporte* as theoretical support to understand sport not only as a competitive practice, but as a social phenomenon that produces integration, belonging and collective forms of recognition. ↩

462. The relevance of League of Legends to this point does not stem from an isolated historical curiosity, but from its central role in the public and institutional consolidation of e-sports as a socially recognizable competitive practice. A frequently recalled milestone of this process occurred in 2013, when Danny "Shiphtur" Le, a eague of Legends player, received a P-1A visa in the United States, a ionally associated w episode that became a symbol of t

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competitor as a figure analogous to the professional athlete [DAVE]. This fact, by itself, does not exhaust the phenomenon, but helps to situate League of Legends within a broader process of social stabilization of digital competition. Riot itself came to present LoL Esports as a global platform devoted to the game's regional and international competitions, articulating local leagues, global events and integrated digital experiences for the audience, with its own identity and specific governance [LOLESPORTS STAFF]. In parallel, its contemporary structure of competitive operations describes a global ecosystem organized into regional leagues and structured circuits, including at grassroots and semi-professional levels, revealing that these are not sporadic competitions, but a reiterated, documented and regulated order of competitive participation [RIOT GAMES]. It is precisely there that the sociology of sport illuminates the legal problem. When a competitive practice is stabilized by calendars, seasons, leagues, rankings, rules of its own, a recurring audience and collective memory, it ceases to be merely a sequence of matches and comes to operate as a social form. In the case of League of Legends, this manifests itself not only in the existence of world championships and regional circuits, but also in the public and ritualized staging of these events. In describing the global broadcast of the 2022 World Championship, Riot reported that the tournament was brought to the public by 22 broadcast partners, in 21 languages, with millions of viewers around the world and a peak of about 70 million people watching the final, which attests to public scale, shared expectation and the production of common memory far beyond the individual use of the game [RIOT GAMES]. The community dimension also appears in the modes of collective following and participation in the competitive scene. Riot itself came to promote and publicize official or authorized watch parties for the World Championship, that is, collective gatherings of spectators organized around the championship, which shows that the competitive ecosystem mobilizes not only players individually considered, but also practices of fandom, conviviality, ritualization and belonging around the game [RIOT GAMES]. For this reason, the utility socially experienced in League of Legends cannot be reduced to technical access to matches. In an environment so structured, remaining in the ecosystem also means keeping a position in a competitive community endowed with its own codes, recognizable distinctions, shared memory and internal circuits of recognition. Exclusion, banning, lasting loss of access or relevant downgrading of the conditions of participation do not affect only the functional use of the service. They may bear on belonging, displayable historicity, reputation and biographical continuity within a socially organized space. It is precisely in this sense that the sociology of sport helps to make legally intelligible the existential and symbolic weight of permanence, participation and exclusion in institutionalized digital competitive ecosystems. ↩

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and states that it “rewards sportsmanlike conduct” while at the same time it “penalizes inappropriate behaviors with reduced rewards” RIOT GAMES. In the table of benefits, the rule appears in operational form: under “Ranked Season Rewards”, Honor 1 and Honor 2 are listed as “No”, while Honor 3, 4 and 5 are listed as “Yes” (same page). This transforms end-of-season prestige into a mechanism of conformation, because it shifts the problem from “playing well” to “staying compliant” so that merit is institutionally recognized. ↩

464. The User Rules reinforce that the player's position in the ecosystem is subject to a regime of disciplined permanence, with sanctions that affect access, visibility and continuity. The contract states that, to be eligible, the user must comply with “the acceptable use and behavior policies” published by the company and that, in case of violation, Riot may impose “temporary bans, suspension, or termination and deletion of the account”, in addition to “removal of content, resets of user progress”, “limitations on chat functionality” and “restrictions and bans from matchmaking queues”, “regardless of whether a specific behavior is listed or not” RIOT GAMES. The same passage makes explicit the infrastructure of control by declaring that Riot uses “human moderators” and “technological means, such as automated systems and machine learning tools” to ensure compliance with the rules RIOT GAMES. The issue at hand is not the abstract legitimacy of this discipline, but the structural consequence of its falling upon signs and positions that make up the value enjoyed as symbolic identity. ↩

465. A clear example of how sanction and prestige are connected appears in end-of-season announcements, in which Riot describes conduct that eliminates the player from rewards and, therefore, produces direct loss of symbolic capital. In the text *Fim da Temporada 2024 - Etapa 3*, Riot states that “Accounts involved in MMR manipulation and manipulative behaviors result in immediate suspension of the accounts, removal of the Honor level and exclusion from the ranked rewards of the season/Split” RIOT GAMES. The sequence is decisive, since the platform not only sets out to punish the account as access, but also resorts to the withdrawal of eligibility and exclusion from rewards, directly affecting the core of recognition and the narrative continuity that structures symbolic identity in the ecosystem. ↩

466. The use of “personal integrity” as an umbrella concept to encompass the binomial “health and safety” native to consumer protection does not propose the creation of a new legal interest, but an operation that engages directly with the dogmatics already stabilized in the CDC. In Claudia Lima Marques's reconstruction, consumer protection in the market is organized, at least, by the protection of the consumer's physical and psychological integrity and economic integrity, in addition to the

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defects due to inadequacy and to lack of safety are qualified according to reasonable expectations of supply, as a functional substitute for the classic categories of the redhibitory defect in the previous regime MARQUES. In this framing, the inclusion of an operational facet linked to agency and predictability in environments of platform-governed enjoyment can be presented as an extension of the adequacy of the supply regime itself, and not as a normative innovation. The recent literature that describes so-called digital vulnerability as the power of commercial actors to affect decisions, desires and behaviors in a way that the consumer tends not to tolerate, but is not in a position to prevent, helps to bring out the reverse of this integrity of agency, as a practical loss of the capacity for orientation and containment of the environment MUCELIN. This loss is associated with a structural, architectural aspect, in which the environment is designed to change behaviors, anticipating biases and operating through digital choice architectures, which reinforces the centrality of governance by *design* for the legal and consumer-law qualification of the problem MUCELIN. Likewise, in treating successive-performance digital contracts as relationships driven by the search for security, future performance, status or a certain quality, and in describing the position of dependence as captivity in the context of current relationships, the author offers a dogmatic point of support to articulate permanence, exit cost and expectation of quality as elements inherent to the integrity of continuous consumption MUCELIN. The objective, therefore, is not to replace the grammar of the CDC with an environmental label, but to bring these mechanisms back to criteria of quality and protection of integrity, preserving the instrumental character of the vocabulary and preparing the critique of the expression digital vulnerability as a polysemic category that tends to describe the scenario more than the operator of power. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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CONCEPTS IN THIS SECTION

Open auditability Functional value equivalence

Platform-governed enjoyment already makes it possible to keep the immaterial object of consumption intelligible in the vocabulary of the CDC without reducing supply to the inaugural instant or dissolving what was acquired into undifferentiated performance. Even so, the most sensitive dogmatic friction appears when utility depends on continuous modulations operated under technical opacity, so that relevant alterations occur without a single event, without verifiable justification and without a common language to compare promise, performance and reconfiguration. The frustration of the enjoyment bundle tends, then, to present itself as noise, and the legal response oscillates between two equally unproductive extremes: requiring total transparency incompatible with the functioning of the technical-organizational environment or accepting mutability as a neutral datum, normalizing substantial degradations as mere operational variation.

The problem does not lie in prohibiting evolution or in denying technical complexity. The problem lies in setting minimum criteria that make the governance of supply verifiable and decidable when the object is realized as a position of enjoyment over time. This requirement can be condensed into two complementary operators. Open auditability designates the minimum level of external verifiability capable of transforming opaque modulations into matter susceptible to adversarial proceedings, proof and decision. Functional value equivalence designates the

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ison and restoration by which one judges whether the utility

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utility, including when part of the valu

dimensions. The first operator makes traceable what was altered and why. The second defines what must remain equivalent and what, when downgraded, requires a legal response compatible with continued enjoyment.

A technically simple and dogmatically expressive example of this requirement of equivalence appears in updates to visual effects on old cosmetics, carried out under the label of modernizing the game. In an environment in which enjoyment depends on visual signals, legibility and social recognition, the functional value of the cosmetic is not exhausted in its formal existence in the inventory. It includes the way the item presents itself in the game space, the clarity with which it communicates an ability, the consistency of the visual "weight" the user experiences when triggering effects, and also the public distinction that the cosmetic produces in comparison with common versions. When this set is persistently altered, equivalence is not resolved with the answer that the item "is still there", because the core of enjoyed utility may have been reconfigured.

This problem does not transform every improvement into an unlawful act. Updates may be necessary for compatibility, security, stability and legibility in a competitive ecosystem. The relevant legal question arises when the adjustment, although justifiable under a systemic rationality, shifts enjoyment to a version that, for some consumers, no longer corresponds to what was economically stabilized at the moment of acquisition. In this scenario, auditability and equivalence operate together. Open auditability requires a verifiable narrative of what changed and by which criteria, while equivalence requires that the comparison be made by what matters for utility, and not by the generic rhetoric of "evolution". This connection becomes even more sensitive when the contractual regime itself assumes mutability as the rule of the service, including with regard to virtual products and automatic adjustments made over time RIOT GAMES[467].

The point of contact with the practical life of the service is direct. The company itself states, in a public text, that these updates aim to improve legibility, reduce visual noise and order objectives by priority, even when this implies reducing fine details , reorganizing hierarchies and favoring clarity over other aesthetic dimensions RIOT GAMES[468]. In

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that there is a declared teleology that guides the alteration. It is understandable and, from the standpoint of the ecosystem, may be desirable. What is lacking, from the standpoint of consumption, is a stable standard of comparison capable of recognizing when modernization alters what justified the price and the choice, especially in items whose value depends on the visual experience and on public distinction.

The practical insufficiency appears when the information made available to the consumer is, as a rule, narrative and dispersed. The typical public channel for recording changes to the game is the set of patch notes, published in regular cycles, which describe changes and communicate directions, but is not structured as a comparative mechanism aimed at the consumer who needs to demonstrate degradation of a specific visual utility over time RIOT GAMES[469]. In an environment of high complexity, this creates a predictable imbalance. The platform holds the complete history of decisions, versions and criteria, while the consumer receives only communicational fragments, insufficient to sustain, in a common language, the comparison between the stabilized promise and the reconfigured delivery.

It is here that the legal response proposed by auditability and equivalence proves moderate and functional. It does not require freezing the service or prohibit updates. It requires an institutionally loyal way out when the platform makes a substantial change to a good acquired under a stable regime of enjoyment. If the alteration preserves the core of utility, performance continues. If the alteration relevantly downgrades what structured utility for that consumer, restoration must include, at least, mechanisms of choice that prevent captivity by surprise, with alternatives such as refund, credit, exchange for another cosmetic of equivalent value or analogous forms of recovering the investment for the consumer's reinsertion into the ecosystem, without requiring from them the impossible proof of a black box. This design keeps the dialogue open and preserves the possibility of modernization, while preventing “update” from functioning as a label to impose on the consumer a version that they had no reason to expect would be the new basis of enjoyment.

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starting point of this construction lies in the replacement of the ideal of immovable fixation of meanin

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capable of operating under indeterminacy and complexity. It is in this sense that Humberto Ávila formulates an explicit turn by maintaining that the focus should be shifted from security of meaning to security of criteria, in order to provide, in advance, prior and abstract parameters to face later and concrete interpretive problems ÁVILA. The consequence is that the protection of the IOC does not depend on total transparency of the internal functioning of the platform, nor on absolute semantic certainty about each aspect of supply. It depends on conditions of intersubjective controllability capable of exposing reasons, delimiting objects of dispute and making argumentative reconstruction verifiable.

This requirement operates through determinability and relative certainty, not through the illusion of absolute determination. Ávila makes explicit that legal certainty depends on the capacity to understand the possible meanings of the normative text from cores of signification reconstructed through intersubjectively controllable argumentative processes, which grounds the notion of determinability and relative certainty of Law ÁVILA. On the plane of argument, this functions as a lock against arbitrariness. In addressing the process of legal argumentation, the author states that certainty is based on intersubjectively controllable criteria and that, in this sense, it is, above all, rational control of argumentative arbitrariness ÁVILA. These statements authorize shifting the debate about platforms. The question is not to open the black box all the way, but to define prior and controllable criteria that make it possible to transform technically opaque modulations into legally decidable alternatives, without reducing control to automatic deference to complexity.

Open auditability, in this framework, designates a minimum requirement of verifiability applicable to supply when the acquired utility is realized as continued enjoyment governed by a platform. Its focus is not to produce full transparency of the technical-organizational environment or to impose complete disclosure of models, source code, proprietary metrics or trade secrets. What is at stake is a level of external intelligibility sufficient to reconstruct, in adversarial proceedings, the relation between promise, performance and modulation. This level must make it possible to identify what was altered, to what extent the alteration bore on the

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nd which reasons were mobilized to justify it. In governed consumption, opacity is not an episodi

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mode of supply. Without a verifiable minimum, complexity becomes a shield, proof becomes asymmetrical to a radical degree and mutability tends to be trivialized as an "update", even when the practical result is the persistent emptying of the core of utility.

The usefulness of the requirement becomes evident when frustration does not take the form of total interruption, but of partial degradations, gradual reconfigurations and cumulative restrictions that erode enjoyment without producing an unequivocal event. Open auditability prevents continued performance from becoming a legally unassessable gray zone. It is not a matter of requiring the consumer to fully understand the functioning of the system. It is a matter of ensuring sufficient verifiable elements to locate what was promised, what was actually delivered and what was later reconfigured by acts of maintenance, curation, updating, *enforcement* and management of conditions of access and use. Without this, the conflict migrates to the plane of the unsayable and produces two degenerative effects. The supplier comes to hold the practical monopoly of the "real", and the consumer is reduced to a bearer of symptoms, without a common language that allows comparison and control.

This requirement also operates as a negative edge against two symmetrical excesses. On one side, it prevents legal control from getting lost in the pursuit of total transparency, converting the proceedings into a dispute about internal engineering, instead of the protection of consumption. On the other, it prevents the generic invocation of "internal policy", "security", "improvement of the service" or "integrity of the ecosystem" from functioning as a self-sufficient justification immune to control, emptying duties of information, loyalty and adequacy in continued performance. Open auditability is the level that shifts the discussion from "trust me" to the verifiable reconstruction of what was modulated, preparing the application of a second operator that judges equivalence and guides restoration.

The dogmatic justification of this cut does not depend on a promise of total technical truth. In Tércio Sampaio Ferraz Jr., modern dogmatics presents itself as a technology .on, and not as contemplation of the world. For this reason, gy" becomes an int

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“concealing it” and “manipulating it”, precisely to extract from it the maximum that is operable in the form of decision JR.. The cut that dispenses with full transparency and, even so, requires minimum conditions of controllability is legitimized in this register. Law does not need to see everything in order to control. It needs to cut out what is relevant to make the conflict treatable, prevent opacity from functioning as shielding and allow the dispute to be organized in institutionally decidable terms.

This technological orientation is concretized in the form of doctrinal propositions, which offer schemes of orientation and technical rules. Ferraz Jr. describes this role by stating that such propositions take the form of “orientations”, as “schemes, systematizations”, or the form of “recommendations”, persuasive propositions that become rules of the type “if you want x, you must z” JR.. Open auditability occupies this place in the IOC regime. It provides a scheme for reconstructing supply under opacity and a technical rule for transforming continuous modulation into verifiable criteria about what changed, how it changed and what impact was produced. The result is compatible with the institutional function of decision, which is to put an end to the conflict.

Ferraz Jr. observes that the institutionalization of conflict and of the decision-making procedure causes legal conflicts to “end”, in the sense that the decision puts an end to them by “preventing their continuation”, unlike social conflicts that may be resumed indefinitely JR.. In platform-governed consumption, structural opacity tends to push the dispute toward interminability, because there always remains a technical “behind the scenes” that could explain the effect. A minimum level of auditability operates as a mechanism of finitude, organizing the debate around elements that can be reconstructed and discussed in adversarial proceedings, without the fiction of total transparency.

The same logic is reinforced when control is understood as programming oriented toward conditions and means. Ferraz Jr. observes that, in conditional programming, the decision-maker's responsibility is for the “correct use and exploitation of the means”, and that the prevalence of this programming makes the legal decision a

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knowing all the variables of the ecosystem. It depends on operating through controllable conditions, that is, through verifiable criteria that make it possible to assess the correctness of the modulation procedure, the sufficiency of the reasons presented and the causal link between alteration and degradation of the enjoyment bundle. Open auditability thus ceases to be a generic appeal for transparency and becomes a dogmatic instrument of decidability.

Platform governance does not function as a neutral background. It organizes the space of enjoyment and defines, in practice, who enters, who stays, under what conditions and by which mechanisms someone is contained or excluded. Julie E. Cohen describes this power in treating dominant platforms as agents capable of producing and controlling a type of territory of their own, which is not physical, but is constructed by protocols, data flows and algorithms, and which presents itself to the user as a space demarcated and protected by guarded borders COHEN. If enjoyment happens within this algorithmic territory, one cannot depend on intuition about what occurs behind the service. The border of authorization itself is already part of the mode of supply. Open auditability therefore appears as a minimum condition to map, in verifiable terms, the operational rules that configure the space of enjoyment and the reasons that justify its alteration.

This cartography is indispensable because the apparent flexibility of the environment is managed by architectural mechanisms that selectively enable certain choices and block others. Cohen states that platform protocols impose a modular structure that enables certain kinds of flexibility and, at the same time, blocks others COHEN. She adds that control through protocols also enables intermediation and favors legibility, making it possible for the platform to operate according to its own priorities COHEN. Without minimum auditability, what modularity executes remains invisible while the user's experience is presented as free choice. The proposed requirement does not eliminate complexity. It prevents the invisibility of selective blocks from becoming practical immunity of the supplier, especially when changes of protocol, curation or legibility criteria reconfigure the enjoyment bundle.

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reinforced when one recognizes that the platform not only

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calculable, predictable and economically exploitable at scale COHEN. In this scenario, treating opacity as something neutral amounts to normalizing modulation as an ordinary and uncontestable form of governance of supply. Open auditability provides the minimum necessary so that decisions of curation, *ranking*, access, participation and sanction can be reconstructed and discussed in adversarial proceedings when they interfere relevantly with enjoyment over time. Cohen herself formulates the need for this level by maintaining that algorithms and protocols classify subjects, shape information flows and authorize or deny access to network resources, so that any meaningful control of the surroundings depends on a baseline level of information about what these mechanisms do COHEN. Open auditability is anchored precisely in this baseline level.

On the plane of operative translation, open auditability is expressed as a standard of verifiable reasoning applicable to the relevant modulations of supply in continued enjoyment. When the platform alters access rules, reconfigures functionalities, imposes selective frictions, reorganizes regimes of visibility, applies sanctions, modifies curation parameters or carries out cumulative restrictions that substantially affect the enjoyed utility, it is not enough to invoke generalities. The reasoning needs to offer sufficient elements to reconstruct the link between change and the affected enjoyment bundle, allowing the consumer to understand what occurred, delimit the object of the conflict and submit the justification to adversarial scrutiny without depending on total technical knowledge of the system. This minimum level can be described by the identification of the act of modulation and of the temporality of its effects, by the indication of the functional impact on practical dimensions of enjoyment, by the statement of operational reasons with purpose and criteria of application and by the indication of means of contestation and review. The effect is to shift the controversy from the plane of the unsayable narrative to the plane of a verifiable reconstruction, without turning every adjustment into litigation and without requiring exhaustive explanation.

The requirement gains institutional density when private governance is recognized as [illegible]y. In Eros Roberto Grau, the contractual relationship is described as an economic relationship that, whether or not legally regulated, already operates as a relationship of wi[illegible]

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economic relationship itself GRAU. Recognizing this normativity does not amount to accepting it as destiny. Grau formulates a two-way street by stating that presupposed law springs from society and conditions the elaboration of posited law, but that positive law, when it applies, modifies presupposed law GRAU. On platforms, terms, protocols, flows and *enforcement* establish a practical order that organizes expectations and distributes positions. Open auditability functions as a technique for bringing this established order back to the plane of the controllable, without purporting to fully inspect the technical design, but preventing the exercise of power from becoming immune to verification.

This organized coercion is precisely the trait that makes control legally unavoidable. In discussing the formation of the legal rule, drawing on Duguit, Grau indicates that a social norm becomes a legal norm when the mass of consciences understands that the sanction can be "socially organized" GRAU. On platforms, the sanction materializes in suspension, banning, downgrading of visibility, blocking of functionalities, restrictions on participation and multiple forms of automated or hybrid sanction, executed by architecture and by internal procedures. When sanctions and restrictions operate as a pattern, governance ceases to be mere advice and comes to function as an effective normative regime. The demand for auditability is not an aesthetic agenda of transparency, but a minimum requirement for submitting private coercion to rational control. The same intuition appears when Grau observes that the market posits its legal order by establishing an order produced by it GRAU. If an order is established and applied by organized coercion, the minimum that can be required for decidability and legitimacy is that relevant decisions be reconstructible, contestable and assessable by objective criteria.

Once this level is established, the debate changes in nature. The dispute ceases to be about what the system did and comes to be about what must remain equivalent in continuous supply. It is here that the second operator comes in. Functional value equivalence is not a promise of freezing supply or a right to an eternal version of the service. It is the criterion of substantial preservation of the core of enjoyed utility in [illegible] nfigurable environment. In continued enjoyment, changes of [illegible] nitecture and execution may be legitimate, including for reasons of security, stability and compatibility.

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substantially and persistently downgrade the enjoyment bundle for which the consumer kept paying, or turn adaptation into an alibi for emptying utility.

This criterion also operates through negative edges. Mere aesthetic preference for an old experience is not equivalence, nor is nonconformity with ordinary variations of the service. Equivalence is not the measure of internal states, feelings or psychological accounts of the consumer. The comparison is made by substantial preservation of functions and of positions of use that structure utility, including instrumental and symbolic dimensions when these are a constitutive and socially verifiable part of enjoyment in the ecosystem. It is precisely for this reason that equivalence requires, as a precondition, the level of auditability: without traceability of changes, without indication of impacts and without explicit criteria of application, there is no rational basis for comparing promise and delivery and for distinguishing legitimate adaptation from emptying reconfiguration.

Functional value equivalence, when applied to symbolic components of the enjoyment bundle, requires a lock against psychologism. In Eco, the symbolic dimension of value can be treated as a stabilized cultural correlation, and not as a private mental state. Thus, the objection of mentalism does not hold because one is not speaking of associations or mental images, but of correlations formulated in cultural terms, which refer to one another on an abstractly cultural plane, regardless of whether a human mind carries out this association [ECO]. This makes it possible to reconstruct the symbolic as an objective datum of the system, and not as an intimate phenomenon.

Objectivity stems from the socially coercive character of the code. Eco describes the linguistic code as something established by social crystallization, the product of a statistical average fixed by use and which, once stabilized, comes to operate with coercive value, imposing a system of relations that speakers obey, often unconsciously [ECO]. In digital ecosystems, signs, metrics, badges, rarities, *rankings* and regimes of visibility do not function as a subjective ornament added to the "real product". They operate as coercive relations of the environment of enjoyment itself, to which the

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:d through participation.

The same logic prevents treating connotation as an unpredictable nebula. Eco indicates that there are diffuse subcodes that authorize specific connotations and observes that, in certain semantic subuniverses, widely authorized connotations and axiological marks fall upon a term, guiding predictable readings ECO. The consequence, for equivalence, is that symbolic losses can be described by public criteria. The expectation is not idiosyncratic, but authorized and induced by code.

Eco maintains that cultural units are semiotic postulates and that the ordinary producer of signs does not see them, but uses them, while a theory of signs does not use them, but sees them ECO. The perspective is methodologically decisive because it makes it possible to make visible, by public criteria, the rule of cultural equivalence that the consumer merely practices. Accordingly, functional value equivalence admits a controllable symbolic axis, capable of comparing what was stabilized in the system of signs with what came to be delivered after reconfigurations, including in regimes of visibility, belonging and distinction.

Once such a limit is fixed, functional value equivalence can be formulated as a criterion of comparison between the utility stabilized in the bond and the utility delivered after relevant modulations. Continued performance may justify adjustments and updates, but does not authorize the platform to preserve formal access and structurally degrade the practical content of enjoyment through silent substitution of functionalities, introduction of selective frictions, persistent reduction of reach and visibility, reordering that disfigures reputation criteria or imposition of barriers that make permanence economically or socially innocuous. Equivalence functions as a yardstick of relevance, since it transforms the discussion about change into a discussion about preservation of the core, distinguishing ordinary variation from substantial and persistent downgrading.

Consumer-law dogmatics offers direct support for this criterion because it abandons the static view of the bond and treats the contract as a process. Claudia Lima Marques states that the contract must be viewed as a dynamic relationship, which is born, lives and dies, configuring a true process that unfolds over time and radiates ts performance, before it and after it MARQUES. If the contract is a process, equivalence does not require i

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continuity of the expected core of utility, especially when utility depends on a technical-organizational environment in continuous operation.

This premise prevents treating the interval of performance as a neutral zone. Marques rejects the idea of an empty space between the birth of the obligation and the satisfaction of the main performance, by stating that the obligational relationship is a continuous whole. In this dynamic, from the birth of the relationship, and even before, the parties are already bound by ancillary duties of conduct, imposed by good faith in performance MARQUES. In platform-governed enjoyment, preserving functional equivalence frequently requires active conduct over time, and not mere formal conservation of access.

The very structure of long-term contracts reinforces that adaptability is an expected component of the bond, but under a horizon of trust and maintenance of quality. Marques describes these contracts as based "more on trust, on reiterated interaction, on the maintenance of the economic potential and the quality of services", as carrying "the implicit expectation of changes in social, economic and legal conditions", and concludes that "the capacity for adaptation, for cooperation between contracting parties, for continuation of the contractual relationship is here essential, basic" MARQUES. This formulation provides the fine fit for functional value equivalence: changes may be admissible and even necessary, provided they are oriented toward maintaining the potential and the quality that structure the enjoyed utility, and not toward the silent substitution of the object by a less valuable version.

The point is completed with the creative function of objective good faith as a source of new duties and of liability for professional risks that cannot be disposed of by contract. Marques, Benjamin and Miragem record that good faith performs a creative function, as a source of new ancillary duties and also as a source of liability for lawful acts "by imposing new professional risks now not disposable by contract" (2013, p. 235). The consequence is evident, since, if continued performance exposes the consumer to risks of technical obsolescence, compatibility mutations and structural reconfigurations, good faith must require care, cooperation and maintenance as ›n of functional equivalence, and thus impose liability when trust

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is broken by reconfigurations that relevantly and persistently degrade the core of utility.

Functional value equivalence also requires an objective lock against the attempt to legitimize unilateral downgrading as "evolution of the service". In contracts of continuous performance, permanence is the mode of existence of the bond. Rizzatto Nunes describes these contracts as relationships whose "characteristic" is continuity *ad infinitum* while the consumer fulfills the obligation to pay, the indeterminacy of the term being the central trait NUNES. If continuity is the normal regime, the enjoyed utility stabilizes as an expectation of maintenance of the level of delivery, and not as an expectation of formal access to a service that may be reconfigured at the supplier's convenience. For this reason, the CDC treats unilateral modification of content or quality as a ground of nullity. In commenting on Article 51, item XIII[470], Nunes asks, in a deliberately frontal way, how it would be possible to unilaterally alter a contract and, even so, confer legal validity on the alteration NUNES. The example he offers, of the supplier that reduces classes while keeping the same price NUNES, functions as an objective yardstick for platforms. The reduction rarely appears as an explicit cut of "classes", but may manifest itself as loss of reach, persistent downgrading of performance, cumulative restriction of functionalities, compression of limits, reordering of visibility or structural alterations that raise the cost of enjoying the same utility. The logic is the same. The label and the price are kept, and the delivery of value is downgraded.

With this, functional value equivalence stabilizes as an internal limit on adaptation in continued enjoyment. Changes of means and method may be legitimate, and sometimes necessary, to keep supply viable. The limit is that they cannot be used to shift structural risks onto the consumer, degrade quality, restrict relevant functionalities, erode conditions of access or reconfigure regimes of participation and recognition that were part of the economically stabilized enjoyment. Whenever the platform invokes "update", "adjustment" or "evolution of the service" to justify persistent alterations, the core of the debate must turn on demonstrating the

tion of the enjoyment bundle, and not on the rhetoric of

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This point requires a methodological basis for rejecting general labels that erase functional distinctions. Larenz points out that abbreviated formulas may serve external systematics, but are not an adequate basis for arguing about content and limits, precisely because they tend to obliterate distinctions oriented by social reality and by function when one operates only with a general and abstract concept LARENZ. In platform-governed enjoyment, reducing the IOC to "service" in a generic sense may work as an external label, but fails where dogmatics needs to work, namely in defining content, limits and criteria of comparison. The answer to this erasure is neither to inflate categories nor to replace dogmatics with moral indignation. What is required is to rebuild the boundaries through functional distinctions anchored in an explicit evaluative point of view. In this sense, for Larenz, real-normative types and legal-structural types do not hold without this guiding evaluative point of view. He shows by example how certain legal connections depend on the relation between self-interest and risk LARENZ. Under governed consumption, there is a coupling between the supplier's interest in governing the environment and the typical risk of discontinuity, modulation and downgrading of enjoyment, a risk that needs to be recognized and controlled in continued supply.

This movement also protects the construction against the objection of "invention" of Law, because the legal system is open and requires functional concretization when the factual basis shifts. Larenz describes the system as an "'open' and, to a certain degree, 'mobile' system", always incomplete and continually called into question, whose function is to make clear the "intrinsic rationality", the guiding values and the principles of Law LARENZ. If technology shifts the mode of realization of consumption, preserving the internal rationality of the CDC requires concretization through functional distinctions. Open auditability and functional value equivalence occupy this place: they do not replace the system; they allow it to see, by controllable criteria, what abbreviated formulas tend to erase.

The attempt to condition the legal control of opaque ecosystems on total transparency misses the target and produces paralysis. In an ideal scenario in which "all relevant data could be known from the outset" and "all alternatives could be evaluated", there would remain "only the choice", but this scenario does not describe the real legal decisio

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incomplete and premises are uncertain, having as its immediate purpose the absorption of insecurity JR..

Ferraz Jr. formulates the point in terms that serve as a rule of method: “absorption of insecurity” means that the act of deciding “transforms undecidable incompatibilities into decidable alternatives”, without promising to eliminate the conflict, but converting it into something tractable JR.. In platform-governed consumption, this implies that control must not be confused with the ambition of seeing everything. It must be understood as the construction of verifiable requirements that make modulation legally decidable.

Within this framework, Ávila's distinction between security and transparency provides an additional safeguard against deviations. Ávila records that transparency has its “conceptual core linked to the idea of information”, while security centers on the “rational-argumentative question”, aiming to “ensure rationality and effectiveness for Law as a whole” and not merely to “inform” ÁVILA. Technical opacity, by itself, does not function as a liability-free zone. It shifts the axis of control to public, contestable and auditable criteria applicable to decisions that modulate enjoyment. Open auditability defines the minimum verifiability needed to reconstruct what was done and why. Functional value equivalence defines the material parameter for judging whether utility was preserved or whether a substantial downgrade was disguised as an update.

With this, the two operators stabilize as criteria of legitimacy and of restoration in continuous digital services. Open auditability prevents governance by architecture from operating as a power immune to verification, especially when sanctions and reconfigurations substantially affect positions of enjoyment without total interruption. Functional value equivalence prevents the inherent mutability of continuous supply from being converted into an instrument of unilateral downgrading of content and quality, including in socially verifiable symbolic dimensions, treated as cultural correlations and not as mental states. Together, the operators make controllable, under opacity and mutability, the distinction between

n oriented to maintaining utility and emptying reconfiguration

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467. The updates clause of the Terms of Service makes explicit that supply is conceived as evolutionary and that changes may affect even virtual products, with a unilateral power of modification and automatic updating. Furthermore, it provides that the company may "use background patches" to automatically update games and *software* "with or without prior notice" RIOT GAMES. In addition, the limitation of liability includes the idea that the company is not responsible for damages if the user did not install updates when they were made available, or did not maintain minimum specifications, stating that "we are also not responsible for any damage that occurs because you did not install any update when it is made available" RIOT GAMES. The legally relevant effect is to recognize that the contractual regime itself normalizes continuous modulation, automated updating and the shifting of compatibility costs and risks. If this is an assumed pattern, protection does not depend on denying updates, but on demanding controllable criteria for comparison and, when there is a relevant impact on utility, a path of restoration that prevents the consumer from being trapped in a substantial substitution imposed through opacity. ↩

468. In a public text devoted to the subject, the company describes its visual effects update program as an improvement aimed at consistency, readability and graphic quality, stating that the updates are made to "improve overall gameplay consistency, readability and graphic quality" RIOT GAMES. In making its criteria explicit, the text includes ranked objectives and a hierarchy of importance, maintaining that one of the objectives is to "reduce overall visual noise", for example by "reducing the 'invasion' of textures that have many fine and unnecessary details", and also states that the objectives are "ranked in order of importance", so that "the readability of gameplay mechanics will always prevail over thematic resonance" RIOT GAMES. This kind of statement is valuable because it reveals an institutional pattern of decision, not an isolated event. The point is not to contest the legitimacy of the pursuit of clarity, but to recognize that applying these criteria may, in specific cases, reconfigure the core of utility that motivated the purchase of a cosmetic, especially when part of the value is tied to the visual experience, to distinction and to the perceived "weight" in the game. ↩

469. The official "Patch Notes" channel functions as the recurring public record of changes to the game, organized in periodic entries, by patch, with titles and dates RIOT GAMES. The format is useful for general information and for minimal communicative transparency, but it is not designed as a tool of comparative auditability for the [illegible] needs to reconstruct, technically, a before and after of a specific [illegible] objective parameters of demonstration. For dogmatics, the consequence is simple. In a regime [illegible] even automatically, auditability cannot depend on whether the consumer happened to

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archive evidence or has the technical knowledge to produce handmade comparisons. If the system does not deliver, as a standard, sufficient comparative elements, controlling functional downgrading requires either clearer public criteria for change or recomposition mechanisms as automated as the alteration that dispense with impossible proof when the impact is relevant. ↩

470. “SECTION II On Abusive Clauses Art. 51. Contractual clauses relating to the supply of products and services that: [...] III - transfer responsibilities to third parties [...] are null and void as a matter of law, among others.” BRASIL. ↩

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Building on the categories already stabilized, this section begins to organize a preliminary typology of IOCs and their recurring modes of incidence, so as to allow comparison between supply arrangements and the reading of relevant losses. On the plane of technique and mediation, the techno-media environment was treated as a structure of perception and conduct, while the discussion of concrete design choices brought the governance of the environment back to the plane of technical decisions embedded in the architecture. On the plane of political economy, digital ecosystems were described as arrangements for the continuous capture of value and the production of dependence. On the semiotic plane, the commodity was also understood as a sign, so that belonging and distinction form part of its value. On the methodological and institutional plane, the requirement of controllable criteria, the operative function of concepts and the legal relevance of the normativity exercised by private powers were reaffirmed.

Without a move toward typological organization, the plurality of manifestations of the IOC tends to produce two symmetrical deviations. On one side, concrete analysis degrades into descriptive narrative, in which objects, practices and interfaces pile up as a catalog of peculiarities without any identification of relevant constants. On the other, dogmatic reconstruction loses its grip on the phenomenon by operating with overly general categories, unable to discern what, in platform-governed enjoyment, alters the acquired utility, reconfigures symbolic value or shifts the consumer's position in the ecosystem.

The proposed typology, therefore, neither performs an external classificatory function nor purports to exhaust reality through names. Its usefulness is internal and

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es criteria of comparison between objects and supply arrangements, distinguishing irrelevan

for the IOC regime. This delimitation makes it possible to treat consistently differences in dependence on account and infrastructure, intensity of *lock-in*, exposure to unilateral modulation, risk of gradual degradation and the identity density of the object, without dissolving what was acquired into an undifferentiated "service" or reducing the platform to a neutral distribution channel.

Typological organization, at this point, designates an instrument guided by criteria, not an effort to classify by apparent similarity. The focus is on building comparable classes that express legally relevant differences between objects and supply arrangements when enjoyment is sustained by a technical-organizational environment in continuous operation. Instead of listing items, parameters are stabilized to describe how the object exists in the ecosystem, which structural dependencies condition it and to what extent its utility and value are susceptible to modulation by the environment.

The typological criteria derive directly from the operators already formulated for the IOC regime. Semiotic vulnerability guides the identification of structural asymmetries of intelligibility and agency produced by the design and governance of the environment. Abusive teleology offers a parameter for distinguishing ordinary design variations from exploitative purposive orientations embedded in incentives, frictions and rules of permanence. Functional integrity and symbolic identity delimit the field of relevant losses beyond binary interruption, reaching degradations of enjoyment and disorganizations of the sign-value associated with belonging, distinction and recognition.

Open auditability establishes a requirement of a verifiable minimum of justification and traceability for changes and governance decisions, without imposing total transparency or unrestricted access to trade secrets. Functional value equivalence operates as a standard of restoration, preventing the formal continuity of access from being confused with the material preservation of the utility and value embodied in the object. These axes define the set of measures by which the typology differentiates objects and supply arrangements according to what actually matters for the control

With this gain in comparability, it becomes possible to treat losses and degradations as legally relevant events even when they do not take the form of explicit cancellation, distinguishing gradual erosions of utility, changes that lower use value and alterations that disorganize symbolic value. The difference between an object conceived as isolated content and an object whose legal existence is a position of enjoyment sustained by variable rules also becomes clear. The typology makes it possible to identify when modulation goes beyond ordinary adjustment and becomes a problem of control, and it also provides parameters for demanding minimally traceable justifications and for assessing whether the restoration offered preserves, in functional terms, the utility and value embodied in the IOC.

The focus on electronic game platforms answers to a methodological reason, not a thematic preference. These ecosystems tend to concentrate, in high resolution, the defining elements of the IOC regime, since they combine continued enjoyment, intense private governance and an offer driven by an architecture of incentives. Reward and progression systems, artificial scarcity, segmented monetization, social comparison and reputation devices make particularly visible the ways in which the object's value is produced, perceived and stabilized in the environment, while also amplifying asymmetries of intelligibility and agency. The centrality of collections, appearances, achievements and signs of belonging shows how rule changes, interface reconfigurations and alterations of visibility and display capacity can produce relevant losses without any formal interruption of access.

The development that follows begins by framing the digital ecosystems in which the IOC appears most clearly, highlighting traits common to models sustained by continued enjoyment and by governance of the environment. Next, preliminary categories of IOC on game platforms are organized according to criteria that differentiate objects and supply arrangements by structural dependence, exposure to unilateral modulation, risk of degradation and identity density. A minimal normative and institutional framing of the electronic games sector in Brazil is then presented, to the extent necessary to situate the debate. The path culminates in the preparation of [illegible] which the grid thus built will be applied to a specific ecosystem, [illegible] verify how the operators of the IOC regime manifest themselves concretely and which tensi[illegible]

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variable rules, validation mechanisms and unilateral changes subject to requirements of verifiable justification and adequate functional restoration.

With this organization, the passage from the conceptual apparatus to empirical analysis takes place without loss of precision and without a shift of focus. The typology stabilizes vocabulary and turns dimensions of the IOC regime into a lens capable of recognizing patterns, distinguishing irrelevant variations from materially significant changes and consistently reconstructing relevant losses and minimum requirements of verifiable justification and functional restoration. The expected result is an examination anchored in controllable criteria, capable of supporting a rigorous description of the selected ecosystem and of preparing the stage of dogmatic reconstruction on the basis of organized evidence.

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Dividing the field by digitally based business models requires delimiting, first of all, the type of ecosystem in which the immaterial object of consumption manifests itself most clearly. In environments sustained by continued enjoyment, the acquired utility is not realized as an isolated event, because it depends on a technical-organizational arrangement in permanent operation, in which infrastructure, interfaces, rules of use, validation mechanisms and sanction instruments are part of the very experience of enjoyment. In this configuration, the consumed object does not present itself as a detachable thing, but as a situation of enjoyment whose practical stability is conditioned by private governance and by ordinary modulations of the environment.

The framing has a strictly operative purpose. It seeks to fix minimum parameters for comparing distinct objects and arrangements of supply in digital ecosystems, preventing the empirical analysis from degrading into a catalog of peculiarities and preventing the dogmatic reconstruction from resting on excessively general categories, incapable of discriminating relevant losses, asymmetries of agency and materially significant variations of utility and value. For this reason, the description that follows is deliberately guided by recurring structures, with no claim to exhaustiveness and no attribution of generic intentions to platforms.

An IOC ecosystem can be described as a technical-organizational arrangement that sustains and conditions enjoyment over time, integrating continued operation, private governance and update cycles that define, in practical terms, what counts as admissible use, recognized performance, displayable collection and preserved or degraded position in the system. In these terms, the consumed object is not reduced to isolated content nor to an abstract promise of access. Its utility depends on

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nent built and maintained by the ecosystem itself.

The first structural trait of this type of ecosystem is continued enjoyment. It shifts the focus from one-off delivery to maintaining the conditions of use over time. The acquired utility is realized through a sequence of acts of operation, updating, curation and enforcement of rules, so that continuity of the bond and minimum predictability of the conditions of enjoyment form part of the material content of supply. This structure changes how relevant losses are recognized: instead of depending on a single event of "access cut off", the loss may occur through cumulative erosions of utility, functional downgrades and gradual shifts in the cost of remaining, even if access remains formally available.

The second decisive trait is the private governance of the environment of enjoyment. The platform does not merely enable access. It defines, operationally, the conditions of remaining and the forms of use of the object. Conduct policies, eligibility criteria, performance parameters, ranking mechanisms, visibility rules, validation procedures and sanction regimes make up a normative set incorporated into the architecture of the environment. This set does not regulate only externalities, since it determines, directly, how utility manifests itself, is maintained and can be restricted, and concentrates centers of practical decision that modulate enjoyment under structural asymmetries of information.

The third common trait is the constant modulation of access and value. In digital ecosystems, update cycles, interface reconfigurations, parameter adjustments and revisions of internal policies are an ordinary part of the functioning of the environment. Under these conditions, access is not expressed merely as a binary of availability. The way of enjoying depends on criteria that can be changed without the object formally ceasing to exist. Changes in rules of use, in eligibility criteria, in validation mechanisms and in visibility devices reorganize the content of enjoyment, defining what it is possible to do, display, accumulate or convert into utility within the system. Modulation, moreover, can reconfigure the value associated with the object, even when access remains intact, through changes in balancing, rarity, criteria for obtaining and reputational metrics.

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ıe structural dependence of the consumer on the ecosystem.

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visibility criteria constitute conditions of possibility of enjoyment and remain under the supplier's control. For this reason, the object is not fully appropriable outside the technical-organizational arrangement that sustains it. The intensity of this dependence varies according to the degree of lock-in, the centrality of collections tied to the account, the relevance of the usage history, the weight of reputation metrics and restrictions on transfer, interoperability or reconstruction of what was acquired outside the platform. These variables tend to operate cumulatively, causing the permanence of the bond and the practical acceptability of unilateral changes to become components of the material content of what was acquired.

These traits manifest themselves, with particular clarity, in three digital business models: games operated as a service, marketplaces and artificial intelligence services supplied by platform.

In games as a service, enjoyment is sustained by an environment in continuous operation in which the utility of the object depends on account, inventory, progression parameters, events, updates and rules of coexistence. What is acquired is composed of layers administered by the ecosystem, such as access to modes of enjoyment, content made available by season, items tied to the profile, permissions of use and criteria of permanence. The governance of the environment acts as a constitutive component of enjoyment. In this sense, parameter adjustments, store reconfigurations, revisions of internal policies and balance changes can reconfigure utility and the cost of remaining without formal interruption of access.

Furthermore, games as a service frequently incorporate an intense symbolic dimension, in which distinction, belonging and recognition are realized through visibility devices, reputation metrics, signs of rarity and forms of displaying the collection. For this reason, changes in rarity criteria, in display conditions, in rules of use and in validation mechanisms can produce relevant losses linked to symbolic identity, even when enjoyment remains formally available.

In digital marketplaces, the layer of mediation governed by the platform materially [illegible] ımer's appropriation of value, whether the immediate object is [illegible] ial. Curation, rank[illegible] criteria, delivery parameters and verifi[illegible]

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finding, comparing, contracting and validating what is acquired. This is not to say that every digital mediation automatically converts any good into an IOC. The point is to recognize that, in certain arrangements, the layer of mediation functions as a continuous technical-organizational environment that forms part of supply, because it conditions practical predictability, the intelligibility of the offer and the capacity to validate the result. Modulations in visibility algorithms, reputational metrics, recommendation patterns, return policies, anti-fraud rules and dispute parameters can reconfigure risks, transaction costs and the practical viability of choices without taking the form of explicit interruption. Structural dependence manifests itself through the concentration, in the platform, of transaction records, reputational credentials and decision-making instances, intensifying asymmetries of intelligibility and agency.

In artificial intelligence services supplied by platform, the consumed object is configured as a functional capacity made available under technical and normative parameters administered by the supplier. The utility of what is acquired depends on the continuous functioning of the system, its versions, its models and its use policies. Usage limits, authorization criteria, content filters, forms of performance prioritization and rules of interaction integrate the practical existence of the object, which is realized as an enjoyable capacity under variable conditions of governance. Modulation is constitutive, given that version changes, parameter adjustments, policy revisions, performance variations and reconfigurations of safeguards can alter results, restrict functionalities or reorganize costs of enjoyment without formal cancellation of access. Structural dependence becomes evident through the practical impossibility of replicating outside the ecosystem elements that condition the utility of the object, such as computational infrastructure, model updating and moderation criteria, reinforcing asymmetries of intelligibility and agency as to the reasons for and impacts of successive changes.

The approximation between these three models stems from a common structural core: in all of them, enjoyment depends on the continuous operation of a privately [illegible] organizational environment, in which rules, interfaces, metrics [illegible]edures integrate the content of supply and remain susceptible to modulation over time. This convergen

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necessarily expressed as formal interruptions: modulation can downgrade use value, shift costs of remaining, alter conditions of visibility and reconfigure forms of validation without suppressing access, while structural dependence intensifies asymmetries of intelligibility and agency.

With the framing concluded, the next stage consists of converting the identified structural pattern into comparable classes guided by criteria, capable of expressing how the object exists in the ecosystem and to what extent its enjoyment is sensitive to unilateral changes. This step will make it possible to organize preliminary categories of IOC on game platforms and to proceed, with discipline and controllability, to the study of the legal regime applicable to the ecosystem studied.

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Once the ecosystem of continued enjoyment has been delimited, it becomes possible to organize a typology that stabilizes comparability between objects and arrangements of supply on game platforms. In these architectures, the acquired utility is realized over time and under private governance of the technical-organizational environment. The object of consumption, therefore, does not present itself as a detachable thing, but as a position of enjoyment conditioned by rules, interfaces, validation mechanisms and ordinary modulations.

So that the analysis does not degrade into a catalog of peculiarities, and so that the dogmatic reconstruction does not operate with shorthand that collapses heterogeneous arrangements, an instrument is needed that can consistently distinguish what varies irrelevantly from what materially alters the enjoyment and value of what was acquired, including when the loss manifests itself through gradual degradation, functional downgrading or disorganization of symbolic value without formal interruption of access.

This typology is deliberately internal to the games laboratory and is not offered as a general classification of platforms. Its function is to allow the analysis, within an ecosystem that concentrates hybrid objects and dense governance, to recognize patterns of mutability and of loss through verifiable equivalences, without depending on episodic descriptions. The transposition of the IOC regime to other families of platforms will be developed in a dedicated stage of adherence tests, in which the dogmatic parameters already stabilized will be confronted with typical situations of continuous digital consumption in distinct ecosystems. It is thus established that the typology proposed below is internal and strictly operational to the model studied.

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utility is not exhausted by functional performance attributes, since it incorporates

symbolic value realized as distinction, belonging and recognition within the ecosystem. Enjoyment depends on a tie to the account, the inventory and the mechanisms of visibility and display that make what was acquired visible to third parties. Changes in display criteria, inventory organization, rules of admissible use, criteria for obtaining items and rarity regimes can materially depreciate enjoyment even when the item remains available. In these cases, the relevant loss appears as disorganization of the sign-value incorporated into the object, and restoration is not exhausted by undifferentiated compensation, but must be assessed by functional value equivalence compatible with the symbolic nature of what was acquired.

The second category is that of progression objects. Here the object is realized as a trajectory governed by rules, parameters and validation mechanisms administered by the ecosystem. What is acquired is not to be confused with a mere record of time invested, but with an enjoyable position built through goals, requirements and rewards defined by internal criteria. Unilateral modulation bears on the parameters for obtaining items, eligibility requirements, difficulty calibrations and criteria for recognizing performance. Successive changes can reorganize the relationship between effort and result, raise the costs of remaining or make rewards impracticable, producing functional degradation without explicit cancellation. The requirement of controllability falls on reconstructing what changed and which material effects were produced, as well as on assessing restorations according to the preservation of the bundle of utility incorporated into the trajectory.

The third category is that of access and permanence objects. These are IOCs marked by intense dependence on account, credentials and eligibility, so that enjoyment takes on, in practice, the form of a revocable position. The object is not reduced to the initial act of enabling, since it involves maintaining the conditions that make it possible to remain in the ecosystem and to use, on an ongoing basis, the functionalities, modes of enjoyment and collections tied to the profile. Policy modulations and governance decisions, such as restrictions, suspensions and partial limitations, can degrade the consumer's position and send cascading effects through the collection and the trajectory of enjoyment. In this category, open auditability

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le, since the minimum required is verifiable justification and

traceability of the measure, with an intelligible delimitation of what was decided and of its material effects, without imposing total technical transparency.

The fourth category is that of functionality objects. These are instrumental capacities made available to the consumer under technical and normative parameters administered by the supplier, such as usage permissions, convenience utilities, configuration options and conversion capacities that form part of the ecosystem's bundle of utility. Unilateral modulation manifests itself through reconfiguration of parameters, usage restrictions, interface changes and redistribution of capacities among modes of enjoyment. Relevant losses appear as functional degradation of the bundle of utility, with increased operational friction, reduced capacity and downgrading of conveniences incorporated into what was acquired, even if access remains intact. Adequate restoration must be assessed by functional value equivalence, taking into account the capacity actually enjoyed and the materiality of the change.

The fifth category is that of time objects. It covers temporal structures that condition when, for how long and within which windows enjoyment can occur, such as validity regimes, seasons, availability cycles and frequency limits. In this class, time forms part of the material content of supply. Changes to windows, redefinition of deadlines, reorganization of cycles and recalibration of limits can reconfigure utility, the cost of remaining and the practical viability of enjoying what was acquired, without suppressing access. Relevant losses take the form of lost opportunity and material downgrading of the time invested, especially when changes shift the balance between effort, reward and permanence.

The sixth category is that of reputation objects. They correspond to positions of recognition instituted by the ecosystem through metrics, validation criteria and visibility devices. Reputation is not reduced to stored data, since it depends on calculation rules, display criteria and validation systems that make it socially intelligible and comparable. Modulations of ranking criteria, display changes, governance decisions and sanctioning measures can reorganize reputational position g access. Relevant losses manifest themselves as symbolic harm and disorganization of the place of rec

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of the environment. For this reason, the requirement of auditability is particularly sensitive, and changes and decisions that affect reputation must offer a verifiable minimum of justification and traceability, while restorations must be assessed by functional equivalence compatible with the reputational nature of the object.

Applying this grid directly to concrete objects from the laboratory shows how typological categories can correspond to distinct modes of supply and conditioning, without reducing the ecosystem to an inventory of items. A first example, typical of a progression object, is the event pass, in which the acquisition is directed not at a finished result, but at access to a metered trajectory of milestones and rewards that is realized through tasks, game routines and internal validations. The mechanics are structured so that progress occurs over the course of the event and so that a significant share of the rewards depends on purchasing the pass, so that the consumer buys not merely "content", but a form of active permanence that makes enjoyable what was made available as potential RIOT GAMES[471].

This design is consistent with the very contractual framework for access to virtual content, in which the supplier acknowledges that the license may be obtained not only by purchase but also by earning it, including through "game missions or tasks", which makes it methodologically controllable to describe the pass as a progression object in the strict sense, that is, as an acquired and governed trajectory, and not as a simple one-off consumption RIOT GAMES.

As an example of a time object, the platform deploys regimes of availability and return to produce windows, cycles and rarities that form part of the material content of enjoyment. In operational language accessible to the public, certain categories of *skins* are treated as "legacy" or "limited", with variations as to whether they return to the store and under what conditions, so that the symbolic utility of what was acquired comes to depend also on an institutionally administered temporality RIOT GAMES[472].

In this case, the contractual framework that grants the supplier the power to exclude, and reprice virtual content at any time, with or without notice, -ım declaratory axi as an ordinary variable of supply, which shifts the legal problem to the assessment of

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relevant losses through lost opportunity, recalibration of windows and reconfiguration of rarity, without confusing formal continuity of access with material preservation of the value enjoyed RIOT GAMES.

Finally, an example of a reputation object can be seen in the way the ecosystem makes utilities and loot conditional on metrics of conduct and eligibility. The honor system operates as a mechanism of comparable and socially intelligible recognition, but also as an everyday discipline, since behavior penalties can lock reputational progression and, in practice, affect access to rewards associated with crafting loot, such as keys and capsules RIOT GAMES.

Reputation thus appears not as an extra-legal ornament of consumption, but as a condition of enjoyment administered by rules of conduct and by sanctioning decisions with cascading patrimonial and symbolic effects, not least because closing an account may entail loss of access to purchases and to associated virtual content RIOT GAMES.

The proposed categories neither eliminate the complexity of the ecosystem nor purport to reduce concrete objects to a single type. They provide a comparable language for breaking hybrid arrangements down into controllable dimensions and for locating precisely which aspects were affected by a relevant modulation. This breakdown prevents formal continuity of access from serving as an alibi for material downgrades and allows losses and degradations to be treated as legally relevant even when they manifest themselves through gradual erosion, reconfigurations of rarity, changes in display capacity or changes in reputational criteria.

With this preliminary typology, the analysis no longer depends on episodic descriptions and comes to operate through stable parameters to recognize recurring patterns of platform-governed enjoyment, locate asymmetries of intelligibility and agency, and identify when changes go beyond ordinary variation and become a problem of control. This gain is intentionally obtained within the games ecosystem, as a laboratory of intensive observation, without turning the categories above into a

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extent necessary to contextualize the debate, preserving the operative function of the typology and preparing the application of the grid to the case study.

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471. The contract makes explicit that the license of access to virtual content may be obtained not only by purchase but also by earning it, including as a result of game routines: “earn it (e.g., by completing game missions or tasks)”.The provision provides grounds for describing event passes as progression objects, since the relevant utility is not an item delivered all at once, but a sequence of milestones that depends on internal validation, calibration of requirements and the temporal availability of the event RIOT GAMES. ↩

472. The contract reserves to the supplier a broad power to administer game content “at any time”, including to remove and reprice it, “with or without prior notice”. This declaratory axis makes it consistent to treat availability windows as variables of supply, and not as exceptions. In an official tone, the distinction between categories of skins reinforces that there are regimes of return and of non-continuous access, especially in the statement that “Legacy skins are relatively rare because they are not always available for purchase in the Store.” RIOT GAMES. The dogmatic consequence is that time ceases to be mere context and becomes part of the material content of what is acquired, including in the symbolic dimension of value. ↩

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At this point, the normative and institutional framing of the electronic games sector has a strict and limited function. The criteria-oriented typology has already stabilized the lenses through which platform-governed enjoyment can be observed and compared. What remains is to situate, in the Brazilian context, how the sector has been recognized and around which focal points it tends to be problematized, so that the study advances on institutionally intelligible ground and so that recurring tensions do not look like idiosyncratic contingencies of an isolated case.

The aim is neither to compile a legislative inventory nor to reconstruct the regulatory debate in detail. What matters is to record the minimum context in which games operated as a service come to concentrate public and legal attention, highlighting vectors that reappear when enjoyment depends on an environment of continuous operation with intense private governance. Against this background, a twofold movement can be observed. On the one hand, there is an effort to institutionalize games as a relevant economic and cultural activity. On the other, concerns keep recurring about the protection of vulnerable audiences, monetization through microtransactions and random mechanisms, the processing of personal data, and market and advertising practices built into the very experience of enjoyment.

The institutionalization of the sector matters because it reinforces, on the documentary record, the reading that games (above all under models operated as a service) are not limited to isolated products delivered in a single event. The offer is realized as an ecosystem sustained by continuous operation, permanent updating and enforcement of internal rules that form part of the material content of supply. A sufficient landmark for recording this fact is Law 14,852/2024 BRASIL, taken here as the institutional recognition of the electronic games industry as an economic and cultural activity with

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framing purposes, is the premise the sectoral statute expresses, namely that there is a sector operating in Brazil that is consolidated as a legitimate object of state attention and of public policy design, with the typical language of promotion, development and organization of a production chain. This dispels any impression that the *locus* studied is exceptional and brings it closer to other mass digital markets in which enjoyment unfolds over time under variable rules.

Recognition, however, does not eliminate legal tensions, it only tends to make them more predictable. In ecosystems of continued enjoyment, expectations are formed over time, under criteria open to unilateral modulation, and relevant losses may occur without formal interruption of access, whether through gradual degradation of utility or through disorganization of the symbolic value incorporated into what was acquired. For this reason, institutional attention is organized around vectors of friction that stem from the structure of the ecosystem, and not from isolated episodes.

The protection of children and adolescents is one of these recurring vectors. Its centrality derives not only from concerns about content, but from the combination of interactivity, the permanence of the bond and exposure to mechanisms of acquisition and retention built into the interfaces and rules of the environment. In games operated as a service, consumption decisions tend to be fragmented over time, mediated by return loops, urgency cues, promises of progression, social comparison and incentives embedded in the very design of enjoyment. Focusing on minors thus works as an institutional trigger that makes visible asymmetries of understanding and of capacity to contest in environments governed by architecture.

Within this framework, the public policy of advisory age rating plays a useful contextual role. Without functioning as prior authorization, it acts as a guidance instrument aimed at informing age suitability and relevant content descriptors, and, by reaching digital products distributed through platforms, it makes explicit an important institutional premise: the experience of enjoyment is not exhausted by audiovisual "content", since it includes conditions of interaction and circulation that t exposures and asymmetries, above all for children and

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adolescents. What matters here is not t

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about the sector. In a significant share of cases, the risk lies in the way the environment of enjoyment itself functions.

Another predictable focal point is monetization through microtransactions. In games as a service, acquisition tends to occur continuously and in segments, embedded in the very experience of enjoyment. This is not merely a payment method. Monetization is built into the architecture of the environment and influences the pace of use, progression, access to conveniences and the very perception of the value of what is acquired. The legal conflict thus shifts from the price of an isolated product to the governance of a system of offers and incentives that renews itself over time, under variable rules and with structurally pronounced informational asymmetries.

The point of greatest sensitivity arises when monetization relies on random mechanisms for obtaining items, often referred to in public debate as loot boxes. In these cases, the utility and value of what is acquired come to depend on internal distribution regimes, availability criteria and limits defined by the platform, and are also tied to scarcity cues, time windows and rarity regimes that make decisions more dependent on anticipation, urgency and expectation. The institutional discussion then tends to focus on minimum transparency of the conditions of acquisition, protection of vulnerable audiences and control of practices that induce consumption, not out of moralizing about the sector, but because the supplier holds the internal criteria on availability, rotation, rarity and, where applicable, probability, under conditions of low external reconstructibility.

In this context, Law No. 15,211/2025 BRASIL offers sufficient normative anchoring to situate the focal point, as it regulates, from the standpoint of protecting children and adolescents, the loot box feature as a mechanism for obtaining items at random upon payment. The statute's interest here is evidential. Certain mechanics of the ecosystem have already been identified as structurally sensitive and therefore open to treatment by criteria. Under the IOC regime, such mechanisms condense elements such as instituted rarity, anticipation, criterial opacity and unilateral modulation,

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A further institutional vector stems from the fact that games operated as a service function as informational platforms. Enjoyment is realized through an identified account, inventories, usage records, performance metrics, purchase history, interaction patterns and reputational mechanisms that depend on the continuous collection and processing of data. These data are not merely administrative traces. They sustain the personalization of the experience, the offering of items, rankings, validations, fraud detection, moderation and the enforcement of internal rules. The relevant contextual consequence is the intensification of structural information asymmetries. The supplier holds the records and parameters that are decisive for reconstructing changes and governance decisions, while the consumer has only partial visibility, mediated by interfaces.

In this scenario, the Brazilian personal data protection regime operates as a normative backdrop, reinforcing the institutional sensitivity of the sector in environments of continued enjoyment, especially when children and adolescents are involved. The point here is not to turn the framing into a compliance audit, but to record that the environment of enjoyment is also an informational environment and that, for this reason, a minimum reconstruction of what changed, to what extent, and with what effects on utility and value becomes a relevant component of any discussion of controllability, without requiring full technical transparency or the disclosure of trade secrets.

Beyond minors, monetization and data, concerns associated with market and advertising practices built into the experience of enjoyment can be expected to arise. In models operated as a service, the consumer relationship is not exhausted at the initial entry. The offer is renewed through events, seasons, promotions, bundles and purchase incentives built into use, so that advertising also operates as internal communication designed through storefronts, urgency messages, recommendations and highlighting mechanisms. This integration reinforces the continuous and mass character of supply and tends to trigger classic consumer protection instruments aimed at adequate information, transparency and the control of abusive practices.

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and by concentration of the power to organize the offer, without thereby anticipating, at this point, the specific dogmatic reconstruction of the IOC regime. What matters for the minimum framing is to recognize that ecosystems of this kind coexist with repeated patterns of complaints and large-scale conflicts, in which the conditions of acquisition, the criteria of the offer and the effects of internal changes to the environment become central.

Finally, intellectual property appears as a latent source of friction because enjoyment is mediated by protected assets and by licensing regimes that delimit admissible uses, forms of access and the possibilities of circulation of what was acquired. In platform-governed ecosystems, terms of use, moderation policies, transfer limits and revocation conditions are usually drafted under a logic of intangible asset management, which can intensify asymmetries of agency and reduce the alternatives for reconstituting what was acquired outside the ecosystem. The usefulness of this observation here is merely situational: consumer conflicts in games as a service often cut across the interface between consumer protection and control prerogatives derived from licenses and intellectual property, leaving the analysis of the consequences to the proper stage of legal reconstruction.

The minimum institutional framework outlined here makes it possible to understand why the electronic games sector, especially under models operated as a service, concentrates recurring legal tensions. The recognition of the sector as a relevant economic and cultural activity coexists with predictable focal points concerning the protection of children and adolescents, monetization through microtransactions and random mechanisms, the processing of personal data, and market and advertising practices built into the environment of enjoyment. These vectors appear not as episodic accidents, but as typical effects of ecosystems in which utility is realized over time, under private governance of the environment and through rules open to unilateral modulation, with structural asymmetries of intelligibility and agency.

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CONCEPTS IN THIS SECTION

The law of the platform

In the *Riot Games* ecosystem, enjoyment manifests itself as a position governed by architecture, sustained by signs, modulated by internal access criteria and subject to unilateral recompositions capable of affecting utility, prestige and expectation. For this reason, the field makes it possible to observe, in traceable and repeatedly verifiable materials, how the central categories of the Immaterial Object of Consumption function, making them operative without relying on case-by-case impressions. It is in this sense that the empirical *locus* serves as a means of intelligibility by illustration, since it offers ground on which the reading keys already stabilized run through both the case and the technical and communicational environment in which it is produced.

This mobilization corresponds to an extended case approach, in which the choice of field is guided by analytical relevance rather than statistical representativeness. The context is not descriptive ornament, since it allows the passage from architectural choices to modulations of enjoyment and relevant losses to be reconstructed rigorously. Generalization here occurs not by impressionistic extrapolation, but by controlled movement between levels of abstraction, guided by the functional equivalence of mechanisms of governance by architecture.

The movement of consolidation and transition to the procedure of dogmatic reconstruction shows with particular clarity how the interactive entertainment the continuous provision that characterizes it, operates as an ostensive surface on which the *Lex Pla*

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sector, governance by architecture manifests itself in concentrated form and is often openly assumed in the everyday administration of what is bought, in the definition of the conditions of access to goods and in the delimitation of what actually counts as permanence of the good enjoyed.

In this sense, the logic of updates, rebalancing, reformulations of access, layers of rarity and internal sanction regimes makes it visible that the value of an IOC does not lie in static utility, but in a regime of intelligibility in which the prospects of balance and equivalence depend on the environment itself in order to exist, an environment that the supplier administers unilaterally, exercising practical sovereignty over its operating conditions, in technical as well as symbolic and, consequently, semiotic terms.

From this perspective, semiotic vulnerability ceases to be a merely descriptive hypothesis and is confirmed as a recurring structure for describing the dynamics of asymmetry, since the platform controls, besides the technical code, the lexicon through which differences are read, displayed and recognized, and thus administers the criteria of visibility and prestige that stabilize the user's desire, as well as the mechanisms of commensurability capable of converting signs into access and access into reputation.

Likewise, abusive teleology moves away from any moralizing reading and proves capable of identifying the mechanism by which purposive deviations built into design through architectural choices reorient the service to enable regimes of extraction and to normalize consumer losses as an operating principle, even if the same changes are presented, in their justification, as contingent adjustments or as inevitable effects inherent in the digital environment.

The main result of the path taken so far is the abandonment of fatalistic readings of the regulation and governance of relationships in these environments. The most important confirmation is that, once enjoyment is recognized as a position, legal control is not exhausted by contracts, prices or nominal descriptions of goods and ore of the conflict comes to lie in the preservation, degradation or he conditions unde practice, enjoyed and used by the cons

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Functional integrity and symbolic identity, already treated as dimensions of relevant loss in IOCs, find in the ecosystem under study repeated demonstration that recompositions preserving only the name, appearance or formal access can keep the code running without preserving what, in practice, constituted the position of enjoyment that formed part of the consumer's legitimate expectation. In other words, it has become unequivocal that the decisive question is not whether something “still exists” in a formal sense, but whether the practical equivalence of what was acquired remains recognizable and operative, which shifts the debate to criteria of functional value equivalence and to duties of restoration that are not satisfied by empty symbolic substitutes.

The repeated use of the ecosystem ceases to be merely illustrative and comes to operate as a stabilization of parameters of controllability, because what was observed was not a sectoral particularity but a recurring grammar of governance, that is, the structural description of a type of power that, when transposed by functional equivalence to other domains of platform capitalism, makes it possible to address distinct problems on the basis of common parameters of reading and control.

The transposition of these parameters, however, is not to be confused with free extrapolation or justificatory intuition. Being guided by frictions and sectoral evidence does not license subjectivism, because analytical discipline stems from making the conceptual lenses explicit beforehand and from the requirement of verifiable reconstruction through elements attributable to the supplier and publicly retrievable, including update records, declared rationales for change, access policies and internal sanction criteria. Within this framework, methodological reflexivity does not replace objectivity. On the contrary, it reorganizes objectivity as a commitment to criteria for selecting evidence and to theoretical regulation of what counts as relevant observation, reducing confirmation bias and preventing individual experiences from being mistaken for proof.

In light of the study developed so far, when architecture replaces direct purchase with paths mediated by internal currency, collateral bundles and probability regimes, nt is not only a new sales model, but a way of organizing ch design takes on

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information, administers expectations, produces frictions and turns loss into a naturalized component of access. When technical decisions and internal policies expand the extraterritoriality of code, making permanence and participation conditional on invasive requirements or on control mechanisms that exceed the perimeter of the contracted object, the claim to practical sovereignty over the consumer and over the consumer's material means becomes evident, which reinforces the need for open auditability as a minimum requirement, so that the platform does not hide behind technical opacity and trade secrecy, and so that governance by architecture is treated as attributable, contestable conduct subject to proportionality.

At this point, the choice of *locus* has proven productive precisely because it ensured intelligibility and allowed the conceptual operators needed for the IOC regime to emerge under methodologically controllable reading criteria. A cycle of qualification thus comes to a close, in which the typology ceased to be merely a conceptual design and became a reading instrument capable of identifying semiotic vulnerability, abusive teleology and relevant losses in their operative form, while also stabilizing the criteria by which architecture can be subjected to legal control.

With the parameters of open auditability and functional value equivalence consolidated, the next step shifts the focus to institutional protection, so that the patterns already made visible and described can be converted into liability, duties of restoration and criteria of control under the Consumer Protection Code, in harmony with the Brazilian constitutional and economic order, so that the *Lex Plataformae* ceases to operate as a silent sovereignty and becomes answerable to the sovereignty of Brazilian law.

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The legal protection of continuous digital consumption demands more than the mechanical extension of consolidated categories to new realities. It demands identifying, with dogmatic precision, what kind of power operates when the enjoyment of an immaterial object depends on mutable private architecture, permanent curation and regimes of signs that organize perception, expectation and behavior. The problem no longer lets itself be satisfactorily grasped by the classical grammar of the product or the service, conceived under assumptions of stability, one-off delivery and a defect knowable by relatively direct inspection. In platform ecosystems, the experience is administered in flow, value is modulated over time and loss may arise not as an exceptional failure, but as an ordinary effect of design.

Thus, semiotic vulnerability is not to be confused with a psychological trait of the consumer, a generic synonym of digital fragility or a mere environmental description of networked life. It is a structural mechanism of power, bearing on the production of meaning, the intelligibility of the offer, the comparability between alternatives, the verifiability of enjoyment and the very conditions for contesting loss. When the architecture of the environment organizes what can be perceived, promised, inferred and proven, the asymmetry ceases to reside only in missing information and comes to operate also in the form, in the context and in the regime of visibility in which that information appears. The central question is no longer only whether something was informed, but whether it could be understood, contrasted and effectively verified in terms compatible with consumer protection.

The proposed reconstruction starts from this mutation. Instead of fitting the immaterial object of consumption into prior categories by hasty analogy, it seeks to

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rollable dogmatic language what is frequently naturalized as technical necessity, a rule of the system

infrastructure. With this, private choices of modulation, curation, opacity and sanction cease to figure as a neutral backdrop to the consumer relationship and come to be examined as a qualifiable exercise of private economic power. The constitutional order, the Consumer Protection Code and the functional limits of intellectual property together offer the criteria for this reconduction, provided they are read in light of continuous enjoyment, of the functional integrity of the object and of the centrality of the consumption environment as a space of normative incidence.

The stage now beginning thus develops a decisive shift: from the appearance of technical neutrality to the legal knowability of design; from the mere making available of information to the requirement of legibility and verifiability; from abusiveness understood as an isolated episode to abusiveness incorporated into the purpose of the environment. It is along this path that both the need for criteria such as open auditability and functional value equivalence and the figure of abusive teleology become visible, the latter understood as the incorporation, into the very operating logic of the object, of dynamics of inducement, extraction and normalization of losses. What is at stake is not merely correcting peripheral excesses, but delimiting, in a constitutional and consumer-law key, how far the private governance of the consumption experience may go when it comes to structure the very field of the possible for the consumer.

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In Brazilian law, consumer protection does not occupy a peripheral position, nor can it be reduced to a corrective technique for episodic contractual imbalances. It forms part of the very rationality of the constitutional and economic order, insofar as it expresses a structural commitment to containing asymmetries, limiting private powers and preserving the material conditions of liberty and dignity in market relations. In platform environments, this takes on special relevance, because economic activity no longer presents itself merely as an offer of utilities and comes to involve the continuous administration of the conditions of access to, permanence in, intelligibility, visibility and challenge of enjoyment. Private power, in this context, no longer operates only through setting prices or drafting clauses, but through the coordination of architecture, curation, sanction and the ordinary management of the consumption environment.

This mutation does not require a rupture with the legal order in force, but a more demanding reading of its own premises. Consumer protection as a fundamental right and principle of the economic order already offers sufficient basis to frame, without artificiality, private forms of government that produce broad and repeated effects on the experience of enjoyment, even if they are not to be confused with state power. When the platform concentrates faculties of modulating access, reorganizing visibility, altering the conditions of use, filtering evidence and practically defining the channels of challenge, the problem ceases to be only that of supplying a good or service in a static sense and becomes that of the institutionalized exercise of private economic power over positions of continued enjoyment. The constitutional reading of the market, therefore, does not serve here as a decorative frame, but as a criterion limitation.

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It is on this plane that it becomes necessary to name the Lex Plataformae. The expression designates the private ordering through which the platform structures and governs the enjoyment of the Immaterial Object of Consumption, articulating terms of use, community standards, interfaces, hierarchies of visibility, enforcement systems, update routines, evidence regimes and customer service practices into a unitary practical normativity. It is not a metaphor to ornament the digital, but an analytical category aimed at making legally visible what would otherwise appear fragmented among contract, technique and everyday operation. Its core lies not in an isolated instrument nor in a specific algorithm, but in the institutional coordination of heterogeneous mechanisms that produce consistent normative effects on who accesses, how one remains, what can be perceived, what can be lost and on what terms the loss can be understood or challenged.

The platform thus ceases to be read as a neutral support or a mere channel of intermediation and comes to be recognized as a private center that organizes the consumption experience. In ecosystems of continued enjoyment, value is not exhausted at the initial delivery, because it depends on the persistence of technical, symbolic and organizational conditions that remain under the supplier's control. The utility consumed is realized over time, under permanent updating and curation, so that the consumer's vulnerability stems not only from a lack of information about the object's characteristics, but also from structural dependence on the signs, metrics, interfaces and framings through which this object becomes intelligible, comparable and verifiable. It is precisely this administered dependence that explains why, on platforms, the asymmetry is not only informational or economic in the classical sense, but also semiotic.

The Constitution, the Consumer Protection Code and the intellectual property regimes do not apply here as watertight blocks competing for abstract primacy, but as sources simultaneously summoned by one and the same legal problem. Their coordination must follow a systematic logic compatible with the openness of the consumer-law microsystem and with the need to prevent both its isolation and its [illegible] contractual or proprietary grammar. It is not a matter of adding [illegible] but of recognizing that the governed enjoyment of the IOC simultaneously triggers constitutional

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consumer-law duties protecting vulnerability and functional limits on the exercise of private positions founded on exclusivity and technical control.

On this basis, the analysis that follows starts from the constitutional framing of consumer protection as a technique for containing private power with relevant public effects and moves on to reconstruct the criteria by which this power becomes institutionalized in platform environments. The aim is neither to moralize business choices nor to dissolve the technical specificity of these ecosystems into generic formulas of abuse. What is sought, rather, is to produce decidable categories, capable of bringing back into controllable legal language what, in the ordinary functioning of platforms, usually appears as mere technical necessity, a rule of the system or an inevitable consequence of infrastructure. Without this movement, the opacity of design remains naturalized and the consumer's governed experience continues to escape the traditional forms of attribution and control.

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Consumer protection does not enter the Brazilian constitutional order as a moralizing appendix to the market, but as one of its internal conditions of legitimacy. The Constitution places it, on the one hand, among the fundamental rights[473] and, on the other, in the core principles of the economic order[474], which prevents it from being treated as a side protection, available at the supplier's convenience or subordinated to the private grammar of contract. In the 1988 model, economic activity is not organized as a space of unrestricted patrimonial sovereignty, because free enterprise appears, from the very foundations of the Republic, bound to the dignity of the human person and to the social values that shape it[475]. For this reason consumer protection operates from within, as a criterion for reading the very economic rationality, and not as an exotic brake imposed from outside (Grau, 2010, p. 253[476]; Miragem, 2020, p. 977[477]; Silva, 2005, p. 262-263[478]).

This arrangement rules out from the start the caricature according to which free enterprise would mean a broad license to design markets, contracts and private infrastructures immune to material control. The Brazilian economic order aims to ensure everyone a dignified existence in accordance with the dictates of social justice, reconciles economic freedom with the containment of structural abuses[479] and is guided by material purposes incompatible with the naturalization of opaque private architectures. The constitutional text does not place economic freedom on one side and heterogeneous social limits on the other; it stitches these elements together within the same normative matrix, so that social function, social justice, consumer protection and the repression of abuse are not accidents of the system, but its

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ithin this framework, free enterprise is neither a metaphysical

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conditioned by constitutional purpose

This reading becomes even clearer when one observes that the Republic itself is directed toward building a free, just and solidary society and toward reducing inequalities[482]. There is, therefore, no constitutional neutrality in favor of private arrangements that deepen structural dependencies under the pretext of efficiency, innovation or sectoral dynamism. In platform-governed markets, in which access, permanence, visibility and the contestation of enjoyment come to be administered by technical and organizational design, the containment of private power ceases to be a peripheral theme and moves to the center of the problem. The Brazilian Constitution does not idolize private power merely because it is not state power; on the contrary, it provides express language to control it when it takes a structurally asymmetrical form, especially because consumer protection shapes the legitimate functioning of economic activity and does not depend on the supplier's private tolerance MIRAGEM[483].

For this reason too, property and exclusivity do not appear as absolute shields. Property is subject to its social function[484], and this functionalization does not act as a peripheral correction applied after the right is recognized, but as an internal element of its very legitimacy. Ownership, the enterprise and economic exploitation remain constitutionally intelligible only when compatible with social justice, human dignity and the protection of the vulnerable party SILVA[485]. The same logic extends to the economic order itself, which does not embrace a self-referential market, but a model held in tension by demands of humanization, social limits and consumer protection SILVA[486]. Read this way, the containment of patrimonial power and the subordination of property to socially justifiable purposes are not recent extravagances, but part of a broader historical process of refusing the private absolutization of power COMPARATO[487].

At the infraconstitutional level, this matrix is directly implemented by the Consumer Protection Code, whose application does not depend on any gracious recognition by the supplier. The CDC establishes consumer protection and defense norms of public order and social interest[488], precisely in execution of the constitutional commands · protection a fundamental right and a principle of the economic order. There is no room, then, for the f

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predisposed contractual architectures can choose when consumer public order will come into play. It already enters the relationship before the clause, because its foundation is not private will, but the Constitution itself BESSA[489]. The mandatory nature of this regime is unequivocal: its norms cannot be set aside by individual will and cannot be neutralized by contractual engineering designed to escape protective coverage (Marques, 2016, p. 678; p. 804)[490]; BESSA[491]; FILOMENO[492].

Hence consumer public order cannot be treated as a negotiable legislative detail. It blocks both the wholesale exclusion of the microsystem and its piecemeal sabotage, including through exoneration clauses, waivers of rights, unilateral cancellation, unilateral modification of contractual content and excessive advantages[493]. In a platform environment this point is especially sensitive, because the precarization of the bond is usually recycled as the user's "acceptance" of private regimes of mutability, opacity and sanction. The consumer protection system, however, does not allow structural vulnerability to be disguised as consent sufficient to override legal protection. Where the duty arises from law, the consumer's adhesion is not enough to empty it DENARI · BENJAMIN +1[494]. The application of the CDC, moreover, forms a true public order of protection grounded in the consumer's vulnerability, which is why the rights it recognizes and the duties it imposes cannot be validly suppressed, waived or limited by predisposed contractual arrangements MIRAGEM[495].

This mandatory application is not exhausted by the isolated letter of the Code itself. The consumer microsystem is functionally open and operates in coordination with other normative sources that bear on the same consumer relationship[496]. Its openness does not serve to relativize consumer protection, but to reinforce it, allowing constitutional, civil, informational and regulatory protection to be combined in favor of the vulnerable party, and not as a privatist escape route MARQUES[497]. This same openness prevents isolationist readings of the CDC and allows it to be understood as a functional and open code, aimed at the fullest protection of the consumer, and not as an island surrounded by contract on all sides.

Th[illegible] of contracts most favorable to the consumer[498] already signals, [illegible] unilaterally drafte[illegible] precariousness into legal normality.

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The constitutional centrality of the theme also appears clearly when one recalls that the National Consumer Relations Policy expressly recognizes the consumer's vulnerability, harmonization grounded in good faith and balance, and the efficient curbing of abuses[499]. The consumer's basic rights, in turn, include adequate and clear information, protection against misleading and abusive advertising, prevention and redress of damage, and facilitation of the defense of their rights[500]. These provisions already show that consumer protection, in the constitutional order implemented by the CDC, is not limited to protecting the consumer's wallet against obvious defects in a stable thing; it bears on risk, opacity, deception, evidentiary asymmetry and unfair methods of organizing the market. On platforms, this means that information, verifiability, conditions of permanence and possibilities of contestation cannot be relegated to the status of technical favors administered by the very party that controls the design of the environment.

For this reason, the constitutional matrix affirmed here does not allow the regime of the Immaterial Object of Consumption to be treated as an extravagant construction or a theoretical detour in search of a problem of its own. What it requires is precisely the opposite: that legal dogmatics be able to name, with precision, the contemporary forms of private power exercised over enjoyment. When the utility consumed depends on continuous governance, unilateral reconfiguration, technical opacity and an asymmetrical distribution of the means of proof, the law is not facing an extra-systemic gray zone, but a constitutionally qualified case of containing structural asymmetries. Equality before the law and the protection of liberty, security and property[501] cannot coexist with private regimes of arbitrary exclusion disguised as contractual autonomy. Where the platform administers access, visibility, sanction and permanence at scale, there is private power too significant to be treated as a mere operational detail.

Free enterprise, innovation and technological ownership do not operate as safe-conducts for unauditability, shielded irresponsibility or the contractual immunization of the supplier. The Brazilian economic Constitution has no room for small private

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protection, and not one that tries to convert private architecture into jurisdiction

without control. It is from this matrix that the dogmatic possibility derives of later reconstructing platform governance as a legally controllable phenomenon and of reading the IOC not as an awkward exception to the system, but as one of its hardest contemporary tests.

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473. "Art. 5. All are equal before the law, without distinction of any nature, guaranteeing to Brazilians and to foreigners residing in the Country the inviolability of the right to life, to liberty, to equality, to security and to property, on the following terms: [...] XXXII - the State shall promote, in the form of the law, the defense of the consumer" BRASIL. ↩

474. "Art. 170. The economic order, founded on the valorization of human labor and on free enterprise, has the purpose of ensuring everyone a dignified existence, in accordance with the dictates of social justice, observing the following principles: [...] III - social function of property; IV - free competition; V - consumer protection" BRASIL. ↩

475. "Art. 1. The Federative Republic of Brazil, formed by the indissoluble union of the States and Municipalities and of the Federal District, is constituted as a Democratic State of Law and has as its foundations: [...] III - the dignity of the human person; IV - the social values of labor and of free enterprise" BRASIL. ↩

476. Consumer protection, in the 1988 constitutional text, is part of the very normative structure of the economic order, as a binding constitutional principle and a guideline shaping the functioning of economic activity. In this capacity, its presence does not interrupt the constitutional logic of the market; on the contrary, it takes part in the very definition of the legitimate way of organizing it, both as an instrument aimed at realizing a dignified existence and as a specific constitutional objective to be promoted even through public policies GRAU. The internal position of consumer protection becomes even more evident once it is recognized that its application is not limited to pathological episodes or extreme abuses, but structurally affects the exercise of economic activity in the broad sense GRAU. For this reason, consumer protection can be treated neither as a heterogeneous obstacle to economic rationality nor as a corrective concession subsequent to the contract. It shapes, from within, the very constitutional intelligibility of the market. Free enterprise, in the 1988 constitutional arrangement, is not to be confused with unrestricted contractual sovereignty or with a m to design platform regimes immune to control. It is born legally demands of social ju consumer protection occupies a str

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477. The notion of product in the CDC extends functionally to the utility the consumer relies on and legitimately expects, anchored in the protection of trust and in the supplier's general duty to offer objects fit for the purposes for which they are intended MIRAGEM. In products that depend on continuous services, the terms of the offer become the main criterion for assessing legitimate expectations, so that the fulfillment of the duty to inform measures the expected use, including for purposes of liability for quality defects MIRAGEM. The immaterial product provides a basis for organizing protection around the functional correspondence between the promised utility and the enjoyment delivered, and not around a static nominal or material existence. ↩

478. Consumer protection is expressly part of the Brazilian constitutional arrangement, both in the domain of fundamental rights and in that of the economic order. This suffices to rule out the reading according to which consumer protection would be a lateral, moralizing or merely legislative correction of the market's occasional excesses. In the constitutional system, the consumer appears as the holder of a legally qualified position, and the consumer's protection appears as a structuring principle of the economic order, which prevents treating it as a matter left to the convenience of private agents SILVA. The application of the protective regime does not depend on the supplier's contractual tolerance, because the constitutional text itself already places it at the normative core of economic life. This placement responds to the recognition that consumer society and contemporary commercial traffic produce their own asymmetries, requiring constitutional technique to adapt to this state of affairs SILVA. The containment of private power, in the field of consumption, emerges as an internal development of the economic Constitution itself. ↩

479. "Except for the cases provided for in this Constitution, direct exploitation of economic activity by the State shall only be permitted when necessary to the imperatives of national security or to relevant collective interest, as defined by law. [...] Paragraph 4 The law shall repress the abuse of economic power that aims at the domination of markets, the elimination of competition and the arbitrary increase of profits" BRASIL. ↩

480. The Brazilian constitutional economic order was not designed as a space of opposition between economic freedom, on one side, and social protection, on the other. Its normative meaning depends precisely on the coordinated coexistence of free enterprise, free competition, the social function of property, consumer protection and the repression of the abuse of economic power, principles that shape one another within the same constitutional matrix GRAU. The exercise of economic activity remains constitutionally legitimate only when read within this integrated web, and not as self-sufficient private power. This same integration extends to property and its ı. The simultaneous inclusion of both among the principles of the :r does not mean me of the exercise of property to the d

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ensuring a dignified existence for all GRAU. For this reason, economic practices incompatible with the valorization of human labor, with social justice or with the general dignity sought by art. 170 are not merely debatable business choices; they become adverse to the constitutional order itself GRAU. Social justice, social function and consumer protection are part of the constitutional DNA of the market itself. ↩

481. Free enterprise, in the constitutionalism of 1988, cannot be reduced to the old fantasy of a broad license for the private exercise of power. Its inscription as a foundation of the Republic and as a principle of the economic order does not authorize treating it as a synonym for corporate sovereignty, much less as armor against legal control over how the market is contractually organized. The corresponding constitutional notion is not exhausted by economic freedom in the classical liberal sense, nor can it be read as a simple ideological affirmation of capitalism GRAU. This containment becomes even clearer when one observes that the Constitution enshrines the social value of free enterprise, and not its individualistic potentialities, and moreover places it, in art. 170, alongside human labor in a structure purposively directed toward the valorization of the latter GRAU. For this reason too, free enterprise is taken neither as a fundamental right of the capitalist nor as a metaphysical attribute of capital, but as a category functionally linked to business activity in a constitutionally shaped context GRAU. In the Brazilian constitutional design, free enterprise remains intelligible only when it coexists with consumer protection, social function, social justice and the repression of the abuse of economic power. ↩

482. “Art. 3. The fundamental objectives of the Federative Republic of Brazil are: I - to build a free, just and solidary society; [...] III - to eradicate poverty and marginalization and to reduce social and regional inequalities” BRASIL. ↩

483. The application of the CDC is not subject to the parties' private disposition, because its rules form a true microsystem of public order and social interest grounded in the consumer's vulnerability. The qualification of consumer law as a public order norm expresses a public order of protection, endowed with a preferential and, above all, imperative character. Insofar as it gives effect to the content of a fundamental right of constitutional origin, it removes from the sphere of private autonomy the possibility of derogating from it MIRAGEM. This unavailability reaches the very structure of the consumer relationship. The rights recognized to the consumer and the duties imposed on the supplier cannot be validly suppressed, waived, limited or set aside by contract, terms of use, license or any other predisposed contractual arrangement MIRAGEM. Thus, the consumer's vulnerability cannot be recycled into an appearance of consent to legitimize the emptying of legal protection. Wherever there is a consumer [illegible] onsumer public order has already entered before any contractual clause.

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484. “XXIII - property shall fulfill its so

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485. In the Brazilian constitutional system, social function acts as an internal element shaping private legal positions, and not as a peripheral or exceptional limitation. This means that property, enterprise and private initiative are not embraced as autonomous spheres for the selfish exercise of power, but as positions whose legitimacy depends on compatibility with social justice and the protection of the person. Read this way, social function bears on the very content of the right, on its recognition and on its guarantee, introducing into the internal structure of the legal position an interest that does not necessarily coincide with the isolated interest of the holder SILVA. The containment of private power should not be thought of as an external aggression against economic freedom, but as a requirement of the very constitutional mode of its existence. This reading connects with the centrality of the dignity of the human person in the system. The Constitution pulls the constitutional economic order toward its civilization, precisely because enterprises are subordinated to the realization of a social order committed to social justice and human dignity SILVA. Dignity of the human person, social function, economic order and consumer protection belong to the same normative arrangement. ↩

486. The economic order of the 1988 Constitution is not organized under a logic of absolute economic freedom, because it is expressly subject to the dictates of social justice and to the purpose of ensuring everyone a dignified existence. The presence, among its principles, of consumer protection, the reduction of inequalities, the protection of the environment and the pursuit of full employment shows that the constitutional text does not legitimize a self-referential market, but an economic model held in tension by demands of humanization and social limits SILVA. The consequence is decisive, since free enterprise cannot be read as unrestricted contractual sovereignty, nor as a safe-conduct for the private exercise of power detached from material control. This same logic appears in the constitutional relativization of private property. Its inclusion among the principles of the economic order does not preserve an untouched concept of individual ownership, but reconstructs it under the requirement of social function and in submission to the dictates of social justice SILVA. Business activity and private initiative are recognized only insofar as they are compatible with social function, the dignity of the human person and consumer protection. ↩

487. The constitutional containment of private economic power and the subordination of the exercise of property to socially justifiable purposes are not an isolated innovation of recent Brazilian constitutionalism, but the expression of a broader historical process affirming the centrality of the human person against patrimonially absolutized forms of power. Read this way, the evolution of human rights is not [illegible] negative freedoms enforceable against the State, since the very [illegible] of economic, social and cultural rights led to the recognition that, [illegible] besides public authorities, individu[illegible] respect human rights of every kind [illegible]. The application of constitutional

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limits to private centers of power, therefore, is not an improvised anti-liberal eccentricity, but an outgrowth of the broadening normative horizon of human rights. This trajectory is also revealed in the progressive social functionalization of property. In various contemporary legal systems, the attribution of a social function to private property appears grounded in solidarity, so as to rule out the conception of purely self-centered ownership COMPARATO. In the same direction, the reaction of social constitutionalism to the economic exploitation of the human person was also built against the abusive use of contractual freedom as an alibi for domination. The Mexican Constitution of 1917 stands as a landmark of the modern Social State under the Rule of Law by delegitimizing practices of human exploitation previously shielded by an absolutized reading of private autonomy COMPARATO. The Brazilian constitutional economic order thus becomes more intelligible when read as part of this larger process of subordinating property, enterprise and private powers to the protection of the person and to the social interest. ↩

488. “This code establishes norms for the protection and defense of the consumer, of public order and social interest, under the terms of arts. 5, item XXXII, 170, item V, of the Federal Constitution and art. 48 of its Transitional Provisions.” BRASIL. ↩

489. Consumer protection has enough constitutional density to prevent a contract, license or private regulation from being treated as a small sovereign space immune to the protective system. The CDC does not hover as peripheral legislation of private convenience, but stands as the infraconstitutional implementation of an express constitutional command. The 1988 Constitution is the origin of the protective codification of the consumer in Brazil, so that the CDC receives a true constitutional guarantee, with superior hierarchy and a public-order character, placing consumer protection among the structuring values of Brazilian private law, alongside – and in reciprocal containment of – free enterprise and private autonomy BESSA. This reading is reinforced when the work characterizes the CDC as a law of social function, a law of economic public order and a law of “clearly constitutional” origin, precisely to explain why its norms, although they bear on private relationships, are non-waivable and cannot be set aside by contract BESSA. If the source of protection is constitutional, no platform license can make it evaporate. ↩

490. The application of the Consumer Protection Code to consumer relationships depends neither on the supplier's acceptance, nor on express provision in the contractual instrument, nor on any compatibility voluntarily acknowledged by the platform's private architecture. It is a mandatory regime, structured as a microsystem of public order and social interest, whose application cannot be set aside by a license of use, by predisposed clauses or by contractual designs aimed at escaping consumer protection. .se that Marques states that "the Consumer Protection Code is clear, in)viding that its norm group, consumers, and that they co

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therefore, be set aside by individual will. They are norms of social interest" MARQUES. This mandatory nature prevents isolationist readings of the contractual bond, in which the supplier seeks to enclose the relationship within the limits of a text it drafted itself. Along the same lines, the author notes that state intervention in consumer relationships was carried out through the imposition of "imperative norms", which limit the space previously reserved to the autonomy of will, create new rights for the consumer and protect expectations arising from trust in the contractual bond MARQUES. Consequently, contract, license or private platform design cannot serve as an alibi to neutralize the public order of protection. ↩

491. The application of the CDC cannot be set aside by a contractual clause, a license of use or a privatist design of the bond, because the consumer microsystem is composed of norms of public order and social interest, beyond the parties' power to dispose of them. This mandatory nature prevents private arrangements from functioning as a filter for entry into or exclusion from legal protection. It is generally understood that "all its norms are of public order" and, for this reason, "unavailable to the will of the parties, even by contract", being equally "of social interest" BESSA. The consequence is not merely symbolic: the Code is directed to the priority protection of the consumer and its norms, being of public order, "cannot be set aside [...] by individual will", and may even be applied ex officio BESSA. The supplier may write whatever contract it wishes; what it cannot do is write consumer public order out of it. ↩

492. Thus, the application of the CDC neither depends on the will of the parties nor can be set aside by a predisposed clause, terms of use, license or equivalent private arrangement. Art. 1 of the CDC qualifies its norms as of public order and social interest, which gives them a mandatory nature that the will of those concerned cannot override FILOMENO. The platform does not choose whether the consumer microsystem enters the relationship, because it already enters by force of law. This mandatory character is linked to the purpose of rescuing consumers as a collectivity from a structural position of fragility before economic power, ensuring them effective instruments of protection and access to justice FILOMENO. In other words, the application of the CDC is part of a broader movement limiting private autonomy whenever its exercise threatens to reproduce material imbalances incompatible with the protection of the vulnerable party. ↩

493. "Among others, contractual clauses relating to the supply of products and services are null and void as a matter of law when they: IV - establish obligations considered iniquitous, abusive [...]; XI - authorize the supplier to cancel the contract unilaterally, without the same right being conferred on the consumer; [...] XIII - authorize the supplier to unilaterally modify the content or quality of the contract after its] XV - are in disagreement with the consumer protection system. n advantage is presu offends the fundamental principles

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restricts fundamental rights or obligations inherent to the nature of the contract [...]; III - proves excessively onerous for the consumer [...]." BRASIL. ↩

494. The public-order nature of the CDC prevents not only the wholesale exclusion of its application, but also the piecemeal neutralization of its effects by clauses of exoneration, attenuation of liability or waiver of the consumer's rights. Since the protective regime is mandatory, no validity is given to agreements that seek to empty the supplier's legal duties or to reduce, by contractual means, the intensity of the protection ensured to the consumer DENARI. Where the duty arises from law, the consumer's adhesion is not enough to override legal protection. In consumer matters, individual will does not operate as a safe-conduct for suppressing protective public order, especially when this would imply a breach of the material balance of the relationship BENJAMIN · JR.. Terms of use and licenses cannot recycle vulnerability into an appearance of valid consent against the protection system itself. ↩

495. A relevant downgrading of enjoyment can be framed without difficulty within the dogmatic doors the CDC provides for quality defects and inadequate performance. A quality defect in the product or service stems from the absence of properties or characteristics that would enable the performance to meet the purposes legitimately expected by the consumer, and may result even from the breach of an accessory duty, provided that this compromises, even partially, the utility of the product or service MIRAGEM. The performance need not collapse completely for the system to react. This structure is reinforced when the frustration of legitimately expected purposes, including presumable and reasonably expected utility, is treated as the axis of the defect, especially in services performed out of conformity with the due time, place or manner, whether by reason of the offer or of advertising MIRAGEM. Framing the functional downgrading of enjoyment does not require a parallel category, since the CDC already offers the paths of frustrated useful interest and impaired utility. ↩

496. "The rights provided for in this code do not exclude others arising from international treaties or conventions to which Brazil is a signatory, from ordinary domestic legislation, from regulations issued by the competent administrative authorities, as well as those deriving from the general principles of law, analogy, customs and equity." BRASIL. ↩

497. Nor is the application of the consumer-law microsystem exhausted by the isolated text of the CDC itself. Its normative structure is open to coordination with other protective sources, because it is not a closed and self-sufficient code, but a system functionally directed toward the fullest protection of the consumer. This openness is particularly important in complex contexts, such as those of platforms and immaterial [illegible] sumption, in which adequate protection depends on a coordinated [illegible] stitutional, civil, informational, contractual and regulatory norms. Marques addresses this point by st[illegible]esses this point by st[illegible] subjectively specific codification, a [illegible]

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codification", adding that, by virtue of its art. 7, it "lets itself be permeated by any other law protective of the consumer" MARQUES. The function of this openness, however, is not to relativize consumer-law protection, but to reinforce it. That is why the author observes that, in the CDC system, art. 7 acts as an "updating interface", integrating into the microsystem the rights ensured by external legislation, "but not the limits to those rights" MARQUES. Coordination among sources thus works in favor of the protected vulnerability, and not as a privatist escape route. ↩

498. "Art. 47. Contractual clauses shall be interpreted in the manner most favorable to the consumer." BRASIL. ↩

499. "Art. 4. The National Policy on Consumer Relations has as its objective [...] the following principles being observed: I - recognition of the vulnerability of the consumer in the consumer market; III - harmonization of the interests of the participants in consumer relations [...], always on the basis of good faith and balance in relations between consumers and suppliers; VI - efficient restraint and repression of all abuses practiced in the consumer market [...]." BRASIL. ↩

500. "Art. 6. The basic rights of the consumer are: I - the protection of life, health and safety against the risks caused by practices in the supply of products and services considered dangerous or harmful; III - adequate and clear information about the different products and services [...]; IV - protection against misleading and abusive advertising, coercive or unfair commercial methods, as well as against abusive practices and clauses [...]; VI - the effective prevention and redress of material and moral damages [...]; VIII - the facilitation of the defense of their rights, including with the reversal of the burden of proof [...]." BRASIL. ↩

501. "Art. 5. All are equal before the law, without distinction of any nature, Brazilians and foreigners residing in the Country being guaranteed the inviolability of the right to life, to liberty, to equality, to security and to property, on the following terms:" BRASIL. ↩

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CONCEPTS IN THIS SECTION

The law of the platform

The horizontal effect of fundamental rights ceases to look like an abstract theoretical question once one observes that, in contemporary private relations, relevant subjection no longer comes only from the State. It also arises from private centers of power capable of organizing access, permanence, visibility, reputation, evidence and contestation on a scale sufficient to affect, structurally, the practical freedom and material equality of the person subject to the relation. In such contexts, private autonomy cannot serve as a screen shielding materially asymmetric arrangements, because the Constitution does not merely restrain public power but also radiates effects onto bonds between private parties when the concentration of power becomes legally relevant SARMENTO 502. The private relation remains private, but the fantasy vanishes that this formal qualification, by itself, would make it immune to the normative force of fundamental rights SARLET 503.

This reinforced application does not require conceptually turning the platform into a state entity, nor confusing company with public power. The legally relevant point lies in the material density of the power exercised and in the concrete effects it produces on the sphere of the other party to the relation. When a private agent concentrates enough economic, technical, informational and organizational power to condition choices, restrict freedoms and reconfigure the user's practical position, the private nature of the bond is no longer enough to push the Constitution off the stage

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recisely for this reason that fundamental rights apply more

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which contractual freedom no longer expresses any minimally real parity and comes instead to cover the material dependence of the weaker side SANTOS[505].

It is within this framework that the *Lex Plataformae* must be understood. It cannot be reduced to the contract, nor does it merge with an isolated technical instrument, because it designates the coordinated set of rules, procedures and operational standards through which the platform structures the continued enjoyment of the object consumed. Terms of use, internal policies, interface, reputational systems, updates, support and *enforcement* do not appear there as loose pieces, but as a private regime that orders the consumption experience in practice. The platform, therefore, does not merely offer utilities; it governs the very conditions of access, permanence, equivalence, intelligibility and contestation of enjoyment, distributing information, evidentiary capacity and powers of unilateral modulation asymmetrically. This is enough to dispel the naive image of the contract as a neutral meeting of equivalent wills and to put the problem back where it really lies: in the legal containment of a private power structurally preponderant over the consumer MARQUES[506].

The clauses of the ecosystem examined are themselves what make this phenomenon too empirical to be treated as an abstraction. *Riot* reserves the power to terminate or suspend accounts on the basis of criteria it formulates itself, including with regard to the "best interest" of its community or its services[507].

It also provides for bans, suspension, account deletion, hardware bans, content removal, progress resets and functional restrictions[508], extends its discipline to off-platform uses linked to game content[509] and radiates penalties from one service to another within the same ecosystem[510].

What we face, therefore, is not mere technical entertainment infrastructure, but a private center of governance that disciplines permanence, history, visibility, progression and contestation across an integrated network. The public relevance of this power does not arise from grandiloquent metaphor, but from the brute fact that it organizes, on a continuing basis, the consumer's practical position in the digital

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For this reason, the horizontal effect of fundamental rights does not enter here as an artificial graft, but as a constitutional response to the intensity of the private power actually exercised. Private autonomy, read constitutionally, is not an abstract safe-conduct for the material subjection of the user, above all when inequality of power turns formal freedom into an elegant fiction SARMENTO[511]. For the same reason, the reinforced application of fundamental rights in the private sphere does not depend on any rite turning the private party into a "quasi-State"; it is enough to recognize that the threat to freedom, to material equality and to dignity may come from holders of social and economic power intense enough to produce relevant subjection SARLET[512]. Put simply: the platform remains a private party, but that does not give it a constitutional license to operate as a small jurisdiction immune to control.

The point gains density when one recalls that the Constitution does not tolerate forms of marginalization, blocking and discrimination merely because private agents practice them. The promotion of the good of all without discrimination[513], the protection of honor, image and the personal sphere[514], the inviolability of intimacy, private life, honor and image[515], the right of access to the courts[516] and the prohibition on deprivation of property without due process[517] form, here, a decisive constitutional framework. In platform environments, exclusions, suspensions, removals, reputational erasures and invasive monitoring cannot be treated as technical noise or simple "internal administration of the service", because they affect the consumer's biographical trajectory, informational integrity, practical permanence in the ecosystem and very capacity to respond to the power that governs them. The problem is not only patrimonial; it is also one of personality, of practical freedom and of the controllability of private power.

In the digital environment, this reading gains even more density because the exercise of private power also runs through surveillance and the collection, processing and exploitation of personal data. Data are not neutral matter for market circulation, but legally relevant projections of personality, whose protection is tied to human dignity and to informational self-determination LAPRANO[518]. The information society itself, [Skip to content] ate structures of surveillance and behavioral analysis, called for new fundamental rights to be made ex

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in response to the practical erosion of privacy MENDES[519]. When private agents accumulate the capacity to monitor, infer and modulate behavior in depth, what we face is no longer simple, neutral business freedom, but a socially relevant form of power over fundamental goods of the person.

Data protection and the protection of personality rights help show, in contemporary Brazil, that the reinforced application of fundamental rights to digitally mediated private powers is no longer a remote hypothesis. The point is to recognize that private structures of digital governance bear on privacy, personality, freedom and self-determination with enough intensity to justify reinforced legal containment LAPRANO[520]. Along the same lines, massive data exploitation, behavioral analysis and corporate surveillance show that these private powers now operate over central spheres of autonomy to a constitutionally relevant degree, calling for a more robust normative response MENDES[521]. The *Lex Plataformae* governs not only access and use; it may also govern the user's perception, predictability, exposure and margins of self-determination.

All this explains why the horizontal effect of fundamental rights, although indispensable, is still not enough on its own as an operational grammar for the problem. This constitutional containment must be carried back into a dogmatic language of control capable of reaching, concretely, architecture, practices, information, sanctions and evidentiary regimes. That is where consumer law comes in, not as a sectoral appendix, but as normative infrastructure for containing the asymmetries the *Lex Plataformae* produces. The CDC starts precisely from the recognition that the supplier holds a structurally preponderant position in defining the terms of the bond, organizing information, modulating performance and allocating risks, which is why vulnerability, good faith and balance operate as a concrete normative translation of the constitutional requirement to limit private power in the consumer relation MIRAGEM[522].

Read this way, the consumer contract is no longer seen as a neutral space of self- [illegible] to be understood as a field for containing the supplier's

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a technique for limiting the abusive ex[illegible]

they are projected onto a structurally vulnerable consumer MARQUES[523]. The platform may shape its service, but it may not turn that shaping into private sovereignty over the user's position. Likewise, the CDC's control of abusive clauses and practices already offers enough language to bring the problem of platform governance down to the ground of positive law, typifying abuses, repressing exaggerated disadvantages and weakening the fiction that everything accepted en masse has become legally legitimate MIRAGEM[524].

This consumer-law grammar comes clearly into view once one looks at the normative doors opened by the statutory provisions themselves. Strict liability for defects in the service and for insufficient or inadequate information[525], the rules on quality defects that render the service unfit or diminish its value[526] and the prohibition of abusive practices that take advantage of the consumer's weakness, impose excessive advantage or leave performance of the obligation to the supplier's sole discretion[527] show that the problem of the *Lex Plataformae* need not be framed only as a lofty conflict between Constitution and market. It can already be grasped, operationally, as defect, inadequacy, abuse, exploitation of vulnerability and unilateral manipulation of the conditions of enjoyment. This shifts the focus from isolated clauses to structural patterns of governance, verifiability and reasoning.

The methodological consequence is decisive. The public relevance of the powers of the *Lex Plataformae* does not authorize confusing platform with State, but it prevents its governance from being read as an internal, legally neutral business detail. When a private supplier organizes, through *design* and *enforcement*, the conditions of access, permanence, equivalence, visibility, sanction and contestation of an ongoing consumption experience, legal control cannot remain a prisoner of the contractual surface. It must reach the architecture of the relation and reintroduce into it criteria of controllability, reasoning and verifiability. Without this, opacity, unilateral change and systematic obstacles to contestation no longer appear as pathologies and come to be naturalized as the ordinary condition of digital consumption. It is precisely this naturalization that is rejected here.

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NOTES

502. The application of fundamental rights to relations between private parties stems from the observation that socially relevant forms of oppression, inequality and subjection are not confined to State action, but also manifest themselves in private bonds organized around concentrations of economic, technical, organizational and informational power SARMENTO. Fundamental legal protection cannot remain confined to the classic vertical scheme between State and individual, or it would leave legally unprotected precisely the contemporary forms of injury to freedom and to the sphere of the person that arise in structurally asymmetric private relations. This reinforced application does not require misrepresenting the private relation as if it had been taken over by the State. The legally relevant point lies in recognizing that the Constitution is addressed to all and that fundamental rights shape the conduct of private parties when the exercise of private autonomy comes to affect another's legal sphere in a relevant way SARMENTO. In contexts of marked material inequality, the autonomy of the weaker subject tends to become fictitious, which is why extending the protection of fundamental rights into the private sphere works as a response to the real asymmetry of power between the parties SARMENTO. The platform need not be treated as the State for its powers to be subject to legal shaping. It is enough to recognize that, in structurally asymmetric and socially relevant private relations, private autonomy no longer operates as an absolute shield against the application of fundamental rights. ↩

503. The application of fundamental rights to private relations does not presuppose the artificial transformation of the private party into a State entity, but stems from the need to protect the person against the power concretely exercised by another private party. What justifies the binding effect is not the formal nature of the agent, but the impossibility of treating private law as a space set apart from the Constitution, immune to the normative force of fundamental rights SARLET. Private autonomy does not function as automatic shielding whenever the contractual or organizational relation is structured on materially asymmetric bases. In this sense, at least some effect of fundamental rights on the private sphere must be recognized precisely to prevent private norms, clauses, powers or practices from contradicting the fundamental-rights content constitutionally ensured to the person SARLET. The point is strong because it dismantles the old fiction according to which it would be enough to call the relation "private" to remove it from the field of constitutional shaping. The platform remains a private party, the relation remains private and private law continues to exist; what disappears is the claim to immunity founded only on this formal qualification. Thus, the legal containment of the powers of the Lex Plataformae stems from protecting the [illegible] the private power exercised over them, and not from the need to [illegible] his power has become State power. ↩

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504. The legal containment of private powers with public relevance does not depend on an artificial equation between private party and State, but on the perception that the mere privatization of the activity or of the infrastructure of power cannot narrow the scope within which fundamental rights apply SARMENTO. The private nature of the agent has no magic power to expel the Constitution from the relation, above all when the power this agent exercises becomes intense enough to condition choices, restrict freedoms and structurally affect the practical position of the individuals subject to its architecture of governance. At the same time, this containment does not require dissolving the private nature of the relation or transplanting the State's legal regime wholesale onto the private party. The question is to recognize that the private party is also a holder of fundamental rights and of autonomy, but that this autonomy ceases to be absolute when the exercise of its power affects the fundamental rights of third parties in a relevant way SARMENTO. Even outside the strict cases in which a public function is exercised, the concrete public relevance of the power exercised matters legally, because the material impact of this power on another's sphere justifies reinforced constitutional containment SARMENTO. The *Lex Plataformae* need not be treated as an arm of the State for its powers to be limited. It is enough to recognize that, when a private agent concentrates enough economic, technical, informational and organizational power to structurally affect the user's freedom and material equality, private autonomy can no longer function as an absolute safe-conduct. ↩

505. The incidence of fundamental rights in relations between private parties becomes especially clear when private autonomy ceases to operate in a scenario of minimally real parity and comes to cover materially asymmetric bonds. In consumer relations, the structural inequality between the parties prevents contractual freedom from being treated as a self-sufficient criterion for legitimizing the bond, requiring reinforced legal containment in favor of the vulnerable party SANTOS. The platform need not be equated with the State for its action to cease being read as a sovereign sphere immune to legal control. It is enough that the relation it structures concentrates relevant power on one side and vulnerability on the other. This key is reinforced when the asymmetry between the subjects of the relation is taken as a parameter for intensifying the protective incidence of fundamental rights. The more unequal the private relation, the smaller the legitimate space for an absolutized reading of negotiating autonomy and the greater the need to protect the fundamental right affected SANTOS. Therefore, the public relevance of the powers of the *Lex Plataformae* does not derive from a fiction that transforms the platform into a State entity, but from the observation that, in structurally asymmetric private relations, private autonomy can no longer function as a screen to shield the exercise of economic, technical and informational power over the user. ↩

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ainment of private powers exercised in a platform environment finds, in the consumer-law microsystem, a c

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of material balance in relations between private parties. Instead of treating the

contract as a neutral space of self-regulation between formally equivalent wills, consumer law starts from the recognition that the supplier holds a structurally preponderant position in defining the terms of the bond, organizing information, modulating performance and allocating risks. Marques frames this shift by stating that, in consumer societies, "it is no longer believed that by ensuring the autonomy of the will and contractual freedom the necessary harmony and equity in contractual relations will automatically be achieved", stressing that standardized methods of contracting make "clear the imbalance between the contracting parties", which is why it fell to the State to intervene to restore balance and equality of forces MARQUES. This logic is especially useful for reading the Lex Plataformae, because it shows that the platform's private governance does not end in internally legitimate business choices, but produces concrete effects on the consumer's enjoyment, permanence and self-determination. Along convergent lines, Marques defines abusiveness as "imbalance or mismatch of rights and obligations between the parties", associated with authorizing conduct contrary to good faith and with abuse of the preponderant contractual position MARQUES. Read this way, the horizontal effect of fundamental rights translates, on the consumer-law plane, into containing the supplier's dominant position. ↩

507. “2.1.2. We may terminate or suspend your account if it is reasonably determined that: you have violated any part of these Terms (including the User Rules); doing so would be in the best interest of our community or the Riot Services or is necessary to defend the rights of third parties; we stop offering the Riot Services in your region (although we will normally post a notice reasonably in advance on our website, app or game if we plan to stop offering a main feature of a game or all of the Riot Services in your region); if we have to refund someone due to the unauthorized use of a payment charged to your account; or you have made (or if we have reasonable grounds to suspect that you have made) unauthorized use of another person's payment information. If you think we have made a mistake, contact our Player Support team with the details here and we will review your case, although we may suspend your account during our review. Terminations and suspensions may be temporary or permanent, at our reasonable discretion. You may also contest our decisions (see Clause 16).” RIOT GAMES. ↩

508. “7.1. May I ‘troll’, insult, threaten or harass people while using the Riot Services? (No. If you do, we may take measures such as canceling your account.) [...] In case of violation, Riot reserves the right to take appropriate disciplinary measures, including temporary bans, suspension, or termination and deletion of the account, hardware bans, content removal, resets of user progress, limitations on chat functionality and restrictions and bans from matchmaking queues, in order to protect the integrity and

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ot Services, regardless of whether a specific behavior is listed or not in ---- ---- ------ as inappropriate. [...

509. “7.2. Do the User Rules apply only to misconduct within the game? (No. We may take disciplinary measures against you for any use of the Riot Services, such as violating the User Rules while streaming Game Content.) [...]” RIOT GAMES. ↩

510. “7.3. Can violating the User Rules in one game result in penalties in another game? (Yes. Misconduct in one of our games may result in penalties applicable in another game or escalated penalties in another game as soon as you violate the User Rules in the new game.) [...]” RIOT GAMES. ↩

511. Private autonomy cannot be understood, read constitutionally, as an abstract safe-conduct for the exercise of private power in contexts of material inequality. When the relation between private parties is organized on unequal terms, a purely formal appeal to contractual freedom is no longer enough to legitimize the bond, because the absence of overt coercion does not, by itself, amount to real freedom to decide, resist or negotiate on minimally equivalent terms SARMENTO. Private autonomy is relativized not out of hostility to the market or to the contract, but because its legitimacy depends on material conditions that allow it to be exercised effectively. This relativization gains even greater density once one recognizes that material equality, inferred from the Constitution, requires protection of the weaker parties in private relations, which necessarily narrows the room for a private autonomy read in absolute terms SARMENTO. In a setting of acute social inequality, the fiction of legal equality between individuals cannot serve to shield more powerful private parties from the application of fundamental rights, above all when the appeal to private autonomy comes to mask relations of material subordination SARMENTO. The legal containment of the private powers of platforms does not violate private autonomy. On the contrary, it prevents that autonomy from being mobilized as an elegant formula to legitimize the material subjection of the vulnerable user to private structures of concentrated power. ↩

512. The application of fundamental rights to relations between private parties is justified when the threat to freedom, to material equality and to the sphere of the person no longer comes only from the State but also arises from private centers of social and economic power intense enough to produce relevant subjection SARLET. The private relation does not become constitutionally immune merely because it involves no direct State action, above all when the concrete structure of the bond reveals a concentration of power capable of pressuring, conditioning or restricting the practical freedom of the weaker party. This reinforced application does not require confusing company with State. What is legally relevant is to recognize that situations of inequality produced by the asymmetric exercise of social power also occur in the private sphere, which is why attacks on individual freedom and on the human-dignity damental rights cannot be tolerated merely because private parties SARLET. In manifest carrying into the private sphere pr

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rights, precisely because one faces power structures functionally comparable, in their asymmetry, to relations between the individual and public power SARLET. The public relevance of the powers of the *Lex Plataformae* does not depend on "nationalizing" the platform, but on recognizing that its concentration of technical, economic, informational and organizational power may reach the user's sphere with constitutionally relevant intensity. ↩

513. "Art. 3. The fundamental objectives of the Federative Republic of Brazil are: [...] IV - to promote the good of all, without prejudice as to origin, race, sex, color, age and any other forms of discrimination" BRASIL. ↩

514. "All are equal before the law, without distinction of any nature, Brazilians and foreigners residing in the Country being guaranteed the inviolability of the right to life, to liberty, to equality, to security and to property, on the following terms: [...] V - the right of reply is ensured, proportional to the grievance, in addition to compensation for material, moral or image damage" BRASIL. ↩

515. "[...] X - the intimacy, private life, honor and image of persons are inviolable, the right to compensation for material or moral damage resulting from their violation being ensured" BRASIL. ↩

516. "[...] XXXV - the law shall not exclude any injury or threat to a right from the consideration of the Judiciary" BRASIL. ↩

517. "[...] LIV - no one shall be deprived of liberty or of their property without due process of law" BRASIL. ↩

518. The exploitation of personal data by private digital agents cannot be treated as an entirely self-referential sphere, because data constitute legally relevant projections of personality and their protection is linked, ultimately, to the protection of human dignity and informational self-determination. Along this line, data protection imposes a genuine obligation on the processing agent to respect the data subject's informational self-determination, precisely because personal data constitute an extension of their personality, protected by the constitutional centrality of human dignity LAPRANO. The same key appears when it is stated that the guarantee of protection of personal data, whether through the discipline of the LGPD or through the incidence of the horizontal effect of fundamental rights in the concrete case, especially those linked to privacy and personality, aims, ultimately, at protecting the fundamental rights of the data subject LAPRANO. For this reason, the infraconstitutional protection of personal data can be understood as an expression of the mediate horizontal effect of the fundamental rights of freedom, privacy and free development of the natural person, opening space for a more direct incidence of these private relations LAPRANO. The public relevance of the powers of the Lex Plataformae, thus, already finds support in the relationship between informational personality and the horizontal effect of fundamental rights. ↩

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519. The reinforced legal containment of digitally mediated private powers does not stem from theoretical voluntarism, but from the observation that the information society and private structures of surveillance have forced the recognition and explicit statement of new fundamental rights, especially the protection of personal data and informational self-determination. Along this line, the development of information and communication technologies, in a surveillance society marked by the erosion of privacy, made it necessary to reflect on new fundamental rights MENDES. The same key is reinforced when one recognizes that the economic exploitation of personal data without sufficient consent did not remain only on the infraconstitutional plane, since the case law of the STF has confirmed the existence of autonomous fundamental rights to the protection of personal data and to informational self-determination MENDES. In addition, these rights are understood as the result of an evolving interpretation of privacy, whose protection had to be reconfigured to remain effective in the surveillance society MENDES. The public relevance of the powers of the *Lex Plataformae* thus also becomes evident because private surveillance and mass data processing already operate, in the contemporary informational environment, as phenomena capable of justifying reinforced constitutional containment. ↩

520. Private powers exercised in digital environments bear on legally protected projections of personality and, for that reason, cannot be read as spheres immune to constitutional control. Data protection, in this key, ceases to be a purely market question and comes to operate as a form of defense of the person against private forms of interference in their informational and decision-making life. In this direction, the protection of personality rights is not exhausted in their enactment in the Civil Code, also having the stature of fundamental rights, which allows data protection itself to be understood as a form of defense of these rights LAPRANO. The same reasoning is reinforced when the problem is situated in the tension between an impersonal market and the protection of the fundamental rights of the natural person submitted to such influences, in a perspective of repersonalization of private law LAPRANO. In cases of justifiable vulnerability, even the immediate use of the fundamental norm, in its pure form, is admitted to make possible the effective rebalancing between the parties LAPRANO. The limitation of digitally mediated private powers can be built through the articulation of personality rights, data protection, vulnerability and horizontal effect. ↩

521. Digitally mediated private powers produce sufficient impact on privacy, behavior, personality and autonomy to justify reinforced legal containment in light of fundamental rights. In a surveillance society, the enormous quantity of personal data converted into information about personality and intimacy, and used by companies analysis, calls into question the very possibility of preserving privacy n private structures exploit such deep dimensions of in

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business freedom and moves onto the terrain of the exercise of socially relevant power over fundamental goods. This reading deepens when one recognizes, in dialogue with Shoshana Zuboff, that the power derived from the extraction and analysis of personal data reaches the capacity to shape human behavior, requiring responses of containment and regulation of surveillance capitalism MENDES. In addition, the existence of abuses committed by technology companies reinforces the need for more robust protection of data processing relations, including in digital media MENDES. The reinforced incidence of fundamental rights, therefore, is justified because these private powers already operate over central spheres of autonomy with legally relevant intensity. ↩

522. The containment of private powers in the consumer environment does not depend only on abstract constitutional theory, because it already finds operable language within the CDC itself. The consumer's subjective right to contractual balance stems directly from consumer-law principles, in particular good faith, vulnerability and balance itself. Because of the consumer's vulnerability before the supplier, who holds a dominant position in the contract, the CDC establishes a series of norms limiting the supplier's private power, through clear State legislative intervention in contractual autonomy, aimed at protecting the interests of the vulnerable party MIRAGEM. This reading gains density when one recognizes that, in contemporary society, the consumer relation presents itself less as an expression of contractual freedom and more as the fulfillment of a need to consume. In this context, the notion of abuse translates the prevalence of the supplier's dominant position over the consumer's vulnerability, good faith being the central legal brake on the exercise of this negotiating superiority MIRAGEM. The public relevance of the powers of the Lex Plataformae, therefore, need not remain suspended in a theoretical cloud: it can already be grasped in a key of structural vulnerability, good faith, balance and limitation of abuse within the real CDC. ↩

523. Objective good faith, in the consumer contract, does not act as a moral ornament, but as a concrete technique for containing the abusive exercise of private prerogatives, especially when these are projected onto a structurally vulnerable party. In contexts of informational asymmetry, practical dependence and unilateral predetermination of the rules of the relationship, consumer protection requires that the exercise of contractual powers be subject to standards of loyalty, reasonableness, economic and social purpose and respect for the trust legitimately placed in the relation. This is exactly the point Marques develops when she states that "the notion of objective good faith, as a new principle guiding the conduct of the contracting parties in captive contracts, means a new and important limitation on the exercise of subjective rights", [illegible] rcise of the right will be abusive when diverted from its economic and [illegible] or exercised in disloyal circumstances MARQUES. The author adds that good faith has a limiting function,

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partners" and controlling abusive conduct and clauses MARQUES. In a platform environment, this prevents the freedom to shape the relationship from being converted into private sovereignty over the consumer's position. ↩

524. The control of abusive clauses and practices functions, in the CDC, as a direct technique for containing structural asymmetries between consumer and supplier. Arts. 39 and 51 make up protective mechanisms designed precisely to equalize a factually unequal relation, typifying abusive practices and sanctioning abusive clauses with nullity by operation of law, in a clear mitigation of pacta sunt servanda MIRAGEM. Abusiveness, in this key, does not appear as a peripheral deviation or a moral correction of occasional excesses, but as a legislative instrument for repressing the disloyal exercise of dominant private positions. This control thickens when one perceives that abuse of right, in consumer law, corresponds above all to the abuse of a dominant legal position of the supplier in the consumer market. It is the exploitation of this superior position over the consumer's vulnerability that qualifies certain practices and stipulations as abusive, whether on the plane of conduct or on the plane of contractual content that imposes exaggerated disadvantage on the adhering party MIRAGEM. In practical terms, the containment of the platform need not be built only through lofty constitutional mediation: good faith, abuse of dominant position, exaggerated disadvantage and the nullity of abusive clauses already offer sufficient grammar to bring it down to the ground of the CDC. ↩

525. “Art. 14. The service supplier is liable, regardless of the existence of fault, for redressing damages caused to consumers by defects relating to the provision of the services, as well as by insufficient or inadequate information about their enjoyment and risks.” BRASIL. ↩

526. “Art. 20. The service supplier is liable for quality defects that make the services unfit for consumption or diminish their value, as well as for those arising from disparity with the indications contained in the offer or advertising message [...].” BRASIL. ↩

527. “Art. 39. The supplier of products or services is prohibited, among other abusive practices, from: IV - taking advantage of the weakness or ignorance of the consumer [...]; V - demanding from the consumer a manifestly excessive advantage; XII - failing to stipulate a time limit for the performance of its obligation or leaving the setting of its starting date to its exclusive discretion.” BRASIL. ↩

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The case of the *Vanguard anti-cheat* exposes, with particular clarity, a qualitative mutation in the private governance of the immaterial object of consumption. It is no longer merely a matter of conditioning enjoyment of the game on internal rules of conduct, progression or permanence in the ecosystem, but of projecting the demands of competitive integrity onto the consumer's own material infrastructure.

When the protection of the IOC's competitive environment comes to depend on software loaded at *kernel* level, that is, in the deepest and most privileged layer of the operating system, the platform ceases merely to occupy the computer as the contingent support of a ludic experience and begins to reorganize, in its own favor, the practical regime of availability, risk, surveillance and control of the equipment. *Riot*'s own official communications show that *Vanguard* is presented as a system composed of a *client* and a *driver* in *kernel* mode, started at the computer's boot and maintained as a structural condition of enjoyment in more than one game ecosystem, with the possibility of preventing use of the service if it is disabled or removed[528].

This fact shifts the legal problem beyond intuitive irritation with "intrusive" software. What is at stake is the redefinition of the material frontiers of the user's sovereignty over their own equipment. *Riot* contractually admits the possibility of actively monitoring the use of its services not only on its own servers, but also on the consumer's computer or device[529], and provides that the anti-cheat software may remain running in the background on the device[530]. As a result, the protection of the IOC does not remain confined to the concrete moment of the match. It becomes a vector of preventive and continued governance over the technical environment in

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be run, reaching the machine even before the specific decision to

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longer limited to the loaded operating

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initialization, justifying the hardening of integrity requirements on the basis of risks detected in early phases of *boot*[531]. The private sovereignty of the platform, in other words, ceases to govern only the game and begins to contest the minimum conditions of reliability of the user's own machine.

Under the vocabulary of security, this expansion usually appears as if it were simple technical inevitability. But the discourse of security does not, by itself, neutralize the legal relevance of the architecture adopted. In the digital environment, storage, sharing and persistent monitoring of information represent a threat to privacy serious enough to require specific normative containment, above all in a surveillance society in which data processing becomes a central asset of business models and of behavioral control MENDES[532]. The security argument itself may function as a legitimizer of the expansion of private powers over fundamental spheres of informational life, especially when the demand for data and structural surveillance are normalized by routine and barely intelligible acceptances MENDES[533]. It is not enough, therefore, to invoke the fight against cheating as a magic word. The problem becomes one of proportionality, necessity, transparency and justifiability of the degree of technical interference demanded of the consumer.

This perception is reinforced when one observes that invasive architectures are neither neutral nor merely instrumental. Monitoring technologies and algorithmic governance incorporate human choices and restructure power relations over the user, allowing veiled control and the favoring of their own interests by those who dominate the digital infrastructure COSTA[534]. In the network, the accumulation of traces and the expansion of surveillance make the individual's vulnerability deeper, because less perceptible control mechanisms come to bear on their private sphere and on their practical freedom, requiring that they preserve some command over the accuracy, the handlers and the uses of the information that describes them COSTA[535]. *Vanguard* is paradigmatic precisely because this reorganization of power does not appear as a side effect of the service, but as a central condition of its legitimate functioning according to the platform itself.

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if the problem were only a one-off intr

of personal data and of informational autonomy serves precisely to protect the person against mechanisms of control, classification and conditioning that bear on their freedom and their self-determination. Intensive data processing and the construction of electronic representations of the individual do not merely record conduct; they come to organize predictions, profiles and conditionings that compress the practical sphere of freedom and make informational power legally relevant DONEDA[536]. When organized data function as operational substitutes for the person, surveillance ceases to be a simple administrative instrument and becomes a potential mechanism for affecting individuality, autonomy and the free development of personality DONEDA[537]. Demanding persistent, deep and opaque access to the user's computing environment, therefore, is not a mere technical detail of the service; it is a controllable form of action upon the person.

In a constitutional key, this suffices to rule out any attempt to treat the technical intensification of private power as an enclave immune to the order of fundamental rights. Even though the agent remains private, the intensification of control over hardware, informational flows and practical conditions of use remains subject to the protective filter that radiates from the Constitution over the entire legal order SARLET[538]. The constitutional order remains in the room precisely because the platform does not act only upon an abstract thing, but upon the consumer's practical sphere, their equipment, their privacy and their real possibility of enjoying the object or not without submitting the rest of the machine to mutable private standards of integrity.

At the contractual level, this intensification appears in an especially raw form. Riot's Terms of Service not only admit active monitoring on the user's device and the running of anti-cheat software in the background, but also reserve to the company the power to change, update, restrict features, require software and compulsory updates, redistribute to the user the costs of technical adaptation and limit its own financial exposure[539]. The general contractual framework thus seeks to frame in advance the submission of the consumer's equipment to additional layers of

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lsory adaptation and shifting of risk[540]. This is the point at which the case ceases to be merely a discussio

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problem of the supplier's contractual shielding in the face of an invasive technical architecture that it itself imposes.

At the empirical level, too, the overflow of the IOC onto the consumer's hardware is too hard to hide. *Riot* itself, in documents addressed to developers and to users of *VALORANT*, admits that *Vanguard* may block third-party applications, require sensitive changes in *BIOS* or *UEFI*[541], impose the enabling of *TPM 2.0*, *Secure Boot*, *IOMMU*, memory integrity and other security layers, besides recognizing that incorrect changes to these settings may cause serious problems on the computer[542]. This is no small thing. The platform conditions the enjoyment of the immaterial object on the prior conformity of the machine's technical ecosystem with private standards of integrity and compatibility unilaterally defined by it. The user's computer comes, functionally, to be administered as an extension of the game's competitive environment.

The public reaction to *Vanguard* confirms that the problem was socially perceived precisely in these terms. In specialized press coverage, the controversy revolved around the *always-on* character of the *anti-cheat*, its loading at *kernel* level from system startup, the fear of persistent surveillance and the interference with[543] non-game uses of the equipment[544]. The value of this material lies not in proving, alone, any forensic thesis, but in showing that the criticism did not arise as marginal paranoia. The case was publicly understood as a genuine dispute over the legitimate limits of the private governance exercised by the platform over the consumer's machine. Public perception does not start from nothing; it starts from the observation of how hard the company strives to enter the subject's technical home under a generic discourse of security, arrogating to itself powers of inspection and direct effect whose potential for intrusion is substantially greater than the initial scope of its responsibility for the object supplied.

Critical and specialized secondary sources help organize why a *kernel*-level *anti-cheat* is qualitatively different from ordinary *software*. They converge in pointing to three [illegible]cemic security, through enlargement of the attack surface; [illegible], because errors in [illegible] entire operating system; and persisten[illegible]

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active from the machine's startup[545]. The most important point here is comparative: the *kernel-level always-on* architecture does not appear as an inevitable fact of every *anti-cheat*, but as a technical choice that intensifies the degree of intrusion, dependence and risk assumed by the consumer in the name of the ecosystem's competitive integrity.

This perception also materializes in reports of instability and technical conflict. On *Microsoft Q&A*, there are recurring records of blue screens, severe freezes and failures associated with the file *vgk.sys* or with the technical ecosystem in which *Vanguard* operates, including at moments when the game was not even open[546]. The reports document, in a technically situated environment, the recurrence of risks radiating to the system as a whole, and not only to the ludic experience. The argument does not depend on absolute demonstration of universal harm; it is enough to show that the required architecture transfers to the consumer a legally relevant systemic risk.

Even more concretely, community reports illustrate the conflict between *Vanguard* and legitimate, ordinary and non-ludic uses of the computer. There are incompatibilities with *hardware* monitoring and management *software*, interference with study routines and conflict with legitimate system debugging tools[547]. Although they have merely illustrative value, these sources are empirically useful because they materialize something central to the dogmatics of the case: the computer ceases to function as a neutral support of the game and comes to be reorganized according to private criteria of tolerance and priority defined by the platform. In a consumer-law key, this is devastating for any attempt to treat the problem as a mere internal technical whim of the supplier.

There are also sources that systematize the case already through the lens of consumer rights and public perception of risk, associating *Vanguard* with persistent technical presence, absence of a real alternative of refusal, expansion of control over the machine and continuous functioning outside the strict moment of play[548]. The point is important because it shows that the dispute is neither merely technical nor merely [illegible] perceived as a consumer-rights problem, precisely because the [illegible]C comes to be con[illegible] user's equipment to private criteria of

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Even the most extreme reports of possible *bricking*[549] or severe loss of availability of the equipment have illustrative usefulness for the argument, even though they do not authorize conclusive forensic statements[550]. Their value lies in showing how the risk radiating to the hardware forms part of the empirical reception of the case and speaks directly to the thesis that the governance of the IOC may go beyond the game environment and reach the material functionality of the machine itself. It is the limit-form of the problem. Not the only one, nor necessarily the most frequent, but the one that makes it impossible to pretend we are only talking about "just another game software".

Nor would it be honest to fail to recognize that there exists, even among the harshest criticisms, a consistent technical-cultural discourse in defense of more invasive measures, according to which fighting cheats in competitive games involves an asymmetric dispute and continuous escalation, which would make understandable the adoption of deep countermeasures by the platform[551]. This counterpoint is useful because it prevents an easy caricature of the practice. The serious legal question was never whether there is a legitimate interest in preserving competitive integrity; of course there is. The question is another: whether this interest suffices to authorize, without reinforced control, the expansion of the supplier's technical power over the material base of the consumer's equipment.

Then the normative parameters of containment come in. The CDC does not allow *Vanguard* to be made invisible as if it were a mere engineering option. Products and services placed on the market may not entail risks to health or safety beyond those normal and foreseeable from their nature and enjoyment[552], and the supplier may not place on the market a product or service that it knows or should know to present a high degree of harmfulness or dangerousness[553]. In limit cases, liability itself for design defects or for insufficient or inadequate information about use and risks[554] reopens the door to treating invasive software as a defective or inadequately informed product. The point here is not to automatically assert the total unlawfulness of the *kernel anti-cheat*, but to refuse its legal immunization. If the architecture

Skip to content risk, enlarges the attack surface, requires deep technical

conformations and may radiate instability to the equipment, then it enters the radar of consumer-law safety control.

The LGPD reinforces this picture without requiring any regulatory symposium. The data processing linked to Vanguard cannot be justified en bloc under the generic heading of "security", because it must observe a legitimate, specific, explicit and informed purpose[555], necessity, with limitation to the indispensable minimum[556], and transparency, with clear, precise and accessible information[557]. It also requires an adequate legal basis[558], is not automatically satisfied by ritualized and generic acceptances[559], and presupposes technical and administrative measures apt for the effective protection of data[560]. In other words, the platform cannot invoke security as a totalizing justification while maintaining opacity about the scope, necessity and agents of the processing. Alleged security does not replace legally demonstrated security.

Vanguard demonstrates that the *Lex Plataformae* may functionally overflow the immaterial space of the game and radiate concrete effects onto the consumer's material sovereignty over their own equipment. The private protection of competitive integrity comes to reorganize the availability, compatibility, startup, surveillance and risk of the hardware, shifting technical costs and burdens to the user and compressing their margin of practical self-determination. It is not a matter of denying the legitimacy of fighting fraud, but of denying that this legitimacy authorizes, by itself, deep, preventive, persistent and opaque technical governance over another's machine. Where the platform requires the consumer's computer to become functionally subordinate to its private layers of integrity, the law is not facing a technical detail. It is facing an exemplary case of private expansion of power that requires containment through safety, proportionality, transparency, liability and control.

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support communications dedicated to *League of Legends* and to *Riot* itself describes *V*
active while the game is running a

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deepest and most privileged layer of the operating system, with access far greater than that of ordinary applications RIOT GAMES. In both explanations, the company also clarifies that *Vanguard* is started at the computer's boot, so that its presence and functioning are not restricted to the exact moment of the match, but form part in advance of the material environment in which the enjoyment of the IOC will take place RIOT GAMES. In the case of *League of Legends*, *Riot* makes explicit that *Vanguard* must remain active not only during the match, but also whenever the client is open, and that its deactivation, uninstallation or unauthorized interaction prevents use of the game; in the case of *VALORANT*, it further states that deactivating the system requires restarting the machine to restore the possibility of playing RIOT GAMES. Both pages also recognize practical consequences that go beyond the game executable in the strict sense, by admitting the blocking of elements considered vulnerable on the user's computer, the conditioning of enjoyment on the machine's adaptation to security standards defined by the platform and the possibility of impact on the very functioning of the device when there are unexpected interactions among client, driver and system RIOT GAMES. Taken together, the sources are empirically valuable because they show, in the institutional voice of the supplier itself and in more than one game ecosystem, that the competitive protection of the IOC is implemented through deep technical access, early loading and structural permanence in the consumer's computing environment, which reinforces the thesis that the platform unilaterally redefines the material conditions of enjoyment of the immaterial good already acquired, reorganizing availability, compatibility, startup and ordinary use of the equipment itself RIOT GAMES. ↩

529. “9.1. Does Riot monitor me while I use the Riot Services? (Yes. Read the Privacy Policy to learn more.) We may actively monitor the use of the Riot Services (but we have no obligation to do so), both on our own servers and on your computer or device, for a variety of different reasons, including preventing cheating and hacking, reducing toxic player behavior, and improving the Riot Services. Please make sure to read the Privacy Policy for important details about how we obtain and process information relating to the use of the Riot Services.” RIOT GAMES. ↩

530. “9.2. Does Riot run programs on my device while I am not using the Riot Services? (We may, for limited anti-cheat purposes.) To prevent cheating and hackers, we may require you to install anti-cheat *software* to play our games. This *software* may run in the background on your device.” RIOT GAMES. ↩

531. In an institutional statement prepared by its security and privacy teams, *Riot* builds an explicit defense of the invasive architecture of *Vanguard* in the face of public criticism about privacy and security. The text seeks to justify *kernel*-level access on the grounds that more sophisticated cheats no longer operate only in the ordinary space t advance onto deep according to the company, an *anti-*

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insufficient to preserve so-called competitive integrity. Along the same line, Riot states that Vanguard is composed of client, driver and platform, that the kernel-mode driver is recognized as a condition of the machine's trustworthiness and that it is started at system boot precisely to prevent the prior loading of cheating mechanisms. At the same time, the communication tries to reduce the perception of risk by maintaining that the driver does not, by itself, collect or transmit information from the user's computer and by highlighting internal and external security reviews, as well as a bounty program for identifying vulnerabilities. The relevance of the document lies in showing, with clarity, the rhetorical and justificatory movement by which the supplier itself presents the expansion of its technical power over the consumer's machine as a necessary consequence of protecting the game's competitive environment. In other words, invasiveness is not denied; it is assumed, framed and legitimized by the company as an acceptable cost of the private governance of the IOC, which is central to the legal analysis of the proportionality, controllability and distribution of risks of this architecture RIOT GAMES. In an official update published at the end of 2025, *Riot* makes explicit with even greater adherence the logic of preventive governance that sustains *Vanguard*. The text states that the company identified a critical flaw in several modern motherboards, capable of allowing the invisible injection of code already in the early stages of the machine's startup, even before the operating system is fully loaded. On the basis of this finding, Riot justifies the hardening of its integrity requirements by maintaining that components loaded earlier in the boot process operate with a higher degree of privilege and, precisely for that reason, may compromise the entire environment before the operating system or the anti-cheat itself can react. The document also clarifies that, in the face of this gap, *Vanguard*'s restriction service may prevent *VALORANT* from running until the user updates the motherboard firmware or enables certain security layers deemed necessary by the platform. The relevance of the source lies in demonstrating, with unequivocal institutional wording, that Riot's concern is no longer limited to the game, nor even to the running operating system, but reaches the prior stage of powering on and initializing the hardware, reinforcing the thesis that the protection of the IOC comes to justify forms of continuous and anticipatory governance over the consumer's own material infrastructure. In dogmatic terms, this is especially strong evidence that the platform's security logic aims to discipline not only the enjoyment of the game, but the minimum technical conditions of reliability of the machine as a whole, shifting to the user the burden of adapting their equipment to the mutable demands of this private architecture of control RIOT GAMES. ↩

532. Invasive technical architectures of monitoring do not become legally neutral merely because they present themselves as instruments of security, fraud prevention or ty. In the digital environment, the constant storage and sharing of present a grave threat to fundamental rights, especially privacy, requiring more specific regulatory

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MENDES. The same key is reinforced when contemporary society is described as a genuine surveillance society, permanently directed at data collection, which explains the need to regulate digital relations with a focus on the protection of personal data, privacy and other fundamental rights affected by this technological medium MENDES. In addition, the processing of personal data has become the main asset of a hyperconnected society, serving as raw material for improving businesses and extracting behavioral patterns aimed at classifying and categorizing people, which is why the Law seeks to keep pace with this development through new legislation and new rights aimed at safeguarding fundamental rights MENDES. Thus, private forms of intensive monitoring, such as those represented by invasive technologies of continuous surveillance, must be read as an exercise of structurally relevant informational power, apt to attract reinforced legal containment. ↩

533. The discourse of security is not enough, by itself, to legally neutralize invasive monitoring techniques, because it may itself function as a legitimizing vector for the expansion of private powers over fundamental spheres of informational life. In the context following the September 11 attack, a gradual movement of mitigation of privacy and of other fundamental guarantees was consolidated in the name of a growing need for transparency, opening space for companies to begin collecting, selecting and classifying personal data for the purpose of controlling individuals MENDES. The same logic appears when the use of platforms and websites is frequently conditioned on the entry of personal data, often without effectively qualified consent of the data subject, such data being subsequently exploited commercially and monetized through advertising and other business models MENDES. Reinforcing this, automated processing not only knows human behavior, but shapes it at scale, so that the goal ceases to be merely automating the flow of information about people and comes to include the automation of people themselves MENDES. Private forms of intensive surveillance, therefore, cannot be treated as a neutral technical requirement of system integrity, because their structure and effects reach privacy, self-determination and freedom to a degree sufficient to justify reinforced legal containment. ↩

534. The technical architecture of persistent monitoring is not reducible to an instrumental requirement of efficiency or security, because it incorporates design choices that reorganize power relations over the user. Algorithms and artificial intelligence technologies cannot be understood as ethically neutral instruments, because they are designed by human beings and form part of a broader process of social and moral restructuring of modernity COSTA. The same key deepens when behavioral control comes to be produced through pattern identification, allowing economic and political lgorithmic governance to favor their own interests through the exercise r over people COSTA by the accumulation and circulatio

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which is why the individual cannot be treated as a mere data provider, and must retain at least some control over the accuracy of the information, over the subjects who handle it and over its forms of use COSTA. It is precisely this key that matters to the Vanguard case: private forms of intensive monitoring are not a neutral by-product of security *software*, but an expression of the technical reorganization of power over the user, legally relevant from the standpoint of privacy, autonomy and the containment of invasive architectures. ↩

535. Persistent and invasive monitoring in a private environment constitutes a legally relevant problem not because of some abstract allergy to technique, but because it bears directly on the private sphere and deepens structural asymmetries of power between the user and the agents who control the digital infrastructure. In networked daily life, electronic traces accumulate that are apt to identify the person, influence their relationships, reconstruct their paths and reveal intimate choices and desires, so that surveillance becomes perpetual while the individual remains inserted in this environment, increasing their vulnerability before companies and the State itself COSTA. The same perception is reinforced when the expansion of surveillance comes accompanied by control mechanisms that are ever less perceptible and more harmful to freedom, which shifts the protection of personal data to the center of the legal problem COSTA. In addition, the private sphere comes to encompass a much broader set of actions, behaviors, opinions, preferences and information over which the individual intends to maintain exclusive control, it being precisely for privacy to protect these life choices against abuses by platforms COSTA. It is precisely this key that matters to the case: persistent and invasive monitoring in a private environment reaches the user's freedom, control over oneself, private sphere and vulnerability to a degree sufficient to require legal containment. ↩

536. Intensive data collection, processing and monitoring do not concern only privacy in the classical sense, as if the legal problem were restricted to the exposure of an isolated intimate space. The broader point lies in protecting the person against forms of control, classification and conditioning that bear on their personal freedom and on their capacity for self-determination. It is in this sense that the protection of personal data is not limited to safeguarding intimacy, but reaches the containment of mechanisms of control and discrimination capable of affecting fundamental dimensions of the individual's freedom DONEDA. Consequently, persistent, deep and opaque forms of monitoring, even when presented as a technical requirement of security or service integrity, cannot be treated as neutral externalities of the platform's functioning. The problem worsens when informational processing ceases merely to record conduct and comes to organize predictions, profiles and conditionings about

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hen the electronic representation of the individual becomes the main f contact for third parties, techniques for predicting behavioral patterns tend to reduce their practical sphe

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made on the basis of presumed behaviors and not only of conduct actually carried out

DONEDA. The protection of personal data, in this key, broadens the traditional focus of privacy to reach the various forms of control made possible by the intensive processing of personal information, which requires attention not only to the ostensive trait of the violation, but to the very structure of informational power that emerges from these practices DONEDA. It is precisely for this reason that invasive monitoring architectures are not exhausted in a technical discussion about *software*: they also constitute a problem of protecting the person against excessive incursions on their informational autonomy. ↩

537. Contemporary informational surveillance does not act only through external observation of the individual, but through the construction of digital representations apt to influence decisions about credit, health, work, movement and access to opportunities. When organized personal data come to function as a genuine operational substitute for the person, the intensive processing of information ceases to be a mere administrative instrument and becomes a potential mechanism for affecting autonomy, individuality and freedom DONEDA. From this perspective, demanding persistent, deep and opaque access to the user's environment does not mean merely gathering data to make a service viable, but establishing an expanded possibility of evaluating, classifying and conditioning their sphere of self-determination. The historical mutation of forms of surveillance itself reinforces this point. Instead of remaining tied only to the physical or psychological observation of the person, surveillance has shifted largely to the plane of personal data, so that a relevant portion of these practices has come to constitute an abusive exercise of power DONEDA. Hence the centrality of protecting a private sphere in which the person can freely develop their personality, without submission to mechanisms of social control capable of annulling individuality, restricting private autonomy and hindering free personal development DONEDA. Consequently, persistent monitoring and excessive data processing are not legally indifferent side effects of the digital service, but controllable forms of action upon the person, which is why their legitimacy depends on reinforced legal containment. ↩

538. As a brief restatement of the foundation already laid in the previous item, the theory of the effect of fundamental rights remains useful as a reminder that the technical intensification of private power over the user's sphere does not make it legally invisible merely because it is exercised outside the State. If fundamental rights radiate effects over the entire legal order, including through their objective effect and the requirement that private law be interpreted in conformity with the Constitution, then private structures of monitoring, control and technical interference also remain subject to this protective filter SARLET. The value of the reference, here, is merely erves to reaffirm that the intensified exercise of private power over rmational flows and convert the agent into the State, bu

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the protective incidence of fundamental rights. Sarlet's lesson recalls that, when the supplier's technical power deeply reaches the consumer's practical sphere, the constitutional order remains in the room. ↩

539. “10.2. Will the Riot Services remain the same? (No. Like Kha’zix, they will evolve.) In an effort to constantly improve the Riot Services, promote the evolution of our games and keep the Riot Services safe, fun and secure, you agree that we may change, modify, update, suspend, “nerf” or restrict your access to any features or parts of the Riot Services, including Virtual Products (for example, we may change some features of Virtual Products for regulatory or legal reasons or to improve the game experience), and we may require you to download and install *software* and updates to any *software* needed to support the Riot Services, at any time, without liability to you, to the extent permitted by law. You also understand and agree that these changes or updates to the Riot Services may change the system specifications needed to play our games and, in that case, you, and not Riot Games, will be responsible for purchasing any additional software or hardware needed to access and play our games. You also understand and agree that we may use background patches to automatically update our games and software with or without prior notice.” RIOT GAMES. ↩

540. Riot's Terms of Service provide the general contractual framework through which the supplier seeks to legitimize, on the one hand, practices of monitoring and running anti-cheat *software* on the user's computer or device and, on the other, broad powers of technical modification of the service. The document expressly provides that *Riot* may actively monitor the use of its services both on its own servers and on the consumer's computer or device, including for the prevention of cheating and *hacking*, as well as require the installation of anti-cheat *software* capable of operating in the background. Along the same expansive logic, the Terms establish that the company may change, update, suspend, restrict features, require the download and installation of *software* and updates needed for the functioning of the service, and also transfer to the user the burden of acquiring additional *software* or *hardware* if the technical specifications change. In parallel, the contractual wording seeks to reduce the supplier's financial exposure by stating that the services are offered as is, without broad warranties, assigning to the user responsibility for use and limiting Riot's liability for losses and damages, including in relation to failures linked to not installing updates or to maintaining minimum system requirements. The relevance of the document lies, therefore, in showing that the platform's very contractual structure seeks to frame in advance the submission of the consumer's equipment to additional layers of surveillance, compulsory technical adaptation and shifting of risk, which speaks directly to the problem of the CDC's control over contractual shielding clauses and excessive transfer of burdens to the user RIOT GAMES. ↩

Skip to content acronyms for *Basic Input/Output System* and *Unified Extensible Firmware* designate the basic are responsible for preparing the machine for the start of the operating system. They

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constitute the deepest layers of control of the computer, onto which the platform may project demands of technical conformity. ↩

542. Taken together, *Riot*'s official communications about third-party applications, *Vanguard* restrictions and incompatible *software* demonstrate that the system is not limited to the internal protection of the game, but projects its effects onto the consumer's broader computing environment, disciplining the admissible forms of interaction between the IOC and the rest of the machine RIOT GAMES +1. In the guidance addressed to developers, the company itself states that applications based on external memory reading will stop working, that there will be no exception lists or special permissions to circumvent the restrictions imposed, and that tool creators themselves must reformulate their products to adapt them to *Vanguard*'s new technical criteria, on pain of becoming unusable RIOT GAMES. On the system restrictions page, *Riot* expressly admits that it may limit access to the games when it identifies machines considered excessively prone to cheating, including because of outdated versions of Windows or specific configurations of the equipment, requiring of the user sensitive changes in *BIOS* or *UEFI*, that is, in the machine's basic startup systems, with the enabling of features such as *TPM 2.0* (a security module used for integrity verification and protected key storage), *Secure Boot* (a mechanism that prevents the startup of untrusted components), *IOMMU* (a technology for isolating devices' access to memory) and memory integrity mechanisms, in addition to updates of the *BIOS* and of the operating system itself RIOT GAMES. The same page recognizes, in an especially eloquent way, that incorrect changes to these settings may cause serious problems on the computer, including startup failures, which shows that the conformity demanded by the platform directly reaches the material sphere of availability of the consumer's equipment RIOT GAMES. Even more concretely, the guidance on incompatible *software* clarifies that *Vanguard* may prevent *VALORANT* from running when it identifies ".sys" files, that is, low-level drivers responsible for communication between the operating system and functions or components of the computer, instructing the user to remove the related *software* or even to manually delete the blocked file; among the examples mentioned by Riot itself are old drivers, outdated monitoring tools and RGB lighting control programs, in addition to new requirements for adjusting the technical environment, such as enabling *Secure Boot* and *TPM 2.0*, disabling *CSM* and removing *proxy* or *VPN* RIOT GAMES. The relevance of the documentary set lies precisely in showing, in the institutional wording of the supplier itself, that *Vanguard* materially reorganizes the functional availability of the user's computer, conditioning the enjoyment of the IOC not only on compliance with the game's internal rules, but on the prior conformity of the machine's technical ecosystem with private standards of integrity, compatibility and security unilaterally defined by Riot RIOT GAMES +1. ↩

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.ve text published on the *Medium* portal, the user Uoiyouiyouiy

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contrasts *vanguard* with *Easy Anti-*

Riot has historically been deeper and more aggressive, above all because of the loading

of the driver at kernel level right at system startup and its permanence as a privileged layer of observation of the machine. The material is useful for the present item because it organizes, comparatively, the perception that not every *anti-cheat* needs to adopt exactly the same technical design or the same degree of intrusion, highlighting that *Easy Anti-Cheat* is implemented more flexibly depending on the game, whereas *Vanguard* would have become the symbol of a more rigid option of technical governance. The text is also particularly relevant in recording that, after the controversies accumulated around deep access, potential failures and systemic costs of this model, the recent trajectory of *Vanguard* itself would indicate a movement toward reducing its permanent residence in the *kernel* and shifting part of the detection layers to *user mode* (that is, to the ordinary space of program execution, less privileged and less risky than the *kernel*) UOIYOUIYOUIY. The *kernel-level always-on* option does not appear as an inevitable technical necessity of every *anti-cheat*, but as a specific architecture of power and control chosen by Riot, open even to later revision in light of its technical, reputational and legal costs. ↩

544. The initial public reception of Vanguard was structured around the perception that Riot had exceeded the ordinary standard of technical intervention tolerated by users by adopting a kernel-level anti-cheat loaded right at system startup and kept running continuously outside the concrete moment of play, which came to be understood as a form of persistent surveillance and structural intrusion into the consumer's computing environment WILDE · WALKER +1. The central point of the controversy was not only the existence of an anti-cheat mechanism with deep access to the operating system, but the fact that this access was combined with an *always-on* logic, heightening fears of exposure of the machine, of continuous monitoring and of interference with non-game uses of the equipment WILDE · WALKER +1. The perception also became publicly consolidated that Vanguard could block drivers and components linked to legitimate programs, such as temperature monitoring, fan control and *overclock* tools, that is, applications ordinarily used to monitor or adjust the computer's performance, cooling and stability, which reinforced the idea that the system went beyond the strict sphere of the match and affected the broader use of the machine WILDE. In the face of this reaction, Riot began to maintain publicly that early loading and kernel access were necessary to prevent cheats activated before the anti-cheat itself, seeking to frame technical invasiveness as a functionally justifiable cost of competitive integrity; at the same time, it sought to reduce the gravity of the objection by stating that the driver had been conceived under a logic of least privilege and did not, by itself, entail broad collection of user data WALKER · HILL. The journalistic set is empirically relevant because it demonstrates that the criticism of Vanguard did not arise as marginal noise or isolated technological paranoia, but as a consistent public controversy around the

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ts of the private governance exercised by the platform over the rdware, shifting the

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cheats to a broader problem of proportionality, control and extension of the supplier's technical power over the user's machine [WILDE · WALKER +1]. ↩

545. In secondary sources of a critical and semi-specialized profile, the requirement of a *kernel*-level *anti-cheat* is described as an especially deep form of access to the user's computer, precisely because the *kernel* corresponds to the central layer of the operating system, responsible for mediating the functioning between *software* and *hardware*, so that programs run at this level operate with privileges higher than those of ordinary applications and with the potential to affect the global functioning of the machine [BRANDON · STDNULLPTR +1]. From this premise, these materials converge in pointing to three main axes of concern. The first is systemic security, since vulnerabilities in kernel drivers may open broad access to the system and enlarge the device's attack surface, that is, the set of points through which flaws may be exploited by malicious third parties [BRANDON · STDNULLPTR]. The second is structural instability, since errors in components with this degree of privilege tend not to be limited to the specific application, and may reach the operating system itself, including with severe freezes or blue screens [STDNULLPTR · MOONBELL]. The third is surveillance and excess of technical power, because *software* of this nature may remain active from the computer's startup and continuously monitor the computing environment, subordinating the enjoyment of the game to a persistent presence of the supplier within the user's material infrastructure [BRANDON · STDNULLPTR +1]. These readings also stress that Vanguard's always-on architecture should not be treated as a neutral engineering detail nor as an inevitable trait of every anti-cheat system, but as a technical choice that intensifies the degree of intrusion, dependence and risk assumed by the consumer in the name of the competitive integrity of the ecosystem controlled by Riot [BRANDON · MOONBELL]. This is a translation into accessible and argumentatively organized language of why a *kernel*-level *anti-cheat* does not remain confined to the immaterial plane of the match, but projects the supplier's power onto the material base of the equipment, reinforcing the thesis of the functional overflow of the IOC onto the consumer's *hardware* and of the private expansion of the capacity for surveillance, control and imposition of risk on the user's machine [BRANDON · STDNULLPTR +1]. ↩

546. In reports hosted on *Microsoft Q&A*, a technically more reliable environment than scattered community forums, episodes of blue screens, severe freezes and systemic instability associated with the technical ecosystem in which Vanguard operates appear repeatedly, which is relevant to demonstrate that the risks radiated by this architecture do not remain on a merely hypothetical plane nor are limited to the game experience in the strict sense [FEAGIN · FONTE +1]. In one of the cases, the user reports a)D and associates the problem with the file vgk.sys, that is, the low-level o Vanguard, on the b page also records a technical answe

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driver error related to the anti-cheat, as well as observations that the crashes occurred not only during the match, but also at the computer's startup, when opening the Riot client and at moments when the game had not even been opened, precisely because Vanguard remained a mandatory startup application [FEAGIN]. In another report, the user describes a sequence of freezes, game failures and blue screens with codes such as *DRIVER_IRQL_NOT_LESS_OR_EQUAL, MEMORY_MANAGEMENT* and *SYSTEM_SERVICE_EXCEPTION*, all indicative of serious instability at the operating system level, later recording that they had enabled, among the services started with Windows, "vgc", linked to Vanguard, and that disabling programs loaded with the system coincided with the end of the blue screens, although the machine's general instability persisted; although the technical answer does not attribute conclusive causality to Vanguard and mentions competing hypotheses, such as graphics driver failures, corruption of system files and a possible RAM defect, the report remains relevant as plausible reinforcement that low-level and automatic-startup *software* may form part of the practical horizon of global degradation of the equipment's stability [FONTE]. In a third case, related precisely to opening *VALORANT* or *League of Legends*, the respondent expressly identifies the file *vgk.sys* as an element associated with the failure and the user themself states that uninstalling and reinstalling the *software* did not eliminate the problem, which reinforces the persistence of the operational harm reported [FONTE]. Taken together, the occurrences are empirically useful not because they prove, in isolation, definitive technical causality in the forensic sense, but because they document, in a technically grounded environment, the recurrence of reports in which the persistent functioning of a deep driver linked to *Vanguard* appears associated with failures that transcend the simple enjoyment of the IOC and reach the availability, stability and ordinary use of the machine as a whole, materializing the argument of systemic risk radiated to the consumer's *hardware* [FEAGIN · FONTE +1]. ↩

547. In community reports published on *Reddit*, *Vanguard* appears not only as a condition on the enjoyment of the game, but as a factor of conflict with ordinary, legitimate and non-ludic uses of the computer, which is empirically useful to illustrate the thesis that the technical governance of the IOC goes beyond the sphere of entertainment and comes to interfere with the broader functional ecosystem of the consumer's machine [SOLUTIONPUB · 2SPIROSPANAGIOTIS +1]. In one of the reports, the problem is described as an incompatibility between *Vanguard* and the file *RTCore64.sys*, that is, a low-level driver linked to legitimate hardware monitoring or management *software*, especially *Armoury Crate*, *MSI Afterburner* and *RivaTuner*, indicating that the *anti-cheat* may clash with tools ordinarily used to monitor the temperature, performance, fans and general functioning of the equipment [SOLUTIONPUB]. In another, the user states that the instability attributed to the file *vgk.sys*, Vanguard's kernel-mode driver, came to [illegible] the game experience, but also university activities, especially the use of [illegible]tes and study, also m[illegible] program for the functioning of dra[illegible]

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anti-cheat system, *FACEIT AC*, which reinforces the perception that *Vanguard*'s interference may radiate effects to academic tasks and everyday uses with no direct relation to the match itself [2SPIROSPANAGIOTIS]. In a third case, it is reported that Vanguard reacted negatively to the use of *Procmon*, a tool of the *Sysinternals* suite designed for detailed monitoring of processes, files, registry and *Windows* activity, closing the *League of Legends* client, generating an *anti-cheat* startup error and imposing a *dodge* penalty, precisely while the user was trying to carry out a legitimate activity of system debugging and diagnosis; in the comments, the explanation emerges that the conflict would result from the fact that *Procmon* installs its own driver to intercept system functions, which would collide with *Vanguard*'s restrictive logic [VAST-AD-2681]. *Dodge penalty* designates the automatic sanction applied to the user who quits a match during the character selection phase (*draft*) to avoid unfavorable competitive scenarios. In the thesis, it exemplifies the exercise of the platform's sanctioning and disciplinary power, which restricts the consumer's freedom of choice and imposes compulsory waiting times to ensure the stability of the game flow. The sources illustrate, in concrete language of experience, that the consumer's computer may cease to function as a neutral support of the game and come to be reorganized according to private criteria of tolerance, incompatibility and priority defined by the platform, with repercussions on *hardware* tools, study routines, technical work activities and other ordinary practices of using the machine [SOLUTIONPUB · 2SPIROSPANAGIOTIS +1]. ↩

548. In secondary sources devoted to systematizing the case and to the public perception of risk, *Vanguard* appears associated not only with the game's competitive integrity, but with the idea of persistent technical presence and structural expansion of the supplier's power over the user's computer [CONSUMER RIGHTS WIKI · BOGGED-]. In an explicitly consumer-law key, the *Consumer Rights Wiki* organizes the case around recurring concerns linked to privacy, control, access and technical impacts, highlighting that *Vanguard* operates at *kernel* level, that is, in the deepest and most privileged layer of the operating system, requires execution from the computer's startup and became mandatory also for *League of Legends*, including for users who already enjoyed the game under less invasive technical conditions; the page further gathers as axes of concern the absence of a real option of refusal, the expansion of control over the machine, the effects on compatibility and the risks linked to the continuous functioning of the software outside the strict moment of play [CONSUMER RIGHTS WIKI]. On a more diffuse but socially revealing plane, the discussion in a privacy forum shows that public concern around *kernel-level anti-cheats* no longer centers only on their performance during the match, but on the possibility that they remain active outside it, functioning as a continuous layer of potential surveillance; in *nguard* is taken as a paradigmatic example of a system loaded from boot with the idea of a p broad power over the system and l

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strategies even emerging, such as separating a work machine from a gaming machine or using distinct environments to reduce exposure BOGGED-. The usefulness of this set lies in showing that the *Vanguard* case came to be understood, at the same time, as a consumer-rights problem and as a problem of persistent surveillance, absence of alternative and subordination of the user's computing environment to private security criteria defined by the platform, which reinforces the thesis that the governance of the IOC overflows the ludic space and projects itself onto the consumer's material sovereignty over their own equipment CONSUMER RIGHTS WIKI · BOGGED-. ↩

549. A term derived from *brick*, used to describe the functional destruction or permanent disabling of a *hardware* component. It refers to the state in which a piece of equipment becomes as inoperative as an inert block due to critical *software* failures or interventions in deep layers of the operating system. In the thesis, the term is integrated in the sense of material destruction, exemplifying the maximum risk associated with the implementation of invasive technical architectures that may compromise the physical integrity and the use value of the consumer's device. ↩

550. In a post on the *subreddit r/riotgames*, the user PhereElen reports that, after reinstalling League of Legends and completing the installation of *Vanguard*, the system required a restart and, from then on, the computer began sending them to the *BIOS* without recognizing the *SSD* as a boot drive, making the machine unusable for ordinary purposes. The report is empirically relevant because it presents, in user language, the most extreme form of reception of the risk radiated to the hardware: not a mere drop in performance or a one-off game failure, but the perception that the technical requirement linked to the IOC would have coincided with a practical loss of availability of the equipment as a whole. In the comments, other participants try to reconstruct hypotheses such as conflicts involving *Secure Boot* (a mechanism that restricts startup to components considered trustworthy), TPM 2.0 (a security module used for integrity verification) and disk formatting or boot settings, which reinforces at least the technical background in which this type of problem is socially understood. Evidently, the post does not prove conclusive technical causality nor does it allow one to state, by itself, that Vanguard "caused" definitive physical or logical damage to the hardware; its value is illustrative. Even so, it is useful to show that the risk of severe crashing or even of "bricking" the computer forms part of the reception of the case and speaks directly to the thesis that the governance of the IOC may radiate effects beyond the game environment, reaching the very material availability of the consumer's machine PHEREELEN. ↩

551. As a counterpoint to the more critical readings of the case, a technical-cultural discourse also circulates according to which public resistance to Vanguard stems, at [illegible] from insufficient understanding of the structural dynamics of fighting [illegible] petitive games, marked by an asymmetric dispute and by a continuous escalation of cheating techniques e[illegible] invasive measures would be presented as a functionally justifiable cost of preserving

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competitive integrity RIGNEY. In a more community-based key, there is also the attempt to separate legally relevant criticisms from exaggeration or disinformation, maintaining that the Vanguard problem should not be reduced to simplistic caricatures about espionage or diffuse panic, but discussed on the basis of its concrete and actual costs; along this line, the very community text that seeks to correct "misinformation" does not eliminate the central objections, recognizing as real problems the possibility of crashing or disabling computers, the restriction on customizations and the loss of compatibility with part of the user base, especially on Linux, while the comments around the debate distinguish between the banalization of kernel access in other anti-cheats and the specific controversy provoked by the fact that Vanguard remains active from system startup SERTENSEAL. Its usefulness lies precisely in avoiding a one-sided reconstruction of the problem, showing that the defense of invasive measures does not present itself only as corporate rhetoric, but also as a rationality shared by part of the public debate, according to which the increase in the supplier's technical power over the user's machine may be seen as a necessary response to sophisticated forms of cheating; at the same time, the very existence of this counterpoint confirms that the dispute does not turn on the absence of costs, but on their justifiability, proportionality and acceptability in light of the competitive integrity sought by the platform RIGNEY · SERTENSEAL. ↩

552. "Art. 8. Products and services placed on the consumer market shall not entail risks to the health or safety of consumers, except those considered normal and foreseeable as a result of their nature and enjoyment [...]." BRASIL. ↩

553. "Art. 10. The supplier may not place on the consumer market a product or service that it knows or should know presents a high degree of harmfulness or dangerousness to health or safety." BRASIL. ↩

554. "Art. 12. The manufacturer, the producer, the builder, domestic or foreign, and the importer are liable, regardless of the existence of fault, for redressing damages caused to consumers by defects arising from design [...] as well as by insufficient or inadequate information about their use and risks." BRASIL. ↩

555. "Art. 6 Personal data processing activities shall observe good faith and the following principles: I - purpose: carrying out the processing for legitimate, specific, explicit purposes informed to the data subject, without the possibility of further processing in a manner incompatible with those purposes;" BRASIL. ↩

556. "Art. 6 [...] III - necessity: limitation of the processing to the minimum necessary for the achievement of its purposes, covering data that are pertinent, proportional and not excessive in relation to the purposes of the data processing;" BRASIL. ↩

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· transparency: guarantee, to data subjects, of clear, precise and easily rmation about the c

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processing agents, observing comm

558. “Art. 7 The processing of personal data may only be carried out in the following cases:” BRASIL. ↩

559. “Art. 8 The consent provided for in item I of art. 7 of this Law shall be given in writing or by other means that demonstrate the data subject's expression of will.” BRASIL. ↩

560. “Art. 46. Processing agents must adopt security, technical and administrative measures apt to protect personal data from unauthorized access and from accidental or unlawful situations of destruction, loss, alteration, communication or any form of inadequate or unlawful processing.” BRASIL. ↩

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PROTECTED LEGAL INTERESTS IN THIS SECTION

Personal integrity

The continued enjoyment of the Immaterial Object of Consumption cannot be adequately grasped when reduced to the language of immediate utility or of the price paid. In platform-governed ecosystems, what the consumer maintains over time is not only functional access to a digital performance, but a position of enjoyment that incorporates history, memory, recognition, identity projection and practical continuity of presence in the environment. The corresponding legal protection, therefore, cannot be blind to the circumstance that certain losses, erasures, sanctions and unilateral reconfigurations reach not only the economic value of the acquisition, but also dimensions of personal integrity and symbolic identity that become objectified in the very course of the digital experience. The rereading of private law in light of human dignity long ago broke with the narrow view that confined the legal problem to the patrimonial value of the good affected, requiring attention to the existential projections of the person in the social world SCHREIBER[561].

This does not mean dissolving the analysis into academic sentimentalism, an elegant shortcut for thinking ill of the one whose conduct is now being questioned. The question at hand is more sober. In platform environments, the consumer's personality is cut up into data, profiles, histories, metrics, reputations and trails of participation that condition concrete possibilities of permanence, recognition and self-determination. The digital experience may reach legally relevant dimensions of

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core of the person in an informational environment . That is why the

administration of these elements cannot be treated as a simple “data issue” set apart from the consumer relation. It forms part of the very regime of enjoyment and interferes directly with the consumer's informational and biographical integrity.

This key makes it possible to formulate, in more rigorous terms, the idea of personal integrity in the consumption of IOCs. It is not exhausted in physical or psychological integrity in the classical sense, but reaches informational and biographical integrity, because the subject also comes to project themselves socially through their digital records, their accumulated trajectory and their recognizable position in the ecosystem. Data, records, profiles and histories are not only economically exploitable informational collections; they function as a direct representation of personality and, to a certain extent, as its extension in the digital environment DONEDA[563]. In contemporary terms, this means recognizing that the so-called digital dossiers constitute a new type of identity and that personal data are connected to the free exercise and development of the human personality LAPRANO[564]. Consequently, erasures, blocks, resets and suppressions of trajectory cannot automatically be reduced to mere patrimonial loss.

This perception has an older dogmatic basis than is sometimes admitted. The legal protection of the person is not exhausted in protection against physical aggression or economic loss, reaching also intellectual, emotional and biographical life. The old formulation of Warren and Brandeis is useful here precisely because it shows that the law, over time, had to recognize that thoughts, emotions, sensations and other immaterial forms of existence also call for legal protection, not on the exclusive basis of property, but on the broader idea of inviolate personality BRANDEIS[565]. This historical opening matters because it legitimizes the passage from the patrimonial to the existential without turning theoretical reflection into delirium. Thus, what is asserted is only that the integrity of the consumer may include the preservation of minimum conditions of biographical continuity and stability of symbolic insertion, and not only the refund of a frustrated purchase.

In continuous services, this takes on very concrete contours. The consumer's

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ere passive “record” kept by the platform, nor an informational deposit without a subject. It is a biogra

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performance, investment of time, acquisition, cooperation, accumulation of signs of belonging and permanence in the ecosystem. Even though this construction takes place under the mediation of the *Lex Plataformae*, it remains attributable to the consumer as an expression of biographical continuity within the supply regime. For this reason, certain IOCs operate as trajectory assets and not merely as one-off utilities. What accumulates is a bundle of memory, identity and recognition, so that its unilateral suppression or reclassification cannot be treated as a simple irrelevant technical variation. Data protection, moreover, becomes insufficient when read in a purely patrimonial frame, because this subordinates the person to the market value of their own information and lowers the priority of the development of personality DONEDA[566].

At this point, the value of the IOC must also be reconstructed as symbolic architecture. Certain objects and trajectory marks are worth less for what they "do" in utilitarian terms and more for what they mean in the ecosystem: status, rarity, belonging, memory of participation, distinction and social recognition. What is consumed, then, is not only functional performance, but also symbolic position. The civil protection of personality reaches precisely the way in which the person is projected, recognized and situated in the social milieu, which is why reputation, honor and identity receive protection not because they are simple intimate feelings, but because they make up objective relational dimensions of the person's life SCHREIBER[567]. In digital ecosystems, the loss of an account, of history, of accumulated signs and of continuity of trajectory may, therefore, transcend economic utility and touch legally cognizable reputational and identity dimensions.

The formulation is reinforced when one observes that persistent records and social classifications can compress the singularity of the person and affect the way they are apprehended and positioned in the social world. The protection of identity does not protect only formal signs, but the faithful presentation of the person in their singularity, preventing compressions, falsifications and fixations produced by third parties SCHREIBER[568]. On platforms, this means that the history of enjoyment, the

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nd the accumulated marks of participation are not merely

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recognized within the environment and, in certain cases, outside it. The IOC comes to operate as a biographical and identity asset.

Here too the informational background matters. Data, traces and monitoring concern the personal integrity of the user in a digital environment because they take part in the way their social and individual identity is projected, organized and exposed. Data protection must consider the physical and electronic body of the subject, and not only the abstract circulation of information COSTA[569]. For this reason digital traces cannot be reduced to economically exploitable assets, since they interfere with social classification, autonomy and self-determination, and are more adequately understood as a dimension of personality itself COSTA[570]. The digital environment, in short, is not only a market; it is also a space of identity projection and of existential impact.

On the consumer-law plane, the argument must keep its feet on the ground. Contractual and consumer-law protection is not exhausted in the control of price or in the correction of narrow patrimonial imbalances. In relationships marked by vulnerability, dependence and continued trust, the rebalancing that can be required must extend to loyal and dignified treatment and protect legitimate expectations that go beyond the mere economic account MARQUES[571]. This is the limit that prevents the existential aspect from drifting away from consumer law. The CDC already offers sufficient grammar to recognize that the injury may reach quality of life, trust and the practical integrity of the consumption experience, and not only the consumer's pocket in the narrow sense.

This broadening of protection has direct repercussions on legal remedies. When the consumer relationship frustrates legitimate expectations as to the adequacy, utility, safety or quality of the performance, the consumer-law system is not automatically oriented toward the residual monetization of the loss. It seeks, in the first place, to materially restore the consumer's position, satisfy their interests and avoid greater harm, including in a non-patrimonial dimension MARQUES[572]. Hence the importance of Article 35 of the CDC[573], which allows one to demand forced performance of the

ı equivalent performance or rescind the contract with losses and

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practical result equivalent to performance. In long-lasting IOCs, these provisions

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support the primacy of functional restoration, and not the automatic conversion of every loss into money. First one tries to restore the position of enjoyment; only afterwards is an alternative for reparation considered.

This point is crucial in view of the platform's own contractual frame. Clause 2.3 of Riot's Terms of Service provides that, once the account is terminated, the user loses access to the account, to the associated data, to the in-game currency and to virtual content, without refund in cases of just cause, with the further possibility of cancellation of other accounts and of access to other services[575]. The clause is valuable because it lays the problem bare: what is lost is not only an isolated item, but the overall position of enjoyment, the history, the inventory, the trajectory and the practical continuity of insertion in the ecosystem. Exclusivity is exercised, here, as a power of complete erasure of the consumed experience, which prevents treating sanction, exclusion or rollback as mere internal adjustments without existential legal relevance.

It is precisely for this reason that the subsection works with the idea of a digital existential minimum. The expression does not serve to rhetorically inflate any online discomfort into the category of constitutional drama. Its function is more restrained: to designate a core of stability and continuity that can be required in long-lasting IOCs with a high identity load, such as account, history, progression, reputation and inventory, so as to prevent unilateral erasures and reconfigurations from being naturalized as “mere internal policy” immune to control. In qualified cases, the loss of an account, history or trajectory may constitute moral damages for injury to personality, especially when it affects in an objectifiable way biographical continuity, institutionalized belonging in the ecosystem or relevant anchors of reputation and memory, and not mere subjective annoyance. Here, moreover, the methodological parallel with aesthetic damage is useful: Brazilian law already knows movements of categorial refinement to prevent injuries to the person from being swallowed by overly generic headings, which legitimizes, by methodological analogy, greater analytical density for injuries to the digital trajectory and to biographical continuity

The institutional consequence of this reading falls on the platform's own governance. If it administers access, permanence, visibility, sanctions and paths of participation, then it also administers inclusion and exclusion in the digital social space. From this follows the need for minimum parameters of private due process: verifiable reasoning, decisional coherence, procedural predictability and intelligible avenues of challenge. This requirement does not derive from the company's benevolence, but from the public relevance of the effects produced by its governance on the memory, reputation, continuity of trajectory and symbolic position of the consumer. The administration of someone else's digital biography cannot operate as a sovereign black box.

At this point, the LGPD provides important reinforcements. The use of data linked to the consumer's trajectory, history and digital biography must remain compatible with the stated purposes and with the context of the relationship[577], must be intelligible to the data subject[578], and does not eliminate the rights to confirmation of existence, access, correction, deletion or portability of processed data[579]. It also presupposes secure management of relevant records and trails[580]. These provisions do not turn the consumer into the absolute owner of everything the platform records, but they reinforce that their digital biography is not raw mass entirely unavailable to the data subject and that the administration of the memory of enjoyment must remain controllable, intelligible and minimally accessible.

There is also a systemic parallel especially useful for preventing simplistic objections. The Copyright Law recognizes, in Article 24, item VII, the author's moral right to access a single and rare copy of the work that is legitimately in the possession of another in order to preserve its memory[581]. The point is not to turn the consumer into an author, nor to transplant the regime of authorial moral rights into the consumer-law field. The point is narrower and more elegant: the Brazilian legal order already admits, in another domain, that the preservation of memory linked to an immaterial object under the control of a third party may justify minimum positive duties of access and of enabling a record. This suffices to dismiss the superficial to which the absence of full ownership would, by itself, eliminate any legal relevance of interests of mem

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This parallel even helps to prepare the fit with the discussion of Intellectual Property developed further on. If the platform depends on the continuous participation of the consumer to produce economic value and vitality of the ecosystem, then there is a core of trajectory and memory produced in the relationship that cannot be treated as disposable residue of supply. The consequence is not to make the consumer an author, but to recognize that erasures, resets, inventory exclusions, suppressions of history and sanctions that eliminate the biography built in the environment require verifiable reasoning, minimum preservation of records and, where appropriate, restoration through reinstatement of the position of enjoyment. What is lost, in these cases, is not only access, but biographical continuity objectified within the governed regime itself.

With this, the subsection fixes the reference legal interests that make the IOC legally visible beyond immediate exchange value. The protected core of enjoyment comes to include personal integrity and symbolic identity, objectified in history, reputation, memory, belonging and continuity of trajectory. The signs of relevant degradation also become clearer: reputational exclusion, loss of functional equivalence, access restrictions, erasure of history and unilateral mutability of structuring elements of the consumer's position. Protection ceases to operate under an institutional blindness that converts every conflict into price and residual compensation and comes to admit, on the basis of the system itself, remedies of functional restoration, preservation of trails, access to records, procedural correction and restoration of the position of enjoyment whenever this is possible and legally due. This is the basis that will allow, further on, the formulation of open auditability, the distribution of burdens and finer standards of restoration in the regime of the IOC.

NOTES

561. The dispute over losses, blocks or suppressions in digital environments need not remain imprisoned in the language of patrimonial loss or of simple non-performance, because contemporary civil protection already recognizes that certain injuries reach the person in an existentially relevant dimension, and not only the things he rereading of private law in light of human dignity breaks precisely with patrimonialist pers economic value of the affected goo

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projections of the person in the social world SCHREIBER. When records, signs, usage trajectories, digital historicity and symbolic belongings come to structure objectifiable forms of personal continuity, the corresponding impairment no longer fits comfortably within the narrow grammar of the lost price. This key becomes even sharper when the injury is understood not from the suffering subjectively experienced, but from the attribute of personality objectively affected. The advantage of this formulation lies precisely in preventing the protection of the person from depending on sentimental proof or on dramatization of the harm, concentrating instead on the legally protected projection that was violated SCHREIBER. This is precisely what matters here: in continuous digital ecosystems, there may be a legally cognizable impairment of dimensions of personality mediated by records, positions of enjoyment, objectified memory and signs of insertion in the environment. ↩

562. The digital experience may reach legally relevant dimensions of personal integrity that go beyond strict patrimonial interests, because data protection, informational self-determination and the free development of personality make up the existential core of the person in an informational environment. Along these lines, the specific protection of personal data appears as a means of guaranteeing fundamental rights already enshrined, such as liberty and privacy, as well as others developed more recently, among them informational self-determination and the free development of personality LAPRANO. This articulation deepens when it is affirmed that informational self-determination is directed precisely at the free development of the personality of the data subject, which is why any interpretation that distorts it, for example through unrestricted consent harmful to that development, must be considered unacceptable LAPRANO. In reinforcement, informational self-determination and the centrality of the data subject appear as means of enhancing the free determination and free development of the personality of the natural person, giving him instruments to control the processing of his data, including as to confirmation of the existence of processing, correction, modification and deletion LAPRANO. The integrity of the person, in digital environments, may thus involve not only patrimonial goods, but also informational integrity, biographical continuity and minimum conditions of personal self-determination. ↩

563. Digital data, records, profiles and histories do not constitute only economically exploitable informational collections. By reason of the privileged bond between personal information and the subject to whom it refers, these elements function as a direct representation of his personality and, to that extent, as a true extension of it DONEDA. When the digital environment operates on histories, traces, profiles and personal records, it is not merely manipulating neutral content or abstract utilities, but gally qualified projections of the person himself. This impact intensifies ile built from the dat[illegible] before third parties. In these cases,

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true virtual persona, merging, in certain circumstances, with the very person to whom it refers DONEDA. The reference to the electronic body, to the *digital persona* or to the avatar expresses the mutation according to which the person comes to project himself in the digital environment through data, histories and records whose manipulation, blocking, distortion or suppression affects not only economic interests, but also identity, biographical continuity and personal position in the ecosystem DONEDA. For this reason, in long-lasting immaterial objects of consumption, erasures, sanctions and losses of trajectory cannot automatically be reduced to mere patrimonial loss. ↩

564. The digital environment cannot be read only as a space for the economic circulation of assets, contracts and data, because injuries that fall directly on the person in his existential dimension are also projected in it. The repersonalization of private law, in this context, places back at the center the tension between the demands of an impersonal, economically oriented market and the need to protect the fundamental rights of the natural person subjected to external influences LAPRANO. This reading gains density when it is recognized that data processing activities have a growing interference in people's lives and that the so-called digital dossiers constitute a “new type of identity”, which is why the correction of this information becomes essential for the identity of the data subject to be projected faithfully, dogmatically justifying the inclusion of personal data in the category of personality rights LAPRANO. In reinforcement, personal data are qualified as a “true extension of the free exercise and development of the human personality”, so that informational self-determination is not justified by mere ownership of data, but by its indissoluble relationship with the personality of the data subject LAPRANO. Thus, in governed digital environments, the injury may fall not only on patrimony or immediate economic utility, but on informational integrity, identity projection, biographical continuity and the development of personality. ↩

565. Here, Samuel Warren and Louis Brandeis offer a classical foundation that is particularly useful for showing that the legal protection of the person is not exhausted by protection against physical aggression or patrimonial loss. In reconstructing the historical evolution of rights, the authors show that the law progressively came to recognize the spiritual, intellectual and sensitive dimension of human existence, extending the reach of legal protection beyond corporeal things. As they state, there was recognition of man's “spiritual nature”, of his “feelings and his intellect”, so that the right to life itself came to mean also “the right to enjoy life”, while property expanded to encompass “intangible, as well as tangible” forms of possession BRANDEIS. This movement appears even more explicitly when they argue that the intensification of intellectual and emotional life made it evident that only part of the and profit of life lies in physical things, which is why “thoughts, sensations demande examining the protection of perso

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corresponding protective principle rests not, properly speaking, on private property, but on an “inviolate personality” BRANDEIS. The integrity of the consumer, in continuous digital ecosystems, may comprise the preservation of minimum conditions of biographical continuity, built trajectory, symbolic insertion and stability of enjoyment, without thereby dissolving the analysis into psychologism or depriving the CDC of its protective centrality. ↩

566. The protection of personal data does not fit adequately within a purely patrimonial frame. Treating personal information as a simple economic good or as a circulable asset subject to a proprietary logic impoverishes protection precisely because it subordinates the person to the market value of his own data, when what is at stake is a much broader existential dimension DONEDA. The insufficiency of this reading becomes clear once one observes that, in many contemporary social relationships, the individual is recognized only indirectly, through the representation of his personality that his personal data provide DONEDA. The legal problem, therefore, is not only the economic use of information, but the projection of the person's identity through it. For this reason, a predominantly proprietary protection of personal data comes into tension with its qualification as a fundamental right, since it subjects the debate to paradigms that weaken the priority of the development of personality and reduce the person to the status of an object of informational circulation DONEDA. As a consequence, histories, profiles, records and other digital traces must be protected not only because they have economic value or business utility, but because they make up the identity, biographical continuity and informational integrity of the subject in a digital environment. ↩

567. The civil protection of personality reaches not only subjective interiorities, but also the way in which the person is projected, recognized and situated in the social milieu. Reputation and honor receive their own legal protection: not because they represent simple intimate feelings, but because they make up objective relational dimensions of the person's life, socially relevant and normatively protected SCHREIBER. In digital environments, the loss of an account, of history, of accumulated signs, of relational position or of continuity of trajectory may, in certain cases, transcend the language of economic utility and touch legally cognizable dimensions of reputation and identity. This conclusion is reinforced when personal identity is treated not as merely formal data, but as protection of the right to be oneself in the social space, that is, of respect for the traits, experiences, convictions and marks that set the person apart before others SCHREIBER. The point carries particular weight here because it allows us to understand that certain digitally mediated elements cease to be perceived only as isolated assets or functionalities and come to make up forms of the person's social

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informational standardization tends to reduce his singularity to profiles, classifications and framings built by third parties. When data and records come to be used to fix representations of the individual, there is a civilly relevant risk of compression of his singularity and of impairment of the way he will be apprehended, treated and positioned in the social world SCHREIBER. The legal problem of digital records is not limited to their economic circulation, since it also involves the protection of the person against fixations, distortions or losses that affect his social presentation and his biographical continuity. This perception fits well with the dynamic dimension of personal identity. The protection of identity does not protect only formal signs, but the faithful presentation of the person in his singularity, preventing falsifications or undue compressions of the elements by which he is individualized in the social whole SCHREIBER. ↩

569. Data, traces and monitoring do not concern only the abstract circulation of information on the network, but the very personal integrity of the user in a digital environment. Data protection must consider the social and individual identity of the user, as well as his "physical and electronic body", precisely so that adequate means of protection can be built COSTA. This formulation shifts the debate from the purely technical-informational plane to the plane of the person, showing that processed data and captured traces do not hover outside the subject, but take part in the way his identity is projected, organized and exposed in the digital environment. The same reading is reinforced when data protection appears as an expression of the very liberty and dignity of the person, so that data cannot serve the objectification of the individual nor his transformation into a target of constant surveillance COSTA. In addition, the creation of mechanisms of knowledge and control over personal data constitutes a direct expression of the protection of personality rights, since, when the object of the data is a subject of rights, the information must be understood as an attribute of personality COSTA. ↩

570. Traces, monitoring and data processing legally affect the integrity of the person because they interfere with his social classification, his autonomy and his power of self-determination in a digital environment. The protection of personal data may be understood as a new personality right, and not as a simple offshoot of a supposed patrimonial dominion of the individual over his data, which is why it proves inadequate to treat the person as a mere owner of information about himself COSTA. The consequence is direct: digital traces cannot be reduced to economically exploitable informational assets, since they bear on existential projections of the person himself. This reading is reinforced when the recognition of the protection of personal data as an autonomous and fundamental right appears linked precisely to the mated processing imposes on personality rights, being grounded in uality, liberty, the dignity of the human person and privacy COSTA. ↩

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571. Consumer-law protection is not exhausted by the control of price nor by the restoration of strict patrimonial imbalances. In relationships marked by vulnerability, dependence and continued trust, the legally required rebalancing cannot be limited to the economic account, because contractual injury may also reach legitimate expectations, dignified treatment and the practical integrity of the consumption experience. It is in this direction that Marques warns that "focusing only on the economic imbalance of the consumer contract would be a limited view of the notion of contractual equity", since what is sought is "the total rebalancing of the relationship, including its level of loyal and dignified treatment", the only way to maintain and protect the legitimate expectations of the parties MARQUES. This broadening is decisive if the existential item is to remain anchored in the dogmatic ground of consumer law. In the same vein, the author observes that the principle of trust leads the CDC system to protect the adequacy, quality and reasonable safety of products and services, its ultimate purpose being "to improve the quality of life of Brazilians" MARQUES. Consumer protection thus also reaches injuries that go beyond narrow economic loss. ↩

572. The protection of trust and the application of objective good faith also bear on the design of the available legal remedies themselves, ruling out the idea that every relevant contractual injury must be converted solely into patrimonial compensation. When the consumer relationship frustrates legitimate expectations as to the adequacy, utility, safety or quality of the performance, the consumer-law system seeks, first and foremost, to restore the consumer's position materially. Marques, in dealing with the legal guarantee of adequacy, stresses that it aims to "satisfy the interests" of the consumer, whether by "perfect performance of the obligation", by "rebalancing between the performances rendered", or by avoiding greater harm and compensating that already suffered, grounding this guarantee in the trust legitimately aroused and in the mandatory good faith of the supplier in the market MARQUES. The author reinforces this reading by arguing that, without an effective legal reaction to the frustration of trust and to the breach of ancillary duties, such commands would become "words in the wind", which is why the law of damages in the CDC fulfills not only a compensatory function, but also a preventive and satisfactory one, reaching even non-patrimonial damages and negative interests MARQUES. This supports the opening of the system to remedies of restoration that are functionally richer than the mere monetization of the loss. ↩

573. “Art. 35. If the supplier of products or services refuses to comply with the offer, presentation or advertising, the consumer may, alternatively and at his free choice: I - demand forced performance of the obligation [...]; II - accept another equivalent ovision of service; III - rescind the contract [...], and to losses and

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574. “Art. 84. In an action whose object is the performance of an obligation to do or not to do, the judge shall grant specific relief of the obligation or order measures that ensure the practical result equivalent to that of performance.” BRASIL. ↩

575. “2.3. What happens if Riot terminates my account? (You stop playing and will lose access to any purchases, including Game Currency and Virtual Products.) If your account is terminated you will no longer have access to your account, including the associated data or the Virtual Content (including Game Currency) (although this does not limit or affect any right you may have under data protection or consumer protection laws). When we terminate your account for just cause (for example, if you violated these Terms): you will not be entitled to any refund and we will have no liability to you; and we also reserve the right to cancel any other accounts you may have created, as well as your access to any other Riot Services (also without any reimbursement or liability to you). You understand and agree that by using the Riot Services there will be a risk of your account being terminated or suspended in accordance with these Terms. Whenever you use the Riot Services, keep this risk in mind and always behave appropriately.” RIOT GAMES. ↩

576. By way of complementary methodological deepening, it is worth noting that Brazilian law has already seen moves toward categorial refinement aimed at preventing injuries to the person from being absorbed, without analytical loss, by excessively broad and undifferentiated headings. Not every non-patrimonial injury can be adequately apprehended through the simple opposition between patrimonial damage and generic moral damages; there are cases in which the specificity of the affected legal interest requires denser conceptual treatment, precisely so that the protection of the person does not become too abstract LOPEZ. It is in this strict sense that the methodological parallel proves useful here. The individualization of aesthetic damage shows that civil liability can develop finer categories when it perceives that a certain dimension of personal injury has its own structure LOPEZ. The point of contact lies not in the material content of aesthetic damage, but in the dogmatic legitimacy of the operation of specification when the generality of the category no longer offers enough density to apprehend a given form of offense to the person. This parallel helps support the claim that injuries bearing on digital trajectory, history of enjoyment and biographical continuity may require denser analytical treatment than that offered by the undifferentiated heading of mere moral damages. ↩

577. “Art. 6. Personal data processing activities shall observe good faith and the following principles: [...] II - adequacy: compatibility of the processing with the purposes informed to the data subject, in accordance with the context of the processing;” BRASIL. ↩

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579. “Art. 18. The personal data subject has the right to obtain from the controller, in relation to the data of the subject processed by it, at any time and upon request: [I - confirmation of existence; II - access; III - correction; IV - anonymization/blocking/deletion; V - portability...]” BRASIL. ↩

580. “Art. 46. Processing agents must adopt security, technical and administrative measures capable of protecting personal data from unauthorized access [...].” BRASIL. ↩

581. “Art. 24. The moral rights of the author are: [...] VII - that of having access to a single and rare copy of the work, when it is legitimately in the possession of another, for the purpose of, by means of a photographic or similar, or audiovisual process, preserving its memory, in such a way as to cause the least possible inconvenience to its holder [...].” BRASIL. ↩

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The sectoral regulation of electronic games matters, above all, because it dismantles two poor simplifications: the notion that the sector is legally invisible and the notion that naming it in legislation would suffice to resolve the central conflicts of its governance. The legal framework for electronic games expressly recognizes the existence of an industry of its own[582], regulates its central economic chain — manufacture, import, commercialization, development and commercial use[583] — and provides a normative definition of what counts as an electronic game, including interactive audiovisual works developed as computer programs, devices and accessories, and software consumed by download or streaming[584]. The sector, therefore, can no longer be treated as a legally minor pastime or as a regulatory gray zone. The legislator named it, framed it and explicitly placed it within the horizon of legitimate economic activity, innovation and culture[585].

This recognition, however, is framed in terms of regulated economic freedom. The law affirms the freedom of manufacture, import, commercialization, development and commercial use of electronic games, but does so with express reference to Article 173 of the Constitution and to the legislation in force[586]. This is relevant because the framework does not enshrine a sectoral free-for-all disguised as friendly modernity. On the contrary, it already reveals that the sector is conceived within a frame of legally conditioned economic freedom, including a specific public concern with age rating and with the risks related to the use of microtransaction mechanisms[587]. In other words, regulation does not operate as an external brake on the sector, but as a recognition that its economic activity mobilizes, at the same time, money, structural ısitive publics whose protection is part of the constitutional

The same logic appears in the substantive guidelines of the law itself. The framework organizes the sector institutionally through principles and guidelines[588] and, in the core most relevant to this thesis, affirms that electronic games must be conceived in light of respect for fundamental rights and democratic values, consumer protection, the integral protection of children and adolescents, and the preservation of privacy, the protection of personal data and informational self-determination[589]. The perspective is decisive because it shows that the legal order already treats the sector as an economic and cultural activity crossed by multisectoral public concerns, and not as a playful enclave left solely to private initiative. The dogmatic relevance of this lies in preventing any attempt at legal infantilization of the problem, as if electronic games still belonged to the regulatory limbo of "it's just entertainment".

The Digital Statute of Children and Adolescents reinforces this diagnosis by making explicit, on another normative front, that the digital environment is not neutral and that suppliers are subject to positive duties of prevention, protection, information and safety[590]. The material content of the best interest of the child and adolescent, in this context, already encompasses privacy, safety, mental and physical health, access to information, freedom of participation in society and well-being[591]. The norm goes further than programmatic discourse by prohibiting *loot boxes* in games aimed at children and adolescents and banning profiling techniques for targeting commercial advertising[592]. With this, the legislator recognizes, head-on, that practices typical of the economic organization of electronic games may generate specific risks and warrant their own regulation. Sectoral normativity, therefore, already sees the games market as a site of sensitive monetization, behavioral formation and informational vulnerability.

The entry into force of the new protective regime made this perception even more concrete by directly reaching one of the most characteristic mechanisms of the contemporary monetization of electronic games. By prohibiting *loot boxes* in games aimed at children and adolescents, as well as in those likely to be accessed by this audience, the Digital Statute of Children and Adolescents not only abstractly

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omic and behavioral sensitivity of this market, but began to interfere in the very way products were

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as fully compatible with the presence of minors in the digital ecosystem BRASIL. Bringing its entry into force forward to March 2026 reinforces this point because it shows that the legislator did not treat the matter as a merely symbolic or deferrable agenda item, but as a concrete regulatory problem, capable of requiring immediate adaptation by suppliers that structure their activity on mechanisms of microtransaction and recurrent capture of attention and spending BRASIL.

The institutional reaction of *Riot Games* to the new scenario shows, with particular sharpness, both the strength and the limit of sectoral regulation. Instead of immediately reorganizing the economic architecture of *League of Legends* to keep its offer compatible with the continued presence of underage users, the company chose to shift the response to the plane of access, announcing that minors could not play titles rated 18+ (for those over eighteen) in Brazil, not even with the consent of their guardians, and tying any restoration of enjoyment to the user's coming of age or to a future re-rating of the game[593] RIOT GAMES. At the same time, the company itself clarified that any affected accounts would remain preserved, with items, cosmetics and progress maintained, although frozen until access was later released RIOT GAMES. The fact is dogmatically telling because it reveals, in an almost confessional way, that the value of the consumer relationship is not exhausted by the isolated act of acquisition, nor can it be reduced to abstract ownership of digital records. What is in dispute is the continued enjoyment of a position built over time, whose utility depends on the user's remaining in the governed environment.

The episode offers an especially valuable demonstration, since sectoral regulation proves capable of recognizing specific risks and of pressuring the market, but the private response is still organized according to the logic proper to the *Lex Plataformae*, that is, through the unilateral reengineering of the conditions of access and permanence, and not through a spontaneous revision of the economic rationality that produced the problem. The result is revealing. Faced with the application of a public norm aimed at protecting children and adolescents, the platform preserves the monetization model and transfers to the vulnerable user the

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ecosystem. The methodological impor

clarity, that the sectoral framing of the games market is indispensable, but not sufficient. It sees the risk, names the sector and produces relevant commands; it does not, by itself, solve the dogmatic problem of continuous enjoyment subjected to opaque, mutable and unilaterally administered private governance.

Nor should it be perceived as a kind of loose regulation, devoid of sanction. The statute imposes concrete duties to remove content that violates rights and requires a legal representative in the country with powers to receive service of process[594], while the regulating decree designates an administrative authority, provides for blocking orders and even activates the technical infrastructural layer of the digital environment through coordination with Anatel and CGI.br[595]. This is important because it dismantles the presentation of the platform as a self-sufficient sovereign space. The digital environment is already an object of public institutionality, with authorities, orders, enforcement mechanisms and mandatory points of contact. Pure self-regulation, in this scenario, poorly describes the state of the law in force.

At the same time, the normative recognition of the sector also has repercussions on the structural regime of industrial property. The amendment made by the legal framework in inserting the grant of registration for electronic games into the Industrial Property Law[596] shows that games came to be regarded, more robustly, as an object of legal protection within the innovation economy. This matters for the thesis because it confirms that the sector was assimilated by the legal order not only as a cultural and market activity, but also as a reality capable of radiating consequences into the regimes of exclusivity. The consequence, however, is not to turn intellectual property into the total language of the problem. On the contrary, it makes it all the more necessary to contain the proprietarist temptation to capture entirely conflicts that, on the plane of enjoyment, remain conflicts of governed consumption.

This whole sectoral repertoire is relevant for describing the sector, recognizing its institutional categories, identifying typical forms of monetization and making explicit specific public concerns. But it does not, by itself, deliver the dogmatic

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·al problem of the IOC. What is at stake is not only the institutional recognition of the industr

are innovation, culture or regulated economic activity. The decisive point lies in the structure of private power that shapes the continuous enjoyment of the consumed immaterial object. And this structure is not resolved by the mere fact that the sector has its own legal framework.

The central conflict remains elsewhere: in continued performance, in architectural opacity, in unilateral control of access, in relevant changes of enjoyment, in the modulation of visibility, in the administration of inventories, histories and reputations, in evidentiary asymmetry and in the private distribution of the conditions of permanence in the ecosystem. None of this disappears because the sector received a name and principles in law. Sectoral framing helps us see the market; it is not enough to control governance. In IOCs, immaterial product and governed environment are dogmatically inseparable, and for this reason the application of norms cannot be exhausted by the economic-cultural framing of the sector. It must reach the administered enjoyment and the *Lex Plataformae* that organizes it.

This insufficiency does not disqualify sectoral regulation. It only repositions its reach. The games framework, the protective digital statute and the complementary normativity function as an important repertoire of recognition, public signaling of risks and institutional delimitation of the sector. They show what the State has already perceived: that electronic games mobilize innovation, culture, data, consumption, childhood, advertising, microtransactions and economic power. But the dogmatic problem of the IOC requires an additional step. It requires articulating this repertoire with the constitutional economic order, with the CDC and, in tension, with intellectual property, to face what sectoral regulation does not solve alone: continuous enjoyment as a consumer relationship subjected to opaque and mutable private governance.

The existence of sectoral regulation does not replace the consumer-law infrastructure, nor does it authorize conflicts of enjoyment to be fully absorbed by the grammar of the sector or by the language of innovation. The sector may be ed and legally named, and still the decisive question may remain

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open: what limits apply when the platform unilaterally reconfigures access, use, visibility, continuity and functional equivalence of the consumed immaterial object?

It is this question that the sectoral repertoire, on its own, does not answer. And it is precisely for this reason that the protection of the IOC must be built not on a fetish for the "games framework", but on the articulation between sectoral regulation, consumer protection, the constitutional economic order and limits on the private exercise of platform powers.

NOTES

582. "Art. 1. This Law creates the legal framework for the electronic games industry." BRASIL. ↩

583. "Art. 2. The manufacture, import, commercialization, development and commercial use of electronic games are regulated by this Law." BRASIL. ↩

584. "Art. 5. For the purposes of this Law, an electronic game is considered to be: I – the interactive audiovisual work developed as a computer program, as defined in Law No. 9,609, of February 19, 1998, in which the images are altered in real time based on the player's actions and interactions with the interface; II – the central device and accessories, for private or commercial use, especially dedicated to running electronic games; III – software for use as a mobile application and/or internet page, video game console games and games in virtual reality, augmented reality, mixed reality and extended reality, consumed by download or by streaming. Sole paragraph. Commercial promotions or lottery modalities regulated by Laws No. 13,756, of December 12, 2018, and 14,790, of December 29, 2023, or any type of game that offers some type of bet, with prizes in real or virtual assets, or that involves a random or prognostic result, are not considered electronic games, and the companies and professionals involved in the production or distribution of these activities are prohibited from benefiting from any advantage defined in this Law." BRASIL. ↩

585. "Art. 11. [...] investment in the development of electronic games is considered investment in research, development, innovation and culture. Art. 12. The development of electronic games is considered a cultural segment for the purposes of Law No. 8,313/1991." BRASIL. ↩

586. "Art. 3. The manufacture, import, commercialization, development and commercial ıic games are free, subject to the provisions of Article 173 of the Federal nd the legislation in force. Paragraph 1. The State shall carry out the indicative age rating [...] Paragraph

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electronic games, the risks related to the use of microtransaction mechanisms shall be taken into account." BRASIL. ↩

587. "Art. 3. The manufacture, import, commercialization, development and commercial use of electronic games are free, subject to the provisions of Article 173 of the Federal Constitution and the legislation in force. Paragraph 1. The State shall carry out the indicative age rating, with prior state authorization waived for the development and exploitation of the electronic games covered by this Law. Paragraph 2. In carrying out the indicative age rating of electronic games, the risks related to the use of microtransaction mechanisms shall be taken into account." BRASIL. ↩

588. "Art. 4. With regard to electronic games, this Law: I - establishes the principles and guidelines for their use; II - presents measures to promote the business environment and increase the supply of capital [...]." BRASIL. ↩

589. "Art. 6. The principles and guidelines of this Law are: I - recognition of innovative entrepreneurship [...] as a vector of economic, social, environmental and cultural development; [...] IV - respect for fundamental rights and democratic values; V - consumer protection [...]; VI - integral protection of children and adolescents [...]; VII - preservation of privacy, protection of personal data and informational self-determination [...]." BRASIL. ↩

590. "Art. 1. This Law provides for the protection of children and adolescents in digital environments [...]. Art. 5. Products or services [...] shall observe the duties of prevention, protection, information and safety [...] in accordance with the principle of best interest [...]." BRASIL. ↩

591. "Art. 5. [...] Paragraph 2. For the purposes of this Law, the protection of their privacy, safety, mental and physical health, access to information, freedom of participation in society [...] and well-being is considered an expression of best interest." BRASIL. ↩

592. "Art. 20. Reward boxes (loot boxes) offered in electronic games aimed at children and adolescents are prohibited [...]. Art. 22. [...] the use of profiling techniques for targeting commercial advertising is prohibited [...]." BRASIL.. ↩

593. *Riot Games*'s official communications set out this solution in operational terms. In the text "Age verification", the company states that, in Brazil, minors under 18 cannot access games rated 18+, even with their guardians' consent, and indicates two possible ways of reopening access: the user's reaching the age of majority or a possible return of the game to a lower age rating RIOT GAMES. In the "*Portal dos Responsáveis da Riot Games*", the company clarifies that the guardian may manage account permissions but may not authorize a minor's access to an 18+ title; in addition, it states that accounts ıch games may remain frozen, with items, cosmetics, progress and other the user's history pr[illegible] RIOT GAMES. In other words, the corporate respons

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digital collection, but separates the preservation of records from actual enjoyment, keeping the patrimonial and historical bond in a state of suspension. ↩

594. "Art. 29. [...] it is the duty of suppliers [...] to remove content that violates rights [...] regardless of a court order. Art. 40. Suppliers [...] shall maintain a legal representative in the Country with powers to receive service of process [...]." BRASIL.. ↩

595. "Art. 1. This Decree [...] designates the National Data Protection Agency - ANPD as an autonomous administrative authority [...]. Art. 2. The ANPD is designated as the administrative authority [...]. Art. 3. The temporary suspension and the prohibition on carrying out the activities [...] shall be effected by means of a blocking order. Paragraph 1. [...] it shall fall: I - to Anatel to receive and distribute the orders to telecommunications service providers [...]; II - to CGI.br to receive orders related to the resolution of name services registered under the '.br' domain. Paragraph 2. Anatel and CGI.br may [...] define the most appropriate technique for implementing the blocking order." BRASIL. ↩

596. "Art. 2. The protection of rights relating to industrial property [...] is effected through: [...] VI - grant of registration for electronic games." BRASIL. ↩

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Reconstructing the Consumer Protection Code as the normative infrastructure of the IOC regime requires, first of all, abandoning the reductionist reading according to which the CDC only works comfortably when the conflict involves a stable thing, one-off delivery and an obvious defect. This historical image helps explain the origin of many of the system's categories, but it does not exhaust its normative capacity. Brazilian consumer law already contains, in its own architecture, enough instruments to reach immaterial, continuous enjoyments governed by a third party, provided that its categories are read from the actual way the supply is performed, and not from nostalgia for a simpler, more tangible and far less complex market.

The point is neither to invent a new code nor to graft a foreign regime onto the legal text by force. The move is more disciplined and, for that very reason, stronger: bringing the CDC back to the type of conflict it now needs to control. In continuous digital services, the consumed object is not exhausted by its initial provision, because its enjoyment depends on maintenance, updating, curation, *enforcement*, informational processing and permanent modulation of the environment. In these cases, performance cannot be adequately understood as an instantaneous act followed by presumed stability. It takes place over time, through a managed relationship, and it is precisely this governed continuity that reshapes how quality defect, safety defect, adequate information, abusiveness, equivalence and performance are perceived.

This key also makes it possible to measure the inadequacy of conceptual responses that remain tied to static ontologies or to dramatically visible events of suppression. In platform ecosystems, legally relevant loss does not always appear as the abrupt

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e object, because it is often produced by ordinary degradation, functional downgrading, informationa

changes to the conditions of use and progressive compression of the position of enjoyment.

The conflict no longer revolves only around the formal existence of the good or service and comes to involve the governance of the consumed experience. The reading of the CDC, in turn, must shift its focus from the contract as a statement to enjoyment as a relationship actually organized and controlled.

From this perspective, classic categories of the system gain new reach without having to be distorted. Product and service are no longer thought of only as media or isolated performances and come to be read in connection with the mode of enjoyment promised and managed. Vulnerability no longer operates only as an abstract premise of protection and comes to guide the identification of specific asymmetries produced by opacity, architecture, curation and regimes of proof. The duty to inform is not satisfied by the mere formal availability of data, because it must be reconstructed in terms of intelligibility and verifiability. Objective good faith no longer acts only as a clause of contractual courtesy and reappears as a technique for containing unilateral mutability and the unfair use of the supplier's position of control. The control of abusive practices, in turn, becomes particularly important because, on platforms, the exploitation of vulnerability is often built into the very design of the environment.

It is this shift that prepares the formulation of semiotic vulnerability as an operative category of the IOC. When enjoyment depends on signs, interfaces, metrics, histories, promises of progression and private criteria for recognizing the value consumed, consumer protection cannot remain blind to how the platform organizes meaning, expectation and proof. The CDC already offers enough language to confront this problem, provided one accepts that, in continuous digital consumption, to govern the environment is to govern enjoyment itself. And where enjoyment is governed, legal controllability cannot remain a prisoner of the contractual surface.

The aim is to show that the CDC can absorb the IOC regime without textual rupture, d hermeneutic integration that is internally coherent with its is to make workab consumption: informational adequacy

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information, minimum stability in long-lived objects, control of unilateral reconfigurations with functional and symbolic impact, and remedies compatible with managed mutability. Put simply, the goal is to strip the supplier of the privilege of calling “technical noise” what, seen with a little dogmatic honesty, is already a classic consumer-protection problem only now in new clothing.

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The starting point of the regime of the IOC does not lie in resolving, with taxonomic solemnity, whether continuous digital supply would be "more product" or "more service". The distinction exists in the system, has real dogmatic utility and will remain relevant for specific purposes of periods, quality defects, remedies and calibration of consequences[597]. The error lies in turning it into an ontological prison. In governed digital ecosystems, consumption is no longer organized according to the paradigm of the one-off delivery of a stable utility, but according to the paradigm of the continuous maintenance, updating and modulation of enjoyment under private control. Within this framework, product and service remain operative, but cease to function as the exclusive key of intelligibility of the conflict. The center of the problem becomes the relationship of administered enjoyment.

This derives from the very way the CDC was built. The final recipient remains the subjective point of reference of the system[598], and the supplier remains identified by its professional insertion in the consumer market. But the legal concepts of product and service were formulated in a deliberately open way, precisely to prevent narrow readings that leave out immaterial supplies, hybrid arrangements and complex structures of performance. A product is any good, including immaterial, and a service is any activity supplied in the market for remuneration, which reveals from the outset that the system was not designed to protect only corporeal things and simple performances BESSA[599]. Therefore, it is not a matter of forcing an extension of the legal text; it is only a matter of reading it free of any conceptual claustrophobia.

This is also why the distinction between product and service cannot be conducted as atic taxidermy. In consumer matters, the utility of categories pacity to solve the classificatory purism indifferent to the

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works with more open and functional concepts because they only acquire meaning in light of the problem to be solved, and it is this key that prevents using the product-service dichotomy as an exclusionary filter of protection in continuous and governed digital supplies MARQUES[600]. The point is not to abolish the distinction, but to refuse its fetishization.

This reading becomes even clearer when one observes that the CDC itself starts from relational categories and not from isolated essences. Consumer, supplier, product and service only make dogmatic sense within a concrete supply relationship, and not as watertight compartments capable of deciding everything alone. The system was designed to capture the economic dynamics actually in place, not to reward whoever best plays at classifying the world into elegant little boxes MIRAGEM[601]. In complex digital supplies, this is decisive: the central question is not whether the object fits comfortably into a civilist ontology inherited from another technological environment, but whether there is a final recipient, a professional market agent and a utility supplied in a context of structural dependence.

It is in this respect that factual vulnerability manifests itself as the true interpretive infrastructure of the item. The CDC does not protect the consumer despite their fragility; it protects them because this fragility is the constitutive fact of the consumer relationship. Vulnerability is the starting point of the system and militates in favor of the final recipient precisely because the market is organized by asymmetries that the consumer does not control BESSA[602]. In other words: the incidence of the CDC does not arise from the classificatory purity of the relationship, but from the presence of a vulnerable party before a supplier that unilaterally structures the conditions of supply.

This vulnerability, of course, is not limited to possible economic insufficiency. It is also technical, informational, organizational and practical. The consumer enters the market without taking part in the definition of the productive models, without controlling the processes that structure the offer and without mastering the criteria that organize the functioning of the good or service supplied. They receive models [illegible] by the supplier and are often not even in a position to fully understand their logic of operation NU

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this asymmetry intensifies because supply does not end at the initial acquisition: it projects itself over time through infrastructure, updating, curation, restriction and continued intervention by the supplier in the user's experience.

The same holds for understanding the service and the consumed utility. Performance does not always present itself in a linear, simple and isolable form. There are composite services, utilities dependent on multiple agents, instrumental activities articulated with each other and performances whose enjoyment only exists because an entire technical, communicational and relational architecture keeps running in the background NUNES[604]. This observation is particularly useful here because the IOC is not to be confused with a "digital file" nor with "momentary access". Its enjoyment depends on an ecosystem that maintains, alters and administers it. For this reason legal control cannot remain stuck at the abstract instant of availability; it must reach the regime of maintenance of the acquired utility.

This was, moreover, already the material spirit of the CDC from its classical basis. The notion of service was conceived as any utility supplied in the market to the consumer, and the legislative choice for broad categories of goods and services pointed precisely to the real objects of interest of consumer relationships, and not to conceptual barriers intended to narrow protection FILOMENO[605]. The system was born oriented to the utility concretely supplied to the final recipient, and not to terminological disputes disconnected from the protective function of the Code. This fact matters because it prevents regression to formalisms that the CDC itself had already overcome at the start.

Likewise, vulnerability was recognized early on as a structural presupposition of consumer-law protection, linked not only to the absence of bargaining power, but to the consumer's lack of control over products, services, information and functioning criteria defined by the supplier. In this field, then, the old dogmas of autonomy of the will in its pure version, of abstract equality and of contractual intangibility give way, since they presuppose a real parity that simply does not exist when the market is unilaterally organized by whoever supplies FILOMENO[606]. In a continuous digital

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erception ceases to be a theoretical detail and becomes the very key for reading the bond.

Contracting by adhesion, predisposed general conditions, network organization, practical dependence of the adhering party and difficulty in understanding the internal logic of the service are clear indications of factual vulnerability, even when the consumer has technical training or works professionally in another field. In long-term bonds, dependence may deepen to the point of frustrating relevant expectations if the relationship is interrupted or unilaterally reconfigured, which makes even less defensible a reading centered only on superficial classificatory labels MARQUES[607]. This is why the IOC must be read from the standpoint of governed enjoyment, and not only from the formal appearance of an isolable performance.

In this context, factual vulnerability is not merely a backdrop; it is a criterion of interpretation. Consumer law belongs to the rights of protection precisely because it seeks to restore material equality in situations of real inequality, and this function is only achieved when the reading of the legal categories remains functional, broad and faithful to the structure of the market MIRAGEM[608]. In other words, product, service, consumer and supplier only make sense within a system built to respond to vulnerability. When the analysis forgets this, it becomes high-level conceptual bureaucracy, but of low utility. A very refined specialty, but not very effective.

Offer, adequacy, information, trust, reparation and restoration must be read from the standpoint of governed enjoyment, and not only from the literal content of a detachable performance. The consumed object is inseparable from the ecosystem that sustains, modifies and administers it, which is why the center of control must shift to standards of controllability of the environment, verifiability of changes and minimum stability of the acquired experience. The product-service dichotomy remains relevant, but as an instrumental variable to calibrate specific consequences, not as a totem defining the entire regime.

In cases of unilateral downgrading of enjoyment, the door of the quality defect remains available[609], precisely because relevant inadequacy need not take the crude form of total uselessness. It may appear as an objective decrease in the functional value of the enjoyment promised and maintained over time. In IOCs, this means that quality defects cannot be captured by traditional images of a defect perceptible by direct inspection

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ruler better suited to the problem: what matters is whether the acquired experience was degraded in a legally relevant way by the continuous regime of private governance.

The distinction between product and service exists, remains operative and will be dealt with more surgically further on. But, for the regime of the IOC, the true interpretive foundation lies in the factual vulnerability of the final recipient before an immaterial, continuous supply governed by a third party. It is this fact that authorizes rereading the CDC from the standpoint of administered enjoyment, and not of the old scene of the stable thing delivered once and for all.

NOTES

597. "Art. 3. A supplier is any natural or legal person, public or private, national or foreign, as well as depersonalized entities, that carry out activities of production, assembly, creation, construction, transformation, import, export, distribution or commercialization of products or provision of services. Paragraph 1. A product is any good, movable or immovable, material or immaterial. Paragraph 2. A service is any activity supplied in the consumer market, for remuneration [...]." BRASIL. ↩

598. "Art. 2. A consumer is any natural or legal person who acquires or uses a product or service as final recipient." BRASIL. ↩

599. The concepts of product and service in the CDC were formulated in a deliberately open way, precisely to prevent a narrow reading that leaves out of consumer-law protection immaterial supplies, complex structures of performance and hybrid market arrangements. Paragraph 1 of Article 3 defines product as "any good, movable or immovable, material or immaterial", which allows it to be understood beyond the narrower civil categories and to encompass goods consumable physically or not, new or used, fungible or non-fungible, principal or accessory BESSA. The same openness projects itself onto the concept of service. Paragraph 2 of Article 3 defines it as "any activity supplied in the consumer market, for remuneration", with concise and intentionally open wording, precisely to ensure the inclusion of a wide number of providers and arrangements of performance within the field of incidence of the CDC BESSA. The Manual further stresses that the legislator did not build rigid concepts, but adopted a true "typological statement, flexible par excellence", capable of reaching material supplies and economically complex relationships BESSA. ↩

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microsystem. The distinction remains legally relevant, but must not operate as a classificatory jail capable of neutralizing the incidence of the consumer-law regime whenever supply takes technically hybrid, procedural or continuously governed forms, as happens with immaterial objects of consumption. In consumer matters, the dogmatic utility of categories depends on their capacity to solve the protective problem posed, and not on satisfying an ontological purism that, in the end, only serves to leave the consumer alone in the middle of the labyrinth. It is in this direction that Marques observes that consumer law moves away from the strict positivist ideal and adopts a problem-oriented style of thought, with concepts "more open, more functional, delimited without so much logical rigor", precisely because they "only take on meaning in light of the problem to be solved" MARQUES. This functional key prevents the product-service distinction from being converted into an exclusionary filter of protection, above all when the bond involves continuous digital supplies, modulated over time by private architecture, updates, restrictions of use and unilateral reconfigurations. The point is not to abolish the categories, but to refuse their fetishized use against the purpose of the system. Marques argues precisely that the rules of the CDC must be interpreted according to the protective logic of the Code itself and in accordance with its normative purpose, which requires a teleological and not merely formal reading. In dealing with the definition of consumer, the author states that "the rule of art. 2 must be interpreted in accordance with the special protection system of the Code and in accordance with the purpose of the norm", concluding that "only a teleological interpretation" allows the field of protection of the CDC to be adequately defined, including through openness to cases in which vulnerability proves legally relevant, even if certain traditional classificatory fits do not present themselves in their purest form MARQUES. Applied to the present problem, this orientation authorizes privileging the protective function of the microsystem over excessive classificatory formalisms, so that the distinction between product and service continues to serve Law, and not the other way around. ↩

601. Bruno Miragem is particularly important at this point, because he makes quite clear that the CDC operates on the basis of functional and relational categories, and not of rigid ontological compartments. The author observes that the Brazilian legislator did not directly define the "consumer relationship", preferring to conceptualize its subjects – consumer and supplier – and its object – product or service. For that very reason, these are relational and dependent concepts: there will only be a consumer if there is also a supplier, as well as a product or service, so that these definitions do not stand in isolation, and must appear jointly to trigger the application of the Code MIRAGEM. The application of the CDC does not depend on excessively formalistic or classificatory fits, but on the concrete verification of a relational dynamic in which a vulnerable final mes bound to a market agent around a supplied utility. This same rs when Miragem sta microsystem was defined precisely

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consumer relationship and of its object, these being, once again, relational concepts, that is, legal positions that only reveal themselves within a concrete relationship MIRAGEM. The point is especially useful because it shows that consumer, supplier, product and service are not watertight categories, designed to artificially limit the CDC's field of application, but keys of functional reading capable of capturing the economic reality actually at hand. It is precisely this key that matters to the present item. In complex digital supplies, the central question should not be whether the object fits comfortably into old civil-law taxonomies, but whether there is, in practice, a final recipient, a market professional and a utility offered in a context of vulnerability. Miragem thus helps to show that the CDC already has sufficient language to reach sophisticated techno-digital relationships, provided that its categories are read functionally. The gain is great: less classificatory fetish, more fidelity to the way the consumer relationship really happens. ↩

602. Vulnerability is not a lateral element of the consumer relationship, but a structuring presupposition of the very protective application of the CDC. The system does not protect the consumer despite their fragility; it protects them precisely because it recognizes that fragility as a constitutive datum of the consumer market. The Manual recovers Antonio Herman Benjamin's formulation according to which vulnerability is the "fundamental piece" and the "starting point" of the entire application of consumer law, especially in contractual matters, which is why, in light of arts. 2 and 4, I, a true presumption of vulnerability operates in favor of natural persons who are final recipients of products and services BESSA. The STJ case law cited by the work goes in the same direction when it states that the starting point of the CDC is the principle of the consumer's vulnerability, understood as a mechanism intended to guarantee formal-material equality between the subjects of the consumer relationship and to illuminate the application of the protective and rebalancing norms in pursuit of equitable justice BESSA. Thus, the legal consumer relationship is not defined merely by the abstract presence of persons at its poles, but by the presence of a vulnerable party and of a supplier, which may justify the application of the CDC even in relationships between legal entities BESSA. ↩

603. The consumer's vulnerability, in Rizzatto Nunes, does not appear as a lateral or occasional element of the consumer relationship, but as a structural presupposition of the very protective application of the CDC. The decisive point lies not only in possible economic inferiority, but in the technical asymmetry that separates consumer and supplier within the productive process. The consumer enters the market without taking part in the definition, elaboration or control of the goods and services offered to them, which is why they occupy a position of objective fragility before productive models unilaterally organized by the supplier. As the author states, the consumer is "the fundamental element" of this market formation, precisely because they are "admittedly the final recipient of the product or service, without participating in the production process", being subject to the "unilateral will" of the supplier, being moreover a [illegible]

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NUNES. This finding deepens when vulnerability is also read in its informational dimension. Nunes stresses that the consumer not only stands outside the productive system, but also lacks the technical conditions needed to understand its functioning or to assess, on equal terms, the products and services presented to them. The consumer's fragility thus stems from the lack of command over the processes, criteria and information that structure the offer, which justifies the corrective intervention of consumer law as an instrument for the material realization of equality. Along these lines, the author notes that the law recognizes the fact that the consumer "not only has no access to the productive system but has no means of knowing how it works", which is why they must be understood as "the weak party of the legal consumer relationship" NUNES. ↩

604. Rizzatto Nunes's reading is particularly useful at this point because it puts the classificatory problem back in its proper scale: the core of art. 3 of the CDC lies not in restricting the reach of protection to corporeal objects or simple performances, but in ensuring that consumer-law protection applies to every supply relationship economically organized for the market. On this view, the legal concept of product was deliberately formulated in comprehensive terms, precisely to prevent escape zones from the protective regime, also reaching immaterial goods and incorporeal utilities made available to the consumer. As the author summarizes, the law adopted concepts "as generic as possible" because "the aim is that nothing escapes it", so that even performances traditionally perceived as intangible can already be framed as immaterial goods for purposes of the CDC's application NUNES. The same logic projects onto the concept of service. Nunes observes that not every consumer performance presents itself in a linear or isolated form, there being simple services, composite services and structures in which the final utility depends on the articulation between multiple agents, instrumental activities and even aggregated products. For that reason, supply is not exhausted in the one-off act of delivery, also encompassing the maintenance of the functional architecture necessary for the enjoyment of the contracted utility. In the author's words, there are services "composed of others" and also cases in which the performance is organized "through the use of products" NUNES. This framing is especially relevant for immaterial supplies in a digital environment, in which the consumer experience depends less on an isolated thing and more on the operational continuity of a technical, communicational and relational infrastructure set in motion by the supplier. ↩

605. Commenting on paragraph 2 of art. 3, Filomeno recalls that service is "any activity supplied in the consumer market, for remuneration", observing that the Code covers "each and every type of service", understood as a utility enjoyed by the consumer and given supplier, in a facere FILOMENO. The formulation is especially it takes the legal concept back to its simplest material matrix: service, in the consumer-law regime, is the this authorizing narrow readings of formalistic classifications aimed at withdrawing

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protection. This basis is reinforced when Filomeno recalls that, in the genesis of the Code, the terms “goods and services” were chosen as unequivocal and generic expressions precisely to point the applier to the real objects of interest of consumer relationships, while at the same time excluding, by contrast, relationships of another nature, such as tax relationships FILOMENO. The value of his observation lies in showing that the CDC is born committed to a material reading of the consumer relationship, centered on the economic utility concretely supplied to the final recipient. Before any later sophistication about the product-service dichotomy, the system's starting point is already settled on broad, functional categories oriented toward consumer protection, and not on conceptual barriers designed to narrow it. ↩

606. Filomeno treats the consumer's vulnerability as a structural presupposition of consumer-law protection. The author observes that, for evident reasons, among them the consumer's absolute lack of control over the products and services placed on the market and the absolute disproportion between their bargaining power and that of suppliers, one starts from the presupposition that the consumer is the vulnerable party in the consumer relationship, which justifies unequal legal treatment between naturally unequal parties and direct protective governmental action FILOMENO. The application of the CDC is not explained by classificatory formalism, but by a material finding of structural fragility that calls for normative correction. This vulnerability, moreover, is not reduced to possible economic insufficiency. Filomeno describes it as the consumer's fragility before the supplier also in informational and technical aspects, that is, with regard both to purchasing power and to the information made available and the specialized knowledge held by the supplier itself FILOMENO. For that very reason, the recognition of this vulnerability has a direct impact on contractual dogmatics: as the author notes, the finding that the consumer is the vulnerable party in consumer relationships causes the classical dogmas of full autonomy of the will, abstract equality and contractual intangibility to yield, precisely because such principles would only hold in full if the parties had equal real power of decision FILOMENO. Consumer-law protection is already born, in its classical basis, founded on vulnerability as a structural datum of the relationship and not as an episodic exception. ↩

607. The interpretation of the consumer contractual relationship, especially in contexts of complex, continuous or technically governed supply, must start less from abstract formal framings and more from the consumer's material vulnerability and from the way the supply is actually organized and operates. This means that the application of the CDC cannot be held hostage to superficial classificatory appearances, nor to an idealized image of parity between the parties, when the reality of the bond reveals ng, unilateral pre-drafting of terms, organizational opacity and the 's practical dependence on the supplier's structure. Marques makes this point explicit when she observes th conditions work as a strong indicat

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contracting party, in theory, has technical training or a professional activity. In the author's words, “most banking contracts are concluded through the use of general contract conditions and adhesion contracts. These methods of mass contracting [...] serve as an indication of the co-contracting party's vulnerability. Even if the co-contracting party is a lawyer, even if a merchant or farmer, factual vulnerability will almost always be present” MARQUES. This insight becomes even more relevant when the supply does not end in a one-off act but extends over time as an organized, repeated relationship functionally closed around the consumer. In these cases, vulnerability is not a mere episodic accident of the contractual moment, but a structural condition of the user's insertion into a regime of dependent enjoyment. Marques describes this logic when discussing services provided through organized networks, whose internal functioning often escapes the consumer's awareness and which, in the contemporary context, tend to bind the consumer ever more captively to the supplier or chain of suppliers. As the author notes, these are services that “bind the consumer in such a way that, over the years of the complex contractual relationship, they become a ‘captive’ client of that supplier or chain of suppliers, becoming dependent even on the maintenance of that contractual relationship or seeing all their expectations frustrated.” MARQUES Applied to the present problem, this reading reinforces that the legal qualification of the bond must take into account the real form of the supply and the vulnerability it concretely produces, and not merely formal labels that, used. ↩

608. Factual vulnerability is a structural presupposition of consumer-law protection. Miragem observes that consumer law belongs among the so-called protective rights, whose raison d'être necessarily rests on a situation of factual inequality, which they seek to redress by means of the protective norm MIRAGEM. The application of the CDC is thus explained not by a formal abstraction of categories, but by the material finding that the consumer relationship is marked by a real asymmetry between its parties, which calls for normative intervention aimed at restoring balance. The principle of vulnerability is the basic principle that grounds the existence and application of consumer law. The very existence of consumer law is justified by the recognition of the consumer's vulnerability in the consumer market, and it is precisely this vulnerability that requires the law to concern itself with the consumer's protection MIRAGEM. The point is central because it shows that vulnerability is not an accidental, peripheral or complementary element of the microsystem, but its cornerstone. When product, service and complex digital supplies are at issue, the center of the analysis should not be a somewhat bureaucratic cult of classification for its own sake, but the protective function of the CDC in the face of a structurally unequal relationship. Miragem thus helps to recall an important obvious point: plier, product and service make dogmatic sense only within a system ıd to vulnerability. A

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categories must be read in a functional and broad way, faithful to market reality, not a narrow or ornamental one. ↩

609. "Art. 18. Suppliers of durable or non-durable consumer products are jointly and severally liable for quality or quantity defects that render them unfit or inadequate for the consumption for which they are intended or that diminish their value [...]." BRASIL. ↩

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The product-service dichotomy reappears here not as a metaphysical enigma to be solved with a scholastic ruler, but as an instrumental variable for calibrating specific legal consequences in supplies that extend over time. With IOCs, enjoyment is not exhausted at the moment of initial availability, because it depends on continued maintenance, updating, modulation and administration by the supplier. As a result, the distinction between immaterial good and performance activity remains legally useful, but insufficient as the sole axis for grasping the conflict. What is protected is not a frozen snapshot of the bond, but a consumption experience whose utility is realized and measured throughout performance. The legal structure remains in place: the CDC distinguishes product, including immaterial product, and service as an activity supplied in the market[610], but this distinction only fulfills its function when read in light of the actual mode of enjoyment of the object consumed.

Therefore, the continuous supply of IOCs strains the classical model built around a completable delivery. The traditional logic works best when there is a relatively clear point of delivery and when inadequacy can be perceived by contrasting what was received with what should have been delivered. In lasting digital bonds, this point becomes blurred. The promised utility is not fulfilled all at once, because it remains dependent on the ecosystem that sustains it. Initial access may well occur without a hitch, but enjoyment may be downgraded later, through successive mutations, functional suppressions, silent reconfigurations or changes of environment that preserve the formal shell of the performance while corroding its concrete utility. Hence the importance of Article 26 of the CDC[611], since it evidences the tension between the classical periods for ascertaining a quality defect and continuous

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ich inadequacy may emerge progressively, requiring a rereading of the point of cognizability instead of

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The decisive technical point lies in placing quality defect and inadequacy back at the center of the analysis. In the CDC, the logic of quality of performance depends neither on dramatic collapse nor on absolute uselessness. It operates on the basis of the concrete aptitude of the product or service to achieve the purpose legitimately expected by the consumer. For the IOC, this means that protection does not depend on proving the "disappearance" of the object; it is sufficient to show that enjoyment ceased to correspond, in a legally relevant way, to the functional standard that was part of the relationship. A product or service presents a quality defect of adequacy when it no longer corresponds to the legitimate expectation of use or enjoyment, or when the nonconformity compromises its serviceability[613]. In continuous bonds, therefore, relevant inadequacy is measured less by ostensive rupture and more by the maintenance, over time, of the utility legitimately incorporated into the bond[614].

This is the point at which the parallel with long-term captive contracts becomes methodologically fertile. Not because the IOC should be forced into this category as if it solved everything, but because it helps to visualize something that continuous digital consumption lays bare: performance is not exhausted at the initial adhesion, and the bond comes to be structured by practical dependence, permanent asymmetry, sedimented trust and the supplier's renewed power of imposition over time. Lasting relationships, organized through mass contracting and an architecture opaque to the consumer, create captivity and dependence, intensifying duties of information, cooperation, loyalty and protection of trust[615]. The consumer user of an IOC does not merely consume access, but enters a relationship marked by a legitimate expectation of continued access in an environment in which the future enjoyment of what they acquire remains subordinated to the private organization of the ecosystem.

It follows that contractual performance, in this type of bond, cannot be read as a simple sum of isolated performances. The obligation takes on a dynamic shape, projected in successive phases, and comes to incorporate legitimate expectations of stability, continuity and predictability. The contract ceases to be a one-off event and ›gram of performance developed over time, requiring y and respect for t

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organized and legitimately entrusted by the consumer[616]. The investment of trust arises not only from the initial promise, but also from repeated practice, from the continuity of utility and from the predictability of conduct that the supplier progressively sediments. Where this trust is built, unilateral changes or excessive instabilities affect not only the main performance, but the very contractual program concretely lived[617].

Lasting bonds attract the ancillary duties of conduct with special intensity. Good faith, probity, qualified information, cooperation and protection of trust cease to be moral adornments of performance and become part of the very structure of supply[618]. Long-term relationships carry expectations that do not fit the instantaneous model of exchange, because they rest on repeated coexistence, maintenance of service quality and a capacity to adapt without betraying the contracted utility[619]. With IOCs, this means that the protected core of the relationship is exhausted neither by the initial consent nor by the literal reading of the pre-drafted clauses; it includes the trust legitimately built around the material continuity of enjoyment.

This frame also reinforces the limit on unilateral mutability. The continued contract is not a space of the supplier's private sovereignty merely because performance remains open over time. Contractual freedom finds limits in the social function of the contract[620], and, in continued consumer relationships, this limitation takes on a very concrete form: the power to alter, modulate or reconfigure performance cannot be exercised so as to frustrate the function that justified the consumer's original acquisition. In captive contracts, clauses that concentrate excessive discretionary power of revision in the supplier may place it in a position incompatible with good faith and with the stability of the promises that gave meaning to the adhesion[621].

On the more classical plane of the CDC, this prohibition already appears with sufficient clarity. A clause authorizing unilateral modification of the content or quality of the performance after contracting is null, because it turns the consumer ecipient of a utility inferior to the one they legitimately OCs, this rule gains

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come disguised as total cancellation; it may appear as a functional *downgrade*, compression of resources, loss of relational utility or systematic instability of the environment. Even so, it remains legally relevant because it breaks the balance of the relationship and diminishes the functional value of enjoyment without compatible restoration. Article 18 of the CDC[623] therefore remains the central door for framing a relevant quality defect in a continuous environment, now measured by the yardstick of functional equivalence and not only by the classical image of the spoiled product on the shelf.

Nor does the offer disappear after adhesion. In lasting relationships, information, advertising and contractual performance remain connected, so that the promised content continues to function as a parameter of the performance's adequacy. All sufficiently precise information becomes part of the contract and binds the supplier[624], and this holds with special force when the utility consumed is mediated by interface, visual presentation, promises of progression and the digital externalization of the experience. In the CDC, clear and adequate information does not govern only the pre-contractual moment; it affects the essence of the deal throughout the relationship, and a failure in it may constitute a quality defect of the performance[625]. In the digital environment, this is especially important because the "shop window" is not merely advertising: it is part of the very substance of the IOC acquired. What was shown, described, promised and reiterated to the consumer continues to serve as a yardstick against opportunistic downgrades[626].

The remedial consequence follows this logic. In lasting relationships, the relevant inadequacy of the performance need not be forced into the narrower filters of classical civil law, as if every revision depended on heroic unpredictability or contractual catastrophe. On the consumer-law plane, the breakdown of the objective basis of the deal, of the intrinsic balance of performances or of the essential purpose of the bond is enough to open room for revisional, resolutory or restorative protection[627]. In contracts of duration, this means that the relevant frustration of the utility legitimately incorporated into the relationship is already sufficient to trigger

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n. The consumer may demand maintenance of the bond with correction of the performance, modifi

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restoration of the utility or, as a last resort, rescission with the appropriate effects. Continuous performance does not reduce protection; it only changes the way of measuring the harm and choosing the remedy.

This technical point is decisive because, in IOCs, performance projects itself into the future as a succession of periodic performances and counter-performances, but also as a legitimate expectation of maintenance of enjoyment over time. Where continuity is part of the contracted utility itself, quality defects, periods and remedies cannot be read as if everything had ended at the initial availability[628]. The relationship is not exhausted at the first activation, the first download or the first login. What is also protected is the material preservation of the enjoyment legitimately expected in the course of the bond. This changes the reading of inadequacy, of ascertainment and of legal response.

For this reason, the product-service dichotomy must be kept under strict methodological discipline. It matters insofar as it allows specific normative consequences to be adjusted, such as the technical regime of quality defects, the point of ascertainment, the applicable remedies and the calibration between functional restoration and compensation. It does not matter as a totalizing ontological key to the IOC. The utility consumed in a continuous digital environment is often hybrid: it involves an immaterial good and an activity of maintenance, access and modulation, without this authorizing the dispersal of protection into classificatory preciosity[629]. The central problem lies elsewhere: performance exists only as governed enjoyment, and it is this governance that must be made controllable by law.

Thus, product and service are not obstacles to the regime of the IOC; they are instruments for adjusting specific effects in a consumption whose utility depends on the ecosystem that maintains, alters and administers it. The classificatory debate matters only insofar as it helps to stabilize legitimate expectations, control relevant unilateral reconfigurations and structure remedies compatible with the continuity of performance. Everything else is conceptual filigree with little power to solve the real problem. And the real problem, here, is the private administration of enjoyment.

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610. The distinction between product and service, in the CDC, has real dogmatic utility, but it functions as a tool for organizing the protective regime, not as an ontological prison intended to narrow the Code's incidence. Article 3, paragraph 1, anchors the product on the plane of goods, encompassing a movable or immovable, material or immaterial object, while paragraph 2 brings the service back to the plane of activity supplied in the market for remuneration FILOMENO. In continuous and complex relationships, good and activity frequently appear functionally intertwined, without this authorizing the dissolution of consumer-law protection into classificatory preciosity. The legally relevant point remains the economically supplied utility and the way it is delivered, maintained or degraded in the course of the relationship. ↩

611. "Art. 26. The right to complain about apparent or easily ascertainable quality defects lapses in: I - thirty days, in the case of supply of services and non-durable products; II - ninety days, in the case of supply of services and durable products. Paragraph 1. The lapse period begins to run from the effective delivery of the product or the end of the performance of the services. Paragraph 2. The following prevent the lapse: I - the complaint demonstrably made by the consumer to the supplier of products and services until the corresponding negative response, which must be transmitted unequivocally; [...] III - the institution of a civil inquiry, until its conclusion. Paragraph 3. In the case of a hidden quality defect, the lapse period begins at the moment the defect becomes evident." BRASIL. ↩

612. The discipline of Article 26 of the CDC must be read in a key compatible with performances whose inadequacy is not revealed all at once. For apparent quality defects, the lapse period runs from the effective delivery of the product or the end of the performance of the service; for hidden quality defects, however, the starting point shifts to the moment the defect becomes evident DENARI. In continued relationships, the period cannot be used to turn the initial formal delivery into an artificial point for the early emptying of consumer-law protection. The count must engage with the real moment at which the inadequacy becomes cognizable, above all when it only emerges in prolonged use or in the supervening deterioration of serviceability DENARI. ↩

613. Product, service, quality defect and inadequacy make up, in the CDC, a single systematic logic of control of the quality of performance, which makes it possible to frame lasting supply relationships without depending only on more sophisticated constructions about long-term captive contracts. The theory of quality explains that quality defects branch into two categories, the second being precisely that of "quality defects by inadequacy", linked to the performance of products and services and to the fulfillment of their purpose in conformity with the legitimate expectation of the

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SA. This structure projects itself directly onto Articles 18, 20 and 26 of le liability for produ liability for quality defects has as it

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purposes" of the product or service, that is, its concrete aptitude to achieve the legitimately expected utility BESSA. The Manual itself summarizes the idea by observing that a product or service will present a quality defect of adequacy whenever it does not correspond to the legitimate expectation of the consumer as to its use or enjoyment, or when the nonconformity compromises its serviceability BESSA. In this sense, the discipline of quality defects in the CDC is organized less by the abstract ontology of the object and more by the material idea of adequacy of performance. A product or service will be legally defective when it does not correspond to the legitimate expectation of the consumer as to its use or enjoyment, that is, when the nonconformity compromises its serviceability or usability DENARI. There is a quality defect when the performance proves inadequate for the purposes reasonably expected of it or when it does not meet the regulatory standards of serviceability DENARI. In continuous supplies, this means that the nominal survival of the bond is not enough; the protection of the CDC requires effective maintenance of the functional aptitude that legitimately became part of the relationship. ↩

614. On the technical plane, the consumer-law protection of continued bonds is organized around the notion of quality defect as a failure of the duty of adequacy, and not only of defect in the sense of a risk to safety. A quality defect arises when a product or service does not serve the purpose legitimately expected of it, owing to the impairment of its quality or quantity MIRAGEM. In continuous relationships of enjoyment, this shifts the focus from the extraordinary collapse of performance to the ordinary frustration of its utility. The quality defect of the product or service stems from the absence of properties or characteristics necessary to meet the purposes legitimately expected by the consumer, and amounts to the frustration of the presumable and reasonably expected utility of the product or service MIRAGEM. In continuous supplies of IOCs, inadequacy must be measured by the maintenance, over time, of the utility legitimately expected by the consumer. ↩

615. The category of long-term captive contracts offers an especially fertile dogmatic basis for understanding the continuous supply of IOCs as a complex, lasting and structurally asymmetric legal relationship. The bond is not exhausted in an instantaneous exchange, nor is it reduced to a snapshot of the initial moment of adhesion. It is a continued relationship, sustained by mass contracting methods, by a business organization opaque to the consumer and by a logic of permanence that turns enjoyment into practical dependence. This is precisely the movement captured in the description of "new contracts or contractual relationships" that, through adhesion contracts and general conditions, supply special services and create "complex long-term legal relationships", marked by the "position of 'captivity' or 'dependence' of ısumers" MARQUES. Keeping the bond alive may lead the consumer to any new imposition renewed "power of imposition" thr

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this grammar of captivity that justifies the intensification, in such relationships, of the duties of information, cooperation, loyalty and protection of trust. ↩

616. Understanding lasting bonds requires abandoning the static reading of the contract as an event concentrated in a single moment of formation. The obligation must be read as a dynamic bond developed in successive phases, capable of radiating duties of protection and cooperation beyond the performance of the main obligation MARTINS-COSTA. The parties bind themselves around a true "program of performance", to which they are bound by virtue of self-binding and whose implementation requires intersubjective collaboration MARTINS-COSTA. Objective good faith requires respect for the concrete way in which enjoyment was organized, maintained and legitimately entrusted by the consumer over time. Unilateral changes or excessive instability affect the very contractual program as actually lived and the trust that has settled within it. ↩

617. In continued contractual relationships, performance is not exhausted at the initial delivery, because the bond also comes to be structured by expectations of stability, predictability and loyalty formed in the course of the relationship. When enjoyment is prolonged, the contractual program also comprises the concrete pattern of performance settled between the parties. The duties to act in good faith must be assessed in connection with the investment of trust legitimized by the predictability of conduct, so that the duties of loyalty lie at the point where the legitimate expectations of those who trust cannot be disloyally undermined MARTINS-COSTA. In the continuous supply of IOCs, repeated practice and trust settled over time become part of the legally relevant bond. ↩

618. "Art. 422. The contracting parties are obliged to observe, both in the conclusion of the contract and in its performance, the principles of probity and good faith." BRASIL. ↩

619. Lasting contractual relationships attract, with special intensity, the incidence of ancillary duties of conduct, because the bond ceases to be understood as a one-off act of exchange and comes to be read as a continued process of legally relevant interaction. Within this framework, the obligation is no longer limited to the main performance, but projects itself over time as a complex of behaviors, expectations and reciprocal responsibilities. It is "a new view of the obligation, as a complex of acts, conducts, duties extending over time", objective good faith being a source of duties "to inform, to cooperate, duty of care, of secrecy, of advice, of loyalty etc." MARQUES. The long-term contract "carries within it expectations other than those of contracts of immediate performance", since it is based "more on trust, on repeated coexistence, on the maintenance of economic potential and of the quality of services", which is why "[illegible] for adaptation, for cooperation between contracting parties, for [illegible] of the contractual relationship is basic" MARQUES. This supports reading

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the continuous supply of IOCs as a performance whose protected core is not exhausted in the initial consent. ↩

620. “Art. 421. Contractual freedom shall be exercised within the limits of the social function of the contract.” BRASIL. ↩

621. In continued bonds, the control of supervening changes cannot be thought of only in formal terms of renewed consent or of the abstract possibility of renegotiation. The duration of the relationship intensifies dependence, trust and the practical centrality of the performance, requiring that the stability of the contractual program function as a parameter for containing the supplier's modifying power. Clauses imposed in relationships aimed precisely at future security and at the "maintenance of the contractually agreed promises and conditions" may represent "an excessive [...] discretionary power, placing the consumer at an excessive disadvantage contrary to good faith", allowing a factually "unilateral" variation of the content of the contract, of the performances and of the price MARQUES. In relational and captive contracts, revisions and readaptations cannot "authorize abuses of the dominant contractual position" nor frustrate legitimate expectations of the parties, and must operate according to cooperation, loyalty and good faith MARQUES. ↩

622. The prohibition on unilateral downgrading of the utility delivered to the consumer finds direct dogmatic formulation in Article 51, item XIII, of the CDC. A clause that purports to authorize the supplier to alter, by its exclusive will, the content or quality of the performance after contracting is null, since this breaks the balance of the relationship and turns the consumer into a compulsory recipient of a utility inferior to that which he legitimately acquired. Commenting on the provision, Nunes notes the nullity of the clause that authorizes “the supplier to unilaterally modify the content or quality of the contract, after its conclusion”, illustrating the abuse with a case in which the supplier reduces, without reducing the price, the intensity of the agreed performance NUNES. The quality defect constitutes “a minus of the consumer's right” and admitting a quantitatively or qualitatively inferior performance would amount to tolerating “the unlawful enrichment and unjust enrichment of the supplier” NUNES. ↩

623. “Art. 18. Suppliers of durable or non-durable consumer products are jointly and severally liable for quality or quantity defects that render them unfit or inadequate for the consumption for which they are intended or that diminish their value [...].” BRASIL. ↩

624. “Art. 30. All sufficiently precise information or advertising, conveyed by any form or means of communication with respect to products and services offered or presented, binds the supplier that conveys it or makes use of it and becomes part of the contract ncluded.” BRASIL. ↩

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the consumer relationship, so that

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function as a parameter of adequacy of the performance during the execution of the bond. The Manual points out that the requirement of clear and adequate information is not limited to the pre-contractual moment, but also governs the conclusion of the contract, the contract itself and the post-contractual moment; for this reason, information "affects the essence of the deal", becoming part of the contractual content and, if it fails, possibly constituting a quality defect in the product or service offered BESSA. The binding effect is reinforced when the work explains that it acts in two ways: first, obliging the supplier even if it refuses to contract; second, entering into and prevailing in any contract that may be concluded, even when the contractual text itself tries to remove this binding character BESSA. In addition, Article 48 of the CDC is read in the Manual as a command according to which declarations of will contained in private writings, receipts and pre-contracts bind the supplier, and may even give rise to specific performance, so that "everything that is said and offered" in the name of the supplier already produces legal effects and constitutes a contractual clause BESSA. ↩

626. In the CDC regime, the offer does not operate as a simple preparatory phase or neutral invitation to contract, but as a legally binding element of the consumer relationship itself. The consumer-law discipline breaks with the narrow privatist logic and recognizes that the offering message already produces an obligation for the supplier, which is bound to the content externalized to the market. "Every offer relating to products and services binds the offering supplier, obliging it to fulfill what it offers" NUNES. This binding effect also covers the presentation of the product or service, including visual display as a legally relevant fact: "the mere presentation of the product in the shop window, on the shelf, on the counter etc." also constitutes an offer, the conveyed message being "the evidentiary element of its existence and binding effect" NUNES. This is especially useful for consumption environments mediated by interface, in which the visual externalization of utility is part of the offered content itself. ↩

627. Quality defect, breach of the offer and alteration of the content of the performance may trigger, in the CDC, remedies of material restoration, and not only formal or pecuniary solutions. Declarations of will contained in private writings, receipts and pre-contracts bind the supplier and their breach may give rise to specific performance under Article 84, precisely to achieve the "practical result equivalent to that of performance" of the obligation BESSA. Faced with a nonconforming offer, the consumer may demand forced performance of the obligation, accept another equivalent consumer good or rescind the contract with restitution of what he paid and losses and damages BESSA. In case of a quality defect, the CDC allows the consumer ɔther product of the same kind in perfect conditions of use, alongside ɔroportional price re
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promised utility was downgraded or diverted. In lasting relationships, the relevant inadequacy of the performance triggers consumer-law remedies of their own, without submission to the narrower filters of classical civil law. Article 6 of the CDC advances in relation to the Civil Code's regime of excessive onerousness precisely by not requiring unpredictability or irresistibility of the supervening fact, the breakdown of the objective basis of the deal, of the intrinsic balance between performances or the disappearance of the essential purpose of the contract being sufficient BESSA. The consequence is decisive for continued contracts: the relevant frustration of the utility legitimately incorporated into the bond is already sufficient to open room for revisional or resolutory protection of the consumer. This logic appears even more concretely in Article 20 of the CDC. Faced with quality defects that diminish the value of the service, the consumer may demand contractual rescission without penalty or proportional price reduction, with no need to discuss the supplier's fault, since it is strict liability BESSA. In contracts of duration, it is well known that one may request either the modification of the clause with maintenance of the bond or the rescission of the contract, with a declaration of nullity of the abusive clause or its modification if excessively onerous BESSA. ↩

628. In contracts of continued performance, periodic performances are not exhausted in their simple one-off realization, because they project into the future the satisfaction of the legitimate interests of the consumer. In these relationships, the structure of the bond becomes that of successive periodic performances and counter-performances, also encompassing the legitimate expectation of their maintenance over time MIRAGEM. The need to preserve the legitimate expectations of continuity of the contract may imply constant readaptation of the contractual relationship, precisely to avoid its frustration MIRAGEM. In continuous supplies of IOCs, performance is not exhausted at the first availability of access or functionality; what is also protected is the material continuity of the enjoyment legitimately expected in the course of the bond. Where performance projects itself into the future, quality defects, periods and remedies cannot be read as if everything had ended at the first click. ↩

629. In a dogmatic key, the elementary distinction between product and service must be stabilized without losing sight of the protective functionality of the CDC. The service is identified, at its core, with the idea of activity, that is, with purposively oriented human action, whose realization is consumed in its very exercise. While the product falls under the category of good, the service falls under the category of doing: “service is, typically, activity”, this being “human action that has a purpose in view”, so that “every action is exhausted as soon as it is performed” NUNES. This differentiation, however, does not prevent the recognition of mixed situations, in which the activity performed makes use of goods that accompany or enable it. There are services ı products that make up the service itself” and that, even so, “continue rized as a service” NU

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Bruno Torquato Zampier Lacerda's doctrine of digital assets[630] performs an important function because it resolves, with considerable depth, a problem that cannot be sidestepped by contractual rhetoric or by nostalgia for tangibility: techno-digital assets are legal goods and do not vanish from the world of Law merely because they are incorporeal. Digitally organized information can acquire a utility of its own, become part of the subject's sphere of interests and, for that reason, be treated as a legally relevant incorporeal good, with or without immediate economic content LACERDA[631]. This starting point is correct and indispensable. Without it, the debate on continuous digital consumption would be held hostage to the crude fiction that everything that cannot be held in the hand is legally light, dissolvable and disposable at the supplier's mere will.

Another real gain of this framework is the recognition that, once admitted as goods, these assets become susceptible to appropriation, circulation, enjoyment and protection. They enter the legal world not as conceptual curiosities, but as objects capable of sustaining organized legal positions, including use, enjoyment, disposal and transfer. Incorporeality neither prevents the exercise of the faculties typical of ownership nor turns enjoyment into a gracious tolerance granted by technology LACERDA[632]. This matters a great deal here because it rules out, from the outset, the semantic fraud of the "revocable license" as a formula capable of making everything already economically incorporated into the user's sphere evaporate. If there is an identifiable virtual object, associated with the account and enjoyed within the ecosystem, there is legal substance to be taken seriously, even if the platform tries to cloak it in a vocabulary of precariousness.

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"Virtual Content" as a set that includes

accessories and other items associated with the account[633], and admits that this content may be obtained not only by conventional purchase, but also by earning, reward, gift or other internal dynamics of the ecosystem[634]. This is useful for two reasons. First, because it shows that the contractual design itself recognizes an identifiable core of enjoyment associated with the account, which dismantles the puerile thesis that the object does not legally exist. Second, because it shows that the formation of this core does not end in a one-off market exchange, but takes place within a continuing dynamic of progression, circulation, reward and participation. There, the consumed object is born less as an isolated "digital thing" and more as a position of enjoyment produced and maintained within a governed environment.

The concept of the digital asset also renders another useful service by providing an internal typology of the phenomenon. Not every techno-digital asset has the same structure, function or regime, and the distinction between patrimonial, existential and mixed assets helps keep everything from being treated as an amorphous mass. This classification makes it possible to allocate the effects of ownership, use, transfer and protection more accurately, and it shows that certain digital assets gravitate closer to the patrimonial sphere, others closer to personality, and many combine both dimensions LACERDA[635]. Such refinement is useful and should not be discarded. The problem is that it still organizes the phenomenon mainly around the asset, whereas the core of the IOC demands a reading oriented by governed enjoyment.

It is here that the thesis turns. The gain of the civil-law doctrine lies in resolving the problem of the legal status of the techno-digital asset and in blocking the nominalist dissolution of what has already entered the user's sphere. But when the conflict shifts to platform consumption involving continuing, mutable enjoyment dependent on private governance, the civil-law axis of ownership does not by itself capture the heart of the problem. The IOC regime starts from the same recognition of legal status, but shifts the focus: instead of asking predominantly who "has" the asset and how it circulates or is transferred, it asks how enjoyment is maintained, modulated, degraded, made intelligible and restorable over time. It is a change of axis, not a

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It is worth being explicit about the nature of this change of axis, because it is often read, without due attention, as a simple move from one library shelf to another. The project of the doctrine of digital assets is dogmatically delimited and responds to a recognizable problem. It operates within civil law and confronts, first and foremost, the silence of the Brazilian legal order about an entire class of assets that exists, circulates and produces economic and affective effects, but had no express regime of existence, ownership, transfer and extinction. Lacerda fills this silence with functional taxonomy and classificatory rigor, and that is why the work has become a canonical reference for digital inheritance, for the succession of digital assets and for the civil-law protection of the subject's digital estate. The service rendered is real and cannot be treated as a mere disposable preparatory stage. When this framework is called upon to answer what it set out to answer, it answers well.

The present thesis, however, operates in a different domain and responds to a different problem. It confronts not the silence of the Civil Code on the status of the digital asset, but the opacity of the Consumer Protection Code on the regime of the immaterial product under continuing and governed enjoyment. This shift of domain is not a detail of disciplinary organization. It carries a structuring dogmatic consequence, because civil law regulates relationships between formally equal subjects, while consumer law regulates structurally asymmetric relationships under mandatory public policy. Where the civil-law doctrine asks to whom the good belongs, how it circulates and how it is extinguished, the IOC regime asks how the promised utility is maintained, modulated, degraded and restorable over time. The questions are not opposed. They inhabit distinct layers of the phenomenon and call for correspondingly distinct techniques of attribution.

The difference between these layers can be described more sharply through a temporal distinction. The doctrine of digital assets works with a predominantly static ontology of the asset. The good exists, is classifiable, can have an owner, can be transferred, can be extinguished. There is, so to speak, a photograph of the asset, and the relevant legal faculties are organized around that photograph. The IOC regime, in [illegible] rocessual ontology of enjoyment. The immaterial object of

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[illegible] t be captured in a static photograph because its identity lies not in a synchronic cross-section, but in a [illegible]

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curation and administration. It is, in a legally relevant sense, what is continuously made of it within the environment that produces it. That is why the passage from the civil-law grammar to the consumer-law grammar is not merely a change of applicable code. It is the recognition that the time of performance is part of the very existence of the consumed object.

This temporal difference explains, in part, why the axis of the conflict also shifts. In the typical scenarios addressed by the doctrine of digital assets, the controversy revolves around ownership, circulation and extinction. The questions are who the owner is, whether the good can be inherited, whether the platform can block it after death, whether contractual clauses can bar disposal *inter vivos* or *causa mortis*. These are relevant conflicts, and the civil-law framework is well equipped to address them. In the typical scenarios addressed by the IOC regime, however, the controversy revolves around enjoyment, modulation and functional integrity. The questions are whether the object is still what it promised to be, whether the unilateral alteration preserved sufficient functional equivalence, whether the degradation produced by an ordinary update exceeded a legally tolerable margin, whether the opacity of the environment allows the consumer to reconstruct institutionally what was altered. These are questions that the civil-law framework can formulate but has no natural tool to answer, because its instruments were forged for another type of litigation.

It is also worth situating the difference between the relevant subjects in the two constructions. For the doctrine of digital assets, the legally central subject is the owner of the digital asset, often the user as holder of a digital estate whose preservation, transfer or allocation is in dispute. The vulnerability that matters in this framework is, as a rule, the existential vulnerability linked to the owner's personality or the patrimonial vulnerability linked to their holdings. For the IOC regime, the legally central subject is the consumer under a platform, living, active and in a continuous relationship with a supplier that concentrates architecture, curation, enforcement and the production of meaning. The vulnerability that matters here is contemporary factual vulnerability, of which semiotic vulnerability is a current [illegible] is not to be confused with any of the figures the civil-law [illegible] tionally worked with. The two vulnerabilities coexist in digital

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environments, but call for different protection techniques and activate distinct normative sources.

It should also be noted, for the sake of methodological honesty, that these differences do not make the doctrine of digital assets irrelevant to the present work. On the contrary, they reveal how precisely that doctrine must be invoked. Lacerda blocks, with a force that could hardly be achieved by any other route, the semantic fraud that would dissolve the digital asset into a mere permission of use revocable at any time. This block is irreplaceable, because without it the platform would win the controversy by private dictionary before it was even framed as a legal controversy. The doctrine of digital assets builds, in other words, the floor from which the debate on regime becomes possible. If the asset is legally light, dissolvable by mere contractual nomenclature and disposable at the supplier's unilateral will, any discussion of continuing enjoyment, functional equivalence and auditability becomes idle talk about something whose legal existence has not even been stabilized. Lacerda stabilizes that existence. This is the point of departure of the present thesis.

The methodological relationship between the two constructions can then be summarized in terms that reject both artificial competition and simulated continuity. The doctrine of digital assets rigorously answers the question of whether the techno-digital asset is a good. The IOC regime answers, with its own instruments, the question of whether the immaterial object of consumption remains enjoyable, in legally equivalent terms, within platform ecosystems. One builds the legal status of the asset; the other builds the legal regime of its continuous governance. One resolves the entry of the digital object into the world of law; the other resolves the persistence of the promised utility within a consumer relationship whose performance does not end with the initial act. That is why the thesis, instead of simulating that it has surpassed the prior civil-law step, embraces it and repositions it in its proper function. Lacerda provides the premise of the asset's legal existence. The IOC provides the regime for supplying the enjoyment that this asset, now legally recognized, sustains over time.

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y makes it possible to gauge clearly the dogmatic place that the doctrine of digital assets occupies in th

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nor a competing track, nor a prior track in a chronological sense that had to be surpassed. It is a contiguous and operationally complementary track, which addresses a layer of the phenomenon different from the one on which the present work concentrates and which, by virtue of that difference, makes the advance proposed here possible. Acknowledging this contiguity, instead of disguising it as competition, is an elementary requirement of dogmatic honesty.

Denying a contribution that structures the very possibility of the debate would, moreover, be rhetorically self-defeating, because it would weaken the floor from which the argument of governed enjoyment becomes intelligible. Recognizing the contribution in its proper measure, and marking precisely where the turn is necessary, is what allows the IOC regime to present itself as what it in fact is: an internal development of the consumer-law system based on the immaterial product already contained in art. 3, paragraph 1, of the Consumer Protection Code, built on a civil-law floor that seriously recognizes the legal existence of the digital asset and that, at the same time, leaves open the problem whose answer is the object of this thesis.

One further observation must be made before the comparison proceeds, because it concerns the way in which the doctrine of digital assets may be applied by third parties in concrete cases involving immaterial objects of consumption. The tripartite typology that distinguishes patrimonial, existential and mixed digital assets was formulated to answer problems of ownership, circulation and succession with precision, and it performs that role with recognized competence.

There is, however, a non-negligible operational risk when this same typology is invoked, without mediation, to resolve consumer disputes in platform environments. The risk is that the interpreter, faced with an object such as a skin, a champion, a cosmetic item, the ecosystem's internal currency or equivalent content associated with the account, immediately asks whether the asset is patrimonial, existential or mixed, and organizes the whole dispute around that classification as if it were enough to yield the applicable legal regime.

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at play was forged to answer what the asset is considered in itself, and not what the governed enjoyment made of it within a continuing consumer relationship is. The practical effect of this elision is problematic. The case receives a civil-law framing that is coherent in its own logic, but loses the platform's governance layer, which is precisely where the dispute usually lies in cases of continuous digital consumption.

It is therefore worth recording the methodological position this thesis adopts. The patrimonial, existential and mixed taxonomy, considered in itself, is neither discarded nor demonized. It remains a useful instrument when the conflict actually turns on ownership, succession, post mortem allocation or inter vivos disposal of the digital asset, cases in which the civil-law floor offers a technically adequate answer. The point, however, is that applying this taxonomy to platform consumer disputes demands a prior methodological step, and that step is verifying that the object in question is not merely a digital asset considered generically, but an Immaterial Object of Consumption under governed enjoyment.

When this qualification holds, the relevant initial question is no longer about the patrimonial or existential nature of the asset but about the regime of the enjoyment that this asset sustains within the environment that produces it. This inversion of the order of questions does not annul the civil-law typology, but restores it to its proper function, preventing the classification of the asset from improperly absorbing the entire legal framing of the case and from neutralizing the public-policy protections that the consumer-law microsystem brings into play when the digital object appears as an object of consumption in an environment continuously governed by a supplier.

This shift matters because, on continuous consumption platforms, governance does not act from outside on an already complete digital good. It is part of the very legally relevant utility of the object. Maintenance, updating, curation, enforcement, parameterization and intelligibility of the environment are not incidental vicissitudes of a fully given thing; they are constitutive dimensions of enjoyment. That is why the IOC is formulated as a concretization of the CDC's immaterial product, and not as a simple static “digital thing” anchored in the Civil Code's book on goods[636]. The civil-

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to validate the legal existence of the asset; it is not enough to

exhaust the consumer-law syntax of a form of consumption whose utility stabilizes only through continuous private administration.

This is the first relevant limit of the civil-law framework. It captures more sharply events of suppression, blocking, account termination, unavailability and transfer. It does an excellent job of showing that the digital object is not mist. The problem is that, in ecosystems of governed enjoyment, a decisive part of the conflict takes the form not of an abrupt withdrawal of the object, but of progressive functional erosion through ordinary modulation of the environment. The user apparently still has access to the object; yet its utility may be lowered by updates, balancing, reclassifications, interface changes, alterations of equivalence and continuous reorganizations of the regime of use. The nominal persistence of the asset, or even of the account, is not enough to rule out a defect. The conflict is no longer only about existence or availability, but about the substantial preservation of the function enjoyed.

The IOC category gains explanatory advantage by allowing continuing maintenance, modulation and administration to be treated as part of the consumer performance itself, and not as accidents external to an already formed good. This makes room for two *standards* that the purely civil-law framework sees less sharply: functional value equivalence, as a criterion for assessing a defect when utility is lowered without formal suppression, and open auditability, as a minimum requirement of controllability over relevant alterations in the supply regime. In other words, the IOC does not contest with the doctrine of digital assets the problem of "being a good"; it confronts the problem of "continuing to be enjoyable in a legally equivalent way".

The second limit lies in the very idea of vulnerability. The civil-law framework tends to work well with technical disadvantage, classic informational asymmetry, ownership, access and availability. But in governed environments the consumer's vulnerability goes further. It is also semiotic. The perception of loss, of degradation and of how much a downgrade matters depends on signs, interfaces, metrics, rarities, narratives of prestige, showcases and framings controlled by the supplier itself.

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perceive functional erosion and name what was actually lost. Where the platform controls not only the object but also the reference points by which the loss can be perceived and contested, vulnerability does not fit entirely within the classic schemes of informational deficit.

That is also why the critique of the rhetoric of the "revocable license" remains valuable, but not sufficient. The doctrine of digital assets is right to block the corporate attempt to requalify, by simple contractual nominalism, objects already integrated into the user's sphere as permissions dissolvable by unilateral will. When there is actual economic outlay or a relevant incorporation of utility into the subject's sphere, the language of the license is not enough to erase the legal density of the asset, nor to neutralize the application of public-policy norms LACERDA 637. This block is fundamental. Without it, the platform would always win by private dictionary. But even after this trick is barred, the central problem of the IOC remains: how to control, within an enjoyment that continues to exist, the ordinary mutations that corrode its functional and symbolic integrity?

The IOC regime recognizes that abusiveness does not necessarily reside entirely in a clause or in an event of overt blocking. In certain cases, it is built into the very design of the supply, when the architecture organizes inducement, extraction and the normalization of losses as an operating principle. The doctrine of digital assets is very helpful in identifying contractual nullities, arbitrary blocks and suppressions of assets. The IOC incorporates this layer, but adds another: reading architecture as conduct and abusive teleology as a design defect of the regime of governed enjoyment. This makes it possible to address not only abrupt withdrawal, but also managed deterioration.

That is why the function of this item is to provide a basis and a contrast, not a competing track. The doctrine of digital assets supports the crucial premise that digital assets are legal goods and that contractual precariousness is not the user's inevitable fate. At the same time, it reveals its own limits when the problem is no longer only ownership, transfer and availability, but the continuous governance of

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C regime takes on the civil-law gain, rejects the straw man of the legal non-existence of the digital and r

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matters. It seeks the protection of using, the control of functional integrity and, in certain cases, the protection of being, whenever enjoyment incorporates the symbolic identity and biographical continuity of the consumer user.

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630. The author is widely known as Bruno Zampier; however, the cataloging record of his work expressly gives Lacerda as his last surname, which is why, in this thesis, in compliance with the ABNT standard and the required formal conventions, the author is referred to by that surname and not by the better-known one. ↩

631. The incorporeality of the techno-digital asset neither dissolves it into legal irrelevance nor authorizes treating it as a mere side effect of technology. In the information society, information itself comes to occupy the place of an object of legal relationships, either because it constitutes a directly appropriable interest or because its violation produces legally relevant injuries. In this light, the protection of information ceases to be a peripheral theme and becomes part of the very core of the legal protection of the person and of their interests in the digital environment LACERDA. Digitally organized information can acquire a utility of its own and, for that reason, be treated as a legally relevant incorporeal good, with or without immediate economic content. Utility matters more here than tangibility: digital assets may correspond both to economically exploitable assets and to personal projections whose legal relevance derives from their place in the subject's sphere of interests LACERDA. This opening makes it possible to recognize seriously that incorporeality does not prevent appropriation, enjoyment or protection. The civil-law framework of digital assets thus resolves an essential problem: that of the legal existence of the techno-digital asset. That is also why it is indispensable to this item. The critical point the thesis will introduce later lies not in denying this gain, which would be methodological foolishness, but in showing its limit. Recognizing the legal status of the asset and its place in the subject's sphere is still not enough, by itself, to resolve adequately the conflicts that arise when enjoyment is continuous, mutable and governed in platform ecosystems LACERDA. ↩

632. The legal status of digital assets does not end with their mere abstract existence. Once recognized as goods, they also become susceptible to appropriation, circulation, enjoyment and protection, that is, they enter the legal world not as conceptual curiosities, but as objects subject to legally organized faculties and powers. The doctrine of digital assets is right precisely in rejecting the idea that incorporeality [illegible] use, enjoyment, disposal or transfer of the techno-digital asset [illegible]s consequence is dec[illegible] the outset the fantasy that the digi[illegible]

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be held in the hand. If the owner can delete it, assign it, encumber it or transfer it, then we are already dealing with a good dense enough to support legal positions typical of ownership. The enjoyment of the digital asset is therefore not a mere gracious tolerance granted by technology; it can be legally organized and protected, including through the assignment of use to third parties as a corollary of the very exercise of the corresponding subjective right LACERDA. This point is especially important because it strengthens the argument without resorting to terminological magic. The civil-law doctrine of digital assets forcefully resolves the problem of the asset's capacity to form part of an estate, to be enjoyed, to circulate in transactions and to receive legal protection. The insufficiency would lie not in this framework's inability to recognize the asset, but in the fact that, even while recognizing appropriation and circulation, it does not exhaust the conflicts of continuous enjoyment, unilateral mutability and functional governance in a platform environment LACERDA. ↩

633. “4.1. What is Virtual Content? (Virtual Content includes items such as in-game currency and virtual products, such as champions, skins, emotes, accessories etc). When using Riot's Services, we may offer you opportunities to acquire a limited license to access virtual goods, such as champions, skins, emotes etc., (“Virtual Products”) and in-game currency (“Game Currency”), associated with your account (together, referred to as “Virtual Content”). Game Currency may only be used for the specific game for which it was purchased, unless otherwise stated at the time of purchase.” RIOT GAMES. ↩

634. “4.2. How do I get a “license” to access Virtual Content? (Buy, earn or receive.) We may offer you various opportunities to acquire a limited license to access Game Currency or Virtual Content, including: buying it (e.g., with a credit card); earning it (e.g., by completing missions or game tasks); or receiving it (e.g., from another player as a gift or by using the crafting functionality such as Hextech®).” RIOT GAMES. ↩

635. The usefulness of the doctrine of digital assets also lies in offering an internal criterion for organizing the phenomenon, which keeps all techno-digital reality from being treated as an amorphous mass. Not every digital asset has the same structure, function or regime. There are assets with clearly patrimonial content, assets of an existential character, and cases in which both dimensions appear in combination. This distinction matters because it allows the legal effects of ownership, use, transfer and protection to be allocated more precisely LACERDA. This classificatory refinement is one of the most important gains of the civil-law framework, because it keeps the debate from getting stuck in vague generalities. Knowing whether the asset is patrimonial, existential or mixed is not academic taxonomic fussiness; it is what allows circulation, succession, the exercise of private autonomy and the protection of goods wner's personal sphere to be properly calibrated. The very adoption of n proposals for legis
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be honestly acknowledged because it strengthens, rather than weakens, the critical step of the thesis. The doctrine of digital assets classifies the asset well, distinguishes its species intelligently and provides a reliable compass for the rules on ownership and its circulation. The limit appears elsewhere: even with a good typology of the asset, the framework still does not fully resolve the problems that arise when the conflict no longer revolves only around ownership and comes to bear on continuous enjoyment, governed mutability and the functional integrity of the experience consumed on a platform LACERDA. ↩

636. Arts. 79 to 103 of the Civil Code provide the general classificatory background on goods, making it possible to situate technically the discussion of incorporeality, patrimoniality and the legal circulation of digital assets. Their function here is merely structural: to validate the use of the civil-law grammar of goods to recognize a minimum legal density in skins, virtual currencies and digital items, without shifting the dogmatic axis to pure civil law and without taking from the CDC the leading role in understanding and protecting the IOC. ↩

637. The contractual language of the precarious or revocable license is not enough, by itself, to dissolve the legal density of a digital asset already incorporated into the user's sphere. When there is actual economic outlay to acquire digital content or utilities, the mere corporate requalification of the relationship as a "mere license" cannot operate as a semantic trick capable of disfiguring the existence of a digital estate. In other words, the fact that the platform calls it a license does not oblige Law to pretend that it never had patrimonial substance LACERDA. The doctrine of digital assets makes it possible to state seriously that music libraries, video libraries, virtual libraries and other similar collections may form part of the user's estate, including for purposes of succession, despite corporate rhetoric to the contrary. The legal density of the good's incorporation into the subject's sphere does not disappear by private decree LACERDA. The same logic extends to clauses that seek to neutralize access to, use of or disposal of these assets in terms incompatible with public-policy norms. Provisions that absolutely prohibit access to the asset or its legal allocation may be null when they collide with the general parameters of the system, including those prohibiting the advance waiver of rights in adhesion contracts LACERDA. The value of this approach here is central: the doctrine of digital assets effectively blocks the nominalist dissolution of the asset. What the thesis will need to show later is that this block, although indispensable, still does not exhaust the problem when the enjoyment of the object is continuously governed, reconfigured and strained by the platform. ↩

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CONCEPTS IN THIS SECTION

Immaterial Object of Consumption (IOC)

Art. 3, paragraph 1, of the CDC already offers a sufficient basis for understanding the IOC as an immaterial product. The law does not make the product conditional on corporeality, nor does it tie it to the image of a tangible thing delivered once and for all. By expressly admitting material and immaterial goods, the system is already open enough to encompass objects of consumption whose utility is organized in a digital environment and realized through continued enjoyment. Reading the IOC this way, therefore, does not project a foreign category onto the Code. It makes explicit a dogmatic possibility already contained in the legal text itself, and dispels the idea that digital consumption would always depend on precarious analogies with traditional material media (Nunes, 2018, [p. 96; p. 160][638]; Nery Jr., 2011, p. 544-546[639]).

This legal openness matters because, in digital ecosystems, the object of consumption is not exhausted by abstract availability or by formally completed delivery. Its legal existence, as an object of consumption, depends on governed conditions of enjoyment. What the consumer acquires is not merely nominal access to an item or to an isolated utility, but a position of enjoyment whose functionality depends on maintenance, updating, modulation, intelligibility and continuity. The tradition of the CDC itself already allows this reading, because the core of the product category lies not in tangibility, but in utility economically organized to satisfy human needs FILOMENO[640]. Consequently, the legal standing of the IOC does not arise from an follows from the very normative structure of the immaterial

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That is also why the contractual form of the license is not enough to dissolve the legal density of the acquired enjoyment. The Terms of Service of *Riot Games* expressly recognize a core of "Virtual Content" associated with the account, made up of in-game currency, *skins*, *emotes*, accessories and other items, and admit that this content may be formed through purchase, earning, gifting or other internal dynamics of the ecosystem. This shows that the supplier itself already works with an identifiable virtual object functionally integrated into the consumption environment. The IOC category starts from this fact, but puts it back on the right ground. What matters is not merely the existence of a virtual asset associated with the account, but the fact that its utility only stabilizes through the environment that makes it enjoyable. The clause helps prove the existence of the object. It does not exhaust its regime.

The proposed reconstruction, then, is functional. The CDC protects not only an isolated "object", but also the conditions of enjoyment, access, maintenance and intelligibility that make it effectively consumable. In contemporary consumer relationships, what is offered to the consumer is a functional bundle of utilities, qualities, modes of performance, expectations and annexes that make up the very legal experience of the performance. The contractual object cannot remain tied to the image of the isolated material good, because protection already applies also to quality, functionality, information, status and security ensured in the relationship MARQUES[641]. It is exactly in this key that the IOC becomes intelligible. It legally names an object whose relevance lies not in a static existence, but in the enjoyment concretely organized and maintained over time.

This does not require a break with the grammar of the CDC. On the contrary, it stems from its evolutionary and functional use in the face of contemporary forms of supply. The system does not need to be replaced or remade. It needs to be read in close fit with the real problem it faces. The contemporary consumer also accumulates immaterial goods linked to leisure, security, information, status and well-being, and consumer law already has instruments to offer reasonable answers to these cases without abandoning its own protective matrix MARQUES[642]. The IOC, thus, is not a : an internal development of the system itself, built on the the law already pr

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The doctrine of digital assets helps to confirm this starting point, because it blocks any relapse into a dogmatics dependent on physical tangibility. Information, provided it carries appreciable utility, may be treated as a legal good and as an immaterial good. This recognition is important for the thesis because it rules out denying the legal relevance of the techno-digital object and reinscribes its legal status on the plane of consumption LACERDA643. But the inflection of the IOC begins precisely where the civil-law framework no longer suffices. The debate no longer centers on the existence or availability of the asset and turns instead to the way this object is offered, governed and enjoyed in continuous consumer relationships.

This shift is decisive because certain digital assets already admit, in their very nature, multiple enjoyment and complex legal relationships, which weakens any entirely static understanding of the problem. Information need not be thought of on the basis of a rigid model of exclusivity, and the very idea of property can be read as a relationship conditioned by social function and by internal limits of legitimacy LACERDA644. The IOC takes advantage of this opening, but shifts it to the field that matters. The question ceases to be only what exists legally and becomes how the enjoyment of this object is preserved, degraded, restored or made opaque to the consumer.

It is at this point that offer, quality, adequacy and trust come to operate in an especially important way. The CDC does not separate the offer from the product as if the former were an irrelevant promotional accessory and the latter an autonomous entity already closed in itself. Nonconformity with the offer and with advertising suffices to characterize consumer-law inadequacy, and quality defects by inadequacy are always measured in accordance with the consumer's legitimate expectation BESSA645. In IOCs, this means that the promised enjoyment cannot be reduced to the mere formal permanence of access. The immaterial object is also measured by the functional correspondence between promised utility and utility actually maintained in the course of the relationship.

The very breadth of the concept of product reinforces this reading. The CDC

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corporeal thing. The application of the consumer-law regime has always been explained by the placing of products and services on the market and by the consumption pole, not by a requirement of physical materiality of the supplied object (Nunes, 2018, [p. 89; p. 99])[646]. The interpretive tradition of the Code, therefore, already admitted incorporeal utilities and complex technological systems, including in contexts in which the acquirer's technical vulnerability justified legal protection FILOMENO[647]. The IOC category merely makes this potentiality more precise for cases of governed enjoyment.

This precision also appears when one observes the link between immaterial product, trust and functional adequacy. Organized information can be understood as digital goods offered as products in the consumer market, and protection is anchored less in the static existence of the object than in the utility the consumer relies on and legitimately expects MIRAGEM[648]. In products that depend on continuous services, the offer becomes the main criterion for measuring the legitimate expectation of use, and the duty to inform becomes decisive for assessing defect and adequacy MIRAGEM[649]. The IOC comes into focus precisely because it concretizes the immaterial product in a key oriented by the functional integrity of the promised enjoyment.

For this reason, the continuity of the bond and architectural opacity increase the weight of duties of predictability, reasoning and minimum verifiability. In a continuous consumption environment, protection applies not only to an isolated object, but to the conditions that make it consumable, because it is in them that the mechanisms of asymmetry and the points of possible relevant frustration are concentrated.

The IOC makes it possible to translate the phenomenon into manageable dogmatic language. It is not a matter of creating a "new CDC", but of making explicit how the system already offers tools to control unilateral reconfigurations and practices of private governance when they impact adequacy, trust and restoration. It is precisely this reconstruction that will open space, in the following sections, for open

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The methodological consequence of the item, then, is simple. The IOC does not replace the immaterial product of art. 3, paragraph 1. It concretizes it in a context of continuous and governed consumption. This prevents the object from being reduced to a technically granted and legally disposable permission, and also keeps the debate from being held captive by a static ontology of the digital asset. What the CDC protects here is not only the abstract existence of the object, but the acquired enjoyment in its functional, informational and relational integrity. This is the point that will later make it possible to deal with updating, modulation, downgrading and restoration without leaving the grammar of the system itself.

NOTES

638. The incorporation of immaterial goods into the CDC's field of application is a possibility already inscribed in the legal framework of art. 3, paragraph 1, itself, whose wording consciously abandoned the narrower civil-law vocabulary of the "thing" to adopt the contemporary category of "product", directly linked to the results of production and circulation in the consumer market. The CDC, following the contemporary concept, employs the term "product" and, in its definition, includes "any good", designating it as "movable or immovable" and also "material or immaterial" NUNES. This doctrinal record is relevant because it shows that the recognition of immaterial objects of consumption does not represent a graft foreign to the system, but a coherent development of a possibility already expressly admitted by the law. The author himself observes that "product" already admits the categories "movable, immovable, material and immaterial" provided for in art. 3, §1 NUNES. ↩

639. Nery Jr. also observes that art. 3, paragraph 1, of the CDC allows the product to be read beyond corporeal materiality by conferring a legal regime of their own on products, defined as "any good, movable or immovable, material or immaterial", which he considers a deliberately broader notion than that of "good" or "thing" in the Civil Code. The CDC does not make the configuration of the product conditional on physicality, and works with a category capable of encompassing incorporeal utilities placed on the consumer market. This openness takes concrete form, for example, in treating bank credit as an immaterial product subject to the elements of the consumer relationship JR.. The CDC was not guided by the criteria of the Civil Code, but created its own system in which both materially consumable goods and legally [illegible]oods may form part of relationships subject to the Code JR.. Reading the [illegible]etization of the immaterial product makes dogmatically explicit a potentiality contained in the norm

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640. Just as what qualifies the object of consumer-law protection is not its corporeality, but its appropriable economic utility intended for the satisfaction of human needs, the doctrinal tradition understands the economic good on the basis of its aptitude to form part of relationships of circulation in the market, shifting the focus from tangibility to economic function FILOMENO. This openness is reflected in the recognition of immaterial utilities, such as bank credit, as legitimate products within the scope of the CDC FILOMENO. The reading of the IOC as a concretization of the immaterial product does not break with the classic ground of doctrine, it merely carries forward an openness that doctrine itself already recognized. ↩

641. The identification of the contractual object of consumption within the scope of the CDC cannot remain tied to the traditional image of the isolated material good, as if legal protection applied only to a static thing detachable from its context of performance. In contemporary consumer relationships, what is offered to the consumer is a functional bundle of utilities, qualities, expectations and modes of performance that make up the very legal experience of the performance. Marques summarizes this shift by stating that, in the consumer contract, "what becomes important is the nexus of the performances and their balance (synalagma), not the performance itself, but its annexes, its quality, its functionality, the information that accompanies it, the status it ensures, the speed and the security of its rendering." MARQUES. The CDC system, supported by the theory of the social function of the contract, concentrates on the effect of the contract, so that the service rendered must be adequate for the purposes reasonably expected of it MARQUES. This reinforces that the IOC can be understood as a contractual object of consumption precisely because its legal status emerges from the concrete way in which the performance is organized, made available, maintained and enjoyed. ↩

642. The construction of the IOC as a concretization of the immaterial product provided for in art. 3, paragraph 1, of the CDC requires neither a rupture with the consumer-law grammar nor an artificial importation of categories foreign to the system. On the contrary, it stems from an evolutionary and functional reading of the microsystem itself, oriented by the need to understand contemporary forms of supply without abdicating the legal instruments already available for consumer protection. It is in this direction that Marques states that the adequate answer lies not in "proclaiming the uselessness of the traditional scientific instruments of law", but in the "use of the legal instruments we have, in particular the new Consumer Protection Code and the constitutional lines, so as to give reasonable and just answers to concrete cases" MARQUES. The contemporary consumer tends to become an accumulator also of services, doings and "immaterial goods" linked to well-being, security, leisure, status, [illegible]d credit, which requires the law to keep pace with this change [illegible]his key, the IOC app[illegible] the system itself. ↩

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643. The recognition of the legal status of the digital asset constitutes an important starting point for the construction of the IOC, because it guards against relapses into a myopic dogmatics that would only grant legal density to the corporeal. Information, provided it carries appreciable utilities, may be treated as a legal good and, by meeting the conditions for the recognition of a new category of immaterial goods, blocks the denial of its relevance in a digital environment LACERDA. This methodological continuity allows the thesis to maintain the legal recognition of the immaterial object while shifting the focus of the debate: instead of centering on the ownership or availability of the good, the problem turns to the way this object is offered, governed and enjoyed in continuous consumer relationships. The shift to the IOC does not deny the legal status of the digital asset, but reinscribes it in a key of its own linked to art. 3, paragraph 1, of the CDC, and becomes necessary when the debate reaches the functional integrity and the functional restoration of the consumed object. ↩

644. The doctrine of digital assets itself offers elements that help shift the debate beyond the pure grammar of ownership by recognizing that certain goods admit multiple enjoyment. Information, as a good of plural enjoyment, makes it possible to overcome the classic view according to which a good could only be thought of on the basis of the exclusive enjoyment of a single subject LACERDA. The same holds for the understanding of property as a complex legal relationship involving duties that condition the legitimacy of the exercise of the right, among them the social function LACERDA. This inflection shows that the passage to the IOC does not depend on denying the doctrine of digital assets, but on carrying it to the point at which the pure language of ownership already proves insufficient. When the focus falls on how enjoyment is governed and altered in continuous consumer relationships, the IOC category is justified in order to shift the debate from the existence of the asset to the functional integrity of the consumed experience. ↩

645. In the CDC, product, offer, quality and adequacy make up a single protective logic, which reinforces the dogmatic plausibility of treating the IOC as a concretization of the immaterial product. The Manual shows this when commenting on art. 18 and highlighting that the system recognizes not only defects that render the product unfit for consumption or diminish its value, but also defects arising from the disparity between its real characteristics and those conveyed in the offer and in advertising BESSA. The dogmatic consequence is decisive: the offer does not hover outside the product as an irrelevant promotional detail, but forms part of the very legal criterion for assessing its quality and adequacy. The Manual further observes that, in this third kind of defect, nonconformity with the offer suffices to characterize consumer-law inadequacy, even if there is no intrinsic defect in the good and no immediate material s value BESSA. Reinforcing this, quality defects by inadequacy are onconformities relating to the performance of the product or service, to

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the fulfillment of its purpose and also to its durability, always “in accordance with the consumer's legitimate expectation” BESSA. ↩

646. The legal framework of the CDC proves broad enough to admit non-corporeal objects of consumption without any need for interpretive rupture. The application of the consumer-law regime is explained by the consumption pole and the placing of products and services on the market, and not by a requirement that the supplied object be physically material. The system regulates the products and services offered and sold on the market, a logic that holds both for corporeal goods and for supplied water and electricity or for money lent by a bank NUNES. Along the same lines, commenting on the legal enumeration of banking and financial services, Nunes notes that the express designation of these activities serves to prevent certain economic agents from escaping the scope of application of the CDC, and does not signal doubt about the immaterial nature of this type of service NUNES. This helps to show that the thesis does not inject a foreign body into the CDC; it merely develops a possibility contained in it. ↩

647. The reading of the product in the CDC is not limited to corporeal goods, since the system itself recognizes that consumer relationships encompass movable and immovable, material and immaterial goods FILOMENO. The openness of art. 3 allows protection to apply to economically organized incorporeal utilities, as can be seen in the application of the Code to complex technological systems and software maintenance, in which the acquirer's technical vulnerability justifies legal protection FILOMENO. Treating the IOC as a concretization of the immaterial product does not mean doing violence to the legal text, but making explicit a possibility already incorporated into the interpretive tradition of the consumer-law microsystem. ↩

648. The reading of the IOC as a concretization of the immaterial product does not introduce a foreign body into the CDC, but makes explicit a normative potential already contained in art. 3, paragraph 1. Organized information can be understood as digital goods over which ownership and offer fall in the form of products that, under the terms of the CDC, may be immaterial goods MIRAGEM. The importance of this breadth grows in the face of the economic growth of goods produced exclusively by means of computing, a scenario in which the legislator anticipated the regulation of the internet by making consumer protection norms fully applicable MIRAGEM. The value of the approach lies in recognizing the functional breadth of the concept of product without imprisoning it in physical corporeality, allowing the CDC to treat techno-digital objects within a consumer relationship, shifting the focus from ownership to legally protected enjoyment. ↩

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product, offer, trust and adequacy in a functional key, Miragem helps
now that the IOC is
development of its protective logic

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the specific duties imputed to the supplier, both liability for the accident and liability for the defect of the product or service are linked to the so-called theory of quality, which, in turn, is anchored in the protection of the consumer's trust. It is precisely this foundation that imposes on the supplier a general duty to offer products and services that are safe and adequate for the purposes intended for them MIRAGEM. The notion of product in the CDC is not exhausted in the static identification of a good, but projects itself functionally onto the utility entrusted to and legitimately expected by the consumer. Miragem's reading becomes even more relevant when dealing with new products dependent on services provided by the supplier, continuous or not, under the assertion that, in these cases, the terms of the offer become the main criterion for gauging the consumer's legitimate expectations. According to the author, the fulfillment or non-fulfillment of the duty to provide correct, clear, precise and conspicuous information about the characteristics and qualities of the product is what will measure the consumer's legitimate expectation as to its use, including for purposes of contractual binding and of the supplier's liability under arts. 18 and 20 of the CDC MIRAGEM. That is, the adequacy of the object is not read as an abstract quality enclosed in its materiality or in its nominal existence, but as a functional correspondence between the utility promised in the offer and the enjoyment actually delivered. It is precisely this perspective that makes the CDC speak of an immaterial product not only to open the doors of the system to incorporeal objects; but also so that its protection is organized on the basis of trust, offer, adequacy and restoration. Miragem thus helps to shift the debate from a civil-law ontology of the good to a functional reading of the object of consumption, in which what is relevant is not only the legal existence of the asset, but its aptitude to achieve, reliably and adequately, the purposes legitimately projected by the consumer. By concretizing the immaterial product of art. 3, paragraph 1, the IOC is consolidated through a consumer-law perspective oriented not by the mere ownership of the asset, but by the functional integrity of the promised enjoyment. ↩

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CONCEPTS IN THIS SECTION

Semiotic vulnerability

To be of dogmatic use, semiotic vulnerability cannot be treated as a loose cultural metaphor or as a judgment about the consumer's psychology. It designates a contemporary form of factual vulnerability produced by the way supply is organized in platform environments. In IOCs, the relevant asymmetry does not lie only in the fact that the consumer knows less about the system's internal characteristics. It arises because the platform controls the very instruments that make the relationship intelligible, that is, the signs, interfaces, metrics, framings and records through which the consumer forms expectations, assesses enjoyment, perceives downgrading and tries to mount a challenge. The consumer's vulnerability remains the pillar of the CDC's special protection, and it is precisely for this reason that semiotic vulnerability must be understood as a contemporary specification of this structural datum, and not as a parallel or extravagant category MARQUES 650.

This point calls for an important distinction. Semiotic vulnerability does not describe the user's lesser individual discernment, psychological naivety or subjective susceptibility. The problem lies in the objective way the environment organizes language, visibility, comparison and proof. On platforms, the consumer depends on governed mediations to understand what they acquired, to perceive whether the experience was altered and to identify whether a legally relevant loss occurred. This means that the platform not only supplies the object, but also administers the

ough which that object can be perceived and measured. The no longer merely i

becomes semiotic as well, because the supplier controls the regime through which the meaning of enjoyment itself is produced.

It is precisely this that sustains the category under the CDC. The consumer's vulnerability does not act merely as the system's sociological backdrop. It is normatively linked to good faith, the duty to inform, transparency and the protection of trust. The consumer's autonomy depends on positive duties to inform, to cooperate and to act with fairness and care, because without this minimum standard of conduct the decision to contract is not rational in a legally relevant sense MARQUES[651]. Semiotic vulnerability is anchored precisely in this mechanism. It shows that, in governed environments, the duty to inform cannot be reduced to a bureaucratic dumping of data or to rituals of acceptance. What is at stake is the creation of minimum conditions for actually understanding enjoyment and its relevant alterations.

For this reason, informational inadequacy is not limited to simple omission. The supplier may appear transparent and still produce material opacity through excess, dispersion, low practical utility, overly technical language or a communicational organization that frustrates understanding. Ensuring formal access to information is not enough. It must be correct, clear, precise and conspicuous, without useless prolixity or strategic scarcity, and the supplier may not set up barriers that negatively interfere with the consumer's capacity to understand the terms and conditions of the contract WADA[652]. Once again, this makes it possible to formulate semiotic vulnerability without psychologizing the consumer. The problem is not inner weakness. The problem is a communicational architecture that appears to inform while organizing noise.

A decisive consequence follows: in IOCs, the platform controls not only the modulation of the object. It also controls the means by which that modulation can be perceived, named and compared. Storefronts, metrics, rarities, narratives of prestige, reputational systems, visual *feedbacks*, progression histories and interface framings are no longer peripheral elements of the environment and become part of the consumed object itself. When these elements are reorganized unilaterally, the relevant loss may be ol

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The consumer keeps nominal access, but loses functional or symbolic utility without finding clear criteria to measure the erosion. It is this kind of asymmetry that the category seeks to make visible.

The CDC already offers instruments for this, because the problem is not confined to the abstract plane of communication. Abusive practices involve precisely the supplier's use of its position of power to impose conduct on the consumer in violation of the duties of fairness, cooperation and respect for legitimate expectations. Abusiveness may also arise from the asymmetrical exploitation of the relevant meanings of the consumer relationship, especially when lengthy, obscure or surprising clauses compromise the quality of the information and the adhering party's consent MIRAGEM 653. Semiotic vulnerability thus remains within the trunk of consumer law. It merely names more precisely a current form of exploiting a vulnerability that the system's institutes already intuited.

This reading also clarifies why the “governed environment” does not compete with the “immaterial product”. In the IOC regime, the governed environment is a condition for the legal existence of the consumed product itself. The object can be enjoyed only while the platform maintains, administers and modulates access, signs, rules of use and parameters of intelligibility. This means that the environment is not an external frame of the performance, but a constitutive element of the product as legally consumed. Relevant alterations in the architecture of enjoyment may correspond, in dogmatic terms, to alterations of the object of consumption itself. Semiotic vulnerability makes intelligible precisely the asymmetry this arrangement generates, because the platform administers both the object and the means of reading it.

This category also reorganizes classic problems of the CDC. If enjoyment depends on continuous maintenance and modulation, delivery cannot be conceived as a purely one-off act. If utility can be reconfigured, inadequacy is not limited to the obvious defect of a static thing. If there is no clear endpoint of performance, identifying the quality defect must take into account the real moment when the degradation

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e and verifiable. If the promise circulates through signs, advertising, narratives and interfaces, t

enjoyment cannot be measured solely by the letter of a contractual text. Semiotic vulnerability thus functions as a category for attributing the structural asymmetry that justifies reconstructing the duty to inform, trust, adequacy and abusiveness in an opaque and mutable environment.

This problem bears directly on proof. In technically sophisticated ecosystems, the supplier controls not only the service, but also the documents, the records, the technique and the very intelligibility of the relationship. Often the consumer's difficulty is not only economic, but factual and technical. The necessary evidence is not in their hands. It lies with whoever administers the environment, the *logs*, the parameter settings and the relevant histories.

Facilitating the consumer's defense and redistributing the burden of proof become decisive in relationships of this kind. The technological specialization of the service and the supplier's dominant position make the reversal of the burden of proof, in many cases, the only instrument capable of actually enabling consumer protection MIRAGEM 654. Semiotic vulnerability is, at this point, also evidentiary vulnerability.

Consumer protection, then, is not satisfied by formally available information. It requires contracting that is informed and conscious to a degree sufficient for the consumer to know, decide on and properly use the product or service. The information the system protects is valued for its practical usefulness in offsetting vulnerability, and not as a bureaucratic ritual of offloading data WADA 655. On platforms, this means that intelligibility is not communicational ornament. It is a functional prerequisite for the decision-making usefulness of information itself and, therefore, for the legitimacy of the supply.

The foundational basis of the category's dogmatic usefulness is thus identified. Semiotic vulnerability neither replaces the *standards* formulated nor merges with them. It identifies the relevant structural asymmetry in IOCs and allows the problem to be brought back to classic CDC categories without reducing the dispute to a “mere environmental problem” external to the object. On that basis, the next steps of the

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ıanageable, in particular the requirement of institutional

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more realistic allocation of the burden of proof in the face of opaque and governed mutations of enjoyment.

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650. To remain dogmatically useful, the formulation of semiotic vulnerability must be understood as a contemporary development of a structural datum that already organizes the consumer-law microsystem: the consumer's vulnerability as the permanent foundation of the CDC's protective interpretation. The point is not to create a parallel category, cut off from the system's grammar, but to specify, in the context of platforms, one of the ways in which the imbalance of power between supplier and consumer manifests itself today. Marques puts this quite directly when she states that, in consumer contracts, "the problem is the flagrant imbalance of power between the contracting parties. One of the parties is vulnerable (art. 4º. I), it is the weaker pole of the contractual relationship, since it cannot discuss the content of the contract", and as a rule can only accept or reject the pre-drafted package MARQUES. The author adds that the definition of consumer is "the pillar that sustains the special protection", because that protection exists only by reason of the consumer party's vulnerability in market relations MARQUES. Seen this way, semiotic vulnerability appears as a contemporary form of factual vulnerability, traceable to good faith, the duty to inform, the protection of trust and contractual balance. ↩

651. Under the CDC, the consumer's vulnerability does not act merely as a sociological premise of the protective regime; it is normatively linked to objective good faith and the duty to inform, forming an operative core for containing the market's typical asymmetries. This means that the consumer's structural fragility is addressed in law by imposing positive duties on the supplier, above all in the formation and conduct of the contractual relationship. Marques makes this mechanism explicit when she stresses that the idea of "rational autonomy" depends precisely on ancillary duties to inform, to cooperate and to treat the consumer with fairness and care, since only with this "new standard of conduct in the market" can the consumer reach a "truly reflected, autonomous and 'rational" will MARQUES. Along the same lines, the author states that the CDC seeks "transparency and harmony in consumer relations", imposing good faith as a requirement to prevent market practices from "making use of consumers' vulnerability", with the duty to inform being "a basic duty of suppliers" MARQUES. This keeps semiotic vulnerability anchored in the normative ground of the microsystem. ↩

652. In this sense, Wada (2016) helps show that informational inadequacy, in consumer

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ıced to the simple absence of data. The failure may also arise when the es only formal access frustrate its practical intelligibility.

communication that is materially insufficient, through excess, dispersion, complexity or little concrete usefulness. Along these lines, the author expressly states that “it is not enough to ensure formal access to information”, and that it must have the legally required attributes of “correctness, clarity, precision and conspicuousness” WADA. The requirement is qualitative, not merely quantitative. Seen this way, informational noise also makes the consumer vulnerable. Information must be “precise (= neither prolix nor scarce)”, precisely so that it remains comprehensible and serviceable to the consumer's decision-making WADA. The author further observes that the supplier may not interfere “significantly and negatively with the consumer's capacity to understand the terms or conditions” of the contract, nor set up “barriers or difficulties” to understanding WADA. Hence the relevance of treating semiotic vulnerability as a contemporary form of factual vulnerability: not because the consumer is psychologically weak, but because they may be exposed to communicational architectures that appear transparent while producing material opacity. ↩

653. The formulation of semiotic vulnerability remains internal to the CDC when it is read through the interplay of vulnerability, good faith, the duty to inform, trust and abusive practices. Abusive practices involve a breach of the supplier's duty of fairness toward the consumer, notably, in many cases, through the supplier's use of its position and power to impose a certain conduct on the consumer. In these cases, there is a breach of the duties of fairness, cooperation and respect for legitimate expectations arising from objective good faith, which include positive duties of clarification and transparent advice, as well as a duty to refrain from conduct that takes advantage of vulnerability and affects the consumer's freedom to negotiate MIRAGEM. This reading is reinforced in the treatment of surprise clauses. Their abusiveness stems, even before any breach of balance in the strict sense, from the breach of the duty to inform the consumer, above all in overly long or complex contracts entered into by a lay consumer. In these situations, the supplier bears a duty of adequate clarification, failing which informational insufficiency is presumed and the quality of consent is compromised MIRAGEM. The category of semiotic vulnerability thus does not abandon the trunk of consumer law; it merely names more precisely a contemporary form of factual vulnerability that its own institutes already intuited: the asymmetrical exploitation of the relevant meanings of the consumer relationship. ↩

654. The CDC's response to contemporary asymmetries is not limited to the substantive plane of information and abusiveness; it already extends to the procedural plane of proof. The specialization and technological sophistication of products and services, combined with the consumer's economic or technical weakness, make the reversal of the burden of proof, in many cases, the only means capable of allowing the claim to

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s explained by the supplier's dominant position, since it holds in-depth vledge and controls documents, records and the contracting process itself MIRAGEM. Often the consum

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necessary evidence is not in their hands but in the supplier's. This is not merely an economic obstacle, but a factual impossibility tied to the lack of conditions, including technical ones, for producing evidence, because the power of direction and specialized knowledge belong, as a rule, to the supplier MIRAGEM. Seen this way, semiotic vulnerability can also be perceived as a contemporary form of evidentiary vulnerability: whoever controls not only the service, but the records, the technique and the intelligibility of the relationship, also controls much of the conditions for challenging it. The CDC already responds to this by redistributing burdens and facilitating the defense. ↩

655. Consumer protection is directly tied to the requirement of information that is not merely formally available, but materially capable of guiding a decision. Legally adequate communication must produce genuinely informed and conscious contracting, that is, a state of understanding sufficient for the consumer to know what they are binding themselves to and to deliberate with a minimum of autonomy. For this reason, Wada states that, for the normative program of protection against abusive commercial practices, it is essential to ensure the consumer "informed and conscious contracting", since "only thus will they be able to make their decision and enter into the commitment with the supplier" WADA. This requirement has a clearly rebalancing function. The information the consumer-law system protects has no value in itself, as a bureaucratic rite of offloading data, but for its practical usefulness in offsetting the consumer's vulnerability. The author observes that this limit on the supplier seeks precisely to "rebalance the consumer relationship", giving the consumer the opportunity to "know, negotiate and decide" WADA. Along the same lines, the author maintains that, given the consumer's lack of capacity to choose or use the product or service properly, the supplier comes under a duty to provide the performance under conditions that allow the consumer to "make their choices and use the product or service properly" WADA. Intelligibility, therefore, is not communicational adornment: it is a functional prerequisite for the decision-making usefulness of information. ↩

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The expression “digital vulnerability” will not be adopted here because, although it is descriptively useful, it yields little dogmatically. It names the environment in which the injury occurs, but does not isolate the legally relevant mechanism of the asymmetry. In this vocabulary, “digital” works as a marker of setting, and not as an operator of attribution. That may be enough to signal that technology-mediated consumption has something specific about it, but it is not enough to guide, with precision, the passage from fact to normative consequence. The problem is not merely semantic. It is methodological. To be legally useful, a concept must cut reality so as to make the conflict tractable, stabilizing what matters for duty, evidence, unlawfulness and remedy. When the category describes only the environment and not the mechanism, it yields little for decidability JR. 656.

This demand for delimitation is not terminological fussiness. Legal dogmatics works by functional simplification, not by a total description of the social world. Its task is to produce operational concepts that bring the conflict back to the measure needed to make it tractable. Categories too closely tied to the setting tend to fail precisely where the law most needs them, because they keep their descriptive breadth and lose the capacity to qualify the fact in terms of attribution and consequence. That is exactly why the expression “digital vulnerability” proves insufficient. It points to a diffuse field of risks and asymmetries, but does not make sufficiently clear which form of vulnerabilization is at stake or how that form should be translated into duties and protective responses JR. 657.

The difficulty becomes clearer when one looks at recent doctrinal use of the label. [illegible] ontext, “digital vulnerability” may designate technical and [illegible], an information d[illegible] infrastructure, algorithmic opacity, tec[illegible]

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economic asymmetry. The result is an aggregating but poorly disciplined concept. It manages to bring real contemporary phenomena into a single frame, linked to the consumer journey, data protection, digital advertising, *profiling* and abusive practices in an information-intensive market PALMEIRA[658]. The problem is that, by condensing many different layers of risk, the expression no longer indicates which of them matters legally in each case. Instead of cutting the problem, it piles it up. And when the category piles up too much, the evidence scatters and the remedy swings between excessive abstraction and casuistry.

This deficit is especially acute at the level of legal technique. A concept does not serve only to describe a socially worrying situation. It must offer a normative form stable enough to say what must be proven, which duty was strained or breached and which consequence fits the case. Empirical data do not, by themselves, automatically enter the universe of law. Their relevance depends on their insertion into a normative structure that makes them intelligible and operable. There is no raw legal fact. There is fact legally filtered by a normative form capable of turning it into a criterion of practical discipline REALE[659]. That is why "digital vulnerability" proves weak. The expression names a state of affairs, but does not on its own provide the bridge between that state of affairs and the normative judgment that should follow from it.

The same critique can be put another way. The legislator and the jurist do not act as sociologists who merely portray phenomena. They start from what is in order to determine what ought to be, attaching legally relevant consequences to the conduct provided for. A category that stays on the descriptive plane, tied to the technical climate of the problem, does not perform this function well. Broad labels tend to produce the language of a period without disciplining the reconstruction of the relevant factual basis. It is therefore not enough to recognize that the injury occurs in a digital medium. It must be converted into a normatively filtered category, capable of guiding judgments of lawfulness, duties of conduct and attributable consequences REALE[660].

The same insufficiency also shows clearly in other competing vocabularies. The

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of expressions such as "electronic", "virtual", "digital" or "technological vulnerability" already re

problem, but also the difficulty of naming it with sufficient precision. Such formulas are useful for indicating the setting in which the difficulty emerges, especially when technology operates as an obstacle to access to justice, to understanding or to the exercise of legal positions[661]. But they remain very close to the technical frame of the problem and are less able to identify the legally controllable mechanism of the asymmetry MAIA[662]. They help to say where the problem happens. They say less about how it arises in legally relevant terms.

Hence this discussion adopts the expression "semiotic vulnerability". The category targets a mechanism, not a setting. The central point lies not in the fact that the relationship takes place in a digital medium, but in the way signs, discourses, interfaces and framings organize expectation, understanding, adherence, perception of value, perception of risk and perception of frustration. Language does not operate as ornament. It functions as an institutional technique of power. The legally relevant problem becomes the unequal administration of meaning, that is, the way the platform organizes the conditions under which the consumption experience itself becomes intelligible. It is in this key that signification can be analyzed as an instrument of social control, normalization and the production of consensus, and not merely as a neutral vehicle of information WARAT[663].

This formulation has the advantage of shifting attention from the descriptive surface to the structure that produces legal effects. The focus no longer falls on the technological environment as such, but on the socially operative production of meanings that conditions how the experience will be lived, accepted and reproduced. Languages and discourses do not merely transmit informative content. They produce normative resonances, legitimize arrangements and make certain modes of functioning appear unquestionable. Hence the pertinence of abandoning environmental labels in favor of categories that isolate the actual mechanism by which meaning is produced WARAT[664].

The methodological shift can be reinforced by a limited parallel. Critical categories [illegible] they are reduced to the environment, the medium or the setting in [illegible] The problem lies n[illegible] social relation it mediates. When a cate[illegible]

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the mechanism, it keeps its intuitive force and loses its operative force. The same risk arises with “digital vulnerability”. The reference to the digital tends to indicate the technological environment of the injury, but not necessarily the specific way in which the legally central asymmetry is produced. The shift to “semiotic vulnerability” seeks to avoid precisely this reduction DEBORD 665.

In the IOC regime, this terminological choice is not only more precise; it is more useful. The platform does not merely provide information. It manages the showcase, the store, events, metrics, signals of rarity, promises of equivalence, narratives of value and the very framings through which consumers perceive what they acquired. The relevant asymmetry is not merely a lack of data. It is the unequal administration of the meaning of the object consumed. In such environments, expectation, consent, perception of value and perception of frustration are modulated by language and by design. Semiotic vulnerability makes it possible to name exactly this plane of incidence, without lapsing into subjectivism or environmental generalities.

The same choice also brings an operational gain. It reorganizes the duty to inform in a qualitative rather than quantitative key. Ensuring formal access to data is not enough. Information must be correct, clear, precise and conspicuous, without excess, dispersion or barriers that undermine its practical usefulness for the consumer's decision. When communication looks transparent while producing material opacity, the problem lies not only in omission, but in how the meaning of the relationship is organized. The requirement is no longer “more information” but information capable of guiding decision, understanding and proper use of the product or service. This is what allows the move from the environmental label to the normative reconstruction of the mechanism.

The aim is an applicable and minimally reliable discipline. Replacing “digital vulnerability” with “semiotic vulnerability” makes the passage from fact to legal consequence more controllable. The duty to inform can be reconstructed as a requirement of adequacy and usefulness for decision, and not as a mere volume of data. Advertising becomes controllable by criteria of ambiguity, relevant omission,

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uthfulness. Transparency stops being a showcase word and comes closer to a requirement of institutional

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can be qualified, where appropriate, not merely as the context of the abuse, but as the very structured form in which it is produced. The gain is not aesthetic. It is dogmatic. The category delimits the mechanism better, disciplines the evidence better and prepares the remedy better.

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656. Replacing the expression "digital vulnerability" follows from a requirement of dogmatic operability. In legal discourse, it is not enough for a category to name, in broad terms, a technological environment marked by asymmetries and opacities; it must allow the legally relevant problem to be delimited, criteria of attribution to be stabilized and the passage to duty, unlawfulness, evidence and normative consequence to be guided. In this key, dogmatics is not organized to describe reality exhaustively, but to select, among its many aspects, what matters for the decision. As Ferraz Jr. observes, "unlike zetetic theories, dogmatic ones, concerned with the decidability of conflicts, do not take care to be logically rigorous in the use of their concepts and definitions, for to them what matters is not the relation with the phenomena of reality (describing the phenomena), but rather making a cut in reality, isolating the problems that are relevant for decision-making and diverting attention from the others" JR.. An overly broad expression may therefore have descriptive yield and still remain legally weak if it delimits neither the specific mechanism of vulnerabilization nor the form of its normative incidence. This is where the critique of the formula "digital vulnerability" holds, since its breadth tends to name a setting without stabilizing, with sufficient sharpness, the legally central asymmetry. The problem, then, is not one of empirical truth but of dogmatic yield, since, as the author notes, "its problem is not properly a question of truth, but of decidability" JR.. ↩

657. The refusal of excessively broad categories is also justified because legal dogmatics makes a conflict tractable only when it brings it back to a technically controllable plane. What enters legal reasoning is not the whole environment, but only the slice needed for its normative qualification and its decision. Ferraz Jr. stresses this closure when he states that dogmatics works by functional simplification of reality, producing "operational concepts" that make the technical handling of the problem feasible JR.. Expressions too closely tied to the setting, though intuitively strong, may fail precisely where the law most needs them, especially in organizing the fact in terms of attribution, evidence and consequence. This is where the insufficiency of "digital vulnerability" shows. The expression points to a diffuse field of risks and asymmetries, ıdicate precisely enough what the legally relevant mechanism is or how anslated into duties a
Ferraz Jr. observes that concrete co

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economic and political dimensions, become legally tractable only when they are brought back to the measure needed for their decidability, and not addressed "in all their concrete extension, but to the extent necessary for their decidability with a minimum of social disturbance" JR.. It is this criterion that underpins, here, the preference for a more sharply delimited and controllable category. ↩

658. The notion of vulnerability in the digital environment is genuinely useful descriptively because it brings together, in a single frame, contemporary risks linked to the consumer journey, data protection, digital advertising and informational opacity. In this sense, the digital market is marked by growing difficulty in ensuring transparency in marketing practices based on monitoring, profiling and message targeting, as well as by opacity in testing processes, the use of *dark patterns*, the insufficiency of consent as a legitimating basis and recurring security incidents involving personal data PALMEIRA. The category thus clearly captures a contemporary ecosystem of risks and asymmetries. This aggregating character grows denser when hypervulnerability is tied to the consumer's simultaneous position as the target of market practices, as the raw material of the marketing system and as a product traded among its members, to which are added informational asymmetry and the spread of abusive practices founded on predicting and manipulating the consumer journey PALMEIRA. ↩

659. The refusal of the expression “digital vulnerability”, at this point, follows from an elementary methodological requirement: a legally useful concept cannot merely describe an environment, but must offer a normative form capable of converting social data into an operable criterion of attribution, evidence, duty and consequence. For Miguel Reale, empirical data do not, by themselves, automatically enter the legal universe; their relevance depends on their insertion into a normative structure that makes them intelligible and operable. The mere reference to the “digital” may therefore name a technical or historical setting, but it remains insufficient when it does not stabilize the legally relevant mechanism that explains the injury or guides the system's response. As the author states, “one cannot speak of Law, in the full sense of this word, without encompassing its essential moment of normativity, for social facts are only legal when inserted in a normative context” REALE. Along the same lines, the legal norm corresponds to the “moment of integration of a class of facts according to an order of values”, and cannot be understood without simultaneous reference to these two poles, which it “dialectically integrates in itself and surpasses” REALE. The broad label “digital vulnerability” proves dogmatically loose, since it points to a context but does not, on its own, turn social experience into a sufficiently precise legal criterion. ↩

660. The critique of categories that remain on a merely descriptive plane finds direct
guel Reale. For him, legal construction is not satisfied with simply
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criterion of practical discipline. The legislator therefore does not act “in the manner of the sociologist”, merely portraying facts as they are; on the contrary, the legislator starts from what is in order to determine what ought to be, attaching legally relevant consequences to the conduct provided for, in case the norm is observed or violated REALE. It is precisely this disciplined passage from fact to norm that keeps the legal concept from dissolving into an impressionistic label or the mere language of a period. In this key, broad categories that only name contexts or environments fail when they cannot stabilize a legally relevant fact-type. Reale states explicitly that “one cannot speak of a legal fact except to the extent and insofar as it is inserted in a normative structure”, which is why “there is no raw fact in Law” REALE. ↩

661. When technology comes to be treated as an obstacle to access, to understanding or to the exercise of legal positions, the methodological risk lies in turning this finding into an overly broad category. The vocabulary of “electronic vulnerability” illustrates the point: it makes it possible to name real situations of exclusion or difficulty produced by the technological environment, but tends to work more as a description of context than as a dogmatic instrument of attribution. The focus remains on the fact that technological change can render people vulnerable and exclude them, as happens with those shut out of access to justice in settings of electronic proceedings, Online Courts, Justice 4.0, Justice 5.0 and ODR platforms MAIA. This formulation has real descriptive merit, but its explanatory force rests mainly on the idea of a technological obstacle, and not on a finer identification of the legal mechanism that turns this barrier into a controllable asymmetry within a regime such as the CDC's. The category points to the context of exclusion, but does not stabilize, with the desirable sharpness, the specific way in which the injury is produced. This becomes even clearer when the problem is placed within the broad horizon of Society 5.0, the 4th Industrial Revolution and their systemic effects on access, which call for special attention to the so-called technologically vulnerabilized MAIA. The summary of the so-called sixth renewal wave of access to justice confirms this design: it is presented as a field devoted to analyzing and mitigating technology as an obstacle to a just legal order MAIA. The vocabulary helps to name the barrier, but still falls short of explaining, with sufficient precision, the legal mechanism of the asymmetry. ↩

662. The recent proliferation of labels such as “electronic”, “digital”, “virtual” or “technological vulnerability” already reveals, by itself, an important methodological difficulty: the field perceives that there is a new problem, but still wavers over how to name it. These expressions are descriptively useful for indicating that certain asymmetries emerge in a technically mediated environment, but they tend to stay very close to the setting in which the injury occurs, and are less able to identify, with [illegible]pness, the legally relevant mechanism of vulnerabilization. It is in this speaks of “cyber or electronic vulnerability”, also called virtual, technological or digital vulnerabili[illegible] obstacle to access to justice MAIA. This feature is reinforced when the terminological

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dispute itself turns on whether “digital” or “electronic” covers more ground, that is, on which name best covers the technical environment, and not on which category best individualizes the legally controllable factual basis. The remark that “electronic” could be an even broader term, since it also reaches digital phenomena, makes it all the more visible how far the axis of the formulation remains centered on the technological frame of the problem [MAIA]. The category comes to name the technical climate of the injury, but not necessarily its mechanism. The same happens when technological vulnerability is described as an individual's technical, informational, material or organizational limitation in dealing with information and communication technologies [MAIA]. It helps to say where the problem happens and in what kind of setting it intensifies, but still offers less precision for reconstructing, in a consumer-law key, duty, evidence, attribution and remedy. ↩

663. The refusal of the expression “digital vulnerability”, at this point, can be taken further with Luis Alberto Warat, because his semiology of power shifts the focus from the mere technical environment to the mechanism that actually matters in producing subjection. The problem lies not in the “digital” taken as a generic setting, but in the way signs, discourses and communicative framings organize understanding, expectation and adherence. Warat states explicitly that signification must be analyzed “as an instrument of social control”, “as a normalizing and disciplinary strategy of individuals”, “as a formula producing consensus” and “as persuasive power provoking effects of verisimilitude over the material conditions of social life” [WARAT]. The decisive point, therefore, is not technology as such, but the semiotic work that turns certain conditions of power into an appearance of normality, validity and inevitability. In this key, a more precise legal category must target the mechanism of unequal intelligibility and semiotic capture, and not merely the fact that the relationship takes place in a digital environment. ↩

664. Warat also offers a useful basis for justifying a legal category centered on mechanism rather than setting, because his reflection on language shifts attention from the descriptive surface to the socially operative production of effects of meaning. For him, languages are not limited to the informative content they seem to transmit; they engender “significant and normalizing resonances of social practices”, taking part in a deeper dynamic of “social production of meanings” [WARAT]. This makes it clear that the legally relevant problem lies not only in identifying the technical context in which the relationship occurs, but in grasping how signification organizes in advance the intelligibility of experience and conditions how it will be lived, accepted and reproduced. Along the same lines, Warat observes that pragmatic analysis makes it possible to articulate functions such as “persuasion, legitimation, anticipation”, [illegible] certain discourses produce an “effect of unquestionability and reality [illegible]ge” [WARAT]. Hence the pertinence of abandoning broad environmental

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665. Critical categories lose density when they are reduced to the environment, the medium or the setting in which they appear. The warning comes through clearly in the formulation according to which the spectacle is not to be confused with a set of images or with its technical means of diffusion, but consists in a social relation mediated by images DEBORD. Reducing it to the mass media therefore grasps only its most visible surface manifestation, and not the structural mechanism the category seeks to describe DEBORD. The same methodological reasoning makes it possible to reject formulations that, though intuitively expressive, end up naming only the setting in which the injury occurs. The risk is keeping descriptive force while losing dogmatic operability, because the category comes to point to a context without stabilizing, with sufficient sharpness, the relevant factual basis, the duty strained, the required evidentiary standard and the corresponding legal consequence. The critique of reducing the spectacle to "the media", precisely because this turns it back into a mere instrument and erases the social logic the category sought to denounce, reinforces this methodological caution DEBORD. Likewise, the expression "digital vulnerability" tends to grow poorer when it describes the technological environment without isolating the specific way in which the legally relevant asymmetry is produced. The shift to "semiotic vulnerability" therefore does not stem from a preference of vocabulary, but from the search for a category better able to identify the actual mechanism of vulnerabilization, located in the unequal administration of meaning, expectation, perception of risk, the intelligibility of the offer and the conditions for contesting it. ↩ labels in favor of categories that isolate the actual mechanism by which meaning is produced. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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Here, the critical review of recent literature on "digital vulnerability" serves a strictly instrumental function. It is not intended to open an autonomous state of the art nor to compete for bibliographic prominence with the central argument. The aim is to show that the competing vocabulary, although relevant and academically serious, does not pin down with sufficient sharpness the legally relevant mechanism of the asymmetry at issue, which is why it works better as a scenario label than as a decision criterion. In dogmatics, this difference matters. Concepts are valuable not only for their capacity to describe a plausible environment, but for their aptitude to organize the passage from fact to normative consequence, carving out the legally relevant aspect of the conflict and making it tractable in terms of attribution, evidence and remedy JR.666.

This is the first criterion for reading the selected *corpus*. The question is not whether recent literature correctly perceived that consumer vulnerability is aggravated in digitally mediated environments. To a large extent, it did. The question is whether the category mobilized converts this diagnosis into a legal form stable enough to guide normative application. In dogmatic discourse, concepts need to function as operational theoretical abbreviations, linking factual hypothesis and legal effect. When they remain too broad, they manage to condense a legitimate concern, but lose the precision needed to organize the factual basis, the required evidence and the corresponding consequence JR.667.

The review was therefore conducted within a controlled scope. It considered recent Brazilian academic works that employ "digital vulnerability" or very close

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ontext of consumption, platforms, continuous digital services or iated ecosystems, p

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explanatory element of the argument a

scope does not aim at exhaustiveness. It aims at minimum verifiability. Only texts in which the expression triggers some normative consequence, however elementary, such as a duty of information, liability, abusiveness, redistribution of the burden of proof or expanded protective relief, enter the corpus. The requirement is consistent with the very idea that legal research cannot stop at a descriptive understanding of the phenomenon, but needs to convert this diagnosis into normation, or at least into a legal form apt to guide conduct and decision REALE[668].

The reading matrix applied to the *corpus* was deliberately simple. Each work was tested for whether "digital vulnerability" named only the scenario in which the problem arises or actually identified the legally relevant mechanism of the asymmetry. From there, four points were observed: whether there was a definition or only an invocation; what concrete asymmetry was described; whether the text indicated some minimally reconstructible evidentiary standard; and what normative structure or legal consequence was triggered. The criterion is important because it prevents impressionistic criticism. The objection is not that the term is new, attractive or too diffuse for the interpreter's taste. The objection is that the label often fails to deliver enough normative form to convert the phenomenon into an operable category, that is, into a stable correspondence between apprehended social reality and a structure apt to guide the application of the CDC REALE[669].

The first result of the survey is that recent literature correctly perceived the intensification of the consumer's fragility in platform environments. This appears sharply in more robust formulations, which link so-called digital vulnerability to the monetization of data, the centrality of attention, behavioral advertising, *dark patterns* and decision-making opacity distributed along the consumer journey PALMEIRA[670]. It also appears in works that describe the consumer's vulnerabilization on the basis of lengthy terms of use, data transfer, the appearance of gratuitousness, opaque language and decision-making acceleration on digital platforms PINTO[671]. The problem, therefore, is not an invention of the thesis. The field already sees that something important has changed.

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sophisticated, the category "digital vul

very diverse phenomena. Data protection, technical opacity, behavioral manipulation, *profiling*, deficient consent, *dark patterns*, hyperconnectivity, the monetization of attention and informational asymmetry all appear at once under the same label. The formulation is strong as an environmental synthesis, but less precise as a mechanistic delimitation. The concept ends up gathering an ecosystem of risks instead of stabilizing the specific gear of the legally relevant asymmetry. This explains why it works better to describe the problem than to guide its fine-grained juridification.

This deficit also appears in closely related competing formulations. The notion of "cybervulnerability" records, with keen sensitivity, that cyberspace aggravates already known vulnerabilities and widens the power gap between consumer and supplier, including through factors such as insufficient literacy, informational asymmetry, data collection and manipulation of the will ACOSTA[672]. There is real merit in this. But the category itself remains closely tied to the technological scenario as its organizing principle, which makes it less sharp for isolating the specific legal mechanism of vulnerabilization it seeks to explain. The author even seeks juridification by way of the CDC and the Constitution, which shows a serious effort at normativity, but this still coexists with a strong dependence on "cyberspace" as the structural axis of the formulation ACOSTA[673].

Something similar happens with the "situational digital hypervulnerability" worked out in the field of electronic games. The literature identifies, with relevant precision, real mechanisms of aggravation of vulnerability on platforms, such as continuous data collection, dynamic architecture, adaptation of design to user behavior, captivity, situational monopoly, irregular rewards and immersion strategies TORRES[674]. There is even some normative density, with protective consequences drawn for cases involving children, family and market practices in digital games TORRES[675]. Even so, the category remains very dependent on the public affected and on the specific context of application. It explains a set of situations well. It explains less well the general mechanism that needs to be stabilized in order to recognize the of structural risk that manifests itself in the key of the factual recognized by the

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The analysis of the vocabulary of "electronic" or "technological vulnerability" reinforces the same diagnosis. Such expressions are useful for naming real barriers created by the compulsory digitalization of services, channels and procedures, especially in access to justice and in the technical exclusion of certain groups MAIA[676]. They also reveal the proliferation of internal subdivisions, such as technical, informational, algorithmic, behavioral and related vulnerabilities, which attests to the field's sensitivity to new asymmetries MAIA[677]. But this fertility comes with classificatory instability. The term helps to describe technological obstacles and institutional accessibility responses. For reconstructing, in a consumer-law key, the violated duty, the factual basis, the required evidence and the appropriate remedy, however, its usefulness remains limited.

There is, further, an important contrast with the field of access to justice. The expression "digital vulnerability" circulates there to designate phenomena of technical exclusion, lack of access, skills deficits and barriers to insertion in digitalized environments, especially for more socially exposed groups SIMÕES[678]. In another formulation, it appears as a general layer of vulneration associated with broad sociotechnical transformation, privacy, informational self-determination, citizenship and the overlaps between income, gender and race SIMÕES[679]. This confirms that the vocabulary is serious, current and relevant. But it also confirms its polysemy. In many uses, "digital vulnerability" names a structural condition of exclusion or exposure in a technological environment, and not a more delimited legal mechanism of relational asymmetry within the CDC.

The contrast with the work of Ricardo Morishita Wada helps to make this point clearer. The legally relevant problem lies not in the relationship taking place in a sophisticated technological universe, but in whether there is functional opacity capable of compromising the consumer's understanding, choice and practical self-determination. Informational failure does not stem only from the absence of data; it may also arise when the information exists, but the way it is presented neutralizes its practical usefulness, reduces transparency, hinders comparison or compromises

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[680]. This yardstick is decisive because it shows what the competing vocabulary lacks in many ca

vulneration occurs in the “digital”. One must show how the environment concretely produces opacity, noise, decision asymmetry and evidentiary asymmetry.

Author/year	Definition used	Mechanism identified	Evidence indicated	Normative consequence
Acosta, 2025	“Cybervulnerability” as aggravation of vulnerability in cyberspace.	Digital architecture, insufficient literacy, data and manipulation.	Broad empirical factors, with no fine-grained evidentiary standardization.	Protective interpretation through the CDC and the Federal Constitution.
Azevedo; Torres, 2023	“Situational digital hypervulnerability” in games.	Captivity, dynamic design, data, gamification.	Empirical indications of	Protective equivalence and reinforced duties.

Author/year	Definition used	Mechanism identified	Evidence indicated	Normative consequence
			design and of staying on the platform.	
Furtado; Pinto, 2024	“Digital vulnerability of the consumer” on platforms.	Terms of use, data sharing, opacity and accelerated decision-making.	Contractual language and the structure of the service.	Review of clauses and a rereading of consent.
Maia, 2023	“Electronic /digital/technological vulnerability”.	Technological obstacle, exclusion and access.	Technical and institutional setting.	Accessibility and inclusion responses.
Palmeira, 2022	“Digital vulnerability” as an ecosystem of risks in informational consumption.	Data, attention, behavioral advertising, dark patterns.	Broad market structures and the consumer journey.	Expanded hyposufficiency and shifting of the burden of proof.
Simões, 2024	“Digital vulnerability” as exclusion in digitalized environments.	Exclusion from access, a deficit in digital literacy and difficulties in operating within digitalized environments.	Broad technical and social barriers.	Protection in access to justice and digital citizenship.

The table confirms a simple point. The literature reviewed is relevant and, in several

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mbitious. But the label “digital vulnerability” or its close equivalents works, most of the time, be

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means of isolating the legally central mechanism. At times it yields a concrete protective consequence, such as the defense of a stronger reversal of the burden of proof or of broader contractual control. Even so, that consequence is usually drawn wholesale, from the overall perception of a hostile environment, and not from a more precise stabilization of the specific mechanism of asymmetry.

It is precisely from this that the refining criterion adopted here is drawn. To operate dogmatically within the CDC, any category of vulnerability must satisfy at least four cumulative requirements: identify a mechanism, and not merely a context; convert that mechanism into a duty, an unlawful act or a criterion of control; offer a minimally reconstructible evidentiary standard; and point to a typical consequence compatible with the structure of the protective system. When these elements are absent, the category may remain useful as a diagnosis of the environment, but it remains weak as a concept for decision.

The adoption of “semiotic vulnerability” responds to this problem. It does not replace “digital vulnerability” out of mere terminological whim. It replaces a predominantly environmental category with one aimed at describing the mechanism. The relevant asymmetry comes to be located in the production and governance of meaning, that is, in the way the platform manages expectation, perception of value, perception of risk, comparability, intelligibility of the offer and conditions for contestation. This yields greater operability. Information ceases to be thought of as volume and comes to be thought of as usefulness for decision and verifiability. Advertising ceases to be a mere promotional backdrop and becomes subject to control for ambiguity and relevant omission. Evidence no longer gravitates only around the consumer's narrative and comes to require the preservation of trails, verifiable transparency and a rational redistribution of the burden of proof. And abusiveness may, when necessary, be reconstructed at the level of the very architecture of supply. It is this operational gain, and not a dispute over labels, that justifies the terminological substitution adopted here.

666. Ferraz Jr. points out that dogmatics works through its own language and through "operational concepts" that carve a theoretical slice out of reality, making the legal material workable for decision JR.. For that reason, when the literature uses "digital vulnerability" to name the technological environment generically, without stabilizing the specific mechanism of asymmetry or its bearing on evidence, duty or remedy, the concept tends to lose dogmatic yield. The problem is not whether the expression is sociologically plausible, but its low capacity for legal selection. The observation is reinforced by the lesson that dense and multifaceted conflicts enter legal discourse only after being reduced to what can be decided, and not in "their entire concrete extension" JR.. The review of the *corpus*, therefore, is not limited to checking terminological presence, but tests operability. ↩

667. Ferraz Jr. makes explicit that the norm establishes a hypothesis of application whose occurrence triggers a legal consequence, so that the qualification of the case depends on making intelligible the bridge between fact and normative effect JR.. From this perspective, an overly vague category may well express a legitimate concern, but remains technically insufficient if it does not clearly organize the transition from concrete occurrence to legal response. Along the same lines, the author observes that the legal concept works as "a kind of theoretical abbreviation" whose function is to allow the jurist to operate on relations and to present extensive normative sets in synthetic form JR.. It is precisely this yield that is tested, in this item, in assessing the use of "digital vulnerability" in recent literature. The critical review of the *corpus* also requires checking whether the category used actually distinguishes, classifies and integrates, coherently, the legally relevant elements of the problem. In Ferraz Jr., conceptual elaboration is directly tied to this operative function, since concepts serve to "operationalize the task of systematization" and, for that reason, have an "ostensive operational function" JR.. From this standpoint, excessively broad expressions may retain diagnostic value on the sociological plane, yet prove of little dogmatic use when they cannot order the material in controllable terms. The methodological critique of the category "digital vulnerability" asks whether its breadth can cover the problem without organizing it in a way capable of sustaining a more precise reconstruction of asymmetry, evidence and remedy. As the author adds, dogmatics performs a regulative function over the legal material, giving it the "minimum of coherence and reasonableness" needed for its technical handling JR.. ↩

668. Miguel Reale maintains that legal research is not exhausted on the plane of understanding. Although every investigation begins by identifying regularities, principles, types and constant relations, it cannot stop there, because, in the legal universe, understanding must be converted into norm-making. As the author states, orld, understanding is necessarily converted into normation", which is esearch has, besides the moment of understanding, a "normative moment" that implies a model of a

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criterion that the literature on “digital vulnerability” must be examined. The question is not how many authors repeat the label, but whether the category can be converted into a legally functional criterion. The requirement of normative density also keeps the critique from being mistaken for terminological fastidiousness, because the problem is not whether the term is new or appealing, but whether it attains enough legal form to organize normative application, duties, evidence, attribution and consequence. In this sense, Reale distinguishes doctrinal models, which “are not mandatory”, from prescriptive legal models, which contain a prefiguration of an “order of competences” or of an “order of conduct”, with consequences determined in advance for performance or for violation REALE. ↩

669. Assessing a legal category requires checking whether it establishes a sufficiently stable correspondence between the social reality it apprehends and a normative form capable of guiding application. In Miguel Reale, the maturity of the Science of Law stems precisely from the perception that certain human behaviors, although situated in a changing historical context, reveal regularities tied to factual presuppositions and to axiological demands, which makes their legal modeling possible. As the author points out, social life, “despite its continuous change, presents stable and regular relations”, allowing “an anticipated representation of what will occur” REALE. Hence a stable legal form can be neither the product of loose abstraction nor of mere terminological adherence to current vocabulary. Reale maintains that legal models are “normative structures” carved “in the concreteness of human experience” REALE, and adds that the fact stands “at the beginning and at the end of the normative process”, first as a species provided for in the norm and then as a legally qualified event, by virtue of the correspondence between what occurred and the typical form stabilized beforehand REALE. The critical examination of the literature, therefore, cannot settle for expressions that merely portray a social scenario in diffuse terms; the concept must apprehend relevant regularities and translate them into a consistent legal form, capable of guiding the application of the CDC. ↩

670. The most sophisticated recent literature on consumption in the digital environment has already grasped, in considerable depth, that the consumer's contemporary vulnerability can no longer be thought of solely through the classic schemes. This becomes evident when one takes as a starting point the simultaneous condition of the consumer who is a personal data subject as the target of marketing practices, the raw material for their development and the product traded among the agents of the system, together with growing informational asymmetry and the intensification of abusive practices based on prediction products embedded in the consumer journey PALMEIRA. This robustness grows when the picture is linked to technology as a :tor of relationships, to big data and big analytics, to the monetization of owth of information flows and to the centrality of attention as a capturable economic resource PAL

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the present review, lies in showing that the competing vocabulary is neither superficial

nor accidental. On the contrary, it is strong, current and academically serious. But it is precisely for that reason that its limit matters more: even in its most elaborate version, the category tends to function as a synthesis of a broad ecosystem of risks and practices, better suited to condensing the problematic environment than to isolating, with maximum dogmatic precision, the central mechanism that produces the legally relevant asymmetry. The notion of digital vulnerability acquires special explanatory force when linked to the idea of a structure of stimuli and controls that imperceptibly pervades the consumer journey. In this picture, digital advertising, behavioral advertising, *dark patterns* and decision-making opacity appear not as isolated phenomena, but as elements of a broader architecture of influence over the consumer's choice process, in a setting in which the sufficiency of personal data protection is examined and the existence of a new and universal digital vulnerability is asserted, giving rise to an equally universal state of hyposufficiency PALMEIRA. The formulation is especially relevant because it shows the category's capacity to bring together central problems of the contemporary digital market. This aggregating vocation becomes even more explicit when *dark patterns* and digital advertising are placed in the broader context represented by the consumer journey itself, going beyond what is immediately visible both to the user and to the legal community PALMEIRA. The point is valuable for the critical review because it reveals that the competing category does not merely name a specific risk, but organizes a comprehensive explanatory superstructure. And it is precisely there that its limit appears for the purposes of this thesis: the category works very well as an environmental synthesis of an ecosystem of risks, but less well as an analytical instrument designed to carve out, in a mechanistic and attributable way, the specific mechanism of asymmetry that matters to the dogmatic reconstruction proposed here. The dogmatic operability of the competing category shows clearly when a concrete procedural consequence is drawn from it: the universalization of the consumer's hyposufficiency in the digital environment and, by derivation, of the reversal of the burden of proof. The idea is that, in the face of ever more sophisticated and imperceptible deceptive practices, what once functioned as an individual mark of procedural weakness becomes a general trait of digital consumer relationships, so that there could be no just legal protection as long as the reversal of the burden of proof did not operate as the rule in this field PALMEIRA. This is important because it shows that the category does not stand still on the sociological plane; it seeks to produce a verifiable legal effect. This consequence is reaffirmed when it is argued that the protection currently offered by the CDC and the LGPD is insufficient in view of the new bases of relationships in the digital environment, which is why digital vulnerability and the corresponding hyposufficiency should be affirmed universally, [illegible] of the burden of proof ope legis, and not merely ope judicis PALMEIRA. This formulation is clear: it offers a concrete protective answer, above all on the evidentiary plane. The limit [illegible] central legal consequence drawn from the category tends to be organized wholesale,

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through one large general effect, which confirms its strength as a comprehensive diagnosis, but also its more global and aggregating character. Instead of selectively carving out the specific mechanism that produces the asymmetry, the category serves as the foundation for a protective regime expanded across the board. ↩

671. The recent circulation of the expression “digital vulnerability of the consumer” reveals that the literature already clearly perceives the worsening of the user's fragility in platform-mediated consumer relationships, especially when the business model is organized around lengthy terms of use, data sharing and the appearance of gratuitousness. In this context, vulnerability is described as a factual situation of heightened weakness in the face of transactional complexity and the dysfunctions inherent in cyberspace, capable of reducing both the understanding of risks and the consumer's practical capacity to react PINTO. The value of the formulation, here, lies in showing that the problem has already been clearly perceived in the contemporary Brazilian consumer-law field. At the same time, it is precisely this descriptive virtue that exposes the dogmatic limit of the label. The same category comes to gather, under a single name, the digital medium, the form of contracting, data processing, behavioral economics, decision inducement and the crisis of consent, functioning as an aggregator of multiple risks and asymmetries PINTO. Consequently, the expression proves strong for naming the problematic scenario of platforms, but less precise for isolating, with maximum sharpness, the legally relevant mechanism of vulnerabilization. It is precisely in this mismatch between a good perception of the phenomenon and a less refined operative key that the critical review of the corpus finds its usefulness. The worsening of vulnerability in the digital environment is presented not merely as a generic abstraction about the internet, but as the result of concrete factors that reorganize the asymmetry between consumer and supplier. Among them are the technical opacity of the tools, the complexity of the languages and codes used, the user's lack of control over the chain of processing of their data and ignorance of the functionalities actually at work in the service PINTO. The relevance of this description lies in showing that the problem is not exhausted by the mere modernity of the medium, but involves concrete forms of inaccessibility, invisibility and loss of control. The same difficulty deepens when the speed, apparent ease and fluidity of the virtual environment lower the user's guard and disrupt their perception of risk, encouraging ill-considered acceptance and little reading of the terms of use PINTO. The point is important because it already reveals real mechanisms of vulnerabilization: accelerated decision-making, opaque language, technical invisibility and the weakening of informational control. Even so, all these elements remain gathered under a category heavily dependent on the digital scenario itself, which makes it a good contextual description of the problem, but a less sharp tool for its own, the most dogmatically precise form of the asymmetry in critical usefulness of consumer” does not disappear bec

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explanatory category. On the contrary, its recent circulation shows a real effort to draw concrete protective consequences in the consumer-law field, especially when it is argued that unrestricted authorization for data processing, imposed as consideration in zero-price models, is abusive, even if formally provided for in the terms of use PINTO. The category, therefore, does not remain entirely on the plane of sociological setting: it already seeks to ground contractual control, a protective rereading of consent and the application of the CDC to the structure of the business model. This normative aspiration also appears when it is accepted that the binding force of the vulnerable user's will may be relativized in view of the concrete fragility of the situation, with axiological parameters tied to the protection of the person and to the containment of abuse in standard-form clauses prevailing PINTO. Added to this is the parallel with the idea of contracts tied to existential or functionally central needs, which reinforces the demand for a protective reading of the clauses and of the very design of the relationship PINTO. The critical balance, then, is not that the expression is useless, but that it is partially useful. It already manages to produce relevant legal consequences, but continues to work better as a broad aggregating label, stronger at gathering multiple practical problems under one name than at isolating, with maximum methodological precision, the dogmatically specific mechanism of asymmetry that the present thesis seeks to capture. ↩

672. Leonardo Machado Acosta's dissertation is useful, at this point, for showing the contrast within the very recent literature that seeks to name the worsening of consumer vulnerability in digital environments. His contribution is relevant because it shows that the field has already clearly perceived that the classic framework of consumer vulnerability comes under strain in cyberspace, requiring additional formulations to capture the increased asymmetry between consumer and supplier. Along these lines, the author defines “cybervulnerability” as “the hypervulnerability of the consumer caused by the greater fragility of this subject in consumer relationships established in cyberspace in view of the existence of more uncertainties, risks and occurrences of damage in this environment, which increases the power gap between the consumer and the supplier” ACOSTA. The formulation has value because it records, without caricature, the contemporary perception that the digital environment intensifies known fragilities and imposes more robust protective demands. At the same time, Acosta's own conceptual construction helps to bring out the critical point that justifies the present review. Acosta maintains that cybervulnerability stems from the “aggravation of the consumer's vulnerability(ies) caused by the insertion and action of this agent within cyberspace” ACOSTA, stressing that it is a form of hypervulnerability resulting from the sum of vulnerabilities beyond the usual, arising from the characteristics of this environment ACOSTA. The problem, therefore, was [illegible]ceived. What remains open is whether the chosen category delivers, with [illegible]natic precision, the l[illegible] worsening. The worsening of vuln[illegible]

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described only through broad labels of technological setting; it can be broken down into concrete factors of asymmetry produced by the platform's own design. This is what makes his work useful for identifying concretely which factors worsen vulnerability, keeping the debate from remaining at a generic level. The author shows that this worsening stems not from a vague abstraction about "cyberspace", but from empirically perceptible elements that reorganize the asymmetry between consumer and supplier. Prominent among them is aggravated technical vulnerability associated with two central circumstances: one structural, tied to the very architecture of the virtual environment, and the other situational, related to the cognitive and behavioral effects produced by the use of this medium, both of which further weaken the consumer in relationships established digitally ACOSTA. He also sets out other concrete factors that deepen this picture, such as the informational power gap, the lack of digital literacy, the indiscriminate collection and processing of personal data and the manipulation of individuals' will ACOSTA. In an especially illuminating passage, the author describes how the digital market tends to make the provision of services conditional on the collection of data, which are then stored and processed by algorithms designed to shape the will, whether through behavioral advertising or through broader forms of decision inducement in favor of companies or of other centers of power that control such information bases ACOSTA. The merit of the formulation lies in demonstrating that recent literature has already accurately perceived several of the material factors that worsen vulnerability in the digital environment. The critical point, however, remains whether the category chosen to name them succeeds in translating, with sufficient dogmatic density, the specific mechanism of vulnerabilization that emerges from them. ↩

673. Reading Leonardo Machado Acosta makes it possible to assess, with some precision, how far the category of "cybervulnerability" advances toward the juridification of the problem and how far it still remains closely tied to the technological scenario it seeks to describe. On the one hand, the proposal is not presented as a mere sociological label for the digital environment. The author insists on the need to establish a concept and parameters grounded in the principles of the Consumer Protection Code and the Federal Constitution, precisely to allow effective protection and to guarantee material equality to consumers in cyberspace ACOSTA. There is, therefore, a genuine effort to juridify the category. On the other hand, the very structure of the formulation reveals that this juridification still coexists with a strong dependence on the technological scenario as its organizing axis. This shows when the author acknowledges the precariousness, indeed near absence, of normative protection specifically aimed at the "cybervulnerable", which hinders the direct subsumption of protective rules in the Brazilian legal order and makes the search for provisional interpretive solutions)STA. The same tension reappears when he calls, for the future, for tion that recognizes cyberspace, while, for the present,

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consumer based on the CDC and the Constitution ACOSTA. The critical balance, then, is not that the category is useless, but that it is a formulation that correctly perceives the need for heightened protection, while still adhering markedly to the technological scenario as its organizing principle, without isolating with ideal sharpness the specific mechanism of vulnerabilization it seeks to explain. ↩

674. The perception that the consumer's classic vulnerability is insufficient to explain asymmetries produced in digital ecosystems already appears clearly in recent literature, including in the field of electronic games. The problem, therefore, is not an artificial creation of the present thesis, but has already been identified by competing formulations that seek to name the worsening of the consumer's fragility in platform environments. It is in this vein that Azevedo and Torres develop the notion of "situational digital vulnerability", noting that it may take, among other forms, a form "by captivity", tied to relationships that extend over time, and a "neuropsychological" one, caused mainly by the application of behavioral economics and gamification TORRES. The article becomes especially relevant because it brings this diagnosis to the world of games, showing that, in the very empirical object given priority here, the need for supplementary categories to explain the intensification of vulnerability is already perceived. Discussing Fortnite, the authors observe that situational digital vulnerability by captivity manifests itself "mainly through the consumer's submission to the platform, which holds the items acquired for use in the development of the game", to which are added the multiplayer character and the formation of teams as factors that keep players in the environment TORRES. The merit of the reference lies precisely in showing that the problem was well perceived. The critical point, however, remains whether categories of this kind, heavily dependent on the environment and on the public affected, manage to isolate with sufficient precision the dogmatic mechanism of vulnerabilization. The worsening of vulnerability in the digital environment need not be described only through broad labels of technological setting; it can be broken down into concrete factors of asymmetry produced by the very design of the platform. This is what makes the article by Azevedo and Torres useful for the critical review of the corpus. The authors describe contemporary digital architectures as structures that are "customizable, dynamic and governed by the analysis and interpretation of data", capable of continuously collecting data, learning from user interactions and changing the environment "at any moment" to secure better results for the supplier by exploiting the consumer's vulnerabilities TORRES. Here one faces no longer a merely generic technological scenario, but an operational arrangement that monitors, adjusts and influences conduct. This mechanical dimension appears even more clearly when the authors explain that prolonged use of the service increases the capacity to identify and target vulnerabilities, because ta collection allows the design to be adjusted to influence behavior, / makes it hard to lea monopoly" TORRES. Added to this

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rewards, sounds, colors and greater graphic immersion as factors of behavioral conditioning TORRES. The article thus has the merit of pointing to real mechanisms that worsen vulnerability, even though the chosen category remains firmly anchored in the broad frame of the "situational digital". ↩

675. The dogmatic operability of competing categories can also be tested by their capacity to generate concrete legal consequences, and not only by their descriptive aptitude. In this dimension, the formulation of Azevedo and Torres does not remain entirely on the sociological plane, since the authors seek to link it to specific protective responses within the consumer-law and constitutional system. This appears when they argue for the "hypervulnerability of the family unit" through equivalence with the child on the basis of Article 29 of the CDC, treating the family as a collectivity exposed to commercial practices which, although they reach minors first, spread their effects to the whole family unit and weaken the exercise of parental authority TORRES. The same movement can be seen when they associate the platform's practices with concrete duties to contain economic power and to protect children and adolescents fully, calling on the State, society and the family to act against the harm to healthy development produced by such dynamics TORRES. The article, therefore, shows some normative density and a capacity to generate real protective consequences. Even so, the way these consequences are triggered reveals that the category remains highly dependent on the public affected and on the specific context of application, which reinforces its usefulness as a qualified object of critical review, but also exposes the limits of its dogmatic stability as a general explanatory category. ↩

676. The practical usefulness of categories such as "electronic", "digital" or "technological vulnerability" appears more clearly when they are used to describe real barriers produced by the compulsory digitalization of services, channels and procedures. At this point, the vocabulary makes it possible to identify concrete exclusions, above all when technology becomes an obstacle to access to justice, to communication or to the exercise of legally relevant positions MAIA. There is, therefore, some minimal normative yield: the duty of institutional adaptation, inclusion and accessibility. This connection is reinforced when the problem is linked to the so-called "platform effect", that is, the concentration of economic growth in a few scalable digital organizations MAIA. The text no longer speaks only of individual technical ignorance, but of structural asymmetries produced by platformized markets. Even so, it is precisely in this test of operability that the limit of the category appears most clearly. The core of the formulation remains tied to technological obstacles, the digital environment and access to justice, and not to the rigorous identification of a dogmatically specific mechanism that produces asymmetry within the consumer relationship. The
rks well for describing a context of exclusion and for justifying
ccessibility responses. But for reconstructing more precisely the duty

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breached, the factual basis, the required evidence and the appropriate remedy in digitally mediated consumer disputes, it remains too atmospheric. ↩

677. The critical review of recent literature reveals that the field is organized not only around the expression “digital vulnerability”, but also moves among neighboring formulations such as “electronic vulnerability” and “technological vulnerability”. This proliferation of terms is in itself a symptom of conceptual instability: the problem is clearly perceived, but there is still no sufficiently stable delimitation either of the category's name or of its scope. In one of these distinctions, it is argued that technological vulnerability would cover those unskilled in or excluded from the digital world, while digital vulnerability would reach subjects already present, in some way, in this setting MAIA. The critical consequence is clear: the recent competing vocabulary still has shifting and poorly consolidated boundaries. The dispersion grows when several internal dimensions of this phenomenon are proposed, such as technological, technical, informational, algorithmic and neural or psychological-behavioral vulnerabilities MAIA. The field undoubtedly shows sensitivity to the problem, but it also reveals a certain classificatory inflation. The picture becomes even more revealing when specific labels appear, such as the so-called “vulnerability by manipulation”, associated with gamification and conditioning on digital platforms, including in gig economy contexts MAIA. Here the material is valuable precisely because it shows the current state of the literature: fertile, intuitive, sensitive to new asymmetries, but semantically dispersed and oscillating among environment, technique, behavior, algorithm and exclusion from access. It is precisely this scenario that reinforces the need for the conceptual refinement undertaken by the present thesis. ↩

678. The circulation of the expression “digital vulnerability” in fields other than consumption reinforces the perception that this is relevant, current and serious terminology, but semantically broad and dogmatically unstable. In the debate on access to justice, it appears in connection with a multifaceted phenomenon ranging from the lack of physical access to the internet and to adequate devices to the absence of minimal digital skills for using technologies, bearing especially hard on the elderly, people with little schooling and socially disadvantaged groups SIMÕES. The term is used to name a structural condition of exclusion and of difficulty in taking part in technologically mediated environments, and not a more clearly delimited legal mechanism of relational asymmetry. The same reading is reinforced when the problem is described in terms of barriers to access to justice: even with the gradual expansion of internet access, exclusions persist that are linked to poor connections and insufficient technical skills, factors that become concrete obstacles to the use of institutionally digitalized channels SIMÕES. In this frame, so-called digital
ppears as a new obstacle to access, adding to the classic barriers already
ÕES. The vocabulary

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but does so at a broad, environmental and cross-cutting level, proving less precise for guiding attribution and evidence within the CDC. ↩

679. The polysemy of the expression “digital vulnerability” appears even more clearly when it is presented as a new general layer of vulnerability tied to the growth of technological means and to the need for continuous adaptation to a fully digitalized social life SIMÕES. In this framing, the term already emerges less as a delimited dogmatic tool than as the name of a general condition produced by a sweeping sociotechnical transformation. This semantic openness widens further when digital vulnerability is described as a state of predisposition to risk in cyberspaces, fostering inequities, power asymmetries, diminished citizenship and violations of privacy and informational self-determination, and is even likened to the idea of socio-spatial vulnerability SIMÕES. Added to this is the recognition that the problem takes on various strands and often overlaps with other situations of vulnerability, intersecting with income, gender and race SIMÕES. The point is very useful here because it shows both the strength and the limit of the competing vocabulary: it sensitively captures a complex environment of exclusions, but tends to function as a broad category of context, less able to isolate the central legal mechanism of asymmetry that the thesis seeks to delimit. ↩

680. The critique of the literature on “digital vulnerability” cannot rest on the trivial fact that many consumer relationships today unfold in technically complex contexts; that alone does not yet produce a dogmatic category. What matters, for consumer law, is whether the formulation identifies a mechanism of functional opacity capable of compromising the consumer's understanding, choice and practical self-determination to the supplier's benefit. It is precisely in this respect that the passage invoked by Wada offers a sounder criterion. Citing Benjamin, the text shows that, in mass-scale and technically complex operations, the legally relevant fact lies not in the technology itself, but in the supplier's exploitation of the informational asymmetry of the “lay subject”. The problem arises when, faced with consumers unversed in “complex technical, commercial, financial or tax transactions and operations”, the supplier takes advantage of the “weakness or ignorance of the consumer” to impose the opportunistic logic of “if it sticks, it sticks” WADA. This makes it possible to assess whether the literature on “digital vulnerability” actually isolates an operable informational failure, marked by noise, opacity and the exploitation of ignorance, or merely names, loosely, the technological scenario in which the relationship takes place. The usefulness of Ricardo Morishita Wada's thesis, at this point, lies in allowing the consumer's informational vulnerabilization to be described through concrete mechanisms rather than vague abstractions. Although the work does not establish “[illegible]ctional opacity” as autonomous nominal categories, it accurately [illegible]valent phenomena by showing that information can be formally provided and, at the same time, ma[illegible] comparison and decision. This can be seen, for example, when the structure of the

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offer reduces transparency and makes comparison impossible. Discussing bundles of banking products and services, Wada observes that aggregating multiple items "reduces price transparency", hindering the comparison of offers, and that it was "very difficult for the consumer to compare the benefit packages offered by banks" WADA. The information exists, but the way it is presented neutralizes its practical usefulness. The same logic appears when the author treats the inadequacy of the channel and the informational deficit as concrete instruments for exploiting vulnerability, noting that the "precariousness of verbal information may compromise the consumer's understanding" and is incompatible with the regime of transparency, information and balance required by the CDC WADA. Seen this way, noise, functional opacity and informational inadequacy cease to be convenient metaphors and come to designate concrete ways in which defective communication compromises understanding, comparability and practical freedom of choice. ↩

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In consumer relations, the problem of information was never merely quantitative. Contract, offer, interface and rules are forms of language, and it is through them that the market organizes expectation, adherence, comparison and resistance. A significant part of contractual injustice therefore arises not from the plain absence of data, but from the way legally relevant meaning is produced, distributed and withheld. In a platform environment, consumers may receive texts, dialog boxes, links, policies and notices in abundance and still remain beyond any real understanding of what they accept. It is on this plane that semiotic vulnerability becomes intelligible in its communicative aspect. The law faces not merely a failure of information, but a regime of communication that determines who is able to understand, who is able to compare and who is able to contest.

The CDC already contains the normative core of this problem. The offer and presentation of products or services must ensure correct, clear, precise and conspicuous information[681]. This means that the technical complexity of supply does not entitle the supplier to hide behind indecipherable vocabulary, cascades of documents or communicative architectures that deliver words and withhold meaning. Likewise, consumer contracts do not bind consumers who are not given a real opportunity to learn their content beforehand, nor when they are drafted in a way that hinders understanding of their meaning and scope[682]. The decisive point, therefore, is not proving that "the text was there", but assessing whether the legally relevant meaning could actually be known.

This conclusion requires recognizing that language is not a neutral vehicle.

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ual and institutional texts operate as techniques for producing ty. They do not m

distribute access to significance and fil

speaking, contract and interface are not transparent containers of data, but institutional forms of organizing meaning. Legal and regulatory language is always shot through with strategic, ideological and pragmatic factors, which is why the problem of consent cannot be reduced to the physical availability of the statement. Consumers may receive the text, click, accept and even repeat its terms without actually grasping what it means in practice[683].

The point goes deeper once one sees that the coherent organization of discourse also silences problems, excludes uncomfortable readings and stabilizes a semantic frame controlled in advance. The appearance of univocity, closure and naturalness in the contractual text is not necessarily a sign of neutrality. Often it works precisely as a mechanism of communicative subjection. What is at stake is not only what the text says expressly, but how it defines the field of what can be said, compared and contested[684]. On platforms this is especially important, because contractual language does not come alone. It works together with the interface, the sign-up flow, the selective highlighting of information, the placement of links and visual framings that steer consumers to accept before they understand.

This is why the asymmetry does not stem only from missing information. It can be produced by special languages that function as barriers of competence. Consumers receive the text, but not real access to the code that organizes its meaning. Technical, legal and business language has a social function of distinction and exclusion. It speaks to the initiated and, at the same time, reaffirms the position of those who master the code. In practical terms, merely making terms, policies or notices available does not eliminate semiotic exclusion when full understanding remains reserved to those who master the system's grammar[685]. The difficulty, then, is not episodic. It is structural. Consumers do not merely get one piece of data wrong. They adhere within a frame of language that already places them outside the center of intelligibility of the relationship.

It is at this point that one can speak of meaning-vitiated consent. This is not a one-off factual error, such as mistaking a price or a single deadline. It is an inability, d by the communicative conditions of supply, to decode compare and anticipate relevant conse

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express omission, but from an architecture of language, interface and framing that conditions in advance access to the legal and economic meaning of the decision. Consumers may be formally informed and still be materially cut off from the meaning of what they accept. This is the communicative form of semiotic vulnerability.

Under the CDC, this brings the problem back to the duty to inform in its material sense. Suppliers do not discharge this duty merely by making the content technically accessible through a click, a scroll or a download. What matters is whether the average consumer could read and understand what those clauses meant, which rights and obligations were being assumed and what practical consequences followed from adhering. A bare reference to the existence of general terms is not enough when the meaning remains opaque[686]. In this picture, the principle of transparency is no peripheral formality. It goes to the very essence of the transaction, because information forms part of the content of the contract and, if it fails, it compromises the legal quality of the performance.

This explains why contractual obscurity, in consumer relations, is not an innocent stylistic flaw. It is evidence of structural disloyalty in the way consent is organized. In adhesion contracts, consumers take no part in the drafting and enter the relationship trusting that there is a minimum of textual intelligibility and fairness. Review of these clauses is therefore not limited to a neutral grammatical examination, but is guided by objective good faith and by the protection of the adhering party's trust. Pre-drafted clauses must be read so as to respect the legitimate interests of those who accepted them without being able to negotiate them, and obscure drafting triggers precisely the presumption that the supplier failed in its duty to organize consent on fair terms[687].

This asymmetric communicative regime also helps to explain why semiotic vulnerability is not a loose cultural metaphor. It describes a real disadvantage in decoding, comparing and resisting, produced by the way the market organizes its language. In IOCs, this is amplified because the supplier's communication is not

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and framings of value that are part of the consumption experience. Consumers face not just a text. They face an entire grammar of governed enjoyment.

The dogmatic consequence is twofold. First, the duty to inform must be read as a duty of intelligibility, adequacy and verifiability, and not as the mere delivery of a volume of documents. Second, consumer protection in platform environments requires *standards* capable of reducing the asymmetry of meaning and the asymmetry of evidence at the same time. If the platform controls the language through which the object is presented, understood and accepted, it also tends to control the records, framings and traces through which adherence and frustration may later be reconstructed. Language, code and consent are therefore not a peripheral topic. They are one of the grounds that justify, in what follows, requirements of open auditability and criteria of restoration by functional value equivalence.

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681. "Art. 31. The offer and presentation of products or services must ensure correct, clear, precise and conspicuous information, in the Portuguese language, about their characteristics, qualities, quantity, composition, price, warranty, expiry dates and origin, among other data, as well as about the risks they pose to the health and safety of consumers." BRASIL. ↩

682. "Art. 46. Contracts that regulate consumer relations shall not bind consumers if they are not given the opportunity to learn their content in advance, or if the respective instruments are drafted in a way that hinders the understanding of their meaning and scope." BRASIL. ↩

683. Legal and institutional language is not neutral; it operates as a technique for producing and stabilizing meaning, steeped in political and strategic factors, which rules out the image of the contract or the interface as mere transparent containers of information. Pragmatics applied to law makes it possible to see that ideology is "a factor inseparable from the conceptual structure made explicit in general norms", which requires the interpreter to read in a way that uncovers "the connections between the words of the law and the political and ideological factors that produce [illegible] their functions in society" WARAT. Legal language thus does not merely [illegible]nizes some possible intelligibilities and blocks others. This finding is [illegible]derstanding how con[illegible] produced meaning, and not merely [illegible]

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involve a “game of persuasion and mythification” that stereotypes meanings and legitimizes the reproduction of power under an appearance of normality WARAT. Through the use of “a language impregnated with stereotyped significations”, what is introduced, “under the supposed appearance of an objective description, is an ideological dimension not formulated in legal language”, the central aim of such expressions being “to influence and determine opinions” WARAT. As a result, consumers may perfectly well receive the text, click, accept and even repeat its terms without ever grasping what it really means in practice, because communicative subjection depends not only on lack of access to the statement, but on the selective and asymmetric way in which meaning is produced for them. ↩

684. Normative, contractual and regulatory texts produce selective intelligibility and can organize forms of communicative subjection, since the coherent organization of discourse itself works as a filtering mechanism that silences problems and excludes uncomfortable readings. The “coherent organization of a discourse” can “silence problems” and, through these silences, perform “political functions in society”, while it “explicitly forces subjects to say or repress certain things” WARAT. Intelligibility is thus not distributed neutrally; it is produced selectively. This selectivity is reinforced when legal discourse presents itself with an appearance of univocity and closure: belief in normative univocity presupposes “prior ideological coincidence”, and the unalterability of signifiers sustains the ideal of a rational norm precisely because it secures certain “social effects of the law in society” WARAT. The critique of the claim that legal language is closed shows that the demands for totality and closure of the system are not mere logical requirements, but ideological representations that serve specific functions of the legal form WARAT. As a result, institutional texts can organize communicative subjection not only through what they say expressly, but through the way they stabilize meanings, exclude interpretive alternatives and induce adherence to a semantic frame controlled in advance. Acceptance of rules, framings and institutional conditions can be produced discursively, with no need for an explicit command, through a “discursive work” that manipulates words and stereotypes to manufacture acceptance and naturalize authority. Consensus on the legitimacy of power results from discursive work, which is effective precisely because it operates through “a game of stereotyping”, whose primary function is legitimation WARAT. Power produces meanings that make adherence seem spontaneous, reasonable or inevitable, constituting an “ordered subjectivity”, shaped by the “social idiom” and progressively alienated from the ends of the power that shapes it. In this situation physical violence becomes largely dispensable, replaced by “significant violence” and “imaginary violence”, which can neutralize the critical power of subjectivity and [illegible]ialized obedience WARAT. Certain effects of acceptance spread with no [illegible]cit demonstration, relying on stereotypes, topical formulas and beliefs already settled, so that discursive a[illegible] WARAT. Communicative subjection therefore depends not only on what is said in

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imperative form, but on the production of a horizon of meaning in which obeying, adhering or accepting comes to seem simply the normal course of things. ↩

685. In platform-mediated contractual environments, the fragility of consent stems not only from the absence of information, but also from the organization of a functionally exclusionary language, which allows the message to be formally received without ensuring actual access to its meaning. The problem is therefore not reduced to the occasional lack of a given piece of data, but involves a structural asymmetry of intelligibility: consumers come into contact with text, interface and contracting commands, but remain outside the code that organizes the real legal meaning of the transaction. This is where Gnerre offers direct support, by showing that certain specialized languages serve not only to communicate, but also to distinguish and exclude. As he states, "the central function of all special languages is social: they have a real communicative value but they exclude from communication the people of the linguistic community external to the group that uses the special language and, on the other hand, they have the function of reaffirming the identity of the members of the reduced group that has access to the special language." GNERRE. Merely making terms, policies or notices available therefore does not eliminate semiotic exclusion when full understanding remains reserved to those initiated in the technical, business or legal code of the relationship. Along the same lines, Gnerre observes that "language constitutes the most powerful barbed wire for blocking access to power", adding that drafting a document with legal value requires more than knowing the language in the ordinary sense, since one must master "a whole complex and archaizing phraseology that is customary" GNERRE. Transposed to digital consumption, this shows that a defect of consent may arise not only from concealing information, but from the structural withholding of meaning itself. ↩

686. Under the CDC, the duty to inform is not satisfied by merely making content formally available, nor by the bare physical existence of clauses accessible through a click, a scroll or a reading that is possible in the abstract. It is a material duty of clarity and understanding, aimed at ensuring that consumers have actual access to the legal and practical meaning of what is presented to them as the basis of consent. Communicative asymmetry is therefore not resolved by proof that the text was "there", but by establishing that its content could really be known by the average consumer, especially in contexts of strong unilateral pre-drafting: "the mere mention that CONDGs will be used in the contract is not enough, it is necessary that the ordinary man can read and understand what those clauses mean, which obligations and rights he is accepting" MARQUES. The exclusion of intelligibility undermines the legitimacy of consent because it affects the very material content of the information legally owed, in conflict with objective good faith and the protection of trust. The principle of

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governs the pre-contractual stage and the conclusion of the contract [illegible] more than a mere form[illegible] transaction", as information "is par[illegible]

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represents a failure in the quality of the product or service offered" MARQUES. Obscure texts and communicative architectures that deliver words while withholding meaning produce a zone of materially vitiated consent. ↩

687. Under the CDC system, review of adhesion contracts and obscure drafting is not limited to a neutral grammatical examination, but is guided by objective good faith and by the protection of consumer trust, in light of contractual justice and the legitimate expectations of the adhering party. With pre-drafted clauses, consumers take no part in formulating the text and often enter the relationship trusting that the drafting respects a minimum of fairness and intelligibility. The new function of contract law therefore puts the principle of interpretation in accordance with good faith back at the center, so that Article 47 of the CDC, together with the general clause of Article 51, IV, allows pre-drafted clauses to be interpreted "in a way that respects the trust and the legitimate interests of the consumers who accepted these pre-drafted clauses" MARQUES. Obscurity is not an aesthetic flaw, but evidence of structural disloyalty in the way consent is organized. Breach of the duty of clear drafting is sanctioned by Article 46 of the CDC, under which contracts do not bind consumers if they are drafted in a way that hinders understanding of their meaning and scope, a sanction rooted in the "presumption of bad faith of the supplier-drafter of the contract" MARQUES. An incomprehensible clause is not proof of robust consent; it is a symptom of betrayed trust with a veneer of drafting. ↩

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Semiotic vulnerability acquires dogmatic usefulness only when it ceases to function as a general diagnosis of the environment and begins to operate as a scheme of attribution and control. In IOCs, this requires disciplining three distinct and interlinked planes: the mechanism alleged, the objective basis on which this mechanism can be demonstrated and the typical consequence that the CDC already allows to be drawn from it. The point is not to assert, impressionistically, that the consumer was "manipulated" or "confused". The point is to show that the communicative regime of supply was structured so as to produce a relevant asymmetry of understanding, comparison and contestation, and that this asymmetry can be traced back to legally controllable duties, defects and remedies.

On the first plane, what is alleged is not a failure to read, individual distraction or psychological incapacity of the consumer. The allegation falls on a communicative and architectural structure that distributes power. In IOCs, the platform controls language, framings, signals of equivalence, criteria of rarity, acceptance flows, update messages and forms of visibility of the object itself. This means that it not only informs about enjoyment, but administers the means by which enjoyment will be perceived and evaluated. The asymmetry, therefore, does not arise from a subjective deficiency of the user, but from an unequal distribution of communicative competence and of the power to define meaning[688]. For this reason, semiotic vulnerability can be alleged as a legal fact: the supplier organizes in advance the field of what can be understood, compared and accepted.

This structure is aggravated because, in IOC ecosystems, the governance of meaning is continuous. The platform does not limit itself to communicating once, at the

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ing. It permanently reorganizes the decision environment and the enjoyment environment. The legal

forms. It may consist of informational inadequacy, when the information exists but does not guide a useful decision. It may consist of a breach of good faith, when the architecture of the environment hinders the formation of free and rational will. It may consist of objective disloyalty, when relevant changes are communicated in a ritualized, dispersed manner or at an inadequate moment. And it may consist of improper management of expectation, when offer, interface and decision flow are organized to produce an asymmetric perception of advantage, risk or equivalence. It is precisely at this level that the category leaves the abstract plane and enters the real CDC, because the transparency required by the system does not mean the mere formal existence of texts, but respect for the normal interests of the consumer and the organization of material conditions for a considered decision[689].

On the second plane, operationalization requires shifting the evidence from impressionistic ground to the communicative and architectural materiality of supply. The object of proof is not the inner state of the consumer considered in isolation. What is proven is the objective form of the decision path and of the enjoyment regime as structured by the platform. This allows semiotic vulnerability to be reconstructed through external, replicable and institutionally controllable elements. The first source of support is interface trails and decision flow: dated screenshots, screen recordings, purchase, acceptance, upgrade and confirmation screens, messages about rarity, equivalence, time remaining, discount, event or change. What is relevant there is not the user's subjective memory, but the architecture actually presented. The allegation ceases to be “I did not understand” and becomes “the environment was designed this way”.

The second source of support is the history of the offer and of mutability. The advertising and institutional promise is compared with the enjoyment actually delivered and with its later changes. What one seeks to show is not generic subjective frustration, but possible relevant degradation, loss of functional equivalence or unilateral reconfiguration with material impact on the experience. In IOCs, this comparison is central because the object is not exhausted by its nominal existence. Its

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the intelligibility of the experience is t

The third source of support concerns advertising and its identifying documents. Promotional pieces, posts, campaigns, influencers, disclaimers, asterisks, cascading cross-references and fine print serve to map how the expectation was produced and where the relevant conditions were hidden, diluted or moved to zones of low visibility. The same applies to proof of informational noise. Excess becomes opacity when there is fragmentation, circular cross-references, indecipherable technical language, internal contradictions, a gap between information and the moment of decision or displacement of the essential away from the point of choice. The evidentiary core is to demonstrate not the absence of text, but the structural inadequacy of the communication for purposes of useful understanding.

This evidentiary model also requires recognizing that semiotic asymmetry projects itself into an asymmetry of evidence. Whoever controls the service controls, to a large extent, the decisive records of the relationship. *Logs*, version histories, transactions, interface parameters, change communications and relevant technical documentation tend to remain in the supplier's possession. For this reason, the operationalization of the category must be accompanied by requests for preservation and production of minimum documentation of the supply. Without this, the consumer is prevented from demonstrating precisely what the IOC regime makes central. This is not a procedural favor. It is a matter of neutralizing the private concentration of the means of reconstructing the case. The CDC's language for this response already exists. Consumer protection admits rebalancing techniques when the informational failure and the form of the bond reveal a material defect in the formation or performance of the relationship[690].

On the third plane, semiotic vulnerability must lead to foreseeable consequences. The first group is informational. If the problem is the decisional inadequacy of the communication, the request cannot simply be “more information”. The remedy is qualified information, organized in a clear, adequate and verifiable way at the moment of decision. This may mean conspicuous highlighting of the essential, reorganization of the communication flow, prohibition of obscure cross-references or [illegible] materially useful notice about relevant changes. The second [illegible]rol of the offer and [illegible] was produced by ambiguity, relevant o[illegible]

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perception of value, correction, inhibition and restoration of the frustration produced are appropriate.

The third group is that of the ineffectiveness of obscurity. Clauses, internal rules, cascading terms and ritual acceptances that operate as semiotic traps should not be treated as a robust manifestation of consent. When language hinders real understanding of the meaning and scope of adhesion, the consumer-law system already authorizes neutralizing the effectiveness of obscurity in the concrete case. The fourth group is evidentiary. In the face of the concentration of records, preservation and production of the trails of supply are appropriate, with a rational redistribution of the burden and presumptions favorable to the consumer when the supplier does not cooperate or keeps the evidence in a black box.

This scheme shows that semiotic vulnerability is not a decorative concept. It organizes allegation, evidence and request. What is alleged is a structural asymmetry of meaning produced by the supply regime. What is proven is the communicative and architectural materiality of that asymmetry. What is requested is the correction of the decision environment, the neutralization of obscurity, the production of records and the restoration of the affected enjoyment. The category thus ceases to be a theoretical label and comes to function as an operator. It is precisely this that prepares the passage to open auditability and to the qualification of abusive teleology as a defect of the supply regime itself. Warat helps to recall only the core of the mechanism being converted into a legal allegation: the problem lies not in an inner deficiency of the consumer, but in a structure of language and framing that unequally takes from them the power to constitute the meaning of their own relationship[691].

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688. The operationalization of semiotic vulnerability does not start from the idea of the consumer's individual inattention, but from the recognition of an unequal distribution of legally relevant communicative competence. The problem is not to censure the user for not having read or understood everything, but to identify that contractual and mmunication was structured according to codes, references and forms whose full apprehens participants in the consumer relati

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reinforcement in recalling that the linguistic registers of greatest prestige and power are not universally accessible. As the author observes, "only a part of the members of complex societies, for example, has access to a 'cultivated' or 'standard variety, generally considered 'the language', and typically associated with contents of prestige. The standard language is a communicative system within reach of a reduced part of the members of a community" GNERRE. The same mechanism appears when the platform adjusts syntax, lexicon and frame of references so as to restrict the effective addressees of the message, since, as the author adds, "to reduce or broaden the range of the possible receivers of political and cultural messages it is enough to adjust the syntax, the frame of references and the lexicon" GNERRE. In IOCs, this reinforces that semiotic vulnerability concerns the very communicative architecture of supply, and not a psychological failure or mere negligence in reading. ↩

689. The operationalization of semiotic vulnerability, in the sphere of IOCs, requires bringing it back to the concrete decision plane of the CDC, that is, to the ground on which the asymmetry of meaning is converted into legally relevant informational inadequacy, breach of objective good faith and grounds for requests to correct the supply regime itself. Marques offers decisive support in stating that good faith, made concrete in the consumer relation, "means mandatory transparency toward the contractual partner, a mandatory respect for the normal interests of the other contracting party, a positive action by the stronger contractual partner to allow the weaker contractual partner the conditions necessary for the formation of a free and rational will", adding that ensuring information, protection against the pressures of sales methods and time for reflection are legal objectives of this pursuit of a rational decision by the consumer MARQUES. In a convergent sense, the author argues that the possibility of prior knowledge of the contractual text and of the obligations it contains is an "essential condition for the formation of a truly free, conscious, 'rational will", which is why Article 46 allows the consumer to request in court release from the bond due to a failure of the supplier's duties of information MARQUES. This allows semiotic vulnerability to be translated into allegation, evidence and request within the real CDC. ↩

690. The CDC does not limit itself to recognizing, in theory, that the consumer's freedom of choice may be compromised by inadequate contractual and informational structures; it provides for concrete corrective consequences precisely to rebalance the decision environment when the formation of will proves materially defective. Marques formulates this reasoning by stating that, in the face of the structural "pressures" that unbalance contracting in consumer society, there arises the need for a "rebalancing legal response", exemplified by control of the content of the contract, by [illegible] ative formalism" and by the right of withdrawal without cause, all this [illegible] of rebalancing or supplying the 'factual failure' in the freedom or will of the weaker contracting party." MAR[illegible] tendency to declare the ineffectiveness of contractual clauses and even of entire

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consumer bonds on the basis of arts. 46 and 54, § 4, of the CDC, precisely because of problems of form and contractual drafting revealing insufficient information and warning to the consumer MARQUES. This authorizes structuring corrective requests aimed not only at later reparation, but at the refinement of the supply regime itself. ↩

691. Warat offers a bridge for tracing back the mechanism underlying semiotic vulnerability. The relevant asymmetry is not founded on a psychological incapacity of the consumer, but on an unequal distribution of power through language, communicative framing and ritualization of meaning. The author warns that the function of domination should not be analyzed "from a psychologistic point of view", since senders and receivers are institutionally situated and their discourses operate as supports of a mediatized ideology WARAT. The inequality, therefore, lies not in a supposed subjective deficiency of the addressee, but in the way the communicative structure is organized in advance to favor certain poles of definition, interpretation and legitimation. This key is reinforced when Warat shows that the producer of discourse can secure for himself "the monopoly of the constitution of the denotative field", selecting designative properties for persuasive purposes and leaving the receivers "asleep to the discussion of the persuasively proposed designative criteria" WARAT. It is precisely this kind of communicative disciplining, and not an inner failure of the consumer, that can be traced back to the legal allegation of semiotic vulnerability in IOCs. ↩

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What is here called the *Case of the Irregular Gifts* offers a particularly expressive example of how semiotic vulnerability can be converted into allegation, evidence and consequence within the CDC. The interest of the episode lies not only in the occurrence of financial fraud in the Riot Games ecosystem. Fraud, *chargeback* and improper use of means of payment are known risks in digital markets and, by themselves, do not exhaust the legal relevance of the case. The decisive point lies in the way the platform responded to this risk. Instead of treating fraud as a structural problem of its own transactional environment, Riot redistributed the risk onto an undifferentiated mass of consumers, suppressed assets, interrupted an official functionality for the circulation of content and applied sanctions founded on broad presumptions of co-responsibility, including on users who did not knowingly take part in the fraud. The systemic failure of the ecosystem was thus converted into a private criterion of collective attribution to the consumer.

The first layer of the case is that of the institutional normality of *gifting*

. The gifting function did not operate on the margins of the platform, nor did it constitute a clandestine or intrinsically deviant practice. On the contrary, Riot itself presented it as a regular functionality, integrated into the game's *client*, subject to objective eligibility requirements, quantitative limits, regional restrictions and standardized sending flows. This is relevant because it rules out any attempt to reconstruct the episode as if consumers had entered, from the outset, a manifestly unlawful zone or one outside the official environment.

Gifting was part of the ordinary architecture of the service. The consumer's trust in

e circulation of virtual content through this channel was not a

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subjective whim. It was trust produced by the platform itself and supported by an officially offered functionality[692].

The second layer is that of the operational risk already known to the supplier. Riot maintains, in more than one title of its portfolio, specific guidance for cases of unauthorized charges, financial fraud and subsequent disputes of transactions. These communications show that the problem of *chargeback* and improper use of means of payment was not an external, extraordinary or unforeseeable fact. It was an institutionally recognized operational risk, with internal procedures for investigation, refund and suspension[693]. This significantly alters the legal framing of the case. When the supplier already knows the fragility of the transactional ecosystem, it cannot treat its effects as if they were residual fault of the consumer or an accident entirely exogenous to the activity. The risk becomes part of the professional sphere of the economic operation itself.

It is precisely at this point that the response adopted by the platform becomes legally problematic. The company deactivated the gifting functionality on the Brazilian server for a long period, suppressed received assets and carried out regressive restorations or blocks on affected accounts, without any equivalent effort being visible, at the level of private policy, to distinguish consistently between intentional fraud, excusable error, acquisition through an apparently legitimate channel and the good faith of the recipient. Since 2020, users have perceived the restriction not as a brief and proportionate measure, but as a lasting functional amputation, accompanied by institutional silence, occasional reintroductions and new suppressions. Community reports are not the central proof of an unlawful act, but they are useful for formulating and illustrating a long-lasting consumer experience, albeit a hypothetical one, in which one can discern the restriction and sedimentation of a broad punitive policy over the Brazilian user base[694].

From the standpoint of semiotic vulnerability, the case is especially fertile because it shows that private attribution was built not only on a raw financial fact, but also on a [illegible]icative field. The consumer did not face a simple distinction [illegible]channel and a flagrantly fraudulent one. The market for *Riot Points* and external codes was traverse[illegible]

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promotional materials and digital storefronts presented the external purchase of virtual currency as an ordinary, safe, advantageous practice compatible with the game's ecosystem. The language used in these environments mimicked commercial legitimacy, visual professionalism, subsequent functional integration with the official *client*, plausible promises of savings and a rhetoric of security[695]. In this setting, it is not legally serious to presume that the average consumer would always distinguish, with sufficient clarity, a tolerated partner, legitimate resale, a gray market and fraud linked to a cloned card. The vulnerability does not stem from private naivety, but from the absence of robust communicative demarcation between what was admitted, tolerated, official or prohibited.

This makes Riot's subsequent policy on *chargebacks* particularly serious. In a specific official policy, the company declares that a bank reversal authorizes suspension of the Riot Account until full reimbursement, and may even lead to a permanent ban in case of recurrence, and extends the sanctioning effect to gift transactions as well, reaching not only those who sent but also those who received the content. The most problematic point is that the policy reveals no prior requirement of robust individualization of the recipient's conduct, nor does it convincingly distinguish situations of knowing fraud from receipt in a context of apparent legitimacy[696]. The risk of financial reversal, therefore, is converted into a mechanism of blocking and functional confiscation for the benefit of the supplier's economic recovery. The consumer comes to function as a shock absorber for the systemic failure of the environment.

From the contractual point of view, this shifting of risk is supported by a set of clauses that seek to lower the legal density of the user's enjoyment. Clause 3.1 presents the use of the services and of virtual content as a limited, non-transferable and revocable license, automatically cancelable upon termination of the account[697]. Clauses 4.3[698] and 4.4[699] expressly deny ownership, monetary value, transferability and the consumer's title over virtual content, reiterating that what exists is only a personal, non-exclusive and revocable right of access. Clause 4.5 reinforces the

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delete, alter, move, remove, reprice and reorganize any and all

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by law[700]. Clause 5.1 links this picture with unilateral management of financial risk, future modification of prices and non-refundability[701]. Clause 14.1 adds a broad limitation of reparation[702]. The design is coherent: precarious license, unilateral mutability, exclusion of value, economic elasticity and indemnity shielding. The case of the irregular gifts shows the concrete use of this arsenal as a contractual shield to absorb, in favor of the platform, the effects of its own operational vulnerability.

The central dogmatic point, however, is that this contractual vocabulary is not enough to convert the consumer into the legitimate addressee of systemic risk. The existence of fraud in the ecosystem does not authorize the supplier to shift entirely onto the good-faith user the effects of the instability of its own monetization environment. The CDC also protects the trust aroused by the way the service is organized, by the functionalities made available to the market and by the legitimate expectations created around the adequacy of the system. The chain of suppliers involved in satisfying these expectations cannot be erased by a revocable license clause[703]. If the platform itself institutionalizes a given functionality, knows the related risks and allows the circulation of value to unfold in an objectively confusing communicative environment, it cannot treat the consumer as the universal guarantor of the system's failures.

Likewise, the consumer-law microsystem does not admit the unrestricted contractual transfer of the professional risks of the activity to the consumer. The supplier bears risks proper to the economic and operational architecture it chose, and cannot unload them en bloc onto the regular user whenever the frustration of the model materializes. Contractual engineering does tend to transfer risks and duties to the most vulnerable pole of the relationship, but the protective logic of the CDC exists precisely to contain this tendency[704]. In the case of the irregular gifts, this means that Riot could not treat the removal of skins, the suspension of functionalities and the attribution of debt to the good-faith recipient as a mere neutral consequence of its terms of use. The risk of the frustration of the payment and verification system cannot be borne exclusively by the consumer.

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vulnerability. Once the assets are remo

user comes to depend on old statements, scattered emails, past screenshots and reconstructed memory to prove that a given item of content legitimately formed part of their position of enjoyment. There is a recent report of a *rollback* with the permanent disappearance of *skins* and other cosmetics that the consumer claims to have legitimately acquired through different ordinary channels, in a context in which reconstructing the origin of each item becomes extremely burdensome and fragmented. The episode shows how the platform, in carrying out a broad reversal of the state of the account, transfers to the player the almost archaeological burden of reconstituting item by item what was already part of their sphere of enjoyment[705]. In CDC terms, this reinforces the need to preserve and produce minimum records of the supply, lest the very architecture of the service make the consumer's defense impossible.

There is, moreover, an important structural element in Riot's subsequent reaction. In another title of the same ecosystem, the company began to favor payment instruments less exposed to subsequent dispute, such as prepaid cards and single-use codes, while strongly discouraging purchases on unauthorized third-party sites. The movement is eloquent: the response to the risk of *chargeback* was not only punitive, but also reorganized the transactional environment toward means more controllable from the supplier's point of view[706]. This confirms that structural alternatives for mitigating the risk existed. The fact further weakens the legitimacy of a solution founded primarily on suppression of assets, functional blocking and expanded sanctions on the consumer.

The relevance of the case, then, goes beyond the historical episode. It shows how the Lex Plataformae can operate on three simultaneous levels. First, it produces a semiotic gray zone in the circulation of value, without sufficiently robust communicational distinctions between the lawful, the tolerated and the unlawful. Second, in the face of crisis, it unilaterally reorganizes the ecosystem and redistributes the risk onto consumers. Third, it uses the language of revocable license, absence of ownership and limitation of liability to justify the retrospective

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oyment. The result is a private regime of attribution in which the

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who bears the costs when the system f

In a dogmatic key, the *Case of the Irregular Gifts* allows quite precise allegations to be formulated. The first is that of inadequacy of the service due to a failure in the security and governance of the transactional environment, with subsequent abusive redistribution of the risk to the consumer. The second is that of breach of legitimate trust, because the platform itself offered the *gifting* functionality as an ordinary and institutionalized channel for the circulation of content. The third is that of the abusiveness of the private response, through an expanded presumption of bad faith and the absence of reliable individualization of conduct. The fourth is that of the ineffectiveness, in the concrete case, of the clauses used to turn enjoyment into an absolutely precarious tolerance and to deny restoration. The fifth is that of evidentiary asymmetry, with the need to preserve trails, transaction histories, the origin of the removed items, the criteria used for the *rollback* and individualized justification of the measures adopted.

As for claims, the case is also exemplary. It is not merely a matter of residual compensation. The consumer-law regime admits, here, claims for functional restoration of the position of enjoyment, restoration of assets when the user's good faith has not been rebutted by robust individualized evidence, preservation and production of minimum records of the supply, informational correction about legitimate acquisition channels and neutralization of clauses or practices that transfer entirely to the consumer the structural risks of the system. In qualified cases, the episode also serves as a bridge to two central operators. On the one hand, to open auditability, because the controversy exposes the need for verifiable transparency about the criteria for change, *rollback* and sanction. On the other, to abusive teleology, because the private response does not appear as a mere one-off error, but as a mode of functioning in which the platform protects its economic interest through opacity, expanded presumption and precarization of others' enjoyment. The *Case of the Irregular Gifts*, in short, is not merely an episode of financial fraud. It is a clear laboratory of how semiotic vulnerability operates in IOCs. The consumer was not merely exposed to a transactional risk. They were placed in a confusing communicative environment, deprived of transparent criteria for distinguishing and, later, subjected to a broad private attribution policy that

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this reason that the case matters to the argument. It shows, in a concrete situation,

that the relevant asymmetry lies not only in the contract, nor only in the fraud, nor only in technology. It lies in the private governance of meaning, risk and evidence within the enjoyment regime itself.

NOTES

692. The official ordinary gifting regime in *League of Legends* is presented by *Riot Games* itself as a regular functionality, integrated into the game client and subject to objective formal eligibility requirements, such as minimum friendship time, account level, quantitative limits on sending and receiving and specific restrictions for Brazil. The article also describes standardized internal flows for sending gifts through the store and the social panel, and lists the content that can be regularly transferred this way. The empirical relevance of the document lies in showing that *gifting* was not located on the margins of the platform, but constituted an official mechanism, institutionalized and operationalized by the very architecture of the service, producing an appearance of normality and legitimacy able to sustain the consumer's trust in the lawfulness of this form of circulation of digital content RIOT GAMES. ↩

693. *Riot Games* maintains specific guidance, in both *League of Legends* and *VALORANT*, for cases of unauthorized charges, institutionally recognizing the occurrence of improper use of means of payment, financial fraud and subsequent dispute of transactions in its monetization ecosystem RIOT GAMES. In both cases, the company provides for formal incident response flows, with investigation of the fraud, refund of purchases, removal of payment data and suspension of the account linked to the disputed operations RIOT GAMES. The convergence between the two materials is legally relevant because it shows that chargebacks and related frauds were not an external, exceptional or unforeseeable fact, but a known, repeated operational risk administered by the supplier itself in more than one product of its portfolio RIOT GAMES. As a result, the case of the irregular gifts no longer looks like an isolated or anecdotal episode and fits instead into a broader context of transactional vulnerability already recognized by the company in its official support channels RIOT GAMES. ↩

694. Community records produced at different moments indicate that the unavailability of the gifting function on the Brazilian server was perceived by users not as a brief incident, but as a prolonged restriction progressively naturalized over time MACAULYN +1. As early as 2020, in the heat of the problem, players were already reporting that the tool had remained deactivated for months, in a context in which the [illegible] circulated that the measure was linked to frauds with RP, cloned cards [illegible] transactions, in addition to the only partial maintenance of certain gifting flows MACAULYN. In 2022, t[illegible] reformulated as a lasting policy maintained without sufficient institutional

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communication, with criticism of the absence of a proportional solution, of transparency about the grounds of the restriction and of adequate distinction between good-faith users and effectively fraudulent conduct [MACAULYN]. In 2025, in turn, the deactivation was already described as a reality consolidated for approximately five years, accompanied by a community memory of brief reintroductions, new removals and a persistent absence of minimally clear clarification about causes, duration and prospect of reversal [JUDESUNE––]. Although peripheral, the three records are relevant together because they document, through different time frames, the experience of prolonged functional amputation, the accumulation of institutional silence and the sedimentation, in consumers' perception, of a long-lasting restrictive policy imposed indiscriminately on the regional base [MACAULYN +1]. ↩

695. Market materials aimed at the *League of Legends* public present the external acquisition of RP and prepaid codes as an ordinary, safe and commercially advantageous operation, with professional promotional language, promises of convenience, discounts, *cashback*, a plurality of means of payment and subsequent redemption of the credit within the official environment of the game itself [FONTE · ZERO3GAMES]. In one case, the sale is tutorialized on video as the "best method" to buy RP "100% safely", with a step-by-step guide to purchase, payment and activation of the code in the official client; in the other, the sale appears in a structured digital storefront, with professional presentation of the product, indication of the Riot brand and an organization typical of legitimate retail of gaming content [FONTE · ZERO3GAMES]. The set is legally relevant because it shows a semiotic gray zone in which external channels for the circulation of virtual currency do not present themselves, to the average consumer, as a manifestly clandestine or obviously unlawful practice, but as a plausible and socially normalized mode of digital acquisition compatible with the economic ecosystem of the game [FONTE · ZERO3GAMES]. In this setting, the combination of a reputable commercial appearance, a rhetoric of reliability and subsequent functional integration with the official client objectively scrambles the distinction between official channel, authorized resale, indirect partner and fraudulent parallel market, aggravating the consumer's informational vulnerability and weakening automatic attributions of bad faith founded only on the external origin of the acquisition [FONTE · ZERO3GAMES]. ↩

696. In a specific official policy on *chargebacks*, Riot Games states that the bank reversal of purchases of paid in-game currency authorizes the suspension of the Riot Account until full reimbursement of the amount, and may even lead to a permanent ban in case of recurrence. The most expressive point, for this item, is that the company also extends the sanctioning impact to gift transactions, providing for suspension of both at sent and the one that received the content, without the wording of ing out any prior requirement of robust individualization of the recipient's conduct. The same guid

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parties, even when perceived by the consumer as legitimate, do not rule out the attribution of the debt and of the subsequent sanction. It is, thus, an especially relevant document for showing how the risk of fraud and financial reversal is converted, on the private plane of the platform, into a mechanism of blocking, functional confiscation and expanded presumption of the user's co-responsibility, including that of the gift recipient, for the benefit of the recovery of the supplier's economic interest RIOT GAMES. ↩

697. “3.1. What can I do with the Riot Services? (You may enjoy the Riot Services for your own personal, non-commercial use.) We grant you a limited, non-exclusive, non-transferable and revocable license to use and enjoy the Riot Services (and any Virtual Content) solely for individual, non-commercial entertainment purposes and expressly conditioned on your compliance with the terms of this Agreement. If we terminate your account, any license granted to you over the Riot Services, as well as the Virtual Content, will be automatically canceled. Unless expressly authorized otherwise by Riot, in a written and signed agreement, you may not sell, copy, exchange, lend, reverse engineer, decompile, derive source code, translate, lease, pledge, transfer, publish, assign or otherwise distribute any of the Riot Services or any Riot Games intellectual property, including any of our computer code or the Virtual Content.” RIOT GAMES. ↩

698. “4.3. Do I “own” the Virtual Content I unlock? (No. What you “unlock” is not the virtual product itself, but a limited non-transferable license to access it.) You do not have any ownership or right over any Virtual Content you unlock, regardless of how you acquired access to it. Virtual Content has no monetary value. You may not transfer (unless we allow it in the functionality of the Riot Services) or redeem Virtual Content for any kind of “real world” money. You may not obtain any refund for the purchase of a license to access Virtual Content, except as expressly permitted by us. You can consult our current content refund policy here.” RIOT GAMES. ↩

699. “4.4. Once again: I don't own my Virtual Content? (“No!”, shouted all the lawyers.) When you obtain our Virtual Content, what we are really offering you is a non-exclusive, non-transferable, non-sublicensable, revocable, limited license and personal right to use that Virtual Content only in connection with your use of the relevant Riot Services. Notwithstanding any provision to the contrary in this document, you acknowledge and agree that you will have no ownership right or other kind of right over your account, and that all rights in your account are and will always be owned by Riot Games and will inure to its benefit. You also acknowledge and agree that you have no title, ownership right or other kind of exclusive right over any Virtual Content, regardless of any consideration offered or paid in exchange. Furthermore, except (1) in cases of our willful misconduct or gross negligence, (2) to the extent these Terms [illegible] wise or (3) as otherwise required by applicable law, Riot Games will not [illegible] y way for the destruction, deletion, modification, impairment, hacking [illegible] damage or loss of any

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deletion of Virtual Content upon termination or expiration of your account or our reasonable changes to the Riot Services." RIOT GAMES. ↩

700. "4.5. Will my Virtual Content always be available? (Not necessarily, no.) In an effort to constantly improve the Riot Services, develop our games and keep the Riot Services safe, fun and secure, we have the right to delete, alter, move, remove, repackage, reprice or transfer any and all Game Content, including Virtual Content, in whole or in part, at any time, with or without prior notice to you, to the extent permitted by law. For example, your Virtual Goods may (and probably will) evolve over time in order to improve the Riot Services (including for reasons of game balance, bug fixes, or graphic improvements) or for regulatory or legal reasons. If we decide to completely retire certain Virtual Goods that you have recently purchased, we will provide you with a refund or a replacement. We will not delete your Game Currency without prior notice (through posts on our site, app or game), unless your account is terminated by us for cause or by you in accordance with Clause 2.1.1. Sometimes, we may change the purchasing power of Game Currency (for example, we may increase the amount of Game Currency needed to buy Virtual Goods, such as skins). Normally, we do this only in progressive steps, but you will be notified (through posts on our site, app or game) if we intend to make changes that significantly affect your Game Currency in a negative way. We do not provide or guarantee, and we expressly disclaim, any value, in money or otherwise, attributed to any data residing on servers we operate or control, including any Game Content or Virtual Content attributed to your account. If we allow you to sell or transfer your right to access certain Game Content or Virtual Content, this may only be done through services approved or provided by us, if any." RIOT GAMES. ↩

701. "5.1. Is everything in the Riot Services free? (No.) Some aspects of the Riot Services may require you to pay an amount, and you agree to provide accurate and complete payment information to us or to a third-party payment administrator used by us. You also agree to pay all amounts and applicable taxes incurred on your account. We may adjust the prices of any part of the Riot Services at any time (with future effect, that is, except for what you have already acquired). This may affect the purchasing power of your Game Currency, although we normally do this only in gradual steps. All amounts and charges are due in accordance with the payment conditions in force at the moment the amount or charge becomes payable. Occasionally, we may modify, change or supplement our amounts and billing methods with future effect, and these changes will take effect immediately upon publication in these Terms or anywhere else on our sites, apps or games. Except in cases of gross negligence, willful misconduct or failure to exercise reasonable care and skill, if you do not pay the amounts you owe us or if we have to reimburse someone due to the unauthorized use of a payment made on your ay suspend or terminate your account. See Clause 2 (Account for more information and other charges for value-based

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advance and are not refundable, in whole or in part, except as expressly provided in these Terms or in our refund policy or unless your rights as a consumer entitle you to a refund. Except in cases of gross negligence, willful misconduct on Riot's part, or to the extent these Terms provide otherwise, you are responsible for all losses and expenses charged to your account as a result of sharing your Login Credentials or of not having taken all reasonable measures (for example, enabling multi-factor authentication) to keep your account or Login Credentials secure." RIOT GAMES. ↩

702. "14.1. Is there a limit to Riot's potential liability under these Terms? (Yes.) To the extent permitted by law and always subject to subsection 14.1(3) below, our total liability to you (whether for breach of these Terms, negligence or for any other reason) for any loss, injury or damage suffered by you in connection with the download, use and/or access of the Riot Services is limited to the total amounts paid by you to Riot during the 12 (twelve) months immediately preceding the moment your cause of action first arose. We make the Riot Services available only for domestic and private use. We are not liable for business losses (such as lost profits, loss of business, business interruption, loss of goodwill or loss of business opportunity). We are also not liable for any damage that occurs because you did not install an update when it is made available by Riot Games or when you fail to maintain the necessary minimum system specifications. Separately (and subject to subsection 14.1(3) below), we are not liable for: (i) any loss that was not foreseeable at the moment you accepted these Terms; or (ii) any loss that we both knew could occur only due to your special circumstances existing at the moment you accepted these Terms (including all indirect damages). Notwithstanding any provision to the contrary in these Terms, WE DO NOT EXCLUDE OR LIMIT, IN ANY WAY, OUR LIABILITY TO YOU WHERE IT WOULD BE UNLAWFUL TO DO SO, including our liability for: (i) death or personal injury resulting from our negligence; (ii) fraud or fraudulent misrepresentation on our part; (iii) negligent or willful conduct; (iv) damages resulting from a negligent breach of an obligation that is essential to the performance of the contract by Riot Games to the extent it is typical and foreseeable; (v) for any warranty given by us to you; or (vi) any liability under the legislation applicable to product liability in a region. You may also have specific rights under local legislation, in addition to those described above." RIOT GAMES. ↩

703. The existence of fraud, irregularity or internal dysfunction in the supply ecosystem does not authorize the platform to shift entirely onto the good-faith consumer the systemic risk of its own operational architecture. In complex consumer relations, legal protection also considers the legitimate trust aroused by the way the system is organized, by the promises conveyed, by the functionalities offered and by the expectation of normal adequacy of the service. Marques makes this point explicit in light of the legal guarantee of adequate and quality performance, "the CDC end up reaching
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imposing protection of the trust aroused in the consumer group by the suppliers' conduct MARQUES. Applied to the case of the irregular gifts, this logic prevents terms of use from functioning as an absolute shield protecting the platform against the effects of structural failures of its own transactional environment. ↩

704. The consumer-law microsystem does not allow the supplier to exempt itself from the structural risks of its own activity through clauses, contractual arrangements or operational designs that convert the consumer into the final addressee of the system's instability. Marques states directly that “the need to protect the freedom of the weaker contracting party leads to imposing new professional risks on suppliers, which cannot be transferred to consumers by any valid manifestation of will” MARQUES. The author adds that the market's “contractual engineering” tends to be designed so as to transfer risks and duties to the partner in a non-dominant or more vulnerable position, but that “the risk of the frustration of the contract should not be borne only by the consumer”, on pain of excessive advantage and destruction of contractual balance MARQUES. Applied to the case of the irregular gifts, this rationality prevents the validation of clauses or practices that, in the face of systemic failures of the ecosystem, impose on the regular user the total loss of the utility received or expected. ↩

705. In a recent user report, the recovery of an account was allegedly accompanied by a regressive restoration of the profile to an earlier state, with the permanent disappearance of *skins* and other cosmetics that the consumer claims to have legitimately acquired through different ordinary channels of the ecosystem, including the purchase of RP, the use of Blue Essence and acquisition through chests and crafting. The case is relevant because it empirically documents a pattern of *rollback* with loss of digital assets and subsequent evidentiary difficulty for the user, above all when reconstructing the acquisition history depends on fragmented records, old emails or external statements. The community discussion associated with the episode also reinforces the perception that this type of restoration operates by a broad reversal of the account's state, with the risk of indiscriminately reaching disputed content and legitimate content, transferring to the good-faith player the burden of reconstituting, item by item, what was already part of their perceived digital estate EMPTY-ILLUSTRATOR460. ↩

706. In official support for another title of the same ecosystem, *Riot Games* presents gift cards and prepaid codes as a regular way of acquiring virtual currency, emphasizing features that reduce exposure to subsequent dispute of the transaction, such as single use, full redemption, regional lock and the need for prior activation of the code at the point of sale. The same material also expressly discourages purchases on unauthorized third-party sites, on the grounds that the company cannot guarantee the legitimacy, availability or validity of these codes. The set is relevant because it shows a ı of the transactional environment around payment instruments less :hargeback and rever

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previously associated with traditional means toward modalities more controllable from the supplier's point of view RIOT GAMES. ↩

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The duty to inform, under the CDC regime, is not satisfied by the mere formal existence of content available to the consumer. In the case of immaterial objects of consumption, information fulfills its legal function only when it organizes, in an intelligible and timely manner, the practical core of the decision. This means that informing is not dumping clauses, FAQs, hyperlinks, peripheral notices and cascading policies only to invoke formal compliance afterwards. Informing is making cognizable, at the point of decision, what actually defines the utility of the performance, its risks, its relevant limits, its conditions of enjoyment and the cases in which it may be lost. The consumer-law system requires, in material terms, that the supplier ensure the consumer clear, precise and conspicuous information about the main characteristics of the product, its economic repercussions and the risks that surround the contracting, so that good faith and trust are not sabotaged by a documentary architecture that delivers words and withholds meaning[707].

This requirement is especially important in IOCs because the essential content of the relationship is not in peripheral details, but in the very core of the value acquired. Real cost, total cost, mutability of the object, restrictions on use, equivalence parameters, maintenance criteria, cases of loss and consequences of acceptance are not exotic annexes to the contracting. They are the substance of the promised enjoyment. When these elements appear displaced to zones of low visibility, scattered across secondary documents or subordinated to successive cross-references, the duty to inform has not been fulfilled in the material sense, even if the supplier manages to point to dozens of screens, links or supposedly accessible texts. The legal problem ceases to be the simple lack of information and becomes the communicational

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Thus, the interpretive key is not quantity, but adequacy. The supplier does not fulfill the legal duty by accumulating documentation and leaving it technically available. Fulfillment is measured by the capacity of the information to reach the consumer in conditions that can actually guide a decision. The posture required is not passive. The supplier must make the information reach the recipient in a useful and structured way, because the consumer's right to information is a more complex problem than the mere lack of data to be provided[708]. This point is decisive. The standard defense that "it was all in the terms" only works if one accepts, uncritically, that the mere existence of a body of documents suffices to form valid consent. The CDC does not work with this fiction, so comfortable for the supplier.

From this follows the need to recognize that informational excess can also be a form of violation. Volume is not neutral. In certain communicational designs, it operates as a positive technique of opacity. The information exists, but its organization makes practical understanding of what matters unfeasible. Successive layers of documents, serialized links, cross-references, excessively technical language, inverted visual emphasis, cascading *disclaimers* and the displacement of relevant content to improbable zones of the contracting flow can produce the same legal effect as omission. The consumer receives text, but does not receive guidance. The platform stages informational openness while maintaining, under an appearance of compliance, a regime of noise. This is exactly the phenomenon called "performative transparency".

Performative transparency does not consist in the absence of information, but in the excess, dispersion and defective hierarchization of the essential content. The supplier appears to fulfill the legal duty through abundance, but the communicational design reduces the practical utility of what it presents. This is not a mere aesthetic deficiency of drafting or a discomfort of reading. It is a structure that prevents comparison, understanding of the risk and apprehension of the economic and functional core of the contracting. In a consumer-law key, this failure is legally relevant because it compromises the practical freedom of choice. If the communication reduces price

rs the comparability of offers and materially interferes with the

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service, documentary abundance no longer functions as proof of transparency, but as its caricature[709].

This point gains special density in IOCs because enjoyment is usually preceded by purchase and acceptance flows designed for speed, impulse, managed scarcity or a promise of distinction. In such environments, displacing the essential content outside the point of decision is more than a failure of organization. It is a shielding technique. The platform offers the object under a certain frame of value and urgency, but places costs, mutability, potential losses and limitations in documentary zones that the flow itself does not encourage one to go through. The consumer is pushed to decide on the basis of the shop window and only later discovers, if at all, the depth of the contractual reservation against their own enjoyment. The legally relevant question, then, is not whether there was text somewhere in the ecosystem. The question is whether the essential was presented in a conspicuous, legible and timely way before adhesion and before exposure to the risk.

This is precisely what Article 54, under paragraphs 3 and 4, of the CDC makes explicit. Adhesion contracts must be drafted in clear terms, with conspicuous and legible characters, so as to facilitate their understanding, and clauses limiting rights must be drafted with emphasis, allowing immediate and easy understanding[710]. The provision is not a typographical whim. It prevents the essential from being hidden in cross-references, low visibility or documentary depth. In IOCs, this command carries even greater weight, because a large part of the relevant limitations falls precisely on the core of the acquired experience. If the platform intends to reserve for itself the power to alter equivalence parameters, reduce functionality, condition the permanence of content, suppress access or redistribute risks, it cannot bury this under textual mountains and then claim that the consumer was informed in advance.

From this perspective, adequate information is that which presents the essential at the moment the consumer needs to decide. Its criterion is neither merely formal nor merely semantic. It is functional. Information must allow use, comparison and concrete evaluation of the performance before adhesion. In practical terms, this

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·mational regime must clearly expose, at the point of decision, the elements that structure the choice: pri

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mutability of the object, equivalence criteria, potential loss of items, refund conditions, cases of suspension, limits of use and substantial impacts of updates. When this content is only revealed through later investigation in long documents, consent is already born under a deficit of intelligibility. Adequate information is not that which exists in some remote corner of the system. It is that which arrives in time and with practical utility for deliberation[711].

This shift of focus, from the existence of information to its adequacy, neutralizes the supplier's main alibi in platformized markets. The typical defense maintains that the consumer could have read everything calmly, simply by clicking more, opening more links, following more cross-references or consulting FAQs and complementary policies. The problem with this defense is that it turns the duty to inform into an obligation of documentary treasure hunting on the part of the consumer. The CDC does not admit this. The protection of trust and good faith prevent the supplier from treating engineered obscurity as proof of contractual freedom. No average consumer can be considered fully informed merely because, in theory, it was possible for them to go through a documentary forest, decode technical vocabulary and reconstruct on their own the hierarchy of what was really essential. When the documentary architecture demands this kind of pilgrimage, transparency has already failed.

For this reason too, excessive cross-references, opaque chains and overly long texts are not legally innocent. The mere mention that certain general conditions exist is not enough to include them validly in the relationship. The consumer must be able actually to read and understand what the clauses mean, which rights they limit and which obligations they create. Furtive texts, an excess of cross-references, dense language and hostile graphic materiality compromise the intelligibility of the essential content and, consequently, the very legitimacy of adhesion[712]. Obscurity, here, is not a regrettable stylistic detail. It is a way of organizing contractual risk for the benefit of the dominant party.

The notion of performative transparency is useful precisely because it captures this difference between formal existence and decisional utility. There is performative

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:he supplier can demonstrate informational abundance, but cannot demonstrate that the essential

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functionally guiding way. The performance of compliance replaces the effectiveness of the duty. The system comes to produce proof of formal coverage of the supplier's risk, not of the consumer's enlightenment. On platforms, this is especially visible when purchase screens emphasize urgency, rarity, bonuses, convenience or distinction and reserve the relevant conditions for contractual depth. The contract ceases to be an instrument of information and becomes a piece of ex post shielding.

The dogmatic consequence is important. If excess, noise and performative transparency can constitute a violation of the duty to inform, legal control cannot be limited to an abstract reading of the contract. It is necessary to reconstruct the concrete form in which the information was displayed, the moment it appeared, the interface that conveyed it, the emphasis it effectively received and the position it occupied in the decision path. In IOCs, proof of informational adequacy depends on minimum documentation of the purchase flow, the confirmation screens, the change notices, the way equivalences are presented and the visual location of the relevant limitations. It is not enough for the platform to claim generically that it informed. It must be in a position to demonstrate how it informed, when it informed and with what emphasis it informed.

It is here that the bridge to auditability is prepared. The transparency required by the CDC, in a governed environment, cannot merely be declared. It must be verifiable. This involves minimum preservation of interface trails, version history of screens, relevant messages, change notices and documentation of the communicational design actually employed. When the proof of this informational regime is concentrated in the supplier, the distribution of the burden cannot remain blind to this asymmetry. Otherwise, the duty to inform becomes a comforting fiction for the platform and an evidentiary nightmare for the consumer. The content of transparency needs to be institutionally reconstructible, or its protection dissolves into formalism.

The objective is to prevent the platform from converting documentary excess into a safe-conduct, dismantling the rhetoric that all available information equals adequate information and putting the duty to inform back on its proper axis, which is that of onsent, comparison and control. In IOCs, this means shifting the xt exists" to "the e

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conditions to be understood". The CDC, read functionally, does not protect the supplier who documents too much. It protects the consumer who needs to decide on the basis of what really matters. It is this reading that allows one to move, in the following stages, from the critique of noise to the demand for open auditability and to the reconstruction of enjoyment as a position that cannot be degraded under cover of pseudo-transparency.

NOTES

707. The duty to inform, in the CDC system, is not fulfilled by the mere multiplication of texts, links, cross-references, windows, policies and documents formally available to the consumer. Informing, in a material key, means making cognizable in a clear, adequate and conspicuous way the essential content of the consumer relationship, especially that which defines the utility of the performance, its conditions of enjoyment and its relevant risks. This is exactly what is highlighted when interpreting Article 31 of the CDC, affirming that the supplier must ensure the consumer "clear, precise and conspicuous information about the main characteristics of the product", including data related to its characteristics, its economic repercussion, health and safety MARQUES. As a reflection of the principle of transparency, the supplier must offer "clear and correct" information about the qualities of the product and the conditions of the contract, drafting the text clearly, so as to "give the consumer the opportunity" to know the content of the obligations assumed, on pain of the contract not binding them, "even if duly formalized" MARQUES. Practices of merely performative transparency, therefore, can constitute a violation of the duty to inform. ↩

708. The duty to inform, in the CDC, is not satisfied by a merely quantitative logic. It is not enough for the supplier to dump documents, links, clauses or blocks of text on the consumer and then claim formal transparency. The legal duty requires positive action aimed at the information actually reaching its recipient in conditions that allow relevant understanding. For this reason, "in the regime of consumer relations, the duty to inform the consumer requires an active posture from the supplier", it being the supplier who "must make the information reach the consumer" WADA. The mere formal provision of content, therefore, is not enough, because there can be documentary access without true cognitive appropriation. The consumer's right to information constitutes "a much more complex question than just a problem of lack of ıat needs to be ensured" WADA. The duty to inform, thus, is fulfilled not documentary accum[illegible] informational adequacy. ↩

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709. Excess, dispersion, complexity and low hierarchization of the essential characterize forms of functional opacity produced under the appearance of transparency. The starting point lies in the refusal of the simplistic premise according to which it would suffice to add more information to resolve the consumer's informational vulnerability. By recording that the right to information is "a much more complex question than just a problem of lack of information that needs to be ensured" WADA, the logic of mere documentary filling is set aside. This obscurity appears when information is formally provided, but organized in a way that makes comparison and identification of what really matters unfeasible. This is what occurs, for example, in banking packages with numerous products that do not correspond to one another, making it "very difficult for the consumer to compare the benefit packages offered by banks" WADA. The abusive practice may occur when there is material interference with the consumer's capacity to understand the terms and conditions of the product or service, with an excessive advantage obtained from the lack of understanding of the risks, costs or conditions involved WADA. In this key, performative transparency is defined precisely by the conspicuous display of content whose form of presentation produces functional opacity. ↩

710. "Paragraph 3. Written adhesion contracts shall be drafted in clear terms and with conspicuous and legible characters, so as to facilitate their understanding by the consumer. Paragraph 4. Clauses that imply a limitation of the consumer's rights shall be drafted with emphasis, allowing their immediate and easy understanding." BRASIL.. ↩

711. Adequate information, in the consumer-law regime, is not defined by the simple existence of available content, but by its aptitude to present the essential elements of the contracting at the exact moment the consumer needs to decide. For this reason, "information about the performance of the obligation is essential for the consumer" and, "without it, it is not possible to make conscious choices about the product acquired or even about the service contracted" WADA. This requirement gains density in the prior estimate as a qualified moment of decision, in which the consumer can examine "the quality of the service, the deadline for execution, the materials used", in short, the essential elements that make up the price and the substance of the performance, being also able to clarify doubts and negotiate the terms before binding themselves WADA. Informational adequacy requires organized presentation of the essential content in useful time for deliberation. When the structure of the offer "reduces price transparency", "the comparability of offers" is hindered WADA, which directly compromises the practical freedom of choice. Adequate information, thus, is that which allows one to use and compare the essential before the decision, and not rely exists in some remote corner of the contractual ecosystem. ↩

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712. The legal sufficiency of informatio

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formal availability or with the existence of a body of documents the consumer could

potentially consult. Excessive cross-references, opaque chains, overly long texts or a documentary architecture that hinders apprehension of the real content of the obligation do not satisfy the duty to inform in the material sense. No average consumer could understand obligations assumed in contracts that pile up cross-references to laws and provisional measures in an incomprehensible way, which is why such a bond can be undone for failure of transparency (in this case good faith) at the time of its formation, since the consumer could not understand what obligations they were assuming MARQUES. For general conditions to be included, "the simple mention" that they will be used "is not enough"; the consumer must "be able to read and understand" what the clauses mean, and such texts frequently appear in a "somewhat furtive" way, in long or hard-to-read material MARQUES. Consequently, documentary excess and formal availability have legal value only if they preserve the material intelligibility of the essential content of the relationship. ↩

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Advertising, in IOC ecosystems, cannot be treated as a peripheral layer of the offer. It participates directly in the production of the economic meaning of the object, organizes the consumer's expectation before enjoyment and anticipates, to a large extent, the way in which utility, value, rarity, performance and equivalence will be perceived. It is precisely for this reason that consumer-law protection needs to treat it as a controllable semiotic mechanism. The problem lies not only in literally false sentences or in gross omissions. It lies in the strategic management of the visible and the invisible, of what gains emphasis and what is relegated to the documentary background, of what appears as an immediate advantage and what recedes as a cost, limitation or ordinary risk of the supply.

In platform markets, this question gains special density because the promised experience is not static. The advertised object will later be subjected to updating, curation, parameterization, *enforcement* and ordinary reconfigurations of the environment. This means that the expectation is not only formed before contracting; it can also be strategically overproduced before the consumer has any real chance to perceive mutability, limits of use, equivalence criteria and ordinary possibilities of functional downgrading. In IOCs, advertising does not announce only an object. It announces a future governed experience. And, for that very reason, it can produce error not only through express falsity, but through the semiotic construction of a trust incompatible with the reality of the regime of enjoyment.

The first point is, then, to recognize advertising as market semiotics. It does not operate only by transferring objective data, but through signs, framings, visual hierarchies and inductions of reading. The relevant vulnerability here is not a lack of

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on in the narrow sense, nor a diffuse psychic weakness of the consumer. What matters is the asymme

designed to guide adhesion under conditions of selective visibility. The marketing message defines what appears as an advantage, what is naturalized as tolerable, what is anticipated as rarity and what is concealed as an ordinary consequence of the contracting. We are not facing promotional ornament. We are facing a structure for the production of expectation.

This conclusion is perfectly compatible with the dogmatics of the CDC. When advertising contains sufficiently precise elements about qualities, conditions, advantages or characteristics of the object, it becomes part of the offer and radiates obligational effects over the consumer relationship[713]. The consumer-law system breaks, therefore, with the old privatist view according to which advertising would be a simple invitation indifferent to the contracting. In more direct language: the promotional message enters the contract through the door of trust. If the supplier organizes the market through promises, signals and sufficiently guiding descriptions, it cannot later pretend that all of that was only aesthetic ambiance and that the real bond was hidden, dry and hostile, in later clauses. Advertising participates in the very shaping of the legally enforceable performance.

Here, therefore, objective good faith does not appear as an agreeable abstraction, but as a concrete matrix of ancillary duties in marketing communication. Fair advertising is not merely advertising "without lies". It is advertising structured in a way compatible with legitimate trust, identification of its persuasive character and consistency between what produces expectation and what will actually be delivered. Good faith requires that the supplier promise only what it can fulfill and, if it provides information about characteristics of the product, the service or the conditions of contracting, that this information be correct, truthful and apt to guide the formation of will[714]. This matters a great deal in IOCs because expectation is usually formed before the consumer has any real contact with the ordinary regime of mutability of the object. The promise circulates first. The frustration comes later.

From this follows the third point: advertising deceptiveness does not depend on a literal lie. The CDC does not require frontal, caricatural or gross falsity to recognize

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lness can arise when the message, even if it contains literally true elements, is apt to lead the consumer i

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omission, strategic incompleteness or simple persuasive organization of the visible[715]. The error need not be fabricated by the openly false sentence. It can be produced by the way the essential is hierarchized, by selective emphasis on advantages and by the displacement of relevant conditions to *disclaimers*, layers of low visibility, later links or discursive zones that do not usefully integrate the moment of decision.

This is the core of misleading advertising by semiotic architecture. The architecture of an advertisement becomes legally relevant when the supplier structures the consumer's understanding so as to reinforce the positive side of the experience and push the onerous, mutable or limited side out of focus. Put more simply, communication need not lie in order to deceive. It is enough that it manages the interpretive framing in a sufficiently asymmetrical way. Advertising can tell the truth in pieces and still lie as a whole. It can keep the real cost out of the visual center. It can suggest a functional equivalence that the ordinary regime of the IOC later downgrades without verifiable correspondence. It can speak of rarity, urgency, exclusivity or status without adequately integrating, on the same plane of emphasis, the precariousness, reversibility or mutability of what is being acquired.

This mode of operation intensifies when the platform organizes pre-deliveries of expectation. *Teasers*, storefronts, *trailers*, event campaigns, passes, rarity panels, countdown timers, suggested equivalences, narratives of distinction and communication through influencers are not merely advance publicity. They are mechanisms for curating expectation before actual enjoyment. In IOCs, this matters enormously because the governance of the decision begins before the purchase and before acceptance. The platform builds in advance what the consumer expects to find, to value, to fear losing and to tolerate as admissible frustration. The marketing environment thus already functions as an architecture of future tolerable disappointment. If expectation is inflated by a semiotics of value and later absorbed by an ordinary regime of downgrading, elastic equivalence or unilateral mutability, advertising was not merely a pre-contractual stage. It was a mechanism for capturing

In this context, the case of hybrid formats is especially important. In digital ecosystems, advertising, content, entertainment, recommendation and sale frequently blur into one another. Influencers, creators, “community” posts, demonstrations, in-game storefronts and events mediated by the platform's own environment blur the distinction between descriptive communication, cultural recommendation and marketing persuasion. This hybridization weakens the intelligibility of the message's advertising character and compromises communicational fairness. The consumer need not be facing a banner explicitly labeled as an advertisement to be persuasively steered toward a purchase. When the marketing character becomes harder to identify, the semiotic asymmetry deepens, because advertising is no longer perceived as advertising and comes to operate disguised as experience, recommendation or mere ecosystem content.

It is precisely for this reason that Article 38 of the CDC proves so important here. The burden of proving the truthfulness and correctness of advertising information or communication lies with whoever sponsors it[716]. This is no elegant evidentiary detail. It is a normative recognition that advertising is a space of power and, therefore, of responsibility. In IOCs, this provision spares the consumer from having to prove alone that the expectation produced by the communication was incompatible with the actual regime of enjoyment. If the platform advertises a certain equivalence, benefit, utility, standard of stability or implicit value of rarity, it is for the platform to demonstrate with documents that this narrative is correct in light of what is ordinarily delivered and administered in the ecosystem. The system does not presume the innocence of the marketing promise. It requires that whoever produced it back it up.

This logic is closely bound up with the protection of trust. Legally protected trust arises not only from the final contractual instrument, but also from the supplier's communicational conduct in the market[717]. The more precise, eloquent and directive the advertising, the greater its capacity to generate legitimate expectation and, therefore, the greater its binding force. This is decisive because it blocks the old

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ing trust in the pre-contractual phase and then trying to drain it t of the contract o

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not stay outside, since it takes part in t

relationship. If it organizes expectation, it also organizes the yardstick by which frustration will be measured.

The rules on advertising to children function here as a normative limit case that reinforces this reading from within, without shifting the axis of the discussion. The point is not to equate adults with children, nor to open a new thematic front. The point is to show that the CDC itself already recognizes that abusiveness may arise from taking advantage of a structural deficiency of judgment exploited by persuasive communication. When the system deems abusive the advertising that takes advantage of a child's deficiency of judgment and experience, it explicitly recognizes that the manipulation of meaning and the exploitation of limits on decoding are legally relevant. The most important normative datum is not childhood itself, but the underlying logic. When communication takes advantage of a structural asymmetry of understanding, the control of abusiveness intensifies. This reinforces, from within the system itself, the legitimacy of treating semiotic vulnerability as a legal fact and not as a sociological metaphor.

The argumentative value of this limit case is quite elegant. It shows that the CDC already operates with gradations of vulnerability tied to real conditions of understanding and resistance, and not only to an occasional lack of data. Advertising can be abusive even without lying, simply because it exploits a structural limitation of judgment. Transposing this reasoning to IOCs in a controlled way, without infantilizing the adult consumer, one may argue that there are also situations in which architecture, curation and private governance of meaning produce real asymmetries of decoding, comparison and proof. When advertising and the platform's communicational environment systematically exploit these asymmetries, room opens for heightened control of deceptiveness and abusiveness.

The immediate dogmatic consequence is that advertising in IOCs must be treated as a controllable practice when the essential is kept out of focus and the negative is pushed into *disclaimers* or useless cross-references; when marketing communication, through anticipatory curation of expectation, produces an image of value, rarity, ctional equivalence that the ordinary regime of mutability later erifiable correspon

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the message is weakened by hybrid formats that conflate content, recommendation, entertainment and sale. In these cases, deceptiveness is not reduced to a literal lie. It appears as a defect in the very architecture of the promise.

It is therefore necessary to connect semiotic vulnerability, good faith, trust, deceptiveness and abusiveness without psychologizing consumption or resorting to moralism against advertising as such. The problem is not desiring, fantasizing or attributing symbolic value to the object. The problem arises when the marketing production of expectation is organized so as to steer the consumer's understanding toward an image of the object that the supply regime itself does not sustain, or sustains only under hidden reservations, opaque equivalences and silent mutability. Advertising thus ceases to be merely an announcement and becomes an objective element in the production of a legally controllable trust.

This prepares the transition to the broader decision environment in which advertising, information, interface and choice architecture operate in an integrated way. Advertising will not be the only gear of semiotic vulnerability, but it is one of its most powerful cores. It pre-shapes expectation, organizes the imaginary of value, distributes visibility and conditions what the consumer understands as risk, opportunity and loss. In IOCs, where enjoyment is governed and mutable, this makes it one of the CDC's main points of control. The supplier answers not only for what it promises in isolated sentences. It answers for the regime of meaning it produces when it advertises.

NOTES

713. Under the Consumer Protection Code, advertising does not occupy a merely peripheral or ornamental position. When the advertising message contains sufficiently precise elements about the object, its qualities, conditions or advantages, it becomes part of the offer and radiates obligational effects over the consumer relationship, binding the supplier to the content conveyed PASQUALOTTO. The consequence is direct: advertising does not remain outside the contract as a mere prior persuasive stage, but takes part in shaping the legally enforceable content of the performance. [illegible] inforced by the abandonment of the old private-law understanding that [illegible] ising as a harmless ir[illegible] the marketing message is no longe[illegible]

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source of obligation whenever, by its degree of precision and capacity to form expectation, it makes up the content of the offer addressed to the consumer PASQUALOTTO. If advertising is part of the offer and creates binding obligations, then the way it organizes the consumer's understanding, ranks elements, distributes visibility and produces expectation also becomes legally relevant. The advertising message does not stand outside the relationship doing marketing; it takes part in the very obligational structure of the supply. ↩

714. Under the CDC regime, marketing communication is subject to substantive control of fairness, truthfulness and adequacy because it can shape the consumer's legitimate expectation even before the bond is formalized. Marques states that, in matters of advertising, objective good faith requires it to be "a fair activity", also considered from the standpoint of whoever receives the message, so that it promises only what it can deliver and, if it provides information about characteristics of the product, the service or the contractual conditions, that information is correct and truthful MARQUES. The author adds that the main characteristic of misleading advertising, under the CDC, is that it is liable to lead the consumer into error, including by "omissions", and that the rule must be interpreted broadly, since the error consists in a "false notion of reality" potentially formed in the consumer's mind by the advertising MARQUES. Applied to the problem of semiotic architecture, this guideline authorizes control of promotional messages that, without lying outright, organize the interpretive field of the offer so as to produce an illusory understanding of utility, extent, stability or conditions of enjoyment. ↩

715. Advertising deceptiveness, under the CDC, does not depend on literal falsity or on an outright, demonstrable lie. Unlawfulness may arise whenever the message, even if partly true, is capable of leading the consumer into error, including through omission, ambiguity, relevant incompleteness or the very form in which the content is presented PASQUALOTTO. The decisive point is not the microscopic truthfulness of each isolated sentence, but the deceptive potential of the communication as a meaningful whole, as actually perceived by its recipient. This perception becomes especially important when the essential datum is pushed into zones of low visibility, diluted in accessory information or weakened by graphic and drafting strategies that reduce how well it is grasped in practice. Deceptiveness may emerge, for example, when the real price does not appear clearly, when charges are relegated to a visually insignificant position or when the decisive information is technically included but functionally hidden in the context of the piece PASQUALOTTO. Misleading advertising by semiotic architecture does not require gross falsity. It can operate through the strategic management of the visible and the invisible, through the functional ambiguity of language and through organization of the advertisement, so as to steer the consumer's ; away from what rea

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716. “Art. 38. The burden of proving the truthfulness and correctness of the advertising information or communication lies with whoever sponsors it.” BRASIL.. ↩

717. In consumer law, advertising takes a direct part in the formation of contractual trust. This is because, in markets marked by lean, opaque or incomplete adhesion contracts, the marketing message often anticipates, completes and thickens the understanding the consumer forms of the utility, qualities and mode of enjoyment of the object offered, and becomes a relevant element in building their legitimate expectation PASQUALOTTO. Legally protected trust therefore arises not only from the final contractual instrument, but also from the supplier's communicational conduct in the market. This binding effect can be understood in light of the protection of the expectation created by the advertiser's own conduct. The more eloquent, precise and directive the message, the greater its capacity to generate trust worthy of protection and, therefore, the greater its binding force PASQUALOTTO. Advertising does not merely describe the object; it pre-shapes the expectation of enjoyment that will later serve as the yardstick for assessing performance, inadequacy and deceptiveness. When marketing communication structures the consumer's expectation, it enters the legally relevant core of the consumer relationship and may be a source both of obligation and of legally censurable frustration. ↩

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In platform contexts, information, advertising and abusive practices cannot be examined as autonomous phenomena, isolated in watertight compartments, because, in the real process of consumption, they work together to form expectation, urgency, trust and tolerance of frustration. The legal problem is no longer exhausted by asking whether a given clause existed, whether certain information was technically available or whether an advertisement contained a literal falsehood. What needs to be controlled is the integrated decision-making arrangement through which the platform organizes the consumer's joining of and staying in the ecosystem, distributing visibility, scarcity, comparability and the promise of value in ways that serve its own interests. In IOCs, this becomes even more delicate because the consumed object does not settle into a thing delivered once and for all. The consumer's decision concerns a future governed experience, continuously modulated by architecture, curation and *enforcement*, so that the initial expectation becomes part of the very legal substance of enjoyment.

This finding calls for an important methodological shift. Information cannot be read only as declaratory content; advertising cannot be treated as promotional ornament; and abusive practice cannot be reduced to a marginal event after the contract. What exists, in many cases, is a single communicational and decision-making environment in which promise, selective visibility, managed scarcity, symbolic rewards, choice architecture and rituals of acceptance act together to produce adhesion. Within this frame, transparency is not a mere formal requirement of the final moment of contracting, but a prerequisite that must run through the consumer's entire approach to the object, from the capture of their attention to the settling of their expectation

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btained, lost or tolerated as admissible frustration[718]. For this

of the relationship

the bond, but by the whole set of pre-contractual and contextual manifestations that shaped the consumer's will and perception of risk.

It is precisely within this framework that hypercuratorial anticipation acquires dogmatic relevance. The platform does not administer only the present experience of enjoyment. Before that, it administers the very horizon of expectation on which the consumer bases the decision. Temporary events, selected storefronts, curated rarity, artificial urgency, promises of distinction, the teasing of utility, suggested equivalences and cycles of emotional intensification make up a grammar of anticipation that acts on how the consumer learns to desire, to expect and to fear loss. The environment comes to govern not only access to the object, but the future interpretation of its value. This profoundly alters how information, advertising and abusiveness are read, because the promise is no longer a side phenomenon. It becomes a structural component of the regime of governed enjoyment.

In these contexts, the platform produces something more sophisticated than ordinary commercial persuasion. It builds cycles of promise, intensification and partial delivery, in which the object is presented as a rare, prestigious, limited or virtually guaranteed opportunity, even though actual enjoyment depends on later mechanisms of randomness, mutability, internal rebalancing or unilaterally defined equivalences. The consumer is induced to join not only by a stated advantage, but by an architecture of expectation that teaches them to read that acquisition as a decisive moment, an imminent loss or a unique chance. The decision is thus formed within an environment that administers the meaning of value in advance. And it is precisely there that relevant omission, misleading advertising and abusiveness may arise together, with no need for an outright lie or a complete absence of information.

Relevant omission appears when the essential is deliberately pushed out of the decision-making focus. The supplier emphasizes urgency, benefit, rarity or prestige, but relegates to side conditions what really defines the substance of enjoyment, such as relevant limits on use, the object's ordinary mutability, equivalence parameters, possible losses, narrow windows of use, additional requirements for the promise to

ic conditions for keeping the advertised value. Misleading advertising, in short, manifests itself wh

the promotional environment finds no verifiable correspondence in the actual experience of enjoyment, either because the platform later downgrades the object, or because the initial promise already concealed, through ambiguity or an architecture of visibility, the real way in which utility would be delivered. Abusive advertising, finally, appears when the design of the environment systematically exploits the consumer's vulnerability, compressing their room for deliberation through artificial urgency, symbolic reward, the ritualization of acceptance and the fragmentation of the relevant conditions.

This reading avoids two symmetrical errors. The first would be to moralize every technique of commercial persuasion, as if all intense advertising, all interface curation or all architecture aimed at conversion were unlawful in itself. That is not the case. The market may promote, persuade, dramatize and organize interest. What the CDC does not allow is for this organization of interest to operate through functional opacity, the capture of expectation and the displacement of the essential out of the useful field of understanding. The second error would be to imagine that a problem exists only when an advertisement, taken in isolation, contains a literal falsehood or when a given clause, taken in isolation, is abusive. In contexts of hypercuratorial anticipation, unlawfulness may lie precisely in the combination of elements that seem neutral when seen separately but that, combined, govern the consumer's decision in a structurally asymmetrical way.

At this point, advertising needs to be returned to its correct dogmatic place. It is neither external to the contract nor mere cultural ambiance of the market. Marketing communication takes an active part in manufacturing the disposition to contract, stoking needs, organizing desires and at the same time presenting the path to their satisfaction[719]. Instead of a clean, compartmentalized sequence of advertisement, information and contracting, what exists is a communicational continuum in which the platform produces expectation, guides the reading of the object, manages the pace of the decision and only then stabilizes acceptance in documentary forms that often fail to reflect, with the same emphasis, the promise that triggered the bond.

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siveness cannot be located only in the final statement, because environment itself

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of consent.

This conclusion is reinforced by the observation that, on platforms, marketing communication often dissolves into hybrid formats. Recommendation, entertainment, tutorial, community narrative, product demonstration, influencer content and advertisement blur together, lowering the consumer's critical vigilance and muddling the perception of the message's persuasive status. In these cases, the legal problem lies not only in the content communicated but in the very way it is inserted into the decision flow, making it less intelligible that this is a commercial push and maximizing its capacity to produce adhesion[720]. The abusive arrangement, then, does not depend on an explicit banner or a classic advertisement. It may reside precisely in this dissolution of advertising into the environment, which makes it more effective as a technique for steering behavior and more opaque as a source of obligation and control.

This has direct consequences for the relationship between information, advertising and abusive practices. In IOCs, the supplier does not merely transmit messages about a pre-given object. It manages signs and metrics that constitute the very perceived value of enjoyment. Advertising does not surround the object from outside; it helps produce it as an expectation of performance, distinction, utility or permanence. Information does not serve only to describe this object; it determines how far the consumer can understand its real conditions of use and its ordinary margins of alteration. And an abusive practice does not appear only when there is brutal imposition or an outrageous clause; it can emerge from a decision ecosystem in which urgency, scarcity, performative transparency and elastic equivalences work together to induce adhesion in a context of materially defective understanding.

In this context, the duty to inform can no longer be conceived as an obligation of textual deposit. When the platform operates under hypercuratorial anticipation, informing comes to mean making reconstructible, at the exact moment of decision, what the anticipatory curation itself tries to obscure. The mere existence of text is not enough. The essential content must be presented in a comparable, hierarchized, conspicuous and timely way. If the promotional architecture of the environment

l scarcity to hasten the decision, the duty to inform must work as

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background documents. Likewise, adv

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microscopic statement, because its capacity to deceive or abuse also depends on how it is inserted in the flow, what it highlights, what it omits, what equivalences it suggests and how it manages the perception of time, risk and loss.

The most important methodological consequence of this item is the following: consumer-law analysis must consider the communicational and decisional arrangement as a whole, and not only isolated fragments of its formal expression. The jurist must ask how the expectation was produced, when the relevant conditions were revealed, with what prominence they appeared, what the actual sequence between promise and acceptance was, and whether the consumer had real means to understand and compare what was being offered. This brings choice architecture back within the field of the CDC without technological mysticism and without creating a parallel law of platforms. It is simply a matter of recognizing that, when information, advertising and design operate together to govern the decision, legal control must also reach them in an integrated way[721].

This shift prepares two operators. The first is open auditability, because, if abusiveness can reside in the communicational regime of supply, that regime must be institutionally reconstructible, with minimum preservation of screens, flows, messages, promotional pieces, interface changes and decision trails. The second is functional value equivalence, because the expectation produced by hypercuratorial anticipation cannot be dismissed as promotional smoke when it served precisely to induce the acquisition and shape the understanding of the object. If the platform promises a curated experience of value, rarity, performance or advantage, and later rebalances or downgrades it under opaque criteria, the frustration is not a mere annoyance. It may be a relevant inadequacy of the governed enjoyment itself.

In contexts under hypercuratorial anticipation, information, advertising and abusive practices belong to the same dogmatic problem. The platform does not merely offer an object; it organizes the semiotic field in which this object will be desired, understood and accepted. It is in this field that consumers learn what counts as an advantage, which losses they should fear, which costs they can ignore and which

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ɔuld bear as normal. When this organization of meaning is conducted so as to displace what is esse

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tolerance of loss under the appearance of freedom of choice, the CDC is not facing peripheral details of the digital experience. It is facing the very contemporary mode of exploiting vulnerability in IOCs.

NOTES

718. The consumer-law discipline of the decision environment does not permit information, advertising and the formation of will to be artificially separated as if each of these dimensions operated in an isolated compartment. In the real process of consumption, especially in contexts of hypercuratorial anticipation, these elements act together to shape the consumer's expectation, urgency, trust and practical disposition to adhere to and remain in the bond. The meaning of the transparency mandate can be traced back to the search for the “true and free will of the consumer”, functioning as a “precondition” for consumers to express their will freely and fulfill their legitimate expectations, that is, those that led them, “duly informed about the product or service, aware of their future contractual rights and duties”, to choose a given supplier as a contractual partner MARQUES. This shows that transparency is not limited to the final instant of acceptance, but must characterize every pre-contractual manifestation of the supplier in the market. ↩

719. In the consumer market, advertising and offer do not operate as watertight acts. Marketing communication takes part in manufacturing the very disposition to contract by stoking needs, organizing desires and at the same time presenting the path to their satisfaction, leading the consumer to the culminating moment of adhesion PASQUALOTTO. For this reason, the legal reading of the decision process cannot artificially split advertising, information and contracting into autonomous compartments, as if each of these layers acted in isolation. This inseparability is heightened because the marketing message usually combines, in a single arrangement, concrete offers, fanciful promises and ancillary advantages integrated into a marketing mix, so that the social conduct of advertisers becomes a source of duties and obligations PASQUALOTTO. In contexts under hypercuratorial anticipation, abusiveness is not located only in an isolated statement, but may emerge from the communicational regime of supply as a whole, that is, from the integrated way in which offer, persuasion and management of expectation are articulated to steer the consumer's decision. ↩

720. Under the CDC, communicational unlawfulness is not restricted to frontal, conspicuous advertising that is easily identifiable as such. It can also arise in hybrid or ngements, or in ones embedded in apparently neutral media, in which l message infiltrates critical vigilance and heighten thei

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occurs when marketing communication presents itself as entertainment, reporting or neutral recommendation, although in practice it works as a vehicle of commercial steering, which is why the outlet's responsibility lies precisely in not allowing advertising and editorial matter to be confused PASQUALOTTO. In these cases, the legal problem lies not only in the content conveyed but in the very blurring of the message's status. In contexts of hypercuratorial anticipation, abusiveness may result from the entire regime of inducement, and not only from a classic advertisement, above all when commercial communication dissolves into hybrid formats that confuse the consumer about the nature of what they see, read or follow. ↩

721. The legal analysis of contractual and communicational mechanisms that affect the consumer's decision cannot be compartmentalized without seriously losing touch with the reality of the bond. Under the CDC, the consumer contract is not reduced to the final text of the pre-drafted clauses, because the consumer's will is formed over a relational process in which advertising, the information provided, commercial practices, ancillary promises and inducement techniques take a material part in building expectation and adhesion. Whoever interprets a consumer contract must observe not only the rule of Article 47 of the CDC, but all the provisions of the Code that establish the rights and duties of consumer and supplier, so that "the content of the contract to be interpreted is not only that 'placed' in clauses pre-drafted unilaterally by the supplier, but also the entire prior context that constitutes the offer", such as advertising, brochures, information and commercial practices MARQUES. This contextual interpretation also seeks the meaning of the contract in its negotiating context, treating prior acts and information as legally relevant and as part of the whole to be considered MARQUES. Consequently, in environments under hypercuratorial anticipation, Consumer Law must examine the mechanisms of information, advertising and choice architecture together, since it is precisely from this integrated operation that the capture of expectation, the management of urgency and the exploitation of vulnerability may emerge. ↩

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The private governance of the IOC cannot be controlled only by the simplistic question about the abstract possibility of change. In platform ecosystems, changing is part of the very way of performing. The legal problem, therefore, does not lie in finding out whether the platform may alter the environment, but in establishing the criteria by which legitimate mutation is distinguished from mutation that breaks the balance of supply, degrades the promised enjoyment or makes the very possibility of control opaque. This shift is decisive because it keeps the controversy from being trapped between two equally bad extremes: on one side, the fantasy of the immobility of the digital object; on the other, the fantasy, symmetrically convenient to the supplier, that every ordinary mutation would be automatically legitimate because it derives from the "nature of the service". In IOCs, mutability exists, but it does not hover above the Law.

After reconstructing semiotic vulnerability, the duty to inform in the key of adequacy, advertising as controllable production of expectation and abusiveness as a phenomenon that may reside in the entire arrangement of supply, it is no longer enough to assert generically that the platform must act with good faith, transparency and respect for the consumer. It is necessary to convert such requirements into operational criteria capable of guiding proof, attribution and remedy. The task is precisely to avoid this fate, offering *standards* capable of disciplining the legitimacy of platform architectures without depending either on the civil-law ontology of ownership of the digital good or on the scattered hunt for isolated clauses.

The first difficulty faced by the section stems from the object itself. In continuous digital services, a large part of the controversies does not arise from abrupt and

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ssion, but from progressive alterations, functional reconfigurations, interface changes, rec

adjustments, *nerfs*, *resets*, rule migrations and other moves that, taken in isolation, may seem trivial, but that, together or with sufficient intensity, restructure the acquired experience. The consumer remains formally "inside" the ecosystem, still has the account, still sees the object, can still access the platform. Even so, the utility enjoyed may be substantially downgraded, and the ability to prove this downgrading may be simultaneously eroded by the very way the environment is administered. It is precisely against this combination of normalized mutability and operational opacity that the section proposes two complementary criteria.

The first of them is open auditability. The name must be read carefully so as not to produce misunderstanding. It is not a matter of requiring the opening of code, a total search of the infrastructure, full publicity of internal systems or theatrical laboratory transparency. Open auditability works on a more sober and more legal plane, since it designates the requirement of minimum institutional verifiability of supply. In other words, the platform cannot claim to alter the regime of enjoyment and, at the same time, keep in absolute secrecy what it actually altered, when it altered, why it altered, what relevant effects the change produces and which records allow the episode to be reconstructed in case of conflict. The *standard* does not require exposure of trade secrets as a purifying fetish. It does require a demonstrable minimum capable of preventing information, good faith and transparency from turning into empty performances.

Open auditability thus arises as a direct response to the functional opacity typical of IOCs. If the supplier controls the architecture, the criteria of alteration, the relevant logs, the timing of the change and the very means by which the modification will be perceived, it concentrates not only power of reconfiguration, but also power to narrate unilaterally what occurred. The legal risk there is obvious: without minimum trails, without minimally reconstructible reasoning and without the possibility of confronting promise and mutation, the consumer is reduced to the ridiculous position of feeling that they lost something important, but being unable to demonstrate institutionally what they lost, how they lost it, or why the loss exceeds [illegible] e inherent to networked life. Open auditability prevents exactly [illegible] ·ol. It requires that the platform environment remain, at least to a minimum degree, reconstitutable.

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This has quite concrete consequences. Open auditability extends to communications of alteration, history of relevant versions, confirmation screens, change notices, transaction records, logs sufficient to trace materially relevant interventions, minimum documentation of the supply flow and minimally intelligible explanation of the criteria invoked for relevant reconfigurations. It is neither necessary nor desirable to turn the supplier into a fully transparent oracle. What is required is something simpler and more serious: that the platform cannot benefit legally from the very opacity it produces. In terms of proof, this means that the supply regime needs to be institutionally reconstructible. In terms of legitimacy, it means that important mutations cannot rest only on the platform's naked authority. In terms of remedy, it means that the absence of trails and verifiability ceases to be an operational detail and becomes part of the unlawful act itself.

The second *standard* is functional value equivalence. If open auditability controls the verifiability of the change, functional value equivalence controls the substance of the enjoyment preserved or degraded by the change. The core of the idea is simple, though dogmatically powerful: in IOCs, the integrity of what was acquired cannot be measured only by the nominal survival of the object nor by the formal permanence of access. The fact that something continues to exist inside the account, remains technically accessible or continues to bear the same name is not enough, by itself, to demonstrate that the acquisition was preserved in its legally relevant value. In a mutable environment, what matters is the functional equivalence of enjoyment, that is, the substantial preservation of the practical utility and the sense of use that justified consumption.

This criterion is necessary because the platform supplier tends to operate with a very comfortable defense: nothing was taken away, everything merely "evolved"; nothing was suppressed, merely "rebalanced"; nothing was lost, merely "readjusted to the ecosystem". Functional value equivalence prevents this managerial vocabulary from serving as a free pass for relevant downgrading of the experience consumed. What is asked, from it, is not whether the object is still there in a nominal sense, but whether [illegible] s, to a legally acceptable extent, the set of functions, advantages, practical value and symbolic density that made up the legitimately expected enjoyment. Whe

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mutation ceases to be a simple ordinary variation of the service and begins to touch the very core of the acquisition.

This *standard* is particularly useful because it escapes two traps. The first is the temptation to reduce every conflict to proprietary language, as if only a strong notion of ownership could protect the consumer against unilateral alterations. The section refuses this shortcut. It is not necessary to demonstrate full dominion over the object to maintain that the acquired enjoyment cannot be arbitrarily downgraded. The second trap is the trivialization of mutability as a supposedly natural trait of digital services, an argument that usually serves as technological varnish for opportunistic changes. Functional value equivalence allows, precisely, a much more robust intermediate position: it is recognized that the platform may alter, but it is required that the alteration preserve, in substantial terms, the functional value of the acquired experience or, failing that, open room for restoration, correction, revision or another adequate remedy.

The force of the criterion appears clearly in cases such as removals of relevant functionalities, nerfs that empty acquired utility, interface changes that disorganize ordinary use, redefinitions of rules that downgrade the equivalence of what was promised, alterations of currency or internal purchasing power, mutations in progression systems, reclassifications of rarity, erasure or compression of inventories, and changes in visibility patterns that affect the consumer's position in the ecosystem. In all these cases, the decisive question should not be whether the platform continued to offer "something" with the same label. The correct question is whether the thing legally acquired, as a position of enjoyment in a governed environment, retains sufficient functional equivalence with what was the object of the consumer's expectation, trust and investment.

It is important to note that functional value equivalence does not freeze the ecosystem. It does not require absolute identity between before and after, nor does it prohibit rebalancings, adjustments, corrections or evolutions of the environment. What it prevents is the use of mutability as a screen for the opportunistic destruction

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utility enjoyed. Instead of a simplistic opposition between immobility and total sovereignty of the platform, the *standard* introduces a more sophisticated test of legitimacy: the change may occur, provided it remains within margins compatible with the substantial preservation of enjoyment or is accompanied by adequate justification, verifiable transparency and fitting restoration when equivalence is broken.

This is where the two criteria meet. Open auditability and functional value equivalence are not parallel *standards* that run side by side without ever touching. They presuppose each other. Without auditability, functional equivalence is hard to demonstrate, because the consumer cannot reconstruct what was altered, to what extent, for what reason and at what moment. Without functional equivalence, auditability runs the risk of becoming transparency without material density, that is, a mere capacity to narrate changes without any criterion for assessing their substantive legitimacy. One *standard* controls the how of the mutation; the other, the how much and the what of the mutation. One prevents institutional opacity; the other prevents functional downgrading disguised as ordinary management. Together, they offer something the debate lacked: a decision grammar capable of disciplining the legitimacy of platform architecture.

This complementarity makes it possible to reorganize the central question in disputes over IOCs. One no longer asks, in an impoverished way, whether or not the platform has the right to make changes. One asks whether the alteration was accompanied by minimum conditions of verifiability and whether it preserved, in a substantially acceptable way, the functional equivalence of the enjoyment acquired. When one of these conditions fails, the legitimacy of the change already becomes legally suspect. When both fail at once, the case comes close to a defect of supply, an abusive practice, a breach of trust or even an architecture of structural opacity incompatible with the consumer-law regime. The section thus does not turn every alteration into an unlawful act. It only refuses to let alteration become an automatic alibi for irresponsibility.

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ty had shown that the platform controls the means by which the consumer understands, compares and

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inform, read in the key of adequacy, had shown that volume and performative transparency are not enough. Advertising, treated as market semiotics, had revealed how expectation is curated in advance and is legally binding. Hypercuratorial anticipation had demonstrated that architecture, interface and platform dynamics operate together on the decision. Now, all this needs to be converted into a criterion of legitimacy for ordinary mutations of supply. That is exactly the role of open auditability and functional value equivalence.

Under such *standards*, one is no longer left with only bad dogmatic ways out. It is no longer necessary to reduce the conflict to a civil-law ontology of ownership of the digital good, which would be too narrow for governed consumption. Nor is there any need to remain trapped in the microscopic analysis of isolated clauses, as if the platform produced unlawfulness only through badly drafted contractual sentences. The focus shifts to the architecture of supply and to the material controllability of its mutations. In governed ecosystems, the relevant unlawful act often lies not in a heroically villainous clause, but in the way the environment changes, justifies itself poorly, erases traces and preserves only the formal appearance of continuity.

When the controversy involves removals, rule alterations, interface changes, ecosystem rebalancings, compression of functionalities, redefinitions of equivalence or reconfigurations of value, the interpreter will have two central tests at hand. First, was there minimum institutional verifiability of the change, with reasoning, timing, effects and trails for reconstructing supply? Second, did the alteration preserve sufficient functional equivalence with the legitimately acquired enjoyment, or did it relevantly downgrade the practical and symbolic core of the object? From there, it already becomes possible to discipline proof, calibrate claims, structure remedies and control the privatist narrative according to which everything that occurs within the platform would be merely the neutral exercise of its freedom of management.

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CONCEPTS IN THIS SECTION

Open auditability

In continuous digital services, open auditability designates a *standard* of technically qualified and institutionally usable transparency, enforceable whenever the supplier makes relevant changes, imposes sanctions or carries out reconfigurations capable of reaching the core of enjoyment of the Immaterial Object of Consumption. This is not a demand for total transparency, nor for unrestricted opening of the technical infrastructure, nor an obligation to expose source code, the entire architecture of the system or sensitive trade secrets. The point lies elsewhere. What is required is a verifiable minimum that makes it possible to reconstruct, in legally useful terms, what was changed, when it was changed, why it was changed and with what relevant effects on the consumer's enjoyment. Without this minimum, the continuous mutability of the service tends to turn into opaque power, and opacity, in turn, becomes a kind of informal shield against duties of information, good faith and control of abusiveness. Instead of real transparency, there is only a documentary staging of compliance, a situation incompatible with the standard of adequate and conspicuous information required by the CDC[722].

This formulation springs neither from conceptual whim nor from fascination with technological regulation. It follows from the very structure of continuous supply. In governed digital services, performance is not exhausted by a fully completed initial delivery. The bond extends over time through updates, fixes, rebalancings, interface

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le changes, technical migrations, restrictions of use, compatibility

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In such an environment, treating perfo

invisible space would be far too crude. In relationships of this kind, objective good faith projects continuous duties of information, cooperation, fairness and protection of trust, so that the supplier cannot keep for itself all the intelligibility of the process by which the service changes and leave the consumer with only the final result already imposed[723].

For this reason, open auditability must be understood as an internal development of the duty to inform and not as an institution foreign to the microsystem. Under the CDC, information does not fulfil its function just because it exists somewhere, nor because it was deposited in lengthy documents, cross-references, FAQs or update logs that the consumer is unlikely to find, understand and connect to the actual impact suffered. What matters is its usefulness for reconstruction and decision. If the supplier changes obligations, parameters of use, compatibility conditions or central elements of enjoyment without providing a minimally intelligible basis for reconstructing what happened, it does not merely communicate badly. It prevents control. And preventing control, in a context of strong technical asymmetry, is a material way of worsening the consumer's very position within the relationship[724].

The critique of merely performative transparency takes on its own weight here. In many digital services, the company produces a significant volume of information, but distributes it in a flow, form and hierarchy that make it hard to perceive what is essential. The change exists, the notice exists, the document exists, the log exists, but a useful reconstruction of the event does not. Consumers know that "something changed", yet cannot discern precisely what changed, what criterion was adopted, what practical effects follow and how to demonstrate the impact suffered before an institution. Transparency then appears as a performance of regularity, not as a real condition of verifiability. This is precisely why open auditability becomes necessary. It does not require knowing everything. It requires knowing enough that the change in supply does not remain shielded by the very way it is presented[725].

This *standard* also rests on a decisive evidentiary premise. In the universe of the IOC, the platform concentrates records, histories, logs, enforcement criteria, relevant

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ıal data, communications actually sent, change parameters and enough technical documentation to na

accepts that all this information remain entirely under the supplier's narrative monopoly, consumer protection withers. Facilitating the defense and reallocating the burden of proof cease to be occasional instruments and become a condition for the minimum effectiveness of the protective regime itself. At this point, open auditability works as a technique for reducing informational and evidentiary asymmetry. It puts the conflict back on reconstructible ground and prevents the lack of access to evidence from turning into a practical impossibility of protection[726].

The trigger for application, however, must be rigorously delimited so that the *standard* does not slide into maximalism. Open auditability cannot be demanded in the face of every microscopic adjustment, cosmetic change or irrelevant fluctuation of the service. Its proper field begins when the change, unilateral modulation, suppression, migration, nerf, discontinuation, reconfiguration of a rule or interface, or even a sanction applied to the user, significantly affects enjoyment. This relevance can appear in several ways. It can affect access and permanence, the functional integrity of the object, promised equivalences, the symbolic position of the IOC in the ecosystem, or even the consumer's conditions for proof and challenge. The central point is that the change must be capable of downgrading enjoyment, frustrating a legitimate expectation or abusively concentrating the intelligibility of what happened in the supplier's hands.

In such cases, the requirement of open auditability takes the form of a minimum content far more modest than the caricature of "total openness", but far more robust than corporate self-justification. The supplier must make available, in an institutionally useful way, an intelligible record of what was changed and when; a minimum technical justification, that is, the declared rationale and stated objective of the change; a description of the relevant impacts on enjoyment and on the parameters of the IOC; preservation of verifiable trails, such as histories of relevant versions and minimum event, transaction or change logs; and, in cases of *enforcement*, minimally reconstructible criteria for the sanction applied. In addition, verification by qualified third parties must be possible, including by protection bodies, expert [illegible]cial review, without the regime of technical secrecy being used as [illegible]gainst any scrutiny[727].

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This point matters because the corporate objection usually comes in predictable dress: requiring auditability would amount to requiring the opening of code, the surrender of trade secrets, the exposure of know-how or the loss of software protection. That is not what is at stake. The legal order already lives, in various contexts, with limited forms of scrutiny compatible with preserving the informational asset. Judicial secrecy, restricted expert access, delimited functional analysis, technically necessary use for certain purposes and institutional control do not demolish exclusivity. They are legally established ways of reconciling protection of the asset with the need for verification. Software protection does not turn software into a sacred black box. Nor does the legal regime of computer programs make the supplier sovereign over each and every legally relevant consequence of its operation[728].

Along the same lines, the protection of trade secrets does not operate as an absolute veto on external control. Generically invoking "secrecy" or "technical sensitivity" without delimiting what actually needs to remain confidential and without admitting any form of institutionally relevant reconstruction is not enough. For secrecy to be legally respected, it must be identified and carved out, not treated as a magic fog that dissolves every demand for accountability. The system does, of course, allow strategic business information to be protected. What it should not allow is for that protection to be used to prevent entirely the reconstruction of the legally relevant effects of the supply, above all when the very lawfulness of the conduct depends on that reconstruction. The company may still protect its secret. What it cannot do is claim secrecy over the very impact of the change it imposed on the consumer[729].

This is all the more evident because technical exclusivity, in itself, does not rule out institutional examination of the system's operational effects. What matters to Consumer Law is not, as a rule, a full contemplation of the program's internal ingenuity, but the possibility of verifying how a given operating regime, a given change or a given criterion applied affected the enjoyment, continuity, equivalence or position of the consumer in the ecosystem. The legally relevant examination

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limited forms of technical, expert and

auditability does not compete with exclusivity. It limits the abusive use of exclusivity as an excuse for irresponsibility[730].

The dogmatic function of the *standard* thus becomes clearer. Open auditability is a legal technology of controllability. It reduces the informational and evidentiary asymmetry inherent in the private governance of the IOC and brings continuous mutability back into a minimally verifiable field. This allows quality defect, inadequacy, abusiveness, breach of the duty to inform and breach of trust to be discussed on a reconstructible basis, and not in a crude clash between the corporate narrative and the consumer's subjective impression. Without this *standard*, the supplier can always claim that it made the change for technical reasons, that it informed as best it could, that the impact was small, that the change was provided for in some document and that the consumer simply did not understand or did not like it. With it, it becomes possible to ask seriously what was changed, on what basis, with what effect and with what objective trails for reconstruction.

This gain is of enormous importance in long-term contracts. In relationships of continuous performance, the consumer places trust not only in an initial utility, but in the minimally intelligible permanence of the bond and in the possibility of understanding its relevant changes. A long-term relationship requires cooperation, adaptation and preservation of the legitimate expectations formed over the course of the contract. It is therefore not enough to keep the contract alive in name while its performance becomes opaque and unilaterally reconfigurable in non-reconstructible terms. Consumer trust is not protected by slogans of continuous evolution or by a generic promise of "service improvements". It requires a minimum regime of verifiable continuity of information about the performance of the bond[731].

For that very reason, open auditability is also connected to the mechanisms of specific relief. The CDC was not designed to let the supplier turn the injury into a mere accounting cost and move on. When the relevant change in supply depends on records, versions, criteria and documentation concentrated in the company's hands, the system already has instruments suited to disclosure, early production of evidence, easures aimed at reconstructing the bond as actually performed. This is especially important in continu

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contractual instrument is almost never enough to reveal the actual content of the performance. Without access to the relevant versions, the performance records and the elements showing the supply actually provided, the legal discussion risks being held hostage by the documentary fiction of the base contract, which often says little about the real life of the service[732].

Hence the legal consequence of non-auditability. When, in the face of a relevant change, the supplier does not provide the auditable minimum compatible with the consumer relationship, transparency must be treated as inadequate. And, depending on the intensity of the case, this inadequacy may function as evidence or as a direct manifestation of structural abusiveness of the supply regime. This is not a peripheral lack of informational courtesy. It is the frustration of a duty essential to the controllability of the bond. In practical terms, this legitimizes the imposition of obligations to act aimed at preserving and disclosing records, the dynamic reallocation of the burden of proof, the adoption of presumptions in the consumer's favor in the face of an unjustified refusal to cooperate and review of the validity or effectiveness of clauses and policies that seek to shield non-verifiable changes. Where a relevant change cannot be minimally reconstructed, private governance has already entered a legally suspect zone.

This effect is all the more important because the contemporary problem is not only the absence of information, but its strategic organization. The platform can flood the consumer with announcements, *changelogs*, *banners*, dialog boxes, policies, *disclaimers* and FAQs, and still keep for itself an effective monopoly over the intelligibility of what matters. Open auditability appears precisely to break this false sufficiency. It is not enough to announce that something changed. The meaning of the change for the enjoyment consumed must be made institutionally reconstructible. Without this, the mutability of the service and the technical concentration of records together produce a kind of private evidentiary fortress.

This is also why the *standard* prepares the next stage of the section. On its own, open auditability does not settle the whole controversy, because demonstrating what

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oes not exhaust the question of the change's material legitimacy. It will still be necessary to assess wheth

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of the legitimately acquired enjoyment. But without open auditability this judgment becomes fragile, because there is no basis for reconstructing the change itself. The *standard* thus functions as an institutional condition of intelligibility for the subsequent examination of functional value equivalence. First, the change is reconstructed. Then its material legitimacy is measured. This order matters. Without it, the supplier will always have the advantage of the fog.

At the methodological level, open auditability plays a role similar to the one semiotic vulnerability played earlier. It turns a structural diagnosis into a dogmatic operator. It is no longer said only that the platform controls the environment, the signs, the metrics and the proof. In the face of this concentration, a verifiable minimum of reconstruction of the supply comes to be required. It is no longer merely asserted that transparency can be performative. A criterion becomes available for separating useful transparency from scenographic transparency. The opacity of private governance is no longer merely denounced. It comes to be qualified as a controllable legal insufficiency.

For this reason, open auditability must be understood as a criterion of legitimacy for platform architectures, and not as abstract hostility toward them. Platforms may innovate, update, fix, rebalance, migrate and protect their technical assets. What they cannot do is so act under a regime of institutional non-reconstructibility, as if the very complexity of the system entitled them to decide alone what matters, what was changed and what may or may not be known by those who enjoy the service and by those who exercise legal control over it. In relationships of continuous consumption, complexity does not revoke good faith. Technique does not suspend the duty to inform. And trade secrecy, though legitimate, does not release the company from the obligation to allow the supply to be minimally reconstituted when its changes significantly affect the consumer's enjoyment[733].

In the end, this is the core of the legal concept of open auditability in continuous digital services. A *standard* of minimum verifiability, compatible with the protection of software and business secrecy, but incompatible with the opaque shielding of

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elopment of the duty to inform, of objective good faith and of the facilitation of the consumer's defense;

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informational asymmetry; and an institutional condition for relevant changes to the IOC to stop being accepted as faits accomplis narrated only by the supplier itself. Without this *standard*, private governance comes too close to practical sovereignty. With it, the mutability of the service remains possible, but no longer hovers above legal control.

NOTES

722. Open auditability can be understood as an internal development of a logic already present in the consumer-law microsystem, and not as an exotic regulatory graft. The starting point lies in the very standard of adequate information required by the CDC, which is not satisfied by the mere formal provision of data, but calls for content that is at once complete, free of charge and useful, and forbids diluting relevant communication with scattered, redundant or useless information for the consumer. The Manual sums up this standard by requiring "correct", "clear", "precise" and "conspicuous" information BESSA. The same orientation is reinforced where the work notes the "need to guarantee the consumer the possibility of a priori control of the contract", since the possibility of control only a posteriori is not enough, on pain of violating the right to adequate information BESSA. In addition, clear and adequate information governs the pre-contractual moment, the conclusion of the contract, the contract itself and the post-contractual moment, affecting "the essence of the deal", since it forms part of the contractual content and, if it fails, may amount to a quality defect in the product or service offered BESSA. ↩

723. In continuous digital services, the notion of open auditability can be legally traced back to the relational duties arising from objective good faith throughout the performance of the contract. In bonds marked by functional mutability, successive updates and technical reconfigurations capable of affecting the consumer's enjoyment, it is incompatible with the CDC to treat performance as an opaque zone, immune to duties of intelligible reconstruction of what was changed, kept, restricted or removed. The time lapse between the birth of the obligation and the satisfaction of the main performance "can no longer be seen as an 'empty space'", since the obligational relationship constitutes "a continuous whole", within which the parties are bound by ancillary duties of conduct arising from objective good faith, among them "the duty to inform, to cooperate, duty of care, of secrecy, of advice, of fairness etc." MARQUES. Breaching the duty of cooperation and fairness means defaulting, even if partially, [illegible] n the supplier hinders the consumer's access to their rights MARQUES. ↩

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This is not a technicist obsession with total openness. What matters, from a consumer-law standpoint, is that the information provided be sufficient to allow monitoring, understanding of the relevant milestones of the performance and verification of its conformity. The very existence of information shifts the problem to the level of implementation and control, insofar as it "places the burden of implementation on informed consumers", as well as on the market forces that seek to avoid exposure of illegality WADA. Failing to state the deadline for performance, or leaving it to be defined later under the supplier's exclusive control, places the consumer in a situation of extreme vulnerability, since without an intelligible reconstruction of how the obligation is performed the consumer loses the capacity for control and the supplier comes to dictate the rules of the game unilaterally WADA. Prior information and express authorization fulfil a rebalancing function: they do not merely communicate, but make the performance conditional on a minimum form of verifiability by the recipient, offsetting the structural imbalance of the consumer relationship WADA. ↩

725. The critique of merely formal transparency leads directly to the requirement of minimum verifiability over relevant changes in, and impacts of, the supply. The mere existence of an initial document or an abstract statement of the terms of the deal is not enough to satisfy the protective standard of the CDC if the consumer cannot control substantial modifications of the performance. Wada makes this explicit in stating that there is abuse when there is an "alteration of the obligations contained in the estimate without the consumer's agreement" WADA. Protection therefore requires more than the formal display of content: it requires a real possibility of verifying relevant changes and their effects before they produce the consumer's material subjection. The same reasoning is reinforced when the author associates abusiveness with the element of surprise and the lack of understanding of financial impacts, showing that an apparently transparent relationship can still be unlawful if it holds unexpected conditions in store for the consumer, since surprise prevents effective control over the scope of the commitment undertaken WADA. ↩

726. Under the CDC, facilitation of the consumer's defense and evidentiary protection are not mere procedural benevolence, but structural instruments for the effectiveness of the microsystem itself. The Manual clearly observes that the right provided for in Article 6, item VIII, although aimed at facilitating the consumer's defense in court, is not merely procedural in nature: it is a substantive right aimed at effective protection and compensation for the damage suffered BESSA. The consequence is decisive: when the informational or technical structure of the supply hinders the reconstruction of the relevant facts, the system already has its own mechanisms to reallocate the evidentiary burden and prevent the supplier's opacity from turning into practical [illegible] Manual also stresses that the spirit of the CDC is precisely to facilitate consumer rights, and not to require the vulnerable layperson to prove elements that belong to the supplie

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recalls that the reversal of the burden of proof works as an indispensable instrument of distributive justice and of redistribution of the risks inherent in consumer society BESSA. ↩

727. Open auditability can be translated into dogmatic language recognizable by the CDC by articulating the duty of real clarification, the duty of adequate information, the supplier's burden of proof and the control of abusiveness. The duty to inform is a duty to clarify matters for the consumer, and not a mere formal transfer of content. Adequate information about the relevant elements of the performance serves as a criterion for assessing whether the supplier exercised its contractual freedom properly; its breach may reveal abusiveness, impair the quality of consent and even bring Article 46 of the CDC into play. The burden of proving that this duty was actually fulfilled lies with the supplier itself MIRAGEM. Where there is greater risk without sufficiently conspicuous information, an informational defect arises, and the absence of adequate clarification prevents the consumer from taking the necessary precautions. Even when the supplier seeks to exclude its liability, it will be for the supplier to prove that there was no defect, by express statutory allocation of the burden of proof MIRAGEM. ↩

728. The requirement of open auditability is not to be confused with full disclosure of source code or with the suppression of software's technical secrecy. The legal order already recognizes forms of institutional scrutiny compatible with preserving the informational asset and the secrets of the infrastructure. The legal framework itself provides for judicial secrecy, which restricts third-party access to sensitive information, such as source code, and prevents the opposing party from using it for purposes unrelated to the litigation BARBOSA. The statutory limitation allows the use of information and the translation of the program to the extent technically indispensable to the user's needs, for the exclusive use of whoever performed the act, regardless of the right holder's authorization, precisely to enable integration between systems BARBOSA. Likewise, administrative formalities cannot go beyond the conditions under which the object of the registration may remain secret BARBOSA. ↩

729. The protection of trade secrets is not to be confused with an absolute veto on external scrutiny of the legally relevant effects of the supply. A generic invocation of secrecy is not enough to block institutional control when the very claim for protection depends on a minimally controllable verification of the protected object. For the case to be submitted to judicial review, “it is necessary to unveil and identify which secret would have been disclosed”, since it is not enough to claim broadly that it is a secret related to the company's field of activity, because such a sweeping assertion does not allow effective judicial control of the dispute BARBOSA. The possibility of defense and is are compromised if it is not known for certain what has already been nd what would rema Trade secrecy prevents unrestricte

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requirements of institutionally relevant reconstruction regarding changes, criteria or impacts whose legal relevance calls for external control. ↩

730. The legal protection of computer programs does not turn them into a black box immune to any institutional scrutiny of the legally relevant effects of their operation. A program claimed in necessary connection with a specific system can be examined for novelty and inventive step as a product, provided a specific technical effect is identified, and it is precisely the "mode and purpose of this operation" that is the object of the corresponding analysis BARBOSA. Software protection does not exclude institutional examination of its operational effects when this proves relevant to the application of the governing legal regime. The Brazilian constitutional system attends to the peculiarity of computer programs by reconciling the demands of social function with their value or purpose, precisely because what is protected is not only abstract communication, but "the practical action" of the program BARBOSA. With regard to registration, the competent agency, upon finding a breach of a rule whose enforcement is not its responsibility, must at least prompt action by the competent body to restore the legal balance BARBOSA. ↩

731. In relationships of continuing performance, preserving the consumer's trust requires informational and relational conduct consistent with the long-lasting structure of the bond itself. Neither the initial performance nor the mere formal maintenance of the contract is enough; performance must unfold cooperatively, adaptively and loyally, so as not to frustrate the legitimate expectations that justified the consumer's joining and remaining in the relationship. The long-term contract "carries within it expectations other than those of contracts of immediate performance", since it rests "more on trust, on repeated interaction, on the maintenance of economic potential and of the quality of services", which is why "the capacity for adaptation, for cooperation between contracting parties, for continuation of the contractual relationship" is essential MARQUES. The theory of the relational contract contributes to "a new understanding of the trust awakened by the activity of suppliers" and to the acceptance of constant readjustment of long-term relationships "so as not to frustrate the legitimate expectations of the parties" MARQUES. ↩

732. The CDC's enforcement mechanisms are already compatible with the control of relevant alterations of the performance, including through specific relief and instruments for the disclosure and production of evidence. Specific performance of the obligation takes precedence precisely to prevent the supplier from turning non-performance into an advantageous economic calculation, converting injuries into damages as an ordinary cost of doing business. For this reason, conversion into compensation should occur only at the consumer's option or when specific relief or an equivalent practical result is impossible MIRAGEM. This design ties in with preliminary protection, the early production of evidence, and the reversal of the burden of proof in disputes in which the contract doc

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which the actual content of the bond must be reconstructed MIRAGEM. There is no serious control of relevant changes in the performance without access to the versions of the contract, to the records of performance and to the elements that allow the supply actually provided to be reconstructed. ↩

733. The protection of strategic business information coexists with limited forms of technical reconstruction when this proves indispensable to legally recognized purposes. The protection of trade secrets, software or other strategic elements does not eliminate legitimate room for functionally justified verifiability. “Decompilation is free in Brazilian law”, whenever indispensable for the purposes of integration BARBOSA. Informational exclusivity does not operate as an absolute bar to the knowledge functionally necessary for compatibility, operational continuity or interaction between systems. Expert analysis in trade secret disputes includes inquiry into possible independent development, reverse engineering or another distinct source as causes capable of explaining the disputed elements BARBOSA. Several legal systems carve out exceptions to exclusivity to prevent it from being used as a barrier to interconnection, rendering the powers of the exclusive right unenforceable against specific uses necessary for systems to fit together and operate jointly BARBOSA. ↩

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CONCEPTS IN THIS SECTION

Functional value equivalence

Functional value equivalence operates as a criterion of the lawfulness of unilateral alterations made in continuous digital services that administer Immaterial Objects of Consumption. The starting point is the feature whereby, in IOCs, the legal problem is not solved merely by asking whether the object still "exists", whether the account remains accessible or whether some formal trace of the acquisition is still standing. What must be controlled is whether the change made by the supplier substantially preserves the core of enjoyment that made the acquisition rational and legitimizes the consumer's remaining in the relationship. In continuing relationships, protection is not satisfied by the nominal survival of the performance, because the minimum basis of the contract also includes the legitimate expectations of utility and continuity built up over the course of performance[734]. It is precisely for this reason that functional value equivalence presents itself as a more suitable parameter than a reading centered only on abstract ownership or on the formal permanence of the asset: what the system must protect is the integrity of enjoyment, and not the mere appearance that "something is still there".

This formulation does not require rigid equality between before and after. Functional value equivalence does not mean freezing the object, literal repetition of attributes, absolute maintenance of *layout*, *stats*[735], parameters or isolated micro-characteristics. The *standard* does not prohibit the evolution of the service, the adaptation of the

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ıcing of mechanics or the ordinary innovation inherent to

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performance, the practical utility and the role played by the object in the governed

environment, taking into account the objectifiable reasons that justified the acquisition and the consumer's remaining in the relationship[736]. In other words, the legally relevant question is not whether everything remained identical, but whether the object continues to serve, at a functionally equivalent level, the ends that legitimately justified entering into the contract and maintaining the relationship MIRAGEM.

This equivalence, however, is not exhausted by narrow technical functionality. In IOCs, functional value may comprise ecosystemic and, in certain cases, symbolic dimensions, provided they are objectifiable within the regime of enjoyment itself. This includes, for example, capacity for use, performance, access and compatibility, but it may also reach the role of the object within the ecosystem, its relational relevance, its position of use, its density of rarity, its function of distinction or the way it integrates trajectory, status and recognition stabilized in the environment[737]. The point is not to turn every subjective preference into a legal claim, nor to open the door to touchiness disguised as dogmatics. The point is to recognize that, in governed ecosystems, certain symbolic and positional dimensions are not external adornments, but part of the very utility for which the consumer joins, remains and invests in the object. When these elements verifiably form part of the promised core of enjoyment, their degradation may be legally relevant even if the object remains formally accessible BESSA.

The dogmatic premise of this construction lies in the treatment of continuing and dependent relationships. The parallel with long-term captive contracts does not enter here as an automatic transplant or as academic ornament, but as disciplined interpretive infrastructure. In relationships of this nature, what is protected is not only the initial delivery, but the minimum stability of the performance program and the trust legitimately built over time[738]. The consumer does not adhere merely to an isolated utility, captured in a contractual snapshot of the first day. They bind themselves to a relationship whose value depends on the minimally loyal preservation of the functional program of the performance. For this reason, ıutations are legally admissible, yes, but only insofar as they are maintenance of th frustration of the legitimate expectatio

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relationship MARQUES. The platform may change. What it may not do is convert mutability into a vehicle for the opportunistic downgrading of enjoyment under the pretext of mere evolution of the service.

It is at this point that the theory of objective good faith in lasting relationships gains a practical function. The lawfulness of the change is not measured by its mere abstract provision in a contractual clause, nor by the formal permanence of the object after the alteration. In prolonged relationships, change remains legitimate only when compatible with the functional continuity of the performance, with loyalty in performance and with the trust built by the supplier's prior conduct[739]. Unfavorable and harmful surprise, the sudden break with patterns previously tolerated and the abrupt reconfiguration of the expected utility may amount to a breach of trust and a violation of the contractual program as actually lived, even if the contract remains nominally in force MARTINS-COSTA. In less pompous and more useful language: it is not enough to leave the shell of the relationship intact if the content enjoyed has been hollowed out.

This requires recognizing that contractual balance, in long-term relationships, is not only the balance of the initial moment of agreement. There is also a dynamic synallagma, that is, a functional balance that accompanies the relationship over time[740]. In IOCs, this observation is pure gold, because the object is not consumed only at the moment of purchase; it is consumed along the iter of enjoyment, amid continuous updates, reconfigurations and mediations. Hence, the lawfulness of the alteration must be assessed in light of the functional unity of the relationship, and not merely of the abstract existence of a generic authorization to change. If the modification significantly breaks this functional unity, downgrades the expected utility and disrupts the trust that has been built, the formal permanence of the relationship no longer suffices as a criterion of legitimacy MARTINS-COSTA.

Functional value equivalence, then, acts as a material test of legitimate mutability. Its field of application opens whenever there is an alteration capable of significantly affecting the practical function, the ecosystemic position, the symbolic density or the

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standard lights up when the platform brings about a downgrade of use, limitation of access, loss of compatibility, alteration of essential parameters, removal of functionalities, structural rebalancing, discontinuation of an ecosystemic role, degradation of relational position or hollowing out of attributes with objective weight in the rationale of the acquisition[741]. Unilateral alteration is already, in itself, legally sensitive under the CDC; and this sensitivity is heightened when the change is not neutral, but results in a material reduction or impairment of the consumer's interest in the performance MIRAGEM.

To make this *standard* operable, it is advisable to structure it as an application test. The first step consists of identifying the functional core of the object. What practical utility justified the acquisition? What role did the object play in the ecosystem? Where pertinent, what symbolic, reputational or relational density was objectively incorporated into the enjoyment? Here, the analysis must be neither psychologizing nor folkloric. It does not matter whether the consumer "loved" that item. What matters is whether there was a verifiable core of utility, role and meaning that formed part of the legitimately formed expectation[742]. The offer and the trust it awakens provide a direct basis for this identification, since the consumer contracts in view of the advertised advantages and qualities, which gives rise to the legal duty to maintain the conditions offered or, at least, to substantially preserve their utility MIRAGEM.

The second step is to reconstruct the alteration and the impact. What exactly was modified? What is the before and after in terms of use, performance, access, compatibility, ecosystemic function, recognition, rarity, trajectory or continuity of experience? This examination cannot remain trapped in the formalism of "it still exists" or "it is still available". Consumer-law inadequacy also sets in when the performance remains formally present, but no longer corresponds, in legal terms, to the legitimately expected quality, functionality or conformity. The CDC works with the functional defect precisely to reach nonconformities that frustrate the consumer's legitimate expectation without requiring the total disappearance of the object BESSA.

The third step is to measure the significance of the loss. Was there a marginal loss, evolution of the service, or was there a substantial hollowing out of the functional core of enjoyment? N

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not wax museums. But there is a point beyond which the alteration ceases to be ordinary adaptation and begins to operate as a material downgrading of the use value acquired. It is here that the idea of the minimum basis of the relationship becomes central. If the fundamental legitimate expectations that sustained the contract are excluded, the imbalance is no longer a detail: it becomes structural MARQUES. Functional equivalence serves precisely to separate tolerable wear from legally intolerable corrosion.

The fourth step is to examine justification and restoration. Even when there is a relevant loss, the mutation may still be legally tolerable if there is verifiable justification and adequate restoration. Did the platform demonstrate, in a minimally auditable way, the technical or systemic reason for the change? Did it offer real alternatives, reversibility, a parallel version, equivalent functional substitution, correction of parameters, preservation of compatibility, restoration of status or another mechanism capable of substantially preserving enjoyment? This point matters a great deal because the CDC is not content with the mere finding of the problem. It structures remedies of material restoration, specific relief and a practical result equivalent to performance, both in the case of a quality defect and in the case of nonconformity with the offer BESSA. Thus, it is not enough merely to acknowledge the change and assert one's own power to carry it out. If the change was substantially relevant, restoration must necessarily be part of the discussion.

This test depends directly on the preceding *standard* of open auditability. There is no way to assess substantial preservation of functional value without a verifiable minimum about what was altered, when, why and with what effects. If the platform prevents the impact from being reconstructed, opacity is not neutral. It becomes a dogmatic aggravating factor, because it makes it impossible to control the adequacy, the trust and the very legitimacy of the mutation. Functional equivalence without auditability becomes an elegant guess. With auditability, it becomes an institutionally manageable criterion.

The legal consequences of this construction are significant. When there is no tion of functional value, the alteration tends to constitute a of supply. Depend

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treated as a quality defect in the product or service, or, in more extreme situations of harm or risk, come close to the logic of the safety defect. The main point, however, is that the nominal permanence of the object does not exclude the application of the protective regime. If the legitimately expected utility has been hollowed out, the inadequacy is already established, even if the account remains active and the item is still listed in the inventory MIRAGEM.

In these cases, the priority form of protection must be functional restoration. The consumer-law system was not designed to convert every relevant frustration automatically into residual monetary compensation. In an IOC environment, the most legally appropriate remedy is often to restore equivalence of enjoyment: reversal of the alteration, an alternative version, equivalent functional substitution, restoration of attributes, correction of parameters, preservation of trajectory, maintenance of compatibility or other measures capable of reestablishing, as far as possible, the position of enjoyment that justified the acquisition. Monetization pure and simple may be useful in certain cases, of course, but treating it as the default answer is precisely the kind of dogmatic limitation that this thesis strives to overcome.

This logic also applies to the control of unilateral alterations as such. The CDC does not look kindly on clauses and practices that authorize the supplier to modify on its own the content, the quality or the essential parameters of the performance after contracting[743]. The problem does not lie in every change considered in the abstract, but in the change imposed without the consumer's effective participation, without preservation of the balance of the relationship and without respect for the functional core of enjoyment. A relevant unilateral modification, when detached from restoration and from substantial preservation of use value, ceases to be mere management of the service and begins to approach structural abusiveness BESSA.

This point connects directly to the theme of trust. In continuing relationships, the protection of trust is not theoretical perfume. It is the criterion that prevents the platform from treating the consumer as a hostage to an object whose function can be

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ment for the exclusive benefit of the supplier[744]. In captive contracts, the so-called supervening "c

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adherence to the new state of affairs, especially when the consumer is already invested in the relationship and depends on the ecosystem to keep enjoying what they acquired. Alterations that hollow out the utility, the quality or the material position of the consumer in the relationship may constitute, even under the appearance of continued acceptance, a form of de facto unilateral variation of the contract incompatible with good faith MARQUES.

For this reason, functional value equivalence is a criterion of stability of the performance program, not a requirement that the object stand still. It makes it possible to recognize the sophisticated obvious: continuous digital services change, but they cannot change in just any way; IOCs evolve, but they cannot be hollowed out under the label of evolution; platforms administer ecosystems, but they cannot use this administration to shift unilaterally onto the consumer the cost of relevant downgrades of enjoyment. The *standard* does not prevent the life of the service. It prevents the life of the service from being used as a screen for the material breach of what was functionally promised.

The example of updates that degrade accessibility and compatibility in software or firmware helps to visualize the structure of the problem. In these cases, no one seriously argues that every update is unlawful. The question is whether, under the pretext of improvement, the update significantly impairs the use, performance or compatibility of goods still within their expected durability, without adequate information, without effective consent and without mitigation options. The legal structure is the same in IOCs: an update, rebalancing or rule change is not illegitimate merely because it exists, but may become unlawful when it substantially degrades the functional core of the acquisition without verifiable justification and without adequate restoration. The mutability of the ecosystem does not absolve the supplier of responsibility for preserving, in substantial terms, the utility that gave meaning to consumption.

On the methodological plane, the advantage of the *standard* is clear. It avoids both the extremism of "it changed, therefore it is unlawful" and the complacency of "change is inherent, so everything is lawful". Instead of such caricatures, it offers a clear criterion: did the alteration

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ecosystemic and, when relevant, symbolic core of enjoyment? Was there verifiable justification? Was there adequate restoration? If the answer is no, mutability has ceased to be a legitimate attribute of the service and has turned into an instrument for hollowing out enjoyment, with its own consequences under the CDC regime MIRAGEM.

This is what justifies asserting, with some firmness, that functional value equivalence is not just one more appealing concept but the parameter of material lawfulness of alterations in IOCs. Without it, the supplier will always be able to hide behind the formal permanence of the object or the rhetoric of continuous innovation. With it, it becomes possible to ask what really matters: did the platform change the service while substantially preserving the functional value of what the consumer acquired, or did it use its position of governance to opportunistically downgrade, suppress or hollow out the promised enjoyment? It is precisely this question that functional value equivalence makes it possible to answer.

NOTES

734. In continuing and structurally dependent relationships, consumer protection is not limited to the nominal preservation of the relationship or to the mere formal survival of the contracted object. What the system protects, in material terms, is a minimum level of stability of the performance program and of the trust legitimately built over the course of the relationship. The new relevance of the time factor in long-term captive relationships is reflected "in the imposition of a new level of maintenance of the relationship", adding that, in this type of contract, the legitimate interest of the consumer is oriented toward the continuity of the relationship and, in principle, toward its renewal occurring "on the same terms and conditions as the initial policy" MARQUES. Legitimate expectations form the "minimum (objective) basis of the relationship, of the consumer contract", so that, with these expectations excluded, "the imbalance of the relationship is flagrant" MARQUES. Functional value equivalence thus operates as a criterion of the lawfulness of alterations in lasting relationships, prohibiting the suppression or degradation of the minimum basis of utility and trust that sustained the consumer's joining and remaining. ↩

735. Technical term designating the numerical and statistical attributes (such as damage, speed) that parameterize the performance and effectiveness of an acter. They form the

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are the main target of the unilateral modulations made by the platform on the grounds of evolution or rebalancing of the service. ↩

736. Functional value equivalence can be sustained as a consumer-law criterion of the lawfulness of alterations because liability for quality defects arises from the breach of a duty of adequacy, that is, of the capacity of the product or service to serve the ends legitimately expected of it. The quality defect is not to be confused with absolute nonperformance, but corresponds to partial or imperfect performance, directed at satisfying the parties' interest in the performance of the contract itself MIRAGEM. It follows that the nominal permanence of the object, of access or of the relationship is not enough, by itself, to rule out inadequacy. The quality defect arises from the absence of properties or characteristics that enable the performance to meet the ends legitimately expected by the consumer, and may even result from the breach of an ancillary duty, provided this impairs, even partially, the utility of the product or service MIRAGEM. In continuous and digitally governed consumer relationships, the mutation made by the platform is not lawful merely because something continues to exist; the parameter is whether what remains still serves, in a functionally equivalent way, the ends that legitimately justified entering into the contract. ↩

737. The inadequacy of the performance, under the CDC regime, is not limited to the physical nonexistence of the object or to its total suppression. Consumer-law dogmatics reaches situations in which the performance continues to exist formally or materially, but no longer corresponds, in legal terms, to the legitimately expected quality, functionality or conformity. A product may be considered legally unfit for failing to comply with a regulatory presentation requirement, even though it meets immediate practical needs BESSA. The functional defect is a nonconformity that prevents or limits the function for which the good is intended, and may extend even to irregularities of lesser apparent gravity concerning details that frustrate the consumer's legitimate expectation BESSA. If the relevant enjoyment was downgraded, if the expected functionality was impaired or if the trust legitimately incorporated into the relationship was frustrated, consumer-law inadequacy has already set in. ↩

738. The consumer's legitimate trust, in continuing relationships, projects itself onto the preservation of the expected utility of the contract over time. In long-term relationships, the permanence of the relationship has real legal value only if the performance remains capable of satisfying, at a minimally equivalent level, the purpose that justified the initial joining and sustained the continuity of the relationship. The theory of the relational contract contributes “to a new understanding of the trust awakened by the activity of suppliers and to the acceptance of a constant readaptation of long-term relationships so as not to frustrate the ectations of the parties, despite the limited will initially manifested.”

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modification preserves the expected utility that the relationship promised to deliver to the consumer and in which they legitimately trusted. ↩

739. The lawfulness of contractual mutations in prolonged relationships is not measured only by the formal permanence of the object nor by the abstract existence of a clause permitting alteration. In lasting relationships, change remains legally tolerable only when compatible with objective good faith, with the functional continuity of the performance and with the trust legitimately built in the course of performance. Objective good faith functions expressly as a yardstick for assessing lawfulness in the exercise of rights derived from legal transactions, including to set the limits on the exercise of termination in lasting and continuing-performance contracts and to put brakes on the *ius variandi* in specific cases MARTINS-COSTA. What proves legally relevant is the unfavorable and harmful surprise produced by unjustified hesitations, successive alterations or an abrupt change of previously tolerated patterns, in breach of the trust generated by the preceding conduct MARTINS-COSTA. A mutation that significantly hollows out the promised enjoyment and breaks the contractual program as actually lived without sufficient restoration goes beyond the field of legitimate adaptation and enters that of the violation of trust. ↩

740. In prolonged relationships, the lawfulness of alterations cannot be assessed only by the formal subsistence of the performance, because the relationship is structured not only by the initial synallagma, but also by its functional continuity over time. Contractual balance is not limited to the moment of agreement; it also corresponds to the "dynamic or functional synallagma", that is, the one that accompanies the contractual relationship over the course of its duration MARTINS-COSTA. The transformations that affect the relationship during this iter must be traced back to the very structural and functional unity of the relationship MARTINS-COSTA. The relationship can bear changes only to the extent that they remain compatible with its concrete purpose and with the functional unity built in the contractual experience. If the mutation significantly breaks this functional unity, downgrades the expected utility and hollows out the trust actually built in the course of the relationship, the merely formal permanence of the relationship no longer serves as a sufficient criterion of lawfulness. ↩

741. A relevant unilateral alteration of the performance must be read as at once a problem of structural abusiveness and of material impairment of adequacy. Clauses that authorize the supplier to unilaterally modify the content or quality of the contract after its conclusion are abusive, precisely because they concentrate in the supplier the power to direct the relationship and reduce the consumer to a mere spectator of the course of the transaction MIRAGEM. If unilateral alteration is already enough, in itself, [illegible] abusiveness, this characteristic is aggravated when the content of the [illegible] in the reduction or i[illegible] performance MIRAGEM. If the platf[illegible]

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preserves the shell but hollows out the utility the consumer trusted they would receive, there is a breach of legitimate expectation and legally relevant inadequacy. ↩

742. The protection of the consumer's trust provides a direct basis for requiring substantial preservation of the utility enjoyed. The right to the maintenance of the originally contracted conditions derives from the application of good faith and from the binding effect of the offer, which results in the prohibition of unilateral alteration of the terms of the contract MIRAGEM. The consumer makes their decision to contract in view of the advantages and qualities relating to the object or to the manner of contracting offered by the supplier, which gives rise to the legal duty to maintain the conditions offered, out of respect for the motives that led to the contract and for the contractual cause itself MIRAGEM. In relationships of continued enjoyment, what must be preserved, or adequately restored, is the functional core of the advantages, qualities and utilities that motivated the contract. Functional value equivalence is an offshoot of good faith, of the binding effect of the offer and of the protection of trust within the CDC. ↩

743. Unilateral alteration clauses and practices are treated in the CDC directly from the perspective of contractual imbalance and abusiveness. Any modification of the consumer contract must observe bilaterality and the absence of abusive imposition, so that a clause that arms the supplier with the prerogative to innovate unilaterally in the relationship departs from contractual balance, its validity being undermined by Article 51, item XIII BESSA. The unilateral modification of adjustment indices or formulas amounts to an iniquitous, abusive and excessively disadvantageous imposition on the consumer, prohibited by the abusive clauses of Article 51 BESSA. Relevant unilateral alterations are legally problematic not because every change is prohibited in the abstract, but because a mutation imposed without the consumer's effective participation and without preservation of the balance of relevant enjoyment amounts to abusiveness and authorizes material restoration of the performance. ↩

744. The control of unilateral modifications, in captive contracts, requires assessing whether the alteration materially hollows out the consumer's position in the continuing relationship, beyond the apparent form of the change. In relationships marked by practical dependence and a strong preponderance of the supplier, the so-called supervening “consensus” is often no more than forced adherence, amounting to a rescission contrary to good faith and a fraud on the law because it permits the de facto unilateral variation of the content, the performances, the quality or the price MARQUES. Clauses that authorize the supplier to unilaterally modify “the content of the contract or the quality of the contract” after its conclusion are abusive, as are practices that leave the alteration of performances or of the price over time to its RQUES. The control of the lawfulness of alterations must reach every hat, while keeping th

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erodes the utility, the quality or the material position of the consumer built up in the course of the relationship. ↩

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CONCEPTS IN THIS SECTION

Open auditability

In IOCs, open auditability and functional value equivalence become legally useful only when they can be converted into concrete mechanisms for making supply controllable. Without this, they remain *standards* that are correct in theory but harmless in practice, especially in environments in which the platform concentrates architecture, records, criteria for alteration and means of proof. The problem, therefore, is not only to recognize that enjoyment is governed, but to determine how the consumer-law system can react when this governance becomes opaque, unilaterally reconfigures the acquired utility and, on top of that, monopolizes the reconstruction of what happened. The answer does not require creating a new microsystem or importing an autonomous regulatory regime for platforms. It can be built from the combination of objective good faith, the duty of adequate information, relational cooperation, specific relief, production of documents and redistribution of the burden of proof already admitted in the CDC and the CPC MARQUES[745] MIRAGEM[746].

If the platform can alter, modulate, remove, recalibrate, sanction and reinterpret enjoyment on an ordinary basis, then legal control needs to shift from the abstraction of the "power to change" to the verifiability of what was changed, of how this was communicated and of the impacts it produced on the utility legitimately expected by the consumer. In other words, the law does not need to forbid every mutation of the

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›revent relevant mutations from being pushed onto the consumer

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explanation and without a real possibility of challenge. It is at this point that open

auditability and functional equivalence cease to be merely material criteria and come to require their own procedural instruments: qualified communication, preservation of evidence, production of records, expert examination delimited by functional impact and remedies oriented toward restoring enjoyment, and not only toward the later payment of losses and damages[747] BESSA.

The first of these mechanisms is the duty of reasoning and qualified communication in relevant alterations. In continuous digital services, it is not enough for the platform to "publish an update", "release a patch note" or bury the modification in layers of text, links or generic notices. When the change is capable of impacting the core of enjoyment of the IOC, good faith requires communication oriented to the essential, hierarchized and timed appropriately to the moment when the consumer can still understand the impact, react, decide and, if necessary, challenge. A relevant alteration cannot be communicated as noise or as a peripheral detail, because this turns mutability into a semiotic trap. The very relational logic of good faith prevents the supplier from imposing unnecessary or malicious expedients that make the exercise of the right a documentary *via crucis* or a scavenger hunt. If breaching the duty of cooperation and loyalty already means nonperformance, even if partial, then communication designed to neutralize the useful understanding of the change also violates the regime of the relationship MARQUES.

This duty of qualified communication also prevents the platform from turning the consumer's silence, passivity or mere remaining in the environment into fictitious acceptance of relevant mutations. In continuing relationships, a substantial alteration of the performance cannot be implemented by a generic notice, a hidden cross-reference or a notification structured to go unnoticed and later be used as an alibi of consent. When the company modifies content, quality, parameters or relevant conditions of enjoyment, it must offer abundant, intelligible and timely information, precisely because the consumer is inserted in a relationship of practical dependence in which the cost of exit, adaptation or challenge is not neutral[748] MARQUES. The point is elementary, but it tends to be solemnly sabotaged by platform practice: if the

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enough to affect enjoyment, it is important enough to be

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archaeology.

The second mechanism is the preservation of minimum technical records as a condition of effective control. In IOCs, the supplier controls not only the object and the environment; it also controls the institutional memory of supply. It knows what was shown, when it was shown, how it was altered, which version was in force, which interface trail led to the contracting, which parameter was applied in a sanction, which transaction occurred and in what technical context. When all these elements remain under the platform's monopoly, the governance of the service also becomes governance of proof. For this reason, the minimum preservation of records ceases to be an administrative detail and becomes a condition of controllability. What is required here is not a total search of the system, but a minimum documentary core: history of relevant versions; essential records of alterations with functional impact; trails of consent and of the decision flow; history of relevant transactions; communications of change; and, when there is *enforcement*, basic records of the decision event, such as the category applied, the reason and the consequence[749] BESSA.

This design is entirely compatible with the critique of performative transparency already developed. If the platform can appear to have informed without really making the information useful, it can also appear to have governed legitimately without preserving minimum trails that allow an institutional reconstruction of what it did.

Open auditability is not limited to an abstract duty to "be transparent"; it requires a minimally documented regime of reconstruction of supply. The consumer does not need to know the total engineering of the system, but needs to be able to demonstrate — and protection bodies need to be able to verify — what occurred in a legally relevant way. Without this, the technical mutability of the service becomes an evidentiary safe-conduct, and the duty to inform degenerates into archival performance: a lot of paper for little verifiability.

The third mechanism is properly procedural: preservation of evidence, production of documents and dynamic redistribution of the burden of proof. When proof is born

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he platform's control, the procedural system cannot feign neutrality. The CPC already offers qui

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373, paragraph 1[750], permits a different distribution of the burden of proof when there is excessive difficulty for one party to discharge the burden or greater ease for the other to produce proof of the contrary fact BRASIL. In disputes over IOCs, this is precisely the normal configuration: logs, interface trails, alteration histories, sanction criteria, internal support communications and relevant technical records are concentrated in the supplier. The dynamic redistribution of the burden, therefore, does not arise as extravagant judicial benevolence, but as a technically adequate response to the structural asymmetry of proof BESSA.

In the same vein, the regime for the production of a document or thing provided for in Articles 396 to 400 of the CPC offers the most direct path to operationalize open auditability. The judge may order the party to produce a document or thing in its possession (Article 396[751]), provided the request indicates, as completely as possible, the document or record sought, its evidentiary purpose and the circumstances showing that it is with the opposing party (Article 397[752]) BRASIL. This allows surgical requests, not procedural fishing expeditions.

Instead of generically requesting "all the data in the system", the consumer may seek, for example, the history of relevant versions of a given item, the trail of screens displayed along the purchase path, the minimum records of the specific transaction, the content of the communication of alteration or the category and reason for the sanction applied. If the supplier denies possessing the document, Article 398[753] allows the requesting party to demonstrate by other means that the denial is untrue; if the refusal is unjustified, Article 400[754] authorizes the judge to admit as true the facts that the document would serve to prove BRASIL. In platform-related disputes, procedural guarantees satisfy the need to react to generic answers such as "we no longer have such information", "this is internal-use data", "this information is not accessible to the public" or "we are unable to reconstruct the procedure".

This evidentiary arm connects directly with the duty of real clarification already recognized in consumer law. The supplier does not fulfill its role merely by throwing

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: environment; it also needs to demonstrate, when questioned, quately, that it pro

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the impact produced was compatible w

Demonstrating compliance with these duties forms part of its own burden of proof MIRAGEM.

When there is greater risk without sufficiently conspicuous information, an informational defect or a relevant mutation whose intelligibility depends on data controlled by the company, it will fall to the company to demonstrate the nonexistence of the defect or nonconformity, and not to the consumer to prove in the dark what happened inside the environment they do not control MIRAGEM. Without this adjustment, the platform becomes simultaneously master of the fact and of the process, concentrating in itself both control of the occurrence and control of the institutional means of its reconstruction.

The fourth mechanism is technical expert examination oriented to functional impact, and not to the total engineering of the ecosystem. When the dispute requires specialized examination, the expert examination need not and should not turn into an endless audit of the platform, nor into a demand for full disclosure of source code, architecture or trade secrets. Its object must be delimited by the legally relevant effects of supply: what changed, and to what extent this affected the utility, the compatibility, the continuity, the ecosystemic position or the functional equivalence of the IOC. The expert examination comes in as a tool for completing the reconstruction, operating on minimum records, relevant versions, preserved trails and verifiable functional parameters. Thus both absolute opacity and the fantasy of total transparency are avoided. The proceeding does not need to become a complete autopsy of the system; it only needs to be able to answer, with method, the legally right question.

This delimitation is also important to reconcile the *standards* with the protection of software and with trade secrets. Open auditability is not oriented toward the unrestricted disclosure of the supplier's technical infrastructure, but toward minimum documentation and the verifiability of the legally relevant effects of supply. What is protected here is not the consumer's technological curiosity, but the institutional possibility of reconstructing alterations and impacts that affect their

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, therefore, compatibility between preserving secrecy and requiring verifiability. Trade secrecy m

function as an absolute veto on reconstructing what the platform did when that doing has become legally contentious. Otherwise the business becomes peculiarly safe for the supplier, since it has authorization to change, harm its consumers, explain nothing and still invoke trade secrets as a kind of generalized excuse to avoid any possibility of being held liable. The model does not hold up.

The fifth mechanism concerns remedies and protection proper. Here the central point is that the operationalization of open auditability and functional equivalence should not automatically end in losses and damages as the default solution. The consumer-law microsystem prioritizes specific relief, measures capable of ensuring a practical result equivalent to performance and material restoration of the contracted utility MIRAGEM. In IOCs, this means that the *standards* need to guide remedies aimed at restoring the functional and, where appropriate, symbolic integrity of enjoyment. Among these remedies are reversal of a relevant alteration, re-performance, restoration or maintenance of access, preservation of history, restoration of ecosystemic or reputational attributes, equivalent functional substitution, mitigation through alternative versions, correction of parameters and proportional compensation when full restoration is not feasible[755] MIRAGEM.

This orientation is coherent with the very logic of the regime of quality defects in the CDC. The system does not treat inadequacy only as an occasion to compensate; it treats it as an event that triggers duties to restore the utility enjoyed. If, on the classical plane, this already manifests itself in the priority given to replacing the product or service with another in perfect conditions of use, in IOCs the same rationale must be adapted to reconstitute the substantial utility of the digitally governed object. Instead of throwing everything into the monetary blender and calling it protection, it is argued that the remedy most faithful to the system is the one that gives back to the consumer, as far as possible, the legitimately expected enjoyment.

This remedial dimension also connects with specific enforcement and with the mandatory mechanisms of the microsystem itself. The integration between the CDC and [illegible]ss allows the imposition of obligations to perform, correction protocols, maintenance of adequate su

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measures capable of giving material effectiveness to consumer rights BESSA. When the dispute reveals a repeated pattern of opacity, abusive reconfiguration or unverifiable suppression of functional value, the response need not be limited to the individual case. It may take on a structural form: a duty to preserve minimum trails, to formalize qualified communication for relevant alterations, to organize intelligible challenge procedures, to maintain minimum functional impact reports or to adjust the supply regime to prevent repetition of the problem. This is especially important on platforms, where unlawfulness usually comes in batches, not as a single piece.

The sixth mechanism is coordinated institutional action. Without opening a parallel regulatory front, the subsection shows that open auditability and functional equivalence can also guide the action of protection bodies in platform markets. These *standards* offer a concrete criterion for conduct adjustment agreements, recommendations, civil investigations and minimum governance requirements: functional impact reports on relevant alterations, protocols of verifiable transparency, preservation of essential records, comprehensible challenge procedures and minimum criteria of restoration in case of relevant degradation of enjoyment. First, the debate is kept from remaining confined to the retail level of the individual case. Second, the platform is prevented from continuing to operate under the fiction that each opaque reconfiguration is a mere technical detail and each conflict is just a little bad luck for the user.

All the mechanisms respond to the same requirement: to prevent the supplier's exclusive technical control from becoming a monopoly over the proof of the very unlawful act alleged. In IOCs, enjoyment is not given once and for all; it is continuously administered. If the platform also administers what can be seen, what can be remembered, what can be documented and what can be demonstrated, then the asymmetry ceases to be merely informational and becomes institutional. It is precisely to break this vicious circle that the subsection converts open auditability and functional equivalence into procedures: a duty to communicate adequately, a duty to preserve minimum records, a duty to produce relevant documentation, the possibility of functionally oriented expert examination, redistribution of the burden of proof in cases of material restoration MARQUES BESSA

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For this reason, in IOCs, open auditability and functional equivalence do not operate on an object taken in abstraction, but on the concretely governed regime of enjoyment. Their proper field of application is the governance that conditions access, alteration, verifiability, challenge and restoration of what the consumer actually acquires and continues to enjoy. Without enabling mechanisms, the *standards* would be merely dogmatic good intentions. With them, they come to function as legal technology for the controllability of continuous supply. It is necessary to leave the plane of distant ideals to actually enter the terrain where the platform can be legally obliged to explain, show, preserve, restore and stop hiding behind its own black box.

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745. The enabling of procedures of open auditability and assessment of functional equivalence is linked to minimum procedural duties derived from objective good faith, requiring the supplier to refrain from imposing unnecessary or malicious expedients that turn the exercise of the right into an endurance test. The relational structure offered to the consumer must make it possible, cooperatively, to understand relevant alterations, access essential information and challenge decisions without artificial barriers, since excessive difficulties that prevent the fulfillment of the main performance mean breach of duties of conduct under good faith: "to breach the duty of cooperation, of loyalty, means nonperformance, even if partial." MARQUES. If the relationship is continuous, the supplier's duty is to make the path of change controllable, and not to hide the trail behind bureaucratic obstacles or hostile interfaces. ↩

746. The consumer-law system prioritizes specific relief or measures capable of ensuring the practical result equivalent to the fulfillment of the obligation, admitting conversion into losses and damages only on a subsidiary basis MIRAGEM. In continuous contractual relationships, this structure reinforces jurisdictional effectiveness in preventing undue terminations and guaranteeing the maintenance of the agreed utility MIRAGEM. Open auditability and the assessment of functional equivalence therefore require mechanisms that make it possible to produce proof about the effects of alterations and to impose on the supplier the reestablishment or restoration of the promised functional utility. The consumer need not settle for residual monetary compensation after the sabotage of enjoyment, since the microsystem already admits [illegible] d at rebuilding the material integrity of supply. ↩

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continuity of supply [illegible]

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In actions for the fulfillment of obligations, the discipline of specific enforcement takes on special importance, including with the imposition of daily fines, as a means of producing the material result owed and discouraging deliberate breach by economic calculation BESSA. Through the integration between the CDC and the Public Civil Action Law, mandatory and executive orders capable of providing adequate and effective protection are admissible, ensuring that services are supplied adequately and, if essential, continuously BESSA. Faced with functional downgrading, the system admits the imposition of positive duties on the supplier to restore the utility of the contract, instead of reducing protection to a mere monetary settlement *ex post*. ↩

748. Preserving the consumer's trust in the face of relevant modifications of the relationship requires qualified communication and effective cooperation, capable of allowing the impact on the performance to be assessed in good time. Significant alterations cannot be implemented through communications that are generic or structured to convert silence into fictitious acceptance, a practice considered abusive for authorizing the unilateral modification of the content or quality of performances after the conclusion of the contract MARQUES. Even when companies intend to use such mechanisms, they must ensure abundant information and a reasonable period for the consumer, failing which it constitutes exploitation of the passivity and practical dependence inherent in contracts of continuing execution MARQUES. ↩

749. The effectiveness of consumer-law protection requires evidentiary cooperation and the production of elements, preventing whoever holds the records and the technical know-how from turning this advantage into a shield against legal control. Guided by the principle of procedural collaboration, the supplier bears the burden of proving the fulfillment of its duties, since each party must contribute the elements that can most easily be required of it, without prejudice to the reversal of the burden of proof BESSA. Facilitating defense in the CDC is part of the core of access to a just legal order, justifying the redistribution of the informational weight whenever the consumer's challenge is neutralized by technical opacity BESSA. Dynamic distribution and reversal of the burden of proof function as indispensable instruments of distributive justice in the face of the concentration of evidence on the supplier's side. ↩

750. “Art. 373. The burden of proof lies: [...] § 1 In the cases provided for by law or in view of peculiarities of the case related to the impossibility or excessive difficulty of discharging the burden [...] or to the greater ease of obtaining proof of the contrary fact, the judge may assign the burden of proof differently, provided this is done by reasoned decision [...].” BRASIL. ↩

judge may order the party to produce a document or thing in its

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RASIL. ↩

752. “Art. 397. The request made by the party shall contain: I - the identification, as complete as possible, of the document or thing; II - the purpose of the evidence, indicating the facts related to the document or thing; III - the circumstances on which the requesting party relies to assert that the document or thing exists and is in the possession of the opposing party.” BRASIL. ↩

753. “Art. 398. The requested party shall give its response within the 5 (five) days following its notification. Sole paragraph. If the requested party states that it does not possess the document or thing, the judge shall allow the requesting party to prove, by any means, that the statement does not correspond to the truth. Art. 399. The judge shall not admit the refusal if: I - the requested party has a legal obligation to produce it; II - the requested party has referred to the document or thing, in the proceedings, with the intent of constituting evidence; III - the document, by its content, is common to the parties.” BRASIL.” BRASIL. ↩

754. “Art. 400. In deciding the request, the judge shall admit as true the facts that, by means of the document or thing, the party intended to prove [...].” BRASIL. ↩

755. Material restoration in consumer law is oriented toward restoring the adequate performance, grounded in the user's interest in the very enjoyment of the contracted object. In the regime of quality defects, the priority given to replacing the product or service with another in perfect conditions of use reveals that adequate protection seeks the concrete recovery of the utility that motivated the contracting, and not merely the symbolic satisfaction of pecuniary compensation MIRAGEM. In digital services and immaterial objects, this logic persists: when functional utility is downgraded or inadequately altered, the remedy most faithful to the system is the one aimed at reestablishing the performance through re-performance, reversal or delivery of an equivalent practical result. Auditability and functional equivalence must serve to guide remedies capable of giving back to the consumer the substantial utility legitimately expected. ↩

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CONCEPTS IN THIS SECTION

Unlawful act of architecture Abusive teleology

The mutability of the service is not, by itself, enough to characterize unlawfulness. In continuous digital ecosystems, altering, updating, rebalancing and reorganizing enjoyment is part of the very way the performance works. The legal problem begins when this mutability ceases to operate as a legitimate form of maintaining the consumed object and comes to function as an ordinary technique for exploiting vulnerability, obscuring understanding, unilaterally concentrating evidence and systematically reducing the reversibility of the relationship. At this point, the architecture of the service can no longer be treated as a technical backdrop or as a mere operational grammar of the platform. It becomes an internal part of the legally relevant content of the supply itself.

It is precisely here that it becomes necessary to recognize abusive teleology as a dogmatic category. What is called into question is not design as style, visual language or interface aesthetics, but the incorporation, into the regime of performance, of a stable, verifiable exploitative purpose functionally oriented to the production of asymmetries. Instead of serving the intelligibility, predictability and adequate enjoyment of the object, the architecture comes to administer choice, risk, urgency, reversal and challenge in terms structurally favorable to the supplier, subordinating the consumer's experience to a design that normalizes loss, hinders reaction and turns opacity into method. Abusiveness, then, ceases to appear only as a one-off

ole clause and comes to reside in the very operating program of

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This formulation is important because it prevents two equally bad deviations. The first would be to dissolve the problem into the vague language of "innovation" or of the "dynamic nature" of the platform, as if the continuous reorganization of the environment were enough to immunize any relevant downgrading of enjoyment. The second would be to reduce the legal response to the atomized hunt for isolated clauses, as if the supply could only be controlled in its textual fragments and never in its operational logic. In continuous digital services that administer Immaterial Objects of Consumption, the performance is neither exhausted in the contractual text nor understandable without the governance that executes it. When this governance repeatedly organizes informational noise, decisional friction, evidentiary opacity, non-auditable mutation and insufficient restoration, the unlawful act is no longer only in the statement. It is in the architecture.

This is not about moralizing the exercise of economic activity or turning every asymmetry into generic suspicion. It is about bringing back into the controllable dogmatic field what, in the everyday life of platforms, usually appears as a mere natural consequence of technique. If enjoyment is governed, the way it is governed must also remain subject to criteria of legitimacy. And these criteria have already been prepared over the preceding course of the argument: material intelligibility of information, protection of trust, functional value equivalence, open auditability, a real possibility of reversal and minimum conditions for challenge. Abusive teleology arises precisely when the design of the supply ceases to respect these parameters and comes to operate against them, converting the very structure of the service into an instrument of exploitation.

With this, abusiveness ceases to be thought of only on the scale of the isolated event and comes to be thought of on the scale of the regime. This is not to deny that clauses, one-off acts and specific failures remain legally relevant. It is to recognize that, in certain cases, they are merely localized manifestations of a deeper orientation incorporated into the ordinary functioning of the ecosystem. Extraction does not appear as deviation; it appears as method. Opacity does not appear as episodic failure; it appears as operational condition. The difficulty of reversing, proving and appear as lateral inefficiency; it appears as a functional trait of the service. It is this shift that makes it

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architecture without leaving the grammar of the CDC and without falling into the temptation of inventing a parallel law for platforms.

The supplier's private autonomy does not authorize the organization of enjoyment on bases structurally incompatible with good faith, balance and controllability. When the environment comes to be designed to administer the consumer's choice through noise, dependence, artificial urgency, opaque reconfiguration and obstacles to reversal, the problem is no longer merely one of business management. It is one of the validity of the mode of performance and of liability for the effects produced by this form of governance. What opens up, then, is not an impressionistic critique of technique, but the formulation of an objective limit to the design of the supply: the architecture of the service may organize enjoyment, but it may not do so as a stable program of exploitation.

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CONCEPTS IN THIS SECTION

Unlawful act of architecture Abusive teleology

Abusive teleology designates, under the CDC regime, a qualified form of unlawfulness in which the exploitation of vulnerability appears not as an episodic deviation in the functioning of the service, but as a purpose built into its very program of operation. In continuous digital services, the legal problem is no longer limited to identifying a one-off error, an isolated communication failure or a singularly excessive clause. What must be controlled is the functional design of supply when it comes to organize, in a stable way, defective understanding, hindered reversibility, degradable enjoyment and structurally weakened challenge. Architecture, in this context, does not remain outside the performance. It is part of the very way in which utility is produced, maintained, restricted and made intelligible to the consumer.

This is precisely why the false dilemma between a quality defect in the product and a governance failure must be rejected. In the IOC regime, immaterial product and governed environment are not opposed as independent layers. Enjoyment becomes legally consumable only through the governance that organizes it. When this governance is designed to stabilize asymmetries of understanding, of reversal, of proof and of tolerance to loss, the problem may be described, at the same time, as a defect in the supply regime and as a relevant degradation of the enjoyment of the object consumed. There is no competition between the two readings. There is

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Seen this way, abusive teleology is not to be confused with a merely harsh business choice, with debatable design or with architecture that is simply efficient for the supplier. The category is justified only when the exploitative effect derives from the very design of the flow and of governance, when the mechanism presents itself as a stable and replicable pattern of functioning and when this pattern relevantly affects the consumer's practical autonomy and the integrity of enjoyment. The unlawful act therefore does not arise from a singular episode that can be treated as an accident. It arises when defaults, frictions, manufactured urgencies, hostile cancellation routes, elastic equivalences, sanction regimes or evidentiary arrangements function together as a method of exploitation. Abusiveness ceases to be a mere accident of execution and comes to reside in the program that organizes execution.

This formulation is not a license for judicial impressionism or abstract moralization of the digital environment. On the contrary, it functions as a technique of dogmatic containment. The category only makes sense because it allows repeated functional patterns to be treated as legally attributable units, instead of dissolving them into a collection of disconnected micro-events. Dogmatics does not operate by infinite reproduction of the empirical, but by bringing functionally similar occurrences back to a unitary normative frame, capable of guiding decision and legal consequence JR.756. When the service repeats, with functional coherence, mechanisms for capturing choice, for making loss opaque and for demobilizing challenge, attributing the program is no longer rhetorical exaggeration. It is the technically adequate way of apprehending the unlawful act.

The same logic applies to the stability of the *standard*. Abusive teleology does not derive from an artificial aggregation of heterogeneous facts, but from the functional similarity between occurrences that reveal a common rationale of exploitation. Legal reasoning does not need to reproduce the case in its full empirical extent to treat it adequately; it abstracts, synthesizes and formulates a decision rule from a recognizable pattern JR.757. That is exactly what the category does here. It prevents the system from treating stable architectural exploitation as a mere sum of small , each apparently trivial, but all functionally articulated for the program.

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This framing also requires recognizing that abusiveness cannot remain confined to the atomized reading of isolated clauses. In platform-governed consumer relationships, legal control needs to reach the global logic of organization of the relationship, the distribution of frictions, facilities, barriers, opacities and asymmetries within supply. Abusiveness, therefore, is not measured only by the contractual sentence taken alone, but by the design of the contract and of the performance seen as a dynamic totality. Good faith and balance operate precisely on this plane, making it possible to identify abuse when contractual or procedural engineering concentrates excessive unilaterality and significant imbalance to the detriment of the consumer MARQUES[758]. In continuous digital services, this means that decision flow, reversal architecture, distribution of noise, zones of opacity and the design of challenge already belong to the field of the consumer-law unlawful act.

For this reason, abusive teleology may operate, depending on the structure of the case, as a design defect in supply and as an abusive practice. As a design defect, it appears when the service is born already architected to produce asymmetry as a method, downgrading in advance intelligibility, reversibility and the minimum stability of enjoyment. As an abusive practice, it manifests itself when the everyday governance of the ecosystem repeatedly and predictably exploits the consumer's factual and semiotic vulnerability, administering urgency, scarcity, exit cost, informational noise or difficulty of proof for its own benefit. In borderline cases, the same rationale may further approach the figure of the safety defect of the service, when the program of functioning produces relevant risk or actual harm to reference legal interests, including those linked to personal integrity, biographical continuity and symbolic identity.

This qualification does not depend on proving the supplier's intimate psychological intention, as if the unlawful act required a subjective confession of malice. The focus falls on the functional purpose of the arrangement. What matters is how the program operates, what asymmetries it stabilizes and in what way it organizes the expected behavior of the consumer. Exploitation may be incorporated into the design even

urse presents it as simple technical neutrality, operational

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The rationale of the program is legally more important than the benevolent self-description the platform gives of itself.

This is where the notion of the barrier clause gains special value. Abusiveness manifests itself not only when the supplier frontally restricts a right, but also when it organizes the relationship to hinder, delay or discourage the exercise of that right through multiple steps, unnecessary requirements, artificial frictions and procedural increases in the cost of the consumer's reaction. When performance or reversal becomes possible only after excessively costly paths, without plausible justification, the very way the relationship is organized already functions as a device for containing the consumer's claim. The CDC does not need to wait for a scandalous text to react. It is enough that the contractual or procedural structure operates as a mechanism of substantial imbalance, unjustifiably hindering the consumer's access to what would ordinarily be owed to them MARQUES[759].

With this, the unlawful act of abusive teleology gains more precise contours. It does not name every bad experience, every consumer frustration or every unfavorable alteration made on a platform. It names cases in which the architecture of the service was conceived or came to be administered so as to structurally exploit the consumer's vulnerability, turning opacity, friction, difficulty of reversal, capture of expectation and concentration of proof into ordinary elements of the performance. Its object is not the interface taken as aesthetics, but the functional organization of enjoyment. Its point of application is not the isolated anecdote, but the pattern. Its criterion is not cultural indignation at design, but the verifiability that the program operates against real understanding of the essential, against practicable reversibility, against intelligible challenge and against minimally loyal stability of the acquired enjoyment.

When the program of the service comes to operate in these terms, the CDC is not facing disconnected micro-incidents, but a mode of supply that is legally controllable in itself. The qualification of the unlawful act may then open, depending on the case, the door of the design defect, of the abusive practice, of the abusive clause that shields this program or, in aggravated cases, of the safety defect of the service. From

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ceases to revolve around the impoverished question of whether the platform "can or cannot change" ar

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whether the design of supply was organized in a way compatible with good faith, balance, auditability, functional equivalence and a real possibility of reaction by the consumer. When the answer is negative, abusive teleology ceases to be a theoretical hypothesis and becomes a technical category for attributing the exploitative program itself.

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756. The formulation of the unlawful act of abusive teleology depends on recognizing that dogmatics can treat repeated functional patterns as legally attributable units, instead of dissolving them into disconnected micro-events. It is not a matter of moralizing the design of the service or of producing a sociological denunciation of the environment, but of verifying whether there is a program of functioning stable enough to receive unitary qualification. Ferraz Jr. offers a basis for this operation by showing that dogmatics apprehends social phenomena as "normed sets", that is, as units endowed with organization and structure, and not as dispersed empirical facts JR·. It is in this key that abusive teleology can be treated as a technical category of attribution: legal relevance does not derive from the simple sum of isolated episodes, but from the possibility of bringing them back to a coherent functional pattern of exploitation. In addition, the author observes that, from the legal angle, the decisive question is not the brute causality of the event, but the normative attribution of consequences to legally qualified conduct JR·. The problem, here, is not only to demonstrate the fragmentary existence of acts of inducement, capture or opacity, but to know whether, legally, they compose a unitary program of abusive supply. ↩

757. The stabilization of abusive teleology as a dogmatic category also rests on the distinctive form of legal decision-making, which does not merely collect empirical occurrences, but reconstructs the case by synthesis, abstraction and controlled generalization. Ferraz Jr. observes that the jurist's work does not consist in reproducing cases "in their full extent", but in abstracting them, contrasting reasons and broadening the problem "in such a way that we can obtain from it a general rule that decides the case and serves for others" JR·. This dispels the objection that abusive teleology would depend on an artificial aggregation of heterogeneous facts. On the contrary, when multiple occurrences reveal sufficient functional similarity, bringing them back to a unitary frame is simply the normal way dogmatics operates. The same reasoning sustains the formation of legal standards by similarity, including with support in decisions and examples, as the author records when he mentions the f "legal standards" by the "principle of similarity" JR·. Abusive teleology ...not as a loose metaph... unitary treatment to a repeated pattern of architectural exploitation. ↩

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758. Within the CDC, the assessment of abusiveness cannot remain confined to the atomized reading of isolated clauses, as if the contract were merely a mosaic of legally autonomous sentences. The mode of organization of the contractual relationship – its global design, its internal logic of functioning, the distribution of frictions, facilities, reversals, informational burdens and points of opacity – is part of the very object of legal control. Marques offers a decisive basis for this reading by asserting that the interpreter's activity in identifying abusiveness must concentrate on a "dynamic and total view of contracts", so that abusiveness is not observed in the isolated reading of the clause, but "in the reading of the whole of the contract, in the function of the clause in the contract as drafted, in the repercussion of the clause in that kind of contract" MARQUES. The author reinforces that, under the influence of good faith, abuse can also be identified in the "excessive unilaterality or unreasonable imbalance of the contractual engineering", the "significant imbalance of rights and duties, to the detriment of the consumer, in the contractual relationship seen as a whole" being an indication of abuse MARQUES. This authorizes treating architecture, decision flow and opacity as legally relevant elements of the performance itself. ↩

759. Objective good faith and contractual balance also operate as direct limits on the creation of contractual or procedural structures designed to unilaterally favor the supplier. In consumer matters, it is not only the declaratory content of the clause that may be abusive, but also the way the relationship is organized to hinder, delay or discourage the exercise of the consumer's rights. Marques is precise in stating that the attempt to prevent performance may be directed at the supplier's own performance, when the contract makes it enforceable only after "certain and multiple authorizations, papers, proofs, without plausible justification, merely to hinder and discourage the consumer from asserting their own (and main) claim." MARQUES. Claudia Lima Marques shows that the "barrier clause" is contrary to Article 51, item IV, of the CDC, precisely because it substantially unbalances the contractual relationship MARQUES. Applied to the unlawful act of abusive teleology, this reasoning makes it possible to control entire procedural arrangements conceived to produce asymmetric friction, increase the cost of reversal and demobilize challenge. ↩

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The techniques of capture by scarcity, risk and dependence are of interest here neither as a moral catalog of "aggressive strategies" nor as a sociological inventory of engagement mechanisms. Their interest is dogmatic and evidentiary. In IOC ecosystems, exploitation rarely presents itself in the clean form of a scandalous clause or of an advertisement that is false in isolation. It tends to emerge as a program of functioning, that is, as an articulation between multiple mechanisms that compress reflection time, reorganize expectation, increase exit cost, hinder reversal and make enjoyment progressively dependent on the very environment that governs it. What is sought, then, is a controllable vocabulary for recognizing recurring patterns of capture, without psychologizing the consumer and without dissolving the problem into vague impressions about *design*.

This vocabulary is necessary precisely because exploitation, in continuous digital services, usually operates by accumulation. The consumer is rarely constrained by a single expedient. What occurs, more frequently, is the combination of staged scarcity, manufactured urgency, promise of progression, diffuse threat of loss, gradual downgrades of utility and symbolic anchoring of permanence. Seen in isolation, these elements may seem trivial, tolerable or even inherent to the ecosystem. Considered together, they reveal a clearer rationale of capture of choice and of administration of tolerance to harm. It is for this reason that atomization must be avoided. The exploitative program does not disappear just because it is distributed in small repeated incidences.

The first family of these techniques is that of artificial scarcity and manufactured urgency. Its mechanism is well known. Short windows, accelerated rotation of offers, "limited editions", ephemeral events and temporary benefits are used to shift the decision from the field

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response. The legally relevant effect lies not only in making the purchase more attractive, but in deliberately compressing reflection time and inducing hasty consent, often when essential information remains hidden, dispersed or hierarchically downgraded. The problem is not the isolated use of temporality in the market, but its articulation with opacity and with the practical impossibility of comparison. The minimum sign of proof, here, does not depend on intuition about manipulation. It appears in time-remaining screens, in a history of repeated temporary campaigns, in programmed rotation of offers and in the very visual architecture that anticipates benefit and postpones relevant conditions.

The second family is that of temporal pressure through event structures and cycles of promise. The mechanism ceases to operate only through one-off rarity and comes to organize a directed sequence of anticipation, purchase, partial delivery, frustration and repurchase. Teasers, pre-sales, conditioned progressions, passes, serialized rewards and temporary goals build a trajectory in which value ceases to reside only in the object and comes to reside in the cost of "falling behind". The relevant legal effect is the conversion of enjoyment into a directed path, in which giving up ceases to mean a mere interruption of consumption and comes to represent loss of accumulated value, regression of position and discontinuity of an expectation already installed. In continuing relationships, this dynamic gains special relevance because the consumer finds themselves progressively more captive to the maintenance of the relationship and less free to resist new impositions by the supplier, which renews its power of influence precisely through the continuity of the relationship MARQUES760. The minimum sign of proof emerges in progression structures, event rules, time requirements, modifications introduced mid-cycle and comparison between the initial promise and the actual delivery along the trajectory.

This logic may acquire additional gravity when the ecosystem engages audiences especially exposed to the pressure to stay and to the repeated promise of reward. In electronic game environments, keeping engagement going over long periods through new content, continuous character development and appeals to collective dynamics

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marketing built into the play environm

on the abstract individual, but may radiate effects onto children, adolescents and the family unit itself TORRES[761]. This does not shift the axis of the subsection, but confirms that these techniques have enough materiality to exceed ordinary commercial persuasion.

The third family is that of the manufacture of risk and the permanent threat of loss. Here the mechanism depends not so much on the promise of gain as on the continuous administration of the possibility of loss. Programmed expiry, unilateral discontinuation, opaque banning, functional downgrades, loss of access to account or inventory, removals without a verifiable trail and unintelligible challenge regimes compose an environment in which trust is replaced by vigilance. The consumer ceases to choose in a space of minimum stability and comes to consume under a diffuse threat of deterioration, of sanction or of partial disappearance of what already makes up their position of enjoyment. The relevant legal effect lies precisely in this replacement of trust by discipline. Pressure ceases to be a mere psychological datum and becomes part of the legally relevant relational framework itself, because the supplier exercises its power in an environment in which the continuity of the relationship becomes a good in itself for the consumer and the threat of rupture or impoverishment of this continuity comes to operate as a method of subjection MARQUES[762]. The minimum sign of proof appears in applied policies, sanction communications, absence of verifiable reasoning, decisional inconsistencies and concentration of evidentiary trails in the supplier, which connects this family directly to the problem of open auditability.

The fourth family is that of the programmed degradation of use value and the downgrading of equivalence. Its mechanism is not mere change, but oriented change. Nerfs, reconfigurations, balancing adjustments, gradual suppressions of function, shifts of utility to new layers of acquisition and ordinary redefinitions of equivalence operate as techniques of extraction by erosion. The object does not leave the scene completely. It remains there, but worse, weaker, less central, less useful or less equivalent to what justified the acquisition. The relevant legal effect lies in the :imate expectation of continued enjoyment. The consumer does ature"; they lose fu frequently pushed to seek substitutes w

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of proof requires functional comparison between before and after, examination of relevant versions, identification of the core of utility affected and assessment of the object's role in the experience, exactly as the standard of functional value equivalence already requires. Legal relevance, here, does not depend on total suppression, but on relevant and repeated erosion of enjoyment.

The fifth family is that of existential captivity and identity or social dependence. Here capture is anchored in the symbolic value produced by the system itself. Inventories, titles, history, *ranking*, rarities, emblems, status signs and marks of trajectory function as ties between the IOC and the consumer's social position in the ecosystem. The relevant legal effect is evident. The loss or degradation of the object ceases to operate only as a patrimonial reduction and comes to bear on belonging, recognition, memory of participation and symbolic identity, in the terms already set for the reference legal interests. The minimum sign of proof does not lie in a subjective account of sadness or frustration, but in the objective demonstration of how the system itself attributes social value to the object, through internal markers, visibility, participation requirements, access restrictions and reputational effects. When the environment attributes this value in an institutionalized way, it also institutionalizes the exit cost and raises the consumer's tolerance to capture.

This fifth family also helps to understand why certain retention and reward techniques cannot be read merely as innocent “engagement” tactics. In contexts of strong dependence on permanence, the cycles of challenge, reward and progression may intensify ties of permanence to a degree that goes beyond mere playful prolongation and comes to affect the user more deeply and, in sensitive situations, the family environment itself. The legal interest here is not to pathologize every intense relationship with the game, but to recognize that the dynamic of retention and reward may function as an objective mechanism for raising the exit cost and broadening dependence on the continuity of the relationship TORRES 763. The usefulness of this observation, in this item, is only to reinforce that dependence and capture are not metaphorical abstractions when the very design of the ecosystem .ce as a socially charged necessity.

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Considered together, these five families show that abusive teleology need not appear as a single, dramatic and conspicuous gesture. It may manifest itself through the accumulation of smaller incidences, each of low perceptibility when isolated, but all converging on the same functional result: compressing the consumer's practical freedom, increasing their tolerance to loss, hindering comparison, raising the exit cost and turning the continuity of the relationship into an instrument of extraction. For this reason, the vocabulary proposed here is predominantly descriptive-operational. Its role is not yet to close the definitive dogmatic qualification, but to make visible the exploitative program in its recurring forms of manifestation.

The internal consequence of the subsection is, then, quite precise. Scarcity, urgency, serialized promise, threat of loss, functional erosion and symbolic dependence are not unlawful for existing in the abstract nor for appearing in isolation. They become teleologically abusive when they operate in combination with opacity and permanent asymmetry, in a stable and replicable pattern, orienting enjoyment toward ends incompatible with good faith, balance and controllability of supply. Seen in this way, they produce fragmentary injuries that may seem small when examined separately, but that, reconstructed together, reveal economically relevant extraction and progressive reconfiguration of the consumer's position in the ecosystem. What is prepared, from here on, is not a category competing with abusive teleology, but the functional repertoire through which it becomes recognizable before being explicitly brought back to the framing doors of the CDC.

NOTES

760. Capture techniques founded on scarcity, risk and dependence constitute legally relevant forms of exploitation of consumer vulnerability in continuing contractual relationships, taking advantage of established ties and of the user's practical need for permanence to broaden the supplier's power of imposition. Certain services and complex long-term relationships bind the consumer in such a way that they become dependent on the maintenance of the contractual relationship itself, on pain of seeing frustrated the expectations that led them to join and remain in the relationship: such [illegible] "bind the consumer in such a way that, over the years of duration of the actual relationship, they become a 'captive' client of that supplier or [illegible]iers, becoming depe[illegible] relationship or they will see all their expectations frustrated. [illegible]. This

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dependence reduces the consumer's real capacity to resist new impositions, guaranteeing the supplier a “power of imposition” constantly renewed over the course of the long-term obligation MARQUES. ↩

761. Capture techniques based on scarcity, dependence and pressure of permanence may acquire even greater gravity when they bear on children, adolescents and family dynamics mediated by the platform. In ecosystems such as *Fortnite*, the structure of the game aims to keep players connected for long periods through the continuous promise of new content, characters and game modes, a strategy that “generates long-term expectation among players and commitment to the development of the user's character” TORRES. The attraction of children is reinforced by partnerships with celebrities and brands, turning the play environment into a space of recurring stimulus to consumption, while the multiplayer logic “creates a team spirit forcing the player to continue in the game to help the other players” TORRES. ↩

762. The pressure exerted on the consumer in lasting contractual relationships forms part of the legally relevant relational framework for assessing good faith and abusiveness, ceasing to be a merely psychological or accidental datum. In contracts for increasingly essential services, “pressure” takes on growing relevance in resolving contractual conflicts, such that the exercise of certain rights by the professional in a position of power may constitute abuse of right or an act contrary to the good faith required in legal dealings, this structural-social factor of pressure having new legal relevance in captive relationships MARQUES. The legitimate interest of the consumer is directed to the continuity of the contractual relationship, while pressure may lie in the sales method itself, in marketing or in the object of the contract, being reflected in the final engineering of the relationship MARQUES. ↩

763. Engagement and retention techniques in electronic games may intensify the dependence and exposure of the family unit itself, going beyond the mere prolongation of playful engagement. The dynamic of challenges and rewards may prevent children and adolescents from facing stress factors, “creating a vicious cycle of anxiety and depression” TORRES. This loss of control is linked to the “neural circuit established in the face of the reward provided”, similar to the way brain reward systems function in chemical dependencies TORRES. The effects radiate onto the family, generating treatment costs, requiring greater attention from parents and guardians and interfering with family income TORRES. ↩

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Framing abusive teleology within the categories of the CDC requires sufficient precision to avoid two symmetrical errors. The first would be to dilute the exploitative program into atomized episodes, as if each manifestation exhausted its meaning in an isolated occurrence and the architecture of capture disappeared in the sum of small facts. The second would be to turn abusive teleology itself into a generic label, incapable of indicating which door of the system was actually triggered, which legal interest was affected, what minimum evidence is required and what legal response is adequate. The work of this subsection is precisely to escape these two deformations. Structural exploitation needs to be preserved as a legally intelligible unit, but this unit only gains real usefulness when brought back to the dogmatic paths already available in the consumer-law microsystem.

The first axis of framing is the quality defect, whenever the service's operating program produces a relevant loss of adequacy, continuity or functional equivalence of enjoyment. With IOCs, the question is not resolved by asking whether the object is still formally accessible, whether the item is still listed in the account or whether the performance remains nominally in force. The criterion is functional. What matters is whether the service, as governed, remains capable of meeting the ends the consumer legitimately expects or has come to frustrate them through a relevant downgrading of utility, performance, ecosystemic role or integrity of the experience. The CDC already offers this door without the need for a parallel category, because the quality defect derives precisely from the absence of properties or characteristics that allow the performance to achieve the reasonably expected ends, including when the nonconformity results from the breach of accessory duties capable of impairing, even

of the service MIRAGEM. The same logic is reinforced in the

the Code, which t

inadequacy to legitimate expectation a

frustration manifests itself through a shorter useful life, downgraded performance or impaired utility BESSA[764].

This framing as a quality defect requires a minimally objective evidentiary standard. A diffuse impression that the experience "got worse" is not enough. The before and after must be reconstructed through version records, documentation of the offer, interface evidence, a history of relevant alterations and a demonstration of impact on the core of enjoyment. It is at this point that functional value equivalence operates as a transversal yardstick. When the object survives only in appearance, but ceases to perform, at a substantially equivalent level, the function that justified the consumer's acquisition and continued engagement, the inadequacy can already be legally recognized. Here the system does not protect the nominal survival of the performance. It protects its material capacity to satisfy the useful interest legitimately incorporated into the relationship.

There are, however, cases in which abusive teleology goes beyond functional inadequacy and approaches the safety defect of the service. This occurs when the governance program not only downgrades enjoyment, but produces relevant risk or actual harm to legal interests of a personal dimension, especially when the combination of opaque sanctions, severe reputational exclusions, erasure of history, permanent threat of loss and practical impossibility of challenge affects personal integrity, biographical continuity or symbolic identity. The distinction is important because the CDC already separates, in its architecture, the protection of safety and the protection of adequacy. If the core of the problem lies in downgraded enjoyment, the main lens will be that of the quality defect. If it lies in the production of intolerable risk or harm in a personal dimension, the case shifts to the logic of the safety defect. The very structure of the system prevents treating all forms of abusive governance as if they were homogeneous phenomena, and this differentiation is one of the advantages of its technical use MIRAGEM[765].

The second axis of framing falls on abusive practices, and it is there that abusive teleology appears most forcefully as a repeated method of exploitation. When

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manufactured urgency, cycles of promise, manufacture of risk, asymmetric frictions and hindered rev

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exploit semiotic vulnerability and govern the consumer's choice, the problem no longer lies only in the final quality of the performance, but in the very way the supplier organizes the relationship. The CDC does not require literal falsity to react to this kind of mechanism. It is enough that the conduct, seen in its pattern of functioning, produces irregular conditions of negotiation and relevantly affects good faith, loyalty and balance, even if the service remains formally available and the exploitation presents itself with a varnish of technical neutrality BESSA[766]. The point of attribution, then, is the pattern, not the isolated event.

Therefore, proof of the abusive practice cannot become a prisoner of the micro-event. It requires a combination of evidence of flow, documentation of campaigns, ecosystem rules, screenshots or recordings of the decision path, as well as demonstration that the essential was systematically obscured or subordinated to architectural pressure. The case does not need to show that a single consumer was "psychologically defeated" by the system. It needs to show that the environment was designed to compress deliberation, hinder exit, increase tolerance to loss and induce permanence in a context of structural asymmetry. When this pattern proves stable and replicable, the abusive practice ceases to be an impressionistic adjective and becomes an effective dogmatic door of the CDC.

The third axis is that of abusive clauses, whenever the exploitative program gains contractual institutionalization in predisposed terms, policies and acceptances. Here abusive teleology manifests itself not only in the flow or in the interface, but in the very private normative engineering that the supplier builds to reserve to itself broad powers of alteration, exclusion, discontinuation, reconfiguration and sanction without sufficient auditability, without real reciprocity and without intelligible challenge mechanisms. Contractual abusiveness, under the CDC regime, is not reduced to extravagant or openly caricatural clauses. It is also recognized when the drafting party structurally improves its contractual position, transfers risks, unilaterally broadens its power of control and breaks the minimum reciprocity that must sustain the consumer relationship MARQUES[767]. If terms and policies serve as a

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This control becomes even more evident when the contract reserves to the supplier excessive unilateral prerogatives to define, alter, readjust, cancel or reinterpret the very reality of enjoyment. The unilateral conception of the adhesion relationship favors, by its very structure, clauses that break material balance and weaken the consumer's contractual position. The CDC responds to this not with contractual sentimentalism, but with objective nullity of excessive unilateral advantages, of the lack of minimum transparency and of the arbitrariness of one party over the other MARQUES[768]. The same perception appears in the classical reading of the system, which identifies abusive clauses as mechanisms of undue broadening of the supplier's power, assessable by the objective harm suffered by the consumer and by the material imbalance produced by the predisposed provision BESSA[769]. When the exploitative program gains a contractual badge, the CDC does not retreat. It only changes the entrance door.

These three doors do not function as watertight compartments. The same case may simultaneously reveal a quality defect, an abusive practice and an abusive clause, and in borderline cases may also approach the logic of the safety defect. The decision matrix, therefore, does not serve to parcel out the problem artificially, but to guide its treatment without losing sight of the functional unity of the program. In each case, what matters is identifying which mechanism predominates, which legal interest was affected, which door of the system offers the main fit, what minimum evidence is required and which remedy is most adequate. What cannot be done is to let the plurality of manifestations destroy the intelligibility of structural exploitation. When the pattern is repeated, legal classification must preserve the program as a relevant unit, and not pretend that everything comes down to small, disconnected deviations.

It is precisely at this point that open auditability and functional value equivalence operate as transversal filters of the framing. The absence of auditability does not create a fourth autonomous door, but structurally reinforces any of the others. When the platform does not preserve minimum trails, does not offer verifiable reasons, concentrates evidence and prevents reconstruction of what it altered or why it

this opacity intensifies attribution for abusive practice,

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performance. Likewise, the breach of functional equivalence acts as a strong signal of relevant inadequacy, guiding the framing as a quality defect in particular. In both cases, the preservation and display of records, the redistribution of the burden of proof and the institutional reconstruction of the supply cease to be procedural accessories and become part of the typical response to the unlawful act.

This response cannot be purely declaratory. The dogmatic fit must lead to a practicable consequence, because the CDC was not made to recognize exploitation and then merely contemplate it with a grave face. When the problem lies in the downgrading of enjoyment, priority tends to fall on the functional restoration of the lost utility. When it lies in contractual shielding engineering, the consequence must reach the very clause or policy that institutionalizes the imbalance. When the case reveals a repeated pattern of architectural exploitation, the system also calls for procedural correction and injunctive relief, so as to interrupt the reproduction of the program. Specific relief, in this context, is not a decorative procedural appendix, but a central instrument for materially restoring the legality of the supply, capable of ordering the cessation of practices, the exclusion of abusive clauses, the fulfillment of offers and an effective change in the supplier's behavior BESSA 770.

The advantage of this framing is its sobriety. It does not require leaving the CDC or inventing a parallel law of platforms. Quality defect, safety defect, abusive practice and abusive clause remain the doors of the system. What changes is how the object on which they bear is read. Instead of being limited to the stable thing, the isolated clause or the one-off event, they come to reach the regime of enjoyment that the platform continuously organizes. This is how legal control ceases to aim only at the episode and comes to reach the pattern of governance that produces, reinforces or normalizes the harm. Abusive teleology, then, does not compete with the CDC. It merely makes visible the type of exploitative program that the CDC itself is already technically able to contain.

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quality defect and the inadequacy of the performance in a material key. The supplier is liable for quality defects that render services unfit for consumption, diminish their value or result from disparity with the indications of the offer, services being considered unfit when inadequate for the purposes reasonably expected of them BESSA. This structure is reinforced when the useful life of the good is treated as an internal element of quality, so that the sale of a durable good with a useful life shorter than that legitimately expected constitutes a defect of adequacy, breach of the duty to inform and non-realization of the very object of the contract BESSA. Frustration of the useful interest and impairment of utility already constitute entry doors offered by the Code itself. ↩

765. The architecture of the CDC already distinguishes the different dogmatic doors of control, which prevents treating all problems of enjoyment under a single generic label. Liability for the product-caused or service-caused accident protects the consumer's safety, while liability for the quality defect protects the purpose sought in the performance of the contract; in the first case, there is breach of a duty of safety, in the second, of a duty of adequacy MIRAGEM. Alongside this, good faith projects protection against the supplier's abusive conduct, manifested in the prohibition of abusive advertising, abusive practices and abusive clauses, all marked by the exploitation of a dominant position over vulnerability MIRAGEM. If the core of the problem lies in downgraded enjoyment, one looks to quality defect and inadequacy; if it lies in the exploitation of vulnerability by conduct or stipulation, one looks to abusive practices and clauses. ↩

766. Abusive practices, in the CDC, function as a category able to classify mechanisms of exploitation incompatible with good faith, loyalty and balance, even when the conduct does not present itself as a frontal lie. These are “irregular conditions of negotiation” capable of wounding the foundations of the legal order, often presenting a “high dose of economic immorality and oppression” BESSA. Article 51, IV, simultaneously incorporates the principles of objective good faith and economic balance, prohibiting clauses that impose exaggerated disadvantage BESSA. The list of Article 51 functions as an open concept able to classify abusiveness that offends the balance between the parties BESSA. Abusive teleology does not compete with the CDC; it allows itself to be classified through the system's internal doors intended to repress mechanisms of exploitation incompatible with the material protection of enjoyment. ↩

767. Under the CDC regime, abusive clauses are instruments of structural imbalance incompatible with objective good faith and with the minimum reciprocity required in consumer relations. Their legal relevance lies in the fact that they can institutionalize, [illegible] l terms and policies, a contractual program oriented to the transfer of [illegible] e unilateral expansion of powers of control over the relationship. [illegible]s share the aim of in[illegible] the preponderant position and the effect of unbalancing the contract through lack of

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reciprocity MARQUES. It matters little whether the predisposing party presents itself as technically neutral: the system represses the contractual result that breaks commutativity and compromises the balance of the relationship to the detriment of the consumer. Terms and acceptance mechanisms can be read as the institutionalization of abusiveness whenever they serve as a basis for arbitrary mutations or strategic opacities intended to preserve the supplier's power. ↩

768. The control of excessive unilateral prerogatives is one of the cores of the CDC's logic at the contractual level, especially when the supplier reserves for itself exclusive powers to define, alter or readjust the performance. The unilateral conception and drafting of the contract invites clauses that privilege the unilaterality of the rights secured, breaking the balance and weakening the consumer's contractual position MARQUES. Clauses that grant the supplier unilateral advantages such as varying the price or cancelling the relationship without the same right being secured to the consumer are null, the nullity arising from the very unilaterality of the advantage granted MARQUES. Abusiveness rests on objective factors such as unilaterality, lack of minimum transparency and the arbitrariness of one party over the other MARQUES. An adhesion contract is not a license for the supplier to exercise absolute discretionary power over the reality of enjoyment. ↩

769. Abusive clauses function, in the CDC, as a legal mechanism for containing negotiating arrangements that unduly expand the supplier's unilateral power and degrade the consumer's material position. Vulnerability shows itself clearly in the contractual field, where adhesion contracts predominate whose clauses invariably seek to safeguard only the economic interests of the business BESSA. Abusiveness can be assessed by an objective approach, centered on the "serious harm objectively suffered by the consumer" and on the "imbalance resulting from the imposed clause" BESSA. Provisions that leave the supplier the option of concluding the contract or not while binding the consumer are null, prohibiting a situation of manifest contractual imbalance BESSA. If the exploitative program has earned a contractual badge, the entry door for confronting it remains the CDC. ↩

770. Specific relief, in the CDC, is not a mere procedural accessory, but an instrument for effectively restoring the supply regime, able to correct the unlawful act and prevent the continued reproduction of the abusive practice. The judge may, on the basis of Article 84, order the abstention from or performance of conduct under a coercive injunction, precisely because the market needs to be cleaned up in favor of the consumer and of competition BESSA. Collective protection may require the cessation of abusive advertising, the exclusion of an abusive clause from a standard contract and [illegible] of an offer BESSA. Once the claim is upheld, the supplier is bound to [illegible]allenged behavior BESSA. The system was made to order a halt, to correct and to restore materially th

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PARAMETERS WITH AN ENTRY IN THIS SECTION

Social function of intellectual property

Intellectual property matters here only insofar as it organizes power over enjoyment. In ecosystems of continuous digital consumption, it does not function merely as a technique for protecting creation or as an instrument of abstract economic exclusivity. It operates, in practice, as part of the legal infrastructure through which the platform defines what can be accessed, maintained, altered, withdrawn, audited and contested. The problem, therefore, is not merely knowing whether there is an exclusive right bearing on software, content, interface or related assets. It lies in understanding how this exclusivity comes to structure the consumption experience itself, conditioning continuity, intelligibility, functional equivalence and the user's real possibilities of reaction in the face of the mutability of the environment.

Intellectual property must be prevented from functioning as a theme parallel, competing or hierarchically superior to consumer protection. In continuous digital services that operate Immaterial Objects of Consumption, exclusivity does not hover above the relationship as an abstract shield of ownership. It bears on the relationship from within the supply regime, as an element of governance of the enjoyed object.

It is not enough to ask who technically controls the environment or who holds, in the abstract, the prerogative to modify the system. The legally relevant question is a different one: what limits apply when this control, founded on exclusivity, is exercised over continuous enjoyment, over expectations legitimately incorporated

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) and over the conditions of verifiability and contestation of the performance.

In this framework, intellectual property should be neither reduced nor demonized. Exclusivity remains legitimate and fulfills real functions of incentive, organization and protection. The point is only to refuse to read it as automatic authorization for opacity, for opportunistic mutability or for shielding against control. When exclusivity comes to operate, in the context of supply, as a technique of unilateral reconfiguration of utility, of blocking auditability, of compressing reversibility or of naturalizing opaque sanctioning regimes, it ceases to be mere protection of an asset and becomes part of the very dogmatic problem of the private governance of the IOC.

This also requires an important distinction. Not every intellectual property infrastructure offers the same type of exclusivity, nor authorizes the same claims of control. Especially in the case of software, the Brazilian discipline does not lead to an unrestricted functional sovereignty over the whole consumed experience. The legal protection of the program explains a relevant portion of the technical governance of the environment, but is not enough, by itself, to convert architecture, sanction, mutability, secrecy and the blocking of contestation into effects immune to consumer law. In IOC platforms, the exercise of exclusivity must remain compatible with the social function, with the protection of trust, with the functional equivalence of enjoyment and with minimal requirements of verifiable transparency.

The central question, then, is neither to revise the general theory of intellectual property nor to place it back at the center of the thesis. It is to delimit its place within the IOC regime. It appears as a structural variable of the private governance of the object, and precisely for that reason it must be read in light of the same limits that apply to that governance when it affects the adequacy, intelligibility, permanence and controllability of enjoyment. Instead of functioning as an argument for immunity, intellectual property comes to be treated as a field of compatibilization. Its exercise remains protected, but it is not separated from the constitutional order, nor does it escape the control of abusiveness, nor does it dissolve the duty of restoration when exclusivity is used as a technique for degrading the consumed experience.

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y ceases to appear as the final word and comes to appear as an organized legal problem. What is unde

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itself, but the way it projects onto immaterial objects of consumption whose utility depends on a governed environment. Where exclusivity serves to preserve creation and organize the ecosystem, it remains intelligible on its own terms. Where it serves structural opacity, opportunistic reconfiguration, the blocking of auditability and the capture of enjoyment under the language of license and secrecy, it must be brought back within the limits imposed by the social function, by consumer protection and by the containment of private power. It is at this point that intellectual property ceases to be a screen and becomes, itself, part of the architecture that the law needs to control.

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In IOC ecosystems, intellectual property rights take on a function that goes far beyond the traditional image of mere peripheral protection of immaterial assets. They do not operate only as patrimonial shields detached from the consumption experience, but as legal techniques for organizing the very environment in which enjoyment becomes possible, recognizable and economically exploitable. Intellectual property, in this context, structures positions of control over the circulation, exploitation and competitive differentiation of immaterial goods, conferring on the holder legally constructed exclusivities that bear on the markets, signs, works and technologies that organize the consumed ecosystem (Barbosa, 2010, p. 73; p. 83; p. 117)[771]. In continuous digital services, it appears less as an external frame of the object and more as the infrastructure of the very semiotic governance of enjoyment.

This finding requires, from the outset, a distinction that business discourse tends to blur. The intellectual property infrastructure that sustains the platform is not homogeneous. Trademarks, copyrights, software, distinctive signs, interfaces and related institutes do not confer the same type or the same extent of exclusivity. The Brazilian legal order does not authorize treating all technical control of the environment as if it derived from a unitary and unrestricted sovereignty over the consumed experience. The very idea of intellectual property is born as a normative construction of artificial scarcity, created to make economically appropriable what, in its natural state, would circulate without equivalent barriers. Exclusivity is not a spontaneous quality of the immaterial good; it is the result of legal intervention that organizes flows of use, reproduction, circulation and exploitation BARBOSA[772]. This matters because it prevents naturalizing the platform's position as if all the power it

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ment derived directly from the “nature” of the protected asset.

The same caution applies to the legal form of IP itself. Intellectual rights are not to be confused with civil property over corporeal things and cannot be read as a mere abstract replica of ownership over material goods. They have a concrete discipline of their own, linked to the appropriation, exclusion and competitive exploitation of incorporeal goods, which is why the protection of trademarks, works and other assets also functions as an arrangement for organizing the market and for competitive differentiation BARBOSA[773]. With IOCs, this fact carries special weight, because the consumer does not relate to a stable, physically detachable and immediately inspectable object, but to an enjoyment whose existence depends on a technical and legal architecture concentrated in the supplier.

It is precisely for this reason that semiotic governance cannot be reduced to marketing communication. It operates at a structural level. Trademarks delimit belonging, authenticity and the distinction between what is official and what lies outside the ecosystem[774]. Copyrights and related rights organize the possibility of reproducing, circulating and transforming the expressive components of the experience[775]. Software law, in turn, bears directly on the execution, updating, modification and stability of the environment[776]. Together, these regimes show that IP does not hover above the ecosystem as an abstract title of ownership. It takes part in defining what can be shown, reproduced, maintained, altered, authenticated, removed and contested.

This picture appears clearly in the platform's own contractual language. By reserving to itself and its licensors all rights, title and interests in the services, the game content, the accounts, the code, the characters, the logs, the recordings, the virtual goods, the in-game currency, the audiovisual effects, the methods of operation and the gameplay, and by prohibiting unlicensed uses of trademarks, content and services, Riot does not merely protect assets. It describes, in contractual terms, an ecosystem in which IP functions as a matrix for organizing the experience, the authenticity and the circulation of the enjoyed content[777]. The clause is revealing because it shows, bluntly, that control over signs, narratives, gameplay, visuals and [illegible] heral to the supply. It is part of the very infrastructure through which the environment is governed.

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This becomes even more sensitive in the case of software. In Brazilian law, the protection of computer programs is not organized as a general patent over functionality, method of operation or user experience. Its protection is predominantly copyright-based, and even when a program takes part in obtaining a new and inventive technical effect, the patent does not extend to the software as such, or to the abstract logic underlying the consumed experience. Patent protection falls on a delimited technical solution, not on the result in the abstract or on all the functionality perceived by the user BARBOSA[778]. This distinction prevents the technical control exercised by the platform from being described as if it derived automatically from a broad patent dominion over the consumer's experience itself.

The containment deepens when one observes that, under the Brazilian regime, software does not authorize the projection of broad sovereignty over logic, algorithm, method or functionality in the abstract. Primary protection falls on the expression of useful solutions, and not on the user experience in itself. Even in the exceptional cases in which the program participates in a patentable technical solution, the algorithm considered in the abstract remains free, and the program as such does not become the object of a patent in the broad sense BARBOSA[779]. This is enough to block a very common rhetoric on platforms: that the mere fact that the environment depends on protected code would authorize, without remainder, absolute control over the mutability, auditability, functional equivalence and contestation of enjoyment.

For this reason too, the absence of broad software patentability in Brazil has an important dogmatic function in this item. It prevents the rhetorical importation of a model of exclusivity that the legal order itself does not recognize. Not all software is eligible for patent protection in our system, and even in cases in which it takes part in obtaining a new and inventive technical effect, protection does not fall on the program as such or on the abstract functionality of the governed experience BARBOSA[780]. The result is clear: the centrality of software in the platform's infrastructure does not authorize presenting it as a source of unlimited legal power consumer experiences in the ecosystem.

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None of this means, on the other hand, that software is legally neutral or marginal. On the contrary. Its protection regime participates directly in the control over the use, execution, updating, maintenance and exploitation of the program. Running the software, using it and making it work already involves the exercise of an intellectual right, and not mere use of a physical medium, which helps explain why the computational infrastructure participates immediately in the organization of the enjoyment of the IOC BARBOSA[781]. Moreover, the way the law structures reverse engineering, compatibility, access and adaptation of software concretely interferes with competition, interoperability and the distribution of power in the technological environment, showing that the legal protection of the program also organizes practical conditions of access to and closure of the ecosystem BARBOSA[782].

But it is precisely here that containment becomes indispensable again. The fact that software protection participates in organizing the environment does not authorize converting it into unrestricted sovereignty over the entire consumed experience. The value of the program is not to be confused with the text itself, and text and behavior are not the same thing legally. Copyright protection of software does not extend to the method of operation in itself, nor does it turn the holder of the code into the absolute holder of the functional result experienced by the user BARBOSA[783]. This distinction is central, because it prevents control over the execution, updating and modulation of the program from being expanded, by contract or rhetoric, to the point of erasing the consumer-law density of continuously supplied enjoyment.

From there, the function of IP as infrastructure of semiotic governance becomes clearer. The consumer depends on the supplier not only to access the object technically; they also depend on it to understand what is authentic, what is official, what counts as valid belonging, what may circulate, what may be kept and under what conditions the experience will be deemed equivalent to what was promised. Legal concentration over signs, code, content and channels of circulation produces semiotic vulnerability not only through an information deficit, but because the platform controls the very means by which the offer is understood, equivalence is

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verifiability.

The trademark offers, among the institutes of intellectual property, one of the clearest examples of the juridicization of the semiotic layer of the market. Its protection falls not only on a word, figure or formally registrable medium, but on the sign's aptitude to present, mark, identify and distinguish products or services in economic traffic[784]. Not by chance, classical doctrine describes it precisely as the sign by which the product or service becomes known and distinguished in the market, requiring, for the fulfillment of this purpose, that it be distinctive, special and unmistakable SOARES. In a convergent formulation, the trademark is conceived as a distinctive sign intended to identify and differentiate goods, products and services in relation to other identical or similar ones, which is why the legal order secures its exclusive use within the corresponding economic activity DOMINGUES. Therefore, the Law already expressly protects a phenomenon of recognition mediated by signs, and not merely an isolated material medium.

This distinctiveness, however, does not present itself as an essential or natural quality of the thing, but as a socially stabilized relational effect of signification. The sign distinguishes because it produces perceptible difference, repeated association, orientation of expectation and minimally stable recognition among the public. For this reason, trademark protection is not exhausted by the strictly nominative or graphic aspect, and extends to the distinctive functionality of the sign in its various forms of presentation, provided that it is suitable, clear, distinct and apt to make the product or service known among others in the market SOARES.

The very evolution of trademark doctrine reveals that the economic centrality of the trademark depends less on the physical medium than on its capacity to condense identity, fix perception and guide the consumer's choice, including through its advertising function and the constitution of symbolic universes associated with the product, the prestige and the social status it represents DOMINGUES. Especially in service marks, the separation between material medium and distinctive function becomes even more evident, because the sign no longer distinguishes a corporeal thing, but designates an activity and informs the public of its business origin

ark law, therefore, already operates, in its own dogmatics, with a

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From this follows an important methodological consequence for this thesis. If the legal order recognizes that signs produce real economic, competitive and legal effects, there is no honest basis for denying that these same signs, when they come to govern enjoyment in continuous digital ecosystems, also structure the consumer's expectation, belonging, reputation, perceived functional value and vulnerability. The classical protection of trademarks and business signs has always been justified precisely because confusion, undue association and parasitic usurpation affect public trust, divert clientele and capture wealth built relationally in the market SOARES · DOMINGUES. It is not, therefore, a matter of discovering a new type of phenomenon, but of correcting an asymmetry of legal visibility[785]. When the sign layer organizes origin, differentiation and the capture of clientele in favor of the supplier, its relevance is promptly recognized. When this same layer comes to structure the criteria by which the consumer perceives authenticity, officiality, equivalence and relevant loss within the platform, the tendency of traditional legal discourse is to retreat before its immaterial dimension. What this thesis proposes is precisely to refuse this selective blindness.

In ecosystems such as that of *League of Legends*, this conclusion takes on particular density. Distinctiveness operates not only at the level of the Riot corporate brand or the brand of the game itself, but also in the administration of internal signs of officiality, rarity, authenticity, prestige, lawfulness of circulation, community recognition and valid belonging. The economic experience governed by the platform is permeated by signs whose force derives not from any materiality of their own, but from their repeated use, their insertion in circuits of visibility and their capacity to fix symbolic universes and guide consumption behavior SOARES · DOMINGUES.

Trademark and competition law already allows, moreover, protection in cases of parasitic exploitation of trade dress and undue appropriation of the sign dressing that attracts clientele, which shows that the legal order does not ignore the economic relevance of the overall perception organized by signs SOARES. If so, the distinctive layer that forms part of the enjoyment of IOCs cannot be treated as mere off-the- the experience. It is part of the very semiotic governance of the reason, may acquir

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technique of inducement, opacity, identity capture or relevant functional degradation.

Among the various institutes of intellectual property, industrial design offers further evidence that the legal order protects not only the distinctiveness of signs, but also the ornamental dimension of the economically exploited form. If, in trademark law, exclusivity bears on the sign's capacity to identify, differentiate and guide public perception, in industrial design protection shifts to the visual configuration of the product itself, when that configuration gives it a new and original aesthetic result and makes it fit to occupy a specific place in competition[786]. The dogmatically relevant point here is that the law does not confine itself to protecting technical function, material utility or business origin. It recognizes, in its own key, the legal relevance of ornamental form as an element of market insertion, attraction and differentiation of the good.

This function is neither lateral nor accidental. The protection of industrial design starts precisely from the premise that the aesthetic configuration of the product can add to it seductive power and greater commercial value, directly inflecting the public's choice. Form, texture, motifs, lines and colors cease to appear as simple visual finishing and come to integrate the economy of competition as legally relevant assets, because they make the product more attractive, desirable and commercially competitive BARBOSA. For this reason too, doctrine identifies in industrial design a space of economic action of its own, different from the field of technical utility: its incidence falls on the public's choice in the space of commerce, approaching, in this respect, the market logic of trademarks, although by a different route, since here differentiation not only signals the product, but integrates its very sensory presentation BARBOSA. The Law of intellectual property, therefore, protects not only what distinguishes by sign reference; it also protects what seduces by aesthetic conformation.

This fact becomes even clearer when one observes that the exclusive right of industrial design does not fall on the utilitarian object itself, but on the ornamental

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arizes it in the market. The example is eloquent: a plate ornamented with a protected figure m

same plate, identical in size, material and functionality, but devoid of that design, remains free for reproduction by third parties BARBOSA. The boundary of protection is not, therefore, in the materiality of the good nor in its practical function, but in the aesthetic investment incorporated into its external configuration. This is what makes it possible to understand why two goods equivalent in structure and utility can become economically distinct at the moment of their acquisition by reason only of the visual form that covers them BARBOSA. The legal system thus recognizes that ornamentation is not an irrelevant adornment, but a factor of differentiation apt to generate preference, value and capture of choice in the market [787].

The functional specificity of industrial design confirms this reading. Within the architecture of intellectual property, each exclusive right fulfills its own constitutionally delimited role, and the ornamental function is confused neither with the expressive function, proper to other regimes, nor with the technological function, characteristic of patents. The protection of industrial design is legitimized precisely because it remunerates and organizes a specific type of creative investment: that aimed at the aesthetic conformation of the product as a competitive differential in the market BARBOSA. For this very reason, the legal order requires that industrial design produce a new and original visual result in the external configuration of the object, apt to serve as a type for industrial manufacture, delimiting its scope of incidence to a precise layer of the economic value of the good [788]. It is not, therefore, a generic monopoly over the thing, but legally specialized protection over its ornamental function.

If the legal order already recognizes that the visual form of the product, regardless of its technical utility, can concentrate economic value, guide preference and justify legal exclusivity, then there is no honest basis for downgrading the ornamental dimension of digital ecosystems to the condition of a mere accidental coating of the experience. In environments of continuous consumption, the visuality of interfaces, the aesthetic composition of *skins*, distinctive finishes, graphic effects, visually coded signs of rarity and the iconographic coherence of the universe offered to the user are s or external to enjoyment. They participate in the very economy

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semiotic governance of the IOC. The d

object and the continuously enjoyed immaterial object does not erase this structural fact; it merely shifts its medium.

Industrial design reinforces, by another route, the central critique under discussion. In trademark law, the Law already admits that signs guide perception, association and trust in the market. In industrial design, it also admits that the aesthetic conformation of the good, as a bearer of seduction and commercial novelty, influences the public's choice and deserves specific protection. Intellectual property, thus, does not confine itself to protecting technology or abstract ownership, since it legally recognizes that distinction and ornamentation are economically operative dimensions of market life. It thus becomes even less defensible to resist seeing that, in IOC ecosystems, the private management of visuality, apparent rarity, distinctive aesthetics and the ornamental coherence of the environment forms part of the very structure of enjoyment and may, for this reason, produce effects relevant to consumer law when mobilized as a technique of inducement, opacity, identity capture or functional downgrading of the continuously supplied experience.

This ambivalence must be acknowledged soberly. On the one hand, intellectual property is a legitimate foundation for the organization of the market and for competitive predictability. The right of property is constitutionally guaranteed[789], and the protection of industrial creations, trademarks and other distinctive signs is born, in the constitutional text, already linked to the social interest and to the technological and economic development of the country[790]. On the other hand, the same constitutional order places this exclusivity back within material limits, by subjecting the economic order to the social function of property and to consumer protection. In other words, exclusivity is legitimate, but it is not metaphysically sovereign. It is born already traversed by criteria of compatibilization.

For this reason, the dogmatically relevant problem lies not in the abstract protection of assets, but in their use as a technique of institutional opacity and of preventive blocking of control over the effects of the supply. The invocation of secrecy, license, the right to modify, dominion over the code or trademark protection cannot operate

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minimum verifiability, on the assessment of functional loss and on the institutional reconstruction of t

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technological and expressive asset, not the transformation of this asset into a screen for opportunistic mutability, sanction without verifiable reasoning, blocking of auditability or erasure of avenues of restoration.

Treating intellectual property as infrastructure of semiotic governance does not mean downgrading its legitimacy, nor absorbing it into the CDC as if it were a mere sectoral detail. It means recognizing that, in IOCs, it forms part of the supply regime and, for this reason, its exercise remains subject to criteria of compatibilization with adequacy, verifiability and restoration. It is in this key that the following tensions are prepared. Exclusivity is not to be confused with immunity from auditability. The right to update and modify does not become, by itself, an authorization to downgrade enjoyment significantly without equivalence. And the protection of signs, code and content does not erase the incidence of good faith, social function and consumer protection when the governance of the environment comes to operate as a technique of capture, opacity or degradation of the continuously supplied experience.

NOTES

771. Intellectual property does not act only as peripheral protection of isolated assets, but as a legal technique for organizing the market and delimiting exclusivities over immaterial goods. It is in this key that Barbosa states that, in market economies, industrial property has always consisted of "a series of techniques for controlling competition", intended to secure business investment in immaterial elements such as name, trademark, technology and institutional image BARBOSA. The relevance of this formulation lies in showing that IP does not operate only as a defensive patrimonial shield, but as part of the very normative infrastructure that organizes positions of advantage, reserve and control in the competitive environment. This reading deepens when the author explains that, in an environment of competition between firms, the ownership or use of objects of intellectual property confers exclusivity over certain immaterial goods, allowing only their holders to exploit, before the market, the opportunity corresponding to the private use of these goods, which is why such exclusivity assumes a "competitive character" BARBOSA. In addition, the author clarifies that there is initially a "right of opportunity" consisting of exploiting the ed by the immaterial creation, legal exclusivity being the instrument that his new market for t copyright and *software*, from this p

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the ecosystem, but as part of the very legal infrastructure of enjoyment, exploitation and governance of IOCs. ↩

772. Legal control over the use, circulation and exploitation of immaterial goods does not derive from some natural quality of closure of the object, but from normative intervention that creates artificial exclusivity. Barbosa starts precisely from this fact when he states that the subjective right over an invention, a literary work or a position in the market "can only become property through a legal restriction of rights and freedoms", carried out by means of legally created exclusivity, capable of securing "the economic advantage of scarcity" BARBOSA. Intellectual property, thus, does not protect only an already given value; it legally organizes the conditions of control that make economically exploitable what, in its natural state, would circulate without equivalent barriers. This key is reinforced when the author explains that intellectual creations are characterized, as a rule, by non-rivalry and non-exclusivity, which allows free reproduction and recreation. The function of the patent, of copyright or of other exclusive rights is precisely to alter this state, granting the holder the power to prohibit reproduction or recreation and making legal exclusivity prevail even over identical goods resulting from autonomous creation BARBOSA. Without this intervention, immaterial creation does not possess "intrinsically, the scarcity necessary to transform a good into an economic good", which is why the Law endows it with "economicity" by means of "an artificial scarcity", operated by the attribution of exclusivity BARBOSA. It is this dimension of legal control of the flows of use, reproduction, circulation and exploitation that matters to the present item. ↩

773. Intellectual property rights cannot be reduced to merely peripheral patrimonial protection, nor can they be equated, in their concrete discipline, with civil property over corporeal things. Barbosa points out exactly this when he states that, although intellectual rights participate in the general regime of absolute rights, "none of the concrete rules laid down for property as a real right applies to intellectual rights", since the discipline of property refers to things and differs profoundly from that relating to incorporeal goods BARBOSA. This shows that IP is not a simple patrimonial appendix of the system, but a set of specific legal positions of appropriation, exclusion and exploitation. The specificity appears clearly when the author examines trademarks and observes the logical impossibility of fully assimilating the property of physical movable goods to that of intellectual goods. According to Barbosa, the vectors that legitimize these exclusive rights relate to competition and freedom of enterprise, which is why doctrine tends to recognize a dual nature, patrimonial and competitive, culminating in the idea of "competitive property" BARBOSA. Different IP regimes do not operate only as shields of reflex economic protection, but as autonomous legal that confer on the holder concrete positions of control over the use, ploitation and comp

774. “Art. 122. Visually perceptible distinctive signs are eligible for registration as trademarks [...]. Art. 123. [...] the following are considered: I - product or service mark: that used to distinguish a product or service from another identical, similar or related one, of different origin;” BRASIL. ↩

775. “Art. 7. Protected intellectual works are creations of the mind, expressed by any means or fixed in any medium, tangible or intangible, known or to be invented in the future, such as:” BRASIL. “Art. 28. The author has the exclusive right to use, enjoy and dispose of the literary, artistic or scientific work. Art. 29. The use of the work, by any modality, depends on the prior and express authorization of the author [...].” BRASIL. ↩

776. “Art. 7. The license agreement for the use of a computer program, the corresponding tax document, the physical media of the program or the respective packaging must state, in a form easily legible by the user, the term of technical validity of the version marketed.” BRASIL. “Art. 8. Whoever markets a computer program [...] is obliged, in the national territory, during the term of technical validity of the respective version, to ensure to the respective users the provision of complementary technical services relating to the proper functioning of the program, considering its specifications.” BRASIL. ↩

777. “3.2. Can I do things with Riot's intellectual property (We reserve all rights to our IP, but we allow some personal and non-commercial uses, such as fan art.) We (and our licensors) own and reserve all rights, title and interests in the Riot Services, as well as in all data and content posted, generated, provided or otherwise made available on or through the Riot Services, including user accounts, computer code, titles, objects, artifacts, characters, character names, chat logs, game recordings and broadcasts, locations, location names, stories, dialogue, catch phrases, art, graphics, structural or landscape designs, animations, sounds, musical compositions and recordings, virtual goods, in-game currency, audiovisual effects, character likeness and graphic resemblance, methods of operation and gameplay (collectively, “Game Content”). For the avoidance of doubt, Game Content includes Virtual Content. You may not create any intellectual work of your own authorship based on the Game Content or the Riot Services, except as expressly permitted by us. For more information on currently permitted fan use, read our Legal Jibber Jabber policy (but remember that we may change it from time to time – and for certain regions where we partner with third parties, the partner's terms of service may supersede the provisions of the policy). You also agree that, unless we grant you a license, in a signed written agreement, you may never use any of our trademarks, service marks, trade names, logos, domain names, brand slogans or trade dress. Any reproduction, redistribution or modification of the Riot Services, or use of the Riot Services not in accordance with this Agreement, is ıibited and may result in severe civil and/or criminal penalties.”

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778. Patent protection, in Brazilian law, is not to be confused with general dominion over functionality, method of operation or user experience. It bears on a delimited technical solution, and not on the result in the abstract or on the final utility perceived by the user. It is along this line that Barbosa, recovering a classical formulation by Gama Cerqueira adopted by the TJSP, recalls that the patent on a new means of obtaining secures to the inventor the exclusive right to use this means and prevent its use by third parties, but "does not cover the product or result obtained", it being lawful for anyone to manufacture the same product or achieve the same result by different means, unless the product itself is also privileged BARBOSA. The consequence is direct: there is no automatic monopoly, by way of patent, over functionality itself. This delimitation is reinforced when the author criticizes attempts to claim, in the abstract, all conceivable means of achieving a given result, observing that this would amount to patenting an abstract idea, and not a technical solution, accumulating antisocial power in favor of a single holder BARBOSA. Thus, *software* may form part of the infrastructure of the platform's governance, but this does not authorize describing the power exercised over functional equivalence, auditability or continuity of enjoyment as if it derived from a general patent dominion over the consumed experience. ↩

779. The protection of software, in Brazilian law, does not authorize the projection of broad technical sovereignty over abstract logic, functionality or user experience. Barbosa delimits precisely that software is primarily protected by a copyright-type regime, which falls on the expression of useful solutions, that is, on the code and certain non-literal manifestations, but does not reach solutions of technical effect as such. When software participates in producing a new and inventive technical effect, there may be a patent; even so, the patent will not cover the object already protected by Law n. 9.609/98, but only the means of obtaining the technical effect that transcend that object. The decisive point comes in the author's own conclusion: "in all cases the algorithm – abstractly – remains free for the use of all" BARBOSA. That is, neither copyright protection of the code nor any possible patent protection of the technical solution authorizes general appropriation of the underlying abstract logic. This distinction is reinforced when Barbosa deals with equivalence in patent matters and warns that it does not represent appropriation of the algorithm, but only of the alternative applications of the protected technical solution; therefore, in Brazilian law, "the program as such [...] will never be the object of the patent" BARBOSA. It is exactly this key that prevents treating software as a source of broad sovereignty over functionality, method of operation or user experience. ↩

780. The absence of broad patentability of software in Brazil prevents the platform's technological infrastructure from being described as if it came accompanied by dominion over logic, method or functionality in the abstract. Barbosa is stating that, in Brazilian law, not all software will be susceptible to patent protection, but only some ir why, with even more force, the unconditional prohibition on granting patents for

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business methods subsists among us BARBOSA. This rules out any unreflective importation of more expansive models and prevents treating software, in itself, as an object naturally capturable by patent logic. The containment is reinforced when the author explains that, even in the exceptional cases in which software participates in obtaining a new and inventive technical effect, the patent does not fall on the object protected by Law n. 9.609/98, but only on the means of obtaining that technical effect that transcend the program as such BARBOSA. And the boundary becomes even clearer when the author observes that, in Brazilian law, "in all cases the algorithm - abstractly - remains free for the use of all" BARBOSA. That is, *software* infrastructure may be central to the platform's governance, but the Brazilian legal order does not confer on it, by patent, broad dominion over logic, method or functionality in the abstract. ↩

781. The protection of software participates in the practical organization of access and in the modulation of the technological environment itself. It protects not only a text or an abstract asset, but concretely interferes with the conditions of opening, closure, compatibility and adaptation of the ecosystem. Barbosa shows this clearly when dealing with reverse engineering: depending on how legislation admits or restricts it, the conditions of competition, compatibility between systems, access of new agents to the market and even the price structure are concretely altered. According to the author, if legislation facilitates this practice, it tends to promote imitative competition and lower prices; if it prohibits it, the tendency is toward artificial product differentiation, difficulty of compatibility and reinforcement of the market power of large international producers BARBOSA. This organizing dimension also appears when the author states that the structuring of property relations over software was conceived as an instrument to organize the market and correct effects of concentration and of the speed of technique in the field of informatics BARBOSA. The point, therefore, is clear: the legal protection of software participates directly in the practical organization of access, interoperability, adaptation and distribution of power in the technological environment, helping to explain the governance infrastructure of IOCs. ↩

782. *Software* does not function only as a neutral technical means, but as an object of legal protection directly linked to control over the execution, use, updating and exploitation of the program. It is along this line that Barbosa, dealing with the *software* license, states that the exercise of rights relating to the program "consists exactly in the use and enjoyment of the programs" and that their effective application necessarily implies reproduction susceptible to copyright protection, which is why what is at stake is an "exercise of the intellectual right, and not only use of the physical medium"

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legal protection of *software* bears on the very practice of running, using e program work, wh

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asymmetry of contestation. This dimension of control is not exhausted in immediate execution. Barbosa also shows that the software regime engages with maintenance, technical support, development of improvements and introduction of modifications to the original program, observing that there are circumstances in which access to the source code becomes necessary not only for voluptuary alterations, but also for correcting errors and updating the software for the purposes for which it was licensed BARBOSA. The legal regime of software, thus, helps to understand how positions of control over the execution, circulation and operational continuity of the program are structured, without it being possible to extract from this unlimited sovereignty over the entire experience consumed in the ecosystem. ↩

783. The legal protection of *software* does not become, by itself, unrestricted sovereignty over the entire consumed experience, because the primary source of value of the program is not in the text itself, but in its behavior, and text and behavior are legally distinct. Barbosa underlines exactly this point when observing that one of the greatest discussions in the field of intellectual property applied to software stems from the fact that the primary source of value of the program is not in the text itself, but in its behavior, it being possible for different codes to lead to identical functional results BARBOSA. The dogmatic consequence is crucial: protection of the code does not authorize, by itself, general appropriation of the functional result experienced by the user. This containment is reinforced when the author deals with the internal form of the program. Although he recognizes that copyright protection is not limited to the literal expression of the instructions, and may also reach the mode of organization of the elements that make up the software, Barbosa warns that, "to the extent that the internal form is directly related to functionality, it will not be protected by Copyright", since the latter "does not protect the structure in itself"; in other words, "the copyright protection of the program does not extend to the method of operation" BARBOSA. The legal regime of *software* helps to understand the infrastructure of control over the execution, access and modulation of the technological environment, but does not authorize deriving from it absolute power over functional equivalence, user experience or the entire enjoyment consumed in the ecosystem. ↩

784. The distinctive function of the trademark cannot be reduced to a bureaucratic technicality of registration. It expresses, in legal language, the recognition that certain signs perform in the market a function of identification, differentiation and stabilization of expectations. In simple terms, the trademark is protected because it allows products and services to be presented, marked, known and distinguished in economic traffic, organizing social perception about what is offered, who offers it and how this offering should be recognized. The requirement that the sign be distinctive, special and unmistakable is not, therefore, a formal whim of the system, but the way in which the law selects the signs apt to perform this function of orientation in the market S · DOMINGUES. This [illegible] the raw materiality of a word, design or figure, but on the semiotic aptitude of the sign

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to produce socially stable recognition. What is protected is not only the “name” as a graphic sequence, but its capacity to individualize, differentiate and refer the public to a certain business origin, a certain reputation or a certain bundle of expectations. For this very reason classical trademark doctrine does not exhaust the trademark in its strict visual form and recognizes that its raison d'être rests precisely on its force of identification before consumers, including when the sign projects beyond the traditional nominative format. The trademark has legal value because it functions socially as a vector of distinction. This dimension becomes even more evident when one observes the importance of the advertising function of the trademark and its growing autonomy in relation to the material medium of the product. In contemporary market experience, one promotes not only an anonymous object, but a sign capable of fixing perception, condensing identity and guiding the consumer's choice. In many contexts, the public chooses by the trademark and does not even know, immediately, the manufacturer or the distributor. The distinctive sign thus becomes a cognitive shortcut, a reference of origin and the symbolic center of gravity of the offer. It is precisely this aptitude to condense economic and social meaning that explains its legal protection DOMINGUES. The phenomenon becomes even clearer in service marks. In them, the sign is not attached to a permanently marked corporeal thing, but designates an activity and informs the public of its origin. The trademark, in this case, practically detaches from the physical medium and comes to operate almost purely as a sign of identification, trust and differentiation. This reinforces the perception that trademark law already works, at its core, with a semiotic layer of the market: it protects not only a visual object, but a social mechanism of signification that guides recognition, association and economic choice DOMINGUES. Seen from this angle, distinctiveness is the technical name the Law gives to the capacity of a sign to organize socially relevant difference in the market. The trademark is neither a mere ornament of the product nor a lateral detail of business activity. It is part of the very intelligibility of economic circulation, because it allows the public to perceive what that thing is, where it comes from, what it resembles, what it differs from and why it should be recognized as belonging to a certain origin. In other words, trademark dogmatics has long contained the legal recognition that signs produce real effects of orientation, trust and valuation in the economic world. ↩

785. The legal protection of trademarks and business signs has always started from the premise that the sign layer of the market has concrete economic relevance. The Law protects it because it knows that confusion, undue association, strategic imitation and parasitic usurpation are not superficial accidents, but ways of capturing value through the appropriation of signs that organize public perception. When the legal order represses signs capable of misleading, diverting clientele or unduly exploiting the :hers, it recognizes, quite explicitly, that signs are not neutral 'hey concentrate trust, reputation, social memory, economic attractiveness and the capacity to g

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this very reason, protection is not limited to the isolated sign in the narrow sense. Doctrine and forensic practice recognize that trade dress, the overall sign dressing and the organized appearance of the offer may also be the object of parasitic exploitation and unfair competition. This means that the legal order is concerned not only with the literal reproduction of a name or logo, but with the appropriation of the perceptual universe through which clientele identifies, associates and chooses. The repression of parasitism over trade dress reveals that what is protected is not only the formally registered graphic trait, but the overall sign arrangement that gives intelligibility and power of attraction to the supplier's economic presence SOARES. This finding is decisive because it dismantles a recurring resistance when the problem shifts to consumption on digital platforms. If the Law already recognizes that signs, images, associations and globally organized perceptions have sufficient legal density to justify strong protection in favor of the supplier, there is no coherence in treating this same layer as irrelevant, ethereal or legally invisible when it structures the consumer's experience. The novelty of the thesis does not lie in stating that signs matter. Trademark and competition law have stated this for a long time. The novelty lies in refusing the selective blindness that makes this relevance appear only when it serves to protect origin, clientele and business investment, but disappear when the management of signs comes to govern belonging, expectation, recognition and perceived functional value on the user's side. In continuous digital ecosystems, the platform administers not only technical access to the service, but also the symbolic field within which enjoyment is understood. Signs of officiality, authenticity, rarity, prestige, lawfulness of circulation, community recognition and equivalence are not mere decorative accessories of the experience. They are part of the way in which the consumer understands what they own, what they lost, what they gained, what is worth more, what is worth less and what remains recognized as valid belonging within the environment. When this sign layer is governed opaquely, manipulated to induce behavior, or reconfigured so as to significantly degrade the economic and experiential meaning of what was enjoyed, what is at stake is not a “purely psychological” harm or an abstraction without legal grounding. What is at stake is the unilateral administration of signs that organize value, orientation and dependence within the supply itself. It is exactly here that the asymmetry of protection appears. The legal system shows enormous sophistication in protecting the supplier against the parasitic capture of signs, against public confusion and against the diversion of clientele. But it tends to be much less developed when the harm falls on the consumer inserted in a closed environment whose semiotic architecture is entirely controlled by the platform. The step proposed by this thesis does not consist in dissolving trademark law into consumer law, nor in denying the legitimacy of distinctive protection in favor of the holder. It consists, rather, in recognizing that the same layer of signs whose economic

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Law already admits may also operate as a technique of inducement,

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dogmatic visibility to a phenomenon that the system itself already knows how to see, although traditionally it does so unilaterally. ↩

786. “Art. 95. Industrial design is considered to be the ornamental plastic form of an object or the ornamental set of lines and colors that may be applied to a product, providing a new and original visual result in its external configuration and that may serve as a type for industrial manufacture.” BRASIL. ↩

787. Industrial design constitutes, in the system of intellectual property, the specific form of protection of the economically relevant ornamental dimension of the product. Its protection does not fall on the technical utility of the good nor on its practical function, but on the aesthetic conformation that adds to it a competitive value of its own. It is precisely for this reason that doctrine identifies in design a dimension of “seductive power”, apt to make the product more aesthetically attractive and, with this, to add greater commercial value to it BARBOSA. The regime does not protect, therefore, the useful thing itself, but the visually relevant form in which it presents itself to the market. This fact helps explain the specific economic space in which industrial design operates. As Barbosa observes, its incidence lies not in the realm of utilitarian needs nor in the field of technology, proper to patents, but in the space of commerce, that is, in the sphere of the public's choice and market differentiation BARBOSA. Hence the relevance of the notion of “commercial novelty”, mobilized by the author to show that industrial design is not intended to protect the functioning of the product, but its capacity to produce attraction and preference through singular aesthetic conformation BARBOSA. In this key, the appearance of the good ceases to be a simple peripheral finish and becomes part of the economy of competition as a legally relevant asset. The delimitation of the exclusive right confirms this reasoning. The industrial design right does not monopolize the object in its materiality nor prevent the free reproduction of its utilitarian function. What it safeguards is the legally protected ornamental addition. Barbosa illustrates this didactically by observing that a plate ornamented with a certain industrial design cannot be manufactured and sold by third parties without the holder's authorization, whereas the same plate, identical in size, material and functionality, but without that ornament, remains freely reproducible BARBOSA. The boundary of protection, thus, is not in the utility of the good, but in the aesthetic investment that singularizes its external configuration and gives it a competitive differential. This is why industrial design proves apt to produce economic distinction even between functionally equivalent goods. As the author notes, ornamental differentiation transcends the utility of the objects to which it is applied, allowing two cups identical in material and practical aptitude to become completely distinct at the moment of acquisition by reason only of

rm that covers them BARBOSA. In a related formulation, Barbosa

hat singularizes industrial designs is the fact that this differentiation is

part or the product itself, and does

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institutes BARBOSA. Aesthetics thus appears not as an irrelevant ornament, but as a component of the very economic value captured in the market. The position of industrial design within the architecture of intellectual property also confirms the specificity of its function. According to Barbosa, the constitutional regulation of the cumulation of protections presupposes that each form of exclusive right fulfills a determined role, aimed at the remuneration and organization of a specific type of creative investment, so that the ornamental function is distinguished, in the system, both from the expressive function and from the technological function BARBOSA. This means that the protection of industrial design does not constitute a generic prize for creativity, but a functionally delimited instrument to protect the aesthetic conformation of the product as an economically operative dimension. The system, therefore, does not treat trademark, patent, copyright and industrial design as interchangeable boxes, but as different regimes aimed at distinct layers of immaterial value. This point matters directly for the present thesis because it shows that the legal order already admits, expressly and in an institutionalized way, the legal relevance of ornamentation. The Law protects not only what distinguishes by external signaling, as occurs with trademarks; it also protects what differentiates by the very appearance incorporated into the good. In both cases, it is recognized that non-utilitarian layers of the economic experience can concentrate value, guide preferences and justify legal protection. The difference lies in the mode of incidence: in the trademark, distinctiveness signals; in industrial design, differentiation is part of the very visual conformation of the product BARBOSA. The common structural fact, however, remains the same: the legal system already knows that the form in which something appears to the public concretely interferes with economic circulation and with the formation of choice. From this perspective, industrial design reinforces the conclusion that the semiotic governance of the market is not a phenomenon foreign to the Law of intellectual property. On the contrary, it is already captured by the system when the aesthetic appearance of the good comes to function as a competitive asset, endowed with seductive power, commercial novelty and the capacity to guide the public's preference BARBOSA. This rules out any attempt to reduce intellectual property to the protection of technique or of abstract ownership, revealing that the legal order also juridifies the ornamental layer of the economy. It is exactly for this reason that industrial design has special demonstrative value in the context of Immaterial Objects of Consumption. If the Law already recognizes, at the level of corporeal goods, that ornamental appearance can add commercial value, capture the public's choice and justify specific protection, there is no methodologically serious reason to treat as legally invisible the aesthetic layer that structures enjoyment in continuous digital ecosystems. On platforms, the user experience is also shaped by visuality, finish, coherence, rarity coded by appearance, graphic effects and aesthetic

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are not technically necessary for the functioning of the environment, but are economically decisive for it

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capacity to produce belonging, desire and permanence. The analogy, here, does not

intend to equate distinct legal regimes nor to automatically convert skins, interfaces or digital visual arrangements into industrial designs. Its function is more precise: to show that the legal system itself already recognizes, in an institutional key, that ornament is value, that aesthetic seduction is economically operative and that the form in which the good presents itself to the public may form part of the legally relevant core of the market experience. BARBOSA ↩

788. "Art. 96. An industrial design is considered new when it is not included in the state of the art. Paragraph 1. The state of the art consists of everything made accessible to the public before the filing date of the application, in Brazil or abroad, by use or any other means, subject to the provisions of paragraph 3 of this article and of art. 99. Paragraph 2. For the sole purpose of assessing novelty, the complete content of a patent or registration application filed in Brazil, and not yet published, shall be considered as included in the state of the art from the filing date, or from the claimed priority, provided that it comes to be published, even subsequently. Paragraph 3. An industrial design whose disclosure occurred during the 180 (one hundred and eighty) days preceding the filing date or the claimed priority date shall not be considered as included in the state of the art, if made in the situations provided for in items I to III of art. 12." BRASIL. "Art. 97. An industrial design is considered original when it results in a distinctive visual configuration in relation to other prior objects. Sole paragraph. The original visual result may arise from the combination of known elements." BRASIL "Art. 98. Any work of a purely artistic character is not considered an industrial design." BRASIL ↩

789. "Art. 5. All are equal before the law, without distinction of any nature, guaranteeing to Brazilians and to foreigners residing in the Country the inviolability of the right to life, to liberty, to equality, to security and to property, on the following terms: [...] XXII - the right of property is guaranteed" BRASIL. ↩

790. "Art. 5. [...] XXIX - the law shall ensure to the authors of industrial inventions a temporary privilege for their use, as well as protection for industrial creations, the ownership of trademarks, company names and other distinctive signs, in view of the social interest and the technological and economic development of the Country [...]." BRASIL. ↩

This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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The tension between exclusivity, consumer protection and the integrity of IOCs arises when the platform tries to convert an intellectual property title into unrestricted freedom of governance over enjoyment. The problem lies not in the abstract existence of exclusivity, but in the undue leap between having an IP right and assuming, from it, total power to alter conditions of use, reconfigure the experience, impose private sanctions, suppress accumulated trajectories and block the institutional reconstruction of what was done. In continuous digital ecosystems, this leap is especially dangerous because the technical and legal control of the environment projects directly onto access, permanence, progression, reputation and contestation. The collision, here, is not theoretical. It is a practical conflict of private governance over continuously supplied enjoyment.

This excess often begins in the vocabulary itself. The language of "intellectual property" tends to suggest full and unitary dominion over the immaterial, as if ownership were enough to justify any mode of exercising power. But this equation is misleading. Intellectual exclusivity is a delimited normative construction, not metaphysical sovereignty over all the projections of the ecosystem. Ascensão is right to point out that qualifying intellectual rights under the sign of property favors the tendential elimination of their limits and that this operation has a clear ideological charge, not a descriptive one ASCENSÃO[791]. Consequently, revocable license, unilateral mutability, banning or erasure of trajectory cannot be treated as self-justified effects of the mere ownership of IP.

This containment becomes even clearer when one recalls that exclusivity in intellectual matters is not born of the natural scarcity of the immaterial good, but of artificial defaction. The law creates exclusion and, with it, the economic advantage of scarcity. For this very rea

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confers the power to exclude third parties, not unlimited positive sovereignty over every experience that gravitates around the protected good ASCENSÃO[792]. This fact prevents turning exclusivity into a general safe-conduct to legitimize any form of mutability, sanction, precarization of enjoyment or blocking of restoration.

Nor can one infer, from mere ownership, the full legitimacy of the concrete mode of exercising power over enjoyment. The exclusive right remains subject to external conditions, including the social function, and does not authorize its holder to exercise it as they see fit. The very idea of intellectual property coexists with internal and external limitations that make it absurd to treat it as an unrestricted authorization for the use and government of the ecosystem ASCENSÃO[793]. This matters because it shifts the analysis from the abstract level of the existence of the title to the concrete level of its exercise over the consumed experience.

The same conclusion appears, in a Brazilian key, in the reading of Denis Borges Barbosa. Exclusivity in intellectual property exists within the limits and for the functions constitutionally assigned to it, not as a general authorization to govern without restraint the entire enjoyment of the environment. The principle remains that of freedom; exclusivity is a functionally delimited exception BARBOSA[794]. In other words, the existence of an IP right does not automatically convert unilateral mutability, broad private sanction or opacity of governance into effects legitimized by nature.

This point deepens when one observes that ownership does not, by itself, shield the concrete mode of exercising power. The very exercise of copyright can be abusive, and the patent, as an instrumental monopoly, coexists with containment mechanisms and with the logic of exhaustion, which prevents endless control over all subsequent forms of enjoyment of the good already placed on the market BARBOSA[795]. Not even within the classical core of IP does the title authorize indefinite dominion over everything that results from the circulation of the good. Proprietary overreach, therefore, is not sustained even by the field's own foundations.

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ellectual property is perhaps even more functional, conditioned and socially responsible than other for

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reading of exclusivity untenable. Not even the international regime enshrines a totalizing paradigm; it works, on the contrary, with a balance between incentive and diffusion, between protection and limits BARBOSA[796]. This overturns the claim to use IP as a terminal argument that would close, even before it began, the discussion about good faith, restoration, verifiability and control of private power.

In the case of software, this tension takes on an even more precise contour. The platform often acts as if the legal protection of the technological infrastructure conferred on it practical sovereignty over the entire consumed experience, when the Brazilian regime does not deliver this. Exclusivity over delimited technical means does not become a monopoly of the result, the effect or the experience enjoyed by the user. The industrial result, in itself, remains outside patent protection, which prevents treating the utility perceived by the consumer as if it were entirely captured by the technological title BARBOSA[797]. This is a direct dogmatic limit to the platform's rhetoric.

The same containment applies to use and enjoyment after the product is placed on the market. Exclusivity over technology does not amount to freedom to fully control all forms of use, enjoyment, access or modification by the end recipient. Once in commerce, certain subsequent effects escape the reach of exclusivity, and insisting on controlling them as if everything were still a natural extension of the title may constitute abuse of right BARBOSA[798]. This means that control of the code, of execution and of updating does not authorize, without more, blocking verifiability, neutralizing the assessment of functional loss or reducing enjoyment to a disposable permission administered *ad nutum*.

Of course, the protection of software explains an important part of the platform's technical power. License, control of execution and the discipline of updating are legally recognized instruments for organizing this power. The formal contractual relationship with the user has become a central mechanism for structuring access, and adhesion contracts often intensely limit the freedom to use the program

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Nor does exclusivity over software automatically immunize the way this technical power is exercised against external limits. The use of IP rights to dominate markets, limit access or structure exclusions incompatible with the legal order may constitute abuse. Exclusivity does not operate as a safe-conduct to turn technical infrastructure into an unrestricted instrument for the material suppression of the utility of the contract or for the neutralization of control over its effects BARBOSA[800]. This is the exact point at which IP and the CDC meet: not in the denial of exclusivity, but in the control of the way it is used in the consumer relationship.

The same applies to contracts and trade secrets. They may legitimately organize the economic exploitation of the immaterial, but they do not become, by themselves, a shield for structural opacity. The know-how contract and the protection of secrecy explain specific forms of organizing power between the parties, but their legitimacy depends precisely on obligational structuring and on the concrete delimitation of what is meant to be kept secret (Barbosa, 2018, p. 361; p. 376)[801]. This means that the supplier may protect its secret, but may not use the word "secret" as a magic fog to make everything it does over enjoyment incontestable.

Absolute shielding is also incompatible with the very regime of secrecy, which requires specification of what is protected and concrete delimitation of the secret content for legal protection to make sense. Where there are effects on enjoyment, restoration or contestation, the protection of secrecy coexists with a minimum duty to make controllable what one intends to assert against the consumer and the system of protection BARBOSA[802]. Industrial secrecy is not a license for a total black box when the problem has ceased to be only the asset and has become the impact of its use on the supplied experience.

In this scenario, the language of the revocable license does not save the platform either. In consumer relations, the binding force of the contractual text is not measured only by formal acceptance, but by its compatibility with good faith and balance. The will expressed in a contract is no longer an isolated decisive factor, and clauses that seek to turn continued enjoyment into a revocable favor, emptying its [illegible] self-justified merely because they were predisposed in an

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adhesion contract [MARQUES 803]. Calling it a license does not erase the structure of continued supply or eliminate the material scrutiny of the CDC.

Moreover, the contractual form chosen by the supplier is not enough to rule out the incidence of the consumer-law microsystem. The CDC applies to consumer contracts in their substance, and not according to the business name given to them. License, exclusivity or technological secrecy do not remove the relationship from the consumer-law regime when there is continued supply under exploitable vulnerability [MARQUES 804]. The platform may organize its ecosystem through licenses and reservations of rights; this does not place it outside the field of balance, adequate transparency and control of abusiveness.

This same point reappears clearly in the doctrine of Bruno Miragem. The language of the license and of technological dependence does not dissolve the protection of the concretely promised enjoyment. When the utility of the product depends on software, failures in this supply can remove all its value, and the captivity created by continuous updates further broadens the relevance of the duty to inform in advance of the terms of these mutations. Restrictions of use and relevant alterations must be clarified in the offer; otherwise, they may give rise to an information defect, abusiveness and frustration of legitimate expectations [MIRAGEM 805]. The name of the contractual technique does not change the density of the harm.

Likewise, consumer protection acts to prevent private directive power from materially emptying the utility of the performance. The supplier's dominant position requires limits to the exercise of this power, and clauses or practices that give it intense unilateral direction over the course of the relationship, to the point of diminishing or suppressing the utility of the consumer's interests, are materially abusive [MIRAGEM 806]. This reasoning applies with special force when governance is anchored in software and in technical control of the environment, precisely because there the platform usually presents as a “need of the system” what is, strictly speaking, a management choice regarding the supply.

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l point of dogmatic inversion internal to the field of IP itself. The Brazilian copyright regime is not exha

It also maintains a core of moral rights expressly qualified as inalienable and unwaivable[807]. This provision does not enter here to make the consumer's experience a matter of authorship nor to transplant, without mediation, the moral logic of copyright into the field of the IOC. Its role is more restrained and more elegant: to show that the very language of IP is not reduced to absolute patrimonial disposability and already knows, from within, limits to the complete dissolution of relevant immaterial bonds. This reinforces the argument that license, adhesion and technical control are not enough, by themselves, to erase all the legal density of the memory, traceability and continuity of enjoyment constituted in the governed ecosystem.

When the platform invokes exclusivity, integrity of the system, operational necessity or software protection to justify blocks, reconfigurations, suppressions or erasures, the legal problem does not end with the abstract validity of the prerogative invoked. It shifts to the control of the concrete mode of exercising this power over governed enjoyment. It is at this level that minimum verifiability, the requirement of reasoning, the assessment of functional loss, the possibility of contestation and, where appropriate, the restoration of relevant effects must apply. IP may explain the organization of the ecosystem. It cannot immunize the way this ecosystem is exercised against duties of verifiable transparency, functional equivalence and control of abusiveness.

This containment does not derive only from objective good faith, exhaustion, the prohibition of abuse or the doctrinal critique of proprietarian absolutism. It derives from the Constitution itself. In dealing with industrial property, Article 5, XXIX does not grant a self-justified patrimonial prerogative, nor does it protect exclusivity as an end in itself. On the contrary, it expressly subordinates the legal guarantee of the privilege over industrial inventions and of the protection of industrial creations, trademarks, company names and other distinctive signs to the social interest and to the technological and economic development of the country. The infraconstitutional discipline of patrimonial intellectual property therefore does not receive a constitutional blank check; it receives a purposive frame. Thus, the mere ownership

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exercise of exclusivity collides with the constitutional ends that justify it, there is no proprietary shielding, but a problem of constitutional compatibility of the very mode of exercising private power AL..

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791. The existence of an intellectual property right does not authorize, by itself, the automatic expansion of exclusivity to the entire concrete governance of enjoyment. The language of "property", when applied to the immaterial, tends to suggest full and unitary dominion where the legal order has in fact instituted a delimited legal position surrounded by limits. It is in this key that Ascensão criticizes the presentation of intellectual rights under the sign of property, observing that such an operation favors the "tendential elimination of the limits that the laws establish for intellectual rights" and concluding that "all this argumentation is however false" ASCENSÃO. The author adds that this qualification has an "ideological origin, in the bad sense of the word", since one qualifies "not to attend to the nature of the being, but to obtain results that are of interest" ASCENSÃO. Consequently, license, revocability, unilateral mutability, banning or erasure of trajectory cannot be treated as self-justified effects of the mere ownership of IP. ↩

792. Exclusivity in matters of intellectual property does not express natural sovereignty over all the utilities and functional projections of the immaterial good. It is an artificial normative construction, produced by rules that withdraw from the generality what, in itself, is not naturally scarce. Ascensão is direct in stating that the legal rule "artificially rarefies goods that are not scarce" and that "this is the technique of the exclusive right" ASCENSÃO. For this very reason, the content of the intellectual right is predominantly negative: it does not confer on the holder unlimited positive power over the object, but a faculty of exclusion before third parties. Hence the statement that the intellectual right "gives the holder nothing he did not already have: it merely does not extend to him the prohibition that reaches all others" ASCENSÃO. The very example of the patent confirms the point, since it "attributes nothing positively", manifesting itself "in the power to prohibit, but never comes to have the power to use" ASCENSÃO. This prevents converting exclusivity into a general safe-conduct to legitimize any form of governance of enjoyment. ↩

793. Ownership of intellectual property does not amount to the full legitimation of the concrete mode of exercising power over enjoyment. The exclusive right remains [illegible]oned, including by limits external to the regime of the immaterial itself. [illegible]rves that it would be "absurd to conceive of the intellectual right as a right whose holder could exercise i

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subject to the principle of the social function, “like all rights” ASCENSÃO. This limitation is not merely abstract. In examining the unlawful intellectual work, the author shows that the right may subsist and, even so, its ordinary exploitation be legally prohibited, leaving the holder, in essence, the negative aspect of exclusion, without positive legitimation for full use following from it. For this reason, he concludes that this right “does not positively give faculties of use of the work” ASCENSÃO. From the mere ownership of IP one cannot infer the full legitimacy of all concrete governance of enjoyment in the IOC ecosystem. ↩

794. The existence of an intellectual property right does not automatically legitimize the entire governance of the ecosystem in which the immaterial good circulates. Exclusivity is a functional legal construction, constitutionally delimited and bound to the reasons that justify its existence, not unrestricted power over all the projections of the good. Barbosa formulates this directly when he states that each of these exclusive rights, although it constitutes property at the constitutional level, “exists within the limits and for the functions constitutionally assigned to it”, having not only the common social function, but also a specific function in the design of intellectual properties BARBOSA. This structural limitation is reinforced when the author places exclusivity back within an economy of freedom: the principle is that of freedom, the norm that excludes certain creations from common use being exceptional BARBOSA. In intellectual property, “everything that is not protected is free to be copied, even slavishly” BARBOSA. The existence of an IP right does not convert, by itself, exclusivity into a safe-conduct for unilateral mutability, unrestricted private sanction or total control of enjoyment. ↩

795. Ownership of intellectual property does not automatically translate into full legitimation of the concrete mode of exercising power over enjoyment, access or use. The title is not enough to shield any form of concrete governance, because the exercise of the right remains subject to external legal control. Barbosa is explicit in recognizing that the very exercise of copyright may constitute abuse, precisely because it is subject to the constitutional limitations inherent to the social function and to restrictions arising from collision with other protected interests BARBOSA. The patent, as an “instrumental monopoly”, does not subsist as sovereign arbitrariness, admitting means of containment such as compulsory licensing and price control BARBOSA. Moreover, under the doctrine of exhaustion, once the economic benefit has been obtained by placing the good on the market, the holder's rights over that copy cease, leaving only the exclusivity of reproduction BARBOSA. Not even within the classical core of IP does the title authorize endless control over all subsequent forms of enjoyment. ↩

of intellectual property structurally coexists with external limits and, eason, does not authorize an absolutist reading of exclusivity. Barbosa maintains that it is “even more fun

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responsible, and surely much less full than any other form of property" BARBOSA. This formulation prevents the reasoning according to which the mere presence of an IP right would close the discussion about the limits of its exercise, since even absolute rights are technical categories dependent on normative configuration and not metaphysical expressions of sovereignty BARBOSA. The rejection of absolutism is explicit in the international regime, since the TRIPs Agreement does not enshrine an absolutist paradigm, being based on a balance between the promotion of innovation and the diffusion of technology BARBOSA. Exclusivity in IP exists within a functional legal arrangement, incompatible with any reading that seeks to shield, in advance, the concrete mode of exercising power over enjoyment. ↩

797. Protection over technological infrastructure does not automatically become unrestricted power over the consumed experience. Patent exclusivity falls on delimited technical means, and not on the ends, effects or experiences to which they may give rise. Barbosa makes this point explicit when reconstructing the doctrine according to which the means of the invention correspond to the technical elements that solve a given problem, while "in relation to the result, it is not patentable" BARBOSA. The containment appears even more directly in the statement that "the industrial result will never be covered by the patent, always remaining free of the monopoly" BARBOSA. The existence of protection over certain technical means does not legitimize the claim to unilaterally reconfigure the consumed experience, block verifiability or treat the enjoyed utility as a disposable permission subject to the holder's arbitrariness. ↩

798. Exclusivity over technology does not amount, by itself, to freedom to fully control use, enjoyment, modification or access by the user. Once the product is placed on the market, "any subsequent use is outside the right of intellectual property", the relationship between holder and user coming to lie at the ordinary level of civil or commercial law BARBOSA. Trying to enforce the exclusive right against the end user after exhaustion "would go beyond the reach of the patent" and would constitute "abuse of right" BARBOSA. This containment reinforces that the technical knowledge intrinsic to the patent remains freely usable for "any intellectual purpose, whether scientific or non-industrial" BARBOSA. Exclusivity over technology is a functionally delimited legal fiction, and not natural sovereignty over all forms of experience and use by the recipient. ↩

799. License, control of execution and the discipline of software updating constitute legally recognized forms of organizing the holder's technical power over the infrastructure. Given the material ease of reproduction, practice came to rely on a "formal contractual ətween the user and the holder of the program", instead of depending ct enforceability BARBOSA. The license does not appear as a peripheral detail, but as a central instrument f

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bind the user and limit their freedom of use, prohibiting, for example, reproduction or separation of components BARBOSA. The protection of software legally explains how the supplier structures technical power, but this recognition does not mean admitting, without control, unilateral mutability of enjoyment, technical opacity or private sanction incompatible with the CDC. ↩

800. The protection of software does not automatically immunize the mode of exercising the holder's technical power against external limits or controls over its effects. In Brazilian law, the use of intellectual property rights to dominate the market or limit access may constitute an infringement of the economic order, in light of the constitutional protection of freedom of competition BARBOSA. Exclusivity does not function as a safe-conduct to turn technical infrastructure into an unrestricted instrument of exclusion, since “abuse of exclusive rights” is also prohibited, and the legal efficiency of the exercise of power must still be examined BARBOSA. No state agent may give effect to abusive or restrictive clauses in a license agreement, provisions frontally incompatible with the legal order being inadmissible BARBOSA. ↩

801. Contracts and trade secrets may legitimately organize the economic exploitation of the immaterial, but this legitimacy does not convert them, by itself, into a shield for structural opacity or unilateral precarization of enjoyment. The know-how contract allows the holder to structure a relationship in which it remains master of the competitive capacity, a dominion that does not derive from erga omnes sovereignty, but from contractual organization: the supplier is “the master between the parties” BARBOSA. The protection of the secret depends on the externalization of the intention to keep it secret in legally structured relationships, which needs to be “regulated by obligation” BARBOSA. Such arrangements explain the platform's organizational power, but do not immunize it against external controls over the mode of its exercise. ↩

802. Industrial secrecy and contractual confidentiality clauses do not authorize absolute shielding against minimum duties of transparency, contestation and control of the effects of the supply. Both in the regime of secrecy and in that of patents, legal protection bears only on certain and determined elements, requiring that the subject of the secret be concretely delimited to allow verification of the legal hypotheses of protection BARBOSA. The absence of specification of the cause of action regarding the secrets allegedly exploited impairs the finding of unlawfulness; delimitation is required of what would be common knowledge and of what would correspond to effective novelty of a confidential nature BARBOSA. Where there are effects on enjoyment or restoration, the protection of secrecy coexists with a minimum duty of [illegible] nd with the need to make controllable what one intends to be

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803. The supplier's invocation of a revocable license or a broad contractual reservation of powers is not enough to neutralize consumer protection nor to downgrade the governed enjoyment of the IOC to the condition of a disposable permission. In consumer relations, the binding force of the text is not measured only by formal acceptance, but by its compatibility with good faith and contractual balance, since "the will of the parties freely expressed in the contract is no longer the decisive factor for the Law" MARQUES. Article 51, IV, of the CDC functions as a general prohibitory clause against provisions that establish iniquitous obligations or ones incompatible with equity MARQUES. Adhesion clauses that seek to empty the legal density of enjoyment or turn continued consumption into a favor revocable *ad nutum* cannot be taken as self-justifying. ↩

804. The contractual form chosen by the supplier is not enough, by itself, to rule out the material incidence of the CDC on the consumer relationship. The consumer-law microsystem establishes "a new legal regime for all kinds of contracts [...] involving consumers and suppliers of goods or services", applying to all types of contracts, if consumer contracts MARQUES. To characterize the consumer contract, the decisive factor is not the existence of a special law or the name given to the transaction, but the presence of a consumer in a materially protectable position MARQUES. License, exclusivity or technological secrecy do not remove the relationship from the consumer-law regime when, in substance, there is continued supply and exploitable vulnerability. ↩

805. The language of the license and of technological dependence does not dissolve the consumer-law protection of the concretely promised enjoyment. When the utility of the product depends on software, failure in this supply can remove all its value, generating captivity linked to continuous updates that may modify content or accelerate obsolescence MIRAGEM. For this reason, the terms of the update must be disclosed in the offer, failing which they do not bind the consumer or give rise to a claim for frustration of legitimate expectations MIRAGEM. Restrictions of use in digital products reinforce the duty of pre-contractual clarification; its breach may constitute an information defect and abusiveness, being further subject to the scrutiny of proportionality MIRAGEM. Calling it a license does not erase the breach of legitimate expectation nor save the opportunistic precarization of enjoyment. ↩

806. Consumer protection is not limited to policing the external form of the contract; it acts to prevent private directive power from materially emptying the utility of the performance. The consumer's vulnerability before the supplier – which exercises a dominant position – causes greater factual power over the course of the relationship :entrated in the supplier, requiring norms limiting private power estative clauses are abusive precisely because they confer on the supplier a power of direction so intense tha

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possibility of usefully pursuing their interests MIRAGEM. If the unilateral direction of the bond reduces or suppresses the utility of the contract for whoever paid to enjoy it, the problem is no longer only one of structure; it is one of restoration of the enjoyment concretely protected by the CDC. ↩

807. "Art. 27. The moral rights of the author are inalienable and unwaivable." BRASIL. ↩

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The social function of intellectual property operates, in IOC platforms, as a constitutional limit on the exercise of exclusivity and as a criterion for reconciling the protection of the immaterial asset with the protection of the enjoyment continuously promised to the consumer. The starting point is well known, but here it takes on a specific practical consequence. The Constitution does not give property an absolutist reading, and the very protection of industrial creations, trademarks and other IP assets is secured in view of the social interest and the technological and economic development of the country. This is enough to rule out, at the root, the idea that exclusivity would authorize opaque governance, opportunistic mutability or unilateral suppression of enjoyment in ecosystems of continuous access and modulation. Intellectual property, as a constitutionally protected species of property, exists within the limits and for the functions assigned to it, including a specific function linked to development and the social interest, which prevents its invocation as an absolute barrier against the scrutiny of practices harmful to the integrity of the supply and to the consumer's position BARBOSA 808.

This conclusion is reinforced when one observes, more carefully, the normative structure of Article 5, XXIX of the Constitution. The provision does not merely mention industrial property among constitutionally recognized rights. It selects its objects and imposes a purpose on them. On the one hand, it refers to the temporary privilege of industrial inventions; on the other, to the protection of industrial creations, the ownership of trademarks, company names and other distinctive signs. In this context, “industrial creations” must be read in a broad material key, comprising industrial designs and, in the Brazilian system, articulating with the field

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tive signs, including trademarks, business names and other

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the broad sense, which leads to the interpretation that, *lato sensu*, the rights of

exclusivity structured under intellectual property in the patrimonial sense are conditioned on the constitutional purpose. One is not, therefore, facing a narrow clause aimed only at the patent, but a constitutional frame bearing on the patrimonial-industrial set of creations and signs protected in the competitive environment AL..

More important, however, is that the Constitution does not protect these legal institutions unconditionally. The phrase “having in view” performs an unequivocal finalistic function: legal protection is justified only insofar as it is oriented to the social interest and to the technological and economic development of the country. Social interest, here, is not reduced to the abstract convenience of the market nor to the private interest of the holder maximized to the limit. It designates the synthesis of the general needs of the Brazilian collectivity, measurable according to the historical, economic and social context in which protection is applied. Likewise, development is not to be confused with mere quantitative growth or rent extraction. It is a broader notion, linked to the expansion of the country's technical, social, political and economic capacities, in a manner compatible with the improvement of collective living conditions and with the material autonomy of the national community. For this reason, the patrimonial exploitation of IP finds constitutional grounding only when it remains functionally bound to this broader horizon, and not when it turns into a technique of opaque closure, relational capture and opportunistic degradation of the enjoyment already integrated into the continuous consumer relationship AL..

Hence the dogmatic consequence. Article 5, XXIX operates as a constitutional norm of conformation and limit, addressed both to the infraconstitutional legislator and to the interpreter and to those who apply the law. By saying that “the law shall ensure”, the Constitution does not merely authorize the enactment of protective norms; it conditions the very material validity of those norms and of their application on the ends it itself states. The Industrial Property Law and any other patrimonial discipline concerning industrial creations are constitutionally acceptable only to the extent that [illegible] with this finalistic frame. Outside it, what arises is not mere [illegible]ience, but constitutionally qualified tension. In IOC platforms this means that exclusivity cannot be n[illegible]

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abusiveness when its concrete exercise serves to make decisions opaque, impose unilateral mutations of the experience, make minimal audit unfeasible or destroy, without restoration, the functional core of the promised enjoyment. The Constitution ensures industrial property, yes, but it ensures it under condition. And a constitutional condition is not rhetorical ornament; it is a criterion of validity, interpretation and containment of private power AL..

This conditioning does not act as an external, accidental or exceptional brake. Functionalization is internal to the IP regime itself. It is a form of property even more conditioned, even more socially responsible and less full than other proprietary forms, precisely because the exclusive right exists to balance private interests of exploitation and public interests of access, progress and socially useful circulation of the immaterial BARBOSA809. In IOC platforms, this characteristic prevents dominion over the technological or expressive infrastructure of the ecosystem from being read as authorization to organize enjoyment on bases incompatible with verifiability, trust and restoration. The power exists, but it exists functionalized.

This understanding is reinforced by the very international horizon of intellectual property. The contemporary regime does not enshrine a paradigm of metaphysically shielded exclusivity, but a balance between innovation, technological diffusion, social welfare and the distribution of rights and obligations. The protection of the holder is not an end in itself; it is legitimated precisely because it remains compatible with a broader arrangement of social reciprocity BARBOSA810. In IOC platforms, the exercise of exclusivity cannot be accepted when it produces disproportionate harm to the enjoyment that has legitimately entered the consumer's sphere, above all in a context of strong technical and evidentiary asymmetry.

The social function ceases to look like a rhetorical principle and comes to function as a lock against the undue expansion of private power. It is neither a favor from the legislator nor a heteronomous intrusion upon a naturally full domain. Every subjective right is born and subsists under this conditioning, including intellectual rights. It makes no sense to conceive of intellectual property as an enclave in which as they saw fit, because its legitimacy already depends, from the outset, on compatibility with social val

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ASCENSÃO[811]. Here, the invocation of intellectual property does not close the discussion about the manner in which power over enjoyment is exercised. It merely opens a legally more demanding discussion about its limits.

This becomes even clearer when one recalls that the exclusive intellectual right constitutes, in itself, an exception to the general freedom to use ideas and, for that very reason, must be admitted sparingly and made compatible with the collective interest. The limits of the exclusive right are neither external anomalies nor occasional concessions to the vulnerable party. They are a normal part of its conformation, a true "negation of the negation", indispensable for keeping the channels of information, competition, culture and social communication unobstructed ASCENSÃO[812]. The social function does not appear *ex post* to denature the effects of IP. It has always existed, always integrated it, always represented its institutional limits.

This constitutional limit acquires special relevance when the exclusivity invoked is anchored in *software*. Since the protection of the program in Brazil is not structured under a broad patent logic over function, method or result, but under a special, predominantly copyright-based regime, it is incompatible with the Constitution to convert technical control of the infrastructure into total power over the consumed experience. Dominion over execution, updating and modulation of the environment explains a relevant part of the platform's position, but does not authorize reading any alteration, block, sanction or suppression of enjoyment as a natural and immune consequence of ownership of the code. The social function operates, here, as a lock against this extrapolation. It prevents control over the technological infrastructure from being transformed into authorization to degrade enjoyment without restoration, block minimal verifiability or organize technical dependence as a form of capture of the consumer.

When supply is continuous and enjoyment depends on private infrastructure, the exercise of property and of IP ceases to be merely dominion over an asset and becomes, concretely, the power to organize consumption trajectories, expectations,

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ns and possibilities of participation in the ecosystem. The constitutional economic order already

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the social function and by articulating this functionalization with consumer protection. In IOCs, this articulation means that the exercise of exclusivity cannot be dissociated from the functional integrity of supply and from the protection of the vulnerable party against the arbitrariness of whoever holds technical control of the environment. The social function of property and of the contract thus acts as a vector of rebalancing, preventing the ownership of exclusive rights from being converted into a tool of oppression, emptying of enjoyment or neutralization of the trust legitimately created in the relationship MARQUES[813].

This functionalization also acquires a concrete consumer-law feature when one observes the position of predominance exercised by the supplier that controls, at the same time, the technological asset, the architecture of the environment and the evidence of what happens in it. The vulnerability of the consumer justifies norms limiting private power precisely to prevent factual and technical superiority from turning into the material suppression of rights. In IOC platforms, this translates into duties of clarity, verifiability and preservation of functional utility, making unlawful the use of technical exclusivity to camouflage planned obsolescence, lower the quality of performance without justification or block the auditability of contractual performance MIRAGEM[814]. The social function, here, does not replace the dogmatics of the CDC. It reinforces it constitutionally.

The invocation of a license, industrial secret or technical prerogative is not enough, by itself, to set aside good faith, informational adequacy and control of abusiveness. In governed ecosystems, the exclusive right projects itself as a form of governance, and governance is legally attributable conduct when it affects enjoyment, access, permanence and contestation. Nor is it necessary to resort to a strong idea of the consumer's ownership of the digital good in order to demand minimal stability. That stability derives from the very structure of the consumer relationship and from the protection of legitimate expectations in continuous contracts, above all when the platform controls the conditions of intelligibility of the object and concentrates the evidence of what was altered. What is protected, then, is not a mirrored dominion of

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It is at this point that the constructed operators appear as concretizations compatible with the social function, and not as undue aggressions against the core of exclusivity. Open auditability functions as a functional unfolding of this constitutional limit. It does not demand unrestricted opening of code, nor a broad exposure of the protected asset. It demands only that relevant alterations and sanctions with material impact be justifiable in a technically intelligible and institutionally verifiable manner, compatible with control by protection bodies and by the Judiciary. In the case of software, this is especially important, because it removes the recurring objection that any requirement of minimal transparency would amount to emptying IP itself. It does not. What the social function refuses is not the protection of the program, but the use of that protection as an absolute barrier to scrutiny of the effects of supply on the consumer's continuous enjoyment.

Functional value equivalence plays an analogous role. If exclusivity is constitutionally protected to stimulate creation and organize the market, it is fully compatible with that purpose to require that relevant updates and reconfigurations not empty the economic and existential function promised to the consumer or, when they do, that they be accompanied by adequate restoration. The social function does not freeze the ecosystem nor prevent the evolution of the service. It merely blocks the use of mutability as an instrument of extraction and normalization of losses in a context of asymmetry of information and evidence. The exclusive right may organize the market; it may not unilaterally reorganize, without control, the functional and symbolic content of what was acquired and enjoyed under a promise of continuity.

For this reason too, Brazilian copyright protection offers, in a subsidiary way, an interesting clue against totalizing proprietary rhetoric. The moral rights of the author are inalienable and unwaivable. This fact does not make the consumer's experience a matter of authorship, nor does it transplant the moral regime of copyright into the field of the IOC. Its usefulness here is more modest and subtler. It shows that not even within the logic of copyright is the language of ownership reduced to pure, absolute patrimonial disposability. Within IP itself there is already internal resistance to the idea that every immaterial bond can be dissolved by a simple dispositive power. This strengthens the refusal of the narrative according to

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which license, adhesion and technical control would suffice to turn governed enjoyment into a pure disposable permission.

This limit takes on a particularly sharp outline in cases of the cessation of activities, discontinuation of services or definitive shutdown of servers. As relevant portions of contemporary life migrate to private digital ecosystems, the formal precariousness of use licenses can no longer be read as automatic authorization for the complete sacrifice of immaterial objects of consumption incorporated into the consumer's trajectory. Histories, libraries, progressions, projected identities, reputational positions and long-term investments cannot be treated as residues without density merely because they are technically housed in someone else's infrastructure.

The social function of property and of intellectual property prevents exclusivity from operating as a sufficient title to legitimate the unilateral erasure of these collections under the pretext of business freedom, economic convenience or strategic reorientation of the supplier. The right to exploit, close or reorganize economic activity is not to be confused with a supposed right to annihilate, without duties of transition, preservation or transfer, the functional enjoyment already stabilized in the consumer's sphere.

If the shutdown of the service is unavoidable, the constitutional order requires that it be made compatible, as far as technically and legally possible, with solutions of continuity, portability, functional restoration, assignment of the operation or other measures suitable to prevent private architecture from becoming a lawful instrument of patrimonial and existential devastation of the consumer. Exclusivity may organize the market; it may not legitimate the administered destruction of someone else's enjoyment as a side effect of the very decision to leave it.

The social function of property and the constitutional teleology of IP oriented to social interest and development provide sufficient grounds to limit the exercise of exclusivity when it turns into opaque governance, harmful unilateral mutability or a technique for capturing the consumer. In IOC platforms, this limit translates into a duty of verifiable justification for relevant alterations, minimal rds and trails for i
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enjoyment, and a prohibition on the use of technical dependence as a mechanism of private exclusion without a minimal standard of control. Exclusivity remains a legitimate element in the organization of the ecosystem. What it does not do is immunize its manner of exercise against consumer protection, the social function and constitutional limits on private power.

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808. Intellectual property, as a species of the genus property at the constitutional level, does not subsist as an absolute right, being structurally bound to the realization of its social function. Each of the exclusive rights protected by the system "exists within the limits and for the functions constitutionally assigned to it", possessing not only the social function common to all properties, but also a specific function in the design of intellectual properties, directed to the technological and economic development of the country BARBOSA. It follows that exclusivity is not an end in itself, but a legal instrument conditioned by the higher objectives that justify its creation and maintenance by the State. In IOC platforms, this conditioning prevents IP ownership from being invoked as an absolute barrier against scrutiny of practices that undermine the integrity of supply and the protection of the consumer. ↩

809. The legal discipline of immaterial goods is characterized by a marked functionalization, which makes it incompatible with readings that seek to isolate the holder from responsibilities toward the collectivity and users. By its very nature and mode of constitution, intellectual property is "even more functional, even more conditioned, even more socially responsible, and surely much less full than any other form of property" BARBOSA. This intrinsic social responsibility stems from the fact that the exclusive right is a normative concession aimed at balancing private interests of exploitation and public interests of access and progress. Therefore, the exercise of technical and legal power over the platform's infrastructure does not take place in a regulatory vacuum, and must answer to the social function that legitimates the very existence of the intellectual property right. ↩

810. The international regime of intellectual property reinforces the need for balance between the exclusive rights of holders and their obligations toward society, especially as regards the diffusion of knowledge and social welfare. Barbosa underlines that the TRIPs Agreement does not enshrine an absolutist paradigm, being based on a commitment to balance between the promotion of innovation and the diffusion of [illegible] as to contribute to social and economic welfare and to the balance of [illegible]gations" BARBOSA. This global parameter of reciprocity and responsibility confirms that the pr[illegible]

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exercise of power resulting in disproportionate harm to the legitimate enjoyment of end recipients, justifying the application of limits and controls aimed at preserving the functional integrity of the immaterial objects consumed. ↩

811. The social function does not constitute an external or exceptional restriction imposed on the intellectual property right, but an intrinsic condition of the legitimacy of its exercise. Every subjective right, in the contemporary legal order, is born and subsists under the aegis of this ordering principle. Ascensão is emphatic in maintaining that it is "absurd to conceive of the intellectual right as a right whose holder could exercise it as he saw fit", noting that intellectual property is born subject to the principle of the social function, "like all rights" ASCENSÃO. This premise sets aside the view of IP as an enclave of private sovereignty immune to controls; on the contrary, the title of exclusivity is justified only insofar as its exercise remains compatible with social values and with the protection of others' interests equally protected by the legal system, such as the consumer's trust and the integrity of enjoyment. ↩

812. The regimes of appropriation of the immaterial are limited from the origin and, for that very reason, fully compatible with external conditionings of social interest. The intellectual exclusive right does not present itself as a natural domain prior to the system, but as an exceptional technique of legal organization. Ascensão is categorical in asserting that intellectual right constitutes, in itself, "an exception to the general freedom to use ideas", which is why its admission must be sparing and always guided by consideration of the collective interest ASCENSÃO. It follows that the limits on the exclusive right are not external anomalies, but a normal part of its own conformation. The author describes these restrictions as "the negation of the negation", because the exclusive right itself already represents an initial restriction on common freedom; for that reason, such limits "are, for that reason, as normal as any other rules" and "are not in themselves exceptional" ASCENSÃO. The legally adequate balance, then, lies not in shielding exclusivity, but in making it compatible with the need to keep unobstructed "the channels of information, of competition, of culture", that is, "the paths of communication and social dialogue" ASCENSÃO. ↩

813. The social function of the contract and of property acts as a vector of rebalancing in consumer relationships, preventing the ownership of exclusive rights from being turned into a tool of oppression or of hollowing out the consumer's position. In contexts of strong asymmetry, the Law uses the social function to limit the arbitrariness of whoever holds the drafting power and technical control of the object. Marques associates this principle with the pursuit of contractual justice and balance, asserting that the social function of the contract imposes limits on freedom of contract in favor of the social interest, protecting trust and objective good faith

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plied to the semiotic governance of IOCs, this guideline requires that exercise of intellectu

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promised enjoyment nor the prote

exclusivity depends on its compatibility with the social and distributive purpose of the consumer contract. ↩

814. The exercise of intellectual property in consumer platforms must be bounded by the social function as a limit on the private power to direct the relationship. In the consumer market, the supplier that holds technological and legal control over the immaterial object exercises a position of predominance that demands normative containment to prevent abuses. Miragem observes that the vulnerability of the consumer justifies the application of norms limiting private power, founded on the social function and on good faith, to prevent factual superiority from turning into the suppression of rights MIRAGEM. In this sense, the social function of IP in IOC platforms imposes duties of clarity, verifiability and maintenance of functional utility, making unlawful the use of technical exclusivity to camouflage planned obsolescence, lower the quality of performance without justification or block the auditability of contractual performance. ↩

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The stabilization of the legal regime of the Immaterial Object of Consumption allows a further movement. It is no longer a matter of justifying its normative existence, but of testing its capacity for incidence in ecosystems other than the one in which its formulation was originally densified. The legally relevant point does not lie in asserting that every continuous digital provision is subject to the same framing, nor in expanding the concept on the mere ground that economic life has been digitized. What matters is to verify in which functional contexts certain recurring arrangements of private governance, operative opacity and ordinary mutability reorganize, in a structurally similar way, the conditions of access, permanence, intelligibility and contestation of enjoyment, producing an environment apt to receive the same regime of control.

The typology mobilized here is neither sectoral nor merely technological. Its axis is functional and structural, in an analytical key and without claim to exhaustiveness. It does not serve, for example, to dwell on classical strict functional IOCs[815], such as digital tools for editing images, audio or video, whose qualification tends to be more evident when the contracted utility is organized as an enjoyment bundle sustained over time, dependent on account, access, updatable functionalities, libraries, files and continuous modulation by the platform. It seeks, rather, to recognize typical models of incidence from the recurrence of mechanisms that, although they appear in diverse markets, perform legally comparable functions in the organization of the consumption experience.

The test, therefore, is not satisfied with superficial affinities. It requires showing that categories such as semiotic vulnerability, open auditability, functional value and inclusive teleology remain operable when moved to other platform environments, retaining the aptitude t

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organization of evidence and the determination of legal consequences. Without this, the concept would degrade into a classificatory metaphor. The operation that follows is, thus, expansive without being inflationary. The underlying question is not how many environments can be nominally drawn into the orbit of the IOC, but in which contexts the combination of continuous supply, private governance and structural mutability produces a specific form of legally protectable enjoyment, whose discipline can no longer be adequately resolved by the traditional categories of the one-off circulation of goods and services.

The analysis then turns to typical models of continuous digital supply and platform governance, with special attention to contemporary ecosystems in which opacity, mutability and private direction of the experience are ordinary conditions of the provision. Its aim is to make visible the recurrence of structural forms of organization of continuous immaterial consumption and to verify to what extent the regime already formulated retains, in these environments, its force of qualification, evidence and remedy.

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815. Here, classical strict functional IOCs means the immaterial objects of consumption whose main utility presents itself in a more directly operational way, such as programs, accounts, libraries, files, tools and digital functionalities exploited under continuous provision. Their identification as IOCs stems from the very organization of the supply as an enjoyment bundle sustained over time, subject to access, updating, interoperability, functional preservation and unilateral modulation by the supplier. Thus, the removal or relevant degradation of an essential functionality in editing software, the unjustified restriction of access to an account that concentrates files and libraries, or the substantial alteration of the conditions of use of contracted tools may affect the very object enjoyed, and not merely an accessory convenience of the provision. The reference to such IOCs, at this point, serves only to distinguish them from the less intuitive models examined in the typology, in which the incidence of the IOC depends on recognizing structural functions of governance, intermediation, visibility, reputation, productivity or trust. ↩

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The passage from the regime of the Immaterial Object of Consumption to its incidence in different families of platform requires an operative grid capable of preserving dogmatic unity in distinct contexts. When continuous immaterial consumption is organized by private architectures of access, visibility, permanence, curation and ordinary mutation, the conflict cannot be resolved by the appearance of the sector nor by the degree of social familiarity with the technology involved. It is necessary to bring the case back to parameters dense enough to stabilize institutional expectations, guide the formation of evidence and allow consistent normative consequences.

This requirement stems from the very nature of the bond. In platform-governed ecosystems, enjoyment is not exhausted in a one-off act of delivery, nor can it be understood as a neutral reality on which only lateral contractual clauses bear. What is offered to the consumer is an experience legally shaped by continuous mechanisms of private organization, whose effects fall on access, intelligibility, equivalence, permanence and contestation. For this reason, the controllability of the regime does not depend on inventorying technologies or classifying markets, but on establishing criteria that make legible the power structure that modulates enjoyment. Without this mediation, application degrades into descriptive casuistry or impressionistic judgment, oscillating between uncritical fascination and generic aversion to technology.

The parameters synthesized at the end of the preceding dogmatic reconstruction then take on a properly operative function. They no longer present themselves as mere moments of theoretical elaboration, but as references applicable to the

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; of the conflict. Their usefulness lies in reducing dependence on the interpreter's subjective repertoires

digital litigation, to decide on the basis of vague impressions about innovation, technical complexity or business freedom. The digital condition, by itself, decides nothing. Nor does the sectoral label of the service. What decides, legally, is the way in which the environment organizes private power, redistributes capacities of understanding and contestation and produces relevant frictions on the consumption experience.

The application of these parameters is guided by a repeatable sequence. One starts from the predominant governance mechanism and the type of friction it produces. The central vulnerability triggered in the bond is identified. The standard of evidence compatible with the structure of the conflict is established. Finally, the possible dogmatic consequence under the IOC regime is indicated.

The sequence works as a controllability lock. Its function is to prevent both the decomposition of the conflict into isolated clauses, one-off events or contingent failures, as if the relationship could be understood from fragments detached from a structurally governed experience, and the replacement of legal analysis by a diffuse impression about technology, innovation or technical complexity, in which the interpreter oscillates between excessive deference and generic distrust without managing to convert the environment examined into normatively tractable facts. Both distortions result from the same error of perspective. They ignore that, in continuous digital services, enjoyment is not an external consequence of the contract, but a permanent space of private shaping of the experience.

The first task, therefore, consists in recognizing the presence of an immaterial object of consumption subject to continuous, reconfigurable or modulable provision. This recognition does not stem from the name of the service, the social image of the sector or the mere presence of a digital interface. It stems from the legally relevant way in which access, permanence, intelligibility, equivalence and contestation are organized throughout enjoyment. Once this regime is identified, it becomes possible to qualify semiotic vulnerability not as a subjective attribute of the user nor as an imprecise environmental label, but as a mechanism of power bearing on the bond. It [illegible]hat makes it possible to reorganize duties and unlawful acts [illegible]al adequacy, adver

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the environment, without reducing the question to individual cognitive insufficiency or to a moral defect of technology.

On this basis, the legitimacy filters built on the dogmatic plane come into operation, with open auditability, functional value equivalence and abusive teleology at their center. These filters make it possible to distinguish legitimate modulations of provision from changes that structurally degrade enjoyment, obscure the intelligibility of the bond or incorporate an exploitative orientation incompatible with the limits of the CDC and with the constitutional containment of private power by architecture. Their relevance lies in providing verifiable attribution criteria, capable of organizing decisional reasoning without requiring exhaustive technical mastery of the ecosystem by the judge. This is not a matter of freezing innovation, nor of requiring absolute transparency about all of the supplier's internal processes. It is a matter of imposing sufficient parameters of institutional translation so that governance, mutability and friction can be brought back to discernible duties, unlawful acts, evidentiary burdens and remedies.

The requirement, consequently, is not the exhaustive observation of all contemporary digital markets, but the demonstration that the regime retains a capacity for controllable incidence when confronted with diverse arrangements of continuous supply by platform. What one seeks to verify is whether these parameters manage to produce legal qualification, organize evidence and guide normative consequence in distinct environments, without losing precision and without depending on intuitive impressions about the sector examined. Therein lies their relevance and also their pertinence. They do not have the power to replace the complexity of the real, but they prevent this complexity from being used as an alibi for irresponsibility over architecture.

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The dogmatic stabilization of the Immaterial Object of Consumption requires a further step of condensation for application. It is not enough for the previously constructed parameters to be conceptually consistent. They must be able to circulate in a sufficiently dense, precise and citable form, capable of sustaining legal argument in diverse institutional settings. Whenever a dogmatic construction seeks to guide pleadings, decisions, legal opinions, administrative filings and protection routines, it must offer operable language without sacrificing theoretical density or turning into an empty formula. It is at this point that the parameters take the form of operational statements, which do not replace legal reasoning with ready-made formulas, but keep the incidence of the IOC from depending, in each new conflict, on an exhaustive return to the reconstructive itinerary that grounded its elaboration.

The statements should not be read as a horizontal inventory of concepts. Their function is to organize a graded decision sequence, in which each parameter prepares the incidence of the next one and narrows the range of interpretive variation of the following step. The analysis starts from the qualification of the object and of the enjoyment regime, without which the rest of the analysis falls apart. Next, semiotic vulnerability comes into play as a mechanism of governance of meaning and of the intelligibility of the bond. Only then do the duties of information and advertising become legible in a dogmatically useful way, understood as structural forms of organizing expectation, choice and contestation. From this core, the standards that structure the institutional controllability of the conflict come into play. Open auditability, functional value equivalence, abusive teleology and the rational distribution of evidentiary burdens operate as criteria of verification, containment

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on the one hand, the limit of private exclusivity in the face of consumer-law protection and, on the other, the legally adequate form of response to the conflict.

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CONCEPTS IN THIS SECTION

Governed enjoyment bundle Immaterial Object of Consumption (IOC)

The application of the regime of the Immaterial Object of Consumption depends, before anything else, on the correct qualification of what is offered to the consumer. This qualification cannot be resolved by clinging to the formal appearance of the relationship, nor by repeating the traditional categories with which the market describes its own activity. In platform ecosystems, the controversy is not adequately organized around the rigid opposition between product and service, as if it were necessary to locate, on one side, a static thing and, on the other, an instrumental activity performed from outside. The legally relevant fact lies elsewhere. What matters is to recognize situations in which the utility economically enjoyed depends structurally on an environment administered, modulated and changeable by private governance, in such a way that the consumed object only remains accessible, intelligible and functionally usable while certain conditions of infrastructure, curation, internal rule and enforcement persist.

In these cases, the qualification as an Immaterial Object of Consumption operates as the entry key to the legal regime. It is not a neutral terminological description, but a qualification with a precise dogmatic function. It shifts the focus from the civil-law ontology of the good to the continuous regime of maintenance, provision and modulation of enjoyment. What comes to matter is not the search for a stable support, autonomously inspectable and graspable outside the environment of

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dentification of a bundle of immaterial utilities that is only

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does not appear as an accidental effect of a formally concluded contract, but as the material core of the consumer relationship.

The change of perspective is necessary because it prevents the analysis from being captured by a reifying grammar, ill-suited to objects whose use value depends less on their nominal existence than on the concrete conditions of permanence, integration and intelligibility in the ecosystem that hosts them. The consumer, in these relationships, does not enjoy a presumably stable good whose content can be isolated from the architecture that sustains it. What the consumer enjoys, rather, is a use experience continuously conditioned by technical infrastructure, access curation, update systems, visibility criteria, interaction rules and private enforcement mechanisms. In such contexts, formal ownership, a use license or the mere nominal availability of the object do not exhaust the legal problem. The central point becomes determining the conditions under which enjoyment remains possible, comprehensible and functionally preserved over time.

The consequence of this qualification is relevant on two planes. On the first, it prevents legal control from being neutralized by the supplier's descriptive strategies, especially by the claim that there is only the provision of a service or a mere content license, as if these formulas sufficed to naturalize the precariousness of the relationship and set aside the protective regime that bears on enjoyment. On the second, it redefines the axis along which the CDC is read. Instead of operating primarily from the contract as a formal statement, the discipline comes to be structured around enjoyment as a governed relationship. This does not mean denying the relevance of the contract, but refusing its explanatory sufficiency in environments in which the economic content of the relationship is realized continuously by mechanisms that go far beyond the contractual text.

Under this key, the qualification of the IOC as an immaterial product does not require denying the performance dimension of the relationship. On the contrary, it requires recognizing it in its contemporary form. What is asserted is that, whenever the consumed utility presents itself as a position of enjoyment sustained by governance, there will be an immaterial product in a legally relevant sense for the application of A

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performance does not disappear, but appears as the mode of sustaining, updating and shaping the object of consumption itself. For this reason, the old question of whether the case involves a product or a service, taken in an exclusionary key, loses much of its analytical usefulness. The problem becomes the structure of supply and the way it organizes, preserves or degrades the acquired experience.

This parameter thus performs the function of a trigger for the others. Without the correct qualification of the object as governed immaterial enjoyment, the subsequent parameters tend to lose adherence, because auditability, functional equivalence, abusive teleology and restoration remedies presuppose precisely the existence of a relationship in which the consumed utility depends on the continuous administration of the environment. It is this initial qualification that makes it possible to understand why alterations of rule, of access, of visibility, of integration or of performance are not mere peripheral accidents of a service external to the object, but potentially central interferences with the very experience that entered the user's sphere of consumption.

The criterion, therefore, is neither the materiality of the support nor the nomenclature employed by the supplier, but the structural dependence of enjoyment on a governed environment. Whenever this dependence proves constitutive of the acquired utility, the relationship must be read as a case of an Immaterial Object of Consumption, with all the dogmatic consequences deriving from it. This makes it possible to abandon the false security of watertight classifications and to recognize that, in platform economies, the core of the conflict lies less in the possession of a good or in the isolated performance of a service than in the legal discipline of an enjoyment maintained, modulated and potentially made precarious by private architecture. It is on this plane that the CDC regains its explanatory and corrective force.

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CONCEPTS IN THIS SECTION

Semiotic vulnerability

The vulnerability relevant to the application of the regime of the Immaterial Object of Consumption cannot be understood as a generic attribute of the digital, nor be reduced to economic hyposufficiency or to the consumer's lesser individual ability to understand technically complex environments. This reading is insufficient because it shifts the problem onto the person of the user and obscures the power structure that shapes the relationship. What is decisive is to recognize that, in platform-governed ecosystems, expectation, consent, perception of value, perception of risk and the possibility of contestation depend on signs, interfaces, informational flows and experience trails controlled by the supplier itself. Vulnerability, in this context, emerges as a structural effect of the way the environment organizes meaning.

That is why the vulnerability relevant here must be qualified as semiotic vulnerability. The term does not designate naivety, credulity or cultural deficiency of the consumer. It designates a mechanism of power inscribed in the architecture of supply, through which the supplier administers the modes of presentation of the object, the criteria of visibility of relevant information, the routes of comprehension of the experience, the perceived equivalences and the practical possibilities of resistance or reaction. Instead of operating only on conscious and one-off choices, this form of power bears on the very intelligibility of the relationship, conditioning how the object is perceived, how its promise is decoded and how its later alteration ecognized as legally relevant.

This qualification is important because it prevents the analysis from falling into moralism about the consumer's conduct. It is not a matter of asking whether the user was sufficiently attentive, distrustful or technically informed. Nor is it a matter of presupposing absolute incapacity in the face of the digital. The question is objective. Whenever the consumption experience is mediated by signs and interfaces whose design, hierarchy, salience and mutability are controlled by the supplier, there will be a field of semiotic asymmetry potentially relevant to the Law. The consumer depends, in these cases, on an environment whose vocabulary, rhythm, emphases and criteria of legibility are not neutral. They are produced, selected and reorganized by whoever holds the power of governance of the ecosystem.

What is distinctive about this mechanism is that the asymmetry of meaning tends to be accompanied by an asymmetry of evidence. Whoever controls the way the object is made intelligible frequently also controls the records by which that intelligibility can be reconstructed in case of conflict. Logs, interface histories, screen versions, curation criteria, alteration records, visibility parameters and decision traces remain under the supplier's control. The result is a double concentration of power. On one side, the capacity to shape the ordinary reading of enjoyment is concentrated. On the other, the capacity to narrate retrospectively, in institutionally acceptable terms, what occurred in the relationship is concentrated. In environments of this nature, semiotic vulnerability is not an accidental layer of the relationship. It is a recurring part of the way it operates.

This finding has a relevant dogmatic consequence. Semiotic vulnerability does not operate only as a sociological description of the environment, but as a category of attribution and control. Its usefulness lies in tracing duties, burdens and legal limits back to the concrete structure of the governance of meaning. It makes it possible to understand why the duty to inform, in these contexts, is not satisfied by textual volume; why advertising must be read as management of expectation and not only as a promotional statement; why evidence cannot be organized while ignoring the private concentration of records; and why the very mutability of the environment [illegible]gly minor alterations into legally relevant forms of capture, [illegible]ement of enjoyment.

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The parameter also has a delimiting function. It prevents every difficulty experienced in a digital environment from being automatically converted into legally qualified vulnerability. It is not enough that the case involves an interface, an algorithm or an online environment. It is necessary that the governance of meaning act structurally on the comprehension, comparability, predictability or contestation of enjoyment. What is controlled, therefore, is not the mere existence of technological mediation, but the configuration of an arrangement in which signs, paths and records are asymmetrically organized by whoever also holds the power of alteration, sanction or modulation of the relationship. Semiotic vulnerability gains legal relevance precisely when it becomes an objective condition of the consumer relationship and interferes with the institutional legibility of the conflict.

Read this way, the category rules out two equally inadequate reductionisms. The first reduces vulnerability to informational poverty in a quantitative sense, as if it sufficed to measure how much the consumer knew or failed to know. The second dissolves it into a cultural abstraction about the "digital society", losing sight of the concrete mechanisms by which the relationship is organized. The parameter proposed here refuses both. Semiotic vulnerability is relational, structural and functional. Relational, because it arises from the position the parties occupy in the production and administration of meaning. Structural, because it stems from the design of the environment and not only from isolated episodes. Functional, because it only acquires dogmatic relevance when it interferes with the formation of expectation, the reading of utility, the assessment of risk or the consumer's possibility of institutional reaction.

With this formulation, the application of the IOC regime keeps its focus on the contemporary exercise of private power in consumption. The center of the analysis is no longer a supposed personal insufficiency of the user but the governance of meaning as a technology for organizing enjoyment. This avoids both the romanticization of consumer autonomy in structurally asymmetric environments and the abstract infantilization of the consumer's legal position. What is asserted is [illegible] atforms that control signs, flows, records and criteria of legibility,

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[illegible] semiotic form because it is through it that private power administers perception, predictability

mechanism is a condition for legal protection to bear on the real structure of the relationship, and not on moral caricatures of its participants.

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In platform ecosystems, the duty to inform cannot be understood in merely quantitative terms. The mere accumulation of texts, *links*, notices, policies, terms and explanatory windows does not, by itself, satisfy the requirement of adequate information. In many cases, this accumulation works precisely in the opposite direction, producing an environment of merely apparent transparency, in which the proliferation of statements takes the place of the legibility of what actually matters for deciding, adhering, remaining or contesting. Informational inadequacy, in this context, does not necessarily stem from the material absence of information. It may result from the way information is organized, fragmented, hierarchized, distributed over time and made accessible under conditions that prevent its practical usefulness.

Compliance with the duty to inform cannot be reduced to a bureaucratic logic of textual deposit. To inform is not merely to make content available. To inform, in a legally relevant sense, is to make intelligible the essential elements of enjoyment at the moment the consumer's decision is formed and, at the same time, to preserve minimal conditions for the later reconstruction of what was promised, what was shown and what was altered. Adequate information, therefore, is not measured by the volume of what was published, but by its aptitude to guide conduct and allow institutional verification. Where excess replaces clarity, noise replaces comprehension and apparent abundance conceals the essential, the duty remains violated.

The transformation of this duty on platforms is particularly important because the environment of continuous consumption tends to operate through multiple communicational layers. The consumer does not encounter only a centralized and stable contractual text. They face successive interface flows, scattered notices, help centers, versioned policies, partial explanations, promotional communications, contextual notificati

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informational field without offering a material synthesis of what changed. In this architecture, opacity may be produced not by outright omission, but by the strategic distribution of information along discontinuous trails of low salience or difficult reconstruction. What presents itself as communicational diligence may, in truth, function as a technique of obscuring.

Informational inadequacy may thus take the form of excess, dispersion and flow architecture. Excess, when textual overload makes it impracticable to distinguish the essential from the accessory. Dispersion, when the relevant elements of the relationship are scattered across multiple documents, screens and paths without sufficient integration. Flow architecture, when the informational experience is designed to enhance the attractive, simplify the favorable and push the onerous, the contingent or the restrictive into zones of low visibility, lesser salience or improbable reading. In these cases, the violation of the duty cannot be adequately described as a simple lack of information. It is functional opacity produced by design, that is, a specific form of informational non-performance in which the appearance of openness replaces the actual legibility of the regime of enjoyment.

This parameter is particularly useful because it shifts the discussion from the abstract existence of information to its usefulness for decision and its institutional verifiability. The legally relevant question is no longer whether a given piece of data was somewhere in the supplier's documentary ecosystem. It becomes whether that data was made accessible, comprehensible and relevant at the moment it could influence the legitimate formation of expectation or the consumer's reaction. Likewise, in case of later controversy, what matters is whether the informational arrangement preserves minimal trails that make it possible to reconstruct the link between offer, presentation of the environment, modulation of enjoyment and alteration of the content of the relationship. Without this possibility of reconstruction, information fails not only to guide choice, but also to allow institutional control of the conflict itself.

The centrality of verifiable adequacy also prevents the supplier's standard defense claim that “everything was in the contract”. This formula confuses [illegible] h material compli[illegible]

informational complexity, the contract may even contain a nominal reference to the disputed risk, alteration or limitation, and still fail to inform adequately if the organization of the communicational whole produces noise, minimizes the impact of the relevant data or makes their practical connection with the consumer's decision unfeasible. The duty to inform does not protect only against direct factual lies. It also protects against the strategic displacement of what is legally relevant to regions of low intelligibility.

This formulation carries an important consequence for immaterial objects of consumption of high cognitive complexity, including those in which the very utility of the object involves guidance, filtering, prioritization or informational support. In these contexts, breach of the duty may occur without any literal falsehood and without any absolute silence. It suffices that the communicational architecture replace comprehension with an impression of completeness, or that textual delivery function as a misleading substitute for legibility. The problem then ceases to be the presence or absence of isolated data and comes to lie in the relation between promise, mode of presentation, real conditions of use and the institutional possibility of auditing the informational trajectory of the relationship.

The parameter, therefore, demands a material reading of the duty to inform. Informational adequacy must be measured by the capacity of the communicational arrangement to make visible and comprehensible the elements that relevantly condition the formation of expectation, the preservation of enjoyment and the possibility of contestation. Where there is excess without guidance, abundance without hierarchy, documentation without legibility or transparency without reconstructability, there will be no true performance of the duty. There will be, rather, a sophisticated form of functional opacity, incompatible with the consumer-law discipline of an environment in which enjoyment depends on continuous governance and in which private power is also exercised through the administration of what can be known, perceived and proven.

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CONCEPTS IN THIS SECTION

Hypercuratorial anticipation

In ecosystems in which enjoyment is preceded, prepared and guided by continuous cycles of anticipation, advertising and offer cannot be treated as an external, ornamental or legally neutral layer of consumption. In many immaterial objects of consumption, what is acquired is not only a statically described functional utility, but an experience framed in advance by signs, promises, narratives of distinction, projections of value and expectations administered by the supplier itself. The offer, in these cases, is not limited to the final purchase statement. It is built progressively through an economy of signals that precedes enjoyment, organizes its horizon of meaning and conditions the way the consumer interprets what is being acquired.

This particularity demands a material reading of advertising. Teasers, showcases, promotional events, announcement cycles, previews, countdowns, suggestions of rarity, insinuated equivalences, promises of prestige, belonging or performance and narrative models of scarcity do not operate, in these environments, as mere accessory persuasion. They make up the offer program insofar as they take part in the formation of legitimate expectation and in the determination of the value attributed to the object. What is presented to the consumer is not merely a piece of content or an isolated feature, but an experience of enjoyment shaped in advance by a carefully curated regime of signs. For this reason, the legal analysis of the offer cannot remain restricted to the most immediate literal statement, as if the relevant promise were

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This perspective makes it possible to recognize forms of misleadingness that cannot be captured solely by the classical logic of outright falsehood. In immaterial objects of consumption, inducement into error may result from constructed ambiguity, from strategically distributed relevant omission or from a mismatch between the overall meaning of the promise and the real conditions of enjoyment under administered mutability. Advertising may suggest stability where there is structural precariousness, equivalence where there is relevant asymmetry, rarity where there is programmed artificiality, freedom of use where there is asymmetric reversibility, continuity where there is intense mutability. In these cases, the nonconformity lies not only in an isolated factual lie, but in the management of meaning by which the supplier produces a favorable reading of the object and shifts the cognitive costs of actual comprehension onto the consumer.

Hypercuratorial anticipation is thus part of the very legal economy of the offer. When the supplier administers cycles of expectation, projects models of value and structures the visibility of what will be perceived as central or secondary in the acquisition, it is not merely announcing something that will exist later. It is taking part in the very shaping of the economically enjoyed object. This becomes even more evident in environments in which the utility consumed has a relevant symbolic, relational or reputational dimension. In such cases, use value and meaning value intertwine. The consumer acquires not only access or functionality, but also a place in a network of distinction, recognition, belonging or identity projection modeled in advance by the supplier's communication. Advertising, in this context, is no longer a mere external discourse about the object and becomes a material part of its regime of enjoyment.

The dogmatic consequence is clear. Control of the offer must bear on what was promised as value and as function, on what was concealed as cost, limitation or condition of precariousness, and on the correspondence between this semiotic frame and the real enjoyment made available to the consumer. This requires understanding advertising as controllable management of meaning. It is not a matter of denying the [illegible] proper to economic activity, but of recognizing that, in platforms, persuasion may turn into a technique of structural shaping of expectation and, for that reason, must

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regime. Whenever promotional communication takes part in determining what the consumer legitimately understands they are acquiring, it is incorporated into the normative field of the offer and becomes susceptible to control for misleadingness, ambiguity or relevant omission.

This parameter also prevents the examination of advertising from being reduced to the isolated reading of sentences or individual pieces. The legally relevant promise is not always concentrated in a single statement. It frequently emerges from the articulation between multiple elements of the communicational environment, some explicit, others insinuated, still others merely suggested by salience, timing, symbolic association or strategic repetition. Control must, for this reason, capture the overall regime of signification produced by the supplier. This requirement is particularly important in immaterial objects of consumption whose enjoyment depends on visibility, reputation, collective recognition or insertion in an ecosystem of symbolic value. In them, the mismatch between promise and delivery may not appear as an evident technical defect, but as a relevant frustration of the symbolic or relational position presented as part of the core of the acquisition.

For this reason too, advertising takes on a function of semiotic hygiene of the offer. The expression is important because it shifts the debate from the simplistic idea of advertising as an inevitably exaggerated adornment to a more demanding understanding of the consumption environment. When communication is designed to produce ambiguity, artificially enhance the favorable, obscure the onerous or push the essential into zones of low visibility, it ceases to be a mere persuasive frame and becomes part of the supply program itself. In this condition, it may take part not only in the formation of inadequate expectation, but in the very abusive teleology of the ecosystem, above all when it is combined with later mechanisms of mutability, artificial scarcity, manufactured urgency or deliberate opacity.

The parameter, therefore, requires that offer and advertising be read in light of their concrete function in the governance of enjoyment. What matters is not only what was formally said, but what was legally promised through the management of signs,

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iences. Where prior communication relevantly shapes the reading of the object, forms part of the

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consumer's adhesion, there will be an offer in a materially controllable sense. And where this management of meaning operates to produce relevant ambiguity, shift cognitive costs, conceal precariousness or artificially inflate perceived utility, there will be sufficient grounds for the application of the protective regime, not as abstract repression of advertising, but as control of the promise in environments of governed enjoyment.

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CONCEPTS IN THIS SECTION

Open auditability

The controllability of the Immaterial Object of Consumption requires that relevant alterations of the service, of access, of the conditions of enjoyment and of the very objects incorporated into the ecosystem can be institutionally reconstructed in case of controversy. This requirement does not stem from technical curiosity about the internal workings of the platform, nor from a maximalist claim to full transparency. It stems from the elementary need to prevent the structural opacity of the environment from operating as a mechanism of practical immunization against legal control. Whenever enjoyment depends on continuous private governance, the discipline of the relationship presupposes some degree of verifiable intelligibility about what was altered, when, for what reasons it was justified and what relevant effects it produced on the consumer's experience.

It is in this context that open auditability is asserted as a parameter of legitimacy. The expression does not designate unrestricted opening of source code, full exposure of the technological architecture or a generalized waiver of business secrets. Its core is more precise and institutionally more defensible. Open auditability means the existence of minimal conditions of verifiability about relevant aspects of supply, so that protection bodies, the Judiciary, experts and, to a certain extent, consumers themselves can reconstruct the relation between promise, alteration, sanction, functional impact and the justification presented by the supplier. What is demanded [illegible] ıole system bare, but to make controllable, at a sufficient level, [illegible] erferes with enjoyn[illegible]

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This parameter breaks down a false dichotomy that often contaminates the debate. On one side, it is argued that any requirement of transparency would compromise industrial secrecy, innovation or business autonomy. On the other, it is assumed that control would only be effective if the platform's internal workings were fully opened. Both positions are bad. The first turns technical complexity into an alibi for irresponsibility. The second confuses legal protection with total invasion of the productive environment. Open auditability rejects this binary theater. It starts from the premise that exclusivity, complexity and secrecy can coexist with minimal duties of institutional intelligibility, provided these bear on the elements relevant to understanding the conflict and to reconstructing the disputed supply.

The requirement is therefore selective and functional. What must be auditable is not everything, but what matters to make the controversy decidable. Relevant alterations of access rules, reconfigurations with functional impact, version changes that affect utility or performance, sanctions bearing on permanence or visibility, ordinary modulations of the environment and decision criteria with material repercussions on enjoyment cannot remain in a zone of undemonstrability shielded by the mere claim of technicality. In these cases, the platform must be able to preserve and exhibit trails, records, minimal logs, operational justifications and contextualizing elements sufficient to allow bounded institutional verification. It is not a matter of demanding a self-congratulatory narrative from the supplier, but of imposing objective conditions for control.

This point is especially important because, in platform-governed ecosystems, opacity does not function only as a technical characteristic of the environment. It functions as an asymmetric distribution of power within the relationship. Whoever controls the criteria of alteration, the records of what was done, the memory of the system and the language in which these events can be described also concentrates the capacity to define what will be considered demonstrable. Without minimal auditability, the conflict tends to be degraded into an unequal confrontation between the consumer's subjective experience and a formally self-justified corporate version. Private [illegible]ses to be only a power to modulate enjoyment and becomes also [illegible]e institutional conditions of evidence. It is precisely against this practical immunity that the parameter

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Open auditability also performs a function of containing litigation. Paradoxically, contrary to what is often claimed, the minimum of institutional verifiability does not indefinitely expand technical judicialization. It rationalizes it. When there are preserved trails, identifiable relevant versions, minimally statable reasons for alteration and basic elements for reconstructing the conflict, the judicial discussion is prevented from turning into an endless war of opaque technicalities, in which each side speaks a different language and the decision ends up handed over to intuitive deference to the more organized party. The parameter does not seek to hypercomplexify the proceedings. It seeks to create sufficient grounding for the controversy to be delimited and for expert examinations, document production and orders for clarification to bear on knowable objects, and not on self-immune corporate abstractions.

The intelligibility required by this parameter does not coincide with absolute explainability. Law does not need to understand, in their microscopic totality, all the internal flows of the system in order to exercise legitimate control over the consumer relationship. What it needs is sufficient intelligibility to identify the occurrence of a relevant alteration, relate it to the promised enjoyment, verify whether there was a justification compatible with the legal regime and ascertain whether the sanction, the change or the modulation respected minimal standards of predictability, proportionality and contestability. The parameter is calibrated precisely to make control possible without demanding technical omniscience from the judge or disrupting the economic operation of the ecosystem. In governed environments, this is what separates legitimate complexity from obscurity turned into a technique of power. Not total transparency, but sufficient transparency. Not absolute revelation, but minimal verifiability. Not a sweeping search of the system, but refusal of the practical immunity produced by structural opacity.

This formulation has a relevant consequence for the application of the CDC in platform environments. Business secrecy, economic exclusivity and the complexity of the service cease to operate as absolute vetoes on control and become elements to be reconciled with duties of minimal verifiability. The platform remains the holder of its [illegible] its internal architecture, but can no longer invoke them to prevent entirely the institutional recon

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enjoyment in a legally relevant way. Structural opacity thus ceases to be a zone naturally immune to protection and becomes a legal problem that can be addressed through preservation orders, bounded document production, restricted expert examination, verifiable reasoning and other instruments compatible with the procedural and administrative rationality of the protective system.

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CONCEPTS IN THIS SECTION

Functional value equivalence

The legal legitimacy of mutability in platform ecosystems cannot be assessed on the basis of the mere nominal continuity of the object, nor by the simple finding that the digital environment, by its nature, admits ordinary updates, adjustments and reconfigurations. Mutability, by itself, is not unlawful. The problem begins when it ceases to operate as a legitimate form of maintaining, improving or adapting the supply and comes to degrade, empty or divert, to a relevant degree, the function that justified the acquisition and structured the legitimate expectation of enjoyment. It is at this point that functional value equivalence emerges as a central parameter of control. Its usefulness lies in providing a criterion capable of distinguishing change compatible with the continuity of the relationship from alteration that converts the plasticity of the environment into a technology of normalized loss.

Functional value equivalence cannot be reduced to maintaining technical performance in the strict sense, nor to the quantitative preservation of isolated attributes. Its content is more demanding. What matters is the substantial preservation of the role the object plays in the acquired experience, considering its concrete utility in the ecosystem, its relational place in the environment of use and, when legally relevant, its identity or symbolic density. In immaterial objects of consumption, functional value does not necessarily coincide with operational efficiency measurable by linear indicators. It is often also constituted by the position

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Legal control of mutability must not be held prisoner by an excessively formal or technicist logic. Relevant alterations may keep the name, general appearance or nominal existence of the object and still substantially compromise the enjoyment legitimately incorporated into the relationship. The permanence of the item, the functionality, the account, the access or the feature does not, by itself, neutralize the emptying of the experience if the concrete role of the object is degraded, diverted or made substantially different from the one that justified the acquisition. Functional equivalence works precisely against this kind of defense. It prevents the supplier from relying on apparent continuity to conceal a relevant loss of practical content.

From this perspective, legally legitimate mutability is that which substantially preserves the function of the object in the consumer's experience. This does not mean demanding perfect identity between the earlier and later versions, nor imposing a freeze on the service. Continuous digital environments presuppose evolution, adaptation and, in many cases, internal rebalancing. What the parameter rejects is not change in itself, but its use as an instrument to shift onto the consumer the cost of reconfigurations that destroy or significantly lower the acquired utility without compatible restoration. Equivalence, therefore, does not demand formal equality of attributes. It demands preservation of the functional role of the object in the ecosystem of enjoyment, so that the alteration does not become a technique for extracting or normalizing losses.

This formulation is especially suited to controlling ordinary reconfigurations presented as unavoidable technical routine. Nerfs, removals, reworks, migrations, rule changes, reordering of access, reconfiguration of interfaces and suppression of features are usually narrated as the natural evolution of the environment. In many cases, they may indeed be so. The parameter of functional equivalence is precisely what makes it possible to separate legitimate mutation from degrading mutation. The legally relevant question then ceases to be whether the change occurred within the supplier's general power to update. It becomes whether, after the alteration, the acquired experience remains substantially functionally equivalent to the one that legitimated the entry of the object into the user's sphere of consumption.

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This shift has an important dogmatic consequence. It means that the core of the conflict is resolved not by abstract reference to the business autonomy to manage the ecosystem, but by concretely assessing whether enjoyment has been preserved. The analysis must address the impact of the alteration on the role played by the object, on the relational performance of its utility, on its meaningful place in the environment and, when the case requires, on its identity or symbolic dimension. In some ecosystems, the value of the object lies not only in its instrumental efficacy, but also in its form of recognition, visibility, belonging or projection within the experience of use. In these cases, functional equivalence may also require preservation of the relational and symbolic density of enjoyment, provided this dimension forms, in an objectively recognizable way, the core of the acquisition.

The parameter thus prevents two opposite distortions. On one side, it sets aside the claim to freeze the environment in a fixed state, as if any mutation automatically constituted non-performance. On the other, it refuses the thesis that every alteration would be legitimated by the simple operational continuity of the system or by the mere nominal survival of the object. Between these extremes, functional equivalence offers an intermediate and institutionally more useful yardstick. It makes it possible to recognize that mutability is compatible with continuous supply, but only as long as it does not destroy the core of enjoyment that gave economic and legal meaning to the acquisition.

This yardstick also structures the legal response to the conflict. When equivalence is broken without adequate restoration, the alteration ceases to be read as ordinary evolution and comes to be treated as a relevant inadequacy of the supply regime. Room then opens for protection aimed not only at residual economic compensation, but at restoring enjoyment in functionally equivalent terms. That is precisely where the centrality of this parameter lies. It serves not only to identify unlawfulness. It also serves to guide remedies. By shifting the focus to the functional core of the acquired experience, it makes it possible to prioritize restoration, equivalent substitution, technical reversal when feasible or other forms of restoration that preserve the [illegible] of the relationship, instead of automatically reducing the injury to

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Functional value equivalence, therefore, constitutes the material core of the control of mutability in immaterial objects of consumption. Its function is to ensure that the plasticity of digital environments is not turned into a license to empty out, from within, what was economically incorporated into the consumer's experience. Where the alteration substantially preserves the function of the object, there will be legitimate mutability. Where the change relevantly degrades the functional, relational or symbolically constitutive role of enjoyment without compatible restoration, there will be legally controllable inadequacy. It is at this point that the IOC regime proves capable of treating mutation not as a brute fact of technology, but as conduct subject to limits, evidence and normative consequence.

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CONCEPTS IN THIS SECTION

Unlawful act of architecture Abusive teleology

The controllability of the Immaterial Object of Consumption requires recognizing that not all relevant abusiveness manifests itself in the classical form of an isolated clause, a singular event or a one-off failure of performance. In platform-governed ecosystems, there are cases in which exploitation does not stem from an episodic deviation of the system, but from the very operating program that organizes enjoyment. In these cases, the injury cannot be adequately grasped by decomposing the conflict into autonomous incidents, because it is precisely the coordination between multiple elements of the environment that makes its exploitative purpose knowable. When inducement, extraction and normalization of losses are stably incorporated into the design of the ecosystem, the problem ceases to be merely one of fragmentary non-performance and comes to constitute a teleological unlawful act of architecture.

Abusive teleology thus describes a situation in which the practical purpose of the supply arrangement departs from legally tolerable limits and comes to direct the environment toward the structural exploitation of vulnerability, toward the relevant obscuring of enjoyment or toward the recurring conversion of mutability into a technology of capture. It is not a matter of investigating the subjective psychological intention of business agents, nor of moralizing every form of monetization, persuasion or private governance. The focus lies on the functional purpose

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is not an inner will, but a recognizable

This formulation is important because it prevents two impoverishing reductions. The first consists in dispersing the conflict into apparently modest micro-events, each of which is insufficient, in isolation, to reveal the gravity of the pattern. The second consists in turning the critique of architecture into an abstract moral judgment against business activity, losing institutional traction. The parameter of abusive teleology avoids both extremes. It makes it possible to identify cases in which micro-frictions, micro-losses, micro-opacities, discreet shifts of information, asymmetric reversibilities, manufactured urgencies, artificial scarcities, elastic equivalences and selective regimes of difficulty operate in a coordinated manner, forming a program of extraction that, seen as a whole, becomes legally relevant. Taken in isolation, such elements may seem merely tolerable rough edges of the environment. Structurally articulated, they reveal a mode of governance oriented toward the ordinary exploitation of enjoyment.

The core of the parameter lies in treating architecture as conduct. As long as the design of the environment is perceived only as a neutral technical setting, it will remain outside the main field of legal attribution. Conversely, once it is recognized that architecture organizes access, visibility, timing, friction, irreversibility, contestation, salience and modulation of the experience, it becomes possible to understand it as the supplier's way of acting. The platform no longer appears only as the abstract holder of infrastructure or as the drafter of contractual documents. It appears as an agent that shapes, by design, the material conditions in which choice occurs, loss is normalized, reaction is hindered and extraction is stabilized. It is in this sense that the teleological unlawful act of architecture can be qualified as legally attributable conduct.

The category also prevents technical necessities from being accepted, automatically, as self-evident justifications for any arrangement of enjoyment. Technique, in environments of this nature, is not external to power. It is one of its privileged forms of exercise. For this reason, claims of efficiency, optimization, balance of the system, operational convenience or the need for updating are not enough, by themselves, to [illegible] Whenever the operation of the environment reveals a structure

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g vulnerability, obscuring the intelligibility of the relationship naturalizing functional degradation or

routine of the experience, the analysis must go beyond the rhetoric of technical necessity and inquire into the practical purpose of the arrangement. What matters is not only whether the system can be technically explained, but whether its configuration is legally compatible with good faith, transparency, balance and the protection of the enjoyment legitimately incorporated into the relationship.

Abusive teleology takes on special relevance when exploitation depends not on one major harmful act, but on the repetition of small pressures, small losses and small asymmetries that, accumulated, shape the normality of the environment. This is one of its most important marks. Many exploitative architectures do not produce a spectacular event-harm. They produce ordinary wear, diffuse loss, selective difficulty, progressive obscuring and silent reconfiguration of the experience. Law sometimes tends to underestimate these forms of injury because it was historically better trained to react to delimited events than to operating programs. The parameter proposed here corrects this deficiency by offering a language to capture abusiveness not as an accident, but as a structural vector of supply.

The dogmatic consequence of this is significant. Once abusive teleology is recognized, the legal response must not be limited to the later repair of individual episodes. What opens up is the possibility of protection aimed at correcting the operating regime itself. If the abusiveness lies in the program, it is not enough to treat its isolated effects. It becomes appropriate to consider injunctive relief, reconfiguration of flows, review of selective frictions, duties to give reasons, more symmetrical mechanisms of reversibility, adjustments of informational visibility and other measures capable of reaching architecture as the continuous source of the problem. The parameter, therefore, broadens the remedial horizon of the IOC regime, because it shifts the focus from the event-harm to the structure that produces and reproduces it.

This broadening, however, does not dissolve rigor. The attribution of abusive teleology cannot arise from vague discomfort with the business model or from intuitive criticism of the existence of monetization, engagement or curation. It ing an objectively recognizable functional purpose, revealed by the articulation between governance m

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pattern of opacity, the frictions produced and relevant effects on the consumer's practical autonomy and enjoyment. It is this requirement of a chain of reasoning that prevents the trivialization of the category and preserves its institutional usefulness. The parameter does not serve to turn every intense architecture into an unlawful act. It serves to identify when the intensity of design ceases to be merely organizational and comes to structure exploitation incompatible with the limits of the consumer relationship.

For this reason, abusive teleology functions as a closing category of the regime of controllability. Once the object has been qualified, the vulnerability identified, the duties of information and advertising assessed, auditability required and functional equivalence tested, it becomes possible to ask whether the environment as a whole reveals only legitimate governance or whether it already operates as a program of exploitation incorporated into enjoyment itself. When the answer is the latter, architecture ceases to be a backdrop and becomes an unlawful act. It is at this moment that Law ceases to look only at what the platform says or at what it does in isolated episodes, and begins to look at what it builds as a regime.

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The effective application of the regime of the Immaterial Object of Consumption depends on an evidentiary discipline compatible with the contemporary way supply is organized. In platform-governed ecosystems, the asymmetry falls not only on information in the material sense or on abstract economic capacity. It reaches the very terrain of the institutional narrability of the conflict. Whoever controls *logs*, histories, decision criteria, relevant versions, interface records, moderation flows, alteration parameters and traces of sanction controls, to a large extent, the conditions for legally reconstructing what occurred. Evidence, in this context, is not an element external to the relationship. It is part of the way the relationship is governed. For this reason, the structural opacity of the environment cannot be treated as a mere neutral fact of technology or as an evidentiary inconvenience to be borne entirely by the consumer.

This point shifts the discussion away from a procedural imaginary still excessively tied to the model of the observable event and the symmetrically accessible document. In many conflicts concerning immaterial objects of consumption, the disputed fact is born, transforms and remains within a technical infrastructure controlled by the supplier. The relevant alteration does not manifest itself as an easily graspable public occurrence. The sanction may be automated or partially automated. The reconfiguration of the object may occur without a sufficient public trail. The essential information may be distributed among internal systems, databases, version records and curation criteria inaccessible to the consumer. In these scenarios, demanding exhaustive evidence from the vulnerable party as if the conditions of production of the litigation were symmetrical means, in practice, rewarding private control of

That is why the preservation and disclosure of minimal records take on a central legal status here. Interface trails, histories of relevant versions, essential alteration logs, sanction records, minimal data on automated or assisted decisions, contextual elements of the modulation of enjoyment and other documentary layers indispensable to reconstructing the conflict cannot be understood as business liberality or as a procedural favor granted to the consumer. In environments of governed enjoyment, verifiability forms part of the very duty to shape the relationship legitimately. When the platform administers the experience and at the same time concentrates the traces needed to prove it, the preservation of these elements ceases to be a peripheral question of cooperation and comes to constitute a condition of institutional controllability.

The consequence of this is that a dynamic distribution of the burden of proof is admissible whenever the relevant evidence is structurally under the supplier's technical control. It is not a matter of dramatizing exceptions or of abolishing criteria of procedural rationality. It is a matter of recognizing that formal equality of burdens may operate, in these cases, as a mechanism of material inequality. If the consumer was placed in a scenario of impossible or disproportionately difficult proof because the architecture of the environment concentrates, conceals or volatilizes the relevant elements of the conflict, the evidentiary discipline must react to this asymmetry. Redistributing the burden does not represent anti-technical benevolence. It represents fitting the proceedings to the real design of the consumer relationship.

This parameter thereby avoids one of the most corrosive defenses of structural opacity, which is turning the consumer's lack of access into an absence of proof of the very right claimed. The formula “you did not prove it” becomes institutionally empty when one does not examine who controlled the conditions for producing, preserving and disclosing what was to be proven. In environments of this nature, the absence of evidence may be less an expression of the weakness of the claim than a result of the supplier's own governance arrangement. Law cannot accept that the platform should simultaneously administer enjoyment, the narrative of the event and the conditions of its verifiability, turning this triple concentration into a self-

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ural advantage.

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The evidentiary discipline proposed here is also important because it prevents standards such as open auditability and functional value equivalence from turning into mere conceptual rhetoric. Without a compatible evidentiary regime, these parameters would remain correct in theory, but ineffective in practice. It is not enough to assert that relevant alterations must be intelligible or that enjoyment must remain functionally equivalent. There must be instruments to demonstrate, contest and reconstruct the occurrence of modulations, losses, reconfigurations and sanctions. Evidence, therefore, is not a later and accessory stage of the reasoning. It is a means of efficacy of the regime itself. For this reason, its organization must be conceived from within the dogmatics of the IOC, and not as a secondary problem to be resolved only at the abstract procedural level.

The dynamic distribution of burdens must, in this context, respond to the concrete architecture of the case. The more intense the private concentration of records, the greater the requirement of preservation, delimited disclosure and verifiable justification. The more the reconstruction of the conflict depends on internal governance, the less reasonable it will be to demand from the consumer a detailed demonstration of facts whose documentary and technical support was never within their reach. This does not eliminate the need for plausibility, a chain of argument or delimitation of the disputed object. What it eliminates is the fiction of symmetry in environments whose very structure operates through the asymmetry of meaning and of evidence.

This parameter also has a preventive function. By recognizing that essential records form part of the controllability of the relationship, it encourages the institutional organization of minimal reconstruction trails, discouraging governance models based on the convenient volatilization of the system's memory or on selectively insufficient documentation. The platform that profits from the continuous administration of enjoyment cannot organize this administration in a way that makes unrecoverable, indeterminable or institutionally opaque what will later condition protection. The unjustified failure to preserve or disclose relevant records must not, for this reason, be [illegible] utral evidentiary inconvenience. It may authorize presumptions

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sumer and reinforce the attribution of inadequacy to the supply regime.

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At the dogmatic level, the result is clear. In environments of structural opacity, evidence must be read as an internal dimension of the governance of the immaterial object of consumption. The platform does not only supply, alter and sanction. It also conditions the ways in which these operations can be seen, narrated and verified. Recognizing this is a condition for the CDC to retain its efficacy in ecosystems of high technical complexity. Without this recognition, consumer protection runs the risk of remaining formally proclaimed but materially neutralized by architectures that concentrate power not only over enjoyment, but over the very possibility of proving that it was degraded, obscured or abusively governed.

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PARAMETERS WITH AN ENTRY IN THIS SECTION

Social function of intellectual property

Reconciling the regime of the Immaterial Object of Consumption with intellectual property rights requires dispelling, from the outset, a recurring confusion. The existence of legally protected exclusivity over content, signs, code, systems, digital assets or platform structures does not amount to an unrestricted legitimation of the way this exclusivity is exercised within the consumer relationship. The protection of intellectual property remains intact on its own plane, but this does not allow its invocation to function as a general clause of immunization against review of adequacy, transparency, loyalty, functional equivalence and protection of enjoyment. In IOC ecosystems, exclusivity explains the legal organization of the environment, but does not neutralize the limits that bear on the way it is exercised.

This point is central because the relationship between intellectual property and continuous digital consumption is usually contaminated by a false alternative. Either one asserts the almost sovereign intangibility of exclusivity, treating any consumer-law interference as an undue threat to the economic architecture of the ecosystem, or one imagines that consumer protection would require reducing intellectual property to a secondary obstacle, devoid of legitimacy of its own. Neither of these positions is adequate. The first turns exclusivity into an unlimited power to govern enjoyment. The second impoverishes the understanding of the environment itself, whose organization frequently depends, legitimately, on exclusive structures of creation, control and economic exploitation. The legal problem lies not in ne pole and the oth under Brazilian constitutional limits.

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From this standpoint, intellectual property must be read in light of the same constitutional rationality that shapes the exercise of property in general. Exclusivity is protected, but its exercise is not an absolute prerogative, detached from the social function, from social interest and from commitment to the constitutional objectives that subordinate private positions to an economic order guided by social justice, consumer protection and national development. This holds with particular force when intellectual property ceases to operate merely as an instrument for protecting creation or innovation and comes to structure environments of captive, continuous and governed enjoyment. In these contexts, exclusivity is not only a legal title over an asset. It is also an infrastructure of private power over access to, permanence in, modulation, updating and contestation of the consumer's experience. The holder of exclusivity consequently retains its economic and technical prerogatives, including the power to organize the ecosystem, protect its assets and preserve internal operating elements. What it does not retain is the possibility of invoking this position to rule out, a priori, review of the way supply is carried out.

Putting this reconciliation into operation runs through the filters already built into the regime. Open auditability is fully compatible with intellectual property because it does not demand full disclosure of trade secrets or total exposure of the technological architecture, but only minimal institutional intelligibility about whatever interferes with enjoyment in a legally relevant way. Functional value equivalence does not deny the prerogative to update, adapt or evolve the environment, but prevents this prerogative from being exercised as a license to hollow out, from within, the legitimately acquired experience. The reconciliation parameter also prevents the debate from being hijacked by an excessively proprietarian grammar, in which every controversy ends up being brought back to the question of who holds the asset or what the abstract extent of the contractual license granted to the user is. The relevant conflict often lies not in the direct violation of a proprietary or authorial position, but in the way exclusive ownership is instrumentalized to govern enjoyment, redistribute risks, concentrate the power of alteration and hinder contestation.

This does not mean that intellectual property is absorbed by the CDC, nor that its

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consumer-law logic. It means, rather, a systematic reading

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compatible with the Constitution. The

Intellectual property does not suspend the CDC. What is required is a coexistence governed by criteria of material harmonization, in which exclusivity and consumer protection are read as institutes that share the same constitutional space and, for that reason, cannot be interpreted as cancelling each other out. In ecosystems of governed enjoyment, this harmonization requires recognizing that the exercise of exclusivity becomes legally more intense, more structural and more consequential for the consumer's experience. Precisely for that reason, it also becomes more subject to review as to its effects.

The parameter, therefore, affirms a thesis that is simple in its formulation and severe in its consequences. Intellectual property protects the ecosystem, but does not absolve its governance. Where there is conflict between the concrete way exclusivity is exercised and the duties of loyalty, transparency, equivalence and restoration proper to the IOC regime, the solution must be sought through the functional reconciliation of the institutes, under the primacy of Brazilian constitutional limits and of the social function that shapes the legitimate use of proprietary positions. This is how exclusivity remains protected without turning into private sovereignty over the consumption experience.

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PARAMETERS WITH AN ENTRY IN THIS SECTION

Functional restoration and regime correction

The legal response to conflicts involving the Immaterial Object of Consumption cannot be organized around the traditional automatism of converting the injury into pecuniary compensation. This solution, although often necessary, frequently proves insufficient when what is at stake is not only the immediate economic loss, but the degradation, interruption or abusive reconfiguration of a continuous enjoyment that is governed and functionally situated within an ecosystem. In relationships of this nature, the mere later payment of a sum of money may leave the harmful mechanism untouched, preserve the architecture that produced the problem and normalize the repetition of the loss as an ordinary cost of the supply model. For this reason, the discipline of remedies must start from another premise. Priority protection, whenever technically and legally feasible, must seek the functional restoration of enjoyment and the correction of the regime that rendered it inadequate.

This primacy does not derive from an abstract preference for specific relief nor from a ritual attachment to the idea of restoration in natura. It derives from the very structure of the relationship. If the consumed utility presents itself as an immaterial experience maintained by continuous governance, the relevant injury tends to bear on access, continuity, integrity, equivalence, intelligibility, history, relational position or the consumer's meaningful insertion in the environment. In these cases, the automatic monetization of the conflict frequently fails to give back what was actually

ey may roughly compensate certain economic losses, but it does

ıe practical utility,

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symbolic dimension of enjoyment. Functional restoration takes on centrality because it corresponds more adequately to the nature of the legal interest affected.

This becomes even more evident in immaterial objects of consumption endowed with high identity, historical or reputational density. In such cases, the value of enjoyment is not limited to the acquisition cost of an item, an account or a feature. It may be linked to a trajectory of use, accumulated history, belonging to a community, recognition within the ecosystem, relational insertion and meaningful continuity of the experience. When these elements are affected, protection that simply sets a pecuniary sum runs the risk of treating as equivalent what, in practice, is not. Functional and symbolic restoration then becomes not only a more protective alternative, but a form more legally faithful to the content of the injury.

This parameter thus performs the function of closing the regime. Once the object is recognized, the vulnerability identified, the duties of information and advertising controlled, auditability required, functional equivalence measured, any abusive teleology ascertained and evidence organized in an environment of structural opacity, the decisive question arises as to what to do with the conflict. The answer cannot be neutral with regard to the architecture of the injury. When the problem stems from continuous, repeatable and structural governance, protection must also be conceived in a functional and structural key. This requires going beyond later compensation and considering remedies capable of restoring the experience, interrupting the reiteration of the harmful mechanism and correcting the mode of operation that made the injury ordinary.

Functional restoration, in this context, comprises a set of possible measures, calibrated according to the structure of the compromised enjoyment. It may involve maintenance or restoration of access, reversal or review of sanctions, preservation of history, reactivation of features, substitution by a functionally equivalent position, reversibility of versions when technically possible, procedural corrections of governance, duties of verifiable reasoning, intelligible mechanisms of contestation and other means apt to re-establish, substantially, the utility legitimately

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e relationship. The criterion is not the literal reproduction of the prior state at any cost, but the functio

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experience, at a level compatible with what the consumer had legitimately incorporated into their sphere of enjoyment.

This point is important because it prevents two undue reductions. The first is to treat all specific relief as impracticable merely because the environment is technically complex or continuously changing. Complexity is not the same as impossibility. The second is to assume that any restoration would be excessively intrusive upon business freedom. Here too the reasoning needs to be more sober. What is required is neither the freezing of the ecosystem nor the submission of every technical decision of the supplier to the individual will of the consumer. All that is required is that, in the face of a relevant injury to governed enjoyment, the legal response not automatically settle for residual monetization when there are reasonable means of restoring access, functionality, position of use or minimal conditions of intelligibility and contestation. In other words, the architecture of the environment cannot serve as an automatic excuse for downgrading remedies.

The primacy of functional restoration takes on even greater importance when the injury is architectural, repeatable and incorporated into the ordinary regime of supply. In these cases, merely compensatory individual protection tends to operate as a manageable cost of the business model, without altering the structure that produces the harm. The problem then ceases to be only the loss suffered by a specific consumer and comes to lie in the persistence of a harmful arrangement capable of reproducing the same inadequacy indefinitely. The parameter, for this reason, makes room for regime correction. This means admitting, when the case reveals a structural pattern of abusiveness, remedies aimed at the reconfiguration of flows, the imposition of procedural duties, the review of sanction mechanisms, the requirement of verifiable reasoning, the creation of intelligible channels of contestation and other measures apt to reach the continuous source of the problem.

This opening is particularly relevant because it reconnects individual protection to the collective and institutional dimension of the IOC regime. In many platform conflicts, the harmful experience of the individual consumer is only a localized [illegible] roader form of inadequate governance. Treating the case [illegible] ated event means

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and of the environment's capacity to produce the same injury serially. Regime correction, by contrast, makes it possible to treat the harm as architectural and not merely as an episode. This makes it possible to justify injunctive relief, structural measures, collective measures and even mechanisms of compulsory compliance compatible with open auditability and institutional control of enjoyment. The legal response then comes to act not only on the consequences of the model, but on its mode of operation.

Pecuniary compensation remains, of course, a legitimate and in many cases indispensable remedy. The parameter formulated here does not eliminate it. It merely returns it to a systematically more precise position. It takes on a residual or complementary nature whenever functional restoration is unfeasible, insufficient or incapable of fully covering the losses suffered. In these cases, monetary compensation continues to play an important role, whether to make good material losses or to recognize non-pecuniary damages when present. What is rejected is its transformation into an automatic and preferential response in every case, as if the injury to the IOC could always be adequately translated into a figure without regard for the structure of the compromised enjoyment.

The parameter, therefore, affirms a remedial orientation consistent with the whole preceding path. If the relationship is one of governed enjoyment, the remedy must aim at enjoyment. If the injury is structural, protection must reach the structure. If the loss is functional, the priority response must be functionally restorative. Only thus does the regime of the Immaterial Object of Consumption avoid being reduced to a sophisticated grammar of diagnosis without real transformative force. The primacy of functional restoration and regime correction prevents consumer protection from limiting itself to pricing harms while leaving intact the machine that produces them. Turning structural abuses into mere operating expenses is, in practice, to neutralize the Law by way of accounting.

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CONCEPTS IN THIS SECTION

Unlawful act of architecture

The incidence of the regime of the Immaterial Object of Consumption requires a framing instrument capable of reducing the institutional cost of translating between the complexity of the governed ecosystem and the legal response required in the concrete case. This requirement does not stem from a didactic concern in a weak sense, but from the need to make operable, for decision purposes, a dogmatic grammar built precisely to deal with bonds in which enjoyment is administered by private architecture, ordinary mutability, structural opacity and asymmetric mechanisms of sanction, visibility and contestation. When the consumer's experience is produced, modulated and narrated by the supplier itself, the interpreter's difficulty lies not only in understanding the environment, but in converting that understanding into a legally controllable framing.

For this reason, the present systematization works as a reference tool. Its usefulness lies not in artificially simplifying the object, but in organizing, in a manageable way, the passage between governance mechanism, supply duty, minimum evidentiary requirement, legal qualification and possible institutional consequence. The framework operates through cumulative filters. One starts from the identification of the IOC and of the governed enjoyment regime. Next, semiotic vulnerability is qualified and, as the case may be, structural opacity, relevant mutability and governance by sanction are verified. Open auditability and functional value

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as transversal filters, bearing upon different forms of conflict. proceed to the leg

prejudice to cumulation when the same arrangement reveals, simultaneously, relevant inadequacy of supply and repeated exploitation of vulnerability.

The underlying logic remains the same. In continuous digital services, the dispute does not enter the system as raw fact. It already arrives traversed by regimes of perception, expectation and intelligibility produced by the supplier. That is why the reconstruction of the decisional experience occupies a central position. Without it, evidence tends to be replaced by a cultural impression about technology, and the legal response degrades into intuitive deference or generic hostility toward the digital. The function of the framework is precisely to avoid this drift, providing a framing grammar that makes it possible to operate the CDC and to reconcile intellectual property without requiring total technical mastery of the ecosystem and without accepting complexity as an alibi for non-accountability.

The following framing blocks may then be established:

a) governed enjoyment regime and incidence of the IOC;

Whenever the utility consumed depends structurally on an environment administered, modulated and mutable by private governance, with an impact on access to, permanence in, intelligibility or updating of the experience, the field of incidence of the IOC will be established. The corresponding supply duty is to ensure enjoyment that is functionally accessible, intelligible and preserved within the limits of the legitimate mutability of the environment. The minimum required evidence concerns the demonstration of the structural dependence of the utility on the governed ecosystem, of the way the experience is made available and of the consumer's concrete position in the bond. The resulting legal qualification is that of an immaterial product subject to the regime of Article 3, paragraph 1, of the CDC, without the service dimension of the bond displacing the control of enjoyment as the core of supply. The possible institutional consequence consists in opening the subsequent filters of the regime, preventing the dispute from being neutralized by the claim of mere service provision or of simple formal licensing.

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ility and governance of meaning;

Whenever expectation, perception of value, risk assessment or capacity for contestation depend on signs, interfaces, flows and informational trails controlled by the supplier, there will be legally relevant semiotic vulnerability. The corresponding duty is not to organize the experience through a structural asymmetry of meaning incompatible with good faith, transparency and legibility of enjoyment. The minimum required evidence involves reconstructing the user journey, the informational architecture of the environment, the communicational saliences, the paths of understanding and the records available to reconstitute how expectation was formed. The possible legal qualification may support an abusive practice, informational insufficiency, deceptiveness through ambiguity or relevant omission and, when combined with other elements, grounds for dynamic redistribution of the burden of proof. The institutional consequence consists in bringing the conflict back to the governance of the environment, avoiding moralization of the consumer's conduct and allowing reinforced duties of information, advertising and evidence to apply.

c) inadequate information as functional opacity;

Whenever the platform replaces legibility with textual excess, strategic dispersion, fragmentation of informational trajectories or merely performative transparency, the duty to inform will have been inadequately performed. The corresponding supply duty is to provide information that is materially adequate, useful for the decision and verifiable at a later point of dispute. The minimum required evidence calls for identifying what was shown, at what moment, with what salience, through which channels and to what extent this organization allowed the consumer to understand what was legally relevant in order to adhere, remain or react. The legal qualification tends to operate as an informational quality defect of supply, an abusive practice through functional obscuring and, as the case may be, support for the invalidity of clauses or of limitations incompatible with the legitimately formed expectation. The possible institutional consequence includes a duty to correct the communicational arrangement, reinforcement of useful transparency, disclosure orders and restoration of [illegible] affected by decisional opacity.

d) advertising and offer as controllable

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Whenever enjoyment is preceded by curated cycles of anticipation, promise, suggested scarcity, symbolic distinction or insinuated equivalences, advertising will materially form part of the offer. The corresponding supply duty is to ensure correspondence between promise, announced value, concealed costs and the experience actually made available under administered mutability. The minimum required evidence involves reconstructing the promotional environment, the communication pieces, the symbolic saliences, the context in which the object was presented and the relationship between prior promise and subsequent enjoyment. The legal qualification may fall on misleading or abusive advertising, binding offer, abusive practice through administered ambiguity and, when combined with a broader exploitative program, an element of abusive teleology. The possible institutional consequence encompasses correction of the offer, functional restoration, injunctive relief over the communication and, as the case may be, invalidation of promotional strategies incompatible with the real experience delivered.

e) structural opacity and open auditability;

Whenever relevant changes in access, performance, utility, operating rule or sanction bear upon enjoyment without preservation of minimum trails of institutional reconstruction, there will be a violation of the open auditability parameter. The corresponding supply duty is to maintain minimum verifiability over what was changed, when it was changed, on what grounds it was justified and what functionally relevant effects it produced.

The minimum required evidence consists of essential logs, the history of relevant versions, sanction records, minimum operational justifications, context data and delimited technical elements sufficient to make the dispute cognizable. The possible legal qualification may take the form of an abusive practice through immunizing opacity, inadequacy of the supply regime and reinforcement of the duty of evidentiary cooperation, without prejudice to other combined incidences. The institutional consequence includes orders for the preservation and disclosure of records, delimited expert examination, presumptions unfavorable to the supplier and ness of the change or sanction based on minimum institutional

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f) relevant mutability and functional value equivalence;

Whenever the platform alters the experience so as to degrade, hollow out or substantially divert the function that justified the acquisition, functional value equivalence will be broken. The corresponding supply duty is to preserve, in substantial terms, the functional, relational and, when legally relevant, symbolic role of the object in the consumer's experience. The minimum required evidence calls for demonstrating the utility previously incorporated into the bond, the change that occurred, the concrete functional impact of the alteration and the insufficiency of any restoration offered. The possible legal qualification tends to fall on a quality defect of the product or service, relevant inadequacy of supply and, if there is coordinated exploitation of mutability, an additional element of abusive practice or abusive teleology. The possible institutional consequence gives priority to functional restoration, technical reversal when feasible, equivalent substitution and correction of the way updates are made, rather than mere automatic monetization of the loss.

g) governance by friction, sanction and asymmetric reversibility;

Whenever access, permanence, visibility or contestation are conditioned by opaque sanctions, selective frictions, excessive costs of reaction or asymmetric mechanisms of reversal, there will be an indication of abusive governance of the bond. The corresponding supply duty is to ensure minimally intelligible procedures, verifiable reasoning, a reasonable possibility of contestation and non-arbitrary treatment of the user in the administration of enjoyment. The minimum required evidence concerns sanction records, the contestation flow, the criteria relied on, structural difficulties of reversal and the concrete impacts of the measure on the continuity of the experience. The possible legal qualification may involve an abusive practice, a defect of the service when the legal and procedural security of enjoyment is compromised, as well as integration into a broader hypothesis of unlawful act of architecture. The institutional consequence includes reversal or review of sanctions, procedural duties, the creation or improvement of contestation mechanisms and, in structurally repetitive cases, correction of the ecosystem's enforcement regime.

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and unlawful act of architecture;

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Whenever microfrictions, normalized losses, fabricated urgencies, artificial scarcities, strategic opacity, elastic equivalences and other mechanisms operate in a coordinated way to extract value from vulnerability or to degrade enjoyment as a routine of the environment, there will be a hypothesis of abusive teleology. The corresponding supply duty is not to structure the experience around an exploitative purpose incompatible with good faith, transparency, balance and protection of the enjoyment legitimately incorporated into the bond. The minimum required evidence consists in demonstrating the pattern, its replicability, the coordination between mechanisms of the ecosystem and the relevant impact produced on practical autonomy, intelligibility or utility of the experience. The possible legal qualification extends to structural abusive practice, a defect of the supply regime, possible cumulation with a quality defect and grounds for injunctive and corrective relief over architecture. The institutional consequence goes beyond redress for isolated episodes and may include reconfiguration of flows, reinforced transparency duties, design correction and structural or collective measures.

i) evidence in an environment of structural asymmetry;

Whenever the platform concentrates the essential elements for narrating, demonstrating and reconstructing the conflict, the evidentiary discipline must recognize that verifiability is part of the legitimate regime of supply itself. The corresponding duty is to preserve and disclose the minimum records necessary for reconstructing the disputed event. The minimum required evidence, from the consumer's point of view, consists in a plausible presentation of the harmful experience, of its place in the ecosystem and of the accessible context elements; from the supplier's point of view, disclosure of trails, logs, histories, versions and technically delimited justifications is required. The possible legal qualification involves dynamic redistribution of the burden of proof, presumptions favorable to the consumer and reinforcement of the duty of cooperation, without prejudice to the material incidence of the other parameters. The institutional consequence consists in preventing technical opacity from becoming procedural shielding and in giving effect to standards such as open auditability and functional equivalence.

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j) [illegible] intellectual prope

Whenever the platform invokes exclusive ownership, trade secrets, licensing or the proprietary structure of the ecosystem to resist review of the mode of supply, reconciliation must be carried out in light of the social function and of the constitutional limits on the exercise of private positions. The corresponding duty is to exercise exclusivity without turning it into a shield for absolute opacity, degrading mutability or arbitrary suppression of enjoyment. The minimum required evidence concerns the relationship between the prerogative invoked and the concrete aspect of the conflict, showing whether the restriction is really necessary to protect the asset or whether it in fact operates as undue immunization of governance. The possible legal qualification preserves the validity of intellectual property on its own plane, but rules out its invocation as a general veto on the incidence of the CDC. The institutional consequence consists in reconciling exclusivity and consumer-law protection by means of delimited auditability, review of functional equivalence and subjection of the exercise of IP to the duties of adequacy, transparency and restoration.

k) remedies suited to functional restoration and regime correction.

Whenever the injury affects access, continuity, equivalence, history, relational position or meaningful density of enjoyment, the legal response must give priority to functional restoration, reserving monetary compensation for cases where restoration is unfeasible or insufficient. The corresponding duty is to structure protection in accordance with the nature of the loss, targeting the affected enjoyment and not merely its residual monetary translation. The minimum required evidence involves demonstrating the causal link between the governance mechanism and the functional loss, as well as the technical or institutional possibility of restoration, reversal, equivalent substitution or procedural correction. The possible legal qualification varies according to the principal incidence of the case, but the institutional consequence must favor restoration of access, reversal of sanctions, preservation of history, equivalent functional substitution, governance adjustments, injunctive relief and structural correction when the harm reveals a repeatable [illegible] on remains possible, but as a residual or complementary response, reflex of the injury

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This framework does not seek to mechanize the decision or to reduce the complexity of the environment to a rigid formula. Its function is more honest and more useful. It organizes, in consultable language, the passage between governance structure, violated duty, minimum evidentiary requirement, legal qualification and possible institutional consequence. In this way, the IOC ceases to be merely a dense conceptual construction and presents itself as a framing technology capable of making manageable, without undue flattening, the relationship between governed ecosystem and legal response. It is at this point that the category acquires real decisional utility.

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The legal control of Immaterial Objects of Consumption requires a methodological and dogmatic shift that has not always been carried out with the necessary clarity. In platform-governed ecosystems, the analysis cannot remain centered on isolated clauses, terminal acts detached from context or one-off events artificially separated from the environment that produced them. The center of gravity of the examination must be the regime of supply, that is, the operating program of the ecosystem, the mechanisms by which enjoyment is administered and the legitimacy filters that make this program institutionally controllable. The shift is necessary because, in relations of this nature, what the consumer faces is not merely an episodic manifestation of private power, but a continuous arrangement for organizing experience, access, intelligibility, visibility, contestation and evidence.

The first guideline, therefore, consists in treating architecture and governance not as a neutral backdrop of the bond, but as constitutive elements of supply itself. The environment does not merely host the consumer relationship. It materially shapes it. It is through architecture that the platform defines paths, intensifies or attenuates frictions, selects saliences, organizes degrees of reversibility, distributes costs of understanding and establishes the conditions under which loss will be perceived, expectation will be frustrated and reaction will be possible or unfeasible. It is through governance that the supplier administers permanence, sanction, updating, priority, visibility and mechanisms of contestation. When this structure is rendered legally invisible, control is impoverished. One comes to discuss only final acts detached from an ecosystem whose design, in practice, has already predetermined much of the disputed experience.

Skip to content second guideline. Relevant changes to the service, rule changes, ordinary reconfigurations of the envir

on enjoyment should not be judged on the basis of a generic discourse of updating, innovation or technical convenience. They must be examined in light of open auditability and functional value equivalence. The relevant question is not only whether the platform could make the change. The question is whether the change was made institutionally intelligible and whether it preserved, in substantial terms, the function that justified the acquisition and structured the consumer's legitimate expectation. The mere appeal to the dynamism of the digital cannot work as an abstract authorization to degrade the experience, obscure the modulation of the environment or turn mutability into an ordinary technology of loss.

The third guideline bears on private sanctions with material impact. In platform ecosystems, sanctions do not operate merely as a one-off disciplinary response to conduct attributed to the user. They may affect access, permanence, visibility, reputation, relational insertion and continuity of enjoyment. For this reason, they must be controlled by denser criteria than the mere formal existence of sanctioning power. They require verifiable reasoning, decisional coherence and intelligible avenues of contestation. Where the platform exercises power of inclusion, exclusion, suspension, visibility downgrading or functional restriction, it is not enough that the final act be formally communicable. The procedure must be institutionally reconstructible and contestation must not be a mere empty ritual. The examination, in such cases, must reach not only the challenged act, but the procedural conditions designed by the supplier itself for adhesion, enjoyment, evidence and resistance.

This requirement leads to the fourth guideline. The dispute should not be read only from the terminal moment at which it becomes outwardly manifest. It must be reconstructed from the environment in which it arose, was perceived and can be reconstituted. This means that judges and protection bodies need to consider the way in which the platform organized, from the outset, the conditions of adhesion, understanding, circulation of information, access to records and possibility of contestation. The litigious experience, in continuous digital services, already reaches the proceedings traversed by private filters of perception and evidence. Ignoring this [illegible] that the supplier controls not only enjoyment, but also the way [illegible] will be narrated institutionally. The case, therefore, needs to be seen in its trajectory and not only in its

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The fifth guideline concerns structural opacity. It should not be treated as an inevitable and legally neutral characteristic of digital complexity. It must be recognized as a factor that intensifies vulnerability and evidentiary asymmetry. Where the platform concentrates logs, histories, change records, interface trails, curation criteria and decision data, there is a correlated concentration of power over the institutional conditions of evidence. This fact justifies orders for preservation and disclosure of minimum records, delimitation of expert examinations and dynamic redistribution of the burden of proof whenever the relevant evidence arises and remains under the supplier's technical control. Opacity, in other words, cannot operate as a procedural privilege self-generated by the governance model itself.

A sixth guideline consists in avoiding both the fragmentation of the problem into individual lawsuits incapable of reaching the source of the injury and the opposite temptation of turning each case into a manifesto against technology or against the economic model as such. Control must be specific enough to respond to the concrete conflict and attentive enough to structure to identify when this conflict is a localized manifestation of a repeated pattern. Neither atomization nor grandiloquence. The institutional challenge lies in recognizing when the case reveals an individual inadequacy correctable without further expansion and when, on the contrary, it exposes a regime defect, repeatable and incorporated into the ordinary mode of operation of the ecosystem. This distinction is essential to calibrate the legal response and to prevent programmatic harms from being treated as a mere sum of private annoyances disconnected from one another.

Hence the seventh guideline, concerning remedies. In cases of architectural injury, the legal response must favor functional restoration and procedural correction, instead of automatically resorting to monetization. When what has been affected is the continuity of enjoyment, the integrity of the experience, the permanence of access, the intelligibility of the bond or the consumer's relational position in the ecosystem, a mere monetary award tends to operate as a poor and structurally ineffective remedy. What is required, whenever possible, is restoration of access, [illegible] sanctions, restoration of functionality, preservation of history, [illegible]ion and adjustment of governance procedures. This priority is

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even clearer when the injury stems not from an isolated episode, but from the very design of the supply regime and its ordinary mode of operation.

The eighth guideline emerges precisely from this point. When the pattern of injury proves to be repeated, replicable and incorporated into the structure of the environment, protection should not be limited to the single case. Room opens for injunctive relief and for regime correction measures. This includes procedural duties, architecture adjustments, reinforced auditability requirements, review of sanction flows, imposition of intelligible contestation channels and other measures capable of reaching the continuous source of the problem. The system cannot treat programmatic harms as a casual accumulation of autonomous conflicts. When the injury is programmatic, the response must also be structurally sensitive to the program that produces it.

A ninth guideline consists in preserving institutional sobriety. Control of architecture and governance does not require the judge to become the system's engineer nor the protection body to hold full technical mastery of the ecosystem. What is required is something at once more modest and more serious: the capacity to bring the environment back to verifiable filters of legitimacy. Open auditability, functional equivalence, verifiable reasoning, procedural coherence, minimum intelligibility of contestation, preservation of essential records and functional reconciliation between exclusivity and consumer-law protection are sufficient criteria to make the conflict decidable without any pretension to technical omniscience. The complexity of the digital does not eliminate Law. It only requires Law to choose more rigorously what it needs to understand in order to control.

Finally, a tenth guideline requires that institutional examination preserve unity among supply, evidence and remedy. In IOCs, these planes cannot be rigidly compartmentalized. The way the object is offered interferes with the way the loss will be perceived. The way enjoyment is governed conditions the way the conflict can be proven. The way architecture distributes access and opacity influences the adequacy of the remedy. Artificially separating these planes produces decisions that are

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same legal proble

architecture and governance as elements of supply and not as a technically interesting but legally irrelevant backdrop.

These guidelines, taken together, offer an application criterion that rejects both atomized examination and inflamed generalization. What is proposed is more useful. A way of reading continuous digital conflicts from the regime that produces them, subjecting architecture and governance to the legitimacy filters that make private power institutionally controllable. It is at this point that the IOC ceases to be merely a descriptive category of new environments and asserts itself as a decision instrument able to organize evidence, qualification and legal response without the technical complexity of the environment operating as a practical obstacle to control.

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PROTECTED LEGAL INTERESTS IN THIS SECTION

Personal integrity

The incidence of the regime of the Immaterial Object of Consumption reveals, in the end, an institutional fact that cannot be treated as peripheral. In platform ecosystems, supply no longer falls only on economically appreciable utilities in the narrow sense. It increasingly bears on practical conditions of participation, visibility, reputation, permanence and contestation in environments that structure relevant portions of contemporary social life. This does not mean dissolving the consumer relationship into an abstract political category, nor replacing dogmatic analysis with grandiose sociological rhetoric. It means recognizing that, in long-lasting immaterial objects of consumption, governed enjoyment may be part of processes of biographical continuity, relational insertion and symbolic identity, so that unilateral sanctions, erasures, reconfigurations and degradations may reach dimensions of the experience that exceed what is residually patrimonial.

This point is especially important because it prevents an impoverished reading of the conflict. When enjoyment is long, cumulative and socially situated, the object consumed ceases to be merely a utility detachable from the user's trajectory. It may become an anchoring point of history, belonging, reputation, memory of use and recognition before third parties. In these cases, functional loss is not limited to a momentary unavailability of access nor to a one-off economic frustration. It may compromise continuity of presence, stability of bonds, intelligibility of the

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relevance. This is not a matter of inflat

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an identity drama. It is a matter of recognizing that certain environments of governed enjoyment operate on concrete dimensions of personal integrity in a functional sense.

The formulation of these limits, however, requires conceptual sobriety. This is not a matter of equating platform with State, nor of converting the CDC into a parallel constitution of digital life. This comparison, besides being crude, tends to produce more smoke than light. The premise is a different one, and far more defensible. Functional public relevance does not produce equivalence to the State, but neither does it authorize treating the platform as an institutionally neutral supplier. When private powers administer access, permanence, visibility, reputation and contestation in environments structurally relevant to social participation, the legal order already has legal matrices of limitation. The Constitution is one of them. The CDC is another, operating in reconciliation with the social function of property, with the discipline of intellectual property and with the general limits on the exercise of private positions in a constitutionally oriented economic order.

Under this key, the CDC appears with greater density than that of a mere microsystem devoted to the discipline of one-off patrimonial exchanges. In environments of governed participation, it also functions as one of the legal matrices for limiting private power, precisely because the supply regime comes to organize concrete conditions of presence, interaction, permanence and contestation. This does not alter its nature nor transform it into an instrument of total publicization of the consumer relationship. It only makes explicit its aptitude to control, in a constitutionally compatible key, forms of supply that are no longer exhausted in the simple circulation of goods or in the episodic provision of services, but structure relevant portions of the consumer's social experience.

This conclusion matters because it puts the category of the IOC back in its proper institutional reach. Control of the immaterial object of consumption is neither a cultural gesture nor a theoretical whim, nor is it reduced to an attempt to update the CDC terminologically. It is a dogmatically necessary response to environments that .city, mutability and private concentration of power as normal operating conditions. In them, the pre

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naturalized by the mere invocation of contract, license, innovation or the global scale of the service. The function of the regime is to reintroduce institutional controllability where the supplier seeks to pass off contingency as the user's inevitable destiny.

This reintroduction of controllability is particularly relevant when the supplier presents itself as a mere intermediary, as neutral technology or as a global provider whose private normativity would purport to replace, by self-reference, the local legal vocabulary. In each of these figures there is a recurring attempt to shift the discussion outside the field of attribution. The intermediary will say that it merely connects. Neutral technology will say that it merely executes. The global provider will say that it merely operates according to its own universal terms. The IOC regime rejects these self-descriptions as a sufficient framing criterion. What matters is not how the platform names itself, but how it organizes access, permanence, visibility, contestation and enjoyment. Whenever this organization produces legal relevance under the discipline of supply, there will be room for the incidence of limits, duties and consequences.

This is also why the digital citizenship implied here should not be read as a loose, celebratory category or one disconnected from dogmatics. It appears as a functional problem of participation under private governance. The point is not to assert rights in the abstract before an idealized public sphere, but to recognize that, in certain ecosystems, the consumption experience directly touches the practical conditions of presence and agency of the individual. Digital citizenship, in this context, does not replace the IOC regime. It helps to illuminate why certain conflicts of governed enjoyment cannot be treated as mere low-density contractual annoyances. When the platform administers the entry doors, the criteria of permanence, the mechanisms of visibility and the means of contestation, it comes to affect dimensions of practical autonomy that Law cannot abandon to pure corporate self-legitimation.

The strategic consequence of this for typological application is clear. From this point on, the incidence of the IOC regime becomes recognizable in different families of [illegible] pending on the cultural sensitivity of the reader or the judge to perceive, [illegible], the seriousness of

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needs emotional adherence to the social importance of a given service and comes to operate through criteria of supply, governance and limitation of private power. This strengthens the transposability of the regime. Even when the platform presents itself under discourses of neutrality, innovation, globality or mere intermediation, the analysis can bring the case back to what really matters: who organizes enjoyment, who administers its intelligibility, who controls its permanence and who defines the conditions of its contestation.

The legal dispute in governed ecosystems is already born traversed by regimes of perception administered by the supplier itself. The consumer does not enter the conflict on neutral ground. They enter an environment whose language, memory, visibility and possibilities of reaction were previously designed by the party that also concentrates economic, technical and normative power over the relationship. The dogmatic response, therefore, needs to recover agency, verifiability and controllability. Not to freeze the service, nor to deny the complexity of the environment, but to prevent precariousness, opacity and asymmetric mutability from being accepted as the natural state of things. Because when private power begins to govern participation as if it were weather, and not an institutionally controllable choice, Law is already far too late.

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The stabilization of the regime of the Immaterial Object of Consumption makes it possible to advance to a plane of typological application in which the usefulness of the dogmatic construction can be tested in distinct ecosystems, without this implying conceptual dilution, sectoral drift or rhetorical expansion of the concept. The point, here, is not to gather digital examples under a single heading by mere technological affinity, nor to suggest that every contemporary platform reproduces, with identical intensity, the same form of vulnerability, opacity or capture of enjoyment. What is sought is to verify whether the regime constructed retains a recognizable capacity for incidence when projected onto typical models of continuous digital supply whose organization, although varied in appearance, presents relevant functional equivalences as to the governance of the experience, the administration of intelligibility and the asymmetric distribution of the costs of evidence, permanence and contestation.

The application, therefore, does not rest on superficial similarity between sectors, nor on technological identity between services. The criterion of approximation is structural. What matters is to identify families of platform in which diverse arrangements of private governance administer, by their own means, analogous problems of enjoyment, opacity, verifiability and restoration. The unit of examination lies not in the economic branch nor in the marketing label of the service, but in the predominant mechanism by which the user's experience is organized, modulated, reconfigured or made contestable. It is this mechanism, and not the name of the sector, that provides the basis of comparability and allows the incidence of the IOC to operate as a transposable grammar of reading and decision.

Skip to content l option fulfills an important dogmatic function. It prevents the typology from turning into a catalog o

cases or a sociological taxonomy of platforms. The legal interest does not lie in describing sectors out of classificatory curiosity, but in recognizing recurring regimes of continuous digital supply in which enjoyment is governed by architecture, by curation, by administered visibility, by functional opacity, by ordinary mutability or by selective mechanisms of sanction and prioritization. By shifting the focus from the sector to the governance mechanism, the analysis preserves methodological unity and prevents the application from depending on the interpreter's cultural familiarity with the environment examined. What matters is not whether the platform presents itself as a cognitive tool, market infrastructure, productive environment or reputation system, but how it organizes access, modulates expectations, distributes risks and conditions the possibility of institutional reconstruction of the conflict.

To maintain this comparability, the exposition will follow a constant sequence. In each typical model, it starts from the structural governance mechanism that organizes enjoyment and produces the characteristic friction of the environment. Next, that mechanism is traced back to the central vulnerability it activates, as well as to the way in which promises, expectations and losses are manufactured, administered or degraded over the course of the relationship. In the following stage, the adequate evidence and the evidentiary requirements compatible with the specific form of the conflict are set, including the blind spots that usually hinder its institutional translation. Only then is the possible dogmatic consequence indicated, always by recognizable derivation from the operative grid previously consolidated.

With this, the applied typology ceases to be an exemplifying exercise and comes to function as a test of transposability. What one seeks to demonstrate is that the IOC regime maintains internal coherence when confronted with distinct ecosystems, precisely because its incidence does not depend on the appearance of the environment, but on the structure of private power that organizes it. If the construction is dogmatically consistent, it must be able to recognize, in diverse families of platform, equivalent problems of governed enjoyment, institutionally relevant opacity, asymmetry of meaning and evidentiary asymmetry, without losing [illegible] ut turning into a totalizing metaphor. The value of the typology [illegible] t verifies whether the grammar is robust enough to operate

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outside the laboratory in which it was densified, preserving decisional usefulness and argumentative discipline.

This passage also makes it possible to show that the contemporary mutation of supply is not reduced to the digitization of media or the technical mediation of already known interactions. In many of these environments, the platform comes to govern not only the delivery of utilities, but the very conditions under which those utilities can be perceived, compared, contested, restored or socially stabilized as part of the consumer's experience. That is why the transposition of the regime should not be read as a classificatory adventure. It is, rather, a matter of gauging to what extent the logic of governed enjoyment, open auditability, functional equivalence, semiotic vulnerability and abusive teleology remains apt to organize the institutional reading of conflicts that, although distinct in appearance, partake of the same structural rationality of supply.

What will follow, therefore, is not a sequence of sectors, but a succession of typical models of incidence. Each of them corresponds to a recurring form of governance of enjoyment on contemporary platforms. Each of them makes it possible to observe how the same grid of controllability behaves in the face of specific problems of promise, trust, opacity, mutability, sanction, reputation, intermediation or administration of expectation. And each of them contributes to showing that the Immaterial Object of Consumption is not a closed sectoral category, but a dogmatic instrument apt to translate, in a legally controllable key, the multiplication of private ecosystems that organize the user's experience as a continuous regime of supply.

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The incidence of the regime of the Immaterial Object of Consumption on services of cognitive functionality is not defined by the label of "artificial intelligence", "assistant", "chat" or "productivity tool", but by the governance structure that modulates, over time, the utility delivered and the possibility of reconstructing promise, change and functional impact through accessible evidence.

In this family, provision is not exhausted in the one-off issuing of a response, in the isolated display of content or in the supply of a singly considered piece of data. What is offered is an environment of cognitive orientation. It is a functional infrastructure that organizes how the user understands the problem submitted, trusts the response received, incorporates it into their decision-making, reviews it, corrects it or reassesses it in the face of error, oscillation or change in performance. The legally relevant core of the subtype therefore lies in the informational integrity of the enjoyment regime, in the epistemic trust that sustains the functional use of the service and in the institutional possibility of reconstructing the link between promise, delivery, change and impact.

This configuration rules out, from the outset, two inadequate reductions. The first is to treat the conflict as a mere discussion about an isolated factual error, as if the utility of the service came down to the abstract correctness of each individual response. The second is to reduce the analysis to the generic contractual vocabulary of software licensing or of the technical provision of informational support. Neither reading reaches the central problem.

In services of this nature, the utility consumed consists precisely in offering practical

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ersational, synthetic, contextual or responsive form, so that the

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operational limits and patterns of change are not mastered by them. What is at stake

is not only the content issued, but the regime of functional trust in which this content is received, used and converted into conduct.

Enjoyment, here, must be read as governed cognitive enjoyment. The user does not consume information in raw form alone. They consume a private arrangement of selection, formulation, prioritization, synthesis, interface language and presentation of answers that organizes the very experience of useful knowledge. This governance is especially sensitive because it operates on an object whose usefulness depends on practical trust. The service is valuable not only because it answers, but because it induces the user to treat the answer as a relevant point of orientation.

Whenever this environment is structurally opaque as to the operating criteria that condition error, instability, changes in performance, contextual limitation or later reconstruction of the interaction, a typical field of incidence of the IOC arises. The central vulnerability, here, is not mere technical ignorance on the user's part. It is semiotic vulnerability intensified by epistemic dependence, that is, by subjection to an environment that administers the signs of the answer's reliability, usefulness and sufficiency without granting the recipient, to the same extent, means of verification and audit.

A reading of the official terms reinforces precisely this nature of governed service. OpenAI's Terms of Use state that they apply to individuals' use of ChatGPT and of the company's other services, together with associated applications, software and websites, and make this use subject to compliance with supplementary policies, documentation and guidelines, which shows a continuous provision organized by private rules for the operation and modulation of the environment OPENAI.

In the case of Gemini, Google's own official page of services and specific terms indicates that the Gemini Apps are subject to Google's general Terms of Service and to the Generative AI Prohibited Use Policy, which likewise reveals an environment of continuous supply governed by its own normative layer, and not a simple instantaneous delivery of neutral content GOOGLE. In both cases, the contractual

ribe mere access to a static tool. It describes entry into an

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private governance.

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This point matters dogmatically because it allows the subtype to be brought within the IOC regime without relying on fragile analogies. The cognitive utility supplied does not present itself as an autonomous thing, fully inspectable outside the environment. It depends on the continuity of the system, the relative stability of the interface, the maintenance of the conditions of access, the model for presenting answers, the warnings, the contextual limits, the memory or history mechanisms where they exist, and the private rules that structure the very field of use. In other words, enjoyment lies not only in the individual answer, but in the functional arrangement that makes it possible to trust, use, review and contest the provision. In this light, the legal problem ceases to be the abstract quality of the information and becomes the controllability of the informational regime as a form of supply.

Relevant inadequacy may, in this subtype, take forms of its own. There may be informational noise when the architecture of the answer projects an appearance of security, completeness or sufficiency incompatible with the real limits of the provision. There may be functional opacity when the user cannot reconstruct, in minimally verifiable terms, why a given output was presented to them, to what extent the system's behavior changed in a relevant way, or which elements of the environment conditioned the answer that guided their conduct. There may also be acute evidentiary asymmetry when the functional impact of the provision depends on history, interactional context, internal parameters or records that remain concentrated in the supplier's hands. In these scenarios, the injury need not appear as a direct lie to be legally relevant. It is enough that the environment replaces legibility with a performance of trust, shifting onto the user the cost of bearing error, review, fluctuation or functional loss without adequate institutional trails for reconstruction.

The consequence is that, in this family, open auditability plays an even more central role than in other subtypes. The point is not to require unrestricted opening of the model, the code or the internal architecture. It is to recognize that, in services whose usefulness consists in guiding the user cognitively, there must be minimum institutional verifiability over relevant aspects of the provision. Depending on the [illegible] reservation of accessible history, minimum traces of interaction, of materially relevant limits, intelligibility about changes in the regime of use and the possibility of rec

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promise of the service and the impact produced on the user's experience. Without this, the platform retains not only the power to provide guidance, but also the power to define unilaterally what may be narrated and proven when that guidance turns out to be inadequate, inconsistent or harmful.

The evidentiary standard compatible with this subtype therefore cannot naively reproduce the logic of the isolated event. The relevant evidence tends to require reconstruction of the informational journey, the context of use, the available interactional history, the warnings present or absent, the form in which the answer was presented and the practical function it performed in the user's decision. It also tends to require caution regarding recurrent blind spots. The first is the tendency to reduce the conflict to the sentence produced, ignoring the semiotic architecture that made it reliable or operational. The second is the tendency to presume that generic warnings about the system's limitations would suffice, by themselves, to neutralize any problem of informational adequacy. The third is the tendency to treat the model's variability as a raw technical fact, and not as a governed element whose opacity must be legally bearable.

The possible dogmatic consequence, in this type of environment, usually revolves around a defect in the informational quality of the supply, abusive practice through functional opacity, insufficient compliance with the duty to inform and the strengthening of verifiability duties compatible with the cognitive enjoyment promised. In more serious cases, especially when the architecture of the service repeatedly administers practical trust without proportionate instruments of reconstruction and contestation, there may be room for a reading in terms of abusive teleology, particularly if the opacity is not a mere technical residue but a stable part of the way the environment is exploited. The most adequate institutional response will tend to favor procedural correction, the strengthening of verifiable trails, review of the communicational arrangement and functional restoration of the injured trust, rather than mere abstract monetization of the conflict.

The subtype thus clearly shows the expansive usefulness of the IOC regime. Even laboratory in which the thesis was developed, a structure of supply remains recognizable in which

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administered by the supplier in continuous and governed form. What changes is the matter on which this governance bears. Here, it falls on cognitive orientation and on the very functional intelligibility of the provision. Precisely for this reason, enjoyment cannot be treated as the simple reception of content, but as a governed informational experience, dependent on private operating criteria that must be brought back under auditability, adequacy and institutional controllability.

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The incidence of the regime of the Immaterial Object of Consumption on infrastructure and intermediation platforms is defined neither by the final object traded nor by the traditional economic classification of the sector in which the platform operates. It rests on the governance structure that organizes the very possibility of exchange, encounter, circulation and comparison in a digitally administered environment. In this family, the utility supplied is not exhausted by the presence of a good, a piece of content, an advertiser or a user who can be singled out at one end of the relationship. What is offered, in legally relevant terms, is an infrastructure of visibility, reputation, curation, intermediation and logistics without which the final object does not become economically legible, socially rankable or practically accessible on the terms in which the platform itself presents it.

This point calls for dogmatic care because the recurrent self-description of these platforms tends to reduce them to the function of merely bringing parties together. In their formal language, they often appear as neutral meeting spaces between seller and buyer, between sender and receiver, between advertiser and audience, between content producers and the public. This description, although partly true at a superficial level, is insufficient to capture the real structure of supply. Platforms of this kind do not merely connect. They select, rank, highlight, hide, bring closer, delay, prioritize and reorganize the way in which the reality of the environment becomes perceptible to the user. The market, the offer and even the social relevance of what circulates within them reach the consumer and the user through private filters of visibility, salience and intelligibility.

This family of platforms must be treated as one of suppliers of semantic

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appears on their screen. Before that, they consume private frames that define what will be seen as most relevant, most reliable, most comparable, safest, most popular or most worthy of attention. Enjoyment, in this case, is strongly governed by the interface. *Rankings*, reputation, highlighting, recommendation, prioritization and modulation of reach are not peripheral elements. They are part of the functional utility of the ecosystem and directly influence the formation of expectations, the assessment of risk and the possibility of rational choice.

In *marketplaces*, this logic is especially clear. Mercado Livre's Terms and Conditions of Use describe an ecosystem in which the platform organizes not only the publication of listings, but also rules of use, visibility, intermediation, payments, reputation, logistics and dispute resolution, placing the buying and selling experience in an environment densely governed by private infrastructure MERCADO LIVRE. The same holds for Magalu's Purchase and Sale Terms, in which the platform regulates the conditions for selling in the marketplace, even distinguishing its own offers from those of partners, while reserving for itself the organization of the environment in which such offers will be perceived, compared and consumed MAGAZINE LUIZA. In both cases, the platform does more than host listings. It administers criteria for the presentation, trust, prioritization and legibility of the market accessible to the consumer.

The dogmatic consequence is significant. The consumer does not choose in a vacuum, before a transparent and symmetrical universe of offers. They choose within a field already pre-interpreted by the platform. The prominent position of an item, a seller's appearance of reliability, the way reviews are displayed, the distinction between sponsored and organically prioritized products, the integration with payment and logistics, the organization of categories and the way alternatives are displayed are all elements that materially affect the consumption experience. The platform therefore produces the perceptible market itself. It transforms a chaotic multiplicity of offers into an administered semantic environment, in which the comparability of alternatives reaches the consumer already filtered by criteria they do not control and [illegible] reconstruct in a verifiable way.

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This mechanism is not limited to e-commerce in the strict sense. On social networks, the same functional structure reappears in a different form. Meta's Terms of Service describe an environment in which the use of Facebook is subject to private rules on permanence, visibility, sharing, moderation and organization of the content in circulation, so that the user's experience is mediated by internal criteria for distributing and managing social interaction FACEBOOK. X's Rules and policies, in turn, show a platform likewise oriented by private discipline over circulation, authenticity, safety and standards of participation, which shows that visibility, permanence and reputation do not appear as neutral data, but as results of concentrated governance X CORP. Here too, the platform does not merely "let appear" content produced by third parties. It administers the way in which this content enters the user's field of perception and how its relevance is socially stabilized.

This parallel between marketplaces and social networks does not seek to erase obvious sectoral differences between buying and selling, on the one hand, and the social circulation of content, on the other. What matters, for the typology developed here, is the functional equivalence of the predominant mechanism. In both cases, the platform governs the environment in which things appear. In both, it administers salience, reputation, comparability and intelligibility. In both, the user depends on a private interface that pre-organizes the space in which the decision will take place, whether that decision is a purchase, a choice between sellers, a reputational endorsement, a click, an interaction or the very formation of judgment about what is socially relevant. The utility supplied, therefore, is not reduced to the final object circulating in the environment. It includes the very architecture that transforms circulation into ordered experience and converts an abundance of possibilities into a governed field of perception and choice.

It is precisely here that the central vulnerability of this subtype emerges. It is semiotic vulnerability intensified by structural dependence on the interface as the producer of accessible reality. The user faces not only information asymmetry in a quantitative sense. They face asymmetry in the constitution of the relevant field of decision. The platform defines what stands out, what is hidden, what seems most reliable, what

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ance of consensus, what appears comparable and what becomes practically invisible. In such environm

explicit discourse of neutrality, efficiency or convenience. It also lies in the implicit promise that the market or social circulation is intelligible. When this intelligibility is governed by opaque criteria, undisclosed internal interests or non-auditable ranking standards, enjoyment is affected in its very core of legibility.

The evidence suited to this type of conflict requires a more careful institutional reconstruction than the one normally mobilized in classic litigation over an isolated offer. It is not enough to examine the final product purchased or the individual content removed, prioritized or hidden. The architecture of the experience must be reconstructed. Depending on the case, this includes the way offers are presented, the distinction between organic and paid results, the role of reviews and reputations, the integration between visibility and logistics, the reliability signals provided by the interface, the context in which the content appears, the relevant moderation criteria and the mechanisms by which the platform induces a perception of market, consensus or priority. On social networks, this reconstruction may also involve examining how the feed, recommendation, reach and reputational management condition the very perception of what is in circulation. In marketplaces, it may involve the way in which *ranking*, highlighting, seller classification and sponsorship logic produce a perceptible market that has already been preselected.

This subtype has recurrent blind spots that must be avoided. The first is the tendency to treat the interface as a mere visual support, and not as a constitutive part of supply. The second is the tendency to imagine that the platform would be legally answerable only for what it said expressly in a clause or in advertising, as if the effective governance of visibility were legally irrelevant. The third is the tendency to reduce the dispute to the final act, such as the frustrated purchase, the removal of a piece of content or the alleged preference for a given offer, without investigating the private structure of salience that conditioned the user's entire experience. These blind spots are especially dangerous because they allow the platform to preserve, under an appearance of technical neutrality, decisive power over the material conditions of choice and appearance.

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tic consequence, in this environment, tends to revolve around procedural duties of controllability ove

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organizes the very perceptible field of exchange or social circulation, it is not enough to discuss only liability for the final object or for a third party's isolated conduct. It becomes necessary to examine, from the standpoint of the IOC, whether there was adequate information about the nature of the intermediation, whether the distinction between organic and sponsored priority was materially intelligible, whether the reputation displayed was functionally verifiable, whether the opacity of the criteria compromised relevant comparability and whether the interface itself produced deceptiveness, obfuscation or structural asymmetry incompatible with the consumer-law regime. In more serious cases, especially when the platform acts at once as arbiter of the environment and as an economic agent with an interest in its outcomes, the opacity of ranking may also connect with broader abusive practices and with competition repercussions of their own.

In this family, open auditability and functional equivalence operate as cross-cutting filters. Open auditability requires minimum institutional verifiability over the relevant criteria of presentation, prioritization, moderation, reputation and circulation, without this implying unrestricted opening of internal systems. What is required is enough intelligibility to understand how the environment organizes the user's experience and how certain choices by the platform affect the formation of expectations, the comparability of alternatives and the possibility of contestation. Functional equivalence, in turn, applies when changes to the intermediation regime, the logic of visibility, the reputational criteria or the rules of circulation significantly degrade the utility legitimately incorporated into the relationship, without compatible restoration. This may occur both in e-commerce and in the social circulation of content, whenever the platform substantially alters the functional role of the infrastructure it offered as an environment of exchange, reach or recognition.

The subtype thus shows that the infrastructure and intermediation platform is not a mere neutral corridor through which previously formed wills circulate. It is an agent in building the field in which these wills become possible, perceptible and actionable. That is why the IOC regime applies with particular force in this environment. What is controlled is not only the correctness of the final object traded or of the content circulated. What is controlled is the semiotic governance of the very space of circulation, that is, the way in which

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comparability and appearance. When this administration takes place under structural opacity, non-verifiable criteria or implicit promises of neutrality incompatible with the ecosystem's practice, the application of consumer law ceases to be a rhetorical expansion and becomes a simple requirement of institutional controllability of supply.

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The incidence of the regime of the Immaterial Object of Consumption on work platforms under the gig economy requires starting from a structural fact. In this family, the central utility is not reduced to the final payment per ride, delivery or completed task. What is supplied, in functional terms, is a private infrastructure of economic possibility. The platform organizes access to demand, the distribution of requests, minimum predictability of pay, continued presence in the productive flow, reputational criteria, prioritization standards, acceptance rules and sanction mechanisms. The object enjoyed, here, is neither a static good nor a simple service provided to the worker from outside. It is a governed productive environment, without which everyday economic activity does not become viable on the terms on which the platform itself promised and structured it.

This point is important because it keeps the analysis from being captured by excessively formal narratives about contractual autonomy. The instruments used by iFood, 99Food, Uber and 99 insist, in varying language, on characterizing partners as independent, on presenting the platform as an environment of technological intermediation and on ruling out any hierarchical relationship or mandatory exclusivity. iFood's terms for couriers speak of independent activity, of freedom as to when, how and where to make deliveries and of the company's role as a connection between customers, establishments and couriers IFOOD. 99's terms for partner drivers and motorcyclists follow the same line, presenting 99 as the intermediary of a marketplace, describing the partner as an autonomous and independent professional and providing for the platform's remuneration for the intermediation, as well as acceptance and completion metrics and temporary ride restrictions 99. Uber's

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se, in turn, also cover deliveries made by an independent partner ated in the app, wh

expressly that their rules apply to users, partner drivers and couriers, which reveals unified governance of continued presence and behavior in the ecosystem UBER.

None of this, however, is enough to resolve the dogmatic problem. The legally relevant question is not merely whether the platform describes itself as an intermediary or whether the partner is formally free to switch the app on and off. The question lies elsewhere. It is to recognize that the functional utility indispensable to the exercise of the economic activity is offered, modulated and reconfigured by a private architecture that the subject does not control. The formal freedom to join or leave the environment coexists, here, with intense dependence on the private conditions governing access to demand, calculation of earnings, formation of reputation, reading of performance and maintenance of eligibility in the productive flow. Enjoyment, therefore, is productive enjoyment of a governed environment. The platform worker consumes the very infrastructure that makes them economically operative.

It is precisely here that the subtype differs from a generic labor-law reading. The central point lies not only in asserting algorithmic subordination in the abstract, nor in automatically reclassifying the entire relationship under the traditional categories of the employment contract. The focus, for the purposes of this typology, is on the supply regime. The platform supplies an ecosystem whose utility consists in making it possible to carry on an economic activity under private conditions of visibility, distribution, prioritization and continued presence. Income does not arise outside the environment and merely pass through it. It depends materially on the environment's architecture. Whenever this architecture concentrates access criteria, unilaterally modulates the functional value of remaining in it and makes opaque the elements needed to understand losses, drops in demand, downgrades or restrictions, there will be a typical field of incidence of the IOC.

In this family, the central vulnerability takes a particularly acute form. It is semiotic vulnerability associated with productive dependence. The partner depends on the platform not only to obtain requests, rides or deliveries. They also depend on the [Skip to content] which the environment informs them of their position, [illegible] shapes expectations

communicates the risk of restriction or exclusion. Metrics, incentive messages, quality alerts, promotions, acceptance standards, pricing dynamics and performance notifications operate as a private language for governing conduct. This is not simple, neutral operational information. It is a semiotic regime that organizes the subject's economic experience and shifts onto them the costs of interpreting an environment whose material functioning they cannot audit on their own.

This structure appears clearly in the materials examined. iFood states that it does not supervise the courier's activities "through the platform or by any other means", yet at the same time provides for ratings, review of complaints, minimum criteria related to the obligations assumed towards customers and establishments, and cases of deactivation and inactivation on the platform IFOOD. 99, even more explicitly, structures the governance of the partner through an intermediation fee, objective criteria for use of the app, acceptance and completion metrics, the possibility of temporary ride restrictions and account cancellation in cases defined at its sole discretion, including for registration issues and inappropriate conduct 99. The overall design speaks for itself. The platform asserts independence at the contractual end and intensifies governance at the operational end.

That is why the dogmatic problem cannot be reduced to the simplistic dichotomy between autonomy and subordination. What is at stake is the legal control of a private productive infrastructure that materially conditions the continuity of the partner's economic life. Opacity about the distribution of opportunities, prioritization criteria, variable pay parameters, the effects of ratings and the causes of restrictions bears, in this context, not merely on abstract contractual comfort, but on the very material living conditions of people who depend on this environment to work. The governance of the app, here, does not regulate merely a user experience. It regulates access to income, minimum predictability of livelihood and the practical possibility of remaining economically active.

Hence the centrality of open auditability in this subtype. Relevant rule changes, changes in calculation, reconfigurations of priority, redefinitions of metrics or [illegible] rial impact cannot be shielded by a generic discourse of [illegible] algorithmic optimi

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verifiable. This does not mean fully opening the system, nor turning the Judiciary into the platform's technical administrator. It means requiring sufficient institutional intelligibility about whatever significantly affects the distribution of opportunities, the formation of earnings, the imposition of restrictions and the functional continuity of the partner's presence in the ecosystem. Without this minimum, the platform concentrates at once the power to organize economic activity and the power to make opaque the facts needed to contest it.

In environments of captive productive enjoyment, mutability is not limited to updating the interface or improving operations. It can substantially degrade the functional utility of the partner's continued presence. Changes in request distribution criteria, pricing parameters, eligibility rules, incentive models or reputational weights may preserve the program's name, the appearance of partnership and even the formal existence of the account, while significantly hollowing out the economic utility that justified joining and sustained the continuity of productive enjoyment. The legal test cannot be merely whether the account remains active. It must be whether the partner's functional position in the environment remains substantially equivalent to the one that structured their legitimate expectation of earnings and continued presence.

The evidentiary standard compatible with this type of conflict requires a more sophisticated reconstruction of the productive experience. It is not enough to show that earnings fell or that there was a one-off block. The relation between the governance mechanism and the functional impact must be reconstructed. This may involve request history, variations in pay, in-app communications, performance alerts, criteria disclosed or omitted, restriction records, rating patterns and comparative data on the change in the environment. This subtype has recurrent blind spots that must be avoided. The first is to treat fluctuations in earnings as a purely natural risk of the activity, when they may result from an opaque unilateral reconfiguration of the distribution infrastructure. The second is to treat the final sanction as an isolated event, without reconstructing the regime of conduct, incentive and threat that preceded it. The third is to accept the lack of transparency about opacity as an inevitable consequence of technology, when this very opacity is part of the central legal prob

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The possible dogmatic consequence, in this subtype, tends to revolve around abusive practice through structural opacity, qualified informational insufficiency, a defect in the productive supply regime and the unlawfulness of functionally degrading changes not accompanied by compatible restoration. In borderline cases, especially when the combination of mutability, metrics, sanctions and restrictions reveals a stable program of normalizing losses and capturing conduct, there may be room for a reading in terms of abusive teleology. The most adequate institutional response will tend to favor preservation and disclosure of minimum records, duties of verifiable reasoning, review of restriction criteria, intelligibility about relevant parameters for distributing opportunities and functional restoration of the regime whenever the platform has, by design, degraded the productive utility it offered as infrastructure.

This incidence does not dissolve the subtype into undifferentiated labor law, but neither does it allow itself to be neutralized by contractual self-descriptions of formal autonomy. The IOC regime makes it possible to capture precisely the zone in which the platform supplies a governed productive environment and thereby comes to organize access, continued presence, visibility, intelligibility and contestation in economically relevant terms. It is at this point that iFood and 99Food, on the one hand, and Uber and 99, on the other, cease to be merely delivery or mobility apps and reveal themselves as private infrastructures of economic possibility. When this infrastructure is offered under opacity, unilateral mutability and concentrated sanctioning governance, the problem is no longer merely contractual nor merely technological. It is a problem of the institutional controllability of supply in a context of productive dependence.

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The competition-law dimension of the typology of the Immaterial Object of Consumption does not stem from an external thematic graft, but from the very logic of the governed supply regime. When the platform administers visibility, access, comparability and intelligibility within the ecosystem, it organizes more than the end user's enjoyment. It also organizes, in a materially relevant way, the conditions under which economic agents compete for attention, preference, trust and conversion within the environment. Competition, in this context, does not appear as a problem separate from consumption, but as an institutional continuation of the same governance of enjoyment described in the preceding items. The platform that governs the user's experience governs, at the same time, the perceptible field in which competition becomes possible, legible and economically effective.

This parallel finds solid grounding in the reading of Daniel Firmato[816] de Almeida Glória, for whom competition protection and consumer protection are not autonomous or rival ends, but instruments aimed at shaping a transparent, healthy, harmonious and fair market, in which a plurality of suppliers, freedom of choice, respect for the consumer and the quality of products and services are kept in balanced tension with economic freedom GLÓRIA.

This perspective makes it clear that competition matters here not as a discipline foreign to the IOC, but because the preservation of real choice, meaningful plurality and market legibility is part of the very protection of enjoyment under the CDC. If competition, read in this way, is not an end in itself, but an instrument for protecting an uncaptured environment of choice, then the architectural governance of the platform, when it distorts the field of choice, already acquires competitive relevance sumer experience itself

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This conclusion is reinforced by the centrality that Glória attributes to freedom of choice and to information as the common core between competition and consumer protection. The author states that the consumer's freedom of choice constitutes the primordial point of all competition law and that such freedom brings with it information as a guiding principle, because whoever does not know is not truly free to choose GLÓRIA.

In platform ecosystems, this formulation gains new density. The platform does not merely offer alternatives. It produces, through interface, curation, *ranking*, recommendation, highlighting, reputation and the semantics of the environment, the conditions under which these alternatives can be perceived as real, comparable or preferable. The competition problem, therefore, is no longer reduced to the formal presence of multiple agents in the market. It comes to involve the way in which the perceptible market itself is administered by whoever controls the infrastructure of appearance.

It is precisely for this reason that the competition reading must reject the so-called myth of competition, that is, the idea that the mere apparent multiplicity of options would be enough to guarantee factual freedom of choice. Glória observes that the existence of options does not, by itself, mean real freedom for the consumer, especially when products, services and contractual clauses present themselves with a homogeneity capable of obscuring genuinely distinct alternatives GLÓRIA. On platforms, this warning becomes even more serious.

Homogenization does not occur only on the plane of the product or the contract. It may be produced by the governance of the interface itself, when the environment artificially brings certain offers closer, renders others invisible, shifts what is sponsored into the zone of the apparently organic, manipulates comparability and administers the user's perception of what is worth more, appears more or seems more reliable. The illusion of plurality may thus coexist with severe compression of the real conditions of choice.

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intelligence about the behavior of users and suppliers, it ceases to be merely the environment in which competition takes place. It becomes an agent in its material shaping. In markets of this kind, internal preferencing, self-preferencing, informational barriers, capture of competitive intelligence and opaque discrimination do not necessarily depend on overt acts of exclusion. They may operate through structural micro-advantages, produced by the continuous administration of the visibility, comparability and intelligibility of the ecosystem.

The platform does not need to formally expel a competitor to restrict its competitiveness. It is enough to govern the perceptible field asymmetrically, making certain offers more legible, more reliable, faster, more highlighted or more "natural" in the user's eyes.

At this point, Glória's contribution allows a particularly felicitous link between consumer and competition. The author maintains that, in a market deformed by oligopolies, cartels and dominant positions, the consumer's vulnerability intensifies because their freedom is compromised and, at times, they have no choice but to contract with the supplier that dominates the economic sector in question GLÓRIA. On platforms, this logic reappears in reconfigured form. The dominant position does not always manifest itself as a classic monopoly over a physical good or as an explicit cartel among traditional companies. It may manifest itself as dominance over the private infrastructure that organizes the encounter between user and market. The consumer still sees "several options", but the practical conditions under which these options appear, are compared and are selected have already been shaped by the agent that governs the environment. Freedom of choice does not formally disappear. It is administered.

This shift is central to the *Lex Plataformae*. The platform does not control only a distribution channel. It controls the practical semantics of competition within the environment. It defines, or at least strongly conditions, which competitors will be visible, on what terms they will be compared, under what reputation signals they will appear, what kind of friction they will suffer, what strategic data will be extracted and how the user will perceive the very space of choice. To that [illegible] competition ceases to be merely

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depend on the private architecture of the ecosystem. The governance of enjoyment and the governance of competition overlap. The same mechanism that affects the consumer's experience also affects the concrete freedom to compete of the economic agents that depend on the platform to appear, sell, circulate or reach an audience.

The task here is not to reconstruct the entire theory of infringements of the economic order. The task is to establish reading parameters for situations in which the platform, by governing enjoyment, also comes to govern the perceptible conditions of competition. The question becomes less the exhaustive definition of the competition infringement and more the requirement of institutional controllability over mechanisms of visibility, comparison, ranking, prioritization and strategic use of ecosystem data. Read in this way, the IOC regime does not replace competition law. It provides an entry grammar for understanding when the architecture of the consumer's experience has already become, simultaneously, the architecture of competitive advantage.

It is at this point that the parameters presented earlier acquire a specific competitive function. Open auditability applies as a requirement of minimum intelligibility over relevant criteria of *ranking*, highlighting, recommendation, preferencing, economic moderation of the environment and any use of strategic data obtained from the intermediation itself. Without this, the platform governs competition from self-legitimated obscurity, turning opacity into structural advantage. Functional value equivalence, in turn, makes it possible to control rule changes that, without formally excluding certain agents, significantly downgrade their practical position in the ecosystem, emptying the utility of remaining in competition under the pretext of updating, optimization or a change of internal policy. Semiotic vulnerability helps explain why competitive harm also runs through the private administration of the user's perception. And abusive teleology comes into play when the design of the environment no longer merely organizes circulation and comes to programmatically exploit the gatekeeper position to extract competitive advantage from the very power to govern the perceptible market.

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corollary of the other, but both go hand in hand as legal guideposts of the market, precisely to correct deformations produced by economic power and by the corrosion of free competition GLÓRIA. This fits the reality of platforms precisely. When the platform controls the environment of circulation and competition, consumer protection cannot be limited to the final object acquired or to the final content displayed. It must reach the way in which the market itself is privately and architecturally produced. Otherwise, consumer protection would remain blind to the mechanism that manufactures, behind the appearance of plurality, the material conditions of reduced choice and compressed competition.

The perspective also makes it possible to refine the institutional reach of consumer choice. Competition is only fully justified when it prevents price setting, the supply of goods and economic power from being at the mercy of structural abuses, preserving a market in which the consumer is genuinely the central character, and not a mere residual recipient of the effects of economic domination GLÓRIA. In platform ecosystems, this centrality requires understanding that the consumer no longer stands only before competing economic agents. They stand before a private organizer of the competitive arena itself. It is this structural mediation that diminishes the usefulness of purely formal traditional categories. The consumer suffers not only when a dominant agent overtly excludes rivals. They also suffer when the architecture of the environment silently reduces comparability, obscures alternatives, normalizes induced preferences and turns choice into a path selected in advance.

The possible institutional consequence is not to assert that every intermediation problem is automatically resolved by the CDC, nor that all interface governance constitutes, by itself, a competition infringement. Whenever the platform, in organizing enjoyment, also comes to organize, in an opaque and asymmetric way, the perceptible conditions of competition within the ecosystem, there must be a requirement of controllability commensurate with the dual dimension of the problem. This means, at the very least, minimum auditability over relevant ranking [illegible]y about highlighting and preferencing practices, control of the functional equivalence of remaining in competition, and a non-naive reading of the use of data o[illegible]

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intermediation. To this extent, the IOC regime does not absorb antitrust, but prevents architecturally governed competition from remaining invisible to consumer law doctrine.

The result is a thesis modest in its formal competition-law ambition, but strong in material reach. The platform that governs visibility, access and intelligibility also governs the arena in which consumers choose and competitors compete. In this arena, freedom of choice may be preserved, compressed or theatricalized. Plurality may be real or merely staged. Comparison may be enlightening or administered. Competition, then, can no longer be thought of only on the plane of the abstract structure of the market, but also on the plane of experience concretely mediated by architecture. It is at this point that the *Lex Plataformae* reveals its most sensitive dimension. By governing enjoyment, it comes to govern competition without needing to name it as such. The work of Law, here, is precisely to make this governance institutionally visible and controllable.

NOTES

816. The author is widely known as Daniel Firmato; however, the cataloging record of his work expressly gives Glória as his last surname, which is why, in this thesis, in keeping with the ABNT standard and the required formal conventions, the author is referred to by that surname and not by the more popular one. ↩

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CONCEPTS IN THIS SECTION

Open auditability

The clearest institutional consequence of the applied typology is the passage from the individually perceived conflict to the injury structurally produced by the supply regime. In platform-governed ecosystems, opacity does not operate merely as an episodic difficulty of proof, nor does mutability appear merely as a scattered contractual inconvenience. When the absence of verifiable trails, the adoption of non-auditable change regimes and the opaque administration of sanctions, priorities and reconfigurations become ordinary elements of the environment, the problem ceases to be adequately understood as a sum of isolated harms. What emerges is a form of injury that projects itself onto the very controllability of enjoyment. It is at this point that collective redress ceases to be a mere procedural convenience and imposes itself as a coherent dogmatic consequence of the IOC regime.

The basis of collective redress, here, lies not only in the circumstance that many consumers may be affected by similar facts. This finding, although relevant, would still remain too dependent on a quantitative logic. The central point lies elsewhere. In platform environments, the harmful source may reside in the very design of the supply regime, so that the unity of the problem does not stem primarily from the empirical repetition of episodes, but from the permanence of a single, repeatable and functionally expansive structure producing loss, opacity and asymmetry. The injury, then, is not merely plural. It is architectural. It arises from the way the environment

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That is why one may speak, in this context, of architecture harm. The expression does not refer to a simple technical defect of the system nor to a metaphorical category intended to embellish the argument. It refers to an injury produced by the very design of the supply regime, and therefore endowed with sufficient functional unity to justify collective institutional treatment. When the platform structures the environment so as to make relevant changes unverifiable, to obscure the relation between promise and delivery, to hinder reconstruction of sanctions, to volatilize essential records or to govern the experience by criteria whose intelligibility remains selectively concentrated, the injury is not limited to the consumer who first manages to perceive it or litigate it. It affects the very collective possibility of controlling enjoyment. The harm, thus, is not only to the individual result of consumption. It is to the institutional verifiability of supply.

This formulation is important because it prevents two recurrent errors. The first is reducing collective redress to a mechanism for aggregating individual claims, as if its function were only to make the handling of multiple similar event-harms more efficient. The second is inflating the structural discourse without demonstrating to what extent the unity of the problem stems from the very governance of the ecosystem. The parameter adopted here avoids both. Collective redress is justified when the harmful source remains unitary, repeatable and incorporated into the ordinary functioning of the platform. In this case, the problem lies not only in the quantitative repetition of the harm, but in the qualitative stability of the arrangement that produces it. Repeated opacity, persistent absence of history and non-auditable mutability together form a regime defect.

This reading follows directly from the centrality of open auditability in the IOC regime. If the controllability of enjoyment depends on minimum institutional intelligibility about changes, sanctions, presentation criteria, distribution mechanisms and other relevant aspects of the governed experience, then the systematic absence of these conditions already constitutes an injury that goes beyond the sphere of the single case. It is not merely a matter of saying that a consumer was left without sufficient evidence. It is a matter of recognizing that the environment [illegible] make precarious, at scale, the possibility of reconstructing the bond. The problem, in this scenario, lie

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in the bad luck of a specific user. The insufficiency of verifiable trails ceases to be an accidental procedural obstacle and becomes a mode of operation of the ecosystem.

The institutional consequence of this is clear. When the platform organizes supply under recurrent patterns of structural opacity, protection cannot settle for strictly retrospective and individualized remedies. Correction must reach the regime. Collective redress then proves particularly suited to impose injunctive, procedural and analytical measures capable of reintroducing institutional verifiability into the environment. This may involve duties to preserve minimum records, a requirement of verifiable reasoning for materially relevant sanctions, maintenance of an accessible history of relevant changes, explanation of minimum operational criteria of distribution, priority or ranking, and other measures aimed not only at repairing past harms, but at reorganizing the future conditions of controllability of enjoyment.

This corrective vocation is especially important because, in governed ecosystems, the repetition of the injury does not depend on an identical reiteration of external facts. It stems from the permanence of the same private decision structure. An opaque sanctions policy, a non-auditable regime of functional change, an interface logic that dilutes the essential under informational excess, a materially decisive ranking system without usable history or a trust architecture that absorbs and neutralizes contestation before it becomes litigation are all examples of problems whose unity lies in the design, not in the episode. The legal system loses responsiveness when it tries to treat each manifestation of this pattern as an isolated fact. Collective redress, on the contrary, makes it possible to bring the manifestations back to their unitary source.

This does not mean abolishing the role of individual protection. It remains indispensable, above all for the reparation of concretely experienced losses and for the situated reconstruction of certain specific impacts. What is asserted is that, when the litigation reveals a structural pattern of opacity, absence of trails, degrading mutability or non-auditable sanction, the adequate institutional response cannot be exhausted on the individual plane. Merely atomized treatment of the conflict tends results. On the one hand, it monetizes episodes without altering the machine that reproduces them. On

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of proof into the private failure of dispersed consumers, each obliged to face alone an informational regime designed precisely to hinder reconstruction. Collective redress corrects both deviations, because it shifts the focus from the event-harm to the governance that makes it normal.

The notion of architecture harm also helps explain why the indivisibility of the injury does not depend only on a material community of losses, but on the functional unity of the aggressing source. When the platform operates under the same opaque regime for all users placed within a given dynamic of enjoyment, the collective injury may reside precisely in the common subjection to an environment whose verifiability has been structurally compromised. The impact is not homogeneous in all its effects, but it is common in its matrix. All users are placed in an ecosystem that asymmetrically distributes meaning, evidence and capacity for contestation. The collective injury, then, is not limited to the final content of each one's loss. It bears on the very level of institutional controllability of the supply regime.

It is at this point that open auditability turns from a dogmatic standard into a condition of effectiveness of collective redress. Without it, the action of parties with collective standing, administrative protection bodies and regulatory and supervisory structures tends to run into the same opacity that already hinders individual reaction. With it, it becomes possible to transform the requirement of verifiability into the main object of protection, shifting the debate from isolated episodes to the shaping of the environment. Collective redress then comes to operate not only as a response to consummated harms, but as an institutional technology for reintroducing intelligibility, preserving evidence and containing private regimes that remain functionally impenetrable.

If the typical models analyzed demonstrate that the platform governs enjoyment through recurrent mechanisms of visibility, opacity, mutability, sanction and administration of trust, then the institutional response cannot remain confined to the horizon of the single lawsuit. The typology reveals precisely that certain harms are programmatic. Not because all cases are the same, but because the source that uins structurally the same. In these contexts, collective redress does not represent an expansionist dev

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appropriate way of treating injuries whose dogmatic unity is already given by the architecture of supply.

The result is a strong institutional conclusion, but a methodologically restrained one. The repetition of structural opacity, the persistent absence of verifiable trails and the adoption of non-auditable regimes of change and sanction naturally lead to structural injuries typical of collective redress because they make the very controllability of enjoyment a legally affected interest. What is protected, then, is not only the patrimony or the individual experience of dispersed consumers, but the institutional integrity of the conditions under which enjoyment can be understood, proven, contested and restored. When the private supply regime compromises these conditions on an architectural scale, the legal response must be equally capable of reaching the architecture. Otherwise, the system merely tallies harms while opacity keeps producing them in silence.

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The incidence of the CDC in platform ecosystems requires a functional reading of the relationship, capable of going beyond contractual self-descriptions that, although formally elegant, are materially insufficient to explain the real supply regime. In environments governed by private architecture, the dispute is not adequately resolved by the simple question of who acquires what at the end of the chain, nor by the isolated verification of professionalism, economic instrumentality or peripheral insertion of the subject in the ecosystem. The decisive fact lies in the way the environment concentrates power, organizes asymmetry of meaning, produces evidentiary asymmetry and administers the very conditions of access, permanence, visibility, verification and contestation. Whenever this functional subjection proves legally relevant, the neutralization of consumer-law protection by civil appearances of parity must be rejected.

This point is especially important because platforms frequently operate through strategies of formal mischaracterization of the relationship. In some cases, they present themselves as mere neutral infrastructure for the encounter of autonomous parties. In others, they qualify the relationship as business collaboration, technological partnership, pure intermediation or simple licensing of access to a tool. In all these arrangements, contractual vocabulary tends to shift attention from the effective governance regime to the symmetrical appearance of the contractual frame. The dogmatic problem, however, lies not in the drafting sophistication of the contract, but in the materiality of the subjection produced by the ecosystem. When the platform concentrates the power to modulate enjoyment, to redistribute informational risks, to govern evidence and to condition the continuity of the

ı the environment, formal parity comes to have limited

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It is in this context that deepened finalism appears here as a reading criterion and not as an autonomous object of doctrinal exposition. Its usefulness lies in preventing the figure of the consumer from being compressed by an excessively narrow reading of the final recipient, incapable of capturing relationships in which vulnerability stems less from the classic position in the economic chain and more from submission to a private environment of concentrated governance. The focus, therefore, is not on indiscriminately inflating the concept of consumer, but on preventing the dogmatics of continuous supply from being neutralized by formal classifications that ignore who actually bears the architecture of risk, opacity and functional dependence. In ecosystems of this kind, vulnerability does not dissolve because the subject earns income, uses the platform to make their activity viable or presents themselves, to some extent, as an economically active agent. What matters is whether they remain subject, in asymmetric terms, to the private regime that organizes meaning, visibility, permanence and evidence.

This reading is particularly relevant for reaching situations in which *sellers*, partners, productive users of infrastructure and other participants economically inserted in the environment remain exposed to the platform's unilateral governance to a degree materially incompatible with a simple presumption of parity. The *seller* who depends on ranking, reputation, visibility and opaque prioritization rules does not become immune to consumer-law protection merely because they sell. The partner who uses the infrastructure to produce income does not cease to be vulnerable merely because they earn revenue. The peripheral professionalized user does not automatically become the strong party to the relationship just because their activity has an economic purpose. In all these cases, the legally relevant question lies in the density of the platform's governance over their insertion in the ecosystem. If permanence, the intelligibility of the environment, the reconstruction of the conflict and the contestation of relevant decisions remain concentrated under the platform's private control, the a priori exclusion of the CDC by formal label loses traction.

That is why functional exposure to governance practices and semiotic vulnerability [illegible] as central dimensions of factual vulnerability. The subject is not [illegible] because they know less or because they have lower abstract economic capacity. They are vulnerable because t[illegible]

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produces the very legibility of the relationship, defines the criteria of internal relevance, administers the signals of trust, controls the records of what occurred and concentrates the power to change the conditions of enjoyment. On platforms, asymmetry is not limited to the content of the contract. It projects itself onto the way in which the reality of the bond can be perceived, narrated and proven. This form of vulnerability reaches not only the classic consumer, but also other subjects functionally exposed to the concentrated governance of the ecosystem.

The usefulness of Article 29 of the CDC[817] then appears with special force. Read functionally, it makes it possible to reach cases in which the subject, although not fitting comfortably into the traditional figure of the final acquirer as imagined in linear and simple relationships, is exposed to the commercial practices, supply methods and private governance mechanisms of the environment in a condition of legally relevant vulnerability. The point is not to dissolve every distinction between consumer and economic agent. It is to recognize that, in governed ecosystems, functional exposure to platform practices may produce situations in which consumer-law protection remains justified even when the relationship does not fit effortlessly into the classic picture of private domestic consumption. Dogmatics must be able to see the structure before deciding on exclusion.

This reading also prevents peripheral professionalization from being used as a universal screen against the CDC. In many platform environments, the subject may carry out their own economic activity, minimally organize their routine, earn income and still remain dependent on a private infrastructure they do not control, whose criteria of visibility, sanction, prioritization and evidence remain opaque and unilaterally modulable. There is no contradiction in this. The existence of the user's economic interest does not, by itself, eliminate the vulnerability arising from the governance of the ecosystem. The error would lie in presuming that any productive insertion automatically transforms structural asymmetry into a relationship between equals. On platforms, this presumption is frequently misleading precisely because the appearance of autonomy coexists with severe concentration of private power over

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The dogmatic consequence of this framing is important. The CDC may apply not only where there is a classic final acquisition, but also where the platform produces relevant functional subjection to a private governance environment that administers, in concentrated form, access, permanence, visibility, verifiability and contestation. In these cases, the consumer by equivalence does not arise as a figure artificially expanded by theoretical generosity. It arises as a necessary response to supply models that have shifted the center of vulnerability into the architecture of the environment. The question then ceases to be whether the subject is "too much of a businessperson" to deserve protection and becomes whether the relationship, as structured, remains marked by material asymmetry of power and by submission to legally controllable private governance.

This does not authorize indiscriminate inflation of the category. The criterion remains demanding. Not every participant in a platform ecosystem will be a consumer by equivalence. Not every relationship economically mediated by technology will justify the incidence of the CDC. What is asserted is something more delimited and more serious. When the platform organizes the very intelligibility of the bond, concentrates the evidence of what it does, opaquely distributes opportunities and risks and conditions the continuity of the subject's insertion in the environment, the automatic exclusion of consumer-law protection by reference to nominal appearances of professionalism or partnership becomes methodologically poor and normatively dangerous. What decides is the real structure of subjection, not the contractual appearance of horizontality.

Read in this way, coherence is preserved with the constitutional matrix and with the functional reading of Article 29 of the CDC. Protection does not move beyond the system. On the contrary, it emerges from the very need to prevent new regimes of continuous and governed supply from escaping control by means of private vocabularies that simulate parity where there is dependence, simulate neutrality where there is concentrated management and simulate simple intermediation where there is actual unilateral organization of the experience. Deepened finalism, here, [illegible]ecture. It enters as a tool to prevent dogmatic blindness before [illegible] vulnerability no longer presents itself in the classic garb of consumption, but remains fully alive u[illegible]

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817. “Art. 29. For the purposes of this Chapter and the following one, all persons, whether determinable or not, exposed to the practices provided for therein are treated as equivalent to consumers” BRASIL. In the case law of the STJ, the provision works as one of the bases of the so-called deepened finalist theory, because it allows, in exceptional cases, the strict reading of the final recipient to be mitigated and the application of the CDC to be recognized for natural or legal persons who, although not final consumers in the classical sense, find themselves in a situation of vulnerability or exposed to abusive commercial and contractual practices; the Court describes Art. 29 as bearing its own and very broad concept of consumer by equivalence, especially directed at the chapters on commercial practices and contractual protection, and draws from it the possibility of treating the vulnerable legal person as equivalent, above all when it acts outside its core of specialty, as a way of preventing formal parity from neutralizing the material protection of the CDC. ↩

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The application of the regime of the Immaterial Object of Consumption to environments of trust administration starts from a structural fact that usually escapes the more traditional legal reading. In platform-governed ecosystems, the conflict does not begin when the user decides to litigate, complain or formalize disagreement. In many cases, it is governed before that. The architecture of the environment, the interface language, the response protocols, the communicational tone, the signs of closeness and the ordinary management of expectation can operate as mechanisms for the prior absorption of critical resistance, the accommodation of loss and the practical neutralization of contestation. The utility supplied, in these cases, is not limited to the main object of consumption. It also includes a functionally administered regime of trust, by which the environment organizes the way the user interprets friction, metabolizes frustration and decides whether or not the experience suffered deserves institutional translation.

This point is important because it prevents the analysis of the supply from remaining confined to the written contract, to the formally provided information or to the isolated clause governing a given aspect of the relationship. On platforms, trust is not a spontaneous by-product of good performance of the service. Frequently, it is produced, calibrated and maintained by design. The cordial interface, the assistive tone, the diffuse promise of care, merely performative transparency, the appearance of communicational horizontality and the calculated personalization of language materially make up the environment of enjoyment. They do not function merely as brand ornament. They function as a technique for governing perception, organizing the threshold from which loss will be perceived as acceptable, abuse will be read as a ntestation will be perceived as unnecessary, premature or

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That is why, in this family, trust administration must be treated as a functional dimension of the supply itself. The user does not consume only access, utility, content or performance. They consume an environment that presents itself as intelligible, assistive, responsive and, to some extent, worthy of practical credit. This trust need not take the solemn form of an express guarantee to produce relevant legal effects. It is enough that it act in a stable way on the ordinary interpretation of the experience and on the user's willingness to endure friction, accept vague justifications, normalize losses and remain in the cycle of use even when enjoyment has already been functionally degraded. The platform, in this context, does not administer only initial adherence. It administers tolerance of harm and the user's energy to react.

This administration becomes especially sensitive in environments of continuous consumption, in which the relationship is not exhausted in a single act of acquisition and in which small frustrations can be absorbed, reinterpreted and reintegrated into the ordinary flow of the experience. Loss ceases to appear as an exceptional event and comes to be metabolized as part of the normal functioning of the system. The same happens with friction. Instead of promptly triggering a reading of inadequacy or abusiveness, it can be reconfigured by the platform as a technical adjustment, a temporary limitation, an understandable inconvenience, a security measure, a necessary update or a simple stage of use. The language of the environment, in this process, does not merely describe the frustration. It administers it. And, by administering it, it redefines the very time at which the conflict emerges institutionally.

In this key, trust ceases to be a psychologically vague element and becomes a precise dogmatic problem. What matters is not whether the user “felt” more or less welcomed, but whether the platform structured signs, routines and protocols capable of shifting the reading of loss, reducing the critical force of the experience and weakening the probability of intelligible contestation. Persona, operational cordiality, messages of closeness, excessively reassuring simplifications, answers with an explanatory appearance and service circuits designed to absorb disagreement [illegible] construction of the problem can operate, together, as a technique [illegible] rust, thus, is no lo[illegible] merely subjective credit deposited by the user. It is a private mechanism for orga[illegible]

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The central vulnerability of this subtype is, once again, semiotic vulnerability, but now intensified by the management of trust as a form of modulating resistance. The user is not only facing an opaque environment or criteria they do not control. They are facing an ecosystem that produces signals of intelligibility and care sufficient to induce accommodation, even when the materiality of enjoyment has already been compromised. The result is relevant. Contestation can be postponed, demobilized or dissolved before it acquires institutional form. The conflict does not disappear. It is governed in its pre-legal phase, through mechanisms that turn loss into tolerable noise, opacity into normality and asymmetry into absorbable experience.

This point calls for caution so as not to turn all corporate cordiality into unlawfulness. The problem does not lie in the use of accessible language, in polite customer service or in the legitimate attempt to maintain a functionally stable relationship with the user. The problem begins when these elements come to form, structurally, part of a regime of practical neutralization of conflict. The platform may, for example, offer a sense of transparency without delivering real intelligibility, produce an impression of listening without opening effective avenues of contestation, mobilize a human tone without assuming proportional duties of reasoning or justification and distribute signs of care that function less as adequate information and more as semiotic cushioning of criticism. In these cases, trust administration ceases to be a quality of the service and becomes a technology for containing resistance.

The evidence compatible with this subtype requires reconstruction of the discursive and procedural environment in which frustration becomes legible or, on the contrary, is diluted. This includes analysis of the interface language, the customer service flows, the response templates, the explanation routines, the way the platform frames loss and the stages through which the user is led to accept, wait, relativize or close the disagreement. It also requires attention to recurring blind spots. The first is the tendency to consider the discursive dimension of the supply irrelevant, as if only clauses and formal acts produced legal effects. The second is the tendency to treat [illegible] ling of the user, and not as a functional arrangement of the [illegible] hird is the tendency to suppose that the conflict begins only when

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an external complaint or litigation arises, ignoring that the platform can govern precisely the moment at which loss becomes institutionally perceptible.

The possible dogmatic consequence, in this subtype, is not reduced to a classical informational defect nor exhausted in misleading advertising in the strict sense, although it may engage with both. The problem tends to gravitate around qualified informational insufficiency, abusive practice through opaque administration of expectation and, in denser cases, abusive teleology when the neutralization of contestation proves to be integrated into the ordinary functioning of the ecosystem. The legal response compatible with this framework tends to require more than simple retrospective reparation. It may call for correction of customer service flows, reinforcement of intelligibility, prohibition of functionally misleading discursive routines, procedural duties of reasoning and the design of avenues of contestation that serve not merely to absorb disagreement, but to make it effectively processable and verifiable.

The usefulness of the subtype lies precisely in making visible a form of governance that usually escapes the radar of traditional control. In many environments, the platform does not need to formally prevent conflict in order to reduce it. It is enough to administer the way it is perceived. It is enough to organize tolerance, semiotic pacification and the metabolization of friction within the very cycle of enjoyment. The control of the IOC, therefore, cannot remain tied to formal information or to the written contract. It must reach the way the environment produces meaning, distributes trust and governs the very practical emergence of contestation. It is on this plane that the neutralization of conflict by architecture ceases to look like a mere communicational detail and reveals itself as a material element of the governed supply.

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The recurring circulation of rumors, leaks and unofficial anticipations about skins, champions, events and reconfigurations of the game environment makes it possible to identify, in the Riot Games ecosystem, an especially relevant zone of private administration of expectation that is not exhausted by the platform's formal communication. The legally relevant point does not lie in asserting, simplistically, that all unofficial information must be attributed directly to the company, nor in presuming absolute control over any parallel circulation of signs within the community. The problem is a different one. It is a matter of recognizing that, in ecosystems of continuous enjoyment, the consumer's expectation can also be organized in a functionally effective way through informal channels, provided that these channels stabilize in the environment as predictable circuits of anticipation, desire and preparation of economic conduct. In that case, the formal announcement ceases to be the only relevant center for shaping trust.

Hypercuratorial anticipation, already delimited as a mechanism for governing the present and the future of enjoyment, takes on a specific form here. It does not operate only through *roadmaps*, *teasers*, *trailers*, *dev blogs*, seasons or express announcements. It can also operate through unofficial circuits of curated rumor, in which partial images, technical references, fragmentary leaks, presumed calendars and speculations reputed plausible are organized by *leakers*, influencers and channels specialized in narratives of a consumable future. The rumor, in this context, does not remain mere noise external to the supply. It comes to perform an ordering function, because it introduces a temporality of pre-enjoyment in which the user ranks expectations, postpones present decisions, reserves resources and reorganizes their

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n the basis of unconfirmed signals that are nonetheless socially

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The essential aspect does not lie in the abstract existence of anticipation, but in the economic productivity of its unofficial operationalization. When the content circulates without official confirmation, the platform preserves a margin of plausible deniability and strategic flexibility to reformulate schedules, alter products, recalibrate offers or simply harvest reactions without fully assuming, in communicational terms, what was anticipated. At the same time, the expectation stays in circulation, engagement intensifies and the community remains in a state of interpretive readiness. An asymmetric arrangement is thus produced in which the semiotic and economic dividends of anticipation can be captured without proportional absorption of the legal and communicational burdens of the formal announcement. Ambiguity then ceases to be a mere transparency deficit and comes to function as a potential technique for governing expectation.

This dynamic is especially relevant in Immaterial Objects of Consumption because, in them, the will to consume is not formed only at the classical instant of the express offer. It is built in a prolonged ambience of signs, promises, updates and reconfigurations, in which the user learns to wait, to interpret, to bet and to position themselves in the face of possible futures of enjoyment. In such environments, consumption is preceded by a temporal economy of expectation. One does not buy only the available object. One also buys on account of the anticipated object, the sensed event, the awaited *skin*, the imagined update. The future comes to organize the present of consumption. That is why stabilized and functionally exploitable rumors can form part, even if obliquely, of the effective governance of the ecosystem.

Influencers and specialized intermediaries perform a particularly relevant function in this process. They are a mass of agents responsible for converting scattered technical data into an emotionally intelligible narrative, stabilizing leaks as plausible promise, transforming fragmentary material into a horizon of expectation and thereby keeping the community in continuous mobilization around what has not yet been officially made available by the developer. Their role is not merely informative. It is also semiotic and economic. They produce interpretive cohesion around the rumor [illegible] ambiguous signs to begin influencing spending plans, purchase

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to wait and the ranking of interest within the ecosystem. The

rumor then ceases to be mere community talk and comes to function as an informal infrastructure for administering desire.

The dogmatic usefulness of the point lies in showing that, in contexts of hypercuratorial anticipation, the consumer's trust can be materially shaped outside the traditional limits of the formally delimited offer. This aggravates semiotic vulnerability, because the user comes to decide on the basis of signs that are at once effective and displaced. Effective, because they guide real economic conduct. Displaced, because they remain formally unassumed, hindering direct attribution of liability and making it harder to reconstruct the link between the administration of expectation and the practical impact on enjoyment. The environment thus produces a sophisticated form of strategic opacity. The sign circulates with enough social force to govern decisions, but with enough legal ambiguity to protect, at least in part, whoever benefits from its effectiveness.

The hypothesis upheld here does not depend on proving the platform's absolute dominion over all informal circulation. That objection, although frequent, misses the target. The legal problem does not lie in demanding full control of the origin of each leak, each channel or each speculation. It lies in recognizing that, once a specific, repeated expectation materially apt to guide consumption decisions has settled in the ecosystem, the platform no longer remains in a neutral position. It can administer that expectation through strategic silence, calculated evasion, categorical denial, later incorporation of the anticipated content or simple functional tolerance of the circulation that keeps the environment in a state of engagement and readiness. What matters, therefore, is not absolute sovereignty over the birth of the sign, but responsibility for managing the expectation once it has come to form, in a relevant way, part of the consumer's decision-making economy.

From this perspective, it becomes possible to consider a normative consequence proportional to the real limits of the platform's governance. It is not a matter of imposing an impracticable duty to prevent every rumor, every leak or every community speculation. Nor is it a matter of turning the company into a universal [illegible] What can be demanded, in a key compatible with the IOC [illegible] more delimited a

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clarification, non-contradiction and justification when ecosystemically relevant rumors, endowed with sufficient social credibility and functionally apt to influence spending plans, purchase priority or the wait for enjoyment, are the object of specific prompting by users or become persistently integrated into the consumption environment. Omission, in this framework, ceases to be a simple neutral communicational choice and may become a relevant informational insufficiency in a context of operative expectation.

This framing makes it possible to distinguish dogmatically different situations. The first is that of silence or an evasive answer in the face of an expectation already stabilized and economically influential. In it, the problem may lie in the strategic refusal to administer information materially relevant to the consumer's planning. The second is that of a specific denial later contradicted by a substantially equivalent practice of the platform itself. In that case, the contradiction between communication and conduct may acquire its own weight for the examination of deceptiveness and of legitimately formed trust. The third is that of the confirmation or positive inducement of an expectation later frustrated without proportional clarification. Here, the question is no longer limited to the absence of delivery, but reaches a reinforced duty of transparency, justification and possible restoration compatible with the consolidated trust. In all these situations, the point is not to punish the mutability proper to continuous digital services, but to prevent their structural flexibility from being converted into communicational immunity.

The theoretical gain of this shift is significant. It shows that, in IOCs, consumer protection cannot remain hostage to the classical model of an offer that is formally delimited, instantly verifiable and externally separable from the community ambience that precedes it. In ecosystems of continuous enjoyment, trust begins to be produced before the express announcement and outside the traditional limits of the isolated advertising piece. What is governed is not only the final purchase, but the temporality of waiting, the reserve of desire, the willingness to postpone, the affective economy of the future. When the platform exploits, tolerates or administers [illegible]y curated expectation, liability tends to fall less on the isolated [illegible]nd more on the way private governance responds to its practical effectiveness in organizing the consum

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Thus, in ecosystems of continuous enjoyment, strategic opacity is not only a passive transparency deficit. It may be an active technique for the economic exploitation of ambiguity. Therefore, the control of the IOC must also reach the informalized zones of administration of expectation, whenever they cease to be spontaneous community noise and come to form, functionally, part of the governance of desire, waiting and consumption planning. The rumor, when it stabilizes as a social infrastructure of pre-enjoyment, is no longer outside the legal problem. It becomes one of its subtlest and most dogmatically demanding forms.

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PARAMETERS WITH AN ENTRY IN THIS SECTION

Functional restoration and regime correction

The typological transposition carried out makes it possible to draw a more dogmatically relevant result than the mere illustrative expansion of the field of incidence of the Immaterial Object of Consumption. What the adherence tests make visible is that the keys of the regime do not remain dependent on the original laboratory in which they were formulated. On the contrary, they prove traceable to structural and functional equivalences between distinct ecosystems, even when those ecosystems diverge sharply in sectoral appearance, in technological language or in the immediate object of circulation. The common point lies not on the surface of the environment, but in the way enjoyment is governed, expectation is administered, intelligibility is modulated and contestation is made more or less practicable by private design.

This result matters because it moves the IOC regime from a merely inventive position to an effectively decidable one. The usefulness of the category lies not in producing new nomenclature to describe the digitization of economic life, but in offering stable criteria to recognize when, why and under what conditions certain forms of continuous supply require common legal treatment. Governed enjoyment, semiotic vulnerability, evidentiary asymmetry and private modulation of the environment thus cease to appear as scattered impressions about specific sectors and come to make up an institutionally reusable vocabulary. Without this effort of

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At the same time, the typological transposition makes it possible to identify something perhaps even more important. In many of these ecosystems, the environment that governs enjoyment is the same one that governs the way frustration will be perceived, the language by which it will be justified, the difficulty of proving it and the channels through which any dissent may be neutralized even before it turns into an institutionalizable conflict. The problem, then, no longer lies only in the content of the loss or in the intensity of the harm individually experienced. It also lies in the private administration of the conditions under which that loss becomes narratable, demonstrable and contestable. This fact explains why certain disputes seem small when observed in isolation, but reveal a much denser structure when reconstructed from the modulation mechanisms that produce them.

By keeping distinguishable, in each family of platform, the mechanism of injurious modulation, the corresponding evidentiary problem and the rationality of restoration required by the regime, both empty abstraction and casuistic dispersion are avoided. Injurious modulation is not to be confused with its proof. The evidentiary difficulty is not to be confused with the injury itself. And adequate restoration cannot be deduced automatically from traditional categories that treat every loss as susceptible of undifferentiated monetization. In ecosystems of continuous enjoyment, these three dimensions need to be seen in connection, but not in collapse. It is this internal distinction that allows the IOC regime to preserve density and usefulness, instead of becoming a formula too broad to guide any concrete response.

What emerges from the analysis of the models is not, therefore, the conclusion that the IOC would serve for almost everything. What emerges is something far more demanding and more useful. It becomes clear what effectively changes when the incidence of the regime is recognized. The way of narrating the conflict changes, because attention shifts from the isolated event to the supply program. The way of proving changes, because the opacity of the environment ceases to be taken as a neutral fact and comes to be treated as part of the legal problem itself. And the way of [illegible]es, because the response can no longer automatically be satisfied with [illegible] valents whenever the injury reaches continuity, intelligibility, functional position, practical trust or c

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The typological path shows that the controllability of the IOC does not depend on freezing innovation, imposing absolute transparency or turning every platform into a parastatal entity. It depends on something more sober and more defensible. It depends on bringing the private governance of the environment back to verifiable standards of intelligibility, evidence, equivalence and correction. When this does not occur, precariousness ceases to be a mere contingent trait of the digital and comes to function as the ordinary mode of organizing the consumer's experience. It is precisely against this naturalization of precariousness that the regime asserts itself.

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CONCEPTS IN THIS SECTION

Unlawful act of architecture

PARAMETERS WITH AN ENTRY IN THIS SECTION

Functional restoration and regime correction

The journey undertaken in this work began with the finding that there is a type of consumption in which the subject imagines being on his own ground, but moves only within a floor that is granted, revocable and reconfigurable. This was not, from the outset, an ornamental figure, but an institutional description. The access, the permanence and the meaning of what was acquired become dependent on continuous administration that does not present itself as management, but as technical normality. It is precisely this camouflage that makes the conflict hard to see, hard to say and, therefore, hard to protect against.

If Law is the language of the earthly gods, the central task does not lie in demonizing said deities, nor in pretending that they do not exist. The question is, from the outset, centered on the need to establish a translation. On the need to convert a power that sells itself as nature into a form that is controllable, contestable and attributable, without which the will of the strongest once again operates as normality by sheer capacity for imposition. The ethics of this study is not born of the desire to punish technology for being technology. It is born of the commitment to prevent a decision organized by architecture from being demoted to chance, the rules of the game or

That is why the image of Dante Alighieri's *Inferno* was of interest from the start. His work exposes the degradation of the human bond when intelligence ceases to be an instrument of understanding and comes to operate as a ruse, producing an appearance of legitimacy in order to violate trust. Frictions are neutralized as technique, opacity becomes an element of strategy and the consumer is pushed to negotiate with the virtual world created by the supplier itself to satisfy its own interests.

To point a way forward, however, does not mean seeking a heroic gesture of demolition, as if it were desirable to put out the sun to solve the problem of the shadow. To point a way forward means proposing criteria capable of taming the asymmetry without destroying the infrastructure.

Here, the image of the Egyptian deities Isis and Ra[818] is able to compose the decisive ethical perspective. In the myth, the Sun-God does not cease to be the sun because someone hates him, nor does he lose his centrality through a mere desire for confrontation. What happens is subtler and much more important. Ra reigns over all, but is not invulnerable. His vulnerability appears in a minimal detail, a remnant of himself, an almost negligible trace of his own body. At the same time, Isis does not wish to annihilate the sun. It is not in her interest to replace the order of the world with one centered on herself by mere whim. Her interest is to force the sun to recognize that it is not absolute. To share with her part of his power.

Isis produces the serpent from the substance of Ra himself and, with that, turns the excess of power into an instrument for manifesting its limit. The venom does not destroy the Sun as a principle of the world. In exchange for the cure, Isis demands only that Ra reveal to her the name he keeps for himself. The name that does not circulate, that is not confused with titles, images or apparent manifestations of his grandeur. It is here that the analogy takes concrete form. The true name, in the myth, is neither a verbal ornament nor an irrelevant mystical secret. It is a “magic word”, almost like a command password. It is the point at which power and vulnerability cease to be pure force and enter the field of intelligibility. Isis does not long to know

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humiliate him. She demands his name in order to transmute his power, establishing the control that th

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power ceases to operate as pure natural presence and becomes invocable, delimitable and, therefore, obliged to answer for its acts.

What Consumer Law lacks in the face of the *Lex Plataformae* is not moral indignation, nor a rhetorical repertoire of denunciation. It lacks the vocabulary to render demonstrable the decisions that today pass for the mere functioning of the system. The language to reconstruct a pattern and not merely react to an episode. It lacks a method to separate legitimate alteration from abusive degradation, ordinary mutability from normalized extraction, management of the environment from an exploitative program inscribed in the architecture. That is why the category of the Immaterial Object of Consumption and the criteria of open auditability and functional value equivalence do not appear, in the end, as dogmatic props. The concepts operate as a civilized version of the snake of the myth. They are the minimal mechanism that obliges power and, consequently, whoever wields it, to assume its own responsibilities.

To name is not to poeticize. To name is to move power from a regime of self-evidence to a regime of contestability. As long as the platform can say that it merely functions, merely updates, merely executes, merely applies rules, the conflict will remain trapped in the idiom of the inevitable. When, however, the regime of supply is reconstructed, when it is shown that access, permanence, visibility, reputation, intelligibility and enjoyment are organized by design and *enforcement*, what before seemed like weather once again seems like a decision. And what once again seems like a decision can be controlled. The name, here, is not the academic title of the thing. It is the condition of its limitation.

It is in this sense that the proposed protection is organized as an ethics of containment, not as an ethics of demolition. The aim is not to extinguish platforms, nor to romanticize a world without technique, something intellectually limiting and institutionally useless. The aim is to protect the functional integrity of the object acquired and the symbolic integrity of the consumer, recognizing that, under continuous consumption, value is not only technical utility, but place, sign, belonging [illegible] of social participation mediated by private infrastructure. When [illegible] administers permanence

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operates as practical normativity. The least the constitutional order can demand is that this power be translated into controllable criteria.

Law is not asked to put out the sun. It is asked to oblige it to say its name. It is asked that the platform cease to inhabit the comfortable zone of nature and accept the more demanding place of institutional responsibility. It is asked that what today presents itself as technical normality may once again be seen as choice, as program and, when necessary, as abuse. Only then will it be possible to restore degraded enjoyments, contest opaque decisions and rebuild trust without accepting that power organized by architecture present itself as a mere inevitable backdrop. To name, in the end, is not to adorn the world with words. It is to make even the sun obey, so that civilization may take back for itself the power to decide on the limits of its power.

Under such a horizon, the central legal question of this research consisted in verifying to what extent the normative structure of the Consumer Protection Code offers adequate protection to consumers inserted in continuous digital ecosystems, in which the enjoyment of what was acquired depends on stable private governance, ordinary mutability and opaque decisions incorporated into the very architecture of the supply.

Although historically read in light of the centrality of corporeal goods and discrete performances, Brazilian consumer law has settled into a robust instrument capable of offering adequate protection to consumers inserted in continuous digital ecosystems, even those in which value is less technical and more functional, economic, social or symbolic. These goods are concentrated in an immaterial ontology that, by its nature, depends on architecture, private curation, ordinary mutability and opaque regimes of decision.

The guiding hypothesis, confirmed in the end, was that the difficulty did not lie in an absence of normative basis, but in the persistence of an ontologically impoverished reading of the CDC itself. The Brazilian legal order already contains enough openness to accommodate the protection of these goods, provided that Art. 3, §1, is [illegible] ıtic density compatible with the contemporary informational [illegible] lacking was not a [illegible] a conceptual reconstruction capable of [illegible]

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residual position in which it was kept and bringing it back to the center of the protective regime. It is at this point that the Immaterial Object of Consumption presents itself as a category apt to name, qualify and make attributable conflicts that today tend to appear as technical inevitability.

The IOC makes it possible to show that, in platform markets, the immaterial product is not exhausted in content, access or utility considered in the abstract. It is constituted as enjoyment that is functionally maintained, governed and reconfigurable, dependent on technical infrastructure, private rules of circulation, visibility criteria, sanction mechanisms and forms of permanence in the ecosystem. Thus, the axis of analysis shifts from a static ontology of the good to a functional ontology of enjoyment. Instead of asking only what the object is in the abstract, it is now possible to ask under what conditions it remains usable, intelligible, recognizable and substantially equivalent to what justified the acquisition and sustained the consumer's legitimate expectation.

The reconstruction requires recognizing that, in continuous digital ecosystems, the relevant asymmetry does not fall only on the quantity of information available or on an abstract technical difficulty of understanding. It falls on the private means of producing meaning, expectation, comparability, trust and evidence. It was in this context that semiotic vulnerability proved a more precise category than the broad and diffuse vocabulary of “digital vulnerability”. The consumer is not vulnerable only because he knows less about the technology. He is vulnerable because the platform governs the way the object appears, the way loss is perceived, the language by which frustration is explained and the very limits of what can be reconstructed as a legally cognizable conflict.

It is shown that the injury, in these environments, frequently ceases to take the form of an isolated event and comes to operate as a program. Hence the formulation of abusive teleology as a category of unlawful act of architecture. Its meaning does not lie in generically moralizing design, nor in turning all mutability into suspicion. Its meaning lies in identifying situations in which opacity, friction, manufactured configuration, asymmetry of reversal and normalization of small isodic occurrences

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exploitation incorporated into the very regime of supply. When this occurs, technique can no longer be treated as a neutral background. It appears as legally attributable conduct.

So that this attribution does not dissolve into generic criticism of the digital, the central *standards* of control are then proposed: open auditability and functional value equivalence. Open auditability is conceived to overcome the false alternative between absolute opacity and total transparency. Its core lies in asserting that Law need not demand full disclosure of code, proprietary databases or internal systems in order to exercise legitimate control over the supply. What it needs, rather, is sufficient institutional intelligibility about what relevantly interferes with enjoyment, sanction, visibility, access, the distribution of opportunities and the reconstruction of the conflict. Corporate opacity, however economically understandable it may be, cannot function as an immunity clause against the legal verifiability of what affects the consumer.

Functional value equivalence, in turn, is formulated to prevent the ordinary mutability of digital ecosystems from becoming a safe conduct for the unilateral degradation of the acquired experience. The point here is not to freeze the environment or to demand absolute stability in technically dynamic realities. The point is to assert that the lawfulness of the alteration cannot be gauged only by the nominal subsistence of the object, by the formal maintenance of access or by the abstract persistence of some residual utility. What matters is the substantial preservation of the function that legitimized the acquisition and structured the consumer's expectation. An object may continue to exist and, even so, no longer be, in a legally relevant sense, what was acquired. It is precisely to name this type of loss that functional value equivalence becomes decisive.

These two *standards* play a central role in the proposed regime because they supply a criterion for what would otherwise oscillate between technical reverence and intuitive indignation. It is they that make it possible to distinguish legitimate alteration from abusive degradation, a compatible update from an opportunistic [illegible]erable obscurity from immunizing opacity. Without open [illegible]ique of opacity risk

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object. Without functional value equivalence, the critique of mutability risks becoming naive nostalgia for an impossible stability. With both, the thesis offers a yardstick of controllability capable of bringing the conflict back to the terrain of demonstration, attribution and institutional response.

The research also showed that this reconstruction does not require a break with intellectual property, but rather its reinscription in a constitutionally oriented key. In platform ecosystems, copyright, trademarks, *software* and other forms of exclusivity do not operate only as titles of appropriation over immaterial creations. They also function as legal technologies for organizing access, the sign, the interface and the very experience of enjoyment. For this reason, they cannot be read as a safe conduct for opportunistic mutability, structural precarization of the experience or absolute blocking of institutional controllability. The social function of property and of intellectual property requires that the exercise of these private positions remain compatible with duties of loyalty, verifiable stability, sufficient transparency, restoration and limitation of abuse in continuous consumer relationships.

The consequence of this constitutional reinscription of intellectual property becomes even clearer when one observes cases of termination of activities, discontinuation of services, abandonment of product lines or definitive shutdown of servers. As central components of contemporary life migrate to private digital ecosystems, the formal precariousness of use licenses can no longer be read as automatic authorization for the complete sacrifice of immaterial objects of consumption already incorporated into the existential, economic, relational and symbolic trajectory of the consumer. Photographs, histories, libraries, contact networks, progressions, projected identities, reputational positions and long-term investments cannot be legally treated as residues without density merely because they are technically housed in someone else's infrastructure.

The social function of property and of intellectual property prevents private exclusivity from operating as a title sufficient to legitimize the unilateral erasure of entire digital worlds under the pretext of business freedom, economic convenience or

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on of the supplier. The right to exploit, terminate or reorganize

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be confused with a

of transition, preservation or transfer, the functional enjoyment already stabilized in the consumer's sphere.

In continuous consumer relationships, there is no intellectual property right that sustains, by itself, the complete extinction of the infrastructure with the consequent complete sacrifice of the IOCs. If the termination of the service is unavoidable, the constitutional order requires that it be reconciled, as far as technically and legally possible, with solutions of continuity, portability, functional restoration, assignment of the operation or other measures suitable to prevent private architecture from becoming a lawful instrument of patrimonial and existential devastation of the consumer.

The limit case, at this point, is not only the opportunistic platform that alters rules, degrades functionalities or intensifies value extraction while it remains operating. It is also the platform that fails. When the functional value equivalence, the biographical continuity, the patrimonial memory and the accumulated sociability of thousands or millions of consumers depend on the permanence of servers, accounts, libraries, databases, authentication systems and execution environments, the technical or economic failure of the supplier may produce an even more radical form of loss. It is not only a matter of abusive alteration of the digital world, but of its possible erasure as an infrastructure of enjoyment. The question that emerges from this is whether Law will be able to keep treating business termination as a simple exercise of economic freedom when it results in the burial of collections, identities, reputations, histories and immaterial objects of consumption incorporated into consumers' practical lives.

It is on the remedial plane, however, that the proposed reconstruction reveals one of its most important consequences. If the injured bond is one of governed enjoyment, the legal response cannot be automatically reduced to the pricing of the harm. In IOC ecosystems, many injuries are not exhausted in the loss of a simple economic equivalent, because they fall on access, permanence, history, reputation, relational position, intelligibility of the experience and functional continuity of what was

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very injury of this type as susceptible of merely pecuniary

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degrade, suppress or reconfigure enjoyment and then merely internalize the monetary cost of that conduct as an ordinary price of doing business. This is not adequate protection. It is automatic monetization of abuse.

For this reason, it is argued that the regime of remedies applicable to IOCs must be reorganized on the basis of a clear methodological priority. Whenever technically and legally possible, protection must aim at enjoyment, and not only at its later monetary translation. This means favoring functional restoration, reestablishment of access, reversal of relevant degradations, regime correction, cessation of opaque or exploitative practices and the imposition of minimum standards of verifiability on alterations that substantially affect the object acquired. Pecuniary compensation remains necessary in many cases, but it cannot occupy, by automatism, the position of sovereign remedy. When the injury is architectural, the response cannot be limited to pricing its effects; it must reach, as far as possible, the architecture that produced them.

This consequence is particularly important because it prevents Consumer Law from becoming a mere elegant administrator of normalized private losses. In platform markets, the automatic conversion of the conflict into money frequently keeps intact the structure that generated it. The consumer receives, at most, a late and imperfect equivalent, while the regime of supply keeps operating in the same way, ready to reproduce the same degradation at scale. By insisting on functional restoration and regime correction, the thesis seeks to put protection back in its proper place: not as a simple later compensatory calculation, but as a mechanism of institutional containment of recurring forms of exploitation inscribed in the very architecture of the experience.

The illustrative references mobilized throughout the thesis were not used as exhaustive sociological proof, nor as the basis for large-scale empirical generalizations, but as sufficient anchoring to bring out recurring mechanisms of governance by architecture, structural opacity, administration of trust, ordinary mutability and private production of the conditions of perception of the conflict.

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item taken in isolation, but in access, progression, visibility, belonging, time, continuity of trajectory and symbolic position in the ecosystem.

There is, however, an additional consequence of this model which, although it was not explored over the course of the work with the centrality its gravity would deserve, imposes itself at least as an inescapable theoretical disquiet at the end of the journey. In continuous digital ecosystems, above all in sectoral models analogous to the one studied, the platform not only governs the enjoyment of the object acquired, but may progressively learn to decipher the very subject who enjoys it. What makes the problem singular is not a mere quantitative accumulation of data, but the qualitative density of the inferences that become possible when the user's experience is entirely mediated by proprietary infrastructure, by constant tracking systems and by interaction regimes designed to convert conduct into economic intelligibility.

In environments composed of dozens or hundreds[819] of diverse types and styles of risk and aggressiveness, of repeated patterns of choice, of progression routines, of responses to frustration and reward, of microdecisions made under pressure, of click cadences, of hesitations, insistences, deviations and recurrences, what is formed is not merely a database of declared preferences or registration identifiers. What is progressively formed is a private archive of dispositions, tendencies, propensities and behavioral structures whose depth comfortably exceeds the classical grammar of personal data traditionally addressed in the legal debate.

The point deserves special care because, in this scenario, the platform ceases to know the consumer only as an account holder, purchaser of content or recipient of targeted advertising. It comes to know him as a pattern. As predictability. As susceptibility. As a probable architecture of response to specific stimuli, calibrated frictions, intermittent rewards, visibility regimes and designs of scarcity. The asymmetry, then, is no longer limited to the informational plane in the current sense, nor is it exhausted in the supplier's technical superiority as to the internal functioning of the system. It shifts to a more delicate plane, in which the supplier comes to hold means of psycho-functional reconstruction of the user that the user himself does not possess in an equivalent degree of operative precision. In structural terms, the platform not only sells, administers

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also observe, model, test, learn and feed back into the experience on the basis of a progressively refined knowledge of how that subject tends to act, insist, give in, become frustrated, persevere, consume and remain.

It is at this point that the hypothesis becomes even more disquieting. The relevant legal result of continuous digital consumption may consist not only in the formation of lasting bonds of functional, symbolic and economic dependence, but also in the repeated extraction of traces dense enough to map, with growing accuracy, psychological and dispositional profiles of high strategic value. In such a context, the platform no longer appears only as a supplier of Immaterial Objects of Consumption, nor only as a private administrator of persistent digital worlds. It appears, potentially, as a business structure capable of converting attention, gesture, preference, repetition, performance, decision-making style and pattern of interaction into economic intelligence about the practical interiority of its users.

The gravity of the problem lies in the fact that this knowledge is not gathered at the margins of the consumed experience, but produced within it, as an effect of the very architecture that organizes enjoyment, distributes visibility, doses reward, imposes sanction and stabilizes permanence. Economic exploitation thus ceases to fall only on what the consumer buys or uses and comes to touch, in an increasingly sophisticated way, the manner in which he is constituted as a legible subject before the platform itself.

This concern reinforces the central conclusion reached so far. If the category of goods comprised under the Immaterial Object of Consumption required specific protection because enjoyment was subjected to structural opacity, ordinary mutability and continuous private governance, this requirement intensifies when one perceives that the same ecosystems function, at the same time, as permanent laboratories of behavioral deciphering.

Semiotic vulnerability, from this angle, reveals an even deeper reach than initially formulated. It is not only a matter of the consumer being exposed to private regimes [illegible] aning, expectation, trust and intelligibility of the conflict. It is

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unprecedented scale the disproportion between who is read and who reads, between who is interpreted and who interprets, between who supplies traces of himself and who converts them into strategic power. The challenge that announces itself to Consumer Law, therefore, is not only that of limiting abusive mutations of enjoyment, but that of facing, in future development, the possibility that continuous platform consumption becomes a private technique for producing intensive subjective legibility, with consequences still insufficiently addressed for autonomy, for practical freedom and for the very integrity of personality in digitally governed environments.

This point helps explain why the conflict, in these environments, so often escapes the traditional categories of adjudication. The justice system frequently intuits that losses relating to accounts, digital goods, usage history and position in the environment exceed the immediate patrimonial dimension, but lacks a dogmatic grammar stable enough to turn this perception into rigorous reasoning. Hence the oscillation between two equally unsatisfactory reductions. Either the conflict is demoted to a low-density contractual annoyance, or it is perceived as intuitively serious without anyone being able to say precisely, in controllable legal language, what exactly was injured and why. One of the most relevant gains of this thesis lies in reducing this translation cost, providing categories apt to bring these conflicts back inside the CDC without inflating the system or abandoning it in favor of theories external to positive law.

To this extent, the main contribution of the research lies not in simply updating Consumer Law to keep up with technology, but in restoring institutional controllability to situations in which private power presents itself as nature, although it operates, in truth, as organized decision. The regime proposes to articulate coherently the qualification of the immaterial product by the Immaterial Object of Consumption, the location of the relevant asymmetry by semiotic vulnerability, the reading of governed expectation by hypercuratorial anticipation, the identification of the unlawful act by abusive teleology, the control of alterations by open [illegible] functional value equivalence, the containment of exclusivity by the [illegible] operty and of intellectual property and the reorganization of remedies around functional restoration

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not to offer a total theory of platforms, but to prevent conflicts structurally produced by them from continuing to be treated as the simple natural price of inhabiting private systems supposedly impregnable to legal language.

At the same time, the aim is not to offer a total theory of digital consumption, nor to map exhaustively the plurality of platform ecosystems that today organize work, cultural circulation, sociability, economic intermediation and everyday experience. The focus remains concentrated on the theoretical-dogmatic reconstruction of the regime applicable to continuous immaterial goods in consumer relationships, having as its privileged field of intelligibility the environment of connected interactive entertainment. Nor is the aim to replace broad empirical research with illustrative exemplification, or to exhaust the institutional operationalization of the proposed standards. Open auditability and functional value equivalence will require, in the future, evidentiary maturation, refinement of expert examination and the development of decision-making protocols more sensitive to the structural opacity of platform conflicts.

The challenge posed by digital platforms lies in recognizing that, at the center of the contemporary informational economy, there are immaterial objects of consumption whose protection requires taking seriously the governed experience of the consumer in its functional, semiotic and symbolic dimension. The regime of the Immaterial Object of Consumption, as formulated here, aims to be an internal, structural and constitutionally oriented reconstruction of the CDC, apt to bring back into the field of responsibility what today still hides under the indifferent appearance of the mere functioning of the system.

The images mobilized throughout the thesis help condense, in the end, its ethical core. On one side, the problem worsens when intelligence, architecture and language cease to serve understanding and come to operate as a ruse that stabilizes the violation of trust; on the other, the adequate legal response does not consist in destroying the infrastructure, but in stripping it of the pretension of becoming unreachable or absolute, obliging private power to let itself be named, proven and

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tional key, this is exactly what Consumer Law lacks in the face of

the *Lex Plataformae*: not empty indignation, but vocabulary and criteria capable of converting naturalized force into contestable and accountable power.

Such is the ethical and dogmatic core proposed here. What presents itself as the simple functioning of the system can and must be reconstructed as choice, as program and, when necessary, as abuse. The consumer, in continuous digital ecosystems, cannot remain reduced to the condition of a tolerated guest in someone else's world, subjected to unilateral reconfigurations without a language of contestation.

NOTES

The Brazilian constitutional order does not require the elimination of the private infrastructures that organize contemporary experience; it requires, rather, that the power inscribed in them let itself be seen, proven, limited and, when necessary, corrected. In the end, the granted, revocable and reconfigurable floor that served as the starting point can no longer pretend to be nature. Once named, it comes to belong also to the field of responsibility, evidence, contestation, restoration and limit. For Law force ceases to suffice unto itself and begins, at last, to answer to the name it bears.

818. In the Egyptian myth, Ra is the solar God and sovereign of the world, bearer of a secret name that concentrates his deepest power. Isis, wishing to access this power, gathers the saliva left by Ra, mixes it with earth and molds a serpent, which then bites the god himself. Wounded by a venom that no other being can remove, Ra suffers intensely. Isis then offers to cure him, but demands, as a condition, that he reveal his true name, hidden from all. Ra first tries to defend himself with his titles and apparent manifestations, but this is not enough. Only when he transmits the secret name to Isis can she neutralize the venom. The meaning of the tale lies not in a destructive defeat of the god, but in the idea that power only becomes truly accessible and limitable when it ceases to operate as pure inviolable presence and lets itself be named at its core. It is this logic that matters to the perspective under discussion. It is not a matter of eliminating technology or its powers, but of translating it into a language capable of allowing control and responsibility. ↩

819. As of the close of this research, *Riot Games* had 170 (one hundred and seventy) officially released playable characters in *League of Legends* (*desktop* version), and 123 (one hundred and twenty-three) champions available in *League of Legends: Wild Rift (*version for *mobile)*. ↩

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This is a machine translation of the thesis, produced for this site and not reviewed by the author. The Portuguese original is the authoritative text. Ler em português.

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2SPIROSPANAGIOTIS. Vanguard is a nightmare – it's crashing my PC while I'm trying to STUDY. In: **Reddit**, r/riotgames, [2025]. Available at: https://www.reddit.com/r/riotgames/comments/1ppz2ua/vanguard_is_a_nightmare_its_crashing_my_pc_while/. Accessed on: 9 mar. 2026.

99. **Termos de Uso Motorista/Motociclista Parceiro.** 99, [202-?]. Available at: https://termos.99app.com/legal/termos/motorista/. Accessed on: 15 mar. 2026.

99FOOD. **Termos de Uso 99Food – Entregador Parceiro.** 99, [202-?]. Available at: https://termos.99app.com/legal/termos/termos-de-uso-entregador-parceiro-99food/. Accessed on: 15 mar. 2026.

ACOSTA, Leonardo Machado. **Cibervulnerabilidade:** a vulnerabilidade agravada dos consumidores no ciberespaço. 2025. 137 f. Dissertação (Mestrado em Direito) – Universidade Estadual Paulista (Unesp), Faculdade de Ciências Humanas e Sociais, Franca, 2025.

ALL Reused Animations in Faerie Court Lux Skin COMPARISON. [S. l.: s. n.], 3 de maio de 2024. 1 vídeo (2 min). Publicado pelo canal SkinShowcase. Available at: https://www.youtube.com/watch?v=iGx9OseD0M4. Accessed on: 1 mar. 2026.

AMERICAN DIALECT SOCIETY. 2023 Word of the Year is "enshittification". **American Dialect Society**, 5 jan. 2024. Available at: https://americandialect.org/2023-word-of-the-year-is-enshittification/. Accessed on: 28 maio 2026.

ANDRADE, Victor Luiz Pereira de *et al*. Direito e Games: notas preliminares sobre um novo campo jurídico. In: ENCONTRO DE PESQUISADORES, 22., 2021. Franca. **Anais [...]**. Franca: Uni-FACEF, 2021. 850p. Available at: https://eventos.unifacef.com.br/encpesq/2021/files/XXIIENCPESQ_Ebook_v2.pdf. Accessed on: 28 fev. 2026.

Skip to content

Luiz Pereira de. **Propriedade**

interesse social e desenvolvimento. Curitiba: Editora Juruá, 2022.

MODE Information Doctrine Scholarship

ANDRADE, Victor Luiz Pereira de; TEIXEIRA, Vanessa Corsetti Gonçalves; CANAVEZ, Luciana Lopes. Buscando um conceito operacional de cidadania digital: uma revisão integrativa da literatura estrangeira no pós-COVID-19. **INTER: Revista de Direito Internacional e Direitos Humanos da UFRJ,** v. 5, n. 2, p. 41-79, jul./dez. 2022. Available at: https://revistas.ufrj.br/index.php/inter/article/view/56211. Accessed on: 28 fev. 2026.

ANDRADE, Victor Luiz Pereira de; CANAVEZ, Luciana Lopes. A disputa "EUA vs. China" (2007-2010) em direitos de propriedade intelectual no contexto da OMC. **Direito e Negócios FAAP**, v. 2, n. 2., p. 19-42, ago./dez. 2024. Available at: https://revistas.faap.br/index.php/RDN/article/view/7. Accessed on: 28 fev. 2026.

APPADURAI, Arjun (org.). **The social life of things:** commodities in cultural perspective. Cambridge: Cambridge University Press, 1986. AROUSHTHEKWEEN. FAERIE COURT LUX MEGATHREAD. In: REDDIT. **r/lux**, [2024]. Disponível em: https://www.reddit.com/r/lux/comments/1cgwp8i/faerie_court_lux_megathread/. Acesso em: 1 mar. 2026.

AROUSHTHEKWEEN. **Riot recycled Faerie Court Seraphine and Porcelain Lux's VFX in the new Faerie Court Lux skin.** In: REDDIT. r/leagueoflegends, [2024]. Available at: https://www.reddit.com/r/leagueoflegends/comments/1ch0hnf/riot_recycled_faerie_court_seraphine_and/. Accessed on: 1 mar. 2026.

ASARCH, Steven. 'League of Legends' Gun Goddess Miss Fortune Underwhelms Fans, Riot Responds. **Newsweek**, 9 mar. 2018. Available at: https://www.newsweek.com/gungoddessmissfortuneunderwhelmsfans-league-legends-838996. Accessed on: 1 mar. 2026.

ASCENSÃO, José de Oliveira. A pretensa "propriedade" intelectual. **Revista do Instituto dos Advogados de São Paulo**, São Paulo, v. 20, p. 243-261, jul./dez., 2007.

AUGUSTINE, Josh. Pulsefire Ezreal skin for League of Legends changes as you level, is a kind of a big deal. **PC Gamer**, 13 jun. 2012. Available at: https://www.pcgamer.com/pulsefire-ezreal-skin-for-league-of-legends-changes-as-you-level-is-a-kind-of-a-big-deal/. Accessed on: 1 mar. 2026.

ÁVILA, Humberto. **Segurança jurídica:** entre permanência, mudança e realização no direito tributário. São Paulo: Malheiros Editores, 2011.

Teoria dos princípios: da [illegible] princípios jurídicos. 18. ed. rev. e atual. São Pau[illegible]

Skip to content

MODE Information Doctrine Scholarship

AZEVEDO, Fernando Costa de; TORRES, Julia Fátima Gonçalves. A hipervulnerabilidade digital situacional de crianças, adolescentes e do núcleo familiar no jogo eletrônico Fortnite. **Civilistica.com - Revista eletrônica de direito civil**, v. 12, n. 3, 2023. Disponível em: https://civilistica.emnuvens.com.br/redc/article/view/927. Acesso em: 9 mar. 2026.

BAGEL_SOCKS. **PBE Bug & Feedback Thread - Soul Fighter Samira.** In: REDDIT. r/LeaguePBE, [2023]. Available at: https://www.reddit.com/r/LeaguePBE/comments/14kr88b/pbe_bug_feedback_thread_soul_fighter_samira/. Accessed on: 1 mar. 2026.

BARBOSA, Denis Borges. **Tratado da propriedade intelectual**. Rio de Janeiro: Lumen Juris, 2010a. (t. 1, Uma introdução à propriedade intelectual; Bases constitucionais da propriedade intelectual; A doutrina da concorrência; A propriedade intelectual como um direito de cunho internacional; Propriedade intelectual e tutela da concorrência)

BARBOSA, Denis Borges. **Tratado da propriedade intelectual**. Rio de Janeiro: Lumen Juris, 2010b. (t. 2, Patentes)

BARBOSA, Denis Borges. **Tratado da propriedade intelectual**. Rio de Janeiro: Lumen Juris, 2017. (t. 3, A proteção do software; Sigilo dos testes para registro de comercialização; Topografia de circuitos integrados)

BARBOSA, Denis Borges. **Tratado da propriedade intelectual**. Rio de Janeiro: Lumen Juris, 2018. (t. 4, Desenhos industriais; Cultivares; Segredo industrial; Contratos de propriedade industrial e de transferência de tecnologia)

BAUDRILLARD, Jean. **Simulacros e simulação.** Tradução de Maria João da Costa Pereira. Lisboa: Antropos, 1991.

BAUDRILLARD, Jean. **A sociedade de consumo.** Tradução de Artur Morão. Rio de Janeiro: Elfos Ed.; Lisboa: Edições 70, 1995.

BENJAMIN, Antonio Herman V.; MARQUES, Claudia Lima; BESSA, Leonardo Roscoe. **Manual de direito do consumidor.** 9. ed. rev., atual. e ampl. São Paulo: Thomson Reuters Brasil; Revista dos Tribunais, 2021.

BENJAMIN, Antônio Herman de Vasconcellos e. Capítulo V. DAS PRÁTICAS COMERCIAIS. a Pellegrini et al. **Código brasileiro de defesa do consumidor:** comentado

Skip to content

MODE Information Doctrine Scholarship

pelos autores do anteprojeto. 10. ed. rev., atual. e reform. Rio de Janeiro: Forense, 2011. v. 1: Direito material (arts. 1º a 80 e 105 a 108).

BESSA, Leonardo Roscoe. Fornecedor equiparado. **Revista de Direito do Consumidor**, São Paulo, v. 61, p. 126-141, jan./mar. 2007.

BOGGED-. Are Kernel level anti-cheats always on? In: **Reddit**, r/privacy, 2025. Available at: https://www.reddit.com/r/privacy/comments/1lsbjc5/are_kernel_level_anticheats_always_on/. Accessed on: 9 mar. 2026.

BRANDEIS, Louis D. **Other people's money and how the bankers use it.** Introduction by Melvin I. Urofsky. New York: Barnes & Noble, 2011.

BRANDON. Riot Requires Kernel Level Anti-Cheat Software. **Tuta**, 29 fev. 2024. Available at: https://tuta.com/pt-br/blog/riot-requires-kernel-level-anticheat. Accessed on: 9 mar. 2026.

BRASIL. Constituição (1988). **Constituição da República Federativa do Brasil de 1988.** Brasília, DF: Presidência da República, [2025]a. Available at: https://www.planalto.gov.br/ccivil_03/constituicao/ConstituicaoCompilado.htm. Accessed on: 28 fev. 2026.

BRASIL. **Lei nº 8.078, de 11 de setembro de 1990.** Dispõe sobre a proteção do consumidor e dá outras providências (Código de Defesa do Consumidor). Brasília, DF: Presidência da República, [2022]. Available at: https://www.planalto.gov.br/ccivil_03/leis/l8078compilado.htm. Accessed on: 28 fev. 2026.

BRASIL. **Lei nº 9.279, de 14 de maio de 1996.** Regula direitos e obrigações relativos à propriedade industrial. Brasília, DF: Presidência da República, [2024]c. Disponível em: https://www.planalto.gov.br/ccivil_03/leis/l9279.htm. Acesso em: 9 mar. 2026. BRASIL. **Lei nº 9.609, de 19 de fevereiro de 1998.** Dispõe sobre a proteção da propriedade intelectual de programa de computador, sua comercialização no País, e dá outras providências. Brasília, DF: Presidência da República, [1998]. Disponível em: https://www.planalto.gov.br/ccivil_03/leis/l9609.htm. Acesso em: 28 fev. 2026.

BRASIL. **Lei nº 9.610, de 19 de fevereiro de 1998.** Altera, atualiza e consolida a legislação sobre direitos autorais e dá outras providências. Brasília, DF: Presidência da República, [2021]. Available at: https://www.planalto.gov.br/ccivil_03/leis/l9610.htm. Accessed on: 9 mar. 2026.

Skip to content **406, de 10 de janeiro de 2002.** Institui o Código Civil. Brasília, DF: Presidência da República, [2

MODE Information Doctrine Scholarship

https://www.planalto.gov.br/ccivil_03/leis/2002/l10406compilada.htm. Accessed on: 2 mar. 2026.

BRASIL. **Lei nº 13.105, de 16 de março de 2015.** Código de Processo Civil. Brasília, DF: Presidência da República, [2025]b. Available at: https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2015/lei/l13105.htm. Accessed on: 9 mar. 2026.

BRASIL. **Lei nº 13.709, de 14 de agosto de 2018.** Dispõe sobre a proteção de dados pessoais e altera a Lei nº 12.965, de 23 de abril de 2014 (Marco Civil da Internet). Brasília, DF: Presidência da República, [2026]a. Available at: https://www.planalto.gov.br/ccivil_03/_ato2015-2018/2018/lei/l13709.htm. Accessed on: 9 mar. 2026.

BRASIL. **Lei nº 14.852, de 3 de maio de 2024.** Cria o marco legal para a indústria de jogos eletrônicos; e altera as Leis nºs 8.313, de 23 de dezembro de 1991, 8.685, de 20 de julho de 1993, e 9.279, de 14 de maio de 1996. Brasília, DF: Presidência da República, [2024]b. Available at: https://www.planalto.gov.br/ccivil_03/_ato2023-2026/2024/lei/l14852.htm. Accessed on: 28 fev. 2026.

BRASIL. **Lei nº 15.211, de 17 de setembro de 2025.** Dispõe sobre a proteção de crianças e adolescentes em ambientes digitais (Estatuto Digital da Criança e do Adolescente). Brasília, DF: Presidência da República, [2025]c. Edição extra. Available at: https://www.planalto.gov.br/ccivil_03/_ato2023-2026/2025/lei/L15211.htm. Accessed on: 28 fev. 2026.

BRASIL. **Decreto nº 12.622, de 17 de setembro de 2025.** Regulamenta a Lei nº 15.211, de 17 de setembro de 2025, para designar a Agência Nacional de Proteção de Dados como autoridade administrativa autônoma de proteção de crianças e adolescentes em ambientes digitais, e estabelecer competências para cumprimento de ordens judiciais de bloqueio. Brasília, DF: Presidência da República, [2025]d. Available at: https://www.planalto.gov.br/ccivil_03/_ato2023-2026/2025/Decreto/D12622.htm. Accessed on: 28 fev. 2026.

BRASIL. **Lei nº 15.352, de 25 de fevereiro de 2026.** Altera a Lei nº 15.211/2025 para dispor sobre o início de sua vigência, entre outras providências. Brasília, DF: Presidência da [illegible] 2026. Available at: https://www.planalto.gov.br/ccivil_03/_ato2023-5352.htm. Accessed on: 19 mar. 2026.

Skip to content

MODE Information Doctrine Scholarship

BURAWOY, Michael. **The extended case method:** four countries, four decades, four great transformations, and one theoretical tradition. Los Angeles: University of California Press, 2009.

CANAVEZ, Luciana Lopes; ANDRADE, Victor Luiz Pereira de; LAPRANO, Lucas. A proteção de dados pessoais e as novas fronteiras da adequada tutela dos direitos fundamentais e da personalidade. **Revista de Estudos Jurídicos UNESP**, Franca, ano 25, n. 42, p. 139, jul./dez. 2021.

CANAVEZ, Luciana Lopes; SANTOS, Isadora Beatriz Magalhães; MENDES, Daniella Salvador Trigueiro. Vigilância, proteção de dados e privacidade: o reconhecimento de novos direitos fundamentais na sociedade da informação. **Revista de Direito, Governança e Novas Tecnologias**, v. 8, n. 1, p. 68-86, jan./jul. 2022.

COHEN, Julie E. **Between truth and power:** the legal constructions of informational capitalism. New York: Oxford University Press, 2019.

COHEN, Julie E. **Configuring the networked self:** law, code, and the play of everyday practice. New Haven; London: Yale University Press, 2012. Available at: https://juliecohen.com/configuring-the-networked-self/. Accessed on: 28 fev. 2026.

COMO COMPRAR RP BARATO NO LEAGUE OF LEGENDS PELO SITE REI DOS COINS !! [S. l.: s. n.], 18 jun. 2024a. 1 vídeo (5 min). Publicado pelo canal Tutoriei. Available at: https://www.youtube.com/watch?v=e_YaI1flVKA. Accessed on: 9 mar. 2026.

COMO eu posso arrumar esse erro de tela azul? **Microsoft Q&A**, 28 out. 2024b. Available at: https://learn.microsoft.com/pt-br/answers/questions/3964176/como-eu-posso-arrumar-esse-erro-de-tela-azul. Accessed on: 9 mar. 2026.

COMPARATO, Fábio Konder. **A afirmação histórica dos direitos humanos.** 10. ed. São Paulo: Saraiva, 2015.

CONSUMER RIGHTS WIKI. **Riot Vanguard.** Consumer Rights Wiki, 23 Feb. 2026. Available at: https://consumerrights.wiki/w/Riot_Vanguard. Accessed on: 9 mar. 2026.

COSTA, Mariana Monteiro da. **A era da vigilância no cyberespaço e os impactos da nova Lei Geral de Proteção de Dados Pessoais no Brasil.** 2018. 93 f. Monografia (Bacharelado em ade Federal do Rio de Janeiro, Faculdade de Direito, Rio de Janeiro, 2018.

Skip to content

MODE Information Doctrine Scholarship

CRASHS, travamentos e Tela Azul DRIVER_IRQL_NOT_LESS_OR_EQUAL, MEMORY_MANAGEMENT e SYSTEM_SERVICE_EXCEPTION. **Microsoft Q&A**, 8 maio 2023. Available at: https://learn.microsoft.com/pt-br/answers/questions/4166540/crashs-travamentos-e-tela-azul-driver-irql-not-les. Accessed on: 9 mar. 2026.

DAVE, Paresh. Online game League of Legends star gets U.S. visa as pro athlete. **Los Angeles Times**, Los Angeles, 7 ago. 2013. Disponível em: https://www.latimes.com/business/la-fi-online-gamers-20130808-story.html. Acesso em: 16 mar. 2026.

DEBORD, Guy. **A sociedade do espetáculo.** Tradução por B. A. Jerusalém: Ruriak Ink., 2013.

DEDMON, Tanner. League of Legends Players Have Concerns About Gun Goddess Miss Fortune, Riot Games Responds. **ComicBook.com**, 10 mar. 2018. Available at: https://comicbook.com/gaming/news/league-of-legends-gun-goddess-miss-fortune-concerns/. Accessed on: 1 mar. 2026.

DENARI, Zelmo. Capítulo IV. DA QUALIDADE DE PRODUTOS E SERVIÇOS, DA PREVENÇÃO E DA REPARAÇÃO DOS DANOS. *In:* GRINOVER, Ada Pellegrini et al. **Código brasileiro de defesa do consumidor:** comentado pelos autores do anteprojeto. 10. ed. rev., atual. e reform. Rio de Janeiro: Forense, 2011. v. 1: Direito material (arts. 1º a 80 e 105 a 108).

DOCTOROW, Cory. The "enshittification" of TikTok. **Wired**, 23 jan. 2023. Disponível em: https://www.wired.com/story/tiktok-platforms-cory-doctorow/. Acesso em: 28 maio 2026.

DOMINGUES, Douglas Gabriel. **Marcas e expressões de propaganda.** Rio de Janeiro: Ed. Forense, 1984.

DONEDA, Danilo. **Da privacidade à proteção de dados pessoais:** fundamentos da Lei Geral de Proteção de Dados. 2. ed. rev. e atual. São Paulo: Thomson Reuters Brasil, 2020.

DOUGLAS, Mary; ISHERWOOD, Baron. **The world of goods:** towards an anthropology of consumption. New York: Routledge, 1996.

DOWBOR, Ladislau. **A revolução digital:** uma sociedade à beira de rupturas. São Paulo: [s. n.], 2024. Available at: https://dowbor.org/wp-content/uploads/2024/06/Revolucao_Digital_Livro_24.pdf. Accessed on: 28 fev. 2026.

DURKHEIM, Émile. **As formas elementares da vida religiosa:** o sistema totêmico na Austrália. Tradução de Paulo Neve

Skip to content

MODE Information Doctrine Scholarship

DURKHEIM, Émile. **O suicídio:** estudo de sociologia.
Tradução de Monica Stahel.
São Paulo: Martins Fontes, 2000.

DURKHEIM, Émile. **Da divisão do trabalho social.** 2. ed. Tradução de Eduardo Brandão.
São Paulo: Martins Fontes, 1999.

ECO, Umberto. **A estrutura ausente:** introdução à pesquisa semiológica.
Tradução de Pérola de Carvalho. Revisão de Mary Amazonas Leite
de Barros. 7. ed. São Paulo: Perspectiva, 1997. (Coleção Estudos).

ECO, Umberto. **Como se faz uma tese em ciências humanas.** Tradução de Ana Falcão Bastos e Luís Leitão. Prefácio de Hamilton Costa. 13. ed. Lisboa: Editorial Presença, 2007. ECO, Umberto. **Semiótica e filosofia da linguagem.** Tradução de Mariarosaria Fabris; José Luiz Fiorin. Revisão de Izidoro Blikstein. São Paulo: Editora Ática, 1991. (Série Fundamentos, 64).

ECO, Umberto. **Tratado de semiótica general.** Traducción
de Carlos Manzano. 5. ed. Barcelona: Editorial Lumen, 2000.

ELLUL, Jacques. **A técnica e o desafio do século.** Tradução e prefácio de Roland Corbisier.
Rio de Janeiro: Paz e Terra, 1968.

EMPTY-ILLUSTRATOR460. A Riot removeu skins da minha conta após a recuperação. In: **Reddit**, r/riotgames, [2026]. Available at: https://www.reddit.com/r/riotgames/comments/1qoe8nm/riot_removed_skins_from_my_account_after_recovery/?tl=pt-br. Accessed on: 9 mar. 2026.

FACEBOOK. **Termos de Serviço da Meta.** Facebook, [202-?].
Available at: https://www.facebook.com/terms/?locale=pt_BR.
Accessed on: 15 mar. 2026.

FEAGIN, Cullen. Consistent BSOD - Riot Vanguard - How to prevent / fix ongoing issue? **Microsoft Q&A**, 5 jul. 2025. Disponível em: https://learn.microsoft.com/en-us/answers/questions/2338864/consistent-bsod-riot-vanguard-how-to-prevent-fix-o. Acesso em: 9 mar. 2026.

FEENBERG, Andrew. **Transforming technology:** a critical
theory revisited. 2. ed. New York: Oxford University Press, 2002.

Skip to content

w. **Technosystem:** the soci
Cambridge, Massachusetts; London: Harvard U

MODE Information Doctrine Scholarship

FERRAZ JR., Tercio Sampaio. **Direito, retórica e comunicação:** subsídios para uma pragmática do discurso jurídico. 2. ed. São Paulo: Saraiva, 1997.

FERRAZ JR., Tercio Sampaio. **Introdução ao estudo do direito:** técnica, decisão, dominação. 4. ed. rev. e ampl. São Paulo: Atlas, 2003.

FILOMENO, José Geraldo Brito. Capítulo I. DISPOSIÇÕES GERAIS. *In:* GRINOVER, Ada Pellegrini et al. **Código brasileiro de defesa do consumidor:** comentado pelos autores do anteprojeto. 10. ed. rev., atual. e reform. Rio de Janeiro: Forense, 2011. v. 1: Direito material (arts. 1º a 80 e 105 a 108).

FILOMENO, José Geraldo Brito. **Direitos do consumidor.** 15. ed. rev., atual. e ref. São Paulo: Atlas, 2018.

FISHER, Carver. League dev labels Zeri a "failure" and confirms she's been purposely overnerfed. **Dexerto**, 19 nov. 2023. Available at: https://www.dexerto.com/league-of-legends/league-dev-labels-zeri-a-failure-and-confirms-shes-been-purposely-overnerfed-2390713/. Accessed on: 1 mar. 2026.

FURTADO, Samuel Nunes; PINTO, Raissa Resende. Vulnerabilidade Digital do Consumidor nos Modelos Zero-Price: A (I)Legalidade da Cessão Irrestrita de Dados Pessoais Nos Termos de Uso das Redes Sociais. **Revista do CEJUR/TJSC: Prestação Jurisdicional**, Florianópolis, v. 12, n. 1, e0431, p. 1-30, 2024. Disponível em: https://revistadocejur.tjsc.jus.br/cejur/article/view/431. Acesso em: 9 mar. 2026.

GIANTZORG. **An analysis on the question whether Riot buffs champions that get skins.** In: REDDIT. r/leagueoflegends, 9 maio 2019. Available at: https://www.reddit.com/r/leagueoflegends/comments/bm31i0/an_analysis_on_the_question_whether_riot_buffs/. Accessed on: 1 mar. 2026.

GLÓRIA, Daniel Firmato de Almeida. **A livre concorrência como garantia do consumidor.** Belo Horizonte: Del Rey; FUMEC, 2003.

GNERRE, Maurizio. **Linguagem, escrita e poder.** 3. ed. São Paulo: Martins Fontes, 1991.

GONDAR_1908. **Why is the Samira Skin declared Ultimate?** In: REDDIT. r/leagueoflegends, 28 jun. 2023. Available at: https://www.reddit.com/r/leagueoflegends/comments/14krg3a/why_is_the_samira_skin_declased on: 1 mar. 2026.

Skip to content

MODE Information Doctrine Scholarship

GOOGLE. **Lista de serviços e termos adicionais específicos do serviço**. Google, [202-?]. Available at: https://policies.google.com/terms/service-specific?hl=pt-BR. Accessed on: 15 mar. 2026.

GRAU, Eros Roberto. **O direito posto e o direito pressuposto.** 7. ed. rev. e ampl. São Paulo: Malheiros Editores, 2008.

GRAU, Eros Roberto. **Ordem econômica na Constituição de 1988:** interpretação e crítica. 14. ed. São Paulo: Malheiros, 2010.

GRINOVER, Ada Pellegrini et al. **Código brasileiro de defesa do consumidor:** comentado pelos autores do anteprojeto. 10. ed. rev., atual. e reform. Rio de Janeiro: Forense, 2011. v. 1: Direito material (arts. 1º a 80 e 105 a 108).

HELAL, Ronaldo. **O que é sociologia do Esporte.** São Paulo: Ed. Brasiliense, 1990.

HAN, Byung-Chul. **Sociedade do cansaço.** Tradução de Enio Paulo Giachini. Petrópolis: Vozes, 2015.

HAN, Byung-Chul. **Psychopolitics:** neoliberalism and new technologies of power. Translated by Erik Butler. London; New York: Verso, 2017.

HILL, Brandon. Valorant Dev Riot Games Responds To Anger Over Invasive Vanguard Anti-Cheat System. **HotHardware**, 13 abr. 2020. Available at: https://hothardware.com/news/valorant-dev-riot-games-vanguard-anti-cheat-system. Accessed on: 9 mar. 2026.

HO, Liam. League of Legends players question if new Samira skin should be an ultimate: "That's it?". **Dexerto**, 28 jun. 2023. Disponível em: https://www.dexerto.com/league-of-legends/league-of-legends-players-question-if-new-samira-skin-should-be-an-ultimate-thats-it-2192310/. Acesso em: 1 mar. 2026.

IFOOD. **Termos e Condições de Uso iFood para Entregadores.** iFood, [2023?]. Disponível em: https://entregador.ifood.com.br/wp-content/uploads/2023/02/Termo-de-uso.pdf. Acesso em: 15 mar. 2026.

JALOVAARA, Perttu. **Win probability estimation for strategic decision-**

2024. 38 f. Master's Thesis (Master's Programme in

perations Research) – Aalto

Skip to content

MODE Information Doctrine Scholarship

JUDESUNE__. Gifts in Brazil have been disabled for roughly 5 years now. In: **Reddit**, r/leagueoflegends, 2025. Available at: https://www.reddit.com/r/leagueoflegends/comments/1iylafx/gifts_in_brazil_have_been_disabled_for_roughly_5/. Accessed on: 9 mar. 2026.

K/DA - POP/STARS (ft. Madison Beer, (G)I-DLE, Jaira Burns) | Music Video - League of Legends. [S. l.: s. n.], 3 nov. 2018. 1 vídeo (3 min). Publicado pelo canal League of Legends. Available at: https://www.youtube.com/watch?v=UOxkGD8qRB4. Accessed on: 1 mar. 2026.

KOPYTOFF, Igor. The cultural biography of things: commoditization as process. In: APPADURAI, Arjun (org.). **The social life of things: commodities in cultural perspective**. Cambridge: Cambridge University Press, 1986. p. 64-94.

LACERDA, Bruno Torquato Zampier. **Bens digitais:** cybercultura, redes sociais, e-mails, livros, milhas aéreas, moedas virtuais. 3. ed. rev., atual. e ampl. Indaiatuba: Foco, 2024.]

LARENZ, Karl. **Metodologia da ciência do direito.** Tradução de José Lamego. Lisboa: Fundação Calouste Gulbenkian, 1997.

LCHAOS2. **Gun Goddess Miss Fortune is to be sold at a reduced price (2775 RP). Are you okay with that, or would you prefer that they delay the skin and put more work in so it could be worth full price?** In: REDDIT. r/leagueoflegends, 7 mar. 2018. Available at: https://www.reddit.com/r/leagueoflegends/comments/82ldwb/gun_goddess_miss_fortune_is_to_be_sold_at_a/. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Honor**. Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Honor. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Invocador**. Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/pt-br/wiki/Invocador. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **League of Legends.** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/pt-br/wiki/League_of_Legends. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Legacy Vault.** Fandom, 31 maio 2024. Available at: https://leagueoflegends.fandom.com/wiki/Legacy_Vault. Accessed on: 1 mar. 2026.

Skip to content

ENDS WIKI. **Loading Scre**

https://leagueoflegends.fandom.com/wiki/Loa

MODE Information Doctrine Scholarship

LEAGUE OF LEGENDS WIKI. **Missions (League of Legends)/2020**. Fandom, [202-?]. Disponível em: https://leagueoflegends.fandom.com/wiki/Missions_%28League_of_Legends%29/2020. Acesso em: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Public Beta Environment.** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Public_Beta_Environment. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Pulsefire (Universe).** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Pulsefire_%28Universe%29. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Queuing and Matchmaking.** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Queuing_and_Matchmaking. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Rank (League of Legends).** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Rank_%28League_of_Legends%29. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **RP.** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/pt-br/wiki/RP. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Sistema de Ligas.** Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/pt-br/wiki/Sistema_de_Ligas. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **Terminology (League of Legends)**. Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/Terminology_%28League_of_Legends%29. Accessed on: 1 mar. 2026.

LEAGUE OF LEGENDS WIKI. **V14.10.** Fandom, 15 maio 2024. Available at: https://leagueoflegends.fandom.com/wiki/V14.10. Accessed on: 1 mar. 2026.

Skip to content LEAGUE OF LEGENDS WIKI. **Your Shop**. Fandom, [202-?]. Available at: https://leagueoflegends.fandom.com/wiki/You

MODE Information Doctrine Scholarship

LEE, Julia. Gun Goddess Miss Fortune skin review. **Polygon**, 23 mar. 2018. Available at: https://www.polygon.com/2018/3/23/17152740/gun-goddess-miss-fortune-lol-skin-review/. Accessed on: 1 mar. 2026.

LESNOVSKI, Ana Flávia Merino. **Uma experiência paradigmática:** jogos e tensões no encontro entre a narrativa e a interatividade em forma audiovisual e eletrônica. Porto Alegre, 2014. 295 f. Tese (Doutorado em Comunicação Social) – Pontifícia Universidade Católica do Rio Grande do Sul, 2014.

LOLDEV-COSMETICS. **PBE Bug & Feedback Thread - Faerie Court Lux.** In: REDDIT. r/LeaguePBE, [2024]. Disponível em: https://www.reddit.com/r/LeaguePBE/comments/1ch455v/pbe_bug_feedback_thread_faerie_court_lux/. Acesso em: 1 mar. 2026.

LOLDEV-COSMETICS. **PBE Bug & Feedback Thread - Arcane Fractured Jinx.** In: REDDIT. r/LeaguePBE, 26 nov. [2025]. Available at: https://www.reddit.com/r/LeaguePBE/comments/1h0o4dm/pbe_bug_feedback_thread_arcane_fractured_jinx/. Accessed on: 1 mar. 2026.

LOLDEV-COSMETICS. **PBE Bug & Feedback Thread: Sahn-Uzal Mordekaiser UPDATE.** In: REDDIT. r/LeaguePBE, 2 abr. 2025a. Available at: https://www.reddit.com/r/LeaguePBE/comments/1jq0k91/pbe_bug_feedback_thread_sahnuzal_mordekaiser/. Accessed on: 1 mar. 2026.

LOLDEV-COSMETICS. **PBE Bug & Feedback Thread: Spirit Blossom Morgana.** In: REDDIT. r/LeaguePBE, 10 jun. 2025b. Available at: https://www.reddit.com/r/LeaguePBE/comments/1l87n3w/pbe_bug_feedback_thread_spirit_blossom_morgana/. Accessed on: 1 mar. 2026.

LOLDEV-COSMETICS. **PBE Bug & Feedback Thread - Revenant Reign Viego.** In: REDDIT. r/LeaguePBE, [2026]. Available at: https://www.reddit.com/r/LeaguePBE/comments/1q8jsvp/pbe_bug_feedback_thread_revenant_reign_viego/. Accessed on: 1 mar. 2026.

LOLESPORTS STAFF. **Boas-vindas ao LoL Esports.** LoL Esports, 21 jul. 2020. Available at: https://lolesports.com/pt-BR/news/welcome-to-lol-esports. Accessed on: 16 mar. 2026.

Skip to content

ona. O dano estético. 4. ed. Pavinatto. São Paulo: Almedina, 2021. (Coleçã

MODE Information Doctrine Scholarship

MACAULAY, Stewart. Non-contractual relations in business: a preliminary study. **American Sociological Review**, v. 28, n. 1, p. 55-67, fev. 1963.

MACAULYN. Os presentes estão indisponíveis no servidor brasileiro há vários meses. In: **Reddit**, r/leagueoflegends, [2020]. Available at: https://www.reddit.com/r/leagueoflegends/comments/kdtjrd/gifts_have_been_unavailable_in_the_brazilian/?tl=pt-br. Accessed on: 9 mar. 2026.

MACAULYN. O servidor brasileiro de LoL não tem permissão para usar presentes há anos sem nenhuma comunicação da Riot. In: **Reddit**, r/leagueoflegends, 2022. Available at: https://www.reddit.com/r/leagueoflegends/comments/ubnt0x/the_brazilian_lol_server_hasnt_been_allowed_to/?tl=pt-br. Accessed on: 9 mar. 2026.

MAGAZINE LUIZA**. Termo de Compra e Venda Magalu**. Magalu, [202-?]. Available at: https://especiais.magazineluiza.com.br/termo-compra-venda/. Accessed on: 15 mar. 2026.

MAIA, Maurilio Casas. A "vulnerabilidade eletrônica" e a "sexta onda renovatória de acesso à justiça" na "Sociedade 5.0": a tecnologia enquanto obstáculo e facilitadora do acesso. **Revista dos Tribunais**, São Paulo, v. 1052, ano 112, p. 39-56, jun. 2023. MAIS ESPORTS. LoL: Ideia de Arcane foi recusada 7 anos atrás, conta Rioter. **Mais Esports**, 18 nov. 2021. Disponível em: https://maisesports.com.br/lol-ideia-de-arcane-recusada-7-anos-atras/. Acesso em: 1 mar. 2026.

MARQUES, Claudia Lima; MIRAGEM, Bruno. **O novo direito privado e a proteção dos vulneráveis.** São Paulo: Revista dos Tribunais, 2012.

MARQUES, Claudia Lima; BENJAMIN, Antonio Herman V.; MIRAGEM, Bruno. **Comentários ao Código de Defesa do Consumidor:** artigo por artigo; doutrina e jurisprudência; diálogos entre o Código Civil de 2002 e o Código de Defesa do Consumidor. 4. ed. rev., atual. e ampl. São Paulo: Thomson Reuters Brasil; Revista dos Tribunais, 2013.

MARQUES, Claudia Lima. **Contratos no Código de Defesa do Consumidor:** o novo regime das relações contratuais. 8. ed. rev., atual. e ampl. São Paulo: Thomson Reuters Brasil; Revista dos Tribunais, 2016.

MARQUES, Claudia Lima; MUCELIN, Guilherme. Vulnerabilidade na era digital: um estudo sobre os fatores de vulnerabilidade da pessoa natural nas plataformas, a partir da dogmática do Direito do Consumidor. **Civilistica.com - Revista Eletrônica de Direito Civil**, Rio de Janeiro, 2022. Available at: nuvens.com.br/redc/article/view/873. Accessed on: 28 fev. 2026.

Skip to content

MODE Information Doctrine Scholarship

MARQUES, Claudia Lima; MENDES, Laura Schertel; BERGSTEIN, Laís. Dark patterns e padrões comerciais escusos. **Revista de Direito do Consumidor**, v. 145, p. 295-316, jan./fev. 2023.

MARQUES, Claudia Lima. **A evolução do contrato de prestação de serviço digital e a necessidade de proteção do consumidor:** para lá do comércio eletrônico. Revista de Direito do Consumidor, v. 155, p. 101-135, set./out. 2024.

MARSHALL, Cass. K/DA Akali gets a Prestige Edition skin. **Polygon**, 19 nov. 2018. Available at: https://www.polygon.com/lol-skins/2018/11/19/18103373/k-da-akali-prestige-edition-skin/. Accessed on: 1 mar. 2026.

MARTINS-COSTA, Judith. **A boa-fé no direito privado:** critérios para a sua aplicação. 2. ed. São Paulo: Saraiva Educação, 2018.

MARX, Karl. **O 18 de brumário de Luís Bonaparte.** Tradução de Nélio Schneider. Prólogo de Herbert Marcuse. São Paulo: Boitempo Editorial, 2011.

MARX, Karl. O capital: crítica da economia política. **Livro I: O processo de produção do capital.** Tradução de Rubens Enderle. São Paulo: Boitempo Editorial, 2013.

MCCRACKEN, Grant. Culture and consumption: a theoretical account of the structure and movement of the cultural meaning of consumer goods. **Journal of Consumer Research**, v. 13, n. 1, p. 71-84, jun. 1986. Disponível em: http://www.jstor.org/stable/2489287. Acesso em: 28 fev. 2026.

MCINTYRE, Isaac. Samira's much-hated LoL Ultimate skin gets update but 'scam' complaints won't go away. **Dot Esports,** 12 jul. 2023. Disponível em: https://dotesports.com/league-of-legends/news/much-hated-samira-ultimate-skin-gets-lol-update. Acesso em: 1 mar. 2026.

MERCADO LIVRE. **Termos e Condições de Uso.** Mercado Livre, 28 jan. 2026. Available at: https://www.mercadolivre.com.br/ajuda/299. Accessed on: 15 mar. 2026.

MIRAGEM, Bruno. **Curso de Direito do Consumidor.** 8. ed. rev., atual. e ampl. São Paulo: Revista dos Tribunais, 2020.

ı. O que acontece além do oceano? Direito e literatura
› de André Karam Trindad
Internacional de Direito e Literatura, v. 1, n

Skip to content

MODE Information Doctrine Scholarship

MOOBEAT. Elementalist Lux Now Available. **Surrender at 20**, 28 nov. 2016. Available at: https://www.surrenderat20.net/2016/11/elementalist-lux-now-available.html. Accessed on: 1 mar. 2026.

MOOBEAT. Red Post Collection: Juggernaut reworks & Item changes discussion, Gangplank returns, and more! **Surrender at 20**, 5 ago. 2015. Available at: https://www.surrenderat20.net/2015/08/red-post-collection-juggernaut-reworks.html. Accessed on: 1 mar. 2026.

MOOBEAT. Spirit Guard Udyr now available! **Surrender at 20**, 16 jul. 2013. Available at: https://www.surrenderat20.net/2013/07/spirit-guard-udyr-now-available_16.html. Accessed on: 1 mar. 2026.

MOONBELL, Selva. Is Riot's new anti-cheat system, Riot Vanguard, safe? **UnrankedSmurfs Blog**, 12 jan. 2025. Available at: https://www.unrankedsmurfs.com/blog/is-riot-vanguard-safe. Accessed on: 9 mar. 2026.

MUJICA reflete sobre evolução humana e diz que celular não é o problema. [S. l.: s. n.], 10 ago. 2023. 1 vídeo (4 min). Publicado pelo canal DW Brasil. Available at: https://www.youtube.com/watch?v=LikVbt3aJN0. Accessed on: 28 fev. 2026.

NETFLIX. **Arcane**. Netflix, 2024. Available at: https://www.netflix.com/title/81435684. Accessed on: 1 mar. 2026.

NERY JR., Nelson. Capítulo VI. DA PROTEÇÃO CONTRATUAL. *In:* GRINOVER, Ada Pellegrini et al. **Código brasileiro de defesa do consumidor:** comentado pelos autores do anteprojeto. 10. ed. rev., atual. e reform. Rio de Janeiro: Forense, 2011. v. 1: Direito material (arts. 1º a 80 e 105 a 108).

NUNES, Rizzatto. **Curso de direito do consumidor.** 12. ed. São Paulo: Saraiva Educação, 2018.

OPENAI. **Termos de Uso.** OpenAI, 1 jan. 2026. Available at: https://openai.com/pt-BR/policies/row-terms-of-use/. Accessed on: 15 mar. 2026.

PALMEIRA, Mariana de Moraes. **Vulnerabilidade, hipossuficiência e proteção de dados na jornada de consumo em ambiente digital.** 2022. 266 f. Tese (Doutorado em Direito) – Pontifícia Universidade Católica do Rio de Janeiro, Departamento de Direito, Rio de Janeiro, 2022.

Skip to content

MODE Information Doctrine Scholarship

PASQUALOTTO, Adalberto. **Os efeitos obrigacionais da publicidade no Código de Defesa do Consumidor.** São Paulo: Revista dos Tribunais, 1997. (Biblioteca de direito do consumidor, v. 10).

PHEREELEN. Vanguard bricking PC. In: **Reddit**, r/riotgames, 2024. Available at: https://www.reddit.com/r/riotgames/comments/1d7su04/vanguard_bricking_pc/?tl=pt-br. Accessed on: 9 mar. 2026.

PINHEIRO, Patricia Peck. **Direito digital.** 8. ed. Rio de Janeiro: SaraivaJur, 2026.

POSNER, Eric A.; EGGLESTON, Karen; ZECKHAUSER, Richard. The design and interpretation of contracts: why complexity matters. **Northwestern University Law Review**, v. 95, n. 1, p. 91-132, 2000.

POSTMAN, Neil. **Amusing ourselves to death:** public discourse in the age of show business. New introduction by Andrew Postman. 20th anniversary ed. New York: Penguin Books, 2006.

PROCON-SP. **Procon-SP faz nova consulta para entender a percepção dos consumidores sobre os jogos e apostas on-line.** PROCON.SP, 4 dez. 2025. Available at: https://www.procon.sp.gov.br/procon-sp-faz-nova-consulta-para-entender-a-percepcao-dos-consumidores-sobre-os-jogos-e-apostas-on-line/. Accessed on: 9 mar. 2026.

RAVENHUSKY. **Elementalist Lux Megathread**. In: REDDIT. r/lux, 8 nov. 2016. Available at: https://www.reddit.com/r/lux/comments/5buce9/elementalist_lux_megathread/. Accessed on: 1 mar. 2026.

REALE, Miguel. **Teoria tridimensional do direito.** 5. ed. São Paulo: Saraiva, 1994.

REALE, Miguel. **Lições preliminares de direito.** 25. ed. São Paulo: Saraiva, 2001.

REVENANT Reign Viego Exalted Skin Trailer. [S. l.: s. n.], 8 jan. 2026. 1 vídeo (2 min). Publicado pelo canal SkinSpotlights. Available at: https://www.youtube.com/watch?v=6JJShMMSXgU. Accessed on: 1 mar. 2026.

RIBBLE, Mike; BAILEY, Gerald. **Digital citizenship in schools.** Washington, DC; Eugene, OR: International Society for Technology in Education, 2007.

RIGNEY, Ryan K. The Gamers Do Not Understand Anti-Cheat. **Push to Talk**, 23 fev. 2024. Available at: https://www.pushtotalk.gg/p/the-gamers-anti-cheat/comments. Accessed on: 9 mar. 2026.

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **Preseason Update**. League of Legends, [201-?]. Disponível em: https://euw.leagueoflegends.com/en/featured/preseason-update. Acesso em: 1 mar. 2026. RIOT GAMES. **Guardiãs Estelares.** Universo de League of Legends, [202-?]a. Disponível em: https://universe.leagueoflegends.com/pt_BR/star-guardian/. Acesso em: 1 mar. 2026.

RIOT GAMES. **Notas de Atualização.** League of Legends, [202-?]b. Available at: https://www.leagueoflegends.com/pt-br/news/tags/patch-notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Odisseia.** Universo de League of Legends, [202-?]c. Available at: https://universe.leagueoflegends.com/pt_BR/odyssey/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Pacto da Comunidade.** Riot Games, [202-?]d. Available at: https://www.riotgames.com/pt-br/community-pact. Accessed on: 1 mar. 2026.

RIOT GAMES. **Riot Games and Xbox Game Pass Benefits.** Riot Games, [202-?]e. Available at: https://www.riotgames.com/en/riot-game-pass-benefits. Accessed on: 1 mar. 2026.

RIOT GAMES. **Riot Games Service Status**. Riot Games, [202-?]f. Available at: https://status.riotgames.com/?locale=pt_BR. Accessed on: 1 mar. 2026.

RIOT GAMES. **Elementalist Lux:** 10 Skins in 30 Megabytes. Por Eric Friedman; Scott DeFreitas. Riot Games Technology, 13 dez. 2016. Available at: https://technology.riotgames.com/news/elementalist-lux-10-skins-30-megabytes. Accessed on: 1 mar. 2026.

RIOT GAMES. **Criação Hextec e Honra - Restrições de Comportamento.** League of Legends - Suporte ao Jogador, 31 ago. 2017a. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/209939463-Cria%C3%A7%C3%A3o-Hextec-e-Honra-Restri%C3%A7%C3%B5es-de-Comportamento. Accessed on: 1 mar. 2026.

RIOT GAMES. **Honor and Hextech Crafting Restrictions.** League of Legends - Player Support, 18 set. 2017b. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/209939463-Honor-and-Hextech-Crafting-Restrictions. Accessed on: 1 mar. 2026.

Skip to content **Harrowing?. Ask Riot,** 26 out.
2017c. Available at: https://nexus.leagueofleger

MODE Information Doctrine Scholarship

us/2017/10/ask-riot-the-harrowing/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Missões.** Por Isto. League of Legends - Suporte ao Jogador, 26 set. 2017d. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/115008256847-Miss%C3%B5es. Accessed on: 1 mar. 2026.

RIOT GAMES. **Under the hood of the League Client's Hextech UI.** Por Jules Glegg. Riot Games Technology, 14 fev. 2017e. Available at: https://technology.riotgames.com/news/under-hood-league-client%E2%80%99s-hextech-ui. Accessed on: 1 mar. 2026.

RIOT GAMES. **/dev: Missions Update.** Por Riot_Mort. League of Legends, out. 2017f. Disponível em: https://nexus.leagueoflegends.com/en-us/2017/10/dev-missions-update/. Acesso em: 1 mar. 2026. RIOT GAMES. **/dev: Update on Runes Reforged.** Por Fearless. League of Legends, 22 jan. 2018a. Disponível em: https://nexus.leagueoflegends.com/en-us/2018/01/dev-update-on-runes-reforged/. Acesso em: 1 mar. 2026.

RIOT GAMES. **Balancing Champions.** Por Riot Maple Nectar; Riot King Cobra; DontHassleDaHoff. League of Legends, 8 fev. 2018b. Available at: https://nexus.leagueoflegends.com/en-us/2018/02/ask-riot-balancing-champions/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Champion Roadmap: January 2018.** Por Reav3. League of Legends, 31 jan. 2018c. Available at: https://nexus.leagueoflegends.com/en-us/2018/01/champion-roadmap-january-2018/. Accessed on: 1 mar. 2026.

RIOT GAMES. **/dev: Plano de Balanceamento de Campeões.** Por RiotRepertoir. Nexus, 30 maio 2019. Available at: https://nexus.leagueoflegends.com/pt-br/2019/05/dev-champion-balance-framework/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Qual a skin mais popular?** Por IamCarlos; MechaHawk; Riot Stephiroth. League of Legends, 8 ago. 2019b. Available at: https://nexus.leagueoflegends.com/pt-br/2019/08/ask-riot-most-popular-skin/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Ask Riot: Lore-Based Events?** League of Legends, 11 jun. 2020a. Available at: https://www.leagueoflegends.com/en-us/news/dev/ask-riot-lore-based-events/. Accessed on: 1 mar. 2026.

RIOT GAMES. **K/DA ALL OUT Seraphine - Ultimate Skin Explainer.** League of Legends, 20b. Available at: https://www.leagueoflegends.com/en-us/news/game-updates/k-da-all-out-seraphine-ultimate-skin-e

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **Limpeza do cliente: nosso trabalho continua.** Por Riot Cactopus; Riot Sparango; Riot Id; Riot A Huevo. League of Legends, 26 jun. 2020c. Available at: https://www.leagueoflegends.com/pt-br/news/dev/limpeza-do-cliente-nosso-trabalho-continua/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Seraphine K/DA ALL OUT: explicando a Skin Ultimate.** Por shio shoujo. League of Legends, 12 out. 2020d. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/seraphine-k-da-all-out-explicando-a-skin-ultimate/. Accessed on: 1 mar. 2026.

RIOT GAMES. **A Message About Vanguard From Our Security & Privacy Teams.** Por The Riot Security Team. Riot Games, 17 abr. 2020e. Available at: https://www.riotgames.com/en/news/a-message-about-vanguard-from-our-security-privacy-teams. Accessed on: 9 mar. 2026.

RIOT GAMES. **Atualização do impacto social de 2020.** Riot Games, 10 dez. 2020f. Disponível em: https://www.riotgames.com/pt-br/quem-somos/impacto-social/atualizacao-do-impacto-social-de-2020. Acesso em: 9 mar. 2026. RIOT GAMES. **Clarity in League.** Por bananaband1t. League of Legends, 12 mar. 2021a. Disponível em: https://www.leagueoflegends.com/en-us/news/dev/clarity-in-league/. Acesso em: 1 mar. 2026.

RIOT GAMES. **Quick Gameplay Thoughts 12/3: Event Mission Points.** League of Legends, 3 dez. 2021b. Available at: https://www.leagueoflegends.com/en-us/news/dev/quick-gameplay-thoughts-12-3-event-mission-points/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Calendário de Atualizações de Campeões.** Por Morgageddon. League of Legends - Suporte ao Jogador, 26 maio 2021c. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/202294884-Calend%C3%A1rio-de-Atualiza%C3%A7%C3%B5es-de-Campe%C3%B5es. Accessed on: 1 mar. 2026.

RIOT GAMES. **Loja Ranqueada.** Por Laserface. Wild Rift - Suporte ao Jogador, 22 dez. 2021d. Available at: https://support-wildrift.riotgames.com/hc/pt-br/articles/4411711719571-Loja-Ranqueada. Accessed on: 1 mar. 2026.

RIOT GAMES. **Regional Price Changes and Global Bonus Currency.** Por Joe Hixson. League of Legends: Wild Rift, 23 ago. 2021e. Available at: https://wildrift.leagueoflegends.com/en-us/news/game-updates/regional-price-changes-and-ıcy/. Accessed on: 1 mar. 2026.

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **/dev: bastidores das atualizações de efeitos visuais.** Por Riot Sirhaian; Riot Riru. League of Legends, 25 abr. 2022a. Available at: https://www.leagueoflegends.com/pt-br/news/dev/dev-bastidores-das-atualizacoes-de-efeitos-visuais/. Accessed on: 1 mar. 2026.

RIOT GAMES**. Challenges FAQ - League of Legends.** League of Legends - Player Support, 30 nov. 2022b. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/6005348905363-Challenges-FAQ-League-of-Legends. Accessed on: 1 mar. 2026.

RIOT GAMES. **Riot Games Announces New Equity Investment in "Arcane" Animation Studio Fortiche Production.** Riot Games, 14 mar. 2022c. Available at: https://www.riotgames.com/en/news/riot-games-announces-new-equity-investment-in-arcane-animation-studio-fortiche-production. Accessed on: 1 mar. 2026.

RIOT GAMES. **Challenges Walkthrough.** Por BarackProbama; RiotAether. League of Legends, 6 maio 2022d. Available at: https://www.leagueoflegends.com/en-us/news/game-updates/challenges-walkthrough/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Elementalist Lux FAQ.** Por CopperKitten. League of Legends - Suporte ao Jogador, 25 mar. 2022e. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/233073948-Elementalist-Lux-FAQ. Accessed on: 1 mar. 2026.

RIOT GAMES. **Eternals FAQ - League of Legends.** Por whatacoolwitch. League of Legends - Suporte ao Jogador, 17 mar. 2022f. Disponível em: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/360042792214-Eternals-FAQ-League-of-Legends. Acesso em: 1 mar. 2026. RIOT GAMES. **Eternals Series 2 Launch.** League of Legends, 16 nov. 2022g. Disponível em: https://www.leagueoflegends.com/en-gb/news/game-updates/eternals-series-2-launch/. Acesso em: 1 mar. 2026.

RIOT GAMES. **Perguntas Frequentes sobre a DJ Sona.** Por Nancymon. League of Legends - Suporte ao Jogador, 28 mar. 2022h. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/203799564-Perguntas-Frequentes-sobre-a-DJ-Sona. Accessed on: 1 mar. 2026.

RIOT GAMES. **Perguntas Frequentes: Eternos - League of Legends.** Por whatacoolwitch. League of Legends - Suporte ao Jogador, 17 mar. 2022i. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/360042792214-Perguntas-Frequentes-Eternos-League-of-Legends. Accessed on: 1 mar. 2026.

Skip to content

: Mythic Content Overha

of Legends, 7 jan. 2022j. Available at: https://w

MODE Information Doctrine Scholarship

us/news/dev/the-mythic-content-overhaul/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Updating Spirit Guard Udyr.** Por Riot Cashmiir. League of Legends, 23 ago. 2022k. Available at: https://www.leagueoflegends.com/en-us/news/game-updates/updating-spirit-guard-udyr/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Wild Cores.** Por The Hextech. Wild Rift - Suporte ao Jogador, 22 set. 2022l. Available at: https://support-wildrift.riotgames.com/hc/pt-br/articles/360051608034-Wild-Cores. Accessed on: 1 mar. 2026.

RIOT GAMES. **Wild Rift - Evento Guardiã Estelar Redimida.** Por Laserface. Wild Rift - Suporte ao Jogador, 13 jul. 2022m. Available at: https://support-wildrift.riotgames.com/hc/pt-br/articles/6532562020627-Wild-Rift-Evento-Guardi%C3%A3- Estelar-Redimida. Accessed on: 1 mar. 2026.

RIOT GAMES. **Wild Rift - Protetores de Ionia.** Por Laserface. Wild Rift - Suporte ao Jogador, 3 mar. 2022n. Available at: https://support-wildrift.riotgames.com/hc/pt-br/articles/4414715050387-Wild-Rift-Protetores-de-Ionia. Accessed on: 1 mar. 2026.

RIOT GAMES. **Xbox Game Pass FAQ.** Por Wolf. League of Legends - Suporte ao Jogador, 12 dez. 2022o. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/11124399294867-Xbox-Game-Pass-FAQ. Accessed on: 1 mar. 2026.

RIOT GAMES. **How Riot Delivers a Global Broadcast for Worlds 2022.** Riot Games, 1 nov. 2022p. Available at: https://www.riotgames.com/en/news/riot-esports-delivering-custom-global-broadcasts-worlds-2022. Accessed on: 16 mar. 2026.

RIOT GAMES. **Price Tiers for Skins in League of Legends (SEA).** League of Legends - Player Support, 4 jan. 2023a. Disponível em: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/12720701428115-Price-Tiers-for-Skins-in-League-of-Legends-SEA. Acesso em: 1 mar. 2026. RIOT GAMES. **Sua Loja - Perguntas Frequentes.** League of Legends - Suporte ao Jogador, 20 jul. 2023b. Disponível em: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/115012568988-Sua-Loja-Perguntas-Frequentes. Acesso em: 1 mar. 2026.

RIOT GAMES. **/dev: State of Skins 2023.** Por 100 pc nuggets. League of Legends, 8 jun. 2023c. Available at: https://www.leagueoflegends.com/en-ıte-of-skins-2023/. Accessed on: 1 mar. 2026.

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **What's Next for Ranked.** Por Riot Auberaun; Riot Revenancer. League of Legends, 8 jun. 2023d. Available at: https://www.leagueoflegends.com/en-us/news/game-updates/what-s-next-for-ranked/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Cobrança não autorizada da Riot Games.** League of Legends – Suporte ao Jogador, 20 set. 2023e. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/20590555887251-Cobran%C3%A7a-n%C3%A3o-autorizada-da-Riot-Games. Accessed on: 9 mar. 2026.

RIOT GAMES. **Cobrança não autorizada da Riot Games.** Suporte de VALORANT, 20 set. 2023f. Available at: https://support-valorant.riotgames.com/hc/pt-br/articles/20590571987987-Cobran%C3%A7a-n%C3%A3o-autorizada-da-Riot-Games. Accessed on: 9 mar. 2026.

RIOT GAMES. **Cartões vale-presente pré-pagos.** Suporte de VALORANT, 12 dez. 2023g. Available at: https://support-valorant.riotgames.com/hc/pt-br/articles/360049090894-Cart%C3%B5es-vale-presente-pr%C3%A9-pagos. Accessed on: 9 mar. 2026.

RIOT GAMES. **/dev: Skins Exaltadas, Loja Mítica e Finalizadores.** League of Legends, 16 out. 2024a. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/dev-exalted-skins-the-mythic-shop-and-nexus-finishers/. Accessed on: 1 mar. 2026.

RIOT GAMES. **League of Legends - Festival Lunar 2024.** League of Legends - Suporte ao Jogador, 28 fev. 2024b. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/25323643321747-League-of-Legends-Festival-Lunar-2024. Accessed on: 1 mar. 2026.

RIOT GAMES. **LoL Price Changes - 2024 (LATAM & BR).** League of Legends - Player Support, 21 set. 2024c. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/33630227186195-LoL-Price-Changes-2024-LATAM-BR. Accessed on: 1 mar. 2026.

RIOT GAMES. **Still Here | Season 2024 Cinematic.** League of Legends, 10 jan. 2024d. Available at: https://www.leagueoflegends.com/en-us/news/media/still-here-season-2024- cinematic/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Termos de Serviço da Riot Games.** Riot Games, 1 dez. 2024e. 'www.riotgames.com/pt-br/terms-of-service-BR. 2026.

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **/dev: atualização nas ranqueadas da Etapa 2.** Por Riot Phroxzon. League of Legends, 7 maio 2024f. Available at: https://www.leagueoflegends.com/pt-br/news/dev/dev-atualizacao-nas-ranqueadas-da-etapa-2/. Accessed on: 1 mar. 2026.

RIOT GAMES. **/dev: Exalted Skins, the Mythic Shop, and Nexus Finishers.** League of Legends, 16 out. 2024g. Disponível em: https://www.leagueoflegends.com/en-us/news/game-updates/dev-exalted-skins-the-mythic-shop-and-nexus-finishers/. Acesso em: 1 mar. 2026.

RIOT GAMES. **/dev: Recompensas Ranqueadas em 2024.** Por Equipe de EUCR; Riot Sakaar. League of Legends, 8 abr. 2024h. Available at: https://www.leagueoflegends.com/pt-br/news/dev/dev-recompensas-ranqueadas-em-2024/. Accessed on: 1 mar. 2026.

RIOT GAMES. **/dev: Updating Champion Mastery.** Por Riot Revenancer. League of Legends, 5 jan. 2024i. Available at: https://www.leagueoflegends.com/en-us/news/dev/dev-updating-champion-mastery/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Ambiente Público de Testes (PBE) - Perguntas Frequentes.** Por Nancymon. League of Legends - Suporte ao Jogador, 4 jul. 2024j. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201751904-Ambiente-P%C3%BAblico-de-Testes-PBE-Perguntas-Frequentes. Accessed on: 1 mar. 2026.

RIOT GAMES. **Fim da Temporada 2024 - Etapa 3.** Por Laserface. League of Legends - Suporte ao Jogador, 26 dez. 2024k. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/36416633092499-Fim-da-Temporada-2024-Etapa-3. Accessed on: 1 mar. 2026.

RIOT GAMES. **Métodos de Pagamento - FAQ.** Por Boneco de Olinda. League of Legends - Suporte ao Jogador, 30 jul. 2024l. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/203149980-M%C3%A9todos-de-Pagamento-FAQ. Accessed on: 1 mar. 2026.

RIOT GAMES. **Mudanças nos preços do LoL - 2024 (América Latina e Brasil).** Por Laserface. League of Legends - Suporte ao Jogador, 25 set. 2024m. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/33630227186195- Mudan%C3%A7as-nos-pre%C3%A7os-do-LoL-2024-Am%C3%A9rica-Latina-e-Brasil. Accessed on: 1 mar. 2026.

RIOT GAMES. **Mythic Shop and Mythic Essence FAQ.** Por Skittle Sniper. League of
o Jogador, 11 dez. 2024n. Available at: https://support-
games.com/hc/en-us/articl
Essence-FAQ. Accessed on: 1 mar. 2026.

Skip to content
MODE Information Doctrine Scholarship

RIOT GAMES. **Notas da Atualização 14.18.** Por Riot Riru. League of Legends, 10 set. 2024o. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/patch-14- 18-notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Próximas atualizações nos preços regionais.** Riot Games, 3 set. 2024p. Available at: https://www.riotgames.com/pt-br/not%C3%ADcias/proximas-atualizacoes-nos-precos-regionais. Accessed on: 1 mar. 2026.

RIOT GAMES. **Resumo: O que vem por aí na Temporada 2024.** Por The League Dev Team. League of Legends, 5 jan. 2024q. Disponível em: https://www.leagueoflegends.com/pt-br/news/dev/resumo-o-que-vem-por-ai-na-temporada-2024/. Acesso em: 1 mar. 2026.

RIOT GAMES**. Riot Vanguard FAQ (League of Legends).** League of Legends Support, 3 maio 2024r. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/24169857932435-Riot-Vanguard-FAQ-League-of-Legends. Accessed on: 9 mar. 2026.

RIOT GAMES. **Vanguard FAQ for Third Party Applications.** Riot Games, 1 abr. 2024s. Available at: https://www.riotgames.com/en/DevRel/vanguard-faq. Accessed on: 9 mar. 2026.

RIOT GAMES. **What is Vanguard?** VALORANT Support, 5 jan. 2024t. Available at: https://support-valorant.riotgames.com/hc/en-us/articles/360046160933-What-is-Vanguard. Accessed on: 9 mar. 2026.

RIOT GAMES. **Guia de Honra do League of Legends.** League of Legends - Suporte ao Jogador, 31 mar. 2025a. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/115008474148-Guia-de-Honra-do-League-of-Legends. Accessed on: 1 mar. 2026.

RIOT GAMES. **Notas da Atualização 25.13.** League of Legends, 24 jun. 2025b. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/patch-25-13-notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Notas da Atualização 25.S1.2.** League of Legends, 22 jan. 2025c. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/patch-25-s1-2- notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **O Santuário.** League of Legends - Suporte ao Jogador, 18 ago. https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/3582127 8718995-O-Santu%C3%

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **Patch 25.24 Notes.** League of Legends, 2 dez. 2025e. Available at: https://www.leagueoflegends.com/en-gb/news/game-updates/patch-25-24-notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Pontos de Objetivo ao jogar partidas.** League of Legends - Suporte ao Jogador, 17 mar. 2025f. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/4410278943635-Pontos-de-Objetivo-ao-jogar-partidas. Accessed on: 1 mar. 2026.

RIOT GAMES. **Ranked Years, Seasons, and End-of-Season Rewards.** League of Legends - Player Support, 8 maio 2025g. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/4406003617555-Ranked-Years-Seasons-and-End-of-Season-Rewards. Accessed on: 1 mar. 2026.

RIOT GAMES. **Skins Legado e Limitadas - Guia.** League of Legends - Suporte ao Jogador, 3 set. 2025h. Disponível em: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201752944-Skins-Legado-e-Limitadas-Guia. Acesso em: 1 mar. 2026. RIOT GAMES. **Champion Pricing Overview.** Por Nancymon. League of Legends - Suporte ao Jogador, 25 jun. 2025i. Disponível em: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/202083304-Champion-Pricing-Overview. Acesso em: 1 mar. 2026.

RIOT GAMES. **Detalhamento do sistema de recompensas (EA/EXP).** Por Chipteck. League of Legends - Suporte ao Jogador, 14 nov. 2025j. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201752824-Detalhamento-do-sistema-de-recompensas-EA-EXP. Accessed on: 1 mar. 2026.

RIOT GAMES. **LoL - Política de Reembolso.** Por Isto. League of Legends - Suporte ao Jogador, 5 dez. 2025k. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201751864-LoL-Pol%C3%ADtica-de-Reembolso. Accessed on: 1 mar. 2026.

RIOT GAMES. **Moedas Poro e Minério Condensado.** Por Laserface. Wild Rift - Suporte ao Jogador, 26 jun. 2025l. Available at: https://support-wildrift.riotgames.com/hc/pt-br/articles/360053280773-Moedas-Poro-e-Min%C3%A9rio-Condensado. Accessed on: 1 mar. 2026.

RIOT GAMES. **Novos programas de parceria para criadores.** Riot Games, 22 set. 2025m. Available at: https://www.riotgames.com/pt-br/not%C3%ADcias/programa-parceria-beta-fechado. Accessed on: 1 mar. 2026.

Skip to content

tegendo a Sua Conta. Por [illegible] 30 abr. 2025n. Available at: https://support-lea[illegible]

MODE Information Doctrine Scholarship

br/articles/4402981557267-Protegendo-a-Sua-Conta. Accessed on: 1 mar. 2026.

RIOT GAMES. **Reward (BE/XP) System Breakdown.** Por Chipteck. League of Legends - Suporte ao Jogador, 11 nov. 2025o. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/201752824-Reward-BE-XP-System-Breakdown. Accessed on: 1 mar. 2026.

RIOT GAMES. **Vanguard Security Update:** Closing the Pre-Boot Gap. Riot Games, 18 Dec. 2025p. Available at: https://www.riotgames.com/en/news/vanguard-security-update-motherboard. Accessed on: 9 mar. 2026.

RIOT GAMES. **Vanguard Restrictions.** Por Wolf. VALORANT Support, 18 dez. 2025q. Available at: https://support-valorant.riotgames.com/hc/en-us/articles/22291331362067- Vanguard-Restrictions. Accessed on: 9 mar. 2026.

RIOT GAMES. **Guia de Presentes – Perguntas frequentes.** League of Legends – Suporte ao Jogador, 18 set. 2025r. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201752964-Guia-de-Presentes-Perguntas-frequentes. Accessed on: 9 mar. 2026.

RIOT GAMES. **Chargebacks.** Por Wolf. League of Legends - Suporte ao Jogador, 14 out. 2025s. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/4403733573011-Chargebacks. Accessed on: 9 mar. 2026.

RIOT GAMES. **Encontre uma watch party do Mundial 2025 perto de você.** Riot Games, 6 nov. 2025t. Disponível em: https://www.riotgames.com/pt-br/noticias/encontre-uma-watch-party-do-mundial-2025-perto-de-voce. Acesso em: 16 mar. 2026.

RIOT GAMES. **Gerenciamento de partidas e preenchimento automático.** League of Legends - Suporte ao Jogador, 4 fev. 2026a. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/201752954-Gerenciamento-de-partidas-e-preenchimento-autom%C3%A1tico. Accessed on: 1 mar. 2026.

RIOT GAMES. **League of Legends - Recompensas ranqueadas do Fim da Temporada 2025.** League of Legends - Suporte ao Jogador, 3 fev. 2026b. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/46228902283923-League-of-Legends-Recompensas-ranqueadas-do-Fim-da-Temporada-2025. Accessed on: 1 mar. 2026.

RIOT GAMES. **MMR, ranque e PdL.** League of Legends - Suporte ao Jogador, ole at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/4405781372051-MMR-ranque-e-

Skip to content

MODE Information Doctrine Scholarship

RIOT GAMES. **Notas da Atualização 26.3.** League of Legends, 3 fev. 2026d. Available at: https://www.leagueoflegends.com/pt-br/news/game-updates/patch-26-3-notes/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Perguntas Frequentes de suspensão/banimento do League of Legends.** League of Legends - Suporte ao Jogador, 3 fev. 2026e. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/360038430973-Perguntas-Frequentes-de-suspens%C3%A3o-banimento-do-League-of-Legends. Accessed on: 1 mar. 2026.

RIOT GAMES. **TL;DW: For Demacia Dev Update.** Por Meddler. League of Legends, 8 jan. 2026f. Available at: https://www.leagueoflegends.com/en-us/news/dev/tldw-for-demacia-dev-update/. Accessed on: 1 mar. 2026.

RIOT GAMES. **Mestre, Grão-Mestre e Desafiante: os tiers mais altos.** Por Skittle Sniper. League of Legends - Suporte ao Jogador, 2 fev. 2026g. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/4405776545427-Mestre-Gr%C3%A3o-Mestre-e-Desafiante-os-tiers-mais-altos. Accessed on: 1 mar. 2026.

RIOT GAMES. **MMR, Rank, and LP. Por Laserface.** League of Legends - Suporte ao Jogador, 7 jan. 2026h. Available at: https://support-leagueoflegends.riotgames.com/hc/en-us/articles/4405781372051-MMR-Rank-and-LP. Accessed on: 1 mar. 2026.

RIOT GAMES. **Sistema de Feedback Instantâneo - Perguntas Frequentes.** Por Itsumo. League of Legends - Suporte ao Jogador, 4 fev. 2026i. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/207489286-Sistema-de-Feedback-Instant%C3%A2neo-Perguntas-Frequentes. Accessed on: 1 mar. 2026.

RIOT GAMES. **Tiers, divisões e filas das ranqueadas.** Por Laserface. League of Legends - Suporte ao Jogador, 17 fev. 2026j. Disponível em: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/4406004330643-Tiers-divis%C3%B5es-e-filas-das-ranqueadas. Acesso em: 1 mar. 2026. RIOT GAMES. VAN: Incompatible Software. Por Wolf. VALORANT Support, 23 jan. 2026k. Disponível em: https://support-valorant.riotgames.com/hc/en-us/articles/48441713812755-VAN-Incompatible-Software. Acesso em: 9 mar. 2026.

RIOT GAMES. League of Legends. Competitive Operations, 2026l. Available at: https://competitiveops.riotgames.com/pt-BR/league-of-legends. Accessed on: 16 mar. 2026.

Skip to content

tal dos Responsáveis da R

Available at: https://support-leagueoflegends.ri

MODE Information Doctrine Scholarship

br/articles/49641859007635-Portal-dos-Respons%C3%A1veis-da-Riot-Games. Accessed on: 19 mar. 2026.

RIOT GAMES. **Verificação de idade.** Riot Games: 18 mar. 2026n. Available at: https://support-leagueoflegends.riotgames.com/hc/pt-br/articles/49641878678291-Verifica%C3%A7%C3%A3o-de-idade. Accessed on: 19 mar. 2026.

RIOTMIKOUZ. **Tired of not knowing what you're buying? The latest thing we are experimenting on is Skin Previews. NA only + a subset of players. Any feedback welcome.** X, 27 jun. 2025. Available at: https://x.com/RiotMikouz/status/1938586556815876340. Accessed on: 1 mar. 2026.

Freitas, Riva Sobrado de; Clemente, Alexandre Shimizu. A incidência dos direitos fundamentais nas relações privadas. **Direitos Fundamentais & Justiça**, v. 5, n. 15, p. 159– 185, abr./jun. 2011.

ROSALEM, Nícolas. **Novas tecnologias e o acesso à justiça por pessoas em situação de vulnerabilidade:** os canais de atendimento remotos na Defensoria Pública de Seropédica/RJ. 2023. 144 p. Dissertação (Mestrado em Direito) – Faculdade de Direito de Ribeirão Preto, Ribeirão Preto, 2023

SANTOS, Isadora Beatriz Magalhães. **A eficácia horizontal dos direitos fundamentais frente à mitigação do princípio da autonomia privada.** 2019. 138 p. Dissertação (Mestrado em Direito) – Universidade Estadual Paulista (Unesp), Faculdade de Ciências Humanas e Sociais, Franca, 2019.

SARLET, Ingo Wolfgang. **A eficácia dos direitos fundamentais:** uma teoria geral dos direitos fundamentais na perspectiva constitucional. 13. ed. rev. e atual. Porto Alegre: Livraria do Advogado, 2018.

SARMENTO, Daniel. **Direitos fundamentais e relações privadas.** 2. ed. Rio de Janeiro: Lumen Juris, 2010.

SERTENSEAL. Misinformation about Riot's recent controversy with their kernel level anti cheat "Vanguard". In: **Reddit**, r/PedroPeepos, [2024]. Available at: https://www.reddit.com/r/PedroPeepos/comments/1926jho/misinformation_about_riots_recent_controversy/. Accessed on: 9 mar. 2026.

Skip to content

rson. **Direitos da personalidade.** 3. ed. São Paulo: Atlas, 2014.

MODE Information Doctrine Scholarship

SILVA, José Afonso da. **Curso de Direito Constitucional Positivo.** 24. ed. rev. e atual. nos termos da Reforma Constitucional até a Emenda Constitucional n. 48, de 10.8.2005. São Paulo: Malheiros, 2005.

SIMÕES, Paula Cristina de Oliveira. **O acesso à justiça das pessoas em situação de vulnerabilidade:** os excluídos digitais e o papel do Conselho Nacional de Justiça. 2024. 138 p. Dissertação (Mestrado em Direito) – Faculdade de Direito, Universidade de São Paulo, São Paulo, 2024.

SKINSPOTLIGHTS. **Canal SkinSpotlights.** YouTube, 2026. Available at: https://www.youtube.com/channel/UC0NwzCHb8Fg89eTB5eYX17Q. Accessed on: 1 mar. 2026.

SOARES, José Carlos Tinoco. **Marca vs. nome comercial:** conflitos. São Paulo: Editora Jurídica Brasileira, 2000.

SOLUTIONPUB. RTCore64.sys Error Blocking Valorant / Vanguard – Real Fix (ASUS Armoury Crate Conflict). In: Reddit, r/ASUS, [2025]. Available at: https://www.reddit.com/r/ASUS/comments/1pfxl3d/rtcore64sys_error_blocking_valorant_vanguard_real/. Accessed on: 9 mar. 2026.

SPIDERAXE30. **K/DA ALL OUT Seraphine - Ultimate Skin Explainer - League of Legends.** In: REDDIT. r/leagueoflegends, 12 out. 2020. Available at: https://www.reddit.com/r/leagueoflegends/comments/j9tstp/kda_all_out_seraphine_ultimate_skin_explainer/. Accessed on: 1 mar. 2026.

STDNULLPTR. Why You Should Reconsider Playing League of Legends: The Risks of Kernel-Level Anti-Cheat Software. **GitHub Gist**, 2 jan. 2026. Available at: https://gist.github.com/stdNullPtr/2998eacb71ae925515360410af6f0a32. Accessed on: 9 mar. 2026.

TAN, Amanda "Tania Mae". Joe Hisaishi's daughter gives life to Spirit Blossom Morgana, a unique Exalted Skin with 3 forms. **ONE Esports**, 9 jun. 2025. Available at: https://www.oneesports.gg/league-of-legends/spirit-blossom-morgana-skin/. Accessed on: 1 mar. 2026.

THE LIGHT WITHIN | Elementalist Lux - League of Legends. [S. l.: s. n.], 28
2 min). Publicado pelo canal League of Legends. Available
tube.com/watch?v=fjrf YZ

Skip to content

MODE Information Doctrine Scholarship

UBER. **Termos Gerais de Uso.** Uber, 2 fev. 2026. Available at: https://www.uber.com/legal/pt-br/document/?country=brazil&lang=pt-br&name=general-terms-of-use. Accessed on: 15 mar. 2026.

UNGER, Roberto Mangabeira. **False necessity:** anti-necessitarian social theory in the service of radical democracy. London; New York: Verso, 2001. (Politics: a work in constructive social theory, v. 1).

UOIYOUIYOUIY. The Evolution of Anti-Cheats in 2026: EAC vs Vanguard — And Why Players Are Still Finding Ways Around Both. **Medium**, 27 fev. 2026. Disponível em: https://medium.com/@uoiyouiyouiy/the-evolution-of-anti-cheats-in-2026-eac-vs-vanguard-and-why-players-are-still-finding-ways-3816e625aba9. Acesso em: 9 mar. 2026.

VANDERBURG, Willem H. **Our war on ourselves:** rethinking science, technology, and economic growth. Toronto; Buffalo; London: University of Toronto Press, 2011.

VANDERBURG, Willem H. **Our battle for the human spirit:** scientific knowing, technical doing, and daily living. Toronto; Buffalo; London: University of Toronto Press, 2016.

VAROUFAKIS, Yanis. **Tecnofeudalismo:** el sigiloso sucesor del capitalismo. Traducción de Marta Valdivieso. Barcelona: Ediciones Deusto, 2024.

VARIAN, Hal R. **Intermediate microeconomics:** a modern approach. 8. ed. New York: W. W. Norton & Company, 2010.

VAST-AD-2681. Riot's Vanguard behaves like malware and just cost me 30 minutes of debugging + a dodge penalty. In: **Reddit**, r/riotgames, [2026]. Available at: https://www.reddit.com/r/riotgames/comments/1pzdqzs/riots_vanguard_behaves_like_malware_and_just_cost/. Accessed on: 9 mar. 2026.

VINCENT, Alice. Lily Allen on the making of The Fear: "I was ahead of my time". **The Telegraph,** London, 31 maio 2018. Available at: https://www.telegraph.co.uk/music/artists/lily-allen-making-fear-ahead-time/. Accessed on: 28 fev. 2026.

WADA, Ricardo Morishita. **A proteção do consumidor contra as práticas comerciais**

Skip to content

› de Defesa do Consumidor: novo ensaio para sistematização e aplicação

do Direito do Consumidor. 2016. Tese (Doutorado em Direito) – Pontifícia Universidade Católica de São Paulo (PUC-SP), São Paulo, 2016.

WALKER, Ian. Riot Addresses Concerns Over Valorant's Always-On Anti-Cheat System. **Kotaku**, 14 abr. 2020. Available at: https://kotaku.com/riot-addresses-concerns-over-valorants-always-on-anti-c-1842848668. Accessed on: 9 mar. 2026.

WALLENSTEIN. Why Riot Games' Entertainment Aims Stalled Beyond 'Arcane,' the Priciest Animated Series Ever (EXCLUSIVE). **Variety**, 6 nov. 2024. Available at: https://variety.com/2024/biz/news/riot-games-arcane-hollywood-netflix-most-expensive-animated-series-ever-1236196655/. Accessed on: 1 mar. 2026.

WARAT, Luis Alberto. **O direito e sua linguagem.** Com a colaboração de Leonel Severo Rocha. 2. versão. Porto Alegre: Sergio Antonio Fabris Editor, 1984.

WARREN, Samuel D.; BRANDEIS, Louis D.
The right to privacy. **Harvard Law Review**, v. 4, n. 5, p. 193-220, [201-?].

WHITE, Peter. Arcane becomes first streaming show to win animated Emmy. **Deadline**, 3 set. 2022. Disponível em: https://deadline.com/2022/09/arcane-becomes-first-streaming-show-win-animated-emmy-1235106732/. Acesso em: 1 mar. 2026. WILDE, Tyler. The controversy over Riot's Vanguard anti-cheat software, explained. **PC Gamer**, 8 maio 2020. Disponível em: https://www.pcgamer.com/the-controversy-over-riots-vanguard-anti-cheat-software-explained/. Acesso em: 9 mar. 2026.

X CORP. **Regras e políticas.** X Help Center, [202-?].
Available at: https://help.x.com/pt/rules-and-policies.
Accessed on: 15 mar. 2026.

ZERO3GAMES. Riot Points Gift Card - Cartão League of Legends [RP LoL]. **Zero3Games**, [202-?]. Available at: https://www.zero3games.com.br/loja/riot-points-league-of-legends. Accessed on: 9 mar. 2026.